



**RULES AND ORDERS
OF THE
LAHORE HIGH COURT, LAHORE**

VOLUME I

**INSTRUCTIONS
TO
CIVIL COURTS**

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Rules and Orders of the Lahore High Court Lahore

VOLUME I. – Instructions To Civil Courts

CHAPTER 1

Practice in the Trial of Civil Suits

PART A -- GENERAL

1. Court Hours.-- All Civil Courts in the Punjab shall sit on every day that is not a holiday for Civil Courts. The Court hours shall be fixed by the High Court through a notification and shall be subject to such alteration or change as may be made by general or special order keeping in view the demands of any particular area, event or occasion.]

2. Taking up cases after Court hours.-- No new case should be taken up after the closing hour of the Court but the hearing of a case taken up before that hour may, if necessary, be continued for a short time.

3. Holidays.-- The holidays allowed to the Civil Courts are annually prescribed by the High Court, under the provisions of *[section 25 of the Punjab Civil Courts Ordinance 1962 (II of 1962)] and no other holidays can be allowed by any other authority. The list of Civil holidays comprises general holidays and local holidays, the latter being usually limited to seven days in the year for each district.

4. Taking up cases on holidays.-- Civil suits and appeals ought not, as a rule, to be taken up #[...] on a holiday; but any Civil suit or appeal may be legally heard, by consent of the parties, #[...] on a holiday, if the Presiding Officer of the Court thinks it expedient, for any reason, to keep his Court open for the purpose.

5. Attendance of Ministerial establishment.-- The members of the ministerial establishment of the Courts should (subject to any special rules

regarding the Vacation Department) attend their office on all days except on holidays allowed to Civil Courts. An official may, however, be ordered by the Presiding Officer to attend office on a holiday to clear off arrears. An official should not except in most exceptional cases be made to attend on a holiday pertaining to his religion.

6. Preparation of cause lists.-- Cause Lists of cases fixed for each day should be prepared a day before. These lists should be exhibited in the Court room, or the verandah of the Court-house, at least by the afternoon of the day preceding that to which they relate, for the information of parties and their pleaders and the order of causes in the list should not be departed from without cogent reasons, unless the case be settled by compromise or the claim be admitted before the day fixed for trial. A strict adherence to this practice will secure punctual attendance and greatly promote the dispatch of business and the convenience of parties and witnesses. Cases should as far as possible be so arranged in the cause lists that the litigants may not have to wait long for simple cases and petty work such as miscellaneous applications, executions and objections, etc.

7. Form of cause list.-- Cause lists should be in the following form:-

IN THE COURT OF _____

CAUSE LIST FOR _____

CASE					
Day of the week and date	No.	Plaintiff, Appellant or Petitioner	Defendant or Respondent	Description of the case	REMARKS
---	---	---	---	---	---

PART B -- RECEPTION OF PLAINTS AND APPLICATIONS

1. Not to be received on holidays.-- Complaints and petitions should be received by the Civil Courts on every day, which is not an authorised holiday, during office hours.

2. Reception by Court not sitting at headquarters of the district.-- Every Court whose place of sitting is at a distance from the headquarters of the district, should receive complaints and petitions direct under such general directions as the District Judge or the *[Civil Judge], if so empowered under *[section 16 of the Punjab Civil Courts Ordinance, 1962 (II of 1962)] may prescribe.

3. Distribution of cases.--(i) Complaints and petitions presented at the head-quarters of a district will be received and distributed by the District Judge who may delegate this power under *[section 16 of the Punjab Civil Courts Ordinance, 1962 (II of 1962)] to any [Civil Judge] and should always do so when it is for the convenience of the litigants. Regard should be had to the provisions of sections 15 and 20 and Order IV, Rule 1, of the Code of Civil Procedure, in framing directions regarding the reception of Civil Suits.

(ii) **Duty of distributing officer.--** The work of distribution of cases should not be left to the Reader or the Clerk of Court. The Judge should attend to it personally, noting in his own hand the name of person presenting the case and the Court to which the case has been assigned for trial. He should also inform the person presenting the complaint or petition of the date on which he is required to attend the Court to which the case is sent and note the fact of his having done so in his order. This will avoid the necessity of a notice being issued to the plaintiff or petitioner by the Court to which the case is sent.

(iii) **List of cases assigned to be exhibited.--** At the end of each day a list of all the cases so distributed should be exhibited in the Court of the distributing officer. Similarly each Court should exhibit at the end of each day a list of the cases assigned to it by the distributing officer.

***[Note:-** In almost all the districts in the Punjab District Judges have delegated their powers of distribution of complaints to the Senior Civil Judges under section 15 of the Punjab Civil Courts Ordinance, 1962,(II of 1962)].

4. Examination, endorsement and distribution.-- Every plaint or petition should, if possible, specify the provision of law under which it is presented and should, at the time of its reception, be at once endorsed with the date of its receipt, and such endorsement should be signed by the receiving officer. The Court-fees should be forthwith examined and cancelled in the manner prescribed in that behalf. The receiving officer should prepare a list of all plaints and applications received each day, and be held responsible that they are duly distributed in accordance with the orders passed thereupon and the general instructions (if any) given by the District Judge or the Senior *[Civil Judge] in that respect.

**[The Daily List of plaints etc. shall be arranged and preserved month-wise and year-wise so as to form an annual register to be called "Daily Institution List."]

5. Insufficiently stamped plaints, etc.-- It shall be the duty of the Clerks of Court to District and Sessions Judges, Senior *[Civil Judges] and Judge of the Court of Small Causes and Readers to all other *[Civil Judges] to see that appeals, plaints and petitions, etc. received in the Courts, to which they are attached, are properly stamped. When they are in doubt what Court fee is due on any document, it shall be their duty to refer the matter to the Presiding Officer for orders.

These officials are primarily responsible for any loss of revenue caused to Government by insufficiently stamped documents having been received owing to their neglect, but the ultimate responsibility for the loss lies on the Judge of the Court whose duty it is to look into such matters either when the plaints are instituted or when the plaints came up for hearing before him.

Note:- The Clerk of Court to the Senior *[Civil Judge] is responsible for checking the Court-fee on those plaints only which the Senior *[Civil-Judge] retains for trial by himself. In other cases the Reader of the Court to which the suit is sent for trial is responsible.

Provided that the personal responsibility of the officers concerned shall only be enforced where obvious mistakes have been made and not in cases in which a genuine doubt was possible regarding the correctness of the Court-fee due.

6. Transfer of cases to equalize work.-- The equal distribution of work amongst the Courts available can always be effected by the transfer of cases when necessary from one Court to another under the authority vested in the District Judge.

When a case is transferred by judicial order, the Court passing the order should fix a date on which the parties should attend the Court to which the case is transferred.

7. (a) Petition box.-- The petition box shall be placed in the verandah of the Court house at about one hour before the Court sits, an official being specially made to attend early for this purpose. It shall be opened in the presence of the Judge at about 15 minutes after the Court opens when all petitions shall be presented to and initialled by him. The Judge shall pass proper orders forthwith or inform the petitioner when orders will be ready after the necessary "Kaifiyats" have been put up. The box shall be replaced in the verandah and opened again shortly before the Court rises for luncheon in the presence of the Judge and the same procedure followed. It shall then be replaced once more in the verandah and opened for the last time, 15 minutes before the time fixed for the rising of the Court and the procedure prescribed above followed. After the Judge has arisen the box will be brought back to the Court room and no further petitions will be accepted.

A list of all miscellaneous or execution applications, on which orders cannot be passed forthwith, should be prepared and exhibited outside the courtroom specifying the date fixed for the disposal of each application.

(b) Urgent cases.-- In urgent cases, however, the Judge may exercise his discretion and personally receive documents presented to him direct at any time.

(c) Reception by ministerial establishment prohibited.-- The members of the ministerial establishment are strictly forbidden to receive petitions, complaints or other documents direct from lawyers and their clerks or from litigants except when the Judge is on leave and no other Judicial Officer is in charge of his current duties. District Judges should, however, invariably make arrangements for the reception of complaints and petitions, etc. by another officer of a Court when an officer is temporarily absent, on leave, tour or otherwise. Where there is a single Judicial Officer at a station such as a Mofassal or outlying Courts

and who is on leave, arrangements should be made for the reception of complaints, petitions, documents, etc. by the Tahsildar or the Naib Tahsildar in consultation with the Deputy Commissioner.

(d) Exceptions.-- The above orders do not apply to applications put in by counsel for the inspection of records which may be presented to the Presiding Officer personally, nor do they apply to talbanas and stamped postal envelopes filed by the litigants, which should be received direct by the Ahlmad or the Moharrir and a receipt given for the same whether demanded or not.

8. Who can file petition, etc.-- Complaints and petitions must be filed, except, when otherwise specially provided by any law for the time being in force, by the party in person or by his recognized agent, or by a duly authorized and qualified legal practitioner.

9. Recognised agents.-- Recognized agents are defined in Order III, Rule 2, of the Code of Civil Procedure, 1908. As to the appointment of a pleader, the provisions of Rule 4 of Order III * [of the said Code] and the instructions of the High Court given in Chapter 16, part A of this Volume should be carefully studied.

10. Powers of attorney.-- When parties appear by pleaders, or agents duly authorized in that behalf, their powers-of-attorney should, when practicable, be filed in original with the complaint. Where the power-of-attorney is a general one, a copy should be filed, the original being presented for verification. When so filed the power of attorney will be considered to be in force until revoked, with the leave of the Court, by a writing signed by the client and filed in Court, or until the client or pleader or agent dies, or all proceedings in the suit are ended so far as regards the client.

11. Sending by post.-- The reception of complaints and petitions made under the Code of Civil Procedure, for judicial purposes by post, is irregular. All applications of a judicial nature received by post should be filed and on each application so filed an endorsement should be made to the effect that it was filed as not having been properly presented. This does not apply to applications for copies of judicial proceedings, which are not applications for judicial purposes made under the Code; but are applications dealt with under administrative authority.

PART C -- EXAMINATION OF THE PLAINT

1. Examination.-- On the presentation or receipt of a plaint, the Court should examine it with special reference to the following points, viz.:-

(i) whether the plaint contains the particulars specified in Order VII, Rule 1, and conforms to the other rules of pleadings in Orders VI and VII and rules made by the High Court thereunder;

(ii) whether, there is, prima facie, any non-joinder or mis-joinder of parties, or mis-joinder of causes of action;

(iii) whether any of the parties to the suit are minors and, if so, whether they are properly represented as laid down in Chapter 1-M(d) of this volume;

(iv) whether the plaint is duly signed and verified;

(v) whether the suit is within the jurisdiction of the Court or must be returned for presentation to proper Court (Order VII, Rule 10);

(vi) whether the plaint is liable to be rejected for any of the reasons given in order VII, Rule 11;

(vii) whether the documents attached to the plaint (if any) are accompanied by lists in the prescribed form and are in order;

(viii) whether the plaintiff has filed a proceeding containing his address for service during the litigation as required by Rule 19 of Order VII as framed by the High Court;

******[(ix) whether the plaint is accompanied by a statement giving the names and addresses of the legal representatives and of the person who in the event of death of the plaintiff shall intimate such fact to the Court (Order VII, Rule 26, CPC);

(x) whether the plaint is accompanied by as many copies on plain paper of the plaint as there are defendants plus two extra copies and draft forms of summons and fees for the service thereof {Order VII, Rule 9 (1A), CPC};

(xi) whether the suit is not barred by time, and if, prima facie, it is so barred, whether plaintiff shows the ground on which exemption is claimed (Order VII, Rule 6); and

(xii) whether the plaint is accompanied by as many registered envelopes (acknowledgment due) as the number of defendants for simultaneous service of the summons through post (Order V, Rule 10-A).]

2. The provisions of the Code with regard to the pleading (which term includes the plaint and written statements of parties) should be carefully studied. The principal rules of pleading may be briefly stated as follows:-

(a) The whole case must be stated in the pleadings, that is to say, all material facts must be stated (Order VI, Rule 2).

(b) Only material facts are to be stated. The evidence by which they are to be proved is not to be stated (Order VI, Rules 2, 10, 11 and 12).

(c) The facts are to be stated concisely.

(d) It is not necessary to allege the performance of any condition precedent; an averment of performance is implied in every pleading but a non-performance of condition precedent, if relied on, must be distinctly stated (Order VI, Rule 6).

(e) It is not necessary to set out the whole or any part of a document unless the precise words thereof are necessary. It is sufficient to state the effect of the document as briefly as possible (Order VI, Rule 9).

(f) It is not necessary to allege a matter of fact which the law presumes. or as to which the burden of proof lies on the other side (Order VI, Rule 13).

(g) When misrepresentation, fraud, undue influence, etc. are pleaded, necessary particulars must always be given (Order VI, Rule 4).

(h) When a suit is prima facie time-barred the ground on which exemption is claimed must be stated (Order VII, Rule 6).

If the plaint is prolix or indefinite or omits to give the necessary particulars or to specify the relief claimed precisely or is defective in any other respect it should be returned to the party or his counsel for such amendment as may be necessary in the actual presence of the Presiding Officer after he has signed the endorsement. The Court has wide powers in this respect (see Order VI, Rules 16 and 17). Where amendment is directed, an order should be recorded by the judge indicating the particulars about the necessary amendment and fixing a date for filing the amended plaint.

3. (a) Non-joinder and mis-joinder of parties and causes of action.-- Attention is drawn to the provisions of law contained in Orders I and II of the Civil Procedure Code relating to non-joinder of parties and mis-joinder of causes of action and parties and as to representative suits:-

(i) **Joinder of parties.--** Order I, rules 1 and 3 provide in what case several plaintiffs or defendants may be joined in one suit.

(ii) **Representative suits.--** Order I, rule 8 provides that when there are numerous persons having the same interest in one suit, one or more of such persons may sue or defend on behalf of all with the permission of the Court .

(iii) **Objection as to non-joinder or mis-joinder.--** Order I, rule 9 lays down that no suit shall be defeated by reason of mis-joinder or non-joinder of parties and Order I , rule 13 and Order II, rule 7 lay down that objections as to non-joinder or mis-joinder of parties or causes of action, etc. should be made at the earliest stage of the case.

(iv) **Joinder of causes of action.--** Order II rules 3 to 5 provide in what cases several causes of action may be joined in one suit.

(v) **Separate trials.--** Order I, rule 2 and Order II, rule 6 provide for power of the Court to order separate trial if the joinder of several plaintiffs or several causes of action is inconvenient.

(vi) **Striking out and adding parties.**-- Order I, rule 10 gives power to the Court to strike out unnecessary parties and add necessary parties.

(b) **Necessary parties.**-- Suits for inheritance, partition or declaration of right in order to effect partition, contribution, redemption, foreclosure, administration of property, dissolution and winding up of a partnership, and the like, cannot be properly disposed of unless all persons interested in the matter are before the Court. Therefore, in cases of this description, if it appears that any necessary parties have not been joined, the plaintiff should be ordered to join them.

4. Signing and verification.-- The plaint must be signed by the plaintiff, or, if by reason of absence or other good cause the plaintiff is unable to sign it, by his duly authorised agent. It must also be signed by the plaintiff's pleader (if any) and be verified by the plaintiff, or by some other person proved to the satisfaction of the Court to be acquainted with the facts of the case .

The personal attendance of the plaintiff in Court for the purpose of verification is unnecessary. The verification must, however, be signed by the person making it.

5. Jurisdiction.-- The jurisdiction of a Court depends upon the nature and value of the suit. (For detailed instruction see Chapter-II on "Jurisdiction of Courts" and Chapter-III on "Valuation of suits"). If a suit is not within the jurisdiction of the Court, the plaint must be returned in the presence of the Presiding Officer for presentation to proper Court. In such cases the Presiding Officer must record on the plaint his reasons for returning it along with the other particulars mentioned in sub-rule (2) of rule 10 of Order VII.

6. Rejection of plaint.-- If the plaint discloses no cause of action, or is barred by any law on the statements made therein, or if the relief claimed is under-valued or the plaint is not sufficiently stamped and the plaintiff fails to correct the valuation or pay the deficiency in the Court-fee within the time fixed by Court the plaint should be "rejected" under Order VII, Rule 11, reasons being recorded by the Presiding Officer in support of the order.

It should be noted that the correct order in such cases is to 'reject the plaint' and not 'dismiss the suit'. The rejection of a plaint does not preclude the institution of a fresh suit on the same cause of action, provided of course, it is not otherwise barred (e.g., by limitation, etc.) by that time .

7. Comparison of copies of account.-- Copies of any shop book or account produced should be compared with the original by Chief Ministerial Officer of the Court and the shop book or account should then be returned after marking the entries relied upon (Order VII, Rule 17).

When a shop book or other account written in a language other than English or the language of the Court is produced with a translation or transliteration of the relevant entry, the party producing it shall not be required to present a separate affidavit as to the correctness of the translation or transliteration, but shall add a certificate, on the document itself, that it is a full and true translation or transliteration of the original entry, and no examination or comparison by the ministerial officer shall be required except by a special order of the Court.

8. Address of the parties.-- The proceeding containing address for service is intended to facilitate the service of processes throughout the litigation (including appeals, etc.) and it is, therefore, important to see that it is duly filed at the outset according to this rule. Failure to comply with the rule is liable to be punished with dismissal of the suit but such an order may properly be passed in extreme cases when the failure is intentional and contumacious.

9. Land suits.-- If the plaint relates to agricultural land and the plaintiff is illiterate, it should be scrutinised with special care, according to the following directions:-

- (i) The Presiding Officer shall ascertain by careful examination of the plaintiff or his agent, whether the prayer in the plaint corresponds in all particulars with the exact relief which the plaintiff orally describes himself as seeking. If the oral statements of the plaintiff or his agent are at variance with the written description of his claim, the plaint shall, in his or his agent's presence, be returned for amendment, and no amended plaint

should be accepted until the Court is satisfied that it correctly expresses the claim which the plaintiff desires to establish.

- (ii) Every such plaint shall be accompanied by a statement in the prescribed form setting forth the particulars relating thereto recorded in the Settlement record and in the last Jamabandi. This statement shall be verified by the signature of the Patwari of the Circle in which the land concerned is situated. Where, by reason of partition, river action or other cause the entries in the Settlement record and in the last Jamabandi do not accord, a brief explanation of the reason should be given in the column of remarks. Where the suit is for a specific plot with definite boundaries, it shall also be accompanied by a map, drawn to scale, showing clearly the specific plot claimed, or in relation to which the decree is to be made, and so much of the fields adjoining it, also drawn to scale, as may be sufficient to facilitate identification. The specific plot and adjoining fields shall be numbered in accordance with the statement and the map shall be certified as correct by the Patwari or other person who prepared it. Where, however, the suit is for the whole of one or more khasra numbers as shown in the Settlement map, or a share in such numbers, and not for a specific portion thereof no map will be required unless it is necessary for other reasons to show the boundaries of such khasra numbers.

10. Suits for recovery of money, mesne profits and accounts.-- If the plaintiff seeks the recovery of money, the plaint should state the precise amount, as far as the case admits. In a suit for mesne profits or unsettled accounts it is sufficient to state the amount approximately.

11. Suits by or against firms.-- Suits by or against firms should be in the form prescribed in Order XXX. An explanation has been added by the High Court to Rule I of Order XXX, making it applicable to joint Hindu trading partnerships (Notification No. 2212-G, dated 12th May 1909).

12. Copies or concise statements of plaints.-- When the plaint is admitted (after such amendment as may be found necessary), the plaintiff should

be required to give as many copies of the plaint on plain paper as there are defendants, for being supplied to them. If the plaint is long, or the number of defendants is large, the Court may permit concise statements of the plaint to be supplied instead. Such copies or concise statements must be examined by the chief ministerial officer and signed, if found correct (Order VII, Rule 9).

13. Parcha Yad Dasht.-- When a plaint or petition is admitted and a date fixed for summoning of the other party or for any other purpose a memorandum (parcha yad dasht) on strong paper in the form given below duly filled in shall be given to the plaintiff or the petitioner or his agent if he is illiterate and not represented by counsel.

FORM OF PARCHA YAD DASHT

IN THE COURT OF THE _____ AT
COURT HOURS FROM _____ A.M. TO _____ P.M.

Civil (Suit)(Appeal)(Miscellaneous Application)No. _____ of (year) _____.

Parties	Date of receipt	Date fixed for hearing	Place at which attendance is required	Purpose for which date is fixed	Remarks
-	-	-	-	-	-

A.....By (Officer of Court)

B.....From (Name and description of party presenting)

INSTRUCTIONS

1. A parcha is to be given without demand (1) to the person who presents the plaint, appeal or petition, and (2) when a case is not disposed of at the first hearing to the Defendant or Respondent or, if there be several, to such Defendants or Respondents as the Court may direct.

2. Every entry in any column after the first is to be signed by the officer making it.

3. If the place is the fixed headquarters of the Court, it need not be specified, but in every other instance it must be specified.

14. Parcha Yad Dasht.-- A similar parcha shall be given to the opposite party when he appears if he is illiterate and not represented by counsel.

15. Filling in of the parcha.-- Parcha shall be filled in and signed by the Reader of the Court and given to the parties concerned in the presence of the Presiding Officer as soon as the date of hearing is fixed.

In Small Cause Courts and in the Courts of the District Judges this parcha may be filled in by any other official if the Presiding Officer so directs.

16. Filling in of the parcha.-- The above parcha shall be used throughout the proceedings and properly filled in whenever the case is adjourned. If the parcha is lost a duplicate should be given.

PART D -- SERVICE OF PROCESSES

ISSUE OF SUMMONS TO THE DEFENDANT

1. Summonses for final disposal or settlement of issues.-- In Order V, Rule 5, of the Code of Civil Procedure, it is laid down that the Court shall determine, at the time of issuing the summons, whether it shall be for the settlement of issues only, or for the final disposal of the suit, and the summons shall contain a direction accordingly; and a proviso to the rule adds that in every suit heard by a Court of Small Causes the summons must be for the final disposal of the suit .

2. When summonses for final disposal may issue.-- In determining whether the summons shall be for the settlement of issues only, or for the final disposal of the case, the Court must be guided by the nature of the suit, and the probability or otherwise of the facts stated in the plaint being disputed by the defendant on grounds which will require the production of much evidence or will involve much contention. Where the case appears simple, and it seems probable that a correct judgment can be formed at the first hearing from the examination of the parties or their agents, and such evidence, oral or documentary, as they can bring with them, the summons should be for the final disposal of the case.

3. Adjournment of case in case of summonses for final disposal.- It will, however, be remembered that when the summons is for final disposal, the Court is not bound to dispose of the case on the date fixed for hearing, but can adjourn the case to another date, to enable the parties to produce evidence, when this seems necessary in the interests of justice, and especially when there is reason to believe that one party has been taken by surprise by the pleadings of, or statements made on examination by the other.

4. Suitors should be made to know what summons for final disposal means.-- Care should be taken to make suitors understand, in cases in which the summons is for final disposal, that all their evidence must be produced on the day fixed for disposal.

*[5. (1) Not later than seven days after the settlement of issues, the parties shall submit to the Court a list of witnesses whom they propose to call either to give evidence or to produce documents.

(2) A party shall not be permitted to call witnesses other than those contained in the said list except with the permission of the Court and after showing good cause for the omission of the said witnesses from the list; and if the Court grants such permission, it shall record the reasons therefor.

5-A. Except where it appears to the Court that a summons under Order XVI should be served by the Court in the same manner as summons to a defendant, the Court shall make over for service such summons to the party applying therefor.

5-B. Every summons under Order XVI not being a summons made over to a party for service under rule 7A of that Order, shall be served as nearly as in the manner of service on a defendant and the rules in Order V as to proof of service shall apply thereto. Such summons shall not be issued unless an application is made not later than fourteen days prior to the date of hearing of the case and subject to the deposit of necessary expenses for the summoning of the witnesses.]

6. Signing of summons. Copies of plaint to be attached.-- Summonses should be clearly and legibly written and signed, and the seal of the Court must be affixed. Order V, Rule 1(3) of the Code requires that the summons shall be signed by the Judge or such officer as he appoints. In Courts, provided with a Clerk of Court he may be authorized to sign summonses; in all other Courts Reader may be authorized to sign them. The signature should in all cases be fully and legibly written. A copy or concise statement of the plaint should be attached to each summons.

7. References.-- As regards the general procedure to be followed in effecting service of processes, personal attention to service and proof of service, special procedure in the case of Government Servants, and persons in Military employ, etc., the time to be allowed for service of processes in *[Tribal Areas], foreign countries, Chapter 7, Volume IV, "Processes -- Civil Courts" may be referred to. For service of Processes of Appellate Courts -- See Chapter 14-B, Volume I.

PART E -- WRITTEN STATEMENTS

1. When written statements required.-- It is laid down in Order VIII, Rule 1 of the Code of Civil Procedure, that a defendant may, and if so required by the Court shall, at or before the first hearing or within such time as the Court may permit, present a written statement of his defence. Ordinarily it is advisable to require such a written statement and the Court should at the time of issuing the summons call for a written statement from the defendant on the date fixed for his appearance. In most cases, there should be no difficulty in presenting such a written statement on the date fixed, and no adjournment should be given for the purpose except for good cause shown, and in proper cases, costs should be awarded to the opposite side. Laxity in granting adjournments for the purpose of filing written statements should be avoided, and it should be noted that in extreme cases, contumacious refusal to comply with the Court's order is liable to be dealt with under order VIII, Rule 10, Civil Procedure Code.

******[According to the proviso to Rule 1 of Order VIII, the period to be allowed for filing of the written statement shall not, ordinarily, exceed thirty days.]

2. Documents to accompany written statement.-- Rule 1 of Order VIII (as amended by the High Court) further requires the defendant to produce with the written statement all documents in his possession or power on which he bases his defence or claim to set off, if any. If he relies in support of his case on any other documents, not in his possession or power, he must annex a list thereof to the written statement. With the written statement, the defendant must also file his address for service during the litigation.

3. Replications.-- When the defendant has filed a written statement the Court may call upon the plaintiff to file a written statement in reply. Under Order VIII, Rule 9, the Court, has power to call upon both parties to file written statements at any time and this power should be freely used for elucidating the pleas when necessary, especially in complicated cases. In simple cases, however, examination of the parties, after the defendant has filed his written statement is generally found to be sufficient.

4. Separate written statements.-- In all cases where there are several defendants the Court should, as a rule, take a separate written statement from each defendant, unless the defences of any defendants filing a joint written statement are identical in all respects. There may be different defences based upon a variety of circumstances and these should not be allowed to be mixed up together in a single statement merely because all the defendants deny the plaintiff's claim.

5. Court-fees.-- Written statements called from the parties may be on plain paper, but when the defendant claims in his written statements any sum by way of set off under Order VIII, Rule 6, Civil Procedure Code, the statement must be stamped in the same manner as a plaint in a suit for the recovery of that sum.

6. Contents.-- A "written statement" is included in the definition of "pleading" (vide Order VI, Rule 1) and should conform to the general rules of pleadings given in Order VI as well as the special rules with regard to written statements in Order VIII. All admissions and denials of facts should be specific and precise and not evasive or ambiguous. When allegations of fraud, etc. are set up, the particulars should be fully given. When any legal provision is relied on, not only the provision of law relied upon should be mentioned, but also the facts making it applicable should be stated. For instance, when a plea of res judicata is raised, not only the provision of law (e.g., section 11 of Civil Procedure Code) should be mentioned, but also the particulars of the previous suit which is alleged to bar the suit.

PART F -- SETTLEMENT OF ISSUES

1. Stress on framing correct issues.-- The trial of a suit falls into two broad divisions-- the first part leading up to and including the framing of issues and the second, consisting of the hearing of the evidence produced by the parties on those issues and the decision thereof. Issues are material propositions of facts and law, which are in controversy between the parties and the correct decision of a suit naturally depends on the correct determination of these propositions. The utmost care and attention, is therefore, needed in ascertaining the real matters in dispute between the parties and fixing the issues in precise terms. In most cases the main difficulty of the trial is overcome when the correct issues are framed. A few hours spent by the Court at the outset in studying and elucidating the pleadings, may mean a saving of several days, if not weeks, in the later stages of the trial.

2. Framing of issues by counsel.-- In some Courts, the framing of issues is left to the pleaders for the parties concerned. This practice is illegal and must cease. The Code contemplates that the Presiding Officer of the Court should himself examine the pleadings, get the points in dispute elucidated and frame issues thereon.

3. Elucidation of pleadings for framing issues.-- The main foundation for the issues is supplied by the pleadings of the parties, viz, the plaint and the written statements. But owing to the ignorance of the parties or other reasons, it is frequently found that the facts are stated neither correctly nor clearly in the pleadings. The Code gives ample powers to the Court to elucidate the pleadings by different methods prescribed in Orders X, XI and XII of the Code and in most cases it is essential to do so, before framing the issues.

4. Elucidation of pleadings for framing issues.-- On the date fixed for the settlement of issues, the Court should, therefore, carefully examine the pleadings of the parties and see whether, allegations of fact made by each party are either admitted or denied by the opposite party, as they ought to be. If any allegations of fact are not so admitted or denied in the pleadings of any party, either expressly or by clear implication, the Court should proceed to question the party or his pleader and record categorically his admission or denial of those allegations (Order X, Rule 1).

5. Examination of Parties.-- Order X, Rule 2 of the Code, empower the Court at the first or any subsequent hearing to examine any party appearing in person or present in Court or any person, accompanying him, who is able to answer all material questions relating to the suit. This is a most valuable provision, and if properly used, results frequently in saving a lot of time. To use it properly, the Court should begin by studying the pleas and recording the admissions and denials of the parties under Order X, Rule 1, as stated above. The Court will then be in a position to ascertain what facts need further elucidation by examination of the parties. The parties should then be examined alternatively on all such points and the process of examination continued until all the matters in conflict and especially matters of fact are clearly brought to a focus. When there are more defendants than one, they should be examined separately so as to avoid any confusion between their respective defences.

***[6. Examination on Oath.--** From Order XIV, Rule 3 of the Code, it will appear that every allegation of fact made by any person other than a pleader should be on oath or solemn affirmation.]

7. Personal attendance of parties.-- When a pleader for a party or his agent is unable to state the facts to the satisfaction of the Court, the Court has the power, to require the personal attendance of the party concerned (Order X, Rule 4). It may also be noted here that the Court can require the personal attendance of the defendant on the date fixed for the framing of issues by an order to that effect in the summons issued to him (Order V, Rule 3).

8. Examination should be detailed.-- In examining the parties or their pleaders, the Court should insist on a detailed and accurate statement of facts. A brief or vague oral plea, e.g., that the suit is barred by limitation, or by the rule of res judicata, should not be received without a full statement of the material facts and the provision of law on which the plea is based. Similarly when fraud, collusion, custom, mis-joinder, estoppel, etc., is pleaded, the facts on which the pleas are based should be fully elucidated. Any inclination of a party or his pleader to evade straightforward answers or make objections or pleas, which appear to the Court to be frivolous, can be promptly met, when necessary, by an order for a further written statement on payment of costs. The

party concerned should also be warned that he will be liable to pay the costs of the opposite party, on that part of the case at any rate, if he failed to substantiate his allegations.

9. Personal examination of parties.-- Examination of the parties in person is particularly useful in the case of illiterate litigants. Much hardship to the people will be prevented, if the Presiding Officers examine the parties personally and sift the cases thoroughly at the outset.

10. Amendment of pleadings.-- The examination of the parties frequently discloses that the pleadings in the plaint or written statement are not correctly stated. In such cases, these should be ordered to be amended and the amendment initialled by the party concerned. If any mis-joinder or multifariousness is discovered, the Court should take action to have the defect removed.

11. Forms prescribed for examination of parties.-- In order to ensure due compliance with these instructions as regards the examination of parties, the High Court has prescribed forms on which such examination should be recorded. Appellate Courts should see that the forms prescribed are used and should not fail to take notice of subordinate Courts which neglect to follow the directions here given.

12. Utility of provisions as to discovery, inspection and admission.-- The provisions of Order XI and Order XII of the Code with regard to "discovery and inspection" and "admissions" are also very important for the purposes of ascertaining the precise cases of the parties and narrowing down the field of controversy.

These provisions are little understood and are not utilized at present as much as they should be. The Courts should make themselves conversant with them and encourage the parties to make free use of them, especially in long and intricate cases. It should be noted that under section 30 of the Code the Court has power to make orders suo moto; as regards delivery of interrogatories for the purposes of discovery, inspection and admissions. If these provisions are properly used, they will result in a saving of considerable cost to the parties and also curtail the duration of the trial.

13. Parties and their counsel should be encouraged to use freely the provisions of order XII, rules 2 and 4, Civil Procedure Code (Notice to admit documents and facts). They should be warned that if they fail to avail themselves of these provisions they will not be allowed costs of proving facts and documents, notice of which could have been given. When hearing evidence the Court should make a note whether the parties have made use of these provisions, and if they have not done so, should disallow costs incurred in proving such facts and documents in passing final orders.

14. Form of issues.-- When the pleadings have thus been exhausted and the Court has before it the pleadings, written statements, admissions and denials recorded under Order X, Rule 1, examination of parties recorded under Order X, Rule 2 and admissions of facts or documents made under Order XII of the Code, it will be in a position to frame correctly the issues upon the points actually in dispute between the parties. Each issue should state in an interrogative form one point in dispute. Every issue should form a single question, and as far as possible issues should not be put in an alternative form. In other words, each issue should contain a definite proposition of fact or law which one party avers and the other denies. An issue in the form, so often seen, of a group of confused questions is no issue at all, and is productive of nothing but confusion at the trial. A double or alternative issue generally indicates that the Court does not see clearly on which side or in what manner the true issue arises, and on whom the burden of proof should lie, and an issue in general terms such as "Is the plaintiff entitled to a decree" is meaningless. If there are more defendants than one who make separate answers to the claim, the Court should note against each issue the defendant or defendants between whom and the plaintiff the issue arises.

15. Burden of proof.-- The burden of proof as to each issue should be carefully determined and the name of the party on whom the burden lies, stated opposite to the issue.

PART G -- DOCUMENTARY EVIDENCE

1. Production of documents and list along with plaint and written statement on final hearing.-- The main provisions of the Code with regard to the production of documents by the parties are as follow:-

(a) According to Order VII, Rule 14, when the plaintiff sues upon a document in his possession or power, he shall produce it in Court when the plaint is presented and deliver the document itself or a copy thereof to be filed with the plaint. If he relies on any other documents, whether in his possession or power or not, as evidence in support of his case, he shall enter such documents in a list to be annexed to the plaint. If the documents are not so produced or entered in the list, they cannot be proved at a later stage without the leave of the Court, unless they fall within the exception given in sub-rule 2 of Order VII, Rule 18.

(b) Order VIII, Rule 1 (as amended by the High Court), similarly requires the defendant to produce with his written statement any documents upon which his defence or claim to set-off is founded. The defendant must also annex to the written statement a list of all documents on which he intends to rely -- whether in his possession or power or not -- in support of his defence or claim to set-off.

(c) Order XIII, Rule I, lays down that the parties shall produce at the first hearing of the suit documentary evidence of every description in their possession or power on which they intend to rely, and which has not been already filed in Court and all documents which the Court has ordered to be produced. If the documents are not so produced at the first hearing, they cannot be produced at a later stage unless good cause is shown to the satisfaction of the Court.

******[(d) Order XVI Rule I provides for filing a list, within seven days after settlement of issues, of such witnesses who may be called to

produce documents. Any application made beyond seven days should not be allowed except on showing good cause.]

2. List of documents and their comparison with the list.-- Whenever any documents are produced by the parties in the course of a suit, whether with the plaint or written statement, or at a later stage, they must always be accompanied by a list, in duplicate, in the form given below. Documents produced must be forthwith compared with the list, and, if found correct, the original list should be signed by the Reader of the Court and its duplicate copy similarly signed should be returned to the party presenting the document. In column 4, the Court should note the manner in which the document was dealt with, i.e. whether it was admitted in evidence or rejected and returned to the party concerned or impounded, as the case may be.

(Continued)

List of documents produced by Plaintiff/Defendant under order XIII, Rule 1, Civil Procedure Code.

In the Court of _____ at _____ DISTRICT

Suit No. _____ of (year)

Plaintiff.

Versus

Defendant.

List of Documents produced with the plaint (or at first hearing)on behalf of (plaintiff or defendant)

This list was filed by _____ this day of (year)

1	2	3	4		5
			WHAT BECAME OF THE DOCUMENT		
Sr.No.	Description and date if any, of the document.	What the document is intended to prove.	If brought on the record, the Exhibit mark put on the document.	If rejected, date of return to party and signature of party or pleader to whom the document was returned.	Remarks

Signature of party or
pleader producing the list.

Note--Judicial Officers should instruct all petition-writers practising in their Courts to prepare lists in the above form for all documents intended to be produced in Court."

3. Calling upon parties to produce documents.-- The Court should formally call upon the parties at first hearing at the time of framing issues to produce their documents and should make a note that it has done so. ^{**}[On production of documents, the Court may call upon the parties to admit or deny the documents produced in the Court and record their admission, or as the case may be, their denial.] Forms have been prescribed by the High Court for

the examination of the parties with reference to their documents and these should be invariably used. If the printed forms are not at any time available, the questions prescribed therein should be asked and the questions as well as the answers noted. If these instructions are strictly carried out, there will be no justification for the plea frequently put forward by ignorant litigants, with regard to the late production of a document that they had brought the document at the first hearing but were not called upon to produce it.

4. Late production of documents.-- The above provisions as regards the production of the documents at the initial stage of a suit are intended to minimise the chances of fabrication of documentary evidence during the course of the suit as well as to give the earliest possible notice to each party of the documentary evidence relied upon by the opposite party. These provisions should, therefore, be strictly observed, and if any document is tendered at a later stage, the Court should consider carefully the nature of the document sought to be produced (e.g., whether there is any suspicion about its genuineness or not) and the reasons given for its non-production at the proper stage, before admitting it. The fact of a document being in possession of a servant or agent of a party on whose behalf it is tendered is not itself a sufficient reason for allowing the document to be produced after the time prescribed by Order XIII, Rule 1. The Court must always record its reasons for admission of the document in such cases, if it decides to admit it (Order XIII, Rule 2).

5. Suspicious, forged or not properly stamped documents.-- Should any document which has been partially erased or interlined, or which otherwise presents a suspicious appearance, be presented at any time in the course of proceedings, a note should be made of the fact; and, should a well founded suspicion of fraudulent alteration or forgery subsequently arise, the document should be impounded under Order XIII, Rule 8, and action taken under Section 476, 478 and 479 of the Code of Criminal Procedure. Similarly, should any document be presented which appears to have been executed on unstamped or insufficiently stamped paper, action should be taken under Section 33 and 35 of the stamp Act, 1899. (See also Volume IV, Chapter 4, "Court-fees Stamps").

6. Production and admission of documents distinguished.-- Court should be careful to distinguish between mere production of documents and their 'admission in evidence' after being either 'admitted' by the opposite party or 'proved' according to law. When documents are 'produced' by the parties, they are only temporarily placed on the record subject to their being 'admitted in evidence' in due course. Only documents which are duly 'admitted in evidence' form a part of the record, while the rest must be returned to the parties producing them (Order XIII, Rule 7).

7. Documents must be tendered in evidence.-- Every document which a party intends to use as evidence against his opponent must be formally tendered by him in evidence in the course of proving his case. If a document has been placed on the record, it can be referred to for the purpose. If it is not on the record, it must be called from and produced by, the person in whose custody it is.

8. Procedure when documents admitted by the opposite party.-- If the opponent does not object to the document being admitted in evidence, an endorsement to that effect must be made by the Judge with his own hand; and, if the document is not such as is forbidden by the legislature to be used as evidence, the Judge will admit it, cause it or so much of it as the parties may desire to be read.

9. Procedure when document is not admitted by the opposite party.-- If, on the document being tendered, the opposite party objects to its being admitted in evidence two questions commonly arise: first, whether the document is authentic, or, in other words, is that which the party tendering it represents it to be; and second, whether, supposing it to be authentic, it is legally admissible in evidence as against the party who is sought to be affected by it. The latter question, in general, is matter of argument only; but the first must, as a rule, be supported by such testimony as the party can adduce.

10. Legal objection as to admissibility.-- All legal objections as to the admissibility of a document should, as far as possible, be promptly disposed of, and the Court should carefully note the objection raised and the decision thereon.

The Court is also bound to consider, suo moto, whether any document sought to be proved is relevant and whether there is any legal objection to its admissibility. There are certain classes of documents which are wholly inadmissible in evidence for certain purposes, owing to defects such as want of registration, etc., (see e.g., Section 49 of the Registration Act). There are others in which the defect can be cured, e.g., by payment of penalty in the case of certain unstamped or insufficiently stamped documents.

11. Mode of proof.-- As regards the mode of proof the provisions of the *[Qanoon-e-Shahadat, 1984 (X of 1984)] should be carefully borne in mind. The general rule is that document should be proved by primary evidence, i.e. the document itself should be produced in original and proved. If secondary evidence is permitted, the Court should see that the conditions under which such evidence can be led in, exist.

Old documents.-- If an old document is sought to be proved under Section 90, the Court should satisfy itself by every reasonable means that it comes from proper custody.

When copies instead of original may be put in.-- Under the Bankers' Books Evidence Act, 1891, certified copies can be produced, instead of the original entries in the books of Banks, in certain circumstances, and a similar privilege is extended under Section 26 of the Co-operative Societies Act, *[1925], to entries in books of Societies registered under that Act, and the entries in the account prescribed under *[subsection (1) of Section 14 of the Punjab Money Lenders Ordinance, 1960 (XXIV of 1960)].

12. Proof of signature or attestation.-- There are certain points which the Courts should bear in mind, when the signature or attestation of a document is sought to be proved.

Before a witness is allowed to identify a document, he should ordinarily be made, by proper questioning, to state the grounds of his knowledge with regard to it. For instance, if he is about to speak to the act of signature, he should first be made to explain concisely the occurrences which led to his being present when the document was signed, and if he is about to recognise a signature on the strength of his knowledge of the supposed signer's handwriting, he should first be made to state the mode in which this knowledge was acquired.

This should be done by the party who seeks to prove the document. It is the duty of the Court, in the event of a witness professing ability to recognise or identify hand writing, always to take care that his capacity to do so is thus tested, unless the opposite party admits it.

13. Plans.-- In all cases in which a plan of the property is produced by either of the parties or is required from it by the Court and is not admitted by the opposite party, it must be properly proved by--

(a) examination of the person who prepared it, and by requiring him to certify it as correct and to sign it, or

(b) by affidavits or examination of the parties and witnesses.

It is further open to the Court to issue a commission at the cost of the parties or either of them to any competent person to prepare a correct plan and to examine the person so appointed in order to explain and prove it.

14. Endorsements on documents admitted in evidence.-- Every document "admitted in evidence", must be endorsed and signed or initialled by the Judge in the manner required by Order XIII, Rule 4, and marked with an Exhibit number. Documents produced by the plaintiff may be conveniently marked as Ex. P. 1, Ex. P. 2, etc., while those produced by the defendant as Ex. D. 1, D. 2, D. 3, etc. To ensure strict compliance with the provisions of Order XIII, Rule 4, ^{***} [...] each Civil Court has been supplied with a rubber stamp in the following form:

SUIT No. OF (Year)

Title (Plaintiff) versus (Defendant)

Produced by

On the day of

Nature of document

Stamp duty paid Rs. . . . Ps. . . . is (is not) correct.

Admitted as Exhibit No. _____

on the _____ day of _____ 19

Judge.

The entries in the above form should be filled in at the time when the document is admitted in evidence under the signature of the Judge. This precaution is

necessary to prevent any substitution or tampering with the document. Details as to the nature of the document and the stamp duty paid upon it are required to be entered in order that Courts may not neglect the duties imposed on them by Section 33 of the Stamp Act, 1899. District Judges should see that all Courts subordinate to them are supplied with these stamps.

The above rule also applies to documents produced during the course of an enquiry made on remand by an Appellate Court.

The endorsement and stamp will show that the document is proved. It is to be remembered that the word "proved" used in the context here means "that Judicial evidence has been led about it" and does not imply "proof" in an absolute sense.

15. Endorsements on documents not admitted in evidence.-- Documents which are not admitted in evidence must similarly be endorsed before their return with the particulars specified in Order XIII, Rule 6, together with a statement of their being rejected and the endorsement must be signed or initialled by the Judge.

16. Documents to be placed in strong cover.-- Documents which are admitted in evidence should be placed in strong covers - one cover being used for documents produced by the plaintiff and the other for those produced by the defendant.

17. Consequences of not properly admitting documents.-- Owing to the neglect of the foregoing direction as regards endorsing and stamping of documents it is often impossible to say what papers on the file constitute the true record; copies of extracts from public or private records or accounts, referred to in the judgment as admitted in evidence, are often found to be not "proved" according to law, and sometimes altogether absent.

18. Revision of record before writing judgment to see that only admitted document are on the record. Duty of Appellate Court to see that this has been done.-- It is the duty of the Court, before proceeding to judgment under Order XX, Rule 1, of the Code of Civil Procedure, finally to revise the record which is to form the basis of its judgment, and to see that it contains all that has been formally admitted in evidence and nothing else. Any papers

still found with the file, which have not been admitted in evidence, should be returned to the parties.

Appellate Courts should examine the records of cases coming before them on appeal with a view to satisfying themselves that subordinate Courts have complied with the provisions of the law and instructions of the High Court on the subject, and should take serious notice of the matter when it appears that any Court has failed to do so.

19. Extracts or copies of settlement record and Riway-i-Am to be placed on record.-- It frequently happens that although the wajib-ul-arz or riway-i-am of a village or other revenue record is referred to by the parties and by the Court itself as affording most important evidence, there is no certified extract or copy with the record of the entries relied on. When there is a copy, it is often incomplete or so carelessly written as to be un-intelligible. It becomes necessary to call for the originals thus causing damage to the records themselves, and delay and inconvenience to the parties to the suit. It is the duty of Appellate Courts to see that the Courts subordinate to them have proper extracts or copies of relevant entries in Settlement records made, verified and placed on the record.

20. Production of public records.-- No application for the production of a Court record should be entertained unless it is supported by an affidavit and the Court is satisfied that the production of the original record is necessary (Order XIII, Rule 10). The same principle may well be applied to other public records also. In the case of revenue records, the procedure laid down in Chapter 9 of this Volume "Special Kanungo" should be followed.

It should be borne in mind that mere production of a record does not make the documents therein admissible in evidence. The documents must be proved at the trial according to law.

Requisitions for records of Courts in other provinces should be submitted through the Registrar, Lahore High Court, Lahore.

Care should, however, be taken in not treating the applications for production of public records and documents too lightly. Such documents are liable to be lost or mutilated in the course of transmission and a good deal of time of the clerks is wasted in checking these records in order to see whether

they are complete according to the index. Original records or documents should not, therefore, be sent for, unless the Court is fully satisfied that the production of a certified copy will not serve the purpose.

Attention is drawn to rule 5, Order XIII, Civil Procedure Code, under which it is open to the Court to require copy of an entry of a public record to be furnished by one or the other party to the case. In the absence of special reasons which should be recorded in writing, Court should not detain the original of a public document but should return it after a copy has been furnished.

21. Return of documents.-- Documents admitted in evidence can be returned to the persons producing them, subject to the provisions of Order XIII, Rule 9 (as amended by the High Court by Notification No. 563-G, dated the 24th November, 1927). If an application is made for return of a document produced in evidence before the expiry of the period for filing an appeal or before the disposal of the appeal (if one is filed) care should be taken to require a certified copy to be placed on the record, and to take an undertaking for the production of the original, if required.

In pending cases, application for return of documents should be made to the Court where the case is pending.

In decided cases, the officer-in-charge of the Record Room should return the documents without consulting the original Court only when the applicant delivers a certified copy to be substituted for the original and undertakes to produce the original, if required to do so.

In all other cases, application shall be made to the original Court or its successor. If the Court considers that the document may, under Order XIII, Rule 9, be returned, it shall record an order accordingly.

The application should then be presented to the officer in-charge of the Record room who will pass an order for return of the document.

PART H -- HEARING OF SUITS, ADJOURNMENTS, EXAMINATION OF WITNESSES, ETC

1. List of Witnesses.-- Notice of the day of trial, reasonably sufficient to enable the parties to attend with their witnesses, should be given before hand. It is the business of the parties to take all reasonable steps to have their witnesses present in Court on the day fixed. The Court should, on application and deposit of process-fees, issue the requisite summonses as soon as possible so as to secure their attendance on the date fixed for hearing.

*[Not later than seven days after the settlement of issues the parties shall submit to the Court a certificate of readiness to produce evidence, alongwith a list of witnesses whom they propose to call to give evidence or to produce documents] and no party who has begun to call his witnesses shall be entitled to obtain processes to enforce the attendance of any witness against whom process has not been previously issued or to produce any witness not named in the list without an order of the Court made in writing and stating the reasons therefor (Order XVI, Rule 1). ***[...]

2. Statement of case.-- The trial should begin by the party having the right to begin (Order XVIII, Rule 1 of the Code) stating his case, and giving the substance of the facts which he proposes to establish by his evidence. The case thus stated ought to be reasonably in accord with the party's pleadings, because no litigant can be allowed to make at the trial a case materially and substantially different from that which he has placed on record, and which his adversary is prepared to meet. The procedure laid down in the aforesaid rule is often neglected by Courts, but it is highly useful and should be invariably followed.

3. Examination-in-Chief.-- In the examination of witnesses questions ought not to be put in a leading form, nor in such a form as to induce a witness, other than an expert, to state a conclusion of his reasoning, an impression of fact, or a matter of belief. The question should be directed to elicit from him facts which he actually saw, heard or perceived within the meaning of *[Article 71 of the Qannon-e-Shahadat, 1984 (X of 1984).] The questions should be simple, should be put one by one and should be framed so as to elicit from the witness, as nearly as may be in chronological order, all the

material facts to which he can speak of his own personal knowledge. A general request to a witness to tell what he knows, or to state the facts of the case should, as a rule, not be allowed because it gives an opening for a prepared story. Where the party calling witnesses is not aided by Counsel, and is unable himself to properly examine his witnesses he may be asked to suggest questions and the examination may be conducted by the Court.

4. Cross-examination.-- When the examination-in-chief is concluded the opposite side should be allowed to cross-examine the witness, or, if unable to do so, to suggest questions to be put by the Court. In cross-examination leading questions are permissible.

5. Re-examination.-- Then should follow, if necessary, re-examination for the purpose of enabling the witness to explain answers which he may have imperfectly given on cross-examination, and to add such further facts as may be admissible for the purpose.

6. How far should Court interfere in the conduct of examination.-- When the examination, cross examination and re-examination are conducted by the parties or by their pleaders, the Presiding Officer ought not, as a general rule, to interfere, except when necessary, e.g., for the purpose of causing questions to be put in a clear and proper shape of checking improper questions, and of making the witness give precise answers. At the end, however, if these have been reasonably well-conducted he ought to know fairly well the exact position of the witness with regard to the material facts of the case; and he should then put any questions to the witness that he thinks necessary. The examination, cross-examination, re-examination and examination by the Court (if any) should be indicated by marginal notes on the record.

7. Examination of witnesses called by Court.-- The examination of witness called by the Court under the provisions of order XVI, Rules 7 and 14, of the Code, should always be conducted by the Court itself; and after such examination, if the parties to the suit desire it, the witnesses may be cross-examined by the parties. Upon the close of the cross-examination, the re-examination of such witnesses, if necessary, should be conducted by the Court in the manner above stated.

8. Deposition should be read over.-- The deposition of each witness should be read over to him in open Court and corrected, if necessary, ^{**}[and signed] by the Judge as soon as his evidence has been finished (Order XVIII, Rule 5).

9. Mode of recording evidence.-- In all appealable cases the evidence shall be taken by or in the presence of the Judge or under his personal directions and supervision. If he does not write the evidence himself he shall (in all cases whether appealable or non-appealable) as the examination of each witness proceeds make in his own hand a memorandum of the evidence. He shall sign this memorandum and file it with the record. Should he be unable to do so he shall cause the reason of his inability to be recorded, and the memorandum to be taken down in writing from his dictation in open Court.

10. Arguments.-- When the party having the right to begin has stated his case and the witnesses adduced by him have been examined, cross-examined and re-examined, and all the documents tendered by him have been either received in evidence or refused, it then devolves upon each of the opposing parties, who have distinct cases, to state their respective cases in succession, should they desire to do so. After all of them have done so, or have declined to exercise the right, the evidence, whether oral or documentary, adduced by each in order, should be dealt with precisely as in the case of the first party; and on its termination and after they have, if they so desire, addressed the Court generally on the whole case the first party should be allowed to comment in reply upon his opponent's evidence.

The provisions of Order 18, Rules 2 and 3 as to hearing arguments should be strictly followed. The practice prevailing in some Courts of hearing three speeches in every case after the close of evidence of both parties, first by plaintiff, then by defendant and then a reply by plaintiff is irregular.

11. Rebuttal evidence.-- If, however, the case of an opposing party is such as to introduce into the trial, matter which is foreign to and outside the case of the first party and the evidence adduced by him, then the latter must be allowed, if he so desires, to rebut this by additional evidence, and his opponent must be allowed to speak upon it by way of reply before the first party himself makes his own reply. But this is not to be understood as entitling the first party

to ask for an adjournment for that purpose. He is bound to be prepared with such rebutting evidence, and an adjournment should only be allowed by the Court for good and sufficient reasons, costs being, if necessary, allowed to the opposite party.

12. Examination of parties as witnesses.-- The vicious practice of each party summoning his opponent as a witness merely with the design that counsel for each party gets a chance of cross-examining his client, obtains in many of the Muffasil Courts. This practice has been strongly condemned by their Lordships of the Privy Council and must cease (see I.L.R., XXXI, ALL. 116 at page 122). On the other hand, when the parties are personally acquainted with any facts which they have to prove, they are expected to go into the witness-box and stand the test of cross-examination by the opposite party. The failure of a party to go into the witness-box in such circumstances is liable to be regarded, in the absence of some satisfactory explanation, as throwing grave doubt on the bona fides of his case (see 105, I.C., 220(P.C.)).

13. Note about closing of evidence.-- It is frequently urged in appeals that a party has had witnesses in attendance whom the lower Court has omitted to examine. It is often impossible to ascertain from the record whether this is the case, and it would be equally impossible to ascertain it by a remand. When the examination of the last witness produced in Court by a party is closed, he should be distinctly asked if he has any more witnesses to produce; and the question and reply should be noted on the record. If more witnesses are named, the Court should either examine them or record its reasons for not doing so. If either party states that he desires additional witnesses to be summoned, the Court should record the fact of the application and pass an order there-upon.

14. Continuous hearing of evidence.-- Judges should always endeavour to hear the evidence on the date fixed, as much expense and inconvenience is caused by postponements ordered on insufficient grounds before the witnesses in attendance have been heard. Under Order XVII, Rule 1 of the Code, when the hearing of the evidence has once begun the hearing of the suit should be continued from day to day until all the witnesses in attendance have been examined, unless the Court finds the adjournments of the hearing to be necessary for reasons to be recorded by the Judge with his own hand.

It should be noted that sub-rule (1) of Rule 1, of Order XVII as amended by this Court requires that when sufficient cause is not shown for an adjournment, the Court shall proceed with the suit forthwith.

15. Adjournments for evidence.-- It has been observed that a number of Courts grant an adjournment merely because the party at fault is prepared to pay the costs of adjournment. Subordinate Courts should bear in mind that the offer of payment of the costs of adjournment is not in itself a sufficient ground for adjournment. The provisions of Order XVII, Rule 3, also deserve notice in this connection. If a party to a suit to whom time has been granted for a specific purpose as contemplated by Order XVII, Rule 3, Civil Procedure Code, fails to perform the act or acts for which time was granted without any good cause the rule gives the Court discretion to proceed to decide the suit "forthwith" i.e., without granting any adjournment. In such cases a further adjournment should not ordinarily be granted, merely because offer is made for payment of costs. In some Courts it is apparently assumed that if such an adjournment is not granted the case will be remanded by an Appellate Court. There are, however, no valid grounds for this assumption. If the record makes it clear that a further adjournment has been refused because of the negligence of the party concerned, such refusal would not in itself justify an Appellate Court in remanding the case. An adjournment granted otherwise than on full and sufficient grounds is a favour and in civil suits favour can be shown to one party only at the expense of the other.

No hard and fast rule can, however, be laid down. Each case must be judged on its own merits.

16. Adjournments for arguments.-- The practice of adjourning a case for arguments after all the evidence has been given should, as a rule, not be followed except in long and complicated cases. But this observation does not extend to an adjournment, when reasonably necessary, for a reply on the whole case by the party who is entitled to such reply nor to an adjournment for argument on a question of law which may have arisen during the trial and may have been, for convenience sake, reserved for argument until after the taking of the evidence.

Whenever a case has to be adjourned for arguments it should be adjourned to the next day, or, if this is not possible, to a very near date.

17. Memo of evidence should be legible.-- The Judge's memoranda of evidence should always be written in a legible manner; and if from any cause they have been illegibly or indistinctly recorded, copies should be made and placed with the record.

18. Interlocutory orders and notes.-- All orders made by the Court relative to change of parties, or adjournments, or bearing upon the course of the hearing of the suit other than depositions, orders deciding any issue and the final judgment, and notes of all material facts and occurrences which may have happened during the hearing of the suit, such as the presence of witnesses, etc. , must be carefully recorded from time to time, by the Presiding Officer in his own handwriting and be dated and appended to the record. Each "order", or "note" should be clearly marked as such.

All interlocutory orders should be recorded separately at one place in chronological order and kept at the beginning of the English record or evidence.

PART J -- DISMISSALS IN DEFAULT AND EX PARTE PROCEEDINGS

1. General.-- Order IX of the Code deals with the appearance of parties and the consequences of non-appearance.

2. Default by parties.-- Order IX, Rule 3, provides that when neither party appears when the suit is called on for hearing, the Court may make an order that the suit be dismissed.

3. Default by defendants.--*(a) "Order IX rule 6 provides that if on the day fixed in the summons for the defendant to appear and answer, the plaintiff appears and the defendant does not appear and it is proved that the summons was duly served in sufficient time to enable the defendant to appear and answer on the day named in the summons, the Court may proceed to try the case ex parte and pass decree without recording evidence. As regards the requisite proof of service in such cases, Chapter 7, Vol. IV on "Service of Processes" may be referred to. The defendant, it will be observed, may apply under Order IX Rule 13 for an order to set aside the ex parte decree and if satisfied that the summons were not duly served or that he was prevented by any sufficient cause from appearing when the suit was called on for hearing the Court shall make an order setting aside the decree against him on such terms as to costs as it thinks fit and shall appoint a day for proceeding with the suit. However, no ex parte decree shall be set aside merely on the ground of an irregularity in the service of summons if the Court is satisfied, for reasons to be recorded, that the defendant had knowledge of the date of hearing in sufficient time to appear on that date and answer the claim. (See section 5, article 164 and 181 of Schedule I, Limitation Act.)]

(b) Attention is drawn to Order IX, Rule 7, which lays down the procedure for setting aside ex parte proceedings when the hearing of the suit has been adjourned ex parte but no ex parte decree has been passed.

(c) Attention is also drawn to Order XVII, Rule 2, which lays down the procedure when the parties or any of them fail to appear at the adjourned hearing.

4. Default by plaintiff.-- Order IX, Rule 8, lays down that if the defendant appears and the plaintiff does not appear when the suit is called on for hearing, the Court shall make an order dismissing the suit, unless the claim is admitted wholly or in part, in which case the claim shall be decreed only to the extent to which it is admitted.

5. Hasty dismissal not advisable.-- The above rules must be worked in a reasonable manner, otherwise they will result in a number of applications for setting aside orders passed in the absence of one or both parties. A litigant may have gone away for a few minutes to call his pleader or to refresh himself. It is impossible to expect a man to remain in constant attendance for the whole of the time during which the Court is sitting. (A convenient method is to lay aside a case when it is found that both parties are not present and to call it a second time later on in the day, when all other cases have been called and those in which parties are present have been disposed of, and though it is not desirable to lay down any hard and fast rule as applicable to all cases, the above course should ordinarily be followed. Occasionally when it is brought to the notice of the Court that both the parties to a case, which has been held over are in attendance, it may be found convenient to call up the case before all other cases have been disposed of.)

******[When a suit or application is dismissed in default, the exact time of dismissal should be noted in the order by the Presiding Officer in his own hand. Where the defendant is absent in spite of service and the Court proceeds ex parte under Order IX Rule 6(1) (a) of the Code of Civil Procedure the Court may proceed ex parte but it has further to decide in exercise of its discretion whether it should pass the decree claimed against the defendant after evidence or without recording evidence and the discretion in this regard is to be exercised Judicially (PLD 1978 S.C. 89).]

6. Hasty dismissal not advisable.-- Some Judicial Officers are inclined to dismiss cases in default hastily in order to show an increased out-turn. This tendency must be strongly deprecated. No case should be dismissed without giving a party reasonable opportunity to appear as indicated above and if this is done, the number of successful applications for setting aside dismissals in default will be appreciably reduced. The same remarks apply to proceedings

taken ex parte and applications to set aside ex parte orders. When a suit or application is dismissed in default, the exact time of dismissal should be noted in the order by the Presiding Officer in his own hand.

7. Order of "Dakhil Daftar" is irregular.-- There is a tendency for Presiding Officers of civil Courts to pass orders that cases should be "dakhil daftar". This practice is incorrect. A Presiding Officer should invariably make it clear what the precise nature of the order is, i.e., whether the case is postponed or dismissed and the rule, if any, under which the order is passed should also be mentioned.

8. Registration suits.-- When a plaint is presented a suit is thereby instituted under Order IV, Rule 1, of the Code and the suit must forthwith be entered in the Register of Civil Suits (Civil Register No. 1) in accordance with Order IV, Rule 2.

9. Procedure when the plaintiff is not present on the preliminary date.-- It is customary, when a plaint is presented, to fix a short preliminary date in order to permit the examination of the plaint. On this preliminary date the plaintiff is expected to appear to receive notice of the date fixed for the hearing of the suit. It sometimes happens that the plaintiff does not appear on this date and several cases have come to the notice of the Judges in which Courts have forthwith dismissed the suit in default by orders purporting to be made under order IX.

This procedure is incorrect as it has been held that the preliminary date is not a date fixed for hearing and, therefore, the provisions of order IX do not apply. The correct procedure in such cases may be deduced from the Code and has been referred to in several rulings of the High Court. It is as follows:

(i) If the plaint is in order and process fee for the summoning of the defendant has been filed with the plaint, the Court should issue summons to the defendant and a notice to the plaintiff to appear on the date for which the defendant is summoned. If on that date the plaintiff does not appear in spite of the service of the notice on him, the suit can be dismissed under Order IX, Rule 3 or Rule 8 of the Code, whichever is applicable.

(ii) If the plaint is in order but process fee has not been filed with it, the Court should fix a date for the appearance of the defendant and issue notice to the plaintiff calling upon him to appear on that date and to deposit process fee by a specified date, so that the defendant may be summoned. If on the date fixed it is found that no summons has issued owing to non-payment of process fees, or that the summons could not be served owing to late payment of process fees, the suit can be dismissed under Order IX, Rule 2. If process fee has been paid as directed, the other provisions of Order IX will apply.

(ii-a) The provisions of Section 5 of the Limitation Act 1908 (IX of 1908) have been made applicable to applications under sub rule (i) of Rule 9 and sub rule (i) of Rule 13 of order IX C.P.C.

(iii) If the plaint is not in order and the defects are such as to entail its rejection under Order VII, Rule 11, the Court should record an order rejecting it. If it is to be rejected for failure to pay Court fees, it will be necessary first to issue a notice calling on the plaintiff to make up the deficiency unless he has already been given time to do so (See also paragraph 7 of Chapter 1-C ante). In such cases the final order to be entered in Civil Register No. 1 is "plaint rejected".

If the defects in the plaint are not such as to call for its rejection under Order VII, Rule 11, the Court should proceed in accordance with the procedure outlined in sub-clause (i) and (ii) above, the question of remedying the defects being taken up at the first hearing.

PART K -- SPEEDY DISPOSAL OF CASES

1. Cause-diary--. The speedy disposal of Court business is a matter which requires the earnest attention of every Judicial Officer. Delays of law are notorious in this country and tardy justice is often no better than injustice.

The proper despatch of Court work depends not merely on the ability of an officer, but also to a large extent on the personal attention paid by him to its adjustment and control. Amongst the important matters, which should receive his personal attention is the cause-diary. The practice of leaving the fixing of dates to the clerical staff, leads to abuses and results frequently in confusion of work. The fixing of an adequate cause list which can be got through without difficulty during the Court hours requires some intelligence and forethought, and unless the officer pays personal attention to the matter and fixes the list with due regard to the time likely to be taken over each case, there is risk of a considerable number of cases being postponed from time to time, with consequent delay in their disposal and inconvenience to the litigant public.

2. Causes of delay in disposal of cases.-- As a result of annual inspections, it has been found that the delay in the disposal of cases is mainly due to the following errors:-

- (i) Orders for the issue of notice to parties and summonses to witnesses are given without specifying the date by which process fees must be paid into Court. Two days should be the usual time allowed.
- (ii) On failure of service, orders for the issue of fresh process are given without ascertaining the cause of the failure of the service and fixing the responsibility therefor.
- (iii) Documents, instead of being accepted either with the plaint or at the first hearing, are accepted at every stage of the case.
- (iv) Applications for the issue of interrogatories, which should be accepted at the earliest stage of the case only, are accepted at a very late stage.

(v) Witnesses, who are present in Court, are often sent away un-examined on all kinds of inadequate pretexts.

(vi) Cases are not proceeded with from day to day and the evidence is taken in dribblets.

(vii) Adjournments are granted for the preparation of arguments at all stages even in the matter of interlocutory orders.

(viii) Unnecessary long adjournments are granted when adjournments are unavoidable.

(ix) Suits are dismissed or restored without adequate reasons.

(x) Orders are written by the Reader instead of by the Presiding Officer.

(xi) Personal attention is not paid to service of processes. The instructions given in Chapter 7-D, Volume IV, should be carefully observed.

(xii) The adjournment on insufficient grounds in cases which have already become old.

(xiii) Fixing a large number of cases for a particular day and then postponing some of them for want of time.

(xiv) Delay in the disposal of appeal against preliminary decree etc.

The Presiding Officer should pay special attention to the above points and follow carefully the proper procedure and instructions issued by the High Court on the subject from time to time.

Of all the foregoing, the most serious causes of delay are errors (i) and (ii).

All orders of whatever nature which are passed after the admission of a plaint(except those of a purely routine character) should be written by the Presiding Officer himself.

A Court should not adjourn any case for more than three months. If for any reason the diary for the next three months is full, a request for the transfer of some cases to some other Court should be made to the District Judge.

Intermediate dates should be fixed to watch the return of files requisitioned from other Courts and provinces.

District Judges should, from time to time, examine the diaries of *[Civil Judges] in their districts in order to see that too much work is not fixed for any day.

3. Commissions and arbitrations.-- Delays also occur frequently in cases in which a commission has been issued or reference made to arbitration. Courts should insist on submission of reports by the Commissioners or Arbitrators, as the case may be, within a reasonable time and should not grant adjournment without satisfying themselves that the Commissioners or Arbitrators are doing their duties and that sufficient cause has been shown for the grant of an adjournment. Parties and arbitrators should be made to understand that a reference to arbitration is liable to be cancelled if the award is not filed within time. It will be found useful to make a part of the Commissioner's fees depend upon punctual submission of his report.

***[4. Adjournment caused by absence of the Judge or unexpected holiday.--** (1) When a suit or proceedings is set down for a day, which is a holiday, the parties thereto shall appear in the Court on the next working day and the Court may either proceed with the suit on such day or fix some other day thereafter.

(2) If the Presiding Officer is proceeding on leave, he before this departure or before finishing the work on the day preceding the day of his leave should himself fix fresh dates of hearing in his Peshi Register for the cases fixed for the day on which he will not be holding the Court. The Register should then be made over to the Reader of the Court, who shall hand over to the parties and witnesses slips of paper specifying the other dates fixed for proceeding with the suits or proceedings and signed by him. In the event of the death of the Presiding Officer or his suspension or temporary absence due to any cause, the District Judge may empower another Civil Judge to perform his duties and the ministerial officer shall place the files fixed for the said date before the Civil Judge so empowered by the District Judge in this behalf to perform the duties of the Judge in respect of such suit or proceedings.]

5. Transfers.-- Whenever cases are transferred from one Court to another, the instructions contained in Chapter 13 of this volume should be followed.

6. Cases held up owing to records being in the appellate Court or pending decision of another case.-- Efforts should be made to give priority to cases, for the decision of which other cases are held up. *[Civil Judges] are authorised to bring to notice of appellate Courts cases where a suit has already been postponed for more than three months merely because the records happen to be with the appellate Court. The Presiding Officer of the appellate Court should then treat the appeals in which records have been sent for by the lower Courts as "urgent" and dispose of them as early as possible. Appellate Courts should also treat all appeals in which proceedings have been stayed in a lower Court as "urgent".

7. Interlocutory orders.-- Applications for interlocutory orders, the admission of which will hold up the original proceedings, should be carefully scrutinised and promptly disposed of.

8. Old cases and abstracts of order sheets.-- The progress of old cases should be carefully watched. It is advisable for Judicial Officers to keep before them a list of all old cases - say pending over six months or a year - and take proper steps to expedite their disposal. In order to put a stop to bad cases of delay Courts are required to submit to the High Court abstracts of order sheets in cases pending over a year.

9. Priority to certain cases.-- Attention is invited to the instructions as regards the speedy disposal of cases in which Government servants, military officers, soldiers, etc. are involved or to which the state is a party. (See Chapters 6 and 8 of this volume)]

Cases under section 28 of the Sikh Gurdawars Act, 1925 should also receive priority and be disposed of as quickly as possible (Vide Circular Memo. No. 3823-G; dated the 20th May, 1927).

10. Commercial Cases.-- "Commercial Cases" should be disposed of as speedily as practicable. The term "Commercial Case" is taken to include cases arising out of the ordinary transactions of merchants, bankers and traders,

amongst others those relating to the construction of mercantile documents, export or import of merchandise, affreightment, carriage of goods by land, insurance, banking and mercantile agency, and mercantile usage, and debts arising out of such transactions.

A plaintiff or appellant may apply at the preliminary hearing at which his plaint or appeal is admitted or by subsequent application before the final hearing thereof, to have his case classed as a "Commercial Case", and the Court before which such application is made shall, if satisfied that the case is a Commercial case, as defined in the above paragraph, cause the appeal or plaint to be marked with the words "Commercial Case".

All cases which have been marked as "Commercial Cases" under the preceding paragraph shall be brought to a hearing as early as may be practicable. Such cases shall be given priority on the day of hearing over other cases, except part heard cases, and shall, so far as possible be heard from day to day until they are finally decided.

11. Commercial Cases.--(a) In order to expedite decision in Commercial Cases, questions of law involving such preliminary points as limitation, causes of action, etc., should be tried and disposed of as preliminary issues before issues dealing with the merits of the case are taken up.

(b) The following form in which specimen entries are given be adopted for elucidation of the pleas at the first hearing:-

IN THE COURT OF -----

SUIT NO. OF (YEAR)

PLAINTIFF.

Versus

DEFENDANT.

parties

Upon hearing the ----- on both sides and upon reading the affidavit

counsel

of ----- filed herein, the following directions are given:-

Particulars-----Defendant in a week to give particulars of -----

Admission-----That the plaintiff is -----

Discovery-----Defendant in a week to produce -----

Interrogatories-----Plaintiff may interrogate as to -----

only: *Interrogatories* to be initialled by me.

Inspection of Documents-----Plaintiff undertakes to produce at the hearing

Inspection of property-----None.

Commissions-----None.

Examination of witnesses.-----To be examined on commission or otherwise, as the case may be.

12. Compromises.-- The hearing of a suit shall not be postponed on the plea that the parties wish to compromise or for the purpose of deciding whether there has been any compromise between the parties except as provided in Order XXIII, Rule 3, as amended by the High Court.

PART L -- INCIDENTAL PROCEEDINGS

(a) Attachment before Judgment and temporary injunction

1. Attachment or arrest before judgment.-- If at the time of filing the plaint, or at any other stage of the suit, an application is made by the plaintiff, under Order XXXVIII of the Code, for the arrest of the defendant or for the attachment of his property before judgment, the Court should proceed to consider the application with reference to the provisions of the Code and the following remarks.

2. Attachment or arrest before judgment.-- Orders for arrest or attachment before judgment ought not to be made on insufficient grounds. The circumstances which justify a Court in passing an order of this nature are distinctly stated in Order XXXVIII of the Code of Civil Procedure. The Court should, in every such case, be satisfied (Order XXXVIII, Rules 1 and 5) that the defendant contemplates a fraudulent disposal or removal of his property, or that he has fraudulently quitted its jurisdiction, leaving property therein.

3. Temporary injunction.-- It has been noticed that temporary injunctions are frequently issued ex parte by subordinate Courts without realising fully their consequences. The following instructions in respect of such orders should, therefore, be ordinarily followed:-

(i) All Courts shall deal critically with plaints and affidavits and, before suddenly interfering with the defendant behind his back, shall satisfy themselves that something has actually occurred, shortly before the application, to justify such interference.

(ii) Court should use the rules in Order XXXIX, C.P.C. with great discrimination, and should not overlook the significance of the word "may" wherever it occurs. They should not treat the exception in Rule 3 as the normal procedure. They should appreciate that interlocutory injunctions should be granted ex parte only in very exceptional circumstances, unless the plaintiff can convince the Court that by no reasonable diligence could he have avoided the necessity of applying behind the defendant's back.

(iii) Such injunction, when granted, should be limited to a week or less, i.e., the minimum time, within which a defendant can come effectively before the Court, assuming that to get rid of the injunction, he will be prepared to use the greatest expedition possible. **[It should be noted that under Rule 2A of Order 39, Code of Civil Procedure, an interim injunction passed in the absence of the defendant shall not ordinarily exceed fifteen days, provided that such injunction may be extended for failure of its service on the defendant when such failure is not attributable to the plaintiff or when the defendant seeks time for defence of application for injunction].

(iv) The Court should take the greatest care to state exactly what the forbidden acts are and the plaint should not be merely copied out; and if only one or some of the acts, sought to be restrained, need be urgently restrained, the injunction should be confined to those and should not embrace all the acts to which the plaintiff can possibly object.

(v) When the defendant appears and files his affidavit, the plaintiff should be given only a few days to answer it. The contested application should then be heard, as soon as possible, and if the Judge cannot dispose of it at once, should, for the term of the adjournment, which should be as short as possible, either grant an ad interim injunction or obtain an undertaking from the defendant not to do any acts complained against.

*[(vi) The Court should not allow the injunction to be abused by common devices such as failure to produce some person before the Process-Server for identification of the defendant or to serve some proforma defendant or in any other similar way. It may be remembered that an order of injunction made under rules 1 or 2 after hearing the parties or after notice to the defendant shall cease to have effect on the expiration of six months unless extended by the High Court after hearing the parties again and for reasons to be recorded for such extension:

Provided that report of such extension shall be submitted to the High Court.

(vii) The above instructions are not intended to restrict the discretion of the Courts, but every application for an ex parte injunction should be very carefully considered in the light of these instructions and should not be granted unless sufficiently good grounds are made out.]

4. [Omitted].

***[(b) Death, Marriage or Insolvency of parties**

1. *Death, Marriage or Insolvency of parties.*-- The procedure to be followed in the event of death, marriage or insolvency of parties is laid down in Order XXII, Code of Civil Procedure. It is to be noted that suits do not abate on the death of one of the several plaintiffs or the sole plaintiff or in case of death of one of the several defendants or sole defendant where the right to sue survives, the decree passed shall have the same force and effect as it had been pronounced before the death took place. Reference is also invited to the provision of Order VII rule 25 Code of Civil Procedure.

2. *Marriage of female party.*-- The marriage of a female plaintiff or defendant does not cause the suit to abate and the suit may be proceeded with and where the decree is against female defendant it may be executed against her alone. Where the husband is by law liable for the debts of his wife, the decree, may, with the permission of the Court, be executed against her husband also and, in case the decree is in favour of the wife execution of the decree may, with such permission, be issued, upon the application of the husband, where the husband is by law entitled to the subject-matter of the decree.

(c) Compromises

Compromises or adjustment of suits.-- Where a Court is satisfied that a claim has been adjusted by any lawful agreement or compromise or the claim has been satisfied wholly or in part, the Court shall order such agreement, compromise or satisfaction to be recorded and shall pass the decree accordingly so far as it relates to the suit. The newly added proviso by this Court to rule 3 of Order XXIII C.P.C. further provides that the hearing of a suit shall proceed and no adjournment shall be granted for the purposes of deciding whether there has been any adjustment or satisfaction, unless the Court, for the reasons to be recorded in writing, thinks fit to grant such an adjournment and that the judgment in the suit shall not be announced until the question of adjustment or satisfaction has been decided.

It is further provided that, when an application is made by all the parties to the suit, either in writing or in open Court through their counsel, that they wish to compromise the suit, the Court may fix a date on which the parties or their counsel should appear and compromise be recorded, but shall proceed to hear those witnesses in the suit who are already in attendance unless, for any other reason to be recorded in writing, it considers it impossible or undesirable to do so. If, upon the date fixed, no compromise has been recorded, no further adjournment shall be granted for this purpose, unless the Court, for reasons to be recorded in writing, considers it highly probable that the suit will be compromised on or before the date to which it proposes to adjourn the hearing.

In cases where the compromise goes beyond the subject-matter of the suit, the directions given in 46 I.A. 240(244) and I.L.R. 47 Cal.485 (P.C.) should be followed in preparation of decrees.

When a minor is concerned, the Court should consider and record a finding as to whether the compromise or adjustment is for the benefit of the minor and pass an express order granting or refusing leave for the purpose, as it may think fit.

As to compromises in cases of minors, see Volume-I, Chapter 1-M(d).

As to forms of decrees based on compromises, see Chapter 11(B) paragraph 5.]

(d) Amendment and Review

Amendment and Review.-- When a case is decided on the merits, the Court has no power to vary the judgment or decree, except by way of amendment under Sections 151 and 152 or by review under Order XLVII, C.P.C. The scope of amendment is very limited, being confined to clerical or arithmetical errors, accidental slips, &c. Review can be granted only on the grounds specified in Order XLVII. The words "any other sufficient cause" occurring in Rule 1 of Order XLVII have been held by their Lordships of the Privy Council to mean "a reason sufficient on grounds at least analogous to those specified immediately previously" (See I.L.R. III, Lah. 127--P.C.).

(e) Inherent Powers under Section 151, C.P.C

***[Inherent Powers under Section 151, C.P.C.--** The scope of Section 151 of the Code of Civil Procedure is frequently misunderstood and applications are made under that section, which do not properly fall within its purview. The section is widely worded to enable Courts to do justice in proper cases, but it cannot be used so as to override the express provisions of statute.]

PART M -- SPECIAL FEATURES OF CERTAIN CLASSES OF CASES

(a) Cases under Punjab Customary Law

1 to 6. ***[Omitted]

(b) Money Suits

1. General--Money suits generally preponderate in the Courts of the Civil Judges of the lowest grade and some features of these suits deserve attention.

2. Typical money suits--(a) The typical money suit in the Mufassil is one between a creditor and an illiterate debtor. The suit is generally based on a running account consisting of petty items in the account book of the former with balances struck from time to time, or an agreement recorded in it with regard to larger loans borrowed on occasions of marriage, etc., and occasionally on a bond. Allegations of fraud, want of consideration, & c., are frequently made in defence and owing to the ignorance of the debtor, on the one hand and the frequent absence of regular accounts on the other, the cases require careful sifting. The examination of the parties themselves under Order X Rule 2, Civil Procedure Code, before framing the issues is generally very useful (see Part F of this Chapter). When fraud, misrepresentation, undue influence, etc., are pleaded, the particulars thereof should be carefully elicited.

(b) **False entry**--It should be noted that *[section 18 of the Punjab Money Lenders Ordinance, 1960 (XXIV of 1960)], now provides a penalty in a suit for recovery of a loan for a false claim with respect to the principal amount advanced. The Court is empowered to disallow at its discretion, the whole or any part of the sum claimed by the plaintiff if it is satisfied that a false entry has been made to show the sum advanced as being in excess of that actually advanced plus such legitimate expenses as may have been incurred.

*(c) **Punjab Regulation of Accounts Act, its scope and duty of Court**-- Special attention is drawn to the provisions of the Punjab Money-Lenders Ordinance, 1960 (XXIV of 1960) and Punjab Relief of Indebtedness Ordinance 1960. Section 14 of the Punjab Money-Lenders Ordinance, 1960

imposes on the creditor an obligation to maintain and furnish regular accounts for each debtor separately in such manner as the Government may prescribe and also to supply each debtor every six months legible statement of accounts signed by the money-lender or his agent, any balance or amount that may be outstanding against such debtor on 30th of June or 31st of December in each year.

Section 15 of the Ordinance makes it obligatory for the Court in every suit or proceeding relating to a loan, to frame and decide an issue as to whether the creditor has complied with the obligation imposed by section 14 of the Ordinance about maintenance and furnishing of regular accounts. If the Court finds that the accounts have not been properly maintained as provided in the Ordinance in computing the amount of interest due upon the loan it may exclude every period for which the money-lender omitted duly to furnish the accounts as required by clause (b) of sub-section (1) of section 14.

It should be noted that the debtor is not bound to acknowledge or deny the correctness of the accounts furnished and his failure to protest cannot by itself amount to an admission (Section 14 Explanation).]

3. Suits on bahi account, copy of the account.-- When a suit is based on a bahi account, the account must be produced with the plaint. To avoid inconvenience to the plaintiff, he is allowed to file a copy, but the copy must be supported by an affidavit by the party producing it to the effect that it is a true copy or by a certificate on the copy that it is a full and true translation or transliteration of the original entry. No examination or comparison by any ministerial officer shall be required except by the special order of the Court. It should be noted, however, that although a copy is allowed to be filed, the original account must be produced (except when it is permissible to produce a certified copy, e.g., under the Bankers' Books Evidence Act, 1891), later in the course of the trial when evidence is led in order to prove it.

4. Presumption as to entries in account books.--(i) Entries in the books of account are relevant under * [Article 48 of Qanun-e-Shahadat, 1984], provided the books are regularly kept and the books must, therefore, be shown to have been so kept if such entries are relied upon. Further, such entries are not, by themselves, sufficient to charge any person with liability and must,

therefore, always be supported by evidence with reference to the correctness of the transaction recorded. There may be cases in which the Court may consider the plaintiff's own sworn testimony on the point sufficient for the purpose, but the main point to remember is that the mere production of an account is not sufficient to prove it.

*[(ii) Entries in the accounts prescribed by the Punjab Money- Lenders Ordinance, 1960 (XXIV of 1960), are deemed to be regularly kept in the course of business for the purposes of Qanoon-e-Shahadat, 1984 and certified copies are admissible in evidence for any purpose in place of the original entries (Section 14(3) of the Ordinance). As to the method of certification for such copies a reference should be made to rule 29 of the Rules framed under the Ordinance.]

5. Bonds and agreements distinguished--The essential difference between a bond and an agreement for payment of a debt is that the former is attested by at least one witness. The question whether a certain writing is a "bond" or an "agreement", does not depend upon whether it is executed on stamped paper or otherwise, but upon its contents. Broadly speaking, if a person binds himself to pay a debt by the writing it amounts to an "agreement", and if the writing is attested by one or more witnesses it is a "bond".

6. Stamps on Bonds and agreements-- An "agreement" as well as a "bond" are liable to stamp duty under the ***[omitted] Stamp Act. If a writing, which is tantamount to an "agreement" or a "bond", does not bear the necessary stamp duty, it is inadmissible in evidence unless the stamp duty and penalty are paid according to the provisions of Section 35 of the ***[omitted] Stamp Act, 1899, ***[...] (For further instructions on the subject, see Volume IV, Chapter-4).

7. Registration of bonds--Registration is not obligatory in the case of simple bonds creating no charge on any immovable property. As regards bonds creating such a charge, Section 17 of the ***[omitted] Registration Act should be consulted.

8. Thumb-mark and signatures--When the thumb-mark or signature on a document is denied, it must be proved in the proper manner. As regards thumb-marks, the most convenient method is to obtain thumb-marks of

the person concerned in Court, if possible, and send the same together with the disputed thumb-mark for comparison by an expert to the Finger Print Bureau at *[Lahore]. The report of the expert must be supported by his testimony on oath or solemn affirmation. Such testimony can be conveniently obtained by issuing a commission for the purpose to the *[Civil-Judge] at Lahore. (For further instructions on the subject, see Volume IV, Chapter 9). As regards proof of signatures, *[Articles 59-61 of Qanoon-e-Shahadat, 1984,] may be consulted and also Chapter 1-G of this Volume.

9. Proof of consideration--When the execution of a document is admitted or proved and the document contains an admission as to payment of consideration, the onus will be shifted to the executant to prove absence of consideration, if he relies on any such plea. An exception to this has been made by section 12 of the Punjab Debtors Protection Act, II of 1936, which lays down that the burden of proving that any consideration, alleged to have been paid by a money-lender, actually passed shall be on him unless the consideration is acknowledged by a debtor in his own handwriting or has been endorsed by the Registering Officer acting under clause (c) of sub-section 1 of section 58 of the Registration Act, 1908, as having been paid in his presence. The definitions of "money-lender" and "loan" as given in the Act should be carefully noted.

10. Costs and interest.-- The instructions contained in Chapter 11-E about the "Award of costs" and in Chapter 11-F about the "Award of interest" should be noted carefully.

***[11. Debt conciliation Boards.--** The provisions of Sections 9, 13, 20, 21 and 25, of the Punjab Relief of Indebtedness Act, 1934 (VII of 1934), should be carefully studied as the Act governs the relationship between debtors and creditors.

12. Payment by debtors.-- The provisions of Order XXI, Rule 1, Civil Procedure Code, relate only to payments made by a judgment debtor towards the satisfaction of a decree of Court.

It is now provided by *[Section 3 of the Punjab Relief of Indebtedness Ordinance, 1960], that any person who owes money may, at any time, deposit in Court a sum of money in full or part payment to the creditor.

The Court, on receipt of any such deposit, has to give notice to the creditor and on his application, pay the sum to him. For form of notice see form No. 218, Volume VI-A, Part A-II.

13. Payment by debtors.-- When a deposit has been so made by the debtor interest ceases to run on the sum deposited.

***[14. Rules as to deposits.--** The Provincial Government had made the following Rules under section 32 of the Punjab Relief of Indebtedness Act 1934. These Rules shall be deemed to continue in force in view of section 13 read with section 4 of the Punjab Relief of Indebtedness Ordinance, 1960.]

RULES

(1) These rules may be called the Punjab Relief of Indebtedness (Deposit in Court) Rules, 1935, and shall apply to all deposits to be made under section 31 of the Act.

(2) In these rules "the Act" means the Punjab Relief of Indebtedness Act, 1934.

(3) Sums less than Rs. 1,000 may be deposited in any Civil Court having jurisdiction within the district in which the debtor resides:

Provided that where there is more than one such Court in the same town, the deposit shall be made in the Court exercising the highest pecuniary jurisdiction.

(4) Sums of Rs.1,000 or over shall be deposited only in the Court of the Senior *[Civil Judge] of the district in which the debtor resides.

(5) Deposits may be made either by postal money order or by the debtor in person.

(6) All sums deposited shall be accounted for and dealt with according to the ordinary rules for the time being in force in the Courts into which they are paid.

(7) Notices under sub-section (2) of section 31 of the Act shall be served upon the creditor by registered letter acknowledgment due at the expense of the debtor.

***[15. Punjab Money Lender's Ordinance, 1960.--** According to section 10 of the Punjab Money-Lenders Ordinance, 1960 notwithstanding anything contained in any other enactment, a suit by money-lenders for recovery of a loan or an application for the execution of a decree relating to a loan shall be dismissed unless at the time of the institution of the suit or at the time of presentation of the application for execution of the decree, as the case may be, the money-lender -

(a) holds an effective license granted under section 3; or

(b) holds a certificate granted under section 7 specifying the loan in respect of which the suit is instituted or the decree in respect of which the application for execution is presented.]

(c) Pre-emption suit

***[1. Prevailing Law.--** The law of pre-emption in the Punjab is now governed by the Punjab Pre-emption Act 1991 (IX of 1991) and in the interpretation and application of its provisions, the Courts are to seek guidance from the injunctions of the Holy Quran, Sunnah and Fiqh.

2. Deposit of one third sale price.-- In every pre-emption suit, the Court is bound to require the plaintiff to deposit one-third of the sale price mentioned in the sale deed or the mutation and if no sale price is mentioned therein, or the price so mentioned appears to be inflated one-third of the probable value of the property within such period as the Court may fix not exceeding thirty days from the date of the filing of the suit.

If the plaintiff fails to make the deposit within the specified time or such further time as the Court may allow within the maximum period prescribed by law or if the plaintiff withdraws the sum deposited, his suit must be dismissed. The sum so deposited shall be available for the discharge of costs.

3. Court to enquire Suo Moto certain matters.-- In every pre-emption suit, the Court should examine the plaint to ascertain that (a) the sale in

dispute does not pertain to a property in respect of which right of pre-emption does not exist; (b) the plaint contains necessary averments as to making of the requisite `talabs'; (c) the plaint contains necessary averments as to Court fee payable under the law, and in any case where the Court fee payable is determined by the Court, the amount of Court fee payable and the date by which Court fee is to be paid and affixed, shall be specified; and (d) the plaint contains averment as to whether public notice of sale was given or not as required by section 31 of the Act. The plaint ordinarily should accompany a copy of the public notice.

4. Investment of the security deposit.-- The security i.e. one-third of the sale price deposited with the Court should be deposited in the State Bank or the National Bank of Pakistan under the head `12,00,000: Receipt from Civil Administration, 1230000 Law and Order Receipts; 1231000 Justice and 1231800 Others (75).]

(d) Suits by and against minors and persons of unsound mind

1. General.-- The procedure to be followed in the case of suits by or against minors is laid down in the rules in Order XXXII of the Code of Civil Procedure. Attention is invited to the additions and alterations made in these rules by the High Court (*vide* Chapter 23 of this volume).

2. Next friend and guardian *ad litem* defined.-- A minor being legally incapable of acting for himself, the law requires that every suit by or against such a person should be conducted on his behalf by a person who has attained majority and is of sound mind. A person conducting a suit on behalf of a minor plaintiff is called his "next friend", while a person defending it on his behalf is called a "guardian *ad litem*" for the purpose of the litigation.

3. Permission to sue.-- Any person as described above may institute a suit on behalf of a minor and no permission of the Court is necessary for the purpose.

4. Procedure for appointment of guardian.-- A "guardian *ad litem*" for a minor must be appointed by the Court and the trial of the suit cannot proceed until such an appointment is made.

To facilitate the appointment of a suitable guardian *ad litem* by the Court, Rule 3 of Order XXXII (as amended by the High Court) requires the plaintiff to file a list of relatives and other persons suitable for such appointments, accompanied by an affidavit to the effect that the persons named have no adverse interest in the matters in controversy in the suit and they are fit for appointment.

5. Notice to minor and relatives, etc.-- No order should be made appointing a guardian *ad litem* unless notice is issued to the guardian of the minor appointed or declared by a Court (if any), or where there is no such guardian, to the father or other natural guardian, or where there is no such guardian, to the person in whose care the minor is, and the objections of such persons (if any) are heard, ^{**}[the Court may if it thinks fit, issue notice to the minor also.] A notice to the minor is not essential under the rules (as amended) and need not issue where the minor is a mere child incapable of understanding the proceedings or helping in the selection of a guardian.

6. Choice of guardian, appointment of Court officers or pleaders, funds for defence and accounts to be kept. Scale of fees of pleader.-- In appointing a guardian *ad litem*, the following order of preference shall be observed:-

(i) If there is a guardian appointed or declared by a Court, he must be appointed unless the Court considers that it is for the welfare of the minor that some other person should be appointed. If any other person is appointed, the Court must record its reasons;

(ii) in the absence of a guardian appointed or declared by a Court, a relative of the minor best suited for the appointment should be selected;

(iii) in the absence of any such relative, one of the defendants should be appointed, if possible;

(iv) and failing such a defendant a ^{***}[...] pleader may be appointed.

It should be remembered that no person can be appointed to act as a guardian *ad litem* without his consent. Consent may, however, be presumed unless it is expressly refused.

When a ***[...] pleader is appointed to act as a guardian, the Court has power to direct the plaintiff or any other party to the suit to advance the necessary funds for the purposes of defence. A ***[...] pleader should be required to maintain and produce accounts of the funds so provided and these should ultimately be recovered from such party as the Court may think it just to direct after the result of the suit.

*[The Court may allow the pleader appointed to act as a guardian and the fee shall be as under :-

(i) Rs.200/- in cases valued upto Rs.5000/-

(ii) Rs.500/- in cases valued upto Rs.20,000/- and

(iii) Rs.1000/- in cases of beyond that value.]

7. Rejection of plaint where minor is not represented.-- The plaint may be "taken off the file" and all orders made may be set aside, if a minor is not properly represented and the person filing the plaint or obtaining the orders, whether a legal practitioner or not, may be liable to pay costs.

8. Appointment of guardian enures of appeal and execution.-- When a guardian *ad litem* is appointed by a Court the appointment enures for the whole of the litigation including appeals and execution proceedings arising out of the suit.

9. Compromise and agreement.-- No next friend or guardian *ad litem* can enter into any compromise or agreement with reference to the suit without the leave of the Court *expressly recorded* in the proceedings which should not be granted until the Court has applied its mind to the compromise or agreement in order to ascertain, as far as possible, that it is really for the benefit of the minor. If he does so, the compromise or agreement will be voidable at the instance of the minor.

10. Rules relating to suits by or against minors apply *mutatis mutandis* to suits by or against persons of unsound mind.

(e) Suits by Paupers

1. General. Attention is called to Order XXXIII of the Code, on the subject of suits by paupers and the steps which should be taken to protect the interests of Government in such cases.

2. Examination of plaintiff, and evidence for admission notice to Government.-- Before a pauper suit is admitted, the petitioner or his agent, when the applicant is allowed to appear by agent, should be examined regarding the merits of the claim and the property of the applicant. If it appears to the Court that the suit is not framed and presented in the manner prescribed by rules 2 and 3 of Order XXXIII, or that the applicant is not a pauper, or that he has fraudulently made away with any property within the two months preceding the presentation of the plaint, or that his allegations do not show a cause of action, or that he has entered into any agreement with reference to the subject-matter of the proposed suit under which any other person has obtained an interest in such subject-matter, the application must be rejected. If the Court sees no reason to refuse the application, it must fix a day (of which at least ten days' previous notice must be given to the opposite party and to the Government Pleader on behalf of Government) for receiving such evidence as the applicant may adduce in proof of his pauperism, and for hearing any evidence which may be adduced in disproof thereof, and can only pass final orders on the application after hearing the evidence and arguments brought forward on the day so fixed.

3. Dispaupering.-- Under the provisions of Order XXXIII, Rule 9, of the Code of Civil Procedure, the Court may, under certain circumstances, order a plaintiff to be dispaupered.

4. Copy of decree to be sent to Collector.-- Order XXXIII, Rule 14, directs that where an order is made under Rules 10, 11 or 12, the Court shall forthwith forward a copy of the decree to the Collector.

Note:- The Deputy Commissioner of each district in the Punjab has been declared to be the "Government Pleader" for his district for purposes of Order XXXIII, Rule 6, Civil Procedure Code (Punjab Government Notification No. I.C., dated 1st January, 1909).

(f) Suits for Redemption and Foreclosure of Mortgages.

1. Notice to mortgagor, conditional sale in case of land not permitted--The law regulating the procedure in cases where the mortgagee, whose mortgage-deed also contains a provision for conditional sale, desires to foreclose the mortgage is often misunderstood. Regulation XVII of 1806 is still the law on the subject. It will be seen that, whatever the terms of conditional sale, the mortgagee cannot enforce them till he has, by summary petition to the Court caused notice to be served on the mortgagor to the effect that, if the latter does not pay the sum secured within one year, the mortgage will be held foreclosed. After the lapse of this year, and not till then, the mortgagee can sue for possession, as owner or, if in possession, to be declared owner in accordance with the terms of the mortgage.

The Court should also see whether section 9 (3) of the Punjab Land Alienation Act, 1900, applies to the case.

It should also be noted that according to section 10 of the Punjab Land Alienation Act, 1900, in any mortgage of "land" made after the commencement of the Act, any condition which is intended to operate by way of conditional sale, shall be null and void.

****[Note:-** See Bengal Regulation XVII of 1806 and Section 3 and Schedule of Punjab Laws Act, 1872 (V of 1872). Punjab Code Volume I.]

2. Court competent to hear.-- Only a District or Additional Judge can deal with applications under section 7 and 8 of Regulation XVII of 1806. The procedure prescribed in the Regulation should be very strictly observed as otherwise the notice may have no legal effect.

3. Dismissal for default.-- According to Order IX, Rule 9, of the Civil Procedure Code (as amended by the High Court), when a suit for redemption is dismissed in default under Order IX, Rule 8, the plaintiff is not precluded from bringing another suit for redemption of the mortgage.

***[4. Summary Procedure for redemption.--** The Punjab Redemption and Restitution of Mortgaged Lands Act, 1964 (XIX of 1964), provides a summary procedure for redemption of land through the Collector in the

Province, but any party, aggrieved by the decision of the Collector, can institute a suit in a Civil Court to establish his right (see section 7 of that Act).]

5. Jurisdictional value.-- As to the value of the suit for purposes of jurisdiction see Chapter 3 of this volume.

(g) Suits for Declaratory Decrees

1. Issue as to possession.-- The proviso to section 42 of the Specific Relief Act, lays down that a declaratory decree cannot be passed in a case in which other relief than a mere declaration can be sought. Hence in a suit for a declaration of title to immovable property, where the defendant denies that the plaintiff was in possession of the property on the date of the suit, the Court should first of all decide this point. If the plaintiff is not found to be in possession of the property on the date of suit his suit must fail unless the plaint is amended.

2. All issues to be framed.-- These instructions are not to be taken to imply that the whole of the pleadings should not be exhausted and issues drawn on all points of conflict between the parties at the first hearing, but that, at the trial of the issues, the issue as to possession should be first tried and disposed of where this can be conveniently done.

(h) Suits for Accounts

1. Account may be preferably taken after disposal of other points.-- In suits for accounts the matter of account may either be taken up along with the other issues or after the other issues have been decided. The latter course would be found to be preferable in most cases.

2. Filing of accounts and evidence.-- The accounting party must file the account along with the written statement or at some other time as fixed by the Court. The account filed must be verified by an affidavit. The Court should allow reasonable time to the opposite party to examine the account and put in his objections, if any.

The Court should in such cases first take the evidence adduced in support of the statement filed by the accounting party, then that adduced by the opposing party in the same manner; and should finally, on consideration of the

whole, determine, as nearly as possible, the true state of the account. The matter of account must, in short, be treated as a separate subject of trial, in a certain sense independent of the rest of the suit.

3. Commission.-- In intricate cases, however, Courts will find it convenient to issue a Commission to a suitable person for examining the accounts (*vide* Chapter 10 of this Volume, "Commissions and Letters of Request").

(i) Procedure in "Hadd-Shikni Cases"

1. Local Inquiry.-- In "Hadd-Shikni" suits and other suits of boundary disputes of land, falling within the jurisdiction of a Civil Court, it is generally desirable that enquiry be made on the spot. This can usually be done in the following ways:-

(a) by suggesting that one party or the other should apply to the Revenue Officer to fix the limits under section *117(1) of the Punjab Land Revenue Act 1967 (XVII of 1967). Time for such purpose should be granted under Order XVII, Rule 3, of the Code of Civil Procedure;

(b) by appointing a local commissioner, and

(c) by the Court itself making a local enquiry.

2. Enquiry by Revenue Officer.-- An order of the Revenue Officer made under section 101 of the Land Revenue Act is not conclusive; but when his proceedings have been held in the presence of, or after notice, to the parties of the suit, and contain details of enquiry and of the method adopted in arriving at the result it would be a valuable piece of evidence. It may be noted that an Assistant Collector of the second grade can deal with cases in regard to boundaries which do not coincide with the limits of an estate.

3. Appointment of Commissioner.-- Similarly the report of the local commissioner should contain full details so that the Court may satisfactorily deal with the objections made against it.

No person other than a Revenue Officer (or retired Revenue Officer) not below the rank of a Field Kanungo should usually be appointed a local commissioner.

4. Instructions for the guidance of commissioners.-- On the motion of the Judges, the Financial commissioners have issued the following detailed instructions for the guidance of Revenue officials or Field Kanungos appointed as Local Commissioners in civil suits of this nature.

Financial Commissioner's Instructions

(i) If a boundary is in dispute, the Field Kanungo should relay it from the village map prepared at the last Settlement. If there is a map which has been made on the square system he should reconstruct the squares in which the disputed land lies. He should mark on the ground on the lines of the squares the places where the map shows that the disputed boundary intersected those lines, and then to find the position of points which do not fall on the lines of the squares. He should with his scale read on the map the position and distance of those points from a line of a square, and then with a chain and cross-staff mark out the position and distance of those points. Thus he can set out all the points and boundaries which are shown in the map. But if there is not a map on the square system available, he should then find three points on different sides of the place in dispute, as near to it as he can, and, if possible, not more than 200 *kadams* apart, which are shown in the map and which the parties admit to have been undisturbed. He will chain from one to another of these points and compare the result with the distance given by the scale applied to the map. If the distances, when thus compared, agree in all cases, he can then draw lines joining these three points in pencil on the map and draw perpendiculars with the scale from these lines to each of the points which it is required to lay out on the ground. He will then, lay them out with the cross-staff as before and test the work by seeing whether the distance from one of his marks to another is the same as in the map. If there is only

a small dispute as to the boundary between two fields the greater part of which is undisturbed then such perpendiculars as may be required to points on the boundaries of these fields as shown in the field map can be set out from their diagonals, as in the field book and in the map, and curves made as shown in the map.

(ii) In the report to be submitted by him, the Field Kanungo must explain in detail how he made his measurements. He should submit a copy of the relevant portion of the current Settlement field map of the village showing the fields, if any, with their dimensions (***karu kan***) of which he took measurements, situated between the points mentioned in instruction No. (i) above and the boundary in dispute. This is necessary to enable the Court to follow the method adopted and to check the Field Kanungo's proceedings.

(iii) If a question is raised as to the position of the disputed boundary according to the field map of the Settlement preceding the current Settlement, that also should be demarcated on the ground, so far as this may be possible, and also shown in the copy of the current field map to be submitted under instruction No. (ii).

(iv) On the same copy should be shown also, the limits of existing actual possession.

(v) The areas of the fields abutting on the boundary in dispute, as recorded at the time of the last Settlement and those arrived at as a result of the measurement on the spot should be mentioned in the Field Kanungo's report with an explanation of the cause or causes of the increase or decrease, if any, discovered.

(vi) When taking his measurements the Field Kanungo should explain to the parties what he is doing and should enquire from them whether they wish anything further to be done to elucidate the matter in dispute. At the end, he should record the statements of all the parties to the effect that they have seen and understood the measurements, that they have no objection to make to this (or if they have any objection he should record it together with his own

opinion) and that they do not wish to have anything further done on the spot. It constantly happens that when the report comes before the Court, one or other party impugns the correctness of the measurements and asserts that one thing or another was left undone. This raises difficulties which the above procedure is designed to prevent.

(vii) The above instructions should be followed by Revenue Officers or Field Kanungos whenever they are appointed by a Civil Court as Commissioners in suits involving disputed boundaries.

PART N -- MISCELLANEOUS NOTIFICATIONS ETC

General Remarks

1. All references in Government Notifications to the Chief Court of the Punjab shall be construed as referring to the *[Lahore High Court, Lahore].
2. All references in the Notifications to the Lieutenant Governor, Lieutenant-Governor in Council, Local Government and Governor in Council shall be construed as referring to Punjab Government.
3. All references in the notifications to the Governor General of India in Council, Governor-General of India, Governor-General in Council, Governor-General, Government of India shall be construed as referring to *[Federal] Government.

I -- Court Language

1. *[(a) Urdu being the National Language as per Article 251 of the Constitution of the Islamic Republic of Pakistan, 1973, shall be the language of the High Court, provided that English may be continued as the Language of the Court as well till further orders. (See also paragraph 1-A(a) of part A of Chapter 1 and paragraph 1 of part A of Chapter 4 of Volume V of High Court Rules and Orders.)]

(b) Urdu has been declared to be the language of all Courts subordinate to the High Court.

II -- Powers under sections 91 and 92 of the Code of Civil Procedure

The powers conferred by Sections 91 and 92 of the Civil Procedure Code on the Advocate-General, may be exercised by all Deputy Commissioners in the Punjab. (Punjab Government Notification No. 1-E., dated the 1st January, 1909).

Notification No. 183-St., Revenue, dated the 27th April, 1935.

In exercise of the powers conferred by section 1 of the Transfer of Property Act, IV of 1882, as amended, the Governor-in-Council, is pleased

to extend the provisions of sections 54, 107 and 123 of the said Act, with effect from the 6th May, 1935, to the following areas in the Punjab:-

(i) All Municipalities; and

(ii) All Notified Areas as declared and notified under section 241 of the Punjab Municipal Act, 1911.

****[III.-- Enforcement of Provisions of Transfer of Property Act, 1882, in the areas now forming Punjab.**

(i) Notification No. 766.79/1/70. LRI dated 23rd August, 1979 (Pb.Gaz.Ext. 10-09-1979). In exercise of the powers conferred by section 1 of the Transfer of Property Act, 1882 (Act IV of 1882) the Governor of the Punjab is pleased to cancel former Government of Bahawalpur State's Notification No.20, dated the 28th May, 1931, with immediate effect.

(ii) Notification No. 3097-8/1511-LRI, dated 22nd November 1978 (Pb. Gaz. Ext. 6-12-1978). In exercise of powers conferred by section 1 of the Transfer of Property Act, 1882 (Act IV of 1882) and in supersession of the Government of the Punjab Revenue Department Notification No.15246-74/2237-LRV, dated the 17th December, 1974, the Governor of the Punjab is pleased to extend the provisions of section 54, 59, 107, 118 and 123 of the said Act to the following areas in the Punjab :-

(i) All Municipalities; and

(ii) All Notified Areas as declared and notified under Section 241 of the Punjab Municipal Act, 1911.

(iii) Notification No.183-St., Revenue, dated the 27th April 1935.

In exercise of the powers conferred by section 1 of the Transfer of Property Act 1882 (IV of 1882), as amended the Governor-in-council, is pleased to extend the provisions of Section 54, 107 and 123 of the said Act, with effect from the 6th May, 1935, to the following areas in the Punjab:-

(i) All Municipalities; and

(ii) All Notified Areas as declared and notified under section 241 of the Punjab Municipal Act, 1911.

(See Pb. Gaz. EXT, dated 30-12-1974)

(iv) Notification No. 15246-74/2237-LRV dated 30.12.74. In exercise of the powers conferred by section 1 of the Transfer of Property Act, 1882 (Act IV of 1882) and in partial modification of Notification No. 183-ST, dated the 27th April, 1935, and Notification No.20, dated the 28th May, 1931, issued by the Government of the Punjab and the Government of the former State of Bahawalpur respectively, the Governor of the Punjab is pleased to extend the provisions of Sections 54, 59,107, 118 and 123 of the said Act to the whole of the Province of the Punjab.]

PART O -- PUNJAB ACTS

1. The attention of all Courts is drawn to the series of Acts of the Punjab Assembly which lay down and define the relations between agriculturist-debtors and their creditors. The provisions of these Acts are very important, and in suits in which the classes named are involved, Courts should invariably refer to these Acts and scrupulously follow their Provisions.

*[The Acts in question are:-

(1) The Punjab Relief of Indebtedness Act, 1934(VII of 1934).

(2) The Punjab Agricultural Produce Markets Ordinance 1978 (XXIII of 1978).

(3) The Punjab Alienation of Land Act, 1950.

(4) The Punjab Money-Lenders' Ordinance, 1960 (XIV of 1960).

(5) The Punjab Relief of Indebtedness Ordinance, 1960 (XV of 1960).

(6) The Punjab Redemption and Restitution of Mortgaged Lands Act, 1964 (XIX of 1964).]

2. Circulars may be issued from time to time by the High Court, inviting the attention of Presiding Officers, to particular provisions of these Acts, which appear to be overlooked, or to errors of procedure, which are found to be common. Presiding Officers should familiarize themselves with these circulars, and avoid the errors therein pointed out.

CHAPTER 2

JURISDICTION -- CIVIL COURTS

PART A -- JURISDICTION OF CIVIL COURTS

1. General.-- The first question which a Court in which a suit or other proceeding is instituted has to consider, is whether it has jurisdiction to hear and decide it. The general rule is that a Civil Court can take cognizance of all suits of a civil nature unless its cognizance is expressly or impliedly barred (vide Section 9, Code of Civil Procedure, 1908). But this general rule is subject to various limitations depending upon the nature, value, or the locality of the subject-matter, the residence of the defendant and so forth.

2. Jurisdiction of civil Courts excluded.-- The jurisdiction of the Civil Courts is excluded in certain matters, e.g.:-

*[(a) By section 77 of the Punjab Tenancy Act 1887 and section 172 of the Punjab Land Revenue Act, 1967 in cases mentioned therein.

(b) Cases falling under section 3 read with Part 1(b) of the Schedule to the Conciliation of Courts Ordinance, 1961 (XLIV of 1961).]

(c) In certain cases triable by the Sikh Gurdwaras Tribunal, see sections 29, 31, 32, 36, 37 and 39 of the Punjab Sikh Gurdwaras Act, 1925 (VIII of 1925).

(d) Suits mentioned in sections 21 and 25 of the Punjab Relief of Indebtedness Act in cases triable by debt Conciliation Boards set up under the Act.

(e) Suits mentioned in section 4 of the pensions Act of 1871 in matters relating to rights in pensions or grants of money or land revenue.

(f) Suits for liability of officers acting judicially for official acts done in good faith and of officers executing warrants and orders, vide section 1 of Act XVIII of 1850 (Protection of Judicial Officers).

*[(g) to enforce any right under a mortgage declared extinguished under the Punjab Redemption and Restitution of Mortgaged Lands Act 1964 (XIX of 1964),] or to question the validity of any proceedings under that Act.

3. Pecuniary limits.-- The District Judge, *[Additional District Judge and Civil Judge] of the 1st class have jurisdiction to hear suits without any limit as to their value. In the case of *[Civil Judges] of a lower class, however, jurisdiction depends, inter alia, on the value of the suit. The value of a suit for purposes of jurisdiction has to be calculated in accordance with the provisions of the Suits Valuation Act and the rules thereunder (see Chapter 3, Valuation of Suits).

*[**4. Special Jurisdiction.--** Under certain enactments, Courts of Civil Judges have no jurisdiction at all to take cognizance of proceedings under those enactments e.g. the Companies Ordinance, 1984 (XLVII of 1984), the Banking Companies Recovery of Loan Ordinance (XIX of 1979), the West Pakistan Family Courts Act, (XXXV of 1964) etc. There are proceedings under certain other enactments of which Civil Judges can take cognizance if specifically empowered in that behalf e.g. section 4-A of the Guardians and Wards Act, 1890, read with section 25 of the West Pakistan Family Courts Act, 1964.]

5. Other matters governing jurisdiction.-- Section 15 of the Civil Procedure Code lays down that every suit must be instituted in the Court of the lowest grade having jurisdiction to hear it. Sections 16 and 17 of the Code, lay down certain restrictions as to the locality where certain suits affecting immovable property can be instituted. Section 20 lays down a further restriction that a suit must be instituted where one or more of the defendants actually and voluntarily reside or carry on business or personally work for gain or where the cause of action arises, "wholly or in part". ***[...].

6. Jurisdiction barred by Small Cause Courts Act.-- When a Court of Small Causes under the Provincial Small Cause Courts Act, 1887, has jurisdiction in any locality, ordinary Civil Courts cannot try suits, which are cognizable by that Court, unless it is expressly provided otherwise by the aforesaid Act or any other enactment (see Section 16 of the Provincial Small Cause Courts Act, 1887).

7. Jurisdiction where defendant sets up a claim which is beyond pecuniary Jurisdiction of the Court.-- It happens sometimes that in a suit, which is *prima facie*, within the jurisdiction of a Court, a defendant sets up a claim which is beyond its pecuniary jurisdiction. In such cases, if the Court finds, after enquiry into the case, that a decree must be passed on payment of a sum exceeding its pecuniary jurisdiction, it should stay further proceedings and report the case to the District Judge for transfer to a competent Court. *** [...].

8. Jurisdiction in respect of persons amenable to Military Law.-- For the jurisdiction of Civil Courts in respect of persons amenable to Military Law, see Chapter 6, regarding suits by or against persons in Military Service.

PART B -- JURISDICTION OF CIVIL AND REVENUE COURTS

1. Matter raised in defence which is solely triable by Revenue Court.-- If in a suit which, as framed, is within jurisdiction of a Civil Court, a defendant raises a plea with respect to a matter which can be taken cognizance of only by a Revenue Court, the procedure laid down in the proviso to sub-section (3) of Section 77 of the Punjab Tenancy Act 1887 must be followed and the plaint returned for presentation to the Collector.

2. Suit for correction of entries in Revenue records.-- A civil suit will not lie for the correction of an entry in a Record of Rights, or *[Periodical] Record, but any person, considering himself aggrieved as to any right of which he is in possession by such an entry, may institute a suit for a declaration of his right under Chapter VI of the Specific Relief Act, 1877. Where the relief sought in a plaint of this nature is not correctly worded, the plaint should be returned for amendment. *[section 53 of the Punjab Land Revenue Act, 1967,] should be referred to on this subject.

3. Question of title arising in land partition proceedings before Revenue Officers.-- A Civil Court can only entertain a suit relating to a dispute as to title in revenue-assessed land arising in partition proceedings, when a Revenue Officer declines to determine the question himself as though he were a civil Court and refuses to proceed to partition until the question is determined by a competent Court. The plaint should, therefore, refer to the order of the Revenue Officer made under *[Section 141, sub-section (1) of the Punjab Land Revenue Act, 1967,] and the Civil Court should satisfy itself that an order giving it jurisdiction has been so made. A copy of such order should accompany the plaint.

4. Reference to Civil Court by Revenue Court.-- Section 98 of the Punjab Tenancy Act, 1887, contains a provision empowering a Revenue Court to refer any party to a Civil Court for settlement of any question which the Revenue Court considers proper for decision by a Civil Court. Such reference must be by an order in writing, and such order must have the previous sanction of the Controlling Revenue Court, if any.

5. Reference to High Court in cases of doubt as to jurisdiction of Civil or Revenue Court.--

Provision has been made for the disposal by reference to the High Court of cases in which doubts may arise as to whether the Civil or Revenue Courts have jurisdiction, and for the registration in the proper Court of decrees passed under a misapprehension as to jurisdiction by either a Revenue or a Civil Court. These provisions will be found in Sections 99 and 100 of the Punjab Tenancy Act. The rules under this head will be found in chapter 15, References to the High Court.

6. Succession to occupancy holding.--

Suits relating to succession to occupancy holdings, under Section 59 of the Punjab Tenancy Act, 1887 lie in the civil Courts.

7. Hadd-Shikni cases.--

Hadd-Shikni cases are triable by Civil Courts. * [section 172 sub-section 2(1) of Punjab Land Revenue Act of 1967] does not apply to such cases. That section merely means that a Civil Court is not competent to question the decision of a Revenue Officer as to the delimitation for the purposes of the * [Punjab Land Revenue Act 1967], of land which is occupied as the site of a town or village and is not assessed to land-revenue.

CHAPTER 3

VALUATION OF SUITS

PART A -- GENERAL

1. General.-- It should be remembered that the value of a suit for the purposes of the Court-fees Act, 1870, and its value for the purposes of jurisdiction are not necessarily identical and are frequently very different. The value for the purposes of Court-fees is determined by the Court-fees Act, 1870 (as amended), and for purposes of jurisdiction by the Suit Valuation Act, 1887, and the rules made thereunder. In certain classes of suits the value for the purposes of Court-fee also can be fixed by rules under section 9 of the Suits Valuation Act, 1887.

2. Part I of Suits Valuation Act extended to Punjab.-- Part I of the Act was extended to this Province by Central Government, Home Department, Notification No. 210, dated the 20th February 1889, and the Punjab Government has made rules under section 3 of the Act determining the value of land and of certain interests therein, for purposes of jurisdiction in the suits mentioned in the Court-fees Act, 1870, section 7, paragraphs (v) and (vi) and paragraph (x), clause (d), which are republished in Part D of this Chapter.

3. Rules under section 3 of the Act apply to all classes of land in the Punjab.-- No restrictions under section 3, sub-section (2), of the Act have been imposed as to the classes of land to which the rules apply, or as to the local extent of their operation, and they apply, therefore, to all land generally throughout the Province, whether assessed to land revenue or not.

4. Land suits falling under section 7 (iv) or article 17, 22, Schedule II of the Court-Fees Act.-- Section 4 of the Suits Valuation Act provides that, where a suit mentioned in the Court-fees Act, section 7, paragraph (iv), or Schedule II, Article 17 or 22, relates to land or an interest in land, of which the value has been determined by the rules made under section 3, the amount at which the relief sought in the suit is valued for purposes of jurisdiction shall not exceed the value of the land or interest as determined by those rules.

5. Other suits under section 7 of Court fees Act.-- The suits falling under the Court-fees Act, Section 7, paragraphs (i, ii, iii, iv, vii, viii, x) (a), (b) and (c), and (xi) (a) to (f), inclusive, are either such as are subject to an ad valorem Court-fee, in regard to which the value for the purposes of computing the Court-fee, in regard to which the value for the purposes of computing the Court-fee, and the value for the purpose of determining jurisdiction, are under Section 8 of the Suits Valuation Act, 1887, the same; or suits dealt with by directions made by the High Court under Section 9 of the Act.

******[It is to be noted that Court-fee has been exempted at all stages in all Courts and in all cases the valuation whereof does not exceed twenty five thousand rupees.]

***[6. Value of suits governed by rules made under section 9, Suits Valuation Act.--** Section 8 gives the general rule as stated above, but when the value of a suit for purposes of jurisdiction and Court-fees is determined by rules under section 9, the value as determined by the rules must be accepted. For example in a suit, in which the plaintiff asks for accounts only not being a suit to recover the amount, which may be found due on checking unsettled accounts or a suit of the kind described in Order XX rule 13 of the Code of Civil Procedure, value for the purposes of Suits Valuation Act, 1887, will be rupees one thousand while the value for the purpose of Court fee Act, 1887 will be rupees two-hundred.]

7. Complaint should show value for purposes of Court-fees and jurisdiction.-- In order to guard against mistakes as to the value of a suit for purposes of jurisdiction and of Court-fees, respectively, every complaint ought upon its face to show the value for purposes of jurisdiction as well as the value for the purpose of computing Court-fees. The former information is requisite in order that the Court may determine whether the complaint should be returned under Order VII, Rule 10, of the Code of Civil Procedure. When a complaint omits to disclose the value of the suit for the purposes of jurisdiction, the person presenting it should be questioned, and his answer recorded on the complaint, unless he consents to amend it then and there.

8. Value in cases governed by Section 7 (iv) and Schedule II, article 17 of the Court-fees Act.-- Special care is necessary with respect to cases falling under the provisions of section 7, Paragraph ^{*}[(iv), (iv-A)] and Schedule II, Article 17, of the Court-fees Act, in valuing suits for the purposes

of jurisdiction and Court-fees. A schedule showing the value of different classes of suits for purposes of jurisdiction and Court-fees, following the classification of suits in the Court fees Act, has been prepared and attached to this Chapter. It must be clearly understood, however, that this schedule in itself has no legal force, and that it is merely intended for ready reference by the Courts in dealing with questions of value.

9. Value of certain suits left to judicial decision.-- There is no express provision in the Suits Valuation Act, 1887, in regard to the classes of suits mentioned below, and they do not admit of being disposed of by rules under Part I, nor are they dealt with by directions under Part II of the Act. The valuation of such suits, therefore, must be left to judicial decision, as occasion arises. The suits are:-

suits for houses;

suits for pre-emption in respect of houses;

suits for removal of attachment of houses;

suits by or against mortgagors or mortgagees as such;

suits falling under Schedule II, Article 17, clause *[(iv) and (iv-A)], which are not provided for by the rules under section 3 or directions under section 9, or by section 4 of the Suits Valuation Act;

suits falling under section 7, subsection (x), clause (d), of the Court-fees Act, and relating to property other than land.

10. Fixing valuation not necessary in certain cases.-- In the case of some classes of suits or petitions e.g., suits under section 28 of the Sikh Gurdwaras Act, 1925, or petitions under the Guardians and Wards Act, 1890, the law allows no choice as regards the Court in which proceedings must be taken. There is, therefore no necessity in such cases to fix any valuation for the purpose of determining jurisdiction.

PART B -- VALUE OF THE SUBJECT - MATTER OF SUITS FOR THE PURPOSES OF APPEAL

1. General.-- Under the *[Punjab Civil Court Ordinance, 1962 (II of 1962),] the number of appeals in a suit and the Court of Appeal are determined partly by the nature of the suit and partly by its value; and serious inconvenience results to Judges of Superior Courts as well as to suitors, when the record of the original Court does not disclose the value of the suit.

The value of the suit, as fixed by the plaintiff or as determined by the Court in the event of its being disputed should, therefore, be always stated on the face of the final Judgment and the decree in the suit.

The term "value", as used in the *[Punjab Civil Courts Ordinance, 1962 (II of 1962)] with reference to a suit, means the amount or value of the subject-matter of the suit.

2. Valuation should be stated in judgment and decree. Meaning of value.-- When the copies filed with the memorandum of appeal do not disclose the value, the Appellate Court should, if in doubt, send for the record, which may show the value. In all cases in which the record does not show the value, the Appellate Court must ascertain and determine whether the value of the suit as instituted (not the value of the subject-matter of appeal), does or does not exceed the limits of its appellate jurisdiction.

3. Objection as to value.-- When either the appellant or the respondent takes exception to the valuation determined by the lower Court, the point must be decided like any other point taken in appeal or by way of cross-objection. It should be noted, however, that, according to section 11 of the Suits Valuation Act, 1887 no objection as to valuation can be entertained in appeal unless it was taken in the trial Court before the issues were framed and recorded; or, in the lower Appellate Court, in the memorandum of appeal to that Court and unless the appellate Court is satisfied (for reasons to be recorded in writing) that the suit or appeal was not properly valued, and that the mistake in valuation had prejudicially affected the disposal of the suit or appeal on merits. This rule applies in all cases of erroneous valuation whether the

valuation is fixed by any statute or rules there-under or in any other manner. ***[...]

4. Suits for redemption of mortgage.-- The valuation of suit for redemption of a mortgage is not regulated by statute or any enactment and would, therefore, depend upon the subject-matter, which in such a suit is the amount which the mortgagor should, before recovering the mortgaged property, pay to the mortgagee. The amount depends not on the valuation originally given by the plaintiff (which can only be considered to be tentative), but on the amount as determined by the Court. It is the amount so determined, therefore, that determines the forum of appeal. If for example, the plaintiff sues for redemption on payment of Rs. 5,000 while the mortgagee claims Rs. 10,000 and the Court decrees the suit on payment of Rs. 7,000 the appeal will lie to the High Court and not the District Court (I.L.R. VII Lah. 570-F.B.) If, on the other hand, the decree had been passed on payment of a sum less than Rs. 5,000, the appeal would have been entertainable by the District Court, and the mere fact that the mortgagee claimed Rs. 10,000/- would not have affected the question of jurisdiction for the purposes of appeal, (c.f. 54 P.R. 1912).

****[Note:-** The appeal under section 18 of the Punjab Civil Courts Ordinance 1962, from the decree or the order of the Civil Judge lies to the High Court if the value of the original suit exceeds two hundred thousand rupees and to the District Judge in any other case. This paragraph should be read accordingly.]

5. Suits for accounts.-- Similarly, in a suit for the amount found to be due after taking accounts, it is not the tentative valuation of the plaintiff, but the amount found to be due and decreed by the Court, that determines the forum of appeal (I.L.R.IX Lah. 23).

PART C -- MANNER OF DETERMINING THE VALUE OF SUITS FOR PURPOSES SPECIFIED IN SECTION 9 OF THE SUITS VALUATION ACT, 1887

RULES

Rules made by the High Court with the previous sanction of the Provincial Government, under the powers conferred by section 9 of the Suits Valuation Act 1887, and all other powers in that behalf, for determining for the purposes specified therein, the value of the subject-matter of certain classes of suits which do not admit of being satisfactorily valued, and for the treatment of such classes of suits as if their subject matter were of the value as hereinafter stated:-

1. (i) Suits in which the plaintiff in the plaint asks for a decree against the other party to an alleged marriage, either alone or with other defendants, for restitution of conjugal rights;

(ii) Similar suits for a decree establishing, annulling or dissolving a marriage or for a declaration that a marriage is void or has been annulled, dissolved or otherwise terminated;

(iii) Suits in which the plaintiff in the plaint asks for a decree establishing an adoption or declaring it void including under the expression "adoption" the customary appointment of an heir--

Value-- (a) For the purposes of the Court-fees Act, 1887.

**[(Under Item 11(v) of Schedule II applicable to Punjab Court-fee of ten rupees is to be fixed on the suit to set aside the adoption.)]

Rs. 200

(b) For the purposes of the Suits Valuation Act, 1887, and the *[Punjab Civil Courts Ordinance, 1962 (II of 1962).]

Rs. 1,000

***[Explanation I.]--** Classes (i) and (ii) do not include petitions under any special Act relating to the dissolution of marriage.

****[Explanation II.]--** No Court-fee is chargeable by any Court or payable in respect of any criminal case or any case of civil nature the value of the subject-matter thereof or relief claimed thereunder does not exceed twenty-five thousand rupees in view of the Punjab Court-fees (Abolition) Ordinance, 1983(X of 1983).]

2. *****[Omitted].**

3. Suits in which the plaintiff in the plaint asks for accounts on not being--

(i) Suits to recover the amount which may be found due to the plaintiff on taking unsettled accounts between him and the defendant;

(ii) Suits of either of the kinds described in Order XX, rule 13 of the Code of Civil Procedure.

Value-- (a) For the purposes of the Court-fees Act, 1887.

Rs.200.

(b) For the purposes of the Suits Valuation Act, 1887, and the Punjab Courts Act, 1918.

Rs.1,000.

4. (i) Suits in which the plaintiff in the plaint seeks to recover the amount which may be found due to the plaintiff on taking unsettled accounts between him and the defendant;

(ii) Suits of either of the kinds described in Order XX, rule 13 of the Code of Civil Procedure;

Value for the purpose of Court-fees.(a) As determined by the Court-fees Act, 1870.

Value for the purpose of jurisdiction.(b) For the purposes of the Suits Valuation Act, 1887, and the Punjab Civil Courts Ordinance, 1962, as valued by the plaintiff in the plaint, subject to determination by the Court at any stage on the trial.

5. Suits in which the plaintiff in the plaint seeks to establish or to negative any right hereinafter mentioned, with or without an injunction, and with or without damages, namely-

a right of way; a right to open or maintain or close a door or a window, or a drain, or a water-spout (*Parnala*); a right to or in a watercourse or the use of water; a right to build, or raise or alter or demolish a well; or to use an alleged party wall or joint staircase:--

Value--(a) For the propose of the Court-fees Act, 1870---

(i) suits to establish a right--whether or not injunction is prayed for.

Rs. 130

(ii) suits to establish a right and for damages whether or not injunction is prayed for.

Rs. 130

Plus such sum
as is claimed
as damages.

(b) For the purposes of the Suits Valuation Act, 1887, and the Punjab Civil Courts Ordinance, 1962, as for the purposes of the Court-fees Act, 1870.

6. Suits in which the plaintiff in the plaint seeks to set aside an award, and applications registered as suits under the Provisions of sections 20 and 31 of the Arbitration Act, X of 1940 (to file an agreement to refer to arbitration or to file an award), when or so far as the award or the agreement relates to property:-

Value--

- (a) For the purposes of the Court-fees Act, 1870, as determined by the Act.
- (b) For the proposes of the Suits Valuation Act, 1887, and the Punjab Civil Courts Ordinance, 1962,--the market value of the property in dispute, subject to the provision of Part I of the Suits Valuation Act, 1887, and of the rules in force under the said part, so far as those provisions are applicable.

7. Suits in which the plaintiff in the plaint asks for a mere declaration without any consequential relief in respect of property other than land assessed to land revenue--

Value--

- (a) For the purpose of the Court-fees Act, 1887, as determined by the Act.
- (b) For the purposes of the Suits Valuation Act, 1887, and the Punjab Civil Courts Ordinance, 1962,--the market value of the property in dispute, at the date of institution of the suit, subject to the provision of Part I of the Suits Valuation Act, 1887, and the rules in force under the said Part, so far as those provisions are applicable.

8. Suits for partition of property-

Court-fee--

- (a) As determined by the Court-fees Act, 1870.

Value-- (b) For the purposes of the Suits Valuation Act, 1887, and the Punjab Civil Courts Ordinance, 1962, --the value of the whole of the property as determined by sections 3, 8 and 9 of the Suits Valuation Act, 1887.

9. Suits in which the plaintiff in the plaint asks for redemption of the property mortgaged or for foreclosure of the mortgage.

Value-- (a) For the purposes of the Court-fees Act, 1870,--as fixed by section 7 (ix) of that Act.

(b) For the purpose of the Suit Valuation Act, 1887, and the Punjab Civil Courts Ordinance, 1962,--the amount of the principal and interest calculated on the terms of the mortgage at the date of the institution of the suit.

10. Suits in which the plaintiff asks for cancellation of a decree for money or other property having a money value, or other document securing money or other property having such value,--

Value-- (a) For the purposes of the Court-fees, Act, 1870,--as determined by that Act.

(b) For the purposes of the Suits Valuation Act, 1887, and the Punjab Courts Act, 1918,--according to the value of the subject-matter of the suit, and such value shall be deemed to be--

(i) If the whole decree or other document is sought to be cancelled, the amount or the value of the property for which the decree was passed or the other document executed;

(ii) If a part of the decree or other document is sought to be cancelled, such part of the amount or value of the property.

****[10-A.** Complaint or Memorandum of appeal for recovery of compensation or damages under the Fatal Accidents Act, 1855--

Value-- (a) for the purposes of Court-fee Act, 1870, as fixed by Schedule II Article 18 as amended;

(b) For the purposes of Suit Valuation Act, 1887, and the Punjab Civil Courts Ordinance, 1962, the amount claimed.]

11. The foregoing rules are subject to the following explanations:-

(i) the terms "complaint" includes an amended as well as original complaint.

(ii) a suit falling within any of the above descriptions is not excluded therefrom merely by reason of the complaint seeking other relief in addition to that described in any of the foregoing rules.

Note:- These rules came into force on the 2nd January 1943.

High Court Notification No. 363-R/XXX-3, dated the 2nd December, 1942.

(C. S. 17/XXX-3, dated the 23rd December 1942).

PART D -- MANNER OF DETERMINING THE VALUE OF LAND FOR PURPOSES
OF JURISDICTION IN CERTAIN CLASSES OF SUITS

CHAPTER 4

Arbitration Proceedings

PART A -- ARBITRATION PROCEEDINGS UNDER THE CODE

*[1. The instructions contained in this part are only administrative. The statutory Rules under section 44 of the Arbitration Act 1940 are contained in part-B of this Chapter.]

2. The following rules *[were laid down by the then] Government of India in regard to the appointment of public officers to act as arbitrators for the settlement of disputes:-

(Extract from proceedings of the Government of India Home Department (Public)

No. 544, dated Fort William, the 12th February 1873.

(1) An officer shall not act as an arbitrator in any case without the sanction of his immediate superior, or unless he be directed so to act by a Court having authority to appoint an arbitrator.

(2) No public officer shall act as an arbitrator in any case which is likely to come before him in any shape in virtue of any judicial or executive office which he may be holding.

(3) If any officer acts as arbitrator at the private request of disputants, he shall accept no fees.

(4) If he acts by appointment of a Court of law, he may accept such fees as the Court may fix.

3. In the event of an officer in any public department being nominated as arbitrator in a civil suit, the Court, before appointing him arbitrator, should refer to the official superior of the officer nominated to ascertain whether his services can be made available.

The Punjab Government have directed in their circular letter No. 5795-G-43/64326 (H-Gaz.), dated the 14th October 1943, that their servants should not be allowed to undertake arbitration without the previous permission of the competent authority.

PART B -- RULES UNDER THE ARBITRATION ACT, 1940 (ACT X OF 1940)

Rules made by the High Court under the powers conferred by section 44 of the Arbitration Act, 1940 (Act X of 1940), and published in its notification No.45-B/X. W. - 5, dated the 9th March 1945.

1. Citation.-- The following rules shall be cited as the Arbitration Rules. All references therein to 'Act' shall be read as meaning the Arbitration Act, 1940.

2. Title of application.--(a) Save as hereinafter provided, all applications, affidavits and proceedings under the Act, shall be intituled "in the matter of the Act, and in the matter of the arbitration."

(b) Applications under Chapter IV of the Act shall be intituled in the suit or matter in which order or reference is made.

(c) Applications under section 34 of the Act shall be intituled in the suit which the applicant seeks to have stayed.

(d) Applications under section 7 (2) of the Act shall be intituled "in the matter of the insolvency in which the reference to arbitration is sought or claimed."

3. Mode of application.-- All applications under the Act shall be made only to the proper Court and all applications shall be made by petition and shall be presented in the same manner as complaints or other applications to the Clerk of the Court or to such other officer as the Court appoints in that behalf who shall cause them to be registered and take such orders as are necessary from the Presiding Judge. Where application is made with the consent of all the Parties affected thereby, the written petition shall be endorsed with the consent of the parties affected and shall bear their signature.

4. Contents of Petition.-- The petition shall be divided into paragraphs numbered consecutively and shall contain the name, description and place of residence of the petitioner and of the opposite party, with a statement in summary form:-

(a) of the material facts,

(b) of facts showing that the Court to which the application is presented has jurisdiction, and

(c) of the nature of the relief asked for,

and shall specify the persons liable to be affected by the application. A copy of the arbitration agreement, the special case or the award relating to the petition shall be annexed to the application : Provided that where a party is, by reason of absence or for any other good cause, unable to sign the same, it may be signed on his behalf by any person duly authorised by him to sign the same.

5. Registering petitions and awards.-- Applications under section 14 of the Act shall be numbered and registered as regular suits. Other applications under the Act shall be numbered and registered as miscellaneous applications requiring judicial enquiry.

6. Notice of application to persons affected by award.-- Upon any application by petitioner under the Act, the Judge shall direct notice thereof to be given to all persons mentioned in the petition, and to such other persons as may seem to him to be likely to be affected by the proceedings, requiring all or any of such persons to show cause, within the time specified in the notice, why the relief sought in the petition should not be granted.

7. Copy of petition.-- A copy of the petition shall be served on each person notified by virtue of the last preceding rule and the applicant shall supply a copy of the petition or affidavit for service on the opposite party.

8. Court-fees and process fees.--(a) The Court fees and process fees chargeable for all petitions shall be in accordance with the Court Fees Act and the rules for the levy of the process fees in force for the time being.

(b) The petitioner or the plaintiff shall deposit the necessary process fees for notice to the other party concerned within three days of the presentation of his petition or within such further time as the Court may permit.

(c) The party who has requested the arbitrator or umpire to cause an award to be filed shall, within three days after the filing of the award, or within such further time as the Court may permit, deposit the process fees for notice to the other parties concerned.

9. Notice to arbitrators.-- Except where misconduct on the part of an arbitrator or umpire is alleged as a ground for setting aside an award or for removing an arbitrator or umpire, or, unless the Court otherwise orders, it shall not be necessary to serve notice of the application upon an arbitrator or umpire and he shall not be allowed his costs of appearing thereto.

10. Filing of Award.--(a) The arbitrator or umpire or any of the parties to the arbitration may cause the award or a signed copy thereof to be filed in Court in the manner prescribed in rule No.3.

(b) When the award is filed by the arbitrator or umpire, he shall, together with the award, send to the Court any depositions and documents which have been taken and proved before him and the opinion pronounced by the Court on the special case submitted by him, if any, in accordance with section 14 of the Act by forwarding the same under a sealed cover addressed to the Court. He shall also send together with the award a copy of the notice given to the parties concerned and affidavit of service of such notice and attestation of his signature on the award.

(c) When the award is filed by any of the parties to the arbitration under clause (a), the party may move the Court for directing the arbitrator to produce in original such of the documents as were produced before him together with the record of the arbitration.

11. Notice of filing award.-- When the award has been filed in Court, the Court shall forthwith issue notice of such filing to the parties interested in the award.

12. Limitation for application for judgment on award.-- An application for judgment in terms of an award shall not be made until after the expiration of 30 days from the date of service of the notice of filing the award.

13. Court to issue notice on application under section 20.-- When an application under section 20 of the Act is filed and registered, the Court shall, on the application, issue a notice, returnable within not less than 10 days from the service thereof calling upon the opposite party to show cause why arbitration agreement should not be filed.

14. Processes to be issued on application by arbitrator or umpire.-- Processes to the parties to arbitration proceedings or to witnesses shall be issued by the Court on the written application of the arbitrator or the umpire.

15. Accompaniment of the above application.-- If the proceedings are under Chapter II of the Act, the application for such processes must be accompanied by a copy of the agreement under which the arbitrator or the umpire is acting. If otherwise, the date of the order appointing him arbitrator or umpire shall be mentioned in the application.

16. Special case.-- Every special case for the Court's opinion under section 13 (b) of the Act shall be made in Form No.I. The arbitrator or umpire, as the case may be shall at the same time give notice of such action to the parties. When the Court has announced its opinion under section 14 (3), it shall be the duty of the arbitrator or umpire concerned to have a certified copy of such opinion added to and made part of the award.

17. Application of Code of Civil Procedure and the High Court Rules and Orders.-- In the cases not provided for in the foregoing rules or in the Act, the provisions of the Code of Civil Procedure, 1908 and High Court Rules and Orders, mutatis mutandis, shall apply to all the proceeding before the Court and to all appeals under the Act.

18. Forms.-- The forms prescribed by these rules shall be used for the purposes to which they severally relate with such variations as the circumstances of each case may require.

(Continued)

FORM NO. I
SPECIAL CASE

(Title of suit)

In the matter of an arbitration between A.B. of _____ and C.D.
_____ the following special case is stated for the opinion of the
Court:-

(Here state the facts concisely in numbered paragraphs).

The questions of law for the opinion of the Court are--

First -- Weather X

Second -- Weather Y

Dated the _____ day of _____ 19 .

FORM No. II
APPLICATION FOR AN ORDER OF REFERENCE

(Title of suit)

1. This suit is instituted for (state nature of claim).
2. The matter in difference between the parties is (state matter of difference).
3. The applicants being all the parties interested have agreed that the matter in difference between them shall have referred to arbitration.
4. The applicants, therefore, apply for an order of reference.

A.B.

C.D.

Dated the _____ day of _____ 19 .

Note:- If the parties are agreed as to the arbitrators, it should be so stated.

FORM No. III
ORDERS OF REFERENCE
(Title of suit)

Upon reading the application presented on the _____ day of _____ 19 it is ordered that the following matter in difference arising in this suit, namely _____ be referred for determination to X and Y, or in case of their not agreeing then to the determination of Z, who is hereby appointed to be umpire; and such arbitrators are to make their award in writing on or before the _____ day of _____ 19, and in case of the said arbitrators not agreeing in an award, the said umpire is to make his award in writing within _____ months after the time during which it is within the power of the arbitrator to make an award shall have ceased.

Liberty to apply.

Given under my hand and the seal of the Court, this _____ day of _____ 19 .

Judge

FORM NO. IV
ORDER FOR APPOINTMENT OF NEW ARBITRATOR
(Title of suit)

Whereas by an order, dated the _____ day of _____ 19 (state order of reference and death, refusal, etc., of arbitrator), it is by consent ordered that Z be appointed in the place of X deceased (or as the case may be) to act as arbitrator with Y, the surviving arbitrator, under the said order; and it is ordered that the award of the said arbitrators be made on or before the day of _____ 19 .

Given under my hand and the seal of the Court, this _____ day of _____ 19 .

FORM NO. V
AWARD
(TITLE OF SUIT)

In the matter of an arbitration between A.B. of _____ and C.D.
of _____.

Whereas in pursuance of an order of reference made by the Court
of _____ and dated the _____ day of _____ 19
_____, the following matter in difference between A.B. and
C.D. namely:--

has been referred to us for determination:

Now we, having duly considered the matter referred to us do hereby make our award
as follows:--

We award _____

(1) that X

(2) that Y

Dated the _____ day of _____ 19 .

PART C -- THE ARBITRATION (PROTOCOL AND CONVENTION) ACT, 1937

I. The following rules have been framed by the Lahore High Court, Lahore of Judicature at Lahore in exercise of the powers conferred by Section 10 of the Arbitration (Protocol and Convention) Act, 1937 and approved by the Governor of the Punjab under section 224 of the Government of India Act, 1935 (25 and 26 Geo. V. Chapter 42):--

Rules under Section 10 of the Arbitration (Protocol and Convention) Act, 1937.

1. Title of applications, etc.-- All applications, affidavits and proceedings under the Act shall be entitled "in the matter of the Act and in the matter of the Arbitration."

2. What application shall be by petition.-- Application under Section 3 shall be made to the Court whose proceedings are intended to be stayed, and applications under Section 5 shall be made to the Court having jurisdiction over the subject-matter of the award.

3. Contents of petition.-- Every petition shall be divided into paragraphs, numbered consecutively, and shall contain, in a summary form, a statement of the material facts relied on, and the nature of the relief asked for, and shall specify the persons liable to be affected thereby.

4. Stay of proceedings under Section 3 of the Act.-- Upon an application for stay of proceedings under Section 3 of the Act being filed, the Court shall direct notice to be given to the party or parties to the legal proceedings, other than the applicant, requiring him or them to show cause, within a time specified, why the order should not be made, unless the Court is satisfied that the object of the application would be defeated by the delay occasioned by the notice.

5. Documents to be produced with the petition for enforcement of a foreign award.-- The party seeking to enforce a foreign award shall produce with his petition:--

(a) the document specified in Section 8(i) of the Act and, where such document is in a foreign language, the translation thereof into

English, certified in the manner prescribed in subsection (2) of the said Section 8;

(b) the original agreement for arbitration or an authenticated copy thereof and, when the same is in a foreign language, the translation thereof into English certified in the manner prescribed in subsection (2) of the said section 8:

(c) an affidavit or affidavits showing (1) that the said agreement was valid under the law by which it was governed, (2) that the award was made by the tribunal provided for in the agreement or constituted in the manner agreed upon by the parties, (3) that it was made in conformity with the law governing the arbitration procedure and (4) that it has become final in the country in which it was made; and

(d) other document or documents in support of his application.

6. Procedure to be followed in case of non-production of documents with petition for enforcement of award.-- If the application under section 5 of the Act be presented for admission without the document specified in Rule 5(a) above, it shall forthwith be returned to the party presenting it. If such application is unaccompanied by the documents specified in Rule 5 (b) and (c) above, the Court may allow time within which such document must be filed.

7. Execution of decrees and orders.-- The provisions of the Code of Civil Procedure and the Rules and Orders of the High Court relating to execution of decrees and orders shall, *mutatis mutandis*, be applicable to the execution of decrees and orders under the Act.

8. Fees payable on proceedings.-- The fees in respect of proceedings under the Act shall be according to the scale of fees applicable to proceedings under Schedule II of the Code of Civil Procedure.

II. As regards the powers which have been notified to be parties to the Convention and the territories to which the Convention applies see Central Government (Department of Commerce) Notification 103 (4)/II-Tr., dated the 8th January 1938.

CHAPTER 5

WITNESSES -- CIVIL COURTS

PART A -- ATTENDANCE OF WITNESSES (GENERAL)

1. Compulsory attendance.-- A Court can compel the personal attendance of any witness residing within the local limits of its jurisdiction, or without such limits if the person to be summoned is at a place, not more than fifty miles from the Court house or not more than two hundred miles if there is a railway communication or public conveyance for 5/6th of distance, provided that he is not exempted under any of the provisions of the Code of Civil Procedure, 1908. (Order XVI, Rule 19).

2. Attendance of *pardah nashin ladies*.-- Under Section 132 of the Code of Civil Procedure, 1908, women, who, according to the customs and manners of the country, ought not to be compelled to appear in public, shall be exempt from personal attendance in Court.

3. Privileged persons.-- The Punjab Government may, by Notification in the Official Gazette, exempt from personal appearance in Court any person whose rank, in the opinion of such Government, entitles him to the privilege of exemption.

The Punjab Government has made the following exemptions:-

(i) The Afghan, Persian, American, Dutch, German, Japanese and Italian Consuls-General residing in or visiting the Punjab (Punjab Government Notification No. 5957-S.-Judl., dated the 24th September, 1929).

(ii) The Ruling Chiefs of the Punjab and their sons (Punjab Government Notification No.I-F., dated the 1st January, 1909).

(iii) Certain Titular Chiefs and gentlemen. The list of these is liable to variation from time to time.

4. Other exemptions.-- The Court has a discretion to exempt from attendance as witness any person, who, in the opinion of the Court, is, from sickness or infirmity, unable so to attend, or who, being a Civil or Military

Officer of the Government, cannot attend without detriment to the Public Service. As regards the attendance of Patwaris in Civil Courts, Part B of this Chapter should be referred to.

5. Evidence by Commission.-- The Court may issue a commission for the examination of a witness, whose attendance cannot be compelled according to law, or cannot be secured for any other sufficient reason, in the circumstances specified in Order XXVI of the Civil Procedure Code.

6. Service Of Processes.-- The general procedure for issue of precesses to witnesses is the same as that in respect of defendants. For detailed instructions on the subject, see Volume IV, Chapter 7 and Volume I, Chapter I-D, (b) and (c).

7. Non-attendance, proof of service.-- Where a witness summoned to attend to give evidence or produce a document, fails to attend or to produce the document, without lawful excuse, the Court shall, on return of the service of the summons, examine the serving officer on oath, if his certificate has not been verified by affidavit and it may do so even when the certificate has already been so verified, to satisfy itself that the summons was duly served.

8. Proclamation, attachment and arrest in case of non-attendance.-- The Court, on being satisfied that the person summoned has intentionally failed to attend or to produce the document in compliance with such summons without any lawful excuse and that his evidence or the document is material, may issue a proclamation requiring him to attend to give evidence or produce the document at a time and place to be named therein. Or, the Court may, in lieu thereof, or in addition to it, issue a warrant, with or without bail, for the arrest of such person and may make also an order for the attachment of his property to such an amount as it deems fit to cover the costs of the attachment and any fine which may be imposed for his failure to attend, not exceeding Rs. *[2000/-] (*vide* Order XVI, Rule 10, Code of Civil Procedure, 1908).

9. Fine.-- Whenever such person appears and satisfies the Court that he did not, without lawful excuse, fail to comply with the summons, the Court may release the attachment or cancel the Warrant of arrest, as the case may be. Where such person does not appear, or appears but fails to satisfy the Court that

there was a lawful excuse for his absence, the Court may impose a fine, not exceeding Rs. * [2000/-], to be recovered by the attachment (if not already effected) and sale of his property (Order XVI, Rule 12, Code of Civil Procedure, 1908).

10. Party as witness.-- It should be noted that, where a party to a suit is required to give evidence or produce a document, the provisions as to witnesses apply to him, so far as they are applicable.

11. Warrants against Government servants for non-attendance.-- The Judges wish to impress upon the Subordinate Courts the desirability of caution in issuing warrants of arrest against a person in Public Service, unless and until the Court is fully satisfied that he is willfully omitting to obey the summons. In most cases, it will produce the desired effect if a notice is issued to the person at fault to show cause why he should not be proceeded against under the penal provisions of Order XVI and the attention of the superior officer is drawn to the conduct of the man. Of course, in cases of pronounced refractoriness, the Courts can set the law in motion in any one or all of the forms, available to them.

12. Non-attendance, duty of parties and Court.-- In cases where proper service of summons has been effected but the witnesses fail to attend, either through negligence or in collusion with the party on whose behalf they have been cited, Civil Courts should use their powers to take penal action against their own witnesses, the issue of any further summons through the Court for their attendance should be refused. The Courts should also, where necessary, take action themselves against defaulting witnesses. The provisions of Order XVI, Rule 16, should be studied and used, and if parties refuse to make an application under Order XVI, Rule 16 (2), the Court may refuse to grant any further adjournment.

13. Prompt disposal of witnesses.-- When witnesses are in attendance, every effort should be made to record their evidence promptly and they should not be required, as far as possible, to attend again at any adjourned hearing. In the case of businessmen and Government servants, the Court should, if possible, give them some indication as to the hour when their evidence is

likely to be recorded, so as to avoid their being detained on the Court premises longer than may be necessary.

14. Summoning Government servants to prove birth or death entries.-- In any case where a party to a suit wishes to prove the fact of a birth or death by reference to one of the registers of vital statistics he should be directed in the first instance to file a certified copy of the entry on which he relies. Civil Courts should refrain from summoning the clerks of Civil Surgeons' offices with the registers except where their presence is deemed absolutely necessary.

PART B -- ATTENDANCE OF PATWARIS IN CIVIL COURTS

Patwari should not be summoned unless absolutely necessary.-- Officers presiding over Civil Courts should be careful to see that Patwaris are not summoned unnecessarily to give merely formal evidence regarding entries in the village records and annual papers, information as to which could be as well obtained from an inspection of the records in the District office or from an examination of the District Qanungo or Record-Keeper. It should be remembered that Patwaris have very important duties to perform and that the discharge of these duties should not be hindered by making them attend Court except when the examination as witnesses is really necessary. In view of these considerations, the following instructions are issued with the concurrence of the Financial Commissioners. The Court should see that every application for summoning a patwari as a witness contains a note stating why a copy of the Revenue Record or an excerpt prepared by a Qanungo would not be sufficient and why the attendance of the Patwari is essential.

2. Summoning Patwari during girdawari season.-- Officers presiding over Civil Courts should not summon Patwaris (except in cases of great urgency) during the times when the principal crop *girdawaris* are going on, viz., ordinarily the months of March, April and October. (Financial Commissioner's Standing Order No. 22).

3. Channel of service and Court certificate.-- When a Civil Court requires the attendance of a Patwari at a time other than that above referred to, such a Court should forward the summons to the Tahsildar of the Tahsil to which the Patwari belongs. The Tahsildar should serve the summons with as little delay as possible. A certificate should be furnished by the Court to every Patwari who attends in obedience to a summons, showing the date of his appearance before the Court and the date on which he was permitted to leave.

4. Summoning during Settlement operations.-- When a Settlement is in progress, it is especially undesirable that Patwaris should be summoned to attend in the Civil Courts, and when they are required to give evidence which cannot be obtained in the manner indicated in paragraph 1, this should usually be obtained by the issue of a Commission under Order XXVI, Rule 4(1) (c), of the Code of Civil Procedure. Such commissions should

ordinarily be addressed to the Settlement Superintendent of the Tahsil; but any wish expressed on this point by the Settlement Officer should be responded to, and the period to be ordinarily allowed for the execution of a Commission should be arranged in consultation with him.

The Civil Court issuing the Commissions should always note thereon the date to which the case has been adjourned, and the officer to whom the Commission is sent, should then be careful either to return the Commission by that date, or to inform the Court, before such date, of the circumstances which will prevent the return of the commission within the time fixed, and what further time will be required.

PART C -- REMUNERATION

1. Payment of expenses by a party: exception.-- Order XVI, Rule 2, of the Civil Procedure Code, requires that the party applying for a summons shall, before the summons is granted and within a period to be fixed by the Court, pay into Court such sum of money as appears to the Court to be sufficient to defray the travelling and other expenses of the person summoned in passing to and from the Court in which he is required to attend, and for one day's attendance. Government is exempt from the operation of this rule when applying for summons for any of its own officers. In the case of witnesses summoned as "experts," the Court is authorized to allow remuneration in addition, for performing any necessary work of an expert character for the purposes of the case.

2. Expenses of the witnesses summoned by the Court of its own motion.-- When a witness is summoned by the Court of its own motion under Order XVI, rule 14 his diet money, etc., shall be paid by such party or parties as the Court may in its discretion direct.

When diet money, etc., is not deposited payment shall be made out of contingencies and an order passed for recovery from any property of the party concerned and executed under section 36 of the Code.

3. Expenses to be paid at the time of service.-- According to Order XVI, Rule 3 of the Code, the sum so paid into Court shall, except in the case of a Government servant who is not entitled to receive such sums, be tendered to the person summoned at the time of serving the summons, if it can be served personally.

4. Expenses of Government servants.--(i) A Government servant, shall not accept any subsistence allowance from the Court.

(ii) A Government servant, who is required to give evidence in a Court situated not more than 5 miles from his headquarters, may accept such actual travelling expenses as the Court may allow provided that he is not in receipt of permanent travelling allowance from Government.

(iii) A Government servant, who is summoned to give evidence in a civil case to which Government is a party or in a Criminal Court, may draw

travelling allowance from Government as for a journey on tour provided that (a) the facts as to which he is to give evidence have come to his knowledge in the discharge of his public duties, (b) he attaches to his bill a certificate of attendance given by the Court, and (c) he does not accept any payment of his travelling expenses from the Court.

Any expenses, which may be deposited in the Court for this purpose, must be credited to Government under head *["1230000-Law & order Receipts, 1231000-Justice, 1231003-Justice-General Fees, Fines & Forfeitures (74)".]

(iv) A Government servant, summoned to give evidence in circumstances other than those mentioned in the preceding clause, may receive travelling expenses from the Court according to the scale to which he may be entitled by his status.

*[(v) In the case of employees of the Federal Government or Pakistan Railway or any other Commercial Department of the Government or Corporations controlled by the Government, however, sums deposited for diet money will be credited in the Treasury to the credit of the Government concerned, i.e., Federal, Railway or any other commercial Department of the Government, or a Corporation controlled by the Government, as the case may be.]

5. Further sum for expenses.-- Order XVI, Rule 4, empowers the Court to require a further sum to be paid in for the expenses of a witness, if the sum at first paid is found to be insufficient, or if the witness is detained for more than one day.

6. Scale of Expenses.-- Order XVI, Rule 2 (3), provides that in fixing the scale of expenses to be allowed to witnesses, Subordinate Courts shall be guided by such rules as may be made by competent authority. The rules passed in connection with the scale of expenses are given in Appendix I to this Chapter.

7. Sending expenses by money order.-- When a summons is sent by a Court in one district for service through a Court in another district, the expenses must be remitted by money order at the cost of the party taking out the summons. The practice of sending remittances by postage stamps should never

be resorted to. The Court to which a remittance is made should be informed by letter, on the day on which application is made to the Post Office for the money order, and all necessary information should be furnished regarding the person or persons to whom the money is to be paid. The same procedure will apply when a summons issued by one Court in a district has to be served through the process serving agency of another Court within the same district.

8. Court certificate in case of Government servants.-- In all cases in which an officer of Government is summoned to give evidence, the Court should give him a certificate in the prescribed form A given in Appendix II to this Chapter, specifying the dates on which the officer was required to attend and the amount, if any, paid to him by the Court. This certificate will be attached by the officer concerned to any travelling allowance bill which he may submit under the rule quoted above.

9. Expenses of Process-servers.-- A process-server, who is called upon in *ex parte* proceedings to prove service of a summons by affidavit or statement in Court, is not entitled to any subsistence or other allowances for attendance. Such attendance must be regarded as the discharge of one of the ordinary duties of his office.

10. The attendance of a Chairman or a member of a Debt Conciliation Board as a witness in Civil Courts is required in (1) cases in which he appears as a witness in a Court in the discharge of his duties as Chairman or member, and (2) cases in which he appears in a Court in his private capacity. In the first case, the attendance of a Chairman or a member in the Courts is in his public capacity, and as he is a public servant within the meaning of section 21 of the Pakistan Penal Code, he cannot be treated as a private individual for the purposes of diet money or subsistence allowance. In such a case, the provision of Travelling Allowance Rule 2.36 should apply, and the Chairman or the member concerned should credit to Government any travelling allowance or subsistence allowance received by him from the Court.

In the second case, the attendance of the Chairman or member in the Court is purely in his private capacity and in such a case the Chairman or member should be treated as a private individual, and allowed to retain the amounts paid by the Court.

11. In all cases in which the Chairman or a member of a Debt Conciliation Board is summoned to give evidence the Court should give him a certificate in the prescribed form A given in Appendix II to this Chapter specifying the dates on which he was required to attend the Court and the amount, if any, paid to him by the Court.

APPENDIX-I

(Vide para 6)

*[The following rules have been framed by the High Court under Order XVI Rule 2(3) of the Code of Civil Procedure for the guidance of the Courts.

1. The remuneration to be paid to the witnesses attending the Civil Courts of the Punjab will be not only for the actual period of attendance but also for any reasonable time spent in the journey to and from the place of sitting, the mode of conveyance available being taken into consideration.

2. The Presiding Officer of each Court will, keeping in view the status of the witness, fix the remuneration exclusive of the bona fide travelling expenses. The government servants attending the Courts in private capacity, will be allowed remuneration at the rates admissible in each case under the relevant service rules.

3. In estimating travelling expenses, the amount allowed should cover the actual costs of the journey by means of conveyance considered by the Court to be suitable to the person summoned.

4. The professionals e.g. lawyers, registered accountants (as defined in rule 12 of the Auditors Service Rules, 1932), chartered accountants [as defined in Chartered Accountants Ordinance, 1961 (X of 1961)], doctors and engineers, attending the Civil Courts for giving expert evidence, shall be paid fees ranging

between rupees two hundred and rupees one thousand according to the professional standing of the witness, for each day in attendance or travelling in addition to the expenses for travelling.]

APPENDIX II.

(Vide para 8)

FORM - A

Form of certificate to be given by the Court to an officer of Government summoned to give evidence at a Court

In the Court of the _____ in the
_____ District.

1. Certified that _____ * was summoned to give

public

evidence in this Court in his ----- capacity in the case of _____

private

and was required to attend for a period of ----- days, that is from the ----- to the ---
----- 19 .

**** 2.** To be cut out when nothing is paid.-- He was paid the following amounts in accordance with the rules of the Court:--

3. The amount of ----- as his diet money has been recovered from

..... has been Treasury

the litigants and ----- deposited in the local -----

..... will be Sub-Treasury

on (date) -----.

**PART D -- COPYING AND SEARCH FEES PAYABLE TO BANKS FOR
PRODUCTION OF DOCUMENTS IN LAW COURTS**

*[The following rules are applicable in the Province of the Punjab:-]

1. Responsibility of managing authority for production of documents even if fees allowed insufficient.--

On receipt of a summons addressed to a Bank requiring the production of documents or of certified copies of entries in books of account, the managing authority must arrange for the production of the documents or the copies by an official of the Bank qualified to give evidence thereon, in accordance with the terms of the summons. Unless the documents or entries are incorrectly or insufficiently described in the summons, or are not in the possession of the Bank, the managing authority must comply with summons, and will be liable to all the penalties prescribed for failure to comply with a summons, whether the rates fixed by the Court for search or copying fees are acceptable to him or not. Any representation regarding rates of diet money, etc., must be made to the Court, and dissatisfaction with these rates is no ground for refusing to obey the summons.

2. Search fees.-- If the information given is not exact but is sufficient to enable the Bank to trace the documents by making a search, the Bank should communicate at once with the Court mentioning the amount of search fee it wishes to charge and wait for further order. The Court will communicate with the party concerned and if the party deposits the search fee, it will ask the Bank to comply with the summons.

3. Report if documents cannot be traced.-- If no information whatsoever is given in the summon or if the information given is not sufficient to enable the Bank to trace the document, the summons should be returned with a report to this effect.

4. Scale of search fees.-- Search-fees will be fixed by the Court in proportions to the work involved. Rupees *[50.00] may be taken as a fair amount for the search-fee for a single document not easily accessible; but in the case of documents easily traced, such as cheques, the rate should be less; and when several documents of the same nature, such as cheques, have to be produced, the rate should be further reduced.

5. Scales of copying fees.-- Copying fees for all documents other than entries in account books should be paid for at the Court rates.

***[6. Scale of copying fees. -** The photo- copies of entries in account books, ledger folios and registers may be issued as certified copies with the necessary certificates and the cost at market-rates for such certified copies will be payable by the person on whose behalf the said certified copies were ordered to be made and produced in Court. Copying fee for all other documents will be paid at the Court rates.]

7. Prohibition against summoning higher officers of the Banks.-- All Courts must scrutinize carefully all applications for summonses to Banks and should refrain from summoning the Banks higher officers unless they are satisfied that their personal attendance is necessary.

CHAPTER 6

SUITS BY OR AGAINST PERSONS IN MILITARY SERVICE

PART A -- AMENABILITY TO THE CIVIL COURTS OF PERSONS SUBJECT TO MILITARY LAW

***[1. Jurisdiction of civil Courts.--** The persons subject to Pakistan Army Act 1952 (XXXIX of 1952), Pakistan Air Force Act, 1953 (VI of 1953) and the Pakistan Navy Ordinance, 1961 (XXXV of 1961) are now amenable to the jurisdiction of ordinary Civil Courts subject to certain restrictions as regards their personal appearance in Court and execution of decrees against their person and military equipments.]

2. ******[Omitted].

3. ******[Omitted].

4. Authority for conducting litigation.-- When any officer or soldier actually serving Government in military capacity is a party to a suit and cannot obtain leave of absence for prosecuting or defending a suit, he can appoint some other person to act on his behalf by an authority in writing given in the manner prescribed in Order XXVIII of the Code of Civil Procedure.

In the case of ******[...] officers or soldiers, the following form has been prescribed for the authority in writing.

"Whereas I (name)-----inhabitant of village-----Pargunnah -----
 -----in the District of ----- son of ----- of the caste of-----
 -----at the present rank in-----
 Company-----Regiment-----stationed at-----having
 occasion to institute (or defend) an action for (nature and object of suit and name of
 adverse party), do hereby nominate and appoint (name, residence and caste and
 relationship, if any) to be my attorney, and I bind myself to abide by whatever he, the
 said attorney, may do on my behalf, in the prosecution (or

defence) of the said suit. The said attorney will either prosecute (or defend) the suit in person or will appoint one or more of the authorised *[Advocates] of the Court to prosecute (or defend) the same, under the instructions of the said attorney as he may think proper. In the event of an appeal being preferred from the judgment passed in the suit, the said attorney is hereby empowered to act for me in the appeal in the like manner as in the original suit.

Signature

Signed in my presence O.C."

[Vide paragraph 285, Regulations for the Army in *[Pakistan], 1927].

A power-of-attorney to institute or defend a suit executed as above is not chargeable with Court-fee (vide Section 19, clause (1) of the Court-fees Act, 1870).]

5. Service of processes.-- As regards service of processes on officers and soldiers, see Order V, Rules 28 and 29 of the Civil Procedure Code, 1908, and Rules and Orders, Volume IV, Chapter 7, Processes (Civil).

6. Speedy disposal of cases.-- Civil Courts should dispose of all suits, for the prosecution or defence of which officers, soldiers or reservists have obtained leave of absence, as speedily as is consistent with the administration of justice, irrespective of the order in which they stand on the register.

**[(See section 173 of the Pakistan Army Act, 1952 (XXXIX of 1952), Section 32 of the Pakistan Air Force Act, 1953 (VI of 1953) and Section 27 of the Pakistan Navy Ordinance, 1961 (XXXV of 1961).]

7. Priority certificate-Extension of leave by Court.-- When a person subject to the *[Pakistan Army Act, 1952,] obtains or applies for leave of absence for the purpose of prosecuting or defending a Civil suit, he is provided by his Unit Commander with a certificate to enable him to obtain priority of hearing (I.A.F.D. 902). This certificate must be presented by him in person to the Court. If the case cannot be disposed of within the period of leave granted, the civil officer concerned may grant leave for such period as will admit of the receipt of a reply to an application to the Unit Commander for the necessary extension of leave. The civil officer will at once report to the Unit Commander

any grant of leave sanctioned by him. (See paragraph 288, Regulations for the Army in India 1927).

8. The *[Federal] Government has issued the following notification under section 60 (1)(l) of the Civil Procedure Code:-

The 3rd November, 1938.

No. 191/38-Judicial--In pursuance of clause (l) of the proviso to Subsection (l) of section 60 of the Code of Civil Procedure, 1908 (Act V of 1908), the Federal Government is pleased to declare that the allowances payable to Officers in *[Pakistan] subject to the *[Army and Air Force Act] shall be exempt from attachment by order of a Court in satisfaction of a liability incurred after the 31st December, 1938.

Appendix ***[Omitted]

**[9. Exemption from arrest and attachment of pay and allowances etc.

(a) **Army:-** No person subject to the Pakistan Army Act, 1952, so long as he belongs to Pakistan Army, is liable to be arrested for debt under any process issued by or under the authority of any Civil or Revenue Officer. The effect of sections 170 and 171 of the Pakistan Army Act, 1952 and clause (j) to the proviso to sub-section (1) of Section 60 of the Code of Civil Procedure is that such person are exempted from arrest and the arms, clothes and equipment, accoutrements and his pay and allowances are all totally exempted from attachment by direction of any Court whether Civil or Revenue.

Under section 172 of the Pakistan Army Act, 1952, persons belonging to the Reserve Forces when called out for or engaged upon or returning from military training or service and all officers and men of Mujahid Force and Janbaz Force under section 18 of National Guards Act, 1973, and Pakistan Territorial Forces Act, 1950, while subject to the Pakistan Army Act, 1952, are also entitled to the same privileges.

(b) **Air Force:-** The position under the Pakistan Air Force Act, 1953 (VI of 1953), is precisely the same as that under Pakistan Army Act, 1952. Sections 28 and 29 of the former correspond to sections 170 and 171 respectively of the latter. Thus the exemption for persons subject to the Pakistan Air Force Act is the same as that stated in sub-para (a) above.

(c) **Navy:-** Persons in Naval Service in Pakistan are subject to Pakistan Navy Ordinance (XXXV of 1961). Sections 24 and 25 of the Pakistan Navy Ordinance correspond to sections 170 and 171 of the Pakistan Army Act, 1952. So the exemption for persons subject to the Pakistan Navy Ordinance is the same as that stated in sub-para (a) above.

As regards pay and allowances, clause (j) of proviso to sub-section (1) of section 60 of the Code of Civil Procedure gives total exemption from attachment to the persons other than Commissioned Officers to whom the Pakistan Navy Ordinance, 1961, applies. Thus all persons in Pakistan Navy other than Commissioned Officers enjoy this total exemption and Commissioned Officers enjoy the total or partial exemption under clauses (i) and (l) of the proviso to sub-section (1) of Section 60 of the Code of Civil Procedure.]

PART B -- THE ***[...] SOLDIERS' LITIGATION ACT, 1925

1. General.-- During the Great War it was found necessary to enact measures for the protection of the interests of ***[...] soldiers serving under War conditions. This object was effected by the promulgation of Ordinance II of 1915, which provided for the special protection in respect of civil and revenue litigation of ***[...] Soldiers, serving under War conditions. The main objects, sought to be secured, were that cases, to which ***[...] soldiers were parties, should not be proceeded with unless their adequate representation in such proceedings had been secured, and that power should be given to the Courts to set aside the decrees or orders passed when these conditions had not been observed. A further privilege conferred was the exclusion of any period of service under War conditions from the period of limitation.

2. Law applicable.-- The Ordinance was replaced by the ¹[...] Soldiers Act, 1915, with certain modifications. The Act of 1915 was, in its turn, replaced by the ***[...] Soldiers' Litigation Act, 1918, and the latter by the ***[...] Soldiers' Litigation Act, 1925, which is now in force.

3. Explanation of various sections.-- A "Soldier" is defined in the Soldiers Litigation Act, 1925, as a person subject to the Army Act, ^{*}[1952.] Section 3 defines the circumstances in which a soldier shall be deemed to be serving "under special conditions". According to Section 6, when a Court (Civil or Revenue) has reasons to believe that a party to a suit before it is a soldier who is not duly represented and is unable to appear, it must give notice thereof to the `prescribed authority in the `prescribed manner' and suspend proceedings in the meantime. If the prescribed authority certifies that the soldier is serving under special conditions, the case must be postponed. Section 10 confers power on the Court to set aside decrees and orders passed against a soldier serving under `War' or `Special Conditions' in certain circumstances. Section 11 permits the period spent in such service to be deducted from the normal period of limitation, except in the case of pre-emption suits. For the purposes of section 10 and section 11, the Court may refer the question as to whether a soldier has been serving under `War' or `special conditions' to the `prescribed authority' and the certificate granted by that authority is conclusive on the point.

4. Rules under the Act.-- The rules framed by the Central Government under section 13 of the ^{***}[...] Soldiers (Litigation) Act, 1925, are given in the following notification:-

DEFENCE DEPARTMENT

Simla the 14th May, 1938

No. 455.-- In exercise of the powers conferred by section 13 of the ¹[Indian] Soldiers (Litigation) Act, 1925 (IV of 1925), the Central Government, after consulting the High Courts concerned, is pleased to make the following rules, namely:--

1. Citation.--(1) These rules may be called the Indian Soldiers (Litigation) Rules, 1938.

(2) They extend to the whole of British India including Berar",

2. Definitions.--(1) In these rules, 'the Act' means the Indian Soldiers (Litigation) Act, 1925 (IV of 1925).

(2) All words used herein and defined in the Act shall be deemed to have the meanings respectively attributed to them by the Act.

3. Prescribed authority.-- The prescribed authority for the purposes of sub-clause (iv) of clause (b) of section 3 and sections 6, 7 and 8 of the Act shall be the Officer Commanding the Unit or the Depot of the unit to which the soldier belongs.

4. Form of Collector's certificate.-- The certificate given by a Collector under section 5 of the Act shall be in Form A of the schedule.

5. Notice by Court.-- The notice given by the Court under section 6 of the Act shall be in Form B of the Schedule and shall be sent to the prescribed authority care of the General Officer Commanding-in-Chief of the Command in which the Court is situated, and the certificate of the prescribed authority, under section 7 of the Act, shall be in Form C of the Schedule.

6. Certificate as to that postponement not required.-- If at any time it appears to the prescribed authority that the circumstances in which he

certified to the Court under section 7 of the Act that a postponement of the proceedings was necessary in the interests of justice, no longer exist, he shall forthwith certify to the Court to that effect in Form D of the Schedule.

7. Postponement by Court.-- On receipt of a certificate from the prescribed authority under section 7 of the Act that a postponement of the proceedings is necessary in the interests of justice, the Court shall postpone the proceedings until the receipt of a certificate in Form D from the prescribed authority or until the soldier is represented in the proceedings by some persons duly authorised to appear, plead or act in his behalf.

8. Prescribed authority.-- The prescribed authority for the purposes of section 12 of the Act shall be the General Officer Commanding-in-Chief of the Command in which the Court is situated.

(Continued)

SCHEDULE

Form A

(See Rule 4)

Collector's Certificate under section 5 of the ^{***}[...] Soldiers (Litigation) Act, 1925).

From

The Collector,

District-----

To

In re-----No.-----of 19

versus

Sir,

I have the honour to certify under section 5 of the ¹[...] Soldiers (Litigation) Act, 1925 (IV of 1925), that I have reason to believe that-----, son

Ordinarily residing

of -----, who is a ^{***}[...] soldier----- in my

Having property

district and who is a party in the above-mentioned (enter suit, appeal application or other proceedings) now pending in (enter name of Court) is unable to appear therein.

I have the honour to be

Sir,

Your most obedient servant,

Collector.

Notes:- (1) This certificate should be sent by post in a registered cover or by hand and an acknowledgment should be obtained for it.

(2) It should be addressed, in the case of a High Court, to the Registrar of the Court, or in the case of a Board of Revenue to the Secretary of such Board, or in other case to the Presiding Officer of the Court.

FORM B

(See rule 5)

Notice under section 6 of the ***[...] Soldiers (Litigation) Act, 1925.

In the -----

No.-----of -----

versus

To

Unit

The Officer Commanding (enter name of-----)

Depot of unit

Care of the General Officer Commanding-in-Chief,

-----Command.

Please take notice that [upon the certificate of the Collector of----- under section 5 of the ***[...] Soldiers (Litigation) Act, 1925 (IV of 1925)] *[having had reason to believe] that-----, son of----- -----, a ***[...] soldier, who is a party in the above-mentioned proceeding now pending in this Court and is not represented by any person duly authorized to appear, plead or act on his behalf, is unable to appear therein, this Court has, under section 6 of the said Act, suspended the proceeding. If within the period prescribed in section 8 of the

said Act, no certificate is received from you under section 7 thereof, the Court will, if it thinks fit, continue the proceedings.

Given under my hand and the seal of the Court, this the ----- day of-
-----19 .

Presiding Officer of the Court.

Registrar.

FORM C
(See rule 5)

Notice under section 7 of the ***[...] Soldiers (Litigation) Act, 1925

From

The Officer Commanding
Unit
 (enter name of-----)
Depot of unit

To

 -----No.-----of 19 .

 versus

 No. -----, dated -----

Sir

I have the honour to acknowledge receipt of your notice, dated -----, under section 6 of the ***[...] Soldiers (Litigation) Act, 1925 (IV of 1925), in the above-mentioned proceedings, and to certify under section 7 of the said Act that -----, son of-----, in respect of whom the above-mentioned notice has been given, is serving under special

conditions and that a postponement of the proceedings in respect of that soldier is necessary in the interests of justice.

I have the honour to be

Sir,

Your most obedient servant,

Officer Commanding.

Notes:- (1) This certificate should be sent by post in a registered cover or by hand, and an acknowledgment should be obtained for it.

(2) It should be addressed in the case of a High Court, to the Registrar of the Court, or in the case of a Board of Revenue to the Secretary of such Board, or in other cases to the Presiding Officer of the Court.

Form D
(See rule 6)

Certificate under rule 6 of the ***[...] Soldiers (Litigation) Rules, 1938

From

To

In re-----No.-----of 19

versus

No. -----, dated -----

Sir,

I have the honour to invite a reference to my letter No.-----, dated---
-----, and to certify under rule 6 of the ***[...] Soldiers (Litigation) Rules,
1938, that circumstances no longer exist for the postponement of the
above-mentioned (enter suit, appeal, application or other proceedings),
now pending in (enter name of Court), wherein -----

-----, son of-----, a ^{***}[...] Soldier, is a party.

I have the honour to be
Sir,
Your most obedient servant,
Officer Commanding.

Notes:- (1) This certificate should be sent by post in a registered cover, or by hand, and an acknowledgment should be obtained for it.

(2) It should be addressed, in the case of a High Court, to the Registrar of the Court, or in the case of a Board of Revenue to the Secretary of such Board, or in other cases to the Presiding Officer of the Court.

PART C -- PROCEEDINGS WITH RESPECT TO SUCCESSION CERTIFICATES

Introductory ***[Omitted]

(1). ***[Omitted].

(2). **Notice to soldiers under section 6 of the Succession Act.**-- When the Court finds that a person, falling under clause (c) of Section 6(1) aforesaid, is a ***[...] soldier serving under special or War conditions and there is no special and obvious reason for suspecting the good faith of the members of the family actually applying for the certificate, the Court should declare that, in the circumstances, it is unnecessary to make the soldier a party to the proceeding or to issue notice to him; but in such cases the Court should always demand security under Section 9(1) of the Act. If, on the other hand, there is any good reason to suspect the good faith of the applicant, then he should be required to get a power-of-attorney from the absent soldier or some written assurance from him that he does not object to the application.

Footnote ***[Omitted]

CHAPTER 7

SUITS AGAINST OR INVOLVING PRINCES,

CHIEFS ETC.....^{***}[Omitted]

CHAPTER 8
SUITS BY OR AGAINST
THE *~~[GOVERNMENT]~~ AND PUBLIC OFFICERS

*[1. A suit in which Pakistan or any of its Provinces or any public officer as defined in clause (17) of section 2 of the Code of Civil Procedure, 1908, in his official capacity is a party, shall be instituted in a Court having jurisdiction in original suits without limit as regards value and heard at the headquarters of the district. (See section 24 of the Punjab Civil Courts Ordinance, 1962 (II of 1962).]

1-A. Dates.-- Order XXVII, Rule 5, of the Code of Civil Procedure prescribes that in fixing the date for the hearing of a suit against the *[Government], the Court shall allow a reasonable time for the necessary communication with the *[Government], through the proper channel. The period required will depend upon circumstances and no invariable rule can be laid down on the point, but in most cases a period of two months will probably be suitable.

2. Extension of time.--(i). In fixing the period in any case, the representations of the officer, who receives the summons or who is conducting the case on behalf of the *[Government], should meet with due consideration, as the Code of Civil Procedure clearly contemplates that reference to Government, through the proper departmental channel, involving a certain delay, shall be allowed for and an extension of time should be given on reasonable cause being shown; but, on the other hand, the Civil Courts should be cautious to prevent undue delays in these as in all other classes of suits.

(ii) **Priority.--** Cases, in which Government Departments are concerned, and in which officials have to attend, should be disposed of promptly, care being taken to give due notice where it is necessary, for any reason to adjourn the case.

***[3. Two months notice before institution of suit and grant of thirty days' time for sub-mission of the written statement in case of non-service of notice.--** A suit may be instituted against the Government or against a public officer in respect of any act purporting to be done by such public officer

in his official capacity after the expiration of two months next after notice in writing has been delivered to or left at the office of Secretary to the Government in the case of a suit against the Federal Government and a Secretary to the Government or the Collector of the district in the case of a suit against the Provincial Government and to the General Manager of the Railway in case of a suit against the Federal Government relating to the affairs of Railway and to the public officer concerned in case of a suit filed against such public officer. The notice to be served is to state the cause of action, the name, description of place of residence of the plaintiff and the relief which he claims. The plaint of such a suit shall then contain a statement that such notice has been delivered or left.

Where any such suit is instituted without delivering or leaving the notice as aforesaid or before expiry of two months period or where the plaint does not contain a statement that the notice as aforesaid has been so delivered or left, the plaintiff shall not be entitled to any cost if settlement, as regards the subject matter of the suit, is reached or the Government or the public officer concedes the plaintiff's claim within a period of two months from the date of the institution of the suit. It is also to be remembered that in a suit, instituted without serving such a notice, the Court is required by law to allow not less than three months to the Government to submit its written statement.]

***[4. Title of case.** - In suits by or against the Government, the authority to be named as plaintiff or defendant, as the case may be, shall be in the case of a suit by or against the Federal Government "Pakistan" and in the case of a suit by or against the Provincial Government, the "Province".]

5. Definition of *[Government] and *[Government] Pleader.-- The definition of Government and Government Pleader for purposes of Order XXVII CPC should be carefully studied.

***[Omitted]

***[6.** To avoid delays in the disposal of suits and proceedings against the State and to prevent inconvenience to the Law Officers of the State, the following directions shall be observed:-

(i) **Priority.-** Suits or proceedings by or against the Government (Civil and Criminal) should be given priority of hearing; and such cases should, when possible, be heard continuously until completion; and

(ii) **Timely notice of adjournment.-** If a date is fixed in a suit affecting the State and the Court is not prepared to hear the case on that date, timely notice by telegram should be given to the Law Officer concerned by the Court.]

7. The following notifications, issued by the Provincial Government under the Code of Civil Procedure are published for information

I. -- Punjab Government Notification No. I-C.,
dated the 1st January, 1909

Government pleader.-- With reference to the definition of the expression "Government Pleader" contained in section 2 (7) of the Code of Civil Procedure (V of 1908), the Lieutenant-Governor is pleased to appoint the Legal Remembrancer to the Punjab Government, the Government Advocate, Punjab, and the Assistant Legal Remembrancer, Punjab, respectively, to perform all or any of the functions expressly imposed by the said Code on the Government Pleader except the functions specified in Order XXXIII, Rule 6, and in Order XXVII, Rule 4, thereof.

2. The Deputy Commissioner for the time being of every district in the Punjab is appointed to be the Government Pleader for his district for the purposes of Order XXXIII, Rule 6 and of Order XXVII, Rule 4, of the Code of Civil Procedure.

3. Nothing in this notification shall be deemed to affect the provisions of notification No. 1-H., dated 1st January, 1909 (now superseded by Punjab Government notification No. 1073-J-37/13015, dated the 1st April, 1937, given below), regarding the recognized agents of Government under Order XXVII, Rule 2, of the Code of Civil Procedure.

II. -- Punjab Government Notification No. 1073-J-37/13015, dated the 1st April, 1937.

Recognized Agents.-- In supersession of Punjab Government notification No. 1-H., dated the 1st January 1909, and in accordance with the provisions of Order XXVII, Rule 2 of the First Schedule of the Code of Civil Procedure, 1908, the Governor of the Punjab is pleased to authorize all Deputy Commissioners in the Punjab, by virtue of their office to act for the Crown in respect of all judicial proceedings in which the Punjab Government is concerned and in which they may receive instructions from the Financial Commissioners or the Legal Remembrancer to Government.

2. In the absence of the Deputy Commissioner from his headquarters, the Senior Assistant Commissioner or Extra Assistant Commissioner there present is hereby authorized to exercise the power hereby conferred on the Deputy Commissioner.

III.-- Punjab Government Notification No. 22963, Judicial, dated the 10th December, 1917.

Recognized Agents.-- It is hereby notified that all Government Pleaders are, under Order XXVII, Rule 2, of the First Schedule to the Code of Civil Procedure, ex-officio authorized to act for the Government in respect of all judicial proceedings in the Courts within the Civil districts for which they are appointed.

IV. -- Punjab Government Notification No. 1073-J-37/13017/H, judicial, dated the 1st April, 1937.

Verification and signing of pleadings.-- In supersession of Punjab Government notification No. 19798 Judicial, dated the 4th July, 1934, and in accordance with the provisions of Order XXVII, Rule 1 of the First Schedule of the Code of Civil Procedure, 1908, it is hereby ordered that in all suits, by or against the Punjab Government, complaints or written statements on behalf of the Punjab Government shall be signed and verified by the Deputy Commissioner for the time being of the district in which the cause of action in whole or in part

arises or by any other gazetted officer of any department concerned who is acquainted with the facts.

*[V. -- West Pakistan Government Law Department, Notification No. 869-Law, Dated the 15th October, 1955.

In accordance with the provisions of Order XXVII, rule 1 of the First Schedule of the Code of Civil Procedure, 1908, the Governor of West Pakistan is pleased to order that in all suits by or against the West Pakistan Government, Plaints or Written Statement on behalf of the West Pakistan Government shall be signed and verified by the Deputy Commissioner for the time being of the district in which the cause of action in whole or in part arises or by any gazetted officer of the department concerned who is acquainted with the facts.

VI. No.870 Law. - In accordance with the provisions of Order XXVII, rule 2 of the first Schedule of the Code of Civil Procedure, 1908, the Governor of West Pakistan is pleased to authorise all Deputy Commissioners in West Pakistan, in virtue of their office to act for the Crown in respect of all Judicial Proceedings in which the West Pakistan Government is concerned and in which they may receive instructions from the Secretary, Law Department, West Pakistan Government.

2. In the absence of the Deputy Commissioner from his headquarters, the Senior Assistant Commissioner or Extra Assistant Commissioner there present is hereby authorised to exercise the power hereby conferred on the Deputy Commissioner.

VII. Government of West Pakistan, Law Department Notification No. 8/57/Genl/255.

In accordance with the provisions of Rule 2 of Order XXVII of the First Schedule to the Code of Civil Procedure, 1908 and in modification of the Law Department notification No.870-Law, dated 14th October 1955, the Governor of West Pakistan is pleased to authorise every Deputy Commissioner and every Political Agent in West Pakistan and, in his absence from the headquarters, the Senior Assistant Commissioner, as the case may be, present there to act in

virtue of his office for the Province of West Pakistan in respect of any judicial proceedings by or against the Province in which he may receive instruction from the Secretary to Government, West Pakistan, Law Department, or from the Solicitor to the Government, West Pakistan.]

VIII. -- Government Of India, Defence Department, Notification No.939, dated the 11th December, 1937.

Verification and signing of pleadings in cases relating to Military lands.-- In pursuance of Rule 1 of Order XXVII in the First Schedule to the Code of Civil Procedure, 1908 (Act V of 1908) and in supersession of the notification of the Government of India in the late Army Department, No. 336, dated the 16th June, 1934, the Central Government is pleased to appoint Military Estates Officers to be the persons by whom the plaint or written statement may be signed and verified in any suit by or against the Crown relating to military lands---

(i) in Cantonments irrespective of the fact whether they are entrusted to the executive management of the Military Estates Officers or the Cantonment Board;

(ii) out side Cantonments whether entrusted to the management of the Military Estate Officer by or under any order of the Central Government or not.

IX. -- Central Government Notification No. E.38-II.23, dated the 25th August, 1938.

Verification and signing of pleadings in suits re G.I.P. Railway.-- In exercise of the powers conferred by Rule 1 of Order XXVII of the First Schedule to the Code of Civil Procedure, 1908 (Act V of 1908), the Central Government is pleased to appoint the General Manager and the Deputy General Manager for the time being of the Great Indian Peninsulas Railway to be the persons by whom the plaint or written statement may be signed and verified in any suit by or against the central Government or against the Secretary of State relating to the affairs of the said Railway.

The Railway Department notifications Nos. 523-E/23, dated the 27th August, 1925, and 523-E/1, dated the 17th September, 1925, are hereby cancelled.

X.-- Central Government Notification No. E.-38-II.23, dated the 25th August, 1938.

Verification and signing of pleadings in suits re E.I. Railway.-- In exercise of the powers conferred by Rule 1 of Order XXVII of the First Schedule to the Code of Civil Procedure, 1908 (Act V of 1908), the Central Government is pleased to appoint the General Manager and the Deputy General Manager for the time being of East Indian Railway to be the persons by whom the plaint or written statement may be signed and verified in any suit by or against the Central Government or against the Secretary of State relating to the affairs of the said Railway.

The Railway department notification No. 523-E/II dated the 20th August, 1925, is hereby cancelled.

CHAPTER 9

UTILIZATION OF THE SERVICES OF THE SPECIAL KANUNGO OR PATWARI MUHARRIR

1. Procedure for obtaining excerpts.-- For the purpose of making the information contained in the revenue records accessible to the litigating public and to the Courts, a Special Kanungo or Patwari Muharrir has been appointed in all the districts of the Punjab. ***[...] The procedure to be followed in such cases is that the Court, in which the suit is pending, issues a summons to the Special Kanungo or Patwari Muharrir who, after preparing his excerpt, goes to the Court on the date fixed taking with him the revenue records from which the excerpt has been compiled. He is then placed in the witness box. Counsel thus have the opportunity of comparing the excerpt with the originals and of examining him on any points they choose.

2. Particulars to be supplied to Kanungo or Patwari Muharrir.-- Parties who desire to summon the Special Kanungo or Patwari Muharrir as a witness with his records must be required to state succinctly and in writing the point on which information is required, and the application must be sent along with the summons to the Special Kanungo or Patwari Muharrir. The Courts must see that the application is in a readily intelligible form before they issue it, and the practice, where it occurs, of sending for the Special Kanungo or Patwari Muharrir to tell him what is required must be discontinued, though Courts may also issue written instructions, or supplement or correct the application.

3. Kanungo or Patwari Muharrir should be utilized for special purposes and only at earlier stages.-- Courts must be on their guard against using the Kanungo or Patwari Muharrir for purposes for which he is not intended, e.g., he is not to be required to give opinions, he is not to be used as a local Commissioner, or to be asked to provide instances in support of or to refute an alleged custom. Courts must also see that, if the Special Kanungo or Patwari Muharrir is required, he is summoned for the first hearing after issues are framed, and not, as sometimes happens at present, at the end of the case. They must also never fail to ask him on oath whether the excerpt is in accordance with the revenue records.

4. Excerpt to be proved. Utilizing of Kanungo or Patwari Muharrir by outlying Courts.-- The excerpt prepared by the Special Kanungo or Patwari Muharrir is not evidence unless proved and cannot be used as such. He cannot be allowed to go to outlying Courts because he cannot take the revenue records with him, and without them there would be no check over his excerpt. It is, however, very desirable that outlying Courts should be able to utilize the Special Kanungo or the Patwari Muharrir, and, as the best practicable method of securing that object, Presiding Officers of outlying Courts may issue either interrogatories for the Special Kanungo or Patwari Muharrir or an open Commission to a senior official at headquarters ordinarily and, unless there is some special reason to the contrary, the Senior Civil Judge. This official, who will have other duties and is described in the instructions appended as the officer-in-charge, will then comply with the directions given, summon the Special Kanungo or Patwari Muharrir, record his statement on oath and make the return to the Court. In this connection attention is drawn to Order XXVI, Rule 18 (1), of the Code of Civil Procedure. The issue of a Commission should not become a source of unnecessary delay, and the officer-in-charge should in the absence of very strong reasons proceed in the absence of parties if they do not appear. Parties should be informed that their appearance at headquarters is optional if interrogatories are issued.

5. The following instructions have been issued for the guidance of the Courts and of the Special Kanungo or Patwari Muharrir and it will be the immediate duty of the officer-in-charge to see that these instructions are followed:-

INSTRUCTIONS REGARDING THE UTILIZATION OF THE SERVICES OF THE SPECIAL KANUNGO OR PATWARI MUHARRIR

(i) **Application should be made to Court.--** Applications for the services of the Special Kanungo or Patwari Muharrir must be made to the Court and may not be made direct to the Special Kanungo or Patwari Muharrir.

(ii) **It should specify the points of information.--** Such applications must state clearly the point on which information is required; and if this

condition is not fulfilled, they will be liable to be returned for amendment. They may, however, be supplemented or corrected by the Court.

(iii) **Fees.--** Whenever an application is sent to the Special Kanungo or Patwari Muharrir he must, at the same time be summoned as a witness, and the applicant must at once, deposit into Court the fee for evidence which is Rs. 3, and the excerpt fee, which is also Rs.3.

Note:- If the Special Kanungo or Patwari Muharrir is only required to produce a revenue record or if he is only summoned with the original revenue record in order to verify whether a copy is correct, an evidence fee of Rs. 3 only will suffice.

This deposit shall be credited at once into the treasury under the head "XXI Administration of Justice--General Fees, Fines and Forfeitures--Other General Fees, Fines and Forfeitures" and particulars of the credit noted on the application and the summons issued to the Special Kanungo or Patwari Muharrir. No summons shall be issued until this amount is paid by the party concerned and credit into the treasury.

(iv) **Application should be made in time.--** Courts to which applications are made must see that they are made promptly (within a short time to be fixed by the Court after the date on which issues are framed), so that the Special Kanungo or Patwari Muharrir may be ready with his excerpt and to give evidence on the next date fixed.

(v) **Excerpt should be a true copy and should be proved.--** Courts must remember that unless proved the excerpt of the Special Kanungo or Patwari Muharrir is not evidence and must not be treated as such. The Special Kanungo or Patwari Muharrir must, when he goes to Court, always bring with him the original records from which his excerpt has been compiled, so that they may be available for comparison. He must always be put on oath, and be asked to say whether the excerpt is a true copy of a portion of the original records.

The excerpt must be a correct copy of such portions of the revenue records as are relevant and not merely a summary or paraphrase.

(vi) **Comparison with original.--** The Court should, as a rule, compare with the original records some of the entries in the abstract and initial and date those thus compared.

(vii) **Fees.--** The fee for the preparation of the excerpt will be a consolidated one of Rs.3 which will cover the cost of search and preparation of the excerpt. Any extra fee fixed should be recovered at the hearing.

(viii) **Register kept by Kanungo or Patwari Muharrir.--** A register in form "A" annexed is prescribed for the Special Kanungo or Patwari Muharrir.

(ix) **Register kept by Court.--** A very simple form of register in form "B" is prescribed for Courts using the Special Kanungo or Patwari Muharrir. The main objects of it are to facilitate inspection and to provide, if necessary, means of checking that of the Special Kanungo or Patwari Muharrir and to verify the amounts credited into the Treasury.

Each entry in the Register shall be attested by the Presiding Officer of the court, in the column provided for the purpose, in token that the amount has been credited to Government as required by rule (iii).

(x) **Procedure of outlying Courts.--** If the application is made to a Court, which is not situated at the district headquarters, the Court will forward the application to the officer-in-charge together with a certificate that the fee of Rs. 6 has been recovered and credited to Government as in rule (iii), and will either issue an open Commission to him or will send interrogatories.

(xi) **Procedure of officer-in-charge when excerpt required by outlying Court.--** The officer-in-charge will then transmit the application to the Special Kanungo or Patwari Muharrir together with the interrogatories, if any, and will call upon him to prepare the excerpt required and to attend to give evidence. When he attends his evidence, whether in the form of answers to interrogatories or otherwise, must be recorded on oath. The officer-in-charge must see that the Special Kanungo or Patwari Muharrir complies with rule (v) above, and his attention is particularly drawn to the provisions of Order XXVI, rule 18. The examination of the Special Kanungo or Patwari Muharrir must not

be postponed for the absence of parties. The outlying Court must inform parties that their presence at Sadr is unnecessary if interrogatories have been issued.

(xii) Procedure of officer-in-charge when excerpt required by outlying Court.--

When the evidence has been recorded, the officer-in-charge will fix the excerpt fee and the application will be returned with the evidence and the report, if any, together with an intimation of the amount of the excerpt fee to the Court of issue. Any additional excerpt fee payable will be recovered from the party concerned at the next hearing before the Special Kanungo's or Patwari Muharrir's evidence is admitted to the record and will be credited to Government in the treasury by the Court in the manner prescribed in rule (iii) above.

(xiii) Purpose for which Kanungo or Patwari Muharrir can be utilized.--

The officer-in-charge and the Court must understand that the Special Kanungo or Patwari Muharrir is to be used only for the purpose of obtaining information which is not readily available. Thus he must not be asked to prepare copies of pedigree-tables or of histories of villages, which can be obtained from the Copying Agency. Nor must he be required to search for instances in support of or against an alleged custom, or be used as a local Commissioner.

(xiv) Kanungo or Patwari Muharrir to report when he is utilized against rules.--

The Special Kanungo or Patwari Muharrir should report at once to the officer-in-charge any case in which he considers that rule (xiii) is being infringed.

(xv) Duty of officer-in-charge.-- It is the duty of the officer-in-charge to control generally the work of the Special Kanungo or Patwari Muharrir and the use made of him by the Courts and to report any irregularities to the District Judge.

(xvi) Inspection Book.-- An inspection book in form C for recording notes on inspection of Courts will be maintained and kept in the office of the District Judge. But it may be used either by him or by the officer-in-charge.

(xvii) Duty of District Judge.-- The District Judge is expected to watch the system carefully and to record his inspection notes in this inspection book.

REGISTRAR A . - (For Special Kanungo or Patwari Muharrir)

1.	Serial No.	-
2.	Date of receipt of summons from Court.	-
3.	Name of Court.	-
4.	Number and year of institution of suit.	-
5.	Names of parties.	-
6.	Date fixed for hearing.	-
7.	Brief description of kind of evidence required.	-
8.	Amount of evidence fee and consolidated excerpt fee recovered in advance.	-
9.	Date of receipt.	-
10.	Amount of additional excerpt fee recovered at the hearing.	-
11.	Date of receipt.	-
12.	Total of columns 8 and 10	-
13.	Attestation of the Presiding Officer of the Court.	-
14.	Remarks	-

NOTE :- Column 12 should be totalled six-monthly

REGISTRAR B. - (For Courts)

1.	Serial No.	-
2.	Number and year of institution of suits	-
3.	Names of parties	-
4.	Brief description of kind of evidence required	-
5.	Date of application.	-
6.	Date of hearing.	-
7.	Amount of evidence and consolidated excerpt fee recovered in advance	-
8.	Date of receipt.	-
9.	Amount of Additional excerpt fee recovered at the hearing	-
10.	Date of recovery	-
11.	Total of columns 7 and 9	-
12.	Attestation of the Presiding Officer of the Court	-
13.	Date of credit into the Treasury.	-
14.	Remarks	-

NOTE :- Column 11 should be totalled six-monthly

Register C -- (For Inspection Notes by District Judge and Officer-in-charge).

Serial No.	Number and year of case	Name of Court	Date of Inspection	Remarks, and order, if any, passed
1	2	3	4	5
-	-	-	-	-

Note:- The register will be kept in the office of the District Judge, but will be used either by him or by the officer-in-charge for record-inspection notes.

CHAPTER 10

COMMISSIONS AND LETTERS OF REQUEST

PART A -- GENERAL INSTRUCTIONS

1. Reference to C. P. C.-- The general law as to Commissions and Letters of Request is contained in Section 75 to 78 and Order XXVI of the Code of Civil Procedure, and the Forms to be used are Nos. 7 or 8 of Appendix H of Schedule 1.

2. Fees of Commissioner.-- Applications for the issue of Commissions should be made as early as possible. Notice of any such application should be given to the other side. If the application is granted, the Court should fix a sum for the expenses of the Commission, which should, ordinarily, provide a reasonable fee to the Commissioner. If, at any time, the sum so fixed is found to be insufficient, it may, for special reasons, be increased by the Court. When the Commission is executed to the satisfaction of the Court, the full sum fixed should be paid to the Commissioner; but where the Commission is not executed at all or not fully or satisfactorily executed or the work done turns out to be less than was expected, it will be in the discretion of the Court to direct a less amount to be paid, or to make any other order in the matter which it thinks just and proper in the circumstances.

3. Commission for local inquiry and accounts.-- Whenever it becomes necessary in the course of a suit to appoint a Commissioner to make a local inquiry or to examine accounts (see Order XXVI), the Judicial Officer who makes the order for such appointment should write the order with his own hand, and specify therein-

(a) the precise matter of the inquiry;

(b) the reason why the evidence bearing on that matter could not reasonably have been taken in the usual way at the trial in Court. A Court cannot issue a Commission merely to save itself the time and trouble of examining witnesses.

4. Functions of Commissioners.-- The Commissioner's duties should be strictly limited by the order to such matters as taking accounts and depositions of witnesses, inspecting the land or other subject of dispute, and reporting to the Court, either by means of a map or plan, or in writing, or both, the existing physical features of the subject inspected, its boundaries and situation relative to other objects, and so on, as the case may be. The functions of the Commissioner are thus limited to procuring evidence and information for the purpose of the trial; and this evidence, including the maps, reports, and record of evidence made by the Commissioner, must be adduced in open Court before the parties, and placed on record like all other evidence. The Court has no power to depute to the Commissioner the final determination of any issue between the parties. The Court can take into consideration the report of the Commissioner, but must itself decide the issue.

5. Commissioners for partition of property.-- Under Order XXVI, Rules 13 and 14, a Commission for the partition of immovable property may be issued to such person as the Court thinks fit. Under Section 396 of Act XIV of 1882 it was apparently necessary to issue a Commission of this kind to two or more persons, but the wording of Order XXVI, Rule 14 (3), makes it clear that any Commission mentioned in Order XXVI may issue to one or more persons.

***[6. Execution of Commission in the Federally administered tribal areas.--** Commission and Letters of request intended for execution in the Federally Administered Tribal Areas and in the Provincially Administered Tribal Areas can be directly sent to the Political Agent concerned. (See Article 246 and 247 of the Constitution of Islamic Republic of Pakistan.)]

PART B -- APPOINTMENT OF COMMISSIONERS

1. List of Commissioners for recording evidence, payment of fees.--

District Judges should appoint a panel of not more than four men in each district as Commissioners for recording evidence. Such Commissioners should ordinarily be younger members of the Bar, but not men in large practice, and retired Civil Judicial Officers. But in order to ensure punctuality of the return of the Commissions, only a part of the fee should be paid in advance and the balance should be paid when the Commission is returned by the Commissioners within the period fixed by the Court.

2.

(i) Commissioners for recording evidence should normally be appointed to the panel for a period of six years or until further orders, whichever may be earlier. After six years there should normally be no re-appointment.

(ii) Official Receivers, except the Special Official Receiver attached to the High Court, should be appointed ex officio to the panel on the understanding that the appointment is until further orders or until the end of the period of appointment as Official Receiver, whichever may be earlier.

3. List to be circulated to all Courts.--

Each Court should be supplied with a copy of the panel of Commissioners in each district with their addresses. It is believed that by sending Commissions direct to Commissioners, time would be saved. District Judges are, therefore, instructed to send a copy of the list of Commissioners appointed by them to the Registrar of the High Court, so that he can consolidate the lists and issue them to all Courts.

4. Court officials not to be employed as Commissioners for local inquiry.--

Court Readers or other Ministerial Officers should never be appointed to make local investigations, such as finding out the market value of the property, etc. Such Commissions should be issued wherever possible to retired Revenue Officers or professional men, such as engineers, contractors, auctioneers and accountants. Legal Practitioners are not excluded from appointment as local investigation Commissioners, but the best man for the particular commission in question should be appointed. Revenue Officers in

service such as Tahsildars and Naib-Tahsildars should not, as a rule, be appointed when retired officers suitable for the work are available.

5. Selection of Commissioner to examine accounts.--

Commissioners to examine accounts should be selected from men competent in the particular form of accounts. It is absolutely futile to issue Commissions in a particular form of account to a person who is unable even to read the script in which those accounts are written.

6. Selection of Commissioners.--

Great care should be exercised by the Courts in selecting persons for appointment as Commissioners for the purpose of making local inquiries; and District Judges should exercise strict supervision over the action of subordinate Courts in this respect. The habitual employment of the same person should not be encouraged. The issue of Commissions to petition-writers and persons who hang about the Courts should not be permitted.

7.

The instructions contained in this chapter are administrative and are not to be regarded as binding the discretion of Civil Courts in making appointments of Commissioners.

PART C -- [COMMISSIONS FOR EXAMINATIONS OF WITNESSES IN
HYDERABAD.... ***[Omitted]

PART D -- *[ARRANGEMENT WITH COURTS OF AZAD JAMMU AND KASHMIR

- 1.** When Civil Courts in Azad Jammu and Kashmir are obliged to issue commissions to Courts in the Punjab, these will be transmitted to the District Judge concerned through the High Court of Azad Jammu and Kashmir in like manner through the District Judge to the High Court of Azad Jammu and Kashmir.
- 2.** Similarly Letters of Request issued by Courts in Punjab under section 77 of the Civil Procedure Code should be forwarded by District Judge to the High Court of Azad Jammu and Kashmir for transmission to the concerned Civil Court of Azad Jammu and Kashmir.]

PART E -- [RECIPROCAL ARRANGEMENTS WITH PUNJAB STATES.... **[Omitted]

PART F -- COMMISSIONS AND LETTERS OF REQUEST FOR THE EXAMINATION OF WITNESSES IN FOREIGN COUNTRIES

*[1. The method of obtaining evidence abroad, depends upon the question, whether the country has bilateral conventions with other countries, and, whether it has ratified the Hague Convention on the taking of evidence abroad in Civil or Commercial matters concluded on March 18, 1970. #

BILATERAL CONVENTIONS BETWEEN COUNTRIES

2. In case the bilateral conventions between the countries have been concluded the procedure provided in the conventions is to be followed. Pakistan has entered into bilateral convention with the Government of Turkey only. (The Convention is reproduced in the Appendix). Pakistan has not ratified Hague Conventions referred to above. The Conventions provide for substantially the same matters of taking evidence abroad in civil or commercial matters as the bilateral conventions referred to above do, but the Hague Convention is multilateral in its scope and operation. So far, however, it has been rarely, if at all, used either by the United Kingdom or by the countries which have ratified it and in which it has been brought into force.

3. The countries to which the Hague Convention applies are:

Czechoslovakia	The Netherlands
Denmark	Norway
Finland	Portugal
France	Sweden
Gibraltar	Uinited Kingdom
Hong Kong	United States of America
Luxembourg	United States Possessions.
Monaco	

4. There are two methods of obtaining evidence in a foreign country, namely, by a Letter of Request addressed to a foreign Court or by means of a commission appointing an individual to take the evidence, thus constituting him protanto an officer of the Court. It may be noted that the

commission has ordinarily no power to compel the attendance of a witness. He can invite the witness to present himself and give evidence. If the witness declines to do so, the commission is helpless. If on the other hand, recourse is had to a Letter of Request addressed to the Court within whose jurisdiction, the witness sought to be examined is resident it should be forwarded to the Registrar of the High Court for onward transmission to the said Court in the foreign country through Foreign Office. The Registrar of the High Court transmits the Letter of Request through the Ministry of Foreign Affairs, Islamabad to the Embassy concerned for sending the same to the appropriate Court of its own country.

5. The Letter of Request for obtaining the evidence of a resident in England is processed by the Royal Courts of Justice under the Evidence (Proceedings in other Jurisdiction) Act, 1975. On receipt of such a request, the Court passes the order appointing the special examiner usually a Barrister-at-Law to record the evidence of a witness at the Treasury Solicitor's Office. The senior Master of the Queen's Bench Division of the Supreme Court in England and Wales then informs the Registrar of the High Court of the date and the place where the witness is to be examined.

6. Pakistan is not a party to any Civil Procedure convention except the convention entered into with Turkey and, therefore, it depends entirely on the local law of the foreign country in question, whether any member of the Embassy of Pakistan is permitted to serve documents or to take evidence on behalf of the Courts in Pakistan and if so under what circumstances. Any official of the Embassy of Pakistan cannot be appointed a commission or examiner to take evidence in any case unless and until the permission of the Foreign Office has been obtained. While making such a request to the Foreign Office, the nationality of the intended witness or witnesses would be stated.

7. Commission should be issued in Form No.7, Appendix H, Civil Procedure Code. In countries where process to compel the attendance of the witness will not be issued by the local court, the words "process to compel the attendance of the witness will be issued by any court having jurisdiction on your application" should be deleted from the Form.

8. Letters of Request are addressed to the judicial authorities of the country in which the evidence is to be recorded. These authorities can enforce the attendance by civil process as the courts in Pakistan can do.]

9. ***[Omitted].

10. ***[Omitted].

11. Form.-- The Letter of Request should begin with the name of the Court issuing it and the title of the case in which it is issued.

12. Instructions for filling in form.-- The form in Appendix H should be carefully read and properly filled in after making necessary alterations. e.g:-

(a) Where *viva voce* examination is not to be made these words should be deleted.

(b) Where the consent of His Majesty's Secretary of State for Foreign Affairs is not required or where the request is not to be sent through him the note at the end of the form should be deleted.

(c) In the heading "the President and Judges of the Supreme Court of ----- (name the place)" or whatever is the correct designation of the presiding officer of the Court should be given. It should not be addressed to the Registrar of the Court or Consular Officer, etc., who are not presiding officers of the Court.

(d) The words "together with such request in writing if any for the examination of other witnesses" should be deleted where the Letter of Request is not to be returned for the examination of other witnesses.

(e) The laws of some countries, e.g. Japan, require that the parties of the case should be informed of the date fixed for the examination of the witnesses.

This naturally involves a great delay. So where it is desired that notice of the date fixed should not be given to the parties this fact should be mentioned in the Letter of Request and the words "in the presence of the agents of----- attend such examination " should be deleted.

13. When proper address is not known.-- Where the proper description of the Foreign Judicial Authority in question is not known, the

Letter of Request should be addressed to the Competent Judicial Authority in -----
----- (name of the country concerned).

14. Witnesses living in different states.-- Where witnesses reside in different states of the same country, separate Letters of Request for each state should be sent.

15. Foreign Courts not to collect evidence or appoint experts.-- Foreign Courts should not be asked in Letters of Request to name and appoint experts to give evidence, or themselves to collect evidence.

16. Mode of preparation.-- The letter of Request in duplicate should be signed by the judge or Registrar of the *[Pakistani] Court and bear the official seal of the Court. The Letter of Request in duplicate should either at the foot thereof contain a Schedule of all relevant documents forming part of such Letter of Request or be followed immediately by an Index of such documents. The first document should be a concise narrative of the action of the parties thereto and of the course to be pursued. This document and the other documents which should be as far as possible in chronological order should be numbered or lettered to correspond with the Schedule or Index mentioned above. If any of the documents in the Letter of Request are in original, the copies appearing in the duplicate letter of Request should be certified by an official of the Court that they have been examined and should bear the seal of the Court.

General

17. General.-- The following general instructions should be observed when issuing Commissions or Letters of Request:-

18. To be issued only when absolutely necessary.-- Order XXVI, Rule 5 of the Code of Civil Procedure lays down that a Court may issue a Letter of Request or Commission if it is *satisfied* that the evidence of "a person residing at any place not within *[Pakistan] is *necessary*."

Courts should, therefore, exercise proper discretion in dealing with applications for the issue of such Letters of Request and Commissions which should be granted only in exceptional cases. In suits of a comparatively petty nature it is obviously undesirable to allow the delay in disposal which is bound to result from the issue of a Letter of Request or Commission.

19. Fixing of dates.-- In no case should a precise date be fixed in the Letter of Request for the return of the service. It is impossible for a Court in *[Pakistan] to order a date before which a foreign judicial authority must execute a request which it is under no obligation to execute at all.

A sufficiently long date however (in any case not less than four months) may be fixed for the appearance of the parties before the Court in expectation of the return of the service after making allowance (a) for the time which is bound to be taken by the various channels through which the documents have to pass, and (b) the distance and means of communication between the place of residence of the witness and the place where his evidence is to be recorded and the time required for service on the person to be examined.

20. *[Omitted].**

21. *[Omitted].**

22. *[Omitted].**

23. Translation.-- Commissions and Letters of Request, interrogatories and cross-interrogatories and all other accompaniments should be translated in duplicate into English and in the language of the country where the writ is to be executed. Such translations should be certified to be correct.

24. Documents should be typed.-- All these documents should be neatly typed on superior paper and should be expressed in grammatical and properly spelt idiomatic English.

25. Signature and seal.-- The Commission and Letter of Request and all their enclosures should be signed and sealed by the Presiding Officer of the Court. The signature and seal impression should be clear.

26. Addresses of witnesses.-- The exact postal addresses and full name and description of the persons to be examined should be given in the writ of commission or Letter of Request and also in the forwarding letter or in the first document referred to in rule 16.

27. Preparation of the writ of Commission.-- A complete description of the enclosures accompanying the writ of Commission should be

given in the writ as well as in the forwarding letter and such lists should be prepared in triplicate.

***[28. Translation.--** Where the language of the country to which the commission or Letter of Request is to be sent is not English, the translation in the language of the said country of all the documents will also be provided by the party concerned for transmission alongwith Letter of Request etc.]

29. Procedure when parties are to be represented at examination.-- In cases where both parties are to be represented at the examination, the Letter of Request or Commission may be sent either without interrogatories, a request being made that the local agents of the parties be permitted to appear at the examination of the witnesses and ask or submit the questions which they desire to ask, or with interrogatories, a request being made that the local agents might be permitted to ask other supplementary questions. If neither party proposes to attend or be represented at the taking of the evidence this fact should be noted in the Letter of Request or Commission in order to avoid delay.

Note:- The names and addresses of the local agents should always be given.

30. Preparation of the writ.-- The Court sending the Commission or Letter of Request should satisfy itself that the interrogatories and cross-interrogatories which are enclosed, are legibly written in an intelligible language and all the documents to which a reference is made in them have been attached. All such documents should be duly authenticated and marks of identification should be put on them.

31. Signing, etc., of interrogatories.-- The interrogatories and cross-interrogatories should be signed by the parties and their counsel if any and should be inserted in proper sequence in the complete Letters of Request and Commission and in the certified copies of the translation.

32. Duplicate copies of documents.-- Duplicate copies of all documents should be furnished and marked as duplicate.

33. Binding of the papers.--(i) The complete Letter of Request or Commission with the accompanying documents should be on strong paper and sewn together in a parchment paper cover down the left hand side, the end of

the silk, tape or thread with which they are sewn being brought out on the front cover and the ends sealed down and the binding signed and sealed by the Judge so that there is no possibility of the removal, substitution or addition of any sheet without breaking the seal.

(ii) **Arrangement of the papers.--** The Letter of Request and accompanying documents should be in the following order:-

(a) Letter of Request.

(b) Index in English if not included in (a). This must be complete, that is to say, every document in the bundle and which follows the letter of request must be separately specified together with its serial or page number corresponding to the number opposite that document in the index or the whole bundle of documents following the letter of request must be paged consecutively. Moreover all numbers appearing at the top or foot of any page of the documents other than the number (if any) assigned to that page by the index should be deleted.

(c) Narrative if not included in (a) including, where necessary, an explanation of the reasons for the institution of two suits for the same amount.

(d) Interrogatories, cross-interrogatories and re-interrogatories. These should contain the same description of witnesses as appears in the letter of request.

(e) Other documents (in chronological order) accompanying the letter of request.

(f) Translations of (a) to (e) inclusive where necessary arranged in the same order and each one of them properly certified by an official of the Court as true translation.

(g) Duplicates of (a) to (f) inclusive and not excluding telegrams arranged in the same order and each one of them properly certified by an official of the Court as true copies.

34. Responsibility of Presiding Officer for correct preparation.-- The preparation of a Letter of Request or Commission must not be left to clerks. The Presiding Officer of the issuing Court will primarily be held responsible for its accuracy and completeness in every respect before transmission to the High Court, and it is the duty of the Superintendent to the District and Sessions Judge to examine the Letter of Request and Commission and its accompaniments carefully and to see that all instructions have been complied with.

35. ***[Omitted].

36. Points of examination of witnesses should be specified.-- Letters of Request and Commission should always set forth a clear and concise explanation of the exact points on which it is desired that the witnesses should be examined.

PART G – COMMISSIONS AND LETTERS OF REQUEST.....***[Omitted.]

PART H -- LETTERS OF REQUESTS AND COMMISSIONS ISSUED BY FOREIGN COURTS

*[Section 78 and rules 19 to 22 of Order XXVI, Code of Civil Procedure lay down the procedure for execution of Commission issued at the instance of Foreign Courts and Tribunals.

CHAPTER 11

JUDGMENT AND DECREES

PART A -- PREPARATION AND DELIVERY OF JUDGMENTS

***[1. Early pronouncement advisable..**(a) On completion of evidence, the Court shall fix a date, not exceeding fifteen days, for hearing of arguments of parties, and the trial shall be over after such hearing.

(b) When the trial in Court is over the judge should proceed at once or as soon as possible to the consideration of his judgment. It is essentially necessary that he should do so while the demeanour of the witness and their individual characteristics are fresh in his memory. In any case pronouncement of judgment should not be delayed beyond a period of thirty days. He should bear in mind that his first duty is to arrive at a conscientious conclusion as to the true state of those facts of the case about which the parties are not agreed. The oral and documentary evidence adduced upon each issue should be carefully reviewed and considered in the judgment.]

2. Directions re: judgments.—In the preparation and delivery of judgment the attention of the Civil Courts is drawn to the following directions;-

- (1) The judgment should be written either in the language of the Court, or in English.
- (2) When a judgment is not written by the Presiding Officer with his hand, every page of such judgment shall be signed by him.
- (3) It should be pronounced in open Court after it has been written and signed.
- (4) It should be dated and signed in open court at the time of being pronounced and when once signed shall not afterwards be added or added to, save as provided by section 152, C.P.C. or on review.
- (5) If it is the judgment of any Court other than a Court of Small causes, it should contain a concise statement of the case; the points for determination, the decision thereon and the reasons for such decision.
- (6) If it is the judgment of a Court of small Causes, it should contain the points for determination and the decision thereupon.

(7) It should contain the direction of the Court as to costs.

3. Reference to evidence.— Some Judicial Officers make a practice of prefacing judgments with a memorandum of the substance of the evidence, given by each witness examined which has to be referred to. This practice is irregular, when the memorandum is in addition to that made under Order XVIII, rule 8, of the Code of Civil Procedure. All that the law requires is a concise statement of the case and not a reproduction of the evidence. The judgment should, however, be complete in itself as regards the requirements of Order XX, rule 4, or the Code, and should set forth the grounds of decision as concisely as is consistent with the introduction of all important matter. It may be necessary, in particular cases, to refer to, and give a summary of, the statements of a witness or witnesses; but, if so, such summary should be incorporated in the reasons given for the decision of the Court on the issue to which it relates. When it is necessary to refer to the evidence of a witness in the course of a judgment, the reference should be by name as well as the number of the witness.

4. Postponement.— Instances have occurred of judgments not being written until a considerable time after final arguments in a case have been heard. This practice is open to grave objection, and in any case in which judgment is not written and pronounced within 14 days from the date on which arguments were heard, a written explanation of the delay must be furnished by the subordinate Court concerned to the District Judge. This not meant to encourage a practice of reserving judgments; on the contrary, judgments should ordinarily be written as soon as arguments have been heard. It is only in the exceptional case where the court has to consider many rulings and cannot conveniently give judgment at once, that there is any justification for judgment being reserved.

5. Certificate of Postponement.—The subordinate Courts should append to their monthly and quarterly statements, a certificate to the effect that judgments have been pronounced in all cases, within a month of the hearing of the final arguments. Explanation should be given as regards any judgments not delivered within such period.

***[6. Procedure when Judge gives over charge before pronouncing judgment.—**

Every district Judge or Civil Judge proceeding on leave or transfer, must before making over the charge, sign a certificate that he has written judgments in all cases in which he has heard arguments. Should an officer be forced to lay down his charge suddenly, he shall, nevertheless write the judgments in such cases, and send them for pronouncement to his successor].

7. Persons employed for dictation of judgments.—Subordinate Courts should note that judgments are to be dictated only to persons employed for that express purpose or employed as copyist or candidates.

8. Not to be written in Court before disposal of cause list.—The practice of writing up judgments during the Court hours in the early part of the day is to be deprecated. Judgments may be written after the day's cause list has been completed.

9. Language.—Presiding Officers of Civil Courts, who are well acquainted with the English language, should write their judgments in English in appealable cases. When a Civil Judge writes his judgments in English, the decree should also be framed in the same language.

10. Translation in Urdu.— Whenever the judgment is written in the English language, and any of the parties to the suit or appeal, or, if they were represented by counsel their counsel are not acquainted with that language, the judgment must, if any of the parties so require, and unless it is the judgment of a Court of Small Causes, be translated into Urdu. The high Court has not thought it advisable to issue instructions as to when the judgment of a Subordinate Court shall be translated by the Presiding Officer and when other agency may be employed, as this is a matter which can be best settled by each District Judge for the Courts subordinate to him. District Judges are, however, requested to issue definite instructions on the subject. When the translation is not made by the Presiding Officer, he should always satisfy himself that it is correct.

11. Information of cancellation of registered instrument to be sent to registering officer.— It should be remembered that section 39 of the Specific Relief Act, 1877, requires that, when any registered instrument has been adjudged void or voidable, and the Court orders it to be delivered up and

cancelled, the Court shall send a copy of its decree to the officer in whose office the instrument was registered with a view to such office noting the fact or cancellation in his books.

12. Pronouncing judgment after death of a party.— In Order XXII, rule 6, it is provided that, if any party to a suit dies between the conclusion of the hearing and the pronounced, notwithstanding the death, and shall have the same force and effect as if it had been pronounced before the death took place.

13. Judgment not legibly written.— Judgments (when not typewritten) should always be written in a clear and legible hand. If they are not so written, such a copy should be made and placed on the record.

14. Civil powers to be disclosed in the record, judgment and decree.— Every Judicial Officer hearing or deciding a civil suit, proceeding or appeal, is responsible that the record and the final order of judgment and the decree in such civil suit, proceeding or appeal, shall disclose the civil powers which such officer exercised in hearing or deciding such suit, proceeding or appeal.

***[15. Civil Powers.**— The powers above referred to are the following;-

- (a) Civil Judge, third class.
- (b) Civil Judge, second class.
- (c) Civil Judge, first class.
- (d) Civil Judge invested with appellate powers under section 18(3) of the Punjab Civil Courts Ordinance, 1962(II of 1962).
- (e) Civil Judge invested with powers of a Court of Small Cause.
- (f) Judge, Small Cause Court]

16. *[Omitted].**

***[17. Appellate powers.**— [Section 18(3) of the Punjab Civil Courts Ordinance, 1962(II of 1962) empowers the High Court to direct by Notification that the appeals lying to the District Judge from all or any of the decrees or orders passed in any original suit by any Civil Judge shall be referred to such other Civil Judge as may be mentioned in the Notification and the appeals shall

thereupon be preferred accordingly and the Court of such Civil judge shall be deemed to be the District Court for the purposes of all appeals so preferred.

By High Court Notification No. 170-Gaz/XXI.C.6, dated 16.5.1935, the then Senior Subordinate judges of First Class of 22 Districts of the then Punjab exercising jurisdiction within respective Civil Districts were invested with the powers to hear appeals lying in the District Courts from decrees or orders passed by any Subordinate Judge in a small cause of the valuation not exceeding Rs. 500/- and in an un-classed suit of the valuation not exceeding Rs. 100/-. The district of Dera Ghazi Khan was excluded from the said notification vide Notification No. 53-Gaz/XXI.C.6 dated 26.2.1940. The district of Dera Ghazi Khan was again included in the said Notification vide Notification No. 78-Gaz/XXI.C.6 dated 5.4.1966. The Senior Civil Judges of the districts of Bahawalpur., Bahawalnagar, and Rahim Yar Khan were invested with the same appellate powers vide Notification No. 138-Gaz/XXI. C. 6 dated 30.7.1963.]

18. *[Omitted].**

19. *[Omitted].**

PART B -- PREPARATION OF DECREES

1. Points to be borne in mind.-- The decree should be framed by the Judge with the most careful attention. It must agree with the judgment, and be not only complete in itself but also precise and definite in its terms. It should specify clearly and distinctly the nature and extent of the relief granted, and what each party, affected by it, is ordered to do or to forbear from doing. Every declaration of right made by it must be concise, yet accurate; every injunction, simple and plain.

2. Directions.-- The following directions relate to the preparation of decrees:-

(i) **Date for delivery of possession of land.--** In decrees for possession of agricultural land, it should be stated whether possession is to be given at once, or after the removal of any crop that may be standing on the land at the time, when the decree is executed, or on or after any specified date.

(ii) **Appellate decrees.--** In Appellate Courts, the language used in filling in the decretal order, shall conform to the action recognised by the law, and shall direct that the decree of the lower Courts be either "affirmed," "varied," "set aside" or "reversed." In each case in which a decree is affirmed the terms thereof shall be recited, so as to make the appellate decretal order complete in itself. In varying a decree, the relief granted, in lieu of that originally granted shall be fully and accurately set out. Where a decree is reversed on appeal, the consequential relief granted to the successful party shall similarly be stated. Every decretal order shall be so worded as to be capable of execution without reference to any other document, and so as to create no difficulty of interpretation.

3. Preliminary decrees.-- Under section 2 of the Code of Civil Procedure a decree may be either "preliminary" or "final". A preliminary decree should be based on a preliminary judgment.

4. Mesne profits.-- In cases where mesne profits are asked for in the plaint, the question as to the amount thereof (if any) which should be paid to the plaintiff, in respect to the period of dispossession before and up to the date of filing the plaint, must be determined at the hearing of the suit, and decree

must specify clearly the portion of this amount which each defendant is to pay, either severally or jointly with others, to the plaintiff (Order XX, Rule 12).

5. Decree in case of compromise.-- (1) When a decree is to be passed on the basis of a compromise, the Court should order the terms of the compromise to be recorded in accordance with the provisions of Order XXIII, rule 3, Civil Procedure Code, and then pass a decree in accordance with the terms. When, however, the compromise goes beyond the subject-matter of the suit, a decree can be passed only in so far as it relates to the suit. As regards the proper form of decree in the latter class of cases, the directions of their lordships of the Privy Council in 'Hemant Kumari Devi versus Midnapur Zamindari Company' (46 I.A. 240 and 244 I.L.R. 18 Cal. 485) should be followed.

(2) **Compromise by minors.--** When any of the parties to the case are minors, care should be taken to see whether the compromise is to their benefit and record a finding to that effect if the compromise is sanctioned and made the basis of a decree.

6. Addition or substitution of Parties.-- When any parties are added or substituted in the course of the suit, care should be taken to see that their names are properly shown in the decree-sheet.

7. Decrees in certain cases.-- As regards the proper form of decree in certain classes of suits, the provisions of Order XX and Order XXIV, Civil Procedure Code, should be consulted.

8. *[Omitted].**

9. Powers of Court to be set forth.-- Every decree must set forth the powers of the officer deciding the suit.

10. Pauper suits.-- In suits by 'paupers,' when an order is passed under rules 10, 11 or 12 of Order XXXIII, a copy of the decree should be forthwith forwarded to the Collector.

11. *[Omitted].**

PART C -- DECREES IN PRE-EMPTION CASES

1. Decrees should be prepared immediately and specify the date of payment.--

Decree sheets in pre-emption suits should be prepared on the date on which the decree is passed. The decree should specify the date (it should not be a date on which the Court would be closed) by or on which the payment of pre-emption money is to be made.

It is the duty of the decree-holder to secure a copy of the decree and comply with its conditions.

2. *[Omitted].**

3. Contents of decree.-- The provisions of Order XX, Rule 14, Code of Civil Procedure, relating to the contents of the decree in a pre-emption suit, should be carefully studied. Sub-rule (2) relating to the adjudication of rival claims to pre-emption is new and requires special attention.

4. *[Omitted].**

PART D -- DECREES CONTRAVENING THE PROVISIONS OF THE PUNJAB LAND ALIENATION ACT

1. Copy to be sent to Collector.--Under section 21-A of the Punjab Land Alienation Act, every Civil Court, which passes a decree or order involving (1) the permanent alienation of his land by a member of an agricultural tribe or (2) the mortgage by a member of an agricultural tribe of his land, when the mortgagee is not a member of the same tribe or of a tribe in the same group, is required to send to the Deputy Commissioner a copy of such decree or order.

****[1-A.** Notification No.657-R dated 3rd April, 1953, has almost removed the distinction between an "agriculturist" and "non-agriculturist". The notification reads as under:-

No.657-R dated 3rd April, 1953. In exercise of the powers conferred by section 4 of the Punjab Alienation of Lands Act, 1900, as amended, and in supersession of all the notifications of the Punjab Government now in force in this behalf, the Governor of the Punjab is pleased to determine that for the purpose of the said Act, there shall be the following groups of Agricultural Tribes in the Punjab:

(1) All persons holding land as landlord or tenant or ordinarily residing anywhere in the Punjab except the Mianwali and Bhakkar Tehsils of the Mianwali and Bhakkar Districts respectively, the Kot Adu and Layyah Tehsils of the Muzaffargarh and Layyah District, Khushab Tehsil of the Shahpur District, shall be deemed to be a group of agricultural tribes.

(2) All persons holding land as landlord or tenant or ordinarily residing in the Mianwali and Bahakkar Tehsils of the Mianwali and Bhakkar Districts on the date of this notification shall be deemed to be a group of agricultural tribes.

(3) All persons holding as landlord or tenant or ordinarily residing in the Kot Adu and Layyah Tehsils of the Muzaffargarh and

Layyah Districts on the date of this Notification shall be deemed to be a group of agricultural tribes; and

(4) All persons holding land as landlord or tenant or ordinarily residing in the Khushab Tehsil of Shahpur District on the date of this notification shall be deemed to be a group of agricultural tribes.]

PART E -- AWARD OF COSTS IN CIVIL SUITS

1. General rule.—The general rule as to the award of costs in civil suits is that costs follow the event of the action; that is, the costs of the successful party are to be paid by the party who is unsuccessful.

2. When costs may be disallowed.— A wide discretion, however, is given to the Court to grant or withhold or apportion costs as it thinks fit. This discretion is to be exercised judiciously, e.g., ;-

Costs or a portion thereof may be disallowed to a successful party and he may even be liable to be burdened with costs in the following cases;-

- (a) Where a party has without just cause resorted to litigation.
- (b) Where a party has raised an unsuccessful plea or answer to a plea (such as fraud, limitation, minority, etc.) without sufficient grounds.
- (c) In cases mentioned in Order XXIV, rule 4, C.P.C. when a defendant deposits money in satisfaction of the claim.
- (d) Whenever the demand, whether of debt or damages or property claimed, is excessive or is only successful to a small extent.
- (e) In cases where notice to admit facts or documents has not been given (See Chapter I-F, paragraph 13 of this volume).

When notice to admit documents or facts has been given under Order XII, rules 2 and 4 of the Code of Civil Procedure to a party and it has withheld its admission without sufficient cause it must bear the costs incurred by the other party in providing the documents or facts whatever the result of the suit may be.

3. When costs shall be disallowed.—Costs shall be disallowed—

- (a) in a suit or proceeding relating to a loan where the Court finds that the creditor has failed to regularly record and maintain an account as required by section 3 (1) (a) of the Punjab Regulation of Accounts Act, 1930. (See section 4 of the Act);
- (b) when a creditor sues for recovery of a debt in respect of which a certificate has been granted by the Debt Conciliation Board----(vide section 20(2) of the Punjab Relief of Indebtedness Act of 1934); and
- (c) as against a minor or a person of unsound mind, where such a person has not been represented by a next friend or guardian.

(Order XXXII, rules 2, 5(2) and 15 of the Civil Procedure Code.) In such cases pleaders may under certain circumstances be made personally liable for costs.

4. Reasons for disallowing costs to be recorded.—Whenever the Court orders that costs shall not follow the event, it must record its reasons. (Section 35(2), civil Procedure Code).

5. Costs of applications.—In disposing of applications made under the Civil Procedure Code the Court may award costs at once to either party or may postpone its consideration to a later stage.

6. Expenses included in costs.-- The Code of Civil Procedure is silent as to what expenses are to be considered, as included in the term “costs.”

Such expenses ordinarily fall under the following heads;-

- (a) Court-fee stamps on all necessary petitions.
- (b) Process-fees.
- (c) Expenses of proving and filing copies of necessary documents.
- (d) Pleader’s fees.
- (e) Charges incurred in procuring the attendance of witnesses, whether such witnesses were summoned through the Court or not.
- (f) Expenses of Arbitrators and Commissioners.

Pleader’s fees are regulated by the rules contained in chapter 16 of this Volume—
“Legal Practitioner.”

Note:- Charges incurred on inspection of records (for one inspection only may be included in costs).

***[7. Compensatory costs for false or vexatious claims or pleas.—**

The provision of section 35-A, Civil Procedure Code, 1908, is to be applied with utmost care and discrimination. The Court must satisfy itself and record in writing its reasons that there are definite grounds for believing that the claim or plea is false or vexatious to the knowledge of the party by whom it has been put forward. Mere failure to prove the pleas or claims is not sufficient.

Under the powers conferred by sub-section (2) of section 35-A, Code of Civil Procedure, 1908, the High Court has directed that the amount, which any

Court or class of Courts is empowered to award as costs by way of compensation, shall be limited as follows;-

- (a) Court of Civil Judges 3rd Class- Rs. 1000/-
- (b) Court of Civil Judge 2nd Class- Rs. 2500/-
- (c) Court of Civil Judge First Class shall be guided by the provision of sub-section(2) of section 35-A of the Code.]

PART F -- AWARD OF INTEREST IN CIVIL SUITS

1. * [Provision in Act XXVIII of 1855.-- The law relating to interest should be carefully studied, particularly the following enactments:-

- (a) Punjab Relief of Indebtedness Ordinance, 1960 (XV of 1960);
- (b) Punjab Money-lenders Ordinance, 1960 (XXIV of 1960);
- (c) Code of Civil Procedure, 1908 *[sections 34, 34-A, 34-B and 35(3)];
- (d) The Contract Act, 1872 (IX of 1872). (section 74);
- (e) The Punjab Usurious Loans Ordinance, 1959 (XVIII of 1959)].

2. ** [Omitted].

3. Future interest.-- Section 34 of the Code of Civil Procedure enacts that where and in so far as a suit is for a sum of money due to the plaintiff, the Court may, in the decree, order interest at such rate as the Court deems reasonable to be paid on the principal sum adjudged, from the date of the suit to the date of the decree, in addition to any interest adjudged on such principal sum for any period prior to the institution of the suit; with further interest on the aggregate sum so adjudged from the date of the decree to the date of payment. It will be observed that by this section, a discretion is given in respect of two periods of time; viz., from the date of the suit to the date of the decree, and from the date of the decree to the date of payment.

**** [3-A.** Where the Court is of the opinion that a suit was instituted with intent to avoid the payment of any public dues payable by the plaintiff or on his behalf, the Court may, while dismissing such suit, make an order for payment of interest on such public dues at the rate of two percent per annum above the prevailing bank rate.

3-B. Where the Court is of the opinion that the recovery of any public dues from the plaintiff was unjustified, the Court may, while disposing of the suit, make an order for payment of interest on the amount recovered at the rate of two per cent, per annum, above the prevailing bank rate.]

4. Interest on costs.-- Section 35(3) of the Code of Civil Procedure also empowers the Court to give interest on costs at any rate not exceeding six per centum per annum.

5. Future interest.-- In awarding interest subsequent to the date of the decree, the Courts, in the exercise of the discretion, which the law has conferred, should not ordinarily award a rate of interest approaching in amount that which may be obtainable in common dealings by persons who have not the security of a decree of Court to enforce payment. No inducement should be given to decree-holders to allow their decrees to remain unexecuted. The practice of the High Court, in ordinary cases, is not to award interest after decree at a higher rate than six per centum per annum

6. Penal interest.-- The plea is often raised that the "interest" claimed is "penal". Courts should be careful to distinguish between high or excessive interest and "penal" interest. The mere fact that the rate of interest is high or that compound interest is charged is, by itself, no justification under the Contract Act for its reduction unless some other ground such as coercion, undue influence, etc, is established (see 101 and 124 P.R. 1918, P.C.). There is no definition of "Penalty" given in the Contract Act but its nature is indicated in section 74 of that Act. It would appear from that section that if a sum is named in a contract as the amount to be paid in the event of a breach of the contract or where there is any other stipulation in the contract making a person liable for an extra sum (e.g., in the shape of interest), for which he would not have been otherwise liable, the stipulation is to be considered penal. According to section 74 of the Contract Act, in such cases, the person entitled to claim advantage of the penal clause can recover only such reasonable compensation not exceeding the penalty, as the Court may think it fit to award, and cannot legally enforce the payment of the "Penalty" as such.

7. Penal interest.-- The question, whether a particular stipulation is or is not "Penal" is to be determined by the Court on the facts of each case. It has been held generally that a stipulation, which imposes a higher rate of interest in the event of a breach of the contract with retrospective effect from the date of contract, is "Penal" (e.f. 99 P.R. 1894).

8. Effect of Usurious Loans Ordinance.-- * [The Punjab Usurious Loans Ordinance, 1959,] gives wider powers to Courts to interfere on equitable grounds in order to do justice between the parties when it is found that inter alia the transaction was, as between the parties thereto, substantially unfair (vide

section 4 of the Act). In such cases the Act empowers the Court to re-open past transactions and relieve the debtor from liability in respect of excessive interest, etc. Attention is invited in this connection to I.L.R. VIII Lah. 205. The provisions of the Ordinance should be carefully studied and used in proper cases coming within its purview.

***[9. Changes made by Punjab Relief of Indebtedness Ordinance.--** The Court can grant relief in any suit to which the Punjab Usurious Loans Ordinance, 1959, applies where the interest is excessive or the transaction, as between the parties, was substantially unfair. The Court, according to the wording of section 4 of the Punjab Usurious Loans Ordinance, 1959 shall exercise all or any of the powers specified therein. The Ordinance further prescribes the maximum rate of interest beyond which the Court shall deem interest to be excessive.

The maximum limit--

(a) for secured loans, shall be -

(i) 7.5% per annum simple interest, or

(ii) more than two per cent over the bank rate,

whichever is higher at the time of taking the loan; and

(b) for unsecured loans, shall be--

12.5% per annum simple interest.]

10. Rule of Damdupat.-- Except in the case of a loan advanced by a registered Bank or by a company the rule of Damdupat has now been made applicable to the Punjab by section 30 of the Punjab Relief of Indebtedness Act, 1934, in suits brought against a "debtor" as defined in section 7 of the Act.

(a) If the loan was borrowed after the commencement of this Act, the Court cannot pass a decree for a sum larger than twice the amount advanced as principal.

(b) If the loan was contracted before, the Court cannot grant a decree for a sum larger than twice the amount which the Court finds to have been due at the commencement of the Act.

****[10-A. Non-applicability of provisions of rule 10.--** (1) The provisions contained in paragraph 10 are not applicable to the loans advanced by any bank which is a scheduled Bank as defined by State Bank of Pakistan or any

banking company registered under Companies Ordinance, 1984, or any co-operative society duly Registered under any law for the time being in force or credit institution to be notified by the Government in this behalf.

(2) No Court can pass or execute a decree or give effect to an award in respect of debt for a larger sum than twice the amount of the sum found by the Court to have been actually advanced less any amount already received by the creditor. (See section 3 of the Punjab Relief of Indebtedness Ordinance, 1960)].

11. ***[Omitted].

12. ***[Omitted].

13. Interest disallowed if accounts not maintained.-- If the Court finds, that the accounts have not been maintained as prescribed, it must disallow the whole or a portion of the interest found due as it thinks fit, and also disallow costs.

14. Interest disallowed if accounts not furnished.-- If the accounts have been maintained but not furnished to the debtor as prescribed, the Court must disallow interest for the whole period for which the creditor failed to furnish the accounts unless the creditor actually furnished the accounts after the time prescribed and can satisfy the Court that he had some sufficient cause for not furnishing them earlier.

**[(See Section 15 of the Punjab Money Lenders Ordinance, 1960 (XXIV of 1960)].

15. Interest permissible in case of certificate by Debt Conciliation Board.-- It should also be noted that where any creditor sues in a Civil Court for the recovery of debt in respect of which a Debt Conciliation Board had granted a certificate under section 20 (1) of the Punjab Relief of Indebtedness Act, 1934, the Court cannot allow any costs or interest after the date of certification in excess of simple interest at six per centum per annum on the amount due on the date of such certificate.

16. ***[Omitted.]

CHAPTER 12 EXECUTION OF DECREES

PART A -- GENERAL

1. *References.-- The law relating to execution of decree is to be found in section 36 to 56, 58, 60 to 74, 82 and 135 and Order XXI of the Code of Civil Procedure as amended by the Lahore High Court (vide Chapter 22 of this Volume). These provisions should be carefully studied and strictly followed. The changes introduced by the Punjab Relief of Indebtedness Act 1934 (VII of 1934), the Punjab Relief of Indebtedness Ordinance, 1960 (XV of 1960) and the Punjab Debtors Protection Act, 1936 (II of 1936) also require careful consideration.]

2. Special day to be reserved for execution work.-- Execution of decrees should receive the same attention from the Courts as original civil work and should be methodically and regularly dealt with, as promptly as possible. Where parties have to be heard or evidence recorded in the course of execution proceedings, notice should be given, processes issued and dates fixed as in the case of original suits. As a rule one day during the week should be reserved for execution work so as to ensure proper attention being paid to it; sometimes two days are necessary. District Judges are responsible for seeing that proper arrangements are made for execution work by all Courts subordinate to them.

3. All orders to be recorded by the Judge in his own hand.-- All orders passed in execution proceedings shall be carefully and distinctly put on record, and, with the exception of purely formal orders, -- which, however, must be signed by the Presiding Officer of the Court, -- shall be recorded by the presiding Judge with his own hand.

4. Distribution of execution work by District Judges.-- District Judges should record standing orders regulating the distribution of applications for the execution of decrees among the Courts subordinate to them, providing for the disposal of cases in which decrees were passed by officers who have ceased to be attached to the district, and for carrying on the execution proceedings already pending before such officers at the time of their ceasing to

be employed therein. In framing such orders, every Court should be required, as far as possible, to execute all decrees passed by itself; but, where this is not possible and it is necessary to send the decree to another Court for execution, care should be taken to see that the decree is not in excess of that Court's limits of pecuniary jurisdiction as an Original Court, as by section 39 (2) Code of Civil Procedure the pecuniary jurisdiction of a Court in execution proceedings is limited to the amount of its pecuniary jurisdiction as an Original Court.

5. District Judge to see that execution work is not neglected in lower Courts.--

Close supervision and control should be exercised by District Judges over the execution of decree business pending in all Courts subordinate to them; and where any officer is found habitually to neglect this branch of work or to dispose of it in a perfunctory manner, he should be reported to the High Court.

6. Application for stay of execution.-- All applications for stay of execution should be treated as urgent.

7. Presiding Officer to see that money realised on warrants has been accounted for.-- To prevent defalcation, Presiding Officer should, while hearing execution applications, verify by personal inspection of previous warrants issued by him that any money previously realised by the execution bailiff or process-server has been duly accounted for in the Nazirs account or otherwise disposed of through those accounts.

PART B -- COURTS COMPETENT TO EXECUTE DECREES

1. Courts competent to execute.-- Section 37 to 39 of the Code of Civil Procedure define the Courts by which a decree may be executed. A decree may be executed by "the Court which passed it", or by any Court to which it is transferred for execution. It should be noted that the expression 'Court which passed a decree' has been defined in section 37 so as to include certain Courts other than the Court which actually passed the decree.

2. Transfer of decree, fees for preparation of necessary documents.-- When a decree is transferred by the Court which passed it to another Court for execution, the documents mentioned in Order XXI, Rule 6, must be sent to the latter Court. The work in connection with the preparation of these documents should be done by Court officials holding permanent appointments, on payment in the first instance, by the person applying for the transfer of the decree, of a fee of Re. 1. The amount so recovered shall be credited to Government under the head ["1230000 -- Law & Order Receipts, 1231000 -- Justice, 1231003 -- Justice-General Fees. Fines & Forfeitures (74)".]

A decree-holder, however, may, at his option, file with his application a copy of his decree duly stamped in accordance with Article 7 of Schedule I to the Court-fees Act VII of 1870, and when he does so, he shall be exempted from the fee of Re. 1 prescribed in this paragraph, the remaining documents being prepared by the officials of the Court without further payment by the decree-holder.

2-A. Execution pending receipt of order of transfer of decree.-- A provision has been made in Order XXI, Rule 10, Civil Procedure Code, as amended by the Lahore High Court, to enable the decree-holder to apply for immediate execution through the Court within whose jurisdiction the judgment-debtor, is, by producing merely the decree and an affidavit of non-satisfaction pending the receipt of a formal order of transfer under section 39, Civil Procedure Code.

3. Channel of transmission of decrees transferred.-- Where the Court to which a decree is to be sent for execution is situate within the same district as the Court which passed the decree, the Court passing the decree, shall

send the same *directly* to the former Court. But, where the former Court is situate in a different district the Court, which passed the decree, shall send it to the *District Court*, of the district in which the decree is to be executed. (Order XXI, Rule 5 of the Code).

4. Execution of transferred decree.-- Under Order XXI, Rule 8 of Code of Civil Procedure, 1908, a decree sent under the provisions of section 39 for execution to another district may be executed either by the District Court to which it is sent, or by any Subordinate Court of competent jurisdiction to which the District Court may refer it, and under section 42, C.P.C. the Court executing the decree has the same powers of execution as if the decree had been passed by itself. The execution files of such cases should remain with the record of the Court by which the decree is executed, and should not be returned to the Court by which the decree was passed.

5. Amount realised on transfer of decrees to be certified and noted.-- A certificate showing the extent to which the decree has been executed is required, by section 41 of the Code of Civil Procedure, 1908, to be sent to the Court which passed the decree, as to execution so certified, and the particulars should be entered in that Court's register of Civil suits under the head 'Return of Execution' in order to prevent a double execution being taken out in any other district.

6. Register of decrees transferred and decrees received by transfer.-- As a further safeguard, and to ensure due compliance with the provisions of Order XXI, Rule 6 of the Code of Civil Procedure, 1908, a register should be maintained in each district showing the decrees transferred to other Courts for execution, and those received from other Courts. The register should be in two parts and in the form prescribed; one part of the register should be reserved for decrees transferred to other Courts, and the other half for decrees received from other Courts.

PART C -- POWERS OF EXECUTING COURTS

1. Mode of execution Receivers.-- The various modes in which execution of a decree may be ordered are given in section 51 of the Code as follows:--

- (a) By delivery of any property specifically decreed.
- (b) By attachment and sale, or by sale, without attachment of any property.
- (c) By arrest and detention of the judgment-debtor.
- (d) By appointment of a Receiver; or
- (e) In such other manner as the nature of the relief may require.

In most cases, the methods specified in (a), (b) and (c) alone are resorted to and are found adequate. The appointment of a Receiver may be tried where the value of the property is sufficient to bear the cost and where such appointment is expected to be conducive to harmonious relations between the judgment-debtor and the decree-holder and to provide for the discharge of the decree in a satisfactory manner.

1-A. Execution of a decree for delivery of property.-- When it is sought to enforce a decree in Clause (b) by attachment of the judgment-debtor's property, it should be noted that the period of six months prescribed by Rule 31, sub-rule (2) of Order XXI, Civil Procedure Code, for the sale of the property has been reduced to three months by the Lahore High Court.

The Court is empowered, however, to extend this period up to six months in any special case.

The period of six months mentioned in Order XXI, Rule 32 Civil Procedure Code, has also been reduced to three.

2. Power of executing Court to question the validity of the decree.-- An executing Court cannot go behind the decree or question the jurisdiction of the Court which passed it (22 P.R. 1919, I.L.R., V. Lah. 54). Its function is to execute the decree as it stands. It may, however, refer to the judgment to ascertain its meaning when the terms of the decree are ambiguous.

3. Power of executing Court to decide question arising in execution.-- Section 47 of the Code of Civil Procedure confers wide powers on

the executing Court to decide all questions arising between the parties to the suit in which the decree was passed, or their representatives, and relating to the execution, discharge or satisfaction of the decree. Such questions must be decided by the executing Court and no separate suit is maintainable for the purpose.

*[An order under rules 60, 98, 99, 101 and 103 of Order XXI Civil Procedure Code is to be deemed to be a decree and is, therefore, appealable.]

4. Execution of decree pending appeal.-- The filing of an appeal from a decree, is by itself no bar to its execution, and execution may proceed unless it is stayed by an order of the Appellate Court or the Court which passed the decree (*vide* Order XLI, Rules 5 and 6). It should be noted, however, that when an order is made for the sale of immovable property during the pendency of the appeal, and the judgment-debtor applies for stay of the sale, the Court ordering the sale is bound to stay it, though it can impose such terms as to security or otherwise as it thinks fit *[Order XLI, Rule 6(2)].

5. Security when execution is stayed.-- When a stay of execution is granted under Order XXI, Rule 26, Civil Procedure Code, the rule, as amended by the Lahore High Court, makes it compulsory for the Court to require security or impose such conditions as it thinks fit unless sufficient cause is shown to the contrary.

PART D -- PAYMENT INTO COURT AND CERTIFICATION OF PAYMENTS OUT OF COURT

1. Payment or adjustment need not be certified.-- Order XXI, Rule 2(1) provides that, where money is paid or a decree is adjusted out of Court, the creditor shall certify the payment. Rule 2(2) provides that the judgment debtor may do so. Rule 2(3) provides that a payment or adjustment, which has not been certified, shall not be recognised by the executing Court.

***[Omitted].

2. Application to deposit decretal amount requires no stamp and no talbana required for notice to decree-holder.-- No stamp duty shall be levied on an application by a judgment-debtor to deposit money under a decree of Court, and no *talbana* for the issue of the notice to be given to the decree-holder under Order XXI, Rule 1(2) of the Code of Civil Procedure, should be recovered. The decree-holder should be informed of any payment made by service post-card. The deposit money should be disposed of in accordance with Article 247 of the Civil Account Code, Volume I and paragraph 161 of the Punjab Treasury Manual.

3. Payment by money order special form.-- Under the "Explanation" to sub-rule (i) of Rule 1 Order XXI, of the First Schedule to the Civil Procedure Code, a judgment-debtor may, if he so desires, pay the decretal amount or any part thereof, into the Court by money order on a form which has been specially approved by the High Court. The form to be used is Pakistan Money Order form No. L./M.O. 6 prescribed by the Postal authorities and can be obtained from all Post Offices.

PART E -- PROCEDURE ON APPLICATION FOR EXECUTION

1. Form and contents.-- An application for execution must be in writing except when an oral application is made under Order XXI, Rule 11 (i). Upon an application for execution being filed, the Court shall scrutinize it to see that all the requirements of Order XXI, Rules 11 (2), 12, 13 and 14 of the Code of Civil Procedure, 1908, have been duly complied with. The application should state distinctly the mode in which the assistance of the Court is sought and the proceedings should be confined to that mode, unless any amendment has been allowed. When an application is for the attachment of immovable property, special care shall be taken that the specification and verification required by Order XXI, Rule 13, of the Code have been furnished. The Court may also require the applicant to produce the authenticated extract mentioned in Order XXI, Rule 14, when the property is land registered in the Collector's office.

***[2. Limitation.--** The law of limitation, as regards applications for execution, found in Article 181 of the First Schedule of the Limitation Act, 1908 (IX of 1908) and section 48 of the Code of Civil Procedure, 1908 (V of 1908), needs careful attention. An application for execution must be filed within three years of the date of the final decree but no order for execution of a decree can be passed if an application presented more than six years after certain dates specified in section 48 of the Code of Civil Procedure. This section only bars execution for a specified time but the rights of the decree-holder in other respects are not affected. Section 48 of the Code lays down a maximum period of limitation after the expiry of which it is not open to a decree-holder to make a fresh application for the execution of the decree. The presentation of fresh application for the execution of the decree is prohibited but the Court can make order in execution proceedings which have been presented before the expiry of such period even after the expiry of the period of six years.

By section 11 of the Punjab Debtors Protection Act, 1936, the period of limitation is also six years in certain cases specified therein.]

2-A. Restrictions placed by Punjab Relief of Indebtedness Act.-- The restrictions imposed by section 21 (b) of the Punjab Relief of Indebtedness Act, 1934, on the power of a Civil Court to execute its decrees in certain

circumstances should be carefully noted. The decrees passed by a Civil Court in certain cases cannot be executed during the period provided for payment in an agreement authenticated by a Debt Conciliation Board under section 17 of the Act and for a further period of six months thereafter. The restriction applies only to decrees passed in suits brought--

(i) by an unsecured creditor for the recovery of debt in respect of which a certificate has been granted by the Board under section 20 (1) of the Act, or

(ii) by any creditor for the recovery of a debt incurred after the date of agreement made under section 17 of the Act.

3. Admission and further proceeding.-- When the application for execution is in order, or has been amended under Order XXI, Rule 7, of the Code of Civil Procedure, 1908, and is within time, the Court shall proceed as directed in Order XXI, Rule 17 (4), and shall cause the application to be entered in the proper register. A copy of the decree need not be filed when execution is taken out in the Court by which the decree was passed. If in any case it is not possible to verify the correctness of the application from the Court register, the original decree should be sent for and examined by the Court.

3-A. Amendment.-- It should be noted that according to Order XXI, Rule 17 (1) Civil Procedure Code, the Court can either reject the application if it is not in order or allow the defect to be remedied. The Lahore High Court has amended this rule so as to make it compulsory for the Court to fix a time within which the defect shall be remedied.

4. Duty of Court to ascertain the amount due.-- Whenever, on an application for the execution of a decree, or whenever, in the course of execution proceedings, it is necessary to ascertain the amount of money which is or which remains due under the decree, the judicial officer should form his own conclusion on the matter therefrom. He should not rely on mere *kaifyats* or office notes made by ministerial officers.

5. Several Decree holders.-- When an application is made to a Judicial Officer, under Order XXI, Rule 15, of the Code of Civil Procedure for the execution of the whole decree by one or more persons not being all the persons in whose favour the decree appears to be, he should cause notice thereof to be given to the remaining decree-holders or their representatives, and he

ought not to grant the application unless, after all these parties have had an opportunity of being heard, he is satisfied that there is good reason for the application.

6. Several decree-holders.-- Where the decree is *severally* in favour of more persons than one, specifying what each is entitled to, there may be applications for partial execution. But where the decree is *jointly* in favour of more persons than one, the application must be for the execution of the entire decree, so far as it remains unexecuted or unsatisfied, and if the application is for execution of a fraction or a proportionate part of the decree only, it should be refused.

7. Transferee.-- When an application for the execution of a decree is made, under the provisions of Order XXI, rule 16, of the Code of Civil Procedure, by a person claiming to be entitled to the benefit of the decree in consequence of a transfer of the same to him from the original decree-holder by an assignment in writing, the Court must cause notice of the application to be given to the transferor, and it cannot grant the application unless it is satisfied after the transferor has had an opportunity of being heard that the transfer has in fact been effected.

In cases in which the Court grants the application, it should record its reasons for so doing and make an order that thenceforward the name of the applicant shall stand on the record as decree-holder instead of that of the original decree-holder.

8. Notice to judgment debtor.-- When an application is made more than two years after the date of the decree or against the legal representatives of a party to the decree, the Court must first issue a notice to the person against whom execution is applied for requiring him to show cause why the decree should not be executed against him, unless the case falls within the proviso to sub-rule (1) of Rule 22 of Order XXI, or the Court dispenses with the notice under sub-rule (2) of the same Rule in which latter case the failure to record any reasons is now deemed to be only an irregularity not amounting to a defect in jurisdiction (*vide* the rule as amended by the Lahore High Court).

9. Attention to service of process.-- Attention is invited to the provisions of Order XXI, Rules 24 and 25, regarding process for execution.

Rule 24 requires that in every case a day shall be specified on or before which the process is to be executed. Rule 25 makes it incumbent on the Court to examine the officer entrusted with the execution, when the process is not duly executed, to satisfy itself as regards the reasons for its non-execution and to record the result of its inquiry. If the Courts make careful inquiry in such cases and do not blindly accept the reports on the processes, the percentage of infructuous applications will appreciably diminish.

9-A. Address for service.-- It should be noted that according to Order XXI, Rule 104, Civil Procedure Code, as framed by the Lahore High Court, service on any party shall be deemed to be sufficient in execution proceedings if it is effected at the address for service referred to in Order VIII, Rule 11, Civil Procedure Code, subject to the provisions of Order VII, Rule 24, Civil Procedure Code. This rule, however, does not apply to notices prescribed by Order XXI, Rule 22, Civil Procedure Code, to show cause against execution in certain cases.

10. Period of Pendency.-- Execution proceedings will, for statistical purposes, be considered as only pending for the period during which something is being done towards execution. If the decree-holder has realized his instalment, or obtained the satisfaction asked for in the application for execution, the case should be struck off, even though a portion of the decree still remains unexecuted. Similarly, the case should be dismissed if the applicant for execution does not take necessary steps to prosecute his application. The Court should record its reasons for the action taken in such cases.

11. Attachment of moneys due to judgment-debtors.-- A case in which the judgment-creditor prays for a prohibitory order for the attachment of moneys due to the judgment-debtor (whether as a moiety of his salary or otherwise), should be dismissed as soon as the prohibitory order has been duly served and the file should be sent to the Civil Nazir. The subsequent realisation of the moneys concerned forms part of the ministerial duties of the Civil Nazir. If, for any reason, such realisation is not promptly and satisfactorily effected, the judgment-creditor can ask the Court to take necessary action.

PART F -- EXECUTION BY ARREST AND IMPRISONMENT

1. ^{***}[Omitted].

2. ^{***}[Omitted].

^{*}**[3. Present law of arrest.--** No Judgment-debtor, as defined in Section 2(c) of the Punjab Relief of Indebtedness Ordinance, 1960, (XV of 1960) shall be arrested in execution of a decree for money (Section 5 of Ordinance XV of 1960). These changes should be carefully studied and followed.]

4. Judgment-debtor should be asked whether he wants to be declared insolvent.-- A judgment-debtor against whom no act of bad faith is proved can obtain his discharge as an insolvent under Act V of 1920; whenever a judgment-debtor is to be committed to jail, he should be informed that he may apply to be declared insolvent (Section 55 (3) of the Code).

5. ^{***}[Omitted].

6. Arrest during vacation.-- Warrants of arrest should be held in suspense during the ^{*}[August] Vacation.

PART G -- EXECUTION OF DECREES FOR THE DELIVERY OF IMMOVABLE PROPERTY

The steps to be taken, under Order XXI, Rules 35 and 36 of the Code of Civil Procedure, 1908, in the case of the delivery of immovable property are as follows:-

(a) **When the property is in possession of a person who is bound by the decree or who holds-possession on behalf of one who is so bound.--** *First*, where a decree is for delivery of immovable property, if such property is in the possession of any person bound by the decree, such person may be called upon to vacate the property in order that possession may be delivered to the person to whom it has been adjudged, or his agent; and if he refuses to do so he may be removed from the property in order to effect such delivery of possession. Here the endorsement on the warrant should state that the property was found in the possession of A (naming the person), and that he was one of the persons bound by the decree or held on behalf of one of those persons (naming the persons); that he was required to vacate the property, and that, on his doing so, the person entitled under the decree was put in possession; or that, on his refusal to do so, he was removed from the property, and the person entitled under the decree was put in possession.

(b) **Decree for joint possession.--** *Secondly*, where a decree is for joint possession of immovable property, such possession shall be delivered by affixing a copy of the warrant in some conspicuous place on the property, and proclaiming by beat of drum at some convenient place the substance of the decree. Here the endorsement on the warrant should state on what part of the property the copy of the process was affixed, and at what place the substance of decree was proclaimed.

(c) **Obtaining access to deliver possession.--** *Thirdly*, where possession of any building or enclosure is to be delivered, and the person in possession, being bound by the decree, does not afford

free access, the officers of the Court may (after giving reasonable warning and facility to any woman, not appearing in public according to custom, to withdraw) remove or open any lock or bolt or break open any door or do any other act necessary for putting the decree-holder in possession.

Here the endorsement should describe briefly the action taken, as in paragraph (a) above.

(d) When property is in possession of a person who is not bound by the decree.-- *Fourthly*, if the property is in the occupancy of a tenant or other person entitled to occupy it and not bound by the decree to relinquish such occupancy, a copy of the warrant must be affixed in some conspicuous place on the property, and proclamation made as provided in Order XXI, Rule 36 of the Code. Here the endorsement should state that a copy of the warrant had been put up (stating where it was affixed), and that the substance of the decree had been proclaimed.

Before issuing a warrant for the delivery of immovable property, the Court should ascertain from the decree-holder, or his agent, the name of the person whom he believes to be in possession of such property to guide it in selecting the particular mode of delivery suitable to the case.

When a decree is passed giving possession of agricultural land, the date on which possession is to be delivered should always be specified in the decree, and orders passed as to any standing crops that may be on the land. If this has not been done in the decree, it should be done in the order which is sent to the Collector by the Court executing the decree. If, however, no date is specified in either the decree or the order, and the land of which possession is to be delivered is in the cultivating possession of the judgment-debtor, the Collector should at once refer to the Civil Court for instructions as to whether or not he is to delay execution of the decree, until any crop which may have been sown by the judgment-debtor and is standing on the land, has been removed.

PART H -- ATTACHMENT

1. Attachment of standing crops, trees and salary.-- The law as to attachment is contained in sections 60-64 and Order XXI, Rules 41-57, Civil Procedure Code, and Section *[170, Punjab Land Revenue Act, 1967(XVII of 1967).]

The changes made in Rules 53 and 54 by the Lahore High Court (vide Chapter *[22] should be noted as also the fact that in the Punjab standing crops, excepting cotton and sugarcane, are not now liable to attachment or sale in execution of a decree. Standing trees (apart from land) are also exempt from sale (vide section 10 of the Punjab Debtor's Protection Act).

Attention is drawn to Act IX of 1937 amending Section 60, Civil Procedure Code, which provides that the salary of any public officer or of any servant of a Railway Company or local authority shall be exempt from attachment to the extent of the first hundred rupees and one-half the remainder of such salary in respect of any proceedings arising out of any suit instituted on or after the 1st June, 1937. Attachment orders should contain the information whether the suit was filed before or after the 1st June, 1937.

2. Mode of attachment of immovable property.-- The mode of attaching immovable property is by issuing a prohibitory order to the judgment-debtor and to the public generally (Order XXI, Rule 54). When the property is land paying revenue to Government, three copies of the prohibitory order shall be prepared. In the case of other immovable property, only two copies are necessary. The details given in the schedule annexed to the order shall be identical with those given in the schedule of the property given in the warrant. Strict compliance with provisions of law is necessary to make the attachment valid.

3. Mode of attachment of immovable property.-- The warrant, together with the requisite copies of the prohibitory order, shall be delivered to the Nazir, who will himself, or through his subordinates, fix up the copies and proclaim the order, in accordance with the directions given in the warrant. The Nazir will personally make upon the warrant the endorsement required by law, and return it duly endorsed within the specified time to the Court. Any person deputed by the Nazir, who performs any of the acts constituting the attachment,

shall submit a separate return stating the manner in which, and the day and hour at which, he did such act. This return will be attached by the Nazir to the warrant.

4. Attention to compliance with legal formalities.-- The attention of all civil courts is drawn to the necessity of making it a point to scrutinize the service of warrants of attachment before they take further action with regard to the sale or temporary alienation of the property attached. The attachment of land and houses requires particular care and the court should thoroughly satisfy itself that all the formalities, necessary for a legal attachment, have been complied with. Failure to comply with these legal formalities may constitute material irregularity within the meaning of Order XXI, Rule 90, Code of Civil Procedure, and may cause very serious trouble and loss to the parties later on. It should be noted that a copy of the attachment order is first to be affixed on the property and then upon the Court house. All Courts will, therefore, require the Reader to record a note on the warrant of attachment or on file, that the specific formalities, required by law in the case, have been actually complied with. The Presiding Officer will carefully scrutinize such note and initial in token of its correctness.

5. Warrant of attachment of land. Drum-beating charges.-- Where the order is for the attachment of land, the warrant should, in accordance with the provisions of Section *[170] of the *[Punjab Land Revenue Act, 1967 (XVII of 1967)], be addressed to the Collector and be sent to him for execution along with the necessary copies of the prohibitory-order. The Collector and his office will then be responsible for executing it in accordance with the specified legal formalities and to affix necessary prohibitory-orders, first on the property and then on the Court-house of the Judge, issuing the attachment, and in his own office. The collector will return the warrant to the Court concerned when it has been duly executed, with an endorsement under his signature certifying that all the legal formalities required have actually been complied with and the Court will, thereafter, proceed as directed in paragraph 4 above.

*[Payment of drum-beating charges may be allowed to be made at the discretion of the District Judge.]

6. Precept.-- Upon the application by a decree-holder, the Court which passes a decree may issue a precept to another Court to attach the judgment-debtor's property, when this course is convenient, provided that the Court to which the precept is issued is competent to execute the decree (see Section 46, Code of Civil Procedure).

7. Effect of dismissal of execution petition.-- It should be noted that on the dismissal of an execution petition, 'attachment' automatically comes to an end (see Order XXI, Rule 57).

8. The Central Government has issued the following notification under section 60 (1) (I) of the Civil Procedure Code :-

The 2nd October 1940.

No. 186/37.- In pursuance of clause (I) of the proviso to sub-section (1) of section 60 of the Code of Civil Procedure, 1908 (Act V of 1908), the Central Government is pleased to declare that the following allowances payable to any public officer in the service of the said Government, or any servant of a Federal Railway or of a Cantonment authority or of the port authority of a major port, shall be exempt from attachment by order of a Court, namely:-

- (1) All kinds of travelling allowances.
- (2) All kinds of conveyance allowances.
- (3) All allowances granted for meeting the cost of --
 - (a) uniforms, and
 - (b) rations.
- (4) All allowances granted as compensation for higher cost of living in localities considered by Government to be expensive localities including hill stations.
- (5) All house-rent allowances.

9. The Punjab Government has issued the following notification under clause (I) of the proviso to sub-section (1) of Section 60 of the Code of Civil Procedure:-

HOME DEPARTMENT JUDICIAL

The 5th January 1943.

No. 8298-J-42/489-In exercise of the powers conferred by clause (I) of the proviso to sub-section (1) of Section 60 of the Code of Civil Procedure, 1908 (Act V of 1908), the Governor of the Punjab is pleased to declare that the "Dearness allowance" payable to any public officer serving His Majesty in connection with the affairs of the Province shall be exempt from attachment in execution of a decree.

PART J -- OBJECTIONS TO ATTACHMENT

***[1. Summary Procedure.--** Investigation of objections to attachment of property under Order XXI Rule 58, Code of Civil Procedure, 1908, should be confined to the points indicated in Rules 59, 60 and 62 of the said Order. It is to be remembered that the order passed under Rule 60 is now to be treated as a decree and is appealable and no separate suit lies to establish right, title or interest claimed in the attached property.

2. Power to dismiss objections without trial.-- (1) The amendment made in Rule 58 of Order XXI of the Code of Civil Procedure, 1908 (V of 1908), should be carefully noted and followed.....Where any claim is preferred or any objection is made to the attachment of any property, attached in execution of a decree, on the ground that such property is not liable to such attachment, the Court is to investigate the claim or objection treating the same as if it was a suit and the claimant was party to it as now under Rule 62 of Order XXI Code of Civil Procedure an independent suit is barred. The Court will, however, not make any investigation where it appears to it that the claim or objection (whether made before or after the sale) has been designedly or unreasonably delayed or was not made within reasonable time or within one year of the date of first attachment of the said property in the execution of said decree, whichever is earlier, unless the claimant or objector-

(a) proves title acquired in good faith and for consideration subsequent to the date of the first attachment;

(b) proves that his predecessor-in-interest, whether his interest existed at the time of such attachment or was acquired thereafter, fraudulently omitted to make a claim or objection; and

(c) impleads all such predecessors-in-interest.

(2) **Postponement of sale.--** When the property to which the claim or objection applies, has been advertised for sale, the Court ordering the sale may postpone it pending investigation of the claim or objection.]

3. Objection by Parties.-- Order XXI, Rule 58, deals with claims by third persons. Objections by parties to execution proceedings as such or their representatives fall within the scope of Section 47 of the Code. Such objections must be decided in the execution proceedings, as a regular suit for the purpose is barred by the provisions of Section 47.

PART K -- CUSTODY AND DISPOSAL OF MOVABLE PROPERTY PENDING SALE

1. References.-- Rules relating to the custody and disposal of movable property (other than agricultural produce) attached pending sale, are contained in Rules 43 to 43-D of Order XXI of the First Schedule to the Code of Civil Procedure (Act V of 1908), as modified or added by the High Court which are reproduced below for facility of reference:-

Code of Civil Procedure, First Schedule (RULES MADE BY THE HIGH COURT UNDER SECTION 122, OF THE CODE) Order XXI, Rules 43 to 43-D

43. Attachment of movable property other than agricultural produce in possession of judgment-debtor.-- (1) Where the property to be attached is moveable property other than agricultural produce, in the possession of the judgment-debtor, the attachment shall be made by actual seizure, and the attaching officer shall keep the property in his own custody or in the custody of one of his subordinates, and shall be responsible for the due custody thereof:

When property may be sold at once.-- Provided that, when the property seized is subject to speedy and natural decay or when the expense of keeping it in custody is likely to exceed its value, the attaching officer may sell it at once; and

Livestock and other articles which cannot be conveniently removed:

Superdar.-- Provided also that, when the property attached consists of livestock, agricultural implements or other articles which cannot conveniently be removed, and the attaching officer does not act under the first proviso to this Rule, he may at the instance of the judgment-debtor or of the decree-holder or of any person claiming to be interested in such property leave it in the village or place where it has been attached-

(a) in the charge of the person at whose instance the property is retained in such village or place, if such person enters into a bond in Form No. 15-A of Appendix E to this Schedule with one or more sufficient sureties for its production when called for, or

(b) in the charge of an officer of the Court, if a suitable place for its safe custody be provided and the remuneration of the officer for a period of 15 days at such rate as may from time to time be fixed by the High Court be paid in advance, or

(c) in the charge of a village lambardar or such other respectable person as will undertake to keep such property, subject to the orders of the Court if such person enters into a bond in Form No.15-B of Appendix E with one or more sureties for its production.

(2) **Restitution.**-- Whenever an attachment made under the provisions of this Rule ceases for any of the reasons specified in Rules 55, 57 or 60 of this order, the Court may order the restitution of the attached property to the person in whose possession it was before attachment.

(3) **Schedule of property.**-- When property is made over to a custodian under sub-clauses (a) or (c) of clause (1), the Schedule of property annexed to the bond shall be drawn up by the attaching officer in triplicate, and dated and signed by-

- (a) the custodian and his sureties,
- (b) the officer of the Court who made the attachment,
- (c) the person whose property is attached and made over, and
- (d) two respectable witnesses.

One copy will be transmitted to the Court by the attaching officer and placed on the record of the proceedings under which the attachment has been ordered, one copy will be made over to the person whose property is attached and one copy will be made over to the custodian.

43-A. When property kept in the village.-- (1) Whenever attached property is kept in the village or place where it is attached, the attaching officer shall forthwith report the fact to the Court and shall with his report forward a list of the property seized.

(2) **When property removed to Court.**-- If attached property is not sold under the first proviso to Rule 43 or retained in the village or place where it is attached under the second proviso to that Rule it shall be brought to the Court-house and delivered to the proper officer of the Court.

(3) **Resignation by custodian.--** A custodian appointed under the second proviso to Rule 43, may, at any time, terminate his responsibilities by giving notice to the Court of his desire to be relieved of his trust and delivering to the proper officer of the Court the property made over to him.

(4) **Receipt to be given to custodian.--** When any property is taken back from a custodian, he shall be granted a receipt for the same.

43-B. Foddering of livestock.-- (1) Whenever attached property kept in the village or place where it is attached is livestock, the person at whose instance it is retained shall provide for its maintenance and, if he fails to do so and if it is in charge of an officer of the Court, it shall be removed to the Court-house.

Nothing in this Rule shall prevent the judgment-debtor, or any person claiming to be interested in such stock from making such arrangements for feeding the same as may not be inconsistent with its safe custody.

(2) **Recovery of expenses.--** The Court may direct that any sums which have been expended by the attaching officer or are payable to him, if not duly deposited or paid, be recovered from the proceeds of property, if sold or be paid by the person declared entitled to delivery before he receives the same. The Court may also order that any sums deposited or paid under these Rules be recovered as costs of the attachment from any party to the proceedings.

43-C. Expenses to be paid in advance by decree-holder.-- When an application is made for the attachment of livestock or other movable property, the decree-holder shall pay into Court in cash such sum as will cover the costs of the maintenance and custody of the property for 15 days. If within three clear days, before the expiry of any such period of 15 days the amount of such costs for such further period as the Court may direct be not paid into Court, the Court, on receiving a report thereof from the proper officer, may issue an order for the withdrawal of the attachment and direct by whom the costs of the attachment are to be paid.

43-D. Liability of Superdar.-- Any person who has undertaken to keep attached property under Rule 43 (1) (c) shall be liable to be proceeded against as a surety under section 145 of the Code and shall be liable to pay in execution proceedings the value of any such property willfully lost by him.

FORM NO.15-A
BOND FOR SAFE CUSTODY OF MOVABLE PROPERTY ATTACHED
AND LEFT IN CHARGE OF PERSON INTERESTED AND SURETIES
Order XXI, Rule 43

In the Court of ----- at-----
 Civil suit No.----- of-----

A.B. of-----

against

C.D. of-----

Know all men by these presents that we, I.J. of-----
 ---, etc., and K.L. of----- etc., and M.N. of-----etc., are jointly and severally
 bound to the Judge of the Court of-----in Rupees----- to be
 paid to the said Judge, for which payment to be made, we bind ourselves, and each
 of us, in the whole, our and each of our heirs, executors and administrators, jointly
 and severally by these presents.

Dated this----- day of----- 19-----

And whereas the movable property specified in the schedule hereunto annexed has
 been attached under a warrant from the said Court, dated the-----day of-
 ----- 19-----, in execution of a decree in favour of-----
 ----- in the suit No.----- of----- 19-----on the file of---
 ----- and the said property has been left in the charge of the said I.J.

Now the condition of this obligation is that, if the above bounden I.J. shall duly
 account for and produce when required before the said Court all and every the
 property aforesaid and shall obey any further order of the Court in respect thereof,
 then this obligation will be void: otherwise it shall remain in full force.

I.J.

K.L.

M.N.

Signed and delivered by the above bounden----- in the
 presence of-----

FORM NO. 15-B
BOND FOR SAFE CUSTODY OF MOVABLE PROPERTY ATTACHED
AND LEFT IN CHARGE OF ANY PERSON AND SURETIES
Order XXI, Rule 43 (1) (c)

In the Court of ----- at-----Civil suit No.-----
 ----- of-----

A.B. of-----

against

C.D. of-----

Know all men by these presents that we, I.J. of-----
 ---, etc., and K.L. of----- etc., and M.N. of-----etc., are jointly and
 severally bound to the Judge of the Court of-----in Rupees-----
 ---- to be paid to the said Judge, for which payment to be made, we bind ourselves,
 and each of us, in the whole, our and each of our heirs, executors and
 administrators, jointly and severally by these presents.

Dated this----- day of----- 19-----

And whereas the movable property specified in the schedule hereunto annexed has
 been attached under a warrant from the said Court, dated the-----day of-
 ----- 19-----, in execution of a decree in favour of-----
 ---- in the suit No.----- of-----19-----on the file of-----
 ---- and the said property has been left in the charge of the said I.J.

Now the condition of this obligation is that, if the above bounden I. J. shall duly
 account for and produce when required before the said Court all and every of the
 property aforesaid and shall obey any further order of the Court in respect thereof,
 then this obligation shall be void: otherwise it shall remain in full force and be
 enforceable against the above bounden I.J. in accordance with the procedure laid
 down in Section 145, Civil Procedure Code, as if the

aforesaid I.J. were a surety for the restoration of property taken in execution of a decree.

I.J.

K.L.

M.N.

Signed and delivered by the above bounden----- in the
presence of-----

2. Jewels and portable property to be brought to Court.--Light and readily portable articles of all kinds, and especially valuable property of small bulk, such as jewels, etc., shall, after seizure, be taken to the head quarters of the Court executing the decree and be made over there to the custody of such officer as the Court may direct.

Note:- Property of the nature described in this rule when placed in the custody of the Nazir may be placed by him in his cash chest and lodged in the outer room of Treasury, if it is open, as provided in order 4(2) of the Punjab Treasury Manual; if it is closed, the Presiding Officer of the Court must make other suitable arrangement for its safe custody.

3. Bulky property and Livestock.--Live Stock and other property which is bulky or not readily portable should be dealt with in accordance with the second proviso to Rule 43.

4. Form of schedule of property.-- The schedule of property to be annexed to the bond which a custodian must furnish under the above-mentioned Rule must be in the following form:-

Schedule of property attached

Schedule of property attached and made over to-----son of -----
 ----- of----- as custodian on the -----
 --- 19-----.

Detail of property	Estimated value.
Sd.-----	Total value-----
Witness.	Sd.-----
Sd.-----	Custodian.
Witness.	Sd.-----
	Attaching Officer
	Sd.-----
	Judgment-debtor

(TO BE PRINTED ON THE REVERSE OF THE FORM)

Directions in regard to attached property

I. No person can be compelled by the Court or attaching officer thereof to take charge of attached property as a custodian.

II. A custodian may at any time terminate his responsibilities by giving notice to the Court of his desire to be relieved of his trust, and delivering to the proper officer of the Court the property made over to him.

III. When any property is taken back from a custodian he should be granted a receipt for the same.

IV. When property is made over to a custodian, a schedule of property should be drawn up by the attaching officer in triplicate, dated and signed by--

- (a) the custodian and his sureties;
- (b) the officer of the Court who made the attachment;
- (c) the person whose property is attached and made over; and
- (d) two respectable witnesses.

One copy will be transmitted to the Court by the attaching officer and placed on the record; one copy will be made over to the person whose property is attached and one copy will be made over to the custodian.

V. In regard to livestock the following directions apply:-

(a) The custodian is bound to take all reasonable and proper care of any livestock entrusted to him.

(b) The custodian is responsible for the value of any livestock which he fails to deliver to the Court or its authorised officer, when required so to do. If any live-stock is lost or stolen or dies while in the hands of a custodian such custodian is bound to satisfy the Court that its loss or death was not due to his fault or neglect.

(c) If the judgment-debtor or any person claiming to be interested in any attached animal has been permitted to make arrangements for feeding the same (not being inconsistent with its safe custody, while it is under attachment) he may, in the case of poultry, milch cows, etc., take the eggs, milk, etc.

5. Arrangement for feeding to be noted on Schedule.-- Whenever attached property kept in the village or place where it is attached is live-stock, a note shall be added on the schedule to show what arrangements have been made for its keep, i.e., whether it is to be fed by the custodian and, if so, at what charge or by the judgment-debtor or any person interested. If it is to be fed by the judgment-debtor or a person claiming to be interested as permitted by Rule 43-B (1) of Order XXI, the arrangements made should be described on the Schedule to show that they are not inconsistent with its safe custody.

6. Arrangements when value of property is liable to deteriorate.-- If the property is of such a nature that its value will deteriorate unless special arrangements are made for its storage or for carrying out some preparatory process during the period of attachment, the necessary arrangements shall be made and noted at the foot of the schedule; *provided* that, if in such cases the judgement-debtor and decree-holder agree in writing to the immediate sale of the property, the officer shall proceed to sell it by auction forthwith, after giving such notice to intending purchasers as the circumstances of the case allow.

7. Arrangements subject to approval of Court.-- All arrangements made under these rules shall be made subject to the approval and confirmation of the Court executing the decree.

8. Modification of arrangements.-- If the arrangements made by the attaching officer are modified by the Court, a note of the modifications ordered shall be made on the schedule and such note shall be signed by the parties who originally signed the schedule or a fresh schedule shall be prepared in the manner provided above according as the Court may direct.

9. Release of property.-- If the Court directs the release of the property, in whole or in part, the articles released shall be made over to the person to whom the Court orders them to be delivered, by an officer of the Court, in the presence of the custodian, judgment-debtor and the witnesses mentioned; or, if their presence cannot be conveniently obtained, two other respectable witnesses.

10. Reclamations.-- If any reclamations are then made, a note of such reclamation shall be made at the time by the officer of the Court, and such note shall be signed by the person making them. The statements of the custodian and witnesses shall, likewise, be recorded on the subject by the officer of the Court, and shall be signed by such custodian and witnesses.

11. Custodian liable for criminal breach of trust.-- Any person who has undertaken to keep attached property under Rule 43(1)(c) of Order XXI shall not only be liable to be proceeded against as a surety under Section 145 (*vide* Rule 43-D), but if the facts disclose that he has been guilty of 'criminal breach of trust', he will also be liable to be prosecuted for that offence.

12. Instructions regarding attachment of property which is not left in local custody.-- Instructions laid down in Rule 43 to 43-D of Order XXI refer, in the main, to cases in which attached property is not removed from the town or village in which it is found by the attaching officer. In cases in which the property is not left in local custody, the attaching officer should still, in order to avoid, as far as possible, resistance or obstruction and to facilitate the disposal of claims be careful to attach the property in the presence of two respectable house-holders of the village or town where the attachment is made and to draw up a schedule of property attached and to procure their signature to it.

PART L -- SALE OF PROPERTY AND DELIVERY TO THE PURCHASER

1. References.-- The provisions of Act V of 1908 on the subject of sales are contained in Order XXI, Rules 64 to 102 as amended by the Lahore High Court (*vide* Chapter 22). Rules 64 to 73 deal with "sale generally"; Rules 74 to 81, with sale of movable property; and Rules 82 to 102, with sale of immovable property.

2. Settlements of proclamation of sale.-- Whenever a Court makes an order for the sale of any attached property under Order XXI, Rule 64, it shall, if the property be land assessed to land revenue, revenue-paying or revenue free land, or any interest in such land, act as directed in the rules hereinafter prescribed. If the property be of any other description, the Court shall fix a convenient day, not being distant more than fifteen days, for ascertaining the particulars specified in Order XXI, Rule 66 (2), and settling the proclamation of sale. Notice of the day so fixed shall be given to the parties or their pleaders.

***[3. Enquiry as to encumbrances from Sub-Registrar's office.--** (1) If the property be immovable property (other than revenue-paying or revenue-free land), the Court may call upon the Sub-Registrar, within whose sub-district such property is situated, to search his registers and report, before the date fixed for settling the proclamation, to what encumbrances, if any, the property is liable. It is very desirable that such searches should be ordered in all cases, with a view to the preventing of fraud, but it should be noted that they cannot be ordered if the decree-holder is not willing to pay the necessary fees. The fees payable are at the rates prescribed in the second proviso to Article II of the table of registration fees published with Punjab Government notification No. 2818-73/2013-St-I, dated 28th June 1973, which is as follows:-

In exercise of the powers conferred by sections 78 & 79 of the Registration Act, 1908, the Governor of the Punjab is pleased to substitute the existing rates of Registration-fee with the following table of Registration-fees which shall take effect from 1st of July, 1973:-

ARTICLE II.-- For inspections or searches by the registering officer under section 57-

(1) search for or inspection of a single entry or document -

(a) for the first year in the books of which search is made, for each entry or document.....Rs.2.00;

(b) for every other year in the books of which search is continued, for each entry or document.....Rs.0.50;

(2) general search for or inspection of any number of entries or documents relating to one and the same property or executed by or in favour of one and the same individual -

(a) for the first year in the books of which search is made..... Rs.4.00;

(b) for every other year in the books of which search is continued.....Rs.1.00;

Provided that no search fee shall be charged in respect of a document of which a copy is applied for when the names of the claiming and executing parties, the nature and date of documents and the date of registration are shown in the application for the copy;

Provided further that if a search is made at the request of a Civil Court for the purpose of ascertaining whether a specified property is encumbered or not, the fee to be levied in each such case shall be at the rates prescribed by clause (1) above, subject to the condition that a fee of not more than ten rupees shall be so levied.]

4. Settlement of proclamation of sale. Estimate of value.-- On the day so fixed, the Court shall, after perusing the documents, if any, filed under Order XXI, Rules 13 and 14, of the Code, and the report referred to in the preceding paragraph, after examining the decree-holder and judgment-debtor, if present, and after making such further inquiry as it may be considered necessary, settle the proclamation of sale specifying as clearly and accurately as possible the matters required by Order XXI, Rule 66(2), of the Code, in the following form:-

Description of property including name of village and boundaries, if necessary	Name of judgment-debtor	Extent of interest of judgment-debtor in the property, so far as it has been ascertained by the Court	Detail of encumbrances, if any, to which the property is liable so far as they can be ascertained by the Court	Any other known particulars bearing on the nature and value of the property

This proclamation for sale is an important part of the proceedings, and the details should be ascertained and noted with care. This will remove the basis for many a belated objection to the sale at a later stage.

It is necessary for the Court itself to give in this proclamation its own estimate of the value of the property. It is sufficient to include in it the estimate, if any, given by either or both of the parties (Proviso added to Order XXI, Rule 66 (2) (e) by the Lahore High Court).

*[The proclamation, when settled, shall be signed by the Judge, and shall be made in the manner prescribed by Order XXI, rule 67 of the Code. The rule added by the Lahore High Court may be noted and applied where applicable.

It should be noted that an interval of fifteen days must elapse between the date of the sale and the date of the proclamation being affixed on the Court-house and on the property, in the case of immovable property, and an interval of seven days must elapse, in the case of movable property. However, the judgment debtor can, by consent in writing, permit the sale to be held earlier. (See Order XXI, Rule 68 of the Code, as amended by the Lahore High Court.)].

5. Information obtained after proclamation.-- If, after the proclamation has been published, any matter is brought to the notice of the

Court which it considers material for intending purchasers to know, the Court shall cause the same to be notified to intending purchasers when the property is put up for sale.

6. Costs of proclamation.-- The costs of the proceedings hereinbefore prescribed shall be paid, in the first instance, by the decree holder; but they shall be charged as part of the costs of execution, unless the Court, for reasons to be specified in writing, considers that they should, either wholly or in part, be omitted therefrom.

7. Grant of time to debtor to arrange private alienation.-- Attention is called to the provisions of Order XXI Rule 83, of the Code, which confers on the Court the power of postponing, at the instance of the judgment-debtor, a sale of immovable property in execution of decree, if it is satisfied that the amount of the decree may be raised by mortgage or lease or private sale of such property or of any other property of the judgment-debtor. Care must be taken that this power is not so exercised as to inflict an injury on the decree-holder.

In clause (3) of Rule 83 quoted above it is expressly laid down that the Rule does not apply to a sale of property directed to be sold in execution of decree for sale in enforcement of a mortgage of, or charge on, such property.

8. Adjournment of sale.-- The sale shall be held at the time and place specified in the proclamation, unless the Court adjourns it to a specified day and hour, or the officer conducting the sale (with the leave of the Court, if the sale is made in or within the precincts of the Court-house) adjourns it for reasons which must be duly recorded. Whenever a sale is adjourned for a longer period than thirty days, a fresh proclamation shall be made, unless the judgment-debtor consents to waive it.

9. Purchase at auction by decree-holder or officer connected with auction.-- Attention is drawn to Order XXI, Rule 73, of the Code of Civil Procedure, 1908, which directs that an officer having any duty to perform in connection with any sale in execution of a decree, shall not directly or indirectly bid for, acquire, or attempt to acquire any interest in the property sold; and to Order XXI, Rule 72, of the Code, which prohibits the holder of a decree in

execution of which property is sold from bidding for or purchasing the property without the express permission of the Court executing the decree.

10. Decree-holder need not pay sale money.-- Clause (2) of Rule 84 of Order XXI enables the Court to dispense with the deposit of earnest-money when the decree-holder is the purchaser and is entitled to set-off the purchase-money under Rule 72. Rule 86 makes the forfeiture of earnest money optional.

11. Submission of statements of forfeiture of earnest money.-- For procedure regarding submission of statements of forfeiture of deposits see Volume IV, Chapter 10-A, para. 6.

12. Purchase money: its payment to decree-holder or its refund. Refund of commission.-- "Purchase-money" deposited in Court upon the sale of immovable property shall be retained by the Court until the expiry of a period of fifteen days from the date of the order confirming the sale. If no notice of an appeal having been presented by the party seeking to set the sale aside, be given to the Court within that period, the purchase money less the sum which has to be credited to Government or paid to the Court Auctioneer as commission on the sale (see paragraph 21) may be paid on the demand of the decree holder. If such notice be given within the prescribed period, the purchase money shall be retained in deposit until the appeal is decided, unless the party at the time entitled to receive it gives security, to the satisfaction of the Court, to repay it at any time when he may be required by the Court so to do.

12-A. The changes introduced by the Lahore High Court in Order XXI, Rule 89, Civil Procedure Code, require careful attention (*vide* chapter 22).

13. Application to set aside sale.-- Applications for setting aside sales are frequently made under Order XXI, Rule 90, Civil Procedure Code. An application under this Rule can be made not only by the decree-holder or a person entitled to rateable distribution in the assets but also by any person "whose interests are affected by the decree." But the grounds on which such an application can be made are restricted and should be carefully borne in mind. An application under this Rule can only be made on the ground of material irregularity or fraud in publishing or conducting the sale, and, secondly, it must be proved that the applicant has suffered substantial injury as a result of the

material irregularity or fraud complained of. Both these conditions must be satisfied before any sale is set aside under this Rule. It has been provided further in the Punjab that no sale can be set aside on any ground which the applicant could have put forward before the sale was conducted. An application under this Rule must be made within 30 days of the sale (Art. 166--Schedule I, of the Limitation Act, 1908).

14. Application by purchaser to set aside sale.-- Order XXI, Rule 91, of the Code of Civil Procedure 1908, enables the purchaser at a sale of immovable property in execution of decree to apply to the Court to set aside the sale on the ground, that the debtor had no saleable interest therein. Such an application must also be made within thirty days from the date of the sale (see Article 166, Schedule I to the Limitation Act, IX of 1908). It should be noted that the Rule applies only when the judgment-debtor has no interest at all in the property sold but not when he has some interest at any rate in it, however small that interest may be.

15. Confirmation of sale: Appeal.-- If no application to set aside the sale is made under Rules 89, 90 or 91 within thirty days or the application is disallowed, the Court must confirm the same. An appeal lies from an order confirming or setting aside a sale, but no separate suit is maintainable to challenge such an order. (Order XXI, Rule 92)

16. Refund to purchaser.-- When such a sale is set aside under Order XXI Rule 92, rule 93 provides for the recovery and repayment to the purchaser of the purchase-money. The Court should not refer him to a separate suit for the money paid by him, which should be recovered (if necessary) and refunded to him, subject to the provisions of paragraph 22.

17. Certificate of sale.-- When a sale of immovable property has become absolute, the Court shall grant a certificate stating the property sold and the name of the person who at the time of the sale, is declared to be the purchaser. This certificate should be in the prescribed form, and must bear the date of the confirmation of the sale and be stamped, at the expense of the purchaser, in conformity with the provisions of chapter II, Part B, and Article 18 of Schedule I-A of the Stamp Act, II of 1899, as amended by Punjab Act, VIII of 1922. When the terms of the certificate have been finally settled, the

draft shall be signed by the Judge and placed with the record of the execution proceedings and the certificate granted to the purchaser (which should be in exact conformity with such draft) shall be engrossed on the stamp paper, free of copying charge. Instances have occurred where the purchaser has not taken his certificate, but has asked merely for a draft certificate to be appended to the file of execution, his idea being to use the draft certificate in proof of his title to the property purchased. Subordinate Courts are warned to guard against such subterfuges. No draft certificate should in any case be drawn up *until the stamp duty required by law has been paid*.

It should be noted that the title to the purchaser accrues from the date of the sale, though a certificate can only be granted after its confirmation.

18. Copy of certificate of sale of immovable property to be sent to Registration office.-- A copy of the certificate, whether the property sold be land or other immovable property, and without regard to the amount of the purchase-money, shall be sent to the Registering Officer, within the local limits of whose jurisdiction the whole or any part of the property is situated, to be filed in his Supplementary Book No. 1.

This copy should be drawn up in vernacular with permanent black ink.

19. Court officials for conducting sales.-- (i) Sales in execution of decree shall ordinarily be conducted by the Court Auctioneer. The District Judge may direct by special order that the sale in a particular case or cases shall be conducted by the Nazarat Staff.

(ii) **Official Receivers as Auctioneers.--** In every district, save as otherwise prescribed, the Official Receiver should ordinarily be appointed Court Auctioneer.

(iii) **Security by Court Auctioneers.--** Every Court Auctioneer shall give security in the sum of Rs. 2,000, over and above any security he may have given as Official Receiver, for the satisfactory discharge of his duties. This security shall be furnished to the satisfaction of the District Judge. The rules in Chapter 5, High Court Rules and Orders, Volume II, which govern the taking of security from Official Receivers shall, *mutatis mutandis*, apply also to Court Auctioners.

20. Procedure for return of sale warrant.-- (i) A warrant of sale shall not be delivered to the Court Auctioneer direct by the Court ordering the sale but shall be forwarded to him through the process-serving agency. After the sale the warrant and connected papers shall be returned by the Auctioneer to the process-serving Agency which shall forward it to the Court concerned.

(ii) **Sale under supervision of Court Auctioneers.--** All sales of property whose estimated value exceeds Rs. 500 shall be conducted under the general supervision of the Court Auctioneer. Sales of property whose estimated value is Rs. 500 or less may be conducted by agents of the Court Auctioneer. In all cases the Court Auctioneer is responsible for proper compliance with all legal requirements and for all the acts of his agents.

The Court Auctioneer shall each morning, supply to each Court a date-sheet showing the sales already fixed by all Courts, in order that sales, which he has to attend may not be fixed at different places on the same day.

(iii) **Deposit of sale proceeds into Government treasury.--** The Court Auctioneer shall himself deposit into the treasury all sums realised at auction sales conducted by him or his staff. All sums realised at sales conducted at places where there is a treasury shall be deposited into the treasury or the State Bank of Pakistan, as the case may be, on the first working day after the sale. The District Judge shall prescribe periods, within which the proceeds of sales conducted at other places shall be deposited. The periods so prescribed shall be reported to the High Court and shall be as short as possible.

21. Government Commission.-- (i) Commission at the following rates shall be deducted from the proceeds of sales under this Chapter:-

(a) If this sale proceeds do not exceed rupees five thousand--at five per centum.

(b) If the sale-proceeds exceed rupees five thousand--at five per centum on rupees five thousand and two and a half per centum on the remainder:

^{**}[Provided that the maximum amount of commission deductible according to the aforesaid rates shall not exceed rupees five thousand.]

(ii) If the sale is conducted by the Court Auctioneer, 80 per cent of the Commission will be paid to him and 20 per cent will be paid into the

Treasury to the credit of Government. All incidental expenditure shall be met by the Auctioneer.

(iii) If the sale is conducted by the Nazarat Staff, the whole of the commission shall be credited to Government and nothing shall be paid to the officer conducting the sale. In such cases, the expenses incurred in conducting the sale, including the cost of advertisement, must not exceed the amount of commission.

(iv) **Expenses of custody, etc.--** The expenses incurred in the care, custody and keep of attached property (as taxed by the Court) shall be a first charge on the sale-proceeds thereof, after the deduction of the commission mentioned above.

22. Charges of Court Auctioneers.-- (i) No commission shall be paid on the proceeds of sales set aside for a material irregularity in publishing or conducting the sale. The commission on the proceeds of a sale set aside for any other cause shall be paid by the person at whose instance and for whose benefit the sale is set aside and the Court Auctioneer shall be entitled to his share of such commission.

(ii) If a sale is set aside the purchase money shall be refunded in full to the Auction Purchaser unless it is set aside at his instance and for his benefit in which event the commission due under paragraph 21 shall be deducted from the sum to be refunded.

(iii) Where a sale is set aside after the commission has been paid to the Court Auctioneer, the Court shall recover it from him and shall refund it to the Auction Purchaser if he is entitled to the refund of the whole of the purchase money. In such cases the Government share of the commission shall also be refunded.

(iv) In cases in which auction sales are ordered, but not completed or do not take place at all, the Court auctioneer shall be paid only his actual expenses, provided that if there has been, in the opinion of the Court, clear negligence on the part of the auctioneer (e.g., failure to advertise, leading to absence of bidders) he will not be entitled to any compensation. The amount of actual expenses if held due under this rule will be determined by the Court and

shall be paid by the decree-holder or the judgment-debtor as the Court may direct.

23. Conduct of sale by Nazarat Staff.-- (i) Where the District Judge directs that a sale be conducted by the Nazarat Staff, the proper officer to conduct the sale is--

(a) where the sale is ordered by a Court of Small Causes-the Departmental Officer or such other officer as the Court may appoint;

(b) where the sale is ordered by a Court other than a Court of Small Causes:

(1) the Civil Nazir, for all sales ordered by Courts located at District Headquarters and for all other sales in which the value of the property to be paid sold is estimated to exceed Rs. 5,000;

(2) the Naib Nazir of the Court ordering the sale for other sales.

(ii) In every case in which the Civil Nazir is not required, under these directions or the directions of the District Judge, to conduct the sale in person, such sale may be conducted under the orders and upon the responsibility of the Civil Nazir, by a Naib Nazir deputed by him for the purpose.

(iii) When it is desirable to have the sale conducted at the place where the attached property is situate, and the property is of small value, and a Nazir or Naib-Nazir is not available for the duty, an execution bailiff may be deputed to conduct the sale.

(iv) A process-server shall not be employed to conduct a sale without the authority in writing of the Officer in charge of the Process-Serving Agency concerned. Such order shall not be made unless no other officer is available and the value of the property to be sold is estimated at Rs. 100 or less.

(v) The District Judge may issue instructions, consistent with these directions, for the further regulation of the conduct of sales by the Civil Nazir and his establishment.

24. Sale of guns or arms.-- Whenever guns or other arms, in respect of which licenses have to be taken by purchasers under the Arms Act, 1878 (XI of 1878), **[or the Arms Ordinance], 1965, and Rules thereunder, are sold by public auction in execution of decrees, the Court, directing the sale, shall give due notice to the Magistrate of the district of the names and addresses of the purchasers and of the time and place of the intended delivery to the purchasers of such arms, so that proper steps may be taken by the police to enforce the requirements of the Arms Act or the Ordinance.

25. Sale of land.-- For attachment and sale of land or interest in land see Chapter 12-M. of this Volume.

PART M -- EXECUTION OF DECREES BY THE ATTACHMENT AND SALE OR TEMPORARY ALIENATION OF REVENUE-PAYING OR REVENUE-FREE LAND

*[(1) In dealing with applications for the execution of decrees by the sale or temporary alienation of land, the provisions of the Punjab Alienation of Land Act, 1900 (XIII of 1900), and the Punjab Debtors Protection Act, 1936 (II of 1936) should not be overlooked. Attention is also drawn to section 170 of the Punjab Land Revenue Act, 1967 (XVII of 1967) and sections 68 to 71 of the Code of Civil Procedure, 1908 (V of 1908). It should be observed that land which has been built upon ceases to be land within the meaning of section 170 of the Punjab Land Revenue Act, 1967 (XVII of 1967) notwithstanding the fact that it is assessed to land revenue (see I.L.R. 1946; Lah. 52, A. I.R. 1944 Lah. 455)].

(2) The following notification has been issued by the Punjab Government under section 68 of the Civil Procedure Code:-

"In exercise of the powers conferred by section 68 of the Code of Civil Procedure, the Governor of the Punjab is pleased to declare that throughout the Punjab, in all cases in which a Civil Court has ordered any land as defined in the Punjab Tenancy Act, 1887, or any interest in such land, to be sold, the execution of the decree shall be transferred to the Collector except when the decree is one for the recovery of money specifically charged on the land ordered to be sold".

(Punjab Government, Revenue Department Notification No. 365-R dated 17th January 1939).

(3) As laid down in section 69 of the Civil Procedure Code, the provisions of Schedule III of the Civil Procedure Code apply to cases in which the execution of the decree has been transferred to the Collector.

(4) The rules framed by Government under section 70, Civil Procedure Code, are reproduced below:-

RULES

1. Definitions.-- In these rules unless there is anything repugnant in the context-

(1) "Collector" means-

(a) the Collector of the district where the land ordered to be sold in execution of the decree is situated;

(b) if the land is situated in more districts than one, the Collector of the district within the limits of which the judgment-debtor resides, or if he has no such residence, where the major portion of the land is situated;

(c) if the judgment-debtor does not reside in any such district and the areas situated in different districts are equal, the Collector before whom, in the opinion of the Court, it is more convenient for the parties to the decree to attend.

(2) "Court" means a civil Court of original, appellate or revisional jurisdiction in the Punjab.

(3) "Decree" means a decree of a civil Court not being one for the recovery of money specially charged on land.

(4) "Land" means land as specified in the notification issued by the Punjab Government under section 68 of the Code of Civil Procedure.

(5) "Schedule" means Schedule III of the Code of Civil Procedure, 1908.

2. Transmission of copies of record.-- (1) Immediately after an attachment has been made and an order passed that any land be sold in the execution of a decree, the Court shall transmit, by post, or in such other manner as may be most convenient, the following documents to the Collector:-

(i) a copy of the application for execution certified by the Court to be correct;

(ii) a certified copy of the relevant portion of the latest jamabandi showing the land attached;

(iii) a copy of the warrant of attachment along with their report of attachment;

(iv) a statement showing the extent, if any, to which the decree has been already executed and clearly setting forth what portion of the decree still remains to be satisfied, along with a statement showing, as clearly as possible, of which land and of what interests of the judgment-debtor in such land as far as they are known to the Court, sale has been ordered;

(v) any other document which in the opinion of the Court would be necessary to enable the Collector to determine the land to which sale has been ordered and the rights and interests therein of the judgment-debtor.

(2) The Court shall, if practicable, fix a date, which will ensure speedy disposal, for the appearance of the parties before the Collector. The date so fixed shall be noted on the record and communicated to such of the parties as may be present.

3. Preparation of copies and documents.-- The documents mentioned under sub-rule (1) of rule 2 shall be prepared and transmitted to the Collector free of all cost to the parties. The decree-holder shall file his application for execution in duplicate. Of these only one copy shall be stamped as required by the Court Fees Act, and the other shall be transmitted to the Collector after being certified by the Court to be correct. The copy of the warrant of attachment shall be prepared on a printed form, and the copy of the relevant portion of the jamabandi filed by the decree-holder with his application shall in original be sent to the Collector. The other statements shall be prepared by the establishment of the Court.

4. Note in register of executions and consignment of record.-- (1) The Court shall make a note in column No. 22 of Civil Register No. X(Register of Execution of Decrees) regarding the transmission and documents to the Collector and the date on which these were transmitted.

(2) On receipt of the intimation from the Collector under rule 5, the Court shall attach it to the record of the case, which shall then be consigned to the record room, unless the execution is to be proceeded with in some other respect.

5. Case to be registered.-- The Collector shall notify the receipt of the documents to the Court, and shall register the decree in a book which may be prescribed departmentally for the purpose.

6. Date of first hearing.-- The case shall be taken up by the Collector on the date, if any, fixed by the Court under sub-rule (2) of rule 2:

Provided that if on the date so fixed, the Collector be not present at his headquarters, the file shall be put up before some other gazetted revenue officer

subordinate to the Collector, or before an Assistant Collector of the first grade, if any, on duty at the headquarters, and he shall fix a fresh date for the appearance of the parties before the Collector which shall be noted and communicated as prescribed under sub-rule (2) of rule 2;

Provided further that if there be no such gazetted officer on duty in the station, the case shall come up before the Collector on his return to headquarters.

7. Delegation of powers to Sub-Divisional Officer.-- The Collector may by a written order make over, generally or in special cases, the execution of any decree transferred to him for execution to any Sub-Divisional Officer subordinate to him, who shall thereupon, in relation to the execution of that decree, act as and exercise all the powers conferred by these rules on the Collector. When the execution proceedings are over, the Sub-Divisional officer shall return the record of the proceedings to the Collector.

8. Objections as to the liability of the land ordered to be sold and its attachment to be decided by the Court.-- (1) All objections, whenever preferred regarding the liability to attachment of the land ordered to be sold, or the factum or procedure of its attachment shall be preferred to, and heard and decided by the Court transferring the decree.

(2) If any objection of the nature mentioned under sub-clause (1) above is at any time, whether during the continuance of the proceedings or thereafter, made in writing before the Collector, he shall forward it in original to the Court by which the decree was transferred:

Provided that in case the objection is preferred during the continuance of the proceedings before the Collector, further proceedings shall be suspended for such time as may be sufficient to receive directions from the Court.

(3) If after the transmission of the record under sub-rule (1) of rule 2 but prior to the confirmation of the sale or other arrangement under paragraphs 1 or 7 of the schedule, an objection about the liability of the land to, or the factum or procedure of, attachment is preferred directly before the Court transferring the decree or is received by it under sub-clause (2) above, the Court shall, if it decides to enquire into the objection, forthwith communicate its

decision, to the Collector who shall cause further proceedings to be stayed pending the disposal of the objection.

9. Court to intimate the result of objection to Collector.-- After the objection is disposed of, the Court shall communicate the result to the Collector, and if in consequence thereof any further proceedings are to be taken in the case, the Court shall, if practicable, fix a date for the appearance of the parties before the Collector, notifying the same in the manner prescribed in sub-rule (2) of rule 2.

10. Result of objection to determine further proceedings.-- (1) If the objection succeeds and the entire land is released from attachment, the Collector shall dismiss the execution case, and after, forwarding a non-satisfaction certificate to the Court he shall consign the record to the Record Room.

(2) If the attachment of the whole or a part of the land is upheld the Collector on receipt of the information shall proceed to complete the proceedings in accordance with law.

11. Procedure where the same land is ordered to be sold in two or more decrees.-- (1) If the same land is ordered to be sold in two or more decrees transferred to the Collector under sub-rule (1) of rule 2, the following procedure shall with regard to such land be observed:-

(i) If all the orders of sale have been received from the same Court, the Collector shall enquire from the Court in which particular case the main proceedings are to be held.

(ii) If the orders of sale have been received from different Courts of the same grade, the main proceedings shall be held in the case in which attachment was first effected, and an intimation about this fact shall be sent to all the other Courts.

(iii) If the orders of sale have been received from Courts of different grades the main proceedings shall be held in the case received from the Court of the highest grade, and an intimation about this fact shall be sent to all the other Courts.

(2) In the above-mentioned cases though the proceedings are to be held in one case only, the result shall ensure for the benefit of all other cases as well.

(3) If on account of the decree-holder's default, or any adjustment of the decree or any order from the Court, the case in which proceedings are being held is dismissed and such a result does not affect the connected case or cases, the Collector shall start or continue proceedings, as the case may be, in the latter cases in accordance with the above procedure.

12. Procedure where land is within the jurisdiction of two or more Collectors.--

(1) If the land to be proceeded against under these rules is situated within the jurisdiction of more Collectors than one, the Collector holding these proceedings shall forthwith intimate the factum of his having taken cognizance of the case to every other Collector within whose jurisdiction any part of the said land is situated.

(2) If at any time after the Collector has started proceedings under sub-rule (1) above, any one of the other Collectors receives under sub-rule (1) of rule 2 any decree for execution by sale of the same land, he shall after stating the above circumstances forthwith return the papers to the Court from which the decree has been received.

(3) If prior to the receipt of the intimation under sub-clause (1) above, any other Collector has also started proceedings against the same land, the following procedure shall be adopted:-

(a) If there is any difference in the areas involved in the different cases, the case involving a larger area shall proceed and the proceedings in the other case or cases shall be stopped.

(b) If there is no difference in the areas involved in different cases, the case in which proceedings were first started by the Collector seized thereof shall proceed, and the proceedings in the other case or cases shall be stopped.

(c) The Collector dealing with the case the proceedings of which have been stopped under sub-clause (a) or (b) above, shall after intimating the circumstances to the Court concerned, and issuing a non-satisfaction certificate, dismiss the execution case.

13. Enquiry by Collector.-- The Collector shall make a summary enquiry in terms of paragraph 2 of the schedule, with a view to finding out if all the liabilities of the judgment-debtor can be discharged without selling all the land available for the purpose.

14. Proceedings to be drawn up.-- As soon as the enquiry contemplated by rule 13 is completed, the Collector shall draw up the proceedings in English setting forth the steps taken by him in this connection with the result of his enquiry.

15. Sale of land.-- If the Collector comes to the conclusion that all the liabilities of the judgment-debtor cannot be discharged without the sale of the entire land available for the purpose, he shall record his opinion and proceed to sell the land ordered to be sold.

16. Arrangement Short of sale.-- (1) If the Collector comes to the conclusion that all the liabilities of the judgment-debtor can be discharged without the sale of the entire land available for the purpose, he shall record his opinion with the reasons therefor, and shall proceed as laid down in paragraph 3 or 5 of the Schedule.

(2) The Collector shall ordinarily follow the procedure laid down in paragraph 5 of the Schedule, unless the summary enquiry held under rule 13 points to conclusion that no complicated question requiring to be determined by the civil Court is likely to arise.

17. Tenancy Act procedure to be followed.-- (1) In holding the enquiry under rule 13 the Collector shall, in so far as it may be possible, follow the procedure laid down for the guidance of Revenue Officers under the Punjab Tenancy Act, 1887.

(2) In the proceedings contemplated by sub-rule (1) above, the decree-holder, the judgment-debtor and such other creditors of the judgment-debtor, if any, as may have responded to the notice under paragraph 3 of the schedule shall be given an opportunity of leading such evidence oral or documentary, as they may wish to produce.

18. Powers of Collector.-- (1) The Collector dealing with a case under these rules shall have all the powers and be subject to all the limitations regarding sale, mortgage, lease or other temporary alienation of land, the awarding of costs incurred by the parties as also costs of adjournments and the dismissal of the case, as may for the time being be exercisable by or imposed on the Court ordering the sale, and shall be competent to pass any order incidental

or relating to the execution of the decree which but for the transfer of the case could have been passed by the Court.

(2) Fees for the services of processes and fees for proclamations issued under these rules shall be levied according to scale laid down for processes and proclamations issued by a revenue Court. These fees shall in the first instance be paid by the decree-holder, or if the process or proclamation is ordered to be issued at the instance of any other person, by such person and be treated as costs in the case.

19. Proclamation of sale by public auction.-- (1) When any land is to be sold under these rules, the Collector shall cause a proclamation of the intended sale to be made in the language of the Court.

(2) Such proclamation shall be drawn after notice to the decree-holder and the judgment-debtor, and besides stating the time and place of the intended sale, it shall specify as fairly and accurately as possible--

- (a) the land to be sold;
- (b) the revenue assessment on such land;
- (c) any encumbrance to which the land is liable;
- (d) the amount for the recovery of which the sale is ordered;
- (e) the number of lots in which the Collector proposes to sell the land, if he considers that the land should not be sold in one lot, and the reserved price fixed for each lot;
- (f) every other thing which the Collector considers material for a purchaser to know in order to judge the nature and the value of the property.

Note:- If the area to which the encumbrance mentioned in clause (c) attached is more than the area mentioned in clause (a), whole of the area shall be specified in the proclamation.

(3) For purposes of ascertaining the matters to be specified in the proclamation the Collector may summon any person whom he considers necessary to summon, and may examine him in respect of any such matters and require him to produce any document in his possession or power relating thereto.

20. (1) The collector may subsequent to the drawing up of the proclamation for good and sufficient cause modify it in any respect.

(2) Where the sum total of the decretal amount to be realized and the encumbrance on the land to be sold is less than the value of the land, the Collector, when making proposals regarding the sale in lots, shall take into account only that proportion of the encumbrance which appertains to the lot or lots proposed for sale. In order, however, to give information to the intending purchaser he shall in the proclamation issued under the last rule declare the whole amount of the encumbrance and the entire property to which it pertains.

21. Publication of proclamation.-- (1) The proclamation drawn up under the above rules shall be published by beat of drum or other customary mode at some place on or adjacent to the land to be sold. A copy of the proclamation shall be affixed on or near the land to be sold, and in the Office of the Collector as also in the Court-house of the Court issuing the order for sale:

Provided that if the Collector considers it necessary such proclamation shall also be published in the official gazette or in any local newspaper or in both, and the cost of such publication shall be deemed to be part of the costs of the sale.

(2) Where the land is divided into lots for the purpose of being sold separately, it shall not be necessary to make a separate proclamation for each lot unless proper notice of the same, in the opinion of the Collector, cannot otherwise be given.

22. Time of sale.-- No sale shall, without the consent in writing of the judgment-debtor, take place until after the expiration of 30 days calculated from the date on which the copy of the proclamation has been affixed in the office of the Collector.

23. Sale by whom conducted.-- Sale under these rules shall be conducted by the Collector in person or by an Assistant Collector generally or specially empowered by him in this behalf.

24. Adjournment of sale.-- The Collector may in his discretion adjourn a sale ordered by him to a specified day and hour, and any other officer conducting such sale may also in his discretion adjourn the sale recording his reasons for such adjournment. When a sale is adjourned under this rule for a

longer period than 15 days, a fresh proclamation shall be made unless the judgment-debtor consents in writing to waive it:

Provided that the Collector may dispense with the consent of any judgment-debtor who has failed to attend in answer to the notice issued under rule 19(2).

25. Stoppage of sale.-- A sale held under these rules be stopped if before the lot put up for sale is knocked down, the amount of the decree and costs including the costs of the sale are tendered to the officer conducting the sale, or proof is given to his satisfaction that the amount of such decree and costs has been paid to the Collector ordering the sale.

26. Officer conducting sale not to bid or purchase.-- No officer or other person having any duty to perform in connection with any sale under these rules shall directly or indirectly bid for acquiring, or attempt to acquire, any interest in the land to be sold.

27. Co-sharer's bid to be preferred.-- Where the land sold is an undivided share of a larger area and two or more persons of whom one is co-sharer in that area make the same bid, the co-sharer's bid shall prevail as against the bid of the other person.

28. Purchase money to be set off against decree-money.-- If the decree-holder purchases the land put up for sale, the purchase money and the amount due on the decree may, subject to the rights of the other decree-holders, if any, to claim ratable distribution, be set off against one another, and the Collector executing the decree shall enter satisfaction of the decree in whole or in part, as the case may be.

29. Deposit by purchaser and resale on default.-- As soon as a bid made under these rules is accepted, the person making the bid shall pay to the officer conducting the sale a sum equal to 25 per cent of the amount of his purchase money. In default of the purchaser's making such a deposit, the land shall forthwith be resold:

Provided that where the decree-holder is the purchaser and is entitled to set off the purchase money under rule 28 above, the Collector may dispense with this deposit.

30. Payment in full of purchase money.-- The balance of the purchase money left after the deposit of 25 per cent made under rule 29 shall be paid by the purchaser to the Collector before his office closes on the 15th day from the sale of the land:

Provided that in calculating the amount to be so paid to the Collector the purchaser shall have the advantage of any set off to which he may be entitled under rule 28 above.

31. Procedure on default of payment.-- (1) If the purchaser does not pay the full amount of the purchase money within the period mentioned in the last preceding rule, the deposit made under rule 29 may, if the Collector thinks fit, after defraying the expenses of the sale, be forfeited to the Government.

(2) In a case covered by sub-rule (1) above, the land shall be resold subject to the issue of a fresh proclamation in the manner and for the period herein before prescribed for sale, and the defaulting purchaser shall forfeit all claims to the land or to any part of the sum for which it may subsequently be sold.

32. Deficiency in sale price of resale.-- Any deficiency in price which may occur on a resale under rule 31 and all expenses attending such resale shall be certified to the Collector by the officer conducting the sale, and shall at the instance of the decree-holder or the judgment-debtor, be recoverable from the defaulting purchaser under the provisions relating to the execution of a decree for the payment of money.

33. Application to set aside sale on deposit.-- (1) Where land has been sold in accordance with these rules, the judgment-debtor or any person holding an interest therein by virtue of a title acquired before the sale may within 30 days of date of the sale apply to have it set aside on his depositing with the Collector--

(a) for a payment to the purchaser a sum equal to 5 per cent of the purchase money together with the amount realised as commission from him under rule 40;

(b) for payment to the decree-holder the amount specified in the proclamation may have been received by the decree-holder, sale

was ordered less any amount which, since the date of such proclamation may have been received by the decree-holder.

(2) Where a person applies under the rule next following to set aside the sale he shall not unless he withdraws that application be entitled to make or prosecute his application under this rule.

(3) Nothing in this rule shall relieve the judgment-debtor from any liability he may be under in respect of costs and interests not covered by the proclamation of sale.

(4) If the application to have the sale set aside is disallowed, the deposit made under this rule shall be refunded to the applicant.

34. Application to set aside sale on ground of irregularity or fraud.-- In case of sale of land under these rules the decree-holder, the judgment-debtor or any person entitled to share in a ratable distribution of assets or whose interests are affected by the sale, may within 30 days of the date of the sale apply to the Collector to set it aside on the ground of a material irregularity or fraud in publishing or conducting it:

Provided that no such sale shall be set aside on the ground of irregularity or fraud unless the Collector is satisfied that the applicant has sustained some injury by reason of such irregularity or fraud.

35. Application by purchaser to set aside sale on ground of judgment-debtor having no saleable interest.-- The purchaser at any such sale may within thirty days of the date of the sale apply to the Collector to set it aside on the ground that the judgment-debtor had no saleable interest in the land.

36. Sale when to become absolute and power of Collector to order resale.-- Where no application is made under rules 33, 34 or 35, or where such application is made and disallowed, the Collector shall make an order confirming the sale, and thereupon the sale shall become absolute:

Provided that if in any case the Collector is of opinion that the price offered is inadequate, he may refuse to confirm the sale, and the land shall thereupon, subject to the provisions made in these rules, be again put up for sale;

Provided further that no order shall be passed under this proviso unless notice has been given to all persons affected, and their objections, if any, heard.

37. Setting aside of sale.-- Where an application is made under rules 33, 34 or 35 and allowed, the Collector shall make an order setting aside the sale:

Provided that no order shall be made unless notice of the application has been given to the persons affected thereby and their objections, if any, heard.

38. Bar of civil suit.-- No suit to set aside an order made under rules 36 and 37 shall be brought by any person against whom such order is made.

39. Return of purchase money in certain cases.-- Where a sale is set aside under rule 36 or 37 the purchaser shall be entitled--

(a) in the case of a sale set aside on an application under rule 33 to an order sanctioning his withdrawal of the deposit made under that rule;

(b) in case of a sale set aside on application under rule 34 to an order for a refund of the commission, if any, deducted under rule 40.

40. Commission fee, how to be realised.-- (1) Commission fee at the rate of 1 per cent shall be levied on all sales held under these rules.

(2) The Commission fee shall be realised--

(a) where no deposit is required under rule 29 by the person conducting the sale from the decree-holder, before he is declared the purchaser;

(b) where a deposit is required under rule 29 by deduction by the Collector from the deposit; and

(3) when realised, the commission fee shall be credited to Government.

41. Grant of sale certificate.-- Where a sale of land has become absolute, the Collector shall grant a certificate specifying--

(i) the land sold;

(ii) the name of the person who is declared to be the purchaser;

(iii) the encumbrance, if any, and the entire area to which it attaches; and

(iv) the date on and the amount for which the sale has taken place.

Such certificate shall bear the date when the sale becomes absolute.

42. Procedure for delivering possession of land.-- In delivering possession to a purchaser or transferee in any other form, the Collector shall follow the following procedure:-

(a) Where the land is in the occupancy of the judgment-debtor or of some person on his behalf, or of some person claiming under a title created by the judgment-debtor subsequent to the attachment of the land, the Collector shall on the application of the purchaser, or transferee, order delivery to be made by putting such person or any person whom he may appoint to receive delivery on his behalf in possession of the land and if need be by removing any person who refuses to vacate the same.

(b) Where the land is in the occupancy of a tenant or other person entitled to occupy the same, the Collector shall, on the application of the purchaser or transferee order delivery to be made by affixing a copy of the certificate or order in some conspicuous place on the property, and proclaiming to the occupant by beat of drum or other customary mode at some convenient place, that the interest of the judgment-debtor in its entirety or to a limited extent, as the case may be, has been transferred to the auction purchaser or the other transferee.

43. Objections as to liability of land and delivery of possession.-- Objections regarding the liability of the land, other than that the sale of which has been ordered, by the Court, for the satisfaction of the judgment-debtor's debts, and objections regarding the delivery of possession shall be made to and decided by the Collector.

44. Resistance or obstruction to possession of land.-- (1) Where the person entitled under the order of the Collector passed under these rules to the possession of land as an auction purchaser or transferee in any other form is resisted or obstructed by any person in obtaining possession of land, he may within thirty days of the resistance or obstruction make an application to the Collector about such resistance or obstruction.

(2) The Collector may of his own accord initiate proceedings under this rule.

(3) The Collector shall fix a date for investigating the matter, and shall summon the party against whom the application is made or who is reported to have offered resistance or obstruction to appear and answer the allegation.

45. Resistance or obstruction by judgment-debtor.-- Where the Collector is satisfied that the resistance or obstruction was occasioned without any just cause by the judgment-debtor or some other person at his instigation, he shall direct that the applicant be put into the possession of the land, and where he applicant is still resisted or obstructed in obtaining possession, the Collector may also at the instance of the applicant order the judgment-debtor or any other person acting at his instigation to be detained in the prison for a term which may extend to 30 days.

46. Resistance or obstruction by bona fide claimant.-- Where the Collector is satisfied that the resistance or obstruction was occasioned by any person other than the judgment-debtor claiming in good faith to be in possession of the land on his own account or on account of some person other than the judgment-debtor, the Collector shall make an order dismissing the application.

47. Application by a person other than the judgment-debtor when dispossessed.-- Where any person other than the judgment-debtor, whose case does not fall under rule 45 is dispossessed of land under these rules, he may make an application to the Collector complaining of such dispossession.

(2) The Collector shall fix a date for investigating the matter and shall summon the party against whom the application is made to appear and answer the same.

48. Decision of the application.-- Where the Collector is satisfied that the applicant was in possession of the land on his own account or on account of some person other than the judgment-debtor, he shall direct that the applicant be put into possession of the land. In case the Collector comes to a contrary decision, the application shall be dismissed.

49. Rules not applicable to transferee lite pendente.-- Nothing in rule 46, 47 and 48 shall apply to resistance or obstruction by a person to whom

the judgment-debtor has transferred the land after its attachment by the Court, in case the resistance or obstruction relates to such land, or after the initiation of proceedings under paragraph 2 of the schedule in case the resistance or obstruction relates to any land proceeded against under that paragraph but not attached by the Court.

50. Order conclusive subject to civil suit.-- Any party, not being a judgment-debtor, against whom an order is made under rules 45, 46 and 48 may within one year of the date of such order institute a suit in a civil Court to establish the right which he claims to the present possession of the land, but subject to the result of such suit, if any, the Collector's order passed under these rules shall be conclusive.

51. Costs how to be adjusted.-- If any costs are allowed under these rules, the amount so awarded shall be added to the decretal sum in case the order be in favour of the decree-holder, and be deducted therefrom in case the order be against him.

52. Information about and orders regarding land outside the Collector's jurisdiction how to be collected and executed.-- (1) The Collector seized of a case under these proceedings shall deal with it as if the entire land ordered to be sold or otherwise to be dealt with were situated within his jurisdiction.

(2) If the Collector is of the opinion that it is necessary to obtain any information regarding the judgment-debtor's land lying within the jurisdiction of any other Collector, he shall make a requisition in this behalf, and the Collector of the district concerned shall supply him with the requisite information.

(3) If the Collector passes any order regarding any land situated within the jurisdiction of any other Collector, he shall communicate it to the latter, who shall execute it as if it had been passed by himself.

53. Consignment of record.-- After the Collector has completed his proceedings and informed the Court as contemplated by paragraph 9 of the schedule, the record shall be consigned to the record room.

54. Result of execution to be noted in Court's register and procedure of Court.-- On receipt of the information under rule 53, the Court

shall make a note in column No. 22 of civil register No. X (Register of Execution of Decrees), showing the date of the receipt of the intimation and, if necessary, after sending for the record of the execution case from the record room shall proceed in the manner prescribed in paragraph 9 (3) of the schedule.

55. Delegation of power by Collector.-- For the purpose of these rules, the Collector may make over to any Assistant Collector of the first grade any of the powers and duties conferred and imposed upon the collector with the exception of the following:-

- (1) Power to let or mortgage under paragraph 1 (b) of the schedule.
- (2) Power to order sale under paragraph 1 (c) or paragraph 8 of the schedule.
- (3) Power to take action under paragraph 3 or paragraph 5 of the schedule.
- (4) Power to let, mortgage or order direct management under paragraph 7(1)(b) of the schedule.
- (5) Power to raise funds for and discharge encumbrances under paragraph 7(3) of the schedule.
- (6) Power to confirm sale under rule 36.
- (7) Power to set aside sale under rule 37.

56. Appeals.-- (1) An appeal shall lie under these rules to the Collector, when the order is passed by an Assistant Collector, and to the Commissioner when the original order is passed by the Collector:

Provided that the order would have been appealable, had it been passed by a civil Court executing the decree.

(2) A second appeal shall lie from an appellate order passed by the Collector to the Commissioner, and from an appellate order passed by the Commissioner to the Board of Revenue on grounds on which a second civil appeal would have been competent had the appellate order been passed by a civil Court.

(3) No appeal shall lie except as provided in these rules.

57. Period of appeals.-- The period of limitation for an appeal under the foregoing rule shall be as follows:-

- (a) When the appeal lies to the collector, 30 days.

(b) When the appeal lies to the Commissioner, 60 days.

(c) When the appeal lies to the Board of Revenue, 90 days.

58. Revisional powers of the Financial Commissioner.-- The Financial Commissioner may, at any time, call for the record of any case, which has been decided under these rules by an officer subordinate to him and in which no appeal lies to him or, if an appeal lies, it has not been preferred and the period of limitation has expired, and if the said officer appears-

(a) to have exercised a jurisdiction not vested in him by law; or

(b) to have failed to exercise a jurisdiction so vested; or

(c) to have acted in the exercise of his jurisdiction illegally or with material irregularity;

the Board of Revenue may make such orders as it may think fit.

59. Procedure for the disposal of appeals and applications for revision.--

(1) An appeal or application for revision filed under these rules shall be filed, heard and disposed of in accordance with the procedure laid down in the Code of Civil Procedure as far as it may be applicable.

(2) It should be borne in mind that the powers of Civil Courts to deal with objections under section 47, Civil Procedure Code, or Order XXI, Rule 58, as amended by Lahore High Court, are the same irrespective of whether the objections are received by the Court direct or through the Collector under rule 8 of the Government rules framed under section 70, of the Civil Procedure Code.

(3) Objections under section 9 of the Debtor's Protection Act are to be decided by the Civil Court and not the collector.

(A.I.R. 1941 Lah. 225 Lakhmi Chand v. Aulia Khan.)

****[Note** IN rule 58 the words "Financial Commissioner" shall mean "The Board of Revenue, Punjab".]

PART N -- EXECUTION OF DECREES AGAINST AGRICULTURISTS

1. Property exempt from attachment.-- The following property of an agriculturist is exempt from attachment and sale:-

(a) The necessary wearing apparel, cooking vessels, beds and beddings of the judgment-debtor, his wife and children, and such personal ornaments as, in accordance with religious usage, cannot be parted with by any woman. (Section 60 (1) (a) of the Code).

(b) Implements of husbandry and such cattle and seed-grain as may, in the opinion of the Court, be necessary to enable him to earn his livelihood as an agriculturist and such portion of agricultural-produce or any class of agricultural-produce as may have been declared by the Provincial Government to be free from liability under Section 61. (Vide also clause (b) of the proviso to Section 60 (1) of the Code).

(c) Where the judgment-debtor is liable to pay land-revenue, so much of the produce of the land as the Collector thinks necessary for seed-grain and the subsistence, until the harvest next following, of the judgment-debtor, his family and cattle exempted under head (b) (Section *83 of the Punjab Land Revenue Act, 1967], read with Section 88 of the Punjab Tenancy Act and Section 60 (1) (p) of the Code of Civil Procedure). Under Section 61 of the Civil Procedure Code, the Punjab Government has declared that, in the case of agriculturists, the judgment-debtor's entire fodder crops, including gram, oats, chari, maize and guara, one third or 20 maunds, whichever is greater, of food-grains, and one third of all other crops shall, subject to the provisions of clauses (b) and (p) of sub-section (1) of Section 60 of the Civil Procedure Code and of the proviso to [Section 83 of the Land Revenue Act, 1967], be exempted from liability to attachment or sale in the execution of a decree, for the purpose of providing, until the next harvest, for the due cultivation of land and for the support of the judgment-debtor and his family.

(d) Houses and other buildings (with the materials and the sites thereof and the land immediately appurtenant thereto and necessary for their enjoyment) belonging to an agriculturist and not let on rent or lent to others or left vacant for a period of a year or more.

(See Section 60 (1) (c) of the Code of Civil Procedure and Section 35 of the Punjab Relief of Indebtedness Act).

(e) Standing crops except cotton and sugarcane. (Section 10 of the Punjab Debtors' Protection Act).

2. Land and trees exempt from sale.-- According to Section 16 of the Punjab Land Alienation Act, 1900, no land belonging to a member of an agricultural tribe, notified under that Act, can be sold in execution of any decree or order of a Civil or Revenue Court.

Standing trees apart from the land on which they stand cannot be sold. (Section 10 of the Punjab Debtors' Protection Act).

3. Exemption of ancestral immovable property.-- Attention is invited to the provision of section 9 of the Punjab Debtors' Protection Act which lays down that ancestral immovable property in the hands of a subsequent holder shall not be liable in the execution of a decree or order of Court relating to a debt incurred by any of his predecessors-in-interest. This rule, however, is to be applied only "When custom is the rule of decision in regard to secession of immovable property." It is not applicable when the debt has been expressly charged by way of a mortgage.

4. Attachment and sale to be carried out through Collector.-- The attachment and sale of the land and its produce will be carried out by an order addressed by the Civil Court to the Collector or such Revenue-Officer as he may appoint in this behalf under Section * [170 of the Punjab Land Revenue Act, 1967,] and subject to the rules made thereunder and the provisions of the Code contained in Order XXI, Rules 44, 45, 74 and 75.

PART O – EXECUTION OF DECREES AGAINST PERSONS IN MILITARY
SERVICE.....**[Omitted]

PART P -- RECEIPTS FOR PROPERTY REALISED OR RECOVERED OR RECOVERED IN EXECUTION OF DECREES

1. Receipts.-- Receipt should invariably be furnished by decree-holders for money paid or goods delivered through the Courts in satisfaction of decrees.

2. Payment by debtor.-- Sums tendered by a judgment-debtor in payment or part payment of a decree shall be received by the Court which framed the decree or to which the decree has been sent for execution, whether the judgment-creditor has taken out execution or not; and whether, in case he has taken out execution, he is actually in attendance at the Court-house or not.

3. Payment to decree-holder when present.-- If the judgment-creditor is in attendance at the time of such tender (whether for the purpose of prosecuting his execution or not), the money so received by the Court shall be made over to him upon his giving a receipt, duly stamped if the sum so paid exceeds rupees twenty, and the receipt taken shall be filed with the proceedings.

4. Amount to be deposited when decree-holder is not present.-- If the judgment-creditor is not in attendance the sum paid in by the judgment-debtor shall be made over by the Court to the Nazir, who shall forthwith deposit it in the Treasury, at the Sadar or Tahsil, as the case may be, and notify to the Court the number under, and date on, which the sum has been entered in the deposit register. A corresponding entry will be made in the Court's record:

Provided that if the Treasury is closed for business when the money is paid into Court, it should be placed in the Nazir's Cash Chest, which should be lodged in the outer room of the Treasury, if it is open, as provided in Order 4 (2), of the Punjab Treasury Manual, 2nd edition, page 2, and if it is closed, the Presiding Officer of the Court must make other suitable arrangements for its safe custody.

5. Receipt to be given to debtor by Court.-- An unstamped acknowledgment will, in every case, be given to the judgment-debtor, by the officer to whom the payment is made, for any sum paid into Court under the preceding paragraphs.

6. Payment to decree-holder of the sum deposited.-- When the judgment-creditor appears and claims the sum received by the Court, such Court shall give the claimant (after identification) a cheque on the Treasury, payable to his order, for the amount, and shall note thereon the date of deposit and the number in the deposit register. An unstamped receipt, particularising the amount of the cheque, its date and number, together with the deposit number and date, shall be taken from the judgment-creditor in acknowledgment of such cheque, and this receipt will remain on the record, and will be deemed sufficient to mark the finality of the proceedings.

7. Payment to decree-holder of the sum deposited.-- The cheque mentioned in the preceding paragraph shall be presented to the Treasury Officer for payment, and the receipt of the payee, endorsed thereon, shall be sufficient acquittance for the Treasury Officer, who will forward such endorsed cheque to the Accountant-General, as his voucher for the withdrawal of the amount from deposit.

8. Stamp on receipt.-- When the amount exceeds rupees twenty the receipt will be stamped at the expense of the judgment-creditor.

9. *Dakhalnama* does not require stamp.-- The practice prevailing in some districts of requiring the *dakhalnama* or acknowledgment, taken from a decree-holder when he has been placed in possession of immovable property in execution of a decree, to be stamped, is not authorized either by the Court Fees Act or by the Stamp Act. The *Dakhalnama*, not being an acknowledgment of the receipt of money or other moveable property, is not a receipt within the meaning of Section 2 (23) of the Stamp Act, and does not require to be stamped.

PART Q -- RESISTANCE TO EXECUTION

1. Resistance by judgment-debtor or by some person on his behalf or at his instigation.-- If the holder of a decree for the possession of immovable property, or the purchaser of any such property sold in execution of a decree, is resisted or obstructed by any person, and the decree-holder complains of such resistance or obstruction, Order XXI, Rules 97 to 99, prescribe the procedure to be followed.

In proper cases the provision of Section 74 of the Code of Civil procedure may also be availed of.

According to Order XXI, Rule 98, Civil Procedure Code, as amended by the Lahore High Court, a Court can now take action not only when the obstruction was occasioned by the judgment-debtor himself or by some person at his instigation but also when it was caused by any one "on his behalf." It has also been provided that the detention ordered in this rule shall be at public expense. The provision as to limitation is contained in Article 167 of Schedule I to Act IX of 1908 which provides a period of thirty days from the date of resistance or obstruction.

2. Resistance by others.-- Order XXI, Rule 99, provides for cases where the resistance or obstruction has been occasioned by any person other than the judgment-debtor, claiming in good faith to be in possession on his own account or on account of some person other than the judgment-debtor.

3. Restoration of possession to a person who was in possession not on account of debtor but was dispossessed in execution.-- If any person not bound by the decree should be dispossessed of any property in execution, whether by the decree-holder or by the purchaser in execution, he may apply to the Court executing the decree under Order XXI, Rule 100, if he disputes the right of such decree-holder or purchaser to be put in possession. Where the Court is satisfied that the applicant was in possession of the property on his own account or on account of some person other than the judgment-debtor, it should, under Rule 101, direct that the applicant be put into possession of the property. Attention is drawn to this provision, as in such cases it is not uncommon for a Court to refuse to make any inquiry and to refer the applicant to a regular suit.

The limitation for such applications is thirty days from the date of dispossession (see Article 165, Schedule I to Act IX of 1908).

PART R -- COSTS IN EXECUTION PROCEEDINGS

1. Costs of pleadings.--Unless there is any reason to the contrary, costs of pleadings in execution cases should be allowed on the scale laid down for miscellaneous proceedings in Chapter 16, "Legal Practitioners," Part B.

2. *[Omitted].**

3. *[Omitted].**

***[PART S. -- RECIPROCAL EXECUTION OF DECREES BY COURTS IN PAKISTAN AND COURTS IN FOREIGN COUNTRIES**

1. References.-- The law on the subject of execution of decrees of Courts in Pakistan to which the provisions relating to execution do not extend and the decrees passed by Courts in the United Kingdom or any other reciprocating territory is contained in section 43 and section 44-A of the Code of Civil Procedure, 1908 (V of 1908).

2. Reciprocity of execution between Courts in United Kingdom and certain foreign Courts.-- As regards execution of decrees passed by Courts in United Kingdom or any other reciprocating territory, the provisions of Section 44-A of the Code of Civil Procedure, 1908 (V of 1908) as amended, be carefully noted and followed.

3. Reciprocity between Courts in Pakistan and foreign Courts.-- The following countries have been declared by the Government of Pakistan to be reciprocating territories within the meaning of section 44-A of the Code of Civil Procedure:

S.No.	Name of the country.	No. of Notification etc.
1.	United Kingdom	No. 11(5)/56, dated, 26th July, 1958.
2.	Fiji	F.227/48-Law, dated 3.6.1949 Gazette of Pakistan Part-I, dated 10.6.1949, Page 275.
3.	Singapore	F.12/52-Sol, dated 22.4.1954, Gazette of Pakistan, Part-I, dated 30.4.1954. Page 106.
4.	Australian Capital Territory	F.12/55-Sol, dated 11.4.1957 Gazette of Pakistan Part-I, dated 11.4.1957, Page 174.

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| 5. | New Zealand including the Cook Islands (including Niue) and the Trust Territory of Eastern Samoa. | F.11(2)/56-Sol, dated 3.11.1958 Gazette of Pakistan Part-I, dated 7.11.1958, Page 455. |
| 6. | Northern Territory of Australia. | S.R.O. 403, dated 22.8.1959, Gazette of Pakistan, Part-I, dated 22.8.1959, Page 425. |
| 7. | Australian State of Victoria | S.R.O. 1067(K)/70 dated 21.9.1970 Gazette of Pakistan, Part-I, dated 9.10.1970, Page 870. |
| 8. | States of Queensland and Western Australia | S.R.O. 482(I)/73, dated 2.4.1973 Gazette of Pakistan Extraordinary Part-II, dated 2.4.1973, Page 550. |
| 9. | State of Kuwait | S.R.O. 567(I)/83, dated 6.6.1983, Gazette of Pakistan Extraordinary Part-II, dated 6.6.1983, Page 769. |
| 10. | Republic of Turkey | S.R.O. 477(I)/85, dated 20.5.1985 Gazette of Pakistan Extraordinary Part-II, dated 21.5.1985, Page 513. |

APPENDIX

(NOTIFICATIONS)

MINISTRY OF LAW

Karachi, the 26th July 1958

1. No.11(5)/56-Sol, dated 26th July 1958. The Government of the United Kingdom, with the concurrence of the Government of Pakistan has made the following order providing for the execution in the United Kingdom of the decrees of Superior Courts in Pakistan on the basis of reciprocity. The Order is published for general information-

"STATUTORY INSTRUCTIONS"**1958 No. 141****JUDGMENTS**

The Reciprocal Enforcement of Judgment (Pakistan Order, 1958. Made.....28th January, 1958. At the Court at Buckingham Palace, the 28th Day of January, 1958.

PRESENT

The Queen's Most Excellent Majesty in Council.

Her majesty by virtue and in exercise of the powers conferred on Her by section one of the Foreign Judgments (Reciprocal Enforcement) Act, 1933(a) and of all other powers enabling Her, is pleased by and with the advice of her Privy Council, to order, and it is hereby ordered as follows:

1. This Order may be cited as the Reciprocal Enforcement of Judgment(Pakistan) Order, 1958.
2. The Reciprocal Enforcement of Judgments (Pakistan) Order, 1953(b), is hereby revoked provided that in relation to judgments given before the date of this order the High Courts of Dacca and Lahore, the Chief Court at Karachi and Judicial Commissioner's Courts at Peshawar and Quetta shall continue to be deemed to be Superior Courts for the purposes of part 1 of this Act.
3. Part 1 of the Act shall extend to all the territories of Pakistan.
4. The following Courts of Pakistan shall be deemed Superior Courts for the purposes of Part 1 of the Act, that is to say:-
 - (a) The Supreme Court of Pakistan and all the High Courts.
 - (b) All District Courts.
 - (c) All other Courts whose civil jurisdiction is subject to no pecuniary limit provided that the judgment sought to be registered under the Act is sealed with a seal showing that the jurisdiction of the Court is subject to no pecuniary limit.

W.G. Agnew.

EXPLANATORY NOTE

(This Note is not part of the Order, but is included to indicate its general purport)

The purpose of this Order is to revise the list of Courts of Pakistan deemed to be Superior Courts for the purpose of Part 1 of the Act, and to continue the application of Part 1 of the Act in respect of judgments of Courts of Pakistan which have ceased to exist.

MINISTRY OF LAW AND LABOUR (LAW DIVISION)

Karachi the 3rd June, 1949.

No. F.227/48--Law.-- In exercise of the powers conferred by Explanation 2 to section 44-A of the Code of Civil Procedure 1908 (V of 1908), the Central Government in supersession of this Ministry's Notification No.F.227/48-Law, dated the 6th May, 1949, is pleased to declare Fiji to be a reciprocating territory and the Supreme Court of Fiji to be a Superior Court of the territory for the purposes of the said section.

MINISTRY OF LAW

Karachi the 22nd April, 1954

No. F.12/52-Sol.-- In exercise of the powers conferred by Explanation 2 to section 44-A of the Code of Civil Procedure 1908 (V of 1908), the Central Government is pleased to declare the Colony of Singapore to be a reciprocating territory and the Supreme Court of Singapore to be a Superior Court of the territory for the purposes of the said section.

MINISTRY OF LAW

Karachi, the 11th April, 1957

No. F.12/55-Sol.-- In exercise of the powers conferred by section 44-A of the Code of Civil Procedure 1908 (V of 1908), the Central Government is pleased to declare the Australian Capital Territory to be a reciprocating territory and the Supreme Court of Australian Capital Territory to be a Superior Court of the territory for the purposes of the said section.

THE GAZETTE OF PAKISTAN, APRIL 19, 1957**Karachi, the 11th April, 1957**

No. F.12/55-Sol.-- The following Proclamation is published for general information:

Extract from "Commonwealth of Australia Gazette", No. 77, dated the 24th December, 1956.

PROCLAMATION

Commonwealth of Australia to wit. W.J./SLIM, Governor General.

By His Excellency the Governor-General in and over the Commonwealth of Australia.

Whereas it is provided by sub-section (2) of section 5 of the Foreign Judgment (Reciprocal Enforcement) Ordinance, 1954, of the Australian Capital Territory, that, if the Governor-General is satisfied that in the event of the benefits conferred by Part II of that Ordinance being extended to judgments given in the superior Courts of any country, substantial reciprocity of treatment will be assured as respects the enforcement within that country of judgments given in the Supreme Court of the Australian Capital Territory, he may by Proclamation declare:-

(a) that Part II of that Ordinance extends in relation to that country; and

(b) that such Courts as are specified in the proclamation shall, for the purpose of Part II of the Ordinance, be deemed to be Superior Courts of that country:

AND WHEREAS I, Sir William Joseph Slim, the Governor-General in and over the Commonwealth of Australia, acting with the advice of the Federal Executive Council, am satisfied that, in the event of the benefits conferred by Part II of the Foreign Judgment (Reciprocal Enforcement) Ordinance, 1954, being extended to judgments given in the superior Courts of a country which is specified in column 1 of the Schedule to this Proclamation, substantial reciprocity of treatment will be assured as respects the enforcement within that country of judgments given in the Supreme Court of the Australian Capital Territory:

NOW, THEREFORE, I, the Governor-General aforesaid, acting with the advice of the Federal Executive Council, hereby declare:-

(a) that Part II of the Foreign Judgments (Reciprocal Enforcement) Ordinance, 1954, of the Australian Capital Territory extends in relation to a country specified in column 1 of the Schedule to this Proclamation; and

(b) that the Court or Courts specified in column 2 of that Schedule opposite to a country shall, for the purposes of Part II of that Ordinance be deemed to be superior Court or superior Courts, as the case may be, of that country.

THE SCHEDULE

Column 1	Column 2
Ceylon	The Supreme Court of Ceylon. The District Courts of Ceylon.
Fiji	The Supreme Court of Fiji.
Hong Kong	The Supreme Court of Hong Kong.
New Zealand	The Supreme Court of New Zealand.
Federation of Malaya	The High Court of the Federation of Malaya.
Pakistan	The Supreme Court of Pakistan. The High Court for the Province of East Pakistan. The High Court for the Province of West Pakistan. The District Courts of Pakistan. All other Courts of Pakistan whose civil jurisdiction is subject to no pecuniary limit.
Singapore	The High Court of the Colony of Singapore.
The Cook Islands (including Niue)	The Supreme Court of New Zealand.
The Trust Territory of Western Samoa	The Supreme Court of New Zealand.

Given under my hand and the Great seal of the (L.S.) Commonwealth this twenty-first day of December in the Year of our Lord One thousand nine hundred and fifty-six, and in the fifth year of Her Majesty's reign.

By His Excellency's Command.

NELL O'SULLIVAN,
Attorney-General

God Save the Queen;

By Authority: A.J. Arthor, Commonwealth Government Printer, Canberra.

MINISTRY OF LAW
Karachi, the 3rd November 1958

No.F.11(2)/56-Sol.-- In exercise of the powers conferred by explanation 2 to section 44-A of the Code of Civil Procedure 1908 (V of 1908), the Central Government is pleased to declare the New Zealand, including the cook Islands (including Nitte) and the Trust Territory of Western Samoa to be a reciprocating territory, and the Supreme Court of the New Zealand to be a Superior Court of that territory for the purposes of the said section.

This notification shall be deemed to have taken effect as on and from the twenty seventh day of August, nineteen hundred and fifty eight.

MINISTRY OF LAW
Karachi, the 3rd November 1958

No. F.11(2)/56-Sol.-The Government of New Zealand with the concurrence of the Government of Pakistan has made the following order providing for the executing of the decrees of Superior Courts in Pakistan on the basis of reciprocity. The order is published for general information.

**"THE RECIPROCAL ENFORCEMENT OF JUDGMENTS (PAKISTAN)
ORDER, 1958**

COBHAM, Governor-General

ORDER IN COUNCIL

At the Government House at Wellington this 27th day of August 1958.

PRESENT

His Excellency the Governor-General in Council. PURSUANT to the Reciprocal Enforcement of Judgments Act, 1934, His Excellency the Governor-General acting by and with the advice and consent of the Executive Council, and being satisfied that substantial reciprocity of treatment will be assured as respects the enforcement within Pakistan of judgments given in the Superior Courts of New Zealand, hereby make the following order.

ORDER

1. This order may be cited as the Reciprocal Enforcement of Judgments (Pakistan) Order, 1958.
2. Part 1 of the Reciprocal Enforcement of Judgments Act, 1934, shall extend to Pakistan.
3. The Supreme Court of Pakistan, the High Court for the province of West Pakistan, the High Court for the province of East Pakistan, and all Pakistan District and other Courts where civil jurisdiction is subject to no pecuniary limit, shall be deemed to be Superior Courts of Pakistan for the purposes of Part I of the Reciprocal Enforcement of Judgments Act, 1934.

MINISTRY OF LAW

Karachi, the 22nd April, 1959

No.S.R.O.403.-In exercise of the powers conferred by Explanation 2 to section 44-A of the Code of Civil Procedure, 1908 (V of 1908), the Central Government is pleased to declare the Northern Territory of Australia to be a reciprocating territory, and the Supreme Court of the Northern Territory of

Australia to be a Superior Court of the territory for the purposes of the said section.

No.F.12/56-Sol. The following notice is published for general information.

(Extract from Commonwealth of Australia Gazette No.27 dated 7th May, 1959).

NORTHERN TERRITORY OF Australia FOREIGN JUDGMENTS (RECIPROCAL ENFORCEMENT) ORDINANCE, 1955.

Whereas it is provided by sub-section 1 of section 5 the Foreign Judgment (Reciprocal Enforcement) Ordinance 1955 of the Northern Territory of Australia, that if the Attorney-General is satisfied that, in the event of the benefits conferred by Part II of that Ordinance being applied to judgments given in the Superior Courts of a country outside Australia substantial reciprocity of treatment will be assured as respects the enforcement within that country of judgments given in the Supreme Court of the Northern Territory, he may by notice declare:

(a) that Part II of that Ordinance applies in relation to that country, and

(b) that such Courts of that country as are specified in the notice shall, for the purposes of part II of that Ordinance, be deemed to be Superior Courts of that country.

AND WHEREAS, I, Sir Garfield Edward John Barwick, the Attorney-General of the Commonwealth of Australia am satisfied that in the event of the benefits conferred by Part II of that Ordinance being applied to judgments given in the Superior Courts of Pakistan, substantial reciprocity of treatment will be assured as respects the enforcement within that country of judgments given in the Supreme Court of the Northern Territory.

NOW, THEREFORE, I, the Attorney-General aforesaid hereby declare-

(a) that Part II of the Foreign Judgments (Reciprocal Enforcement) Ordinance, 1955, of the Northern Territory applies in relation to Pakistan and

(b) that the following Courts, shall, for the purposes of part II of that Ordinance, be deemed to be Superior Courts of that country:

The Supreme Court of Pakistan;

The High Courts for the Provinces of West Pakistan and East Pakistan;

All District Courts;

All other Courts in Pakistan when exercising a civil jurisdiction which is subject to no pecuniary limit provided that a judgment of any such other Court which is sought to be enforced is endorsed with the statement under the seal of the Court that the Court's jurisdiction in the matter in which the judgment was given was subject to no pecuniary limit.

Dated this twentieth day of April, 1959. G.E. BARWICK GENERAL

Attorney General

MINISTRY OF LAW AND PARLIAMENTARY AFFAIRS

(Law Division)

Islamabad, the 21st September, 1970

No. S.R.O. 1067(K)/10.-- In exercise of the powers conferred by section 44-A of the Code of Civil Procedure, 1908 (V of 1908), the Central Government is pleased to declare the Australian State of Victoria to be a reciprocating territory, and the Supreme Court of Australian State of Victoria to be a Superior Court of the territory for the purposes of the said section.

No.S.R.O. 1068(K)/70.

The following proclamation is published for general information.

(Extract from the Victoria Government Gazette No.10, dated 4th February, 1970.)

DECLARATION OF RECIPROCATING COUNTRY FOR THE PURPOSES OF PART II OF THE FOREIGN JUDGMENTS ACT, 1962, No. 6916.

PROCLAMATION

By His Excellency the Governor of the State of Victoria and its Dependencies in the Commonwealth of Australia & C, & C &C.

I, the Governor of the State of Victoria acting by and with the advice of the Executive Council thereof and being satisfied that the law of Pakistan makes provision for the enforcement in that country of judgments given in the Superior Courts of Victoria.

DO BY THIS MY PROCLAMATION DIRECT-

- (a) that part II of the Foreign Judgments Act, 1962, shall extend to Pakistan and
- (b) that the Courts of Pakistan named hereunder be deemed Superior Courts for the purposes of the said Part II of the Foreign Judgments Act, 1962:-
 - (i) The Supreme Court of Pakistan,
 - (ii) the High Courts for the Province of West Pakistan and East Pakistan,
 - (iii) all District Courts, and
 - (iv) all other Courts whose civil jurisdiction is subject to no pecuniary limit, provided that the judgment sought to be enforced is sealed with a seal showing that the jurisdiction of the Court is subject to no pecuniary limit.

GIVEN under my Hand and the Seal of the State of Victoria aforesaid, at Melbourne, this twenty-eight day of January, in the year of our Lord One thousand nine hundred and seventy and in the eighteenth year of Her Majesty Queen Elizabeth II.

MINISTRY OF LAW AND PARLIAMENTARY AFFAIRS

(Law Division)

Islamabad the 2nd April 1973

No. S.R.O.482(1)/73.-- In exercise of the powers conferred by section 44-A of the Code of Civil Procedure, 1908 (V of 1908), the Federal Government is pleased to declare the State of Queensland and Western Australia to be the reciprocating territory, and the Superior Courts of those States to be Superior Courts of the territory for the purposes of the said section.

S.R.O. 483(1)/73. The following Orders in Council are hereby published for general information.

(1) Order in Council dated the 24th September, 1970, extending of the Reciprocal Enforcement of Judgments Act of 1959 of Queensland to Pakistan etc.

WHEREAS by "The Reciprocal Enforcement of Judgments Act of 1979, it is amongst other things enacted that if the Governor in Council is satisfied that in the event of the benefits conferred by Part II of the said Act being extended to judgments given in the Superior Courts of any Commonwealth country not including the United Kingdom and Commonwealth of Australia or given in the Superior Courts of any foreign country substantial reciprocity of treatment will be assured as respects the enforcement within that Commonwealth country or in that foreign country, as the case may be of judgments given in the Superior Courts of Queensland, he may by Order in Council direct:

(a) that the said Part II of the said Act shall extend to that Commonwealth country or to that foreign country, and

(b) that such Courts as are specified in the Order in Council shall be for the purposes of the said Part II of the said Act be deemed Superior Courts of that Commonwealth country or of that foreign country.

AND WHEREAS the Governor in Council is satisfied that in the event of the benefits conferred by the said part II of the said Act, being extended to judgments given in the Superior Courts of the countries set forth in the Schedule hereto substantial reciprocity of treatment will be assured as respects the enforcement within such countries of judgments given in the Superior Courts of Queensland:

NOW, THEREFORE, his Excellency the Governor, acting by and with the advice of the Executive Council and in pursuance of the powers and authorities vested in him by the said Act doth hereby direct that Part II of the said Act shall extend to the countries set forth in the said Schedule and that the Court or Courts respectively set forth in such Schedule opposite the name of each country shall for the purposes of Part II of the said Act be deemed the Superior Court or Courts of such country.

And the Honourable the Minister for Justice and Attorney-General is to give the necessary directions herein accordingly:

SCHEDULE

Column 1**Column 2**

Ceylon:	The Supreme Court of Ceylon. The District Court of Ceylon.
India:	The Supreme Court of India. All High Courts and judicial Commissioner Courts in India. All other Courts in India when exercising a civil jurisdiction which is subject to no pecuniary limit.
Pakistan:	The Supreme Court of Pakistan. The High Courts for the Province of West Pakistan and East Pakistan. All District Courts. All other Courts whose civil jurisdiction is subject to no pecuniary limit.
British Columbia:	The Court of Appeal for British Columbia. The Supreme Court of British Columbia.
Bahama Islands:	The Supreme Court of the Bahama Islands.
Singapore:	The High Court of Singapore.
Fiji:	The Supreme Court of Fiji.
Manitoba:	Court of appeal for Manitoba. Her Majesty's Court of Queen's Bench for Manitoba. All Country Courts in Manitoba.
British Honduras:	The Supreme Court of British Honduras.
Cayman Islands:	The Grand Court of Cayman Islands.

(2) Order in Council published in the Government of the State of Western Australia, Gazette dated the 24th July, 1970, extending part II of its Foreign Judgment (Reciprocal Enforcement) Act, 1963-65 to Pakistan, etc.

WHEREAS it is enacted, inter alia, by sub-section (2) of section six in Part II of the Foreign Judgment (Reciprocal Enforcement) Act, 1963-65, that where the Governor is satisfied that, if the benefits conferred by that Part are extended to judgments given in the Superior Courts of any Commonwealth country, or given in the Superior Courts of any foreign country, substantial reciprocity of treatment will be assured as respects the enforcement within that Commonwealth country or in that foreign country as the case may be of judgments given in the Supreme Court, he may by Order, direct-

(a) that Part II shall extend to that Commonwealth country or to that foreign country; and

(b) that such Courts as are specified in the order shall be deemed to be Superior Courts of that Commonwealth country or of that foreign country for the purposes of that Part:

NOW, THEREFORE, His Excellency the Governor, being so satisfied with respect to each country specified in column 1 of the Schedule to this Order and the Superior Court or Superior Courts, as the case may be specified in column 2 of that Schedule, by virtue and in exercise of the powers conferred on the Governor by the above recited sub-section and acting with the advice and consent of the Executive Council, doth hereby direct-

(a) that part II of the Foreign Judgments (Reciprocal Enforcement) Act, 1963-65, shall extend to a country specified in column 1 of the Schedule to this Order; and

(b) that the Court or Courts specified in column 2 of that Schedule opposite to a country shall for the purposes of that Part be deemed a Superior Court or Superior Courts, as the case may be of that country.

THE SCHEDULE

Column 1 Column 2

Bahama Islands	The Supreme Court of Bahama Islands.
British Honduras	The Supreme Court of British Honduras.
Cayman Islands	Grand Court of the Cayman Islands.
Ceylon	The Supreme Court of Ceylon. The District Courts of Ceylon.

Federation of Malaysia	The Federal Court of Malaysia. The High Court of Malaya. The High Court of Borneo.
Fiji	The Supreme Court of Fiji.
India	The Supreme Court of India; all High Courts and Judicial Commissioner's Courts in India; all District Courts in India; all other Courts in India when exercising a civil jurisdiction which is subject to no pecuniary limit, if a judgment of any such Court which is sought to be enforced is endorsed with a statement under the seal of the Court that the Court's jurisdiction in the matter in which the judgment was given was subject to no pecuniary limit.
Italy	The Superior Courts of Italy.
Manitoba	The Court of Appeal for Manitoba; Her Majesty's Court of Queen's Bench for Manitoba; all County Courts in Manitoba.
Pakistan	The Supreme Court of Pakistan; The High Court for the Province East Pakistan; the High Court for the Province of West Pakistan; all District Courts in Pakistan; all other Courts in Pakistan when exercising a civil jurisdiction which is subject to no pecuniary limit, if a judgment of any such other Court which is sought to be enforced is endorsed with a statement under the seal of the Court that the Courts jurisdiction in the matter in which the judgment was given was subject to no pecuniary limit.
Singapore	The High Court of Singapore.
File No. F1(1)/72-Sol.II.	

S.A.M. Wahidi, CSS
Section Officer.

MINISTRY OF JUSTICE AND PARLIAMENTARY AFFAIRS

(Justice Division)

Islamabad, the 6th June, 1983

S.R.O. 567(1)/83.-- In exercise of the powers conferred by Explanation 2 to section 44-A of the Code of Civil Procedure, 1908 (V of 1908) the Federal Government is pleased to declare the State of Kuwait to be a reciprocating territory, and the following Courts of the State of Kuwait to be the Superior Courts of the territory for the purposes of the said section, namely -

1. Constitutional Court.
2. Court of Causation
3. High Court of Appeal.

MINISTRY OF LAW AND PARLIAMENTARY AFFAIRS

(Justice Division)

Islamabad the 20th May, 1985

No. S.R.O.477(1)/85.-- In exercise of the powers conferred by Explanation 2 below section 44-A of the Code of Civil Procedure, 1908 (V of 1908) the Federal Government is pleased to declare the Republic of Turkey to be a reciprocating territory and the Ashye Mukul Maikemereri (First Instance Courts) of the Republic of Turkey to be the Superior Courts of the territory for the purposes of the said section.

Saif-ul-Islam

Section Officer

S.R.O. 478(1)/85.-- The following Convention on Mutual Assistance in Civil and Commercial Matters between the Islamic Republic of Pakistan and the Republic of Turkey, which came into force on the 5th day of June, 1983, is hereby published for general information.

(No.F.9(4)/78-Sol.II)

**CONVENTION ON MUTUAL ASSISTANCE IN CIVIL AND
COMMERCIAL MATTERS BETWEEN THE ISLAMIC
REPUBLIC OF PAKISTAN AND THE
REPUBLIC OF TURKEY**

The Islamic Republic of Pakistan and the Republic of Turkey.

Desiring to regulate the legal protection of Pakistani nationals in Turkey and to Turkish nationals in Pakistan and the mutual assistance of Judicial authorities of the two States in civil and commercial matters.

Have decided to conclude a Convention and have agreed as follows:

**CHAPTER I
DEFINITIONS AND FIELD OF APPLICATION
Article 1**

1. Except for the contrary cases expressly indicated, this Convention shall apply only to civil and commercial matters, including indisputable affairs.

2. For the purposes of this convention:

(a) the expression "consul" means any person who, having been appointed by the sending State to the receiving State to exercise consular functions, has been granted an exequatur or any other authorization by the receiving State;

(b) the expression "diplomatic agent" means the chief of mission of the sending State, duly admitted by the receiving State, or any member of the diplomatic staff of this mission;

(c) the expression "person" means physical and juridical persons;

(d) the expression "designated authority" means the authority designated by each contracting party to receive request under the provisions of this Convention.

CHAPTER II
SERVICE OF JUDICIAL AND EXTRA - JUDICIAL DOCUMENTS

Article 2

1. When judicial and extra-judicial documents drawn up in the territory of a Contracting party are to be served on persons resident in the territory of the other Party, they shall be served on the addressee whatever his nationality, through one of the forms provided for in Article 3.

2. The expression "requesting Party" which occurs in Chapter II of this Convention, means the country where the documents to be served are drawn up and the expression "requested Party" means the country where the documents are to be served.

Article 3

1. The request for service shall be addressed by a diplomatic agent or consul, acting on behalf of the requesting Party to the designated authority of the requested Party, so that the document concerned may be served by the competent authority.

2. The request for service, specifying the names and capacities of the parties, the name, address and capacity of the addressee and the nature of the document to be served, must be in the language of the requested Party and be accompanied by two copies of the document concerned.

3. The document to be served shall be either in the language of the requested Party or accompanied by two copies of translation made into this language. The translation must be certified as accurate by the diplomatic agent or consul of the requesting Party.

4. Except when the service is effected in a special form, which is indicated in the request in so far as it is compatible with the law of the executing country, the competent authority shall effect the service in the form provided for in the law of that country as regards the service of similar documents.

5. A request for service which conforms to the preceding provisions of this Article may be refused only:

(a) if the authenticity of the request for service is not established, or

(b) if the Contracting Party which will effect the service in its territory, considers that such service is likely to prejudice the sovereignty or security of the State or is contrary to its public policy.

6. In all cases where a request for service is not executed, the requested authority shall, as soon as possible, inform the diplomatic agent or consul of the requesting Party the reason why the request has been refused.

7. The designated authority to which the request is made for the execution of service shall send to the diplomatic agent or consul of the requesting Party an attestation stating that the service has been effected. In case of failure, the requested Party shall inform the diplomatic agent or consul of the requesting Party the reasons which prevented the execution of the service. An attestation specifying the fact in regard to failure of such service will be attached thereto.

Article 4

1. In the case where the documents are served in accordance with the provisions of Article 3, the Contracting Party, whose diplomatic agent or consul has transmitted the request for service, shall refund to the other Contracting Party the fees which must be, under the law of the country where the service is effected, paid to the officials charged with the execution of the service as well as the costs incurred by reason thereof. The fees and costs may not exceed the amount usually paid in the law Courts of the requested State.

2. The competent authority which has effected the service shall request the diplomatic agent or consul of the requesting Party to reimburse the fees and costs in question while sending the attestation provided for in paragraph 7 of Article 3.

3. In connection with the service of documents, a Contracting Party shall not pay any fees, under whatever denomination, to the other Party other than those mentioned above.

CHAPTER III

TAKING OF EVIDENCE

Article 5

1. When a judicial authority of a Contracting Party deems it necessary to take evidence in the territory of the other Contracting Party, the evidence may be taken in the form provided for in Article 6, whatever the nationality of parties and witnesses may be.

2. For the purposes of Chapter III of this Convention:

(a) The expression "taking of evidence" comprises taking of testimonies, on oath or on solemn affirmation, of plaintiff, respondent, witness, expert, defender or of any other person; administering oath to the plaintiff, respondent, witness, defender, expert or to any other person pursuant to any provision of the procedure; producing, identifying or examining of any documents, samples or any other object;

(b) the expression "witness" means any person from whom it is deemed necessary to take any evidence;

(c) the expression "requesting Party" means the country where the law Court requires to take evidence, and the expression "requested Party" means the country where the evidence is to be taken.

Article 6

1. The judicial authority of the requesting Party may, in conformity with the law of its country, request for taking of evidence by means of a Letter Rogatory addressed to the designated authority of the requested Party to be transmitted to the competent judicial authority.

2. Letter Rogatory shall be either in the language of the requested Party or accompanied by two copies of a translation made into this language. The translation shall be certified as accurate by the competent authority of the requesting Party. The Letter Rogatory shall contain the nature of the action motivating the request for taking of evidence, all the necessary information

relating to the subject, the names of the parties, the names, capacities and addresses of the witnesses. In addition to this:

(a) either a list of questions to be put to witnesses or, if required, information on the qualities of the documents, samples or other objects, production, identification or examination of which is required shall be provided together with their translation duly certified as accurate; or

(b) the competent authority shall be requested to permit the parties or their representatives to ask the questions they wish to put.

3. Except when the Letter Rogatory is executed in a special form, should an express request to this effect have been made in the Letter Rogatory, in so far as it is compatible with the law of the requested Party, the competent authority of the requested Party shall execute the Letter Rogatory observing the same form and employing the same means as it would when carrying out a Commission from the authorities of its own country.

4. The diplomatic agent or consul of the requesting Party shall, if it is so required, be informed of the date and place where the Letter Rogatory is to be executed, in order that the Party or parties may be notified that they may be present themselves or, if they so wish, be represented by an Advocate, pursue of action or any other person having the power of representation in the law Courts of the requested Party.

5. A request for executing a Letter Rogatory which conforms to the preceding provisions of this Article may be refused only:

(a) if the authenticity of the Letter Rogatory is not established; or

(b) if, in the territory of the requested Party, execution of the Letter Rogatory does not fall within the competence of its judicial power;

(c) if the Contracting Party, in whose territory execution should be effected, deems it likely to prejudice the sovereignty or security of the State or contrary to its public policy.

6. In all cases where a Letter Rogatory is not executed by the competent authority, the designated authority, shall, as soon as possible, inform the diplomatic agent or consul of the requesting Party the reasons why it has not been executed.

7. When a Letter Rogatory is executed, the designated authority shall send to the diplomatic agent or consul of the requesting Party the required documents establishing that the Letter Rogatory has been executed.

Article 7

1. In the case where the evidence is taken in accordance with Article 6, the Contracting Party whose judicial authority has sent the Letter Rogatory shall refund to the other Contracting Party the fees paid, in execution of the request, by the competent authority to witnesses, experts and interpreters and the costs incurred by reason of the execution and the expenses incurred by the summons of the witnesses because they have not appeared of their own free will as well as the fees paid to and expenses incurred by the competent authority to act on its behalf, if the law of the executing country so permits, and the charges and costs incurred by reason of the observance of a special form if it is requested. These expenses shall be such as those which are usually admissible in similar cases before the law Courts of the requested Party.

2. The competent authority which has executed the Letter Rogatory shall require the diplomatic agent or consul of the requesting Party to reimburse the expenses in question while sending the documents provided for in paragraph 7 of Article 6, stating that the Letter Rogatory has been executed.

3. In connection with the taking of evidence, a Contracting Party shall not pay any fees, under whatever denomination, to the other Party other than those mentioned above.

CHAPTER IV PROVISIONS RELATING TO EQUALITY OF TREATMENT IN JUDICIAL MATTERS Article 8

The nationals of a Contracting Party shall, in the territory of the other Party, be entitled to legal protection for their persons and property and to bring actions or defend themselves under the same conditions, including charges and costs and shall enjoy the same rights as the nationals of the other Contracting Party.

Article 9

The nationals of a Contracting Party resident in the territory of the other Party shall not be constrained to effect any payment as security for Court costs which the nationals of the other Party are not obliged to deposit or pay.

Article 10

The nationals of a Contracting Party shall, in the territory of the other Party, enjoy free legal aid on the same basis as the nationals of the latter.

Article 11

Any difficulties which may arise in connection with the application of this Convention shall be settled through diplomatic channels.

Article 12

The present Convention shall be ratified and the instruments of ratification thereof shall be exchanged at Ankara.

The present Convention shall come into force one month after the exchange of the instruments of ratification.

Article 13

The Convention shall remain in force for an indefinite duration.

Any contracting Party may denounce the Convention at any time by giving notice to the other Party. Denunciation shall take effect six months after the date when the other Contracting Party received such notification

IN WITNESS WHEREOF the undersigned plenipotentiaries being duly authorized by their Governments, have signed the present Convention and have affixed hereunto their seals.

DONE in duplicate in English language, at Ankara on this twenty-third day of June, in the year one thousand nine hundred and eighty-one.

For the Government of the Republic of

Turkey.

CEDVET METES,

For the Government the Islamic
Republic

of Pakistan.

S. SHARIFUDDIN PIRZADA,

Minister of justice. Minister of Law and Parliamentary Affairs and Attorney General.

Saif-ul-Islam
Section Officer

These notifications have been produced in the Appendix to this Chapter.

4. Reciprocity has also been established between Pakistan and other countries for the enforcement of maintenance orders as per following details.

LIST OF COUNTRIES WITH WHICH RECIPROCAL
ARRANGEMENTS EXIST

SERVICE OF SUMMONS

(SECTION 29, C.P.C.)

A. PRE-INDEPENDENCE AGREEMENTS.

1. Ceylon.
2. Egypt.
3. European Countries:
(a) Belgium, (b) France, (c) Portugal, (d) Russia, (e) Spain,
(f) Sweden.
4. French Colonial Countries.
(a) Pondichery.
(b) Maraikal.
(c) Mahe.
(d) Yanam.
(e) Saigon and French Indo-China.
5. Iran
6. Iraq.
7. Japan.
8. Kenya.
9. Mauritius.
10. Nepal
11. Siam.
12. Strait Settlements and Union of South Africa.
13. State of Johore.

B. NEW AGREEMENTS**FILE NO.**

1. India and Indian States	F.218/48-Law, dated 1.8.1952
2. Federation of Malaya	F.31/49-Leg, dated 20.8.1952
3. Union of Burma	F.53-VI/50-Sol, dated 13.10.1953
4. Federal Republic of Germany	F.15(23)/52-Sol, dated 2.5.1955
5. Switzerland.	S.R.O 1714(k) dated 29.11.1960
6. Denmark	F.6(4)/75-Sol.II
7. Turkey	F.9(4)/78-Sol.II
8. Greece	F.9(2)/78-Sol.II

ENFORCEMENT OF MAINTENANCE ORDERS**A. PRE-INDEPENDENCE AGREEMENTS FILE NO.**

1. Union of South Africa.	2(1)/66-Sol-II.
2. Southern Rhodesia.	
3. Northern Rhodesia.	
4. Nayasaland.	
5. Kenya.	
6. Victoria.	
7. The Commonwealth of Austrailia.	
8. Federated Malaya States.	
9. Western Australia.	
10. Zanzibar.	
11. England and Ireland	F.120 dated 6.3.1922(F.11(4)/56-Sol)
12. Ceylon.	
13. Colony of Scyehellen.	
14. New South Wales.	
15. Strait Settlements.	
16. Colony of Mauritius.	
17. Somaliland Protectorate.	
18. Uganda.	
19. Besutoland.	
20. British Burma	
21. Sarawak.	

B. NEW AGREEMENTS FILE NO.

1. Federation of Malaya (including unfederated states of Nedah, Kelantan, Perlis, Tenggau & Johore)

F. 18(2)/55-Sol. Dated 21-11-56

2. Victoria

SRO 354(k)/61 dated 1-3-61 (F.18/56-Sol.II)

3. Jersey

SRO 304(k)/64 dated 7-4-64 (F.11(4)/60-Sol.II)

4. Monaco, Upper Volta, Finland, Central African Republic.

SRO 582(k)/63 dated 22-7-63 (F.10(2)/62-Sol.II)

5. Isle of Man

SRO 382(k)/66 dated 15-4-66 (F.1/64-Sol.II)

6. Australian States and Territories. F.1(1)/67-Sol-II)

EXECUTION OF DECREES AND JUDGMENTS

(Section 44-A, CPC)

A. PRE-INDEPENDENCE AGREEMENTS File/ Notification No.

1. Colony of Aden

2. British Burma F.2(1)/66-Sol-II

3. South West Africa

B. NEW AGREEMENTS

1. United Kingdom F.11(5)/56.Sol.dt.26-7-58

2. Colony of Singapore F. 12/52-Sol. dt.22-4-54

3. Fiji F. 227/48-Sol. dt.3-6-49

4. Australian Capital Territory F. 12/55-Sol. dt. 11-4-57

5. Northern Territory of Australia SRO 403, dated 22-8-59 F-12/56-Sol

6. New Zealand including the Cook Islands (including Niue) and the Trust Territory of Western Samoa.

F.11(2)/56-Sol dt.3-11-58 (Deemed to have taken effect as on from 27-8-58)

7. States of Queensland and of Western Australia

SRO 482(l)/73 dt. 2-4-73 F.1(2)/72-Sol.II

8. Australian State of Victoria.

SRO 1067(k)/70 dt. 21-9-70 F.1(2)/67-Sol-II

9. State of Kuwait

SRO 567(1)/83.

F.1(1)/71-Sol.II

10. Turkey

F.9(4)/78-Sol.II]

CHAPTER 13

TRANSFER AND WITHDRAWAL OF SUITS AND APPEALS

1. Transfer of Part-heard cases.-- Section 24 of the Code of Civil Procedure provides for the transfer of suits, appeals or other proceedings pending in subordinate Courts. Although this power of transfer may be exercised at any stage of suit, appeal or other proceedings, no part-heard case should be transferred from one Court to another, if this can possibly be avoided

2. Courts requesting for transfer should record reasons.-- In submitting applications to superior authority for the transfer or withdrawal of cases under section 24 of the Code of Civil Procedure, Civil Courts should always record a short statement of the case, with their reasons for making the application.

3. Transfer of a case in which the judge is personally interested or in which the order appealed against was passed by him.-- Whenever a suit or appeal comes before a Judge ^{***}[...] in which the order appealed against was passed by himself, a report should at once be made to the superior Court concerned with a view to the case being transferred to another Court.

^{**}[The transfer of cases on personal grounds should be regulated in accordance with the observations made in 1988 S.C.M.R. 897 (902).]

4. Parties should be informed of the date for appearance before District Judge when a Court requests for transfer. District Judge to inform parties the date for appearance before the Court to which he transfers the case.-- If a subordinate Court sends a case to the District Judge with an application for its transfer, on the ground that it is beyond his jurisdiction or on similar grounds, it should give the parties a date of appearance before the District Judge. The District Judge will either hear the matter on that day, or, when this is not possible, give an other date. If orders for transfer are passed, the parties present should be informed of the Court to which the case has been transferred, and a date should be fixed by the District Judge, for their next appearance in the new Court.

5. On transfer of a case to another Court parties to be informed of date for appearance before that Court.-- If an application is made by one

of the parties for a transfer, and orders of transfer are passed after notice to the other side, the parties present should similarly be informed by the District Judge of the Court to which the case has been sent and the date on which they should appear before it.

6. Records to be sent immediately to the Court to which case is transferred.--

When a case is transferred by administrative order from one Court to another, the Presiding Officer of the Court from which it has been transferred shall be responsible for informing the parties regarding the transfer, and of the date on which they should appear before the Court to which the case has been transferred. The District Judge passing the order of transfer shall see that the records are sent to the Court concerned and parties informed of the date fixed with the least possible delay. When a case is transferred by judicial order the Court passing the order should fix a date on which the parties should attend the Court to which the case is transferred.

7. Withdrawal of a suit by plaintiff.-- A plaintiff is at liberty to withdraw from a suit at any time (subject to any order as to costs that the Court may pass), but if he wishes to reserve his right to sue again he must obtain permission of the Court under Order XXIII, Rule 2, Civil Procedure Code. Permission can only be granted on the grounds specified in the rule. The words "other sufficient grounds" have been interpreted to mean grounds of the same nature as the grounds specified in clause (a) of sub-rule 2 of Rule I of the Order. The mere fact that plaintiff has not been able to produce adequate evidence to establish his case is no justification for granting permission under this rule.

8. District Judge may transfer a case to Additional District Judge.-- A District Judge may, with due regard to convenience, transfer a case under section 24, Civil Procedure Code, to an Officer in another district when that officer is acting as an *ex-officio* Additional District Judge of the district from which the case is to be transferred. In such case no reference to High Court is necessary except when any difficulty is experienced in making transfers.

9. District Judge can transfer or withdraw an appeal without reference to High Court.-- The District Judge can, without reference to the

High Court, transfer or withdraw any appeal pending in the Court of the Additional or *ex-officio* District Judge.

But he cannot exercise jurisdiction in such a manner as to set aside the orders of the High Court. Thus an appeal once transferred under the orders of the High Court cannot be re-transferred without further orders from the High Court.

10. Record of applications for transfer.-- Applications for transfer of civil cases and the proceedings therein should form files separate from the record of the main case sought to be transferred and the records of such transfer applications should be separately consigned to the Record Room. The original order on transfer application should be kept on the record of the transfer proceedings and a copy of this order should be sent to the Court concerned.

11. Record of transferred cases.-- Cases transferred by a Court of its own motion or on administrative grounds should not be entered in any register and it is unnecessary to keep any statement of cases so transferred. It is not necessary in such cases to make any separate record of the transfer proceedings and the original order of transfer instead of a copy, may be sent to the Court concerned.

CHAPTER 14

APPEALS AND REVISIONS -- CIVIL

PART A -- THE APPELLATE SYSTEM OF THE PUNJAB

***[1. Classes of appellate Courts.--** There are four classes of Appellate Courts in the Punjab - the High Court; the Court of the District Judge; the Court of the Additional District Judge, where functions are assigned to him (See Section 6(2) of the Punjab Civil Courts Ordinance, 1962 (II of 1962), and the Court of Civil Judge, if so empowered by a notification issued by the High Court under section 18(3) of the aforesaid Ordinance. For appellate powers conferred on Civil Judges see paragraph 17 of Part A of Chapter 10 of this volume.

2. Forum of appeal.--(i) An appeal from a decree or order of a Civil Judge lies-

(a) to the Senior Civil Judge, if specially empowered as indicated in paragraph 1 above;

(b) to the High Court if the value of the original suit in which the decree or order was made exceeds two hundred thousand rupees; and

(c) to the District Judge in any other case.

(ii) An appeal from a decree or order of a District Judge or Additional District Judge exercising original jurisdiction lies to the High Court.

(See section 17 and 18 of the Punjab Civil Courts Ordinance, 1962).

3. Forum of appeal.-- When a Civil Judge has been invested with appellate powers under section 18(3) of the Punjab Civil Courts Ordinance, 1962 (II of 1962), all appeals from decrees or orders of Civil Judges of the first, second and third classes, which such Civil Judge has been empowered to hear, shall be preferred to such Civil Judge.

4. Withdrawal of appeal from and transfer to Civil Judges.-- If any such appeal is pending before a District Judge, the latter may transfer it to any Civil Judge under his control competent to dispose of it. He may also withdraw any appeal so transferred and either dispose of it himself or transfer it

to any competent Court under his control. (Section 15 Punjab Civil Courts Ordinance, 1962).

5. Second appeal in certain cases.-- Section 102 of the Civil Procedure Code, 1908 provides the condition under which a second appeal lies to the High Court from a decree passed in appeal by a Court subordinate to the High Court. No second appeal lies in any suit of the nature cognizable by Courts of Small Cause when the amount or value of the subject matter of the original suit does not exceed twenty five thousand rupees and, in any other suit when the amount or the value of the subject matter of the original suit does not exceed two hundred fifty thousand rupees.]

6. Appeal in compromise cases.-- Section 96(3) of the Code of Civil Procedure provides that no appeal shall lie from a decree passed with consent of parties.

7. Appeal from preliminary decrees.-- Section 97 of the Code provides that a preliminary decree, which has not been appealed against, shall not be questioned in any appeal preferred from the final decree.

8. Appeal from orders.-- An appeal lies from any order of the kinds specified in section 104 of the Code and Order XLIII, Rule 1, and from no other orders.

8-A. Every appeal for interlocutory order shall be accompanied by an affidavit of the appellant or his agent or his Advocate to the effect that a copy of Memorandum of Appeal and a copy of the order appealed from have been delivered to the respondent or his Advocate.

PART B -- GENERAL PROCEDURE OF APPELLATE COURTS

(a) Copies to accompany the memorandum of appeal

1. First Appeals, Second Appeals, Judgment, Disposal of some issues, Duty of copying agency.-- Order XLI, Rule 1, of the Code of Civil Procedure, provides that the memorandum of appeal shall be accompanied by a copy of the decree appealed against and (unless the Appellate Court dispenses therewith) of the judgment on which it is founded.

In second appeals in addition to the copies specified in Order XLI, Rule 1, the memorandum of appeal shall be accompanied by a copy of the judgment of the Court of first instance, unless the Appellate Court dispenses therewith; vide Rule 2, Order XLII, framed by the High Court.

When some issues are disposed of at first and the rest by the final judgment, it is sufficient to attach a copy of the final judgment to the memorandum of appeal, for the purposes of the above Rules.

Whenever an application is made for a copy of a civil judgment for the purpose of appeal, the applicant should be informed that a copy of the decree is also requisite, and he should be supplied with such copy, unless he declines to pay the necessary fees, in which case a certificate, under the signature of the officer-in-charge of the Copying Department, should be endorsed on the copy of the judgment supplied to the applicant to the effect that he was duly informed that a copy of the decree was requisite, and, after being so informed, declined to pay fees for the same. Similarly, an applicant for a copy of an Appellate judgment for the purposes of a second appeal should be told that a copy of the trial Court's judgment is also requisite.

2. Exclusion of time spent in obtaining copies for limitation purposes.-- Section 12 of the Limitation Act, 1908, directs that the period allowed for appeal shall be reckoned exclusive of the time requisite for obtaining a copy of the judgment and decree appealed against. The time requisite is the time beyond the applicant's control occupied by the Copying Agency after an application for a copy has been duly made to the proper officer. In granting copies, therefore, the Court or the Copying Agency should be careful to endorse on the copy the following particulars:-

- (a) The date of presentation of the application for a copy.
- (b) The date on which the copy was examined and attested.
- (c) The date of delivery or despatch of the copy.

Appellate Courts should be careful to notice any delay in furnishing these copies.

3. Translations.-- Where the order appealed against is in English, it will be sufficient to file a copy of the English order without its counterpart in the vernacular. But should the appellant require it, he should be allowed to take a copy of the vernacular translation (if any) as well.

(b) Preliminary reception of appeals

4. Reception, service of processes, addresses for service.-- The general rules regarding the reception of plaint and service of summonses on defendants in Chapter 1, 'Practice in the trial of civil suits,' apply *mutatis mutandis* to the reception, of appeals and service of notices on respondents. It should be noted that an address for service filed during the course of the trial holds good for the purposes of Appellate proceedings also, and such addresses given by the respondents must be stated in the memorandum of appeal according to Order XLI, Rule 38, as amended by the High Court.

5. Reception by Court official.-- In District Courts, the usual practice is for the Superintendent to receive, in the first instance, the memorandum of appeal. There is no objection to this practice, which is a convenient one for both the Court and suitors. It must, however, be distinctly remembered that the only duty, which can legally be delegated to the Superintendent, is to receive the memorandum of appeal and note thereon the date of its receipt. The order as to its admission or rejection can be passed only by the Court itself.

***[6. Amendment.--** If the grounds of objection to the decree appealed against are not set out concisely or are argumentative or in narrative form in contravention of Order XLI, Rule 1, of the Code of Civil Procedure, the petition of appeal should be returned for amendment under Order XLI, Rule 3, of the Code, and Courts should exercise freely the discretion thereby vested in

them with a view to stricter compliance with the provisions of the second sub-rule of Order XLI, Rule 1, of the Code.]

7. Admission.-- The memorandum of appeal, when bearing the proper Court-fees, must be admitted, if presented in the prescribed form and within the prescribed time, unless it is rejected or returned for amendment under Order XLI, Rule 3, of the Code. When an appeal has been admitted, it will be endorsed with the date of presentation, and the date fixed for hearing, and will be registered by the proper officer of the Court.

8. Disposal under Order XLI, Rule 2.--(i) In admitting the memorandum of appeal the Court should decide, whether it will proceed under Order XLI, Rule 2, of the Code, and fix a time for hearing the appellant or his pleader (with or without the records) without issuing notice to the respondent, or send notice of the appeal to the respondent and to the Court against whose order the appeal is made, and fix a day for hearing the appeal.

(ii) Notice ought not to be issued to a respondent unless the Appellate Court, either without perusing the records of the lower Court or after calling for and perusing such records, is in doubt as to the correctness of the decree appealed against.

9. Disposal under Order XLI, Rule 2.-- The Appellate Courts should be careful to see that the object of the statutory provision of Order XLI, Rule 2, is not defeated and respondents put to unnecessary trouble and expense by the indiscriminate issue of notice to the respondent in all cases.

When decision is confirmed under this rule, the confirmation should be notified to the lower Court.

Such confirmation falls within the definition of 'decree, as given in section 2 of the Code, and being, as such, appealable, a formal decree should be framed in every case disposed of under the provisions of Order XLI, Rule 2.

10. Amendment after admission.-- When an appeal has been registered and a date has been fixed for hearing the petition cannot be returned for amendment. The appeal must be disposed of in the regular manner by dismissal, or by a judgment affirming, varying or reversing the decree of the lower Court. If the appellant should desire to urge any ground of objection not

set forth in the memorandum of appeal, can, under the provisions of Order XLI, Rule 2, of the Code of Civil Procedure, do so only with the permission of the Court, and such permission should ordinarily be applied for in writing, some time before the date fixed for the hearing, under Order XLI, Rule 12, of the Code, in order that the respondent may have sufficient opportunity of contesting the case on that ground, without the necessity of a postponement.

11. Pauper appeals.-- Attention is drawn to the definition of decree given in section 2 of the Code and to sections 104, 105 and Order XLIII which specify what orders are appealable.

12. Default in appearance.-- Appeals in *forma pauperis* should not be admitted, unless the Court, after perusal of the judgment and decree finds the decree to be contrary to law or some usage having the force of law or is otherwise erroneous or unjust (Order XLIV, Rule 1).

(c) Hearing and disposal of appeal

13. (i) If, on the day fixed for the hearing of the appeal under Order XLI, Rule 12, of the Code or any other day to which the hearing is adjourned, the appellant does not attend in person or by agent, the appeal should usually be dismissed for default. It is illegal to take up a civil appeal in the absence of the appellant or his agent and confirm the decision of the lower Court on the merits instead of dismissing the appeal for default; for if appellant afterwards appears, shows good cause for his absence on the day fixed for hearing and applies for re-admission of the appeal, the Court is met by the difficulty that the appeal has already been heard on the merits.

(ii) In any case, where a party, whose non-attendance is a ground for dismissal of the proceeding for default, is not present when the proceeding is called on for hearing, the Court may postpone passing final order, if there is other work, which the Court can conveniently take up in the meantime. No hard and fast rule can be laid down, and the matter is one for the exercise of proper discretion in view of all the circumstances. But Courts should endeavour to dispose of cases on merits as far as practicable and avoid dismissals in default, when this can be done without wasting of time of the Court or prejudice to other litigants.

The above remarks also apply to the hearing of an appeal *ex parte* owing to the absence of a respondent.

If an adjournment is necessary by reason of a party not having appeared when first called, he may properly be ordered to pay all the costs caused by the adjournment.

14. Special Power.-- Special attention is invited to Order XLI, Rule 33, which introduces an English rule of law whereby an Appellate Court is given the fullest power to do complete justice between the parties concerned in the suit, whether such parties have joined in the appeal or not.

15. Appeals from orders during proceedings.-- Appeals from orders in pending proceedings should be disposed of as promptly as possible, so as not to delay those proceedings unnecessarily.

(d) Judgment in appeal

16. Contents.-- The judgment of the Appellate Court should contain the point or points for determination, the decision thereupon and the reasons for the decision, and, when the decree appealed against is reversed or varied, the relief to which the appellant is entitled (Order XLI, rule 31, of the Code of Civil Procedure). In other words, the judgment should be complete in itself and should give a concise account of the case between the parties, intelligible not only to the superior Appellate Courts, but to the public.

17. Grounds of Appeal and evidence.-- It is not intended that the judgment of the lower Appellate Court should ordinarily be as detailed as that of the Court of first instance, e.g., it will rarely be necessary for the lower Appellate Court to deal with the evidence of particular witnesses or to examine in detail the whole of the evidence; but it should give an intelligent and clear summary of the evidence which it has to consider and state the reasons for which it thinks particular portions of the evidence to have been more or less worthy of consideration. If any ground of appeal is not pressed by counsel or is withdrawn, the Appellate Court should invariably mention this fact in the judgment. At present, owing to the failure of Courts to show that all the grounds of appeal have been either argued or considered, or withdrawn or not pressed, second appeals have frequently to be admitted to a hearing owing to the

plea that some ground of appeal has been overlooked by the lower Appellate Court. An appellant is entitled to expect not only that every objection to the judgment or the proceedings of the lower Court, which is taken in due form and is relevant and of a substantial character, should be considered, but also that a decision upon the point raised by such objection should be recorded in the Appellate Court's judgment.

18. Findings of facts.-- The findings of fact in first appeals are as a rule final and cannot be challenged except on certain grounds. Appellate Courts should, therefore, realise their responsibility in the matter and should take care to see that the findings of fact on which their decision is based are clear and precise and to indicate that all relevant evidence, oral as well as documentary, has been duly considered. If this is not done, second appeals have to be frequently admitted on the ground that the necessary findings of fact are either vague or non-existent or that important evidence on the record has been ignored.

19. How parties to be named.-- As confusion frequently arises from the use of the words "appellant" and "respondent" in two successive Appellate Courts, especially when the parties appealing belong to different sides, Appellate Courts should not use these terms without the addition of the words 'plaintiff' or 'defendant' as the case may be; or the latter terms alone may be used.

(e) Decrees in appeal

20. Contents of decrees.-- Under the provisions of Order XLI, Rule 35, of the Code, the decree of the Appellate Court is required to contain the number of the appeal, the names and description of the parties, a clear statement of the relief granted or other determination of the appeal, and an order as to costs.

Note:- For directions as to filling up decretal orders of Appellate Court see 'Chapter 11-B.'

(f) Remands

21. Fixing date of appearance in lower Court.-- Whenever a case is remanded for re-decision under Order XLI, Rule 23, or for the trial of certain

issues under Order XLI, Rule 25, the Court ordering the remand shall at once, in the presence of the parties, give them a date on which they shall appear before the trial Court and note the fact on the record.

22. Court in which remand case is pending.-- When a case is remanded by an Appellate Court under Order XLI, Rule 23, it must be restored to its original number on the register of the Court, to which it is remanded and be considered as a pending regular suit; but if it is referred for the re-investigation of certain issues, under Order XLI, Rule 25, it should remain on the register of the Appellate Court and be considered as an appeal pending in that Court.

23. Framing of decree.-- An order of remand under Order XLI, Rule 23, of the Code of Civil Procedure not being a decree as defined in the said Code, the framing of a formal decree by the Appellate Court in cases remanded by it under that rule is incorrect.

24. Date of return by lower Court.-- When a case is remanded under Order XLI, Rule 25, of the Code of Civil Procedure, reasonable time should be fixed for the return of findings by the lower Court. The latter Court should make every effort to submit the report by the date fixed, but if this is found to be impracticable, it should apply at once for an extension of time, stating its reasons and mentioning the date by which it expects to be able to submit the required report.

25. Date for objections.-- Appellate Courts should pay special attention to the provisions of Order XLI, Rule 26, of the Code of Civil Procedure. They should take measures to ensure that in all cases of remand under Order XLI, Rule 25, a definite period, subsequent to the return of the record of the inquiry to the Appellate Court, shall be fixed to admit of objections being filed by any dissatisfied party, due notice of such period being given to the parties. No Court should proceed to final judgment without ascertaining that such period has been duly allowed. If it has not, the Appellate Court should either postpone the appeal or ascertain and record the objections of the parties or either of them, or ascertain, and record that neither party has any objection to advance.

26. Additional evidence.-- Appellate Courts have the power to admit additional evidence under Order XLI, Rule 27, of the Code of Civil Procedure, but this can only be done on the grounds stated therein and the reasons for admitting the evidence must always be clearly recorded.

(g) Service of processes of Appellate Courts.

27. Duty of lower Court in the matter of service.-- It not infrequently happens that processes of Appellate Courts sent to districts for service on respondents are returned with a note to the effect that the respondent has left or is not residing in the district, and the hearing of the appeals has therefore to be postponed. To obviate this in future, attention is drawn to Order V, Rule 23, of the Code of Civil Procedure, which places the Court called upon to serve the process in the same position as if it had itself issued it. The provisions of the Code on this point should be carefully attended to and when a party on whom process has to be served is not in the district to which such process has been sent, it should be forwarded by the Court, to which it was originally sent, to the Court having jurisdiction in the district in which such party may be residing. (See also Order V, Rule 21).

28. Statement of serving officer.-- In the case of summonses from the High Court, the Court serving the summons shall record the statement of the peon as to such service on solemn affirmation, and shall verify the same with its signature before returning the summons.

PART C -- SECURITY IN REVISION CASES

1. Security to be given in lower Court.-- When an application for revision under section 115 of the Code of Civil Procedure, 1908 or under section 25 of the Provincial Small Cause Courts Act, 1887, has been made in the High Court and it is ordered in that Court that the applicant shall give security in any Court subordinate to the High Court for the due performance of the decree or order sought to be revised, such Court shall, upon receiving intimation from the High Court of such order, accept, from the applicant any amount which he may offer to deposit, or any security which he may tender for the purpose of satisfying or giving security for the performance of the said decree or order, and shall retain the same in its custody pending the further order of the High Court.

2. Report by lower Court to High Court.-- When a deposit has been made or security tendered in the Subordinate Court, such Court shall, on the request of the applicant or on receipt of a precept from the High Court, certify in writing addressed to the Deputy Registrar of the High Court what has been done by the applicant, with its own opinion, if required, as to the sufficiency of the security tendered.

3. Procedure in lower Court.-- In all cases not provided for in these directions or by a special order of the High Court the same practice shall be followed in the Subordinate Court as prevails in such Court, when taking security in pursuance of an order made under Order XXI, Rule 26 (3), of the Code of Civil Procedure (requiring security upon stay of execution of a decree), or under Order XLI, Rule 5, of the Code of Civil Procedure (for the taking of security for the performance of a decree or order under appeal to a superior Court).

4. Procedure in lower Court.-- The preceding directions shall apply, so far as may be, when a person intending to apply to the High Court under section 115 of the Code of Civil Procedure, or section 25 of Act IX of 1887, has performed, or tendered security for the performance of, or deposits the amount of the decree or order which he desires to have revised, in the Court in which such decree or order is pending for execution, or by which it would ordinarily be executed under section 38 of the Code of Civil Procedure.

PART D -- PROCEDURE IN THE CASE OF APPEAL AND APPLICATIONS PRESENTED AFTER PERIOD OF LIMITATION

1. Memorandum of appeal to be checked for purposes of limitation.-- Upon the presentation of a memorandum of appeal to an Appellate Court, the officer whose duty it is to examine such memorandum shall examine the copy or copies of judgments and decrees attached to the appeal, and shall calculate whether, after deducting the allowance sanctioned by law, the memorandum has been presented within time.

2. (i) Office to note when appeal appears to be time-barred.-- If the memorandum of appeal appears to be presented after time, or there appears to be ground for doubting whether it is within time, such officer shall record upon or annex to the memorandum of appeal a note of his calculation, showing--

(1) the date when the period expired, without, any allowances;

(2) the allowances to which appellant seems entitled;

(3) the date when the period expired, after all the allowances, to be made under head (2) have been made.

(ii) Points to be borne in mind in making calculation.-- In making such calculations the following points must be borne in mind:--

(a) The date when the time expired under head (1) is to be calculated irrespective of such date falling upon a day when the Court is closed for a holiday (including Friday) or for vacation, any allowance on this account being noted under head (2) of the calculation.

(b) The entries endorsed on copies of judgments and the like will be assumed to be correct.

(c) The date on which the application for copy is made and also the day on which the copy is given will each be reckoned separately as one day unless both events occur on the same day.

(d) Applicants for copies shall be given a date on which delivery of the copy is to be taken. If the copy is not then completed, such date shall be extended from time to time, under intimation to the applicant, until the copy is ready for delivery. The final date so intimated shall, for the purpose of the calculation required by this rule be deemed to be the day on which the copy is given.

Calculation in case of copies sent by post.-- In this connection attention is invited to the ruling of the High Court in I.L.R. III Lah. 280, where it was held that when copies of judgments are despatched by post, in accordance with rules, the period intervening between completion and despatch of the copies must be excluded in computing the period allowed for an appeal.

3. Duty of office to obtain orders of the court.-- It shall be the duty of the officer presenting the memorandum of appeal for the consideration of the Court of appeal to bring to its notice the note of calculation above prescribed.

4. Note by Court.-- Whenever, on the date fixed for taking a memorandum of appeal into consideration, it appears *prima facie* to the Court to have been presented after the expiry of the period prescribed by law, as calculated in the manner prescribed by law, the Court shall record its opinion to that effect, stating the number of days by which such period seems to have been exceeded.

5. Appellant required to explain for delay.-- In such cases, if the appellant has not tendered, with the memorandum of appeal, any explanation of the delay in presenting it, the Court shall, if the appellant is present in person or by agent, record an order thereon, or to be annexed thereto, requiring the appellant to supply such explanation in writing, and to re-present such appeal within a period to be specified in the order. Such period may be enlarged in the discretion of the Court, either before or after it has expired, upon sufficient cause for such enlargement being shown to the satisfaction of the Court.

6. Examination of appellant.-- When the memorandum of appeal is re-presented with the explanation required, or when the memorandum of appeal as first presented contains an explanation of the delay in presenting it, the Court shall take into consideration the explanation offered, and may examine the appellant or his agent, in order to elucidate the explanation.

7. Court may dismiss appeal as barred by time.-- If the Court is of opinion that assuming all the facts stated by way of explanation to be true the explanation is insufficient, the Court shall record an order to that effect, and shall reject the appeal as barred by time.

8. Appellants to be called upon to prove facts which bring appeal within time.--

If the Court considers that if all or any of the facts stated by way of application be true, the explanation will be sufficient to justify the admission of appeal it shall give the appellant an opportunity of proving the truth of the facts stated.

9. Mode of proof.-- Such proof may be given either by affidavit, or by oral testimony, upon a date to be fixed by the Court for that purpose, unless the appellant be ready to give, and the Court finds it convenient to receive, such proof at once.

10. Power of court to dismiss appeal as barred by time when no explanation of delay attached to memorandum of appeal.-- When no such explanation is presented with the memorandum of appeal, and the appellant is not present in person or by agent, the Court may, after recording its opinion as directed in paragraph 4 above, unless it sees cause to postpone the passing of a final order, forthwith dismiss the appeal as barred by time without considering the merits of the appeal as set forth in the memorandum.

11. Procedure as to applications.-- Similar procedure should be observed, so far as may be, by all Civil Courts, whether of original jurisdiction or not, in respect of applications for review, and any other application which may by law be admitted upon sufficient cause being shown, although it has been presented after the period prescribed by law has expired.

PART E -- TRANSMISSION OF APPELLATE COURT'S ORDERS TO LOWER COURTS

The following rules are made by the High Court in regard to the transmission of Appellate Court's orders to lower Courts:-

RULES

1. District Judge to send copies of his judgments to Senior Civil Judge.-- The District Judge will send copies of all his judgments on appeal to the Senior Civil Judge.

2. Senior Civil Judge to send it to Court concerned.-- The Senior Civil Judge will transmit the copies to the original Court for information and return direct to the Record-keeper, to whom the original records will be sent at once.

3. Senior Civil Judge to send copies of his judgments to Court concerned.-- The Senior Civil Judge will send copies of all his judgments on appeal to the original Court for information and return direct to the Record-keeper, to whom the original record will be sent at once.

4. Form to be attached by appellate court to original record.-- Appellate Courts will attach to the original record the following form:-

Date.

Copy of judgment attached by District Judge

Copy of judgment attached by Senior Civil Judge

Copy of judgment despatched by Senior Civil Judge

Copy of judgment received by Record-keeper

(It will be simpler to have only one form)

5. Running list of the record-keeper.--(a) The Record-keeper will maintain a running list prepared from the above form of all cases in which copies of judgments have been sent out. When the copies of judgments are returned to him by the original Courts, he will add them to the records, fill in the date of receipt, and strike those cases off his running list.

(b) If copies are not returned within 10 days of despatch he will issue a reminder(which should be on a printed form) and if that is ineffective, report the matter to the despatching Court.

(c) The running list will be in the following form:-

Name of case Date of Despatch Date of reminder, if any

(d) The reminder will be in the following printed form:-

To the Court of.....

A copy of the judgment of the was despatched to you by theon.....and has not yet been received by the Record-keeper. Please return at once.

Date..... Record-keeper

6. Sending for records from record-room.-- Officers presiding over Subordinate Courts held at the District Headquarters, if in any particular case they desire to see their original record, will be allowed to call for it, provided that it must not leave their Court-room.

CHAPTER 15

REFERENCES TO THE HIGH COURT

References to the High Court under Order XLVI of the Code of Civil Procedure, 1908, and sections 99 and 100 of the Punjab Tenancy Act, 1887.

1. Reference under section 113 and Order XLVI, Civil Procedure Code.-- A reference to the High Court by *[a Court], under the provisions of section 113 and Order XLVI, rule 1 of the Code of Civil Procedure, should be made only when the Presiding Judge entertains a reasonable doubt on the point of law or usage having the force of law referred and not merely on the importunity of pleaders.

2. "Reasonable doubt on a point of law" explained.-- A subordinate Court cannot be supposed to entertain a reasonable doubt on a point of law if it has been decided clearly in a ruling of the High Court, unless some doubt has been thrown on the correctness of the same by a ruling of the *[Supreme Court]. Nor has an Appellate Court, which has no jurisdiction to hear an appeal, any jurisdiction to make a reference. (vide 8 P.R. 1914; 61 P.R. 1913).

3. Mode of reference.-- In making a reference, the Presiding Judge should be careful to conform to the requirements of Order XLVI, Rule 1, of the Code of Civil Procedure by--

- (i) drawing up a statement of the facts;
- (ii) stating the point on which doubt is entertained; and
- (iii) stating his opinion on such point.

Each of the above statements should be precise and clear, or the High Court may find itself compelled to return the reference for amendment under Order XLVI, rule 5, of the Code of Civil Procedure.

4. Optional and compulsory references.-- It should be noted that references under section 99 of the Punjab Tenancy Act, 1887, and under Order XLVI, rule 6, of the Code of Civil Procedure, are made at the discretion of the Court, as are also those under Order XLVI, rule 7, when not required by a party to the suit. There is no such discretion in cases falling under section 100

of the Punjab Tenancy Act, 1887, or Order XLVI, rule 7, if required by a party.

5. References under Order XLVI, rule 7.-- It should also be noted that, by the terms of Order XLVI, Rule 7, a reference may be made only when it appears to the District Court that a Court subordinate to it has, by reason of erroneously holding a suit to be cognizable by a Court of Small Causes, or not to be so cognizable, failed to exercise a jurisdiction vested in it by law, or exercised a jurisdiction not so vested; unless this condition is fulfilled, -- that is, unless the Court is itself of opinion that one of these errors has been committed, -- it has no power to refer; when that condition is fulfilled, the Court still has a discretion to make or refuse to make a reference unless it be required to make it by a party. In the latter case, the Court is bound to make a reference.

6. Channel for reference.-- References under section 100 of the Punjab Tenancy Act, 1887, and under Order XLVI, rule 6 of the Code of Civil Procedure, may be made to the High Court direct, but references under section 99 of the Punjab Tenancy Act, 1887 must be made through the District Judge who should forward them without avoidable delay.

7. Reference by Civil Judge as a Court of appeal.-- If a Civil Judge sitting as a Court of Appeal is of opinion that a reference ought to be made under Order XLVI, rule 7, of the Code of Civil Procedure, he should submit the record of the case to the District Judge for orders with a statement of reasons.

8. Character of suit to be described in reference.-- It is essential that the true character of the suit should be described with precision and accuracy in the heading of the reference.

9. Reference under section 99, Tenancy Act.-- When a subordinate Revenue Court has returned a plaint on the ground that the suit is one over which such Revenue Court has no jurisdiction, and the plaint is subsequently presented in any subordinate Civil Court, such Civil Court, if it considers that the suit is not in fact triable by a Civil Court, should not again return the plaint, but should refer the point at once under section 99 of the Punjab Tenancy Act, XVI of 1887.

10. Parties should be heard before making reference.-- A reference by a Civil Court under section 99 or section 100 of the Punjab Tenancy Act, 1887, or under Order XLVI, rule 6 or 7, of the Code of Civil Procedure, shall not be made until the parties to the suit have had an opportunity of showing cause against such reference in the Court which proposes to make it.

11. Objections of parties to be placed on record.-- The Court making a reference under any of the sections mentioned in the preceding paragraph shall, in its order of reference, certify that such opportunity has been given, and shall place on record the objections, oral or written (if any), of any party against the making of such reference, and, when the reference is under section 100 of the Punjab Tenancy Act, 1887, any objection of any party to the effect that he has been prejudiced by the alleged mistake as to jurisdiction.

12. Notice of reference to parties.-- The Court making the reference shall give notice either orally or in writing, to such parties as attended or are represented in Court when the order of reference is made--

(i) that the attendance of the parties in the High Court at the hearing of the reference is not obligatory;

(ii) that any party desirous of attending at such hearing must enter an appearance at the office of the Deputy Registrar of the High Court in Lahore on or before a date to be specified in the notice.

13. Date fixed for appearance in High Court.-- The date specified shall be such as to allow a reasonable time for the parties to appear in the High Court, and shall be a date not less than one month in advance of the date of making the reference.

14. Court shall specify that parties have been informed.-- The Court shall certify in its order, (1) that the notice required by paragraph 12 has been duly given, orally or in writing as the case may be, and (2) the date specified in such notice.

15. Points to be noted in references under sections 99-100 of the Tenancy Act.-

- Every reference under section 99 or section 100 of the Punjab Tenancy Act, 1887, shall state the reasons for making the reference, and shall indicate the Revenue Court which in the opinion of the Court making the

reference, has or had (as the case may be) jurisdiction under section 77 of the Act over the suit in which the reference is made. The Revenue Court in which the referring officer thinks the decree should be registered, should be accurately described according to the nomenclature prescribed in section 7 of the Punjab Land Revenue Act, 1967, (read with sections 75, 76 and 77, clauses (1) and (2) of the Punjab Tenancy Act, 1887).

16. Necessary records to be sent alongwith order of reference.-- The Court making the reference shall forward, with its order, the record of the suit in which the reference is made and of all proceedings (if any) by way of execution or otherwise in such suits subsequent to the decree, and also the records of any other connected proceedings necessary for consideration of the reference in the High Court.

17. Application of these directions to Revenue Courts.-- The above directions apply *mutatis mutandis* to Revenue Courts.

18. Reminder from High Court if no reply received.-- Whenever it is found that a reference made to the High Court has not been replied to, or intimation of a date having been fixed given within two months of making such reference, the attention of the Registrar should be drawn to the fact.

CHAPTER 16

LEGAL PRACTITIONERS

PART A -- THE FILING OF POWERS-OF-ATTORNEY BY PLEADERS IN SUBORDINATE COURTS

Pleading and acting by pleaders.-- Whereas by Order III, rule 4, of the Code of Civil Procedure, no pleader shall 'act', for any person in any Court unless he has been appointed by an instrument in writing, nor shall any pleader, who has been engaged for the purpose of pleading only, plead on behalf of any person unless he has filed in Court a memorandum-of-appearance or unless he has been engaged by another pleader duly appointed, and no such pleader can be recognised in the absence of a written authority or memorandum-of-appearance as aforesaid as empowered to plead or act for any person in any proceeding governed by the Code of Civil Procedure, and it is expedient to provide for ascertaining that every such pleader is duly authorised to appear, plead or act in any such proceeding before subordinate Courts, the following instructions have been issued by the High Court:--

(1) **Power-of-attorney to act to be executed by the principal.--** Every appointment of a pleader to act shall contain in full the name of the person, or where there are more than one, of every person who thereby appoints the pleader to act on his behalf, and shall be executed by every such person.

(2) **Proof required when power of attorney not executed by the principal.--** When such appointment or power is not executed by the principal himself, but by some person claiming to appoint or give authority on his behalf, the pleader will not be recognised by the Court without proof that such person was duly authorised by the principal to execute such appointment or power.

(3) **Power of attorney or memorandum of appearance in cross-appeals.--** In cross-appeals a pleader who has already filed a power-of-attorney or memorandum-of-appearance for the appellant shall not be required to file another power-of-attorney or memorandum-of-appearance for his client as respondent in the cross-appeal.

PART B -- FEES OF COUNSEL

**[Rules made by the High Court under the powers conferred by section 60 of the Legal Practitioners' and Bar Councils Act, 1973, fixing and regulating the fees payable by any party in respect of the fees of his adversary's Advocate, upon proceedings in Civil Courts subordinate to the High Court.]*

RULES

***[1. Liability for the fees of adversary's advocate.--** (1) In all proceedings before the Courts subordinate to the High Court, the unsuccessful litigant shall ordinarily be liable for the fees of his adversary's Advocate (to be hereinafter called "the fee") subject to the conditions and according to rates as provided in these Rules.

(2) The fee shall be included in the costs of the proceedings.]

2. ***[Omitted]

3. Suits for recovery of property, breach of contract or damages.-- In suits for the recovery of specific property, or a share of specific property, whether immovable or movable, or for the breach of any contract or for damages--

(a) if the amount or value of the property, debt or damages decreed shall not exceed Rs. 5000, at *[10] per cent on the amount or value decreed;

(b) if the amount or value shall exceed Rs. 5000, and not exceed Rs. 20,000, on Rs. 5,000 at *[10] per cent and on the remainder at *[5] per cent;

(c) if the amount or value shall exceed Rs. 20,000 and not exceed Rs. 50,000, on Rs. 20,000 as above, and on the remainder at $1\frac{1}{2}$ per cent;

(d) if the amount or value shall exceed Rs. 50,000, on Rs. 50,000 as above, and on the remainder at *[1] per cent:

Provided that in no case shall the amount of any fee exceed Rs. *[15,000].

***[Note:-** In suits for land, the fee shall be calculated on the value of the suit as determined for purposes of jurisdiction by the Rules made under of the Suits Valuation Act, 1887.]

4. Other suits.-- In suits for injuries to the person or character of the plaintiff, such as suits for assault or defamation, or for injuries to property or to enforce rights where the pecuniary value of such injury or right cannot be exactly defined as in suits for interference with a right to light or water, or to enforce a right of pre-emption or suits for the partition of joint property, where partition is improperly resisted or any other suit of the kinds specified in the rules made by the High Court under section 9 of the Suits Valuation Act, 1887, for the valuation of suits which do not admit of being satisfactorily valued, if the plaintiff succeeds, the Court may order the fee allowed to the plaintiff to be calculated either with reference to the amount decreed or with reference to such a sum, not exceeding the valuation as the Court shall deem reasonable bearing in mind the importance of the subject of dispute. In any such case the amount of the fee shall be calculated according to rule 3.

Note:- The words "valuation of the suit" in the above rule mean the value of the suit as determined for purposes of jurisdiction by the rules made by the High Court, under section 9 of the Suits Valuation Act, 1887.

5. Fees allowed to defendant.-- If the suit be dismissed for default, or upon the merits the fee allowed to the defendant shall be calculated according to rules 3 and 4 on the value of the suit.

6. Fees in case plaintiff's case only partially decreed.-- If the suit shall be decreed for the plaintiff as to part only of the claim, and as to the remainder shall be dismissed, the fee allowed to each party shall be fixed with reference to the value of that part of the claim in respect of which he shall succeed, and shall be calculated according to rules 3 and 4.

7. Suit for damages.-- If in any suit for damages the plaintiff shall succeed as to the whole of his cause of action, but shall fail to recover the full amount of damages claimed, the defendant shall not be entitled to any allowance in respect of the difference between the amount of damages claimed and the amount recovered, unless the Court shall be of opinion that the amount claimed for damages was unreasonable or excessive, and shall for that or any other cause to be specified, direct that a fee shall be allowed to the defendant.

If specially allowed, the amount of such fee shall be fixed with reference to the amount of damages disallowed to the plaintiff, and shall be calculated according to rule 3.

8. Several defendants.-- If several defendants, who have a joint or common interest, succeed upon a joint defence or upon separate defences substantially the same, not more than one fee shall be allowed, unless the Court shall otherwise order for a reason which shall be recorded. If only one fee be allowed, the Court shall direct to which of the defendants it shall be paid, or shall apportion it among the several defendants in such manner as the Court shall think fit.

9. Ditto.-- If several defendants, who have separate interests, set up separate distinct defences and succeed thereon, a fee for each of the defendants who shall appear by a separate counsel may be allowed in respect of his separate interest. Such fee, if allowed, shall be calculated with reference to the value of the separate interest of such defendant according to rule 3.

***[10. Miscellaneous proceedings.--** In any miscellaneous proceedings or for any matter other than that of appearing, acting or pleading in a suit prior to decree the fee shall not exceed rupees five hundred in the Court of a District Judge or of an officer exercising the powers of Civil Judge of the first, second and third class in respect of cases not exceeding the value of Rs.20,000/-. In all other cases, amount of the fee shall be calculated according to paragraph 3.]

11. Undefended suits.-- If a suit in any Court of original jurisdiction be undefended, the fee shall be calculated at one-half the sum at which it would have been charged had the suit been defended.

12. Review.-- If a review be rejected after summoning the opposite party, or if, after the admission of a review, the former judgment be upheld, the fee, if allowed to the successful party in the review, shall be fixed by the Court at an amount which shall not in any case exceed one-half of the amount allowed by these rules in case of an original decree.

13. Ditto.-- If, after the admission of a review, the former judgment be revised, the fee in respect of the review, if allowed to the party who succeeds in the review, shall not exceed one-half the amount allowed by these rules in case of an original decree. The fee allowed in respect of the review will be irrespective of any fee which may be included in any costs in respect of the original suit, which may be adjudged to the successful party by the judgment in review.

14. Appeals.-- In appeals, the fee shall be calculated on the same scale as in the original suits, and the principles of the above rules as to original suits shall be applied, as nearly as may be.

15. Several appellants.-- When the interest of several appellants is joint, not more than one fee shall be allowed, unless the Court shall otherwise order. If one fee only be allowed, the Court shall direct to which of the appellants it shall be paid, or shall apportion it among the several appellants in such proportion as it shall think fit.

16. Several respondents.-- If several respondents in one appeal appear by separate pleaders, in determining whether separate fees shall be allowed, the Court shall be guided by the principles laid down in rules 8 and 9.

17. Discretion of Court. Remand. Appeal from decree passed on remand. Issue referred for trial to lower Court.-- If, in any instance, the payment of fees according to the preceding rules shall not appear to the Court to be just and equitable, the Court may exercise its discretion in allowing such fee as may appear just and equitable. ***[...]

If the decree of a lower Court be reversed on appeal and the case be remanded to the lower Court to be tried upon the merits, the lower Court, on passing its decree, may allow to the successful party such a sum as the Court shall consider to be reasonable, not exceeding half the amount calculated according to rule 3, in respect of the rehearing, in addition to the full amount calculated according to that scale:

Provided that, if an appeal be preferred against the decree passed on remand, the fee, if any, allowed by the Appellate Court to the party succeeding in that appeal shall not, unless for a special reason to be recorded, be less than one-quarter, nor more than one-half, of the amount calculated at the rate mentioned in rule 3, if by the decree of the appellate Court remanding the case the same party shall have been allowed a full fee in respect of the former appeal in the suit either absolutely or conditionally upon his succeeding upon the remand;

Provided also that, if an issue be framed and referred by the Appellate Court for trial by the lower Court, the Appellate Court may, if it thinks proper,

allow to the party who shall succeed in the appeal such a sum as the Court shall consider reasonable, not exceeding half the amount calculated at the rate mentioned in rule 3, in respect of the trial of the issue in the lower Court, in addition to a full fee in respect of the appeal calculated at that rate.

18. Certificate as to fees to be filed by counsel in the Court of District Judge.--

Notwithstanding anything contained in these rules and notwithstanding any order of the Presiding Officer, no fee to any legal practitioner appearing in civil appeals, or original suits, in the Courts of District Judges shall, except as in these rules hereinafter provided, be allowed on taxation between party and party, or shall be included in any decree or order, unless the party claiming to have such fee allowed shall, before the final hearing, file in the Court, a certificate signed by the legal practitioner certifying the amount of the fee or fees actually paid by or on behalf of his client to him or to any other legal practitioner in whose place he may have appeared.

19. Certificate in the Court of Civil-Judge.--

Notwithstanding anything contained in these rules and notwithstanding any order of the Presiding Officer, no fee to any legal practitioner appearing in original suits of which the jurisdictional value is over Rs. 5,000 (five thousand), pending in the Courts of Civil Judges shall except as in these rules hereinafter provided, be allowed on taxation between party and party, or shall be included in any decree or order, unless the party claiming to have such fee allowed shall, before the commencement of the argument at the conclusion of the evidence, file in the Court a certificate signed by the legal practitioner certifying the amount of the fee or fees actually paid by or on behalf of his client to him or to any other legal practitioner in whose place he may have appeared.

***[Note:-** In cases to which the Lahore Metropolitan Corporation, the Provincial Government, a Semi Government Organization or an autonomous Body is a party and is represented by a Legal Advisor or a Legal Practitioner, who is not paid professional fee in each individual case or whose fee is assessed or paid after decision of the case, if a certificate in the above terms is filed, the fee of the Counsel engaged by the said party should be taxed according to rules contained in this chapter. The Legal Practitioner engaged by or representing a party need not file the fee certificate referred to in these rules.]

20. Contents of certificate.-- The certificate mentioned in rules 18 and 19 shall state--

- (a) the appeal or suit in respect of which such fee or fees was or were paid;
- (b) the date or dates when such fee or fees was or were actually paid to the legal practitioner engaged in the case;
- (c) the precise amount or amounts which was or were so paid;
- (d) that no portion of such fee or fees has been, or has been agreed to be, returned or remitted or appropriated to the use of any other person by the legal practitioner or by any one acting on his behalf or on behalf of any one who was associated with him in the case; and
- (e) the name and address of the person who made such payment:

Provided that when a higher fee than is allowed by the scale is allowed by special order of the Court, a certificate of the payment of the additional fee at any time may be accepted, if filed before taxation, in lieu of the certificate required by these rules.

21. Form of certificate.-- The certificate shall, so far as possible, be in the following form:-

District Judge

In the Court of -----, A.B. (add description and

Civil Judge

residence) ----- (Plaintiff or appellant).

versus

C.D. (add description and residence) ----- (Defendant or respondent).

For the purpose of having my fee allowed on taxation as against the party or parties, who may be liable for costs under the judgment or order of the Court, I -----, in accordance with rule 20 of the rules regulating the fees of counsel in the Court, hereby certify that in the above case the following fees were paid to me as my exclusive fee on the dates and by the person or persons specified below, and that

before the final hearing of the appeal

such fees were paid to me -----,

before the commencement of the arguments at the conclusion of the evidence

and that no portion of such fees has been, or has been agreed to be, returned or remitted or appropriated to the use of any other person by me or by any one acting on my behalf.

Matter	Fee	Date of payment	By whom paid	Address of person who actually made such payment.
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Signature-----

Date of signature-----

Address of Legal Practitioner-----

Note:- ***[Omitted].

PART C -- FEES IN DECLARATORY SUITS, ETC

1. To be calculated on the valuation of suit.-- As some diversity of practice appears to exist in regard to the fixing of counsel's fees in declaratory suits, injunctions, etc., the Judges deem it necessary to point out that in such cases the value of the subject matter of the suit must first be arrived at for purposes of jurisdiction in accordance with Chapter 3, 'Valuation of Suits', Part A, and then counsel's fees calculated according to the scale laid down in Part B of this Chapter.

2. To be calculated on the valuation of suit.-- Several appeals have had to be admitted to a hearing by this Court solely on the ground that counsel's fees, which should have been fixed by rule, had been fixed at the discretion of the District Judge, at a rate higher than that allowed by the rules. Although rules 4 and 17 of Part B of this Chapter permit District Judges to exercise their discretion in allowing fees which appear just and equitable, it must be remembered that the fee to be allowed is to be calculated in accordance with the scale laid down in Rule 3 of that Part, and any fee not exceeding the sum so arrived at may be allowed.

For instance:-

(i) In a suit for an injunction where the plaintiff values the relief sought at Rs. 110, the maximum fee which can be allowed is Rs. 8-4-0.

(ii) In a suit for a declaration that an alienation of land of which 30 times the land revenue is Rs. 300 and where the consideration is Rs. 1,000 shall not affect the plaintiff's reversionary rights, the maximum fee allowable is Rs. 22-8-0 calculated upon the jurisdictional value and not Rs. 75 calculated upon the consideration.

(High Court circular memo. No. I-1334, dated the 8th March, 1920).

CHAPTER 17
PETITION - WRITERS

PART A—REMARKS AND DIRECTIONS.....**[OMITTED]

PART B—RULES.....**[OMITTED]

CHAPTER 18
PETITION - WRITERS

PART A—CONTROL.....***[OMITTED]

(Note: Chapter 18-A is currently under revision and shall be published in due course).

PART B—CHARACTER ROLLS.....***[OMITTED]

PART C—SECURITY.....***[OMITTED]

CHAPTER 19

SUPPLY OF LIVERIES..... **[OMITTED]

CHAPTER 20

CIVIL DISTRICTS

***[1. Power of Government to fix Civil District.--** Section 4 of the Punjab Civil Courts Ordinance, 1962, (II of 1962), provides that, for the purposes of the Ordinance, the Government may, by notification, divide the Province into Civil Districts, fix the limits of such Districts and determine the headquarters of each such Districts.".

2. Civil Districts.--The following Civil Districts have been so constituted by the Provincial Government with the limits shown against each:-

S. No.	District.	Limits
1.	Attock	
2.	Bahawalnagar	
3.	Bahawalpur	
4.	Bhakkar	
5.	Chakwal	
6.	Dera Ghazi Khan	
7.	Faisalabad	
8.	Gujranwala	
9.	Gujrat	
10.	Hafizabad	
11.	Islamabad	
12.	Jhang	
13.	Jhelum	
14.	Kasur	
15.	Khanawal	
16.	Khushab	
17.	Lahore	
18.	Layya	
19.	Lodhran	
20.	Mandi Bahuddin	
21.	Mianwali	
22.	Multan	
23.	Muzaffargarh	
24.	Narowal	

25. Okara
26. Pakpattan
27. Rahim Yar Khan
28. Rajanpur
29. Rawalpindi
30. Sahiwal
31. Sargodha
32. Sheikhpura
33. Sialkot
34. Toba Tek Singh
35. Vehari].

3. **[Omitted].

4. **[Omitted].

5. **[Omitted].

6. **[Omitted].

CHAPTER 21

*[JUDICIAL POWERS--CIVIL

PART A -- CONFERMENT OF POWERS -- JUDICIAL

1. Pecuniary limits of the jurisdiction exercisable by Civil Judges in original civil suits and proceedings.-- Section 9 of the Punjab Civil Courts Ordinance, 1962 empowers the High Court to determine the pecuniary limits of the jurisdiction exercisable in original civil suits and proceedings. The following notification was issued by the High Court in this behalf:-

(No. 2110-Gaz. (1)/XXI, C.35, dated Lahore, the 20th November, 1978).

In exercise of the powers conferred by section 9 of the Punjab Civil Courts Ordinance, 1962, the Chief Justice and Judges of the Lahore High Court, Lahore, are pleased to order, in supersession of all previous orders, issued in this behalf, that for the purpose of determining the pecuniary limits of the jurisdiction exercisable by Civil Judges in original civil suits and proceedings, Civil Judges be placed in the under-mentioned three classes, namely:-

Civil Judge 1st Class

--To exercise jurisdiction in original civil suits or proceedings without limits as regards value.

Civil Judge 2nd Class

--To exercise jurisdiction in original civil suits or proceedings where in the subject-matter in amount or value does not exceed Rs. 50,000.

Civil Judge 3rd Class

--To exercise jurisdiction in original civil suits or proceedings wherein the subject-matter in amount or value does not exceed Rs. 20,000.

2. Conferment of Powers upon Civil Judges.-- It was decided in a Full Court Judges meeting that the normal period of inclusion in Class III be

two years with effect from the date of the first posting subject to the receipt of good reports of District Judges with regard to the work and conduct of Civil Judges, and that the normal period in Class-II be three years with effect from the date on which the said powers are first conferred subject to the receipt of good reports from District Judges in respect of the work and conduct of Civil Judges.

(See high Court Circular letter No.4013-Gaz./XXI-C.35 dated 25 March, 1964).]

PART B -- POWERS (GENERAL)

The following notifications issued by the Provincial Government or the High Court under various Acts are Published for information and guidance:-

I. Insolvency cases.-- Punjab Government notification No. 780, dated the 15th July, 1914.--In exercise of the powers conferred on him by section 3 (1) of the Provincial Insolvency Act, 1907 (III of 1907), as amended by Act IV of 1914, the Lieutenant-Governor is pleased, with effect from the 1st August 1914, to invest all Subordinate Judges of the 1st class with jurisdiction in all classes of cases under the said Act.

II. Succession Certificate Act.-- Punjab Government notification No. 781, dated the 15th July 1914.-Under Section 26 (1) of the Succession Certificate Act, 1889, the Lieutenant-Governor is pleased, with effect from the 1st August 1914, to invest all Civil Judges of the first and second classes in the Punjab with the functions of a District Court under the said Act.

Note:- Section 26 (1) of the Succession Certificate Act 1889 corresponds to section 388 of the Indian Succession Act, 1925, which now incorporates it.

III. *[Omitted].**

IV. Enhanced powers of Senior Civil Judges.--(a) High Court Notification No. 170-Gaz/XXI-C.6, dated the 16th of May, 1935, as amended by notification No. 53-Gaz./XXI-C-6, dated the 23rd February, 1940--In exercise of the powers conferred by section 39 (3) of the Punjab Courts Act, 1918, as amended by Act IX of 1922, the Honourable Judges of the High Court of Judicature at Lahore are pleased to direct that, within the limits of each of the Civil Districts set forth in the schedule appended hereto, appeals lying to the District Courts from decrees or orders passed by any Subordinate Judge--

(a) in a small cause of a value not exceeding Rs. 500 (five hundred), and

(b) in an unclassified suit of a value not exceeding Rs. 100 (one hundred),

shall be preferred to the Senior Subordinate Judge of the first class exercising jurisdiction within such civil district.

2. It is further directed that the Court of such Senior Subordinate Judge of the first class shall be deemed to be a District Court for the purpose of all such appeals preferred to it.

3. The following High Court notifications are hereby cancelled:-

(i) No. 233-Gaz./XXI-C-6, dated the 22nd of April, 1931.

(ii) No. 84-Gaz./XXI-C-6, dated the 1st of March, 1932.

(iii) No. 552-Gaz./XXI-C-6, dated the 28th of October, 1932.

SCHEDULE

S.No.	District
1.	Hissar.
2.	Gurgaon.
3.	Karnal.
4.	Rohtak.
5.	Ambala.
6.	Hoshiarpur.
7.	Kangra.
8.	Jullundur.
9.	Ludhiana.
10.	Feraozepore.
11.	Lahore.
12.	Amritsar.
13.	Gurdaspur.
14.	Sialkot.
15.	Gujranwala.
16.	Gujrat.
17.	Sheikhupura.
18.	Shahpur.
19.	Jhang.
20.	Jhelum.
21.	Rawalpindi.
22.	Attock.

- | | |
|-----|---------------|
| 23. | Mianwali. |
| 24. | Montgomery. |
| 25. | Lyallpur. |
| 26. | Multan. |
| 27. | Muzaffargarh. |
| 28. | Simla. |

**[The District of Dera Ghazi Khan was excluded from the above Notification vide Notification No.53-Gaz/XXI-C-6, dated 26.2.1940. The District of Dera Ghazi Khan was again included in the said Notification vide notification No.78-Gaz, dated 5-4-1966. The Senior Civil Judges of the Districts of Bahawalpur, Bahawalnagar and Rahim Yar Khan were invested with the same appellate powers vide Notification No.138-Gaz dated 30-7-1963.]

(b) (1) ***[Omitted.]

2. It is further directed that the Court of such Senior Civil Judge of the first class shall be deemed to be a District Court for the purpose of all such appeals preferred to it.

3. The following High Court notifications are hereby cancelled:--

(i) No. 265-Gaz./XXI-C.-6, dated the 8th of May, 1931.

(ii) No. 85-Gaz./XXI-C.-6, dated the 1st of March, 1932.

V. ***[Omitted.]

VI. ***[Omitted.]

VII. ***[Omitted.]

VIII. Powers under Succession Act.-- High Court notification No.273-Gaz./XV-C.16, dated the 22nd June, 1932 -- Under section 265 of the Succession Act, XXXIX of 1925, the Honourable Judges of the High Court of Judicature at Lahore are pleased to appoint the Senior Subordinate Judges of the first class in each of the civil districts set forth in the schedule appended hereto to act, within the limits of the said civil district, for the District Judge as a Delegate to grant probate and letters of administration in non-contentious cases.

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SCHEDULE

1. Simla 3. Hoshiarpur 5. Ferozepore

2. Kangra 4. Lahore 6. Amritsar.

IX. Powers under Succession Act.-- High Court notification No.274-Gaz./XV-C-16, dated the 22nd June, 1932-In exercise of the powers conferred by section 30(1) of the Punjab Courts Act, VI of 1918, the Honourable Judges of the High Court of Judicature at Lahore are pleased to authorise the Senior Subordinate Judge of the first class in each of the civil districts set forth in the schedule appended hereto to take cognizance, within the limits of the said civil district, of proceedings under the Succession Act, XXXIX of 1925, which cannot be disposed of by District Delegates.

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SCHEDULE

1. Simla. 3. Hoshiarpur 5. Ferozepore

2. Kangra 4. Lahore 6. Amritsar.

Note:- Similar powers under both Acts have been conferred upon the Senior Subordinate Judge of the first class in the Delhi District,- vide High Court notifications Nos. 499 and 500-Gaz./XXI-C.3, dated the 19th September, 1932, as reproduced in the Chief Commissioner's notification No.B.3(2)-32-Home, dated the 28th September, 1932.

X. ***[Omitted].

XI. Punjab Government notification No. 4845-G.-40/31898, dated the 2nd August, 1940.-- Under the provisions of sub-clause (d) of section 3 of the Land Acquisition Act, 1894, the Governor of the Punjab is pleased to appoint all persons holding temporarily or permanently the office of Senior

Subordinate Judge of the 1st Class in the Punjab (except the office of the Senior Subordinate Judge of Dera Ghazi Khan) to perform the functions of Court under the said Act.

^{**}[All the Administrative Civil Judges exercising First Class Powers in the Districts of Mianwali, Attock, Rawalpindi, Gujrat, Gujranwala, Lahore, Sheikhupura, Faisalabad, Jhang, Multan, Dera Ghazi Khan, Sialkot, Sargodha, Muzaffargarh, Jhelum, Sahiwal, vide Notification No.LR-3123-57, dated 19-2-1959 and all Civil Judges 1st Class in Districts of Bahawalpur, Rahim Yar Khan and Bahawalnagar vide Notification No. 13/59-H-Judl. (II)/65 dated 18-2-1966 have been appointed to perform functions of "Court" under the Land Acquisition Act, 1894.]

CHAPTER 22
RULES MADE BY THE HIGH COURT UNDER SECTION 122 OF THE CODE OF
CIVIL PROCEDURE ANNULLING, ALTERING OR ADDING TO THE RULES
IN THE FIRST SCHEDULE OF THE CODE

On the recommendation of the rule Committee at Lahore the following additions and alterations to the Rules contained in the First Schedule of the Code of Civil Procedure have been made by the High Court under section 122 of the Code of Civil Procedure to regulate its own procedure and the procedure of the Civil Courts subject to its superintendence:-

(i) **Order II, rule 8.--** After rule 7 insert the following as rule 8:-

(1) Where an objection, duly taken has been allowed by the Court, the plaintiff shall be permitted to select the cause of action with which he will proceed, and shall, within a time to be fixed by the Court, amend the plaint by striking out the remaining causes of action.

(2) When the plaintiff has selected the cause of action with which he will proceed, the Court shall pass an order giving him time within which to submit amended plaint for the remaining causes of action and for making up the Court-fees that may be necessary. Should the plaintiff not comply with the Court's order, the Court shall proceed as provided in rule 18 of the Order VI and as required by the provisions of the Court-fees Act.

(Chief Court notification No. 2212-G., dated 12th May, 1909).

(ii) **Order V, rule 7.--** The summons to appear and answer shall order the defendant to produce all documents in his possession or power upon which he bases his defence or any claim for set-off and shall further order that where he relies on any other documents (whether in his possession or power or not) as evidence in support of his defence or claim for set-off he shall enter such documents in a list to be added or annexed to the written statement.

(High Court notification No. 213-R./XI-Y-17, dated the 24th July, 1936).

(iii) **Order V, rule 10--**Mode of service - Service of the summons shall be made by delivering or tendering a copy thereof signed by the judge or such officer as he appoints in this behalf and sealed with the seal of the Court. ***[...]

(iv) **Order V, rule 15.--**Where service may be on male member of defendant's family.-- Where in any suit the defendant cannot be found or is absent from his residence and has no agent empowered to accept service of the

summons on his behalf, service may be made on any adult male member of the family of the defendant, who is residing with him.

Explanation--A servant is not a member of the family within the meaning of this rule.

(High Court notification No. 563-G, dated the 24th November, 1927).

(v) Order V, rule 18, Form No. 11 of Appendix B:-

No. 11

Affidavit of process-server to accompany return

of a summons or notice (O. 5, R. 18.)

(TITLE)

The affidavit of -----, son of -----

I----- make oath -----and say as follows:-

affirm

(1) I am a process-server of this Court.

(2) On the -----day of ----- 19----- I received
summons

a ----- issued by the Court of-----in suit No.-----
notice

of 19-----in the said Court, dated the-----day of-----19-----for service
on-----.

(3) The said-----was at the time personally known to me, and
summons him

I served the said-----on -----on the-----day of----- 19-----,
notice her

at about-----o' clock in the----- noon at----- by tendering a
him his summons

copy thereof to ----- and requiring ----- signature to the original-----.
her her notice

(a) _____

(b) _____

(a) Here state whether the person served, signed, or refused to sign, the process, and in whose presence.

(b) Signature of process server.

or,

(3) The said -----not being personally known to me, ----- accompanied me to-----and pointed out to me a person whom he stated to be the said-----and I served the said summons him

-----on ----- on the day of -----19----- at about notice her

-----o' clock in the----- noon at-----by tendering a him his

copy thereof to----- and requiring----- signature to the her her

summons

original -----.

notice

(a) _____

(b) _____

(a) Here state whether the person served, signed, or refused to sign, the process and in whose presence.

(b) Signature of process-server.

or,

(3) The said-----and his house in which he ordinarily personally known to me

resides being----- I went to the said house in----- pointed out to me by

and there on the ----- day of ----- 19----- fore

at-----o` clock in the -----noon I did not find the said----- after

I enquired { (a) -----}
 { (b) -----} neighbours

I was told that -----had gone to----- and would not be back till-----.

Signature of process-server.

If substituted service has been ordered, state fully and exactly the manner in which the summons was served, with special reference to the terms of the order for substituted service.

Sworn

----- by the said-----before me this-----

Affirmed

-----day of ----- 19-----.

Empowered under section 139 of the Code of Civil Procedure, 1908, to administer the oath to deponents.

(Chief Court notification No.2212-G., dated the 12th May, 1909).

(vi) **Order VII, rule 2.**--In money suits.-- Where the plaintiff seeks the recovery of money the plaintiff shall state the precise amount claimed.

But where the plaintiff sues for mesne profits, or for an amount which will be found due to him on taking unsettled accounts between him and the defendant, or for movables in the possession of the defendant, or for debts of which the value he cannot, after the exercise of reasonable diligence, estimate the plaintiff shall state approximately the amount or value sued for.

(Chief Court notification No.2212-G., dated 12th May, 1909).

(vii) **Order VII, rule 17.**-- (1) Production of shop book.-- Save in so far as is otherwise provided by the Banker's Books Evidence Act, 1891, where the document on which the plaintiff sues is an entry in a shop book or other account in his possession or power the plaintiff shall produce the book or account at the time of filing the plaint, together with a copy of the entry on which he relies.

(2) Original entry to be marked and returned.-- The Court, or such officer as it appoints in this behalf, shall forthwith mark the documents for the purposes of identification; and, after examining and comparing the copy with the original, shall, if it is found correct, certify it to be so, and return the book to the plaintiff and cause the copy to be filed.

Explanation.-- When a shop book or other account written in a language other than English or the language of the Court is produced with a translation or transliteration of the relevant entry the party producing it shall not be required to present a separate affidavit as to the correctness of the translation or transliteration but shall add a certificate on the document itself, that it is a full and true translation or transliteration of the original entry, and no examination or comparison by the ministerial officer shall be required except by a special order of the Court.

(High Court notification No. 88-Gaz./XI-Y. 7, dated the 9th March, 1935)

(viii) **Order VII, rule 19**..... ***[Omitted].

(ix) **Order VII, rule 20**..... ***[Omitted].

(x) **Order VII, rule 21**..... ***[Omitted].

(xi) **Order VII, rule 22**..... ***[Omitted].

(xii) **Order VII, rule 23**..... ***[Omitted].

(xiii) **Order VII, rule 24**..... ***[Omitted].

(xiv) **Order VII, rule 25**..... ***[Omitted].

(xv) **Order VIII, rule 1.--** 1. The defendant may, and, if so required by the Court, shall at or before the first hearing or within such time as the Court may permit, present a written statement of his defence; **[provided that the period allowed for filing the written statement shall not ordinarily exceed thirty days]; and with such written statement, or if there is no written statement, at the first hearing, shall produce in Court all documents in his possession or power on which he bases his defence or any claim for set-off.

2. Where he relies on any other documents as evidence in support of his defence or claim for set-off he shall enter such documents in a list to be added or annexed to the written statement, or where there is no written statement, to be presented at the first hearing. If no such list is so annexed or presented, the defendant shall be allowed a further period of ten days to file this list of documents.

3. A document which ought to be entered in the list referred to in sub-clause (2); but which has not been so entered, shall not, without the leave of the Court, be received in evidence on the defendants behalf at the hearing of the suit.

4. Nothing in this rule shall apply to documents produced for cross-examination of plaintiff's witnesses or handed to a witness merely to refresh his memory.

(High Court notification No. 191-R/XI-Y-8, dated the 19th June, 1939).

(xvi) **Order VIII, rule 11**..... *** [Omitted].

(xvii) **Order VIII, rule 12** *** [Omitted].

(xviii) **Order IX, rule 9**--(1) Decree against plaintiff by default bars fresh suit.-- Where a suit is wholly or partly dismissed under rule 8, the plaintiff shall be precluded from bringing a fresh suit in respect of the same cause of action. But he may apply for an order to set the dismissal aside, and , if he satisfies the Court that there was sufficient cause for his non-appearance when the suit was called on for hearing, the Court shall make an order setting aside the dismissal upon such terms as to costs or otherwise as it thinks fit, and shall appoint a day for proceeding with the suit:

Provided that the plaintiff shall not be precluded from bringing another suit for redemption of a mortgage , although a former suit may have been dismissed for default.

(2) No order shall be made under this rule unless notice of the application has been served on the opposite party.

(Chief Court notification No.2212-G.,dated 12th May, 1909).

(xix) **Order XIII, rule 9**-- Return of admitted documents.--(1) Any person, whether a party to the suit or not desirous of receiving back any document produced by him in the suit and placed on the record shall, unless the document is impounded under rule 8, be entitled to receive back the same-

(a) where the suit is one in which an appeal is not allowed, when the suit has been disposed of, and

(b) where the suit is one in which an appeal is allowed, when the Court is satisfied that the time for preferring an appeal has

elapsed and that no appeal has been preferred or if an appeal has been preferred, when the appeal has been disposed of;

Provided that a document may be returned at any time earlier than that prescribed by this rule if the person applying therefor delivers to the proper officer a certified copy to be substituted for the original and undertakes to produce the original if required to do so;

Provided also that no document shall be returned which, by force of the decree, has become wholly void or useless;

Provided further that the cost of such certified copy shall be recoverable as a fine from the party at whose instance the original document has been produced.

(2) On the return of a document admitted in evidence, a receipt shall be given by the person receiving it.

(High Court notification No. 563-G., dated the 24th November, 1927.)

(xx) **Order XVI, rule 1.**-- Summons to attend to give evidence or produce documents-- At any time after the suit is instituted, the parties may obtain, on application to the Court or to such officer as it appoints in this behalf, summonses to persons whose attendance is required either to give evidence or to produce documents.

***[Omitted]

(xxi) [**Order XVI, rule 2.**-- (2) Expenses of witness to be paid into Court on applying for summons.-- The party applying for a summons shall, before the summons is granted and within a period to be fixed, pay into Court such a sum of money as appears to the Court to be sufficient to defray the travelling and other expenses of the person summoned in passing to and from the Court in which he is required to attend, and for one day's attendance.

Exception.-- When applying for a summons for any of its own officers, Government will be exempted from the operation of clause (1).

(2) Experts.-- In determining the amount payable under this rule, the Court may in the case of any person summoned to give evidence as an expert,

allow reasonable remuneration for the time occupied both in giving evidence and in performing any work of an expert character necessary for the case.

(3) Scale of expenses.-- Where the Court is subordinate to a High Court, regard shall be had in fixing the scale of such expenses, to any rules made in that behalf.

(High Court notification No. 156-G., dated the 9th January, 1919).

(xxii) **Order XVI, rule 3.**--(1) Tender of expenses to witness.-- The sum paid into a Court shall, except in the case of a Government servant, be tendered to the person summoned at the time of serving the summons if it can be served personally.

(2) When the person summoned is a Government servant, the sum so paid into Court shall be credited to Government.

Exception.--(1) In cases in which Government servants have to give evidence at a Court situate not more than five miles from their headquarters, actual travelling expenses incurred by them may, when the Court considers it necessary, be paid to them.

Exception.--(2) A Government servant, whose salary does not exceed Rs. 10 per mensem, may receive his expenses from the Court.

(High Court notification No. 156-G., dated the 9th January, 1919).

(xxiii) **Order XVI, rule 4.**--(1) Procedure where insufficient sum paid in.-- Where it appears to the Court or to such officer as it appoints in this behalf that the sum paid into Court is not sufficient to cover such expenses or reasonable remuneration, the Court may direct such further sum to be paid to the person summoned, or, when such person is a Government servant, to be paid into Court, as appears to be necessary on that account, and, in case of default in payment, may order such sum to be levied by attachment and sale of the movable property of the party obtaining the summons; or the Court may discharge the person summoned without requiring him to give evidence, or may both order such levy and discharge such person as aforesaid.

(High Court notification No.156-G., dated the 9th January, 1919.)

(xxiv) **Order XVI, rule 16.--**(1) When they may depart.-- A person so summoned and attending shall, unless the Court otherwise directs, attend at each hearing until the suit has been disposed of.

(2) On the application of either party and the payment through the Court of all necessary expenses (if any), the Court may require any person so summoned and attending to furnish security to attend at the next or any other hearing or until the suit is disposed of and, in default of his furnishing such security, may order him to be detained in the prison.

(3) In the absence of the Presiding Officer the powers conferred by sub-rule (2) may be exercised by the Senior Civil Judge of the first class exercising jurisdiction at headquarters of the districts, or by any Judge or Court official nominated by him for the purposes:

Provided that a Court official nominated for the purpose, shall not order a person, who fails to furnish such security as may be required under sub-rule 2, to be detained in prison, but shall refer the case immediately to the Presiding Officer on his return.

(High Court notifications No.209-R/XI-Y-11, dated the 25th July, 1938, and No.24-R/XI-Y-11, dated the 23rd January, 1940).

(xxv) **Order XVII, rule 1.--**(1) Court may grant time and adjourn hearing.-- Subject to the provisions of Order XXIII, rule 3, the Court may, if sufficient cause is shown at any stage of the suit, grant time to the parties or any of them, and may from time to time adjourn the hearing of the suit.

(2) In every such case, the Court shall fix a day for the further hearing of the suit, and may make such order as it thinks fit with respect to the costs occasioned by the adjournment:

Provided that, when the hearing of evidence has once begun the hearing of the suit shall be continued from day to day until all the witnesses in attendance have been examined, unless the Court finds the adjournment of the hearing beyond the following day to be necessary for reasons to be recorded.

(3) Where sufficient cause is not shown for the grant of an adjournment under sub-rule (1), the Court shall proceed with the suit forthwith.

(High Court notifications No.95-G., dated the 26th February, 1925, and No.211-R/XI-Y-22, dated the 21st July, 1937.)

(xxvi) **Order XVIII, rule 2.--**(1) On the day fixed for the hearing of the suit or on any other day to which the hearing is adjourned, the party having the right to begin shall state his case and produce his evidence in support of the issues which he is bound to prove.

(2) The other party shall then state his case and produce his evidence (if any) and may then address the Court generally on the whole case.

(3) The party beginning may then reply generally on the whole case.

EXPLANATION I. Nothing in this rule shall affect the jurisdiction of the Court, of its own accord or on the application of any party, for reasons to be recorded in writing to direct any party to examine any witness at any stage.

EXPLANATION II. The expression "witness" in Explanation I shall include any party as his one witness.

Rule 8.-- Where the evidence is not taken down in writing by the Judge, he shall be bound, as the examination of each witness proceeds, to make a memorandum of the substance of what each witness deposes, *[in his own hand or from his dictation in open Court] and such memorandum shall be signed by the Judge and shall form part of the record.

Rule 13.-- In cases in which an appeal is not allowed, it shall not be necessary to take down the evidence of the witnesses in writing at length; but the Judge, as the examination of each witness proceeds, shall make a memorandum of the substance of what he deposes in his own hand or from his dictation in open Court, and such memorandum shall be signed by the Judge and shall form part of the record.

Rule 14 -- Deleted.

(xxvii) **Order XXI, rule 1.--**(1) Mode of paying money under a decree.-- All money payable under a decree shall be paid as follows, namely:-

(a) into the Court whose duty it is to execute the decree; or

*[(b) out of Court to the decree-holder through a Bank or by Postal Money Order or evidenced by writing signed by the decree-holder or his authorised agent;] or

(c) otherwise as the Court which made the decree directs.

Explanation.-- The judgment-debtor may, if he so desires, pay the decretal amount, or any part thereof, into the Court under clause (a) by postal money order on a form specially approved by the High Court for the purpose.

(2) Where any payment is made under clause (a) of sub-rule (1) notice of such payments shall be given to the decree-holder.

(xxviii) **Order XXI, rule 5.**-- Where the Court to which a decree is to be sent for execution is situate within the same district as the Court which passed such decree, such Court shall send the same directly to the former Court. But, where the Court to which the decree is to be sent for execution is situate in a different district, the Court which passed it shall send it to the District Court or the Court of any Judge having jurisdiction in the place where the decree is to be executed to whom power to receive plaints has been delegated by the District Judge of the district in which the decree is to be executed.

(High Court notifications No. 193-Gaz./XI-Y-14, dated the 11th July, 1933 and No. 72-R/XI-Y-14, dated the 23rd March, 1938).

(xxix) **Order XXI, rule 10.**-- Application for execution.-- Where the holder of a decree desires to execute it, he shall apply to the Court which passed the decree or to the officer (if any) appointed in this behalf, or if the decree has been sent under the provisions hereinbefore contained to another Court then to such Court or to the proper officer thereof:

Provided that if the judgment-debtor has left the jurisdiction of the Court which passed the decree, or of the Court to which the decree has been sent, the holder of the decree may apply to the Court within whose jurisdiction the judgment-debtor is, or to the officer appointed in this behalf, to order immediate execution on the production of the decree and of an affidavit of non-

satisfaction by the holder of the decree pending the receipt of an order of transfer under section 39.

(High Court notification No.125-Gaz./XI.-Y-14, dated the 7th April, 1932).

(xxx) **Order XXI, rule 16.--** Application for execution by transferee of decree -- Where a decree or, if a decree has been passed jointly in favour of two or more persons, the interest of any decree-holder in the decree is transferred by assignment in writing or by operation of law, the transferee may apply for execution of the decree to the Court which passed it; and the decree may be executed in the same manner and subject to the same conditions as if the applications were made by such decree-holder:

Provided that, where the decree, or such interest as aforesaid, has been transferred by assignment, notice of such application shall be given to the transferer, and the judgment-debtor, and the decree shall not be executed until the Court has heard their objections (if any) to its execution;

(High Court notification No. 26-R/XI-Y-14, dated the 24th January, 1940).

Provided also that, where a decree for the payment of money against two or more persons has been transferred to one of them, it shall not be executed against the others.

(High Court notification No. 125-Gaz/XI-Y-14, dated the 7th April, 1932)

(xxxi) **Order XXI, rule 17.--** (1) Procedure on receiving application for execution of decree.-- On receiving an application for the execution of a decree as provided by rule 11, sub-rule (2), the Court shall ascertain whether such of the requirements of rules 11 to 14 as may be applicable to the case have been complied with; *[and, if they have not been complied with, the Court shall fix a time within which the defect shall be remedied, and if it is not remedied within such time, may reject the application.]

(2) Where an application is amended under the provision of sub-rule (1), it shall be deemed to have been an application in accordance with law and presented on the date when it was first presented.

(3) Every amendment made under this rule shall be signed or initialled by the Judge.

(4) When the application is admitted, the Court shall enter in the proper register, a note of the application and the date on which it was made, and shall, subject to the provisions hereinafter contained, order execution of the decree according to the nature of the application:

Provided that, in the case of a decree for payment of money, the value of the property attached shall, as nearly as may be correspond with the amount due under the decree.

(High Court notification No. 125-Gaz./XI-Y-14, dated the 7th April, 1932).

(xxxii) **Order XXI, rule 22.--** Notice to show cause against execution in certain cases-

(1) where an application for execution is made--

(a) more than two years after the date of the decree, or

(b) against the legal representative of a party to the decree, the Court executing the decree shall issue a notice to the person against whom execution is applied for requiring him to show cause, on a date to be fixed, why the decree should not be executed against him:

Provided that no such notice shall be necessary in consequence of more than two years having elapsed between the date of the decree and the application for execution, if the application is made within two years from the date of the last order against the party against whom execution is applied for, made on any previous application for execution, or in consequence of the application being made against the legal representative of the judgment-debtor, if upon a previous application for execution against the same person the Court has ordered execution to issue against him.

(2) Nothing in the foregoing sub-rule shall be deemed to preclude the Court from issuing any process in execution of a decree without issuing the notice thereby prescribed, if, for reasons to be recorded, it considers that the issue of such notice would cause unreasonable delay or would defeat the ends of justice. Failure to record such reasons shall be considered an irregularity not amounting to a defect in jurisdiction.

(High Court notification No. 125-Gaz./XI-Y 14, dated the 7th April, 1932).

(xxxiii) **Order XXI, rule 26**.....[Omitted].

(xxxiv) **Order XXI, rule 29-A**-- Which was added by Chief Court notification No.2212-G., dated the 12th May, 1909, has been omitted by High Court notification No.563-G., dated the 24th November, 1927.

(xxxv) **Order XXI, rule 31**-- (1) Decree for specific movable property.-- Where the decree is for any specific movable, or for any share in a specific movable, it may be executed by the seizure, if practicable, of the movable or share, and by the delivery thereof to the party to whom it has been adjudged, or to such person as he appoints to receive delivery on his behalf, or by the detention in the prison of the judgment-debtor, or by the attachment of his property, or by both.

(2) Where any attachment under sub-rule (1) has remained in force for three months, if the judgment-debtor has not obeyed the decree and the decree-holder has applied to have the attached property sold, such property may be sold, and out of the proceeds the Court may award to the decree-holder, in cases where any amount has been fixed by the decree to be paid as an alternative to delivery of movable property, such amount, and, in other cases, such compensation as it thinks fit, and shall pay the balance (if any) to the judgment-debtor on his application:

Provided that the Court may in any special case, according to the special circumstances thereof, extend the period beyond three months; but it shall in no case exceed six months in all.

(3) Where the judgment-debtor has obeyed the decree and paid all costs of executing the same which he is bound to pay, or where, at the end of

three months or such other period as may have been prescribed by the Court from the date of the attachment, no application to have the property sold has been made, or, if made, has been refused the attachment shall cease.

(High Court notification No.125-Gaz./XI-Y14, dated the 7th April, 1932).

(xxxvi) **Order XXI, rule 32.--(1) Decree for specific performance, for restitution of conjugal rights, or for an injunction.--** Where the party against whom a decree for the specific performance of a contract, or for restitution of conjugal rights, or for an injunction, has been passed, has had an opportunity of obeying the decree and has willfully failed to obey it, the decree may be enforced in the case of a decree for restitution of conjugal rights by the attachment of his property, or, in the case of a decree for the specific performance of a contract or for an injunction by his detention in the prison, or by the attachment of his property, or by both.

(2) Where the party against whom a decree for specific performance or for an injunction has been passed is a corporation, the decree may be enforced by the attachment of the property of the corporation or, with the leave of the Court, by the detention in the prison of the directors or other principal officers thereof, or by both attachment and detention.

(3) Where any attachment under sub-rule (1) or (2) has remained in force for three months, if the judgment-debtor has not obeyed the decree and the decree-holder has applied to have the attached property sold, such property may be sold; and out of the proceeds the Court may award to the decree-holder such compensation as it thinks fit, and shall pay the balance (if any) to the judgment-debtor on his application:

Provided that the Court may for sufficient reasons, on the application of the judgment-debtor, extend the period beyond three months but it shall in no case exceed one year in all.

(4) Where the judgment-debtor has obeyed the decree and paid all costs of executing the same which he is bound to pay, or where, at the end of three months or such other period as may have been prescribed by the Court

from the date of the attachment, no application to have the property sold has been made, or if made has been refused; the attachment shall cease.

(5) Where a decree for the specific performance of a contract or for an injunction has not been obeyed, the Court may, in lieu of or in addition to all or any of the processes aforesaid, direct that the act required to be done may be done so far as practicable by the decree-holder or some other person appointed by the Court, at the cost of the judgment-debtor, and upon the act being done the expenses incurred may be ascertained in such manner as the Court may direct and may be recovered as if they were included in the decree.

Illustration

A, a person of little substance, erects a building which renders uninhabitable a family mansion belonging to B. A, in spite of his detention in prison and the attachment of his property, declines to obey a decree obtained against him by B and directing him to remove the building. The Court is of opinion that no sum realizable by the sale of A's property would adequately compensate B for the depreciation in the value of his mansion. B may apply to the Court to remove the building and may recover the cost of such removal, from A in the execution proceedings.

(High Court notification No. 125-Gaz./XI-Y-14, dated the 7th April, 1932).

[(xxxvi-A). Order XXI, rule 37.-- Discretionary power to permit judgment-debtor to show cause against detention in prison - (1) Notwithstanding anything in these Rules, where an application is for the execution of a decree for the payment of money by the arrest and detention in the prison of a judgment-debtor who is liable to be arrested in pursuance of the application, the Court shall, instead, of issuing a warrant for his arrest, issue a notice calling upon him to appear before the Court on a day to be specified in the notice and show cause why he should not be detained in the prison.

(2) Where appearance is not made in obedience to the notice, the Court shall, if the decree-holder so requires, issue a warrant for the arrest of the judgment-debtor.]

(xxxvii) **Order XXI, Rules 39.--** ***[Omitted]

(xxxviii) **Order XXI, rule 43.--** (1) Where the property to be attached is movable property other than agricultural produce, in the possession of the judgment-debtor, the attachment shall be made by actual seizure, and the attaching officer shall keep the property in his own custody or in the custody of one of his subordinates, and shall be responsible for the due custody thereof:

Provided that, when the property seized is subject to speedy and natural decay or when the expense of keeping it in custody is likely to exceed its value, the attaching officer may sell it at once, and;

Provided also that, when the property attached consists of live-stock, agricultural implements or other articles which cannot conveniently be removed, and the attaching officer does not act under the first proviso to this rule, he may, at the instance of the judgment-debtor, or of the decree-holder or of any person claiming to be interested in such property, leave it in the village or place where it has been attached--

(a) in the charge of the person at whose instance the property is retained in such village or place, if such person enters into a bond in the Form No. 15-A of Appendix E to this Schedule, with one or more sufficient sureties for its production when called for; or

(b) in the charge of an officer of the Court, if a suitable place for its safe custody be provided, and the remuneration of the officer for a period of 15 days at such rate as may from time to time be fixed by the High Court, be paid in advance; or

(c) in the charge of a village lambardar or such other respectable person as will undertake to keep such property, subject to the orders of the Court, if such person enters into a bond in Form No. 15-B of Appendix E with one or more sureties for its production.

(2) Whenever an attachment made under the provisions of this rule ceases for any of the reasons specified in rules 55, 57 or 60 of this Order, the Court may order the restitution of the attached property to the person in whose possession it was before attachment.

(3) When property is made over to a custodian under sub-clauses (a) or (c) of clause (1), the schedule of property annexed to the bond shall be drawn up by the attaching officer in triplicate, and dated and signed by-

- (a) the custodian and his sureties;
- (b) the officer of the Court who made the attachment;
- (c) the person whose property is attached and made over and
- (d) two respectable witnesses.

One copy will be transmitted to the Court by the attaching officer and placed on the record of the proceedings under which the attachment has been ordered; one copy will be made over to the person whose property is attached and one copy will be made over to the custodian.

(xxxix) **Order XXI, rule 43-A.--**(1) Whenever attached property is kept in the village or place where it is attached, the attaching officer shall forthwith report the fact to the Court, and shall, with his report, forward a list of the property seized.

(2) If attached property is not sold under the first proviso to rule 43, or retained in the village or place where it is attached under the second proviso to that rule, it shall be brought to the court-house and delivered to the proper officer of the Court.

(3) A custodian appointed under the second proviso to rule 43 may at any time terminate his responsibilities by giving notice to the Court of his desire to be relieved of his trust and delivering to the proper officer of the Court the property made over to him.

(4) When any property is taken back from a custodian, he shall be granted a receipt for the same.

(xl) **Order XXI, rule 43-B.--**(1) Whenever attached property kept in the village or place where it is attached is livestock, the person at whose instance it is retained shall provide for its maintenance, and, if he fails to do so, and if it is in charge of an officer of the Court, it shall be removed to the Court house.

Nothing in this rule shall prevent the judgment-debtor, or any person claiming to be interested in such stock, from making such arrangement for feeding the same as may not be inconsistent with its safe custody.

(2) The Court may direct that any sums which have been expended by the attaching officer or are payable to him, if not duly deposited or paid, be recovered from the proceeds of property, if sold or be paid by the person declared entitled to delivery before he receives the same. The Court may also order that any sums deposited or paid under these rules be recovered as costs of the attachment from any party to the proceedings.

(xli) **Order XXI, rule 43-C.--** When an application is made for the attachment of livestock or other movable property, the decree-holder shall pay into Court in cash such sum as will cover the costs of the maintenance and custody of the property for 15 days. If within 3 clear days before the expiry of any such period of 15 days the amount of such costs for such further period as the Court may direct be not paid into Court, the Court, on receiving a report thereof from the proper officer, may issue an order for the withdrawal of the attachment and direct by whom the costs of the attachment are to be paid.

(xlii) **Order XXI, rule 43-D.--** Any person who has undertaken to keep attached property under rule 43(1) (c) shall be liable to be proceeded against as a surety under section 145 of the Code, and shall be liable to pay in execution proceedings the value of any such property willfully lost by him.

(xlili) **Appendix E to Schedule 1.--**

FORM NO. 15-A.

BOND FOR SAFE CUSTODY OF MOVABLE PROPERTY ATTACHED AND LEFT IN CHARGE OF PERSON INTERESTED AND SURETIES

Order XXI, rule 43(1)(A)

In the Court of-----at----- Civil suit No. -----of-----

A.B. of _____

against

C.D. of _____

Know all men by these presents that we, I.J. of---etc., and K.L. of-----etc., and M.N. of-----, etc., are jointly and severally bound to the Judge of the Court of-----in Rupees ----- to be paid to the said Judge for which payment to be made we bind ourselves, and each of us in the whole, our and each of our heirs, executors and administrators jointly and severally, by these presents.

Dated this----- day of----- 19----- And whereas the movable property specified in the schedule hereunto annexed has been attached under a warrant from the said Court, dated the----- day of----- 19----- in execution of a decree in favour of ----- in suit No.----- of-----19-----on the file of----- and the said property has been left in the charge of the said I.J.

Now the condition of this obligation is that, if the above bounden I.J. shall duly account for and produce when required before the said Court all and every the property aforesaid and shall obey any further order of the Court in respect thereof, then this obligation shall be void otherwise it shall remain in full force.

I.J.

K.L.

M.N.

Singed and delivered by the above bounden-----in the presence of-----

(xliv)--

FORM NO. 15-B

BOND FOR SAFE CUSTODY OF MOVABLE PROPERTY ATTACHED AND LEFT IN CHARGE OF ANY PERSON AND SURETIES

SURETIES

Order XXI, rule 43 (1)(c)

In the Court of -----at-----Civil suit No.-----of-----

A.B. of _____

against

C.D. of _____

Know all men by these presents that we, I.J. of -----, etc, and K.L. of -----, etc, and M.N. of-----, etc, are jointly and severally bound to the Judge of the Court of----- in Rupees----- to be paid to the said Judge for which payment to be made we bind ourselves, and each of us, in the whole, our and each or our heirs, executors and administrators, jointly and severally, by these presents.

Dated this -----day of----- 19----- And whereas the movable property specified in the schedules hereunto annexed has been attached under a warrant from the said Court, dated the -----day of----- 19----- in execution of a decree in favour of-----in suit No.----- of-----19--- ----- on the file of -----and the said property has been left in the charge of the said I.J.

Now the condition of this obligation is that, if the above bounden I.J. shall duly account for and produce when required before the said Court all and every the property aforesaid and shall obey any further order of the Court in respect thereof, then this obligation shall be void otherwise it shall remain in full force and be enforceable against the above bounden I.J. in accordance with the procedure laid down in section 145, Civil Procedure Code, as if the aforesaid I.J. were a surety for the restoration of property taken in execution of decree.

I.J.

K.L.

M.N.

Signed and delivered by the above bounden----- in the presence of-----
-----.

(Rules 43 to 43-D and forms 15-A and 15-B added (by High Court Notification No. 606-G., dated 13th December, 1928).

(xiv) **Order XXI rule 45.--**(1) Provisions as to agricultural produce attachment.-- Where agricultural produce is attached the Court shall make such arrangements for the custody thereof as it may deem sufficient, and, for the purpose of enabling the Court to make such arrangements, every application for

the attachment of a growing crop shall specify the time at which it is likely to be fit to be cut or gathered and with every such application such charges as may be necessary for the custody of the crop up to the time at which it is likely to be fit to be cut or gathered shall be paid to the Court.

(2) Subject to such conditions as may be imposed by the Court in this behalf either in the order of attachment or in any subsequent order, the judgment-debtor may tend, cut, gather and store the produce and do any other act necessary for maturing or preserving it and if the judgment-debtor fails to do all or any of such acts, the decree holder may, with the permission of the Court and subject to the like condition, do all or any of them either by himself or by any person appointed by him in this behalf, and the costs incurred by the decree holder shall be recoverable from the judgment-debtor as if they were included in, or formed part, of the decree.

(3) Agricultural produce attached as a growing crop shall not be deemed to have ceased to be under attachment or to require re-attachment merely because it has been severed from the soil.

(4) Where an order for the attachment of a growing crop has been made at a considerable time before the crop is likely to be fit to be cut or gathered, the Court may suspend the execution of the order for such time as it thinks fit, and may, in its discretion, make a further order prohibiting the removal of the crop pending the execution of the order of attachment.

(5) A growing crop which from its nature does not admit of being stored shall not be attached under this rule at any time less than twenty days before the time at which it is likely to be fit to be cut or gathered.

(High Court Notification No. 125-Gaz./XI-Y-14, dated the 7th April 1932).

(xlv) **Order XXI, rule 53.-- Attachment of decrees.--**(1) Where the property to be attached is a decree, either for the payment of money or for sale in enforcement of a mortgage, the attachment shall be made,-

(a) if the decree was passed by the same Court, then by order of such Court, and

(b) if the decree sought to be attached was passed by another Court, then by the issue, to such other Court and to the Court to which it has been transferred for execution, of a notice by the Court which passed the decree sought to be executed, requesting such other Court to stay the execution of its decree unless and until-

(i) the Court which passed the decree sought to be executed cancels the notice, or

(ii) the holder of the decree sought to be executed or with the consent of the said decree-holder expressed in writing or with the permission of the attaching Court, his judgment-debtor applies to the Court receiving such notice to execute the attached decree.

(2) Where a Court makes an order under clause (a) of sub-rule (1), or receives an application under sub-head (ii) of clause (b) of the said sub-rule, it shall, on the application of the creditor who has attached the decree or his judgment-debtor, proceed to execute the attached decree and apply the net proceeds in satisfaction of the decree sought to be executed.

(3) The holder of a decree sought to be executed by the attachment of another decree of the nature specified in sub-rule(1) shall be deemed to be the representative of the holder of the attached decree and to be entitled to execute such attached decree in any manner lawful for the holder thereof.

(4) Where the property to be attached in the execution of a decree is a decree other than a decree of the nature referred to in sub-rule (1), the attachment shall be made, by a notice by the Court which passed the decree sought to be executed, to the holder of the decree sought to be attached, prohibiting him from transferring or charging the same in any way; and, where such decree has been passed by any other Court, also by sending to such other Court a notice to abstain from executing the decree sought to be attached until such notice is cancelled by the Court from which it was sent.

(5) The holder of a decree attached under this rule shall give the Court executing the decree such information and aid as may reasonably be required.

(6) On the application of the holder of decree sought to be executed by the attachment of another decree, the Court making an order of attachment under this rule shall give notice of such order to the judgment-debtor bound by the decree attached ; and no payment or adjustment of the attached decree made by the judgment-debtor in contravention of such order with the knowledge thereof, either through the Court or otherwise, shall be recognized by any Court so long as the attachment remains in force.

(High Court Notification No. 125-Gaz./XI-Y-14, dated the 7th April 1932 and High Court Notification No.225-R/XI-Y-14 dated the 5th August, 1937).

(xlvii) **Order XXI, rule 54.-- Attachment of immovable property.--**(1) Where the property is immovable, the attachment shall be made by an order prohibiting the judgment-debtor from transferring or charging the property in any way, and all persons from taking any benefit from such transfer or charge.

(2) The order shall be proclaimed at some place on or adjacent to such property by beat of drum or other customary mode, and a copy of the order shall be affixed on a conspicuous part of the property and then upon a conspicuous part of the court-house, and also, where the property is land paying revenue to the Government, in the office of the Collector of the district in which the land is situate; where the property is land situated in a Cantonment, copies of the order shall also be forwarded to the Cantonment Board and to the Military Estates Officer in whose area that Cantonment is situated.

(3) The order shall take effect as against persons claiming under a gratuitous transfer from the judgment-debtor, from the date of the order of attachment, and as against others from the time they had knowledge of the passing of the order of attachment or from the date of the proclamation, whichever is earlier.

(High Court Notification No. 125-Gaz./XI-Y-14, dated the 7th April, 1932; No 109-R/XI-Y-14 dated 21st April, 1939 and No. 273-R-XI-Y-14, dated the 30th July, 1941).

(xlviii) **Order XXI, rule 58.-- Investigation of claims to and objections to attachment of attached property.--** Where any claim is

preferred to or any objection is made to the attachment of, any property attached in execution of a decree on the ground that such property is not liable to such attachment, the Court shall proceed to investigate the claim or objection with the like power as regards the examination of the claimant or objector, and in all other respects, as if he was a party to the suit:

*[Provided that no such investigation shall be made when the Court considers that the claims or objection was designedly or unnecessarily delayed.]

Postponement sale- Where the property to which the claim or objection applies has been advertised for sale, the Court ordering the sale may postpone it pending the investigation of the claim or objection.- (High Court Notification No. 125-Gaz./XI-Y-14, dated the 7th April, 1932.

(xlix) **Order XXI, rule 66.--**(1) Proclamation of sale by public auction.-- Where any property is ordered to be sold by public auction in execution of a decree, the Court shall cause a proclamation of the intended sale to be made in the language of such Court.

(2) Such proclamation shall be drawn up after notice to the decree-holder and the judgment-debtor and shall state the time and place of sale, and specify as fairly and accurately as possible -

(a) the property to be sold;

(b) the revenue assessed upon the estate or part of the estate where the property to be sold is an interest in an estate or in part of an estate paying revenue to the Government;

(c) any encumbrance to which the property is liable;

(d) the amount for the recovery of which the sale is ordered; and

(e) every other thing which the Court considers material for a purchaser to know in order to judge the nature and value of the property, provided that it shall not be necessary for the Court itself to give its own estimate of the value of the property; but the proclamation shall include the estimate, if any, given by either or both the parties.

(3) Where the property to be sold is movable property which has been made over to a custodian under sub-clause (a) or (c) of clause (1) of rule 43 of this Order, the Court shall also issue a process by way of notice to the custodian, directing him to produce the property at the place of sale at a time to be specified therein, with a warning that if he fails to comply with the directions, he shall be liable to action under section 145 of the Code of Civil Procedure.

(4) Every application for an order for sale under this rule shall be accompanied by a statement signed and verified in the manner hereinbefore prescribed for the signing and verification of pleadings and containing, so far as they are known to or can be ascertained by the person making the verification, the matters required by sub-rule (2) to be specified in the proclamation.

(5) For the purpose of ascertaining the matters to be specified in the proclamation, the Court may summon any person whom it thinks necessary to summon and may examine him in respect to any such matters and require him to produce any document in his possession or power relating thereto.

(High Court Notifications No. 567-Gaz., dated the 4th November 1929 and No. 150-R/XI-Y-14 dated the 16th May 1939).

(I) **Order XXI rule 68.**--Time of sale.-- Save in the case of property of the kind described in the proviso to rule 43 no sale hereunder shall without the consent in writing of the judgment-debtor take place until after the expiration of at least fifteen days in the case of immovable property and of at least one week in the case of movable property calculated from the date on which the copy of the proclamation has been affixed on the court-house of the Judge ordering the sale.

(High Court Notification No.125-Gaz./XI-Y-14, dated the 7th April, 1932).

(li) **Order XXI rule 69.**--Adjournment or stoppage of sale.--(1) The Court may in its discretion, adjourn any sale hereunder to a specified day and hour and the officer conducting any such sale may in his discretion, adjourn the sale recording his reasons for such adjournment:

Provided that where the sale is made in or within the precincts of the court-house no such adjournment shall be made without the leave of the Court.

(2) Where a sale is adjourned under sub-rule (1) for a longer period than thirty days a fresh proclamation under rule 67 shall be made, unless the judgment-debtor consents to waive it.

(3) Every sale shall be stopped if before the lot is knocked down, the debt and costs (including the costs of the sale) are tendered to the officer conducting the sale or proof is given to his satisfaction that the amount of such debt and costs have been paid into the Court which ordered the sale.

(High Court Notification No. 125-Gaz./XI-Y-14, dated the 7th April 1932).

(lii) **Order XXI rule 75.--**(1) Special provisions relating to growing crops.-- Where the property to be sold is a growing crop and the crop from its nature admits of being stored but has not yet been stored, the day of the sale shall be so fixed as to admit of its being made ready for storing before the arrival of such day and the sale shall not be held until the crop has been cut or gathered and is ready for storing.

(2) Where the crop from its nature does not admit of being stored or can be sold to great advantage in an unripe state it may be sold before it is cut and gathered and the purchaser shall be entitled to enter on the land and to do all that is necessary for the purpose of tendering and cutting or gathering it.

(Chief Court Notification No. 2212-G., dated the 12th May 1909 and High Court Notification No. 123-R/XI-Y-14, dated the 28th April, 1938).

(liii) **Order XXI, rule 89.--**(1) Application to set aside sale on deposit.-- Where immovable property has been sold in execution of decree, any person claiming any interest in the property sold at the time of the sale or at the time of making the application under this rule or acting for or in the interest of such a person, may apply to have the sale set aside on his depositing in Court-

(a) for payment to the purchaser, a sum equal to five percent of the purchase money; and

(b) for payment to the decree-holder, the amount specified in the proclamation of sale as that for the recovery of which the sale was ordered, less any amount which may, since the dates of such proclamation of sale, have been received by the decree holder.

(2) Where a person applies under rule 90 to set aside the sale of his immovable property, he shall not, unless he withdraws his application, be entitled to make or prosecute an application under this rule.

(3) Nothing in this rule shall relieve the judgment-debtor from any liability he may be under in respect of costs and interest not covered by the proclamation of sale.

(High Court Notification No. 125-Gaz./XI-Y.-14, dated the 7th April, 1932).

(iv) **Order XXI, rule 90.-- Application to set aside sale on ground of irregularity, fraud.--** (1) Where any immovable property has been sold in execution of a decree, the decree-holder, or any person entitled to share in a rateable distribution of assets, or whose interests are affected by the sale, may apply to the Court to set aside the sale on the ground of a material irregularity or fraud in publishing or conducting it:

Provided that no sale shall be set aside on the ground of irregularity or fraud unless upon the facts proved, the Court is satisfied that the applicant has sustained substantial injury by reason of such irregularity or fraud;

******[Provided further that no such application shall be entertained unless the applicant deposits such amount not exceeding twenty per cent of the sum realized at the sale or furnishes such security, as the Court may direct;]

Provided further that no such sale be set aside on any ground which the applicant could have put forward before the sale was conducted.

(High Court Notification No. 125-Gaz./XI-Y-14, dated the 7th April, 1932).

(iv) **Order XXI, rule 98.-- Resistance or obstruction by judgment-debtor.--** Where the Court is satisfied that the resistance or obstruction was occasioned without any just cause by the judgment debtor or by some other

person at his instigation or on his behalf, it shall direct that the applicant be put into possession of the property, and where the applicant is still resisted or obstructed in obtaining possession, the Court may also, at the instance of the applicant, order the judgment-debtor, or any person acting at his instigation or on his behalf, to be detained in the prison for a term which may extend to thirty days. Such detention shall be at the public expense and the person at whose instance the detention is ordered shall not be required to pay subsistence allowance.

(High Court Notification No. 125-Gaz./XI-Y-14 dated 7.4.1932)

(lvi) **Order XXI, rule 104.--** For the purpose of all proceedings under this order, service on any party shall be deemed to be sufficient if effected at the address for service referred to in Order VIII, rule 11, subject to the provisions of Order VII, rule 24, provided that this rule shall not apply to the notice prescribed by rule 22 of this Order.

(High Court Notification No. 567-G., dated the 24th November, 1927).

Note I:- Rule 29-A., which was added by Chief Court Notification No. 563-G., dated the 24th November, 1927.

Note II:- Rule 63.A., which was added by High Court Notification No. 125-Gaz./XI-Y-14, dated the 7th April 1932, has been omitted by High Court Notification No. 106-R/XI-Y-14, dated 27th April, 1937].

(lvii) **Order XXIII, rule 3.--** Where it is proved to the satisfaction of the Court that a suit has been adjusted wholly or in part by any lawful agreement or compromise, or where the defendant satisfies the plaintiff in respect of the whole or any part of the subject-matter of the suit, the Court shall order such agreement, compromise or satisfaction to be recorded, and shall pass a decree in accordance therewith so far as it relates to the suit:

Provided that the hearing of a suit shall proceed and no adjournment shall be granted in it for the purposes of deciding whether there has been any adjustment or satisfaction, unless the Court for reasons to be recorded in writing, thinks fit to grant such adjournment, and provided further that the judgment in the suit shall not be announced until the question of adjustment or satisfaction has been decided;

Provided further that when an application is made by all the parties to the suit, either in writing or in open Court through their counsel, that they wish to compromise the suit, the Court may fix a date on which the parties or their counsel should appear and the compromise be recorded, but shall proceed to hear those witnesses in the suit who are already in attendance, unless for any other reason to be recorded in writing, it considers it impossible or undesirable to do so. If upon the date fixed no compromise has been recorded, no further adjournment shall be granted for this purpose, unless the Court, for reasons to be recorded in writing, considers it highly probable that the suit will be compromised on or before the date to which the Court proposes to adjourn the hearing.

(High Court Notification No. 211-R/XI-Y-22, dated the 21st July, 1937).

(lviii) **Order XXX, rule 1.--** (1) Suing of partners in name of firms.-- Any two or more persons claiming or being liable as partners and carrying on business in Pakistan may sue or be sued in the name of the firm (if any) of which such persons were partners at the time of the accruing of the cause of action, and any party to a suit may, in such case, apply to the Court for a statement of the names and addresses of the persons who were at the time of the accruing of the cause of action, partners in such firm, to be furnished and verified in such manner as the Court may direct.

(2) Where persons sue or are sued as partners in the name of their firm under sub-rule (1), it shall, in the case of any pleading or other document required by or under this Code, to be signed, verified or certified by the plaintiff or the defendant, suffice if such pleading or other document is signed, verified or certified by any one of such persons.

Explanation.-- This rule applies to a joint Hindu family trading partnership.

(Chief Court Notification No. 2212-G dated 12th May, 1909).

(lix) **Order XXXII, rule 1.--**Minor to sue by next friend.-- Every suit by a minor shall be instituted in his name by person who in such suit shall be

called the next-friend of the minor. Such person may be ordered to pay any costs in the suit as if he were the plaintiff.

(Chief Court Notification No. 2212.G., dated 12th May 1909).

(lx) **Order XXXII, rule 3.**--(1) Guardian for the suit to be appointed by Court for minor defendants.-- Where the defendant is a minor, the Court, on being satisfied of the fact of his minority, shall appoint proper person to be guardian for the suit for such minor.

(2) An order for the appointment of a guardian for the suit may be obtained upon application in the name and on behalf of the minor or by the plaintiff.

(3) The plaintiff shall file with his plaint a list of relatives of the minor and other persons, with their addresses, who Prima facie are most likely to be capable of acting as guardian for the suit for a minor defendant. The list shall constitute an application by the plaintiff under sub-rule (2) above.

(4) The Court may, at any time after institution of the suit, call upon the plaintiff to furnish such a list, and, in default of compliance, may reject the plaint.

(5) A person appointed under sub-rule (1) to be guardian for the suit for a minor, shall, unless his appointment is terminated by retirement, removal or death, continue as such throughout all proceedings arising out of the suit including proceedings in any appellate or revisional Court and any proceedings in the execution of a decree.

(6) Any application for the appointment of a guardian for the suit and any list furnished under this rule shall be supported by an affidavit verifying the fact that the proposed guardian has no interest in the matters in controversy in the suit adverse to that of the minor, and that each person proposed is a fit person to be so appointed.

(7) No order shall be made on any application under this rule, except upon notice to any guardian of the minor appointed or declared by an authority competent in that behalf, or, where there is no such guardian, upon notice to the father or other natural guardian of the minor, or, where there is no father or

other natural guardian, to the person in whose care the minor is, and after hearing any objection which may be urged on behalf of any person served with notice under this sub-rule:

Provided that the Court, may if it sees fit, issue notice to the minor also.

(High Court Notification No.95-G., dated 15th February, 1925, and No. 566-G., dated 24th November, 1927).

(ixi) **Order XXXII, rule 4.--**(1) Who may act as next friend or be appointed guardian for the suit.-- Any person who is of sound mind and has attained majority may act as next friend of a minor or as his guardian for the suit:

Provided that the interest of such person is not adverse to that of the minor, and that he is not, in the case of a next friend, a defendant, or, in the case of a guardian for the suit, a plaintiff.

(2) Where a minor has a guardian appointed or declared by competent authority, no person other than such guardian shall act as the next friend of the minor or be appointed his guardian for the suit unless the Court considers, for reasons to be recorded, that it is for the minor's welfare that another person be permitted to act or be appointed, as the case may be.

(2-A) Where a minor defendant has no guardian appointed or declared by competent authority, the Court may, subject to the proviso to sub-rule (1), appoint as his guardian for the suit a relative of the minor.

If no person be available who is a relative of the minor, the Court shall appoint one of the other defendants, if any, and, failing such other defendant, shall ordinarily proceed under sub-rule (4) of this rule to appoint one of its officers or a pleader.

(3) No person shall without his consent, be appointed guardian for the suit, but the Court may presume such consent to have been given unless it is expressly refused.

(4) Where there is no other person fit and willing to act as guardian for the suit, the Court may appoint any of its officers or a pleader to be such guardian, and may direct that the costs to be incurred by such person in the

performance of his duties as such guardian shall be borne either by the parties or by any one or more of the parties to the suit, or out of any fund in Court in which the minor is interested and may give directions for the repayment or allowance of such costs as justice and the circumstances of the case may require.

(High Court Notification No. 566-G. dated 24th November, 1927 as amended by High Court Notification No. 209-R/XI-Y.-3, dated the 22nd July, 1936 and No. 281-R/XI-Y-3, dated 19th September, 1936).

(lxii) ***[Omitted].

(lxiii) **Order XXXVII, rule 3.--** (1) The Court shall, upon application by the defendant, give leave to appear and to defend the suit, upon affidavits which disclose such facts as would make it incumbent on the holder to prove consideration, or such other facts as the Court may deem sufficient to support the application.

(2) Leave to defend may be given unconditionally, or subject to such terms as to payment into Court, giving security, framing and recording issues or otherwise, as the Court thinks fit.

(3) The provisions of section 5 of the Limitation Act, 1908, shall apply to applications under sub-rule (1).

(High Court Notification No. 577-G., dated the 15th November, 1928).

(lxiv) **Order XLI, rule 1.--** (1) Form of appeal. What to accompany memorandum.-- Every appeal shall be preferred in the form of a memorandum signed by the appellant or his pleader and presented to the Court or to such officer as it appoints in this behalf. The memorandum shall be accompanied by a copy of the decree appealed from and (unless the Appellate Court dispenses therewith) of the judgment on which it is founded:

Provided that when two or more cases are tried together and decided by the same judgment, and two or more appeals are filed against the decrees, whether by the same or different appellants, the officer appointed in this behalf, may, if satisfied that the questions for decision are analogous in each appeal, dispense with the production of more than one copy of the judgment.

(2) Contents of memorandum.- The memorandum shall set forth, concisely and under distinct heads, the grounds of objection to the decree appealed from without any arguments or narrative; and such grounds shall be numbered consecutively.

(High Court Notification No.631-Gaz./XI-Y-I, dated the 7th December, 1932).

(lxv) **Order XLI, rule 14.--**(1) Publication and service of notice of day for hearing appeal.-- Notice of the day fixed under rule 12 shall be affixed in the Appellate court-house, and a like notice shall be sent by the Appellate Court to the Court from whose decree the appeal is preferred and shall be served on the respondent or on his pleader in the Appellate Court in the manner provided for the service on a defendant of a summons to appear and answer; and all the provisions applicable to such summons, and to proceedings with reference to the service thereof, shall apply to the service of such notice.

(2) **Appellate Court may itself cause notice to be served.--** Instead of sending the notice to the Court from whose decree the appeal is preferred, the Appellate Court may itself cause the notice to be served on the respondent or his pleader under the provisions above referred to.

(3) It shall be in the discretion of the Appellate Court to make an order, at any stage of the appeal whether on the application of any party or on its own motion, dispensing with service of such notice on any respondent who did not appear, either at the hearing in the Court whose decree is complained of or at any proceedings subsequent to the decree of the Court or on the legal representatives of any such respondent:

Provided that-

(a) the Court may require notice of the appeal to be published in any newspaper or newspapers or in such other manner as it may direct;

(b) no such order shall preclude any such respondent or legal representative from appearing to contest the appeal.

(High Court notification No.319.R/XI-Y-1, dated 13th November,1943).

(lxvi) **Order XLI, rule 23-A.--** Where the Court from whose decree an appeal is preferred has disposed of the case otherwise than on a preliminary point and the decree is reversed in appeal, and a retrial is considered necessary the appellate Court shall have the same powers as it has under rule 23.

(High Court Notification No. 216.R/XI-Y-I/XI-Y-25, dated the 4th August, 1938).

(lxvii) **Order XLI, rule 35.--**(1) Date and contents of decree.-- The decree of the appellate Court shall bear date the day on which the judgment was pronounced.

(2) The decree shall contain the number of the appeal, the names and descriptions of the appellant and respondent and a clear specification of the relief granted or other adjudication made.

(3) The decree shall also state the amount of costs incurred in the appeal, and by whom, or out of what property, and in what proportions, such costs and the costs in the suit are to be paid.

(4) The decree shall be signed and dated by the Judge or Judges who passed it.

Judge dissenting from judgment need not sign decree; Provided that, where there are more Judges than one, and there is a difference of opinion among them, it shall not be necessary, for any Judge dissenting from the judgment of the Court, to sign the decree;

Provided also in the case of High Court, that the Registrar, or such other officer as may be in charge of the Judicial Department from time to time, shall sign the decree on behalf of the Judge or Judges who passed it; but that such Registrar, or such officer, shall not sign such decree on behalf of a dissenting Judge.

(High Court Notification No. 20-R/XI-Y-1, dated 29th January, 1937).

(lxviii) **Order XLI, rule 38.--**(1) An address for service filed under Order VII, rule 19, or Order VIII, rule 11, or subsequently altered under Order VII, rule 24, or Order VIII, rule 12, shall hold good during all appellate proceedings arising out of the original suit or petition.

(2) The notice of appeal, and other processes connected with proceedings therein, shall issue to the addresses mentioned in clause (1) above, and service effected at such addresses shall be as effective as if it had been made personally on the appellant or respondent, as the case may be.

(3) Rules 21, 22, 23, 24 and 25 of Order VII shall apply, so far as may be, to appellate proceedings.

(High Court Notifications No. 567-G., dated 24th November, 1927 and No. 20-R/XI-Y-1, dated 29th January, 1937).

(Ixx) **Order XLII, rule 2.--** In addition to the copies specified in Order XLI, rule 1, the memorandum of appeal shall be accompanied by a copy of the judgment of the Court of first instance unless the appellate Court dispenses there with. (High Court Notification No. 4685-G., dated 17th October, 1919, and No. 138-G., dated 19th March, 1926).

(Ixx) **Order XLIII, rule 1. Appeal from Orders.--** An appeal shall lie from the following orders under the provisions of section 104, namely--

(a) an order under rule 10 of Order VII returning a plaint to be presented to the proper Court;

(b) an order under rule 10 of Order VIII pronouncing judgment against a party;

(c) an order under rule 9 of Order IX rejecting an application (in a case open to appeal) for an order to set aside the dismissal of a suit;

(d) an order under rule 13 of Order IX rejecting an application (in a case open to appeal) for an order to set aside a decree passed ex parte;

(e) an order under rule 4 of Order X pronouncing judgment against a party;

(f) an order under rule 21 of Order XI.

(g) an order under rule 10 of Order XVI for the attachment of property;

(h) an order under rule 20 of Order XVI pronouncing judgment against a party;

(i) an order under rule 34 of Order XXI on an objection to the draft of a document or of an endorsement;

****[(i-A)** an order under rule 62 or rule 103 of Order XXI relating to the right, title or interest of the claimant or objector in attached property;]

(j) an order under rule 72 or rule 92 of Order XXI setting aside or refusing to set aside a sale;

(k) an order under rule 9 of Order XXII refusing to set aside the abatement or dismissal of a suit;

(l) an order under rule 10 of Order XXII giving or refusing to give leave;

(m) an order under rule 3 of Order XXIII recording or refusing to record an agreement, compromise or satisfaction;

(n) an order under rule 2 of Order XXV rejecting an application (in a case open to appeal) for an order to set aside the dismissal of a suit;

(o) an order under rule 2, rule 4 or rule 7 of Order XXXIV refusing to extend the time for the payment of mortgage money;

(p) orders in interpleader suits under rule 3, rule 4 or rule 6 of Order XXXV;

(q) an order under rule 2, rule 3 or rule 6 of Order XXXVIII;

(r) an order under rule 1, rule 2, rule 4 or rule 10 of Order XXXIX;

(s) an order under rule 1 or rule 4 of Order XL;

(t) an order of refusal under rule 19 of Order XLI to re-admit or under rule 21 of Order XLI to re-hear an appeal;

(u) an order under rule 23 or rule 23-A of Order XLI remanding a case, where an appeal would lie from the decree of the Appellate Court;

(v) an order made by any Court other than a High Court refusing the grant of a certificate under rule 6 of Order XLV;

(w) an order under rule 4 of Order XLVII granting an application for review.

(High Court Notification No. 216-R/XI-Y-25, dated the 4th August 1938).

****[(Ixx-A) Order XLIII, Rules 3 & 4.--(a) Notice before presentation of appeal.-- (1)** Where an appeal against an order is preferred during the pendency of a suit, the appellant shall, before presenting the appeal give notice of such appeal to the respondent or his Advocate by delivering a copy of the memorandum and grounds of appeal alongwith a copy of the order appealed

against either personally or through "Registered post acknowledgment due", returnable to the Appellate Court. The postal or the other receipt shall be filed with the memorandum of appeal for the record of the Appellate Court.

(2) On receipt of notice referred to in sub-paragraph (1), the respondent may, with the permission of the Court, appear before it and contest the appeal and may be awarded costs on dismissal of the appeal in limine.

(b) **Application of rule 3.--** The provisions of rule 3 shall, mutatis mutandis, apply to all applications filed before an Appellate Court during the pendency of a suit.]

(lxxi) **Order XLV-A.--** ***[Omitted].



**RULES AND ORDERS
OF THE
LAHORE HIGH COURT, LAHORE**

VOLUME II

**INSTRUCTIONS
TO
CIVIL COURTS
SPECIAL JURISDICTION
AND ACCOUNTS**

CONTRIBUTIONS

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Key to the symbols used in Volume II

- * Substituted vide Lahore High Court Notification No. 333/Rules II, D.4(II), dated 21st September, 1996
- ** Added vide Lahore High Court Notification *ibid*.
- *** Omitted vide Lahore High Court Notification *ibid*.

- # Amended vide Lahore High Court Notification No. 402/Rules II, D.4 (II) dated 28th September, 1996.

Note: For original text and earlier amendments therein, the previous edition(s) of the Volume may be consulted.

Rules and Orders of the Lahore High Court Lahore

VOLUME II. – Instructions To Civil Courts

CHAPTER 1

Rules made by the High Court under the powers conferred by
section 246 of the Indian Companies Act(VII OF 1913), as
amended by Act XXII of 1936.....***[Omitted]

CHAPTER 2

GUARDIANS AND WARDS

PART A -- GENERAL

#[1. Civil Judges empowered to try cases under the Act.- Section 5 of the Punjab Family Courts Act, 1964, provides that "Family Courts" shall have exclusive jurisdiction to entertain, hear and adjudicate upon matters specified in the Schedule. Items 5 and 6 of the Schedule are "Custody of Children" and "Guardianship". Section 25 of this very Act further provides that a Family Court shall be deemed to be a "District Court" for the purposes of the Guardians and Wards Act, 1890, as the "Court" under the Guardians and Wards Act is the "District Court". Section 4-A(1) of the Guardians and Wards Act, 1890, confers power on the High Court to empower any officer exercising original Civil Jurisdiction subordinate to a District Court or authorize any Judge or any District Court to empower any such officer subordinate to him to dispose of any proceeding under this Act transferred to such officer under the provisions of this section. The Hon'ble Judges have decided that, with a few exceptions, all the work under the Guardians and Wards Act should be entrusted to the Family Courts presided over by 1st Class Civil Judges to be specially nominated for each district as permanent record, accounts and special registers are required to be maintained. All the Senior Civil Judges in the Punjab have been empowered to dispose of the proceedings under the Guardians and Wards Act, 1890. All the proceedings under the Guardians and Wards Act are, therefore, to be transferred or entrusted to the Senior Civil Judges for disposal.]

2. Minor's interest is the main consideration in appointing a guardian.- In appointing guardians, Courts should work on the principle that the interest of the minor is the main consideration (section 7). Very often it will be found that an application for the appointment of a guardian has been made in the interest not of the minor but of the applicant, especially when the application is for the guardianship of an unmarried girl.

3. Discretion of Court in appointing a guardian and issuing notices of application.- It does not follow that because an application is made for the appointment of a guardian, one must necessarily be appointed. Every

application for guardianship should be laid at once before the Judge, who should only issue notice if he is satisfied after examination of the applicant (except when the applicant is the Collector) that there is ground for proceedings on the application under Section 11 of the Act, and even then, he should exercise a careful discretion as to the persons to whom notice should issue [section 11(iv)]. It should also be noted that in certain cases a guardian cannot be appointed under the Act (section 19).

In appointing a guardian the Courts shall be guided by the provisions of section 17.

4. Reasons for rejecting an application in limine should be recorded.- If any application is rejected *in limine* the Court must give its reasons for rejection as an appeal lies under section 47 (a) of the Act.

5. No need to appoint a guardian of a deceased military servant for purposes of pension.- Courts should not appoint a guardian, under the Guardians and Wards Act, merely in order to enable the heir of a man who has died in military service to draw a pension. A certificate signed by a Revenue Officer of or above the rank of a Naib-Tahsildar is accepted as sufficient authority for the payment of such pensions to de facto guardians.

6. Petty cases-proceedings should terminate on appointment of guardian.- By Rule 8 of the rules framed under the Guardians and Wards Act, 1890, accounts are required (vide Part B of this Chapter) from guardians only when the annual income of the estate is likely to exceed Rs. 5000/- and in other cases only if the Court thinks fit to order. Having regard to the petty sums involved in the vast majority of cases, it should be the rule and not the exception that the latter class of proceedings should terminate with the appointment of the guardian. Continuous control is desirable only in the case of large properties.

7. Form of Bank account for current expenses.- Attention is drawn to rule 13 of the rules framed under the Guardians and Wards Act, 1890, --(vide Part B of this Chapter). With respect to money required for the current expenses of the estate and of the ward's maintenance, which is not to be invested, that rule lays down no restriction as to the form of account, i.e., current account, savings account or fixed deposit account in which it may be

placed. Such money should be placed in such form of Bank account as will be to the best interests of the minor.

8. Restrictions regarding withdrawal from Bank account.- When permitting the opening of an account in a Bank, the Court may direct that no withdrawal should be made by the guardian from the account except under the orders of the Court. If such restrictions are imposed on the powers of a guardian, they should be embodied in the guardianship certificate; or if a separate order to this effect is recorded, an attested copy of it should be forwarded to the Bank for registration along with an attested copy of the guardianship certificate. The Court should see in particular that the amounts kept in the Bank are no larger than are sufficient for current expenses and that all surplus money is invested in accordance with rule 13 of the rules framed under the Guardians and Wards Act 1890. (vide Part B, of this Chapter).

9. Cases in which money for current expenses are to be deposited in treasury.- In cases falling under Rule 14, money required for current expenses must be deposited in the treasury and the surplus money invested in Government Promissory Notes as laid down therein.

10. Pass books, etc., to be kept by guardians.- All pass books, Government Promissory Notes and Post Office Saving Schemes relating to Accounts of minors should be kept by their guardians and inspected by the Court at least once a year.

PART B -- RULES

(Rules made by the High Court with the approval of the Provincial Government under the powers conferred by section 50, subsection (1), clause (j), of the Guardians and Wards Act, 1890, for the guidance of Courts in carrying out the provisions of the Act.)

1. Application for appointment of a guardian shall be in form A.- Application for the appointment of a guardian of the person or property, or both, of a minor under section 10 of the Act shall, subject to such variations as the circumstances of each case may require, be in Form A annexed to these rules.

2. Notice required by section 11 shall be in form B.- The notice required by section 11 of the Act shall be in Form B annexed to these rules.

3. Form and time for filing statement of property and debts. Further statements when to be put in.- The statement showing the property and the debts of a ward, as required by clause (b) of section 34 of the Act, shall be in Form C annexed to these rules.

Only one such statement shall ordinarily be exhibited by the guardian, on or before such date, subsequent to the assumption of guardianship, as the Court may fix, unless for any special reason, to be recorded in writing, the Court shall subsequently think it necessary to call for another statement or statements. The guardian shall, however, inform the Court of any subsequent accrual of property to the minor, e.g., by inheritance, etc., and submit any statement with respect to it that may be called for. The Court shall carefully examine the statements, submitted under this rule and pass any further orders that may appear necessary for the proper management of the property.

4. Guardian Certificate-points to be noted thereon.- When a guardian is appointed under the Act, he should be furnished with a certificate of guardianship, in Form F, and his attention should be drawn in particular to the provisions of sections 26, 27, 28, 29, 32, 33, 35, 36, 39, 44 and 45 of the Act which shall be printed in full on the back of the said certificate. The certificate shall also state any special restrictions imposed by the Court on the powers of the guardian at the time of his appointment.

5. Bonds required from guardian-their forms and amount.- Except in cases in which, for reasons to be recorded in writing, the Court directs otherwise, every guardian of property appointed by the Court (other than the Collector of the District) shall be required to execute a bond, with or without a surety or sureties as the Court may think fit to direct, in a sum not less than the total estimated value of the movable property and three years' profits of the entire estate. Such bonds shall be in Form D annexed to these rules with such variations or modifications as will suit the circumstances of each case.

6. Time to be fixed for filing bonds. Allowances of guardians and other orders.- Orders in respect of (a) the execution, or otherwise, of such bond, and (b) the amount, if any, of the allowance to be paid to the guardian, shall be made by the Court at the time of appointing the guardian. When a bond is required the Court shall fix the time within which such bond is to be furnished and the order of appointment shall be made conditional on furnishing the bonds.

7. Entry of application in register No. 2. Cases in which periodical accounts are to be put in to be entered in Register E.- (i) Every application for appointment of guardian shall be entered in Civil Miscellaneous Register No. 2.

(ii) Every case, in which a guardian of property is appointed and the guardian is directed to file accounts periodically, shall be entered in register No. XXVI (Form E) and the particulars prescribed therein shall be entered from time to time as soon as orders are passed by the Court, or the particulars are available. Cases should be entered in this register chronologically and an alphabetical index thereof given in the beginning of the register.

8. Accounts should be scrutinized once a year in cases of large income.- When the annual income of the ward's estate appears likely to exceed *[Rs.5000/-], and in other cases if the Court thinks fit to so order, the guardian should be directed to submit to the court once a year and on a fixed date an account of the income and expenditure of the estate together with a list of the property, movable or immovable, sold or purchased, and of the amounts due to and from the ward. Such account shall be scrutinized by the Judge who should

certify that he has done so and should record such remarks thereon as may be necessary.

9. Such cases to be treated as pending-minor to be produced before Court in such cases.- When a guardian is required to submit yearly accounts to the Court, the case should, until the ward concerned attains his majority, be treated as pending and the ward should be produced before the Court on the dates on which returns have to be furnished by the guardian, such dates to be reckoned as dates of hearing and entered as such in the cause book of the Court.

10. Notice of application under sections 28 and 29 to be given to persons affected by it.- When an application is made by a guardian for any of the purposes referred to in sections 28 and 29 of the Act, the Court should, before disposing of it, cause notice thereof to be given to such persons, whether relatives of the ward or otherwise connected with him, as the Court may consider to be affected by the application.

11. Annual Inspection of Wards by Courts.- In the absence of sufficient reason to the contrary, all male wards should be produced before the Court once a year, and the Court should, so far as is possible, examine their physical, intellectual and moral conditions, and ask them whether they have any remarks to make on the subject of the management of their estates. To facilitate this arrangement the Court should maintain a list of all such wards.

12. Inspection of statements and accounts filed by the guardian.- All statements and accounts submitted by a guardian should be kept with the records of the case to which they relate ; and may, with the permission of the Court, be inspected by any person legitimately interested in the same, on payment of the ordinary inspection fee.

13. Opening of accounts in approved banks in the name of minors for current expenses. Investment of surplus money in government securities.- Where the Court deems it necessary to direct the guardian to open an account in a bank, the account shall be in the name of the minor through his guardian in the Post Office Savings Bank, or in the National Bank of Pakistan or in any other bank approved by the High Court. If, after payment of the current expenses of the estate and of the ward's maintenance, there should be

any balance, such balance should be invested by the guardian in #[(i) Government securities other than Post Office Savings Schemes; or (ii) Post Office Savings Schemes; or (iii) Municipal Debentures, Port Trust Bonds and Wapda Bonds; or (iv) National Savings Certificates], or in any other securities mentioned in clauses (a), (b), (c) and (d) of section 20 of the Trusts Act, 1882 (II of 1882).

Note 1:- A list of banks approved by the High Court is supplied to subordinate courts and additions and alterations made therein are communicated from time to time.

Note 2:- In order to enable a bank to open an account in the name of a minor through his guardian, an attested copy of the guardianship certificate should be supplied to it for registration.

14. Investment of money in cases of estates managed by Government. Ward's money not to be deposited in the name of Court.- [(i) In cases in which the ward's estate is under the management of Government, in the person of the District Judge, the Collector or other Government officer, surplus moneys may be invested in Government Promissory Notes, purchased through and held in the safe custody of the National Bank of Pakistan, in accordance with the procedure laid down in paragraph 110(b) and note 1 to paragraph 101 of Chapter IX of the Government Securities Manual, 3rd edition. The income of the estate required for current expenses of the management of the estate, the maintenance, and education of the ward, should be deposited in the treasury.

(ii) The deposit of money in a private bank in the name of the District Judge or other Government officer, as a guardian of a ward's estate, is prohibited,--(*vide rule 7 et seq*, section V of the Treasury Rules (Punjab).

15. Court may pass orders for proper education of the ward in certain cases.- When it appears to the Court, at the annual inspection of the ward or otherwise, that orders are required as to the education of the ward, the Court should pass such orders as appear to suit the case, regard being had to the present position and future prospects of the ward's family and the intellectual capabilities of the ward himself.

16. Management of Wards' estates to be noted in annual report.- The management of ward's estates should be specially noted in the Annual Civil Report submitted by each District Judge and detailed mention should be made of the main facts relating to the more important estates.

FORM B
[In the Court of]

[Court of]

In matter of guardianship ofson... of caste ...resident of ...Minor

a	The name, sex, religion, date of birth, and ordinary residence of the minor	
b	Where the minor is a female, whether she is married and, if so, the nature and age of her husband	
c	The nature, situation, and approximate value of the property, if any, of the minor. (For details see schedule on reverse.)	
d	The name and residence of the person having the custody or possession of the person or property of the minor.	
e	What near relations the minor has, and where they reside.	
f	Whether a guardian of the person or property, or both, of the minor has been appointed by any person entitled, or claiming to be entitled by the law to which the minor is subject to make such an appointment.	
g	Whether an application has at any time been made to the Court or to any other Court, with respect to the guardianship of the person or property or both of the minor, and if so, when, to what Court, and with what result	
h	Whether the application is for the appointment or declaration of a guardian of the person of the minor, or of his property, or both.	
i	Where the application is to appoint a guardian, the qualifications of the proposed guardian.	
j	Where the application is to declare a person to be a guardian, the grounds on which that person claims.	
k	The causes which have led to the making of the application.	
l	Such other particulars if any, as may be presented, or as the nature of the application renders it necessary to state.	

Signatures of petitioner or of a person
Duly authorized by him in this behalf.

The above particulars are true to the knowledge
Of the person making them except as to matters
Stated on information and belief, and as to those
Matters he believes them to be true.

I, the guardian proposed in the above application, do hereby declare that I am willing to act as such .

Attested by (1)
 (2)

Signature of the person verifying
Signature of the proposed guardian

SCHEDULE TO FORM A.

1	2	3
Details of property belonging to ward	Value	Names of persons in present Possession of the property Mentioned in column 1.
(1)		(1)
(2)		(2)
(3)		(3)
& c.		& c.

FORM B
FORM OF NOTICE UNDER SECTION 11 OF ACT VIII OF 1890

DISTRICT

In the Court of District Judge at

PRESENT

Case No. _____ of 19 .

Petitioner

Inhabitant of

Application for the (¹-----of a guardian to the (2)-----
of----- a minor inhabitant of-----.

Whereas the petitioner above-named has applied to be (¹-----
---the guardian of the (²-----of the aforesaid minor, and
the-----day of-----19-----has
been fixed for the hearing of the application; notice is hereby given to (¹-----
-----that if any other relative, friend, kinsman or well-wisher of the aforesaid
minor desire to be appointed or declared as guardian of the (²) ----- of the said
minor, or desire to oppose the application of the petitioner aforesaid, he should
appear personally in the Court on the aforesaid date, and adduce any documentary
and oral evidence in support of his claim to such appointment or declaration, or in
support of his opposition to the application of the petitioner aforesaid.

Given under my hand and the seal of this Court, this day of-----19-----.

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- (3) Here state whether land is water, tidal or non-tidal, proprietary or occupancy, and as to building, whether katcha or pucca, one-storied or double-storied, etc.
- (4) Here state whether cultivated through servants or relatives, or let on farm, or cultivated by tenants, either occupancy or at will, and in case of building, whether occupied by owner or family or let on rent or hire, etc.
- (5) This will assist the Court in determining the amount of security to be taken from the guarantor.

B.-- Statement showing particulars as to the debts due to or by the estate of
whose property and person has been appointed or declared guardian by order of
Court, dated 19 .

[illegible]

(a) Whether registered or mortgaged bond or deed or book account, etc.

FORM D**Form of Bond under Section 34 of Act VIII of 1890**

Know all men by these presents that I (a)----- of (b)----- of (b)-----
 ----- in the (b)----- District am held and firmly bound to (c)-----
 ----- the District Judge of----- his successors in this office or his or their
 assigns in the sum of rupees ----- to be paid to the said (d)-----
 -----District Judge, to his successors in this office or to his assigns and we-----
 ----- (e)----- of (e)-----
 -----in the (e)----- District and (f)-----
 District are jointly and severally held and firmly bound to the said (g)-----
 ----- or his successors in office or his or their assigns in the sum of Rupees--
 -----to be paid to the said
 (h)----- or his successors in office or his or their assigns for the
 payment of which said sum of rupees-----to be faithfully and truly made I the
 above bounden (i)-----bind myself and my heirs, executors,
 administrators and representatives and for the payment of the said sum of rupees----
 --- we the above-bounden (j)----- and (k)----- bind
 ourselves and each of us jointly and severally and one and each of our heirs,
 executors, administrators and representatives firmly by these presents signed by
 ourselves and sealed with our respective seals this -----day of-----19---
 ----.

Whereas by an order of the court of the District Judge of----- made on the--
 -----day of-----19-----under section 7 of

the Guardians and Wards Act (VIII of 1890) the above-named ()-----has
subject to his entering into a bond in rupees-----with ()-----

the same sum

sureties in----- been appointed guardian of the property movable and

the sum of Rs.

immovable of ()-----minor son of (3)----- and
whereas the said ()----- *has agreed to enter into the above-*
written bond and the said ()----- and (6)----- have
agreed to enter into the above-written bond as sureties for the said ()-----
. Now the condition of the above-written bond is such that if the said ()-----
- do and shall justly and truly account whenever called upon to do so for what he may
receive in respect of the property of the said ()----- and shall carefully
observe, perform and obey all orders and directions of the said court of the District
Judge of----- touching or concerning the estate and effects of the said
minor and his property and touching and concerning all such moneys and estates as
he the said ()-----shall receive as such guardian as aforesaid and in
all things conduct himself properly, then the above-written bond or obligation shall be
void and of no effect otherwise the same shall remain in full force and virtue.

Signed and sealed by the above-named.

_____ Seal

_____ Names of guardian

and sureties

In the presence of Seal_____ Seal

**REGISTER NO. XXVI
FORM E.**

**STATEMENT RELATING TO THE PROPERTY OF MINORS OF ANNUAL INCOME AND EXPENDITURE.
PART I-- STATEMENT RELATING TO PROPERTY**

Serial No. (with corresponding No. of Miscellaneous Register II) (a)	Name and description of minor (b)	Date of birth	Name and description of the guardian of person with date of appointment (b)	Name and description of the guardian of property with date of appointment	Date and amount of security bond (if any) taken from guardian	* Days fixed for filing of accounts every year	BRIEF DESCRIPTION OF THE PROPERTY OF THE MINOR AND ITS ESTIMATED VALUE		Estimated income from various sources.	Remarks
							Immovable Property	Movable Property		
									(a) Land (b) House property (c) Securities etc. etc	

- (a) Corresponding number of the case in the Miscellaneous Register should be given in red ink.
(b) Give father's name, caste and residence.

PART II.-- STATEMENT OF ACCOUNTS AND ABSTRACT OF IMPORTANT ORDERS.

ACCOUNTS				ABSTRACT OF OTHER IMPORTANT ORDERS, E. G., UNDER SECTIONS 31, 32, 33, 34, 43, ETC., RELATING TO THE PERSON OR PROPERTY OF THE MINOR	
Year	Date of filing accounts	Brief statement of income, expenditure and balance	Remarks of the Judge after examination of the accounts.	Date of order	Abstract of order

FORM F

A.- FORM OF APPOINTMENT UNDER SECTION 7 OF ACT NO.VIII OF 1890
(GUARDIANS AND WARDS ACT)

Whereas this Court has, under the provisions of Section 7 of Act No.VIII of 1890, been pleased to appoint you,----- (or to declare you-----to be) guardian of (*the property or the person and property*) of----- during the period of his minority, to wit, till the----- day of the month of----- 19-----, subject to the provisions contained in the Act and the rules framed thereunder and particularly those provisions contained in sections 26, 27, 28, 29, 32, 33, 35, 36, 39, 44 and 45 of the Act aforesaid (which are printed on the back of this certificate) you are hereby authorised to take charge of the property of the minor in trust, to collect and pay all just debts, claims and liabilities due to or by the estate of the minor, to institute or defend suits connected with that estate and generally to do and perform all acts which may be necessary to the due discharge of the trust vested in you, provided always that you shall not mortgage, or charge, or transfer by sale, gift, exchange or otherwise, any part of the immovable property of your ward, or lease any part of that property for a term exceeding five years, or for any term extending more than one year beyond the date on which your ward will cease to be a minor, without the express sanction of this Court previously obtained: and that you shall keep regular accounts of your receipts and disbursements, with all vouchers and other documents necessary to establish their correctness, and shall carry out all orders issued to you by this Court under the aforesaid Act.

Given under my hand and the seal of the Court this-----day of-----
--- 19-----.

Extracts from the Guardians and Wards Act

26. Removal of the ward from jurisdiction.- (1) A guardian of the person appointed or declared by the Court, unless he is the Collector or is a guardian appointed by will or other instrument, shall not without the leave of

the Court by which he was appointed or declared, remove the ward from the limits of its jurisdiction except for such purposes as may be prescribed.

(2) The leave granted by the Court under subsection (1) may be special or general, and may be defined by the order granting it.

27. Duties of guardian of property.- A guardian of the property of a ward is bound to deal therewith as carefully as a man of ordinary prudence would deal with it if it were his own, and, subject to the provisions of this chapter, he may do all acts which are reasonable and proper for the realization, protection or benefit of the property.

28. Powers of testamentary guardian.- Where a guardian has been appointed by will or other instrument, his power to mortgage or charge, or transfer by sale, gift, exchange or otherwise, immovable property belonging to his ward, is subject to any restriction which may be imposed by the instrument, unless he has under this Act been declared guardian and the Court which made the declaration permits him by an order in writing, notwithstanding the restriction, to dispose of any immovable property specified in the order in a manner permitted by the order.

29. Limitation of powers of guardian of property appointed or declared by the Court.- Where a person other than a Collector, or a guardian appointed by will or other instrument, has been appointed or declared by the Court to be guardian of the property of a ward, he shall not, without the previous permission of the Court-

(a) mortgage or charge, or transfer by sale, gift, exchange or otherwise, any part of the immovable property of his ward, or

(b) lease any part of that property for a term exceeding five years or for any term exceeding more than one year beyond the date on which the ward will cease to be minor.

32. Variation of power of guardian of property appointed or declared by the Court.- Where a guardian of the property of a ward has been appointed or declared by the Court, and such guardian is not the Collector, the Court may from time to time, by order define, restrict, or extend his powers with respect to the property of the ward, in such manner and to such extent as it

may consider to be for the advantage of the ward and consistent with the law to which the ward is subject.

33. Right of guardian so appointed or declared to apply to the Court for opinion in management of property of ward.-

(1) A guardian appointed or declared by the Court may apply by petition to the Court which appointed or declared him, for its opinion, advice, or direction on any present question respecting the management or administration of the property of his ward.

(2) If the Court considers the question to be proper for summary disposal, it shall cause a copy of the petition to be served on, and the hearing thereof may be attended by, such of the persons interested in the application as the Court thinks fit.

(3) The guardian stating in good faith the facts in the petition, and acting upon the opinion, advice or direction given by the Court, shall be deemed, so far as regards his own responsibility, to have performed his duty as guardian in the subject-matter of the application.

35. Suit against guardian where administration bond was taken.- Where a guardian appointed or declared by the Court has given a bond duly to account for what he may receive in respect of the property of his ward, the Court may, on application made by petition, and on being satisfied that the engagement of the bond has not been kept, and upon such terms as to security, or providing that any money received be paid into the Court or otherwise as the Court thinks fit, assign the bond to some proper person, who shall thereupon be entitled to sue on the bond in his own name as if the bond had been originally given to him instead of to the Judge of the Court, and shall be entitled to recover thereon, as trustee for the ward, in respect of any breach thereof.

36. Suit against guardian where administration bond was not taken.- Where a guardian appointed or declared by the Court has not given a bond as aforesaid, any person, with the leave of the Court, may as next friend, at any time during the continuance of the minority of the ward, and upon such terms as aforesaid, institute a suit against the guardian, or, in case of his death, against his representative, for an account of what the guardian has received in respect of the property of the ward, and may recover in the suit, as trustee for

the ward, such amount as may be found to be payable by the guardian or his representative, as the case may be.

39. Removal of guardian.- The Court may, on the application of any person interested, or of its own motion, remove a guardian appointed or declared by the Court, or a guardian appointed by will or other instrument, for any of the following causes, namely-

- (a) for abuse of his trust;
- (b) for continued failure to perform the duties of his trust;
- (c) for incapacity to perform the duties of his trust;
- (d) for ill-treatment, or neglect to take proper care of his ward;
- (e) for contumacious disregard of any provision of this Act or of any order of the Court;
- (f) for conviction of an offence implying, in the opinion of the Court, a defect of character which unfits him to be the guardian of his ward;
- (g) for having an interest adverse to the faithful performance of his duties;
- (h) for ceasing to reside within the local limits of the jurisdiction of the Court;
- (i) in the case of a guardian of the property, for bankruptcy or insolvency;
- (j) by reason of the guardianship of the guardian ceasing, or being liable to cease, under the law to which the minor is subject:

Provided that a guardian appointed by will or other instrument, whether he has been declared under this Act or not, shall not be removed-

- (a) for the cause mentioned in (g), unless the adverse interest accrued after the death of the person who appointed him, or it is shown that that person made and maintained the appointment in ignorance of the existence of the adverse interest; or

(b) for the cause mentioned in clause (h), unless such guardian has taken up such a residence as, in the opinion of the Court, renders it impracticable for him to discharge the functions of guardian.

44. Penalty for removal of ward from jurisdiction.- If, for the purpose or with the effect of preventing the Court from exercising its authority with respect to a ward, a guardian appointed or declared by the Court removes the ward from the limits of the jurisdiction of the Court, in contravention of the provisions of section 26, he shall be liable, by order of the Court, to fine not exceeding one thousand rupees, or to imprisonment in the jail for a term which may extend to six months.

45. Penalty for contumacy.- (1) In the following cases, namely-

(a) if a person having the custody of a minor fails to produce him or cause him to be produced in compliance with a direction under section 12, subsection (1), or to do his utmost to compel the minor to return to the custody of his guardian in obedience to an order under section 25, subsection (1); or

(b) if a guardian appointed or declared by the Court fails to deliver to the Court, within the time allowed by or under clause (b) of section 34, a statement required under that clause, or to exhibit accounts in compliance with the requisition under clause (c) of that section, or to pay into the Court the balance due from him on those accounts in compliance with a requisition under clause (d) of that section; or

(c) if a person who has ceased to be a guardian, or the representative of such a person, fails to deliver any property or accounts in compliance with a requisition under section 41, subsection (3),

the person, guardian, or representative, as the case may be, shall be liable, by order of the Court, to fine not exceeding one hundred rupees, and in case of recusancy to further fine not exceeding ten rupees, for each day after the first during which the default continues, and not exceeding five hundred rupees in the aggregate, and to detention in the jail until he undertakes to produce the minor or cause him to be produced, or to compel his return, or to deliver the

statement, or to exhibit the accounts, or to pay the balance, or to deliver the property or accounts, as the case may be.

(2) If a person who has been released from detention on giving an undertaking under subsection (1) fails to carry out the undertaking within the time allowed by the Court, the Court may cause him to be arrested and recommitted to the jail.

B - CERTIFICATE OF ADMINISTRATION UNDER ACT VIII OF 1890

I -----, Judge of the ----- District, do hereby make known that on the-----day of-----19----- a certificate of administration of the property of-----of (*place*)-----, a minor subject to the jurisdiction of this Court under Act VIII of 1890, was granted by me to-----of (*place*)-----he having undertaken to administer the same on behalf of the above-named.

2. I do further make known that the said-----has been appointed guardian, under Act VIII of 1890, of the person of the above-named minor.

Given under my hand and the seal of the Court, this day of -----19----.

Judge of the-----District

Note:- The holder of this certificate is empowered, under Act VIII of 1890, to exercise the same powers in the management of the estate as might have been exercised by the proprietor if not a minor and may collect and pay all just claims, debts or liabilities due to or by the estate; but he has not power to sell or mortgage any immovable property, or to grant a lease thereof for any period exceeding five years without an order of the Court previously obtained.

Clause 2 of the certificate will be omitted unless the court sees fit to appoint same person to be administrator of the estate and guardian of the minor.

PART C -- RULES

Rules made by the High Court with the approval of the Provincial Government, under the powers conferred by section 50, subsection (i), clause (ff) of the Guardians and Wards Act, 1890, regarding the levy of fee for the audit of Guardians and Wards Accounts.

(1) In order to meet the cost of audit of the guardians and minors accounts by Government, the court shall require the guardian to credit one per cent of the estate's income into the #[State Bank of Pakistan or National Bank of Pakistan] under the head #[1200000-Receipts from Civil Administration and other Functions; 1210000-General Administration Receipts; 1212100-Fiscal Administration Audit; 1212180-Fiscal Administration Audit-others (58)]. The audit fee thus credited and supported by the Bank challan shall be incorporated in the accounts of the estates concerned submitted to the Court annually by the guardian under rule 8 of Chapter 2 B, High Court Rules and Orders, Volume II. The Court will not pass accounts unless it is satisfied that the requisite audit fee has been duly credited into the treasury.

(2) The Guardian Judge is authorised to waive recovery of audit fee upto a limit of Rs. 10 in each case, if he is satisfied that it cannot conveniently be recovered or that the cost of its recovery is likely to exceed the amount to be recovered. All cases of non-recovery of audit fee exceeding Rs. 10 must be reported to the High Court. These rules were enforced with effect from the 1st April 1944.

(High Court notification No.66-R/XV-B-8, dated the 20th April, 1945).

CHAPTER 3 INVESTMENT OF TRUST MONEY

Rules made by the High Court, under the powers conferred by section 20, clause (f) of the #[...] Trusts Act, 1882, authorising the investment of trust moneys.

#[1. Investment of Trust money.-- In accordance with the power contained in clause (f) of section 20 of the Trust Act, 1882, it is declared that the Trust-property consisting of money may be invested in any of the following:-

- (i) Government Securities other than Post Office Saving Schemes.
- (ii) Post Office Savings Schemes.
- (iii) Municipal Debentures, Port Trust Bonds; and WAPDA Bonds.
- (iv) National Savings Certificates.

(The above Securities are recognized Securities as per Rule 3.6 of the Punjab Subsidiary Treasury Rules)].

CHAPTER 4

INSOLVENCY PROCEEDINGS

Chapters 4 and 5 have been revised by the High Court under section 79 of the Provincial Insolvency Act and *[Article 202 of the Constitution of the Islamic Republic of Pakistan, 1973], with the previous sanction of the Provincial Government.

(High Court Notification No.242-R//XV-A-17, dated the 25th August, 1938).

PART A -- GENERAL

1. Courts having jurisdiction to try insolvency cases. Priority should be given to insolvency work.-- Under section 3 of the Provincial Insolvency Act, 1920, all District Courts are invested with jurisdiction under the Act and the Provincial Government is also empowered to invest subordinate Courts with concurrent jurisdiction. In the Punjab, besides Judge of the Court of Small Causes at Lahore **[...] all Civil Judges of the 1st Class have been invested with such jurisdiction; but the High Court has directed that only those Civil Judges of the 1st Class should take cognizance of proceedings under the Act who are expressly permitted by the High Court to do so.

The Hon'ble Judges have decided that all the work under the Provincial Insolvency and the Guardian and Wards Acts should be entrusted to a special 1st Class Civil Judge in all districts with certain exceptions, and it shall be the primary duty of every Civil Judge so appointed to do insolvency and guardianship cases, original civil cases being done only if he can spare time.

2. Forum of Appeal.-- When a subordinate Court exercises concurrent jurisdiction, appeals from its orders lie to the District Judge (section 75).

3. Persons by or against whom a petition for insolvency may be filed.-- A petition for insolvency under the Provincial Insolvency Act may be filed by or against any individual or firm but not by or against any association,

corporation or company registered under any enactment for the time being in force.

4. Procedure to be followed.-- Subject to the special provisions of the Provincial Insolvency Act, 1920, the Insolvency Courts shall follow the same procedure as they do in the exercise of original civil jurisdiction (*vide Section 5*).

5. Process fee chargeable for all notices issued.-- The practice of charging no process fee in respect of notices sent to or served on creditors is against the provisions of section 20 of the Court Fees Act under which process fee has to be charged for any mode of serving or executing a process or notice whether by post or through the ordinary process-serving agency.

6. Notice by registered Post and in the official Gazette.-- It should be noted in connection particularly with petitions involving a large number of creditors, that the publication in the Official Gazette is in itself a notice to creditors and it would be sufficient in most cases especially of debtor's applications to issue notice by registered post, and if the creditors do not attend, it will be because they expect that realizations will not be worth the trouble. It may, of course, be necessary to take special steps to inform creditors for large amounts or at distant places.

7. The amount of debt and other conditions requisite for insolvency petition and summary administration.-- Conditions under which a debtor or his creditor can file a petition are laid down in sections 9 and 10 of the Act. It is important to note, however, that section 10 of the Provincial Insolvency Act has been amended by section 3 of the Punjab Relief of Indebtedness Act, VII of 1934.

According to section 10 of the Provincial Insolvency Act, a debtor is entitled to present an Insolvency petition if *inter alia* "his debts amount to Rs.500." This limit has been reduced to Rs. 250 by section 3 of Act VII of 1934 in cases where the debtor can also satisfy the Court that he is entitled to summary administration of his estate under section 74 of the Provincial Insolvency Act.

The benefits of summary administration were open under section 74 of the Provincial Insolvency Act to those debtors only whose property was not likely to exceed in value Rs.500. This limit has been raised to Rs. 2,000 by section 4 of the Punjab Relief of Indebtedness Act, with the result that wider circle of debtors is now entitled to take advantage of the summary procedure.

8. Oral examination of the debtor and summary inquiry advised to dismiss dishonest applications.-- Section 10 of the Provincial Insolvency Act requires the debtor to prove *inter alia* that he is 'unable to pay his debts.' Section 24 of the Act provides that '*prima facie*' proof is sufficient for this purpose but if the debtor is carefully examined by the court as required by section 24 such examination, supplemented by a summary enquiry, will frequently enable the Court to dismiss *in limine* dishonest applications.

If the Court finds subsequently that an order for adjudication ought not to have been made, the order can be cancelled at a later stage.

***[9. Duty of Insolvency Court to inform proper authority when a Government servant is adjudged insolvent or adjudication is annulled, or is discharged.--** When a Government servant is adjudged an insolvent, the Head of Department concerned should be informed of the insolvency by the court as soon as an order of adjudication has been passed. The court should, in forwarding the information, draw the attention of the Head of Department to the provisions of rule 17 of the West Pakistan Government Servants Conduct Rules, 1966, which provides, *inter alia*, that:

"A Government Servant shall avoid habitual indebtedness. If a Government Servant is adjudged or declared insolvent or if the whole of that portion of his salary which is liable to attachment, is frequently attached for debt, has been continuously so attached for a period of two years, or is attached for a sum which, in ordinary circumstances, he cannot repay within a period of two years, he shall be presumed to have contravened this rule, unless he proves that the insolvency or indebtedness is the result of circumstances which, with the exercise of ordinary diligence, he could not have foreseen or over which he had no control and has not proceeded from extravagant or dissipated habits."]

9-A ***[Omitted].

10. In deciding a debtor's inability to pay his debts, the value of his land should be taken into consideration even though it is not liable to sale.-- Petitions for insolvency are sometimes put in by members of agricultural tribes who own considerable land or property by the sale of a portion of which they could easily discharge their debts. A person of this description cannot obviously be considered to be "unable to pay his debts," merely because his land is subject to certain restrictions as regards alienation under the Punjab Alienation of Land Act, 1900.

11. Period for application for discharge should be fixed in the adjudication order.-- When a person is adjudged an insolvent, the adjudication order must specify the period within which the insolvent is to apply for his discharge (section 27).

12. Official Receivers should normally be appointed Receivers.-- The proper administration of an insolvent estate depends mainly on the efficiency of the Receiver and the selection of a suitable Receiver requires, therefore, careful attention of the Court.

In most districts "Official Receivers" have been appointed and where an Official Receiver exists, he must be appointed a Receiver in all insolvency proceedings, unless the Court directs otherwise for special reasons (vide section 57)(For instructions as regards "Official Receivers", see Chapter 5 of this Volume). In other cases, the appointment of a Receiver rests with the Court and every endeavour should be made to select a reliable person able to keep accounts and discharge the duties of a Receiver under the Act efficiently.

13. Receivers should give security, amount and form of security bonds.-- The Court should be careful to take adequate security from the Receiver with due regard to the value of the assets likely to pass through his hands.

The Court should use due discretion in fixing the amount of security to be taken in such cases. It is suggested as a principle which might usefully be adopted that the amount should roughly be equal to half the average annual realizations calculated on the realizations of the last five years.

The forms of security and security bonds should be the same as those prescribed for Official Receivers in Chapter 5-A of this Volume, the word " General" being substituted for the word "Official" wherever it occurs in the bond.

14. Schedule of creditors and other necessary directions to be supplied to Receivers.-- The Receiver should be furnished with a copy of the schedule of creditors (which must be prepared by the Court-- vide section 33) and should be given any further directions as regards his duties and administration of the estate as the Court may think necessary in each case.

15. Schedules of the property and lists of creditors should be checked by a court official before delivering them to the Receiver.-- The Schedules prescribed in Form No. 2 (printed at the end of this Chapter) must be examined carefully in Court when they are first presented with the Insolvency petitions as the entries in the Official Receivers' Registers are often incomplete because these schedules do not supply the requisite information.

The Courts should specially entrust the duty of checking these schedules to one of the officials and see that it is carried out.

The lists put in by the insolvents should also be verified by the Court to see that they tally with each other before one copy is handed over to the Receiver.

16. Insolvent's property vests in the Receiver including lands of members of agricultural tribes.-- On the appointment of a Receiver all the insolvent's property, subject to certain exceptions, vests in the Receiver (vide section 28) and can be utilized for the payment of his debts.

It has been held by the Lahore High Court that although land belonging to a member of an agricultural tribe cannot be sold in execution of any decree or order of a Civil Court, there is no objection to the "temporary alienation" of such land in execution of decrees or for the discharge of the insolvent's debts (See I.L.R.I Lahore 192, F.B., and 2 Lahore 77).

17. Adjudication order is a bar to fresh suits. Stay of pending suits optional but advisable.-- On the passing of an adjudication order, a creditor cannot institute a suit against the insolvent for the recovery of his debt,

but must prove his debt in the Insolvency Court. But pending suits may be stayed or continued on such terms as the trial Court may deem fit. (Sections 28-29.).

Insolvency petitions are sometimes kept pending for long periods in order to await the result of civil suits instituted by the creditors for the recovery of their debts in the ordinary courts. The correct course in such cases generally is to allow the parties to move the Civil Courts concerned to stay the suits in order that the plaintiff's claim may be proved in insolvency as otherwise one creditor alone may hold up the proceedings in insolvency and thus indirectly delay or prejudice the interests of other creditors.

18. Adjudication order no bar to arrest of debtor in execution.-- Under the Provincial Insolvency Act, 1920, an adjudication order does not, by itself, confer on the insolvent any immunity from arrest in execution of decrees. It is left to the Insolvency Court to decide whether to grant him such protection, and if so, to what extent (section 31).

19. Insolvency case should be treated as pending till complete winding up of the debtor's estate.-- Insolvency cases should not be treated as disposed of when an order of adjudication has been passed, but should be treated as pending till all the realizable assets have been collected and the proceeds divided among creditors. It is important to note that an order of discharge does not necessarily terminate the proceedings in insolvency and the file of each case must be kept pending even after discharge if the annual winding up of the estate is still incomplete.

The Court should fix dates at suitable intervals for the Receiver to report the progress in the realization of the insolvent's assets and produce his accounts. On the dates so fixed, the Receiver's report and the accounts should be seen and the objections of the parties concerned (if any) should be heard and proper orders passed thereon. No solvency case should be adjourned *sine die*.

20. Duty of insolvent to co-operate with the Receiver.-- The insolvent is bound to assist in the administration of his estate in every way. If he fails to perform his duties or is found guilty of fraudulent conduct, he is liable to be prosecuted under section 69. In such cases, however, the Insolvency Court

is now required to make a complaint to a Magistrate having jurisdiction. (Section 70).

21. Power of Insolvency Court to decide all questions of title, etc.-- Section 4 of the Act is very comprehensive and enables the Insolvency Court to determine all questions of title on priority arising in the Insolvency proceedings, which "the Court may deem it expedient or necessary to decide for doing complete justice or making a complete administration of property in any such case." However, though the Insolvency Court has wide powers to decide such questions, still in cases involving difficult questions and unusual complications, it is advisable to relegate the parties to regular suit.

22. Effect of insolvent not applying for discharge within the fixed period. Object of fixing such time.-- The provisions of sections 41 to 43 of the Act, as regards the discharge of the insolvent, are very important and should be carefully studied. The intention of the legislature in requiring the Court to fix a period in the adjudication order, within which the insolvent must apply for discharge, is to ensure that the conduct of the insolvent should in all cases be brought under review by the Court within a reasonable time. If the insolvent does not apply for his discharge within the time, he is liable to have the adjudication annulled, and the result will be that he will not only not get back the property distributed amongst his creditors, but he will at the same time be still liable to arrest and imprisonment in execution of decrees against him.

23. Period for application for discharge should not ordinarily exceed one year.--

(i) The period fixed for an application for discharge should not ordinarily be more than one year in the first instance.

(ii) This period should not be extended without sufficient grounds. The following remarks in the Report of the Civil Justice Committee appointed in 1924-25 deserve the attention of Courts:-

`We incline to think that the time within which application for discharge should be made is either being extended with undue frequency or that this matter is being ignored by Receivers and by Courts. Possibly too, there is some misunderstanding, by reason of which creditors, who have compromised with the insolvent, are being allowed some say in the matter. It cannot be

too strongly emphasized that unless an insolvency is in due form annulled, the insolvent should in every case be proceeded against unless he applies for his discharge within the time limited. It may be that Receivers postpone or agree to postponement of the date for application for discharge, because the discharge, when granted, terminates the time during which any property accruing to the insolvent enures for the benefit of his creditors. In such cases, however, the proper course, as a rule, is not to postpone the application for discharge but to make the application; the Court being able to suspend the discharge for such period as is proper.' (Vide Pages 234-35 of the Report).

24. Court should carefully study the revised rules given in Chapter 4-B.-- The revised rules under section 79 of the Provincial Insolvency Act, 1920, framed by the High Court with the sanction of the Provincial Government should be carefully studied and followed. (See part B of this Chapter).

The attention of Courts is invited in particular to rule 56 of Chapter 4-B of this Volume which contains directions to regulate the appointment and procedure of Committees of Inspection under section 67-A of the Act.

25. Separate file to be kept for all High Court letters and instructions about insolvency.-- The Insolvency Courts should maintain a separate file for all the letters and instructions issued by the High Court about insolvency work and Official Receivers.

26. Register No. 15 of adjudicated insolvents should be properly maintained.-- The attention of Courts is drawn in particular to the necessity for the proper and regular maintenance of a register in form No.15 (Register of persons adjudicated insolvents). This Register, if maintained properly, can give a very useful picture of the proceedings taken in each case for the administration of the Estate. It has been noted that the second part of the Register (which is to contain an abstract of the Receiver's Reports) is either not maintained properly or omitted altogether. The Courts should see that this Register is maintained properly.

27. Causes of delay in disposal of insolvency cases.-- It has been found as a result of inspections that delay in the disposal of insolvency cases is due chiefly to one or more of the following causes:-

(i) Failure on the part of the Court to scrutinize the petitions carefully at the time of their institution to see if the provisions of section 13 of the Provincial Insolvency Act as to the contents of the petition have been complied with or not.

(ii) Failure of the petitioner to put in the initial deposit within the time specified by the Court and repeated adjournments granted for the purpose. The Courts in case of default should decline to entertain the petition and return it with this objection.

(iii) Failure of the debtor to furnish security in time as ordered by the Court.

(iv) Failure of the Court generally to fix any period within which the requisite process-fees should be put in (vide paragraph 2, Chapter I-K, High Court Rules and Orders, Volume I.)

(v) Delay on the part of the Court establishment in issuing notices promptly.

(vi) Delay in service of notices on creditors.

(vii) Failure to name in the first instance all the persons capable of acting as guardians *ad litem* for the minor respondents. (See Order XXXII, rules 3 and 4 as amended by the Lahore High Court.)

(viii) Frequent and unnecessary adjournments for compromises which never materialize.

(ix) Failure to continue the recording of evidence from day to day.

(x) The hearing of Insolvency petitions is sometimes adjourned repeatedly and quite unnecessarily in order to give time to the creditor's witnesses who naturally exaggerate the value of the debtor's property to buy up the property at their own valuation. They never, of course, do buy the property usually, and the only result generally is the prolongation of the proceedings.

(xi) The cases are frequently adjourned for arguments only which should be really unnecessary except in cases of unusual difficulty.

(xii) *Ex parte* proceedings are taken without a careful examination of the process-server's report and when taken are set aside too readily on payment of costs without any other reason being sought or assigned.

(xiii) Adjournments are granted unnecessarily for the putting in of written replies to miscellaneous application of a petty nature.

(xiv) Adjournments are granted too frequently by some courts at the request of unready counsel who do not come prepared with their cases.

These and other fretful causes of delay in the disposal of insolvency work should be checked assiduously.

PART B -- RULES MADE BY THE HIGH COURT WITH THE SANCTION OF THE PROVINCIAL GOVERNMENT, UNDER THE POWERS CONFERRED BY SECTION 79 OF THE PROVINCIAL INSOLVENCY ACT, 1920, FOR CARRYING INTO EFFECT THE PROVISIONS OF THE ACT

1. Title and application.-- These rules may be cited as The Punjab Provincial Insolvency Rules and shall apply to all proceedings under the Provincial Insolvency Act, 1920.

2. Adaptation of forms prescribed.-- The forms annexed to these rules (printed at the end of this Chapter), with such variations as circumstances may require, shall be used for the matters to which they severally relate.

3. Definition.-- (i) In these rules, unless there is anything repugnant in the subject or context-

`The Act' means the Provincial Insolvency Act, 1920.

`Receiver' means a Receiver appointed by the Court under section 56 (1) of the Act.

`Interim Receiver' means a Receiver appointed by the Court under section 20 of the Act.

`Proved debt' means the claim of a creditor so far as it has been admitted by the Court, or by the Official Receiver empowered under section 80 (1) (b) of the Act.

(ii) Unless there is anything repugnant in the context, words and expressions used in these rules shall have the same meanings as those assigned to them in the Act, and references to sections shall be taken to be references to sections of the Act.

4. Registers prescribed for entry of insolvency petitions and other applications.-- (a) Every insolvency petition shall on institution be entered in Civil Register of Miscellaneous cases (Register No. II) in all Courts exercising insolvency jurisdiction and shall be given a serial number in that register. If the petition results in adjudication, the case should be entered in the Register of persons adjudicated insolvents to be maintained in Form No. 15 attached to these rules and all entries relating to proceedings subsequent to adjudication should be made in this Register.

(b) Miscellaneous applications under sections 4, 53, 54, and 69 of the Provincial Insolvency Act should be entered in Civil Register No. VI (Register of Miscellaneous Petitions) which is the proper register for entering such applications. A separate register should be maintained in this form for insolvency cases.

5. Persons entitled to inspect proceedings and fees for inspection.-- All insolvency proceedings may be inspected by the Receiver, the debtor, and any creditor, who has proved, or any legal representative on their behalf at such times and subject to the same rules as other court records (vide Volume IV, Chapter 16-Records) provided that no fee shall be charged for inspection made by the Receiver.

NOTICES

6. Memorandum of publication in Gazette to be kept on record.-- Whenever publication of any notice or other matter is required by the Act to be made in an official gazette, a memorandum referring to, and giving the date of, such advertisement shall be filed, with the record and noted in the order sheet.

7. Manner of notifying dates of hearing.-- (i) Notice of order fixing the date of the hearing of petition under section 19 (2) may in addition to the publication thereof in the official gazette, be also advertised in such newspaper or newspapers as the court may direct. A copy of the notice shall also be forwarded by registered post to each creditor, to the address given in the petition or served on the creditor in the manner prescribed for the service of summonses, as the court thinks fit. The same procedure shall be followed in respect of notices of the date for the consideration of the proposal for composition or scheme of arrangement under section 38 (1).

(ii) Where the petition is by a creditor, a notice shall be served on the debtor in the manner prescribed for the service of summonses.

8. Manner of notifying, order of adjudication and orders cancelling adjudication.-- Notices of order of adjudication under section 30 shall be published in the official gazette and may also be published in such newspaper or newspapers as the Court may think fit. When the debtor is a

Government servant, a copy of the order shall be sent to the head of the office in which he is employed.

The same procedure shall be followed in regard to notice of orders, annulling adjudication under section 37 (2).

9. Persons on whom notices under section 33 (3) are to be served.-- The notices to be given under section 33 (3) of the Act shall be served only on the Receiver and on the creditors who have proved their debts and may, if the Court so direct, be served on any or all such creditors by registered post.

10. Service of notice under section 50.-- The notice to be given by the Court under section 50 shall be served on the creditor or his pleader, or shall be sent through the post by registered letter.

11. Service of notice under section 64.-- The notice to be issued by the Receiver under section 64 before the declaration of a final dividend to the persons whose claims to be creditors have been notified, but not proved, shall be sent through the post by registered letter.

12. Creditors to file address for service.-- (i) When the creditors appear in Court in answer to the notices issued under section 19 (2) of the Act or appear to prove their debts, they shall be required to give their addresses for service by post.

(ii) **Period of applying for discharge should be fixed.--** Whenever an order of adjudication is made, the Court should, at the same time, fix a date on or before which the insolvent should apply for discharge.

(iii) **Notice to creditor of application for discharge.--** When an application for discharge is made, the Court should fix a date for hearing it and issue notices (ordinarily by registered post) to the creditors at the addresses furnished by them.

13. Manner of notifying date of hearing of discharge applications.-- Notices of the date of hearing of applications for discharge under section 41 (1) shall be published in the official gazette and may also be published in such newspapers as the Judge may direct, and copies shall be sent by registered post to all creditors, whether they have proved or not, or served

on them in the manner prescribed for service of summons, as the Court thinks fit.

14. Proof of service by Post.-- A certificate of an officer of the Court or of the Official Receiver or an affidavit by a Receiver that any of the notices referred to in the preceding rule has been duly posted, accompanied by the post office receipt, shall be sufficient evidence of such notice having been duly sent to the person to whom the same was addressed.

15. Court's discretion to adopt any other mode of service.-- In addition to the methods of publication prescribed in these rules, the notices issued thereunder may be served in the discretion of the Court in such other manner as the Court may direct, for instance, by affixing copies on the Court house or by beat of drum in the village where the insolvent resides.

16. Notices should be issued or published a fortnight before date.-- Every notice issued under rules 7, 8, 11 and 12 shall be published or issued at least 14 days before the doing of the act of which warning is given in such notice.

Note:- *Mode of recovery of cost of service stamps.--* Whenever notice is permitted by these rules to be sent by registered post, it should be with acknowledgment due. Service stamps should invariably be used and the cost thereof recovered from the party concerned or drawn from the deposit made under paragraph 53 *ibid* and credited to "[1230000-Law & Order Receipts; 1231000-Justice; 1231800-Others] with full details of the recoveries entered in the treasury challan or repayment voucher, as the case may be, the cost will also then be deducted from expenditure under "Contract Contingencies. Postage Stamps."

RECEIVERS AND INTERIM RECEIVERS

17. Order for appointment of a receiver to be served on the debtor.-- Every appointment of a Receiver shall be by order in writing signed by the Court. Copies of this order, sealed with the seal of the Court, shall be served on the debtor, and forwarded to the person appointed.

18. Security to be given by receivers.-- Every Receiver or *Interim* Receiver, other than an Official Receiver, shall be required to give such security as the Court thinks fit. (As regards security to be taken from Official Receivers, see Chapter 5 of this Volume).

19. Schedule of creditors and all subsequent entries in it to be notified to receivers.-- As soon as the Schedule of creditors has been framed, a copy thereof shall be supplied to the Receiver or *interim* Receiver, as the case may be, and all subsequent entries and alterations made therein, shall be communicated to the Receiver or the *interim* Receiver.

20. Remuneration of receiver.-- (i) A Court when fixing the remuneration of Receiver should, as a rule, direct it to be in the nature of a commission of percentage not exceeding 7 1/2 per cent of the amount of the dividends, of which one part should be payable on the amount realized, after deducting any sums paid to secured creditors out of the proceeds of their securities and the other part on the amount distributed in dividends.

This commission is intended to cover all office expenditure including cost of establishment, if any, to be maintained by the Receiver for the discharge of his duties, and contingencies such as purchase of account books and forms and issue of notices, etc., incurred by the Receiver in connection with the administration of the Insolvents' estates.

(ii) Where a Receiver realizes the security of a secured creditor, the Court may direct additional remuneration to be paid to him with reference to the amount of the work which he has done and the benefit resulting to the creditors.

(iii) If a Receiver has been appointed in an insolvency proceeding in which the Court makes an order approving a proposal under section 39, the remuneration to be paid to the Receiver shall be fixed by the Court, and the order approving the proposal shall make provision for payment of the remuneration and shall be subject to the payment thereof.

(iv) When the office of an Official Receiver falls vacant on account of his death, suspension, dismissal or proceeding on leave, a particular person shall be appointed as *ad hoc* Receiver by the Court in each case under section 56 of the Provincial Insolvency Act, the person being nominated by the High Court. The Receiver so appointed shall draw commission and administration charges at the rates admissible to an Official Receiver under paragraphs 12 to 21 of the revised Chapter 5-A, of this Volume, and the salaries of the sanctioned office

establishment, rent of building occupied, the cost of stationery and postage and his travelling allowance etc., shall be charged at the rate of $1\frac{1}{4}$ per cent.

21. Remuneration of *Interim* receiver.-- If a person is specially appointed an *Interim* Receiver and is afterwards appointed Receiver in the case, his realizations in both the capacities can be treated alike and the ordinary commission charged. Other cases, in which an *Interim* Receiver does work, but there is no adjudication or substantive receivership, are few, but in them if any real work is done beyond the taking charge of such insignificant movables as the debtor produces voluntarily, it will probably have to be done quickly and be of a definite character and if any remuneration has to be fixed separately in those cases, it should be such sum as the Insolvency Judge may decide on the Receiver's appointment, subject to a maximum of one per cent of the estimated value of the property.

22. Books to be kept by the Receiver. Submission of accounts and their audit.--

The Receiver shall keep a Cash Book, a Dividend Register, and such other books as may be required to give a correct view of his administration of the Estate, and shall submit his accounts at such times and in such form as the Court may direct. In the absence of any such directions, the Receiver shall submit to the Court for each quarter, not later than the 10th day of the month next following, an account showing all the receipts and disbursements in cases in which he is a Receiver. The Receiver's accounts shall be audited by the *[Director General Audit, Punjab.] The cost of the audit shall be paid out of the estate at the rate of $1\frac{1}{4}$ percent of the total realizations,*[and credited in the State Bank of Pakistan or National Bank of Pakistan under the head 1200000-Receipts from Civil Administration and other Functions; 1210000-General Administration Receipts; 1212100-Fiscal Administration Audit; 1212180-Fiscal Administration Audit and Others(58).]

A receiver appointed under paragraph 20, clause (iv), above shall continue to keep all registers and accounts in the same form and on the same system as are prescribed for Official Receivers in Chapter 5-B *ibid*.

23. Transactions of *Interim* proceedings should be kept separate.--Receivers should not amalgamate their transactions relating to *interim* proceedings with those of Insolvent Estates.

24. Cash realized by *Interim* Receiver not to be mixed up with Insolvents Estates Fund.--

The cash which is realized or collected by an *Interim* Receiver should be deposited in the State Bank or National Bank or some other approved Bank, and not mixed up with the Insolvent Estates Fund of which an account is kept in the treasury.

25. Books to be kept by *Interim* Receiver.-- An *Interim* Receiver shall be required to maintain only the following books and forms:-

- (i) A Cash Book in Form No. 15 of Official Receivers.
- (ii) A Receipt Book in Form No. 9 of Official Receivers.
- (iii) A Property Register in Form No. 16 given at the end of this Chapter.

26. No audit of *Interim* Receiver's accounts required.-- A separate audit of *interim* accounts is unnecessary because if the *interim* appointment leads to full receivership after adjudication the *Interim* Accounts will be incorporated in the Receiver's accounts which will then be audited as such in the usual way. If, however, the petition for insolvency is dismissed, no audit is required because the debtor would, under the circumstances, himself take back the estate from the *Interim* Receiver.

27. Proved creditor entitled to a copy of receiver's accounts.-- Any creditor who has proved his debt may apply to the Court for a copy of the Receiver's accounts, or any part thereof, relating to the Estate, as shown by the Cash Book up to date and shall be entitled to such copy on payment of the charges laid down in the rules of this Court regarding the grant of copies.

28. Direction as to safe custody of valuable securities and cash secured by receiver and as to the investment of sums exceeding Rs.500.00.-- The Receiver shall deposit all valuable securities and cash for safe custody with the Nazir (who shall enter the same in the Malkhana Register to be maintained in form 23 and paste a label thereon in form 24 as prescribed for Official Receivers in Chapter 5-B, Rules and Orders, Volume II) or in the State Bank of Pakistan, or National Bank of Pakistan or any other approved Bank, as the Court may direct, and whenever a sum exceeding Rs. 500 shall stand to the credit of any one Estate, the Receiver shall give notice thereof to the Court;

and, unless it shall appear that a dividend is about to be shortly declared, he shall obtain the Court's orders as to investment of the same in a suitable manner, e.g., in securities or as a fixed deposit with a Bank, etc.

29. Duty of receiver to deliver up assets and books, etc., on being removed, or on annulment of adjudication.--

(i) The Court may remove or discharge any Receiver or Interim Receiver, and any Receiver or Interim Receiver so removed or discharged shall, unless the Court otherwise orders, deliver up any assets of the debtor in his hands and any books, accounts or other documents relating to the debtor's property which are in his possession or under his control, to such person as the Court may direct.

(ii) If an order of adjudication is annulled, the Receiver, if any, shall, unless the Court otherwise orders, deliver up any assets of the debtor in his hands and any books, accounts or other documents, relating to the debtor's property, which are in his possession or under his control, to the debtor or to such other person as the Court may direct.

30. Receiver shall submit an early report as to conduct of the debtor and other matters.--

(i) Unless the Court otherwise directs, the Receiver or Interim Receiver shall as soon as may be after his appointment, and in any case before the hearing of the debtor's application for discharge, draw up a report upon the cause of the debtor's insolvency, the conduct of debtor so far as it may have contributed to his insolvency and also his conduct during the insolvency proceedings in all matters connected with such proceedings, and in particular such report shall state specifically whether any of the facts mentioned in each of the clauses of or subsection (1) of section 42 exist or do not exist.

(ii) If the debtor submits a proposal under section 38 (1) of the Act, the Receiver shall state in his report whether in his opinion the proposal is reasonable and is likely to benefit the general body of the creditors and shall state the reasons for his opinion.

31. Receiver to be deemed an officer of the Court.--

Every Receiver or Interim Receiver shall be deemed for the purposes of the Act and of these Rules to be an officer of the Court.

PROOF OF DEBTS

32. Proof of debt by affidavit.-- A creditor's proof may be by an affidavit in Form No. 6 with such variations as circumstances may require.

33. Proof of wages of workmen, etc., employed by the debtor.-- In any case in which it appears from the debtor's statement that there are numerous claims for wages by workmen and others employed by the debtor, it shall be sufficient if one proof for all such claims is made either by the debtor or by some other person on behalf of all such creditors. Such proof should be in Form No. 7.

34. Provisions as to declaration of dividend, notifying its distribution and remission and other connected matters.-- (i) A dividend should be declared in each estate ordinarily every six months, i.e., on the 1st ^{*}[October] and the 1st ^{*}[April], each year.

(ii) If sufficient funds are not available for a particular dividend in any particular estate a report to this effect should be made to the Court for orders on these dates.

(iii) No dividend shall be distributed by a Receiver without the previous sanction of the Court.

(iv) Notice that the distribution of a dividend has been sanctioned shall be sent by the Receiver, or, if there is no Receiver, by the Court, to every creditor, who has proved a debt, by registered post within one month from the date of the order sanctioning the distribution.

(v) An order shall not be made under section 65 of the Act without giving the Receiver an opportunity to show cause why the order should not be made.

(vi) The amount of the dividend may, at the request, expense and risk of the creditor, be transmitted to him by post.

But if the amount is under rupees twenty, the Official Receiver may, after due notice, remit the sum by post to creditors concerned at their expense and risk even when no formal request has been made by them.

(vii) Where the assets in the hands of the Official Receiver are too small for distribution as dividend, e.g., [ten rupees] or so, these sums may be treated, with the permission of the Court in each case, as "unclaimed" by creditors and eventually lapsed to Government, **[and deposited in the State Bank of Pakistan or National Bank of Pakistan under the head - 1200000-Receipts from Civil Administration and other Functions; 1210000-General Administration Receipts; 1212100-Fiscal Administration Audit; 1212180-Fiscal Administration Audit-Others(58)].

PROCEDURE WHERE THE DEBTOR IS A FIRM

35. Mode of signing on behalf of the firm.-- Where any notice, declaration, petition or other document requiring attestation is signed by a firm of creditors or debtors in the firm's name, the partner signing for the firm shall also add his own signature, e.g., "Brown & Co., by James Green, a partner in the said firm".

36. Mode of personal service on a firm.-- Any notice or petition for which personal service is necessary, shall be deemed to be duly served on all the members of a firm if it is served at the principal place of business of the firm within the jurisdiction of the Court, on any one of the partners or upon any person having at the time of service the control or management of the partnership business there.

37. The preceding rule to apply to persons not carrying on business in their own name.-- The provision of the last preceding rule shall, so far as the nature of the case will admit, apply in the case of any person carrying on business within the jurisdiction in a name or style other than his own.

38. Insolvency petition by a firm should show names of all the partners and an affidavit that all partners concur in the filing of the petition.-- Where a firm of debtors files an insolvency petition, the same shall contain the names in full of the individual partners, and if such petition is signed in the firm's name the petition shall be accompanied by an affidavit made by the partner who signs the petition showing that all the partners concur in the filing of the same.

39. Adjudication order against a debtor firm shall operate against all individual partners.-- An adjudication order made against a firm shall operate as if it were an adjudication order made against each of the persons who at the date of the order are partners in that firm.

40. Each partner shall submit a schedule of his separate affairs.-- In cases of partnership, the debtors shall submit a schedule of their partnership affairs, and each debtor shall submit a schedule of his separate affairs.

41. Composition with joint creditors or a set of separate creditors.-- The joint creditors and each set of separate creditors, may severally accept composition or schemes of arrangement. So far as circumstances will allow, a proposal accepted by joint creditors may be approved in the prescribed manner, notwithstanding that the proposals or proposal of some or one of the debtors made to their or his separate creditors may not be accepted.

42. Composition with a firm. Annulment of adjudication where a composition or scheme is approved.-- Where proposals for compositions or schemes are made by a firm, and by the partners therein individually, the proposals made to the joint creditors shall be considered and voted upon by them apart from every set of separate creditors; and the proposal made to each separate set of creditors shall be considered and voted upon by such separate set of creditors apart from all other creditors. Such proposals may vary in character and amount. Where a composition or scheme is approved, the adjudication order shall be annulled only so far as it relates to the estate, the creditors of which have confirmed the composition or scheme.

43. Disposal of assets of separate firm formed by some members of partnership.-- If any two or more of the members of a partnership constitute a separate and independent firm, the creditors of such last mentioned firm shall be deemed to be a separate set of creditors, and to be on the same footing as the separate creditors of any individual member of the firm. And when any surplus shall arise upon the administration of the assets of such separate or independent firm, the same shall be carried over to the separate estates of the partners in such separate and independent firm according to their respective rights therein.

SUMMARY ADMINISTRATIONS

44. Special procedure in case of summary administration.-- When an estate is ordered to be administered in a summary manner under section 74 of the Act the provisions of the Act and Rules shall, subject to any special direction of the Court, be modified as follows, namely -

(i) there shall be no advertisement of any proceedings in the local official gazette or any newspaper;

(ii) the petition and all subsequent proceedings shall be endorsed "Summary Case".

(iii) the notice of the hearing of the petition to the creditors shall be in Form No.14;

(iv) the Court shall examine the debtor as to his affairs, but shall not be bound to call a meeting of creditors, but the creditors shall be entitled to be heard and to cross-examine the debtor;

(v) the appointment of a Receiver will often not be necessary, and the Court may act under section 58 of the Act in order to reduce the cost of the proceedings. The administration charges, however, shall be levied at the same rates as in ordinary cases. These charges should be credited into the treasury under Head *[1230000-Law & Order Receipts; 1231000-Justice; 1231003-Justice, General Fees Fines & Forfeitures (74)]; except those representing the cost of audit, which should be credited under the Head [1200000-Receipts from Civil Administration and other functions; 1210000- General Administration Receipts; 1212100- Fiscal Administration Audit; 1212180- Fiscal Administration Audit- others (58)];

(vi) the ordinary Nazarat staff should be employed for conducting sales;

(vii) the only registers which need be kept are the Cash Book, the Dividend Register, the Register of Property and such other

Registers as may be required to give a correct view of the administration of the estate.

PROSECUTIONS

45. Notice shall be given to debtor before lodging a complaint.-- Before passing an order for making a complaint of any offence referred to in section 69, the Court shall issue a notice to the debtor calling upon him to show cause why such an order should not be passed against him.

DISCHARGE

46. Application to be heard only after submission of creditors' schedule and receiver's report.-- An application for discharge shall not ordinarily be heard until after the schedule of creditors has been framed and the Receiver has submitted his report (vide Rule 30). The Receiver, if he is in a position to make it and has not already done so, shall file his report in Court not less than fourteen days before the date fixed for the hearing of the application.

47. Proved creditors only may oppose discharge.-- Every creditor who has proved shall be entitled in person or by pleader to appear at the hearing and oppose the discharge.

48. In the matter of discharge court shall examine the debtor and may hear the receiver, the debtor and creditors.-- At the hearing of the application the Court may hear any evidence which may be tendered by a creditor and also any evidence which may be tendered on behalf of the debtor and shall examine the debtor, if necessary, for the purpose of explaining any evidence tendered and may hear the Receiver, the debtor, in person or by pleader, and any creditor in person or by pleader.

49. Procedure where debtor fails to apply for discharge within the fixed period or where no period has been fixed.-- Any case in which the debtor fails to apply for his discharge within the period allowed by the Court under section 27 shall be brought up for orders under section 43. If the Court has omitted to specify a period under section 27(1), and the debtor has not already applied for discharge, the Court upon receipt of the Receiver's report shall fix a period within which the debtor shall apply for an order of discharge.

Notice of such period shall be given to the Receiver and the debtor, and if on its expiry the debtor has not applied accordingly, the case shall be brought up for orders under section 43.

SALE OF IMMOVABLE PROPERTY

50. Sale by Court and preparation of sale deed where no receiver appointed.-- If no receiver is appointed and the court, in exercise of its powers under section 58 of the Act, sells any immovable property of the insolvent, the deed of sale of the said property shall be prepared by the purchaser at its own cost and shall be signed by the Presiding Officer of the Court. The cost of registration (if any) will also be borne by the purchaser.

51. Sale shall ordinarily be by public auction.-- As a rule property should be sold by public auction at the spot. Full particulars of the property and encumbrances, if any, should be made known by customary methods, such as proclamation, beat of drum, hand bills, etc. Sales in any other manner and at any other place should only be made with the sanction of the Court.

COSTS

52. Costs upto order of adjudication shall be borne by petitioner but subsequent costs shall be met out of the estate.-- All proceedings under the Act, up to and including the making of an order of adjudication, shall be at the cost of the party prosecuting the same, but when an order of adjudication has been made on the petition of a creditor the cost of the petitioning creditor including the costs of the publication of all notices required by the Act or Rules shall be taxed and be payable out of the Estate.

Note:- All expenses including the expenses of any travelling done by an *Interim* Receiver with the permission of the Court granted after hearing the applicant have to be met by the party prosecuting the application according to this rule, and if these expenses are not furnished the application for insolvency should be filed.

***[53. Initial deposits by debtor to cover costs. This deposit shall cover postal charges but no process fees.--** A person applying to be adjudicated an insolvent shall deposit a fee of at least Rs. 200/- or such further sums, if any, as the Court may, from time to time, direct to cover the cost of the issue of the prescribed notices, of their publication in the Official Gazette

and of all other proceedings under the Act, up to and including the making of an order of adjudication with the Nazir. Each such deposit shall be treated as Revenue Deposit and entered in the Register of Receipts.

Note 1:- *Process fee shall be paid in Court fee stamps.*-- This deposit does not cover process-fees, which shall be realized as usual, in Court fee stamps according to the rules.

Note 2:- *Initial deposit to cover all costs up to order of adjudication.*-- This deposit is meant not only for paying the expenses of publication of certain notices in Official Gazette, but also to cover the cost of issue of the prescribed notices and all other proceedings under the Act up to a certain stage. The postage for notices should not, therefore, be recovered from the parties concerned until the deposit made under this rule has been exhausted and there is an express order of the Court for the purpose.

Note 3:- *Disposal of balance of initial deposit.*-- The amount of undisbursed balances of these deposits should be transferred to the insolvent's assets after adjudication. All expenses incurred after the order of adjudication can be met out of these assets.]

54. Cost of a debtor about composition or scheme when to be allowed out of estate.-- No cost incurred by a debtor in connection with an application to approve a composition or scheme shall be allowed out of the estate if the Court refuses to approve the composition or scheme.

55. Cases when creditors shall supply funds for administration of the estate-- repayment of small funds.-- If the assets available are not sufficient in any case for taking proceedings necessary for the administration of the estate, the Receiver or *Interim* Receiver or Official Receiver, as the case may be, may call upon the creditors or any of them to advance the necessary funds or to indemnify him against the cost of such proceedings. Any assets realized by such proceedings shall be applied, in the first place, towards the repayment of such advances with interest thereon at 6 per cent per annum.

APPOINTMENT AND PROCEDURE OF THE COMMITTEES OF INSPECTION UNDER SECTION 67-A OF THE PROVINCIAL INSOLVENCY ACT

56. Appointment and procedure of committees of inspection.-- The following rules have been framed with respect to the appointment and procedure of Committees of Inspection:-

(1) *Fixing date of meeting for selection of members.*-- In any case in which the Court authorises the creditors to appoint a Committee of Inspection pursuant to the provisions of section 67-A of the Act, the Court shall, by the order of adjudication, fix a date for the holding of a meeting of the persons qualified to vote for the purpose of selecting the members of the Committee.

A notice mentioning the date fixed shall be put up on the Notice Boards of the court and the Official Receiver.

(2) *Number of members.*-- A Committee of Inspection shall consist of not more than five, nor less than three, persons.

(3) *Committee when to meet.*-- A Committee of Inspection shall meet at such time as they shall, from time to time, appoint, and failing such appointment, at least once a month, and the Official Receiver or any two members of the Committee may call a meeting as and when necessary.

(4) *Committee shall act only by majority.*-- A committee of Inspection may act by a majority of members present at a meeting, but shall not act unless a majority of the Committee is present at the meeting.

(5) *Mode of resignation by a member.*-- Any member of the Committee may resign his office by notice in writing signed by him and delivered to the Official Receiver.

(6) *When a member vacates his office.*-- If a member of a Committee becomes insolvent or is absent from five consecutive meetings of the Committee, his office shall thereupon become vacant.

(7) *Removal of a member.*-- Any member of a Committee may be removed by a resolution at any meeting of the creditors of which seven days' notice has been given stating the object of the meeting.

(8) *Filling up a vacancy.*-- On a vacancy occurring in the office of a member of a Committee, the Official Receiver shall forthwith summon a meeting of the creditors for the purpose of filling the

vacancy , and the meeting may, by resolution, appoint another creditor or other person eligible as above to fill the vacancy.

(9) *Committee may act notwithstanding vacancy.*-- The continuing members of the Committee of Inspection, provided there be not less than two such continuing members, may act notwithstanding any vacancy in their body and when the number of members of a Committee is for the time being less than five, the creditors may increase their number so that it does not exceed five.

(10) *Receiver to obtain orders of Court when he does not agree with the suggestions of the Committee.*-- When a Committee has been appointed, the Official Receiver shall, in the administration of the property of the insolvent and in the distribution thereof amongst his creditors, have regard to any suggestions that the Committee may give by resolution. If the Official Receiver thinks that any suggestion of the Committee is not in the interests of the general body of creditors, he may report the matter to the Court , which will give such instructions as it may consider just and necessary.

(11) *The committee shall be heard before court passes order in the above case.*-- The Court shall afford an opportunity to the Committee of Inspection for being heard before orders are passed on any such report submitted by the Official Receiver.

(12) *Court may call a meeting of the general body of creditors.*-- The Court may, in order to decide the matter in dispute, call a meeting of the general body of creditors and consider their views before arriving at a conclusion.

(13) *Official Receiver shall be Secretary of the Committee.*-- The Official Receiver shall ordinarily act as the Secretary of the Committee and maintain a record of its proceedings in a bound register.

(14) *Action of a member not to be vitiated by defect in his appointment.*—No defect or irregularity in the appointment or

selection of a member of the Committee of Inspection shall vitiate any act done by him in good faith.

(15) *Receiver shall allow inspection of records to members and give other information and assistance.--* The Official Receiver shall afford all the members of the Committee both individually and collectively, reasonable facilities to examine at his office any of his records and registers during the working hours of the Court. The Official Receiver shall also give the Committee and its members any information which they require and give them every assistance and facility in the discharge of their functions.

Forms in Insolvency Proceedings

FORM NO. 1

GENERAL TITLE

IN THE COURT OF-----

Insolvency Petition No.-----of 19-----.

In the matter of-----

Ex parte (here insert 'the Debtor' or 'A.B. or creditor' or 'the Official Receiver' or 'the Receiver').

FORM NO. 2

DEBTOR'S PETITION

(Section 13)

IN THE COURT OF-----

Insolvency Petition No.-----of 19-----.

(^a).....ordinarily residing at (or "carrying on business at" or 'personally working for gain at' or "in custody at.....") in consequence of the order of

(^b).....being unable to pay my debts, hereby petition that I may be adjudged an insolvent. The total amount of all pecuniary claims against me is Rs.....

(^c).....as set out in detail in Schedule A annexed hereunto which contains the names and residences of all my creditors so far as

they are known to, or can be ascertained by me. The amount and particulars of all my property are set out in Schedule B annexed hereunto together with a specification of all my property not consisting of money and the place or places at which such property is to be found and I hereby declare that I am willing to place all such property at the disposal of the Court save in so far as it includes such particulars (not being my books of account) as are exempted by law from attachment and sale in execution of a decree.

I have not on any previous occasion filed a petition to be adjudged an insolvent or, I set out in Schedule C particulars relating to my

petition

previous -----to be adjudged an insolvent.

petitions

Signature.

Verification clause as in plaints.

SCHEDULE A. -- (Debts.)

Name of creditor	Residence of creditor	Amount of debt.	Nature of debt.	SECURITY		Remarks
				Nature	Amount	
		Rs. P.			Rs. P.	

Column 4. -- In this column enter whether the debt is a judgment-debt, amount due on promissory note, mortgage debt, verbal loan, balance for goods, security for another, etc. In the case of judgment-debt, state the name of the Court and the number of the case.

Column 5. -- In this column state the nature of property whether land, house, gold etc., and the nature of the security, whether deposit, pledge without possession, pledge with possession, mortgage deposit of title deeds, etc.

SCHEDULE B. -- (Assets.)

(1) -- Movable and immovable property

Description of property	Place where situated	In whose possession	Name of owner and holding No.	Area	Value of property	Name and residence of mortgagee	Amount of mortgage	Remarks
1	2	3	4	5	6	7	8	9
					Rs. P.	Rs. P.		

Column No. 9. -- In the remarks column, state if petitioner is only part owner of the property; and, if so, who the other owners are, and what his share in the property is.

(2) -- Debts owing to petitioner.

Name of Debtor	Residence of debtor	Nature of debt	Amount of debt	When contracted	SECURITY		Amount	Remarks
					Good, bad or doubtful	Name		
1	2	3	4	5	6	7	8	9
			Rs. P.			Rs. P.		

Column 3.-- In this column, enter particulars as in column 4 of Schedule A.

SCHEDULE C

Former petitions for insolvency by the petitioner

Serial No.	Date of petition.	Date of adjudication, if any.	Date and description of final order on the former petition	*Remarks

* If the petition was dismissed, state the reasons for dismissal. If the debtor has previously been adjudged an insolvent, give concise particulars of his insolvency, including a statement, whether any previous adjudication has been annulled, and, if so, the grounds therefor.

FORM NO. 3
NOTICE TO CREDITORS OF THE DATE OF HEARING
OF AN INSOLVENCY PETITION

(Section 19)

IN THE COURT OF-----

Insolvency Petition No.-----of 19-----.

Whereas A.B.-----has applied to this Court by a petition, dated of-----19-----
---to be declared an insolvent under the Provincial Insolvency Act, 1920, and your
name appears in the list of creditors filed by the aforesaid debtor, this is to give you
notice that the Court has fixed the -----day of----- 19----
--, for the hearing of the aforesaid petition and the examination of the debtor. If you
desire to be represented in the matter, you should attend in person or by duly
instructed pleader. The particulars of the debt alleged in the petition to be due to you
are as follows:-

Judge.

FORM NO. 4
ORDER OF ADJUDICATION
(SECTION 27)

IN THE COURT OF-----

Insolvency Petition No.-----of 19-----.

Pursuant to a petition, dated----- against (here insert name, description, and
address of debtor) and on the application of (here insert "the Official Receiver" or "the
debtor himself" or "A.B. of-----a creditor") and on reading-----and hearing-
-----it is ordered that the debtor be and the said debtor is hereby adjudged
insolvent.

within

It is further ordered that the debtor do apply for his discharge -----(*).

on or before

Dated this-----day of-----19-----.

Judge.

(*) Here state the period or the date on or before which the insolvent must apply for
discharge.

FORM NO. 5

ORDER APPOINTING RECEIVER.

(SECTION 56)

IN THE COURT OF-----

Insolvency Petition No.-----of 19-----.

WHEREAS A.B.-----was adjudicated an insolvent by order of this Court, dated---
-----and it appears to the Court that the appointment of a Receiver for the
property of the insolvent is necessary.

It is ordered that a receiving order be made against the insolvent and a receiving
order is hereby made against the insolvent and A.B.-----of (or the
Official Receiver) is hereby constituted Receiver of the property of the said insolvent.
And it is further ordered that the said Receiver (not being the Official Receiver) do
give security to the extent of-----and that his remuneration be fixed at-----

Dated

Judge.

FORM NO. 6
PROOF OF DEBTS
General Form (Section 49)
(Title)

In the matter of-----No. * ----- of 19-----.

I, ----- of ** -----

----- make
oath and say (or solemnly and sincerely affirm and declare).

was

1. That the said----- at the date of the petition

were

is

viz., the day of 19----- and still ----- justly and truly indebted to

are

me in the sum of Rs.----- for *** ----- as shown
by the account endorsed hereon (or the following account), viz., for which sum or any
part thereof, I say that I have not, nor hath----- or any person by-----
----- order to my knowledge or belief for----- use had or
received any manner of satisfaction of security whatsoever save and except the -----
-----following **** -----

Admitted to vote for Rs.

{Swornat-----
{this-----
{day-----
{before me-----

Judge or Official Receiver

Deponent's signature.

Commissioner.

FORM NO. 7

PROOF OF DEBT OF WORKMEN

(Title)

I (a) of (b) make oath and say (or solemnly and sincerely affirm and declare):-

was

That (d)-----at the date of the adjudication, viz., the day of-----

were

is

19-----, and still-----justly and truly indebted to the several persons whose

are

names, addresses and descriptions appear in the schedule endorsed hereon in sums severally set against their names in the sixth column of such schedule for wages due to them respectively as workmen or others in (d) in respect of services rendered by them respectively to (e) during such periods before the date of the receiving order as are set out against their respective names in the fifth column of such schedule for which said sums or any part thereof, I say that they have not, nor hath any of them, had or received any manner of satisfaction or security whatsoever.

Admitted to vote for Rs.

{Sworn at this day before me

*Judge or Official Receiver**Deponent's signature.**Commissioner.*

a. Fill in full name, address and occupation of deponent.

b. The above-named debtor or the foreman of the above-named debtor or on behalf of the workmen and others employed by the above-named debtor.

c. "I" or "the said".

d. "My employ" or "the employ of the above-named debtor."

e. "Me" or "the above-named debtor".

Required value	Rs.
----------------	-----

FORM NO. 10.

FORM OF NOTICE UNDER SECTION 64.

Notice to persons claiming to be creditors of intention to declare final dividend.

(Title).

Take notice that a final dividend is intended to be declared in the above matter, and that if you do not establish your claim to the satisfaction of the Court on or before the-----day of-----19-----or such later day as the Court may fix, your claim will be expunged, and I shall proceed to make final dividend without regard to such claim.

Dated this-----day of-----19-----.

*G.H.
Receiver.
(Address).*

FORM NO. 11

ORDER ANNULING ADJUDICATION UNDER SECTION 35.

(Title).

On the application of R.S. of-----and on reading-----and hearing -----it is ordered that the order of adjudication, dated-----against A.B. of-----be and the same is hereby annulled.

Dated this-----day of-----19-----.

Judge.

FORM NO. 12

NOTICE TO CREDITORS OF APPLICATION FOR DISCHARGE.

(Section 41)

(Title)

Take notice that the above-named insolvent has applied to the Court for his discharge, and that the Court has fixed the-----day of-----19----at-----o'clock for hearing the application.

Dated this-----day of-----19----.

Judge

Note:- On the back of this notice the provisions of section 42(1) of the Insolvency Act V of 1920 should be printed.

FORM NO. 13.

ORDER OF DISCHARGE SUBJECT TO CONDITIONS AS TO EARNINGS, AFTER-ACQUIRED PROPERTY AND INCOME.

(Section 41 (c))

(Title)

On the application of-----, adjudged insolvent on the-----day of-----19----, and upon taking into consideration the report of the Official Receiver (*or Receiver*) as to the insolvent's conduct and affairs and hearing A.B. and C.D., creditors:

It is ordered that the insolvent

(a) be discharged forthwith, or

(b) be discharged on the , or

(c) be discharged subject to the following conditions as to his future earnings, after-acquired property and income.

After setting aside out of the insolvent's earnings, after-acquired property and income, the yearly sum of Rs._____ for the support of himself and his family the insolvent shall pay the surplus, if any (or such

portion of such surplus as the Court may determine), of such earnings, after-acquired property and income to the Court or Official Receiver (or Receiver) for distribution among the creditors in the insolvency. An account shall on the first day of January in every year or within fourteen days thereafter, be filed in these proceedings by the insolvent setting forth a statement of his receipts from earnings, after-acquired property and income during the year immediately preceding the said date, and the surplus payable under this order shall be paid by the insolvent into Court or to the Official Receiver (or Receiver) within fourteen days of the filing of the said account.

Dated this-----day of-----19-----.

Judge.

FORM NO.14.
SUMMARY ADMINISTRATION.
Section 74
(Title)
Notice to Creditors.

Take notice that on the-----day of-----19-----, the above-named debtor presented a petition to this Court praying to be adjudicated an insolvent and that on the-----day of-----19-----, the Court being satisfied that the property of the debtor is not likely to exceed Rs.500 in value directed that the debtor's estate be administered in a summary manner and appointed the-----day of-----19---, for the further hearing of the said petition and the examination of the said debtor.

Also take notice that the Court may on the aforesaid date then and there proceed to adjudication and distribution of the assets of the aforesaid debtor. It will be open to you to appear and give evidence on that date. Proof of any claim you desire to make must be lodged in the Court on or before that date.

Given under my hand and the seal of this Court, the-----day of-----19--.

Judge.

FORM NO. 15
REGISTER OF PERSONS ADJUDICATED INSOLVENTS.

Serial No.	Name of insolvent	Date of adjudication	Date or period fixed for application for discharge	Name of Receiver	Security taken from the Receiver (if any)	Assets with estimated value	Liabilities with estimated value (secured or unsecured debts to be shown separately)	Remarks
1	2	3	4	5	6	7	8	9

FORM NO. 15 -- (CONCLUDED)

ABSTRACT OF RECEIVER'S REPORTS SHOWING PROGRESS OF REALIZATIONS OF ASSETS AND DISTRIBUTION OF DIVIDENDS AND ABSTRACT OF ALL IMPORTANT ORDERS OF THE COURT AFTER ADJUDICATION

Date	Receiver's Report (give brief purport)	Orders of the Court on the Receiver's report	Other important orders passed by the Court after adjudication, with dates thereof

Date of interim appointment

Date of adjudication
(if any)[illegible]

1. One or more pages should be devoted to each estate according to the requirements of the case.
2. Entries to be made in the register in chronological order but an alphabetical index should be maintained in the beginning for facility of reference.

CHAPTER 5 OFFICIAL RECEIVER

PART A -- APPOINTMENT AND TERMS OF SERVICE

1. Power of Provincial Government to appoint Official Receivers.-- The Provincial Government is empowered under section 57 of the Provincial Insolvency Act, 1920 (V of 1920), to appoint Official Receivers for such local limits as it may prescribe. (For general rules as regards the appointment, remuneration, etc., of Receivers other than Official Receivers appointed under the Provincial Insolvency Act, 1920, see 'The Punjab Insolvency Rules' published in Chapter 4 on 'Insolvency Proceedings'.)

2. Distinction between an Official Receiver and an ordinary Receiver. Official Receiver may be invested with quasi-judicial powers but not a Court.-- The distinction between an Official Receiver and an Ordinary Receiver should be noted. An Ordinary Receiver is appointed by the Court (in each case separately) under section 56 of the Act while an Official Receiver is appointed by the Provincial Government under section 57. It is provided under section 57 (2) that where an Official Receiver has been appointed he shall be the Receiver for the purpose of every order appointing a Receiver or an Interim Receiver' unless the Court for special reasons otherwise directs.' The Official Receiver has the same powers as an Ordinary Receiver but is a Public Official and may in addition be invested with certain quasi-Judicial Powers under Section 80 of the Act. It is important to add, however, that an Official Receiver, even when invested with powers under section 80 of the Act, is not a Court.

3. Official Receiver not to be appointed permanently.-- All first appointments of Official Receivers shall be made on probation for one year and will be followed by appointment for five years. No Official Receiver shall be appointed permanently but shall always remain liable to be removed at the end of each period of five years.

4. Appointment subject to good conduct and efficiency.-- All appointments shall be subject to good behaviour and continued efficiency.

5. Official Receiver to retire at the age of sixty.-- The appointment of an Official Receiver shall terminate automatically on his attaining the age of sixty years.

6. No first appointment above the age of 55.-- No first appointment of a person over the age of fifty-five shall be made.

7. Appointment to be subject to existing and future rules.-- All appointments of Official Receivers shall be subject to the existing rules regarding remuneration, tenure, etc., made by Government or by the High Court, and to such rules as may hereafter be framed.

8. Vacation allowed.-- An Official Receiver will be entitled to remain on leave during the period when the Insolvency Court is closed for the summer vacation unless, for reasons to be recorded, the Judge of the Court otherwise directs.

I - LEAVE OF ABSENCE

9. Grant of casual leave.-- (i) It has been decided by the Provincial Government in consultation with the Hon'ble Judges that District Judges should be allowed, subject to a report to the High Court, to grant leave of absence to the Official Receivers in their districts up to one month in a year. In the case of leave for longer periods, up to three months at any one time, the sanctioning authority will be the High Court. It is not contemplated that any Official Receiver should be given leave in excess of three months, except in altogether unusual circumstances; but if a case of this kind does arise, it will be reported to Government.

(ii) In the case of short term vacancies, it will nearly always be possible for local arrangements to be made (under the orders of the Hon'ble Judges) to carry on the work, and it will not be necessary for a substitute Official Receiver to be appointed. In the case of long vacancies (that is vacancies exceeding three months) it has been decided that when the Hon'ble Judges report the case to Government they will add their views whether the appointment of a substitute Official Receiver under section 57 of the Act is necessary. If so, proceedings to make an appointment will be taken in accordance with the procedure laid in Punjab Government letter No. 802-J-

36/18370, dated the 4th June, 1936. Otherwise, if the Hon'ble Judges think that satisfactory arrangements can be made without a fresh appointment under section 57, they will issue the appropriate instructions.

II - CASUAL LEAVE

(i) A maximum of two periods of casual leave each exceeding four days but not exceeding 10 days, are admissible to an Official Receiver in a period of 12 months commencing with the 15th April in any year with the sanction of the District Judge, provided that no extra expense is thereby imposed on the Insolvents' Estates Fund. Ordinarily one period of ten day will be allowed in the summer and one period of ten days in the winter.

(ii) In addition, two periods of casual leave not exceeding four days at a time, one in the summer and one in the winter, may be sanctioned by the Insolvency Judge.

(iii) If casual leave is not taken during any period of twelve months commencing from the 15th April, it cannot be accumulated and taken during a subsequent 'casual leave' year.

(iv) The privilege of casual leave must not be abused and leave must be granted when the District Judge considers that too much latitude in the grant of leave to an Official Receiver disturbs the arrangements of his work as Official Receiver and Court Auctioneer, nor must the total number of days granted in the year be in excess of thirty days.

(v) Holidays may not be prefixed or affixed to casual leave but one Friday, either at the beginning or end of the leave, may be combined with it. All other holidays shall be included in the period of leave taken, but such holidays will not be counted as casual leave enjoyed. The last Thursday of each month will never be regarded as a holiday save in May, June, July August and September, when the District and Sessions Judge may permit it to be so observed if the state of work permits.

Casual leave may not be combined with the annual vacation of Subordinate Courts and ordinarily casual leave will not be granted so as to end or begin less than one week before or after the vacation.

10. Security Form, amount and reduction and verification and exemption from stamp duty.-- Every Official Receiver in Punjab is required to give security of *[Rs. 30,000.00] or in the sum fixed by the High Court in the case of a specific District for Rs. 10,000/- in cash, Government Promissory Notes, or Stock Notes of Government of Pakistan or @Fidelity Bonds of such Insurance Companies as are approved by the High Court. The mortgage of immovable property to Government will also be allowed.

Whenever an Official Receiver is in charge of more than one revenue district, he shall furnish security to the above extent in each district separately.

The High Court may sanction reduction of the security demanded from an Official Receiver, if it is found that the average amount realised in his district over a period of 5 years is less than Rs. *[30,000.00] per annum. The reduced security shall be not less than such average amount realised annually.

The forms, in which different kinds of security-bonds should be executed by the Official Receivers, are printed in Part B of this Chapter.

Where securities, other than Government Promissory or stock Notes, have been or may be accepted, the following rules should be observed for the verification of such securities:-

- (i) They should be verified through the Tehsildar.
- (ii) In addition to ascertaining that the property really exists and that it is of the assorted value, enquiries should be made as to whether there are any prior liens on the property, and a proclamation should be issued in every case inviting claimants to appear within one month.
- (iii) Should no claimant appear within the period the fact should be noted at the foot of the bond.

Note:- Security bonds and mortgage deeds executed by the Official Receivers under these rules are exempt from stamp duty under exemption (e) of Article 57, Schedule I of Stamp Act, 1889 (II of 1899).

REMUNERATION

11. Remuneration to be paid in the shape of commission--rate of commission.--

The Official Receiver shall be entitled to charge as remuneration

for the duties to be performed by him a commission of 5 per cent (3 per cent to be paid on realization and 2 per cent on distribution of assets) in respect of secured as well as unsecured debts as follows:-

- (a) On amounts realised from insolvent's estates.
- (b) When on application in writing to the Insolvency Judge by a creditor, who holds as security any part of the insolvent's property the official receiver has sold the property and realized security under a written order of the Court, on the proceeds of sale.
- (c) When the insolvent has compromised or settled with his creditors, on the total sum agreed to be paid to them.

Provided that in the case of sales and compromises relating to secured property * [or in the case where the amount realized exceeds Rs.3,00,000/-] the Official Receiver shall be entitled only to such commission not exceeding 5 per cent as the District Judge may think fit to allow according to service.'

12. Commission on sale of property subject to mortgage.-- In the case of property mortgaged to a creditor, commission should be charged on the entire sale-proceeds only if the creditor makes a written application for the realization of the security through the Court irrespective of the fact whether the purchase money exceeds the mortgage money or not. In cases in which such property is sold without an application by the secured creditor, the commission should be charged on the sale-proceeds less the amount involved by the encumbrance.

Note:- The official Receivers must not delay the disposal of property till such time as they can induce the secured creditors to give their consent to the sale of their interest also in the property. It may be useful, of course, to obtain this consent and so to sell the property free of all encumbrances but the matter must not be delayed too long. The Official Receiver is competent at all times to dispose of the equity of redemption which in fact is all that does vest in him.

***[13. Commission on sales of agricultural land by Collectors.--** On sales of agricultural land by Collectors in Insolvency proceedings, Official Receivers may deduct the following amounts from the sale-proceeds received for distribution:-

- (i) The amount of remuneration to be fixed by the Insolvency Judge keeping in view the provisions of Rule 12 and the services rendered but the amount in no case shall exceed 2 per cent of the sale-proceeds received.

(ii) The amount incurred to meet the clerical and periodical audit-charges and contingent-expenses as certified by the Insolvency Judge.]

14. Commission on sales of land in another district.-- (i) When the property of an insolvent is situated in a district other than that in which the adjudication took place, the Insolvency Judge has the discretion to decide whether the Official Receiver should sell the property himself or ask the Insolvency Judge or the Official Receiver of the other district in which the property is situated to do so.

(ii) When the property of an insolvent is sold through the Insolvency Judge or the Official Receiver of another district, the Official Receiver may deduct the following from the sale-proceeds received for distribution:-

(a) A commission of 2 per cent as remuneration of the duties performed by him.

(b) A further sum not exceeding 2-1/2 per cent to meet clerical and contingent expenses and periodical audit.

(iii) The remaining 3 percent will be credited to Government if the property is sold through Nizarat and paid to the Official Receiver of the other district, if it is sold by him. The credit to Government will be made under the head *[1230000--Law & Order Receipts; 1231000-Justice; 1231800-Others (75)].

***[15. Commission on money realized by a joint receiver or Advisory Committee.--** (i) The amount of remuneration shall be fixed by the Insolvency Judge keeping in view the provisions of Rule 12 and the services rendered but the amount in no case shall exceed 2 per cent of the sale-proceeds received.

(ii) The amount incurred to meet the clerical and periodical audit-charges and contingent-expenses as certified by the Insolvency Judge.

(iii) The remaining 3 per cent or after deducting the amount of remuneration ordered to be paid to the Official Receiver the remaining amount to the extent of five per cent of the sale proceeds will be credited to the

Government if the property is sold through Nizarat and the amount of remuneration to be fixed by the Insolvency Judge shall be paid to the Official Receiver of the other district, if it is sold by him. The credit to Government will be made under the head 1230000 Law & Orders Receipts; 12310000-Justice; 1231800-Others (75)].

16. Commission on infructuous sales.-- Full administration charges *[actually incurred and as certified by the Insolvency Judge to the extent] will be allowed to the Official Receiver in sales which are set aside, the commission being paid by the person at whose instance and for whose benefit the sale is set aside.

Administration charges will, however, not be allowed if a sale is set aside on account of any illegality or material irregularity committed by the Official Receiver or his staff in proclaiming or conducting the sale.

17. Commission on money realised through Nazir.-- The Official Receiver is entitled to one-half of the usual commission on moneys received by him from the Nazir on account of execution of sales held through a Court before the order of adjudication was passed. The audit fee and office charges shall, however, be levied at full rates.

18. Office establishment charges.-- The Official Receiver shall also be entitled to deduct from realisations, subject to the conditions laid down in rule 12 above, a further sum not exceeding 1-1/4 per cent as the District or the Insolvency Judge may direct by order in writing in order to meet the following charges:-

- (a) The salaries of such office establishment as the High Court may sanction.
- (b) The rent of such buildings as the High Court may permit to be hired for office or ware-housing purposes.
- (c) Stationery, postage and other office contingent charges within such limits as the Court may allow.

ESTABLISHMENT

19. Establishment scale of salaries to be fixed by High Court.-- The establishment of Official Receivers shall be appointed by them on their own

responsibility but the scale of salaries to be paid to such establishment must be sanctioned by the High Court.

20. Power of High Court to demand removal of any member of the establishment.-- The Insolvency Judge shall have the power to order the removal of any particular person employed by an Official Receiver on his establishment and to direct the Official Receiver to appoint another suitable person in his place. On the application of the Official Receiver the District Judge may set aside or modify any such order.

21. Accommodation in Court building to be provided on rent.-- Where accommodation is available, a room should be provided for the Official Receiver in the Kachery building, rent as assessed by the Public Works Department, being recovered from him out of his Establishment Fund, and credited to Government under the head *[1240000-Community Services Receipts; 1241000-Works; 1241100-Buildings; 1241110-Building; rent (82)].

TRAVELLING ALLOWANCE

22. Grant of travelling allowance.-- Official Receiver may, on previous sanction in writing granted in each case by the Insolvency Judge, charge against 1-1/4 percent office charges fund actual travelling expenses incurred by them on journeys undertaken in the interests of insolvency work in general. When the travelling is done in the interests of any particular estate or estates the actual travelling expenses should be debited to the particular estate concerned instead of to the Office or Establishment Fund.

***[23. Definition of "actual travelling allowance". Daily allowance not permissible.--** The term "actual travelling expenses" should be interpreted as defined in rule 2.4 of the Civil Services Rules (Punjab), Volume I Part I read with Travelling Allowance Rules notified vide notification No. FD/Accounts/OSD/498 dated 10.2.1976. No daily allowance will be admissible to the Official Receiver.]

24. Journeys to be performed by cheapest route.-- The journeys must be performed by the cheapest route.

25. Grant of travelling allowance to clerks.-- Clerks and peons to Official Receivers with the sanction of High Court, may be paid the actual

travelling expenses which must not exceed those admissible to Government servants of similar status, incurred by them for journeys performed with the previous sanction of the Insolvency Judge, in the discharge of their duties.

POSTAGE AND STATIONERY

26. Postage and stationery to be met out of office fund.-- It should be noted that all expenditure relating to Insolvent Estates on account of postage should be met out of the 1-1/4 percent Office Establishment Fund and not from the estates concerned. The cost of the stationery required for use in connection with the insolvents estates will be met from Office Charges Fund. An account of such stationery shall be maintained in **Form No.21**.

AUDIT

27. Cost of audit to be met out of estate.-- In order to meet the cost of audit of the Insolvents Estates by Government, the Insolvency Judge shall deduct from realisations by Official Receivers and shall credit to Government in the manner indicated in rule 7 of Part B of this Chapter a further sum which has been fixed provisionally as 1-1/4 per cent on realisations subject to the conditions laid down in rule 12.

PART B -- ACCOUNTS

The following rules have been made by the High Court with the previous sanction of Government under section 79 of the Provincial Insolvency Act, 1920, for the upkeep of the Official Receivers' Accounts in the Punjab:-

***[1. Sums realized shall be deposited in treasury in the name of the Insolvency Judge.--** All sums realized from the insolvent estates shall be credited in the State Bank of Pakistan or the National Bank of Pakistan under the head 1230000-Law and Order Receipts; 1231007-Justice Receipts of the Official Receiver; without delay in the name of the District Judge or the Insolvency Judge to be styled as "Insolvent Estates Fund" for recording the transactions of Insolvent Estates dealt with by the Official Receiver; they shall not be deposited in private banks.

Note:- The Accountant-General has ruled that there is no audit objection to the sub-treasuries being permitted to accept money presented for credit into a Personal Ledger Account of the Insolvent Estates Fund of any particular district. This enables the Official Receiver to deposit the sale-proceeds in the sub-treasury nearest to the place where an auction may have been held.

2. Sums above Rs. 5000 shall be deposited direct in the treasury by the persons concerned.-- All amounts above Rs.5000/- must be deposited directly by the concerned person direct in the State Bank of Pakistan or in the National Bank of Pakistan. The necessary challan shall be prepared in triplicate, on the prescribed form, by the Official Receiver. The treasury challan alongwith the money shall be presented by the depositor at the counter of the Bank, who after receipt of money shall return two copies of the treasury challan, duly signed and stamped as a token of receipt money to the depositor, retaining the 3rd copy with the bank for record. The depositor shall then be required to hand over one copy of the treasury challan to the Official Receiver for action and record:

Provided that the provisions of this rule shall not apply to the Official Receiver in the case of money paid at auctions by himself.

3. Amount realised to be deposited by the Official Receiver by the next morning. Receipt to be given to the depositor.--

The amount received each day by the Official Receiver shall be deposited in the State Bank of Pakistan or in the National Bank of Pakistan working as agent on behalf of State Bank of Pakistan on the same day of its receipt or at the most on the morning of next working day. All such remittances to the Bank should be accompanied by a treasury challan in the prescribed form in triplicate to be prepared by the Official Receiver. The Treasury challan alongwith the money shall be presented to the Bank either by the Official Receiver himself or his nominated representative from amongst his office establishment. On receipt of money with challan in triplicate the Bank will return two copies of the challan duly signed and stamped to the official representative, retaining the third one with it for record. One of the other two copies will be retained by the Official Receiver for filing in a Guard File while the second copy shall be transmitted to the District Accounts Officers/Treasury Officer as the case may be, for further action in his office. The pass Books will be supplied by the District Accounts Officer/Treasury Officer free of cost. The Official Receiver shall then prepare a receipt in foil and counter foil for the money received by him from each depositor, the foil being issued to the depositor as a receipt for the money deposited.]

4. Payment shall be by cheques.-- All payments from the Treasury shall be made by means of cheques signed by the District Judge or Insolvency Judge.

Note. ***[Omitted].

5. Remuneration of Receiver payable by cheque.-- At the close of each month the amount available for the remuneration of the Official Receiver shall be drawn from the Treasury by the means of a cheque on presentation of a regular bill by the Official Receiver through the District Judge or Insolvency Judge.

6. Office and other charges and payment to creditors payable by cheques.-- Office charges, amounts payable to creditors and miscellaneous charges shall similarly be drawn by cheques on presentation of regular bills by the Official Receiver through the District Judge or Insolvency Judge.

7. Audit expenses to be credited monthly in the treasury as a distinct item.-- At

the close of each month the amount at credit of the audit expenses account shall be drawn from the Treasury by the District Judge or Insolvency Judge and credited to Government by transfer as a distinct item in the cash account. The Treasury Officer will intimate the amount so drawn to the Official Receiver at the close of each month.

***[8. Disposal of money unclaimed by creditors.--** Money unclaimed by creditors should not be kept in deposit indefinitely but should be dealt with in accordance with the provisions of Article 127 of Account Code Volume II. Rule 12.7 of the Punjab Financial Rules deals with lapsed deposits, which is reproduced below:--

"12.7. Deposits not exceeding five rupees unclaimed for one whole account year, balances not exceeding five rupees of deposits partly repaid during the year then closing, and all balances, unclaimed for more than three complete account years will, at the close of June in each year, be credited to Government by means of transfer entries in the Accountant-General's office. See also Article 127 of Account Code, Volume II.

Exception_____All items on account of Sheriffs' Petty Accounts irrespective of their amounts will remain current for three complete account years and lapse to Government only on the expiry of that period. The Presiding Officers of the Court concerned will certify on the statements showing the amount which should lapse to Government on the expiry of three years, that all such amounts have been included in the statements.

Note 1. The total of the list referred to in Article 127 of Account Code, Volume II, should be deducted in the plus and minus memorandum from balance shown at credit of the particular class of deposits, the list itself, signed by the district officer, being forwarded to the Accountant-General. This duty may be delegated by the district officer, an officer of the district not being the Treasury Officer.

Note 2. The Treasury Officer should, in addition to the list required by Article 127 of Account Code, Volume II, prepare by the 31st December each year a list of deposits exceeding Rs.100 which have been in deposit for over a month, and should send to the Collector or other Government servant concerned a suitable extract from the list, so that it may be considered whether any notice in addition to the one referred to in the note below Rule 12.8 should issue to the payee."

Article 127 Account Code is reproduced below:

"127. Immediately after 30th June each year, a list of deposits or balances of that year which lapse under the rules of Government, should also be submitted to the Accountant General in Form T.A. 49. The list should be signed by the Judge.

For this purpose, the registers of deposits should be taken up early in June and an extract made on ruled paper of those of each class which will, in ordinary course, whether from age or pettiness, lapse at the end of the month. This list should then be reviewed by the Judge, and any item which in his opinion should not be so dealt with should be struck out and at the same time (if it be an item lapsing from age) entered on the first page of the Clearance Registers (vide Article 125) for that class, full detail of the reasons why it is not to lapse being given in a covering memorandum. Similarly, if any item is repaid in the course of the month, it should be struck out of this list at the same time as the payment is entered in registers of receipt and repayment. On 30th June, each of these lists should be checked again with the registers of receipts, in which the items pertaining to the list should be marked off as having lapsed and been credited to Government on 30th June.

Note: In preparing the lapsed statement the items should be entered in chronological order and separate totals should be given for deposits relating to different years."

Rule 4.130, 4.140 and 4.58 of the Subsidiary Treasury Rules deal with repayment of lapsed deposit which are reproduced below:---

"4.130. Deposits which have lapsed and so have been credited to Government cannot be repaid without the sanction of the Accountant-General;

The application for sanction will be made in Form STR 42. There must be separate application for deposits repayable to each person, and it will be used as the voucher on which the payment is to be made and submitted to the Accountant-General with the List of Payments in which it is charged.

4.140. For the repayment of deposits see rule 4.58 under the section "Refund of Revenue".

4.58. The following procedure should be observed in the payment of refund of revenue credited:---

(1) Amount of less than Re. 1 due for the refund, shall not be refunded except when such amount has to be refunded (under an order by a Court of Law). Where several amounts each less than Re. 1 are refundable to a person in a refund bill, the claim will be admitted if total of such amounts exceeds Re. 1 at a time.

(2) Amounts of Re. 1/- and over but not exceeding Rs.100 may be sent to the concerned payee by postal money order subject to following conditions:---

(i) Instructions to this effect have been given in the refund order by the competent sanctioning authority.

(ii) Clear and definite address of the payee has been given in the refund order for purpose of sending money order to him.

(iii) Money order fee shall be deducted from the amount of the refund bill.

(iv) Money order shall not be sent where more than one payees are involved.

(v) The Money order will be sent by the Treasury at risk and responsibility of the competent authority instructing for payment by money order. In case of non-delivery of money order on any ground the money order commission shall be debited by the Treasury Office to the Contingencies of such officer issuing refund order. The undelivered money order will be made voucher of adjustment of the charges involved. The refund order will be returned to the concerned authority with necessary note regarding non-delivery of money order and debit of charges to his office contingencies.

(vi) when a money order is issued, the purpose of remittance should be briefly stated on the acknowledgment portions of the money order form in continuation of printed entry over there viz. Received the sum specified above one.

(vii) The amount of money order should not be remitted in cash to the post office. The Treasury Officer will send a money order form duly filled in, together with a certificate that the amount involved and the money order fee thereon have been credited to the post office in the Treasury Accounts by contra transfer. The post office will accept the money orders on the authority of the Treasury Officer's certificate.

(viii) On receipt of the money order acknowledgment duly signed by the payee, it should be attached to the usual receipt in form S.T.R. 34 in which the full amount of the refund and deductions made therefrom on account of the money order fee should be clearly shown. The Accountant-General will accept such voucher with the money order acknowledgment as valid receipt for the full amount of the refund entered therein.

3. When the amount of refund involved exceeds Rs.100 the competent sanctioning authority shall issue to the payee a refund order and to the Treasury Officer directly an advice in respect of having issued such refund order to the payee specified in such advice. The payee will then appear in person at the Treasury and

produce the said refund order for receiving the payment. The Treasury Office after proper personal identification of the payee and having exercised checks prescribed in various rules, will pass the bill for payment at the Bank to the payee who may then receive the payment personally or his duly authorised agent or bankers.]

9. Index Register to be kept.-- An Index Register giving reference to pages of the several registers in which the transactions of insolvent estates are recorded from time to time should be kept in Form No. 1 in which the names of insolvents should be entered in chronological order. An alphabetical index giving reference to the pages of the register should be maintained in the beginning for facility of reference.

10. Assets and liabilities of the debtor to be entered in registers specified.-- When an order of adjudication is passed, the assets and liabilities of the insolvent, as shown in the petition or otherwise known, should be brought on to the registers noted below:-

- No. 2. -- Register of immovable property.
- No. 3. -- Register of movable property.
- No. 4. -- Register of debts due to insolvents.
- No. 5. -- Register of debts due from insolvents.

11. Insolvents Accounts books and other documents to be entered in a special register.-- Account books, title-deeds, etc., taken possession of by the Official Receiver should be entered in a register to be kept in Form 6.

12. Details of disposal of property to be entered in registers specified.-- When any property is disposed of by sale or in any other manner, the details of the disposal should be entered in the appropriate columns of the above registers.

13. Entry of proved debts in registers.-- Debts proved from time to time should be recorded in columns 6 to 10 of Register No. 5.

14. Demand and Collection register to watch recovery of rents and unrecovered balances.-- Rents and other income which may accrue from

any property as well as the unrecovered balance due, if any, on account of its sale-proceeds, when sold, should be watched by means of a Demand and Collection Register to be kept in form No.7, in columns 1 to 8 of which the demands should be posted as they occur. When a payment is received on account of any such demand the columns and the money should then be brought to account in the cash book in the usual way.

The Demand and Collection Register shall be balanced and closed at the end of each year and the outstanding balance struck, shown in column 13 and carried forward to the next year's register and a certificate to this effect furnished by the Official Receiver.

15. Bids of sale to be recorded in sale list (register).-- When a property is sold by public auction the bids should be recorded in a register or sale list to be kept in Form No. 8.

Note:- The intermediate bids for movable property other than livestock likely to fetch not more than Rs. *^[100] need not, however, be recorded in detail in this register.

16. Receiver to issue receipts for sums received.-- Any sum received by the Official Receiver should be acknowledged on a receipt in Form No. 9 (foil and counter foil), the foil of which should be handed over to the person paying the money and the counterfoil retained for audit purposes.

17. Receipt book, Number of forms, etc.-- The receipt books should have an equal number of forms and bear the printed book and serial numbers.-

Note 1. Receipt need not issue on sale of movable goods.-- No receipt need be issued ordinarily in cases of movable goods of insolvents sold by public auction unless one is especially desired by the purchaser. The sale list mentioned in Rule 15 above shall be considered as sufficient ordinarily for audit purposes, provided it is signed or thumb-impressed by each and every purchaser against the article or articles sold to him and attested by the Official Receiver and insolvents concerned.

Note 2. *Only printed prescribed receipt forms to be used.*-- All receipt must be issued invariably on the printed forms prescribed by these rules. The practice of issuing 'Kacha' or manuscript receipts on plain paper is dangerous and must never be resorted to.

Note 3. *One printed receipt to be prepared for all amounts received by money order during the day. Money order coupons to be retained for audit.*-- In order to avoid any risk of defalcation the Official Receiver must prepare a receipt in the prescribed form for all the amounts received by him by money order. There is, however, no need of sending the foils to the different payees as each of them gets the postal acknowledgment. The Official Receiver can prepare one consolidated receipt for all the amounts received by money order during the day and attach the foil of this receipt to the money order coupons to show that the money has been accounted for in the cash book and credited to the Insolvents Estates Fund. The money order coupons should be retained for audit purposes.

Note 4. *Printed receipts to be issued for sums received from Court.*-- Receipts must be issued for amounts received by the Official Receiver from the Insolvency Court itself, e.g., on account of unspent balance of the initial deposit received under Rule 53, Chapter 4-B., Rules and Orders, Volume II.

Note 5. *Number of forms of receipt books to be certified before use.*-- All receipt books should be counted and a certificate to the effect that the book contains so many pages recorded on the first page under the signatures of the Official Receiver before they are actually brought into use.

Note 6. *Date of receipt should be noted on money order coupons.*-- The dates of receipt of money should be endorsed by the Official Receiver on the money order coupons.

Note 7. *Receipts for sums in excess of Rs.20 to be stamped.*-- Receipts issued by Official Receivers for sums in excess of Rs. 20 shall be duly stamped.

18. Salaries of establishment, pay sheets and acquittance rolls.-- The salaries of such office establishment of the Official Receiver as may be sanctioned by the High Court, should be drawn on a pay sheet, Form No.10. The Official Receiver is personally responsible for every salary drawn on a bill signed by him until he has paid it to the person entitled to receive it, and has had the column of "acquittance of payee" signed and stamped, if necessary. If the payee does not present himself before the end of the month, the amount drawn for him should be refunded by short drawl in the next bill. His salary can be drawn anew, when he presents himself to receive it.

19. Contingent charges-how to be drawn.-- Contingent expenditure includes all charges other than those of establishment. All contingent charges should be drawn on a bill in Form No.11.

20. Permanent advance to receiver.-- The Official Receiver may be allowed a permanent advance of such sum as may be fixed by the Insolvency Court from time to time to meet expenses., for which, in the opinion of the Official Receiver, the money cannot conveniently be otherwise obtained.

21. Permanent advance not to be spent without sanction of the Court.-- The Official Receiver may incur such expenditure out of his permanent advance without obtaining the previous sanction of the Insolvency Court, provided that a limit of *[Rs. 100] in the case of each item of expenditure shall not be exceeded, except in the case of purchase of stationery, where such limit shall be *[Rs. 50]. When it is necessary to exceed such limits, the previous sanction of the Court shall be obtained.

22. Permanent advance account to be kept.-- The Official Receiver should keep a permanent advance account in Form No. 12 in columns 1 to 6 of which should be entered the items of expenditure as they occur.

23. Permanent advance -- how to be recouped.-- When the cash in hand is running low and in any case on the last working day of each month, the permanent advance should be recouped as follows:-

A line should be ruled across the page of the permanent advance account and the totals debitable to each estate or other head of account should be posted in a contingent bill in form No.11. The Bill supported by vouchers and signed by the Official Receiver should then be laid before the Court for payment.

24. Entry of receipt by cheque to be made in books.-- When a cheque for payment is received, the details should be entered in the cash book and the amount drawn classified in the various ledger accounts concerned.

25. Annual certificate of permanent advance.-- On the 1st ^{*}[July] of each year the Official Receiver should submit to the Insolvency Judge a certificate to the effect that the permanent advance is held by him, and that he is responsible for it. The Insolvency Judge will preserve these certificates in his office.

26. Stamps -- Account to be kept in a stamp register. Private stamps to be used-expenditure to be met out of permanent advance.-- Stamps and postage charges should ordinarily be met from the permanent advance but in order to enable a check to be kept upon the number of stamps expended and debited to the head "Office Charges" a stamp register should be maintained in Form No.13.

Note:- Private stamps should be used in correspondence in connection with insolvency accounts.

27. Administration charges to be recorded in a specified register and drawn on a contingent bill.-- Soon after the close of a month the administration charges to be drawn from the estates of insolvents should be calculated and recorded in a register to be kept in Form No.14.

The totals of columns 7, 8 and 9 should then be abstracted in a contingent bill and laid before the Court for order of payment which should be recorded in the following manner:-

1. Pay Rs.----- in cash (being the total of column 7) ;
2. Rs.-----by transfer credit to Government (being the amount of audit fees shown in column 8);

3. Rs.-----by transfer credit to head "Office Charges" (being the amount shown in column 9).

Note:- All bills presented by the Official Receiver for payment shall be checked by the Superintendent of Court or Reader to the District Judge or Reader to Insolvency Judge, and cheques prepared after payment order has been recorded on the bills.

28. Separate cheques to be drawn for receiver's commission and audit expenses.-- Separate cheques will then be drawn in favour of the Official Receiver and the Treasury Officer. The former will be on account of commission fee and the latter on account of the audit fee to be credited to Government. It should be made payable to "Government for credit as audit fee."

29. Mode of entry of the bill in cash book.-- The whole amount of the bill should then be shown on the expenditure side of the cash book and that representing "Office Charges" should be shown by a per contra entry on the receipt side.

30. Adjustment to be made where administration charges are levied on total sum agreed to be paid in cases of compromise or settlement.-- An Official Receiver is entitled to draw administration charges on the total sum agreed to be paid by an insolvent to his creditors by compromise or settlement. Any administration charges drawn in previous month on account of such estates should be adjusted against the sum finally to be drawn on this account. Any amount received in cash as administration charges in such cases, should first be accounted for in the cash book and then drawn in the usual way. In such cases the amount agreed on in the compromise should be shown in column No. 4 of register No. 14.

31. Entries in cash book to be made by receiver in his own hand.-- The cash book entries should ordinarily be made by the Official Receiver himself. But when the Official Receiver is away from the station or if it is not possible for him to write the cash book personally without detriment to his other duties the work of making the entries in the cash book may be entrusted, on the responsibility of the Official Receiver, to his clerk, provided the Official Receiver initials each entry in the cash book in token of having checked it.

32. Payment to secured creditors not to be held over till dividend is declared.

Entry of payment.-- Amounts payable to secured creditors should, after deducting the administration charges, be paid as soon as they are claimed. Such payments need not be held over till a dividend is declared. The number, date and amount of the cheques drawn for such payments should be noted in the remarks column or register No. 5 against the entry concerned.

Note:- *Crediting of administration charges on sales where secured creditor is himself purchaser.--* When the purchaser of any property held under security is the secured creditor himself he may retain the amount of his secured debt less administration charges and tender for credit only the amount of administration charges and the difference between the sale-proceeds and the secured debt. This difference should be accounted for in the ordinary way. The amount of administration charges on such secured debts should also be brought to account in the cash book and then drawn in the usual way. In such cases also columns 4 and 5 of Register No. 14 will remain blank while the amount of secured debt should be shown in column No. 6 of the register.

If the property held under security has been sold on a written application of the creditor, the administration charges shall be credited into the Treasury by the purchaser (if he is the secured creditor) irrespective of the fact that the sale price of the security is less than the debt, and an intimation sent to the Official Receiver that this has been done.

33. Annual certificate of amounts credited to Government for audit charges.--

The Official Receiver shall early in *[July] each year, forward to the *[The Director General Audit, Punjab], a statement certified by him showing all amounts credited to Government on account of audit charges in the preceding financial year.

34. Moneys pertaining to Insolvent Estates Fund should not be kept apart from the general balance.--

Moneys pertaining to Insolvent Estates Fund with the exception of authorised advances should not be kept apart from the general balance at the credit of the fund, but should at once be credited to

the appropriate head of account, the adjustment of such an advance to be watched through the Demand and Collection Register.

35. Surplus available on the office fund may be invested in Government securities.-- If and when there is an appreciable amount to spare in the Office or Establishment Fund the surplus available may be invested in Government Securities with the previous sanction of the High Court and an account maintained in Form No. 22.

36. All receipts for money should be duly accounted for.-- When any money is received the Official Receiver should bring the amount to account in the cash book kept in Form 15 and sign a receipt in Form No. 9 for it, the foil of which he should give to the person paying the money.

37. Mode of entry in cash books of remittances to treasury.-- Money remitted to the ^{*}[Bank] in accordance with the procedure laid down in Rule 3 should be entered in columns 8 and 9 of the cash book under the initials of the Official Receiver.

38. Payment on a bill should be by a cheque.-- After an order for payment has been passed on a bill, a cheque should be drawn in the name of the actual payee and the necessary entry made in the cash book. The bill should then be stamped "Paid by cheque No.-----" and filed for purposes of audit.

39. Comparison of cash book with Treasury Pass Book.-- The cash book should be totalled and balanced at the end of each month and signed by the Official Receiver. It should at the same time be compared and agreed with the Treasury Pass Book in the manner prescribed in rule 56 below and any differences should be explained and accounted for in a foot-note in the following manner:--

Balance as per Pass Book	... Rs._____
Add amount of permanent advance	... Rs._____
Money received too late for remittance to treasury	... Rs._____
Total	... Rs._____

Deduct--

Outstanding cheques as per details below ..

Balance as per cash book

Cheques outstanding on

No.....dated.....amount.....

40. Closing balance in cash book must agree with the total of closing balances of ledger accounts.-- The closing balance in cash must agree with the total of closing balance shown in the various ledger accounts. In order to ascertain that they agree with each other, the closing balances in the various ledger accounts should be abstracted in a register to be kept in Form 16.

Note:- This register, may, however, be dispensed with in places where the number of ledger does not exceed 25. In places where the register is dispensed with, the closing balance in the various ledgers should be shown at the foot of the cash book for facility of comparison.

41. Ledger accounts form, different heads of account, monthly balances, posting of cash book entries.-- For the purposes of classifying the income and expenditure posted in the cash book, a ledger account should be maintained in Form 17.

Several pages of the ledger should be set apart for each estate and for the heads of account, viz., "Office Charges" and "Deposits". The ledger accounts should be balanced monthly. Every receipt and disbursement shown in the cash book should be posted in the ledger concerned on the date of transaction.

42. Cheque books-how obtained and kept.-- Cheque books are obtainable direct from the Treasury Officer on payment, the cost being met from office charges. Every book should be kept under lock and key of the Insolvency Judge.

43. Cheques to be counted before use.-- When a cheque book is received the drawing officer should cause the cheques to be counted and a note to be recorded on the back of each cheque book, that this cheque book contains -----cheques.

44. Cheque book-how to be dealt with when drawing officer relinquishes charge.--

When the drawing officer is relieved of his office he should take a receipt for the correct number of cheques made over to the relieving officer, a specimen of whose signature should be forwarded to the treasury concerned by the relieved officer.

45. Drawing officer responsible for safe custody of cheque books.--

The drawing officer should be personally responsible for the safe custody of the cheque books.

46. Cheque to be signed only when required for immediate delivery.--

No cheques should be signed unless required for delivery without delay to the person to whom the money is to be paid.

47. Directions for filling in cheques.--

When a cheque is drawn an amount a little in excess of the sum for which the cheque is drawn should be written across it, and its counterfoil, in red ink against an entry of 'Under Rupees' as a preventive against fraud.

48. Cheques remain current for 3 months.--

Cheques issued remain current for three months from the date of issue.

49. Undelivered cheques to remain in personal custody of Receiver.--

If for any special reason a signed cheque is not immediately delivered to the payee it should remain in the personal custody of the Official Receiver until it is delivered to the person for whom it was prepared and a receipt obtained.

50. Redating cheques not encashed within 3 months.--

When a signed cheque delivered to a person for whom it is drawn is not presented for encashment at the treasury within the prescribed time, it may be validated at the request of the payee. The alteration of date should be initialled by the drawing officer, a note of the fact of redating being entered in the cash book against the original transaction and upon counterfoil of the cheque itself. The alteration will in no way affect the accounts and no further entries shall be made.

51. Disposal of undelivered cheques or money orders returned.--

When a signed cheque (vide rule 49) is not delivered to the person in whose favour it is drawn within the period the cheque is current, it should be cancelled

under the initials of the District or Insolvency Judge and the amount thereof should be entered in the cash book on the day of cancellation as a receipt under the head 'Deposit' and the amount should at the same time be entered in the appropriate column of the Deposit Register in Form 18.

Note:- The same procedure should be followed when any money orders addressed to a creditor come back as 'returned' or 'refused' for any reason. The amount should be entered in the cash book as a receipt under the head 'Deposit' and at the same time entered in the appropriate columns of the Deposit register.

52. Disposal of cancelled cheques.-- Cancelled cheques should be carefully retained until the accounts for the period to which they relate have been audited. They should then be destroyed by or in the presence of the audit officer, who should certify upon the counter-foil that the cheque has been so destroyed and the amount thereof transferred to 'Deposit Account'.

53. Entries in treasury pass book to be made only by the treasury.-- The Official Receiver should have a treasury pass book which is obtainable free of cost from the treasury. No entry or mark of any kind should be made in the pass book by any official of the Official Receiver's establishment. All entries in the pass book should be made in the treasury only.

54. Treasury pass book to be kept in personal custody of the Receiver.-- The pass book should be kept under lock and key in the personal custody of the Official Receiver.

55. Pass book to be sent to treasury from time to time to be written up monthly total and balances.-- All sums paid into the treasury for credit to Insolvents Estates Fund, and all payments made on cheques should be shown in the pass book which should be periodically sent to the treasury to be written up. At the close of each month the entries on each side of the pass book should be totalled and a balance struck under the signatures of the Treasury Officer.

56. Comparison of pass book with the cash book.-- At the end of each month the receipts and expenditure shown in the pass book should be

checked item by item with the cash book and cheques outstanding should be noted in detail at the foot of the cash book in accordance with Rule 39.

If any delivered cheque appears to be outstanding for more than three months from the date of issue and has not been re-dated under rule 50, it should be cancelled in the manner laid down in Rule 51 and the amount thereof transferred to the Deposit account.

57. Special account register for cancelled cheques.-- The necessary particulars of the amounts transferred to "Deposit Account" under rules 51 and 56 should be posted in a Deposit Register to be kept in Form No. 18.

58. Mode of drawing deposits.-- Deposits, when claimed, will be drawn on contingent bill, Form 11, and disbursed in the ordinary way.

59. Outstanding deposits to be carried into next year's register.-- Deposits outstanding at the end of a year will be carried into the next year's register, in the first two columns of which should be shown the date of original credit and the annual number originally assigned to the deposit.

60. Disposal of deposits not claimed within one account year.-- Deposits not claimed within one account year should be drawn on a contingent bill and the money remitted to the Government Treasury for transfer credit under the head *[1200000-Receipts from Civil Administration and other Functions; 1230000-Law & Order Receipts; 1231000-Justice; 1231001 Justice-Sale Proceeds and Escheated Property.]

Note 1:- In addition to individual accounts of each deposit to be kept in Form 18 the daily total of the receipt and expenditure on account of above deposits should be posted in the ledger account, Form No. 17 in which a few pages should be set apart for the purpose of showing deposit transactions.

Note 2:- The deposits mentioned in this rule which have remained unclaimed for at least one year should be lapsed at the close of *[June] in each year.

61. Amount of dividend declared to be drawn on contingent bill and disbursed by cheques.-- (i) The amount declared to be paid as dividend shall be drawn on a contingent bill in Form 11. Details of names and amounts

payable to each person shall be shown before the bill is presented to the Court for order of payment. The requisite particulars shall at the same time be posted in the Dividend Register to be kept in Form 19.

(ii) After the order of payment has been made, the Official Receiver shall forthwith issue notice to all creditors calling upon them to appear within twenty days of the despatch of the notice to take payment in cash, failing which the money due will be remitted by post at their expense and risk.

(iii) On the expiry of the period allowed by the notice, the Official Receiver shall remit by money order, at their own risk and expense, the dividends due to all creditors who have not taken payment in cash. If the amount is too large to be remitted by a single money order, it should be spread over the requisite number of money orders. The insolvency Judge shall cancel any cheques in favour of persons who have not taken payment in cash.

(iv) Notwithstanding any of the foregoing provisions, the Official Receiver may remit by post without previous notice and at the risk and expense of the creditor the dividend due to any creditor who has consented in writing to this being done.

Note:- Small payments of sums less than Rs. 50 may be made in cash out of the permanent advance granted to the Official Receiver under Rule 20.

62. Bills should be kept with sub-vouchers in guard files.-- Bills should be numbered serially for each month and should be filed with sub-vouchers in support of them in the Official Receiver's Office in guard files and separate from *misl*s.

63. Furniture list to be kept.-- Articles of office furniture purchased from time to time for the office of the Official Receiver, should be shown in a list to be kept in Form 20, and to be hung up in the Official Receiver's office.

63-A. Stock of all movable property, etc., to be checked yearly.-- The stock of movable property, stationery and forms, and stamps, etc., should be checked yearly by actual verification and a report to this effect should be submitted to the Court by the Official Receiver.

64. Accounts to be maintained according to financial year.-- The accounts of Official Receivers shall be maintained according to the financial year.

***[65. Accounts to be audited once a year.--** The accounts maintained by the Official Receiver should be audited, as far as possible, once a year by the Director General Audit, Punjab, provided that a Judge of the High Court may, in special cases pending in the High Court, direct audit inspection by an agency other than the Director General Audit, Punjab.]

66. Accounts of summary Administration also to be audited.-- The accounts maintained in cases dealt with summarily by the Insolvency Courts under section 74 of the Act shall also be audited.

67. All necessary material to be supplied for audit.-- The Insolvency Judge should cause to be placed at the disposal of the auditors all account registers, documents, etc., which may be required by the Audit Officers.

68. Audit result to be sent to Insolvency Judge and High Court.-- The result of the audit will be communicated in audit and inspection notes to the Insolvency Judge and the Lahore High Court Lahore.

69. Audit and Inspection notes-how to be dealt with.-- The Insolvency Judge should deal promptly with the audit and inspection notes.

The Official Receiver's report on these notes should be submitted in the following form:-

1. Nature of objection;
2. Official Receiver's remarks
3. Remarks by the Insolvency Judge;
4. Order of the District Judge.

***[70. Copy of the annotated note to be forwarded to the Examiner of Accounts and another copy to be kept in office. Objection statement how to be dealt with.--** A copy of the annotated replies to the Audit Observation shall be forwarded to the Director General Audit, Punjab, and a copy of it kept

and produced to the Audit Officer at the time of the next Audit for information and verification of the compliance made by the Insolvency Judge and consequential settlement of Audit Observations.]

71. Only prescribed forms to be used.-- No forms other than those prescribed in these rules should be used except with the sanction of the High Court which shall not be accorded without the concurrence of the Director General Audit, Punjab.

72. Account books and registers to be bound and counting of pages to be certified.-- Books of accounts and registers shall be strongly bound and paged before being brought into use and all account registers should be counted and a certificate to the effect that they contain so many pages recorded on the covering sheet, before they are brought into use.

73. Stock account of all registers, etc., should be maintained.-- Stock account of all account registers, books and forms should be maintained in form 21 appended to these rules. As the receipt books bear potential money value, they should be kept under the personal custody of the Official Receiver.

***[74. The Director General Audit to be consulted in account matters not provided for in rules.--** In the matter of details connected with the Accounts not provided for in the rules, the Official Receiver should be guided by the instructions of the Accountant General Punjab, as far as the accounting matters are concerned and of the Director General Audit, Punjab, if the matters relate to Local Audit of these Accounts.]

75. Erasures in accounts not allowed. Corrections and alterations to be made in red ink and initialled.-- Corrections and alterations in accounts shall be made in red ink and attested by the Official Receiver. Erasures should, on no account, be allowed.

INDEX REGISTER

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FORM No. 3.

Register of movable property of ----- Insolvent
CASE NO. OF 19

Serial No.	Description of property.	Number of articles.	Value as per Insolvency provisions.	Date of registration.	Date of possession by the Official Receiver.	In what condition.	Reference to order, if released.	Sale Proceeds.			Signature of Official Receiver.	REMARKS. <i>Note.</i> —The Official Receiver should record his own remarks here at the time of taking possession of the property so as to show the prices realized by the insolvent appear to be lawful or irregular.
								Reference to Serial No. in the sale list.	Number and date of receipt/sale.	Amount.		
1	2	3	4	5	6	7	8	9	10	11	12	13
			Rs. P.							Rs. P.		

FORM No. 4.

Register of debts due to Insolvent

CASE NO.

OF 19

Serial No.	Name and address of person against whom the claim is alleged	Nature of debt or claim	Particulars of any securities held for debt.	Date of loan	Amount	Whether good, doubtful or bad.	Initials of Official Receiver.	Manner of recovery, i.e. by auction or otherwise.	AMOUNT RECEIVED		Remarks.
									No. and date of receipt.	Amount.	
1	2	3	4	5	6	7	8	9	10	11	12
					Rs. P.					Rs. P.	

FORM No. 5.

Register of debts (secured and unsecured) due from Insolvent.

CASE NO.

OF 19 ..

Serial No.	Creditor's name with address.	Nature of creditor's claim.	Amount of debt.	Date of issue.	Reference to order determining the debt as proved.	AMOUNT OF DEBT PROVED				Remarks
						Secured	Unsecured	Principal	Profit	
1	2	3	4	5	6	7	8	9	10	11
			Rs. P.			Rs. P.	Rs. P.	Rs. P.	Rs. P.	

.....

FORM No. 6.

*Register showing title-deeds, documents and account books which came to the hands of Official Receiver
in the case of -----Insolvent.*

CASE NO. **OF 19**

Serial No.	Details.	Number.	Remarks.
1	2	3	4

FORM No. 7.

Demand and Collection Register for the year Name of Insolvent

CASE NO.

OF 19 .

Serial No.	Name and address of person by whom the demand is payable	Nature of demand and interest thereon	Reference to order, if any	DEMAND			Signature of Official Receiver	AMOUNT RECEIVED		REMITTED		Balance carried to next year's register	Month	Remarks
				Amt. due	Current demand	Total		Number and date of receipts	Amount	Reference to order	Amount			
1	2	3	4	5	6	7	8	9	10	11	12	13	14	15
				Rs. P.	Rs. P.	Rs. P.			Rs. P.		Rs. P.	Rs. P.		

FORM No. B.

NOTE:—When land is given on lease for a number of years and the lease-money is to be paid by yearly instalments, the total amount recoverable for the whole period should not be shown at the very start as "Arrears" in column No. 5. The total demand and the instalments to be recovered should be noted down in column No. 3 for "Nature of Demand and Instalments."

State list of property sold by the Official Receiver of District

Seral No.	Date of sale.	Particulars of property.	Number of articles (if any).	Name of estate.	Reference to page No. of Property Register.	Amount for which sold.	Amount recovered at the time of sale.	Balance left due.	Name of bidder.	Thumb-impression or signature of purchaser, i.e., final bidder.	Number and date of receipt issued.	Remarks.
1	2	3	4	5	6	7	8	9	10	11	12	13
						Rs. P.	Rs. P.	Rs. P.				

FORM No. 9.

COUNTERFOIL OF RECEIPT.

Book No. _____

Receipt No. _____

Received from _____

on account of _____

the sum of Rs. _____

for credit to the estate of _____

Rs. _____

Date _____

District _____

Official Receiver

RECEIPT.

Book No. _____

Receipt No. _____

Received from _____

on account of _____

the sum of Rs. _____

for credit to the estate of _____

Rs. _____

Date _____

District _____

Official Receiver

FORM No. 10.

Voucher No. _____ of Month _____

Pay Sheet of the Establishment of Insolvent Estates' Fund in the district of _____
for the month of _____

Name of incumbents	Name of post	Pay and allowance claimed	Pay and allowance held over for future payment	Deduction	Net charge for each person	Acquittance of payee	Remarks
		Rs. P.	Rs. P.	Rs. P.	Rs. P.		
	Total :						
Deduct -							
Undisbursed pay							
Other deductions							
	Total :						
Net amount required for payment Rs.							

Place _____

Date _____

Official Receiver

Pay Rs. (_____) _____

Date _____ } No. and date of Cheque _____ } District Judge.
Insolvency

FORM No. 11.
Contingent Bill

DISTRICT		VOUCHER NO. _____ OF
Serial No. of sub-voucher	Particulars	Amount
		Rs. P.
	Total Rs. .. "	

Place _____

Date _____

Pay Rs. _____.

No. and date of cheque _____ } Date _____ { _____

Official Receiver

District

Insolvency Judge

FORM No. 12.

Permanent Advance Account

Date	No. of sub-voucher.	To whom paid	Particulars of payment	Name of estate or other head of account to which debitabale	Amount	REMARKS (No. and date of cheque on which recouped)
1	2	3	4	5	6	7
					Rs. P.	

FORM No. 13.

Stamp Register (to be kept for charges debitabale to "Office Charges")

STOCK					EXPENDITURE				Balance in hand at the close of the day.	REMARKS
Date	Value of stamps in hand at the commencement of the day	Value of stamps received during the day	Total Stock	Name and address of person to whom cover was sent	Brief contents of cover	Value of stamp affixed.	Daily total of value expended during the day			
1	2	3	4	5	6	7	8	9	10	
	Rs. P.	Rs. P.	Rs. P.			Rs. P.	Rs. P.	Rs. P.		

C.H. 3-D

FORM No. 14.

Register showing receipts and administration charges for the month of-----19--

Serial No.	Name of insolvent	Reference to page of ledger	Amount realized or agreed to be paid in compromise in (last preceding month).	ADMINISTRATION CHARGES					Total	Remarks
				Commission at 3 per cent.	Commission drawn at 2 per cent	Total	Audit fee at Rs. 1.25 per cent	Office charges at Rs. 1.25 per cent.		
1	2	3	4	5	6	7	8	9	10	11
			Rs. P.	Rs. P.	Rs. P.	Rs. P.	Rs. P.	Rs. P.	Rs. P.	
Total ---										

FORM No. 15.

Cash Book

RECEIPTS							REMITTANCE TO TREASURY		EXPENDITURE							
Date	Folio No. of ledger	On what account and from whom received	No. of receipt or chalan	Amount	Daily total	Progressive Total	No. and date of chalan	Amount remitted	Date	Folio No. of ledger	On what account and to whom paid	No. of voucher and cheque	Amount	Daily total	Progressive total	Remarks
1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16	17
				Rs. P.	Rs. P.	Rs. P.										

NOTE.- An explanation should always be recorded in the remarks column to explain the delay, if any, in sending the amounts received to the Treasury.

FORM NO. 17.

Ledger account of the Estate of _____ insolvent.
CASE NO _____

OF 19

Date	RECEIVED				DISBURSED				Remarks
	From whom received and on what account	Number of receipts	Amount	Remarks	Date	To whom paid and on what account	Number of voucher	Amount	
			Rs. P.					Rs. P.	

FORM No. 18.

Deposit Register

Date	Annual serial number	Name of the estate	Name and address of depositor	Purpose of deposit	Amount	Signature of Official Receiver	PARTICULARS OF REPAYMENT					Balance at the end of the year	Remarks
							Date	Number of cash book voucher	Amount	Purpose for which drawn, whether for payment to depositor or for credit to Government	Signature of Official Receiver		
1	2	3	4	5	6	7	8	9	10	11	12	13	14
					Rs. P.				Rs. P.			Rs. P.	

DIVIDEND REGISTER

In the matter of the Estate of _____ Insolvent.

CASE NO.

OF 19

1st, 2nd or 3rd dividend as the case may be

Present Dividend declared on

Amount available for disbursement Rs.

Amount of present dividend, Rs. _____ drawn on cash book voucher No. _____

dated _____

Rate per rupee on proved liabilities _____

Serial No.	Schedule No. of creditor	Name of creditor	Original amount of debt admitted to schedule	Amount paid thereon up to date of this dividend	Balance due to creditor	Amount payable under this dividend	Number and date of cheque on which drawn	Date of handing over cheque to the payee	Date of cancellation of cheque and transfer of amount to deposit register	Number of deposit register	Balance still due to creditor	Remarks
1	2	3	4	5	6	7	8	9	10	11	12	13
			Rs. P.	Rs. P.	Rs. P.	Rs. P.					Rs. P.	

FORM No. 20.

List of Office Furniture

Serial No.	Particulars of furniture	Date of purchase.	No. and month of cash book's voucher	Value	Purpose for which it is used	Signature of Official Receiver	Remarks
1	2	3	4	5	6	7	8
				Rs. P.			

FORM No. 21.

**STOCK BOOK SHOWING DETAILS OF THE ARTICLES OF STATIONERY, ETC. RECEIVED OR ISSUED
DURING THE YEAR 19____, IN THE OFFICE OF THE _____**

From whom received or to whom issued	Date of receipt or issue	Cost or value realized on permanent articles only (marked)																							Remarks including signatures of persons to whom articles have been issued
1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16	17	18	19	20	21	22	23	24	25	
Receipts In stock on 1st _____ 19____																									
Total receipts during _____ 19____																									
Issues																									
Total issues during _____ 19____																									
Balance in stock on 1st _____ 19____																									

NOTE: All articles must be properly accounted for.

NOTE—All entries in this Register relating to receipts of articles should be made in red ink and all issues in black ink.
Columns 4 to 24 are left blank to be filled in with names of articles received and issued

FORM No. 22.

Register of investments.

Serial No.	Date of purchase of Security	Number and date of paper	AMOUNT		RATE OF PROFIT		Signature of Official Receiver	Date of recovery of profit and adjustment in account	Amount of recovery of profit	Head of account credited	Signature of Official Receiver	Remarks
			Rs.	P.	Rs.	P.						
									Rs. P.			

FORM No. 23.

Malkhana Register

Serial No.	Name of estate	Particulars of property	Date of possession	Date of disposal	Remarks

FORM No. 24.

Malkhana Labels

Name of estate

Date of possession

Serial No. of "Malkhana" Register

FORM NO.25 Fidelity Bond

(See rule 10 of Chapter 5-A, High Court Rules and Orders, Volume II)

Amount of guarantee Rs. _____

Annual premium Rs. _____

KNOW ALL MEN BY THESE PRESENTS THAT _____

(hereinafter referred to as the 'said Employee') and the _____ are held jointly and severally bound unto the Governor of the Punjab, his successors in office and assigns (hereinafter called 'Government') in the sum of _____ rupees (hereinafter called the 'amount guaranteed') to be paid to the Government for which payment to be well and faithfully made the Official Receiver and the said Company, for itself and its successors do hereby bind themselves firmly by these presents.

Signature of the Official Receiver.

Sealed with the seal of the said Company (or signed by an authorised agent).

Dated the _____ day of _____ (year)

WHEREAS the said Employee has been appointed Official Receiver for the district of _____ and having been required to enter into a bond, for the due and faithful discharge of his duties while he shall be employee in the said office, and also to find a surety who shall enter into a bond for the sum of _____ rupees the said Company at the request of the said Employee, has agreed to become such surety for him, in respect of such due and faithful discharge of his duties while employee in the said office as aforesaid, or in any office attached or incident to the same (hereinafter described as the "said office") (and as well in respect of the present duties of his said office, as of any

new or altered duties which may be imposed on or attached to the said office, or the said Employee as such officer, by any Law, Rule, Regulation, Practice or otherwise) for the period of twelve calendar months from the day of _____ 19 , in consideration of the said Employee having paid to the said Company the amount set out in figures at the head of these presents and there designated "Annual Premium", prior to the execution of the above written Bond and the said Company has agreed to become such surety as aforesaid for the further period of twelve calendar months, and so on from year to year at the option of the said Company, upon receiving from the said Employee the said annual premium, to be paid by him to the said Company on or before the _____ day of _____ in each year prior to the determination of the present or the then current year, but the said Company is to be at liberty to determine its further liability at the end of the present or any current year, by giving notice in writing to the District Judge of _____ district for the time being as hereinafter mentioned , and if at any time notice in writing shall be given as hereinafter mentioned to the said Company at their office in _____ that any loss or damage whatever has been occasioned by the acts or defaults of the said Employee in respect of his said employment, the liability of the said Company as to any future loss or damage shall then also cease as from the date of the service of such notice and the year during which the said Company has now agreed, or shall by acceptance of the said premium in future agree, to become such surety, shall be called the year of Guarantee, and shall commence on the _____ day of _____ in each year independently of the time when the said premium shall be paid and the liability of the said Company shall extend to all acts and defaults of the said Employee during that year, or until an end shall be put to further liability by such notice in writing declaring loss or damage as aforesaid.

Now the condition of the above written Bond or obligation is such that if the said Employee shall and do during the said period of twelve calendar months from the said _____ day of _____ 19 _____ and during such other period as the said Company shall become or continue to be such surety as aforesaid, by acceptance of the said renewal premium, or until

notice of some loss or damage shall be given, as hereinafter mentioned, from time to time and at all times during the continuance of his said office, well and sufficiently perform and execute all and singular the duties of his said office, or of or belonging to him as such officer, or belonging to or in any way imposed upon him by reason of his being such officer, and conduct himself with fidelity, integrity, and punctuality in and concerning the matters and things which shall be entrusted to him as such officer, or in respect of such duties as aforesaid and do and shall well and truly pay and apply all property including cash, coin, currency notes, stock notes, cheques, postal money orders, hundis, promissory notes, bills of exchange, securities, scrip, shares, bullion, jewellery, precious stones, crops, cattle, documents, records, accounts, vouchers, books, papers and all other property whatsoever both movable and immovable as shall, from time to time, come to his hands by virtue of such office or duties as aforesaid, or to the hands of his deputies, assistants, agents or other persons acting under his authority or on his behalf, or any of them respectively, and do and shall also well and truly pay all sums of money which he shall or may become liable to pay for any neglect or misbehavior in his said office, or in respect of his said duties, and do and shall at all times, when duly required, produce and render true and correct accounts of the receipt, payment and application of all such property, as aforesaid, as shall so come to the hands of him, the said Employee, as aforesaid, or to the hands of his assistants or other persons acting under his authority or on his behalf, with proper and sufficient vouchers for the due application thereof, and shall not, in any wise, take to his own use, misapply, lend or embezzle, make away with, neglect to account for, lose or hazard any property whatsoever, as aforesaid, or any part thereof, and do and shall at the expiration or other termination of his said office or duties deliver up to the person duly authorized to receive the same, all books, papers, documents, and accounts relating to his said office or duties and do and shall pay and deliver to the person or persons duly authorized to receive the same, the balance (if any) of any such property, as aforesaid, remaining in the hands of and due from him the said Employee and shall not at any time quit or neglect the performance of his said duties or resign his said office without giving three months' notice in writing to the District Judge of _____ for the time being, or if, upon any award in arbitration being given under the hand of the District Judge

of _____ for the time being, certifying and declaring the amount of any loss or damage occasioned by the acts or defaults of the said Employee subsequent to the said _____ day of _____ 19 , in respect of such employment, the said Employee, his heirs, executors, or administrators or the said Company or their successors, do and shall pay and make good to the Government the sum stated in such award as the amount of such loss or damage, then the above written bond or obligation shall, subject as hereinafter mentioned, be void, or else be and remain in full force and virtue.

PROVIDED ALWAYS that first, if any such award certifying and declaring the loss or damage shall be given as aforesaid; or Secondly, if the said Employee shall omit to pay to the said Company on or before the ----- day of _____ in any year of guarantee the annual premium aforesaid, and the said Company shall give notice in writing of such default to the District Judge aforesaid for the time being one calendar month prior to termination of the then current year of guarantee, unless the said Employee shall cause the said annual premium to be paid to the said Company before the expiration of the then current year of guarantee; Thirdly, if the said Company shall give notice in writing to the District Judge aforesaid for the time being one calendar month previous to the termination of any year of guarantee that they will not continue their suretyship beyond the then current year of guarantee; or Fourthly, if the said Company shall refuse to renew the said suretyship by declining to accept the said premium from the said Employee, and thereof shall give notice to the said District Judge aforesaid for the time being one calendar month previous to the termination of the then current year of guarantee, then in the First case from and immediately after the giving of such award and in the Second, Third and Fourth cases from and immediately after the expiration of the then current year of guarantee all further liability of the said Company as such surety as aforesaid shall cease, save and except as to the right of the Government to indemnify from loss or damage arising from all or any acts or defaults of the said Employee previously committed in relation to such employment as aforesaid.

PROVIDED ALWAYS and it is hereby agreed and declared that this bond is entered into by the said Company on the condition that the capital stock and fund for the time being of the said Company, other than the life Assurance Funds, shall alone be liable to answer and make good all claims or demands in respect of this bond, and that no Director or other Proprietor or Holder of shares of the said Company shall in any manner be personally liable or subject to any claims or demands by reason of such Bond beyond his or her particular share or shares of such capital, stock and funds.

PROVIDED ALWAYS and it is hereby agreed and declared that if any dispute arises between Government and either or both the other parties to this Bond as to his or their liability thereunder or as regards the meaning or operation of any part thereof or the rights, duties, or liabilities of any party or whether this Bond should be enforced, or, if enforced, as regards the rights and obligations of the parties as a result of such enforcement then such difference or dispute shall be referred for arbitration to the District Judge for the time being at _____

and his decision shall be final and binding and where the matter involves a claim for or the payment or recovery or deduction of money only the amount, if any, awarded in such arbitration shall be recoverable in respect of the matter so referred.

PROVIDED ALWAYS and it is hereby agreed and declared that while and so long as the above written Bond or obligation shall remain in force, on each occasion on which the accounts of the employee, as Official Receiver, shall be audited by the appropriate Government Department, the said District Judge shall, upon demand by the Company, furnish to the Company, a copy of the note recorded at and containing the results of such audit, which copy shall be duly certified to be correct by an officer of the court of the District Judge.

IN WITNESSES whereof the said _____ has hereunto set his hand and seal and the _____ have hereunto caused their Common Seal or the signature of their authorised agents to be affixed the day and year first above written.

SIGNED, SEALED AND DELIVERED by the said _____ in the presence of _____ (Witness).

(Signature of the Official Receiver)

SEALED WITH the Common Seal of the said Company.

_____) Director) Signed by in authorised

_____)) agent of the Company.

_____) Manager)

Accepted)

_____ (Signature)

District Judge _____ District

for and on behalf of the Governor

of the Punjab

No.

Entered.

Examined.

NOTE.1. The Bond may be signed, instead of the Directors and Managers, by any authorised agent of the Company (vide resolution No.8, Judges' Meeting, dated the 25th January 1937).

NOTE.2. The words 'sealed with the common seal of the said company' and all references to the seal of the Company may be deleted, and the words 'Branch Manager' substituted for the words 'Director' and 'Manager' when the Bond is executed and signed by an agent of the Company who is authorised to sign and bind the Company.

Form No. 26

WHEREAS I,-----son of----- Caste----- resident of----- in the----- district of the Punjab, have been appointed to the office of Official Receiver in the----- district of the Punjab upon the condition inter alia that I do furnish proper security in the sum of *[Rs.30,000/-(Rupees Thirty Thousand only)] for the due and faithful discharge of my duties while employee in the said office or in any office attached or incident to the same (hereinafter described as the said office) and for the due accounting for all property by me at any time held or received by virtue of may said office.

NOW THEREFORE THIS SECURITY BOND WITNESSETH..... as follows, that is to say:-

Clause I.-- In this Security Bond and for the purposes of each and all of the provisions thereof the expression --

(a) "Government" means the Governor of the Punjab acting by and through the -----

(b) "Official Receiver" means ----- son of -----, caste ----- resident of -----in the----- district of the Punjab at present holding the office of Official Receiver in the----- district of the Punjab.

(c) "property" includes cash, coin, currency notes, stock notes, cheques, postal money order, hundies, promissory notes, bills of exchange, Government and other securities, scrip, shares, bullion, jewellery, precious stones, crops, cattle, documents, records, accounts, vouchers, books, papers and all other property whatsoever both movable and immovable.

Clause II. -- The Official Receiver is held and firmly bound to Government in the sum of **[Rs. 30,000/-(Rupees Thirty Thousand only)]* as security for the due and faithful discharge of the duties of his said office, that is, he shall from time to time and at all times during the continuance of his said office work and sufficiently perform and execute all and singular the duties of his said office or of a belonging to him as such officer or belonging to or in any way imposed upon him by reason of his being such officer and conduct himself with fidelity, integrity, and punctuality in and concerning the matters and things which shall be entrusted to him as such officer in respect of such duties as aforesaid and do and shall well and truly pay and apply all property as shall from time to time come to his hands by virtue of such office or duties as aforesaid or to the hands of his deputies, assistants, agents or other persons acting under his authority or on his behalf or any of them respectively and do and shall also well and truly pay and apply all property whatsoever which he shall be or may become liable to pay or apply for any neglect or misbehaviour in his said office or in respect of his said duties and do and shall at all times when duly required produce and render true and correct accounts of the receipt, payment and application of all property whatsoever as shall so come to the hands of him the Official Receiver as aforesaid, or to the hands of his assistants or other persons acting under his authority or on his behalf with proper and sufficient vouchers for the due application thereof and shall not in any wise take to his own use, lend or embezzle, make away with, neglect to account for, lose or hazard any such property as aforesaid or any part thereof and do and shall at the expiration or other termination of his said office or duties deliver up to the person duly authorised to receive the same all books, papers, documents and accounts relating to his said office or duties and do and shall pay and deliver to the person or persons duly authorised to receive the same the balance (if any) of the property as aforesaid remaining in the hands of and due from him the said Official Receiver.

Clause III.-- The Official Receiver has deposited the sum of rupees ten thousand in cash and /or has deposited Government Promissory notes of the face value of rupees----- in the said district as a security deposit for the due and faithful performance of his duties as Official Receiver and the due accounting by him of the property held by him as aforesaid.

Clause IV.-- All interest which may from time to time accrue due and become payable upon the security deposit aforesaid shall be paid to the Official Receiver, but the principal amount of the security deposit shall continue to be held and retained by the Government subject to each and all of the terms and conditions of this security bond and until it shall be and become payable to the Official Receiver according to all or any to the provisions of the said Bond.

Clause V.-- This Security Bond shall be deemed to be and be a Bond entered into under the orders of the Government for the performance of a public duty within the meaning of section 74 of the Contract Act, 1872, and the whole *sum secured* shall be liable to be realised and forfeited to the Government in the event of any breach by the Official Receiver of all or any of the terms or conditions thereof.

Clause VI. --The Government or any officer having authority in this behalf under it shall, subject to the provisions of Clauses VII and VIII hereinafter appearing hold and retain the security (deposit) so long as the following conditions obtain, that is to say:-

(a) The Official Receiver shall during his continuance in the office aforesaid faithfully, diligently and honestly discharge all and singular his duties as laid down in clause II hereof and shall not at any time quit or neglect the performance of the said duties or resign his said office without giving ----- months` notice in writing to the District Judge for the time being of----- of his desire to resign the said office.

(b) The Official Receiver shall during the continuance of his said office indemnify and save harmless the Government from and against all losses, costs, damages, and expenses which shall or may at any time or times hereafter be sustained by Government or any officer of Government from or through the neglect, failure, misconduct, disobedience, omission or insolvency of the said Official Receiver or any person serving under or employee by him or from or through the consuming, wasting, embezzling, stealing, mispending, losing, misapplying or otherwise dishonestly or negligently or through oversight or violence making away or parting with any property or part or parts thereof by any person or persons whomsoever, while the Official Receiver shall continue to act in any such office.

Clause VII.-- In the event of any breach of or default in all or any of the conditions herein before in the preceding clause set forth and provided the

Government may take and forfeit to itself the whole amount of the security (deposit):

PROVIDED that the Government may, instead of taking and forfeiting to itself the whole amount of the security (deposit), retain only so much thereof as it may, in its absolute discretion, deem adequate to compensate, reimburse or indemnify it in respect of the loss or damage or inconvenience sustained by reason of the breach or default committed and may refund any balance to the Official Receiver but neither the official Receiver nor his lawful heirs, representatives or assigns shall have any right or claim to any such refund.

Clause VIII.-- In the event of the Official Receiver quitting or being relieved of the office of Official Receiver or for any reason becoming incapable of further service in his said office, or dying, the security (deposit) shall if there shall have been no breach or default in all or any of the conditions herein before in Clause VI hereof set forth and provided, and if there shall be no claim or demand outstanding against the Official Receiver in favour of Government, be *refunded and paid* to the said Official Receiver or to his lawful heirs legal representatives or assigns as the case may be:

PROVIDED that the Government may, in its discretion retain the security (deposit) for a period not exceeding six months after the date on which the Official Receiver quits the service of the Government or becomes incapable of further service in the said office, or dies, for the purpose of ascertaining or satisfying itself that there has been no breach or default as aforesaid and that no claim or demand is so outstanding.

Clause IX.-- The forfeiture or refund, as the case may be, of the security (deposit), shall not, in any way affect, limit or extinguish any remedy or relief to which the Government may at any time be lawfully entitled against the said Official Receiver in respect of anything done or omitted to be done by him as Official Receiver, either before or after such forfeiture or refund and nothing in this Security Bond contained shall be deemed to relieve the Official Receiver from any suit, prosecution or proceeding to which he may be liable under any law for the time being in force in respect of anything by him at any time done or omitted.

IN WITNESS WHEREOF the said Official Receiver has hereunto subscribed
 his name at -----on the----- day of -----
 -----19 .

Signed by.

(Name)

Official Designation.

1. -----

2. -----

Form No. 27

WHEREAS I,----- son of----- Caste----- resident of-----
 -- in the -----district of the Punjab have been appointed to the office of the
 Official Receiver in the-----district of the Punjab upon the condition inter alia
 that I do furnish proper security in the sum of *[Rs.30,000/-(Rupees Thirty Thousand
 only)] for the due and faithful discharge of my duties while employee in the said office
 or in any office attached or incident to the same (hereinafter described as the said
 office) and for the due accounting for all property by me at any time held or received
 by virtue of my said office.

NOW THEREFORE THIS SECURITY BOND WITNESSETH as follows, that is to say
 -

Clause 1.- In this security bond and for the purposes of each and all of the provisions
 thereof the expression-

(a) "Government" means the Governor of the Punjab acting by and through the
 District Judge of_____.

(b) "Official Receiver" means_____ son of
 _____ caste_____ resident of
 _____ in the _____ district of the Punjab at
 present holding the office of Official Receiver in the _____ district of
 the Punjab.

(c) "Property" includes cash, coin, currency notes, stock, notes, cheques, postal
 money-orders, hundies, promissory notes, bills of exchange, Government and other
 securities, scrip, shares, bullion, jewellery, precious stones, crops, cattle, documents,
 records, accounts, vouchers, books, papers and all other property whatsoever both
 movable and immovable.

(d) "Security" means the sum of money by this Security Bond secured and assured to
 Government for the due and faithful discharge of his duties by the Official Receiver
 and for the due accounting for all property by him at any time held or received by
 virtue of his said office.

Clause II.-- The official Receiver is held and firmly bound to Government in the
 sum of *[Rs.30,000/-(Rupees Thirty Thousand only)] as security for the due
 and faithful discharge of the duties of the said office, that is, he, the Official Receiver,
 shall from time to time and at all times during the

continuance of his said office work and sufficiently perform and execute all and singular the duties of his said office or belonging to him as such officer or belonging or in any way imposed upon him by reason of his being such officer and conduct himself with fidelity, integrity and punctuality in and concerning the matters and things which shall be entrusted to him as such officer or in respect of such duties as aforesaid and due and shall well and truly pay and apply all property as shall from time to time come to his hands by virtue of such office or duties as aforesaid or to the hands of his deputies, assistants, agents or other persons acting under his authority or on his behalf or any of them respectively and do and shall also well and truly pay and apply all properties whatsoever which he shall hold or become liable to pay or apply for any neglect or misbehaviour in his said office or in respect of his said duties and do and shall at all time when duly required, produce and render true and correct accounts of the receipt, payment and application of all property

whatsoever as shall so come to the hands of him, the Official Receiver, as aforesaid, or to the hands of his assistants or other persons acting under his authority or on his behalf with proper and sufficient vouchers for the due application thereof and shall not in any wise take to his own use, lend or embezzle, make away with, neglect to account for, lose or hazard any such property as aforesaid, or any part thereof and do and shall at the expiration or other termination of his said office or duties deliver up to the person, duly authorised to receive the same, all books, papers, documents and accounts relating to his said office or duties and do and shall pay and deliver to the person or persons duly authorised to receive the same the balance (if any) of the property as aforesaid remaining in the hands of and due from him the said Official Receiver.

Clause III.- The Official Receiver has executed and registered a deed of mortgage dated the _____ day of _____, 19____, of the property in the said deed of mortgage set forth and specified as security for the due and faithful performance of his duties as Official Receiver and the due accounting by him of the property held by him as aforesaid.

Clause IV.- This Security Bond shall be deemed to be and be a bond entered into under the orders of the Government for the performance of a public

duty within the meaning of Section 74 of the Contract Act, 1872, and the whole security shall be liable to be forfeited to the Government in the event of any Breach by the Official Receiver of all or any of the terms or conditions thereof.

Clause V.-- The Government or any officer having authority in this behalf under it shall, subject to the provisions of clauses VI and VII hereinafter appearing, hold and retain the security so long as the following conditions obtain, that is to say:-

(a) The Official Receiver shall during his continuance in the office aforesaid faithfully, diligently and honestly discharge all and singular his duties as laid down in clause II hereof and shall not at any time quit or neglect the performance of the said duties or resign his said office without giving _____ month's notice in writing to the District Judge for the time being of _____ his desire to resign the said office.

(b) The Official Receiver shall during the continuance of his said office indemnify and save harmless the Government from and against all losses, costs, damages and expenses which shall or may at any time or times hereafter be sustained by Government or any officer of Government from or through the neglect, failure, misconduct, disobedience, omission or insolvency of the said Official Receiver or any person serving under or employee by him or from or through the consuming, wasting, embezzling, stealing, mis-spending, losing mis-applying or otherwise dishonestly or negligently or through over-sight or violence making away or parting with any property or part or parts thereof by any person or persons whomsoever while the Official Receiver shall continue to act in any such office.

Clause VI.-- In the event of any breach of or default in all or any of the conditions herein before in the preceding clause set forth and provided the Government may realize, take and forfeit to itself the whole amount of the security:

PROVIDED that the Government may, instead of taking and forfeiting to itself the whole amount of the security retain only so much thereof as it may, in its absolute discretion, deem adequate to compensate, reimburse or indemnify it in respect of the loss or damage or inconvenience sustained by reason of the breach or default committed and may refund any balance to the Official Receiver; but neither the Official Receiver nor his lawful heirs, representatives or assigns shall have any right or claim to any such refund.

Clause VII.-- In the event of the Official Receiver quitting or being relieved of the office of Official Receiver or for any reason becoming incapable of further service in his said office, or dying, the security shall, if there shall have been no breach or default in all or any of the conditions herein before in Clause V hereof set forth and provided, and if there shall be no claim or demand outstanding against the Official Receiver in favour of Government, be reconveyed at his or their cost and expense to the said Official Receiver or to his lawful heirs, legal representatives or assigns as the case may be:

PROVIDED that the Government may, in its discretion, retain the security for a period not exceeding six months after the date on which the official Receiver quits the service of the Government or becomes incapable of further service in the said office or dies, for the purpose of ascertaining or satisfying itself that there has been no breach of default as aforesaid and that no claim or demand is so outstanding.

Clause VIII.- The forfeiture or reconveyance, as the case may be, of the Security Deposits shall not in any way affect, limit or extinguish any remedy or relief to which the Government may at any time be lawfully entitled against the said Official Receiver in respect of anything done or omitted to be done by him as Official Receiver , either before or after such forfeiture or reconveyance and nothing in this Security Bond contained shall be deemed to relieve the Official Receiver from any suit, prosecution or proceeding to which he may be liable under any law for the time being in force in respect of anything by him at any time done or omitted.

IN WITNESS WHEREOF the said Official Receiver has hereunto subscribed his name at _____ on the ____ day of----- 19 .

Signed by

(Name)

Official Designation.

1. _____

2. _____

Form No. 28

THIS INDENTURE made this----- day of----- 19 BETWEEN-----
 --- son of-----caste-----resident of----- (hereinafter called the
 mortgagor) of the one part and the Governor of the Punjab (hereinafter called the
 mortgagee) of the other part.

WHEREAS-----, son of-----, caste-----, resident of-----
 ----- (hereinafter called the Official Receiver) on the----- day
 of----- 19 appointed to and now holds and exercise the office of Official
 Receiver of the -----district.

AND WHEREAS in consideration of the said appointment and for the purpose of in
 part securing and indemnifying the mortgagee, his successors and assigns against
 all loss or damage that the mortgagee may, in any way, suffer by reason of the
 neglect of duty waste or embezzlement or otherwise of any property or part or parts
 thereof in charge of or in the care and custody of the said Official Receiver or his
 subordinates or agents and of giving effect to the Bond of even date by the
 mortgagor, he, the mortgagor, has agreed to convey by way of mortgage the
 hereditaments and premises described in the schedule hereunto annexed to the
 mortgagee.

Now this indenture witnesseth that in pursuance of the said agreement and
 in consideration of the said appointment of the Official Receiver the mortgagor
 do hereby grant convey and assign unto the mortgagee his successors and
 assigns all those hereditaments and premises situate in-----more
 particularly described and mentioned in the schedule and delineated in the map
 or plan hereunto annexed respectively together with all easements, rights
 and things appurtenant or reputed appurtenant thereto and all deeds puttas
 and instruments of title relating thereto and the estate, right, title, interest, claim
 and demand whatsoever of him the mortgagor into and upon the said hereditaments
 and premises and every part thereof. To Have and to Hold the same unto and to
 the use of the mortgagee, his successors and assigns for ever subject to the proviso
 for redemption hereinafter contained Provided always and it is hereby declared and it
 is the true intent and meaning of these presents and of the said parties hereto that if
 the said Official Receiver shall always duly perform and fulfil all the duties and
 obligations of his said office while he shall hold or

exercise the same as set forth in the Bond of even date herein before specified and also if the mortgagee, his heirs and legal representatives will pay and make good to the mortgagor his successors and assigns and to the superior officers of the said Official Receiver all losses and damages which he or they may have sustained or incurred in consequence of the failure of the said Official Receiver to perform and fulfil all the duties and obligations as set forth in the said Bond of even date (but subject always to the proviso hereinafter contained) the mortgagee shall and will at the request and cost of the mortgagor, his heirs or legal representatives reconvey and reassign the said hereditaments and premises hereby granted unto the mortgagor his heirs or representatives as he or they shall direct. And in the meantime and until default shall be made by the said Official Receiver in the due performance of his duties as aforesaid the mortgagor his heirs and legal representatives shall continue in possession of and in receipt of the rents and profits of the said hereditaments and premises. And the mortgagor do hereby for himself, his heirs, legal representatives and assigns covenant with the mortgagee his successors and assigns that he the mortgagor now has good right to grant the hereditaments and premises hereby granted or expressed so to be unto and to the use of the mortgagee his successors and assigns in manner aforesaid and that free from incumbrances and the mortgagor do hereby for himself his heirs legal representatives and assigns covenant with the mortgagee his successors and assigns that whenever in exercise of the power hereinafter reserved to the mortgagee his successors and assigns sale shall be made of the said hereditaments and premises hereby granted or expressed so to be or any part thereof the mortgagee his successors assigns or any other person or persons who may purchase the same their heirs legal representatives and assigns shall and may at all times thenceforth quietly possess and enjoy the same and receive the rents and profits thereof without any lawful eviction, interruption, claim or demand whatsoever from or by the mortgagor or any person rightfully claiming from under or in trust for him and that free from incumbrances. And further he the mortgagor and all other persons having or lawfully or equitably claiming any estate or interest in the said hereditaments and premises or any part thereof shall and will from time to time and at all times thereafter at his or their own costs during the continuance of this security and afterwards at the costs of the person or persons requiring the same do and

execute or cause to be done and executed all such acts deeds and things for further and more perfectly assuring the said hereditaments and premises unto and to the use of the mortgage his successors and assigns and other persons aforesaid in manner aforesaid as shall or may be reasonably required.

And it is hereby agreed and declared and the true intent and meaning of the parties hereto is that if default shall be made by the said Official Receiver in the due performance of his duties in such office or employment as aforesaid or in making good the damages, losses, costs, charges and expenses herein before mentioned and contained or any part thereof respectively then and in such case and immediately thereupon or at any time thereafter or from time to time as occasion shall require it shall be lawful for the mortgagee his successors and assigns or his or their officers and servants duly authorized in that behalf and notwithstanding the dissent or opposition of the mortgagor his heirs or legal representatives to enter into and upon and (whether in or out of possession) to make sale and absolutely dispose of the said hereditaments and premises hereby granted or expressed so to be or any part thereof by public auction or private contract and for such price or prices as to the mortgagee his successors or assigns shall appear reasonable with liberty to buy in the same or any part thereof and for effectuating any such sale it shall be lawful for the mortgagee his successors or assigns to do make and enter into all necessary acts deeds conveyances and assurances whatsoever. And it is hereby further declared by and between the parties to these presents that such deeds, acts and conveyances and assurances done, made or executed under or by virtue of these presents shall be good, valid and effectual whether the mortgagor, his heirs or legal representatives shall or shall not join therein or sent thereto and shall bind the mortgagor, his heirs or legal representatives and all other persons claiming under him or them.

And it is hereby further declared that the power of sale herein before contained shall and may be exercised and that all things to be done in pursuance thereof shall be good valid and binding notwithstanding that no decree of any court of law or equity for bearing or closing the equity of redemption shall have been previously obtained but this power of sale is given in addition to the ordinary remedies of foreclosure. And that the receipt in writing of the District Judge of _____ for the time being for all moneys

to arise from any such sale or sales shall be good and sufficient discharge to the persons paying the same and shall exonerate such persons from all responsibility in respect of the application or non-application of the same nor shall he or they be bound to enquire whether the sale was regular or authorised under these presents Provided always and it is hereby agreed and declared by and between the mortgagor and the mortgagee that on the vacation by the said Official Receiver of his said office of Official Receiver as aforesaid the above mentioned hereditaments and premises shall not be at once reconveyed to the mortgagor his heirs or legal representatives but shall be and remain mortgaged with the mortgagee for the term of six months as security against any loss that may have been incurred by the mortgagee owing to the neglect or default of the said Official Receiver and which may not have been discovered until after the vacation of his appointment by the said Official Receiver Provided always that the reconveyance at any time of the hereditaments and premises shall not be deemed to effect the rights of the mortgagee to take proceedings against the mortgagor or the Official Receiver, aforesaid, in case any breach of the conditions set forth in this deed of the said Bond of even dates shall be discovered after the reconveyance of the said hereditaments and premises.

IN WITNESS whereof the parties to these presents have hereunto set and subscribed their hands and seals on the dates hereinafter mentioned, respectively.

Signed, sealed and delivered by the said----- on the-----
----- day of-----19, -----
-----in the presence of -----
----- witness -----
-----.

Signed sealed and delivered by ----- for and on behalf of
the Government on the ----- day of -----
----- 19 .

FORM NO.29

WHEREAS ----- son of ----- Caste -----resident of -----
-----in the ----- district in the Punjab has been appointed to the
office of Official Receiver in the -----district in the Punjab upon
conditions inter alia that he does furnish proper security in the sum of *[Rs.30,000/-
(Rupees Thirty Thousand only)] for the due and faithful discharge of his duties while
employee in the said office or in any office attached or incident to the same
(hereinafter described as the said Office) and for the due accounting for all property
by him at any time held or received by virtue of the said office.

AND WHEREAS _____ son
of _____ Caste _____ resident
of _____ in the _____ district in the Punjab
(hereinafter on his own behalf and on behalf of his heirs, legal representatives,
administrators, executors and assigns called the surety) has agreed to stand surety
for the due performance as aforesaid of the duties of Official Receiver by the
_____ aforesaid.

NOW THEREFORE THIS SECURITY BOND WITNESSETH as follows, that is to
say:-

Clause I.- In this Security Bond and for the purposes of each and all of the provisions
thereof the expression-

(a) "Government" means the Governor of the Punjab acting by and through the
District Judge of _____.

(b) "Official Receiver" means _____ son
of _____ caste _____ resident
of _____ in the
_____ district of the Punjab.

(c) "Property" includes cash, coin, currency notes, stock notes, cheques, postal
money-orders, hundis, promissory notes, bills of exchange, Government and other
securities, scrip, shares, bullion, jewellery, precious stones, crops, cattle, documents,
records, accounts, vouchers, books, papers and all other property whatsoever both
movable and immovable.

(d) Security means the sum of money by this Security Bond secured and assured
to Government for the due and faithful discharge of his duties by the Official
Receiver and for the due accounting for

all property by him at any time held or received by virtue of his said office.

Clause II.- The Official Receiver and the Surety are held and firmly bound to Government in the sum of *[Rs.30,000/-(Rupees Thirty Thousand only)] as security for the due and faithful discharge of the duties of the said office, that is, he, the Official Receiver, shall from time to time and at all times during the continuance of his said office work and sufficiently perform and execute all and singular the duties of his said office or belonging to him as such officer or belonging to or in any way imposed upon him by reason of his being such officer and conduct himself with fidelity, integrity and punctuality in and concerning the matters and things which shall be entrusted to him as such officer in respect of such duties as aforesaid and do and shall well and truly pay and apply all property as shall from time to time come to his hands by virtue of such office or duties as aforesaid or to the hands of his deputies, assistants, agents, or other persons acting under his authority or on his behalf or any of them respectively and do and shall also well and truly pay and apply property whatsoever which he holds or become liable to pay or apply for any neglect or misbehaviour in his said office or in respect of his said duties and do and shall at all times when duly required produce and render true and correct accounts of the receipt, payment and application of all property whatsoever as shall so come to the hands of him, the Official Receiver, as aforesaid, or to the hands of his assistants or other persons acting under his authority or on his behalf with proper and sufficient vouchers for the due application thereof and shall not in any wise take to his own use, lend or embezzle, make away with, neglect to account for, lose or hazard any such property, as aforesaid, or any part thereof and do and shall at the expiration or other termination of his said office or duties deliver up to the person duly authorised to receive the same all books, papers, documents and accounts relating to his said office or duties and do and shall pay and deliver to the person or persons, duly authorised, to receive the same the balance (if any) of the property as aforesaid remaining in the hands of and due from him the said Official Receiver.

Clause III.-- The surety has executed and registered a deed of mortgage, dated _____ date of _____ 19 of the property in the said deed of mortgage set forth and specified as security for the

due and faithful performance of his duties by the Official Receiver and of the due accounting by him of the property held by him as aforesaid.

Clause IV.-- This Security Bond shall be deemed to be and be a bond entered into under the orders of the Government for the performance of a public duty within the meaning of Section 74 of the Contract Act, 1872 and the whole security shall be liable to be forfeited to the Government in the event of any breach by the Official Receiver of all or any of the terms and conditions thereof.

Clause V.-- The Government or any officer having authority in this behalf under it shall, subject to the provisions of clauses VI and VII hereinafter appearing hold and retain the security so long as the following conditions obtained, that is to say:-

(a) The Official Receiver shall, during his continuance in the office aforesaid faithfully, diligently and honestly discharge all and singular his duties, as laid down in Clause II hereof and shall not at any time quit or neglect the performance of the said duties or resign his said office without giving _____ month's notice in writing to the District Judge for the time being of _____ of his desire to resign the said office.

(b) The Official Receiver shall during the continuance of his said office indemnify and save harmless the Government from and against all losses costs, damages and expenses which shall or may at any time or times hereafter be sustained by Government or any officer of Government from or through the neglect, failure, misconduct, disobedience omission or insolvency of the said Official Receiver or any person serving under or employee by him or from or through the consuming, wasting, embezzling, stealing, mis-spending, losing , mis-applying or otherwise dishonestly or negligently or through over sight or violence making away or parting with any property or part or parts thereof by any person or persons whomsoever while the Official Receiver shall continue to act in any such office.

Clause VI.-- In the event of any breach of or default in all or any of the conditions herein before in the preceding clause set forth and provided the Government may realize, take and forfeit to itself the whole amount of the Security:

PROVIDED that the Government may, instead of taking and forfeiting to itself the whole amount of the Security realize and retain only so much thereof as it may in its absolute discretion, deem adequate to compensate, reimburse or indemnify it in respect of the losses or damage or inconvenience sustained by reason of the breach or default committed, pay any balance thereof to the surety; but neither to the Official Receiver nor his or their lawful heirs representatives or assigns shall have any right or claim to any such payments.

Clause VII.-- In the event of the Official Receiver quitting or being relieved of the office of Official Receiver or for any reason becoming incapable of further service in his said office or dying the property secured, shall, if there shall have been no breach or default in all or any of the conditions herein before in clause V hereof set forth and provided, and if there shall be no claim or demand outstanding against the Official Receiver in favour of Government, be reconveyed at his or their cost and expense to the said surety or to his lawful heirs, legal representatives, or assigns as the case may be:

PROVIDED that the Government may , in its discretion, retain the Security for a period not exceeding six months after the date on which the Official Receiver quits the service of the Government or becomes incapable of further service in the said office or dies, for the purpose of ascertaining or satisfying itself that there has been no breach or default as aforesaid and that no claim or demand is so outstanding.

Clause VIII.-- The forfeiture or reconveyance, as the case may be, of the property secured, shall not in any way, affect, limit or extinguish any other remedy or relief to which the Government may, at any time, be lawfully entitled against the said Official Receiver in respect of any thing done or omitted to be done by him as Official Receiver, either before or after such forfeiture or refund and nothing in this Security Bond contained, shall be deemed to relieve the Official Receiver from any suit, prosecution or proceeding to which he may be liable under any law for the time being in force in respect of anything by him at any time done or omitted.

IN WITNESS WHEREOF the said Official Receiver and the surety have hereunto
subscribed their names at _____ on the
_____ day of _____
_____ 19 .

Signed by _____

Official Receiver.

Surety.

Witnesses-

1. _____

2. _____

PART C -- SUPERVISION AND CONTROL

- 1. Annual inspection.--** Insolvency Judges and District Judges should inspect the Official Receiver's work once a year.
- 2. Annual remarks.--** Annual remarks should be recorded on the work and character of Official Receivers by Insolvency Judges and District Judges.
- 3. Cash book should be put up daily before the Judge.--** The Cash Book (form 15) should be put up before the Insolvency Judge at the beginning of each day with the counterfoils of all receipts issued during the previous day, except when the Official Receiver is away from headquarters, in which case he should put up the Cash Book on the day following that of his return to the headquarters.
- 4. Cash book receipt side should be checked by the judge.--** The Insolvency Judge should check each entry on the receipt side with the corresponding counterfoil in the Receipt Book or the relevant entry in the Sale List (No. 8) and append his signatures at the end of the day's entries in the Cash Book as a token of his having carried out the check.
- 5. Cash book--Expenditure side should be checked by the Judge.--** The Insolvency Judge should similarly check the entries on the expenditure side of the Cash Book with the payment vouchers and counterfoils of cheques and sign at the end of the day's entries on this side of the book also as a token of his check.
- 6. Monthly inspection of Demand and Collection Register.--** The Demand and Collection Register (Form No. 7) should be inspected by the Insolvency Judge on the first working day of each month and it should then be signed and dated by him.
- 7. Dividend register should be checked by the Judge whenever dividend is declared.--** The Dividend Register No. 19 shall be put up before the Insolvency Judge when each dividend is declared and the entries shall then be examined, signed and dated by him at the end.

8. Monthly comparison of Pass Book with cash book by the Judge.-- The Insolvency Judge should also compare the Pass Book entries with the Cash Book at the beginning of each month and note the fact of his having done so in the Cash Book.

PART D -- GENERAL INSTRUCTIONS

Official Receivers' Records

1. A separate record for each case to be kept.-- The official Receiver should maintain a separate record for each case showing in detail what action was taken on each day so as to provide a continuous history of the whole administration.

2. The Receiver to record all orders and depositions.-- All orders on these records should be written out by the Official Receiver in his own handwriting and the practice of leaving it to clerks to examine the parties or witnesses or to fix dates and to record any orders must be given up.

3. Parts A and B of the record.-- The record should be maintained in two parts--

Part A for proceedings under section 80 of the Provincial Insolvency Act.

Part B for all other proceedings.

4. Records and registers to be made over to the court on completion.-- The Records and Registers of the Official Receivers when complete should be made over to the Court for being made a part of the Court Records and being consigned to the Record Room along with them.

5. These records are public records and should not be left with the Receiver when no longer required.-- The practice by which all such Records are allowed to remain in the hands of the Official Receiver himself and to be treated more or less like his personal property should be given up. These records relate to proceedings of a public nature and must be treated as public documents.

6. Court not to make over its own record to Receiver.-- The practice by which the Insolvency Courts in some Districts hand over their record to the Official Receiver and allow him to record his proceedings also in it is very objectionable as the Court cannot keep in close touch with the progress of administration when it makes over the whole of its own record to the Official Receiver and retains nothing itself.

7. Index of papers to be maintained.-- An index of papers in form No. 242, as given at page 2 of Part A-III, Rules and Orders, Volume VI-A, should be maintained for all records.

8. The production of records of decided cases from the Record Room should not ordinarily be allowed.-- The Official Receivers should not send for the records of decided cases from the Record Room freely or frequently as they are liable to damage in transit and use. The object in most cases should be served by calling upon the parties concerned to produce certified copies of the relevant documents and the tendency to send for the whole record should be discouraged in all cases except when it is essential to prove any documents in original.

Destruction of Records

9. List of records and registers to be preserved in perpetuity.-- The following Registers and Records shall be preserved in perpetuity:-

Form No. 1. Index Register.

Form No. 2. Register of Immovable Property.

Form No. 7. Demand and Collection Register.

Form No. 8. Sale List of Property.

Form No. 9. Counterfoils of Receipts.

Form No. 14. Register of Receipts and Administration Charges.

Form No. 15. Cash Book.

Form No. 17. Ledger Account.

Form No. 18. Deposit Register.

Form No. 19. Dividend Register.

Form No. 20. List of Office Furniture.

Counterfoils of all cheques.

All audit objections and replies thereto.

10. List of registers to be preserved for 50 years.-- The following Registers shall be preserved for fifty years from the date of the last entry:-

Form No. 4. Register of Movable Property.

Form No. 5. Register of Debts due to the Insolvent.

Form No. 6. Register of Title deeds.

11. List of record to be preserved for 20 years.-- The following shall be preserved for twenty years from the date of the last entry and shall then be destroyed:-

Form No. 10. Pay sheet of Establishment.

Form No. 11. Contingent Bills.

Form No. 12. Permanent Account Register.

Form No. 13. Stamp Register.

Form No. 16. Register showing closing balances.

Leases

12. Oral leases not allowed.-- The practice of giving out leases orally is objectionable. It is imperative that Official Receivers should in all cases obtain a regular lease-deed from the lessee concerned.

13. Lease in favour of insolvent not approved.-- The practice of leasing out the land to the insolvent himself for a cash consideration to be paid by him is not approved. It is seldom that the insolvent can pay the lease money in such cases. The result is that the insolvent is in effect left entirely undisturbed in the enjoyment of his property without paying anything to the creditors.

14. Court officials not to bid at sales held by Receiver.-- The officials of Insolvency Courts are strictly prohibited from bidding for or purchasing anything at sales held by Official Receivers.

15. Sales by Receiver require no confirmation by court. Sales to be conducted personally by Receiver except as provided.-- Official Receivers have full powers to sell all or part of insolvent's property without confirmation by the Court. Any person aggrieved by the Official Receiver's action may

appeal to the District Judge as prescribed by law. Such sales should be conducted by Official Receivers personally. On no account should such sales be carried out by Official Receivers' clerks except in cases where the property to be sold is situated at a place difficult of access when it may be sold by the Official Receiver's clerk, provided that---

- (a) the estimated value of the property does not exceed Rs. 2500; or
- (b) the Judge of the Insolvency Court certifies that for the Official Receiver to conduct the sale in person would involve an expenditure of time and money incommensurate with the importance of the sale ;
- (c) the Official Receiver himself remains responsible for the proper carrying out of the proceedings.

16. On sale Receiver should execute a deed of sale and not issue a sale certificate.-- When a sale has been held the correct procedure is not for the Official Receiver to issue a certificate (as in the case of a Court sale) but to execute a proper deed of conveyance conforming with the requirements of the law regarding stamp duty and registration.

17. Statement of sales to be submitted to Court every month.-- The Official Receivers should submit to the Court a statement of sales conducted by them on the first working day of each month for the sales conducted during the previous month. It shall be the duty of the Court to check this statement with the entries in the Cash-book and the Demand and Collection Register in order to satisfy itself that the amounts realized have been brought to account and that the balances are being watched through the Demand and Collection Register. The statement of sales shall be submitted in Form No.1 given at the end of this Chapter.

Progress Reports

18. Receiver to submit to court after six months progress report of the administration of estate.-- Each Official Receiver must, after six months from the date on which an order of adjudication is made, submit to the Court a report in Form No.2 showing what progress has been made by him to realize and distribute the assets of the insolvent estates entrusted to him.

19. An estate should be wound up within a year.-- All estates should ordinarily be wound up within one year from the date of the order of adjudication. After a year the case must be reported to the District Judge with a special note to explain why the case could not be finished within the period mentioned above.

History Sheets

20. History sheet of old cases.-- The Official Receivers shall in addition to the progress reports mentioned above submit to the District Judge each month through the Insolvency Judge, a detailed history sheet in Form No. 3 given at the end of this Chapter for the six oldest cases under administration.

Engagement of Lawyers

21. Engagement of a counsel by a Receiver subject to previous sanction of Court.-- The sanction of the Insolvency Judge to the appointment of an Advocate and his remuneration shall be obtained under section 59 of the Provincial Insolvency Act before any counsel is engaged by an Official Receiver.

22. Official Receivers not allowed any fees for cases conducted by them.-- The Official Receivers cannot charge any fees themselves whenever they appear in Court in cases entrusted to them as Official Receivers.

Miscellaneous Instructions

23. Pay of insolvent Government servant should be attached through the Head of Department.-- The pay of a Government servant who has been adjudged an insolvent must be attached through his Head of Department so that his superior officers may not be kept in ignorance of his insolvency.

Note:- See rule 5.9 and 5.10 of the Punjab Financial Rule Volume-I read with appendix 12 printed in Punjab Financial Rules Volume-II.

5.9 (a) The extent to which the emoluments of a Government servant are exempt from attachment for debt is laid down in section 60(1) of the Code of Civil Procedure 1908. The section is reproduced in Appendix 12.

(b) The following instructions should be observed in recovering amounts from Government servants on account of attachment orders issued by courts:-

(1) The maximum amount attachable by a Civil Court is calculated on the amount earned and not on what remains after satisfying any debts due to Government on account of advances taken under rule.

(2) Any deduction which may have to be made on account of subscriptions to provident funds recognised by Government, taxes on income payable by the Government servant and debts to Government should be made from the non-attachable portion of Government servant's salary.

(3) Recoveries in satisfaction of attachment orders should be made in the order in which they are received and should be made by the head of the office in the case of officials. In the case of officers the recoveries should be made by the Treasury Officer.

Note.1 The cost, if any, of remittance to a court of money realized under its attachment order should be deducted from the amount realized and the net amount remitted to the Court.

Note.2 Cases may occur in which the judgment-debtor does not sign the acquittance roll and intentionally allows his pay to remain undischarged, or the judgment-debtor being an officer or Government servant permitted to draw his pay on a separate pay bill, may refrain from preparing his pay bill and drawing his pay regularly in order to evade payment on account of an attachment order issued by a Court of Law. In such circumstances the head of the office or, in the case of Government servant drawing pay on separate bill, the Administrative Officer of the department concerned may draw the pay of the judgment-debtor in satisfaction of the attachment order subject to the prescribed restrictions and remit the amount to the Court concerned. The amount drawn should be charged in the accounts, the particulars of the attachment order being cited in the acquittance roll or the pay bill, as the case may be as an authority for the charge and the court's receipts for the amount should be filed with the attachment register.

5.10 The liability of pensions to attachment by a Civil Court, is regulated by section II of Act XXIII of 1871, which runs as follows:-

"No pension granted or continued by Government on political considerations, or on account of past services or present infirmities or as a compassionate allowance, and no money due, or to become due, on account of any such pension or allowance, shall be liable to seizure, attachment or sequestration by process of any court in the Provinces at the instance of a creditor for any demand against the pensioner, or in satisfaction of a decree or order of any such Court.

24. Receiver to guard against entry of bogus creditors in the schedule.-- It has come to notice that a common trick resorted to by some insolvents is to include the names of several near relatives in the schedule as creditors so as to reduce the amount available for the genuine creditors. The Official Receivers should remain on guard against this practice.

25. Balance of one estate not to be used for administration of another estate.-- The practice of spending money out of the general balance of other estates in hand for the administration of any estate which has no balance of its own, is objectionable, and should not be resorted to.

26. Receiver can not use the service of process servers.-- The Official Receivers are not entitled to use the services of the process-serving establishment.

27. The Official and Special Receiver shall correspond in matters relating to his duties and office with the higher authorities only through the Insolvency Judge.

General Irregularities.

28. A list of common irregularities noticed in the work of Receivers.-- The attention of all Official Receivers is drawn to the following defects which are generally observed in their accounts and procedure:-

(a) The sale price of property sold is not always realized promptly and in some cases no part of the price is received at all on the date of sale, with the result that purchasers frequently go back on their bids and fresh sales have to be held.

(b) The Administration of the Estates is kept pending even when the amount in hand is not sufficient to declare any practical dividend. Steps should be taken to have the amounts lapsed to Government in such cases and the estate wound up.

- (c) The documents produced in proof of debts are not marked or exhibited with the result that sometimes the same document is used by the creditor to prove the same debt more than once.
- (d) Official Receivers retain undelivered cheques in their hands for long periods. All such cheques should be cancelled if the creditors concerned do not turn up within the normal period of three months during which a cheque remains current.
- (e) The permanent advance is not recouped regularly at the end of each month.
- (f) Applications for the sanction of the High Court of the entertainment of the Official Receiver's Establishment are not submitted in time.

FORM NO. 1.

STATEMENT OF SALES.

Month-----

S.No.	Name of estate	Description of property	Amount realised	Reference to page of Cash Book	Balance due	Reference to page of Demand and Collection Register
			Rs. P.		Rs. P.	

FORM NO. 2

PROGRESS REPORT OF INSOLVENTS' ESTATES

District-----

Period of report-----

Serial No.

Name of insolvent.

Date of adjudication.

Assets

1. Total estimated value of assets.
2. Assets realized hitherto.
3. Assets realized during period of report.
4. Estimated value of assets yet unrealized.

Proof of debts

1. Amount of debts in petition.
2. Debts proved hitherto.
3. Debts proved during period of report.

Distribution

1. Total liabilities.
2. Amount distributed as dividend hitherto.
3. Amount distributed during period of report.
4. Balance in hand.

Remarks

1. Official Receiver's explanation as to delay, etc.
 2. Remarks of Insolvency Judge.
-

FORM NO. 3.

HISTORY SHEET

Name of Estate _____

Date of adjudication _____

Date	Abstract of proceedings

Signature of the Official Receiver.

CHAPTER 6
PROBATE, ADMINISTRATION AND
SUCCESSION CERTIFICATES

PART A -- PROBATE AND ADMINISTRATION

Reference to Succession Act, 1925.--

The present law of Probate, Administration and Succession Certificates is contained in Succession Act of 1925 as further amended by Act XI of 1926, Acts X, XII and XVIII of 1927 and Acts XVIII and XXI of 1929 and XVII of 1931. The references below are to the Act of 1925.

2. Inventory of property and assets and debts and accounts to be put in.--

A person to whom a grant of Probate or Letters of Administration is made is required to file a full and true inventory of the property and credits of the estate and of all the debts owing by any person in Court within six months, or such further time as the Court may allow from the date of the grant and to render accounts within one year, or such further time as the Court may allow (section 317).

3. Form for grant of Probate and Letters of Administration.--

The form in which the grant of Probate is to be made will be found in Schedule VI to the Act and that for the grant of Letters of Administration in Schedule VII.

4. Copy of Section 317 prescribing penalty for not filing inventory and accounts to be given.--

The duty of an Executor or Administrator in regard to the exhibiting of an inventory and account and the penalty to which such Executor or Administrator becomes liable for omission to comply with the requisition is detailed in section 317 of the Act, and this section is printed in small type at the foot of the form of grant prescribed by the High Court. If for any reason the printed form is not used a copy of section 317 should be delivered to the person receiving the grant so that there may be no excuse for failure to comply with the requirements of the law.

5. Probate or Letters should be surrendered on revocation of grant.--

Section 296 provides that when a grant is revoked or annulled under section 263 the Probate or Letters of Administration must be surrendered to the

Court by the person to whom they were granted and a penalty is prescribed for failure to comply with this requisition.

6. Case in which Probate or Letters are conclusive in the whole of Pakistan.--

In respect of estates in which the value of the property affected beyond the limits of the Province does not exceed Rs. *[1,00,000] and the deceased at the time of his death had his fixed place of abode within the jurisdiction of a District Judge the grant of Probate or Letters of Administration by the District Judge has effect throughout Pakistan (section 273).

7. Procedure where Probate or Letters have to take effect throughout Pakistan.-

Section 274 of the Act prescribes the transmission to High Courts and District Judges of certificates of grants having effect throughout Pakistan.

*[Where the grant of Probate or Letters of Administration has or have been made by a High Court, it shall send a certificate thereof to each of the other High Courts; and where such a grant has or have been made by a District Judge, to the Lahore High Court and to each of the other High Courts.]

8. Amount and locality of assets beyond the province to be stated.--

Sections 276 and 278 of the Act require applicants to state the amount and locality of assets situated *[both within] and outside the Province.

9. Applicants to state in some cases whether Probate or Letters have been applied for elsewhere.--

Section 279 requires applicants, in certain cases, to state whether or not application for Probate or Letters of Administration has been made to any other Court.

10. Case where copy of citation to be issued outside Province.--

Section 283 directs the issue of a copy of the citation outside the Province to the District Judge in whose jurisdiction the property is situated.

***[11. Inventory to include property in any part of Pakistan in certain cases.--**

Section 318 directs the inclusion in the inventory of the deceased's assets of all his properties in any part of Pakistan, where the grant has been made having effect throughout Pakistan.]

***[12. Certificate where Probate or Letters are effective throughout Pakistan.--**

When a grant of Probate or Letters of Administration is made by a

District Judge and it is intended that the grant is to have effect throughout Pakistan, a certificate in the following terms should be endorsed at the foot of such grant, as required by section 273, namely:-

"Certified that the value of the property effected beyond the limits of the Punjab by the foregoing grant does not exceed ten thousand rupees.

(Sd.)-----,

District Judge.]"

13. Rules framed under sections 223 and 226 of the Act.--

In exercise of the powers conferred by sections 223 and 236 of the Succession Act, 1925 (XXXIX of 1925) the Governor-General in Council is pleased to made the following rules:-

1. In these rules-

(a) "Share capital " includes stock; and

(b) "Trust business" means the business of acting as trustee under wills and settlement and as executor and administrator.

2. The conditions to be satisfied by a company in order to render it eligible for the grant of probate or letters of administration under the ***[Omitted] Succession Act, 1925, shall be the following namely:-

(1) The Company shall be either-

(a) a company formed and registered under the Companies Ordinance 1984, the Companies Act, 1913, or under the Companies Act, 1866, or under any Act or Acts repealed thereby, or under the Companies Act, 1882, or a company formed under any other Act of the Governor-General in Council or of the Pakistan Legislature, or

(b) a company constituted under the law of the United Kingdom of Great Britain and Northern Ireland or any part thereof, and having a place of business in Pakistan, or

(c) a company established by Royal Charter and having a place of business in Pakistan. *

(2) The company shall be a company empowered by its constitution to undertake trust business.

(3) The company shall have a share capital for the time being subscribed of not less than--

(a) Rs. 10 lakhs in the case of a company of the description specified in sub-clause (a) of clause (1) and

(b) 100,000 British Pounds in the case of a company of the description specified in sub-clause (b) of clause (1) of which at least one-half shall have been paid up in cash.

Provided that the Governor-General in Council may exempt any company from the operation of this clause.

PART B -- SUCCESSION CERTIFICATES

Introductory.-- The following instructions are issued regarding the grant of certificates for the collection of debts on succession which previously were dealt with under the Succession Certificate Act, 1889. The provisions of that Act are now incorporated in the Succession Act, 1925.

2. Civil Judges empowered to grant certificates.-- All Civil Judges of the first and second class have been invested with the functions of a District Court for the purposes of granting succession certificates by Punjab Government Notification No.781, dated 15th July 1914, which continues to be in force--(vide General Clauses Act, 1897, section 24).

Forum of Appeal.-- Applications under Part X of the Succession Act, 1925, will usually be dealt with by Civil Judges and appeals from their orders granting, refusing or revoking certificates will lie to the District Judge. When a District Judge finds it necessary to deal with any application under the Act as an original Court the appeal will lie to the High Court under Section 384, sub-section (1) of the Act.

3. Turning to the procedure prescribed by the Act the following points should be borne in mind-

(a) **Succession Certificate, etc., should be obtained by an heir for recovery of debts due to a deceased person.--** A Civil Court is prohibited in all cases from passing or executing a decree in a suit by or upon the application of a person claiming to be entitled to recover a debt or decree in favour of any person deceased, without the production of a probate or letters of administration, or a succession certificate granted under the Succession Act of 1889, or the Succession Act of 1925, or a certificate granted under the Administrator-General Act, III of 1913. In this connection attention is also drawn to the provisions of Order VII, Rule 4, of the Code of Civil Procedure, as to plaintiff's suing in a representative character. The grant of a probate, letters of administration or a succession certificate is not, however, an essential condition precedent to the institution of a suit, but the

requisite probate, letters or certificate must be produced before the passing of a decree.

In the case of a Joint Hindu family when property passes by survivorship, no succession certificate is necessary (ef., 20 P.R., 1901)

(b) **Definition of debt.**-- The word "debt" as used in section 214, sub-section (1), is defined to include any debt except rent, revenue or profits payable in respect of land used for agricultural purposes. The prohibition imposed on the Civil Courts does not therefore extend to Revenue Courts when dealing with suits under these heads (section 214, sub-section (2)).

Certificate for a fraction of the debt.-- There was a difference of opinion amongst the High Courts as to whether a certificate could be granted with respect to a fraction of a debt but now by Act XIV of 1928 grant of such a certificate is made legal.

(c) **Application for a Succession Certificate to be signed and verified. Its contents.**-- The particulars to be specified in an application for a certificate are specified in section 372, and every application requires to be signed and verified in accordance with the provisions of the Code of Civil Procedure applicable to plaints; and subsection (2) of this section prescribes the manner of dealing with allegations contained in the application which may be found to be false. As the application now partakes of the nature of a verified plaint, great care should be taken to insist on its being properly and concisely drawn up, and that it is complete in regard to the matters required by section 372.

(d) **Manner of inquiry and security to be taken from the grantee of certificate.**-- The proceedings in hearing applications may be summary to some extent, in that intricate questions of law and fact need not be gone into, the person having the best title prima facie being granted the certificate. At the same time, the court is not relieved of the obligation to hear the parties and take sufficient evidence to enable it to decide who is the person best entitled to a certificate, as well as all other points which may ordinarily be necessary to enable it to dispose of the petition. If the summary power conferred by section 373, subsection (3), is followed in any case, the court is bound to demand

security from the person to whom it proposes to grant the certificate as a condition precedent to such grant.

(e) **Objections to application. Procedure in case of several claimants for a certificate.--** Persons objecting to an application by another person can be heard without themselves becoming applicants, but every person opposing an application who claims a certificate for himself, must file a proper application in the manner prescribed by section 372. Every such application must be disposed of by a separate order; but the question of right to a certificate among several applicants will generally be most conveniently heard in a single proceeding between the contending parties;

(f) **Points to be considered in deciding the cases of rival claimants.--** In deciding which of several applicants is entitled to a certificate, it is open to the court to consider the extent of interest and the fitness in other respects of the several applicants;

(g) **Application and certificate to contain details of debts and securities. Extension and amendment of the certificate.--** The debts and securities in respect of which a certificate is applied for must be detailed at length in the application and also in the certificate and the certificate must be limited in terms to the debts and securities specified in the application and also in the certificate-[section 372, sub-section (1), clause (f) and section (374)]. At the same time, the court is empowered (by section 376) to extend the certificate, on the application of the holder thereof, to any debt or security not originally specified therein, and otherwise to amend the certificate (section 378).

4. Form and contents of certificate.-- The particulars required in the certificate are specified in section 374, and the forms are prescribed by section 377, and will be found in schedule VIII. Courts should be careful to see that certificates are properly framed and that all necessary particulars and powers are duly inserted in the first instance, so as to obviate the necessity for subsequent amendment of the certificate.

5. Requisition of security from grantee of certificate.-- It has already been pointed out that, in any case in which a court proposes to grant a certificate upon summary inquiry, without determining any intricate question of

law or fact which may be involved, security must be taken under section 375, sub-section (1), from the person to whom it is proposed to grant a certificate before it is granted. The same remark applies to action under section 373, subsection (4), of the Act, namely, when there are more applicants than one for a certificate, and more than one of them are found to be interested in the estate. It is, however, open to the court to demand security in any other case.

6. Court-fees in cash on application for a certificate or for its extension.--

Attention is drawn to the provisions as to court-fees contained in section 379 of the Succession Act, 1925, as substituted by the West Pakistan Amendment Ordinance No.XXXI of 1965. Where the District Judge allows an application for the grant of a certificate or for the extension of certificate, he shall calculate the amount of court-fee payable under the Court Fees Act, 1870, on the certificate or the extension of certificate and shall not grant the certificate or the extension of the certificate until the Court-fee so calculated has been paid by the applicant.

The amount of court-fee should be calculated according to the law in force on the date of the application, and it is not affected by any subsequent change in the law.

No specific procedure for obtaining or sale of the court-fee by or to the applicants for the grant of succession certificates has been prescribed and the general procedure in this behalf has to be followed.

#[7. Conclusiveness of certificate.-- A succession certificate under the Act has effect throughout Pakistan (section 380).]

8. Revocation of certificate.-- Provision is made in section 383 for revoking **#[Succession] Certificate** on certain grounds which are specified.

9. Grant of Probate or Letters supersedes succession certificate.-- Under Section 215, a grant of Probate or Letters of Administration, supersedes a **#[Succession] Certificate** granted under Part X of the Succession Act, 1925, or under the Succession Certificate Act, 1889.

10. Decision in Succession Certificate proceedings does not operate as res judicata.-- By Section 387 of the Act, no decision, given in dealing with an application **#[for the grant of a Succession Certificate]** under the

Act, upon any question of right between any parties, bars the settlement of the same question by a competent Civil Court.

11. Surrender of the certificate if it is invalid or has been superseded.-- By section 389, the holder of a Succession Certificate, which has been superseded or is invalid from any of the causes mentioned in section 386, is bound to deliver it up on being required to do so by the court which granted it and may be punished for wilfully or without reasonable cause omitting to do so.

PART C -- ADMINISTRATION OF THE ESTATES OF DECEASED MILITARY OFFICERS

1. Introductory.-- The following directions are issued on the subject of the administration of the estates of Military Officers dying [#][during] service, and the course to be pursued by District Officers on the occasion of the death of a Military Officer in Civil employ.

2. Reference to law.-- The law is contained in the Regimental Debts Act, 1893, 56 and 57 Vic., Chap. 5, and in the Royal Warrant and Regulations made under the Act.

3. Committee of adjustment, its appointment and duty.-- The distribution of the effects of a Military Officer dying [#][during] service pertains to the Military Department, and a special agency for dealing with the estate is provided in the appointment of the Committee of Adjustment. The appointment of the Committee of Adjustment rests with the Military authorities, and it is the duty of the Committee to secure the effects of the deceased.

4. Duty of District Officers.-- District Officers are not required by law to interfere in any way with such estates. They will, of course, when duly required, lend all proper aid to the Committee of Adjustment. On the occasion of the death of a Military Officer in civil employ, the Deputy Commissioner of the District should immediately report the fact, through the Commissioner, to the Military Officer Commanding the District, retaining the property, if necessary, under his charge until a Committee of Adjustment has been appointed. All further steps will be taken by the Military authorities.

PART D -- THE ADMINISTRATION OF ESTATES OF CITIZENS OF FOREIGN COUNTRIES DYING IN PAKISTAN

Attention is drawn to the following Notification of the Central Government in this connection:-

Central Government Notification in the Home Department No. F. 620/32, dated the 25th July, 1932 as amended by F. 594/36, dated the 3rd September 1936:-

In exercise of the power conferred by section 57 of the Administrator-General's Act, 1913 (III of 1913) and in supersession of the Notification of the Government of India in the Home Department, No. 270, dated the 11th February, 1903, the Governor-General in Council is pleased to direct that where a subject of a state specified in the schedule hereto annexed dies in *[British India], and it appears that there is no one in *[British India], other than the Administrator-General, entitled to apply to a Court of competent jurisdiction for letters of administration of the estate of the deceased, letters of administration shall, on the application to such Court of any Consular Officer of such state, be granted to such Consular Officer on such terms and conditions as the Court may, subject to the following rules, think fit to impose, namely:-

(1) Where the deceased has not left in *[British India] any known heirs or testamentary executors, by him appointed, the local authorities, if any, in possession of the property of the deceased, shall at once communicate the circumstances to the nearest Consular Officer of the state of which the deceased was a subject in order that the necessary information may be immediately forwarded to persons interested.

(2) Such Consular Officer shall have the right to appear, personally or by delegate, in all proceedings on behalf of the absent heirs or creditors of the deceased until they are otherwise represented.

Schedule

1. United States of America.
2. Argentine Republic.

3. Belgium.

4. Costa Rica.

5. Denmark.

6. Netherlands.

7. Persia.

8. Peru.

9. Poland.

10. Sweden.

CHAPTER 7

PRESERVATION OF WILLS

PART A -- RULES

Punjab Government Notification No. 2649-Judicial, dated the 21st January 1929, as amended by No. 15397-Judicial, dated the 23rd April, 1929, and No. 4649-J-41/43006, dated 31-7-1941, prescribes the following Regulations for the preservation and inspection of Wills, under Section 294 of the Indian Secession Act, 1925.

1. Preservation and custody by District Judge granting Probate or letter.--

Every District Judge shall file and preserve all original Wills of which probate or letters of administration with the Will annexed may be granted by him.

2. Fire-proof box to be provided.--

For the preservation of such Wills each District will be supplied with a fire-proof box, which shall be kept for safe custody in the Government Treasury, or, where the Treasury is situated at a distance from the court, at such other place as the District Judge considers to be adequately protected in all respects.

3. Action to be taken before depositing the will in the box.--

When probate or letters of administration have been granted by the District Judge as aforesaid, the Will shall be detached from the file of proceedings relating to the grant of such probate or letters of administration, and after being endorsed with the name of the Testator, the date of the Will, the date of granting probate or letters of administration, the names and description of the persons to whom probate or letters of administration have been granted, the number of the file relating to the Will in the General District Register, and the number of the Will in the Register of Deposited Wills, shall be deposited in the fire-proof box.

4. Register of deposited Wills, Index.--

The District Judge shall keep in English a Register of Deposited Wills, which shall be in the following form, and shall contain the particulars endorsed on the deposited Wills. An

alphabetical index shall be prepared at the end of each year to the entries made in the Register:-

S.No. of Will	Number of file in District General Register	Date of execution of Will	Date of granting probate or letters of administration	Persons to whom probate or letters of administration have been granted	Name of testator	Remarks

5. Procedure for obtaining inspection of the register.-- Any person desirous of inspecting the Register of Deposited Wills shall be permitted to do so on his presenting an application to that effect to the District Judge. Such application shall be written on a stamp paper of the value of one rupee, and shall set forth the name, residence and occupation of the applicant with his reason for desiring to inspect the Register.

6. Procedure for obtaining inspection of the Will.-- Any person desirous of inspecting a deposited Will shall be permitted to do so on his presenting an application to that effect to the District Judge, accompanied with a fee of one rupee. The application shall be written on a stamp paper of the value of one rupee, and shall set forth the particulars specified in the preceding rule.

7. Hour and manner of inspection.-- The inspection of the Register of Deposited Wills or of a deposited Will, may be made between the hours of 11 A.M. and 3 P.M., on every day except authorized holidays, and shall take place in the presence of the District Judge or of an officer exercising the powers of a Civil Judge, deputed by the District Judge for the purpose. The applicant shall not be permitted, while making the inspection, to have pen and ink in his possession, but he may be allowed the use of pencil and paper for purpose of taking notes.

8. Procedure for obtaining copy of the Will.-- Any person desirous of obtaining a copy of a deposited Will shall present an application to that effect to the District Judge, accompanied with a fee of five rupees. Such application shall be written on a stamp paper of the value of two rupees, and shall contain the name, residence and occupation of the applicant, with the

interest, if any which he has in the Will, or his reason for applying for a copy. The copy shall be made at the expense of the applicant, and shall be certified under the seal and signature of the District Judge.

9. Application for inspection of copies to be placed on record and noted in the register of wills.--

Applications for inspections or copies shall be filed with the proceedings connected with the grant of probate or letters of administration of the Will to which they relate; and in the Register of Deposited Wills an entry shall be made in the column headed "Remarks"--

"Inspected by on

19-----, or, "copy given to", as the case may be.

10. Fees realized how to be credited. Expenses how to be met.--

All fees other than copying fees realised in cash under these regulations should forthwith be credited into the Treasury under the head #[1200000-Receipts from Administration and Other Functions; 1230000-Law & Order Receipts; 1231000-Justice; 1231002-Justice Court Fees realised in cash (73)]. The expenditure required by the District Judge for the preservation and inspection of the Wills under his custody, may be drawn in the same manner as ordinary contingent expenditure.

11. Foregoing rules also apply to High Court granting probate or letters.--

The foregoing rules shall apply *mutatis mutandis* to Wills of which probate or letters of administration with the Will annexed may be granted by the Lahore High Court, Lahore.

PART B -- KEYS OF WILL SAFES

1. Inconvenience and expenses resulting from loss of keys.-- Several instances have occurred in which the keys of the iron safes, provided for the custody of Wills in districts, under the rules contained in Punjab Government Notification No. 2649-Judl., dated the 21st January, 1929, have been lost or mislaid; and in each instance it has been found impossible to fix the responsibility for the loss on any particular officer, as the charge of the keys has not been formally transferred when changes of District Judges have taken place. Much inconvenience has resulted, and the Government has been put to considerable expense.

2. District Judge on transfer should make over the keys and Treasurer's receipt for duplicate to his successor.-- Each safe is provided with duplicate keys, one of which should be retained in the custody of the District Judge, the other being placed in a securely sealed cover and deposited in the District Treasury Strong Room, the Treasurer's receipt for it being filed in the District Judge's office. When a District Judge is transferred he should make over the key of the safe and the Treasurer's receipt for the duplicate to his successor, and record that he has done so on the transfer of charge papers sent to the High Court.

3. Duty of the District Judge to take over charge of the keys.-- The District Judge for the time being will be held strictly responsible for the keys of the safe, and any officer taking over charge of the office of District Judge without taking over the keys, or reporting that they have not been made over, will be brought to account if at any time the keys are not forthcoming, and may have to bear the cost incurred by Government in having the safe broken open and in providing a new one.

4. Loss of keys should be reported to High Court.-- If a key is lost the fact should at once be reported to the High Court with a full explanation of the circumstances.

CHAPTER 8
CIVIL COURTS ACCOUNTS
PART A -- GENERAL

1. Responsibility of Judicial Officers for supervision --

The institution of the Director General Audit, Punjab does not relieve officers of the duty of supervising Nazirs, cashiers, or other clerks in regard to their fiduciary duties connected with the attachment and sale of property, the expenses of witnesses in civil and criminal cases, the disposal of unclaimed property and fines, and the receipt and disbursement of sums paid into Court in execution of decree and miscellaneous civil and criminal proceedings without any sort of check or control on the part of the Judicial Officers who are primarily responsible for the due performance by them of these duties.

#[2. Personal responsibility of officers for loss caused by negligence of law and rules, or supervision.--

Rule 2.33 of Punjab Financial Rules, Volume I (Financial Hand Book NO. II) is reproduced for general information:-

"2.33. Every Government servant should realise fully and clearly that he will be held personally responsible for any loss sustained by Government through fraud or negligence on his part, and that he will also be held personally responsible for any loss arising from fraud or negligence on the part of any other Government Servant to the extent to which it may be shown that he contributed to the loss by his own action or negligence. (See rule 2.10(a)(1). A memorandum regarding (1) general principles to regulate the enforcement of responsibility for losses sustained by Government through fraud or negligence of individuals, (2) the procedure to be followed in prosecutions in respect of the embezzlement of Government money and (3) the procedure to be observed for conducting departmental enquiry is given in Part 1 of Appendix 2 to these rules."]

3. Periodical inspection of accounts: Instructions re pecuniary transactions.--

Controlling Judicial Officers are required periodically to inspect, in a thorough and complete manner, the various registers and accounts maintained by Nazirs, cashiers or other clerks; and every officer presiding over

a court (whether civil or criminal) is further required to have all pecuniary transactions conducted under his personal direction and attested by himself.

Note:-

For rules affecting the Nazarat under the control of the District Magistrate, see Chapter 10, Punjab District Office Manual.

4. Checking of registers relating to pecuniary transactions by the presiding officers.--

In order to ensure careful examination of the accounts kept at the courts at headquarters as well as at tahsils, every officer presiding over a court (whether civil or criminal) should examine and check the registers of his court relating to pecuniary transactions and the custody of property, frequently and at least once a month, and should enter his initials and the date, after the last entry found in them. In discharging this duty, it is necessary to have each entry verified by the voucher which has been attested by the Judge and which is required to be placed on the record of the case to which the entry relates.

5. Special attention towards state of registers and accounts of Nazirs.--

The state of the registers and accounts of Nazirs, etc., should receive special notice in the reports of inspecting officers.

6. Pecuniary transactions with litigants should be taken up thrice a day.--

(a) For purposes of pecuniary transactions with litigants in respect of the Sheriffs Petty Accounts and Civil Court Deposit Accounts, the rules for which are given respectively in parts D and E of this Chapter, the Officer-in-charge of the Nazarat or the Presiding Officer of the Court as the case may be, should interrupt his court work daily three times at fixed hours in order to dispose of all pecuniary transactions.

(b). **Public notice as to monetary transactions in Court.--** Notices in English and #[Urdu] should be posted on the Court's notice-board warning litigants in respect of deposits in the Sheriffs Petty Accounts and in the Civil Court Deposit Accounts (cash system) that--

(a) money should only be paid in the presence of the Officer-in-charge of the Nazarat or the Presiding Officer of the Court, as the case may be;

(b) incomplete receipts should be guarded against; and

(c) receipts are not valid unless signed by the Officer-in-charge of the Nazarat or the Presiding Officer of the Court, as the case may be.

In Courts in which the Civil Court Deposit Accounts (voucher system) is applicable, the notices should warn litigants that money will only be deposited by themselves in the local Treasury on challans given to them by the Court and that the receipts are not valid unless signed by the Treasury Officer.

7. Postal Money orders. Money received during leave or absence of the presiding officer.--

The rules for Sheriffs Petty Accounts and Civil Court Deposit Accounts (cash and voucher systems) provide for the receipt of money in a court by postal money order. The procedure laid down in those rules must be strictly followed for all postal money orders, as it is with regard to money so received by a court that defalcation may occur if the procedure is not followed. It is the duty of presiding officers of courts to make adequate arrangements for the receipt of money orders during their absence and they are responsible for seeing with the least possible delay on their return to duty that money so received during their absence is duly brought to account.

8. Daily checking of Cash-books.--

Before leaving office each day, the presiding officers of all courts shall check the cash balances in the hands of the Nazir or cashier and other clerks entrusted with the duty of maintaining accounts of monetary transactions with cash book or cash books of the court which such official or officials maintain. They shall sign the books daily in token of check. Separate cash books are maintained as under:-

Account	By whom maintained	Authority
Sheriffs Petty Accounts ...	Civil Nazir, or Naib-Nazir, or Cashier, as the case may be.	Chapter 8-D, Volume II, Rules and Orders.
Civil Court Deposit Accounts	Ditto.	Chapter 8-E, Volume II
Copy Agency Accounts in District and Sessions Courts and Court of Small Causes	Examiner, or senior copyist where no examiner exists.	Chapters 17-C and 17-D Volume IV, Rules and
All other items, e.g., pay of staff, contingencies, etc.	Civil Nazir, or Naib-Nazir, or Cashier, as the case may be.	*(Chapter II Part I, Punjab Financial Rules Volume I.)

9. Checking in the Court of District and Sessions Judge.-- In the Court of District and Sessions Judge, the Superintendent being the senior ministerial servant is responsible for checking the work of his subordinates, including the Nazir, and for seeing that the accounts are properly maintained and that all financial rules are observed.

PART B -- AUDIT

1. Annual Audit.-- The Sheriffs Petty Accounts, the Civil Court Deposit Accounts (cash system), the Copy Agency Accounts (District and Sessions Judges' Courts and Court of Small Causes), and the Accounts of property made over to the Nazir for custody, will be audited as far as possible once a year under the orders of the *[Director General Audit, Punjab.]

2. Papers to be placed at the disposal of Auditors.-- Presiding Officers of Courts should cause to be placed at the disposal of the auditors all account registers, documents, etc., as well as any subsidiary papers which may be required by the audit officers.

3. Audit note to be sent to Court concerned and higher officers.-- The results of audit will be communicated in printed or typed audit and inspection notes to the Courts concerned, to the District and Sessions Judge, and to the High Court.

4. Prompt attention to Audit notes.-- Presiding Officers of Courts, the Senior Civil-Judge where he is the immediate, controlling officer, and the District and Sessions Judge should deal promptly with these audit and inspection notes. The action taken should be recorded on an interleaved copy or on the margin of the notes. Copies of these annotated notes should be forwarded to the *[Director General Audit, Punjab] and to the High Court, through the immediate controlling officers, if any, and the District and Sessions Judge; and a copy should also be kept and produced for the information of the inspecting officer. The *[observation] statement which accompanies the audit and inspection note should, after the *[observation] recorded therein have been replied to, be kept and put up before the auditors at their next visit.

5. Inquiry embezzlement, loss of property, etc: Report to Accountant-General: Final report to High Court.-- (a) Whenever an embezzlement, loss of property, fraud, or grave irregularity likely to lead thereto, is discovered, enquiries shall be instituted at once by the Presiding Officer of the Court and at the same time a report made to the High Court through the immediate controlling officer, if any, and the District and Sessions Judge.

Such cases as involve more than Rs. 200 or present important features which merit detailed investigation or consideration will also be reported by the presiding officer through the District and Sessions Judge to the Accountant-General as required by *[Rule 2.34 read with annexure of Chapter 2, Punjab Financial Rules,] Volume I.

(b) In submitting final reports, the following points will be reported on to the High Court:-

- (1) The exact nature of the defalcation.
- (2) The full extent of the loss.
- (3) The actual period covered by the defalcation.
- (4) The defects in or neglect of rules by which the loss was rendered possible and the circumstances which facilitated the defalcations.
- (5) The names of the officials held personally or technically, directly or indirectly, and wholly or partly responsible for the loss and irregularities committed, and the disciplinary action taken or proposed to be taken against each.
- (6) Whether the case has been tried judicially or not, and if not, why? If so, three copies of the judgment should be forwarded.
- (7) The remedial measures adopted as safeguards against recurrence of such defalcations or irregularities.
- (8) The prospects of recovery of the loss.

*[Rules 2.33, 2.34 and 2.35 of the Punjab Financial Rules Volume I, as well the annexure and memoranda issued under these Rules shall be carefully followed. The Rules are reproduced in the Appendix to this chapter.]

6. Irregularities: Refund of money kept out of account not allowed.-- Experience has shown that presiding officers frequently fail to take any effective action when irregularities are brought to their notice. There must be a complete investigation of every complaint made to a presiding officer. *In no case may a subordinate official be allowed to refund money which has been*

kept out of account *without a report to the higher authorities*. Any such permission given by a presiding officer will be treated as a gross breach of discipline.

7. Destruction of records relating to audit.-- No records or documents filed in any Courts' accounts should be destroyed till a period of *[two] years has elapsed since they were last audited, and if at the last audit any objection or remark was raised in connection with any record or document, such should be retained until the next audit and not be destroyed until *[two] years has elapsed since the removal of the objection originally raised.

This does not apply to those records which under the rules of the Court form part of a case and are filed with the Court.

APPENDIX

2.33. Every Government servant should realise fully and clearly that he will be held personally responsible for any loss sustained by Government through fraud or negligence on his part, and that he will also be held personally responsible for any loss arising from fraud or negligence on the part of any other Government servant to the extent to which it may be shown that he contributed to the loss by his own action or negligence. (See rule 210 (a) (1). A memorandum regarding (1) general principles to regulate the enforcement of responsibility for losses sustained by Government through fraud or negligence of individuals, (2) the procedure to be followed in prosecutions in respect of the embezzlement of Government money and (3) the procedure to be observed for conducting departmental enquiry is given in Part 1 of Appendix 2 to these rules.

2.34. The instructions for reporting to Accountant-General or the Director Audit & Accounts (Works) defalcations and losses and remissions of and abandonment of claims to, revenue,--(vide rule 4.6) are contained in the Annexure to this Chapter. The directions issued by the Auditor-General of Pakistan regulating the exhibition of losses in Government accounts are given in Chapter 6 of Account Code, Volume I.

2.35. (1) The preliminary report prescribed by the rules in the Annexure to this Chapter notifying the occurrence of a defalcation or loss of

public money in a treasury should be submitted by the Deputy Commissioner concerned to--

- (i) the Accountant-General direct;
- (ii) the Government unless the case is unimportant; and
- (iii) The Head of the Department through the controlling officer.

With regard to the final complete report which is also required by the orders, the Deputy Commissioner should submit his report to controlling officer who will forward it to the Accountant General for submission to Government through the Head of the Department.

(2) Losses occurring in offices, as soon as they occur or come to notice, should be at once reported, through the immediate departmental superior of the Government servant reporting the loss, to the Head of the Department concerned, with a statement of the steps taken in matter. When the matter has been fully inquired into a further and complete report should be submitted of the nature and extent of the loss showing the errors or neglect of rules by which such loss was rendered possible and the prospects of effecting a recovery. The report on a loss occurring in the office of a Head of a Department may be submitted direct to Government. It is always open to a Head of a Department to obtain the advice or opinion of the Accountant-General Director Audit and Accounts (Works) on any loss occurring in his own office or in an office under his control if it is likely to be of use in preventing their occurrence in future.

(3) Rules dealing with losses and defalcation in stamp revenue, are contained in the Punjab Stamps Losses and Defalcations Rules, 1935 reproduced in Part II of Appendix 2.

(4) In regard to any loss of money belonging to a municipality, small town committee or notified area it should be reported by the President or the Executive Officer where such an officer has been appointed direct to the Deputy Commissioner and to the Director, Local Fund Audit. Intimation may also be sent at the discretion of the Deputy Commissioner to the Commissioner of the Divisions who shall, if he deems it necessary, submit a complete report to Government showing the total sum of money misappropriated, the method in

which the embezzlement was effected and the steps taken to recover the money and punish the offenders.

Losses occurring in the funds of Zilla Council should be reported by the Chairman to the Director Local Fund Audit and also through the Deputy Commissioner to the Commissioner.

PART C -- RULES FOR THE MAINTENANCE OF ACCOUNTS IN REGARD TO SUMS DEPOSITED IN COURTS UNDER SECTION 31 (2) OF THE LAND ACQUISITION ACT AS COMPENSATION PAYABLE TO PERSONS WITH RESTRICTED POWERS OF ALIENATION, ETC.

1. Money paid under section 31 of the Act to be deposited in the Treasury.--

Money paid into the District Court under section 31 of the Land Acquisition Act, must be lodged into the Treasury as a Revenue or Civil Court deposit under the rules applicable to such deposits, until its investment as required by section 32 *ibid*.

2. Register of such deposits to be maintained.--

A register shall be maintained in each District Court to show the Receipt and disposal of deposits made therein by the Land Acquisition Officer under section 31 (2) of the Land Acquisition Act on behalf of minors, widows, and any other persons to whom the deposits cannot be paid on disposal of the case.

3. Contents of the register.--

This register shall contain particulars as to the name of each person to whom compensation is payable, the case, the amount and the final disposal thereof either by investment or by payment to guardian or purchase of land, etc,

4. Procedure for disposal of money deposited.--

After the deposits are made and brought on the register, the Courts shall proceed to take action in regard to the investment or disposal of money deposited in accordance with the instruction contained in sections 32, 33 and 34 of the Land Acquisition Act.

5. Account to be opened when money is invested otherwise than in the purchase of land.--

When the money is invested otherwise than in the purchase of land an account in the ledger form should also be opened for the person on whose behalf the money is invested to show payment of interest and final disposal.

PART D -- SHERIFFS' PETTY ACCOUNTS

SECTION I -- System of Accounts

1. Items included.-- Sheriffs' Petty Accounts relate to sums received by Officers-in-charge of process serving agencies and intended for immediate disbursement. The majority of such items consist of diet money for witnesses, and also include such items as expert fees or commission fees. A detailed list of items which may properly be included in these accounts is given in Schedule A to these rules. No item should be deposited in this account if it should under other rules be credited direct to Revenue Heads.

2. Accounts to be sent to Treasury daily and at the close of the month.-- The sums so received being petty, and the money being intended for immediate disbursement, these items form an exception to the general rule which forbids the appropriation of receipts to expenditure. The [Nazir] or Cashier is allowed to receive the money in cash, without remitting it to the Treasury and to make payments out of the money in his hand. A limit is, however, imposed, and the Officer-in-charge must remit the surplus to the Treasury whenever the balance in his hand exceeds a certain amount. He should also remit to the Treasury the total balance in his hands on the last working day of the month *[(See rule 35)]. In respect of these balances the Treasury acts merely as a banker, and the full responsibility for maintaining detailed accounts rests with the Officer-in-charge of the agency.

3. Registers.-- (a) A detailed list of the registers and forms to be maintained in the agencies is given in schedule B to these rules; and specimens of the registers and forms are also reproduced there. There are two principal registers of receipts and of disbursement known as "Register of Receipts" and "Register of Disbursements". There is also a "Cash Book".

(b) **How entries in the Register of Receipts are to be made. Progressive totals and balances.--** The "Register of Receipts" is in itself complete and should be confined to money received either in cash or by money order. The entries in the register should be made strictly in the chronological order of receipts as they occur, i.e., the number of receipts issued should be serially noted in column 2 of the register. Whenever any entry of disbursement

is made in the "Register of Disbursements" the item is again entered in the "Register of Receipts" against the original deposit, with a view to guard against improper disbursements. Progressive totals of daily receipts should be made beneath the daily total and continued till the end of the month. From the monthly progressive total the total payment as per the "Register of Disbursements" is to be deducted to arrive at the net balance at the end of each month, which should be carried forward from month to month to work out the progressive net balance at the end of the year. This balance should agree with the total of the balances appearing in the treasury and cash columns in the "Cash Book" (vide sub-paragraph (d) below). An analysis of the outstanding balances at the end of each month should also be prepared in the remarks column of this register. The balance for each month going back to the three complete financial years should be worked out separately from the "Register of Receipts" and the total of the items thus worked out proved with the balance in the "Cash Book."

(c) **Progressive totals of payments.--** Similarly, the "Register of Disbursements" is complete and should be confined to a daily record of payments to entitled payees. The daily entries should be totalled up and the progressive totals of daily payments should also be made beneath the daily total till the end of the month.

(d) **Cash Book.--** (i) The daily entries of receipts in the "Registrar of Receipts" and of payments in the "Register of Disbursements" will be carried to the "Cash Book" in the cash column the closing balance of the previous month being noted as opening balance of the next month on the first day of that month. Payments into and withdrawals from the Treasury should be accounted for in this "Cash Book" in the manner described below.

(ii) **Entries in Cash Book of payments into and withdrawals from Treasury.--** When the amount is paid into the Treasury an entry will be made on the payment side in the column "cash" and a per contra entry will be made on the receipt side in the column "treasury". Similarly, when money is drawn from the treasury an entry will be made on the payment side in the column "treasury" and a per contra entry will be made on the receipt side in the column "cash". Progressive balance on each day should be struck under the signatures of the "Officer-in-charge".

(iii) **Comparison of Cash Book with Treasury Pass Book.--** At the close of the month, there will be no cash balance in the hand of the Nazir. The balance with the treasury as per (Treasury column) cash book should be worked out and agreed with the balance as shown in the Treasury Pass Book.

4. Duties of the Officers-in-charge.-- The principal financial duties of the Officer-in-charge of an agency may be briefly summarised:-

- (i) to see that all sums received are brought to account in the "Register of Receipts";
- (ii) to see that no payments are made except against deposits shown in the "Register of Receipts" ;
- (iii) to verify the balance by frequent physical verification of the cash balance in the agency and by comparison of the treasury balance shown in the "Cash Book" of the agency with that shown in the "Treasury Pass Book"; and
- (iv) to see that remittances into and withdrawals from the Treasury when required are promptly and correctly made.

If these duties are properly carried out, there should be no risk of defalcation and any clerical error in the accounts should be immediately detected.

5. Personal Ledger Account in the Treasury.-- In respect of the balance remitted thereto the Treasury maintains a Personal Ledger Account in the name of the agency concerned the working of which is described in detail in section IX of these rules.

6. Proper forms and registers to be maintained.-- No books of account other than those prescribed may be maintained, and no change may be made in the existing forms of the registers, without the sanction of the High Court in consultation with the Accountant-General. If for any reason additional registers are found necessary, however, the Officer-in-charge of an agency should not hesitate to apply for permission to introduce them.

It has been frequently noticed in the course of inspection that the registers in use are not in the proper form but are either out of date, or are in a form intended for use only in Treasuries. Every effort should be made to obtain the proper forms.

7. Money orders Intermediate Register.-- Whenever money is received by money order, the Nazir must first enter particulars to identify the transaction in the "Court's Intermediate Register". The Officer-in-charge of the agency or in his absence another Judicial Officer empowered in this behalf by the District Judge will then both initial the "Intermediate Register" in respect of the transaction and sign the money order receipt before handing over the receipt to the postman and the money with the money order coupon to the Nazir for further disposal. Such an officer must see that all items in the "Intermediate Register" are cleared by transfer entries to the appropriate "Registers of Receipts" on the day of receipt if possible or the next morning and initial both the "Intermediate Register" and the "Register of Receipts" in verification of this having been done by the Nazir.

SECTION II -- Agencies

***[8. Classes of Agencies.--** There are three classes of agencies which are required to maintain Sheriffs' Petty Accounts. The office maintaining these accounts is usually known as the Nizarat. The three classes are as follows:-

- (i) The principal process serving agency at the Headquarters of the district. This deals with processes received from Civil and Criminal Courts. This agency is under the control of the Senior Civil Judge or the Administrative Civil Judge in the district in which the latter officer has been appointed. It will be referred to as Senior Civil Judge's agency.
- (ii) The Small Cause Court's agency which is under the control of the Judge of the Small Cause Court.
- (iii) Agencies at outlying stations which are under the charge of a Civil Judge.

9. Civil Nazir.-- The agencies of Senior Civil Judge and Small Cause Court's Judge are in the charge of respective Civil Nazirs who receive cash and make payments. In outlying stations these duties are performed by a Naib Nazir. For the sake of simplicity these officers concerned will be referred to in these Rules as the Nazir.

10. Control over agencies. Delegation of duties.-- The principal Judicial Officer incharge of the agency, mentioned in paragraph 8, is

responsible for the prompt and efficient service of all processes received in the agency. The Senior Civil Judge/Administrative Civil Judge or the Judge Small Cause Court, Lahore, may under special permission from the High Court delegate certain of his administrative duties either to a Civil Judge or to the Registrar. The order of delegation should state exactly what duties have been delegated. In such cases, however, they will still remain responsible for the general supervision. The officer incharge of the out-lying agency shall in no case delegate his duties.]

11. Security.-- *[(a) The Chief Justice has been pleased to direct that the following officials shall, on appointment, furnish security to the satisfaction of the District & Sessions Judge, Senior Civil Judge or the Judge Small Cause Court, Lahore to which they are attached in the sum of rupees specified below against each official:-

Civil Nazir (Senior Civil Judge's agency). Rs. 30,000/-

Nazir, Cashier (Small Cause Court's agency). Rs. 30,000/-

Naib-Nazir (District Judges, Rs. 10,000/- Senior Civil Judges' and Small Cause Court's agencies and other agencies including Civil Judges' Courts at stations where there is a treasury or sub-treasury).

Naib Nazir (agencies at stations Rs. 10,000/- where there is no treasury or sub-treasury including Courts of Civil Judges so located).

Execution Bailiff Rs. 5,000/-

Note:- Process-servers are not required to furnish security; they, however, are not permitted to have more than Rs. 200/- in hand at any time as provided in rule 20 under Section IV of these rules].

(b) **Duties of Civil Nazir.--** The Civil Nazir is also the head of the process-serving establishment of the district, other than that working directly under the District Judge or the Judge of a Small Cause Court. His duties are:

(i) to submit reports relating to the members of the establishment or their duties to the Senior Civil Judge or Administrative Civil Judge;

(ii) to arrange for the distribution of processes among process-servers and the transmission of processes to agencies located at tehsils;

- (iii) to see that the prescribed accounts are properly maintained by the staff working under his immediate control; and
- (iv) to prepare correspondence regarding the payment of diet-money of witnesses and other similar matters.

12. Inspection of accounts by inspecting officers.-- District and Sessions Judges and District Magistrates when inspecting subordinate courts should invariably inspect the process-serving officer's accounts and note the fact that this has been done in their inspection reports.

SECTION III -- Receipts of processes and Deposits by the Agencies

13. Applications for deposit: How to be dealt with.-- When an application involving a deposit in the Sheriffs' Petty Accounts is presented in Court, as for example an application for summoning of witnesses to whom diet money is to be paid, the Court Reader shall note thereon the number of the case, in order to enable the process-serving [Naib Nazir] to make the necessary entry in the "Register of Receipts" *[(See Form No.5)]. After the usual orders have been passed and recorded by the Court, the applicant shall tender the amount of his deposit together with the application to the Nazir who will fill in columns 1 to 7 of the "Register of Receipts," prepare a "Receipt" in foil and counterfoil on the prescribed form, and issue the foil to the depositor as a receipt for the money deposited after it is signed by the Officer-in-charge.

NOTE:- If the application is for the summoning as a witness of a Government servant, it must state (1) his full official designation, (2) the amount deposited for travelling expenses and (3) the amount deposited for diet-money or subsistence allowance; and these details must be copied into the "Register of Receipts".

14. Applications for deposit: How to be dealt with.-- After the serial number of the "Register of Receipts" has been noted on the application by the Naib Nazir and the usual daily check exercised by the Officer-in-charge, the application should be returned to the Court concerned for record. The counterfoil receipts will be retained by the Naib Nazir and produced for audit.

15. Procedure when a Court is far from the Court of Senior Civil Judge.-- When the Court of a Civil Judge is situated at such a distance from the Senior Civil Judge's Court as to render the frequent transmission of applications to the Nazir inconvenient, the Senior Civil Judge or administrative Civil Judge may direct that both applications and money should be received by

an official of the Civil Judge's Court and a receipt in foil and counterfoil on the prescribed form prepared by such official and granted to the depositor after it is signed by the presiding officer of the Court. At the end of the day, all such applications together with the money and the receipt counterfoils should be sent to the Naib Nazir who will enter the necessary particulars of each application in his "Register of Receipts" and return the applications and the receipt counterfoils to the Court concerned with the number in the "Register of Receipts" of each item noted both on the application and in column 2 of the counterfoil concerned.

Note:- Column 2 of the receipt foil will be blank in these cases.

16. Processes for service within the district to be sent to Nazir.-- All processes issued by Courts for service within the district should be sent to the Nazir and should contain a reference to the amount deposited with the Naib Nazir.

17. Processes for service in another district.-- Processes issued by a Court for service in another district will be made over to the Nazir by the issuing Court for entry in the "Register of Processes received and disposed of by the Nazir" *[(See Form No. 6)] and transmission to the Senior Civil Judge or Administrative Civil Judge of the district in which the person to be served resides. The amount deposited with the *[Nazir] on account of subsistence and other expenses as noted on the original and duplicate copy of the process will be transmitted by the *[Naib Nazir] by postal money order to the Senior Civil Judge or Administrative Civil Judge of the district in which service is to be effected. The cost of the postal money order being borne by the party at whose instance the process is issued. The Senior Civil Judge of such other district, shall, in the event of the process not being served, return the amount by postal money order less cost of commission on such order.

18. Steps to get back money if process not served.-- Courts issuing processes to other districts should take measures to call for the prompt return of the money remitted on account of processes which have not been served, and such sums after being accounted for in the accounts of the Nazir in the usual way should be returned to the person taking out the process, and excluded from the account of the costs of the suit.

Note 1.- Periodical checking of the register to ensure that all sums re unserved processes have been duly received and accounted for.-- To ensure that all sums remitted to other districts on account of processes which have not been served, are duly returned and correctly accounted for, the "Register of processes received and disposed of by the Nazir" should, in the case of the agencies of the District Judge, the Senior Civil Judge, and the Judge, Small Cause Court, be checked monthly by clerks of courts and quarterly by the Officer-in-charge; and monthly by the Presiding Officers of court in the case of agencies at outlying stations. Where there are more courts than one situated in the same building or in close proximity at outlying stations the Register should be checked by the Senior of the Presiding Officers. The result of these checks should be recorded in the following form:-

"Certified that I have personally checked the entries in the "Register of processes

Month of-----

received and disposed of by the Nazir" for the ----- and am satisfied that

quarter ending-----

all sums in respect of unserved processes have been duly received and correctly accounted for except as follows:-"

Note 2.- Processes received for service from other districts to be entered in register "Tamil Zillah Ghair."--Processes received for service from other districts are entered in the "Register of miscellaneous proceedings, etc., received from other districts and courts," commonly known as the "Tamil Zillah Ghair", and should not be entered in the "Register of processes received and disposed of by the Nazir."

19. Service of processes within the jurisdiction of Nazirs.-- Processes issued by a Court sitting at the headquarters of the district or a tahsil, for service on a person residing within the tahsil, where such Court is situated will be made over to the Nazir in charge of the process-serving agency. The Nazir will thereupon arrange as follows for payment at the time of service of sums due to persons to whom the processes are addressed.

SECTION IV -- Transmission of processes and money to process-servers

20. Procedure when processes and money are delivered to process-servers.--

Such sums as are mentioned in rule 19 will be given to the process-servers together with the processes, but before this is done the following procedure must be carried out:-

(a) Each process should be entered in the "Register of processes received and disposed of by the Nazir".

(b) Payment to process-server should be entered in the appropriate column of the "Register of Receipts" against each sum.

(c) Payment entries should be made in the "Register of Disbursements" and the process-server's acknowledgment of receipt in column 11.

(d) Details of each sum should be entered in the "Process-server's Note-Book".

No process-server should have more than Rs. *[200] in hand at any one time.

21. Payment of diet-money to witnesses by process-servers.-- When a Process-server pays the diet-money to a witness he shall take the receipt of the actual payee in column 8 of his note-book as well as on the back of the original copy of the process on which service is endorsed. The payee's acknowledgment should be verified by one or more respectable witnesses, the date and signature of the serving officer being added. This rule may, however, be relaxed in the case of literate persons who can write and sign the acknowledgments but to minimise the risk of misappropriation the courts concerned should ascertain before proceeding with the cases that the witnesses appearing before them are the persons whom the diet-money has been actually paid. In the case of illiterate persons the thumb-marks should invariably be attested as provided in this rule.

22. Procedure when processes are returned served by the process-server.--

The processes whether served or not will be returned to the Nazir. If the service is effected and the money connected therewith paid to the payee, the Nazir shall verify the service with the acknowledgment of the payee given in column 8 of the process-server's note-book as well as on the back of the original copy of the process, and submit the latter to the court concerned with the usual certificate of service, at the same time filling up columns 12 and 13 of the "Register of processes received and disposed of by the Nazir".

23. Procedure when processes are returned unserved.--

In the case of non-service, the undisbursed amount returned by the process-server shall again be entered against a new number in the "Register of Receipts". The new number in the "Register of Receipts" should be quoted against the original entry in the "Register of Disbursements" and noted in column 10 of the process-server's note-book, column 11 of which should also be signed by the agent in acknowledgment of the money having been received back from the process-

server. The process will then be returned to the Court concerned with a certificate of non-service after filling up columns 12 and 13 of the "Register of Processes received and disposed of by the Nazir."

Note 1.- Checking of process-servers' note-book.-- With a view to seeing that rules 20 to 23 are complied with, the process-servers' note-books should, in the case of the agencies of the District Judge, the Senior Civil Judge, and the Small Cause Court, be checked monthly by the Superintendent and quarterly by the Officer-in-charge; and monthly by the Presiding Officers of Courts in the case of agencies at outlying stations. Where there are more Courts than one situated in the same building or in close proximity at outlying stations the note-books should be checked by the Senior of the Presiding Officers. The result of these checks should be recorded in the following form:-

"Certified that I have personally checked the accounts for the month of/quarter ending and am satisfied that they are correct and in order except as follows:-"

Note 2. Nazir to see that money is duly accounted for in the case of unserved processes.-- When unserved processes are returned to the Nazir it shall be the duty of the latter to see that the undisbursed diet-money remitted with the processes is also returned to him and entered in the "Register of Receipts."

SECTION V -- Transmission of processes, and money between agencies

24. Processes sent by one agent to another in the same district.-- Processes issued by a Court situated within the limits of one tehsil (whether it be the headquarters tehsil or an outlying one) for service on a person residing within the limits of another tehsil in the district will be made over to the Naib Nazir at the place where the Court issuing the process sits and such Naib Nazir will transmit the process (duly endorsed with the amount, if any, which is to accompany the process) by post or (where absolutely necessary) by messenger, to the Naib Nazir of the tehsil within which service is to be effected after making the necessary entries in columns 1 to 11 of the "Register of processes received and disposed of by the Nazir."

25. Processes sent by one agency to another in the same district.-- Processes received by one agency from another in the same district will invariably be returned direct to the Naib Nazir from whom they were received, and he will return them to the Court concerned.

26. Amount to be sent by money order.-- The amount to accompany a process transmitted under rule 24 will, after making the usual

entries in the "Register of Receipts" and the "Register of Disbursements" be sent by postal money order to the Naib Nazir concerned along with the process, the money order commission being recovered from the party at whose instance the process is issued and the money order being addressed to the Officer-in-charge (as defined in rule 8 under section II) of the agency in which the agent works. The said Officer-in-charge shall take delivery of the money order over his own signature in the manner laid down in rule 7 under section 1 and he shall also see that the amount is transferred from the "Intermediate Register" to the "Register of Receipts" on the day of receipt if possible or the next morning. The Naib Nazir after carrying out the procedure detailed in rule 20 (b), (c) and (d) under Section IV shall cause the process to be served and the amount disbursed to the payee in the same manner as if the process had been issued by one of the Courts of his own agency.

Note 1.- Processes received from other tehsils should be entered in register "Tamil Zillah Ghair".-- Processes received from other tehsils should be entered in the "Register of processes received and disposed of by the Nazir" kept by him; they are entered in the "Register of miscellaneous proceedings, etc., received from other districts and courts," commonly known as the "Tamil Zillah Ghair".

Note 2.- Duty of Officer-in-charge to see that money received is brought on to Receipt Register.-- The Officer-in-charge (as defined in rule 8 under Section II) of the receiving agency must satisfy himself that all amounts accompanying a process transmitted under this rule have been brought on to the "Register of Receipts".

27. Procedure in case of non-service.-- In the case of non-service the amount (less money order commission) will be returned by postal money order to the Officer-in-charge of the agency from whom it was received. The said officer shall take delivery of the money order over his own signature in the manner laid down in rule 7 under Section I and he shall also see that the amount is transferred from the "Intermediate Register" to the "Register of Receipts" on the day of receipt if possible or the next morning; such amount will be entered by the agent against a new number in the "Register of Receipts" which number should also be quoted against the original entry in the "Register of Disbursements"

28. Certificate of service or non-service.-- The Naib Nazir to whom a process is sent for service will invariably return the same, with a certificate of service or non-service, as the case may be, duly endorsed thereon and signed by the Officer-in-Charge, to the Naib Nazir from whom he received the process,

and the latter will thereupon fill in columns 12 and 13 of the "Register of process received and disposed of by the Nazir" and then forward the process to the Court which issued it.

Note:- The certificate of service or non-service should be signed by the Officer-in-charge after satisfying himself of the correctness of the certificate.

SECTION VI -- Refund of deposits

29. Refund of deposits: Payment order. Undisbursed diet-money to be sent by money orders.-- Any undisbursed balance of a deposit will be paid to the depositor when a refund of the same is claimed by him. In such cases and in all other cases in which undisbursed money has been ordered by the court to be paid to the proper person, the court shall issue a "payment order" in the prescribed form to the Nazir, who, after taking the payee's acknowledgment in the space provided for the purpose and making the necessary entries in the "Register of Receipts" and the "Register of Disbursements", will pay the amount due. The number to be quoted on the top of the "payment order" will be the serial number of the transaction in the "Register of Disbursements"

Provided that when the amount of a payment exceeds Rs. 100, it should be made in the presence of the Presiding Officer, who should satisfy himself as to the identity of the person claiming the amount.

Note 1:- In accordance with Punjab Government letters No.3679-S. (Home-Judl.), dated the 3rd August, 1931 and No.4953-J-39/2760, dated the 24th August, 1939, and Chief Commissioner, letter No.F.4(8)/39-General, dated the 5th December, 1939, undisbursed witnesses' diet-money deposits in Civil, Criminal and Revenue cases not exceeding Rs.25 in amount, should be returned without notice to the depositor by money order, the cost of the money order commission being deducted from the sum to be refunded. The courts should inform the Nazir of the cases in which judgment has been pronounced.

Note 2:- Before the record of a decided case is consigned to the Record Room, the reader of the court shall attach to it a certificate that undisbursed deposits of diet money payable to witness have in all cases, where necessary, been refunded to the depositors. The Record Keeper should not receive the record unless this certificate is attached to it.

Note 3:- The provisions of this rule and notes (1) and (2) were also applicable to repayment of deposits of advertisement charges of newspapers in case of substituted service.

30. Deposits claimed on behalf of a deceased depositor may be paid by the court without the production of the usual legal authority after such enquiry into the right and title of the claimant as may be deemed sufficient. In

cases of doubt as to the identity of the claimant and his title to the money, the court should insist on a succession certificate or other authority from a court acting under the Succession Act.

31. Payment order: Renewal and lapsing.-- The Court's payment order referred to in the preceding rule will remain in force for a period of one month. No payment can be made on a lapsed order unless it is renewed in the following manner. On the production of a lapsed payment order the authority which originally granted it may, if satisfied that the person producing it is entitled to receive payment, revalidate the order by the following endorsement:-

Renewed _____

Signed _____

Dated _____

The fact and date of renewal should be noted on the original departmental record of the Court. These payment orders will be kept in a guard file for audit purposes.

SECTION VII -- Daily supervision of accounts

32. Daily checking of the entries in the Receipt Register.-- At the end of the day the Officer-in-charge of the agency shall compare the entries made in the "Register of Receipts" with the applications and the counterfoils of receipts issued and, after satisfying himself of their correctness, should set his initials against each entry in column 8 of the "Register of Receipts"

33. Daily attestation of entries by Officer-in-charge: Certificate as to correctness of accounts for the period when officer was absent.-- All entries of receipts in "Register of Receipts" and of payments in "Register of Disbursements" and in the payment column of the register receipts should be duly attested by the officer in charge of the agency on the day of transaction before the office is closed for business. If, however, he is absent he should within a week of his return check the accounts and forward a certificate to the District Judge that he has carefully scrutinised the records of all the monetary transactions which took place in his absence and has satisfied himself that they have all been brought to account and that no irregularities have been committed.

34. Money order coupons and payees' postal receipts to be kept in guard file and reference to their number given in proper registers.-- Payee's receipts received through the post office for amounts sent by money orders under Section III, Rule 17, or under Section V, Rules 26 and 27, or under the special orders of the Court, should be pasted in a guard file and a reference to their number in the guard file inserted in column 11 of the "Register of Disbursements". Similarly, coupons of money orders received should be pasted in a separate guard file and a reference to their number in the guard file inserted in column 6 of the "Register of Receipts".

SECTION VIII -- Dealing with the Treasury

35. Remittances to Treasury. Documents to accompany.-- Whenever during the month the sum in the hand of the Naib Nazir at the headquarters of a district is *[Rs.500] or more and that of a Tahsil Naib Nazir is *[Rs. 260] or more, the surplus over *[Rs. 400] and *[Rs. 200], respectively, shall at once be remitted to the Treasury or Sub-Treasury. Each such remittance shall be accompanied by a memorandum in the form given below and the Treasury pass book and a challan *[(Form No.9 stereo A and T.T.M.No. 192)] which will be returned to the agent duly receipted by the Treasury Officer or the Sub-Treasury Officer as the case may be :-

- (1) Balance in hand (if any).
- (2) Withdrawals from Treasury since last remittance.
- (3) Deposits received since last remittance.

Total	-----
Payments made since last remittance	
Balance	-----
Amount now remitted to the treasury	
Balance in hand	-----

At the end of the month the entire amount in the hand of the Naib Nazir will also be remitted into the treasury or sub-treasury in accordance with the procedure indicated above.

36. Withdrawals from Treasury.-- On the other hand, in the rare cases when the balance in the hand of the Nazir falls below the amount required for immediate disbursement, he will recoup himself by means of a cheque on the Treasury to be signed by the principal Officer-in-charge after he has satisfied himself by personal inspection of the accounts that the withdrawal is necessary.

Note:- The cheque should be sent to the treasury alongwith the treasury pass book which will be returned to the agency after noting the withdrawals, duly attested by the Treasury Officer. Such withdrawals are in the nature of recoupment of an advance and should not be regarded as the repayment of a particular item by means of payment on the Treasury. The Nazir will remain responsible for individual disbursements.

37. Transactions with Treasury to be entered only in Cash Book.-- Neither the balance paid into the Treasury, nor the amount withdrawn therefrom under the preceding rule, should be shown in the "Register of Receipts" and the "Register of Disbursements". These remittances and withdrawals will be shown only in the "Cash Book" as their effect is to deplete or increase the amount in the hand of the Nazir. These transactions will be shown in the manner prescribed in rule 3 (d) (ii).

38. Duty of Officer-in-charge.-- The principal duties of the Officer-in-charge in this connection are to see that money is promptly remitted to the Treasury whenever the amount in the Nazir's hand exceeds the permissible limit and that no unnecessary withdrawals are made, and also to watch that the balance in the hand of the Nazir, on the last working day of the month, is remitted to the Treasury so that it may be included in the accounts of the Treasury on that day. The monthly balancing of the account should show at a glance whether the Nazir had remitted to the Treasury the amount which he is supposed to have sent and it is also necessary for the Officer-in-charge to satisfy himself that the remittances have been promptly made by reference to the treasury receipts which should be filed in a separate guard file.

SECTION IX -- Treasury Accounts

39. Personal Ledger and Pass Book.-- The Treasury will maintain a Personal Ledger Account in form [TA-20 of Account Code, Volume II in the name of each agency dealing with it and will supply the agency with a "Pass

Book". The Pass Book should be sent monthly to the Treasury Officer, for verification of the balance shown in it.

40. Entries of gross receipts and gross payments in Ledger and Cash Book--(a)

On each occasion that a remittance is made to the Treasury, the gross receipts and gross payments noted in the memorandum prescribed in rule 35 shall be entered in the receipt and payment columns, respectively, of the Personal Ledger Account and the amount actually credited into the Treasury added to the previous balance to arrive at the progressive balance to be shown in column 5 thereof. The amount remaining in the hand of the *[Nazir], at the time of each intermediate remittance should be noted in the remarks column.

In addition to being entered in the Ledger Account the gross receipts and the gross payments shall be carried to the receipt and payment side of the Cash Book against the head "Sheriffs' Petty Accounts".

(b) Entries to be made when amount is withdrawn.-- In the case of payments made from the Treasury on cheques the progressive balance as shown in column 5 shall be reduced and the amount noted in the remarks column (as amount in the hand of Nazir) in the manner provided in clause (a) above.

(c) Reconciling difference between the balances as shown in the Treasury's and Accountant's balance sheets.-- As, however, in the case of the intermediate remittances described in rule *[35] above the whole of the surplus of receipts over payments is not credited into the treasury, but part remains with the Nazir, as also in cases in which amounts are drawn by cheques from the treasury, it is clear that to enter gross receipts and gross payments in the cash book will result in a difference between the balances as shown in the treasury's and accountant's balance sheets. To reconcile the discrepancy, the amount remaining in the Nazir's hand should be shown separately:-

(i) in the remarks column of the Personal Ledger Account; and

(ii) in the accountant's daily balance sheet, the entry in the last being on the same principle as the entry of a sub-treasury balance.

The treasury shall continue to show these balances in the balance sheet until the entry is cancelled by a corresponding credit at the treasury at the end of the month.

41. Deduction of lapsed deposits.-- In addition to the gross receipts and gross payments as indicated in rule *[40] the other entry in the treasury account will be the annual deduction of lapsed deposits as reported by the Naib Nazir, the adjustment of which shall be made in the office of the Accountant-General by credit to the Head *[1300000-Miscellaneous Receipts; 1390000- Others; 1391000- Other Receipts; 1391001- Unclaimed Deposits]. The Treasury Officer will simply reduce the balance of the personal ledger account.

42. Comparison of balances in the books of the agent and the Treasury Pass Book.-- On the last working day of the month the agency will proceed to compare the balance shown in its own books with the balance shown in the "Treasury Pass Books".

Note:- The last working day of the month as referred to in this and the other rules in this Chapter means the last working day on which the accounts of the treasury or sub-treasury, as the case may be, are closed.

43. Working out balance: List of unrefunded lapsed items.-- There will be three balances in the books of the Court. One balance will be struck at the end of the month in the "Register of Receipts" and will show the total amount outstanding from all previous deposits, less the amount which has lapsed to Government. This balance will be made up of two other balances; one will be the balance in cash with the Nazir as shown in the "Cash Book" and the other will be the balance of remittances to the Treasury as shown in the "Pass Book". The comparison of the balance in the "Cash Book" shall be made at the end of each month with the balance shown in the "Register of Receipts" as under:-

Rs. P.

Opening balance

Receipts for the month as per "Register of Receipts"

Total

Payments for the month as shown in the "Register of Disbursements"

(plus lapsed items which will appear in June only)

Closing balance

Details

Balance as per "Treasury Pass Book"

Balance in the hand of the Nazir as per "Cash Book" (which should be remitted to the treasury after verification on the last day of the month)

Total

At the end of each month the Officer-in-charge of each agency should also prepare a list of unrefunded deposits not lapsed to Government working up to the balance (including the Treasury balance). The balance for each month going back to three complete financial years should be worked out separately from the "Register of Receipts" and proved with the balance at the end of the month as depicted by the "Cash Book".

44. Physical verification of balance in the hands of the Nazir.-- The balance in the hand of the Nazir should be physically verified by the Officer-in-charge of the agency who should record a note as follows before it is remitted to the treasury:-

"I have myself to-day counted the cash in the hand of the Nazir under the Head "Sheriffs' Petty Accounts" and find that it amounts to Rs.----- as shown in the Cash Book."

This verification should not only be made monthly, but surprise inspections should also be made at frequent intervals in order to ensure that the Nazir is not using the balance for other purposes during the middle of the month. Inspecting Officer should also check the cash balance by physical verification.

45. Monthly comparison of Nazir's balance with Treasury Pass Book. Certificate. Report to superior officers to be made in case of discrepancy not being reconciled.-- The balance should be checked by the Officer-in-charge with the "Treasury Pass Book" at the beginning of each month and he should record a certificate to the following effect in the "Cash Book":-

"I have to-day compared the Treasury balance as shown in the books of the agency with the balance shown in the "Treasury Pass Book" and I find that they agree."

If any discrepancy is found in the account, the Officer-in-charge of the agency should immediately take steps to have the accounts reconciled, and to see that no error has crept in. If the accounts cannot be reconciled by the middle

of the month following that to which the balance relates, the discrepancy must be at once reported to the District Judge who will personally take steps to have the discrepancy reconciled. If the District Judge cannot do this by the end of the month, a report must be sent to the High Court and to the Accountant-General.

46. Difficulties in the working of accounts to be reported to higher authorities.--

Any difficulties which may be found in the working of the accounts as the result of the monthly verification should be reported to higher authorities with proposals for their removal.

SECTION XI -- Lapsed items

***[47. Deposits to lapse after three years.--** Notwithstanding the provisions of rule 12.7 of The Punjab Financial Rules Volume I and Article 127 of Account Code Volume II, all claims on account of Sheriffs' Petty Accounts irrespective of their amounts will remain current for three complete account years and lapse to Government only on the expiry of that period.

48. Statement of lapsed items to be prepared and sent to Treasury Officer at the end of June.-- (a) The Officer-in-charge of an agency shall prepare a list of lapsed items under the rules of Government in Form TA 49 referred to in Article 127 of Account Code Volume II, on 30th June each year and strike them off from the Register of Receipts on the last day of the financial year i.e. 30th June, by entering them in column 20 provided for the purpose, the date of lapse being noted below the amount. The total amount of lapsed items as per statement so prepared should agree with the total of outstanding balances prior to three complete account years as shown in the analysis of the outstanding balances in the remarks column of the "Register of Receipts" (vide rule 3 under section 1) and as worked out in the memorandum prescribed in paragraph 43 under Section X. This statement should be submitted to the Treasury Officer on the last working day of June for adjustment under paragraph 41 under Section IX.]

(b) Certificate by Officer-in-charge on the statement.-- The Officer-in-charge of an agency shall record on the statement a certificate to the

effect that all amounts due to lapse to Government have been included in the statement.

(c) **One copy of the statement to be kept for audit.**-- One copy of the statement of lapsed items should be kept with the agency for audit on the spot by the Director-General Audit, Punjab.

(d) **Reducing of balance by Treasury Officer.**-- The Treasury Officer shall reduce the balance of the Personal Ledger Account by the total amount of lapsed items and shall forward to the Accountant-General the statement in form 29, Civil Account Code, with the monthly accounts for June.

***[49. Report re lapsed items.**-- The deposits which have lapsed and have been so credited to Government cannot be re-paid if subsequently claimed, without the sanction of the Accountant General, Punjab, as required by rule 4.130 of the Treasury and Subsidiary Treasury Rules.

The application for sanction will be made in Form STR 42. There should be a specific application, for deposits repayable to each person and it will be used as the voucher on which the payment is to be made and submitted to the Accountant General with the list of payments in which it is charged.]

SECTION XIII -- Miscellaneous

50. Diet-money of Government servants appearing as witnesses.-- Diet-money (i.e., subsistence allowance levied in accordance with Chapter 5-C of Volume I and Chapter 9A of Volume III of the Rules and Orders) deposited in these accounts under rule 9 of these rules in respect of Government servants appearing as witnesses in Civil and Criminal cases will not be paid to them, but will be credited in the Treasury under the Head *[1200000-Receipts from Civil Administration and other functions; 1230000- Law and Order Receipts; 1231000-Justice; 1231800-Others.] Similarly, all sums deposited for travelling expenses in respect of those servants, who are not entitled to receive such expenses from the Court, will be credited in the Treasury under the same head.

In the case of employees of the *[Federal Government] or a *[Pakistan Railway,] or any other commercial department of Government, however, sums

deposited for diet-money will be credited in the Treasury to the credit of the Government concerned, i.e., *[Pakistan Railway] or any other Commercial Department of Government, as the case may be, and to enable this to be done, the following particulars will be inserted in the challan :-

- (1) Name of witness,
- (2) Official designation,
- (3) Office in which employed,
- (4) Name of Court in which he appeared,
- (5) Date of hearing,
- (6) Names of parties to the suit.

Note:- Duty of Reader to inform Nazir when evidence of a Government servant has been recorded. Certificate by reader. Duty of Record-Keeper.-- The reader of the court concerned should give timely information to the Civil Nazir that the statement of the government servant appearing as a witness has been duly recorded, so that there may be no avoidable delay in crediting the subsistence allowance into the treasury. As a further safeguard, the reader of the court, should, before the record of a decided case is consigned to the Record Room, attach to it a certificate that the subsistence allowance of all the government servants, who have appeared as witnesses in the case, has been credited into the treasury under the relevant head. The Record-Keeper should not receive any record to which this certificate is not attached.

51. Commission fees to Government Servants.-- The acceptance of commission fees by Government servants is governed by rule 5.58 of the Civil Services Rules (Punjab), Volume I, Part I, and by Supplementary Rule 12.

52. Forms of Receipts.-- The forms of "Receipts" will be machine-numbered with a book number and a receipt number on each foil and counterfoil and bound into books each containing 200 forms.

53. Custody and issue and checking of Receipt Books and Cheque Books.-- "Receipt" books and "Cheque" books will on receipt by the agency be entered in the "Stock Book of Receipt and Cheque Books" and remain in the personal custody of the Officer-in-charge. Issues will be made by the Officer-in-charge to the Nazir after accounting for such issue in the stock book. The number of Cheque and Receipt forms in each book should, when received, be checked and a certificate to this effect recorded on the cover of each copy.

54. Each page of register and account book to be paged and sealed and number of pages to be counted.-- Each page of every register and book of account shall be paged and sealed, and an endorsement shall be made at the end of such register or book showing the number of pages and signed by the Officer-in-charge.

SHERIFFS' PETTY ACCOUNTS RULES

SCHEDULE A

List of items which may properly be included in Sheriffs' Petty Accounts.

- (1) Sums deposited by parties as the expenses of witnesses, fees of expert witnesses, and commission fees, in civil, criminal and revenue cases.
- (2) Deposits of advertisement charges of newspapers in cases of substituted service.
- (3) Sums deposited for immediate disbursement as costs in partition cases (revenue).
- (4) Sums deposited as costs in connection with applications for Probate, Letters of Administration, and Succession Certificates, other than the cost of stamps deposited by applicants, under Act XXXIX of 1925.
- (5) All petty items received for immediate disbursement in full except when they are deposited in courts following the cash system for Civil Court Deposits.

SHERIFFS' PETTY ACCOUNTS

SCHEDULE B

List and specimens of registers and forms to be maintained or used in Sheriffs' Petty Accounts.

- (1) Register of Receipts.
- (2) Register of Disbursements.

- (3) Cash Book.
- (4) Treasury Pass Book.
- (5) Receipt Form.
- (6) Register of processes received and disposed of by the Nazir.
- (7) Note-book of process-server.
- (8) Payment Order Form.
- (9) Challan Form.
- (10) Cheque Form.
- (11) Form No. T.A. 49
- (12) Form No. S.T.R. 42
- (13) Stock book of forms of Receipt Books/Cheque Books
- (14) Intermediate register of money orders, etc.,

(This register is reproduced in the Civil Court Deposit Rules. As there will be one such register in each Court for all money order transactions, such transactions as relate to Sheriffs' Petty Accounts will also be included in it.)

FORM No. 1.
(Vide Rule 3.)

REGISTER OF RECEIPTS OF SHERIFFS' PETTY ACCOUNT DEPOSITS AT THE AGENCY
OF THE _____ FOR THE MONTH OF _____ 19__

1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16	17	18	19	20	21
Date of receipt	Number of each deposit	No. of file of the case in which deposited	Name of the Court and of the parties with name and Total number of the village in which the file is to be kept.	From whom received	Nature of deposit	Amount of each deposit	Initials of Officer in charge	Daily Total	DETAIL OF PAYMENTS						Total of payments	Total of payments	Lapsed and credited to Government	Remarks		
									Date of payment	Amount of each payment	Initials of Officer in charge	Date of payment	Amount of each payment	Initials of Officer in charge						
						Rs.			Rs.				Rs.							

REGISTER OF DISBURSEMENTS OF SHERIFFS' PETTY ACCOUNT DEPOSITS AT THE AGENCY
OF THE _____ FOR THE MONTH OF _____ 19__

DETAILS OF ORIGINAL DEPOSIT							INITIALS OF			
Date of receipt	Number as per Register of Receipts	Amount of balance of deposit	Date of present payment	Yearly Serial No.	To whom paid	Amount paid	Process serving agent	Officer-in-charge	Daily total carried to Cash Book	Payee's receipt
1	2	3	4	5	6	7	8	9	10	11
		Rs. P.				Rs. P.			Rs. P.	

FORM No. 3.
(Vide Rule 3.)

CASH BOOK OF SHERIFFS' PETTY ACCOUNTS SHOWING CASH BALANCE IN THE HAND OF THE NAZIR
EACH DAY AT THE AGENCY AT.....FOR THE MONTH OF.....19..

1	2	3	4	5	6	7	8	9	10
		RECEIPTS.		PAYMENTS.			BALANCE.		
Date.	Particulars.	Cash.	Treasury	Particulars.	Cash.	Treasury	Cash (3 - 6)	Treasury (4 - 7)	Initials of the Officer-in- charge.
1-4-37	Opening balance	Rs. -	Rs. 4,000	(1) Daily total as per register of disbursements.	Rs. 150	Rs. -	Rs. -	Rs. -	
	(1) Daily total as per register of receipts Total	200	-		150	-	30	4,000	
2-4-37	(1) Daily total as per register of receipts.	500	-	(1) Daily total as per register of disburse- ments.	100	-			
	(2) From cash	-	250	(2) Paid into treasury	250	-			
	Total	500	250						
		700	4,250		500	-	200	4,250	
3-4-37	(1) Daily total as per register of receipts	200	-	(1) Daily total as per register of disbursements.	330	-			
	(2) Withdrawn from treasury.	150	-	(2) For cash	-	150			
	Total	1,130	4,250		1,030	150	100	4,100 *	

FORM No. 5.
(Vide Rule 13.)

Receipt for deposit in Sheriff's Petty Accounts in Agency at _____ _____ Counterfoil of Receipt Book No. _____ Receipt No. _____		Receipt for deposit in Sheriff's Petty Accounts in Agency at _____ _____ Receipt Book No. _____ Receipt No. _____	
Date _____		Date _____	
No. of entry in Register of Receipts _____		No. of entry in Register of Receipts _____	
Name of Agency _____		Name of Agency _____	
Name of depositor _____		Name of depositor _____	
Amount deposited _____		Amount deposited _____	
Signature of Officer-in-charge _____		Signature of Officer-in-charge _____	

CR. 5-D

REGISTER OF PROCESSES RECEIVED AND DISPOSED OF BY THE NAZIR
OF SHERIFFS' PETTY ACCOUNTS AT

[illegible]

AGENCY.

1	2	3	4	5	6	7	8	9	10(A)	10	11	12
Date	Reference to No. of term in Register of Disbursements	Name of person to whom money is to be disbursed.	Amount	Initials of the (Nair)	Date of Service	Amount paid	Acknowledgment of payee	Amount undischarged	Signature of the witnesses in whose presence the amount was paid	Number of items in Register of Receipts against which re-deposited	Signature of the (Nair)	Remarks
			Rs. P.			Rs. P.		Rs. P.				

FORM No. 8,
(Vide Rule 29.)

PAYMENT ORDER ON SHERIFFS' PETTY ACCOUNTS AT _____ AGENCY.

SERIAL NO. _____ OF REGISTER OF DISBURSEMENTS.

Original Number	Date of deposit	Name of depositor	Amount originally deposited	
Pay Rs. _____ Dated _____ Presiding Officer			Received this _____ day of _____ 19____ the sum of Rs. _____ p ^{ts} _____ being the amount payable to _____ on account of the undisbursed deposit described above. Claimant's signature _____	

FORM No. 9.
(Vide Rule 35)
CHALAN (Form No. 32-A)
STEREO A. AND T. T. M. No. 192

CHALAN OF CASH PAID INTO

on _____ 19

TREASURY

Name of person paying the money	Amount paid (in words and figures.)
on account of	
Name of person actually tendering the cash	
Head of account	Date
Received from	
Rupees to the credit of Government as stated herein	
Treasurer	Accountant
	Treasury Officer

FORM No. 10.
(*Vide Rule 36*)

CHEQUE

(Books of personal ledger account cheques as supplied by Treasury Officer/District Accounts Officer.)

FORM No. 12.
(Vide Rule 49)
(Form S.T.R. 42)
(See rule S.T.R. 4,130)
VOUCHER NO.
REFUND OF LAPSED DEPOSITS.

TO

THE ACCOUNTANT GENERAL, PUNJAB, LAHORE.

Sir,

The following refund of Lapsed Deposits, aggregating Rs. (in words) _____ have been claimed by _____ of whose identity and title to the money I have satisfied myself. I request your sanction to the refund.

Class of Deposit	Particulars of Original Deposit		Balance credited to Government	Date of Lapsed Statement	Amount claimed	Remarks
	Year	No.				
			Rs. P.		Rs. P.	

_____ District

The _____ 19

(Sd.)

Judge, Magistrate or other
Officer

Designation of other Officer, _____

Accountant General's Office No. _____ dated _____

Sanctioned _____

Assistant Accounts Officer,
 _____ Punjab
 Assistant Accountant General

Received payment.

Claimant.

Pay Rupees () _____ only.

The _____ 19 _____

Examined. Accountant. Treasury Officer.

NOTICE:— The signature of the claimant should be obtained on this form and the form should be returned as a voucher in support of the debit.

For use in Accountant-General's Office Serial No. in No. Book

ADMITTED _____ OBJECTED TO _____ Auditor Exmr. Supdt.	Noted in the Number Book of the Orders. Superintendent.
---	---

PART E -- CIVIL COURT DEPOSIT ACCOUNTS

SECTION A -- GENERAL

#[1. Amount included.- Civil Court deposits consist of sums which are either paid into Court or paid into District Accounts Office of each District under the orders of the Court with the intention that they should be paid out again either to the depositor or to a third person and should not be finally credited to Government until they lapse to Government under rule 12.7 of the Punjab Financial Rules Volume I read with Article 127 of Account Code Volume II. Civil Court Deposit Accounts relate to all deposits other than those which may properly be included in Sheriffs' Petty Accounts; the large majority of such items are decretal amounts; a list of other items which may be included in these accounts is given in Schedule A to these rules.]

2. Cash and voucher systems.- The system of accounts varies according as the Court is ordinarily permitted to receive and repay deposits in cash or is required to carry out both transactions through the Treasury. These two systems, known as the cash and voucher systems respectively, are described in sections B and C which prescribe the different classes of Courts in which each system is to be followed. The rules given in this section apply to all courts alike.

3. Bailiffs' note-books and their checking.- In order to watch the return and execution of warrants, etc., entrusted to the Execution Bailiffs and to see on what dates the amounts were realised by them and paid into the Treasury, each Execution Bailiff shall maintain a note-book in the form prescribed in Schedule B to these rules. This note-book shall be printed in Urdu.

Note:- The note-books of execution bailiffs will be checked as laid down in note 1 to rule 23 of the Sheriffs' Petty Accounts Rules with the modification that such checks will be performed monthly by the Superintendents and quarterly by the Presiding Officers in the case of accounts maintained in Courts of District Judge and Senior Civil Judge and in a Small Cause Court; and monthly by the Presiding Officers of all other Courts. Where there are more Courts than one situated in the same building, or in close proximity at outlying stations, the note-books should be checked by the Senior of the Presiding Officers.

4. Particulars of the warrant to be entered in Bailiff's note-book.- Before a warrant is handed over to the Bailiff for execution its particulars should be entered in columns 1 to 9 of his note book by the Nazir.

The remaining columns should be completed by the Bailiff or the Nazir, as the case may be, after the execution of the warrant.

Note:- Rules 3 and 4 also apply to Process Servers who are entrusted with the execution of warrants.

#[5. Stamp on receipts.- If the amount to be receipted and the payment voucher exceeds Rs. 20 the claimant will be required to affix revenue stamp of the following denomination:-

Amount. Stamp

- (i) Rs. 21 to Rs. 100 Paisa 15
- (ii) Rs. 101 to Rs. 2000 Paisa 50
- (iii) Rs. 2001 to Rs. 10,000 Re. 1
- (iv) Rs. 10,001/- and above Rs. 2/-.]

6. Separate ledger for Courts mentioned in Section B.- Each of the Courts mentioned in Section B rule 11 shall have a separate personal ledger account for its deposits distinct from that maintained for the Sheriffs' Petty Accounts.

7. Initial deposit by applicant in Insolvency cases.- Under rule 46 of Chapter 4-B, Rules and Orders, Volume II, the initial deposit made by an applicant for adjudication as insolvent is to be shown as a deposit under these rules. Insolvency Courts exercising powers of summary administration may also act as receivers of the Insolvents' estate.

Separate registers with regard to such sums may be maintained provided the Nazir or Cashier remains responsible for the accounts and combines these with the rest of the Civil Court Deposit Accounts at the end of the month.

8. Separate accounts for each Court.- There will be a separate set of accounts for each Court, and the Presiding Officer of each Court will be personally responsible for the supervision of the accounts of his own Court (in the absence of special permission from the High Court to delegate his duties.) When an Additional Judge is appointed to a Small Cause Court, a separate account will be opened, and there will also be a separate account for the Court of Registrar.

9. "Nazir" defined.- The term "Nazir" in these rules includes a Cashier and a Naib-Nazir.

10. Money orders.- Money orders addressed to the Courts must be signed by the Presiding Officer and by no one else except another judicial officer appointed to discharge the duties of the Presiding Officer during temporary absence. It is absolutely forbidden for Superintendent or other ministerial officers to sign them. The Presiding Officer at the time of receiving any money orders, shall first see that the Nazir has entered sufficient particulars thereof to identify the transactions in the "Court's Intermediate Register" and he will then both initial the "Intermediate Register" in respect of the transaction and sign the money order receipt before handing over the receipt to the postman and the money with the money order coupon to the Nazir for further disposal. The money order coupon shall be treated as the depositor's application and the procedure with regard to such applications shall be followed with regard to it. The Presiding Officer must see that all items in the "Intermediate Register" are cleared by transfer entries to the appropriate "Register of Receipts " on the day of receipt if possible or the next morning and initial both the "Intermediate Register and the "Register of Receipts" in verification of this having been done by the Nazir.

SECTION B- THE CASH SYSTEM

#[11. Courts following Cash System.- The provisions contained in rule 12.14 of the Punjab Financial Rules Volume I and appendix 22 thereunder regulate the deposits by the Courts of Small Causes, the repayment and the maintenance of various registers and returns by such court. These are reproduced below:-

"12.14 All deposits are paid into and held at the court, when, however, the sum in possession of the court exceeds Rs. 1,000 the excess amount is at once remitted to the Government treasury. All repayments are made by the court itself without the intervention of the Treasury Officer out of the balance held by it. If, however, the balance is not sufficient to meet the claims, the repayment is made by cheques on the Treasury Officer against the surplus collections remitted to the treasury.

All transactions of receipts and payments are brought to account by the court concerned in the registers of receipts and repayments maintained by it.

The gross receipts and repayments, are reported by the courts concerned from time to time, vide Appendix 22 (including repayments by cheques at the treasury) are taken by the Treasury Officer to the personal deposit account opened separately for each court. These personal ledgers and the corresponding accounts and returns must be kept by the Treasury Officers in the form prescribed for personal deposits, but quite separate from those of personal deposits proper, being designated as "Civil Courts' Deposits".

Each court submits to the Treasury Officer monthly returns (i.e. extract registers of deposits receipts and repayments with vouchers duly stamped where necessary and plus and minus memorandum), quarterly certificate, clearance register and statement of lapses, etc. These returns are transmitted in original by the Treasury Officer to the Accountant General.

Note:- For detailed instructions for the maintenance of Deposit Accounts of these courts see Appendix 22.

APPENDIX 22

(Referred to in Rules, 12.14 and the Note thereunder)

Detailed rules for the maintenance of Deposit Accounts of Courts of Small Causes.

1. A register shall be kept up at the Court in Form T.A. 20 of all deposits paid into the Court.
2. All payments made from these deposits shall be entered in a separate Register (Form T.A. 21) and also in the appropriate column of the Register of Receipts (Form T.A. 20).

Each transaction of a receipt or payment should be initialled by the Registrar appointed under section 12 of the Provincial Small Cause Courts Act, 1887 (IX of 1887).

3. Payments shall be made by the Court to the claimants entitled thereto from the sums brought to credit in the Register of Receipts mentioned in Rule 2 without the intervention of the Treasury Officer except under the special circumstances described in Rule 5 below.

4. Whenever the sum in possession of the Court is in excess of Rs. 1,000, such excess shall at once be remitted to the Treasury accompanied by a challan, which should show the gross receipts, and the payments made under Rule 3, since the last surplus was remitted, and the surplus collections then remitted with the challan, which will be returned to the Court receipted by the Treasury Officer.

5. If at any time the claim of a creditor before the Court shall exceed the balance held by it, the Court shall issue a cheque (Form S.T.R. 41) for such claim on the Treasury Officer against the surplus collections remitted to the Treasury.

6. On the fixed "latest date" each month, each Court should close its Deposit Registers for the month, and enter subsequent transactions in the same Register with those of the next month. In June the fixed "latest date" will be the 30th. In others, such a date will be fixed by the Deputy Commissioner as will secure the inclusion of each month's transactions in the Headquarters Treasury Accounts for the month.

7. On the "latest date" each Court should, without fail, report to the Treasury Officer the receipts and the payments made under Rule 3 which may have taken place since the last surplus balance was remitted to the Treasury, and furnish him with a certified Memo of the closing balance in the hands of the Court. If any surplus balance is to be remitted on that date, the certified Memo of the closing balance should be attached to the challan, the other information being given on the challan itself.

8. The gross receipts and payments on account of Civil Court Deposits, as reported by the Courts from time to time in their challans and in the Memo. sent to the Treasury as directed in Rule 7, together with the payments made on cheques by the Treasury Officer under Rule 5, should be brought on the books of the Treasury Officer and accounts kept in the form prescribed for Personal Deposits (Form T.A. 22), which should be designated

as "Civil Court's Deposits", in order to distinguish them from Personal Deposits proper.

9. The surplus collections remitted by the Courts are not to be entered in the Cash Book of the Treasury Officer, as they will be virtually brought on his books by crediting and debiting the gross receipts and payments of the Courts. They will be treated in the same way as remittance from Sub-Treasuries to the District Treasury.

10. The balances in the hands of the Courts will form a portion of the Treasury Cash Balance, and will be entered specifically by the Treasury Officer in the Cash Balance Report and in the Cash Account like balances of Sub-Treasuries.

11. As soon as the Registers of a month are closed, the Court will submit to the Treasury Officer-

- (1) an extract (in Form T.A. 43) from his Register of Receipts of Deposit which should be written up day by day, so that there may be no delay in sending it at the close of the month.
- (2) a list of Repayments of Deposits made during the month in Form T.A. 21 or 44, supported by receipts of the payees, duly stamped, when in excess of Rs. 20. This list will include payments made by the Court under Rule 3, and payments made by the Treasury Officer on cheques under Rule 5, the number of cheques being noted in column 5, and the word "Cheque" in column 7 of the Register of Payments.
- (3) A duly signed Memorandum of Adjustment in the following Form:-

	Rs.	Ps.
A- Opening balance	0	0
Deposits received during the month of as shown in extract from Deposit Register of Receipts submitted	0	0
Total	0	0

B- Deposits repaid during the month as per List submitted	0	0
Balance in Court which I have verified as correct	0	0
Balance in Treasury	0	0
Total	0	0
	(Signed) A.B.	

Care shall be taken to see that the total of A is equal to the total of B as it ought to be.

12. The Returns received from the Small Cause Court will be transmitted to the Accountant-General in original. The cheques paid by the Treasury Officer should be attached to the Returns with a covering list showing the number and amount of each cheque.

13. On the last working day of each financial year, the entire balance in the custody of the Court shall, without fail, be remitted to the Treasury at such an hour as to admit of its being included in the Accounts for June as a balance at the Treasury.

14. At the commencement of each year, each Court shall furnish the Accountant-General, through the Treasury Officer, with a list of the balances still outstanding of the Civil Courts, Deposits of the second preceding year and those of the last preceding Clearance Register but one which are not allowed to lapse to Government in Form T.A. 43 with suitable changes in the headings and a statement of Lapsed Deposits in Form T.A. 49. The deposits reported for lapses should be excluded from the Clearance Register.

NOTE- When the list of lapses is made up by the Court notice the amount must be sent to the Treasury Officer to enable him to deduct the amount in the personal ledger.]

12. **System of accounts.**- The accounts to be maintained in these Courts are in the main the same as those laid down in the rules for Sheriffs' Petty Accounts to which reference will hereinafter be made as the Sheriff's Petty Accounts Rules. The principal points of difference are--

(a) The audit authorities are required to check the disposal of all Civil Courts deposits, and a detailed return of all receipts and payments must accordingly be made to the Accountant-General (Rules 36 and 37).

(b) In certain cases repayment may be made by cheque instead of cash (Rules 22 and 26), and these repayments have to be treated differently from withdrawals from the Treasury made under the Sheriffs' Petty Accounts Rules.

13. Registers and Forms.- A detailed list of the registers and forms to be maintained is given in Schedule B to these rules. There are three registers, viz., "Register of Receipts," "Register of Disbursements," and "Cash Book," in the same forms as those prescribed by the Sheriffs Petty Accounts Rules with a difference in respect of the "Register of Disbursements" in which the payment column is sub-divided into two columns "cash" and "treasury" for recording cash and cheque payments separately for facility of posting in the "Cash Book." These registers must be kept separate from those of the Sheriffs' Petty Accounts.

Receipt of Deposits

14. Application for deposit.- When a deposit is tendered by a depositor in person, he will present an application to the Court. This application will be verified from the judicial record of the case concerned by the Ahlmad and if it is in order, he shall pass it on to the Nazir. The Nazir shall then fill in columns 1 to 7 of the "Register of Receipts" and prepare a "Receipt" on the foil and counterfoil on the prescribed form and he shall also note on the application over his initials the serial number of the entry in the "Register of Receipts". The Nazir shall then produce the depositor and these documents before the Presiding Officer who, if he approves the deposit, shall initial column 8 of the "Register of Receipts", hand over the foil of the "Receipt" to the depositor, and receive the money from him. He shall then pass on the money and the application to the Nazir for further action. If he does not approve the deposit, he shall cancel, over his own signature, the entries which have been made by the Nazir in all these documents including the register.

Note:- Entries of deposits in the "Register of Receipts" will be numbered in a separate series for each financial year.

15. Deposits by Bailiffs and Court Auctioneers.- When a deposit is made by a Bailiff or a Court Auctioneer, he shall put in a similar application. The receipt will be granted to him, but will show the deposit as made on behalf of the judgment-debtor. Receipts granted to bailiffs will be pasted in their note-books.

16. Deposit by cheque or Remittance Transfer Receipts.- When a deposit is made through the post by cheque issued by Government Departments or by remittance transfer receipts, the accompanying letter will be treated as the application, and the "Receipt" will be sent to the depositor with an endorsement showing the manner of remittance. The cheque or remittance transfer receipt will be sent to the treasury the same day, the Nazir's accounts being balanced by showing the amount as paid into the treasury in the manner provided for remittances of surplus balances in rules 27 and 28. Particulars of the cheque or R.T.R. shall be entered in the "Intermediate Register" as laid down in Rule 10.

17. Deposit by money order.- When the deposit is received by money order, the money order coupon will be treated as the application. A "Receipt" will be drawn up and will be attached to the coupon for being placed on the judicial record. All money orders addressed to the Court will be received by the Presiding Officer as laid down in rule 10.

18. Deposits in case of prohibitory orders against salaries of government and Railway servants.- Deposits in Courts which maintain accounts according to the cash system in this section, in respect of prohibitory orders issued by them against salaries of Government servants, railway employees, etc., will be made as follows :-

(i) When a Government servant or a railway employee, etc., is paid by an office which is situated in a station other than that at which the Court issuing the prohibitory order is located, the salary disbursing office must remit the amount to the Court by postal money order, the postal money order commission being deducted from the amount specified in the attachment order.

(ii) Where a Government servant or railway employee, etc., is paid by an office which is situated in the same station at which the Court issuing the prohibitory order is located, the salary disbursing office must pay the amount to the Court in cash or

remit it by postal money order in the manner laid down in (i) above.

(iii) Presiding Officers of Courts shall endorse all prohibitory orders with clear instructions, that is (i) or (ii) above, as the case may be, to guide salary disbursing offices how to pay into their Courts the money attached.

Payments

19. Entry of payments.- All payments made from these deposits shall be entered in the "Register of Disbursements" and also in the appropriate column of the "Register of Receipts"

20. Mode of cash repayment.- When an application for repayment of deposits is made to the Court, the Nazir shall check the claim with reference to the entry in the "Register of Receipts" and if the balance be sufficient, he shall prepare a "Voucher" (Civil Account Code form No. 27 or Punjab stereo A and T form No.261) and have it signed by the Presiding Officer of the Court concerned. He will then take the payee's receipt, duly stamped according to rule 5, and pay the amount out of his current receipts. The payment will be recorded in the "Register of Disbursements" with full details of the original deposit in columns 1 to 3, and a note of the date and the amount of the repayment will be made, at the same time, in the "Register of Receipts" against the original receipt entry.

21. Responsibility of Presiding Officer about repayments.- All repayments of such deposits to the parties concerned shall invariably be made in the presence of the Presiding Officer who will also be responsible for seeing that the amounts are paid to the proper claimants and that the entries made in respect of these transactions in the appropriate registers are duly supported by his initials (as required by Rule 23) before payment is made.

22. Repayments by cheques.- If the balance of the current receipts is not sufficient to meet a demand, repayment shall be made by means of a "cheque" on the Treasury in favour of the actual claimant, signed by the Presiding Officer, the number and date thereof being endorsed on the "Voucher" (see Rule 20) as follows:-

"Paid by cheque No. , dated ."

23. Repayments to be entered in proper registers.- All repayments of deposits, whether made from current receipts or by "cheque" on the Treasury against surplus collections remitted to it, shall be recorded in the "Register of Receipts" and the "Register of Disbursements" as in Rule 20 under the initials of the Presiding Officer.

24. Instructions to be followed when authorising payment.- When authorising payment, the Presiding Officer signing the "voucher" or the "cheque" shall carefully observe the instructions contained in Articles 201, 202, 210, Civil Account Code, Volume I, which are summarised as follows:-

(a) A person claiming refund of a deposit must produce an order of the court or authority which ordered acceptance of the deposit; this order the Presiding Officer will compare with the entry in the Register of receipts, and, if the balance be sufficient, he will take the payee's receipt, make payment, and record it at once, under his initials both in the Register of Disbursements from which a daily total is carried to the Cash Book and in that of receipts noting in both also the date and the amount of the repayment.

(b) In order to avoid the inconvenience and risk which accompany the payment of money upon proceedings recorded in the Urdu languages, and to ensure caution in the issue of such orders, the Government have directed that every order issued by a Court or office for the payment of money from a Government Treasury shall be in English, unless the Presiding Officer is unacquainted with that language. If the disbursing officer does not understand English, and the officer ordering the payment does, the order for payment shall be both in Urdu and in English.

He will further see that each application for repayment is duly cancelled over his signature so that a second payment cannot be made.

25. Voucher for cash payment to be stamped "paid."--All vouchers paid by the Nazir out of receipts shall be stamped "paid" by himself.

26. Repayment by transfer credit.- In the case of repayments to be made by transfer credit to Government account, cheques will be prepared in the manner laid down in the Rule 22. Such cheques will be drawn in favour of self and endorsed--
"Received payment by transfer credit to -----."

This is as laid down in note 2 to Article 26, Civil Account Code, Volume I, which runs "When a public officer sends a cheque to a

Treasury not for cash payment, but for credit of its amount in the Treasury accounts, he must, before endorsing the same, add the words 'Received payment by transfer credit to-----'. Omission to do this facilitates fraudulent appropriation of money."

The particular head in the Government accounts to which the credit is to be afforded by transfer will be noted both in the "Register of Receipts" and in the "Register of Disbursements".

Transactions with the Treasury

27. Surplus money to be sent to Treasury by post.- Whenever the amount of deposit in possession of the Court, other than the Court of Small Causes at Lahore, is in excess of [#][Rs.1000] by Rs.10 or more; such excess shall at once be remitted to the Treasury by postal money order, commission being charged to contingencies for which a small advance will be made to the Court by the Senior Civil Judge out of the payment advance sanctioned for him under [#][Rule 2.8 Punjab Financial Rules, Volume I.] A memorandum in the form prescribed in rule 34 of the Sheriffs' Petty Account Rules with a challan (Stereo A and T form No. 192) in duplicate shall be despatched by post to the treasury officer who shall sign it and return one copy of the challan to the Court. The number and date of the challan should be noted on the money order coupon by which money is remitted.

28. Surplus money to be sent to Treasury by post.- The same procedure shall be adopted in the cases of the Court of Small Causes at Lahore, except that deposits in excess of Rs. 1,000 will be remitted to the treasury, but not by money order.

29. Remittance to Treasury by cheque or Remittance Transfer Receipt.- When a deposit is made by cheque issued by Government Departments, or by R.T.R., under rule 16, this should be sent to the Treasury in the manner provided for the remittance of surplus balances in Rules 27 and 28, and will be shown as such in the "Cash Book."

29-A. Balance to be credited in Treasury at the end of the month.- The balance in the hand of the Nazir at the end of the month should be remitted to the treasury so that it may be included in the treasury accounts for that month with a memo. as prescribed in the Sheriffs' Petty Accounts Rules. The date for

33. Mode of supervision.- The daily supervision of accounts will take place exactly in accordance with the Sheriffs' Petty Accounts Rules-Section VII.

34. Matters requiring special attention of the Presiding Officer.- (i) The Presiding Officer should pay special attention to two matters. He must see that all amounts received by money order are promptly brought to account and he must also see that all cheques and R. T. Rs. are sent to the Treasury as soon as received.

(ii) The Presiding Officer must satisfy himself every day of the correctness of the balance in the "Cash Book."

He should see that-

(a) the excess amount over the prescribed limit when necessary and the entire amount of cash in the hand of the Nazir on the last working day of the month is positively remitted to the treasury;

(b) that a reference to the treasury receipt is quoted against the relevant entry in the Cash Book and that the receipt is pasted in a separate guard file.

35. Applications to be returned to Ahlmad for inclusion with the judicial records.- After attestation, the applications will be returned to the Ahlmad for inclusion with the judicial records concerned.

Monthly Returns

36. As soon as the Registers of a month are closed and the Treasury Pass Book has been received, the Presiding Officer of each Court will submit to the Treasury Officer:-

(i) Monthly submission to the Treasury of extracts from Register of Receipts.- An extract from the "Register of Receipts" in Form No. #[T.A. 43] which should be written up day to day, so that there may be no delay in sending it at the close of the month.

Note:- At the end of every quarter, the Presiding Officer of the Court shall certify that he has personally and carefully examined the register and that the entries are made with the utmost care and regularity.

(ii) Monthly submission to the Treasury on list of repayments with payees receipts.- A list of repayments of deposits made during the month in C.

Form No. 4 [T.A. 44] supported by receipts of the payee duly stamped when in excess of Rs. 20. This list will include payments made by the Court under rule 20 and payment made by the Treasury on cheques under rules 22 and 26, the number of the cheque and the word "cheque" being noted in column 4 of the list.

(iii) Memorandum of adjustment.- A duly signed memorandum of adjustment in the following form:-

		Rs
A.- Opening balance	...	...
(As per treasury column of the Cash Book)	...	...
Deposits received during the month of----- as shown in the extract from the "Register of Receipts" submitted		
Uncashed cheques (if any)	...	
	Total	...
B.- Deposits repaid during the month as per list submitted	...	
Balance in Treasury	...	...
	Total	...
	(Signed) A.	
	B.	

Note:- Care shall be taken to see that the total of A is equal to the total of B as it ought to be.

37. Treasury Officer will forward the returns with cheques paid by him.- The returns received from Courts will be transmitted by the Treasury Officer to the Accountant-General in original, the cheques paid by the Treasury Officer being attached to the returns with a covering list showing the number and amount of each cheque.

Lapses.

Lapses

#[38. When amounts lapse. Statement of lapsed items to be sent annually.

Lapsed amounts not to be paid by Nazir.- In accordance with the provisions of rule 12.7 of the Punjab Financial Rules Volume-I read with Article 127 of Account Code Volume II all deposits not exceeding 5 rupees unclaimed for one whole Account Year, the balances not exceeding 5 rupees all deposits particularly repaid during the year then closing, all balances unclaimed for more than 3 complete Account Years will, after close of June in each year to be credited to Government by means of transfer entries in the office of the Accountant General. The statement of deposits and balances thus lapsing shall be prepared by Nazir immediately after 30th June each year in Form T.A. 49 it having been checked by the Presiding Officer submitted to the Accountant General through Treasury Officer. Amounts shown in this statement shall not thereafter be paid by the Nazir. They shall be paid by the Treasury with the sanction of the Accountant-General according to the procedure laid down in rule 4.130 of the Treasury and Subsidiary Treasury Rules. An application for sanction will be made in Form STR 42.]

39. Clearance register to be sent along with lapsed statement.- Along with the statement of lapses each Court shall also furnish the Accountant-General, through the Treasury Officer, with a list of balances still outstanding of the second preceding year. This list is prepared in Form No. T.A. 43 after changing its headings and is called the "Clearance Register." The deposits reported for lapse should be excluded from the "Clearance Register". To this "Clearance Register" should also be transferred any items in the last preceding clearance register but one that are for special reasons not allowed to lapse to government while the bulk of the outstandings in it so lapse.

SECTION C -- VOUCHER SYSTEM

40. Courts which follow voucher system.- These rules apply to all Civil Courts other than those mentioned in Section B; that is, they apply to Courts of District Judges, and to all Courts of Civil Judges at the headquarters of a district or at stations where there is a Treasury or a Sub-Treasury.

41. Principle of the system explained.- The principle of this system is that laid down in Rule #[4.131 of the Treasury and Subsidiary Treasury Rules]; that is, it is intended that these Courts should neither receive nor pay out

money, but that all deposits should be paid into the treasury on documents signed by the Presiding Officer of the Court, and all payments should be made by means of vouchers on the Treasury.

42. Exceptions.- Certain exceptions, however, have to be made in the case of money received by the Court by money order or collected. Special provision for such cases is made in these rules, the principle being that the money must be paid into the Treasury by the Court on the same day. The Presiding Officer is responsible for seeing that this is done.

43. Register of Receipts.- Only one register will be maintained under the Voucher System and that is the "Register of Receipts" which is slightly different from the one maintained for Sheriffs' Petty Accounts and for the Cash System of Civil Court Deposits; it is reproduced in Schedule B to these rules. The important point to bear in mind is that this register is primarily a record of challans and vouchers issued, and not of actual cash transactions.

DEPOSITS IN TREASURY

44. Application for deposit: How to be dealt with.- The deposits shall, where branches of the State Bank of Pakistan have not been established, be made in the Treasury. The depositors shall submit challan form in triplicate with the application to the Court concerned. After verification and approval by the Court and after the Nazir has made entries in columns 1 to 7 of the Receipt Register, the challans shall be submitted by the depositor to the Treasury together with the amount for deposit. The Treasury shall retain one copy, give the other to the depositor by way of receipt, and send, on the next day, the third to the court concerned after noting thereon the date and number of the entry in the Treasury register. The Nazir shall enter the date and number in the Receipt Register under the initials of the Presiding Officer. The court shall, at the end of every month, prepare a statement of deposit and send it to the Treasury for verification and it shall be returned by the Treasury Officer within a week.

DEPOSITS IN STATE BANK

45. Return of application by the Treasury.- The application together with the Treasury challans in quadruplicate shall be received by the Court concerned. The challans shall, after necessary verification and orders of the Presiding Officer and after the Nazir has made entries in the Receipt Register, be returned to the depositor for depositing the money in the State Bank while the application shall be retained by the Court and the depositor directed to show the challan to the Court after deposit. The Bank shall receive the amount along with the challans in quadruplicate and shall return one copy of the challan to the depositor by way of receipt and send two copies to the Treasury Officer, who shall retain one copy and send the other to the Court concerned after noting thereon the number and date of the entry in the Treasury deposit register. The Treasury shall send the challan form to the Court within two days of its receipt from the Bank. The Nazir shall enter the deposit number in the Receipt Register under the initials of the Presiding Officer. At the close of every month the Court shall prepare a statement of all deposits made during the month and send it to the Treasury Officer by the 5th of each month for verification from the entries in the Treasury Register. The Treasury Officer shall return the statement, after verification, within a week.

46. Remittance to Treasury of money received by money orders.- When money is received by money order and dealt with in the "Court's Intermediate Register" as provided in rule 10, the Nazir will prepare a formal application and the necessary challan in duplicate, fill in columns 1 to 7 of the "Register of Receipts," and remit the money to the Treasury after the Presiding Officer signs the application and the challans in duplicate, and initials the amount in column 7 of the "Register of Receipts."

47. Deposit by Bailiff or Court Auctioneer.- When money is to be paid in by a Bailiff or a Court Auctioneer, he should be required to pay the money into the Treasury himself as if he were a private depositor. The copy of the challan returned by the Treasury to the Bailiff by way of receipt should be pasted into his note-book.

Note:- When money is realized by a Bailiff on a warrant issued by a Court not situated at the headquarters of the Process Serving Agency to which he is attached the challan will be prepared in triplicate by the Local Process Serving

Agent and signed by the Officer in charge of the Agency. On receipt of the money, the treasury will retain one copy of the challan, return the second copy to the Bailiff and forward the third, after noting thereon number and date of the deposit in the books of the treasury, to the local Process Serving Agent for transmission to the Court concerned so that the deposit may be entered in the Register of Receipts maintained in that Court.

48. Money received to be sent immediately to the Treasury.- All money received under Rule 46 must be paid into the Treasury on the same working day, or on the morning of the next working day if received after the closing hours of the Treasury.

49. The names of both the actual depositor and the person on whose behalf the deposit is made should be entered.- Where money is received either by money order or through a Bailiff or Court Auctioneer, the words "By money order" or "Through Bailiff" or "Through Court Auctioneer" as the case may be, should be entered in column 5 of the "Register of Receipts" beside the name of the person from whom the money is received. The Presiding Officer will then be responsible for checking the Treasury receipt numbers and dates of these items with the challans received back from the Treasury, which should be laid before him on the following day. He should initial column 9 of the "Register of Receipts" in token of this check.

50. Treasury Receipt Number and date to be entered in Receipt Register.- When the application is received back from the Treasury, the Nazir will enter the treasury receipt number and date in column 8 of the "Register of Receipts" and the Presiding Officer will initial column 9 after verification. The application will then be placed on the judicial record of the case by the Ahlmad concerned.

51. Deposits in re. prohibitory orders issued against salaries of Government and Railway servants.- Deposits in Courts which maintain accounts according to the voucher system in this section, in respect of prohibitory orders issued by them against the salaries of Government servants, railway employees, etc., will be made as follows:-

(i) Where a Government servant or railway employee, etc., is paid by an office which is situated in a station other than that in which the Court issuing the prohibitory order is located, the salary disbursing office must remit the amount to the Court by postal

money order, the postal money order commission being deducted from the amount specified in the attachment order;

(ii) Where a Government servant or railway employee, etc., is paid by an office which is situated in the same station at which the Court issuing the prohibitory order is located the salary disbursing office must deposit the amount in the local treasury or sub-treasury as a "Revenue Deposit" on a challan prepared by the salary disbursing office in triplicate; one copy of the challan for record, one copy will be returned by the Treasury Officer to the salary disbursing office as a receipt, and the third copy will be forwarded by the Treasury Officer to the Court issuing the prohibitory order with the number and date of the treasury deposit noted on it to enable the Court to make the necessary entries in its "Register of Receipts" and place the challan receipted by the treasury or sub-treasury on the judicial record of the case.

Presiding Officers of Courts shall endorse all prohibitory orders with clear instruction, that is (i) or (ii) above as the case may be, to guide the salary disbursing offices how to pay into Courts the money attached.

Payments by Voucher

52. Mode of payment.- No separate register for recording repayment of Civil Court deposits will be maintained by the Nazir of the Court. On receipt of an application for the repayment of such deposit, the Nazir or the Court will verify the item from the "Register of Receipts" and put up the application along with the register and the original record, if not already consigned to the record room for orders of the Presiding Officer. After orders for repayment are passed by the latter, the Nazir will prepare a voucher in form "C.A.C. Form No. 27," enter the particulars of repayment in the "Register of Receipts" against the relevant item and will get both the register and the voucher signed by the Presiding Officer of the Court concerned. He will then deliver the voucher along with a memo. showing brief particulars of payment to the payee for drawing money from the Treasury and place the application and the payee's receipt for the voucher on record. The Treasury Officer will return the memo. to the Court after recording thereon the number and date of the Treasury voucher and these particulars should be noted against the entry of payment in the "Register of Receipts" over the signatures of the Presiding officer of the Court.

53. Duplicate vouchers.- If a second claim is presented for the amount shown in the "Register of Receipts" as paid a duplicate voucher may, if necessary, be issued to the payee after obtaining a non-payment certificate from the Treasury Officer, vide Article 16 Civil Account Code, Volume I. This voucher should be distinctly marked "Duplicate". A note regarding the issue of the duplicate voucher should be recorded against the item in question in the "Register of Receipts" over the initials of the Presiding Officer.

54. Voucher forms should be supplied in book form, stitched and machine numbered.- Vouchers in form C. A. C. Form No. 27 are often supplied in unbound form. The Courts should not accept vouchers in form C. A. C. Form No. 27 except in book form stitched and machine-numbered.

55. Repayment by transfer credit to Government Account.- In the case of repayment to be made by transfer credit to Government account, the voucher will be prepared by the Nazir in the same way as laid down in rule 52 but signed by the Presiding Officer of the Court who should note distinctly on the voucher.

"Received payment by transfer credit to-----" (specifying the appropriate head of account). On receipt of the voucher, the Treasury Officer will make the necessary entries in his account by "debit to deposit" and credit to the head specified in the voucher entering the amount in the relevant receipt schedule. Such vouchers need not be stamped even though the amount involved exceeds Rs. 20.

Returns

56. Returns to be prepared by Treasury Officer.- All returns in connection with the receipt and repayment of deposits for submission to the Accounts Office will be prepared by the Treasury Officer and not by the Nazir of the Civil Court concerned.

CIVIL COURT DEPOSIT ACCOUNTS

SCHEDULE A

List of items which may properly be included in Civil Court Deposit Accounts.

1. Money paid into Court by parties in anticipation of judgment.

2. Pre-emption money.
3. Decretal amounts paid in by judgment-debtors or by their superior officers, when their pay is attached, or by other Courts, on attachment of a decree.
4. Amounts realised in execution by Bailiffs or Court Auctioneers.
5. (Insolvency Court only): advertisement charges and realisations from estates summarily administered.
6. (District Courts only): Compensation for land acquisition deposited by Collector.
7. Deposits for Court fee in Probate, Letters of Administration, and Succession Certificate cases.
8. Compensation deposited with District Judges or Civil Judges appointed as Commissioners under the Workmen Compensation Act.
9. Deposits under the Punjab Relief of Indebtedness Act/Ordinance.
10. Security required by a Civil Court and deposited by a party to a suit.
11. (District Courts only): Money realised in liquidation proceedings when this is not paid into an account opened by the Liquidator with the State Bank/National Bank of Pakistan.
12. Any other amount received by a Civil Court in a case and cannot be disbursed immediately, provided that in no case will money be deposited in these accounts which under other rules is straightaway to be credited to Government revenues.

Note:- No Court should receive money unless it is authorised to do so either by law or by the rules of the High Court and in the absence of express authority, and of full particulars, the deposit should be refused, otherwise, difficulties may arise over refunds. All money received must be brought to account. In particular, it should be noted that-

- (i) (the taking of security in cash from subordinate officials is absolutely forbidden; and
- (ii) Guardianship Courts are not allowed to take money into deposit on behalf of minors. Guardians frequently try to deposit money with the Court. They should be required to deposit it with an approved Bank in accordance with the

rules on the subject. Other persons should be directed to make payment to the guardian.

CIVIL COURT DEPOSIT ACCOUNTS

SCHEDULE B

List and specimens of registers and forms to be maintained or used by Courts in Civil Court Deposit Accounts.

1. Note-Book of Execution Bailiff.
2. Register of Receipts (Cash system)
3. Register of Receipts (Voucher system).
4. Register of Disbursements (Cash system).
5. Cash-Book (Cash system).
6. Receipt form (Cash system)
7. Voucher form (Cash and Voucher systems).
8. Cheque (Cash system).
9. Challan form (Cash and Voucher systems).
10. Register of uncashed cheques (Cash system).
11. Treasury Pass Book (Cash system).
12. Form No. 28, Civil Account Code, Volume I (Cash system).
13. Clearance Register (Cash system).
14. Form No.47, Civil Account Code, Volume II (Cash system).
15. Form No.29, Civil Account Code, Volume I (Cash system).
16. Form No. 30, Civil Account Code, Volume I (Cash and Voucher system).
17. Intermediate Register (Cash and Voucher systems).

receipt books.

18. Stock book of forms of -----

cheque books.

NOTE BOOK OF _____
COURT OF _____
FOR THE MONTH OF _____ 19____
EXECUTION BAILIFF.

Monthly Serial No.	Date of issue of warrant	Serial No. in the Register of process received and disposed of by the Nazir.	Name of the Court issuing the warrant	Name of parties	Name of judgment debtor	Date of next hearing in the case	Date of return of warrant found by the Nazir	Nature of execution, i.e. attachment of property or arrest of the debtor	Date of execution	Amount and/or No. of articles received	Date of credit of realization	Amount	Particulars whether execution was carried out or not	Acknowledgment of Nazir with date and NO. of entry in Register of Receipts	Remarks
1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16

FORM No. 2.
(Vide Rule 13)

REGISTER OF RECEIPTS OF CIVIL COURT
DEPOSITS OF THE COURT OF _____

(CASH SYSTEM)

1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16	17	18	19	20	21
	Date of receipt	No. of suits deposited	No. of file of the case in which deposited	Name of the Court and of the parties with serial No. and date of filing in which the case is to be kept	From whom received	Nature of deposit	Amount of each deposit	Initials of presiding officer	Daily total	DETAIL OF PAYMENTS						Total of payments	Lapsed and credited to Government	Remarks		
										Date	Amount of each payment	Initials of presiding officer	Date	Amount of each payment	Initials of presiding officer				Date	Amount of each payment
							Rs.			Rs.			Rs.			Rs.				

FORM No. 4.
(Vide Rule 13)

REGISTER OF DISBURSEMENTS OF CIVIL COURT
DEPOSITS OF THE COURT OF _____

(CASH SYSTEM)

DETAILS OF ORIGINAL DEPOSIT			Date of present payment	Yearly Serial No.	To whom paid	AMOUNT PAID		INITIALS OF		DAILY TOTAL CARRIED TO CASH BOOK		Payee's receipt
Date of receipt	No. as per Register of Receipts	Amount of balance of deposit				Cash	Treasury	Nazir	Presiding Officer	Cash	Treasury	
1	2	3	4	5	6	7	8	9	10	11	12	13
		Rs. P.				Rs. P.	Rs. P.			Rs. P.	Rs. P.	

FORM No. 5.
(Vide Rule 13)
CASH BOOK OF CIVIL COURT
DEPOSITS SHOWING CASH BALANCE IN THE HAND OF THE NAZIR OF THE
COURT OF _____ FOR THE MONTH OF _____ 19____
(CASH SYSTEM)

1	2	3	4	5	6	7	8	9	10
Date	RECEIPTS			PAYMENTS			BALANCE		
	Particulars	Cash	Treasury	Particulars	Cash	Treasury	Cash (3-6)	Treasury (4-7)	Initials of the Presiding Officer.
1-4-37	Opening balance	Rs.	Rs.		Rs.	Rs.	Rs.	Rs.	
	(1) Daily total as per register receipts	200	—	(1) Daily total as per register disbursement	150	—	—	—	
	Total	200	4000	Total	150	—	50	4,000	
2-4-37	(1) Daily total as per register receipts	500	—	(1) Daily total as per register disbursement	100	—	—	—	
	(2) From cash	—	250	(2) Paid into treasury	250	—	—	—	
	Total	500	4,250	Total	350	—	200	4,250	
3-4-37	(1) Daily total as per register receipts	280	—	(1) Daily total as per register disbursements	530	—	—	—	
	(2) Withdrawn from treasury	150	—	(2) For cash	—	150	150	—	
	Total	1,130	4,250	Total	1,080	150	100	4,100	

FORM No. 6.
(Vide Rule 14)

RECEIPT FOR DEPOSIT IN CIVIL COURT DEPOSITS (CASH SYSTEM) OF THE COURT OF _____ COUNTERFOIL OF RECEIPT		RECEIPT FOR DEPOSIT IN CIVIL COURT DEPOSITS (CASH SYSTEM) OF THE COURT OF _____ RECEIPT	
Book No. _____		Book No. _____	
Receipt No. _____		Receipt No. _____	
Date _____		Date _____	
No. of entry in Register of Receipts ..		No. of entry in Register of Receipts ..	
Name of Court ..		Name of Court ..	
Name of depositor ..		Name of depositor ..	
Amount deposited ..		Amount deposited ..	
Signature of Presiding Officer		Signature of Presiding Officer	

FORM No. 7,
(Vide Rule 20)
VOUCHER IN FORM No. 27, CIVIL ACCOUNT CODE, VOLUME I
(CASH AND VOUCHER SYSTEMS)
 Stereo, A and T /Deposits No. 261
 Treasury _____ Month of _____ 19____

Head of Service Chargeable _____		Voucher No. _____		List of Payments _____	
Original Number _____	Date of Deposit _____	Name of Depositor _____	Amount originally deposited Rupees _____		
		Received this _____ day of _____ 19____, the sum of Rupees _____ being the amount payable to _____ on account of the Deposit described above			
Examined and entered _____ Accountant, Treasury Treasury Officer		Claimant's Signature _____ Stamp if required _____ Passed for payment Rs. _____ Judge, Magistrate or Collector			
Rupees _____					

FORM No. 8.
(Vide Rule 22)
CHEQUE
(CASH SYSTEM)

(Books of Personal Ledger Account cheques as supplied by Treasury Officer)

FORM No. 9
(Vide Rule 27)
CHALAN (Form No. 32-A)
Challan of cash paid into the Treasury,
State Bank of Pakistan/National Bank of Pakistan.

TO BE FILLED IN THE REMITTER		TO BE FILLED IN BY THE DEPARTMENTAL OFFICER OR THE TREASURY	
By whom tendered	Name of designation and address of the person on whose behalf money is paid	Full particulars of the remittance and the authority (if any)	Amount
			Head of account
			Order to the Bank
			Date Correct Receive and grant receipt Signature and full designation of the Officer ordering the money to be paid in
		Total	

To be used only in the case of
remittances to Bank through an
Officer of the Government

Treasury Officer
Agent/Manager

Received payment Date

Signature
(in words) Rupees

FORM No. 10,
(Vide Rule 31)

REGISTER OF UNCASHED CHEQUES OF CIVIL COURT
DEPOSITS ON THE TREASURY OF THE COURT OF _____

(CASH SYSTEM)

Date	Number of cheque and No. in Column 5 of Register of Disbursements	Previous Balance Rs. P.	Issued during month Rs. P.	Cashed by Treasury Rs. P.	Balance Rs. P.	Remarks

NOTE:- "Date of encashment" should be entered in the column for "Remarks."

FORM No. 13.
(*Vide Rule 39*)

CLEARANCE REGISTER

(CASH SYSTEM)

The form is as of form 28, Civil Account Code, Volume I, but with the title changed.

It is printed as Punjab Form Stereo A. and T. 260.

List of Repayments of month of	Deposits of 19	Treasury for the
-----------------------------------	-------------------	------------------

Date of Receipt	Details of original Deposit	Amount or balance of Deposit		Number of Repayment Voucher	Amount Repaid	
	Number as per Register of Receipts	Rs.	P.		Rs.	P.

DEPOSITS OF THE
19[illegible]

¹Civil Criminal Courts or Revenue.

FORM No. 16,
(Vide Rule 38)
S.T.R. 42
(See Rule S.T.R. 4.130)
Refund of Lapsed Deposits

To,

THE ACCOUNTANT GENERAL, PUNJAB _____

The following refunds of Lapsed Deposits aggregating Rupees _____ (in words) have been claimed by _____ of whose identity and title to the money I have satisfied myself, request your sanction to the refund.

Class of Deposits	Particulars of original Deposit		Balance credited to Government		Date of Lapsed Statement	Amount claimed		Remarks
	Year	No.	Rs.	P.		Rs.	P.	

Signature

The _____ 19

Judge, Magistrate or other Officer

FORM No. 17.

(vide Rule 10.)

INTERMEDIATE REGISTER OF MONEY ORDERS, ETC. RECEIVED IN
THE COURT OF _____ FOR THE MONTH OF _____ 19__

Serial No.	RECEIPT					DISPOSAL				Remarks
	Date of Receipt	If Money Order: (i) Name of remitter. (ii) No. and date of money order, and (iii) Post Office of issue	If Cheque: (i) Name of drawer (ii) No. and date of cheque (iii) When bank, and (iv) No. and date of crossing letter.	If other valuable: (i) Specify item (ii) From whom received (iii) Particulars of cash	Amount of money, order or cheque	Initials of Presiding Officer	Serial No. and date in Register of Receipts S.P.A.C. 7.	Made if other disposal	Signature of Presiding Officer	
					Rs.					

FORM No. 18.

STOCK BOOK OF FORMS OF
RECEIPT BOOKS
CHEQUE BOOKS
IN THE COURT OF _____

[illegible]

CHAPTER 9
RULES UNDER THE MUSSALMAN WAKF ACT,
1923....[Omitted].



**RULES AND ORDERS
OF THE
LAHORE HIGH COURT, LAHORE**

VOLUME III

**INSTRUCTIONS
TO
CRIMINAL COURTS**

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** Added vide Lahore High Court Notification *ibid.*

*** Omitted vide Lahore High Court Notification *ibid.*

Note: For original text and earlier amendments therein, the previous edition(s) of the Volume may be consulted.

Rules and Orders of the Lahore High Court Lahore

VOLUME III. – Instructions to Criminal Courts

CHAPTER 1

Practice in the trial of Criminal Cases

PART A -- GENERAL

***[1. Court hours and place of sitting.--** All trials held at the headquarters of a district or sub-division shall be conducted during Court hours as may be fixed by the High Court from time to time, at Court houses only. When it becomes necessary to take up a case on tour, due notice of the place and hour fixed for attendance shall be given to the parties:

Provided that nothing in this paragraph shall apply to the Courts set up to try offences at the spot under the Minor Acts, such as traffic offences, cattle trespass and forests offences, etc.]

2. **[Institution of ordinary petitions.]-- (a) A petition box shall be placed in the verandah of the Court house at about one hour before the Court sits, an official being specially made to attend early for this purpose. It shall be opened in the presence of the Magistrate at about 15 minutes after the Court opens when all petitions shall be presented and initialled by him. The Magistrate shall pass proper orders forthwith or inform the petitioner when orders will be ready after the necessary Kaifiyats have been put up. The box shall be replaced in the verandah and opened again shortly before the Court rises for luncheon in the presence of the Magistrate and the same procedure followed. It shall then be replaced once more in the verandah and opened for the last time 15 minutes before the time fixed for the rising of the Court and the procedure prescribed above followed. After the Magistrate has risen, the box will be brought back to the Court room and no further petitions will be accepted. A list of all

miscellaneous petitions, etc., on which orders cannot be passed forthwith, should be prepared and exhibited outside the Court room specifying the date fixed for the disposal of each petition.

(b) ****[Urgent petitions.]--** In urgent cases, however, the Magistrate may exercise his discretion and personally receive *[petitions] presented to him direct at any time.

(c) The members of the ministerial establishment are strictly forbidden to receive complaints, petitions or other documents direct from lawyers and their clerks or from litigants except when the Magistrate is on leave and no other Magistrate is in charge of his current duties. District Magistrates should, however, invariably make arrangements for the reception of complaints, petitions, etc., by another Magistrate when a Magistrate is temporarily absent on leave, tour or otherwise. Where there is a single Magistrate at a station such as a Moffassil or outlying Court, District Magistrates should issue such orders as may be necessary in the peculiar circumstances of each case to ensure the convenience of the general public.

*[(d) Application put in by counsel for the inspection of records may be presented to the Magistrate personally.]

3. Court house in an open Court.-- Section 352 of the Code of Criminal Procedure lays down that the place where a Criminal Court is held, "shall be deemed an open Court to which the public generally may have access so far as the same can conveniently contain them," but the discretion to exclude the public from the ordinary Court room rests with the presiding Magistrate. When, however, the presiding Magistrate, for any reason, excludes the public by holding his Court in a building such as a jail, to which the public is not admitted (and he is not entitled to do so without permission of the Department concerned) he should obtain the sanction of Government thereto, through the District Magistrate, and should inform the High Court that sanction has been accorded.

*[4. **Speedy disposal of cases.-** Magistrates shall give priority to criminal cases when an accused person is in custody. A criminal case shall be proceeded with from day to day as far as practicable and disposed of quickly. Witnesses, who are present, should be examined promptly and shall not be

detained longer than may be absolutely necessary. Adjournments, when necessary, shall be as short as the circumstances permit.

4-A. It is not a reasonable cause of postponement under section 344 of the Code of Criminal Procedure, 1898, except for a short period, that there are other accused in the case for whose arrest it is considered by the Court desirable to wait in order that all the accused may be put on their trial together. Every accused has a right to have the evidence against him recorded at as early a period as possible.]

5 & 6 ***[Omitted]

***[7. Closing hour of Court.--** The hearing of a case taken up before closing hour of the court may, if necessary, be continued for a short time after that hour; but no new case should be taken up after the hour when the court is timed to rise.]

8. Adjournments caused by holidays, etc.-- On the occurrence of an unexpected holiday or the unexpected absence of an officer, the Presiding Officer, before his departure or before finishing the work on the day preceding the holiday, should himself fix fresh dates of hearing in the peshi register for the cases fixed for the day in question. The register should then be made over to the reader of the court, or in the case of a holiday to a selected reader, who should be made responsible for informing all parties and witnesses of the adjournments given on their coming to attend the closed court or courts. On holidays the duty Magistrate at headquarters should check and supervise the work of the selected reader for the Criminal Courts at least once in the course of the morning.

9. Daily progress reports.-- The forms prescribed for reporting the daily progress of cases (see Volume VI-B, Part III, form No. 176) should be used by Magistrates without fail and a copy should be sent daily to the District Magistrate or Sub-Divisional Officer as the case may be.

10. Explanation of delay in quarterly statements.-- Magistrate shall furnish in quarterly criminal statement No. II explanations of delay in the disposal of cases pending over 4 months. In this connection also see paragraph 6 of Chapter 23-C, Volume IV.

11. History sheets.-- Magistrate shall submit history sheets containing abstract of orders passed on different dates in all cases pending over one year provided they are not stayed. When delay is said to be due to a transfer application pending in a higher court, it is the duty of the higher court concerned to look into and remark on the causes of delay and to expedite disposal of the transfer application.

PART B -- INITIATION OF PROCEEDINGS

1. ***[Omitted]

***[2. Right of accused for transfer of a case taken up by a Magistrate on information or knowledge.** - In most cases Magistrates take cognizance of an offence on a complaint under clause (a), or on the report of a Police Officer under clause (b) of sub-section (1) of section 190 of the Code of Criminal Procedure 1898.

A Magistrate taking cognizance of an offence under clause (c) of sub-section (1) must, before any evidence is taken, inform the accused person that he is entitled to have the case tried by another Court, and if the accused objects to being tried by such Magistrate, the case must be sent in the case of a Judicial Magistrate to the Sessions Judge and in the case of an Executive Magistrate to the District Magistrate for being transferred to another Magistrate (section 191 Cr. P.C)]

3. Complaints how to be dealt with.-- Complaints of offences made in writing should be received during office hours on all days other than public holidays. Upon the institution of a complaint, the date of presentation should be immediately endorsed thereon, together with the name of the Magistrate to whom the case is to be sent for inquiry or trial under section 192 of the Code, and the complainant directed to appear before him either the same day or one of the following days for examination. Similarly if the complaint has not been made in writing, the Magistrate should direct the complainant to the proper court.

***[4. Complaints how to be dealt with. Oral examination of complainant and preliminary enquiry.** - The first duty of a Magistrate taking cognizance of an offence on complaint is to examine the complainant upon oath, except when the complaint is made in writing and (a) by a Court or by a public servant acting or purporting to act in the discharge of his official duties, or (b) when a Judicial or Executive Magistrate empowered under sub-section (2) or (3) of section 192 of the Code decides to transfer the complaint to a Judicial or Executive Magistrate, as the case may be or (c) when the offence is triable exclusively by a Court of Session.]

5. ***[Omitted.]

6. Importance of examination of complainant before issue of process.-- The examination of complainants prescribed by the Code of Criminal Procedure is not a mere formality, as the result of this examination enables the Magistrate to determine whether he will put the machinery of the Criminal Court in motion by issuing a summons or warrant to cause the attendance of the accused before him. Section 203 lays down that if, in the judgment of the Magistrate, there is no sufficient ground for proceeding, he shall dismiss the complaint. The preliminary examination, therefore, if properly made, will frequently result in the summary dismissal of a complaint and save an innocent person from the trouble and annoyance of appearing at the bar of a Criminal Court. In the interests of the public, therefore, as well as with a view to the rapid despatch of work, a careful observance of the law in this particular is incumbent upon Magistrates.

***[7. No preliminary examination of complainant necessary in police challans. -** The power to hold a preliminary Magisterial inquiry into cases reported by the Police, conferred by section 159 of the Code, should not be lost sight of. For the duties of Magistrates in ordering remands to Police custody, Chapter 2 of this Volume should be consulted. After completion of the investigation, the Police present a report under section 173 of the Code of Criminal Procedure (usually called "Challan"), and upon such a report a Magistrate can take cognizance under clause (b) of sub-section (1) of section 190. In such cases no preliminary examination of the complaint is necessary as in cases instituted on complaint under clause (a) of sub-section (1) of section 190.]

8. Inquiry into nature of offence and other preliminaries in order to see whether court has jurisdiction.-- The question of jurisdiction requires careful attention at the initial stage. Schedule II of the Code of Criminal Procedure shows the classes of Courts by which different offences are triable. In determining the nature of the offence, the facts ascertained by the examination of the complainant and the preliminary inquiry (if any) should be taken into consideration and importance should not be attached to the particular section specified or the offence alleged in the complaint, as complaints are often drafted by men ignorant of law, and there is also a tendency to exaggerate the nature of the offence. It should be also remembered that certain offences cannot

be taken cognizance of at all except upon the complaints of certain persons or Courts or with the previous sanction of the Government (vide Section *[195 to 198-A of the Code of Criminal Procedure]).

9. Jurisdiction also depends on the place of commission of offence.-- The question of jurisdiction arises also with reference to the place of inquiry or trial. The general rule prescribed by section 177 is that an offence shall be ordinarily inquired into and tried by a Court within the local limits of whose jurisdiction it was committed, but the subsequent sections create various exceptions to this rule.

10. Cases where place of commission of offence is uncertain.-- When, for instance, it is uncertain in which of several local areas an offence was committed; or where an offence is committed partly in one local area and partly in another; or where the offence is a continuing one and continues to be committed in more local areas than one; or where the offence consists of several acts done in different local areas, -- it may be inquired into or tried by a Court having jurisdiction over any of such local areas. The same rule applies to offences committed on a journey, which may be inquired into or tried at any place through which the offender or property affected passed in the course of such journey.

***[11. Procedure where Magistrate thinks that he has no jurisdiction or cannot impose proper sentence. --** If a Magistrate finds that the offence disclosed is not triable by him, he should report the case, in the case of a Judicial Magistrate, to the Sessions Judge and in the case of an Executive Magistrate to the District Magistrate, for its transfer to a competent Court. Whenever a Magistrate of the second or third class, having jurisdiction, is of opinion, after hearing the evidence for the prosecution and the accused, that the accused is guilty, and that he ought to receive a punishment different in kind from, or more severe than, that which such Magistrate is empowered to inflict, or that he ought to be required to execute a bond under section 106 of the Code, he may record his opinion and submit the proceedings, and forward the accused to a Magistrate of the first class specially empowered in this behalf by the Provincial Government.]

PART C -- (i) ATTENDANCE OF ACCUSED PERSONS

1. When summons or warrants should issue.-- When a Magistrate taking cognizance of an offence is of opinion that there is sufficient ground for proceeding, he must decide whether a summons or a warrant should issue in the first instance for the attendance of the accused. The fourth column of the second Schedule of the Code shows, in regard to offences, whether a summons or a warrant should ordinarily issue.

2. Discretion of Magistrate to issue summons or warrants.-- Even where the law provides for the issue of a warrant in the first instance, a Magistrate may, in his discretion, issue a summons. On the other hand, a Magistrate may, after recording his reasons for so doing, issue a warrant instead of summons in a case in which the law provides for the issue in the first instance of a summons. Section 90 and 204 of the Code should be referred to on this subject. The former section authorises the issue of a warrant instead of a summons (1) where the Court has reason to believe that the accused has absconded or will not obey the summons, or (2) if, after service of a summons, the accused fails to appear and offers no reasonable excuse for non-attendance^{***}[...]

3. Warrant should not issue unless absolutely necessary.-- Great care should be taken not to issue a warrant when a summons would be sufficient for the ends of justice. Magistrates should remember that the issue of a warrant involves interference with the personal liberty of a person and should take care to see that no greater hardship is caused than is necessary. Under section 76 of the Code, a Court has the discretion to make the warrant bailable and this discretion should be exercised with due regard to the nature of the offence, the position of the accused person and the circumstances of the case.

4. Bail.-- When the accused person appears before the Court the question of bail arises. In the case of a bailable offence, an accused person must be allowed to remain at liberty if he can furnish bail for his appearance during the course of the trial. A Magistrate has the discretion to allow bail even in the case of non-bailable offences in certain circumstances. (For detailed instructions on the subject, vide Chapter 10, Bail and Recognizance).

5. When attendance of accused may be dispensed with.-- A criminal trial must be conducted in the presence of the accused but section 205 and 540-A of the Code give a limited discretion to the court to dispense with his attendance in certain circumstances.

6. Service of process.-- Detailed instructions as to the mode of issuing and serving processes of the Criminal Courts are contained in Volume IV, Chapter 8, "Processes". The provisions of the law relating to the service of processes on persons employed in the public service require special attention.

PART C-- (ii) ATTENDANCE OF PRISONERS IN CRIMINAL COURTS

Attendance of prisoners in Criminal Courts.-- The attendance of a prisoner in a criminal court is required either-

- (a) to give evidence, or
- (b) to answer a charge.

In the case of (a) above, if the prisoner is within the local limits of the appellate jurisdiction of the *[Lahore High Court] any criminal court in the ***[...] Punjab may issue a warrant for his production in the prescribed form as given in Schedule I to the *[Prisoners' Act, 1900 (III of 1900)], without the intervention of the High Court. Such a warrant may be forwarded direct to the officer in charge of the prison if it is situated within the district in which his presence is required. In all other cases, it should be forwarded through the District Magistrate or Sub-Divisional Magistrate within the local limits of whose jurisdiction the prisoner is confined. This is, however, subject to the condition that the warrant issued by a Court inferior to that of the Magistrate of the 1st class should be countersigned by the District Magistrate of the district. If, however, the prisoner is more than 160 kilometers distant from the court where his attendance is required or beyond the local limits of the appellate jurisdiction of the High Court, the matter should be referred to the Registrar of that Court for action under section 39 or 40 of the aforesaid Act, as the case may be.

*[All warrants for the production of prisoners should be issued well in advance of the date fixed for the hearing of the case. In the case of references made to the High Court for the production of prisoners, the date should be fixed with due regard to the distance involved and due notice should be given to this

Court. When the production of the prisoner is required under the orders of the High Court, the warrant is prepared and signed by an officer of that court.]

When the evidence of a convict under sentence of death is required, the court shall proceed to the Jail for the purpose, and shall not require the convict's attendance under Part IX of the *[Prisoners' Act, 1900(III of 1900)]:

Provided that if the presence of a convict under sentence of death is required by a Court of Session or High Court for the purpose of taking additional evidence in the case under section 428 of the Code of Criminal Procedure, 1898, the convict's attendance may be required under Part IX of the Prisoners' Act, 1900 (III of 1900).

**PART D -- PROCEDURE IN INQUIRIES AND TRIALS
BY MAGISTRATES**

***[1. Charge to be framed.--** After the provisions of section 241 and 241-A have been complied with and the accused appears or is brought before the Magistrate, a formal charge shall be framed relating to the offence of which he is accused. The charge shall be read out and explained to the accused and he shall be asked whether he admits that he has committed the offence with which he is charged (S. 242 Cr.P.C.).

The provisions of Chapter XIX of the Code deal with the framing of the charge. Sections 221 to 223 show the form in which a charge must be framed and the particulars which must be entered therein; and sections 233 to 239 show how charges may be joined, when they should be in the alternative form, and what persons may be charged jointly. Special care is required in the matter of joinder of charges, for mis-joinder of charges against the express provisions of law may vitiate the trial. Section 235 is also important and should be read with section 71 of the Pakistan Penal Code.

Sub-section (7) of section 221 of the Code of Criminal Procedure, 1898, requires that in all cases in which it is intended to prove previous conviction for the purpose of effecting the punishment which the Court is competent to award, the fact, date and place of the previous conviction should be set out in the charge. The accused should then be asked whether he admits the previous conviction and his reply should be recorded. If he denies then the conviction must be proved in the manner prescribed in section 511 of the Code after the accused has been convicted of the offence with which he is charged (S.245-A Cr.P.C.).

2. Conviction on admission of truth of accusation. - If the accused admits that he has committed the offence with which he is charged, his admission shall be recorded as nearly as possible in the words used by him; and if he shows no sufficient cause why he should not be convicted, the Magistrate may convict him accordingly (S. 243 Cr.P.C.).

It should be remembered that a plea of guilty can only be recorded when the accused persons raises no defence at all. If, for example, he admits material facts, but denies guilty knowledge or intention, the plea cannot be regarded as

one of "guilty". If the accused refuses to plead or pleads "not guilty" he should be called upon to enter upon his defence after the prosecution case is closed. If the accused puts in a written statement it must be placed on record. To avoid objections of the accused in appeal or revision that no proper opportunity was given to call witnesses to rebut the evidence for the prosecution the Court should, as a matter of precaution, at the conclusion of the case for the prosecution, ascertain from the accused whether he has any witnesses, and in any case in which no witnesses are produced in defence, the court should record either that the accused does not wish to call witnesses or that for reasons stated he has been afforded a further opportunity of doing so.

3. Statement made under section 164. - Under section 244-A of the Code of Criminal Procedure, 1898, the statement of a witness duly recorded under section 164 of the said Code, if it was made in the presence of the accused and if he had notice of it and was given an opportunity of cross-examining the witness, may, in the discretion of the court, if such witness is produced and examined, be treated as evidence in the case for all purposes subject to the provisions of the Qanun-e-Shahadat 1984.]

PART E -- RECORD OF EVIDENCE IN CRIMINAL CASES

1. Only relevant evidence should be recorded.--In recording evidence, Magistrates should take care to see that it is relevant and admissible under the provisions of the [Qanun-e-Shahadat, 1984]. If any objection is raised as to the admissibility of any evidence, the Magistrate should endeavour to decide it forthwith and the particular piece of evidence objected to, the objection and the decision thereon should be clearly recorded.

2. Duty of Court to elucidate facts.--Magistrates should endeavour to elucidate the facts and record the evidence in a clear and intelligible manner. As pointed out in 23 P.R. 1917, a Judge in a Criminal trial is not merely a disinterested auditor of the contest between the prosecution and the defence, but it is his duty to elucidate points left in obscurity by either side, intentionally or unintentionally, to come to a clear understanding of the actual events that occurred and to remove obscurities as far as possible. The wide powers given to the court by * [Article 161 of the Qanun-e-Shahadat, 1984] ***[...] should be judiciously utilised for this purpose when necessary.

3. Mode of recording evidence.-- ***[...] In cases falling under section 355 **[of the Code of Criminal Procedure, 1898] the presiding officer is required only to record a memorandum of the substance of the evidence, while in those falling under section 356 **[of the said Code], the evidence must be recorded in full. But in the latter class of cases the presiding officer may, instead of recording the evidence himself, have it recorded in his presence and hearing and under his supervision, provided he makes a memorandum of the substance of the evidence side by side in his own handwriting as the examination of each witness proceeds. On the other hand, in cases falling under section 355, 356 **[of the said Code] also the Magistrate may record the evidence in full if he thinks it fit to do so (e.g., when the evidence is very important or when there is possibility of the witness being prosecuted for perjury, etc.), vide section 358. Where the presiding officer is unable to record a memorandum of the substance of the evidence as required by section 355 or 356 **[of the said Code], he must record the reasons of his inability to do so, and, in cases falling under section 355, must have the memorandum recorded by dictation in open Court.

4. Comparison of memorandum with vernacular statement.--An omission to record the memorandum referred to above cannot be justified except under circumstances which render it impossible for the Magistrate to record it. Want of time cannot be accepted as a valid excuse. In these cases the Magistrate should be careful to follow the deposition of each witness, when it is read over to him in the vernacular in accordance with section 360 of the Code of Criminal Procedure, and observe whether his memorandum is in conformity therewith. Any apparent discrepancy between the vernacular statement and the English memorandum should be explained in a note by the Magistrate under the memorandum. ***[...]

***[5. Memorandum in English.--**The Sessions Judges and Judicial Magistrates exercising powers under section 30 of the Code of Criminal Procedure, 1898, shall keep a memorandum of the evidence in English, which should be as full as possible.]

6. *[Omitted].**

7. Statement of a witness to be read over.--The statement of a witness must be read over to him in the presence of the accused and corrected, if necessary, according to the provisions of section 360 of the Criminal Procedure Code. ***[...]

8. Evidence and judgment in summary trials.--In all summary trials in which the order of the Magistrate is final, no evidence need be recorded in English or Urdu; but the Magistrate should enter the particulars mentioned in section 263 of the Code in a register to be kept for the purpose.

***[9. Particulars of witnesses or parties to be noted.-** Care should be taken to record the parentage, age, place of residence and caste of parties and witnesses. When a person is known by two names, or his precise name is doubtful, both should be given or doubt cleared up. It should also be noted whether a witness is called by the prosecution, or by the defence, or by the Court.

Where age of a witness in view of the facts deposed to by him in his statement, becomes relevant the presiding officer should ensure that he states it as a fact after he has been summoned as a witness, so that it forms part of his

testimony. It is not enough that he has stated his age when giving his particulars].

***[10. Examination-in-Chief.-** Cross-examination and re-examination to be distinguished by a note in the margin.- Examination-in-chief, cross examination and re-examination of witnesses should be distinguished by a note in the margin. If a witness is not cross-examined the record should show that the opportunity was given but was not availed of.]

11. Illegible record.--The memorandum of evidence, the depositions or statements should be carefully written in a legible manner ^{**}[or typed]. In cases forwarded to the High Court, in which from any cause the memorandum or depositions in question, or the final judgments have been indistinctly or illegibly recorded, copies of such memoranda, depositions and judgments should be submitted with the record of the case.

12. Documents on record should be duly proved.--Care should be taken to see that all documents placed on the record, e.g., the first information report, plan of the spot, medical certificates etc., are duly proved, As regards special rules of evidence relating to Chemical Examiner's reports, please see Chapter XLI of the Code of Criminal Procedure.

13. Demeanour of witnesses.-- ^{*}[Courts] should not omit to make a note about the demeanour of a witness when such demeanour is noteworthy and affects their estimates of the value of the evidence given by the witness.

14. Record to contain a brief note of all material orders passed.--Each record or memorandum of evidence should be dated and the record of a case made by a Magistrate or Sessions Judge should not only contain depositions or memoranda of evidence, according as the evidence is or is not recorded by him in full, but also, in its proper place, a short note of every material order made during the inquiry or trial, with the date on which such order was made. Every order of adjournment must be entered, and the date on which the inquiry was resumed should be apparent.

Notes:-Orders to be written by the Magistrate in his own hand.--All notes and orders recorded by Presiding Officer (e.g., orders of adjournment, notes regarding the presence of witnesses) other than depositions, orders

deciding any matter in dispute and the final judgment, should be written by the Presiding Officer in his own handwriting **[or dictated] by him and be dated and appended to the record. Each "order" or "note" should be clearly marked as such.

Notification re, Court language.--Under the provisions of section 558, of the Code of Criminal Procedure, 1898 (V of 1898), the Provincial Government has declared that Urdu shall be deemed to be the language of the Criminal Courts in the Punjab.

PART F -- DISMISSAL OF CASES IN DEFAULT

1. ***[Omitted.]

2. **Reasons for dismissal in default should be recorded.**-- **[Cases should not be dismissed in default hastily]. Before a case is dismissed by reason of the absence of complainant, the Magistrates should carefully consider---

(a) whether such an order is legal; and

(b) whether it is justified by the circumstances.

Reasons should always be recorded for such a dismissal.

3. **Instructions to be observed in re dismissal of complaints, etc., by reason of the absence of the complainant.**--In application for revision of orders dismissing complaints or cases instituted on complaint, by reason of the absence of the complainant, it is frequently urged--

(a) that the complainant was not called;

(b) that the case was dismissed very early in the day; or

(c) that the Magistrates being on tour, the complainant had no, or insufficient, notice of the place of sitting.

(ii) The Magistrates' records often furnish no definite information on any of these points. The following instructions are accordingly issued for guidance to subordinate Courts:-

(a) Magistrate should not dismiss complaints or cases instituted on complaint without giving complainants full opportunity for appearance. Ordinarily, if a complainant is absent when his case is first called on, his case should be called on again later, and the time of dismissal should always be noted on the record.

(b) When the Magistrate is on tour, complaints or cases instituted on complaint should not be dismissed unless the complainant has had due notice of the place of hearing.

*[(c) In carrying out these instructions Magistrates should bear in mind that if the summons has been issued on complaint and the complaint has been dismissed on account of the absence of the complainant, the accused must be acquitted under section 247 of the Code of Criminal Procedure, and that a complaint cannot be dismissed on account of the absence of the complainant when the

offence of which the accused is charged is either cognizable or non-compoundable.]

(d) Section 247 of the Code of Criminal Procedure does not apply when the entire evidence in a case has been concluded and the case has been adjourned only for judgment without the attendance of the complainant having been specially directed.

**PART G -- MISCELLANEOUS MATTERS IN CONNECTION
WITH INQUIRIES AND TRIALS**

1. Age of accused persons, complainants and witnesses to be carefully considered when the point is material.

In criminal cases, in which the age of an accused person, complainant or witnesses, is material to the matter in issue, or is likely to affect the sentence, the Court should record a careful finding as to probable age of such accused person, complainant or witness, and should refer to, and comment on, any discrepancies which there may be in the evidence on the point. In cases of doubt, ^{**}[the birth entry should be obtained], or in its absence, the opinion of a medical officer should be taken. The age of the accused as found or believed by the Court should be invariably stated in the judgment. A careful statement of the probable age of the accused is especially necessary in murder cases in which the person charged is a youth or is very advanced in years. But in every case in which a charge is framed the accused should, at the opening of his examination, be required to state his age; and in all cases in which the age of the accused appears to the Court to be under twenty or over fifty years, or to be material for any special reason, the ^{*}[Court] should add a note expressing his own opinion as to the probable age of the accused.

Note: ^{***}[Omitted]

2. Medical examination of persons for purposes of evidence.

Neither the complainant, nor a witness, nor an accused person can be compelled to submit to medical examination for the purposes of evidence. A criminal Court has by law no power to order any person, whether male or female, to be subjected to medical examination, though, where the consent of the person to be examined (or, in the case of a minor, of his or her lawful guardian) has been obtained, such examination may be authorised. The practice of ordering the medical examination of a woman who has complained of an offence against her virtue is illegal without her consent.

3. ^{**}[Omitted].

4. ^{***}[Omitted].

5. **Exhibits.**--(i) Sessions Judges and Magistrates should ordinarily pass orders under section 517(1) of the Code of Criminal Procedure for the

disposal of exhibits on the conclusion of the trial. The time at which such an order is to be carried out is governed by subsections (3) and (4) of section 517 of the Code of Criminal Procedure. The order remains in force unless it is modified, altered or annulled under section 520 of the Code of Criminal Procedure. If such orders are made on the conclusion of the trial, the inconvenience of giving directions at a later time, when the matter is no longer fresh in the mind of the Court, and the possibility of a legal difficulty in making orders long after the conclusion of the trial will be avoided.

(ii) ^{***}[...] In respect to magisterial cases, exhibits, other than documentary exhibits, should not be sent to the High Court, unless the High Court calls for them, or unless the Magistrate considers that a particular exhibit will be required in the High Court, in which case he should record a note at the foot of his judgment that the exhibit should be forwarded to the High Court in the event of an appeal or revision to the High Court.]

PART H -- THE JUDGMENT

1. Contents of a judgment.-- (i) In all cases a judgment must be drawn up containing (1) the point or points for determination, (2) the decision thereon, and (3) the reasons for the decision. In case of a conviction, the offence, the law applicable, and the punishment awarded, must be entered in the judgment. In case of acquittal, the offence must be specified and (if the accused is in confinement) a direction given that he be set at liberty. When there are more than one accused, the case of each should be dealt with separately.

(ii) **Judgment should be dated, signed and pronounced in the presence of the accused.--** The judgment should be written in the language of the Court or in English; it should be pronounced in open Court, and dated and signed by the presiding officer at the time it is pronounced. Except where the attendance of the accused has been dispensed with during the trial, and the sentence to be passed is one of fine only or when the judgment is one of acquittal, the accused should be in attendance when judgment is pronounced. No Court has power to alter or review a judgment once signed except for the purpose of correcting a clerical error, or for the purpose of revising a sentence of whipping under section ***[...] 395 of the Code.

(iii) **Judgments not written by the Magistrate.--** When the judgment is not written by the presiding officer with his own hand every page of it shall be signed by him.

(iv) ***[Omitted].

(v) ***[Omitted].

(vi) ***[Omitted].

(vii) ***[Omitted].]

2. Criminal powers of the Courts should be noted in the record and final order.-- Every Judicial Officer hearing, conducting or deciding a criminal proceeding, trial or appeal is responsible that the record and the final order in such criminal proceedings, trial or appeal shall disclose the criminal powers which such officer exercised in hearing or deciding such proceeding, trial or appeal.

***[3. The Powers of various Criminal Courts --** The powers referred to in the above rule are the following:-

(i) Courts of Session:-

- (a) Sessions Judge.
- (b) Additional Sessions Judge.

(ii) Judicial Magistrates:-

- (a) Magistrates of the first class.
- (b) Magistrates of the second class.
- (c) Magistrates of the third class.
- (d) Special Judicial Magistrates.
- (e) Magistrates empowered under section 30 or 260 of the Code of Criminal Procedure.

(iii) Executive Magistrates:-

- (a) District Magistrates.
- (b) Additional District Magistrates.
- (c) Sub-Divisional Magistrates.
- (d) Special Executive Magistrates.
- (e) Magistrates of the first class.
- (f) Magistrates of the second class.
- (g) Magistrates of the third class.]

4. Special powers to be noted in the record and final order.-- When an officer exercises powers specially conferred, -- for example, the power to try cases summarily, or the power to pass sentences of whipping in the case of a Magistrate of the second class, the record and final order in any criminal proceeding or trial shall disclose the fact that such officer is specifically empowered in that behalf.

5. Separate Judgments in riot cases.-- In riot cases in which members of opposite factions are separately tried, separate judgments should be recorded.

***[...]

***[6. Criticism on the conduct of Police and other officers.-** It is undesirable for Courts to make remarks censuring the action of Police Officers unless such remarks are strictly relevant to the case. Whenever a Magistrate finds it necessary to make any criticism on the work and conduct of any Government servant, he should send a copy of his judgment to the Sessions Judge in the case of Judicial Magistrate and to the District Magistrate, in the case of Executive Magistrate who will forward a copy of it to the Registrar, Lahore High Court, Lahore.

Similarly, Sessions Judges shall also send a copy of their judgment containing criticism of the work and conduct of police officers to the D.I.G. concerned. They shall also send a copy of the judgment direct to the High Court.]

Award of Compensation and Costs.

7. Award of costs.-- Certain of the costs incurred by a complainant in a complaint of a non-cognizable offence may be recovered from a convicted accused in the manner provided in section 546-A of the Code. The costs incurred in enforcing an order of a Magistrate for the removal of a nuisance may be recovered from the person against whom the order is made in the event of his disobeying the order. The costs, incurred by any party in the proceedings relating to dispute as to immovable property under Chapter XII of the Code, may be awarded to him against any other party by the Magistrate, and may be realised as if the amount awarded was a fine. The costs incurred in proceedings under sections 87 to 89 of the Code, in dealing with the property of persons absconding to avoid process, may be recovered from such property.

8. Application of fine towards costs and compensation.-- When a fine is imposed by a Criminal Court, the Court may order the whole or any part of the fine recovered to be applied-

- (a) in defraying expenses properly incurred in the prosecution;

- (b) in compensation for any loss or injury caused by the offence committed, where substantial compensation is, in the opinion of the Court, recoverable by civil suit;
- (c) in compensating bona fide purchase of stolen property.

Compensation not to be paid until appeal is decided.-- If the fine is imposed in a case which is subject to appeal, the compensation must not be paid away until the period for appeal has elapsed, or, if an appeal is presented, before it is decided. Cases have occurred when the lower court has paid the compensation in ignorance of the fact that an appeal has been lodged and later on when on appeal the amount has been reduced or remitted, it has become impossible to obtain a refund from the complainants. Therefore, the lower courts should not pay compensation to the complainant until they are satisfied by examining the records of the case and making a reference to the appellate court that no appeal or revision has been lodged. Compensation so awarded must be taken into account in any subsequent civil suit relating to the same matter (sections 545 and 546 of the Code).

9. Award of compensation to accused.-- (i) In the case of any offence triable by a Magistrate and instituted upon complaint or upon information given to a Police officer or to a Magistrate if the Court discharges or acquits all or any of the accused and is of opinion that the accusation against them or any of them was false and either frivolous or vexatious, the Court, by its order of discharge or acquittal, (a) if the complainant or informant is present, may call upon him forthwith to show cause why he should not pay compensation to such or each of such accused, or (b) if he is not present, may direct the issue of a summons to him to appear and to show cause.

(ii) After recording and considering any cause, which may be shown, the Magistrate, if satisfied that the accusation was of the character aforesaid, may, for reasons to be recorded, direct the complainant or informant to pay to the accused or to each or any of them compensation not exceeding *[twenty five thousand] rupees or, if the Magistrate is a Magistrate of the third class, not exceeding *[two thousand and five hundred rupees. (See section 250 CrPC)].

*[(iii) The compensation payable under Section 250 is recoverable as arrears of land revenue.]

(iv) An appeal is provided for in cases where the order is by a Magistrate of the second or third class and where any other Magistrate has ordered the payment of compensation exceeding Rs. 50. Where no appeal lies the amount of compensation shall not be paid to the accused person or persons until the expiration of one month from the date of the order. In other cases it shall not be paid until the period allowed for the appeal has elapsed or the appeal has been decided. ***[...]

(v) If this provision of the law is enforced with discretion, it may be expected to largely reduce the number of groundless and frivolous complaints filed. In fixing the amount of compensation awarded, the Court should be careful to consider the position of the accused as well as that of the complainant. Excessive amounts should not be awarded.

Compounding of offences.

10. Acquittal of accused when offence is compounded.-- The compounding of an offence under section 345 of the Code of Criminal Procedure, with or without the permission of the Court, has the effect of an acquittal. In such cases, no judgment on acts is needed, but the statement of all the parties concerned must be recorded and in cases where permission of the Court is necessary for compounding the offence the reasons for granting permission should be stated in the order directing the acquittal of the accused.

11. Compounding cases of grievous hurt should be discouraged.-- There is a growing tendency to allow cases of grievous hurt to be compounded, and from inquiries made it appears that in most districts Magistrates are too prone to allow cases of the kind enumerated in section 345 (2) of the Code of Criminal Procedure to be compounded, when the complainant asks for it. In some instances this may be due to ignorance of the fact that the law allows the Courts discretion to grant or refuse permission to compound, but there are indications that it is sometimes due to the desire of Magistrates to get the cases disposed of as quickly as possible. The effect of this practice must clearly be bad, and in districts where the people are naturally turbulent and addicted to settling their disputes by force, it must encourage crimes of violence.

12. Points to be considered before a compromise is permitted.-- The facts of each case require careful consideration before a compromise is permitted. In particular, the following points should be considered:-

- (a) Whether the assault was premeditated.
- (b) Whether it was provoked in any way by the complainant.
- (c) The nature and extent of the injury inflicted.
- (d) The nature of the weapon or means used.
- (e) Whether the compromise is the result of a genuine reconciliation, or caused by undue pressure on the complainant.
- (f) The relationship, if any, between the parties.
- (g) The extent to which violent crime is prevalent in the locality.

In districts where crimes of violence are common, the interests of society demand that permission to compound should ordinarily be refused when serious injury has been caused, and a deterrent sentence of imprisonment should be awarded, except when the assault has been provoked by any act of person injured. In every case in which a Magistrate allows the parties to compromise, his reasons should be recorded in his order.

CHAPTER 2

SUMMARY TRIALS..... ***[Omitted]

CHAPTER 3

SECURITY CASES

1. ***[Omitted].

*[2. **Important preliminaries.** - In the first stage of the proceedings in cases under sections 107 and 110 of the Code of Criminal Procedure, and before actual enquiry is made in the presence of the accused, three points need attention, viz:-

- (1) the information (sections 107 and 110);
- (2) the order thereon, including the substance of the information (section 112); and
- (3) communicating the same to the accused (sections 113 and 115).]

3. **Preliminary enquiry.--** The information is the foundation of the whole proceeding, and the fact, that the Magistrate is acting upon information, should be recorded. No information should be acted upon unless it comes from a trustworthy source and is sufficient, if substantiated and not rebutted, to justify finding that the person is himself likely to commit a breach of the peace or disturb the public tranquility or to do any wrongful act that may occasion a breach of the peace or disturb public tranquility (section 107) or answers to one or more of the specific descriptions given in 110. In regard to proceedings under section 107, it should be borne in mind that a person in the exercise of a lawful right cannot be bound over merely because other persons object to the exercise of such right and there is likelihood of their causing a breach of peace. ***[...] Applications under section 107, Criminal Procedure Code, are sometimes of a frivolous and vexatious character, intended to bring pressure upon the opposite party to settle which is really a dispute of a civil nature. Care should, therefore, be taken to ascertain by such preliminary enquiry as may be necessary that there is sufficient ground for proceeding under the section.

4. **Contents of the order to proceed against.--** If the Magistrate deems it necessary to proceed against the person against whom information has been received, he should record an order setting forth the several matters required by section 112 of the Code of Criminal Procedure. The substance of

the information received should be stated in the order with sufficient fullness to enable the accused person to understand clearly the matter he has to meet in his defence. In recording particulars of the security required, the provisions of the proviso to section 118 of the Code should be borne in mind.

5. Security pending inquiry.-- In proceedings under section 107, Criminal Procedure Code, a Magistrate has the power, in cases of emergency when a breach of the peace is imminent, to order the accused person to furnish security pending the completion of enquiry [*vide section 117 (3), Criminal Procedure Code*]. He must in such cases record his reasons in writing.

6. Order to proceed to be communicated to accused.-- The order recorded under section 112 of the Code of Criminal Procedure should be communicated to the accused person, if he is present in Court, by reading the same to him; and, if he so desires, by explaining the substance thereof to him. If the accused person is not present in Court, a copy of the order should be annexed to the process requiring his attendance, and delivered to him by the serving officer with the process.

7. Form of process.-- Section 114 of the Code provides that the process to be issued requiring the appearance of an accused person shall be a summons, unless the person is in custody, in which case a warrant will issue to the person in whose custody he is. If the Magistrate is satisfied that there are reasonable grounds for apprehending a breach of the peace and that it cannot be otherwise prevented, he may issue a warrant for the arrest of a person not in custody. In every such case, the Magistrate should record the grounds which render the issue of a warrant necessary.

***[8. Procedure for the commencement of the trial.-** After the preliminary proceedings are completed and the accused appears before the Court the enquiry as to the truth of the information upon which the Magistrate has acted shall be made, as nearly as may be practicable, in the manner prescribed in Chapter XX of the Code of Criminal Procedure, for conducting trials and recording evidence, except that no charge need be framed (S.117). Care, however, is necessary that the person complained against shall have a full opportunity of making his defence and of supporting it by witnesses, an adjournment being given, if necessary for that purpose.

9. Proof required and exercise of discretion with caution.- (i) On the conclusion of the enquiry, the Magistrate must consider the order to be passed. The first point to consider is, whether the information against the accused is proved to be true. In cases under section 110, if the accused is proved to be a person falling within any of the descriptions stated in that section, the Magistrate should record a distinct finding of the specific description which he considers proved. The words 'by habit' or 'habitually' which occur in all the clauses of section 110, imply that the accused person has done the alleged acts repeatedly, or persistently and this should be capable of proof by adducing definite evidence under section 117(4) of the Code of Criminal Procedure. Evidence of general reputation is admissible, but mere suspicion of complicity in this or that isolated offence may not be sufficient to satisfy the requirements of section 119.

The Magistrates shall see that section 110 is not abused and is not resorted to merely for securing punishment of persons who are suspected but not proved to have committed an offence and to harass individuals or to take security from persons who have once been accused and convicted of an offence but who have got off on appeal. It cannot be too firmly impressed on all Magistrates acting under Chapter VIII of the Code that when a conviction "fails on appeal", it is no conviction at all.

(ii) The object of the proceedings under section 110 of the Code of Criminal Procedure is to deter and not to punish. A convict just released from jail should not as a rule, be put upon security until there has been a fair opportunity of judging whether the punishment he has already undergone is not in itself a sufficient deterrent against relapse into evil courses. Then, in cases under section 110, proof of habitual misconduct will ordinarily justify the conclusion that security is necessary, but the Magistrate has a discretion in the matter, and he may not, in the circumstances of a case, dispute the proof of habitual misconduct, to make an order of security.]

10. Nature, amount and period of security.-- If the Magistrate decides that security is necessary the next step is to determine--

(1) the amount and nature of security to be given; and

(2) the period for which it is to be given.

In considering these points the Magistrate should be careful to refer to the original order to see that the security and the period therein specified are not exceeded. Further, as to amount of the bonds is to be fixed with due regard to the circumstances of the case and is not to be excessive, it should appear upon the record that the security demanded is not disproportionate to the ability of the accused person to furnish it, having regard to his status in life.

11. Age of accused.-- When the appearance of the *[person complained against] leaves it doubtful whether he is a minor, his age should be ascertained.

12. Action to be taken when security is not necessary.-- If it is not proved that security is necessary, the Magistrate *[shall] act under section 119, according as the person is in custody, for the purpose of the enquiry merely, or is not in custody.

13. Final order should state full particulars about bonds required.-- When the final order is made under section 118, it should state clearly--

- (1) the amount of the bond;
- (2) whether it is to be with or without sureties, and the number of such sureties;
- (3) the period for which security is to be given.

If the proceedings are in English, the order must be translated into *[Urdu] and signed by the Magistrate.

14. Joint trials and period of security.-- It is frequently found that-

(i) several persons are proceeded against jointly, although there is little or no evidence that they are really associated together for the purposes of any of the crimes referred to in section 110 of the Code of Criminal Procedure;

(ii) security is demanded for a period exceeding one year without any reason, such as previous convictions for serious crime, or previous taking of security, being assigned for the step.

The irregularity of the first proceeding has been pointed out in more than one published decisions of the High Court, and, as regards the second point, the Judges are of opinion that the period for which security is demanded should not

in ordinary cases exceed one year, and where special reasons exist for enlarging the period, these should be duly set forth in the order.

15. Bond should be single and no stamp is required.-- It has been noticed that in many Courts the practice is to require the accused person to execute one bond, and the sureties, separate bonds (sometimes for separate amounts). This is not in accordance with law. The person, from whom security is taken, and his sureties should all execute only one joint bond, in the form prescribed in the Code of Criminal Procedure, Schedule V (Form XI).

The bond is exempt from stamp duty, as regards the sureties, under Government of India Notification No. 4650, dated 10th September, 1889, and as regards the principal under section 19, clause (xv) of the Court Fees Act, 1870.

16. Commencement of period of security, suspension of order and Form of warrant when security is not furnished.-- When the person from whom the security is required is not under sentence of imprisonment, or undergoing such a sentence, the period commences to run from the date of order, unless the Magistrate, for sufficient reason, fixes a later date. If the Magistrate has reason to believe that the person required to give security will do so if a short time be allowed for that purpose, the Magistrate should defer execution of his order by suspending it, and thus obviate the necessity for requiring such person to at once suffer imprisonment. If, however, the requisite security is not given on the date fixed, the person from whom the security is required must be committed to prison under section 123, with a warrant in Form XIV of Schedule V of the Code of Criminal Procedure, if the period fixed does not exceed one year. When the period exceeds one year, the form must be varied so as to bring its last clause into conformity with the second clause of section 123; and the proceedings must be laid, as soon as conveniently may be, before the Court of Session.

***[17. Kind of imprisonment in default of security.--** Imprisonment in default of furnishing security under section 107 or section 108 must be simple, while under section 109 and section 110, it may be simple or rigorous at the discretion of the Magistrate (vide sub-section (5) and (6) of section 123).

Completion of record before consignment.- Before consigning the record to the record-room care must be taken that the record is made complete by filing either the security-bond or a copy of the warrant of commitment.]

18. ***[Omitted]

19. ***[Omitted]

20. ***[Omitted]

21. **Restriction order instead of security may be proper in certain cases.--** The provisions of the *[Restriction of Habitual Offenders (Punjab) Act, 1918(V of 1918)] which permits an order of restriction being passed in lieu of an order under section 110, Criminal Procedure Code, should be utilised in appropriate cases, when there is no chance of security being furnished and an order of restriction would serve the object in view.

22. ***[Omitted].

CHAPTER 4

TRIAL OF RIOT CASES

1. Careful handling required.-- Riots resulting in serious injuries or even death are of frequent occurrence in this Province, and cases relating to such riots require very careful handling. A large number of persons is generally involved and the evidence is often entirely of a partisan character. There is, moreover, great danger of innocent persons being implicated along with the guilty, owing to the tendency of the parties in such cases to try to implicate falsely as many of their enemies as they can.

2. Court's duty to ascertain the true version.-- The parties generally give widely divergent versions of the riot and in such cases the Police usually prosecute members of both the parties and place the divergent versions and the evidence in support thereof before the Court. It is for the Court to ascertain in such cases which of the two versions is correct and the Court cannot shirk this duty on the ground that the Police did not ascertain which of the stories was true. ***[...]

3. Right of self-defence.-- When both parties deliberately engage in a fight no question of the right of self-defence arises. But, otherwise, the question as to which of the parties was the aggressor and which was acting in self-defence becomes of vital importance and the Court must do its best to arrive at a finding thereon for the party acting in self-defence cannot be held to be guilty of any offence unless the right of private defence is exceeded (see sections 96-106, Pakistan Penal Code.)

***[4. Separate trials when both parties are prosecuted.-** When both parties to a riot are prosecuted, the two cases must be tried separately and evidence in one case cannot be treated as evidence in the other, even with the consent of the parties. Similarly judgements in such cases should be written separately and the evidence in the one case should not be imported into the judgment in the other. Even when the Court is careful enough not to mix up the evidence, the mere fact of its having written one judgment furnishes the convicts with a ground of appeal.]

5. Case of each accused should be separately sifted.-- In recording evidence in riot cases, care should be taken to bring out distinctly as far as possible the connection of each of the accused with the crime and the actual part played by him. In the judgment the evidence against each of the accused should be discussed separately along with the evidence produced by him in defence (if any), and should be scrutinised with care. The possibility of innocent persons being falsely implicated should be always borne in mind. The mention or omission of the name of an accused person in the First Information Report, when such report is made promptly by an eye-witness, and the presence or absence of injuries on his person are worthy of consideration in this respect, though these are, of course, by no means conclusive.

6. An unlawful assembly, its common object and use of violence must be proved.-- A charge of rioting presupposes the existence of an unlawful assembly with a common object as defined in section 141 of the Pakistan Penal Code. No charge of rioting can be sustained against any person unless it is proved that he was a member of such an unlawful assembly, and that one or more members of the assembly used force or violence in prosecution of its common object. It is, therefore, advisable to refer to the unlawful assembly, its common object, and the use of violence in the charge, so that the essential ingredients of the offence are not lost sight of. ***[...]

***[7. Joint liability of accused.-** Section 149 of the Pakistan Penal Code, makes every member of an unlawful assembly constructively liable for offences committed by other members in prosecution of the common object of the assembly. If the number of offenders is ultimately found to be less than five, this section will not be applicable, but joint liability may still arise by virtue of section 34 of the said Code, if it is found that the act constituting the offence was committed in 'furtherance of the common intention of all'. When no joint liability can be established, each accused person can be held responsible for his own acts. (See 61 PR 1887, 52 ILR Cal. 197).

8. Sentences when several offences are committed.- When a number of offences are committed by members of an unlawful assembly in the course of the riot in prosecution of their common object, each member is guilty not only of rioting but of every other offence committed by himself or by the

other members of the unlawful assembly. Under section 35 of the Code of Criminal Procedure he is liable to be punished separately for each of such offences, subject to the provisions of section 71 of the Pakistan Penal Code. Section 35 of the Criminal Procedure code enables the Court to make the sentences for two or more of such offences concurrent. The appropriate sentence in the case of each accused person must, of course, be determined in view of all the circumstances of the crime and the actual part played by him. (See 4 PR 1901).]

CHAPTER 5

CASES UNDER SPECIAL AND LOCAL ACT.....*[Omitted.]**

CHAPTER 6

TRIAL OF RIOT CASES

PART A – GENERAL

1. Cases against public servants or local bodies should be reported to District Magistrate.- A Magistrate taking cognizance of an alleged offence against a *[Government servant] or a Local Body shall report, without delay, to District Magistrate to whom he is subordinate the commencement of such proceedings together with brief details of the case. The District Magistrate will forward a copy to the local department officer in charge of the Department to which the accused belongs-a further report will be sent in the same way on the termination of the proceedings, stating whether they have terminated in conviction, discharge or acquittal.

In cases of conviction, a copy of the judgment must be forwarded.

2. *[Omitted]**

3. Copies to be supplied free to departmental officers.-- For rules about supply of free copies to departmental officers in such cases see Rule 8-A, Chapter 17-A, High Court Rules and Orders, Volume IV.

PART B – CRIMINAL CASES AGAINST POLICE OFFICERS.

***[1. District Magistrates shall not ordinarily try cases against Police Officers.-** The High Court, with the approval of the Provincial Government, is pleased to direct that all charges against Police Officers, which are triable by ordinary Courts, shall ordinarily be inquired into and tried by Judicial Magistrates of the First Class.]

2. ***[Omitted].

3. Criticism of conduct of Police officers in judgments.-- For judgments criticizing the conduct of Police see Chapter 1-H., paragraph 6.

4. Action to be taken on such criticism.-- Attention is also invited to Police Rule 16.38 (6) which runs as follows;-

“in cases in which strictures are passed on the conduct of the police by a Sessions Court or by a Magistrate’s Court and no specific recommendation is made by the Court making such strictures that an enquiry should be made, the District Magistrate will decide whether an investigation into the matter is necessary and if so whether it shall be conducted by the Police officer or by a selected Magistrate having 1st class powers. If he decides that an investigation shall be made, the procedure subsequent to such investigation shall be that laid down in sub-rule (2) above. In cases in which the court passing strictures on the conduct of the police suggests that an enquiry should be made, the District Magistrate will comply with such request in accordance with the procedure prescribed in paragraphs (1) and (2) above.

When strictures on the conduct of the Police are made by the High Court and communicated to the Provincial Government direct in accordance with paragraph (5) above, the instructions of Government as to the action to be taken by the local authorities will be communicated to them through the ordinary channels. In cases in which the High Court suggests that an enquiry should be made, the Provincial Government will give orders accordingly.”

**PART C – CRIMINAL CASES AGGECTING MILITARY
OFFICERS AND SOLDIERS.**

1. Cases to be tried only by District and Ist Class Magistrate.-

Criminal cases against military officers and soldiers should only taken up by district Magistrate or Magistrates of the first class, and this direction should be strictly observed.

2. Copy of Judgment to be sent to superior officer of accused.-

In every case in which a military officer or a soldier is sentenced by a Criminal Court to a fine of Rs. 200 or upwards, or to imprisonment otherwise than in default of paying a fine not amounting to Rs. 200, the Court shall send a copy of its final order proprio motu to the immediate superior of the person convicted.

3. Military rank of accused to be stated in the warrant of committal to prison.—

Whenever a soldier is committed to jail, whether for trial or under sentence, his military rank shall always be stated in the warrant of commitment, in order that due notice may be given to the military authorities of the day on which, and hour at which, the imprisonment of such person will expire.

4. Information of conviction to be sent by Cantonment Magistrate to superior officer.

When a person amenable to Military Law is convicted of any offence by a Cantonment Magistrate, information in the form given below shall be furnished by such Cantonment Magistrate to the superior officer of the person so convicted;-

Form of Information

Name (and Military rank) of person convicted	Offence of	Sentence	Date

5. Information of conviction of pensioned officers.- * [Whenever a Military Pensioner is convicted and sentenced to imprisonment by a Criminal

Court, a copy of the judgment shall be sent at once to the Deputy Controller of Military Accounts (Pensions), Lahore]

Criminal Courts subordinate to the District Magistrate will send copy of every such judgment to the District Magistrate who will forward all such copies of judgments, of his own or subordinate courts, to the Deputy Controller of Military Accounts (Pensions), Lahore.

The same instructions apply to appellate courts and copies of judgments passed on appeal, if any, shall be forwarded to the officers named above.

6. Information of conviction of Army reservists.-

Whenever a reservist of the Pakistan Army is sentenced by a Criminal Court to imprisonment for any term exceeding three months, the fact shall be reported in the manner prescribed in the last preceding paragraph, without delay to the Officer Commanding of the appropriate Reserve Centre.

7. Rules for retrial of persons subject to Military, Naval or Air Force Law.-

(1) The Criminal Procedure (Military Offenders) Rules 1970, provide that where a person subject to Military, Naval or Air Force law is brought before a Magistrate, and charged with an offence for which he is liable under the Pakistan Army Act, 1952 (XXXIX of 1952) the Pakistan Navy Ordinance, 1961 (XXXV of 1961) or the Pakistan Air Force Act, 1953 (VI of 1953) to be tried by a Court-Martial, such Magistrate, unless he is moved by the competent Military, Naval or Air Force authority as the case may be to proceed against the accused under the Code, shall before so proceeding, give notice to such authority and, until the expiry of a period of fifteen days from the date of service of such notice shall not-

(a) convict the accused under section 243, acquit him under section 247 or section 248, or hear him in his defence under section 244 of the code, or

(b) frame charge against the accused under section 242 of the Code, or

(c) transfer the case for enquiry or trial under section 192 of the Code.

(2) Where, within the period of fifteen days mentioned in rule 2, or at any time thereafter, before the Magistrate has done any act or issued any

order referred to in that rule, the competent Military, Naval or Air Force authority, as the case may be, gives notice to the Magistrate that the accused should be tried by Court-Martial, the magistrate shall stay proceedings and, if the accused is in his power or under his control, shall deliver him, with the statement prescribed by section 549 of the Code, to the authority specified in the said section.

(3) Where a Magistrate has been moved by the competent Military, Naval or Air Force authority, as the case may be, under sub-paragraph (2), and such an authority subsequently gives notice to such Magistrate that, in the opinion of such authority, the accused should be tried by Court-Martial, such Magistrate, if he has not, before receiving such notice, done any act or issued any order referred to in rule 2, shall stay proceedings, and if the accused is in his power or under his control, shall in like manner deliver him with the statement prescribed in section 549 of the Code to the authority specified in the said section.

(4) Where an accused person, having been delivered by the Magistrate under sub-paragraph (2) or (3) is not tried by a Court-Martial for the offence of which he is accused, or other effectual proceedings are not taken, or ordered to be taken against him, the Magistrate shall report the circumstances to the Provincial Government.

(5) (i) Notwithstanding anything to the contrary contained in sub-paragraphs (2) , (3), or (4), where it comes to the notice of a Magistrate that a person subject to Military, Naval or Air Force law has committed an offence proceedings in respect of which ought to be instituted before him, the Magistrate may by a written notice require the competent Military, Naval or Air Force authority, at the option of such authority, either to deliver such person, if in its custody, to the nearest Magistrate for being proceeded against according to law, or to stay the proceedings against such person before the court-martial, if since instituted, and to make a reference to the Federal Government for determination as to the Court before which proceedings should be instituted.

(ii) The competent Military, Naval or Air Force authority to whom a notice is issued under sub-paragraph (1) shall either deliver the offender in

accordance with the notice or refer the question of the trial to the Federal Government, whose order upon such a reference shall be final.

(6) In these rules, unless there is anything repugnant in the subject or context-

(a) "Code" means the Code of Criminal Procedure, 1898 (V of 1898);

(b) "Competent Military Authority" means an officer having powers not less than those of an independent Brigade or Line of Communication Sub Area Commander under whom, or the Officer Commanding the Station in which the accused person is serving, provided that where death has resulted, the competent authority shall be an officer having powers not less than those of an independent Brigade or Line of Communication Sub Area Commander;

(c) "Competent Naval Authority" means the administrative authority under whose command the accused is serving or is attached or any superior authority, provided that where death has resulted, the competent authority shall be the Commander-in-Chief;

8. Dual jurisdiction of court-martial and Civil Court and the prescribed authority to decide by whom the case to be tried.-

The following procedure shall be observed in a case where there is dual jurisdiction, i.e. of a court-martial as well as a Civil Court, as laid down in the Pakistan Army Act, 1952 (XXXIX of 1952) section 94 and 95; the "prescribed officer" being the General Officer Commanding-in-Chief, district Brigade or Station Commander.

If the offender is in Military/Civil custody the Units Commander/Magistrate will take steps to request the prescribed military authority to decide before which court proceedings shall be instituted; but in those cases falling under section 59 of the Pakistan Army Act, 1952, in which death has resulted, the decision shall rest with the district Commander or General Officer Commanding-in-Chief.

9. Procedure in cases of civil offences.--

Appendix IX to the " Regulations for the Pakistan Army, should be referred to regarding the general procedure to be followed in cases of civil offences committed by persons subject to military law.]

CHAPTER 7
MAINTENANCE CASES.....[Omitted.]**

CHAPTER 8

Cases relating to Offences affecting the Administration of justice and Contempt of Court.

PART A – OFFENCES AFFECTING THE ADMINISTRATION OF JUSTICE

***[1. Complaint of offences mentioned in section 195 Cr. P.C. cannot be instituted by private individuals.-**

Under section 195 of the Code of Criminal Procedure, no court can take cognizance of the offences mentioned therein except on the complaint of the public servant or Courts specified in the section. The institution of proceedings is thus now left to the public servants or Courts concerned in the interest of justice and not to the discretion of private individuals who might obtain sanction for prosecution for the purpose of extorting blackmail from the person sought to be prosecuted against.

2. Successor of an officer before whom offence was committed can lodge complaint.- Section 476-A of the Code is supplementary to section 195 and it would appear from the wording of these sections that Courts can take cognizance of the offences mentioned therein suo motu or on application. The power is conferred on the court and not on the particular officer who presides over the Court and consequently the successor of a Magistrate or Judge is competent to proceed under the section (See section 559 of the Code).

Under section 476 of the Code, the Court may itself take cognizance of the offence and try it in accordance with the procedure prescribed for summary trials in Chapter XXII of the Code. When it does so, it may, notwithstanding the limitations prescribed in sub-section (2) of section 262 of the Code, pass the sentence in accordance with sub-section(2) of section 476.

When the Court considers that the person accused should not be tried summarily under section 476, it may, after recording the facts constituting the offence and the statement of the accused person, forward the case to a court competent to try the offence and may require security to be given for the appearance of such accused before such court or if sufficient security is not given, shall forward such person in custody to such court.

3. Main point to be considered by courts in initiating proceeding under section 476, Cr. P. C.-

The power conferred by sections 476 and 476-A of the Code is a discretionary power and it is obvious that it should be examined not merely because an interested party wants a man to be proceeded against, but only when it is expedient in the interest of justice to examine it. The power being the power to prosecute and thereby to put a man in peril of conviction and sentence, it is well settled that resort should not be had to it unless a prima facie case is made out and unless there is reasonable chance of conviction. It must be borne in mind this connection that indiscriminate institution of prosecution does not promote that interest of justice as failure of such cases is apt to encourage rather than discourage the offences. Then the mere fact that there is reason to believe that an offence has been committed may not in itself be sufficient to justify the prosecution of a man. As an example, it happens sometimes that a man, who has made a false statement at first, reverts to truth later on. To proceed against such a man for perjury would invariably be not in the interest of justice, as it would deter a man from reverting to truth even when he is inclined to do so.

That there is power in the Court, either to proceed against a person summarily under section 476, or to send his case for trial to another court, under section 476-A, shows that this question requires the application of judicial mind. In proceeding against a person under these provisions, a Court will be presumed to have been actuated by best motives of justice and fair play; yet during the hearing of the matter or examination of the person, something may have happened to leave him with a genuine impression that he will not have a fair trial. To illustrate, the presiding officer may have put too many questions to the person when under examination. Therefore, when the Presiding Officer feels that the summary trial of a person by him would violate the trite saying that justice should not only be done, but should be seen in the doing, he would exercise his discretion in favour of the person accused to be tried by another Court.]

4. Prosecution to be lodged without delay.--

There is nothing in section 476 which requires the Court to take action, if at all, immediately after the conclusion of the case in which the offence is alleged to have been committed or discovered or within any fixed time thereafter. Prompt action is of

course desirable, and abnormal delay will usually be considered to be a good ground for refusing to take action. At the same time, Courts would, as a rule, exercise proper discretion in postponing action in appealable cases, till the decision of appeal, if one is filed. ***[...]

***[5. Gross cases of false evidence should not be left over.-**

The offence of giving or fabricating false evidence (vide sections 191-196 of the Pakistan Penal Code) is unfortunately very common and should not be allowed to pass unnoticed.]

6. Special care to be taken in recording evidence where a witness appears to be giving false evidence. Contradictory statements and liability of being charged.- When a witness appears to be giving false evidence and there is possibility of his being prosecuted, special care should be taken in recording the evidence in a precise and clear manner, reading it over to the witness and bringing it in conformity with what he declares to be the truth. For, ambiguities in the statement often furnish loopholes for plausible explanations and result in failure of justice. It should be noted that when contradictory statements are made before different Courts, and it is difficult to decide which of the two statements was false, the person making such statements can be charged in the alternative [vide section 236, Criminal Procedure Code, illustration (b).

7. *[Omitted].**

8. Complaint can be lodged by the Court or by appellate Court.-

Section 195 provides that when any offence of the kind mentioned therein is committed in or in relation to proceedings in a Court, cognizance of the offence can be taken either on the complaint of that court or some other Court to which such Court is subordinate. It is laid down in subsection (3) of that section that for the purposes of the section a Court is to be deemed to be subordinate to the Court to which appeals ordinarily lie from the appealable decrees or sentences of such Court and in the case of a Civil Court from whose decrees no appeal ordinarily lies, to the principal Court of original jurisdiction. It is further provided that where appeals lie to more than one Court, the appellate Court of inferior jurisdiction is the Court to which the Court making the complaint is to be deemed to be subordinate for the purposes of the section.

As a result a Civil Judge from whose decrees appeals lie to the Senior Civil Judge as well as the District Judge must be deemed to be subordinate to the former for the purposes of section 195. ***[...] Similarly a Magistrate empowered under section 30 of the Code, from whose decisions appeals lie to the Sessions Court as well as the High Court, would be deemed to be subordinate to the Sessions Court.

9. *[Omitted]**

10. *[Omitted]**

***[11. Deterrent sentence in case of perjury.--**

The law against perjury and allied offences should be fully vindicated against all persons who are convicted and the Courts should impose deterrent sentences when convictions are recorded.]

PART B – CONTEMPT OF COURT.

***[1. Court can try the offence itself or send the case to another court.**

Appeal from conviction -- Contempt of Court is not defined either in the Pakistan Penal Code or in the Code of Criminal Procedure. The acts which constitute the contempt of Court are, however, defined in Article 204 of the Constitution and in the Contempt of Courts Act, 1976, and the High Courts have power to punish persons for the commission of these acts. Section 480 of the Code of Criminal Procedure deals with certain offences under sections 175, 178, 179, 180 and 228 of the Pakistan Penal Code which are in the nature of contempt of Court' when such offences are committed in the view and presence of the Court. The Court has the power to try such offences itself, but the punishment is limited to fine up to two hundred rupees or simple imprisonment in default of payment up to one month. The procedure laid down in section 480 of the Code should be very carefully followed. If the Court considers that the offender should receive a higher penalty, it has discretion to send the case to another Magistrate (vide section 482 Cr. P. C.). An appeal lies in every case of conviction for contempt to the Court to which appeals from the decrees or orders of the convicting Court ordinarily lie. In the case of a conviction by a Court of Small Causes, an appeal lies to the Sessions Court.]

2. Cases tried by Magisterial Court should be sent to Sessions Judge for examination.--Every case, in which a person is punished summarily for contempt of court by an officer exercising less than full magisterial powers should be sent, on the completion of the proceedings in which the contempt occurred, to the *[Sessions Judge] for inspection.*[Sessions Judges] should carefully consider the cases thus submitted to them, and make such comments thereon as appear called for or if necessary, report the case for the consideration of the High Court on the revision side.

3. Contempt by ignorant people.-- it must be distinctly understood that it is not intended to lay down that the power given to Courts by the Code of Criminal Procedure to punish contempts summarily is never to be resorted to. It is the duty of every Court to maintain the order and dignity of its proceedings, and sometimes this can only be effected by the punishment of the offender. In this connection, however, it is pointed out that a distinction may well be drawn between a disrespect committed by an ignorant villager, who hardly understands

the impropriety of his conduct and disrespectful behaviour on the part of a person higher up in the scale of society. In the case of an ignorant rustic, a Court may often be content to pass over without punishment an act which would properly call for punishment if committed by a person of higher education and fuller knowledge of what is due to the dignity of a Court of Justice.

***[4. When High Court may punish for the contempt of subordinate Court.--** Besides the power to punish its own contempt under Article 204 of the Constitution and under the Contempt of Courts Act, 1976, the High Court has and may exercise the same jurisdiction, powers and authority in accordance with the same procedure and practice, in respect of complaints of contempt of the Courts subordinate to it as it has in respect of a contempt of itself, but it cannot take cognizance of a contempt in respect of a Court subordinate to it when such contempt is an offence punishable under the Pakistan Penal Code (see section 3 of the Contempt of Courts Act, 1976).

The subordinate courts must, therefore, ensure before referring a contempt matter to the High Court that the alleged contempt is not an offence punishable under the Pakistan Penal Code.]

CHAPTER 9
WITNESSES --CRIMINAL COURTS.

PART A – EXPENSES.[Omitted]**

**PART B-- INSTRUCTIONS FOR THE GUIDANCE OF THE
NAZARAT AND PRESIDING OFFICERS IN ORDER TO
CHECK FRAUD AND EMBEZZLEMENT WITH RESPECT TO
THE DISTRIBUTION OF DIET AND ROAD MONEY OF WITNESSES.**

Instructions for prevention of frauds, etc., in expenses of diet money and road money.--

The following instructions have been issued by the Punjab Government for the guidance of the Nazarat Officers and the Presiding Officers of the Courts with a view to the prevention of frauds and embezzlements in the expenses of diet and road money of witnesses;-

(1) **Specimen signatures to be kept.--** The Nazarat Officers should be provided with specimen signatures of all Presiding Officers for whose courts he has at any time to pay bills for diet money of witnesses. etc.

(2) **Comparison of specimen signatures.--** The Nazarat officer will be expected to satisfy himself that the signatures on the bills placed before him conform to the specimen signatures received by him. Should any loss be occasioned by the neglect of this rule.

(3) **Responsibility of Nazir or Naib Qasid not to make payments.-** At the same time the Nazir should be informed that he is responsible for all money transaction entrusted to his charge, and that if the Naib-Nazir or any other of his assistants is utilised for disbursement work, the Nazir will remain responsible for supervising them and their work. On no account should a Naib Qasid or a menial be employed for the payment of any Government moneys.

(4) **Criminal Register XVIII, Part B.-IV, Vol.VI-B.--** Criminal Register XVII appearing in Part B--IV of rules and Orders, Volume VI--B, showing the amount of diet and road money of witnesses for which memoranda have been issued should be maintained in each Magistrate's court and comparison should be regularly, though not necessarily daily, made with the Nazara Register by the Presiding Officer, who should initial in the column provided for the purpose in token of his having made the comparison.

Outlying Courts.--

This register should also be maintained in the courts of Sessions Judges who should compare it with the register of contingent expenditure at least once a week and put their initials in column 10 in token of their having done so. The diet money and travelling expense of witnesses examined before a Court of Session should be paid in the presence of the Sessions Judge.

The following instructions are laid down in regard to checking of entries in the register maintained by outlying courts;-

(a) When the outlying court (or if there is more than one court, the Naib-nazir appointed at the place) holds an advance from the district nazir.

In case there is only one Court, no comparison of the entries in the register of road and diet money paid to witnesses is necessary. If there are several courts, it is presumed that the payments are made by the Naib-Nazir under the supervision of one presiding officer as is the case at district headquarters. In that case the entries in the register of road and diet money paid to witnesses should be compared with those in the contingent register maintained by the naib-nazir. No further comparison with the district nazir contingent register is necessary.

(b) When the outlying court holds no advance.

The payments are made by district nazir on receipt of the written orders of payment direct from such outlying courts. In such cases, a comparison with the entries in the contingent register of the district nazir is necessary and may be effected by the issue of fortnightly memoranda by the outlying courts to the nazarat officer.

(5) **Security from officials.**--Steps should be taken to see that security is actually taken in all cases where the rules lay down that an official should furnish it.

(6) **Nazirs should not keep money deposits.**--The Nazir should not be allowed to keep in his possession any sum received by him in the form of a deposit, but such money should be deposited in the Treasury without delay.

Inspection by Deputy Commissioners.-- It is hoped that Deputy Commissioners will make occasional inspections of the Nazir's accounts and satisfy themselves that these and other instructions relating to the Nazarat are being properly observed.

PART C-- COMMISSIONS.***[Omitted].

PART D-- EXPERT WITNESSES.

1. Evidence of expert witnesses and instructions re the same.--

Much inconvenience is caused to expert witnesses by the reckless manner in which they are often summoned to give evidence by courts. The following instructions should be borne in mind by presiding officers of courts with regard to this class of witness;-

(a) Care should be taken that when an expert is summoned, his evidence is duly taken and, where possible, completed on the day of his appearance.

(b) Where possible, the expert should be previously consulted in regard to the suitability of the date which it is proposed to fix for his evidence.

(c) Courts should always consider the desirability of avoiding causing inconvenience to experts by taking their evidence on commission in cases where the evidence is such as can suitably be so taken.

2. Evidence of the Chief Inspector of Explosives-- The Chief Inspector of Explosives to the Federal Government has drawn attention to the fact that the number of summonses he receives for personal appearance before the courts all over the Pakistan interferes with his legitimate duties and he has suggested that it would be of very great assistance if the issue of summonses on him and his inspectors for appearance in Magistrates' Courts could be restricted to the minimum consistent with the requirements of a case. In bringing this to the notice of Provincial Governments, the Central Government have observed that where it is necessary to have the evidence of the Chief Inspector or his subordinates taken in Magistrates' Court which are at a great distance from their headquarters and the cases are such as would normally be committed to the Courts of Session, a great deal of inconvenience may be avoided by having resort to section 503 or section 506, Criminal Procedure Code as the case may be. The Provincial Government of the Punjab have accordingly directed that prosecuting officers should press for taking evidence on commission in suitable cases. This should be borne in mind by Criminal Courts.

3. Evidence of Chemical Examiner or his Assistant.- Courts are warned to be careful to see before summoning the Chemical Examiner or his

Assistant that the evidence of another medical witness whose services are more conveniently procurable will not be sufficient.

4. Fire-arms experts.- When an application is made for the summoning of a fire-arms expert in a case, the Magistrate should first ascertain from the party-wishing to call him as a witness on what points his evidence is required, and then write a letter to the expert asking him if he is able to give evidence on those points, and whether he wishes to examine any exhibits before giving an opinion. After these preliminaries, if the reply of the expert shows that he is in a position to give relevant evidence, then and not till then, summons should be issued to him to appear as a witness subject to the instructions given in preceding paragraphs.

5. When it is considered necessary to summon the Government Inspector of Railways as an expert witness, reasonable notice should be given to him since the Government Inspector of Railways is charged with the responsibility of carrying out inspections and holding inquiries into serious accidents on the Railways: as far as possible a notice of one month or more should be given and in case a shorter notice is considered necessary, the same should not be of less than three weeks' duration. In order to obviate delay in arranging his attendance in the courts summons should be served on the Government Inspector of Railways direct, at his official address viz. Headquarters Office, Pakistan Railway, Lahore.

6. Ballistics Expert.- While giving evidence in Court as Ballistics Expert, the Director, *[Forensic Science Laboratory Punjab], shall give reasons for his conclusions and appears as a witness before the committing Magistrate concerned with all the photographs taken and all the cartridges fired by himself for the purpose of arriving at such conclusions.

The copy or copies of photographs produced by the Ballistics expert, and placed on the record may be inspected by the defence counsel concerned.

CHAPTER 10

Bail and Recognizance

1. Principles governing grant of bail.-- It must be understood that for every bailable offence bail is a right, not a favour. In demanding bail from an accused person, Magistrates should bear in mind the social status of the accused and fix the amount of bail accordingly, care being taken that the amount so fixed is not excessive. The amount of bail and the offence charged, with the section under which it is punishable, should always be stated on the face of an order directing the accused to be detained in the lock-up in default of his furnishing bail. Bail may be tendered and must be accepted at any time before conviction.

Bail may also be tendered and accepted even after conviction in accordance with the provisions of sub-section (2-A) of Section 426 of the Code of Criminal Procedure, when a person sentenced to imprisonment for a bailable offence satisfies the court that he intends to file an appeal.

2. Recognizance.-- When any person other than a person accused of a non-bailable offence is brought before a Criminal Court, the Court may, if it thinks fit, instead of taking bail discharge him on his executing a bond without sureties for his appearance (section 496, Criminal Procedure Code).

3. Bail in non-bailable cases.-- Even in the case of non-bailable offences there are circumstances under which the accused may be admitted to bail. These are described in section 497 of the Code.

4. Cash or Government promissory notes may be accepted in lieu of bail.-- Under section 513 of the Code of Criminal Procedure, a deposit of cash or Government promissory notes may be made in lieu of bail, except in the case of a bond for good behaviour.

***[5. Bail to be granted promptly.--** It is unlawful to detain parties under trial in prison a minute longer than the law requires; if innocent, they are exposed to the indignity of imprisonment, for which no subsequent order of discharge or acquittal can atone.]

6. Release on bail by superior Courts.-- Under Section 498 of the Code, the Sessions Judge may, whether there be an appeal on conviction or not,

direct that any accused person be admitted to bail, or that the bail required by a police officer or Magistrate be reduced. ***[...] It should also be remembered that, under section 426 of the Code of Criminal Procedure an Appellate Court may, for reasons to be recorded in writing , order that the convicted person be released on bail or on his own bond.

7. Bail applications on holidays.-- Sessions Judges should allow urgent applications for bail to be presented to them at their residence on holidays at a fixed hour, when such applications cannot be presented in Court on a working day owing to unavoidable circumstances.

8. Disposal of bail applications in the absence of Sessions Judge.-- When Sessions Judges are unavoidably absent from the station, they should take action under section 17(4) *[of the Code of Criminal Procedure, 1898] for the hearing of urgent bail applications.

9. Inquiry about sufficiency of bonds.-- Considerable diversity of practice exists in carrying out the provisions of the law in regard to the taking of bonds from accused persons and their sureties, and the result of the diversity is not only to cause Police officers to be employed in needless inquiries, but also to keep the accused person in custody pending the result of the inquiry into the sufficiency or otherwise of the bail offered. The attention of the criminal authorities, is, therefore, directed to section 499 of the Code of Criminal Procedure, which requires the Magistrate simply to take a bond for such a sum of money as he may think sufficient, from the accused and one or more sureties. At the same time, however, it is the duty of Magistrates to satisfy themselves that the sureties are, in point of substance, persons of whom it may reasonably be presumed that they can, if necessary , satisfy the terms of the bail-bond.

10. Forfeiture of bail bonds.-- Section 514 of the Code lays down the procedure to be adopted to compel payment of the penalty mentioned in the bond from the person executing the personal recognizance and from his sureties.

11. Form of bond for appearance before High Court.-- When a person is enlarged on bail by order of the High Court, or when bail is to be taken for his appearance before the High Court, the bonds to be executed by such person and his sureties shall be in the following forms which have been

prescribed by the High Court with the sanction of the Provincial Government under powers conferred by section 544 (2) of the Code of Criminal Procedure:-

FORM OF BOND AND BAIL BOND

I, _____ son of _____ Caste _____
appealed resident of _____ having _____ to the Lahore
High

petitioned Court, Lahore and being required to give security for my attendance before the Lahore High Court, Lahore or for my surrender before the Court of the District Magistrate of _____ if required, do bind myself to attend at the Lahore High Court, Lahore on every day of the hearing of my appeal/petition by the Lahore High Court, Lahore and on such other day or days as I may be ordered to attend, or, to appear and surrender myself before the District Magistrate of _____ and in case of making default therein, I bind myself to forfeit to the *[Governor of Punjab] the sum of rupees _____.

Dated this _____ day of _____ 19 .

SURETY BOND

WHEREAS _____ son of _____ caste _____
resident of _____ having appealed/petitioned to the Lahore High Court, Lahore is being required to give security for his attendance before the Lahore High Court, Lahore or for his surrender before the Court of the District Magistrate of _____ if required, I, _____ son of _____ resident of _____ do bind myself to produce at the Lahore High Court, Lahore on every day of hearing of his appeal -----by the Lahore High Court, Lahore and on such other day or days as I may petition be ordered to produce him, or to produce and surrender him before the District Magistrate of _____ and in the case of my making default therein, I bind myself to forfeit to the *[Governor of Punjab] the sum of rupees _____.

Dated this _____ day of _____ 19 .

12. Date of hearing to be communicated to the accused and sureties.-- In cases punishable with death or *[imprisonment] for life the

District Magistrate on accepting the sureties shall inform them that the person released on bail must be present at the hearing in the High Court. He shall also inform the person released on bail to the same effect.

In other cases the person released on bail shall be produced before the District Magistrate by the sureties and/or shall surrender himself before the District Magistrate if and when required. The sureties and the person released on bail shall be informed by the District Magistrate accordingly.

13. Discretion of High Court.-- On the date of hearing in the High Court, the Judge or Judges hearing the appeal may order that-

- (a) the bail-bond should be cancelled at once, and the man re-arrested, or
- (b) he should appear on a certain day to hear judgment pronounced, or
- (c) he should attend daily (excluding holidays) until judgment is pronounced, or
- (d) he should be discharged from his bail-bond.
- (e) he should appear and surrender himself before the District Magistrate, or

14. Re-arrest on cancellation of bond.-- If the person who has been released on bail is not arrested on the day of hearing, in accordance with *[the immediately preceding paragraph], he will ordinarily be re-arrested in the High Court immediately **[after the] judgment has been pronounced against him.

Note 1:- The foregoing instructions will apply mutatis mutandis to the case of persons enlarged on bail by a Court of Session.

Note 2:- Except in very special cases, the Judges of the High Court decline to entertain applications for bail unless the Sessions Judge or the Court trying the case has already been applied to and has rejected applications. Sessions Judge should conform to this practice.

15. Bail application to be treated as urgent.-- All applications for bail in criminal cases including appeals *[shall be] treated as urgent.

CHAPTER 11

PART A -- INVESTIGATION

Relation between Police and Magistrate.-- Chapter XIV of the Code of Criminal Procedure contains the provisions of the law regarding information to the Police and their powers to investigate; and the relations of the Police to the Magistrate are therein defined.

***[2. Police can investigate suo motu only cognizable cases.-** The Police have power to investigate suo motu only cognizable offences as defined in section 4(f) of the Code of Criminal Procedure, 1898; but under section 202 of the code, a Court may, for the purpose of ascertaining the truth or falsehood of a complaint of an offence of which it is authorised to take cognizance, direct an inquiry or investigation to be made by a Police Officer or by such other person as it thinks fit. The limitations on this power of reference which are described in the instructions as to the examination of complainants should be strictly observed by Magistrates (vide chapter 1-B, paragraph 4).]

3. Police to record information in non-cognizable cases also.-- Section 154 requires that every information to an officer-in-charge of a Police Station relating to the commission of a cognizable offence shall be reduced to writing, and action taken on it under sections 156 and 157. When the information relates to the commission of a non-cognizable offence, the substance of it shall be entered in a book to be kept for the purpose, and the informant shall be referred to the Magistrate. No police officer may, without the express order of a duly empowered Magistrate, investigate an offence not cognizable by Police [section 155 (2)].

4. Procedure of Police on receipt of information.-- Sections 156 to 158 lay down the procedure to be followed by the Police on receipt of information relating to the commission of a cognizable offence, and provide for the submission of reports of such information to the Magistrate having jurisdiction.

***[Daily Station Diary. Action to be taken when Station Police Officer decides not to investigate case.-** Rule 22.48 of Chapter XXII of Volume III, of the Punjab Police Rules, 1934 prescribes the maintenance of a Daily Station

Diary in accordance with section 44 of the Police Act, 1861, and lays down that the Daily Station Diary shall be in form 22.48(1) and shall be maintained by means of the carbon copying process. There shall be two copies. One will remain in the Police Station register and the other shall be despatched to the Superintendent of Police or a gazetted officer designated by the former every day at the hour fixed in this behalf. The Superintendent of Police shall fix the hours at which station diaries shall be daily closed.]

Rules 24.4. (1) & (2) of Chapter XXIV of the Punjab Police Rules Volume III, run as follows:-

(1) If the information or other intelligence relating to the alleged commission of a cognizable offence is such that an officer in charge of a Police Station has reason to suspect that the alleged offence has not been committed, he shall enter the substance of the information or intelligence in the station diary and shall record his reasons for suspecting that the alleged offence has not been committed and shall also notify to the informant , if any, the fact that he will not investigate the case or cause it to be investigated.

(2) If the Inspector or other superior officer, on receipt of a copy of the station diary, is of opinion that the case should be investigated, he shall pass an order to that effect and shall, in any case, send on the diary or an extract therefrom to the District Magistrate for his perusal and orders.

***[5. Distinction between recording of reports under sections 154 and 157, of the Code of Criminal Procedure.-** (i) Whereas every information covered by section 154 of the Code must be reduced to writing as provided in that section, it is only information which raises a reasonable suspicion of the commission of a cognizable offence within the jurisdiction of the Police Officer to whom it is given, which compels action under section 157 of the Code, although, of course, a report would be sent to the Magistrate.

(ii) A Magistrate cannot refuse to take cognizance of a complaint which has been duly made to him, on the ground that it relates to an offence cognizable by the Police, and should, therefore, have been made to the Police and not to himself. Failure to so take cognizance amounts to failure to exercise jurisdiction legally vesting in the Magistrate.

(iii) A Magistrate who has taken cognizance under section 190(1)(a) of the Code, of an offence cognizable by the Police may, after complying with the provisions of section 200 of the Code, and issuing his process (if he sees no reason for doubting the truth of the complaint and otherwise finds sufficient grounds for proceeding), give information of the case to the Police Officer having jurisdiction, with a view to his further investigating its facts and circumstances in the manner laid down in section 157 of the Code. In such a case, as is contemplated, the Police Officer would not have to take measures for the discovery and arrest of the offender, as the supposed offender would be known, and a process would have been issued by the Magistrate to compel his appearance; but in other respects it would rest with him to take steps to secure the case being properly brought before the Court, and he would be responsible that the witnesses named by the complainant to the Magistrate were supplemented by any others who might be necessary to complete the case for the prosecution.]

6. Procedure to be adopted by Magistrate when offender is not known to the complainant.-- The *[remarks contained in the preceding paragraph] proceed on the assumption that the complainant to the Magistrate knows, or thinks he knows, who has injured him. In cases of complaint of a cognizable offence against an unknown offender, the Magistrate would have to record, under section 203, that there were in his judgment no sufficient grounds for proceedings. It would also be open to him to communicate to the police the information supplied to him, or to leave it to the complainant either to apply to the Police or to take such other measures as he thought proper for discovering the offender.

7. Procedure of Police when there is or is not sufficient evidence against the accused.-- Section 169 of the Code of Criminal Procedure provides that if in an investigation under Chapter XIV the Police officer finds that there is not sufficient evidence to justify the forwarding of the accused to a Magistrate, he shall release the accused on bail or recognizance, and shall submit a report through the proper officer (section 173), for the orders of the Magistrate having jurisdiction.

If, on the other hand, the evidence appears sufficient the Police officer must forward the accused under custody, or on bail, if the offence is bailable, to the Magistrate having jurisdiction (section 170).

8. Police cannot detain in custody an accused for more than 24 hours without orders of Magistrate.-- Section 61 of the Code provides that no Police officer shall, under any circumstances, in the absence of a special order of a Magistrate under section 167, detain in custody a person arrested without warrant for a longer period than twenty-four hours, exclusive of the time necessary for the journey from the place of arrest to the Court.

9. Police remands.-- When it appears that the investigation by the Police cannot be completed within the period of twenty-four hours and there are grounds for believing that the accusation is well founded, the Police Officer must forward the accused to the nearest Magistrate, and also transmit a copy of the entries relating to the case in the diary of the Police Station. The Magistrate before whom the accused is brought may, whether he has or has not jurisdiction, authorise the detention of the accused in such custody as he thinks fit for a period not exceeding fifteen days. If he has not jurisdiction in the case, and considers such further detention unnecessary, he may order the accused to be forwarded to a Magistrate having jurisdiction. ^{**}[(Section 167 of the Code).]

***[10. Procedure of Magistrate granting remand.-** A Magistrate authorizing the detention of an accused person as above must record his reasons for doing so; and shall forward a copy of his order with his reasons for making it, to the Sessions Judge. (Section 167, sub-section (4) of the Code.)]

11. Arrest by Police to be reported. When Police may discharge persons once arrested.-- Sections 62 and 63 require that Police officers shall report to the Magistrate of the district or, if he so directs to the Magistrate of the sub-division of a district, the cases of all persons apprehended without a warrant within the limits of their respective stations, whether such persons ^{***}[...] have been admitted to bail or otherwise, and that no person who has been apprehended shall be discharged except ^{*}[on his own bond, or on bail] or under the special order of Magistrate.

12. Control of Magistrate over arrests by the Police.-- The object of these sections is that the Magistrate should promptly exercise authority, if

necessary, with regard to all arrests by the Police; and they seem to have been framed with this view that as no person can be released without the order of a Magistrate, except on bail or recognizance, the Magistrate *[and the Police should be responsible if a person is illegally arrested or] remains unnecessarily in custody.

13. Police diary to be kept and sent up regularly.-- Section 172 requires that a Police Officer making an investigation under Chapter XIV shall record his proceedings day by day in a diary. The Magistrate of the district should see that the diary is regularly kept up and that each day's diary has been forwarded to and has regularly reached the Superintendent of Police of the district in course of post, this being the only security against the contents being antedated. ***[...]

14. Duty Magistrates to supervise Police Investigations.-- Magistrates are bound to see that the provisions of the Code are attended to , any departmental practice notwithstanding. The law has provided that the Magistrate should either expressly order (section 202), or receive immediate intimation of (section 157) *[the] criminal investigation that is set on foot in the district, and he is not at liberty to relax the supervision which the law intends that he should exercise.

15. Magistrate must have among his own records the means to supply statistical information.-- From the quarterly statistical returns it sometimes transpires that the Magistrate is not informed of the number of persons arrested by the Police during the month. If the points above alluded to are properly attended to, the Magistrate must have among his own records the means to supply the statistical information; for the reports severally made to him of intimation of the occurrence of an offence (section 157), of there being no sufficient evidence (section 169), of there being sufficient evidence (section 170), must be in writing, and, whatever may be the mode of communication with the Police, must leave a trace in the Magistrate's office sufficient to enable the statistical writer to make out his returns.

16. Police to send to the Magistrate copies of records made under section 165, Cr.P.C.-- Magistrates of districts should also insist on the Police authorities adhering closely to the law laid down in sections 161 to 163 and 165

of the Code of Criminal Procedure. They should see that the Police forthwith sends to the nearest Magistrate, empowered to take cognizance of the offences, copies of any record made under sub-section 165 of the Criminal Procedure Code at the time of making search.

17. Power of Police to summon witnesses and to arrest offenders.--

The issuing of a warrant or summons, properly so called, in criminal cases, is the prerogative of the Magistrate only and no writ from a Police Officer, as such is to bear either of these designation; but, under section 160, any Police officer making an investigation under Chapter XIV may by 'order in writing' require the attendance of any person who appears to be acquainted with the circumstances of the case, and such person shall be bound to attend. The arrest of an accused may also be effected by a Police Officer of any rank to whom an order in writing has been issued by the officer-in-charge of the police station; but such processes are never, either officially or in common parlance, to be called 'warrants' or 'summons'.

PART B -- REMANDS TO POLICE CUSTODY

1. Introductory.-- The following instructions on the subject of remands to Police custody have been issued by the High Court.

2. Distinction between remand to Police custody and remand to judicial lock-up.-- Magistrates should observe the great distinction between a remand to Police custody and an ordinary remand to the Magistrate's lock-up under section 344 on the adjournment of an inquiry or trial owing to the absence of a witness or from any other reasonable cause.

3. Non-completion of Police investigation does not justify detention by Police.-- The non-completion of the enquiry or trial justifies the latter, but the former requires something more, as it is expressly provided by section 167 that the non-completion of the investigation shall not, in the absence of a special order of a Magistrate, be deemed to be a sufficient ^{*}[cause] for the detention of an accused person by the Police.

4. Remand to be granted in cases of real necessity.-- Ordinarily, when an investigation is incomplete, the proper course is for the accused person to be sent up promptly with such evidence as has been obtained and for the trial to be commenced at once by the Magistrate and proceeded with, as far as possible, and then adjourned for further evidence. ^{***}[...] A remand to Police custody ought only to be granted in cases of real necessity and when it is shown in the application that there is good reason to believe that the accused can point out property or otherwise assist the Police in elucidating the case.

5. Magistrate should discourage tendency of Police to take remand to extort confession.-- The Police are too often desirous of retaining the accused in their custody for the longer period than twenty-four hours merely in the hope of extracting some admission of guilt from him. This is contrary to section 163 and the following section of the Code of Criminal Procedure, and to the spirit of the Code generally; and Magistrates must be careful not to facilitate this object by too great a readiness in granting remands.

6. Remand cannot be granted for more than 15 days. Procedure when accused is brought before a Magistrate to obtain remand.-- Remands to Police custody cannot be granted under the Code of Criminal Procedure, for

a longer period than 15 days altogether, and cannot be granted at all by a Magistrate of the third class, or by a Magistrate of the second class not specially empowered by the Provincial Government. When an accused is brought before a Magistrate in accordance with section 167, Sub-section (1) of the Code of Criminal Procedure, 1898, the Magistrate must adopt one of the following courses:-

- (1) If he has jurisdiction to try the case or *[send] it for trial, either:-
 - (a) discharge the accused at once, on the ground that there is no cause shown for further detention, or
 - *[(b) remand him to Police custody (if empowered to do so) or to magisterial custody as he may think fit, for a term not exceeding 15 days, which term if less than 15 days, may subsequently be extended upto the limit of 15 days in all and shall forward a copy of his order with his reasons for making it, to the Sessions Judge; or
 - (c) proceed at once to try the accused himself or send him for trial, or]
 - (d) if for any reason it seems necessary, forward the accused at once to the **[Sessions Judge or] District or Sub-Divisional Magistrate to whom he is subordinate, or
 - (e) if himself a District or Sub-Divisional Magistrate, send the accused to a competent subordinate Magistrate for trial or sending up.
- (2) If he has not jurisdiction to try the accused or *[send] him for trial, he must either:-
 - (a) if he thinks there is no ground for further detention, at once send the accused to a Magistrate having jurisdiction, with a view to his trial or discharge, or
 - (b) if he thinks there is ground for further detention, remand him to police custody (if empowered to do so) or to magisterial custody as he may think fit, for a term not exceeding 15 days, which term, if less than 15 days, may subsequently be extended up to the limit of 15 days in all, **[and forward a copy of his order with his reasons for making it, to the Sessions Judge.]

Note: ***[Omitted]

7. Accused must be produced before the Magistrate who should satisfy himself about necessity for remand.-- Before making an order of

remand to Police custody under section 167 of the Code of Criminal Procedure, the Magistrate should satisfy himself that--

- (1) there are grounds for believing that the accusation against the person sent up by the Police is well founded;
- (2) there are good and sufficient reasons for remanding the accused to Police custody instead of detaining him in magisterial custody.

In order to form an opinion as to the necessity or otherwise of the remand applied for by the Police, the Magistrate should examine the copies of the diaries submitted under section 167 and ascertain what previous orders (if any) have been made in the case, and the longer the accused person has been in custody the stronger should be the grounds required for a further remand to police custody.

The accused person must always be produced before the Magistrate when a remand is asked for.

8. Principle applying remand cases.-- The following principles are laid down for the guidance of Magistrates in the matter of granting remands, and District Magistrates are required to see that they are carefully applied:-

(i) Under no circumstances should an accused person be remanded to Police custody unless it is made clear that his presence is actually needed in order to serve some important and specific purpose connected with the completion of the inquiry. A general statement by the officer applying for the remand that the accused may be able to give further information should not be accepted.

(ii) When an accused person is remanded to Police custody the period of the remand should be as short as possible.

(iii) In all ordinary cases in which time is required by the Police to complete the inquiry, the accused person should be detained in magisterial custody.

(iv) Where the object of the remand is merely the verification of the prisoner's statement, he should be remanded to magisterial custody.

(v) An accused person who has made a confession before a Magistrate should be sent to the Judicial lock-up and not made over to the Police after the confession has been recorded. If the Police subsequently require the accused person for the investigation, a written application should be made giving reasons in detail why he is required and an order obtained from the Magistrate for his delivery to them for the specific purposes

named in the application. If an accused person, who has been produced for the purpose of making a confession, has declined to make a confession or has made a statement which is unsatisfactory from the point of view of the prosecution he should not be remanded to Police custody.

***[9. Reasons for grant of remand to be recorded and copy sent to Sessions Judge.--** The Magistrate giving remand to Police custody shall record his reasons for so doing and forward copy of his order to the Sessions Judge or the District Magistrate as the case may be. (See section 167(3) & (4) Cr.P.C.)

10. Procedure when a remand for more than 15 days is required for completion of the case.-- If the limit of 15 days has elapsed, and there is still need for further investigation by the Police, the procedure to be adopted is that laid down in section 344, Criminal Procedure Code. The case is brought on to the Magistrate's file and the accused, if detention is necessary, will remain in magisterial custody. The case may be postponed or adjourned from time to time for periods of not more than 15 days each, and as each adjournment expires the accused must be produced before the Magistrate, and the order of adjournment must show good reasons for making the order.

***[11. Strict supervision to be exercised over the action of Magistrates granting remands.--** The Sessions Judges and the District Magistrates as the case may be should take measures to exercise strict supervision over the action of all Magistrates subordinate to them, in regard to the granting of remand under section 167 of the Code of Criminal Procedure and as they receive the reports made under subsection (4) thereof, they possess the means for exercising the supervision here required of them without any difficulty.]

12. (i) Instructions issued by the Provincial Government in respect to remands.-- *** [...] **(a)** Before a remand is granted in any case, the Magistrate should inform the accused that he is a Magistrate and that a remand has been applied for, and he should ask the accused whether he has any objection to offer to the remand. The order granting the remand should be written at the time it is announced, in the presence of the accused.

(b) If the accused wishes to be represented by counsel, the Magistrate should allow time for counsel to appear and argue the matter before him. He

may grant a temporary remand in such circumstances until arguments have been heard.

(ii) Right of accused to access to counsel and friends.-- ***[...] An accused person should not be removed to a place which is either inaccessible or unknown to his friends or counsel. Information regarding his place of confinement should at all times be given to his friends on their application, and the prisoner himself should be informed that he is entitled to have the assistance of counsel and to communicate with his relations and friends. **[(See Punjab Government circular letter No. 6091-J-36/39829 (H-Judl) dated the 19th December, 1936).]

PART C -- IDENTIFICATION PARADES

Instructions issued by the Punjab Government regarding identification parades.-- The following instructions have been issued by the Punjab Government for the guidance of Magistrates in their conduct of identification parades (Punjab Government circular letter No. 6091-J-36/39829 (H-Judl.), dated the 19th December, 1936, to all District Magistrates in the Punjab):-

(1) **List of all persons included in the parade should be prepared.--** The Magistrate in charge of an identification parade should prepare a list of all persons, including the accused, who form part of the parade. This list should contain the parentage, address and occupation of each member of the parade.

(2) **Note about identification by witnesses.--** When any witness identifies a member of the parade, the Magistrate should note in what connection he is identified. A note should also be made if the witness identifies a person wrongly; in such a case it is incorrect to note that the witness identified nobody. All persons identified must be mentioned, whether the identification is right or wrong. If a witness, on being called for the purpose, states that he cannot make any identification, a note should be recorded by the Magistrate to this effect.

(3) **Objection or statements by accused or identification witnesses to be recorded and power of Magistrate to decide objections.--** Should the accused make any complaint or statement it should be recorded by the Magistrate. If from his personal knowledge the Magistrate is able to decide beyond doubt that the complaint is false or futile, a note to this effect should be made, but in other cases it is advisable to leave any decision as to the value to be attached to the objection to the court trying the case. The Magistrate should also record any statement made by a witness before making an identification.

(4) **Duty of Magistrate to record precautions taken and to note other points.--** The Magistrate should state-

(a) what precautions he has taken to ensure-

(i) that the witnesses do not see the person to be identified by them before the identification proceedings commence;

(ii) that no communication which would facilitate identification is made to any witness who is awaiting his turn to identify; and

(iii) that after making identification the witnesses do not communicate with other witnesses who have yet to do so;

(b) whether the person to be identified is handcuffed or is wearing fetters; and if so, whether or not other persons taking part in the parade are handcuffed or are wearing fetters, and also whether or not they are inmates of the Jail.

(5) Form of certificate to be appended by the Magistrate.- At the end the Magistrate should append a certificate in the following form:-

IDENTIFICATION PARADE

The State Versus (F.I.R. No. of 19 Police Station -----)

Parade held on the-----19 in the-----jail by-----
Magistrate-----Class-----district for the identification of-----on
the application of-----.

Names of the witness who are expected to identify the prisoner, with their particulars:-

- 1.
- 2.
- 3.

PROCEEDINGS OF THE MAGISTRATE

Certified that the above is a true and correct record of my proceedings.

(Seal) Sd/- (Magistrate) Class.

2. The following further instructions have been issued by the Punjab Government on the subject(Punjab Government circular letter No. 6546-J-43/83844 (H-Judl.) dated the 17th December 1943, to all District Magistrates in the Punjab:-

In cases where the identification of the accused is disputed and is a matter of importance, the request of an accused for an identification parade should not be refused. Such a request should not also be rejected merely because it is regarded as measure to create delay, as it should be possible to arrange an identification parade without delay. Again, a request to hold such a parade should not be refused on the ground that it is some considerable time since the witnesses last saw the accused and the accused may have changed in appearance in the meantime, and in such cases in his report on the parade the Magistrate can record when the witnesses did see the accused last.

3. A case has been brought to the notice of Government in which the Magistrate holding an identification parade allowed the accused and other members of the parade to be so dressed and "made up" with dark glasses, patches of paper, etc., that it was well nigh impossible for the witnesses to identify the accused. As an identification parade is a test of the identifying witness's ability to recognise the culprit by what he appeared to be at the time of the commission of the offence, it is fair both to the prosecution and the accused that the members of the parade should be presented in a normal state and, if possible, the dress of the parade should have resemblance to the accused as he appeared to the witness at the time of the commission of the offence. It should, therefore, be impressed upon the Magistrates in all districts to ensure, while conducting identification parades, that the members of the parade including the accused are not allowed "make up", are presented in a normal state and if possible the parade be dressed as the accused was reported to be by the witness at the time of the commission of the offence.

PART D -- CANCELLATION OF CASES REPORTED BY POLICE

1. Magistrate's power to cancel cases reported by Police.--In regard to cognizable cases reported by the Police to the Magistrate having jurisdiction under section 157 and 173 of the Code of Criminal Procedure, it frequently becomes evident either (a) that the offence committed was really non-cognizable, or (b) that the information given to the Police was false or unfounded, and the Police apply for magisterial authority to show such cases as "non-cognizable" or "false" as the case may be. The Magistrate dealing with the Police reports in such cases, that is, ordinarily, the Magistrate who is empowered to take cognizance of the offence upon Police report, in respect of the particular Police Station, under section 159 or section 173 of the Code of Criminal Procedure, as the case may be, may, for sufficient reasons, pass an order accordingly.

***[2. Duty of Magistrate to satisfy himself before passing order.**- When a Magistrate agrees with a Police report that the F.I.R./case should be cancelled, he acts in an administrative and not in a judicial capacity and the order he makes is not a judicial order. Such an order is not a revisable order and, therefore, the Magistrate is not required to give reasons for his order.

Though, Magistrates should exercise this discretion freely in making such order after satisfying themselves as to the grounds on which it is sought to be made, yet they should not treat the matter as one of ordinary routine. (See Rule 24.7 of the Punjab Police Rules, 1934 framed under section 46 of the Police Act, 1861 and Bahedu vs. The State PLD 1985 S.C. 62).]

3. Magistrate dealing with the final Police report is competent to pass order.--In the event of the first and final report not coming before the same officer, the Magistrate dealing with the final Police report would be competent to pass the order.

4. Order of cancellation when to be passed and by whom.--No Magistrate of the 2nd or 3rd class is competent to make such an order, but any Magistrate of the 1st class may do so. Such an order should only be made at the time of dealing with the police reports. No application from the Police for a direction of this character should be entertained if made otherwise than in the final report submitted under section 173 of the Code of Criminal Procedure. But

any Magistrate of the 1st, 2nd or 3rd class, may, of his own motion , in the course of trying any case reported by the Police as cognizable, pass such an order at any stage of the proceedings, before or at the time of delivering judgment, intimation of the order being given to the Police.

PART E -- CUSTODY OF PROPERTY SENT IN BY THE POLICE

1. Kinds of property sent in by Police.-- Property sent in by the Police is usually of three kinds:-

(i) Articles including (a) counterfeit coins, together with implements for their manufacture, such as dyes, moulds, etc., and (b) forged currency notes and implements such as dyes, moulds, etc., used in the forgery of currency notes, transmitted to the Magistrate, under section 170 of the Code of Criminal Procedure, with the Police report in cases sent up for trial.

(ii) Property seized by the Police as stolen property or upon suspicion, and ordered by the Magistrate, under section 523 of the Code of Criminal Procedure, to be forwarded to headquarters.

(iii) Property taken charge of by the Police under section 25 of Act V of 1861, and ordered by the Magistrate of the district to be forwarded to headquarters.

2. Custody and disposal of the property.-- (a) With regard to property referred to in rule 1 (i) above, other than articles enumerated in (a) and (b), the Police Department will retain charge of it pending the disposal of the case. When the case is decided, the property, if not returned to the owner, will be made over to the Nazir for safe custody, or otherwise disposed of, as the Magistrate may direct.

(b) Articles enumerated in 1 (i) (a) above, will remain in the custody of the Police Department pending the disposal of the case. At the end of the case and not till after the appeal or revision, if any, the Court shall send them to the Treasury or Sub-Treasury together with a short description of the case; and

(c) Articles enumerated in 1(i) (b) above produced in and confiscated by a Court shall remain in the custody of the Police Department during the trial of the case. After the decision of the case and the Appeal or Revision, if any, from it, the Presiding Officer of the Court shall return, through the Police Department to the Currency Officer, State Bank of Pakistan in whose jurisdiction the forged note is/notes are detected for entry in their books and destruction and make the remaining articles over to the Police Department for

their destruction or for such other action as may be found suitable in accordance with the rules of that Department.

3. Custody and disposal of the property.-- Property of the second kind, when sent into headquarters, will remain in the custody of the Police until the Magistrate makes an order for the issue of a proclamation under section 523 of the Code of Criminal Procedure, when it should be transferred to the custody of the Nazir, or otherwise disposed of as the Magistrate may direct.

4. Custody and disposal of the property.-- Property of the third kind should on arrival at headquarters be made over at once to the Nazir by the Police Department.

5. Custody of coins, currency notes, etc.-- In any individual case where the property consists of bullion, coin, currency notes, valuable securities or jewels, and is of great value, say, above one thousand rupees, it should instead of being made over, under the preceding rules, to the Nazir, be made over to the Treasury Officer; coin or currency notes (other than counterfeit coin and notes) will be treated as regular deposits under the rules in Chapter III, Account Code, Volume II; bullion at its estimated value in cash, and securities, irrespective of their face value, and jewels will be deposited for safe custody, and an entry made not in the ordinary register, but in a special register which should be countersigned every month by the Deputy Commissioner. The orders of the Deputy Commissioner should first be obtained by the Police before placing bullion or jewellery, etc., for safe custody at the Treasury.

6. Responsibility of Police for safe custody.-- Until the property is, under the preceding rules, made over to the Treasury, the Police Department will continue to be responsible for its safe custody. When so made over, the responsibility for its safe custody will rest with the Nazir *^{or} Treasurer, as the case may be.

7. See also Volume IV, Chapter 10.-- "Forfeited and Unclaimed Property."

**PART F -- INSPECTION BY POLICE OFFICERS OF RECORD AND OTHERS
AFFECTING THE WORKING OF THE POLICE**

1. Inspection by Police officers of the record of criminal cases in which a member of the Police is convicted or left under suspicion.-- District Magistrates are instructed to permit Superintendents of Police to peruse the proceedings and evidence in all criminal cases in which a member of the Police force is either sentenced to punishment, or, though acquitted, is left under suspicion or severely censured. The object is not to question the correctness of the decision of the Magistrate, but to enable the Police to take such departmental action as may appear necessary.

2. Copies of certain confessions to be sent to Inspector-General of Police.-- Copies of all confessions which may be valuable from a Police point of view, as inculcating accomplices, should be forwarded to the office of the Inspector-General of Police for record.

3. All modifications of the order of the lower court made in appeal, revision, or reference should be communicated to the Superintendent Police.--
***[...] Intimation shall always be given to the Court Inspector of the District Magistrate's Court, for Communication to the Superintendent of Police, of all modifications made by a Court of Appeal, Revision or Reference in an order passed by a Court of Original Criminal Jurisdiction.

Note:- As copies of all such orders (except orders passed in appeal by a Subordinate Magistrate invested with criminal appellate powers for the communication of which special provision should be made) are sent to District Magistrate, the above direction can be carried out without difficulty.

**PART G. -- INFORMATION OF CONVICTION IN COMPLAINT CASES
TO BE FURNISHED TO THE POLICE.**

1. **Information of convictions in certain cases to be sent to police.**-- Magistrates are required to furnish the Police with information as to convictions in all cases taken up by them on complaint under the Acts noted below:-

I. (PAKISTAN PENAL CODE)

Chapter XI

Sections 193 to 195	Giving or fabricating false evidence.
Sections 211 to 377	False charge of committing an unnatural offence.

Chapter XII

Sections 231 to 232	Counterfeiting of coin.
Sections 233 to 235	Making, buying, selling or having in possession of instruments or material for counterfeiting coin.
Section 236.	Abetting the counterfeiting of coin out of Pakistan.
Sections 237 to 238	Import or export of counterfeit coins.
Sections 239, 240, 242, 243,	Possession or delivery of counterfeit coin.
Section 244.	Unlawful alteration of weight or composition of coin by persons employed in mints.
Section 245	Unlawful removal of coining instruments from Mints:
Sections 246 to 253	Unlawful alteration of weight, composition or appearance of coin and possession and delivery of such coin.
Section 255.	Counterfeiting of Government stamps
Sections 256 to 257	Making, buying, selling or having in possession instruments or

Sections 258 to 259	material for counterfeiting Government stamps.
Section 260.	Possession or sale of counterfeit Government stamps.
Sections 261 and 263	Using of counterfeit stamps.
	Fraudulent effacement or erasure of Government stamps.

Chapter XVI

Section 311	Being a thug.
Section 354	Indecent assault on a woman.
Sections 363 to 369	Kidnapping.
Section 376	Rape.
Section 377	Unnatural offence.

Chapter XVII

Sections 379 to 382	Thefts of all kinds.
Sections 384, 386 to 389	Extortion of all kinds except section 385.
Sections 392 to 394, 397 & 398	Robbery of all kinds.
Sections 395, 396, 399, 402.	Dacoity of all kinds.
Sections 400 and 401.	Belonging to a gang of thieves, dacoits.
Section 404.	Dishonest misappropriation of property belonging to a deceased person.
Sections 406 to 408.	Criminal breach of trust.
Section 409.	Criminal breach of trust by public servants.
Sections 411 to 414	Receiving stolen property.
Sections 418 to 420	Cheating of all kinds, except simple cheating, section 417.
Sections 429 to 433 and 435 to 440.	Serious mischief.
Sections 449 to 452	House-trespass in order to commit an offence.
Sections 454 to 458	Lurking house-trespass or house breaking other than simple, section 453.

Sections 459 and 460

Grievous hurt or death caused in house-breaking.

Section 461.

Dishonestly breaking open a closed receptacle.

Section 462.

Fraudulently opening a closed receptacle held in trust.

Sections 465 to 469

Forgery.

Chapter XVIII

Sections 489-A to 489-D.

Forgery of currency notes and bank notes.

[Enhanced punishment for certain offences under Chapter XII or Chapter XVII after previous conviction.- All offences which would, if committed in Pakistan have been punishable under Chapter XII or Chapter XVII of the Pakistan Penal Code with imprisonment of either description for a term of three years or upwards, in which the order or conviction was passed by a Court or tribunal in the territories of any Province acting under the general or special authority of the Federal or of any Provincial Government, - (vide Act III of 1910, amending section 75, Pakistan Penal Code)]

II. (CODE OF CRIMINAL PROCEDURE).

Chapter VIII

Sections 109 to 110 ..Bad livelihood

*[III. (MISCELLANEOUS ACTS).

Prohibition (Enforcement of Hadd) Order, 1979.

The Arms Ordinance, 1965 (Ordinance XX of 1965).]

IV. (OTHER OFFENCES).

All offences in cases in which the subsequent proof of the conviction so recorded would render the person convicted liable by law to enhanced

punishment on subsequent conviction of the same or a similar offence by reason of the proof of such former conviction and all offences in which, upon such proof, the law establishes a presumption in favour of the prosecution.

***[Omitted]

2. **Form of statement prescribed for such information.**-- A form of the statement to be furnished to the Police is attached hereto.

3. **Filling up of the form.**-- In courts where there is '[an Attorney or Assistant Attorney, this official should] be held responsible for filling up the form in question, and Magistrate will only be required to sign it. In other Courts, Magistrate will, after filling up the form send it to the officer-in-charge of the nearest Police Station.

4. **Indent for forms.**-- Printed forms in English for these statements should be indented for in the usual way. The supply of vernacular forms should be arranged for by District Magistrate.

STATEMENT SHOWING CASES TAKEN UP BY THE MAGISTRATES ON COMPLAINT UNDER SECTIONS OF THE PAKISTAN PENAL CODE AND OTHER ACTS, OF WHICH THE POLICE DEPARTMENT MAINTAINS A RECORD, WHERE SUCH CASES END IN CONVICTION.

1	2	3	4	5	6	7
District in which trial is held	Name, parentage, caste, residence and occupation of person convicted	Offence of which convicted	Sentence	Date of sentence.	Name and powers of Magistrate	Remarks

5. **Criminal statistics supplied to Police.**-- For information regarding criminal statistics to be supplied by District Magistrates to the Police every year, see Volume IV, Chapter 23 -- "Reports and Returns."



PART H -- MISCELLANEOUS

1. Cases against Police officers.-- For cases against Police officers see Chapter 6, "Cases against Government servants and Soldiers."

***[2. Police reports sent to Magistrates through a superior Police officer-** The following reports sent to Magistrates shall be submitted through a superior officer of Police:-

(a) Information reports or charge registers, under section 157, in all cases in which the Police have abstained from investigation.

(b) Completion reports, including charge-sheet, under section 173 in all cases in which no person is sent up for trial and whether any person has been arrested or not.

(c) Completion reports, including charge-sheets, under section 173, in all cases sent for trial at the headquarter of a district. (Punjab Government Notification No. 77, dated 26-4-1883).

The following Officers of Police shall be deemed to be "Superior Officers" within the meaning of these rules:-

Under clauses (a) and (b), the Superintendent of Police; and when the Superintendent of Police is unable to receive such reports, an Assistant Superintendent of Police, and when Superintendent of Police and Assistant Superintendent of Police is unable to receive such reports, an Inspector of Police.

Under clause (c), the Superintendent of Police, and in his absence, an Assistant Superintendent of Police, and in the absence of the Superintendent of Police and the Assistant Superintendent of Police, an Inspector of Police.]

3. Copy of judgment criticising conduct of Police to be sent to higher authorities.-- For transmission of a copy of judgment in which the conduct of the Police is criticised to higher authorities see Chapter I-H, paragraph 6.

CHAPTER 12

POLICE DIARIES AND STATEMENTS BEFORE THE POLICE

When accused is entitled to see Police diaries or statement of a witness recorded by Police.-- The Police diaries called for under section 172 of the Code of Criminal Procedure should not be shown to accused persons, or to their agents, or pleaders, except under the circumstances stated in the second clause of section 172 of the Code, that is, when they are used by a Police Officer who made them to refresh his memory, or if the Court uses them for the purpose of contradicting such Police Officer. Sessions Judges and District Magistrates should issue such orders as are necessary to guard against the Police diaries being inspected by persons not entitled to see them. The right of an accused person to be furnished with a copy of the statement of a witness recorded in a Police diary is dealt with in section 162 of the Code.

Note:- These restrictions do not apply to person duly authorized to conduct the prosecution in any case.

2. Instructions regarding despatch of Police diaries and their translation with the records of criminal cases to the High Court.-- In submitting the records of criminal cases to the High Court, the Police diaries and English translations, or notes of them, should be separated from the records and placed in a sealed cover which should then be placed with the record.

3. Use of Police diary by Court.-- As to the manner in which Police diaries may be used by courts, the following remarks should be borne in mind:-
The provisions of section 172, that any Criminal Court may send for the Police diaries, not as evidence in the case but to aid it in an inquiry or trial, empowers the court to use the diary not only for the purpose of enabling the Police Officer who compiled it to refresh his memory, or for the purpose of contradicting him but for the purpose of tracing the investigation through its various stages, the intervals which may have elapsed in it, and the steps by which a confession may have been elicited, or other important evidence may have been obtained. The Court may use the special diary, not as evidence of any date, fact or statement referred to in it, but as containing indications of sources and lines of inquiry and as suggesting the names of persons whose evidence may be material for the purpose of doing justice between the state and the accused.

Should the Court consider that any date, fact or statement referred to in the Police diary is, or may be, material, it cannot accept the diary as evidence, in any sense, of such date, fact or statement, and must, before allowing any date, fact or statement referred to in the diary to influence its mind, establish such date, fact or statement by evidence.

Criminal Courts should avail themselves of the assistance of Police diaries for the purpose of discovering sources and lines of inquiry and the names of persons who may be in a position to give material evidence, and should call for diaries for this purpose.

4. Use of statement of witness made before Police; when accused may get its copies.-- As regards the proper use of statements made by witnesses before the Police during the course of an investigation, the provisions of section 162 of the Code should be carefully studied. It would appear from the provisions of that section that no statement made by a witness to a Police Officer during the course of an investigation under Chapter XIV of the Code can be proved at all for any purpose during the trial, if the statement has not been reduced into writing. If such a statement has been reduced into writing its use for any purpose whatever is also prohibited except when (a) it is the statement of witness called for the prosecution, and (b) the accused desires to use the statement or any portion thereof in the manner provided in *[Article 140 of the Qunun-e-Shahadat, 1984], to contradict the witness and thus impeach his credit. In such circumstances, the Court is bound to furnish the accused, on his request, with a copy of the statement of the witness before the Police unless it thinks it fit to withhold it under the proviso to section 162. The original written record of the statement or any portion of it, which is relied upon, must be put to the witness as required by *[Article 140 of the Qanun-e-Shahadat, 1984], and then the statement can be used for impeaching the credit of the witness as stated above. *** [...]

5. Method of contradicting a witness with previous statement.-- The procedure contemplated by Article 140 of the Qanun-e-Shahadat, 1984, should be carefully followed. When a witness is found to make statements conflicting with previous statements made by him in writing or reduced into writing, and it is intended to contradict him with the previous statements, the relevant portions of the previous statements should be read out to him and his

attention should be called to the discrepancies, and he should then be asked to offer his explanation(if any) with reference to the same. The record of the Magistrate or Judge should show clearly that this procedure has been followed. The best way of doing this should be to put direct questions reciting the relevant portions of the two statements and asking for an explanation as to the discrepancies between the same and to record fully such questions and the answers given by the witness.

6. Use of First Information Report for purposes of corroboration of statement.-- It will thus appear that, as a result of the provisions of section 162 of the Code of Criminal Procedure, a statement, made by a witness before the Police, cannot be used to corroborate his testimony inspite of the provisions of *[Article 153 Qanun-e-Shahadat, 1984,] (ef. I. L. R. 6 Lah. 171). The first information report recorded under section 157 of the Code, however, does not fall within the scope of section 162 as it is not a statement made in the course of an investigation and hence it can be used to corroborate the testimony of the person making the report if he appears as a witness. It frequently happens, however, that the person making the first information report has no personal knowledge at all of the fact stated in the report and in such cases the report has no value except in so far as it discloses the manner in which the Police obtained the first information about the offence.

***[7. Confession made by accused to Police is admissible in evidence if it has led to discovery of any fact.-** Section 162 of the Code of Criminal Procedure applies to the statement of persons examined as witnesses by the Police and not to the statement of an accused person, and it does not modify or override the provisions of Article 40 of the Qanun-e-Shahadat, 1984 in any way. Consequently a confession by an accused person to the Police, whether it has been reduced into writing or not, is admissible in evidence under Article 40 of the Qanun-e-Shahadat, 1984, if any fact is deposed to as having been discovered in consequence of such a confession.

8. Dying declaration excluded from operation of section 162, Cr.P.C.- Dying declarations falling under Article 46(1) of Qanun-e-Shahadat, 1984 are excluded from the scope of section 162 of the Code of Criminal Procedure.]

CHAPTER 13 CONFESSIONS AND STATEMENTS OF ACCUSED PERSONS

Statements of accused at various stages explained.-- The provisions of sections 164, 342 and 364 of the Criminal Procedure Code with regard to the confessions and statements of accused persons should be carefully studied. Section 164 deals with the recording of statements and confessions at any stage before the commencement of an enquiry or trial. Section 342 deals with the examination of accused persons during the course of the enquiry or trial. Section 364 prescribes the manner in which the examination of an accused person is to be recorded.

2. Use of confession of accused during Police trial recorded by Magistrate.-- The object of Section 164, Criminal Procedure Code, is to provide a method of securing a reliable record of statements or confessions made during the course of the Police investigation, which could be used, if necessary, during the enquiry or trial. Under ^{*}[Article 38 of the Qanun-e-Shahadat, 1984], a confession to a Police Officer is in-admissible in evidence, and hence when an accused person confesses during the Police investigation, the Police frequently get it recorded by a Magistrate under section 164, Criminal Procedure Code, 1898, and it can then be used to the extent to which it may be admissible under the ^{*}[Qanun-e-Shahadat, 1984.]

3. Presumption attached to confessions recorded by Magistrate and its evidential value. Safeguards provided in law to obtain a voluntary and precisely recorded confession.-- Under ^{*}[Article 91 of the Qanun-e-Shahadat 1984], a Court is bound to presume that a statement or confession of an accused person, taken in accordance with law and purporting to be signed by any Judge or Magistrate, is genuine, and that the certificate or note as to the circumstances under which it was taken, purporting to be made by the person signing it, are true, and that such statement or confession was duly taken. The words "taken accordance with law" occurring in this section are very important and it is essential that in recording a statement or confession under section 164, the provision of that section ^{*}[shall] be strictly followed. ^{***}[...] The evidential value of a confession depends upon its voluntary character and

the precision with which it is reproduced and hence the section provides safeguards to secure this end. These safeguards are of great importance, as confessions are often retracted at a later stage and it becomes necessary for the court to ascertain whether the alleged confession was actually and voluntarily made. The mere fact that a confession is retracted does not render it inadmissible in evidence, but the Court has to scrutinize any such confession with the utmost care and accept it with the greatest caution. Experience and common sense in fact show that in the absence of some material corroboration it is not safe to convict merely on a retracted confession, unless from the peculiar circumstances under which it was made and judging from the reasons, alleged or apparent, of retraction, there remains a high degree of certainty that the confession, notwithstanding its having been resiled from, is genuine. ***[...]

4. Important features of Section 164, Criminal Procedure Code.--

Some important features of section 164 ***[...] are:-

(a) Statements or confessions made in the course of an investigation can be recorded only by a Magistrate of the first class or of the second class who has been specially empowered by the Provincial Government.

(b) Confessions must be recorded and signed in the manner provided in section 364.

(c) Before recording any such confession the Magistrate shall explain to the person making it that he is not bound to make a confession, and that if he does so it may be used in evidence against him.

(d) No Magistrate shall record any such confession unless upon questioning the person making it he has reason to believe that it was made voluntarily, failure to question has been held to vitiate the confession. ***[...]

(e) The memorandum set forth in section 164 (3) must be appended at the foot of the record of the confession.

(f) It is not necessary that the Magistrate receiving or recording a confession or statement should be Magistrate having jurisdiction in the case.

**[(g) Any such statement may be recorded by such Magistrate in the presence of the accused, and the accused given an opportunity of cross-examining the witness making the statement. [See Sub-Section (1-A) of Section 164 Cr.P.C.]

5. Form prescribed for recording confessions.-- *[For recording confessions taken under section 164 of the code the following form shall be used:-]

RECORD OF CONFESSION MADE BY AN ACCUSED PERSON

(Section 164 of the Code of Criminal Procedure)

----- Division

In the Court of-----

THE STATE,

versus

The confession of-----taken by me--
-----, a Magistrate of the-----District, this-----
-----day of-----19 .

Memorandum of Enquiry

(The Magistrate shall first, as required by section 164(3), Code of Criminal Procedure, explain to the accused person that he is not bound to make a confession, and that if he does so, it may be used as evidence against him, and shall then put and record answers to the following questions. If the answers are of such a character as to require him to do so, he should put such further questions as may be necessary to enable him to judge whether the accused person is acting voluntarily. In arriving at his conclusion on this point the Magistrate should consider *inter alia* the period during which the accused person has been in Police custody and make sure that the confession is not the result of any undue influence or ill-treatment. Special care should be taken when women or children are produced by the Police for their confessions being recorded).

1. Q.-- Do you understand that you are not bound to make a confession?

A.-----

2 Q. Do you understand that your statement is being recorded by a Magistrate, and that if you make a confession, it may be used as evidence against you?

A.-----

3. Q.--- How long have you been in police custody?

A.-----

4. Q.—Do you understand that after making a statement before me you will not be remanded to police custody, but will be sent to the judicial lock-up?

A.-----

5. Q.—Understanding these facts, are you making a statement before me voluntarily?

A.-----

6. Q—What are your reasons for wishing to make a statement?

A.-----

Statement of accused

(Mark or signature of accused).

Magistrate.

I have explained to ----- that he is not bound to make a confession, and that if he does so, any confession he may make may be used as evidence against him and I believe that this confession was voluntarily made. It was taken in my presence and hearing, and was read over to the person making it, and admitted by him to be correct, and it contains a full and true account of the statement made by him.

Dated _____

Magistrate.

6. Instructions for recording confessions.—Unless there are exceptional reasons to the contrary confessions should be recorded in open Court and during Court hours. Police officers investigating the case should not be present.***[...]

7. Accused who has made a confession should not be kept in Police custody, but should be kept in Judicial lock-up separate from other prisoners.—An accused person who had made a confession before a Magistrate should be sent to the judicial lock-up and not made over to the Police after the confession has been recorded. If the Police subsequently require the accused person for the investigation, a written application should be made giving reasons in detail why he is required, and an order obtained from the Magistrate for the purpose of making a confession, has declined to make a confession or has made a statement which is unsatisfactory from the point of view of the prosecution he should not be remanded to Police custody.

7-A. When remanding to the lock-up an accused person who has made a confession, the Magistrate shall record an order for him to be kept separate from other prisoners as far as may be practicable.

8. Accused can be examined to explain the prosecution evidence against him and not to fill up gaps in that evidence .—Section 342 of the Code empowers the Court to put questions to the accused at any stage of enquiry or trial to enable him to explain any circumstances appearing in evidence against him. The question put under this section must be confined to the points brought out in the evidence and should not be in the nature of cross-examination of the accused person. Nor should the power given by the section be used to elicit information from the accused to fill up gaps in the prosecution evidence (cf I.L.R 4 Lah. 55). For, the conviction of an accused person can only be based on the evidence produced by the prosecution, no oath can be administered to the accused and the answers given by him can only be taken into consideration in explanation of the prosecution evidence.

8A. Accused can be questioned generally on the case only after prosecution evidence has been finished.—The Magistrate is allowed by section 342 of the Code of Criminal Procedure to examine the accused at an early stage of the case for the purpose of enabling him to explain any circumstances appearing in the evidence against him. This provision is intended for the benefit of the accused, and must not be used to elicit his defence before

the prosecution evidence is complete. Magistrate sometimes question the accused generally on the case as soon as a prima facie case has been made out, but before the prosecution evidence is complete. This is incorrect. According to the second part of clause (1) of section 342, it is only after the completion of the prosecution evidence that accused can be questioned generally on the case.

***[...]

9. Failure to examine accused at the close of prosecution evidence vitiates the trial.—Section 342 makes it obligatory for a Court to examine the accused generally on the case after the witness for the prosecution have been examined and before the accused is called for his defence. Even when an accused person has been examined at a earlier stage of Court must examine the accused generally after the close of the prosecution case (i.e.. after the examination and cross-examination of prosecution witnesses and their further cross-examination of prosecution witnesses and their further cross-examination, if any, after the charge is framed) and before the accused is called upon to produce his defence, so as to give him an opportunity to explain any points, which were not included in the questions put to him at earlier stages. *[Compliance with the provision of section 342 must be ensured for non-compliance may have the effect of vitiating the trial.]

10. Written statement of accused.—Under Section 256 of the Code, if the accused person puts in a written statement, it should be filed with the record. But a written statement of this kind does not relieve the Court of the duty of examining the accused in Court after the close of the prosecution evidence as laid down in section 342.

***[Omitted]

11. Mode of recording examination of accused.—Section 364 provides the mode in which the examination of an accused person is recorded. The question put to the accused and the answers given by him should be distinctly and accurately recorded, but the accused must confine himself to relevant answers to the questions asked by the Court. Section 364 does not prevent a Court from refusing to record irrelevant answers to questions put by it to the accused under section 342. If necessary, the Court may even prevent the accused making lengthy, irrelevant answers. The examination of the accused should be recorded in the language in which he is examined, and, if that is not

practicable, in the language of the Court or in English. In cases in which examination is not recorded by the Magistrate or Judge himself, he must record a memo thereof in the language of the Court or in English if he is sufficiently acquainted with the latter language. The examination must be read over to the accused and made conformable to what he declares to be the truth. The Magistrate or judge must then certify under his own hand that the examination was taken down in his presence and hearing, and that the record contains a full and true account of what was stated.]

******[The newly amended section 340 sub-section (2) of the Code deserves special attention. It provides that an accused person shall if he does not plead guilty give evidence on oath in disproof of charges or allegations made against him or any person charged or tried together with him at the same trial.

The stage for the accused person's statement on oath is after his statement under section 342 has been recorded. His attention should then be called to the requirements of section 340, sub-section (2) and he should be asked if he would make a statement on oath].

12. When evidence may be led to prove that accused duly made the confession or statement.—Under section 533 of the Code, if any Court, before which a confession or other statement of an accused person recorded or purporting to be recorded under section 164 or section 364 is intended to be or has been received in evidence, finds that any of the provisions of either of such sections have not been complied with by the Magistrate recording the statement it must take evidence that such person duly made the statement recorded and such a statement may then become admissible in evidence notwithstanding the provision of *[Article 102 of the Qanun-e-Shahadat, 1984], provided the error has not prejudiced the accused as to his defence on merits.

13. Instructions about recording confessions.—(i) The following instructions have been issued by the Punjab Government for the guidance of Magistrates recording confessions (Punjab Government circular letter No. 6091-J-36/39829 (H. -- Judl.), dated the 19th December 1936, to all District Magistrates in the Punjab):-

(a) Accused should be left for some time away from influence of Police.—In order to ensure that a statement or confession under

section 164 of the Code of Criminal Procedure is made voluntarily, the following precautions should be taken. Before the Magistrate proceeds to record the confession, he should arrange-so far as is compatible with his safety and that of his staff and with the safe custody of the prisoner – that the latter is left for some time (say, for half an hour) out of the hearing of police officers or other persons likely to influence him.

- (b) Confession recorded should not be handed over to the Police.—

The Magistrate who records a confession under section 164, Criminal Procedure Code, should not hand over the document after completion to the Police officer in charge of the prisoner, but should forward it, as required by sub-section (2) of that section, direct to the Magistrate by whom the case is to be enquired into or tried.

- (c) Copy of recorded confession may be given to Police.—These instructions do not prohibit a Magistrate who has recorded a confession or statement from allowing the Police to take a copy of it before it is forwarded to the trial Magistrate: and Magistrates should always permit the Police to take a copy if they express a desire to do so. When permission is so given, the Police copy should be written out by a Police officer or clerk from the dictation of an officer of the court, in the actual presence of the Magistrate who recorded the confession.

Time and labour can be saved if the Magistrate recording a confession makes a carbon copy which can subsequently be made available for Police purposes, or alternatively dictate a copy to an official of the court at the same time as he himself writes the original.

CHAPTER 14

Approvers

1. Definition.—The term “Approver” is neither defined nor used in the Criminal Procedure Code, but is usually applied to a person, supposed to be directly or indirectly concerned in or privy to an offence to whom a pardon is [tendered] under section 337 of the Code with a view to [obtaining] his testimony against other persons guilty of the offence.***[...]

***[2 when pardon may be tendered and by whom.]—** A tender of pardon can only be made in the case of certain offences specified in section 337 of the Code and by the Magistrates mentioned therein.

By section 338 of the Code the High court or the Court of Session trying the case may tender or order the District Magistrate to tender a pardon on the same conditions as are mentioned in section 337].

3. Reasons for tendering pardon should be recorded and extent of pardon explained to the intended approver.--*[...]**

In all cases in which a pardon is tendered. [the reasons for tendering the pardon must be recorded and] the intended approver should always be made carefully to understand the extent of the pardon offered to him: it should be explained to him: it should be explained to him that he is being tendered a pardon and not be prosecuted in respect of such and such a case and no others.

4. ***[Omitted]

5. Testimony of an approver generally requires corroboration of conviction.— The evidence of an approver being that of an accomplice is prima facie of a tainted character, and has, therefore, to be scrutinized with the utmost care and accepted with caution ***[...] As a matter of law, pure and simple, a conviction is not bad merely because it proceeds upon the uncorroborated testimony of an accomplice (vide *[Article 16 of the Qanun-e-Shahadat 1984]. But it has now become almost a universal rule ***[...] not to base a conviction on the testimony of an accomplice unless it is corroborated in material particulars. As to the amount of corroboration which is necessary, no hard and fast rule can be laid down. It will depend upon various factors, such as

the nature of the crime, the nature of the approver's evidence, the extent of his complicity, and so forth. But, as a rule, corroboration is considered necessary not only in respect of the general story of the approver, but in respect of facts establishing the prisoner's identity and his participation in the crime.]

6. *[Omitted]**

7. If approver gives false evidence he can be tried for the offence and also for perjury.—An approver is under the condition of his pardon bound to make a full and true disclosure of the whole of the circumstances within his knowledge relative to the offence and to every other person concerned, whether, as principal or abettor, in the commission thereof. If the approver fails to comply with this condition and gives false evidence, he is liable to be prosecuted for the offence in respect of which pardon was granted and also for perjury. He cannot, however, be tried for the former offence except upon a certificate granted by the Public Prosecutor as laid down in section 339. Sanction of the High Court is necessary for his prosecution for giving false evidence. An application to the High Court for sanction to prosecute an approver for giving false evidence should be by motion on behalf of the State and by a letter of reference***[...].

***[8. Approver should be kept in judicial custody until close of trial.-** An approver accepting a pardon under section 337 of the Code has to be detained in custody until the termination of the trial. The word “ custody” as used in section 337(3) has not been defined in the Code, but it has been held that this “ custody” means judicial and not Police custody. The detention of an approver, therefore, must be in a judicial lock-up under the order of the Court and not in Police custody].

CHAPTER 15
PROCEEDINGS AGAINST ABSCONDERS AND
RECORD OF EVIDENCE IN THEIR ABSENCE.

PART A.—MEASURES TO ENFORCE APPEARANCE.

1. Attachment and sale of property.—Section 87 and 88 of the Code of Criminal Procedure provide for the attachment and sale of the property of any accused person or witness whose presence is required by a Criminal Court as a last remedy for compelling his attendance. The procedure laid down must be strictly followed, otherwise the attachment and subsequent sale will be liable to be set aside. The proper forms for the proclamation, attachment, etc.. to be used in such proceedings, are given in schedule V of the Code.

2. Proclamation.—No proclamation can issue under section 87 unless a warrant has issued in the first instance and the Court has reason to believe that the person against whom it was issued has absconded or is concealing himself so that such warrant cannot be executed. The proclamation must fix a date for appearance of the person at a specified place and that place must be not less than thirty days from the date of the publication of the proclamation. The proclamation must be published in the manner specified in sub-section (2) of section 87, and the Court should be careful to record the statement as regards the due publication of the proclamation as required by subsection (3) of that section. The Court has the discretion to issue and order for attachment of property simultaneously with the issue of a proclamation. Section 88 ***[...] provides for the summary investigation of claims of objectors to the attachment by Magistrates. The decision of the Magistrate can be challenged by a civil suit within a year.

3. Consequences of non-appearance of proclaimed person; Sale of property.—If the proclaimed person does not appear within the time specified the proclamation, the property under attachment remains 'at the Government'. It can be sold at once at the discretion of the Court when it is liable to speedy the Court considers that the sale would be for the benefit of the owner., otherwise, it cannot be sold until the

expiration of six months from the attachment and until the disposal of claims of objectors (if any) by the Magistrate.

***[4. Directions for sale, Only life interest can be sold in certain cases.-** In conducting sales, the interest of the absconding person in the attached property which is to be sold should be clearly specified so as to avoid complications in the future].

5. Property or its proceeds may be given to absconder if he appears before Court.—If the absconder appears or is apprehended and brought before the Court within two years from the date of the attachment of his property and satisfies the Court (i) that he did not abscond or conceal himself for the purpose of evading execution of the warrant and (ii) that he had no such notice of the proclamation as could enable him to attend within the specified time, he can get the property back or its net proceeds if it has been sold (section 89).

PART B.—RECORD OF EVIDENCE IN THE ABSENCE OF THE ACCUSED.

1. Introductory.—The provisions of the Code of Criminal Procedure in regard to the taking and recording of evidence in the absence of accused persons are important and should not be overlooked.

***[2. Evidence recorded in the absence of the absconding accused may be used against him in certain cases.**— Section 512(1) of the Code of Criminal Procedure, 1898, provides that if it is proved that an accused person has absconded, and that there is no immediate prospect of arresting him the Court competent to try or send for trial to the Court of Session or High Court such person for the offence complained of may, in his absence, examine the witnesses (if any) produced on behalf of the prosecution and record their depositions. Any such depositions may on the arrest of such person, be given in evidence against him, on the enquiry with, or trial for, the offence with which he is charged, if the deponent is dead or incapable of giving evidence or his attendance cannot be procured without an amount of delay, expense or inconvenience which under the circumstances of the case would be unreasonable. Section 164 enables a Magistrate to record, in the same manner as evidence, any statement regarding an offence made by an accused person whomsoever it may implicate.]

3. Proceedings under section 512.—Proceedings under section 512 of the Code should commence by evidence being taken and recorded (1) that the accused person has absconded and (2) that due pursuit having been made, there is no immediate prospect of arresting him.

4. Medical evidence should be recorded in some cases. – In cases where the crime has terminated fatally or where medical evidence would ordinarily be required at the trial, the evidence of the medical officer as to the cause of death, or as to the injuries inflicted, should invariably be recorded.

5. Section 512 can be availed of also in cases when offence is not known.-- In cases where the crime has been committed by some person unknown and the offence is punishable with death or *[imprisonment for life], the High Court may order an inquiry similar to that under section 512(1) of the

Code, and statements recorded in that inquiry can be used as evidence against the offender subsequently discovered.

6. Confession by accused implicating as absconder cannot be used after the execution of the confession case.-- *[The] confession by accused persons, who have been executed, implicating an absconder cannot be used after the execution of the confessor against the absconder, when the latter is found and placed upon his trial, as he is not being tried in a joint trial with the other, and has had no opportunity to cross-examine. *[(See Articles 43 and 44 of Qanun-e-Shahadat, 1984)].

CHAPTER 16
EXTRADITION AND FOREIGN
JURISDICTION
(CRIMINAL COURTS).

PART A.—EXTRADITION FROM PAKISTAN

1. Definition.-- Extradition means the surrender of a fugitive offender by one State to another in which the offender is liable to be punished or has been convicted. The law of extradition is based on the broad principle that it is in the interests of all nations that crimes recognised as such by the civilized world should not go unpunished.

***[2. Laws applicable.-** The Extradition Act, 1972 (XXI of 1972), deals with the surrender of fugitive offenders to Foreign States.

3. Procedure of surrender of fugitives to Foreign States.- The Extradition Act, 1972 (XXI of 1972) defines the 'extradition treaty', 'fugitive offender' and 'treaty State' and lays down the procedure in Chapter II, for the surrender of fugitive offenders to foreign states, that is to say, the States with which an extradition treaty is for the time being in operation as well as other foreign states in relation to which a direction under sub-section (1) of section 4 of the said Act is in force.

4. Arrest and detention of "fugitive criminal" of Foreign States.- (1) When the Government of a Foreign State makes requisition for the surrender of a fugitive offender in accordance with section 6 of the Extradition Act, 1972, and the Federal Government has issued an order to enquire into the case to any Magistrate of the First Class (section 7), the Magistrate shall make an enquiry under section 8 and if, after the enquiry, the Magistrate is of the opinion-

(a) that a prima facie case has not been made out in support of the requisition, he shall discharge the fugitive offender and make report to that effect to the Federal Government;

(b) that a prima facie case has been made out in support of the requisition, he shall-

(i) report the result of his enquiry to the Federal Government;

(ii) forward, together with such report, any such statement which the fugitive offender may desire to submit for the consideration of the Federal Government; and

(iii) subject to any provision relating to bail, commit the fugitive offender to prison to await order of the Federal Government (see section 10 of the Extradition Act, 1972).

(2) The Federal Government may upon receipt of report under section 10, issue a warrant for the delivery of the fugitive offender at a place and to a person to be named in the warrant (section 11).

If a fugitive offender is not conveyed out of Pakistan within two months of his committal, he may apply to the High Court for his discharge (section 12).

The Federal Government may, for reasons mentioned in section 13, order a fugitive offender to be discharged].

5. ***[Omitted].

6. ***[Omitted].

7. ***[Omitted].

PART B.—EXTRADITION TO BRITISH INDIA.

Part-B. --[Omitted.]**

PART C.— JURISDICTION OF CRIMINAL COURTS

IN REGARD TO OFFENCES COMMITTED OUTSIDE PAKISTAN.

***[1. Persons liable to be tried.-** Section 188 of the Code of Criminal Procedure, 1898, renders citizens of Pakistan and servants of the State liable to be tried in Pakistan for offences committed beyond the limits of Pakistan in certain cases.]

2. *[Omitted].**

3. *[Omitted].**

***[4. Liability of citizens of Pakistan.-** By section 188 of the Code of Criminal Procedure a citizen of Pakistan is liable to be dealt with by the Pakistan Courts in Pakistan for any offence committed by him in any place whatever beyond the limits of Pakistan as if it had been committed at any place in Pakistan at which he may be found and he is liable to be punished for it, if it is an offence under the Pakistan Penal Code, by force of section 3 of the latter Code.]

5. *[Omitted].**

6. Trial permissible only on the certificate of Political Agent or sanction of Government.-- The *[first] proviso to section 188 of the Code of Criminal Procedure requires that no charge as to any such offence as is referred to in that section shall be inquired into in Pakistan, without a certificate of the Political Agent, if there be one, for the territory in which the offence is alleged to have been committed. If there is no Political Agent, the sanction of the Provincial Government is necessary.

7. Even inquiry not permissible without Certificate.--The aforesaid proviso does not merely prohibit a trial upon a charge framed after an inquiry, but even an inquiry into the accusation in the absence of a certificate, when requisite. The section itself, however, still leaves a Court competent to issue process, such a summons or a warrant, or to take any other step which is merely preliminary to an inquiry.

8. *[Omitted].**

9. *[Omitted].**

***[10. Court to record a finding about nationality of offender and insert it in charge.-** It should be noted that a Magistrate is not (1) at liberty to shirk an inquiry into the nationality of an accused person merely because it may appear to him a question of nicety or difficulty: and (2) competent to dispense with the enforcement of the law and absolve a citizen of Pakistan from the penal consequences of an offence, prima facie established against him merely because the offence was not committed within the limits of Pakistan.]

11. *[Omitted].**

12. Special rule of evidence.—Section 189 contains a special rule of evidence for inquiries and trials under section 188. The object is to render admissible evidence taken before Courts which are not Criminal Courts of Pakistan, in order to supply evidence which might not be otherwise procurable.

PART D.— MISCELLANEOUS

***[1. Power of Police to arrest without warrant.-** It should be noted that section 54, seventhly, of the Code of Criminal Procedure, authorizes police officers to arrest, without an order from a magistrate and without a warrant, a person who has been concerned in or against whom a reasonable complaint has been made or credible information has been received or a reasonable suspicion exists of his having been concerned in any act committed at any place out of Pakistan, which if committed in Pakistan would have been punishable as an offence, and for which he is, under any law relating to extradition or otherwise liable to be apprehended or detained in custody in Pakistan.]

1-A *[Omitted].**

2. *[Omitted].**

Appendix *[Omitted].**

CHAPTER 17 LUNATICS

PART A.—GENERAL.

1. **Classification.**—Lunatics may be classed as follows:-

- (a) Criminal lunatics.
- (b) Lunatics for whose detention in an asylum a reception order has been passed.
- (c) Lunatics so found by inquisition.

***[2. Criminal Lunatics.**- Criminal lunatics are lunatics for whose confinement an order has been passed under section 466 or 471 of the Code of Criminal Procedure, 1898, or under section 30 of the Prisoners Act, 1900.]

3. **Reception orders.**—Reception orders are dealt with in Chapter 11 of Lunacy Act, 1912 ******[(IV of 1912)] which lays down the procedure to be observed before a person, other than a criminal lunatic or a lunatic so found by inquisition, can be detained in an asylum. Such reception orders are usually made by Magistrates.

4. **Lunatics so found by inquisition.**—Lunatics so found by inquisition are dealt with by the Civil Courts (See Part III, Lunacy Act, 1912).

5. **Term “Mental Patient” and “Mental hospital” explained.**—Although persons suffering from unsoundness of mind are described as lunatics in the Acts mentioned above, it is now considered more humane to refer to them as “mental patients”. Similarly, institutions for the care and treatment of such persons, which were formerly called Lunatic Asylums, are now called mental Hospitals. The latter term should ordinarily be used in correspondence.

6. **Admission in the Punjab Mental Hospital.**—The only institution of this kind in the Punjab is the Punjab Mental Hospital at Lahore, to which all mental patients, whose confinement is considered necessary, are now sent. Accommodation is limited, and the earliest possible notice should be given, whenever it is proposed to send a patient to the Hospital.******[...]

7. **Further directions about admission.**—If possible, arrangements should be made for the patient to reach the hospital before 5 p.m., and

admission on *[Fridays] and gazetted holidays should be avoided. Lahore Cantonment is the nearest railway station for the hospital. Patients should invariably be brought to the hospital in a conveyance, and the escort should be instructed to see that the patient is properly clothed.

PART B.— CRIMINAL LUNATIC-ENQUIRY.

***[1. Magistrate bound to make enquiry about unsoundness of mind of the accused,-** When a Magistrate, holding an inquiry or a trial, has reason to believe that the accused is of unsound mind, and consequently incapable of making his defence the Magistrate shall inquire into the fact of such unsoundness and shall cause such person to be examined by the Civil Surgeon of the district or such other medical officer as the Provincial Government directs, and thereupon shall examine such Surgeon of Officer as a witness, and shall reduce the examination to writing (section 464 of the Code of Criminal Procedure, 1898).]

2. *[Omitted]**

3. Stay of proceedings if unsoundness of mind proved.—If unsoundness of mind is established to the satisfaction of the Magistrate, a finding to that effect should be recorded, and further proceedings should be stayed.

***[4. Trial of the fact of insanity in Sessions trials.-** The procedure in a Court of Session is slightly different. There, the fact of unsoundness and incapacity is to be tried in the first instance by the Court and there is no specific provision for an examination by a Medical Officer. Trial of the fact, however, forms part of the trial before the Court; and the Court would ordinarily take the necessary evidence before proceeding to a finding.]

5. Accused may be released on security.-- ***[...] After the accused has been found to be of unsound mind, and incapable of making his defence, the Magistrate or Court may release the accused on sufficient security being given that he shall be-

- (1) Properly taken care of;
- (2) Prevented from doing injury to himself or any other person; and
- (3) Produced before the Magistrate or Court or such other officer as the Magistrate or Court appoints, when required.

Such an order may be passed whether the case is bailable or not (section 466 of the Code).

6. In releasing accused due regard should be paid to public safety.—An order for release, however, should not be passed without due regard to the public interest. If the crime of which such a person is accused be an offence against the person, or if there is reason to believe that he has at any time been aggressive, a detailed medical history sheet should in all cases be obtained, and this should be consulted before orders are passed regarding bail. In the event of *[such a person] having at any time exhibited tendency to violence, it is the duty of the Magistrate or *[Court to be satisfied] that a sufficient length of time has elapsed since such manifestation to render a recurrence improbable, and that the sureties are in position to control the actions of the lunatic should they recur.

7. Action to be taken when accused cannot be released on bail.—If the case is one in which, in the opinion of the Magistrate or Court, bail should not be taken, or if sufficient security is not given, the Magistrate or Court must order the accused to be detained in safe custody in such place and manner as he or it may think fit [section 466(2)]. The action taken must then be reported to the Provincial Government.

8. Accused may be sent to Medical Hospital in such cases.—This provision enables ***[...] Court to send an accused person direct to a Mental Hospital, instead of awaiting the orders of the Provincial Government, as was formerly necessary. But if an order is made for the detention of the accused in a Mental Hospital, this order must be in accordance with any rules which the Provincial Government may have made under the Lunacy Act, 1912.

***[9. Proceedings under sections 464-466 can be taken only when a prima facie case is made out by prosecution evidence.]**—Before action is taken under section 466 of the Code the case of the prosecution should be gone into in order to discover whether any prima facie case is made out against the accused person].

10. Resumption of proceedings under section 467.—When an enquiry **[or trial] has been postponed under sections 464 or 465, the Magistrate or Court may at any time call for the accused ***[...] and resume proceedings under section 467. Such action will ordinarily be taken after a reasonable period in all cases when the accused has been released on security.

11. Patients certified by Mental Hospital to be fit to make their defence.—If, however, the accused has been detained in a Mental Hospital, the accused will usually be returned by the authorities under section 473, as soon as he is certified to be capable of making his defence. The practice in the Punjab Mental Hospital is for patients to be brought before the visitors' committee at the half-yearly inspection, and if the Medical superintendent considers that any person is capable of making his defence and of understanding the proceedings against him, he recommends that he should be put up for trial. If this recommendation is accepted by the committee, the patient is then sent back for trial.

12. Orders of Magistrate for detention may be varied by Government.—It should be noted that the orders of a Magistrate or Court for the detention of a Criminal Lunatic may be varied by the Provincial Government—

- *[(i) on a report by the Commission under section 474;or]
- (ii) on an application by a friend or relative under section 475.]

13. Procedure when the accused is of sound mind at the time of trial but was not so at the time of committing the offence.—A second class of cases arises when an accused person appears to be of sound mind at the time of ***[...] trial, but there is reason to believe that he was of unsound mind at the time of committing the offence with which he is charged. In such cases the Magistrate must proceed to determine the facts with reference to section 84 of the Pakistan Penal Code.

***[14. Detto.**—If the Magistrate of Court finds reason to believe that the accused committed an act, while he was of unsound mind, which, but for such unsoundness, would be an offence, the Magistrate should proceed with the case.

15. If accused is acquitted on the pleas of insanity he be releases.- If the plea is accepted, and the accused is acquitted on the ground that although he committed an act which would have constituted an offence if he had been of sound mind, he was insane at the time of committing it, the Court cannot order his release, but must order him to be detained in safe custody in such place and manner as the Magistrate or Court thinks fit and shall report the action taken to the Provincial Government (section 471 of the Code).

Final orders for the release or detention of a person detained under sections 466 or 471 of the Code will be made by the Provincial Government in the manner prescribed in section 474 of the Code.]

16. Superintendent Jail to keep the prisoner under observation and to report the result thereof.—In all cases in which insanity is pleaded or set up as a defence, the Superintendent of the Jail in which the convict is confined should be directed to keep the prisoner under observation and to report the result thereof to the High Court before the date fixed for hearing in that Court.

PART C.— CRIMINAL LUNATIC-- DETENTION.

1. Medical history sheet to be sent to Government.— The accompanying form (Printed at the end of Chapter 17-C as an Appendix) has been prescribed by the Provincial Government for all cases in which the papers of a criminal lunatic are sent to it for orders. Unless this form is completed, it is impossible to arrive at any safe decision regarding the period for which it will be necessary to detain him.

2. Same should be sent to Mental Hospital.—The same form should invariably be used when a criminal lunatic is sent direct to a Mental Hospital by a Magistrate or Court. ***[...]

3. Memo of principles to be observed in dealing with the cases of criminal lunatics.—Attention is called to the following memorandum, embodying the views of certain experts as to the principles which should apply generally in dealing with the cases of criminal lunatics. This memorandum is only intended to indicate broadly the action which may ordinarily be taken. The case of every criminal lunatic should be considered separately and dealt with on its own merits, and if *[in] any case the opinion of the officers responsible for advice regarding it is that the principles embodied in the memorandum do not apply, the action recommended should be that which the special circumstances of the case suggest to the experience of the officers concerned as the most appropriate.

I.— RECOVERED CRIMINAL LUNATICS

(1) Crime.—Offences against the person. Intoxicating drugs. Type-Acute or chronic mania.—If the crime be against the person, the cause, the use of intoxicating drugs, and the type of insanity, acute or chronic mania, a period of three years should be spent in an asylum free from all signs of insanity before any action is taken.

(2) Crime.—Offences against the person. Cause.—Other than intoxicating drugs. Type.—Acute or chronic mania.—If the crime be an offence against the person, the type of insanity, acute or chronic mania, and the alleged cause not the use of intoxicating drugs, a period of at least four years of

complete freedom from insanity should be spent in an asylum before action is taken.

(3) Crime.—Not an offence against the person, but where mental attitude is aggressive. Type.—Acute or chronic mania.—If the crime be not an offence against the person, but the lunatic has at any time exhibited dangerous or violent tendencies, a period of at least four years should be spent in an asylum before any recommendation is made for his transfer to jail or for his release.

(4) Crime.—Not an offence against the person, or, if so, trivial in its nature mental attitude not aggressive.—If the crime be not an offence against the person and there is no history that the lunatic was at any time aggressive, he may generally be treated ***[...] as if he were a non-criminal lunatic. The Provincial Government will generally be guided in such cases by the recommendations of the Visitors and of the Superintendent of the Asylum in which the lunatic is confined.

(5) Crime.—Murder. Type.—Melancholia.—If the crime be murder and the type of insanity be melancholia, a period of at least six years complete freedom from insanity should be passed in an asylum before action is taken.

(5) (a) If the crime be one against the person, and the lunatic has been originally confined in the asylum under the provisions of section 466 *[of the] Code of Criminal Procedure and has subsequently sufficiently recovered to stand his trial and has been acquitted under section 470 of the Code, it will be necessary that the lunatic shall be sent back to the asylum to undergo the same period of complete freedom from insanity in accordance with the above rules before a recommendation by the visitors can be made for the lunatic's release.

(6) Crime.—Attempted suicide. Type.—Melancholia.—If the crime be attempt to commit suicide, the type melancholia and if the lunatic has not exhibited any violent tendencies while under observation, some relaxations of the rules may be permitted according to circumstances, age, period of detention, *[etc.]

II.-- UNRECOVERED CRIMINAL LUNATICS.

(7) **Crime.-- Offences against a person. Type.-- Chronic mania of irritable aggressive kind.--** If the crime be an offence against a person, the type chronic mania of the irritable aggressive kind, it will seldom be possible to release the lunatic during continuance of insanity except in advanced age and on exceptional security.

(8) **Crime.-- Offences not against a person, or of trivial nature. Type.-- Mental attitude not aggressive.--** If the crime be not an offence against the person, or, if an offence against the person, of trivial nature and the lunatic has never exhibited aggressive symptoms, he may generally be treated ***[...] as if he were a non-criminal lunatic and the Provincial Government dealing with his case under section 474 of the Criminal Procedure Code, will be guided mainly by the recorded opinion of the Superintendent of the Asylum as to the propriety of releasing him, and by the recommendations of the Visitors.

4. ***[Omitted].

APPENDIX

Form No. 155.

Medical History Sheet of Lunatics.

N. B.-- The ultimate responsibility for the preparation of this form rests with the committing officer who must see that the requisite information is supplied by the Police and the Medical Officer without undue delay.

QUESTIONS TO BE ANSWERED BY POLICE ALONE

1. Name of patient in full, and caste, or race.
2. Name of patient's father.
3. Sex and age of patient.
4. Marks whereby the patient may be identified.
5. Married or single or widowed.
6. Condition of life and previous occupation (if any)
7. Religion.

8. Place of birth and recent place of abode.*
9. Whether homeless or living with relatives.**
10. Pervious history and habits.#
11. Whether any member of patient's family has been or is affected with insanity.
12. Whether the attack is the first attack of insanity or not.
13. Age (if known) at outset of first attack.
14. Duration and nature of any previous attacks.
15. Supposed cause of insanity.**
16. Supposed exciting cause of present attack.*#

QUESTIONS TO BE ANSWERED BY POLICE AND MEDICAL OFFICER.

1. Duration of existing attack.
2. Whether suicidal.
3. Whether dangerous to others.

QUESTIONS TO BE ANSWERED BY MEDICAL OFFICER ALONE.

1. State of bodily health.***
2. Symptoms exhibited.
3. Whether subject to epilepsy or any other disease.

*. Here the name of village, police station and district and length of residence should be stated.

** This heading should show the names and addresses of the relatives or person legally bound to maintain the lunatic (if any) and whether they are able and willing to take charge of him or to bear the cost of his maintenance in the asylum and, if not, why not.

#. In this the mode of life the patient led, history of any particular illness which may have helped to produce this condition of mind, his temperament or any habit of taking or smoking any drug or any ground for supposing that the insanity is hereditary, should be mentioned, in the case of criminal lunatics, also the nature of the crime, the detailed circumstances under which it was committed, how he came to be arrested by the Police and the section under which the lunatic was charged and the result of trial, in addition to other particulars which may be available.

##. State here whether he is addicted to any spirits or drugs, and, if so, for how long he has been so addicted and what is the quantity habitually taken. Whether he is a member of any particular religious or political society.

*#. Under this heading should be stated whether the lunatic suffered from loss of property, loss of relatives, domestic trouble, or ill-health immediately before the attack.

***. In this the general health of the patient as well as any abnormality of feature or development should be entered. It is desirable that special mention be made as to whether the patient is or is not suffering from any tubercular disease.

PART D.— NON-CRIMINAL LUNATIC.

1. Reception order when passed.—Reception orders are dealt with in Chapter II of the Lunacy Act, 1912. The most important provisions relate to-

- (a) reception orders passed on a petition;
- (b) reception orders passed on a Police report or information otherwise received by a Magistrate.

2. Who may pass reception order.—Such orders may be passed by a District Magistrate, a Sub-Divisional Magistrate, or a Magistrate of the 1st Class specially empowered in this behalf by the Provincial Government.

3. Reception orders on petition.—Reception orders passed on a petition are dealt with in sections 5 to 11. The most important provisions to be noted by Magistrates are—

- (a) the petition should be presented by a relative; if not, reasons must be given.
- (b) there must be two medical certificates, on separate sheets of paper, one of which must be from a gazetted Medical Officer of Government (unless any other Medical practitioner has been specially declared competent).
- (c) if the lunatic is not dangerous or unfit to be at large, no order may be passed, unless it has been ascertained that the Mental Hospital is willing to receive him, and some person undertakes to pay for his cost of maintenance.

4. Reception orders passed otherwise.—Section 13 to 16 deal with orders passed otherwise than on petition. Such orders may be passed on the ground that person presented is –

- (a) dangerous by reason of lunacy;
- (b) not under proper care and control; or
- (c) cruelly treated or neglected by any relative or other person having charge of him.

Reports under (a) may be presented only by the Police. Information under (b) and (c) may be given by the Police or any other person.

5. Period of detention for medical examination.—Section 16 *[empowers] the Magistrate to order detention up to ten days to enable

observation by a Medical Officer. If further time is required, there must be a fresh order, in the same way as with remands; but the total period of detention must not exceed thirty days from the date on which the person has first been brought before the Magistrate.

6. Copy of reception order to be sent to Mental Hospital.—A certified copy of every reception order must be sent to the Medical Superintendent of the Mental Hospital.

7. Questions to be put to medical witnesses in case of suspected insanity.—For questions which may suitably be put to a medical witness in case of persons suspected of insanity, see Chapter 18, “Medico-Legal Work” Part D, Appendix B, VIII.

8. Inquiry as to the domicile of the lunatic,-- A Magistrate making a reception order under section 14 or 15 of the Act, shall, after ascertaining that accommodation is available, direct the reception of the lunatic into the Punjab Mental Hospital, Lahore. He shall, in all cases, make strict inquiry as to the domicile of the lunatic, and shall see that entry to that effect is made in the medical history sheet (Form 9, page XLVII, in the Appendices to the Punjab Mental Hospital Manual) or is communicated as soon as possible to the Medical Superintendent of the Hospital in which the lunatic is to be admitted.

9. Admission of a lunatic in the Mental Hospital in another province.—A Magistrate cannot authorize the admission of a lunatic under sections 511 of the Act into a Mental Hospital in another province, except under a general or special order of the Provincial Government made in this behalf (section 85 of the Act). In all such cases he shall first satisfy himself that accommodation is available, and that the cost of maintenance will be paid (section 11). In order to effect the earliest possible treatment of the patient action shall be taken as soon as possible and the Magistrate shall furnish to Government in writing full details as to domicile, reasons for the admission, fees agreed to, etc.

10. Action to be taken on subsequent discovery of the domicile of the lunatic in another province.—As soon as it is known that a lunatic, who has been admitted to the Punjab Mental Hospital, is domiciled elsewhere than in

the Punjab, the fact (with details of the case) should be brought to the notice of the Provincial Government, so that action for the removal of the lunatic may, if advisable, be initiated early with the Government of the Province of domicile under section 35 of the Act.

11. Documents to be sent when lunatic is to be admitted to Mental Hospital.—No patient can be admitted to the Punjab Mental Hospital unless accompanied by the following documents;-

(a) In the case of patients admitted under sections 13 to 16 of the Lunacy Act, (IV of 1912), a Detention Order authorizing his detention for observation for a period of not exceeding 10 days, a Police report, and a statement of particulars***[...].

(b) In the case of a patient who has been kept under *[observation] at a Jail or Civil Dispensary prior to admission to the Punjab Mental Hospital the following documents are necessary;-

- (i) Copy or the original order for detention.
- (ii) Medical Certificate of observing Medical Officer.
- (iii) Final Reception Order bearing the seal of the court, and dated with seven clear days of the Medical Certificate.
- (iv) Police report or statement of particulars.
- (v) In the case of patients who have not been admitted within 14 clear days of the Medical Certificate, a certificate should be sent stating the reasons and where the patient has been confined pending his removal to the Mental Hospital.

(c) In the case of patients admitted under sections 5 to 11 of the Lunacy Act;-

- (i) Two medical certificates, dated not more than 7 clear days before.
- (ii) Application of relatives or friends and statement of particulars.
- (iii) Reception order bearing the seal of the court.

Note;- Patients must be admitted within 14 days of the date of the Medical Certificate, -vide Punjab Government letter No. 396-A (Home-jails) dated the 26th September, 1914. Committing Magistrates are further referred to Punjab

Government letter No. 17652-Medical, dated the 31st May, 1928, and are informed that, in accordance with the orders contained in paragraph 11 above, it will be necessary to report to Government all instances in which Committing Magistrates fail to comply with the provisions of the Lunacy Act, 1912, which have been summarized in this order.

PART E.— RECOVERY OF MAINTENANCE
CHARGES OF PATIENTS ADMITTED IN THE
PUNJAB MENTAL HOSPITAL.....***[Omitted]

CHAPTER 18

MEDICO-LEGAL WORK

PART A – POST-MORTEM EXAMINATIONS.

1. Effect of decomposition.—The questions to be determined by a post-mortem examination vary in different cases, and possibility of determining them effectually is not in every case equally dependent on the stage which the process of putrefaction has reached.

Thus, in death from drowning, strangulation and various diseases, questions respecting the appearance of flesh tissues, and the amount of blood in parts require to be considered, and these can only be determined soon after death, and before putrefaction has made much progress.

But it would be quite possible to determine the existence or absence of a wound or severe bruises of soft parts, even **[if]* decomposition were considerably advanced: and injuries of bones, pregnancy, presence of foreign bodies, metallic poisoning, and some profound organic diseases, are ascertainable long after death.

2. Duty of Medical Officer to conduct post-mortem examination when nothing is known about causes.—In each case, the circumstances, so far as they are known, respecting the death and the discovery of the body, which are communicated by the Police, will enable the Medical officer to form an opinion as to whether it would be possible by a post-mortem examination to throw any light on the cause of death; and wherever such possibility exists, or whenever nothing is known, it is his duty to make as full an examination as possible.

3. Examination of body when advisable for examination.—These considerations should guide a Magistrate in determining on the propriety or otherwise of exerting the power given to him by law of ordering the exhumation of a body. In cases of doubt the Magistrate should, if possible, consult a medical officer before passing such an order.

4. ***[Omitted].

5. ***[Omitted].

6. Rules about the deposition of medical witnesses and reports of Chemical Examiners.—Attention is invited to the special rules of evidence regarding the depositions of medical witnesses and the reports of Chemical Examiners contained in sections 509 and 510 of the Code of Criminal Procedure.

PART B – REFERENCES TO THE CHEMICAL EXAMINER.

1. Medical Officer to be consulted about articles to be sent to Chemical Examiner.—(i) The question as to whether any, and, if so, what articles should be sent for chemical analysis, and the transmission of such articles to the Chemical Examiner will rest ordinarily with the Medical Officer *[concerned] who should, however, attend to any requisition made by the Magistrate or the Police in this matter.

(ii) In certain cases Police may send articles direct.—In cases where human subjects are not concerned the Police may send articles to, and correspond direct with, the Chemical Examiner.

(iii) All Magistrates are at liberty to forward any articles connected with any Criminal Case before them to the Chemical Examiner, but the desirability of their consulting the Civil Surgeon or other Medical Officer before doing so is obvious.

Every thing upon which the Chemical Examiner's opinion is necessary, should be forwarded to him with the least possible delay.

2. ***[Omitted].

3. Statement to accompany articles sent.—Whenever any article is sent to the Chemical Examiner, whether by a Magistrate, Medical officer or the Police, it should be accompanied by a statement containing all possible information that may serve to guide the Chemical Examiner in his investigation.

4. Mode of packing of articles to be sent.—All articles should be forwarded in separate bottles, the stomach in one, its contents in another, the liver in a third, dry particles in small phials, and when any articles liable to decomposition are sent, they should always, whether the season be hot or cold, be immersed in methylated spirits, which should be used in the proportion of one third of the bulk of the articles.

The cork of each bottle should be tied down and sealed, and each bottle should be numbered. To ascertain that it has been securely closed, the bottle should be placed for some minutes with its mouth down.

5. Weight of articles sent to be noted.—The weight of each article sent, and, where the portion of an organ is sent, the weight of the whole organ, as well as of the part sent, and in the case of fluids, the total quantity of the fluid and the quantity sent, should be stated on a ticket attached to the bottle, and also in the letter of invoice *[hereinafter prescribed.]

6. Precautions in packing bottles.—(i) The several bottles containing the articles sent should be enclosed in a tin or wooden box, which should be enclosed in a tin or wooden box which should be large enough to allow of a layer of raw cotton, at least three-fourths of an inch thick, being put between the bottle and the box; the box should be securely fastened and covered with wax-cloth.

(ii) In cases where any of the contents of the bottles might prove offensive, the box must be of tin, and Macdougall's powder or charcoal should be dusted between the box and wax-cloth.

7. Articles to be packed and sealed in the presence of the forwarding officer.—All articles on being put up by the forwarding officer, and sealed and numbered by him, should be packed in his presence and under his immediate supervision, and the package should then be sealed by him, in accordance with the usual rules of the Post Office as to parcels, in such a manner that it cannot be opened without destroying the seal. The seal used should be a private seal, and the same throughout.

8. Invoice of articles and post-mortem report or statement to accompany articles.—In all cases of transmission of articles to the Chemical Examiner, whether by a Magistrate, Medical Officer, or the Police, a letter of invoice, giving a full description of the articles sent, should be dispatched by post, together with the statement or postmortem report. A duplicate of the invoice should also be placed between the wax-cloth and the box to accompany the package. Both copies of the invoice should be stamped with an impression of the seal referred to *[above.] The Chemical Examiner should be requested to return, if possible, any articles sent to him for examination which is likely to be required at the trial.

9. Evidence should be taken to prove that Chemical Examiner's report refers to the subject connected with the inquiry.—In inquiries or

trials, where reference has been made to the Chemical Examiner, it will be the duty of the Magistrate to examine the official who dispatched the ****[articles]** for analysis with regard to the identity of the invoice and seal, and thereby establish the identity of the subjects reported on with those sent for analysis, and prove that the Chemical Examiner's report refers to the subject connected with the case under inquiry. If the decision of the case turns on the results of the Chemical Examination, a copy of the judgment, and of the evidence regarding symptoms and postmortem appearance, will be supplied to the Chemical Examiner; such copies being made at the expense of Government as a special charge.

10. Identity of body to be proved.—In all cases of homicide, where the body is found, the identity of the body with the person said to be deceased must be fully established before the ***[Court]** trying or inquiring into the case.

In such cases, where there has been a postmortem examination, evidence must be recorded by the ***[Court]** to prove the custody of the body of the deceased after death, and its delivery for the purpose of post-mortem examination to the medical officer.

11. Proper custody of articles to be proved.—In all cases in which articles are brought up in evidence, the custody of such articles, throughout the various stages of the inquiry must be clearly traced and established. Evidence must be recorded on this point, and the evidence should never leave it doubtful as to what person or persons have had charge of the articles at any stage of the proceedings. All such articles must be distinctively marked, and any reference to them in the record must be so clear as to leave no room for doubt as to the special articles referred to.

12. Evidence of non-professional witnesses re blood and human hair should be accepted with caution.-- *****[...]** The evidence of non-professional witnesses on the subject of blood and of human hair must be accepted with the utmost caution, and where the case rests materially on the proof of such matters, the evidence of a professional witness must be taken, and reference made, if necessary, to the Chemical Examiner.

13. *[Omitted].**

**PART C – RULES FOR THE GUIDANCE OF POLICE OFFICERS
REGARDING THE SUBMISSION OF BLOOD-STAIN CASES TO THE
SEROLOGIST, TO GOVERNMENT OF PAKISTAN ISLAMABAD.**

***[1. Serologist appointed to distinguish human blood from other blood.-** For the whole of Pakistan the Government of Pakistan has appointed a Serologist at Islamabad to carry on the medico-legal work of distinguishing human blood from other blood. This officer has been designated as the Serologist to Government of Pakistan'.]

2. Articles to be sent to Chemical Examiner and when.—As it would not be possible for the *[Government]Serologist to cope with his work expeditiously if all articles suspected of having blood stains were sent direct to him, it has been decided to issue the following instructions for the guidance of Police officers in dealing with blood-stained articles:-

(a) Cases in which articles shall be sent to Chemical Examiner, Lahore.—In cases in which the evidence of the blood-stained articles, is, relatively to the whole body of the evidence of small importance, the articles shall be sent direct to the Chemical Examiner at Lahore for examination.

(b) In cases where blood stained articles form important piece of evidence the Chemical Examiner will select articles to be sent to the Serologist.—In cases in which the establishment of the fact that blood-stains are of human blood, as distinct from the general classification of “ Mammalian”, is material to the prosecution and has a really important bearing on the case, the blood-stained articles, shall be sent direct to the Chemical Examiner ****[to Government]**, who will determine which of such articles he will forward to the *[Government] serologist with the necessary sketches, etc. In sending articles for the serologist test, the Superintendent of Police shall specifically ask for examination to test the source of the blood. The *[Government] Serologist will, after examining the articles sent to him by the Chemical Examiner ****[to Government]**, return them with a copy of his report direct to the Superintendent of Police concerned.

(c) In some cases only stained portion of the articles may be sent.—In cases of articles of blood-stained clothing, etc., the stained portion only should be cut out and forwarded for determination of the source of the blood. In the case of weapons and other solid articles the entire articles should be sent.

(d) Medico-legal history of the case should be sent along-with the articles.—All articles sent should be accompanied by a complete medico-legal history of the case.

(e) Articles to be sent direct only, under the order of Police Superintendent.—No articles should be forwarded direct except under the express orders of the Superintendent of Police.

Note:- (1) As vegetable poisons cannot be detected in ashes it has accordingly been held useless to forward such poisons to the Chemical Examiner for detection.—vide Punjab Government letter No. 16781-Medl, dated 5th June, 1923.

(2) ***[Omitted].

PART D – General.....*****[Omitted]**

CHAPTER 19 SENTENCES

PART A – GENERAL

1. The award of suitable sentence depends on a variety of considerations.—The determination of appropriate punishment after the conviction of a offender is often a question of great difficulty and always requires careful consideration. The law prescribes the nature and the limit of the punishment permissible for an offence, but the Court has to determine in each case a sentence suited to the offence and the offender. The maximum punishment prescribed by the law for any offence is intended for the gravest of its kind and it is rarely necessary in practice to go up to the maximum. The measure of punishment in any particular instance depends upon a variety of considerations such as the motive for the crime, its gravity, the character of the offender, his age, antecedents and other extenuating or aggravating circumstances, such as sudden temptation, previous convictions, and so forth, which have all to be carefully weighed by the Court in passing the sentence.

***[2. Various kinds of punishments, Minimum and enhanced punishments prescribed in different cases.-** The Pakistan Penal Code permits (vide section 53) the following classes of punishments viz. fine, forfeiture of property imprisonment, rigorous or simple, imprisonment for life and death. The Whipping Act, 1909, permits whipping to be imposed in lieu of or in addition to the punishments prescribed for certain specified offences under the Pakistan Penal Code as well as under other Acts. The Reformatory Schools Act, 1897, provides for “youthful offenders” i.e. offenders below the age of 15) sentenced to imprisonment being detained in a Reformatory School instead of being sent to jail. The Prohibition of offenders Ordinance, 1960 enables the Court to release offenders in certain cases after taking a bond for good behavior or in trivial cases even with a mere admonition. On the other hand there are certain offences for which a minimum punishment is prescribed (see e.g., section 397 Pakistan Penal Code), and the Court cannot pass a lesser sentence on a person convicted of such an offence. Section 75 of the Pakistan Penal Code makes a previous convict liable to enhanced punishment in the case

of certain offences. There are also other Acts of the Legislature e.g; the Punjab Excise Act), which lay down an enhanced penalty for repetition of an offence.

In certain cases, the Court can take action when passing the sentence to ensure good behaviour on the part of a convict on his release from jail. In the case of a person convicted of an offence involving a breach of the peace, the court can order him to execute a bond for keeping peace for a period up to three years (section 106, of the Code of Criminal Procedure).

3. Limits of the sentences which different classes of Magistrates can impose.- In passing sentences, the Court has not only to bear in mind the nature and the limits of the punishment prescribed for the offence of which the accused is found guilty, but also the nature and the limit of the punishment which it is empowered to impose. Section 31 to 35 of the Code of Criminal Procedure lay down the limits of the sentences which different classes of Courts are empowered to impose. Magistrates of the 2nd and 3rd class are not empowered to pass a sentence of whipping.

4. Procedure when Magistrate thinks that the accused should receive greater punishment than he can award.- Whenever a Magistrate of the 2nd or 3rd class having jurisdiction is of the opinion after hearing the evidence for the prosecution and the accused that an offender should receive a punishment different in kind from or more severe than, that which such Magistrate is empowered to inflict, or that he ought to be required to execute a bond under section 106 of the Code he should take action under section 349 of the Code of Criminal Procedure, record the opinion and submit his proceedings, and forward the accused to a Magistrate of the 1st Class specially empowered in this behalf by the Provincial Government. Similarly when a Magistrate of the 1st Class is of opinion that an offender owing to previous convictions or other circumstances deserves a more severe sentence than what he can inflict, he should report the case to the Sessions Judge with a view to have it transferred to a Magistrate empowered under section 30 of the Code of Criminal Procedure or should send the case to the Court of Session if the case is serious enough to justify that course. (See sections 346 and 347 of the Code. See also chapter 23 of these Rules)].

5. Limitation imposed by Section 71, Pakistan Penal Code and section 35, Criminal Procedure Code. Sentences in cases of accused convicted of several offences. Concurrent sentences; Recommendation to Government for remission or commutation of punishment .- Where a persona is convicted of a an offence which is made up of parts each of which constituted an offence or when a person is convicted of more offences than one, the limitations imposed by section 71 of Pakistan Penal Code, and section 35 ****[of the]** Code of Criminal Procedure, must be adhered to. When a person is convicted of more than one offences, the Court should be careful to pass a separate sentence for each offence, so that if the conviction is set aside on appeal with respect to one of the offences, there will be no room for doubt as to the sentences passed with respect to the rest. The Court has a discretion to make such sentences run concurrently, and this discretion should be exercised so as to make the effective sentence proportionate to the gravity of the offences. Under Section 397 of the Criminal Procedure Code *****[...]** the Court has *****[...]** power to order, in the case of an accused person, who is already undergoing imprisonment for another offences, that s subsequent sentence of imprisonment passed on him shall take effect at one and run concurrently with the sentence he is undergoing.

It happens that times that a sentence which a Judge or Magistrate can pass under the law is unsuitable in view of all the circumstances of the case. In such cases all that can be done is to make a recommendation to the Provincial Government to take action under sections 401 and 402 of the Criminal Procedure Code. When a Sessions Judge or a Magistrate passing a sentence wishes a case to be brought to the notice of the Provincial Government for remission or communication of the punishment, he should submit the recommendation with his proceedings through the High Court; otherwise the High Court may hear in appeal a case in which Government has remitted *[or] commuted punishment, without knowing of such remission or communication.

PART B. – FINE.

Fine should be in proportion to the means of the offender.- This is the lightest form of punishment which a Criminal Court can impose, but care should always be taken to see that the fine is not excessive with reference to the means of the offender. Indiscriminate imposition of fines without due regard to the capacity of the convict to pay it only results in waste of time of the Courts and the Police in attempting to realise it, and harassment to the convicted and his dependants. Courts are empowered to impose imprisonment in default of payment of fine, but such imprisonment can only be awarded subject to the limitations prescribed in section 64 to 67 of the Pakistan Penal Code.

Part C. – IMPRISONMENT

1. Kinds of imprisonment and their selection. – The Pakistan Penal Code provides for imprisonment of two kinds. Viz. simple and rigorous, and the Court must choose one or the other form in view of all the circumstances. In certain local and special Acts, it will be found that the Legislature has not specified the kind of imprisonment which may be awarded. Under Section 3(26) of the General Clauses Act, such imprisonment may be simple or rigorous. In the case of many offences under Pakistan Penal Code and other Acts, it is provided that the offender shall be punished with imprisonment up to a certain term and shall also be liable to fine. In such cases the offender must be sentenced to some period of imprisonment (however small), but it is not obligatory to impose fine in addition. *[(See PLD 1978 SC 89)].

2. When simple imprisonment is suitable.-- Simple imprisonment is suitable where a fine will not suffice and a very short term of imprisonment has to be imposed. This ensures casual offenders being kept apart from the contamination of hardened criminals.

3. When solitary confinement is suitable.-- The Pakistan Penal Code provide for “solitary confinement” being awarded up to a certain limit (vide section 73). This form of punishment is appropriate in the case of the more heinous class of offences. It should be borne in mind, however, that solitary confinement can be awarded in the case of offences under the Pakistan Penal Code only and not in the case of offences under Special or Local Acts **[unless these Acts so provide.]

PART D. – WHIPPING

***[1. Cases in which whipping not permissible.** -- Under the Code of Criminal Procedure, the punishment of whipping cannot be awarded in addition to imprisonment when the term of imprisonment is less than three months; nor can it be imposed nit he cases of females, or in the case of males sentences to death, imprisonment for life or rigorous imprisonment for over five years, or males whom the court considers to be more than forty five years of age. The number of stripes must not exceed fifteen I the case of persons under sixteen and thirty in the case of others (vide sections 391-393 of the Code of the Criminal Procedure).

In cases under the Offence of Zina (Enforcement of Haddod) Ordinance, 1979, the Prohibition (Enforcement of Hadd) Order, 1979 and Offence of Qazf (Enforcement of Hadd) Ordinance, 1979, the above mentioned provisions must be read subject to the modifications made by the said Laws.]

2. [Omitted]

PART E. – DETENTION IN A REFORMATORY
SCHOOL..... ****[OMITTED].

PART F. -- **TRANSPORTATION.....** ***[OMITTED].

PART G. -- **PENAL SERVITUDE.....** ***[OMITTED].

PART H. -- DEATH SENTENCES

1. Reasons for awarding lesser sentence should be recorded when the offences is punishable with death.—When an offence is punishable with death, but the Court inflicts a lesser penalty permitted by law the Court must state in the judgment its reasons for doing so.

2. Instructions to be observed by courts passing death sentence.—When a convict is sentenced to death by a Court of Session, it must—

- (i) direct by its sentence that he be hanged by the neck till he is dead;
- (ii) submit its proceedings to the High Court for confirmation of the sentence; and
- (iii) inform the convict of the period within which he must appeal if he wished to do so.

APPENDIX *[OMITTED]**

CHAPTER 20

EXECUTION OF SENTENCES.

PART A. -- **FINES**

Realisation of fines. -- For instructions regarding the realisation of fines,, see volume IV, Chapter 11.

PART B. – WARRANTS FOR EXECUTION

1. ***[Omitted].

2. ***[Omitted].

3. **Signature by means of a stamp not permissible.** -- (i) The code of Criminal Procedure enacts that every warrant should be signed by the Magistrate with his own hand, and the practice of affixing a signature by means of a stamp is strictly prohibited and should never be resorted to. An officer in charge of a jail would be justified in refusing to receive or detain a prisoner in jail on a warrant to which is affixed a signature by means of stamp.

(ii). **Warrants should be signed, sealed and in the prescribed form.**-- Warrants of commitments should be in the form prescribed by Schedule V to the Code of Criminal Procedure and should be signed in full (no initialed) by the Judge or magistrate who issues it, and should be sealed with the seal of the Court.

(iii) **Separate warrants for each person.**-- In the case of under-trial prisoners, the warrants of commitment for intermediate custody should be prepared with the greatest care possible with reference to the above instructions. A separate warrant should be issued in respect of each person committed to jail.

(iv) **Superintendent of Jail should not refuse to admit a prisoner owing to defect in the warrant.**-- Except in case falling under clause (i) of this rule the Superintendent of a Jail should not refuse to admit a person where the above instructions have not been carried out, but he should draw the immediate attention of the Magistrate concerned to the defect, and ask for its rectification at once, sending at the same time a copy of his letter to the Magistrate of the district for his information.

(v) **Leper convicts to be sent to Mianwali Jail.**-- Persons sentenced to imprisonment, who are found to be suffering from leprosy in an aggravated form, should in future be sent to the Mianwali Jail, where a special ward has been constructed for such persons. ***[...]

(vi) **Class of prisoner when other than C to be noted in the warrant.--**

When a Court places a prisoner in a class other than C, it should make an endorsement to this effect on the warrant of commitment.

****[Note:** ‘Commitment’ used in this rule has nothing to do with ‘commitment proceedings’.]

4. Warrants for release or remission of sentence.-- Warrant for the release or remission of sentences of prisoners confined in jail, warrants for the release of prisoners on bail, and intimations of payment of fine sent to jail authorities should always be drawn up in Urdu or in English, and should be signed in full by such officer and sealed with the seal of his Court.

On receipt of a warrant for the release of a prisoner it should be forwarded without delay by registered cover to the jail in which the prisoner is confined, if it is necessary to send it through the agency of the post.

5. *[Omitted]**

***[6. Rules about classification and treatment of convicted and under trial prisoners.--** The following rules have been made under section 59 of the Prisons Act, 1894, in Chapter 9 of the Pakistan Prisons Rules 1978, to regulate the classification and treatment of convicted, under-trial and other prisoners:-

Chapter 9

“The classification and separation of prisoners.

Classes of Prisoners.

Rules 224.

A prisoner confined in prison may be:-

- (i) a criminal prisoner; which includes:
 - (a) a convicted prisoner; and
 - (b) an un-convicted under trial prisoner;
- (ii) a civil prisoner; or

- (iii) a stet prisoner detained under Regulation III of 1818, or a person ordered to be detained in prison without trial under any law relating to the detention of such person.

Note: *Lunatics may also be temporarily detained din persons under the order of the Magistrate*

Classification of convicted prisoners

Rule 225.

- (i). Convicted prisoners shall be classified into:-
 - a. Superior class;
 - b. Ordinary class; and
 - c. Political class;
- (ii). Superior class include A and B class prisoners. Ordinary class comprises of prisoners other than superior class.
Political class comprises of prisoners who commit crimes not for personal gain but for political motives. This class is not criminal and does not require reformatory or correctional treatment.

Casuals and habitual

Rule 226.

Convicted prisoners are classified into casual and habitual.

- (i). Casuals are first offenders and who lapse into crime not because of a criminal mentality but on account of their surroundings, physical disability or mental deficiency.
- (ii). Habitual are:-
 - a. Ordinary habitual prisoners; and
 - b. Professionals or repeaters.

Ordinary habitual prisoners are those who frequently lapse into their surroundings or some physical or mental defects.

Professionals or repeaters are men with an object, sound in mind and in body, competent, often highly skilled, who deliberately and with open eyes prefer a life of crime and know all the tricks and manoeuvres necessary for that life. They must be first offenders.

Classification of convicted prisoners according to age

Rule 227.

Convicted prisoners are further classified as under:-

- (a) Juveniles under the age of 18.
- (b) Adolescent over 18 to 21 years of age.
- (c) Adults over the age of 21.

Nature of sentence

Rule 228.

There shall be two classes of convicted prisoners according to the nature of their sentence, i.e.:-

- (a) those undergoing rigorous imprisonment; and
- (b) those undergoing simple imprisonment.

Classification of under-trial prisoners

Rule 229.

- (a) Committed to Sessions
- (b) Committed to other Courts.

Classification of women prisoners

Rule 230

Women prisoners will be classified in the same manner as is provided in the case of males.

Separation of Prisoners**Rule 231.**

Prisoners shall be kept separate as under.

- (i) In a prison containing men as well as women prisoners, the women shall be imprisoned in a separate prison, or separate part of the same prison in such manner as to prevent their seeing, conversing or holding any communication with the male prisoners.
- (ii) Under trial prisoners shall be kept separate from criminal prisoners.
- (iii) Under trial prisoners shall be kept separate from convicted prisoners.
- (iv) Civil prisoners shall be kept separate from criminal prisoners.
- (v) Political prisoners shall be kept separate from all other prisoners.

Further provisions regarding separation**Rule 232.**

Separation of the following prisoners shall, to the extent to which it can in each prison be observed, be carried into effect:

- (i) Under trial prisoners who have been committed to Sessions, shall be kept separate from under trial prisoners who have not been so committed and those who have been previously convicted shall be kept separate from those who have not been previously convicted.
- (ii) Casual convicted prisoners shall be kept separate from habitual convicted prisoners.
- (iii) Simple imprisonment prisoners shall be kept separate from the rigorous imprisonment prisoners.
- (iv) Convicted prisoners who are under 16 years of age shall be kept separate from convicted prisoners who are more than 16 years of age.

- (v) Every habitual criminal shall, as far as possible be confined in a special prison in which only habitual criminals are kept. The Inspector-General may, however sanction the transfer to such special prison of any prisoner not being a habitual prisoner whom for reasons to be recorded, the Superintendent of the prison believes to be of so vicious and depraved a character; as to make his association with other casual prisoners undesirable. Prisoners so transferred shall not otherwise be subjected to the special rules affecting the habitual criminals.
- (vi) Political prisoners may be kept separate from each other, if deemed necessary.

Exception to the rule regarding separation.

Rule 233.

When in any prison only one prisoner exists in any class and separation would amount to solitary confinement, such prisoner, if he so desires, be permitted to associate with prisoners of another class in such a manner so as not to infringe the provisions of section 27 of the Prisons Act.

Association and Segregation of Prisoners

Rule 234.

Subject to the provisions of rule 231, convicted prisoners may be confined either in association or individually in cells or partly in one way and partly in the other.

Segregation of under-trial prisoners

Rule 235.

Under trial prisoners may be confined separately in cells, when in the opinion of the Superintendent, it is necessary in the interest of the prison discipline to do so, or under the orders of the Inspector-General, or of Government.

Occupation of vacant cells

Rule 236.

Cells not in use for purposes of punishment or otherwise, shall be occupied by the convicted prisoners for the purpose of separation subject to the following conditions:-

- (a) Juveniles shall in preference to any other class of prisoners be confined in cells both by day and night.
- (b) Prisoners convicted under section 366(A) 376 and 377 of the Pakistan Penal Code, shall in preference to prisoners other than; placed in cells both by day and night.
- (c) Habitual prisoners shall be placed in cells both by day and night in preference to casual prisoners.

Separation of habitual prisoners

Rule 237.

Habitual prisoners shall be subjected to the system of separation prescribed in the proceeding rules in relation thereto.

Separation of casuals

Rule 238.

If at any time there are more cells in any prison than suffice for the separation of all habitual prisoners of the casual class shall be confined in cells by night only in rotation.

Procedure when separation by day is not feasible

Rule 239-A.

Convicted prisoner who would ordinarily come under the operation of any of the preceding rules relating to the separation of prisoners, but cannot be confined in a cell by day, by reason that he is required for some prison service shall be confined in a cell by night.

Explanation- Separation under rules 235 to 239, is restricted merely to the separation of individual prisoners for purpose of prison management; such separation is not to have any irksome conditions attached to it.

Separation of prisoners to prevent the commission of any offence

Rule 240.

If in the opinion of the Superintendent, the presence of any prisoner in association with others is detrimental to good order and discipline, and is likely to encourage or lead to the commission of any offence, such prisoner may be kept separate in a cell.

Separation to be as complete as possible

Rule 241.

Subject to the provisions of rule 233, the separation of the various classes of prisoners shall be carried out to the fullest extent as far as possible. If there are not a sufficient number of latrines, bathing rooms and feeding arrangements to keep the classes completely apart such arrangement for separation as are under the circumstance practicable shall be made.

Rule for the classification of prisoners into A, B and C Class

Rule 242.

- (i) Convicted shall be divided into three classes; A, B and C class. A Class will contain all prisoners who are-
 - (a) casual prisoners of good character;
 - (b) by social status, education and habit of life have been accustomed to the superior mode of living and,
 - (c) have not been convicted of offence involving elements of cruelty, moral degradation, personal greed, serious or premeditated violence, serious offence against property, offences relating to the possession of explosives; firearms and other dangerous weapons with object of committing

or enabling an offence to be committed and abetment or incitement of offences falling within these sub-clauses.

- (ii) Class "B" will consist of prisoners who by social status, education or habit of life have been accustomed to superior mode of living. Habitual prisoners can be included in this class by order the Government.
- (iii) Class "C" will consist of prisoners who are not classified as A and B.

Classifying authority

Rule 243.

For A and B classes the classifying authority will be the Government. Courts may classify prisoners into A and B class pending final order of the Government. Class "C" will be classified by the trying Court, but such prisoner will have a right to apply for revision to the Government. Petitions of revision will be forwarded by the Superintendent to the Inspector General for transmission to Government.

Superintendent may award B class to convicted prisoners.

Rule 244.

In case convicting Courts omit to classify convicted prisoner for better class treatment, Superintendent of prisons subject to the approval of Government, may classify them as B class prisoners, provided that such prisoners appear to fulfil the conditions prescribed for better class treatment.

Qualifications for A and B class

Rule 245.

The recommending authority shall invariably furnish to Government the following details when recommending a prisoner to A or B class.

- (a) Whether the prisoner is casual or habitual.
- (b) Previous convictions if any.

- (c) Offence and sentence.
- (d) Social and financial status of family.
- (e) Profession of the prisoner.
- (f) Income of the Prisoner, if any.
- (g) Academic qualifications of the prisoner.

If the statement of the prisoner on these points requires verification, further enquiries should be made from the District Magistrate or any other source. The recommending authority may either defer making any recommendations until it has received the information asked for or may make the recommendations on the materials available and state that the result of further enquiries will be submitted when received.

Disagreement between the convicting Court and the District Magistrate.

Rule 246.

In case in which there is disagreement between the convicting Court and the District Magistrate, as to the classification of any prisoner, the District Magistrate shall decide the class in which a convicted prisoner shall be kept pending final orders of the Government.

Condemned prisoners governed by these rules

Rule 247.

The above rules shall also apply to the prisoners under sentence of death.

Classification of under-trial prisoners

Rule 248.

- (i) There shall be only two classes of under-trial prisoners-
 - (a) better class; and
 - (b) ordinary class.
- (ii) Better class will include those under-trial prisoners who by social status, education or habit of life, have been accustomed to a

superior mode of living and will correspond to A and B class of convicted prisoners. Ordinary class will include all others and will correspond to C class.

- (iii) Those under trial prisoners who pass matriculation or higher examination in 1st division during their class jail shall be allowed better class jail facilities with effect from the date the result is announced.
- (iv) Before an under trial prisoner is brought before a competent Court it will be at the discretion of the Officer Incharge of the Police Station to properly classify him. After he is brought before the Court, he will be classified by that Court, subject to the approval of the District Magistrate.

Classification of political prisoners

Rule 249.

Classification of political prisoners will be determined by the authority ordering their detention in prison.]

PART C.—WHIPPING

Mode of infliction.—Sentence of whipping shall be executed by the infliction of the punishment on the buttocks of the person sentenced, with a rattan in the usual manner.

The rattan used should not be more than four feet in length and shall be half an inch in diameter and in the case of juvenile offenders a still lighter cane shall be employed. The triangle should be boarded on the side next the offender, so as to prevent the possibility of the rattan curling round and touching the front or any other part of his person than the breech.

In the case of persons under 16 years of age, whipping shall be inflicted on the buttocks in the way of school discipline, with a rattan not more than half an inch in diameter.

2. Flogging should be inflicted in private in the presence of a medical officer, a thin cloth to be spread over the buttocks.—(i) All Judicial floggings shall be inflicted in private, either at a jail, or in an enclosure near the court-house.

(ii) Wherever it is possible to do so, Magistrates shall secure the presence of a medical officer at the flogging.

(iii) The practice shall invariably be adopted of spreading a thin cloth soaked in some anti-septic over the prisoner's buttocks during the operation.

A pattern of the cloth used is supplied by the superintendent of the Central Jail, Lahore, and the following is the manner in which it should be used. When the prisoner to be shipped is laid on the triangle, his jangias should be slipped down below the knees and the cloth put round the buttocks. The triangle belt keeps the upper part of the cloth in its place, while the two pieces of tape are tied round the thighs below.

3. Magistrate to certify that the prisoner is in a fit state of health.—Magistrate who are empowered to pass sentences of whipping should, before the sentence is carried into execution, be careful in every case to satisfy themselves that the offender is in a fit state of health to undergo the punishment.

Whenever practicable, the opinion of a medical officer should be taken, but, if that is not procurable, the Magistrate must himself certify in each case that he believes the offender to be in a fit state to undergo the punishment.

4. Not to be inflicted until lapse of 15 days or until sentence is confirmed on appeal.—Every sentence of whipping is now subject to appeal. When an accused person sentenced to whipping only furnishes bail to the satisfaction of the Court or when the punishment of whipping is combined with imprisonment, section 391 of the Code of Criminal Procedure requires that the whipping is not to be inflicted until after the expiry of fifteen days from the date of sentence, or if a appeal be preferred, within that time, until the sentence is confirmed by the superior Court.

To secure effect being given to this provision of the Code the following rules have been made by the High Court:-

(i) Filing of appeal should be notified to the Jail Superintendent.—In all cases in which an appeal is preferred within fifteen days from the date on which a sentence of whipping is passed, whether or not such appeal is preferred through the jail authorities under a power attested in the Jail, immediate intimation of the fact of the appeal shall be given to the Superintendent of the Jail in which the appellant is confined.

Explanation:- An appeal presented to the Superintendent of the Jail within fifteen days is made within the period contemplated in this rule.

(ii) Jail Superintendent may wait for such further time as is necessary for communication from the appellate Court.—If no such intimation of an appeal having been preferred is received within fifteen days, the Superintendent of the Jail shall, nevertheless, allow such further time to elapse as is necessary for a communication from the Appellate Court to reach elapse as is necessary for a communication from the Appellate Court to reach him in the ordinary course of business before inflicting the whipping.

(iii) Sessions Judge to decide for what further time the Jail superintendent should wait.—Sessions Judges shall, in communication with Magistrates of District and Superintendents of Jails, fix, for their own courts and the Appellate Courts subordinate to them the number of days which shall be allowed under the preceding rule.

(iv) **Copy of order of whipping be given to accused.**—In cases in which a sentence of whipping is passed, a copy of the Court's order should be furnished to the person affected as soon as possible after his application therefore.

5. Magistrate should ensure that sentence has been duly carried out.—The following steps should be taken to ensure that sentences of whipping, not combined with any other punishment, are duly carried into execution, where it is not convenient that the whipping should be inflicted in the presence of the Magistrate who passed the sentence. In such cases the Magistrate should issue a warrant under section 390 of the Code of Criminal Procedure, setting the time and place at which the sentence should be executed, and this warrant should be immediately returned to the Magistrate who passed the sentence when the whipping has been inflicted or execution of the sentence has been stayed under section 394 of the Code of Criminal Procedure. Magistrates should carefully watch the return of this warrant, and, if undue delay takes place, should inquire why it has not been returned.

PART D. –**TRANSPORTATIONS*****[Omitted]

PART E. –SENTENCE OF DEATH .

1. Order of High Court to be sent to Sessions Judge for carrying out sentence.—After a death sentence has been confirmed or other order has been made by the High Court, the Registrar will return the record, with a duplicate or an attested copy of the order under the seal of the Court, to the Sessions Judge, who will take the steps prescribed by section 381 of the Code of Criminal Procedure to cause the sentence or order to be carried into effect.

***[Omitted]

2. ***[Omitted]

PARTF. –EXECUTION OF THE ORDERS OF CRIMINAL APPELLATE COURTS AND COURTS OF REVISION.

The following rules, as to the mode of carrying out the orders passed on appeal or in revision by Criminal Courts, should be observed:-

(i) **High Court will certify its decision to Lower Court.**—The High Court will certify its decision to the Court from whose judgment the petition of appeal or application for revision was preferred:

Provided that if such judgment was that of a Court subordinate to the Magistrate of the district, the decision of the High Court will be certified to the Magistrate of the district.

(ii) **Lower Court will inform prisoner and the Jail Superintendent.**—The Court to which the decision is certified will, in cases of rejection of appeal or confirmation of sentence, cause the appellant to be informed; and in cases of alteration, reversal or enhancement of sentence, will issue a warrant accordingly to the Superintendent of the Jail of the district in which the trial was held, or, if the original sentence was one of fine only, to the person to whom the original warrant was addressed.

Sessions Judges should not fail to communicate the High Court's orders in Murder References and appeals to the convicts merely on the assumption that the High Court will itself directly communicate the result to the convicts.

When a sentence of death is confirmed or passed by the High Court in appeal or revision, the Sessions Judge, to whom the decision of the High Court is certified, shall issue the warrant for the execution of sentence of death, to the Superintendent of the Jail to which the prisoner was originally committed. If the condemned prisoner has been or should be transferred to another jail, and the Superintendent to whom the original warrant of commitment was addressed returns the warrant for the execution of the sentence of death to the Sessions Judge with an intimation that the prisoner has been transferred to another jail, the Sessions Judge shall issue a revised warrant for the execution of the sentence of death to the Superintendent of the jail in which the condemned prisoner is confined.

Note:- when a sentence of death has been suspended under Chapter XXIX of the Code of Criminal Procedure, the passing of further orders regarding the

carrying out of such sentence is a matter for the Government ordering the suspension and not for Sessions Judge.

(iii) Session Judge will at once inform Jail Superintendent direct about all orders of release or alteration or enhancement of sentence passed by him.—The Sessions Court will in all cases in which its order on appeal requires the immediate release of a prisoner, issue a warrant of release direct to Superintendent of the Jail in which the prisoner is confined. The Superintendent of the Jail will, after executing such warrant, forward it with the original warrant of commitment duly filled up, to the Magistrate of the district in which the trial was held. If in any case the warrants have not been received from the Superintendent of the Jail by the time the records in the case are returned by the Sessions Court, it will be the duty of the Magistrate of the district to at once institute inquiries as to whether the prisoner has been released, and, if necessary to issue his own warrant for the release of the prisoner.

In cases of alteration, or enhancement of sentence, also the Sessions Court will issue a warrant direct to the superintendent of the Jail in which the prisoner is confined. In cases of rejection of appeal or confirmation of sentence, the sessions court will certify its decision on appeal to the Magistrate of the district in which the trial was held, who will cause the appellant to be informed. When an appeal is rejected the Superintendent of the Jail in which the prisoner is confined should also be informed direct by the Appellate Court.

Note: ***[Omitted].

(iv) Prisoners not to be transferred from the jail until decision of appeal. Exceptions.—The Magistrate of the district will, in communication with the Superintendent of the jail, arrange that no prisoner is removed from the Jail in which he has been confined by order of the Court sentencing him to imprisonment until the period of appeal has expired, or, if at that time an appeal is pending, until the decision of the Appellate Court is known:

Provided that prisoners committed to the Muzaffargarh Jail may be transferred to Multan Jail and prisoners committed to the Faisalabad Lock-up may be transferred to the Gujranwala, Jhelum or Sialkot Jails but no prisoner so transferred shall be removed from the jail to which the transfer is made until the

period of appeal has expired, or, if an appeal has been filed, until the decision of the Appellate Court is known; and that notices issued by any Court for service on such prisoner shall be forwarded without delay to the Superintendent of the Jail in which the prisoner is confined, with instructions that it be returned direct, after service, to the Court issuing such notice.

(v) **Duty of Jail Superintendent to inform the Superintendent of the Jail to which the prisoner has been transferred about orders passed by appellate court.**—If for any reason an exception is made to the above rule, and a prisoner is transferred before the order of the Appellate Court is known, the Superintendent of the Jail to which the prisoner was originally committed will forward the information or warrant of the order of the Appellate Court to the Superintendent of the Jail to which the prisoner has been transferred, and the latter officer, having executed the order, will report execution to the Court issuing the information or warrant.

(vi) **Execution of sentences passed under Section 35, Criminal Procedure Code.**—The Inspector-General of Prisons has pointed out that difficulties occasionally arise in carrying out sentences, passed under section 35 of the Code of Criminal Procedure, of which one is to take effect after the expiration of the other, when the first sentence to be executed is subsequently set aside on appeal.

(vii) **If the sentence which is to take effect first is set aside on appeal the appellate court should direct the original court to issue a fresh warrant directing that the second sentence be carried out at once.**—When a prisoner, on whom separate sentences are passed under section 35 of the Criminal Procedure Code, is committed to jail under two separate warrants, the sentence in the one to take effect from the expiry of the sentence in the other, the date of such second sentence shall, in the event of the first sentence being set aside on appeal, be presumed to take effect from the date on which he was committed to jail under the first or original sentence. A direction to this effect should invariably be given and communicated by the Appellate Court to the Court which passed the original sentence, with a view to the issue of a fresh warrant to the Jail authorities in suppression of the original warrant.

(viii) **Procedure for execution of order of appellate court when accused has been admitted to bail.**—where an accused person has been admitted to bail pending the hearing of his appeal, the original warrant of commitment shall. After being retuned by the jail authorities to the court which issued it be forwarded to the appellate court, which may take action as follows on the decision of the appeal:-

- (1) In every case in which a sentence is reversed on appeal. The Appellate court shall return the original warrant with a copy of its order to the court by which the accused was admitted to bail, with directions to discharge him.
- (2) In every case in which a sentence is modified on appeal, the Appellate Court shall prepare a fresh warrant (in the form prescribed in the following rule) and shall forward the same, with the original warrant and with a copy of its order, to the Court by which the accused was admitted to bail, with directions to take measures to secure his surrender and commitment to jail on the modified warrant.
- (3) In every case in which a sentence is confirmed on appeal, the Appellate Court shall make an endorsement on the original warrant to the effect that the sentence has been confirmed and return it with a copy of its order to the Court by which the accused was admitted to bail, with directions to take measures to secure his surrender and recommitment to jail on the original warrant.

In each of the cases last above-mentioned it shall be the duty of the Court to which the accused surrenders to his bail to endorse on the warrant the dates of his release on bail and of his subsequent surrender.

(ix) **Procedure when accused surrenders to his bail in Appellate Court.**—Where an accused who has been release on bail presents himself in an Appellate or a Revisional Court and his sentence is confirmed or so modified that he has still to serve some term of imprisonment, such Court shall commit him to Jail on the original or a modified Warrant, and shall inform the District Magistrate concerned of the action taken when sending a copy of its judgment.

(x) **Procedure when re-trial is ordered.**—When, on appeal, re-trial is ordered and the accused is not released on bail, but is remanded to the judicial lockup, the Jail authorities should retune the original warrant of commitment to the trial court. If, however, the order for re-trial is subsequently set aside, and the appellate court is directed to re-hear the appeal, the appellate court should take care to re-call the original warrant and re-commit the accused to jail to serve his sentence, pending disposal of the appeal. If it thinks it fit to release the accused on bail, the procedure laid down in paragraph (vii) above should be followed.

(xi) **Form of warrant when a sentence is modified or altered on appeal.**—The following form of warrant is prescribed for used by Appellate Courts when a sentence is modified or altered on appeal:-

In the Court of the -----at -----
To the Officer-in-charge of the Jail-----
at-----

Whereas-----son of-----of
Village-----Police Station-----
in the district of -----was convicted by-----Magistrate
of -----of the offence of -----and was sentenced
on the -----day of-----19 to -----, which
convicted and sentence have been modified n appeal by this Court, and in
lieu thereof the said-----has been convicted of the
offence of-----and sentenced on the-----day of-----
-----19 to-----.

This is to authorize and require you the said Superintendent to receive
the said-----into your custody in the said jail, together with this
warrant, and carry the aforesaid sentence into execution according to law;
and this is further to authorize and require you to return to this Court the
original warrant of commitment in lieu whereof this warraqnt is issued.

Given under my hand and seal of the Court, this-----day of-----

19

Sessions Judge or Magistrate.

CHAPTER 21

FIRST OFFENDERS *[OMITTED]**

CHAPTER 22

YOUTHFUL OFFENDERS

PART A.—GENERAL

1. ***[Omitted]

***[2. Commitment to prisons of children should be avoided.-** It is now generally accepted that the commitment of children to prison is against public policy, as it exposes them to the evils resulting from association with hardened criminals. Therefore, in case of children (i.e. persons under fourteen) the principle is that commitment to prison should be avoided as far as possible.

3. Remand to prison pending inquiry or trial not desirable.- Even for the purposes of remand pending enquiry or trial, the committal of children and young persons to prison should be avoided. There should be special place of detention such as remand-homes for them; but till such time as remand-homes are provided, Courts should make suitable arrangements, when practicable for the detention of children.

4. Police not empowered to release children on bail, but it should produce them at once before nearest Magistrate for grant of bail.- While the police have not power of taking bail in non-bailable offences, executive action should be taken by the district Magistrates by having children cases brought up to the nearest Magistrate.]

5. Sentence against juvenile offenders, alternatives. Imprisonment and detention in Reformatory School to be avoided.— When a Magistrate is called upon to sentence a juvenile offender, he has the following alternatives before him. He may order-

- (a) whipping,
- (b) fine,
- (c) ***[Omitted]
- (d) treatment under section 31 of the Reformatory School Act,
- (e) detention in a Reformatory School,
- (f) ***[...] imprisonment.

The subject of detention in a Reformatory School is dealt with separately in part C. Before ordering imprisonment, Magistrates should make free use of the other alternatives and should refrain from sending boys to the Reformatory School in cases where they can be suitably dealt with otherwise.]

6. Cases should be sent to Courts exercising powers of whipping.—Courts not empowered to pass orders ***[...] under the Whipping Act, should be encouraged to refer cases suitable to the application of these provisions of law to Courts which have been invested with the necessary powers.

7. Boys sentenced to but unfit for whipping to be sent to Reformatory School.—Boys sentenced to whipping and found unfit for it should be sent to the Reformatory School, if necessary and not to jail.

8. Age of the offender to be noted in the judgment. Sentence of youthful offenders to imprisonment to be reported to District Magistrate. Monthly return of offenders under 24 years of age to be sent. Duty of District Magistrate.—The failure of Magistrate to impose suitable sentences on youthful offenders is possibly due to inadvertence, the age of the accused not being prominently in the mind of the Magistrate at the time of passing the sentence. In order to minimise and, if possible, to abolish the infliction of sentences, which are likely to have prejudicial effect on the character of a youthful offender, when other suitable methods of punishment are available, ***[...] all Criminal Courts should in future enter the ages of the convicts in the body of their judgments, with a view to being directly seized with the question of age when deciding the sentence to be imposed on a juvenile or adolescent. ***[...] All Magistrates shall report the cases of convictions of youthful offenders under 18 years of age, where a sentence of imprisonment has been awarded, to the *[Sessions Judge or District Magistrate, as the case may be] as soon as judgment is passed. They shall also submit to the Sessions Judge or District Magistrate as the case may be at the end of every month returns of all cases in which persons under the age of 24 years are sentenced to imprisonment. The *[Sessions Judge or District Magistrates as the case may be] will scrutinize these cases and returns, and will take action on the revision side in all suitable cases in general and in particular in all cases in which casual offenders under 24 years of age have been sent to jail for short terms.]

***[9. Short sentence to be avoided.-** Free use of the provisions of section 31 of the Reformatory Schools Act, 1897, should be made where these can be applied. Section 31 runs as follows:-

(1) Power to deal in other ways with youthful offenders including girls.- Notwithstanding anything contained in this Act or in any other enactment for the time being in force, any Court may, if it shall think fit, instead of sentencing any youthful offender to imprisonment or directing him to be detained in a Reformatory School, order him to be-

- (a) discharged after due admonition, or
- (b) delivered to his parent or to his guardian or nearest adult relative, or such parent, guardian or relative executing a bond, with or without sureties, as the Court may require, to be responsible for the good behavior of the youthful offender for any period not exceeding twelve months.
- (2) For the purposes of this section the term 'youthful offender', shall include a girl.
- (3) The powers conferred on the Court by this section shall be exercised only by Courts empowered by or under section 8.
- (4) When any youthful offender is convicted by a Court not empowered to act under this section and the Court is of opinion that the powers conferred by this section should be exercised in respect of such youthful offender, it may record such opinion and submit the proceedings and forward the youthful offender to the District Magistrate to whom such Court is subordinate.
- (5) The District Magistrate to whom the proceedings are so submitted may thereupon make such order or pass such sentences as he might have made or passed if the case has originally been tried by him.

Youthful offender defined- "Youthful offender" in the above section means a person under the age of 15 years at the time of conviction.]

PARTN B. –CHILDREN’S COURTS.

1. ***[omitted].

2. **Selection of Magistrate to try children cases: Trial to be held at a different place,**-- The Government *[have] decided that each *[Sessions Judge or District Magistrate as the case may be] should select one of the Magistrates subordinate to him whether honorary or stipendiary, before whom all cases concerning children should be brought. The trial of children should be held, if possible, at a different place from the Court in which cases are generally hear. If this is impossible these cases should be heard at a different time from other cases. In the case of outlying sub-divisions and tahsils, children will normally be brought before the Magistrate having jurisdiction in the place, who will hear their cases in the same way as the Magistrate selected at head-quarters.

3. **Simple language of trial.**—The language used at the trial of youthful offender should be as simple as possible, and legal phraseology should be reduced to the bare necessities.

4. **Outsiders should not be allowed at the trial.**—If the case has to be heard in the Magistrate’s Court room (no other place being available), then the room should be cleared of all outsiders, only those actually concerned with the particular case being admitted.

PART C.—REFORMATORY SCHOOLS

***[1. Courts empowered to direct youthful offenders to the Reformatory School- Procedure for a Magistrate not so empowered.-** The only Courts empowered to direct youthful offenders to be sent to the Reformatory School are:-]

- (a) The high Court.
- (b) The Court of Session.
- (c) ***[Omitted]
- (d) Any Magistrate specially empowered by the provincial Government in this behalf.

The Provincial Government has empowered Magistrates of the 1st class only with powers mentioned in section 8(i) of the Reformatory Schools Act(vide Punjab Government notification No.578-Jails, dated the 7th January 1924); but any Magistrate who has not been so empowered may, under section 9 of the Act, refer the case of any youthful offender to the *[Sessions Judge] to whom he is subordinate and all Magistrates should do so in suitable cases.

2. Record a finding as to age. Definition of youth offender.—A youthful offender is defined as meaning any boy who has been convicted of any offence punishable with imprisonment, and who, at the time of such conviction, was under the age of 15 years; and it is incumbent on all Courts and Magistrates dealing with cases of youthful offenders (whether specially empowered or not), to make a preliminary inquiry and to record a finding as to the age of the offender before directing the offender to be sent to a Reformatory School or making a reference to the sessions Judge under section 9 for that purpose. In taking the medical evidence mentioned in paragraph 4 (a) of this chapter, the opinion of the Medical Officer as to the age of the boy should invariably be recorded.

3. Rules framed by Government. Youthful offender to be sent to Reformatory School when Magistrate awards imprisonment for life.—The rules framed by the Punjab Government under the Reformatory Schools Act should be studied. The effect of Punjab Government notification No. 37, dated the 20th January, 1906, under which these rules were published, appears to be this. A Court or Magistrate convicting any youthful offender of any of the

offences noted below should act as follows. If the presiding officer considers that the offence committed is one in connection with which the offender should be-

- (a) whipped, or
- (b) ***[Omitted]
- (c) dealt with under section 31 of the Reformatory School Act, or
- (d) fined,

he should pass orders accordingly.

If, however, he considers that the case should not be so dealt with, he must pass an order of imprisonment commensurate with the offence and then send the offender to the Reformatory School.

OFFENCES SPECIFIED

*[(1) Any offence except those described in sections 302, 303, 324, 337 and 377 of the Pakistan Penal Code and section 19(3)(a) of the Offence of Zina (Enforcement of Hudood) Ordinance 1979.]

- (2) Any abetment or attempt in connection with any such offence.

4. Reformatory School intended for casual criminals and first offenders capable of reformation. Disqualifications preventing admission.—If should be borne in mind that before recording an order directing the detention of a boy in the Reformatory Schools, Courts should satisfy themselves-

- (a) after taking medical evidence, that he is not totally blind, insane, idiot, leprous, tuberculous, epileptic, or suffering from any permanent physical incapacity for industrial employment; or
- (b) that he has not been previously convicted under section 377 of the Pakistan Penal Code.

A youthful offender with any of these disqualifications will not be admitted into the Reformatory School, and Courts must deal with such an offender in the ordinary course under the Pakistan Penal Code. ***[...]

These rules will, it is hoped, secure as inmates of the Reformatory School casual criminals and first offenders capable of reformation, and will exclude the corrupting influence of incorrigible offenders, and of boys who have already learnt the evil that can be learnt in jail.

5. ***[Omitted]

6. **Period for which detention in the school is to be ordered.**—Section 8, subsection (1), of the Reformatory Schools Act, 1897 ^{**}[(VIII of 1897)] prescribes the period for which Magistrates must order detention in the Reformatory School. This section should be read in connection with Punjab Government notification No. 37, dated the 20th January, 1906, which further limits the Magistrate's discretion as to the period of detention he can order. It should nevertheless be borne in mind that a boy ordered to be detained in the Reformatory School for seven years will not necessarily be kept in the school for so long. He will in any case be discharged when he attains the age of 18 years.

7. ***[Sessions Judge] should recommend to Government when he thinks that youthful offender though not admissible under the rules is proper person for admission.**—Besides the case of youthful offenders convicted by a Court of one of the offences specified (vide paragraph 3 of this Chapter), section 10 of the Reformatory Schools Act contemplates another case in which detention in the Reformatory School may be directed. This section gives the Superintendent of a jail power to produce before the ^{*}[Sessions Judge] any boy who is under the age of 15 years. In deciding whether any youthful offender brought to his notice in this manner should be sent to the Reformatory School, the ^{*}[Sessions Judge] will, of course, be guided by the rules made by the Provincial Government under section 8, subsection (3), clause (a), of the Reformatory Schools Act published as Punjab Government notification No. 37, dated the 20th January 1906. Should the ^{*}[Sessions Judge] consider that the youthful offender, though not admissible to the Reformatory School under those rules, is a proper person to be an inmate of the School, he must refer the case to the Provincial Government.

8. Classification of boys in the school. *[Court] should recommend the class.—Under the rules made by the Provincial Government for the classification, separation and daily employment of youthful offenders, boys detained in a Reformatory School will be classed in two divisions, senior and a junior, and each division will be subdivided into two sub-division, A and B. The senior division will consist of boys above 14, and the junior division of boys under 14 years of age. Sub-division A will contain boys not in sub-division B and sub-division B will contain (1) boys, who by reason of previous offences, whether the subject of criminal prosecution or not, or of the character of their offence, or the circumstances under which it was committed (offences against morals and serious organized offences, whether against property or against ***[...] person) appear to have marked criminal propensities; (2) boys who have been in jail, except those sent to jail under the proviso to section 12 of the Reformatory School Act temporarily, i.e., detained in jail for want of accommodation in the Reformatory School; (3) boys whose parents are habitual criminals, and boys who have been subjected to family influences and surroundings which are likely to *[lead] to a life of crime. In directing the detention of a boy in the Reformatory School. *[Courts] should, with reference to this rule record their opinion as to the sub-division in which the boy should be placed while under detention.

9. Duty of *[Court] to inquire about accommodation in school and to make arrangement if there is no accommodation.—When a *[Court] orders a boy to be detained in the Reformatory School he should by telegram ascertain from the Superintendent thereof whether accommodation is available. If there is accommodation, the boy should be sent at once to the school; otherwise, he would be sent to the Jail prescribed by the Provincial Government in notification No. 426, dated 2nd October, 1903, and the Superintendent of the Reformatory School should be informed of the Jail to which he is sent or to which he may thereafter be transferred.

***[10. Magistrates advised to visit the school.**—As many first class Magistrates as possible should pay a visit for inspection to the Reformatory School.]

11. Sanctioning authority for traveling allowance for the visit.—Under Travelling Allowance Rules 2.48 and 4.3 (serial 7), read with paragraph 22.4, item (3), Chapter 22.- Delegation Orders of Financial Handbook No. 2, volume II, Commissioners are authorized in the case of all first class Magistrates within their division to declares absence from headquarters for the period necessary to visit the Reformatory School ***[...] to be absence on duty, and thus to sanction the traveling allowance for such journeys.

12. Second and Third Class Magistrates not required to visit.—Magistrate should be encouraged to take advantage of these orders, and such visits should be facilitated, provided always that they do not interfere seriously with the routine of magisterial work. It is not proposed to grant this concession to Magistrates of the 2nd and 3rd class but will apply to Honorary Magistrates of the first class.

13. Sessions Judges may permit Civil Judges exercising criminal powers to visit the school.—The powers granted above to Commissioners has been delegated to District and Sessions Judges, who may permit civil Judges who are also Magistrates of the 1st class to visit the Reformatory School, ***[...] but one visit only not exceeding two days, may be allowed in each case.

PART D. BORSTAL JAIL

Attention is drawn to the Punjab Government Circular No. 362-J.L.39/4621 (H-Jails), dated the 4th February 1939, on the subject of Borstal Jail extracts from which are given below:-

1. Intended for the adolescent convicts of habitual type.—Cases have come to the notice of Government which indicate that misunderstanding still exists in the minds of some Magistrates and officials in regard to the nature of Borstal training and the type of offender to be sent to the Borstal Institution. Some officials appear to believe that the institution is no more than a Jail in which conditions are easier than in the ordinary prison; that Borstal is merely an up-to-date term for a juvenile Jail. In some quarters indeed it seems to be imagined that unless there is an order for Borstal treatment a juvenile convict will be made to serve his sentence in association with adult prisoners. The Punjab Borstal Act 1926 ***[...] provides a special kind of treatment for a particular class of offender; namely, the adolescent convict of habitual type or (to use the English prison phraseology) the young recidivist.

2. Sentence suitable for different kinds of youthful offenders.—Speaking broadly the types of course overlap-there are three categories of young offenders for whom provision has to be made:-

- (a) Casual offenders, other than those convicted of heinous crime.
- (b) Juveniles sentenced for offences of a comparatively minor character, but who are former convicts or are otherwise known to be tending towards a life of crime.
- (c) Juveniles sentenced for murder and other flagrant offences.

Juvenile offenders of type (a) should normally be released on probation of good conduct or after admonition. In more serious cases where such treatment appears unsuitable there will perhaps be a sentence of whipping or fine. As has been repeatedly emphasized, short sentences of imprisonment are always to be avoided, and the juvenile offender should never be sent to jail, even for a second offence, if his case can be adequately dealt with in some other way. Offenders of type (c) present a special problem to which reference will be made later in this chapter. There remains type (b). It is for this class of convicts

that the Borstal Institutions is intended—the young hooligan or waster on whom perhaps a previous warning has had no effect and who appears likely unless reformatory treatment is quickly applied, to develop into a professional criminal. It is not essential, before an order is passed for detention in a Borstal Institution, that a previous conviction should be established but in the language of section 6 of the Punjab Act there must be “criminal habits or tendencies or association with persons of bad character”. In view of this wording it would be permissible to order Borstal detention, for instance, in the case of lad of sixteen or seventeen who had been associated with older men in a burglary or dacoity, provided that he had not been personally concerned in murder or some similar offence. But it would not be proper to use the Act in a rape case, unless there was reason to believe that the offender had been responsible for similar outrages before, or had been misled by bad companionship.

3. Distinguishing features of Borstal treatment, Release on licence.—The characteristics which distinguish Borstal treatment from ordinary imprisonment are two:-

(i) An order of Borstal detention must always be for an extended period—a period longer than for which the offender would have been sent to jail if he had been sentenced in the ordinary way. In the Punjab Act a minimum of two years is prescribed. The period must be sufficient to enable the good influences which it is hoped to bring to bear on the convict to have their effect.

(ii) After a certain period in the Borstal Institution the offender will normally be released to serve the balance of his term on probation outside. Other classes of prisoners can, of course, be released on probation by order of the provincial Government under the Good Conduct Prisoners Probationary Release Act, 1926, or under section 401 of the Code of Criminal Procedure. In the case of Borstal detainee, however, release on probation can be ordered by the Visiting Committee, subject to the sanction of the Director of Borstal Institutions,* without reference to Government.

Release on licence is thus an integral feature of Borstal treatment. The young criminal is to be subjected for an extended period to reformatory influences: first within the walls of the institution, where he will be in contact with a house master, taking a close personal interest in his character and development; and afterwards on licence outside, where a probation officer will fulfil a similar function.

4. Primary object of keeping such offenders in Borstal Jail.—Such an automatic system of probational release would clearly be unsuitable for prisoners of type (c) mentioned above—juveniles sentenced for homicide or other flagrant offences. For the most part the offenders in this class have brought themselves within the reach of the law by a single violent act. They have no tendency to wards crime in general, and if it were possible to concentrate exclusively on the reformation of the individual, disregarding all other considerations, the most suitable treatment in many cases would be immediate release. The primary object in keeping them in confinement is, ***[...] “to satisfy the public indignation with regard to the serious character of the crime which calls for punishment”. The need for bringing good influences to bear should always be kept in mind, but with offenders of this type the reformatory aspect of imprisonment must be secondary. In some cases it may be possible to release the prisoner on probation after a certain period in jail, but this is permitted only under the orders of the Provincial Government. Adolescent prisoners of this type are thus radically different from those for whom the Borstal system has been devised. They must of course be kept separate from adult convicts, but their sentences are to be served in jail, not in a Borstal Institution.

5. When offenders should be sent to the Borstal Institution and when to the Reformatory School.—***[...] Magistrates may at times feel a doubt whether a particular offender should be sent to the Borstal Institution or to the Reformatory School. Such doubts can generally be resolved by considering the age of the offender. The School ***[...] established under the Reformatory School Act, 1897, is intended for younger type of offenders than that for which the Borstal Institution caters. To be sent to the Reformatory School the offenders must at the time of conviction be under fifteen: the corresponding age in the case of the Borstal Institution is twenty one. Cases sometimes occur in

which it is necessary to sentence boys of only ten or twelve years of age to imprisonment. In such cases the Reformatory School is always to be preferred; children of this age would be quite out of place in the Borstal Institution. The School also differs from the Borstal in the character of the training given to the inmates. The Borstal Institution has of course, its school, as well as the factories in which the lads are given vocational training, but the educational arrangements are much more elaborate. The boys there are of ordinary school age, and an education is provided for them which would hardly be suitable for the older adolescents in the Borstal. It may be mentioned here that in the case of admissions to the Reformatory School there is no such distinction between casual and habitual offenders as there is in the case of the Borstal Institution. Whereas there is an absolute bar against the use of the Borstal Act in the case of juveniles convicted of offences punishable with death, the School will receive even this type of juvenile offender, with the special permission of the Provincial Government.

CHAPTER 23

HABITUAL OFFENDERS

PART A--PREVENTIVE MEASURES

Preventive measures against habitual offenders.—The Criminal Procedure Code provides for preventive measures of two kinds against habitual offenders. Under section 110, security can be taken for their good behaviour (vide Chapter 3, Security Cases) ***[...], for a period extending upto five years in the event of their conviction in certain offences. In the Punjab another important remedy is provided by the “Restriction of Habitual Offenders Act 1918(V of 1918). Under this Act an habitual offender can be restricted in his movements to a certain area or required to report himself at times and places in the manner prescribed in the order. An order of restriction may be passed in the same circumstances in which an order for security for good behaviour may be passed, but both orders cannot be made against a person at the same time (ef. Section 7 of the Act). The procedure to be followed in proceedings under this Act is mostly the same as that in proceedings under section 110 *[of the Code of Criminal Procedure 1898]; but there are certain differences. For instance, when an order of restriction for a period of more than one year is passed by a Magistrate, the order of restriction does not require any confirmation by the Sessions Judge. Care should be taken to see that the order of restriction is in conformity with the rules framed by the Provincial Government under the Act (vide part F of this Chapter). An order directing a person not to leave his house between 8 p.m. and 5 a.m was held in 8 I.L.R. Lah. 267, to be *ultravires*, not being in conformity with the aforesaid rules. District Magistrates have power to substitute an order of restriction in lieu of an order for security under section 110, of the said Code in any case coming to their notice on appeal or otherwise. Sessions Judges can make a similar order in cases submitted to them under section 123(2) *[of the said Code].

An order of restriction is especially suitable in the case of habitual offenders who are not in a position to furnish security and in whose case an order for security under section 110 *[of the said Code] would necessitate their commitment to jail.

PART B.—SENTENCES

1. Enhanced punishment under section 75 Pakistan penal Code.-

Under section 75 of the Pakistan Penal Code, a person convicted a second time of an offence punishable under Chapter XII or Chapter XVII of the code, with three years' imprisonment and upwards is liable to a greatly enhanced sentence.

***2. Procedure for Magistrates not competent to award enhanced punishment.-** This of course, does not increase the competence of the Court trying the offender; but section 348 of the Code of Criminal Procedure gives the Magistrate a discretion to try the case himself, if in his opinion, an adequate sentence can be passed by him. If the Magistrate is unable adequately to punish the accused person, he should send such person to the Court of Session or High court.]

3. *[Omitted].**

***[4. Procedure when Magistrate cannot punish adequately.--** Where a Magistrate finds he is unable to punish an offender adequately, he should under section 347 of the Code of Criminal Procedure, send the case for trial to the Court of Session or High Court.]

5. Enhanced punishment not obligatory.—Although section 75 of the Pakistan penal Code makes a previous convict in certain classes of cases liable to enhanced punishment, it is of course, not obligatory to impose an enhanced sentence in every case of this description. In deciding whether an enhanced sentence under this section is needed and whether the case should be sent to a ***[...] Magistrate empowered under section 30 of the *[Code of Criminal Procedure] or committed to the Sessions Court, the Magistrate should fully consider all the circumstances of the present offence as well as the past conviction.

Enhanced punishment not suitable in petty cases or in cases of old convictions. Ordinarily, cases of petty nature (e.g., thefts of small quantities of food, clothes, utensils etc.) should be left to First Class Magistrate, unless the nature, number and sequence of previous convictions and the sentences previously undergone clearly show the necessity of a higher sentence than two years' imprisonment. Similarly, very old convictions (e.g., when the offence is

committed say, more than five years after the last release of the offender from jail) should not ordinarily be made a ground, for imposing an enhanced penalty under this section in the absence of special reasons.

Case of organized crimes.—Cases of organized crime stand on a different footing, and where the offence under trial and the previous offences are of this description greater weight must be attached to them.

Enhanced punishment suitable when previous convictions indicate a criminal habit which needs to be checked by deterrent punishment.—The General principle to be borne in mind is that is meant to be used as a deterrent only when the punishment provided for the offence itself is considered to be inadequate in view of the antecedents of the offender. The judgments in the previous cases should be referred to freely in order to ascertain the real character of the offender and the section should not be resorted to unless the previous convictions indicate a criminal habit or instinct which needs to be checked by a punishment higher than that provided for the offence.

It should also be remembered that a moderate sentence or an order of restriction under the Restriction of Habitual Offenders Act, is generally a better way of dealing with habitual offenders than the imposition of long term of imprisonment.

6. Previous conviction for attempts to commit an offence not covered by Section 75, Pakistan Penal Code.—***[...] Previous convictions for attempts to commit offences specified in section 75 or a security order under section 110, Criminal Procedure Code, do not bring an offender within the scope of section 75, Pakistan Penal Code.

7. ***[Omitted].

***[8. Action to be taken by Magistrate of 2nd or 3rd Class when he cannot award adequate punishment.**—Section 349 of the Code of Criminal Procedure gives a Magistrate of the second or third Class the means of securing the proper punishment of an accused when he finds, in the course of the trial, that the maximum sentence which he is empowered to inflict would be insufficient. At the same time, in resorting to this section, it must be remembered that, when the accused appears to be a habitual offender and the

Magistrate thinks that he ought to receive more severe punishment than he is competent to inflict, he should forward the accused to a Magistrate of the 1st Class specially empowered in this behalf by the Provincial Government.

9. Duty of the Police to prove previous conviction. Discovery of previous conviction after Judgment has been pronounced.- It is the duty of the Police, in conducting the investigating, to take proper steps to establish the identity of an accused person and to obtain and produce evidence of previous convictions against him for the discovery, subsequent to sentence, that the prisoner was a previous convict, but that this had escaped notice on account of a change of name is not in itself a ground for interference on appeal or revision.]

10. Previous convictions to be noted on the warrant of commitment and in a separate statement. Note on the warrant when the identity of the prisoner has not been proved or he declines to give an account of himself.—In Punjab Government Circular No. 43-1077, dated the 29th July, 1870, the Criminal Courts of the Province were instructed to enter any previous conviction or convictions of prisoner upon the warrant committing him to jail, and the attention of all Magistrates is directed to these instructions. In the form of warrant of commitment prescribed for use under the Code of Criminal Procedure, provision had been made for mention of the fact that the convict has been previously convicted, when one or more previous convictions have been proved against him at his trial, and for the entry of the particulars of the previous convictions in a separate statement, which should be attached to the warrant of commitment in such cases.

***[...] The Magistrates, when committing a prisoner to jail, will enter a note in red ink on the warrant of commitment, in case where the identity of the prisoner has not been satisfactorily ascertained, or he declines to give an account of himself.

**PART C.—DEFINITION AND CLASSIFICATION
OF HABITUAL CRIMINALS**

Persons liable to be classified as habitual criminals.—The *[Federal] Government has framed the following rules defining and prescribing the treatment of “habitual criminals” for the purpose of jail discipline:-

I.-- The following persons shall be liable to be classified as “habitual criminals”, namely:-

- (i) Any person convicted of an offence punishable under Chapter XII, XVII, and XVIII of the Pakistan Penal Code, whose previous conviction or convictions, taken in conjunction with the facts of the present case, show that he is by habit a robber, house-breaker, dacoit, thief or receiver of stolen property, or that he habitually commits extortion, cheating, counterfeiting coin, currency notes or stamps, or forgery.
- (ii) Any person convicted of an offence punishable under Chapter XVI of the Pakistan Penal Code, whose previous conviction or convictions, taken in conjunction with the facts of the present case, show that he habitually commits offences against the person.
- (iii) Any person committed to or detained in prison under section 123 (read with section 109 or section 110) of the Code of Criminal Procedure.
- (iv) Any person convicted of any of the offences specified in (i) above when it appears from the facts of the case, even although no previous conviction has been proved, that he is by habit a member of a gang of dacoits, or of thieves or a dealer in slaves or in stolen property.
- (v) Any member of a criminal tribe, subject to the description of the Provincial Government concerned.
- (vi) Any person convicted of an offence and sentenced to imprisonment under the corresponding sections of the Pakistan Penal Code, and the Code of Criminal Procedure. ***[...]

- (vii) Any person convicted by a Court or Tribunal acting outside Pakistan under the general or special authority of the *[Federal] Government of an offence which would have rendered him liable to be classified as a habitual criminal if he had been convicted in a Court established in Pakistan.

Explanation:- For purpose of this definition the word “conviction” shall include an order made under section 118, read with section 110, of the Criminal Procedure Code.

II.-- Classifying authority. Right of prisoner for revision of the order of classification.—The classification of a convicted person as a habitual criminal should ordinarily be made by the convicting Court, but if the convicting Court omits to do so, such classification may be made by the District Magistrate, or in the absence of an order by the convicting Court or District Magistrate, and pending the result of a reference to the District Magistrate, by the officer incharge of the jail where such convicted person is confined: provided that any person classed as a habitual criminal may apply for a revision or the order.

III.-- Power of District Magistrate or convicting Court not to classify certain convicts as habitual criminals.—The convicting Court or the District Magistrate may, for reasons to be recorded in writing, direct that any convicted person or any person committed to or detained in prison under section 123 read with section 109 or section 110 of the Code of Criminal Procedure, shall not be classed as a habitual criminal and may revise such direction.

IV.-- Revision of classification.—Convicting Courts or District Magistrates, as the case may be, may revise their own classifications, and the District Magistrate may alter any classification of a prisoner made by a convicting Court or any other authority; provided that the alteration is made on the basis of facts which were not before such Court or authority.

Note:- The expression “District Magistrate” whether it occurs in paragraphs II, III and IV above means the District Magistrate of district in which the criminal was convicted, committed or detained.***[...]

V.-- Habitual Criminal to be kept in a special jail.—Every habitual criminal shall as far as possible be confined in a special jail in which no prisoner other than habitual criminal shall be kept: provided that the Inspector-General of Prisons may transfer to this special Jail any prisoner not being a habitual criminal whom, for reasons to be recorded in writing, he believes to be of so vicious or depraved a character, and to exercise or to be likely to exercise, so evil an influence on his fellow prisoners that he ought not to be confined with other non-habitual prisoners, but a prisoner so transferred shall not otherwise be subject to the special rules affecting habitual criminals. Government of India Resolution No. F.III-Jail, dated 15th September 1922).

VI Member of criminal tribe defined.—With reference to rule 1(v) above, the Provincial Government has defined “a member of a criminal tribe” as follows:-

“A registered member of a criminal tribe who is convicted of any of the offences specified in rule 28 of the Rules under the Criminal Tribes Act, viz.-

- (a) section 109 or 110 of the Criminal Procedure Code;
- (b) non bailable offence described in Chapter XII and XVII of the Pakistan Penal Code; and
- (c) offences under the Criminal Tribes Act, 1911 unless the convicting Magistrate otherwise directs”.

VII.-- Convicting officer to decide about classification and should note it on the warrant.—Whenever a person is sentenced to imprisonment for an offence, the Magistrate or Judge who passes the sentence should determine whether the prisoner is to be classed as a habitual criminal or otherwise, and should endorse the words “habitual” or “non-habitual”, as the case may be, on the warrant of commitment, and sign such endorsement.

VIII.-- Statement of previous conviction should be attached to warrant.—If the prisoner has been previously convicted, a statement containing the particulars of the previous convictions should be attached to the warrant of commitment.]

PART D.—RESIDENCE OF RELEASE CONVICTS.

Copy of order under Section 565, Criminal Procedure Code to be sent to jail. — In every case in which an order under section 565 of the Criminal Procedure Code is made, directing that the person sentenced to imprisonment shall notify his residence and any change of residence after release, a copy of such order should be transmitted by the Court passing the sentence and order, with the warrant of commitment issued under section 384 of the Code, to the officer in charge of the jail or other place in which the prisoner is, or is to be, confined. Attention is also invited to the following rules:-

NOTIFICATION

The 6th March, 1931.

No. 7335.—In exercise of the powers conferred by subsection (3) of section 565 of the Code of Criminal Procedure, 1898, the Governor-in-Council is pleased to make the following rules regulating the notification of residence or change of or absence from, residence by released convicts in regard to whom an order has been made under subsection (1) of section 565 of the said Code.

Punjab Government notification No. 395 (Home-Judicial), dated the 13th March 1901, is hereby cancelled.

RULES

I. Released convicts to observe rules.—When, at the time of passing sentence of transportation or imprisonment on any person, the Court or Magistrate also orders that his residence and any change of residence after release be notified for the term specified in such order, such person shall comply with and be subject to the rules next following. In these rules a person released subject to an order of the nature herein before described is called a “released convict.”

II. Released convict to notify, at the time of release, intended place of residence to releasing officer.—Every convict in regard to whom an order has been made under section 565 of the Code of Criminal Procedure, 1898, shall, not less than fourteen days before the date on which he is entitled to be released, notify the officer incharge of the jail, or other place in which he

may for the time being be confined, of the place at which he intends to reside after his release.

III. Released convict to notify intention to change first residence at local Police Station.—Whenever any released convict intends to change his place of residence, from the place which he specified at the time of his release as the place at which he intended to reside, to any other place, he shall notify the fact of such intention and the place at which he hereafter intends to reside, not less than twenty-four hours before he so changes his residence, to the officer in charge of the Police Station within the jurisdiction of which he resides at the time when he notifies his intention to change his residence.

IV. Released convict to similarly notify all subsequent intentions to change residence.—Whenever any released convict intends to change his place of residence from any place at which he may, at any time, be residing, under the provisions of Rule II, he shall notify any intended change of residence in the manner in that rule provide.

V. Period to be appointed for taking up residence.- In default the convict to notify his actual residence.—The Officer recording a notification under rule II, rule III or rule IV, shall appoint such period as may be reasonably necessary to enable the convict to take up his residence in the place notified. If the convict does not take up his residence in such place within the period so appointed he shall, not later than the day following the expiry of such period, notify in person his actual place of residence to the officer in charge of the Police Station within the limits of which he is residing.

VI. Released convict to notify the fact of his having actually taken up his residence at the place specified under preceding rules.—Every released convict shall, within twenty-four hours of his arrival at the place of residence notified under rule II or rule III or rule IV, notify the fact of such arrival to the officer in charge of the Police Station within the jurisdiction of which such place of residence is situate.

VII. Particulars of place of residence to be supplied. – In notifying places of residence under these rules released convict shall—

- (a) if the place of residence is in a rural tract—specify the name of the village, hamlet, or locality of such place and the Jail, thana, tahsil and district within the limits of which such place is situate;
- (b) if the place of residence is in a town or city—specify the name of the town or city and the street, quarter and sub-division of the town or city within the limits of which such place is situate.

VIII. Manner of notifying changes of residence.—Every notification, to be made by a released convict under rules III, IV and VI, respectively, shall be made by such convict personally at the proper Police Station:

- (a) the District Magistrate may, by order in writing, exempt any released convict from the operation of this rule any may permit such convict to make such notifications in writing or in such other manner as the District Magistrate may, in such order, prescribe in that behalf;
- (b) if from illness or other unavoidable cause, any released convict is prevented from making any notification required by these rules personally at the proper Police Station, he may do so by written communication addressed to the officer in charge of the proper Police Station. Such communication shall state the cause of his inability to attend in person at the Police Station, and shall, before it is transmitted to the proper Police Officer, be attested by a village headman or other village officer.

Note 1:—Subsidiary Rules issued by the Police Department will be found in Appendix 28—39 (I) to the Punjab Police Rules, Volume II.

Note 2:—Rules made by the Punjab Government in exercise of the powers conferred by Section 16 of the Restriction of Habitual Offenders (Punjab) Act, 1918 (V of 1918), are published in Punjab Government Notification No. 9853, dated the 29th April, 1918.

PART E.—IDENTIFICATION OF RE-CONVICTED PRISONERS

Introductory.—At the request of the Provincial Government the following instructions are issued with a view to insuring the proper recognition of re-convicted prisoners for the purpose of jail discipline.

2. Descriptive roll of the convict.—According to the existing practice in this Province, the descriptive roll of each person sent up by the police for trial is retained in the office of the Magistrate and filed with the Judicial record of the case. Under instruction of the Central Government, it is necessary that a descriptive roll of every prisoner arrested by the police should be prepared at the station-house and be sent up with the prisoner to the Magistrate, and that this roll, in the event of the final conviction of the prisoner by the Magistrate, should be copied in a register kept up in the jail for the purpose.

3. Charge sheet to be sent up by police.—As in the Punjab the descriptive roll is embodied in the charge sheet sent up by the police, all that appears to be required is that the charge sheet, instead of being at once filed with the magisterial records of the case, should accompany the warrant of commitment to the jail, that the descriptive roll of the prisoner should be copied into the jail register, and that thereafter the charge sheet should be returned to the Magistrate.

4. Charges to be sent to jail.—Magistrates are, therefore, instructed to forward the charge sheet, with the warrant of commitment, to the Superintendent of the Jail, who will be directed by the Inspector General of Prisons to cause the descriptive roll to be copied from the charge sheet into the appropriate jail register. The Superintendent will then return the charge sheet to the Magistrate.

**PART F.—RULES FRAMED UNDER THE
PROVISIONS OF RESTRICTION OF HABITUAL
OFFENDERS (PENJAB) ACT, 1918.**

The 29th April 1918.

No. 9853. – In exercise of the powers conferred by section 16 of the Restriction of Habitual Offenders (Punjab) Act, 1918, the Lieutenant-Governor (now Governor) is pleased to make the following rules:-

RULES

1. Definition.—In these rules the expression “Court” includes “Magistrate.”

2. Areas of restriction.—The areas to which persons may be restricted by an order under this Act shall ordinarily by--

(a) if the person resides in a village – the area of the village to which may be added at the discretion of the Court the areas of any contiguous villages in which the said person owns or occupies any immovable property or practices any trade or calling;

(b) if the person resides in a town – the area of the town;

But in special cases the Court may fix a larger area.

(i) *Exception.* – Unless the person restricted is an owner of land or an occupancy tenant, the Court may, if it is of opinion that restriction to the aforesaid areas is expedient, select any other village or town, as the case may be, in the district within which the person ordinarily resides.

(ii) If the person restricted has been twice convicted of offences under Chapter XVII of the Pakistan Penal Code, and is not an owner of land or an Occupancy Tenant, the area of restriction may be any settlement established under section 16 of the Criminal Tribes Act, 1911, but the Court must obtain the concurrence of the Deputy Commissioner for Criminal Tribes before restricting any person to such settlement.

3. Absence without leave Passes.—No person restricted by an order of restriction under this Act shall leave or be absent from the area of restriction without having obtained a pass in accordance with these rules and except in accordance with the terms of such pass.

Proviso.—Nothing contained in this rule shall be deemed to render it illegal for any restricted person to leave the limits of the area of restriction whenever necessary for the purpose of appearing at the police station or before the nearest Magistrate to complain of an offence affecting himself or his family, or to present an appeal or petition of revision against the order of restriction, or to obtain a pass under these rules, provided that he gives due notice of his intended departure to the headman of his village or town or to the officer in charge of the settlement, proceeds, straight to the police station or Court of the Magistrate and returns without unnecessary delay.

4. Times of report.—The times at which a person is required by an order of restriction to report himself shall be such times at intervals of not less than 24 hours and not more than 7 days as the Court may fix; but such times shall not be more frequent than the Court thinks strictly necessary in each case.

Places of report.—The place of report shall be the house of the headman or other person or officer, who, in exceptional cases for reasons to be recorded in writing, may be a police officer not below the rank of an officer-in-charge of a police station, as the Court may direct; provided that no person shall be required to report himself at a place situated more than three miles from the place where he ordinarily resides.

Mode of report.—Every person required to report himself by an order of restriction under this Act shall do so by attending in person and announcing his presence, unless physically incapacitated from doing so.

5. Leave for one day.—A person restricted to any area by an order of restriction under this Act may be granted a pass in Form A appended to these rules authorizing him to leave the said area for one day, between sunrise and sunset--

- (a) if he is restricted to any village or group of contiguous villages or larger area—by any headman of the village in which he ordinarily resides;
- (b) if he is restricted to town—by such person or officer as may be specified by the District Magistrate;
- (c) if he is restricted to a settlement—by the officer-in-charge of the settlement.

6. Leave not exceeding 15 days.—The officer-in-charge of the police station or settlement within the limits of which any person is restricted by an order of restriction under this Act may on due cause being shown grant such person leave of absence for a period not exceeding 15 days and may issue a pass to him.

7. Long leave.—The District Magistrate of the district in which any person is restricted by an order of restriction under this Act, or any person only authorized by the District Magistrate in writing in this behalf, may on due cause being shown grant such person any leave of absence which he may deem reasonable and may issue a pass to him.

8. Conditions attaching to absence on leave.-- Any person granted leave of absence under rule 6 or rule 7 shall travel to his destination and return to his residence by the route specified in the pass. He shall have the time and date of his arrival endorsed on the pass by the headman of the village of destination, and within three days of his arrival he shall report himself at the police station within the limits of which his destination is situated, and shall present his pass for endorsement.

9. Reports while on leave.—During such time as any person restricted to any area by an order of restriction under this Act is absent from the area of restriction, he shall report himself once every three days to the headman of the village in which he may happen to be, and once in every 15 days he shall, unless exempted by order of the District Magistrate, report himself to, and present his pass for endorsement by, the officer-in-charge of the police station.

10. Surrender of passes.—On his return to his residence he shall deliver the pass up to the authority from whom he received it. All passes so returned shall be sent for record to the police station within whose limits the person is restricted.

11. Form of passes.—Passes issued under rule 6 or rule 7 shall be printed and filled in Urdu in Form B appended to these rules. They shall be drawn up in triplicate and each part shall be signed or sealed by the authority granting the pass. One part shall be retained by such authority, the second shall be given to the person granted leave, and the third part shall be sent to the officer in charge of the police station within the limits of which the destination of the holder of the pass lies.

12. Person on leave unable to return, Withdrawal of passes.—If any person who has been granted a pass under these rules is from any unavoidable cause prevented from returning to his residence within the period of his leave, he shall at once give information to the nearest police station. The officer-in-charge of the police station shall verify the information and shall send a report to the authority which issued the pass.

13. Withdrawal of passes.—Any pass granted under these rules may at any time be withdrawn by the authority which granted it, or by the District Magistrate or any officer duly authorized by him in writing in this behalf.

(To be printed in Urdu)

Note - Rule 5 is reproduced on the Form here.

Note - Rule 5 is reproduced on the Form here.

Seal or signature of the headman

Seal or signature of the headman

FORM B (Rule 11)**(To be printed in Urdu)**

(COPI FOR RECORD) (Pass for leave granted to persons restricted under Punjab Act 1 of 1918)					
Serial No.	Date	Place			
Name	Father's Name	Tribes	Residence	Leave granted	Route Prescribed

Signature of Officer granting leave

NOTE. - Rules 8 to 11 are reproduced on the Form here.

(COUNTERFOIL FOR THE POLICE STATION TO WHICH PERSON IS GOING) (Pass for leave granted to persons restricted under Punjab Act 1 of 1918)					
Serial No.	Date	Place			
Name	Father's Name	Tribes	Residence	Leave granted	Route Prescribed

Signature of Officer granting leave

NOTE. - Rules 8 to 11 are reproduced on the Form here

(COUNTERFOIL FOR THE PERSON GRANTED LEAVE) (Pass for leave granted to persons restricted under Punjab Act 1 of 1918)					
Serial No.	Date	Place			
Name	Father's Name	Tribes	Residence	Leave granted	Route Prescribed

Signature of Officer granting leave

NOTE. - Rules 8 to 11 are reproduced on the Form here.

CHAPTER 24

SESSIONS CASES

*[PART A-GENERAL.

1. Cognizance of offence by Court of Session.—Commitment proceedings stand abolished, but except as otherwise expressly provided by the Code of Criminal Procedure or by any other law for the time being in force, no Court of Session can take cognizance of any offence as a Court of original jurisdiction unless the case has been sent to it under sub-section (3) of section 190, of the Code of Criminal Procedure.[See section 193, sub-section (1)].

2. Magistrate to send the case to Court of session.—Section 190(3) requires a Magistrate taking cognizance under sub-section (1) thereof, of an offence triable by a Court of Session, to send the case to the Court of Session for trial without recording any evidence.

3. Magistrate to apply his mind before sending the case.—The cases “triable exclusively by a Court of Session” under section 190(3) are significant; for example, all offences punishable with death and offences punishable under the offence of Zina (enforcement of Haddood) Ordinance, 1979 are offences triable exclusively by the Court of Session. Though the magistrate is required to send the case to the Court of Session without recording any evidence, yet, he is not to act as a mere post office. He must apply his judicial mind to the material before him to ascertain whether the case is one exclusively triable by the Court of Session or it is one which he can proceed to try himself. (See 1985 SCMR 1314; 1981 SCMR 267).

4. Magistrate to justify sending of case.—It is also to be noted that what the Magistrate sends to the Court of Session is the “Case” and not a particular accused. The occurrence of the name of a person in a particular column of the Challan or even the absence of a person’s name from the Challan does not, therefore, affect the jurisdiction of the Court of Session to summon that person to stand his trial, if there be material on the record to justify such a cause. (See 1985 SCMR 1314).

5. STATE AS “PROSECUTOR”.—In all cases sent for trial to the Court of Session the “State” should be entered as a prosecutor.

6. Trial by Additional sessions Judges.—Additional Sessions Judges can try such cases only as the Provincial Government may by general or special order direct them to try or as the Sessions Judge of the Division by general or special order, make over to them for trial. (Section 193(2) of the Code.)]

PART B. – TRIAL OF SESSIONS CASES.

***[1. Introductory.-** For the expeditious disposal of Sessions cases, Sessions Judges should reserve for each Sessions case several days for trial, preferably in consultation with the prosecutor and the defence counsel.

2. Reservation of several days for possible Sessions cases.- The trial of a Sessions case shall, as a rule, be held from day to day and unless there be compelling reasons for adjournment, there should be no adjournment.

3. Priority of Sessions' cases over other work.- The instructions contained in paragraph 5-A of Chapter 1, Part A of this Volume regarding postponement of cases in order to avert the arrest of other accused in the case apply mutates mutandis to Sessions cases.

4. Prompt disposal of Sessions' cases.- Cases of flagrant disregard of the day to day hearing rule have come to the notice of this Court. It has been noticed that in some case, Sessions trial have, after their commencement, taken months, in some cases years, to conclude. The High Court takes a very serious view of this practice and requires:

- (i) explanation to be furnished in monthly Sessions statement of any cases pending over six months; and
 - (ii) explanation for every case in which trial has commenced but has not concluded during the days reserved for them; this explanation shall mention the date of the commencement of the trial and reason for each adjournment.]
- 5. ***[Omitted].
 - 6. ***[Omitted].
 - 7. ***[Omitted].

***[8. Examination of record.-** On receipt of the record the case will be registered and when the date and place of the trial have been fixed a memorandum should be made on the calendar and due notice thereof sent to all concerned.

8-A. Under section 14-A of the Arms Ordinance 1965, an offence under section 13 or section 14 is now triable by a Magistrate of the First Class.

The intention of the law appears to be that even the possession of illegal arms forming part of the same transaction with the graver offence, as for instance, the possession of the illegal weapon at the time of murder should be tried by Magistrates.

In such cases the Magistrate should record evidence, but should preferably reserve judgment till the decision of the Sessions case.

9. Sessions Judge may summon any witness not included in the Calendar.- The Police diaries should be examined to make sure that material witness has not been left out. If the record is carefully examined on its receipt, Sessions Judges will be able to summon any witness not included in the calendar whom they may consider material and thus avoid the necessity of an adjournment, which is extremely inconvenient in Sessions trials.]

10. ***[Omitted]

***[11. Charge to be read out. Mode of recording evidence.-** The names and description of the counsel appearing for the prosecution and defence should be noted on the first page of the record of trial. If the accused is unrepresented the fact should be noted. The record should show every examination and re-examination of each witness; and if the accused does not avail himself of the liberty to cross-examine, a note should be entered to that effect.]

12. ***[Omitted]

***[13. Papers to be transferred to Sessions record.-** The various papers in the Sessions record should be compiled in the following order:-

1. Order Sheet.
2. Covering Sheet.
3. Opening sheet.
4. Charge Sheet.
5. Chemical Examiner's report.

6. Serologist's report.
7. Medical evidence.
8. Deposition of prosecution witness.
9. Statement under section 342 Cr.P.C. of the accused.
10. Defence sheet of the accused including his statement under section 340(2) Cr.P.C.
11. Judgment
12. List of documentary exhibits.
13. Documentary exhibits.

14. In preparing records in Sessions cases and in copying judgments, the following instructions should be strictly followed, namely-

- (1) the record of evidence of each witness shall be numbered;
- (2) the evidence should usually begin with that of the medical witness;
- (3) confessions and other previous statements of each accused person shall immediately precede his or her statement in the Court of Session;

(4) the pages of the original judgment should be noted in the margin of each copy of a judgment issued and the pages of copies of the record of evidence of witnesses should be similarly noted.

14-A. Medical evidence.- (1) The medical evidence should be recorded with care and precision in the English language and should be translated into Urdu and read over to the accused in order that he may have an opportunity to cross-examine.

(2) The Court recording medical evidence should not content with merely taking down, in the presence of the accused, the statement of the Medical Officer but should, if necessary, examine him further in view of the detailed instructions contained in Chapter 18 of this Volume titled "Medical

Legal Work” in which suitable questions to be put to Medical Officers in certain classes of cases are suggested.

14-B. Inquest reports.- In all cases in which the medical evidence is that the body of a person alleged to have been murdered reached the witness in a state of decomposition, evidence of the condition of the body when first discovered should be recorded and formal proof obtained of the “inquest report” “Surat-e-Hal” when there is one. In almost all cases of homicide, it is desirable that the police officer who first viewed the body and prepared the “surat-e-hal” shall be required to put in and prove that document.

14-C. Other circumstances to be proved.- Circumstances connected with the finding of the body, or of the property or with the state of locality, or the department etc. of the accused, must be proved by the evidence of the witnesses who saw what they described, or by the police officer who conducted the investigation.

14-D. Identity of body and clothes.- In cases of homicide evidence should be taken to identify the body of the person killed, to prove the custody of the body from the moment it is discovered to the time of its delivery to the Medical Officer for post-mortem examination, and to show that it has not been interfered with during its conveyance from the scene of death to the place of examination. Clothes and ornaments found on the body should similarly be identified by proper witnesses produced in Court and their removal from the body and custody should be proved.

14-E. Custody of other articles.- Similar care is often required in tracing the custody of prisoner’s substances, personal food, blood-stained clothes etc. The evidence should never leave it doubtful as to what person or persons have had charge of such articles throughout the various stages of the inquiry if such doubt can be cleared up. This is especially necessary in the cases of articles sent to the Chemical Examiner. The person who packs, seals and dispatches such articles should invariably be examined.

14-F Every article to be produced.- Clothes, weapons, money, ornaments, food and every article which forms a part of the circumstantial evidence should be produced in Court and their connection with the case and identity should be proved by witnesses.

14-G. Plans.-(1) In all cases where a plan of the locality is material, such a plan should be sent up with the record. It must, however, be remembered that plans as well as police reports are not evidence until they have been sworn in Court by the persons who prepared them or who of their personal knowledge can depose to their correctness.

(2) In all case where the decision turns upon topography or the position and construction of a dwelling, a plan, drawn to scale accurately representing the place or dwelling should be proved by the person who prepared it and it should be marked and recorded as a exhibit.

14-H. Exhibits.- All exhibits should be marked with a letter or numbers. Articles which are produced in evidence should have a label attached to them bearing a number, and that number should be quoted throughout the record wherever any such articles is referred to and should be distinctly marked as “admitted or not admitted”. If the exhibits have already been assigned numbers by the police, that series of numbers should be mentioned to avoid confusion.

A printed label should be affixed or attached to each exhibit containing the following particulars:-

- (i) Number of exhibit
- (ii) Produced by
- (iii) Admitted(Signature of Court)
- (iv) Date
- (v) Case
- (vi) Description of exhibits.

The Sessions Judge, should see that these entries are properly made.

15. Use of previous statements of witnesses. In using previous statement be police to discredit witnesses, careful attention should be paid to the provision s of section 162 of the Code of Criminal Procedure and section 140 of Qanun-e-Shahadat, 1984 (Also see Chapter 12 of this Volume, Police Diaries, etc.)]

16. ***[Omitted]

17. ***[Omitted]

*[18. **Procedure.-** The procedure to be observed by the High Court and the Courts of Sessions in the trial of cases triable by them is contained in Chapter XXII-A of the Code of Criminal Procedure.

19. Public prosecution.- In every trial before a Court of Session, initiated upon a police report, the prosecution is to be conducted by the public Prosecutor. (Section 265-A Cr.P.C.)

20. Procedure in case of previous conviction.- In a case where, by reason of a previous conviction, the accused has been charged under section 221 of the Code, the court after finding the accused guilty of the offence charged and recording a conviction, shall record the plea of the accused in relation to such part of the charge; and if the accused admits the previous conviction, the court may pass a sentence but if the accused does not admit it, the court may take evidence in respect of the previous conviction, record a finding and then pass a sentence according to law. (Section 265-I Cr. P.C).

21. The statement of a witness duly recorded under section 164, if made in the presence of the accused and if he had notice of it and was given opportunity of cross-examination, may, in the discretion of the Court, if such witness is produced and examined, be treated as evidence in the case for all purposes subject to the provisions of the "Qanun-e-Shahadat, 1984(section 265-J Cr.P.C).]

22. ***[Omitted]

23. ***[Omitted]

24. ***[Omitted]

25. ***[Omitted]

26. ***[Omitted]

*[27. **Judgment should be pronounced in open court by Sessions Judge.-** The judgment should be pronounced by the Sessions Judge either immediately after the trial or on some future day of which due notice must be

given to the parties or their pleaders. Sentence should be passed in open Court and then explained to the prisoner. Section 367(1) of the Code of Criminal Procedure clearly lays down that a judgment shall be dated and signed by the presiding officer in open Court at the time of pronouncing it. Under section 17(4) of the Code, the Sessions Judge may, for the reasons given, make provision for disposal of any urgent application by the Additional Sessions Judge, but there is no authority for the proposition that the power given to a Sessions Judge under section 17(4) extends to delegation of the duty to pronounce judgments. Sessions judges must arrange to pronounce judgment in original cases before proceeding on leave if a delay in pronouncing judgment is likely to cause hardship to any person under trial.]

28. Judgment to be written before announcing.--The judgment must always be written and delivered before sentence is pronounced. It is illegal to pass sentence at the termination of a trial and to postpone the writing of the judgment to a future occasion. All cases must continue to be shown on the pending file until a judgment and sentence are written and delivered.

29. Copy to be forwarded to District Magistrate.-- In cases tried by a Court of Session, the Court shall forward to the District Magistrate a copy of the judgment in addition to the copy of the finding and sentence required by section 373 of the Code of Criminal Procedure.

Where there has been a complete acquittal of all or any of the accused by a Court of Session, the Sessions judge should, at the time of pronouncing the judgment, also forward a facsimile copy thereof to the District Magistrate, in whose jurisdiction the trial was held, so as to enable him to consider whether or not an appeal against acquittal is to be recommended. The stenographer should be required to prepare an extra carbon copy, for this purpose, while transcribing the judgment dictated to him by the Sessions Judge.

In case in which an accused charged with murder receives a sentence for *[imprisonment] for life or is tried for an offence under section 302, Pakistan Penal Code, but is convicted under section *[318], of the said Code, the Sessions Judge should follow the same procedure.

30. Documents to be forwarded to High Court when sentence requires confirmation.—If the sentence is one which has to be referred to the

High Court for confirmation, under section 374 of the Code of Criminal Procedure, the record of the Court of Session, with the exception of the final judgment, should be submitted in original. In addition to the type-written copy of the judgment which takes the place of the original (retained in the Court of Session) two extra type-written copies will be forwarded for use in the High Court together with type-written copies of the following documents on the Sessions record:-

- (1) First report at police station (if any) in Urdu only.
- (2) Statement under section 364, Criminal Procedure Code.
- (3) Examination under section 364 by the Magistrate.
- (4) ***[Omitted]
- (5) Record of evidence in Court of Session with any further examination under section 364, Criminal Procedure Code, and altered charge if any.
- (6) Material documentary evidence, if any.
- (7) ***[Omitted]

Note:- Photographs and bahis should be treated as “documentary evidence” and should be marked with letter like other documents, and should always be sent to the High Court.]

31. Reference to High Court *[shall] be in prescribed form.—The copy of the final judgment shall be signed by the Sessions Judge himself and not by the clerk or other officer of the Court on his behalf, as certifying such copy to be a true copy. The reference to the High Court for confirmation of the death sentence should be made in the prescribed form.

32. In death sentence accused *[shall] be informed about period for appeal.—In all cases in which a person is sentenced to death, the Sessions Judge shall as directed in section 371(3) of the Code of Criminal Procedure, *[inform] the condemned man that he must file his appeal within seven days.

32-A *[Omitted].**

33. Sessions Judge to ask accused and promptly deliver if he requires a copy of judgment.—In order to prevent delay, the Sessions Judge should, on delivering judgment, ask the accused if he desires to have a copy or translation of the judgment, to which he is entitled under section 371*[(3)] of the Code for the purposes of appeal. The Sessions Judge should record in the judgment that this has been done, and when necessary, should furnish the copy or translation without delay.

34. Endorsements on copy sent to accused.—The copy or translation of the judgment required by the accused should be sent to him by the Session Judge with the following endorsements, namely-

- (a) the date of the dispatch of the copy or translation of the judgment;
- (b) notice that the appeal must be presented within seven days from the date of sentences (exclusive of that date and of the time which has been spent in supplying him with the copy of the judgment) mentioning the latest dates on which his appeal can be filed;
- (c) intimation that, on the expiry of seven days, the record will be sent to the High Court, and that the hearing of the reference with a view to confirmation of sentence (under section 374 of the Code) will take place about one month after dispatch of the copy.

***[35. Record to be sent to High Court soon after period of appeal has expired.-** When the condemned person has taken a copy of the judgment, the record should not be forwarded to the High Court until after the expiration of the total period within which his appeal can be legally filed, i.e., a period of seven days from the date of sentence plus the time spent in supplying the copy.]

35-A. *[Omitted].**

***[36. Notice to accused and Advocate General on receipt of record.-** In the High Court immediately on receipt of the record, notice shall issue to the accused in jail informing him that the proceedings will be considered, with a view to an order of confirmation being made under section 374 of the Code of Criminal Procedure and the appeal (if any) be heard, on date to be entered in the notice. Similar notice will also be issued to the Advocate General when an

appeal is preferred. Unless records are promptly submitted, it will not be possible to carry out the above standing order, and Sessions Judges are accordingly required to pay strict attention to the instruction here given.]

37. Copy of High Court judgment to be sent to Sessions Judge.--

After the sentence has been confirmed or other order has been made by the High Court, the Registrar will return the record, with a duplicate or an attested copy of the order under the seal of the Court, to the Sessions Judge, who will take the steps prescribed by section 381 of the Code of Criminal procedure to cause the sentence or order to be carried into effect.

38. Record to be sent to Government when death sentence has been confirmed.-- The record of every case, as prepared for the use of the High Court, in which the sentence of death has been confirmed by the High Court, should as soon as orders have been passed confirming the death sentence, be forwarded to the Provincial Government, together with the Court's order thereon, and the English file of the Sessions Court.

39. Death for execution of death sentence.-- In issuing warrants for the execution of sentences of death, Sessions Judges should as directed by Government fix a date for the execution of the sentence that is not less than fourteen or more than twenty-one days from the date of the issue of the warrant.

40. Record to be sent to Government when a woman has been sentenced to *[imprisonment] for infanticide.--*[...]** In every case in which a sentence of *[imprisonment] for life is passed on a woman for the murder of her infant child, and the sentence is not appealed against, the record of the case shall, after the expiration of the period allowed for appeal, be forwarded to the High Court for submission to Government, with a view to the consideration of the question whether any commutation or reduction of the sentence should be allowed.

41. Weapons to be sent to the High Court- (i) All weapons with which injuries are alleged to have been inflicted by the accused, whether the nature of the injuries is in dispute or not, shall be forwarded to the High Court when a case is referred by a Sessions Judge for confirmation of a sentence of death. In order to secure that this will be done, the Sessions Judge shall record a note at the foot of his judgment stating what weapons are to be forwarded to the

High Court and he should see that they are forwarded when the records are dispatched.

(ii) In a case in which a convicted person is called upon to show cause why his sentence should not be enhanced to death similar weapons are required in the High Court, but will not be forwarded to the High Court until the High Court calls for them.

42. Blood-stained clothes sent to High Court.—(i) All garments of an accused persons which are proved to have been stained with human-blood and have been made exhibits shall be forwarded along with the record to the High Court when a case is referred by a Sessions Judge for confirmation of a sentence of death. In order to secure that this is done, the Sessions Judge shall record a note at the foot of his judgment stating what garments are to be forwarded to the High Court.

(ii) In a case in which a convicted person called upon to show cause why his sentence should not be enhanced to death similar garments are required in the High Court, but will not be forwarded to the High Court, until the High Court calls for them.

43. Exhibited articles- Exhibited articles, which are not documents and are not referred to in paragraphs 41 and 42 of this Chapter, should not be sent to the High Court, unless the High Court calls for them, or unless the Sessions Judge considers that a particular exhibit will be required in the High Court, in which case he should record a note at the foot of his judgment that the exhibit should be forwarded to the High Court in the event of an appeal.

**PART C. – PROVIDING AN ACCUSED PERSON
WITH LEGAL ADVICE.**

***[1. Presiding officer to report whether accused can afford to engage counsel.-** If the accused is unrepresented in a Sessions case and cannot afford to engage a counsel, the Sessions Judge shall make arrangement to employ a counsel at Government expense. Counsel in such cases should be appointed well in time to enable him to study the documents mentioned in section 265-C of the Code of Criminal Procedure.

2. Counsel for accused to be provided by Sessions Judge.- When the accused is a woman prisoner who is unable to afford a counsel, the presiding officer on an application made by her shall make arrangement to employ a counsel at Government expense to defend her in all offences except those triable in a summary way under chapter XXII of the Code of Criminal Procedure.]

3. Fees of Counsel.-- The legal practitioner thus engaged by the Court trying the case shall receive the same fees as private practitioners engaged under the note to rule X(2) of the rules regulating the conduct of business in the Law Department, and the fees shall be entered in the same register and drawn in the same manner as is prescribed for such practitioners.

CHAPTER 25
APPEAL AND REVISION—CRIMINAL
PART A.—ADMISSION OF PETITIONS.

1. Persons competent to lodge petition.-- A petition of appeal or revision on behalf of a person convicted by a Criminal Court or an application for transfer shall not be admitted by a Criminal Court, unless it is either submitted through the jail authorities, or is presented by the convicted person himself, or by some person authorized by a ***[...] power of attorney to present it on his behalf; and a petition for revision by a complainant shall not be admitted unless it is presented by the complainant or by some person authorized by a ***[...] power of attorney to present in on behalf of the complainant;

Provided that a person confined to jail shall be allowed to appoint his pleader, whether falling under sub-clauses (1) or (2) of clauses (r) section 4 of the Code of Criminal Procedure, by means of a printed form, signed by him, and attested by the Superintendent of the Jail, and that no stamp shall be required on this form.

Note:- A specimen of the form is given in the Appendix attached to this part.

2. Authentication of petitions written by jail officials for prisoners.— Petition of appeal and revision, written by Jail officials on behalf of prisoners, shall be authenticated by the Superintendent of the Jail and every such petition received from the Superintendent of a Jail shall be examined upon receipt, and if it has not been authenticated by the Superintendent, it shall be returned forthwith for this to be done.

3. Petitions received by post.—A petition of appeal or for revision received by post otherwise than through Jail should, if possible, be returned to the person from whom it was received by post 'bearing'.

4. Pleader engaged by agent.—When an agent has been duly appointed by a convict to file an appeal or revision, a pleader engaged by the latter shall be required to file a power-of-attorney.

5. Court-fees on appeals.—No Court-fees shall be charged on appeals preferred on behalf of a prisoner by a pleader or by agent.

6. ***[Omitted].

APPENDIX

Form of declaration by a person confined to Jail appointing a pleader for presenting an appeal or revision on his behalf in a Criminal Court.

IN The Court of-----

Appellant.

Petitioner

versus

The *[STATE]-----
Respondent.

Charge under section -----

Sentence -----

Appeal

-----from the order of -----

Magistrate

Revision

exercising-----powers at-----

I,-----, son of-----
-----, caste-----, resident of-----
-----, now a prisoner in the Jail at-----, hereby
authorise -----, to file an appeal in the above case on my behalf and
to act, plead and take all other steps in furtherance thereof.

Signatures

or

thumb-impression
of the Appellant -----

or Petitioner

Date -----

Station-----

Attestation by the Superintendent of Jail-----

The above declaration has been made by -----
----- prisoner No.-----, at present confined in the-----
----- Jail which is under my charge as Superintendent. The contents of the
declaration have been read over to the prisoner who admits them to be correct.
Let this be given to his pleader for necessary action.

Signatures-----

Designation-----

Date-----

Station-----

**PART B. -- THE SUBMISSION OF RECORDS TO
THE HIGH COURT FOR PURPOSES OF REVISION. ***[OMITTED]**

**PART C. – PROCEDURE IN HEARING
CRIMINAL APPEALS**

Introductory.—The attention of all Criminal Appellate Courts subordinate to the High Court is invited to the procedure laid down in sections 421 to 423 of the Code of Criminal Procedure.

2. Summary disposal, appellant to be hear.—If, on a perusal of a petition of appeal and the copy of the judgment or order appealed against, and after hearing the appellant or his counsel, or authorized agent, if he appears, the Appellate Court considers that there is no sufficient ground for questioning the correctness of the decision or interfering with the sentence or order appealed against, it may reject the appeal summarily. In acting under section 421 of the Code of Criminal Procedure, the Court may, and when the records are readily forthcoming ordinarily should, call for and examine the proceedings of the lower Court, but is not bound to do so. When a petition of appeal is presented by the appellant in person or by his counsel or duly authorized agent, the Court should of course, intimate to such person the day on which it will be prepared to hear hi, if the appeal is not brought forward for hearing on the day on which it is presented or if the hearing is adjourned.

***[3. Notice of date of hearing.**- If the Appellate Court decides to hear the appeal, notice of the day fixed for hearing should be given to the appellant or his pleader, and notice must also be given to such office as the Provincial Government may appoint in this behalf. The District Magistrate and in certain cases the Advocate General are the officers to receive, on behalf of the State, notice of the time and place fixed for the hearing of appeals admitted to a hearing under section 422 of the Code of Criminal Procedure. Attention is also invited to notifications in the same part directing the notice of the hearing of certain appeals to be given to the heads of the Railway Administration and the Postmaster General, Punjab. The notice of the appellant or his pleader need not be a formal notice in writing, if either of them is present in person when the day of hearing is fixed. It will be seen from section 4(1) (r) of the Code that the term “Pleader” includes (1) an Advocate, a Vakil, and an Attorney of a High

Court so authorized; and (2) any other person appointed with the permission of the Court, to act in such proceedings.

4. The order fixing the date should state under what section the hearing is.- To distinguish between appeals rejected under section 421 and appeals in which the sentence is confirmed after hearing under section 423 the order fixing the date should distinctly state whether or not the hearing is to be under section 423 of the Code.

5. Appeal should not be dismissed in default.- A criminal appeal must be disposed of on its merits as it cannot be dismissed in default.]

6. If appeal cannot be rejected summarily it should be admitted to hearing.—The practice which prevails in some Courts of continuing ***[...] in cases in which it is found necessary to direct a further inquiry under section 428, is irregular. If it appears that an appeal cannot be properly rejected on the record as it stands, it should be admitted to a hearing under section 422.

***[7. Contents of judgment.**- The judgment of an Appellate Court should contain the points for determination, the decision thereon and the grounds for that decision. (See section 367, and 424 of the Code of Criminal Procedure.)]

8. *[Omitted].**

9. Remand.—Whenever a criminal appeal is sent back for further inquiry under section 428 of the Code at Criminal Procedure, the Appellate Court should invariably fix a date for re-hearing the case, taking care that the date so fixed is in each instance sufficiently remote to allow of a return being made to the order of remand, and that the case is duly entered under such date in the appropriate register.

PART D. – NOTICE OF APPEAL

In railway cases notice to District Magistrate and Railway authority.—

The following notifications under section 422 of the Code of Criminal Procedure, prescribing the officers to whom notice is to be given of an appeal which is not summarily rejected, are re-printed for information and guidance.

I.—PUNJAB GOVERNMENT NOTIFICATION NO. 172, DATED THE 28TH JANUARY, 1891.

With reference to section 422 of the Code of Criminal Procedure, 1882, prescribing that any Appellate Court which does not reject an appeal summarily shall cause notice to be given to such officers as the Provincial Government may appoint in this behalf, the Hon'ble the Lieutenant-Governor (now Governor) is pleased to direct that in the case of an appeal preferred by a Railway employee in a case in which he has been convicted of an offence committed in his capacity of Railway servant, the Appellate Court shall cause notice to be given of the time and place of hearing of such appeal to the Head of the Railway Administration concerned as well as to the District Magistrate as directed in Punjab Government Notification No. 108-597, dated 8th February, 1883.

II.—PUNJAB GOVERNMENT NOTIFICATION NO. 206, DATED THE 10TH FEBRUARY, 1905.

Postal cases. Notice to District Magistrate and Postmaster General.—

With reference to section 422 of the Code of Criminal Procedure, 1898, prescribing that any Appellate Court which does not reject an appeal summarily shall cause notice to be given to such officer as the Provincial Government may appoint in this behalf, the Hon'ble the Lieutenant-Governor (now governor) is pleased to direct that in the case of an appeal preferred by a Postal employee in a case in which he has been convicted of an offence committed in his capacity of a Postal servant, the Appellate Court shall cause notice to be given of the time and place of hearing of such appeal to the Postmaster-General, Punjab and North-west Frontier Province, as well as to the District Magistrate concerned, as directed in Punjab Government Notification No. 108-597, dated 8th February, 1883.

III.—PUNJAB GOVERNMENT NOTIFICATION NO. 1110-J-,
37/13020/HOME-JUDICIAL, DATED THE 1ST APRIL, 1937.

Notice to Advocate-General and District Magistrate in other cases.—With reference to section 422 of the Code of Criminal Procedure, 1898, the Governor of the Punjab is pleased to direct, in supersession of Punjab Government notification No. 1764, dated the 7th December, 1898, that in the case of appeals other than those which lie to the District Magistrate or other Magistrate empowered to hear appeals under section 407 of the Code, the Appellate Court shall cause notice of the time and place of hearing to be given-

- (1) to the Advocate-General, Punjab, in all cases in which the sentence is one of death, imprisonment for life, or imprisonment for a term not less than ten years;
- (2) to the District Magistrate in other cases.

IV.—PUNJAB GOVERNMENT NOTIFICATION NO. 1776-JJ-50/29746,
DATED THE 30TH MAY, 1950.

In pursuance of the powers conferred by section 422 of the Code of Criminal Procedure, 1898, the Governor of the Punjab is pleased to direct in partial modification of Punjab Government Notification No. 1110-J-37/13020, dated the 1st April 1937, that in cases challanced by the Pakistan Special Police Establishment, the Appellate Court shall cause notice of the time and place of hearing of the appeal to be given to the Superintendent of Police, Special Police Establishment.

V.—GOVERNMENT OF WEST PAKISTAN, HOME DEPARTMENT
NOTIFICATION NO.JUDL-1-4(II)/60, DATED THE 8TH AUGUST, 1961.

In pursuance of section 422 of the Code of Criminal Procedure, 1898 and in continuation of Government of West Pakistan, Home Department notification No. Jud;-1-4(II)/60, dated the 21st June 1960 (hereinafter referred to as the said notification), the Governor of West Pakistan is pleased to appoint—

- (i) the Governor of State Bank of Pakistan; and

(ii) the Secretary to the Government of Pakistan, Ministry of Finance, as the Officer to whom (in addition to the Officers to whom notice is to be given in compliance with the said notification) notice in the matter of appeal made to the High Court of West Pakistan against conviction under the Foreign Exchange Regulation Act, 1947 shall be given by the said Court, of the time and place at which such appeal will be heard.

PART E. – APPEALS FROM ORDERS OF ACQUITTAL

Appeal to be filed in certain cases.—Sessions Judge and District Magistrates should bear in mind the following order of the Provincial Government regarding appeals against acquittals under section 417 of the Criminal Procedure Code.

The Provincial Government will not direct an appeal—

- (1) where the case is trifling in itself and the acquittal involves no erroneous principles of law, the correction of which is of public importance;
- (2) where, however serious or otherwise important the case, the legal guilt of the accused is fairly questionable or the evidence admits of any reasonable doubt, and the Court has considered and weighed it with impartiality, intelligence and care;
- (3) merely on account of the production of fresh evidence after the acquittal, or
- (4) where there is no distinct probability that the appeal will result in an order of re-trial.

2. Travelling expenses for the accused.-- In cases where it is decided that an appeal out to be filed, the ***[...] Government considers that the accused should have legal assistance at his trial and with this end in view, the Judges are pleased to direct that District Magistrate on receipt of a notice for service upon the person acquitted to show cause why he should not be convicted, shall, if he is satisfied that the accused is unable because of poverty to proceed to the High Court at Lahore, provide him with sufficient funds to enable him to do so should he so desire and, in the even of the apprehension of the person concerned and his custody in a lock-up, arrange that the accused (should he so desire and should he not be represented by counsel of his own choice) be conveyed to the High Court at Lahore, for the purpose of attending the hearing of the appeal against his acquittal.

3. Legal assistance to the accused.—With the same object in view, namely, to give every reasonable protection to the defence, a reasonable fee to

enable him to engage counsel, if such is his intention, shall be paid by the Government to the accused in all such cases, whatever may be the result of the appeal and whether he is or is not in attendance when the appeal is heard. He would be at liberty to supplement this himself in order to obtain counsel of superior caliber, should he so desire. The payment of the fee herein referred to shall be arranged and paid by the District Magistrate concerned in consultation with the *[Solicitor] to Government, Punjab, in the form of a letter of credit which the accused person's counsel can cash after actual appearance in the High Court.

4. Legal assistance in cases of enhancement of sentence.-- In the case of an application for enhancement of sentence made by the Provincial Government the same procedure should be followed in the matter of provision of counsel for the accused as is prescribed in paragraph 3 above.

***[5. High Court can alter the conviction from Section 304 to 302 only when Government appeals.—**In this connection it should be noted that ***[...] when a person is tried for an offence under section 302, Pakistan Penal Code, but is convicted under Section *[318] of *[the said Code] and sentenced to a term of imprisonment, the Sessions Judge's order amounts to acquittal under section 302. On application to a High Court for revision of sentence, the High Court has no jurisdiction in view of the provisions contained in clause (4) of section 439 Criminal Procedure Code, to alter the conviction to one under section 302 and sentence the accused to death. In such cases an appeal by the Provincial Government or by an aggrieved person under section 417 of the Code is required to give the High Court jurisdiction, if it is desired to alter the conviction.

6. Requisition for records for scrutiny when appeal for acquittal is contemplated.—For securing the original records of trial court for scrutiny in cases where an appeal against an acquittal, etc., is under contemplation the following procedure should be observed:-

(a) Where there has been a complete acquittal by the Court of Session of all the accused in a case, the Sessions Judge should, on a certificate furnished by the District Magistrate that an Appeal from acquittal is in contemplation, hand over to the

District Magistrate the sessions record of the case and such other connected papers in the custody of the Sessions Court as the District Magistrate may require.

(b) In cases where some of the accused have been convicted and others acquitted by the Sessions Court and no appeals against convictions are pending the procedure laid down in (a) above should be followed, but where appeals from convictions are pending, the records should, on receipt of a certificate from the District Magistrate that an appeal from an acquittal is in contemplation, be forwarded to the High Court.

(c) When sending records to District Magistrates, Sessions Judges should see that the Sessions records of the case are complete in all respects and include the ***[...] Police papers if they are in the possession of the Sessions Court.

*PART F. – APPEALS IN SCRUTINY CASES...****[Omitted]

**PART G. – SUPPLY OF COPIES TO APPELLANTS AND
APPLICANTS FOR REVISION, AND TRANSMISSION OF
APPEALS AND APPLICATIONS OF PRISONERS TO
APPELLATE AND REVISIONAL COURTS**

Introductory.—The particular attention of Sessions Judges and District Magistrates is invited to the following directions relating to the supply of copies to appellants and applicants for revision, and for the transmission of appeals and applications of prisoners to the Courts to which; they are addressed. Superintendents of Jails have been supplied with these directions to guide them in dealing with applications for copies made by prisoners under their custody.

***[2. Appeal to be accompanied by copy of judgment or order. Free supply of copy in certain cases.**— Section 419 of the Code of Criminal Procedure requires every petition of appeal presented to a Criminal Court to be accompanied (unless the Court to which it is presented otherwise directs) by a copy of the judgment or order appealed against. This copy (or a translation of the judgment where the accused desires to have a translation), unless the appellant has been convicted in any case tried summarily or for an offence under any law other than the Pakistan Penal Code, must, under the provisions of section 371 of the Code, be given free of cost.

3. Application for revision to be accompanied by copy of judgment. Free supply of copy to accused in warrant cases.— Similarly, application for revisions will not be received unless accompanied by copies of the judgment or judgments impeached, or unless the Court, otherwise directs under section 419, of the Code of Criminal Procedure. If it is intended that the Court should give such directions, it should be stated clearly why the prisoner is unable to furnish the copy. When the applicant has been convicted in any case not being a case tried summarily or where the accused has been committed of an offence other than the Pakistan Penal Code, *****[...]** he is entitled, if he has not appealed, to get a copy of the judgment of the Court, which convicted him free of charge and if he has appealed, to get a free copy of the judgment of the Appellate Court, or a translation of such judgment, where he desires to have a translation (sections 371 and 424 of the Code of Criminal Procedure). If he has appealed, the applicant is not entitled to a second free copy of the judgment of the original Court.]

3-A. Free supply of copies to jail prisoner.—The High Court has decided that notwithstanding anything contained in paragraphs 2 and 3, when the accused is in jail, a copy of the judgment or order may be supplied free of cost if he or his agent requires it for purposes of filing an appeal or petition for revision and not otherwise, provided that a second copy of the judgment or order of the original Court shall not be supplied free of cost for purposes of revision if he has already obtained one for the purposes of filing an appeal.

3-B. A copy of the judgment of the court of Session, in appeal or revision, in every criminal case in which, as a result of the decision of the Sessions Judge, any convicted person is required to undergo imprisonment for a period of not less than two years, shall be supplied free of cost to the Superintendent of the Jail concerned within one month from the date of judgment or order.

4. Petitions of appeal preferred by prisoners.—Petitions of appeal preferred by prisoners through the Superintendent of the Jail should be sent direct to the Appellate Court, as required by Section 420 of the Code of Criminal Procedure. The Appellate Court will itself requisition the records from the Record Room.

5. Typewritten copies of record and judgment to be sent to high Court. – Whenever the appeal of a person, convicted by a Court of Session is forwarded to the High Court, particular care should be taken to see that the petition of appeal is accompanied by a typewritten copy, *in English*, of the whole proceedings of the Sessions trial. When the sentence is one of death or transportation for life, *two* typewritten copies of the record should be sent.

6. Extra copies to be prepared in advance by stenographers- So far as possible, stenographers in typing from dictation, evidence and judgments in all classes of cases should prepare by duplication all extra copies likely to be required for this purpose, as well as for supplying the accused or any other person requiring a free copy. This should avoid the preparation of fresh copies by the Copy Clerk. Similarly these copies should be duplicated when they are likely to be required by any subordinate Court.

7. ***[Omitted]

8. ***[Omitted]

9. ***[Omitted]

The following rules should be observed in regard to the transmission of Appellate Court's orders to Lower Courts:-

1. The Sessions Judge will send copies of all his judgments to district Magistrate.

2. The District Magistrate will transmit the copies to the original Court for information and return direct to the Record keeper, to whom the original records will be sent at once.

3. The District Magistrate, Additional District Magistrate will send copies of all their judgments on appeal to the original Court for information and return direct to the Record-keeper, to whom the original record will be sent at once.

4. Appellate Courts will attach to the original record the following forms:-

Date.-----

Copy of judgment despatched by District Magistrate.

Copy of judgment despatched by Additional District Magistrate. ..

Copy of judgment received by Record keeper.

(Translation $\frac{is}{is\ not}$ attached)

(It will be simpler to have only one form)

5. (a) The Record-keeper will maintain a running list prepared from the above form of all cases in which copies of judgments have been sent out. When the copies of judgments are returned to him by the original Courts, he will add them to the records, fill in the date of receipt, and strike those cases off his running list.

(b) If copies are not returned within 10 days of despatch he will issue a reminder (which should be on a printed form), and if that is ineffective, report the matter to the despatching Court.

(c) The running list will be in the following form:-

Name of case.	Date of despatch	Date of reminder, if any.

(d) The reminder will be in the following printed form:-

To the Court of-----

A copy of the judgment of the----- was despatched to you by the-----on-----and has not yet been received by the Record-keeper. Please return at once.

Dated. _____

Record-keeper.

6. Officers presiding over subordinate Courts held at District Headquarters, if in any particular case they desire to see their original record, will be allowed to call for it provided that it must not leave their Court room.

7. ***[Omitted].

CHAPTER 26
TRANSFER OF CRIMINAL CASES.
PART A. – Transfer Of Criminal Cases.

***[1. Power of High Court- Re transfer of cases.-** Under section 526 of the Code of Criminal Procedure the High Court has power to transfer any case from one Court subordinate to it to another on any of the grounds specified therein. This power for transfer extends to all classes of cases.

2. Sessions Judges power to transfer.- Under section 528 of the Code, Sessions Judges also have general power to withdraw³ any case from any Judicial Magistrate and to refer it for enquiry or trial to any other Judicial Magistrate competent to inquire into or try the same.

The Sessions Judge may also, at any time before the trial of a case or the hearing of an appeal has commenced before an Additional Sessions Judge, recall the case or appeal and may try the case or hear the appeal himself or may make it over to another Court for trial or hearing, as the case may be.

Sessions Judge may empower any Judicial Magistrate who has taken cognizance of any case to transfer such case for trial to any other Judicial Magistrate in his District any such magistrate may dispose of the case accordingly.

2-A. Under section 528-A, the District Magistrate may withdraw or recall any case which he has made over to any Executive Magistrate subordinate to him and may either try the case himself or make it over for trial to any other Executive Magistrate subordinate to him.

Any District Magistrate may empower any Executive Magistrate subordinate to him who has taken cognizance of any case to transfer such case for inquiry or trial to any other Executive Magistrate in his district who is competent under the Code to try the accused and such Magistrate may dispose of the case accordingly.

It is not obligatory to stay the proceedings or adjourn the hearing for the purpose of an application under section 528. Applications for transfer should be promptly disposed of. Notice to the opposite party is not obligatory under

section 528 but is advisable except when the application appears to be frivolous on the face of it and is summarily rejected. Sessions Judges should carefully enquire into the grounds on which the application is based and deal with the same, seriatim, in his order.]

3. Cases triable in more than one district. Forum to be determined with regard to public convenience.—The necessity for transfer of a case may arise purely on grounds of jurisdiction or in the ends of justice. As regards the former, sections 179 to 183 of the Code should be consulted, when a case is to be instituted in Court. In carrying out the provisions of these sections, cases which are triable in more than one district should not be transferred unnecessarily from one district to another. A Magistrate should act under these sections solely with reference to the public convenience. Ordinarily, the proper district for the enquiry into, and trial of offences falling under those sections would be the district in which the witnesses could, with the least inconvenience, attend.

4. Procedure when a Magistrate thinks the case should be tried in another district.—If a Magistrate is of opinion that it would be more convenient if an enquiry or trial were held in another district he should at once address the District Magistrate.

If the District Magistrate considers the transfer of the case to another district desirable, he will forward the paper to the District Magistrate of the latter district. If the District Magistrate so addressed concurs, the case should be ****[referred to the High Court and]** transferred to that district accordingly. If he dissents, the Magistrate should either proceed with the enquiry ****[or trial]**, or refer the question to the High Court, ***[which]** will, under the provisions of section 185 of the Code of Criminal Procedure, decide in which district the enquiry or trial should be held.

5. Reasons to be given for proposal to transfer.—When a transfer is proposed by any Magistrate his proposal should always be accompanied by a short statement of the case and of the reasons for making the proposal.

6. Common grounds on which applications for transfer are made.—Applications for transfer of criminal cases are frequently made by accused persons on the allegation that such transfer is necessary in the interests

of justice. The most common grounds on which such applications for transfer are made are (a) that the Judge or Magistrate is personally interested in the case, or (b) that he is connected with one or the other party to the case by relationship, friendship, etc., and is, therefore, likely to be partial, or (c) that he has already formed or expressed an opinion on the subject matter of the enquiry or trial, or (d) that he has conducted himself in such a manner that no fair or impartial enquiry or trial can be expected from him.

***[7. Remarks on those grounds. Cases of local bodies with which Magistrate is connected.-** As regards (a), the provisions of section 556 of the Code which prohibit a Judge or Magistrate from trying certain cases without the permission of the Appellate Court should be carefully borne in mind. The section is founded on the maxim that no man can be judge of his own cause or give judgment concerning his own rights. The general rule as to disqualification is, that a person who, by reason of his interest, pecuniary or personal, is likely to have a bias in the matter of the prosecution, ought not to sit as a Judge in the case. The interest, however, must be a substantial interest giving rise to a real bias, and not merely to the possibility of a bias. The question frequently arises as to whether the connection of a Magistrate with a local body disqualifies him from trying a case to which that body is party. This must be decided on the facts of each case.]

8. Connection of the Magistrate with a party.—In cases where the Judge or Magistrate happens to be connected with one or the other party by relationship, friendship, etc., it is advisable for him to move the proper authority at once to transfer the case to some other Court; for howsoever straightforward and impartial he may be, there is always the danger of his actions being regarded with suspicion and misinterpreted. An immediate transfer of the case would avoid the possibility of an application for transfer being made at a later stage and consequent delay in the disposal of the case.

9. Cases in which Magistrate has already expressed his opinion.- The same course would be advisable in cases in which the Judge or Magistrate has already formed and expressed a definite opinion on the material issues requiring decision, against the accused concerned.

10. Cases wherein a party apprehends that he will not have a fair trial.—As regards the last category, the presiding officers of Courts should carefully bear in mind that it is their duty not only to be thoroughly impartial, but to conduct themselves in such a manner as not to give rise to any reasonable apprehension in the mind of an accused person that he will not have a fair and impartial enquiry or trial. In dealing with an application for transfer, the Court has to consider not merely the question whether there has been any real bias in the mind of the presiding Judge against the applicant, but also the further question whether incidents may not have happened which, though they may be susceptible of explanation and may have happened without there being any real bias in the mind of the Judge, are nevertheless such as are calculated to create in the mind of the applicant a justifiable apprehension that he would not have an impartial trial. As observed by Lush J. in *Sergeant versus Dale* [(1877) 2 Q.B.D 558] “the law has regard, not so much perhaps to the motives which might be supposed to bias the Judge, as to the susceptibilities of the litigant parties. One important object, at all events, is to clear away everything which might engender suspicion and distrust of the tribunal, and so to promote the feeling of confidence in the administration of justice which is essential to social order and security.”

***[11. Adjournment on application under section 526.**— In an inquiry under Chapter VIII or any trial, the fact that any party intimates to the court at any stage that he intends to make an application under this section shall not require the court to adjourn the case; but the Court shall not pronounce its final judgment or order until the application has been finally disposed of by the High Court and, if the application is accepted by the High Court, the proceedings taken by the Court subsequent to the intimation made to it shall, at the option of the accused, be held afresh. [Section 526(8)]. If a party to an appeal intimates to the Court, before the argument begins, that he intends to make an application under section 526, the Court shall, upon such party executing, if so required, a bond without sureties of an amount not exceeding five hundred rupees; that he will make such application within a reasonable time to be fixed by the Court, postpone the appeal for such a period as will afford sufficient time for application to be made and an order to be obtained thereon. {Section 526(9)}.

12. Transfer applications should be supported by affidavits. Notice to other party. High Court will not entertain applications unless Sessions Judge has first been moved.—Applications for transfer whether to the District Magistrate or ****[Sessions Judge or]** the High Court, should always be supported by affidavits in support of the grounds of transfer.

13. *[Omitted].**

***[14.** Succeeding Court may act on the evidence already recorded.- When a case is transferred from one Court to another, the provisions of section 350 of the Code apply, and the succeeding Court may act on the evidence recorded by its predecessor or it may re-examine the witnesses and recommence the enquiry or trial.

15. *[Omitted].**

**PART B. APPLICATIONS FOR TRANSFER OF CRIMINAL CASES TO FORM
PART OF SEPARATE RECORD.**

1. Applications for transfer of criminal cases and the proceedings therein should form files separate from the record of the main case sought to be transferred and the records of such transfer applications should be separately consigned to the Record Room. The original order on the transfer application should be kept on the record of the transfer proceedings and a copy of this order should be sent to the Court concerned.

2. Such applications *[shall] be entered in the Register of Applications for transfer of Criminal Cases (Criminal Register No. XX) and not in the Register of Miscellaneous Applications.

3. Cases transferred by a Court of its own motion or on administrative grounds should not be entered in any register and it is unnecessary to keep any statement of cases so transferred. It is not necessary in such cases to make any separate record of the transfer proceedings and the original order of transfer, instead of a copy, may be sent to the Court concerned.

CHAPTER 27

Judicial Lock-ups.

Introductory.—The annexed consolidated and amended rules and instructions, regulating the management of, and control over, Judicial Lock-ups, are issued by the High Court, with the concurrence of the Inspector-General of Prisons and the approval of the Provincial Government, in supersession of previous orders on the subject.

GENERAL REMARKS.

1. Difference between a Judicial and a Police Lock-up.—The essential difference between a Judicial and a Police Lock-up is—

- (i) that in a Judicial Lock-up no prisoner can be kept without the written order of a Judicial office to the Jailor or other officer in charge, stating the offence for which he is detained and whether bail is allowed or not, nor can a prisoner be removed without such written order;
- (ii) that in a Police Lock-up no prisoner can be detained longer than twenty-four hours, exclusive of the period necessary for journey from the place of arrest to the Magistrate's Court without the special order of a Magistrate.

2. Persons to be kept in Judicial Lock-up.—Judicial Lock-ups contain—

- (i) persons under-trial before Magistrates, including persons remanded at the request of the Police as well as persons in cases remanded to Police;
- (ii) persons under trial before the Sessions Judge; and
- (iii) in certain districts, prisoners under sentence for short terms who are detained in Lock-ups for the whole period of their sentence, and prisoners under sentence for long terms, who are similarly detained until opportunity offers for their transfer to the nearest jail.

3. When other Lock-ups are to be treated Judicial Lock-ups.—Every Lock-up which is used for purposes other than that for which the Police

are entitled to use a Lock-up [as explained above in clause (ii) of paragraph 1] must ipso facto be regarded and treated as Judicial Lock-up. In several districts the Judicial Lock-up at the headquarters of the District is located in the Jail and is managed by the Jail authorities. In some districts the Lock-ups at headquarters of the Tahsil are located in the local Police Station, and are used for confining persons in temporary Police custody as well as those in Magisterial custody. In all such cases the Lock-up is to be regarded and treated as a Judicial Lock-up. The mere fact that in several districts no special establishments have been sanctioned for Judicial Lock-up does not show that no such Lock-ups exist in such districts. The lock-up or one of the Lock-ups at the headquarters of every District and Tehsil must necessarily be a Judicial Lock-up. District Magistrates are required by the rules [rule XVI, clause (iii)] to assign proper places for Judicial Lock-ups and their guards at all Court houses, and should see that this rule is at once complied with in regard to the Courts at the headquarters of the District and at each Tahsil.

4. Management of Police Lock-ups and their use as Judicial Lock-ups.—Purely Police Lock-ups are under the exclusive control of the Police Department. Police officers are strictly responsible for any infringement of the law in regard to them, and the magistrate is bound, of his own motion, to take cognizance of such infringement. Where a Police Lock-up comes to be used as a Judicial Lock-up the District Magistrate immediately becomes responsible for the enforcement therein of these rules.

5. Certain Lock-ups declared to be Subsidiary Jails.—The Lock-ups at Multan Sadr. **[...] Kasur, Mianwali, Bhakkar, Rajanpur and Muzaffargarh, were declared to be Subsidiary Jails by Punjab Government notification No. 484, dated the 21st December, 1896.

6. Financial control of Inspector-General of Prisons over Judicial Lock-ups.—The Inspector-General of Prisons has hitherto exercised financial control over all Judicial Lock ups in regard to such matters as sanctioning expenditure, approving of budget arrangements and dealing with questions relating to the entertainment of special establishments and other similar matter. It is not intended to introduce any change in regard to these matters.

7. Inspection of judicial Lock-ups by Sessions Judge. Responsibility of District Magistrate for efficient management.—District Magistrates should see that all Lock-ups within their districts are efficiently

managed; that prisoners confined therein are properly cared for; and that these rules are duly observed. It should be regarded as an important part of the Sessions Judge's duty to inspect Judicial Lock-ups on all convenient occasions; and a brief report of the result of every such inspection should be communicated to the Inspector-General of Prisons, the Government and the High Court.

8. Prisoners under-trial should not needlessly be taken about from place to place when a Magistrate goes on tour.

***[9. Quick disposal of the prisoners of the Lock-up.-** Courts should consider the case in which the accused is in custody as urgent and as having the first claim on their attention.]

10. Interview with prisoners in Lock-ups.—Under-trial prisoners confined in a Lock-up should not be permitted to converse with people outside; but provision should be made under the rules to enable them to hold interviews with their friends and advisors, subject to such limitations as to times and places as may be proper and convenient.

11. Harassing of prisoners in Lock-up.—Care should be taken that prisoners are not exposed to any unnecessary inconvenience, suffering or degradation.

RULES REGULATING THE MANAGEMENT OF, AND CONTROL OVER, JUDICIAL LOCK-UPS AND THE TREATMENT OF UNDER-TRIAL PRISONERS.

I.-- Control, management and inspection of Judicial Lock ups in jail.—(i) Judicial Lock-ups located within or attached to a Jail shall be managed entirely by the Jail Department, provided that they shall be subject to these rules in regard to inspection by the Sessions Judge of the Division in which they are situate and to the submission of the monthly statements and weekly reminders hereinafter prescribed.

(ii) The Judicial Lock-up at Rajanpur in the Dera Ghazi Khan District, which are also used as Subsidiary Jails for short-term prisoners, shall be subject to the orders of the Inspector-General of Prisons so far as may be necessary for the purpose of dealing with prisoners undergoing sentences of imprisonment therein and subject to the same proviso as that contained I clause (i) of this rule.

(iii) Subject to the provisions of clauses (i) and (ii) of this rule, every Judicial Lock-up shall be under the direct control of the Provincial Government to be exercised through the Commissioner and the District Magistrate. The Sessions Judge will, however, be responsible for the inspection of all Judicial Lock-ups, subject to the General control for the High Court.

(iv) For the under-mentioned purposes every Judicial Lock-up shall be regarded as being subject to the orders of the Inspector-General of Prisons, namely—

- (a) adjustment of budget estimates;
- (b) sanction to expenditure;
- (c) entertainment of establishments.

For the purposes of this clause the Inspector-General of Prisons will from time to time issue such instructions as may be necessary direct to District Magistrates.

II. Control over other Lock-ups.—The immediate supervision and control over every Judicial Lock-up, other than a Lock-up referred to in clause(i) of rule I, shall vest in the District Magistrate of the District in which it is situated: provided that, in the case of a Judicial Lock-up situated within a Sub-Division or a Cantonment, the immediate control shall vest in the Sub-Divisional or Cantonment Magistrate (as the case may be) subject to the supervision and orders of the District Magistrate.

III. Officers in charge of Judicial Lock-ups.—Every Judicial Lock-up situated at the head-quarters of a district, other than a Lock-up referred to in clause (i) of rule, I, shall be in the charge of the Sheriff; and every Judicial Lock-up situated elsewhere shall be in charge of such officer as the District Magistrate may from time to time appoint in that behalf.

IV. Responsibility of Police to guard Lock-ups and to conduct prisoners.—The Police Department will be responsible for the security of every Judicial Lock-up not located within or attached to a Jail, and will supply the necessary guards for its protection and for the conduct of prisoners to and from the Courts, both at the headquarters of Districts and in Sub-Division, Tahsils and Cantonments, in accordance with the orders of Government and the rules of that Department.

V. Count of prisoners to be taken morning and evening.—Count shall be taken morning and evening of the prisoners in every Judicial Lock-up not located within or attached to a Jail. At the evening count the number of prisoners in each ward of the Lock-up shall be entered in a register to be maintained for the purpose and the entry initialed as correct by the officer in charge of the Police Guard. At the morning count, if the number of the prisoners in the Lock-up is found to be correct, the entry shall be initialed by the officer in charge of the Lock-up.

VI. Officer in charge responsible for discipline and proper dieting of prisoners.—In the case of Judicial Lock-ups other than those referred to in clause (i) of rule , the officer in immediate charge shall, subject to the Magisterial supervision and control specified in rule II, be responsible for the maintenance of discipline amongst, and the dieting of, the prisoners confined therein.

VII. Prisoner's tickets.—Every prisoner confined in a Judicial Lock-up shall be provided with a wooden or cardboard ticket about two inches square, on which shall be written—his name; the date of his admission; the offence for or provision of the law under which he is in custody; and the Court in which his case is pending.

VIII. Date of hearing to be entered in the warrant.—The date of hearing of the case shall be entered in the warrant directing the confinement of a person to a Judicial Lock-up.

Note1:- The magistrate of district will be responsible for the due observance of this rule by all Subordinate Magistrates in the District.

Note 2:- The Jailor or Superintendent of Jail in charge of a Judicial Lock-up should not refuse admittance to a prisoner where the provisions of this rule have not been observed, but he should draw the immediate attention of the Magistrate concerned to the defect, and ask for its rectification at once, sending at the same time a copy of his letter to the Magistrate of the District for his information.

IX. Weekly reminder of case in which prisoner has been in the lock-up for more than a month.—(i) The officer in charge of every Judicial Lock-up shall submit to the Magistrate, to whom he is subordinate (i.e.,

District Magistrate, Sub-Divisional Magistrate or Cantonment Magistrate, as the case may be), a weekly reminder, in the form prescribed, showing every case in which a prisoner has been in confinement for more than a month since the date of his first admission to the Lock-up, except case in which the prisoner is awaiting trial by the Sessions Judge under a warrant of committal to the Sessions.

(ii) In the case of Lock-ups situated within Sub-Divisions and Cantonments, the Sub-Divisional Magistrate or Cantonment Magistrate (as the case may be), receiving a reminder under the preceding clause of this rule, will initial and date it, and forthwith submit it, with any remarks which he may deem necessary, to the District Magistrate for information and orders.

(iii) In every case in which a prisoner has been detained for a longer period than one month, the reminder shall be forthwith submitted by the District Magistrate to the Sessions Judge with an explanation of the cause of the delay.

X. Monthly return.—(i) A Judicial Lock-up return, in the form prescribed, shall be submitted monthly by the District Magistrate, in regard to every Judicial Lock-up in his district, whether located within or attached to a Jail or not, to the Sessions Judge. The Sessions Judge will make such remarks and pass such orders thereupon as he may deem fit, and shall then forward the return to the Inspector-General of Prisons for information.

(ii) For the purposes of this rule every officer in charge of a Lock-up located within or attached to a Jail or of a Lock-up mentioned in clause (ii) of rule I, shall forward a copy of the monthly return to the district Magistrate, the original being submitted to the Inspector-General of Prisons.

(iii) The monthly return for the district shall be submitted by the District Magistrate to the Sessions Judge on or before the tenth of every month. A copy of the monthly return shall also be submitted by the District Magistrate to the Commissioner of the Division at the same time.

XI. Scale of diet.—(i) Under-trial prisoners confined in Judicial Lock-ups shall be dieted according to the following scale:-

XI.- (i) Under-trial prisoners confined in Judicial Lock-ups shall be dieted according to the following scale:-
Diet scale for under-trial prisoners

DESCRIPTION OF PRISONERS	TWICE A WEEK	TWICE A WEEK	THREE TIMES A WEEK	FOUR TIMES A WEEK	THREE TIMES A WEEK	DAILY					
	Wheat	Barley or Jowar	Rajra or Makki	Dal 1 st or Mung	Dal 1 st or Mung	Pare	Salt	Condiments	Firewood	Vegetables	Oil
For male prisoners above 16 years of age.	Chs. 10	Chs. 12	Chs. 12	Chs. 2	Chs. 1 1/2	2	Grs. 200	Chs. 1/3	Chs. 6	Chs. 4	Chs. 1/4
For female prisoners and juveniles under 16 years of age.	8	10	10	1 1/2	1	1	200	1/4	6	4	1/4

N.B.-- In regard to the issue of inferior grains see paragraphs 921 and 922 of Jail Manual.

The proportion of the different ingredients for one day's rations of condiments for eight prisoners should be--

Coriander	3/16 Chatacks.
Garlic	6/16 "
Turmeric	4/16 "
Chillies	3/16 "

Note II: The ration of vegetables prescribed should consist of one or other of the following vegetables, according to season:-

Cabbage, carrot, cauliflower, knol kohl, onion, parsnip, spinach, turnip, radish, red sag, white sag, French bean, sword bean, cucumber, pumpkin, squash, sweet potato, bottle gourd egg plant, country pumpkin, karela.

Provided that if an under-trial prisoner belongs to such a class of life that the ordinary Jail diet is reasonably distasteful to him, or, in any case, if the Medical Officer considers it necessary, arrangements shall be made for the supply to him, in the former case at his own expense and in the latter at the public cost, of articles of extra diet.

When articles of diet are supplied at the expense of the prisoner, they shall be supplied to him through the officer in charge of the lock-up.

(ii) **Opium, tobacco, liquors, etc.**—No tobacco, alcoholic liquors or intoxicating drugs shall be supplied to under-trial prisoners except on the order of the Medical Officer, who should give a written order specifying the daily quantity to be allowed in each case.

In the case of an under-trial prisoner addicted to the use of opium, who cannot be conveniently taken before the Medical Officer at once, a proper quantity of opium may be given daily by the officer-in-charge of the lock-up until the Medical officer has seen the prisoner; provided that the prisoner or his friends supply the opium, and that the quantity given shall be limited to what is actually necessary to maintain the health of the prisoner.

XII. Inspection by Inspector-General of Prisons.—(i) The Inspector-General of Prisons, in his annual tours, will inspect all Judicial Lock ups in order to see that the sanitary arrangements are satisfactory and that the financial management is efficient. He will bring to the notice of the Sessions Judge, the District Magistrate and the Commissioner of the Division any defects which he may observe, submit a brief report of the result of every such inspection to Government, and will review the general management of Judicial Lock ups in his annual Jail Report.

(ii) The Inspector-General of prisons may at any time bring to the notice of the Government any matter connected with the management of any Judicial lock-up which he considers to be unsatisfactory or to need attention.

XIII. Inspection by Sessions Judges.—The Sessions Judge should, as often as may be possible, inspect every Judicial Lock-up in his Division, and should bring to the notice of the District Magistrate any defects in the management which he may observe, and pass such orders as he may consider

necessary. A brief report of every such inspection should be submitted to the High Court; a copy thereof being sent to the Inspector-General of Prisons and another copy to Government.

XIV. Sub-Divisional Cantonment Magistrate to see to the sanitation, discipline, etc., of Lock-ups under their control.—(i) The District, Sub-Divisional or Cantonment Magistrate, having a Judicial Lock-up under his control, is at all time responsible that, though the strict rules as to sanitation and discipline observed in regular Jails are not in force in Judicial Lock-ups, the point are duly attended to. As to sanitation, the Magistrate should see that sanitary precautions similar to those observed in Jails are taken; that the buildings are not crowded or badly ventilated; and that the food is of proper quality and according to the prescribed scale of diet. In regard to discipline, the Magistrate should take measures to ensure proper behaviour amongst the prisoners. He should see that prisoners are not permitted to be noisy or turbulent, or to quarrel or fight with one another, and that they behave in a quiet and orderly manner, and are respectful and obedient to the officer in charge of the lock-up. Prisoners confined in a lock-up should not be permitted to Communicate with persons outside; nor should they be permitted to procure or to endeavour to procure any article from outside except on the written order of the Magistrate in charge of the lock-up.

(ii) **Separate accommodation for female and juvenile prisoners.**—Separate accommodation should be provided for female prisoners, who should be allowed sufficient privacy. Juveniles should not be placed in the same ward with adults.

XV. Receipts for prisoners taken out. Police to conduct prisoners.—The officer in charge should invariably give a receipt to the Jailor, turnkey or other officer, as the case may be, for the body of every prisoner taken charge of by him, and should invariably use the agency of the Police to conduct prisoners to and from Court or any other place to which they may be sent under proper authority.

XVI. Prisoners not to be kept in Police Lock-up without orders of Magistrate.—(i) No prisoner under-trial should be permitted to remain in a Police Lock-up except under the orders of a Magistrate or when in transit. A

prisoner in a case remanded to the Police should not be sent to the Police Lock-up without the written order of the Magistrate, even though his case may be the Police.

(ii) **Prisoners accompanying Magistrate on tour should be taken to be in Judicial Lock-up.**—If a Magistrate proceeds on tour and prisoners under trial accompany him, they are still to be considered as being constructively in the Judicial Lock-up of such Magistrate's station for the purposes of these rules.

(iii) **Provision of a lock-up in each Court-house.**—In each Court-house or in the buildings attached to it, a proper place shall be provided for prisoners under trial and their guard.

Note:- The amount of space which should be available in a Judicial Lock-up should ordinarily be not less than 648 cubic feet of air space and 36 feet of floor area per prisoner. Lateral ventilation exclusive of iron bars and door jams should not be less than ten square feet. Separate accommodation should be provided for females and juveniles.

XVII. Prisoners received or taken out under orders of magistrates.—(i) Under-trial prisoners shall not be received into or removed from a Judicial Lock-up except on the written order of a Magistrate.

The order should be made on the prescribed form of warrant. Whenever a prisoner is sent out of the Lock-up, the officer in charge should, after making the necessary endorsement, send the warrant with him to the Magistrate for the purpose of having the return endorsement made thereon by the Magistrate, as noted on the form.

(ii) **Expenses of transfer of prisoner.**—When a prisoner under-trial is transferred from one place to another under the orders of a Magistrate, the Magistrate under whose order the prisoner is transferred shall pay, in advance, the traveling expenses for the whole journey, and not merely to the headquarters of the nearest district en route.

(iii) **Sick Prisoners to be kept in jail hospitals. Transfer of sick prisoners.**—Under-trial prisoners shall not be transferred while suffering from serious illness; and if there is a dispensary at the place where a lock-up is

situated, no prisoner who is ill shall be transferred until previous medical examination has shown him to be in a fit state of health to undergo the journey. Sick or wounded prisoners under trial at the head-quarters of district shall be confined in Jail hospitals whenever medical advice or treatment may be necessary.

XVIII.- Clothing.—Prisoners under trial shall be allowed to wear their own clothing; but in order to provide for persons who are insufficiently clad a supply of blankets shall be kept in stock at each Judicial Lock-up. The blankets shall be obtained from the Jail of the district or from a neighboring Jail on indent prepared by the District Magistrate and passed by the Inspector-General of Prisons.

XIX. Handcuffs, fetters and other restraints.—Under-trial prisoners are to be subjected to no further restraint than is necessary for their safe custody, and shall not ordinarily be confined in fetters or placed under mechanical bodily restraint: Provide that the officer in charge may, with the permission in writing of the Magistrate having control over the Lock-up, have recourse to fetters or other necessary mechanical bodily restraint in the case of any under-trial prisoner who is violent or turbulent, or who is considered to be otherwise dangerous.

Under-trial prisoners while being escorted to and from Court by the Police should not be handcuffed, unless there is a reasonable expectation that such prisoner will use violence, or that an attempt will be made to rescue them.

XX. Habitual offenders and previous convicts to be reported.—Whenever it shall come to the knowledge of the officer-in-charge of a Lock-up that a prisoner confined therein is an habitual offender or has been previously convicted of any offence, he shall forthwith report the fact to the Magistrate.

Note:- Restrictions regarding under-trial prisoners.—Under-trial prisoners should not be permitted to crop their hair or to alter their personal appearance in any way so as to make it difficult to recognize them.

XXI. Information to be sent to Officer in charge when a prisoner is discharged or released on bail.—When an under-trial prisoner is discharged in open Court or released on bail while attending the Court, the presiding

officer of the Court shall intimate the fact in writing, under his signature, the same day, to the officer in charge of the Judicial Lock-up from which the prisoner was sent to such Court.

XXII. Interviews and correspondence.—Prisoners under-trial shall be given all reasonable facilities for communicating, either personally or by letter, with their friends, or legal advisers. Interviews may be allowed and letters forwarded under the authority of the Magistrate having control over the Lock-up.

XXIII. Disposal of money or other property found on the person of the prisoner.—Money or other property found on the persons of under-trial prisoners, other than necessary wearing apparel, shall be taken charge of by the Court Inspector. A list of such articles shall be recorded on the back of the prisoner's warrant, and the Court Inspector shall be held responsible for seeing that they are made over to the prisoner, or duly forwarded to him, if he is discharged or acquitted or punished otherwise than with imprisonment, or that they are forwarded to the officer in charge of the Jail in which he is, or is to be confined if he is sentenced to imprisonment.

XXIV. Punishment for breach of discipline.—(i) The punishments awardable for breaches of rules shall be as follows:-

- (a) Isolation in a cell or separate ward for a period not exceeding seven days.
- (b) Penal diet consisting of bread and water for a period not exceeding three days; the quantity of bread to be 8 chittacks of wheaten flour made into chapatis.
- (c) In the case of turbulent or dangerous prisoners, confinement in fetters.

(ii) Punishment may be inflicted under the written order of the Magistrate having control over the Lock-up.

XXV. Prisoners under sentence temporarily confined in Lock-up.—Prisoners under sentence who may be temporarily confined in a Lock-up or who may be required to undergo their sentence in a Lock-up which is a Subsidiary

Jail, shall, as far as may be, be subject to the same rules with regard to labour and discipline as are in force in regular jails.

XXVI.- Register of under-trial prisoners.—A register, in the form prescribed, showing every admission to an removal from a Judicial Lock-up shall be maintained by the officer in charge.

CHAPTER 28

JURORS AND ASSESSORS.....**[Omitted].

CHAPTER 29

PUBLIC PROSECUTORS.

PART A. – APPOINTMENTS OF PUBLIC PROSECUTORS.

1. Appointment, transfer, etc.—All matters relating to the appointment, remuneration, transfer or removal of Public Prosecutors rest with the Executive and not with the Judicial Department. Commissioners and Deputy Commissioners will consult the Sessions Judge as to matters on which they desire to obtain the opinion of that officer. References relating to Public Prosecutors (other than proceedings as regards professional misconduct falling under the rules relating to Legal Practitioners) should not be submitted to or through the High Court, it being left to the Government to consult the judges when thought desirable.

2. ***[Omitted].

3. ***[Omitted].

4. ***[Omitted].

5. ***[Omitted].

6. ***[Omitted].

7. ***[Omitted].

8. ***[Omitted].

9. Diary.—A brief diary should be maintained by all Public Prosecutors.

10. ***[Omitted].

SCHEDULE SHOWING THE SCALE OF PAY FIXED FOR PUBLIC PROSECUTORS IN THE VARIOUS DISTRICTS OF THE PUNJAB.

***[Omitted]

11. ***[Omitted].

**PART B. – THE SUPPLY OF COPIES TO THE
ADVOCATE GENERAL AND PUBLIC PROSECUTORS.**

1. Records and copies to be supplied in cases before Sub-ordinate Courts.—When the Advocate-General as Public Prosecutor, has been ordered to undertake a case, he shall, if his appearance is required in any Court other than the High Court, be supplied as soon as practicable, with the following papers, according to the stage which the proceedings may have reached:-

- (a) In original trials and inquiries before a Magistrate ******[or a Court of Session]
 - (1) a list of the witnesses for the prosecution, with a note of the evidence each is expected to give; (2) copies of any documents material to the case which are available.
- (b) In appeals before a Court of Session, a complete copy of the record of the lower Court, except formal papers not affecting the merits of the case.
- (c) Copies of the Police papers whenever, in the opinion of the officer applying for the services of the Advocate-General, they are likely to help materially to a proper understanding of the case.]
- (d) *******[Omitted].

2. Records and copies to be supplied in cases before Subordinate Courts.—In addition to the above, any papers and records, including copies of depositions of witnesses recorded by the trying Courts, which may be required by the Law Officer, shall be supplied as soon as possible after receipt of his requisition.

Note:- The Public Prosecutors should, however use more discrimination in their requests for full copies of evidence and should, as far as possible, obtain the material required by them from inspection of judicial records; copies should not be obtained by them except in complicated cases, when inspection will not serve the purpose. (Punjab Government Letter No. 12012-Judl., dated the 15th April, 1926, and Legal Remembrancer's letter No. 1829, dated the 7th May 1926.)

3. Copies in cases before High Court.— In cases in which the Advocate-General is ordered to appear in an appeal or revision case before the

High Court, it will ordinarily be for him to obtain copies of such parts of the record as he requires; but if in any case copies can be more conveniently obtained by the officer who has applied for his services, such officer may be required to obtain and transmit the necessary copies. In any case, the cost of obtaining copies shall be defrayed by the officer who has applied for the Advocate-General's services.

JUDICIAL POWERS—CRIMINAL.

PART A. – POWERS OF CRIMINAL COURTS.

1. Powers defined in the Criminal Procedure Code and other Acts.—

The constitution and powers of the Criminal Court are regulated by Chapter II and III, and schedules III and IV, of the Code of Criminal Procedure. Column 8 of Schedule II of the Code indicates the class of Court competent to try each offence falling under the Pakistan Penal Code. In regard to offences falling under Local and Special Laws, the classes of Courts by which such offences are triable are usually specified in the Act creating the offences. Where, in any such Act, the term “Magistrate” is used without qualification, it includes all persons exercising all or any of the powers of a Magistrate under the Code [General Clauses Act, Section 2 Clause (13)].

2. Special powers.--- The general powers which Magistrates are entitled to exercise in addition to those conferred upon them by sections 32 and 33 of the Code will be found in the third and fourth Schedules of the Code. Besides their ordinary powers detailed in the third Schedule, Magistrates of the first class may (1) require security for good behaviour under section 110, and (2) issue process for a person who within local jurisdiction has committed an offence outside such local jurisdiction. **[(See section 186 Cr.P.C.)] (Punjab Government Notification No. 507, dated 5th April 1904). The same notification empowers all Magistrates of the first and second classes (1) to make orders prohibiting repetitions of nuisances, under section 143; (2) to make orders under section 144 as regards nuisance; and (3) to take cognizance of offences upon information, under section 190. All Magistrates are empowered to take cognizance of offences upon (1) Complaint or (2) Police report. - **[(See section 190 Cr.P.C.)].

3. Powers conferred by Government.—For powers conferred by the Provincial Government upon certain classes of officers, either under the Code of Criminal Procedure or any other Act, see Schedule A and B attached to this Order.

SCHEDULE A.- Magisterial Powers.

Serial No.	Officer	Powers conferred	Limits	No. and date of Government Notification
1.	Registrar, High Court, Punjab.	Magistrate, 1st Class	Within the limits of High Court building and compound.	No. 1004, dated 26th July, 1897.
2.	Tahsildars (Permanent or temporary).	Magistrates, 2nd Class	Within the limits of any district to which the person may be posted.	No. 1081, dated 24th August, 1910.
3.	Assistant Commissioners and Extra Assistant Commissioners (not invested with any higher powers).	Magistrate, 3rd Class	Ditto	No. 3, dated 2nd January, 1889
4.	Naib-Tahsildars holding the office of Naib-Tahsildar of a Sub-Tehsil.	Magistrate, 2nd Class	Ditto	No. 28643-Gaz., dated the 28th August, 1935.
5.	Naib-Tahsildars (permanent).	Magistrate, 3rd Class	Ditto	No. 1536, dated 8th November, 1899.
6.	Settlement Tahsildars employed in the work of Colonization or Settlement.	Magistrate, 3rd Class	Within the limits of any district or districts in which the person may from time to time be employed, and only for the purposes of disposing of complaints brought by or against members of the District and Settlement or Colony Establishment working under their orders.	No. 1108, dated 13th September, 1904.

NOTE:--Permanent Naib-Tahsildars will, under serial No. 5, exercise 3rd Class Magisterial powers. Officiating Naib-Tahsildars will not ordinarily be re-invested, but if likely to continue to act for a considerable period, an Officiating Naib-Tahsildar who has passed the prescribed examination, may be specially recommended.

SCHEDULE B- Special Powers

Serial No.	Officer	Powers conferred	Limits	No. and date of Government Notification
1.	Registrar, High Court, Lahore	To try summarily under section 260, Criminal Procedure Code of 1882, offences against the Police Act.	Within the limits of High Court building and compound.	No. 1005, dated 26th July, 1897.
2.	All Magistrates, 1st Class	(i) To require security for good behaviour (section 110, Criminal Procedure Code). (ii) To make orders as to local nuisances (section 133). (iii) To issue process for a person within local jurisdiction who has committed an offence outside the local jurisdiction (section 186). (iv) To sell property alleged or suspected to have been stolen (section 524).		No. 507, dated 5th April, 1904.

SCHEDULE B- Special Powers.

Serial No.	Officer	Powers conferred	Limits	No. and date of Government Notification
3.	All Magistrates of the 1st and 2nd classes.	(i) To make orders prohibiting repetition of nuisances (section 143). (ii) To make orders under section 144. (iii) To hold inquests (section 174). (iv) To take cognizance of offences upon information received from any person other than a Police Officer or upon their own knowledge or suspicion [section 190 (1)(c)]		No. 507, dated 5th April, 1904.
4.	All Magistrates	To take cognizance of offences upon complaint or Police report [section 190 (1)(a) and (b)].		Ditto
5.	All Sub-Divisional Magistrates	To call for records (section 135)		Ditto

SCHEDULE B- Special Powers.

Serial No.	Officer	Powers conferred	Limits	No. and date of Government Notification
6	All Magistrates, 1st Class	Powers mentioned in section 8(1) of the Reformatory Schools Act, 1897.	Within the local Limits of their Jurisdiction.	No 576, dated 7th January, 1924
7	All Supendary Magistrates 2nd class	Power to authorise the detention of accused persons in the custody of the Police under Section 167 (2) of the Code of Criminal Procedure		No 11984, dated the 16th April, 1924
8	All District Magistrates	Power to withdraw classes of cases from the Magistrates subordinate to them (section 528 of the Code of Criminal Procedure)		No 101, dated the 3rd February, 1883.
9	[Omitted]			

NOTE:-- All the powers mentioned in serial Nos. 2 to 5 will be exercised subject to the general control of the Sessions Judges or the District Magistrates, as the case may be.

**PART B. – CONFERMENT OF CRIMINAL
MAGISTERIAL POWERS.**

Instructions in re recommendations for conferment of criminal magisterial power.- The Hon'ble Judges have been pleased to issue the following instructions, which have been approved by the Provincial Government, in regard to recommendations for the conferment of criminal magisterial powers:-

***[1. For Federal and provincial Civil Servants.-** Recommendations for the conferment of Criminal Magisterial powers upon Officers of the Federal and Provincial services should ordinarily originate as the circumstances of each case may require, with the District Magistrate through Commissioner, in the case of Executive Magistrate and with the Sessions Judge, through the High Court in the case of Judicial Magistrates.

2. Channel of recommendation.- When it is desired to confer enhanced powers e.g. the powers under section 260 of the Code upon an Executive or Judicial Magistrate, the District Magistrate or the Sessions Judge as the case may be, shall address their proposal for the conferment of such powers to the High Court, provided that the proposal for the conferment of powers on the Executive Magistrate shall be forwarded to the High Court through the Sessions Judge.]

3. When Commissioner shall consult Sessions Judge.—In other cases, the Commissioner, before forwarding the proposal to the High Court, may consult the District and Sessions Judge if he thinks it necessary to do so; but he shall do so whenever it is proposed to confer on any person the enhanced powers mentioned in paragraph 2 and.-

- (a) First class magisterial powers;
- (b) ***[Omitted]

4. Statement of previous exercise of powers to be sent alongwith recommendation.—When recommendation for the investiture of Extra Assistant Commissioner and Tahsildars with criminal powers are submitted to the High Court, it should invariably be specified whether the officer recommended has exercised powers before of the same or of a lower class, and for what periods, the Government notification conferring such powers should be

quoted in each case. If officer has never exercised criminal powers before, the fact should be stated.

5. Necessary qualifications for exercise of special powers.—Special care should be taken when recommending the investiture of officers with the important powers of a section 30 or 260 Magistrate, with criminal appellate powers or with the powers of an Additional District Magistrate. Ordinarily the qualifications necessary for the conferment of powers under section 260 of the Code of Criminal Procedure are-

- (a) The exercise of first class of first class magisterial powers for at least three years;
- (b) the officer recommended must be reported to be a capable and reliable Magistrate;
- (c) he should keep his records and write his judgments in English;
- (d) his English should be intelligent and his handwriting legible; and
- (e) he should have served for at least *[five] years. Service rendered in an honorary capacity may be taken into consideration.

Note: These conditions are not applicable to officers of *[a Federal Service] who are governed by the orders regulating the training of Assistant Commissioners.

6. Recommendations should ordinarily be made at the time of revision of annual confidential powers lists.--- Government maintains confidential lists of officers of *[Federal and Provincial Services] who are considered qualified to exercise or to be tried with certain enhanced civil and criminal powers. These lists are revised annually under instructions which are issued separately by the High Court. The channel prescribed in paragraphs 2 and 3 for the transmission of proposals applies only to the case of individual recommendations made from time to time during the year and not to the procedure for the revision of the annual confidential powers lists.

Normally, recommendations for the investiture of officers with enhanced powers should be confined to the time of the annual revision of lists, save when enhancement of powers is essential in the interests of work. The records of all officers recommended at the time of such revision are very carefully examined

and it means extra work and less accurate results if individual cases are taken up at other times.

7. Conferment of higher powers in emergency does not qualify permanently.--- It sometimes happens that higher powers are conferred in an emergency upon officers not in every way competent to exercise them permanently: this, however confers no claim to be given such powers permanently at the next revision of lists. Some officers are apt to consider that because they do not get higher powers, or their names do not appear on the confidential lists of officers qualified to exercise or to be tried with higher powers, as soon as they expect to, there are some undisclosed complaints against them, when the real reason may merely be that the High Court does not consider that they are quite ready to exercise them.

CHAPTER 31

[SESSIONS DIVISIONS.....OMITTED]



**RULES AND ORDERS
OF THE
LAHORE HIGH COURT, LAHORE**

VOLUME - IV

HIGH COURT RULES AND ORDERS — VOLUME IV

CHAPTER I

SUPERINTENDENCE AND CONTROL

PART I — GENERAL

PART-A: SUPERVISION AND CONTROL

1. Preamble.—In subsequent chapters instructions are given on various matters connected with the supervision and control to be exercised by Judicial officers generally over the ministerial establishments attached to their Courts, and by controlling officers over subordinate Judicial officers. A few general directions on the subject are here given for observance.

2. Supervision by Controlling Courts in executive matters.—Controlling Courts are required to exercise an active and continuous supervision over subordinate Courts in regard to all matters affecting the judicial administration and are not relieved of responsibility in regard to anything which may be found to be in an unsatisfactory state, unless they can show that they have done all that may reasonably be expected of them to have the directions of the High Court enforced and to prevent the occurrence of irregularities.

3. Supervision by Controlling Courts in judicial work.—In regard to judicial business District Magistrates and District Judges are not responsible merely for a proper distribution of work amongst the Courts, and for the disposal of appeals, but are required to see that subordinate Courts follow the prescribed procedure in all their proceedings and are not left without guidance in matters in which they may be found to be at fault or to be in want of instruction. The supervision to be exercised over inexperienced officers and officers in training should be specially vigilant and thorough, and their work should be watched with kindly interest, guidance being afforded them on all proper occasions.

4. Appellate Courts should point out to lower Courts errors and irregularities.—It is very desirable that Appellate Courts should apart from disposing of appeals judicially, bring to the notice of subordinate Courts errors or irregularities in procedure which may be observed in the course of hearing appeals. Unnecessary adjournments; undue delay in disposing of cases; omission to hear cases on the days fixed; too harsh a use of the summary procedure allowed by law in cases in which defaults in attendance, or in producing evidence or the like, occur; failure to examine thoroughly the parties and to arrive at an intelligent appreciation of the points in dispute, and similar matters should always be brought to the notice of officers concerned in a note or memorandum separate from the judgment.

5. Presiding Officer to acquaint himself with the Rules and Orders of High Court and to exercise supervision over the staff.—Every Judicial officer is required to make himself acquainted with the law which he has to administer, and with the Rules and Orders of the High Court, and also to supervise the work of the ministerial officers attached to his Court.

6. Presiding Officers of Courts should observe regular Court hours; serious notice will be taken of habitual unpunctuality. The attention of District and Sessions Judges and District Magistrates is drawn to the necessity of seeing that the officers subordinate to them are punctual in attending Courts and to paying surprise visits, where necessary, to satisfy themselves. Periodical reports will not be made and reference to the High Court will only be required if a report about a particular officer is necessary.

7. Honorary Subordinate Judges and Magistrates should also observe regular Court hours, which should be fixed by the District and Sessions Judge and the District Magistrate in each case after consulting the Honorary Subordinate Judge and Honorary Magistrate concerned. The order of the District and Sessions Judge and the District Magistrate fixing the Court hours decided upon should be affixed to the notice board outside the Court house for the information of the public.

PART-B: Pecuniary Control

1. Responsibility of presiding officer for proper accounting and application of money and property received.—The presiding officer of every Court is responsible that the Registers and Accounts of his Court are regularly and correctly kept, and that money and property passing through his hands or dealt with under his orders, are duly accounted for and applied. Controlling officers should be careful to bring home this responsibility to officers serving under them. See also in this connection paragraph 7 of Volume I, Chapter 12-A.

2. Receipt of money orders during absence presiding officer.—It is the duty of the presiding officers of Courts to make adequate arrangements for the receipt of money orders during their absence on casual or vacation leave and they will be held responsible for seeing that money so received is duly brought to account in the treasury.

3. Prohibition against receipt of cheques from private persons.—Presiding officers are prohibited from accepting cheques from private persons in lieu of cash as cheques are not legal tender. The Imperial Bank can accept cheques on clearing banks only for credit of Government account.

4. Supervision of pecuniary transactions by controlling officers.—Special vigilance is necessary in supervising the pecuniary transactions of the Courts, and the accounts and registers of subordinate Courts should be frequently and carefully inspected by controlling officers.

5. Defalcation in accounts or loss of public money should be reported.—(a) Whenever a defalcation in the accounts of any Court is brought to light or any loss of public money is discovered, the fact should be forthwith reported and an inquiry instituted. When the matter has been fully inquired into, a further and complete report should be submitted explaining the nature and extent of the loss and the prospects which exist of effecting a recovery of the amount, whether in part or in whole. The report should further state and the nature of the error or neglect of rules by which such defalcation was rendered possible and the names of the officers directly or indirectly responsible.

(b) Reports will be submitted by the Senior Sub-Judge, or Judge, Small Cause Court (as the case may be), through the District and Sessions Judge, and by the letter (in regard to their own Courts direct) to the High Court. Copies of such reports will also be forwarded to the Accountant-General, Punjab, when the loss involved exceeds Rs. 200 or presents important features which merit detailed investigation and consideration, as required by rule 2.34 of the Punjab Financial Rules, Volume I.

6. Directions as to receipt of money and property. Security to be taken from officials.—It should be remembered that the Government is responsible to the public for the proper application and disposal of all money and property received by public officers in the discharge of their duties as such. It is therefore desirable that money and property should in every case be received by or in the presence of a Judicial officer competent to deal with it, and that the person who delivers such money or property to the Court, or from whom it is taken in due course of law, should be granted a proper acknowledgement, on the prescribed form, signed by such Judicial officer or by a responsible officer authorized by Government in that behalf. The Government cannot hold itself liable for claims based on receipts on manuscript forms granted by unauthorized or irresponsible subordinate officials. Clerks of District Courts, Registrars of Small Causes Courts and Civil Nazir are authorized to conduct certain pecuniary transactions, under the supervision and on the responsibility of the Judicial Officer under whom they serve, but their action should be closely watched. The orders in regard to the security to be taken from all ministerial officers of the Judicial Department entrusted with duties of a pecuniary nature should be rigidly enforced. The payment of security by such ministerial officers in instalments is prohibited.

7. Cancellation of stamps. Detection of fraud to be reported to High Court.—It is the duty of the presiding officer of every Court to supervise the cancellation, according to law, of Court-fee stamps and labels attached to plaints, appeals, complaints, petitions and applications

filed in his Court or received on account of process-fees. Section 30 of the Court-Fees Act provides that no document requiring a stamp shall be filed or acted upon in any proceedings in any Court or office until the stamp has been cancelled. Cancellation is to be effected by punching out the figure head, so as to leave the amount designed on the stamp untouched, and the part removed by punching must be burnt or otherwise destroyed. The rules on the subject made by the High Court will be found in Chapter 4 of this volume. These rules must be strictly observed in order to prevent fraud. Unless labels are properly cancelled, they may be removed from the documents to which they are attached and used again. Several instances have come to light in which Court-fee labels have been removed from records, or otherwise tampered with, and controlling officers should exercise vigilant supervision in the matter. Where any frauds come to light, they should be forthwith brought to the notice of the High Court.

8. Instructions regarding deposit of moneys received by a Government servant.—Attention is drawn to Article I, Civil Account Code, Volume I, as amended by correction slip No. 8, dated the 1st April, 1935, read with Treasury Order 7, reproduced in Appendix 8-C, *ibid*, under which all moneys received by a Government servant in his official capacity as dues of Government, or for deposit in the custody of Government, must without undue delay be paid in to the Treasury on the same day or on the morning of the next day at the latest as a revenue or Civil Court deposit according to rules applicable to such deposits.

9. Responsibility for loss on account of overpayment of pay, etc.—Attention is drawn to the orders contained in Article 17 of the Civil Account Code, Volume I, under which drawers of bills and controlling officers can be called upon to make good the losses incurred by Government on account of overpayments of pay and allowances caused by lack of supervision.

PART C - INSPECTION OF SUBORDINATE COURTS

1. Monthly Inspection of subordinate Courts by District Judge and District Magistrate.—A portion of the civil and criminal work of each subordinate District Court should be regularly examined and criticized each month by the District Judge and District Magistrate, respectively, and District Magistrates and District Judges should, so far as circumstances permit, keep themselves acquainted with the working of the Courts subordinate to them, and comment on any irregularities which may come to their notice. The registers of subordinate Courts should also be periodically inspected.

2. Duty of Inspection officers to see that unnecessary adjournments are not granted.—When examining the records of subordinate Courts inspecting officers should particularly note the number of adjournments granted in any case, and the reasons for them; if it is found that adjournments are granted unnecessary, the presiding officer of the Court concerned should at once be warned, and, if the practice continues, a report should be made to the High Court.

3. Inspection by District Judge and District Magistrate in Districts not visited by Inspection Judge.—In districts not visited by the Inspecting Judge, the District Judge should inspect the Courts of Subordinate Judge, and the District Magistrate those of 1st Class Stipendiary Magistrates.

4. Inspection by District Judge and District Magistrate in districts visited by the Inspection Judge.—In regard to districts which are visited by the Inspecting Judge, the District Judge should report on those Subordinate Judges, and the District Magistrate on those 1st Class Stipendiary Magistrates outside headquarters, who are not inspected by the Inspecting Judge.

5. Forwarding of inspection notes to High Court.—The District Magistrate's inspection notes should be forwarded to the District and Sessions Judge who will forward them with his remarks to the High Court, together with his inspection notes on the Courts of Subordinate Judges.

6. Date and scope of inspection notes.—As the inspection of subordinate Courts usually takes place in the cold weather, the report should reach the High Court by the 1st May. The inspection notes, which should be as brief as possible, should be on the lines of the Inspection

Judge's notes and should be type-written.

7. High Court shall receive annual report as to work of every judicial officer.—In this way the High Court will receive annually a report on the work of each Stipendiary Judicial Officer as inspected by the Inspecting Judge, the District Judge or the District Magistrate.

8. Inspection Reports of Honorary Magistrates and Honorary Sub-Judges.—Under the existing orders of Government, the Court of every Honorary Magistrate, Bench of Honorary Magistrates, and Honorary Subordinate Judge should be inspected at least once a year by an experienced judicial officer, whose report should be submitted by the District and Sessions Judge, through the High Court, to Government. Such reports should be submitted in duplicate and with the least possible delay.

Note.—In the case of inspections of the Courts of Honorary Magistrates, sitting either singly or on a Bench, the expression “an experienced judicial officer” means either the District Magistrate, Additional District Magistrate, Sub-Divisional Magistrate, or Section 30 Magistrate. Each alternate inspection must, however, be made by the District Magistrate himself. (Punjab Government letter No. 16180-H. Judl., dated 24th April, 1935).

In addition to these annual inspections of the work of stipendiary and honorary judicial officers, which must be reported to the High Court, local officers should continue to make regular inspections of the work of such officers, which need not be reported to the High Court unless on some matter of importance.

Inspection of Tehsildars' Courts.—The orders requiring the annual inspection of Civil Courts do not, however, apply to the civil work of Tehsildars and Naib-Tehsildars who are *ex-officio* Subordinate Judges but rarely exercise these powers. It is desirable however (though not essential), that the work of those Tehsildars who do more than a normal amount of civil work should be inspected every two years or so, subject to the condition that no extra expenditure is incurred. In the case of a tehsildar who does a fair amount of civil work and is stationed at a place which it is impossible to visit without making a special journey, the special sanction of the High Court must be obtained in advance and will normally be granted, funds permitting, but not more often than once in two years.

9. Lists of suitable subjects for inquiry will be found in Chapters 2 and 3 relating to the Superintendence and Control of Civil and Criminal Courts, respectively.

10. Inspection by presiding officer.—The importance of the careful supervision of registers and pending files by presiding officers can hardly be exaggerated.

On the first working days in the months of February, May, August and November every District Judge, Judge, Small Cause Court and Subordinate Judge shall carry out regular inspection of his own Court and shall fix no judicial work for those days.

11. Submission of inspection notes.—He shall inspect in detail the work of the ministerial staff, and the registers and shall, in particular, look through the oldest files pending and see whether unnecessary delay has occurred or wrong orders have been passed. He should check all old registers preserved in his Court, report any losses that have occurred and arrange for the destruction of all registers liable to be destroyed. He shall then write a brief inspection note on the lines of an Inspection Judge's note. This note shall be submitted by the Subordinate Judge to the District Judges. The District Judge shall submit to the High Court the inspection note of his own Court. The District Judge need not submit to the High Court the inspection notes of the Subordinate Judges.

12. Work of predecessor not to be criticised.—The presiding officers shall not criticise the work done by their predecessors but shall confine their criticism to the period during which cases were dealt with by them.

13. Inability to inspect on the date fixed.—If an officer is unable to make an inspection of his own Court on the prescribed date, he shall do so as soon as possible thereafter and, in any case,

in the month in which the inspection should have been made.

PART D: REPORTS ON THE WORK OF JUDICIAL OFFICERS

1. Reports on the work of judicial officers.—The orders regarding the maintenance of character rolls do not apply to judicial officers, on whose work and character a report is submitted with the annual reports on “Civil and Criminal Justice.”

2. Reporting authorities and period covered by the report.—District Magistrates, under instructions from the Provincial Government, and District and Sessions Judges are required to forward a report on the services and character of the work performed by every judicial officer working under them during the twelve months ending on the 31st of March. It should be noted that reports are now required for the financial, and not as hitherto, for the calendar year.

3. List of officers about whom and the authority to whom reports are to be submitted.—Reports on the work of the following officers, which must be submitted in duplicate, should be forwarded to Government through the Registrar of the High Court:--

- (a) On the magisterial work of:--
 - (i) Officers of the Civil Service of Pakistan;
 - (ii) Officers of the Punjab Civil Service (Executive Branch);
 - (iii) Political Probationers of the Government of Pakistan;
 - (iv) Honorary Magistrates.
- (b) On the civil judicial work of:--
 - (i) Officers of the Civil Service of Pakistan who worked as Subordinate Judges;
 - (ii) Political Probationers of Government of Pakistan who worked as Subordinate Judges.
 - (iii) Honorary Subordinate Judges.

Reports on the civil judicial work of officers of the Punjab Civil Service (Judicial Branch) should similarly be submitted to the Registrar, High Court, for the twelve months ending on the 31st of March, and not for the calendar year. They are not required in duplicate since they are retained by the Registrar.

Reports on the magisterial work of Assistant Commissioners and Extra Assistant Commissioners originate with the District Magistrate and should be forwarded through the District and Sessions Judge, who will add his remarks on the work of the District Magistrate; those on civil judicial work with the District and Sessions Judge. They must be submitted punctually and with due attention to the instructions printed on the prescribed forms.

4. Reports about Tehsildars and Naib-Tehsildars.—Reports on the magisterial ‘Work of Tehsildars and Naib-Tehsildars should be sent by District Magistrates to Commissioners direct and not through Sessions Judge. They should not be forwarded to the Registrar of the High Court.

Reports on the civil judicial work of Tehsildars and Naib-Tehsildars, who have been invested with civil powers shall be made by the District Judge in the form of a letter addressed to the Commissioner of the Division concerned enclosing therewith the opinion of the Senior Subordinate Judge or other Subordinate Judge who has had occasion to judge the work of and express opinion on the officer concerned. These reports also need not be forwarded to the Registrar of the High Court.

5. Reporting authority to record his opinion on transfer. Report about officers who have served for less than 3 months in the districts.—Whenever a District and Sessions Judge or a District Magistrate is transferred after spending not less than six months in a district, he should

invariably leave on record his opinion of the judicial work of all officers who have worked under his control for not less than six months in the year and these opinions should be used by his successor in compiling the final report.

If an officer has served under a reporting authority for less than three months, the officer under whom he has previously served should be consulted and his opinion incorporated in the report, care being taken to indicate how far the replies to the questions are based on personal knowledge and how far on reports of other officers.

6. Reports to be kept confidential and office copies destroyed after 5 years.—With the approval of Government, it has been decided that office copies of the annual confidential reports on the work of Magistrates need not be kept by District Magistrates for more than five years, after which they may be destroyed. These orders apply also to the office copies of the annual confidential reports on the work of District Magistrates and Subordinate Judges kept by District and Sessions Judges, and also to annual reports on the work of Honorary Magistrates and Honorary Subordinate Judges. Great care should be taken to keep these office copies strictly confidential until the time comes to destroy them; they must be kept in the personal custody of District Magistrates and District and Sessions Judges and should on no account be sent at any stage to the office.

7. Forms prescribed to be used.—The revised forms prescribed for the annual confidential reports on the magisterial and civil judicial work of officers are reproduced in the annexure to this Part. These forms should be adapted, where necessary, for the submission of reports on the civil judicial work of officers of Central Civil Service, the magisterial and civil judicial work of Political Probationers of the Government of Pakistan and the magisterial and civil judicial work of Honorary Magistrates and Honorary Subordinate Judges.

ANNEXURE

Stereo F.C. No. 381-H.C.

_____ District

Confidential report on the magisterial work of Officers of the central Civil Service, i.e. Assistant commissioners and deputy Commissioners, Punjab Civil Service (executive Branch) for the year ending 31st march, 19____.

Name of officer reported on _____

Appointment held _____

C.C.S.

Total length of service in the-----

C.C.S.

Name of reporting officers (1)_____

District Magistrate.

(2)_____

Sessions Judge,

(3)_____

High Court.

District

Period spent in the-----

Sub-Division

Powers exercised {

Instructions:--

- (1) This report is (1) Sessions Judge, on April 2nd.
 due with the (2) Registrar, High Court, on April
21st
 (3) Government on June 1st. each year
- (2) If the work on which the officer is employed is specially important or arduous, the fact should be stated.
- (3) if the officer has served under the reporting authority less than three months, the officer under whom he has previously served should be consulted and his opinion incorporated in the report; care bring taken to indicate how far the replies to the questions are based on personal knowledge and how far on reports of other officers.
- (4) In writing up this report the instructions regarding commendatory letters contained in paragraph 2 of Punjab Government confidential letter No.14038 (H.-Gaz.), date 23rd April, 1928, as modified by Punjab Government letter No. 24853 (H.-Gaz.), dated 2nd October, 1933, to all Commissioners and Deputy Commissioners in the Punjab should not be overlooked.
- (5) In order to make this report more informative, reporting officers should not be content with merely giving an affirmative or a negative answer to a specific question in the form of report but should make their remarks as detailed as possible especially on the point of honesty, (Punjab Government No.9222-G.-38/1134 (H.-Gaz.), dated the 10th

January, 1939).

- (6) The reporting officer should state the period for which the officer reported on has served under him. (Punjab Government unofficial reference No.4519-G.-41, dated the 29th April, 1942).

(The report should first comment generally on the way in which the officer has carried out his various duties during the year and should give an estimate of his personality, character and abilities, making particular mention of his integrity and freedom from communal bias and his relations with the fellow officers and the general public. It should contain an opinion on any point specially required at any particular time, e.g., fitness to pass an efficiency bar.)

General remarks by:--

District Magistrate:--

Sessions Judge:---

High Court:---

S.No.	Reports on the following specific points should be added	Remarks by District Magistrate	Remarks by Sessions Judge	Remarks by High Court
1	Knowledge of law and Procedure.			
2	Is he methodical and prompt in disposal of cases?			
3	Are his judgments and Orders well-written and clearly expressed			
4	(In case of an Illaqa Magistrate).			
5	Does he make proper use of the preventive sections of the Criminal Procedure Code.			
5	(For District Magistrates and Sub-Divisional Officers only).			
	Is his supervision of the work of and control over the subordinate Magistrates good?			

Confidential report on the civil judicial work of officers of the
Central Civil Service i.e., Assistant Commissioners
Punjab Civil Service (Judicial Branch)
 for the year ending 31st March 19____.

Name of officer reported on _____

Appointment held _____

C.C.S.

Total length of service in the-----

P.C.S.

Name of reporting officer _____

District and Sessions Judge

Period spent in the _____ District

Powers exercised {

Instructions:--

- (1) This report is due with the Registrar, High Court, on April 2nd, each year.
- (2) If the work on which the officer is employed is specially important or arduous, the fact should be stated.
- (3) If the officer has served under the reporting authority less than six months, the officer under whom he has previously served should be consulted and his opinions incorporated in the report; case should be taken to indicate how far the replies to the questions are based on personal knowledge and how far on reports of other officers.
- (4) In order to make this report more informative, reporting officers should not be content with merely giving an affirmative or a negative answer to a specific question in the form of report but should make their remarks as detailed as possible especially on the point of honesty.

S.No.	Heads under which information is required	Remarks by the District and Sessions Judge	Remarks by High Court
1	Knowledge of law and procedure		
2	Is he industrious and prompt in the disposal of cases?		
3	Is his supervision of the distribution of business among, and his control over, the Subordinate Court good? (for Senior Sub-Judges only).		
4	Is he an efficient Subordinate Judge?		
5	He has maintained a reputation for honesty and impartiality during the period under report? (Give reasons for your answer if it is negative or doubtful).		
6	Is he fit for the exercise of any enhanced powers? If so which?		
7	Is he fit to cross the Efficiency Bar? (This question need only be answered when it is expected to arise during the year following the report).		

PART E – ASSUMPTION AND RELINQUISHMENT OF CHARGE OF APPOINTMENTS BY JUDICIAL OFFICERS

1. Report of assumptions and relinquishment of charge.—The assumption and relinquishment of charge of judicial appointments should invariably be reported to the High Court and the Accountant-General, Punjab without delay.

2. Relieving officers should see that public money and property is duly taken over.—Relieving officers should in all cases satisfy themselves, at the time of taking over charge, that all public money or property (including books supplied) pertaining to the office or in the custody of the officer relieved or the ministerial officers of his Court, is duly taken over and accounted for.

3. Transfer of charge report and key of the safe.—When a District and Sessions Judge is transferred, the transfer of charge report sent to the High Court should contain a note stating that the key (and the Treasurer's receipt for the duplicate key) of the iron safe provided for the custody of Wills has been taken over by the relieving officer.

4. Relieving Officer's responsibility for deficiency.—Unless the relieving officer reports, at the time of taking charge, that any money or property is deficient, he will be held responsible for the deficiency.

5. Certificate to accompany the relinquishing charge report.—Relinquishing charge report submitted to the High Court by District and Sessions Judge, Judges and Registrars of Courts of Small Causes, and Subordinate Judges should invariably be accompanied by certificates to the effect that they have written judgments in all cases in which they had heard arguments.

6. Cases in which charge reports to be submitted to Government.—On the posting or transfer of a District and Sessions Judge, an Additional District and Sessions Judge, an Assistant Sessions Judge, a Judge or Registrar of a Court of Small Causes, or an Assistant Commissioner undergoing judicial training, a charge report will also be submitted promptly to the Chief Secretary to Government, Punjab.

PART F --- ACQUISITION AND DISPOSAL OF IMMOVABLE AND OTHER VALUABLE PROPERTY BY JUDICIAL OFFICERS AND THE SUBORDINATE CIVIL COURTS' ESTABLISHMENT

1. Rules governing acquisition of immovable property.—Rules relating to the acquisition and disposal of immovable and other valuable property by Government servants are contained in Rules 8, 9 and 10 of the Government Servants Conduct Rules, 1925, which are reproduced below:--

"8. Buying and selling houses and other valuable property.—Save in the case of a transaction conducted in good faith with a regular dealer or permitted under Rule 9, a Government servant who intends to transact any purchase, sale or disposal by other means of movable or immovable property exceeding in value Rs. 200 with a Pakistan residing, possessing immovable property or carrying on business within the local limits of the official authority of such government servant, shall declare his intention to the Provincial Government. The declaration shall state fully the circumstances, the price offered or demanded and, in the case of disposal otherwise than by sale, the method of disposal, and the government servant shall thereafter set in accordance with such orders as may be passed by the Provincial Government:

Provided that a government servant who is about to quit the local limits of his official authority may, without reference to the Provincial Government, dispose of any of his movable property by circulating lists of it among the public generally or by causing it to be sold by public auction.

"9. Holding or acquiring immovable property.—(1) No government servant domiciled outside Asia shall, save in good faith for the purpose of residence, directly or indirectly hold or acquire immovable property:--

- (a) within the province in which he is employed or within any province with the administration of which he is concerned or within a State in India in which he is employed; or
- (b) within any other province, except with the previous sanction of the Provincial Government; or
- (c) within any other State in India, except with the previous sanction of the Governor-General in Council.

(2) No government servant domiciled in Asia shall, save in good faith for the purpose of residence, acquire any immovable property in India by purchase or gift, except with the previous sanction of the Provincial Government.

“10. *Control over immovable property held or acquired by the Government servants.*— Subject to the provisions of any general or special order of the Provincial Government, every government servant or candidate for Government service shall make to the Government concerned, through the usual channel, a declaration of all immovable property in India from time to time held or acquired by him or by his wife or by any member of his family living with, or in any way dependent upon him. The declaration shall state the district or the State in India within which the property is situated and shall contain such further information as the Provincial Government may by general or special order require.”

2. Acquisition of property for making profit amounts to misdemeanour.—In connection with the acquisition of immovable property for *bona fide* residential purposes it has been pointed out by the Secretary of State, in his Despatch No. 13-Services, dated the 29th March, 1928, that if a person who is employed or concerned, in the collection of revenue or the administration of justice buys one or more properties for the purpose of making a profit by selling or letting it to others, he is guilty of a misdemeanour; and Provincial Governments and authorities empowered by Provincial Governments in this behalf, have been warned against the exercise of the discretion given by Rule 9 of the Government Servants Conduct Rules, 1935, in such a way as to give their sanction to a misdemeanour. The previous sanction of the Punjab Government, or the authorities empowered by the Punjab Government in this behalf, must, therefore, be obtained in all cases of acquisitions of property by Government servants, whether for residential or other purposes, in order that the sanctioning authority may satisfy itself that the proposed action of the Government servant, in acquiring land or other property, would not amount to a misdemeanour.

[Punjab Government Circular endorsement No. 28656 (H-Gaz.), dated the 9th October, 1928]

3. Previous sanction of the Hon'ble Judges to be obtained for acquisition of property.—Attention is drawn to the fact that although Rule 9 of the Government Servants Conduct Rules, 1935 does not prohibit the acquisition of property for *bona fide* residential purposes, Subordinate Judge and all judicial establishments are bound to obtain the previous sanction of the Honourable Judges in all cases of acquisition of property, whether for residential or other purposes, the purposes of acquisition being clearly stated in application. Indian Civil Service officers and officers holding “listed” posts serving in the Judicial Department must obtain the sanction of the Punjab Government through the High Court.

Note: Power to convey sanction in the cases of Subordinate Judges and judicial establishments has been vested in the Hon'ble Judges [Punjab Government Notification No. 21175 — Home Department — Gazette — Powers, dated the 17th July, 1928].

4. Mortgages of a permanent nature on immovable property require previous sanction.—For the purposes of Sub-Rule (2) of Rule 9 of the Government Servants Conduct Rules, 1935, the Punjab Government has decided that the term “immovable property” includes a mortgage of a permanent nature, and, therefore, the acquisition of such a mortgage requires the previous sanction of the competent authority. A “mortgage of a permanent nature” is one in which there is no likelihood of the mortgaged property being redeemed by the mortgagor. Each case of

this kind will be dealt with on its merits, and normally permission will be given. Where, however, there are suspicious circumstances, *e.g.*, such as might suggest that undue influence had been brought to bear, or the conditions of the mortgage are unusually favourable to the mortgagee or, if the mortgaged land is in the district in which an officer is serving or has recently served, permission will normally be refused.

[Punjab Government Circular letter No. 19431 (H—Gaz.), dated the 21st May, 1935, and No. 7990-A.G. 36/1940 (H—Gaz.), dated the 18th January, 1937.]

5. Annual declarations of immovable property.—(a) The Punjab Government has decided that the declaration referred to in Rule 10 of the Government Servants Conduct Rules, 1935, should be in accordance with Punjab Universal Form No. 76-A, which is as under:--

**DECLARATION BY _____ OF THE IMMOVABLE PROPERTY HELD BY
HIM AND MEMBERS OF HIS FAMILY**

Notes: (1) All interests in land of a permanent nature, whether ownership, mortgage, or hereditary occupancy, should be entered; also dwelling houses.

(2) Members of a family include the wife, sons, father, brothers, or nephews of the Government servant.

(3) Particulars in regard to family holdings should be indicated separately.

In what district, Tehsil, Police Station and village or town situated	Description of holding, with area, value and assessment	How and when acquired (<i>e.g.</i> by inheritance, gifting, purchase, etc.) and in whose ownership registered	REMARKS
1	2	3	4

(b) The Punjab Government has decided that Rule 10 of the Government Servants Conduct Rules, 1935, does not provide Government with sufficient information in regard to its officers' territorial connections or local interests, and has ruled that, so far as the officers serving in the Judicial Department and the subordinate Civil Courts' establishments are concerned, acquisitions of immovable property in India by the wife, sons, father, brothers or nephews of a Government servant must in all cases be declared in accordance with the said rule 10.

[Punjab Government circular letters No. 33882 (H—Gaz.), dated the 17th November, 1926, as substituted, No. 18732 (H—Gaz.), dated the 20th June, 1934, and letter No. 8804-G-39/6664, dated the 10th February, 1940].

(c) The Punjab Government has also decided that every such officer and member of the subordinate Civil Courts' establishment should write up his declaration annually or record certificate thereon that there have been no additions to his immovable property during the previous year or to that or his relatives referred to in the preceding sub-paragraph (b) [Punjab Government circular letter No. 27850 (H—Gaz.), dated the 11th August, 1932, as substituted, and Punjab Government letter No. 8804-G-39/6664, dated the 10th February, 1940]. Each District and Sessions Judge will therefore, submit to the High Court not later than the 1st February each year the prescribed declarations in respect of himself and of all judicial officers serving in his Sessions Division. He will obtain the declarations of members of the subordinate Civil Courts' establishments serving under his control and keep them with the service books or the character rolls of the persons concerned.

6. The Punjab Government have decided that *benami transactions* in which Government servant appears as the nominal purchaser should also be reported to Government or the authorities competent to sanction such acquisition, and sanction obtained from them in accordance with the orders in paragraphs 2 to 4. Any acquisitions of property which a Government servant makes in

another's name should also be similarly reported. All such transactions should also be shown in the annual declaration mentioned in paragraph 5.

[Punjab Government Circular letter No. 6123-G-40/40509 (H—Gaz.), dated the 15th October, 1940.]

PART G --- POSITION OF ADDITIONAL DISTRICT AND SESSIONS JUDGES

1. It has been brought to the notice of the Judges that some misunderstanding exists regarding the position of Additional Judges in relation to the District Judge of the District to which they are attached. To remove this misunderstanding, they consider it necessary to bring to the notice of Additional Judges and Additional Sessions Judges the exact position which they occupy both in administrative and in judicial matters.

2. **Additional Judge is subordinate to District Judge in administrative matters.**—In administrative matters, the position of the District Judge is defined in Section 33 of the Punjab Courts Act, 1918. Subject to the general superintendence and control of the High Court, the District Judge is to have control over all Civil Courts under that part of the Act and within the local limits of his jurisdiction; and the Court of an Additional Judge is included among such Courts by the earlier Section 18. It follows that for purposes of administrative control such as the grant of casual or other leave, appointment of ministerial staff and general discipline, the Additional Judge is subordinate to the District Judge; and that all correspondence with the High Court should ordinarily be addressed through the District Judge.

3. **District Judge may assign any of his judicial functions to the Additional Judge.**—In judicial matters, Section 21 of the Act provides that an Additional Judge shall discharge any of the functions of a District Judge which the District Judge may assign to him; and by Section 34 of the District Judge may distribute civil business among the Courts under the control in such manner as he thinks fit. Once the functions of a District Judge have been assigned to an Additional Judge, the Additional Judge exercises, in the discharge of those functions, the same powers as the District Judge himself. It is only in respect of the functions actually assigned to him, however, that the Additional Judge enjoys these powers; and the functions so assigned, will, as a general rule, be purely judicial functions.

4. **Position of Additional Sessions Judge.**—There is no similar statutory provision defining the administrative position of Additional Sessions Judges; but their position is analogous to that of Additional Civil Judges and they should be regarded as under the general control of the Sessions Judge. By Section 193 of the Code of Criminal Procedure, the Sessions Judge is empowered to make over cases to them for trial.

5. **Additional Judge to be acquainted with the orders passed by the District Judge.**—All officers who may be posted from time to time as Additional Judges or as Additional Sessions Judges may be made acquainted with these orders by their District and Sessions Judges.

CHAPTER 2

SUPERINTENDENCE AND CONTROL — CIVIL COURTS

PART A — SUPERINTENDENCE AND CONTROL

1. Controlling authority.—The general superintendence and control over all Civil Courts (other than the High Court) is vested in and all such Courts are subordinate to the High Court.

Subject to the general superintendence and control of the High Court, every District Court has control over all other Civil Courts in the District (Section 33 of the Punjab Courts Act, 1918).

Courts of Small Causes are subject to the administrative control of the District Court, and to the superintendence of the High Court (Section 28 of the Provincial Small Causes Courts Act IX of 1887).

2. Control over establishments of Civil Courts.—The powers of appointment and punishment of the ministerial and other establishments of Civil Courts are regulated by Section 36 of the Punjab Courts Act, 1918, and by rules to be made by the High Court with the previous approval of the Provincial Government under Section 241 of the Government of India Act, 1935. Until these rules are published the existing Rules contained in Chapter 18, Rules and Orders, Volume 1, remain in force.

3. Control over process-serving establishment.—Under rules framed by the High Court with the previous approval of the Provincial Government under Sections 20 and 22 of the Court-Fees Act, 1870, the establishment employed for serving and executing processes issued by all Civil, Criminal and Revenue Courts, is subject to the control of the High Court. Their conditions of service are regulated by the rules mentioned in the preceding paragraph.

4. Control over establishments dealing with civil work.-- The establishments of officers who exercise civil powers conferred upon them under Section 28 of the Punjab Courts Act, 1918, but are also invested with revenue or criminal powers, are under the control of Deputy Commissioners acting under the orders of Commissioners and the Financial Commissioners. District Record Officers being under the control of Deputy Commissioners, the establishments attached to them are also under the control of Deputy Commissioners. The rule laid down by the Government on the subject is that:--

“Where it is not specially provided otherwise by law, the control of all classes of district establishments rests with the Deputy Commissioner and District Magistrate of a district as such, and that in regard to such matters, where it is not otherwise especially provided by law, the superior officer of the Deputy Commissioner and District Magistrate is the Commissioner of the Division (No. 896, dated Lahore, 14th November, 1891 (H.—Genl), from officiating Chief Secretary to Government, Punjab and its Dependencies, to the Registrar of the Chief Court.)

5. Fixing of cases during casual leave of Sub-judges.—It has been found that some Subordinate Judges fix dates for proceedings which fall within the period for which they intend to apply for casual leave. This procedure necessarily leads to adjournments and consequent hardship to litigants. All Subordinate Judges should therefore submit their applications for casual leave well in advance of the time at which they intend to proceed on casual leave; and in so doing, they should arrange, whenever this is practicable, and no cases are fixed for hearing the period for which they intend to be absent.

6. Circular Orders issued by District Judges.—Whenever a District Judge proposes to issue a circular order to the Civil Courts subordinate to him dealing with judicial matters (other than mere office routine such as the distribution of work), he must send a draft of the proposed circular to the High Court for approval and may not issue it until such approval is obtained.

PART B – INSPECTION OF SUBORDINATE COURTS

The following instructions regulating the inspection of subordinate Courts are issued with the approval of the Provincial Government:--

1. Power of High Court to frame rules for inspection of lower Courts.—Section 33 of the Punjab Courts Act, 1918, vests the power of controlling the Civil Courts of each district in the District Judge; and under Section 22 of the Government of India Act, 1935, the High Court has the power of framing rules for the inspection of subordinate Civil Courts and for the supervision of their working.

Note: This power of control includes the right of calling for and inspecting the records of all such Courts (including Small Cause Courts) and of commenting on any irregularity of procedure or other impropriety for the guidance of the officers concerned.

2. Chapter I-C containing general instructions.—General instructions for the inspection of subordinate Civil Courts will be found in Chapter I, Part C.

3. Scope of inspection.—The annexed list of subjects for inquiry is intended for the assistance of officers making such inspections. It is not meant that inspections should be confined to the matter herein prescribed, nor that each inspection made should embrace all the topics mentioned.

4. Annual inspection of their own Courts by District Judges.—District Judges should inspect their own records and Registers and the Nazirs' registers of each district at least Once a year.

5. Surprise inspection to check cancellation of Court-fee stamps.—With a view to preventing fraudulent use of Court-fee labels, District and Sessions Judges and Judges of Courts of Small Causes should make surprise inspections of their record rooms at least once a year to see that the instructions regarding the checking, second punching and cancellation, etc., of Court-fee labels as prescribed in Chapter 4-C of this volume are strictly followed by the official concerned.

The report on the inspections should not ordinarily be forwarded to the High Court unless it discloses some matter of importance requiring notice by the Honourable Judges.

Memorandum of point to be attended to by Inspecting Officers

Part I – General

1. State of Court-house.—Report on the state of the Court-house, whether it is in good repair and properly kept and provides adequate accommodation. Notice especially the state of the record-rooms and the Nazirs' *malkhana*.

2. Library.—Notice whether the Subordinate Judges' libraries are in good order and under whose charge each library is and generally whether the provisions of Chapter 18 of this volume are complied with. Note how far each subordinate Court has been furnished with the minimum library prescribed by the High Court. In inspecting other Courts at the headquarters of the district and Courts at out-stations, notice whether books of reference are sufficient and whether files of circulars are complete.

Correction slips.—See that correction slips have been duly pasted in their proper places.

3. Accommodation for the bar.—Report on the arrangements of the Bench, and whether the accommodation for the Bar is sufficient, and the separation of its members from the bench complete.

4. Court establishment.—Is the Court establishment sufficient and capable? Are there any unpaid candidates and, if so, have the rules issued by the Provincial Government and the High Court on the subject been complied with?

Part II — Civil Registers

1. Register I.—Examine Register No. I (Register of Civil Suits) and check columns 13 to 18 with at least ten records of decided suits still in Court.

Note whether column 16 appears in any case to have been filled in before judgment has been written, and whether columns 19 to 28 are kept up-to-date.

2. Register X.—Examine Register No. X (Execution of decree), noting whether decrees are promptly executed, and whether realisations bear or fair proportion to sums in execution. Check some of the entries in column 19 (noting how many) with records still in Court, and state whether the officials of the Court appear in any case to be answerable for any default.

3. Register XI.—Ascertain from Register No. XI (Objections in cases of execution of decree) whether objections are properly and promptly disposed of.

4. Registers VI and VII.—Examine Register Nos. VI (Miscellaneous petitions and applications) and VII (Applications to sue as a pauper) with a similar object.

5. Register IX.—Examine Register No. IX (Dates fixed for the trial of suits and for cases of execution of decree), and trace a few cases not yet consigned to the record-room through their various stages, noting whether adjournments are unnecessarily granted, and whether cases are regularly called up for hearing on dates fixed and action taken. Is it the custom in the local Courts to enter cases of execution of decree in this register?

6. Others.—Examine the other civil registers. State whether they are neatly and properly kept, and note whether errors and omissions noticed at previous inspections have been corrected and supplied.

Part III - (a) Regular Suits

1. In whose custody is the bundle of pending records? Is it neatly kept and arranged according to date?

2. What was the total number of institutions of the previous year?

3. What is the number of the suit last instituted?

4. Has there been any noticeable increase or decrease in litigation during the past twelve months; and, if so, what is the cause assigned for it?

5. On what dates were the five oldest undecided suits instituted?

6. Do the records of those suits show any unnecessary delay in their decision?

7. Take out ten records at random, and note whether the proceedings disclose any noticeable irregularity or unnecessary delay.

8. Is a day reserved for execution work? Are execution cases attended to properly by the presiding officer? Are all orders except purely routine orders written by him?

(b) Execution of decrees

1. In whose charge is the bundle of pending records?

2. Is it neatly kept and arranged to date?

3. How is it kept (that is, by tehsils or only chronologically)?

4. What was the total number of execution of decree cases last year?

5. How many applications as have been filed this year up-to-date?

6. If decree-holders are unusually active or passive, note the cause.

7. What was the proportion of realization of the amount sought to be realized in execution of decrees?

8. Examine ten of the records taken at random, and note whether the proceedings show any noticeable irregularity or unnecessary delay.

9. Does the presiding officer complain of anything which causes his execution file to be unduly encumbered?

(c) Miscellaneous cases

1. In whose charge is the bundle, and is it neatly and properly kept?

2. How many cases were dismissed in default and how many were decreed *ex parte*? How many out of these were subsequently restored? Ascertain by examination of a few records if the reasons for dismissal, *ex parte* proceedings and restoration were satisfactory.

3. Examine three cases at random, and note whether they show any unnecessary delay.

(d) General

Ascertain whether decided cases of each kind are sent punctually into the record-room; and note any instances there may have been of undue delay, and the cause assigned for the same.

Part IV – (a) Nazir

1. Check the registers of receipts and repayments of deposits, and note whether there are any deposits of long-standing date.

2. Examine Register No. XXIII (Processes served by each peon), and note whether the distribution of work is fair. Are any of the process-servers employed on other than their legitimate duties?

3. Are there any complaints against any of the establishment on account of inefficiency due to age of any other cause?

4. Does the staff appear sufficient, or in excess of requirements?

5. Examine Miscellaneous Register H (Miscellaneous proceedings received from other Districts and Courts), and ascertain from the entries in columns 3, 6 and 8 whether unnecessary delay occurs in the disposal of references.

6. Examine Miscellaneous Register K (Property received into the Nazir's store room) carefully, and check the correctness of the entries in column 4 by an examination of at least twelve bundles taken at random. Are the arrangements of the *malkhana* satisfactory as regards the preservation of the property stored therein? What officer of the headquarters staff is in charge of the *malkhana* (Rule 4, Chapter 10 of this volume) and are the requirements of that and the other rules herein contained carefully carried out?

(b) Copyists

Who is the officer placed in charge of the copyists' department? Examine Miscellaneous Register E. (Applications for copies), and note particularly whether unnecessary delay occurs in the preparation of copies (columns 6 to 9). Are they any claimed copies in the copyists' hands? Are the directions contained in Chapter 17 of this volume carefully followed?

(c) Records

1. Are the records properly kept and promptly furnished as required for purposes of inspection?

2. Are the Record-Keepers' Registers, No. XV—Civil (General Register of suits and appeals disposed of), No. XVI—Criminal (General Register of decided cases) and Miscellaneous

Register D (Of files taken from the record-room for reference) properly kept?

3. Are the stamps in the records properly punched according to the orders in force?
4. Are the instructions contained in Chapter 16 of this volume, for the preparation of an index of papers in judicial proceedings, observed?

(d) Petition-writers

Are the Petition-writers' Registers properly maintained (Volume I, Chapter 17)?

(e) Pleaders and Mukhtars

Is the Register of Pleaders and Mukhtars required by Volume V, Rules and Orders, Chapter XIV, duly maintained?

Part V – Inspection of Civil records

In examining the records of pending or decided cases, note especially the following points:---

(a) Original suits

1. **Verification and stamping of plaints.**—The attestation and verification of plaints; the proper stamping of plaints, and the proper cancellation of stamps.
2. **Summons of defendant.**—Whether sufficient time is apparently granted for the defendant's appearance, and whether the issue of summons for final disposal is largely or improperly resorted to.
3. **Service of process.**—Does the presiding officer pay personal attention to service of processes?
4. **Adjournments.**—Are suits heard from day to day? Are adjournments granted without sufficient cause or without examining witnesses who are present?
5. **Proof of service.**—Whether proper proof of service has been taken before a case is heard *ex parte*.
6. **Setting aside *ex parte* orders.**—Where cases dismissed in default or decreed *ex parte* are submitted without notice to the opposite side, or without inquiry into the merits of the application for re-admission of the case to the register.
7. **Documents.**—Are documents produced at the proper time with the prescribed lists? Are parties examined about the documents they wish to produce or rely on the prescribed forms at the first hearing?
8. **Documents.**—Are documents admitted in evidence duly marked as exhibits, endorsed and stamped in accordance with the High Court instructions? Are documents not admitted in evidence returned promptly?
9. **Abstract of orders.**—Is the chronological abstract of orders regularly and correctly kept up?
10. **Drawing up decrees.**—Are decrees carefully drawn up and do they faithfully embody the decision arrived at in the judgment? Is that portion of the decree which specifies the relief granted recorded by non-English speaking Judicial officers with their own hands? Are costs correctly ascertained and apportioned in conformity with the judgment?
11. **Arbitration.**—Are submissions to arbitration inordinately frequent, and are the requirements of the law in reference to arbitration duly observed?
12. **Commissioner.**—Is the resort to Commissions for local inquiry or for the examination of accounts too frequent? Are the rules published in Volume I, Chapter 10, properly observed? Is

the evidence taken by a Commissioner filed with his report? Is he subjected to examination by the Court, and is the Court's decision ever based exclusively on the Commissioner's report?

Review of judgment Are reviews of judgment frequently applied for, and, if granted, are the grounds of admissions sufficient? Is due notice to show cause against application being granted given to the opposite party?

Rejection and return of plaints.—Is the rejection and return of plaints frequent? And does it appear from Register No. VIII (Rejected and Returned Plaints) that the grounds for rejection and return are adequate?

Pauper applications.—Are applications to sue in *forma pauperis* numerous? Is the enquiry into the alleged poverty of the applicant made by the Court itself or delegated to a tehsildar? Does the Deputy Commissioner receive notice of the application and does he take any (and, if so, what) steps to protect the interests of Government?

(b) Appeals

1. **Stamps.**—Are appeals properly stamped and the stamps duly cancelled?
2. **Memoranda of appeal.**—Are the memoranda of appeal concisely drawn and accompanied by copies of the decrees appealed against?
3. **Dismissal in limine.**—Are the provisions of Order XLI, rule 11 of the Code of Civil Procedure, observed in a fair proportion of cases, or is the respondent invariably summoned?
4. **Judgments.**—Does the judgment in appeal conform with the requirements of Order XLI, Rule 31 of the Code of Civil Procedure.
5. **Remands.**—Are remands frequent? Are they based on adequate grounds and in accordance with law?
6. **Order 41, rule 11.**—Is a decree framed in appeals rejected under Order XLI, rule 11?
7. **Decree.**—Does the decree embody the grounds of appeal?

Part VI — General

General.—Make any suggestions which, in your opinion, would simplify the registers, etc., and which would facilitate the action of the Courts.

CHAPTER 3

SUPERINTENDENCE AND CONTROL – CRIMINAL COURTS

PART A – CONTROL

1. Controlling authority.—In regard to the criminal administration, all Criminal Courts are subordinates to the High Court.

Every Magistrate, other than the Magistrate of the District, is subordinate to the Magistrate of the District for all purposes, including that of administrative control. A Sub-Divisional Magistrate has similar powers of control over other Magistrates in his sub-division.

2. Control of Sessions Judge over District Magistrate and other Magistrate.—Magistrates are subordinate to the Sessions Judge “to the extent and in the manner expressly provided in the Code”. (Section 17, Criminal Procedure Code).

District Magistrate should comply with all requisitions for records, returns and information made by Sessions Judges with regard to any case appealable to the Court of Session by the District Magistrate or by other Magistrates or referable by that Court to the High Court, whether decided district, or made by Sessions Judges under orders of the High Court in the exercise of their duty and superintendence over the subordinate Courts. They should also render any explanation which Sessions Judges may require from them, and obtain and submit any explanation which Sessions Judges may require from subordinate Magistrates in order to assist the Appellate Courts in respect of the classes of cases above-referred to.

3. Subordination of Magistrates to Sessions Judge.—Though Magistrates are not subordinated to the Sessions Judge in purely administrative matters, by express administration, the ordinary official channel of communication between them and the High Court, and is required, moreover, to see that the Rules and Orders of the High Court enactment, the latter is, in all matters relating to the criminal are duly carried out within his Sessions Division, and to bring to notice any matter requiring attention.

4. Circular orders issue by District Magistrate.—Whenever a District Magistrate proposes to issue a circular order to the Magistrates subordinate to him dealing with judicial matters (other than mere office routine such as the distribution of work), he must send a draft of the proposed circular to the High Court for approval and may not issue it until such approval is obtained.

No circular addressed to Magistrates, concerning a routine matter, should contain orders to the police or Prosecuting Agency, as these can be issued separately.

5. Duty of District Magistrate about proper administration of criminal justice.—The following instructions to District Magistrates are issued with the full approval of the Governor:—

(1) No functions of the Deputy Commissioner can be permitted to override the proper administration of Criminal Justice, and the Deputy Commissioner should fully recognise that his duties as Chief Magistrate of the District must be given the foremost place. The peace and good order of districts depend on District Magistrates taking an active personal interest in all matters affecting the criminal administration. In order to supervise and control subordinate Criminal Courts efficiently, it is necessary that the District Magistrate should keep himself aware of the state of crime in all parts of his district, and should be in daily touch with the course of criminal business in the Courts.

(2) **District Magistrate to hear sufficient appeals to keep himself fully occupied.**—There are, from time to time, numerous occasions on which the District Magistrate can satisfy himself as to the state of business in any Court and the quality of the work done by the Presiding Magistrate. Apart from his periodical inspection of Courts, the District Magistrate, even in those districts where another officer has been invested with appellate powers, must arrange to hear sufficient appeals to keep himself fully acquainted with the quality of the work of all Courts in the

district over which he has appellate powers. It is not possible for a District Magistrate to get a real acquaintance with the work of the subordinate Magistrate unless he hears appeals from them.

(3) **District Magistrate must try original cases.**—No practical experience of the difficulties of the subordinate Magistrates can be granted until the District Magistrate hears cases himself., and as long as the Deputy Commissioner remains the head of the magistracy he should be a Magistrate in fact as well as in name. The Judges attach great importance to the District Magistrate's taking a considerable share in the actual magisterial work of their district in the way of trying original cases. In certain districts the increasing amount of executive and other work renders it impossible for the District Magistrate to take the same share in the trial of cases as he used to take, some years ago, but there are many smaller districts where he can still do so, and even in the larger districts it is impossible for the District Magistrate to exercise the necessary control over the subordinate Courts unless, by the occasional hearing of important cases, he maintains that technical acquaintance with the difficulties of Courts; which is necessary for satisfactory control.

(4) **Scrutiny of monthly statements of criminal work by the District Magistrate.**—The District Magistrate should himself scrutinize with care, the monthly business returns and satisfy himself from them, not only that the outturn of work is sufficient and the business of the Court well in hand, but also that the quality of the work is satisfactory.

(5) **Daily supervision by District Magistrate.**—The methods described above afford only an occasional method of controlling criminal administration, and in particular the monthly business statements necessarily bring to the District Magistrate's Notice, only after long delay, the occasions on which his interference is desirable. Day to day supervision of the work of the subordinate Courts is no less an essential part of the District Magistrate's functions, and is of even greater importance than the trying of original cases and the hearing of appeals. Without this day to day supervision it is impossible for the District Magistrate to maintain that constant touch with the state of crime and of criminal business which is requisite for a proper discharge of the District Magistrate's duties. The Judges attach the greatest importance to daily supervision, which must rank as one of the primary duties of the District Magistrate.

(6) **Punctual attendance and surprise visits.**—For the business-like discharge of criminal work, it is necessary that all Magistrates should be punctual in their attendance at Court and should remain at work during the recognized office hours. It is similarly the duty of the District Magistrate to be punctual in his own attendance at Court; and without punctuality on his part punctuality in the subordinate Courts and in the Bar is not to be expected. In order to maintain a check on the punctual attendance of Officers every District Magistrate should make surprise visits to the Court of each subordinate Magistrate at headquarters as laid down in Chapter 1-A, Paragraph 2. Volume III, Rules and Orders of the High Court.

(7) **Police Register and its use by the District Magistrate.**—A convenient and valuable source of information for the adequate supervision of criminal business is the Police Department English register of cognizable offences mentioned in the Police Rule 24.9. This register is placed before, the District Magistrate on each working day when he is at district headquarters. It gives information not only of the action of the Police (thus enabling the District Magistrate to superintend their work) but also affords the means of watching the progress and the results of business in Court. The practice of merely initialing this register after a hasty glance at it too commonly prevails, but a few minutes each day spent on considering the entries for the day and for preceding days will enable the District Magistrate to maintain a close touch with all branches of the criminal administration. The entries for day bring to light at once the orders of Courts which are *prima facie* unsatisfactory and which require the scrutiny of the District Magistrate. The register, therefore facilitates the making of references to the High Court, and puts the Deputy Commissioner in a position at the earliest possible moment to initiate proceedings by way of appeal. It can also be used to disclose cases which have been pending for an inordinate time.

(8) **Deputy Commissioner as head of prosecuting agency.**—The Deputy Commissioner is the head of the prosecuting agency in the district and this affords him a further opportunity of

keeping in touch with the work in all Courts. It is easy for him to arrange to be informed by the prosecuting agency each day of any omission on the part of Courts to record the evidence of witnesses produced and to investigate promptly any complaint which may be made of dilatoriness in any particular Court.

(9) Inspection of under-trial section of the jail.—Another check on unnecessary and unduly long adjournments is to be found in the constant inspection of the under-trial section of the local jail. Occasional inquiries into cases which seem to call for notice will reveal whether the adjournments appear to be justified or not.

(10) System of sending up witnesses with the challan.—The Judges are strongly of opinion that it is necessary to revert to the old system of sending up all material witnesses with the Challan. This system has been resumed in some districts with very marked success, but it can be carried out only if the work of Magistrates is so arranged that they shall without delay commence the trial of Challans presented to them by the police. No excuse for not proceeding at once with a Challan should be accepted other than that the Magistrate is already engaged on another Challan, or on a complaint case in which a postponement would work genuine hardship. In such contingencies the fresh Challan should be proceeded with as soon as the Magistrate is free from the first case, and it must be impressed upon Magistrates that witnesses should be examined at once, that the trial must proceed from day to day without interruption, that charges should be framed without delay and without adjournment for the purpose of considering whether a charge should be framed or not, and that deference should not be paid to the wishes of an unready bar. If the presentation of witnesses alongwith Challan renders it impossible on any particular day to record the statements of witnesses present in complaint cases, the evidence of the latter should be recorded the first thing next morning before the business of that day is undertaken, and similarly on any succeeding day the arrears, of the previous day should be disposed of before of the previous day should be disposed of before the set work of the day. In this way it will be possible to avoid retaining any witnesses for more than two days at the utmost. Should congestion occur or be threatened, the Magistrate should apply promptly to the District Magistrate for sanction to fix one or more blank days in the week to be utilized for catching up with arrears, and the District Magistrate will find it convenient to receive each day from the Court Inspector a short memo. showing how the system is working in each of the subordinate Courts.

(11) Arrests reports, remand and completion reports.—All arrests made by the Police without warrant are reported to District Magistrates under Section 62 of the Criminal Procedure Code, and all remand orders under Section 167 passed by subordinate Magistrates are similarly reported. Both these reports should be forwarded to the Ilaqa Magistrate, who has already received the first information report. The Magistrate of the Ilaqa is, thus, in a position to know what crime is under investigation in his Ilaqa, and what cases are likely to reach his Court within the next few days. The Magistrate is responsible that the completion report under Section 173 of the Criminal Procedure Code is not unduly delayed, and his responsibility in this respect should be emphasized. He should insist on the prompt submission of the F.I.R. and of the arrest report, and he should call for the completion report from the Superintendent of Police if that report is unduly delayed. The District Magistrate should cause the Ilaqa Magistrate to realize that he is not a mere Judge whose duty it is simply to decide cases produced before him, but that he is at all times responsible for the maintenance of the peace in the area which is made over into his charge. Every effort should be made to get the Ilaqa Magistrate to take a personal interest in and gain a thorough knowledge of his own thanas.

(12) Senior Magistrates to exercise supervision in absence of District Magistrates.—The Deputy Commissioners' absence in camp must necessarily interfere with his day to day supervision of the work of the subordinate Courts, but the interference can be minimized if arrangements are made with the Superintendent of Police that the register of cognizable crime is submitted each day to the next senior Magistrate at Sadar. That Magistrate, if not exercising the powers of a District Magistrate, is not authorized to issue orders to the Police but the object is that he should bring immediately to the notice of the District Magistrate's cases in which his interference is called for, and in which magisterial records should be obtained. Similarly the

Senior Magistrate can be entrusted with the duties of securing the punctual attendance of subordinate Magistrates and of seeing that witnesses are not dismissed without their evidence being recorded or that Challan cases are not delayed.

(13) Avoiding delay in filing revisions and appeals.—Not infrequently cases have occurred where undue delay has taken place in reporting for revision the unsatisfactory orders of subordinate Courts or in moving Government to institute appeals. The delay is largely due to reliance on the monthly business statements which may not be submitted to the District Magistrate till a considerable time after the objectionable order has been passed. District Magistrates should make free use of the register of cognizable crime for these purposes, and should take prompt action in cases where such action appears necessary. Having done so, they should arrange to be informed at once of any appeal that may be made to the Sessions Court in a case which has been reported, and they must report promptly to the High Court first the fact of the appeal having been filed and later its results.

(14) Consequences of serious slackness of Magistrates.—In conclusion the Judges are authorized by Government to remind Magistrates that the stoppage of annual increments of pay is one of the remedies in cases of serious slackness. The Judges will not hesitate to recommend the application of that remedy in any instance in which they consider it to be merited.

PART B – INSPECTION OF SUBORDINATE COURTS

1. General instructions regarding the inspection of Subordinate Criminal Courts will be found in Chapter I, Part C.

2. General Instruction Sessions Judges and District Magistrates can comment on proceedings.—Sessions Judges and Magistrates of Districts are at liberty to comment on any criminal proceedings called for under Section 435 of the Criminal Procedure Code, even when there are not, in their opinion, sufficient reasons for submitting such proceedings to the High Court for revision.

Note – In calling attention to these powers, the High Court desires to impress on District and Sessions Judges and District Magistrates the great importance of the duty which thus devolves on them.

3. List of subjects for enquiry.—The annexed list of subjects for inquiry is intended to assist officers making inspections. It is not meant that inspections should be confined to the matter herein prescribed, nor that each inspection should embrace all the topics mentioned.

Memorandum of points to be attended to by Inspecting Officers

Part I – General – (a) – Registers

1. Is Register No. I (Register of cognizable and non-cognizable offences) duly maintained in conformity with the instructions contained in the column of remarks opposite that register in Chapter 24 of this volume?

2. Examine Registers Nos. II (of cases under the Indian Penal Code), III (of cases under special and local laws and under the Code of Criminal Procedure) IV (of miscellaneous criminal cases). Note whether appealable cases are correctly entered and whether any delay occurs in the disposal of cases.

3. Examine Register No. XI (of dates fixed for trial or criminal cases) and check the entries with the records of at least six decided cases, noting whether cases are, as a rule, heard on the dates fixed, or whether postponements are frequent, and when granted whether on sufficient grounds.

4. Examine Register No. XVI (of Fines) and note whether the provisions of Chapter 11 of this volume are strictly complied with. State any improvements in the system which you

inspection suggests.

5. Examine the other Registers and note whether they are correctly kept up-to-date; also the Register of summary trials, noticing whether the requirements of Chapter XXII, Criminal Procedure Code, as to record, are properly complied with.

6. Note whether errors and omissions pointed out at your last preceding inspection have been corrected and supplied.

(b) Original cases

In examining records of cases, notice specially the following points:--

- (1) Are witnesses sent with challans and are they examined promptly?
- (2) Are cases taken up from day to day? Are adjournments granted without sufficient cause or without examining witnesses who are present?
- (3) Is the complainant's statement reduced to writing in cases instituted on complaint?
- (4) Are such cases, as a rule, referred to the Police or other agency for investigation?
- (5) Are processes served by the Sheriff's establishment in all appropriate cases?
- (6) Is the evidence properly recorded and in the handwriting of the Presiding Officer?

CHAPTER 4

COURT-FEE AND STAMPS

PART A – REDUCTION, REMISSION AND REFUND OF COURT-FEE

(a) Reduction and Remission of Court-fee

In exercise of the powers conferred by Section 35 of the Court-Fees Act, 1870 [as adapted by the Government of India (Adaptation of Indian Laws) Order, 1937] the Governor of the Punjab is pleased to make the reduction and remission hereinafter set forth), namely:--

1. Application for refund of price of stamp or renewal of stamp paper.—To remit the fees chargeable on applications presented to Collector for refund of the amount paid to the Government for stamped paper which has become spoiled or unfit for use, or is no longer required for use and on applications for renewal of stamped paper which has become spoiled or unfit for use.

2. Application for purchase of salt.—To remit the fees chargeable on applications in writing relating exclusively to the purchase of salt which is the property of the Government.

3. Applications for refund value of stamp on plaint.—To direct that, when a plaint disclosing a reasonable case on the merits is presented to any civil or revenue Court in such a form that the Presiding Judge or officer without summoning the defendant rejects it, not for any substantial defect but on account of an entirely technical error in form only, and so as to leave the plaintiff free to prosecute precisely the same case in another form against the same defendant or defendants, the value of the stamp on the plaint shall be refunded on presentation of an application to the Collector of the district in which the Court is situated, together with a certificate from the Judge or officer who rejected the plaint that it was rejected under the circumstances above described, and that the value of the stamp should, in his opinion, be refunded.

4. Copies of settlement record and list of fields.—To remit the fees chargeable on:---

- (a) copies of village-settlement records furnished to land-holders and cultivators during the currency or at the termination of settlement operations;
- (b) lists of fields extracted from village settlement-records for the purpose of being filed with petitions of plaint in *Settlement Courts:

Provided that nothing in this clause shall apply to copies of judicial proceedings, or to copies of village settlement records (other than lists of field) extracted as afore-said, which may be filed in any Court of office.

5. Appeals under Sections 47 and 144, Criminal Procedure Code.—To direct that the fee chargeable on appeals from orders under Sections 47 and 144 of the Code of Civil Procedure, 1908, and on cross-objections in such appeals under the same Code, shall be limited to the amounts chargeable under Article 11 of the Second Schedule.

(Vide Punjab Government Notification No. 16406-Judl., dated the 9th June, 1933).

6. Security bonds for keeping peace.—To remit the fees chargeable on security bonds for the keeping of the peace by, or good behaviour of, persons other than the executants.

7. Application to forward a petition to the Central Government.—To remit the fee

*The term "Settlement Courts" has been to indicate "Revenue Courts" presided over by Revenue Officers conducting settlement operations.

payable under Article I, clause (c), of the Second Schedule on an application or petition presented to a Chief Revenue or Executive authority, or to any Chief Officer charged with the executive administration of a Division when the application or petition is accompanied by a petition to the Central Government and contains merely a request that petition may be forwarded to the Government.

8. Private copies.—To remit the fees chargeable under Articles 6, 7 and 9 of the First Schedule on copies furnished by Civil or Criminal Courts or Revenue Courts or offices for the private use of persons applying for them:

Provided that nothing in this clause shall apply to copies when filed exhibited or recorded in any Court of Justice or received by any public officer.

9. Application for deposit.—To remit the fees chargeable under paragraph 4 of clause (a) and paragraph 2 of clause (b) of Article 1 of the Second Schedule, on applications for orders for the payment of deposits in cases in which the deposit does not exceed Rs. 25 in amount:

Provided that the application is made within three months of the date on which the original deposit first became payable to the party making for application.

10. Application to occupy land under Government.—To remit, with reference to clause (xi) of Section 19 of the Act, the fees chargeable on applications for leave to occupy under direct engagement with the Government, land of which the revenue is settled, but not permanently, when made by persons who do not at the time of application hold the land.

11. Application for loan.—To remit the fees chargeable on applications for loans under the Land Improvement Loans Act, 1883 (XIX of 1883) or the Agriculturists' Loans Act, 1884 (XII of 1884).

12. Applications for remission or suspension of loans.—To remit the fees chargeable on applications presented to officers of land revenue for the suspension or remission of loans under the Land Improvement Loans Act, 1883 (XIX of 1883), or the Agriculturists' Loans Act, 1884 (XII of 1884).

13. Application for return of impounded document.—To remit the fees chargeable on an application made by a person to the Collector under sub-section (2) of Section 42 of the Stamp Act, 1899 (II of 1899), for the return to that person or to the Registration Officer who impounded it, of a document impounded and sent to the Collector by a Registration Officer.

14. To remit the fees chargeable on the following documents, namely:—

- (a) **Copy of charge given to accused.**—Copy of the charge framed under Section 210 of the Code of Criminal Procedure, 1898, or of a translation thereof, when the copy is given to an accused person.
- (b) **Copy of supplementary evidence after commitment given to accused.**—Copy of the evidence of supplementary witnesses after commitment when the copy is given under Section 219 of the said Code to an accused person.
- (c) **Copy of judgment and heads of charge to jury to be supplied to accused.**—Copy or translation of a judgment in a case other than a summons case, and a copy of the heads of the Judge's charge to the jury, when the copy or translation is given under Section 371 of the said Code to an accused person.
- (d) **Copy of judgment to accused in jail.**—Copy or translation of the judgment in a summons case, when the accused person to whom the copy or translation is given under Section 371 of the said Code is in jail.
- (e) **Copy of maintenance order.**—Copy of an order of maintenance, when the copy is

given under Section 490 of the said Code to the person in whose favour the order is made, or to his guardian, if any, or to the person to whom the allowance is to be paid.

- (f) **Copy supplied to accused under Section 548, Criminal Procedure Code.**—Copy furnished to any person affected by a judgment or order passed by a Criminal Court, of the Judge's charge to the Jury or of any order, deposition or other part of the record, when the copy is not a copy which may be granted under any of the preceding sub-clauses without the payment of a fee, but is a copy which on its being applied for under Section 548 of the said Code, the Judge or Magistrate, for some special reason to be recorded by him on the copy, thinks fit to furnish without such payment.
- (g) **Copies furnished to lawyers of Government.**—Copies of all documents furnished under the orders of any Court or Magistrate to any Government Advocate or Pleader or other person specially empowered in that behalf for the purpose of conducting any trial or investigation on the part of the Government before any criminal Court.
- (h) **Copies furnished to lawyers of Government.**—Copies of all documents which any such Advocate, Pleader or other person is required to take in connection with any such trial or investigation for the use of any Court or Magistrate, or may consider necessary for the purpose of advising the Government in connection with any criminal proceedings.
- (i) **Copies required by the Police.**—Copies of judgments or depositions required by officers of the Police Department in the course of their duties.

15. Application for return of document.—To remit the fee chargeable on an application presented by any person for the return of a document filed by him in any Court or public office.

16. Suit for a share of a revenue paying estate separately assessed. Copies furnished to lawyers of Government.—To direct that, when a part of an estate paying annual revenue to the Government under a settlement which is not permanent is recorded in the Collector's register as separately assessed with such revenue, the value of the subject-matter of a suit for the possession of, or to enforce a right of pre-emption in respect of, a fractional share of that part shall, for the purposes of the computation of the amount of the fee chargeable in the suit, be deemed not to exceed ten times such portion of the revenue separately assessed on that part as may be rateably in respect of the share.

17. Fraction of an anna to be remitted.—To direct that, if the amount of the fee chargeable in any case involves a fraction of an anna, the fraction shall be remitted, except where otherwise expressly provided by this notification.

18. Application for license for sale of stamps.—To remit the fee chargeable on an application for grant of a license for the vend of stamps.

19. Application for refund of fine.—To direct that no Court-fee shall be charged on an application for the re-payment of a fine or of any portion of a fine the refund of which has been ordered by competent authority.

20. Applications for certain copies.—To remit the fees chargeable on application for copies of documents detailed in clauses 4 and 14 *supra*.

21. Duty chargeable for probates, etc., of the share of a deceased member of a company.—To remit the duty chargeable in respect of Probates, Letters of Administration or Succession Certificates on the share or other interest of a deceased member of a company formed under the Indian Companies Act, 1913 (VII of 1913): provided that the said share of interest was registered in the branch register in the United Kingdom under the Indian Companies (Branch Registers) Act, 1900 (IV of 1900), and that such member was at the date of his decease domiciled elsewhere than in India.

22. Application for suspension or remission of land revenue.—To remit the fees chargeable on applications presented to officers of land revenue for the suspension or remission of revenue on the ground that a crop has not been sown or has failed.

23. Application for advice from agricultural department.—To remit the fee chargeable on applications and petitions presented to a Collector or any revenue officer having jurisdiction equal or subordinate to a Collector for advice or assistance from the Agricultural Department of the Province.

24. Fees for succession certificates, probates, etc., of the property of a State servant in certain cases and for mutation of the property.—To remit as follows the fees on the property of: (i) any person subject to the Naval Discipline Act (29 and 30 Vict. c. 109), the Army Act (44 and 45 Vict. c. 58), the Air Force Act (7 and 8 Geo. 5 c. 51) or the Indian Army Act, 1911 (VII of 1911) who is killed while on active service or on service which is a warlike nature or involves the same risk as active service or dies from wounds inflicted, accidents occurring or disease contracted while on such service and (ii) any person, being a Government servant, Civil Military, who dies from wounds or injuries intentionally inflicted (but not self-inflicted) while in actual performance of his official duties or in consequence of those duties:--

- (a) Where the amount of value of property in respect of which the grant of probates or letters of administration is made or which is specified in the certificate under Part X of the Indian Succession Act, 1925, or in the certificate under Bombay Regulation No. 8 of 1827 does not exceed Rs. 50,000/- the whole of the fee leviable in respect of that property.
- (b) Where the said amount or value exceeds Rs. 50,000/-, the whole of the said fees in respect of the first Rs. 50,000/-.
- (c) Where any property passes more than once in consequence of such deaths, to remit, in the case of second and subsequent successions, the whole of the said fees, irrespective of the value or amount of such property.
- (d) The whole of the fees chargeable on applications for mutations of names in respect of the property of persons mentioned in clauses (i) and (ii) above.

25. Copies of decrees of Courts of Baroda State.—To remit the fees chargeable on copies of decrees of civil or revenue Courts situate in the territories of His Highness the Gaekwar of Baroda forwarded to any Court in British India for execution in pursuance of the provisions of Section 44 of the Civil Procedure Code, 1908 (V of 1908).

26. Copies of proceedings under Section 37 of the Punjab Land Revenue Act.—To remit the fees chargeable on copies or orders or proceedings under Section 37 of the Punjab Land Revenue Act, 1887 (XVII of 1887), made or recorded by Collectors or other revenue officers engaged in revising a record-of-rights under a notification published in accordance with Section 32 of the said Act:

Provided that the copy is furnished for the purpose of being filed with an application or petition to a Collector or other revenue officer engaged as afore-said in revising a record-of-rights or to the Commissioner of the Division, or to the Financial Commissioner, Punjab, relating to matters connected with the assessment of land or the ascertainment of rights thereto, or interests therein, if presented previous to the final confirmation of such revision.

27. Application under Section 97 of the Punjab Land Revenue Act.—To remit the fees chargeable on applications under Section 97 of the Punjab Land Revenue Act, 1887 (XVII of 1887), made by village officers in accordance with the provisions of Rule 64 of the Rules under that Act published with the Financial Commissioner's Notification No. 142, dated the 9th November, 1909.

28. Copies of records mentioned in Chapter IV of the Punjab Land Revenue Act.—To remit the fees chargeable on copies of all *records maintained under the provisions of Chapter IV of the Punjab Land Revenue Act, 1887 (XVII of 1887), when such copies are exhibited or recorded in any Court of Justice or are received or furnished by any public officer.

29. Application for grant of fishing license.—To remit the fees chargeable on application for the grant of fishing licenses prescribed by the rules made by the Government of the Punjab under Section 3 of the Punjab Fisheries Act, 1914 (Punjab Act 11 of 1914).

30. Application to record a statement or sanction a mutation under Section 34(4) of the Land Revenue Act.—To remit the stamp duty chargeable on the following petitions under Article 1(b) of the Second Schedule:--

A petition or an application presented to a revenue officer asking him to record a statement or sanction a mutation under Section 34(4) of the Land Revenue Act, XVII of 1887, in consequence of consolidation of holdings carried out by the Co-operative Department in the Punjab.

31. Application to Municipal Notified Area or Small Town Committee or District or Cantonment Board for copy of document or to a municipal commissioner in certain cases.—To remit the fee chargeable under Article 1(a) of the Second Schedule on the applications or petitions noted below:--

- (a) Applications or petitions presented to any Municipal Commissioner under any Act for the time being in force for the conservancy or improvement of any place if the application or petition relates solely to such conservancy or improvement.
- (b) Applications or petitions presented for purpose of obtaining a copy or translation of any order passed by a Municipal, Notified Area or Small Town Committee or District or Cantonment Board or of any other document on record in the office of such a body.

32. Petitions and appeals against orders of punishment by officials in certain cases.—To remit the Court-fees chargeable under clause (c) of Article 1 or Article 11 of the Second Schedule, on petitions and appeals against orders of punishment presented under the following or rules, by officials under the administrative control of the Government of the Punjab:--

- (1) The Punjab Subordinate Services, Punishment and Appeal Rules, 1930.
- (2) Section 13 of the Punjab Land Revenue Act, 1887.
- (3) Rule 16.31 of Chapter XVI (Punishments) of the Punjab Police Rules.

33. Application made to a Magistrate a registering authority under Punjab Motor Vehicles Rules.—To remit the fee payable under Article 1(a) of the Second Schedule upon all applications made to Magistrate in his capacity as a registering authority under the Punjab Motor Vehicles Rules, 1931.

34. Application made to a Magistrate as a licensing officer under Wild Bird and Wild Animals Protection Rules.—To remit the fee leviable under Article 1(a) of the Second Schedule upon all applications made to a Magistrate in his capacity as a licensing officer under the Wild Birds and Wild Animals Protection Rules published with Punjab Government Notification No. 25157, dated the 4th September, 1934.

* Note to item No. 28.-- The register of mutation is one of the records maintained under Chapter IV of the Punjab Land Revenue Act, 1887, and no Court-fee is, therefore chargeable on a copy thereof. This item also operates to remit the fee otherwise due on a copy of the mutation proceeding when presented with an appeal against the mutation order.-- (Financial Commissioners' letter No. 4693-E. & S, dated 31st August, 1932).

35. Application by a revenue agent for renewal of certificate.—To remit the fee leviable under Article 1(b) or (c) of Schedule II on an application of petition presented by a revenue agent to the Financial Commissioners, Commissioner of the division, or Collector of the District, for renewal of his certificates.

36. Mukhtarnama or vakalatnama by a convicted criminal prisoner.—To remit the fees leviable under Article 10 of the Second Schedule to the Court-Fees Act on a Mukhtarnama or vakalatnama executed by a convicted criminal prisoner as defined in Section 3(3) of the Prisoners' Act, 1894, provided that the mukhtarnama or vakalatnama is for the purpose of preferring an appeal or application for revision in a Criminal Court.

37. Application by a lawyer to inspect Court register.—To remit the Court-fee payable on application made by legal practitioners for permission to inspect Court registers in order to trace the particulars of a suit or document.

38. Application to Debt Conciliation Boards.—To remit the Court-fee on an application made to the Debt Conciliation Board for the issue of intimation to the Civil Court.

39. To remit the fee leviable under Article 1 of Schedule II of the said Act upon all applications of grant of passports and pilgrims passes made to Magistrates and other officers empowered in this behalf in the Punjab.

“(b) Revenue Department No. 1486-St., dated the 23rd September, 1940.

In exercise of the powers conferred by Section 35 of the Court-Fees Act (VII of 1870), (hereinafter referred to as the said Act) the Governor of the Punjab is pleased to direct that the following remissions shall be made in the Punjab, namely:--

- (1) In case of fees leviable under Articles 11, 12 and 12-A of the First Schedule to the said Act, on the property of any person subject to the (British) Naval Discipline Act, the (British) Army Act, the (British) Air Force Act, the Army Act (VIII of 1911), the Indian Air Force Act (XIV of 1932) or the Indian Navy (Discipline) Act (XXXIV of 1934) who is killed or who dies as a result or wounds inflicted, accident occurring or disease contracted while on active service against an enemy, or on service which is of a warlike nature, or which, in the opinion of the Provincial Government, otherwise involves the same risks as active service; or on the property of any person in the service of the State who dies of wounds or injuries (intentionally inflicted by a person other than himself) in the actual performance of his official duties or in consequence of those duties:
 - (a) where the amount or value of property, in respect of which the grant of probate or letters of administration is made, or which is specified in the certificate under Part X of the Indian Succession Act, 1925, or in the certificate under Bombay Regulation No. 8 of 1827, does not exceed fifty thousand rupees, the whole of the fee leviable in respect of that property;
 - (b) where the said amount or value exceeds fifty thousand rupees, the whole of the said fee in respect of the first fifty thousand rupees;
 - (c) where any property passes more than once in consequence of such deaths, the whole of the said fee (irrespective of the value of amount of such property) in the case of second and subsequent successions;
- (2) In case of applications for mutation of names in respect of the property of persons mentioned in paragraph (1) above, the entire Court-fees chargeable under sub-article (b) of Article 1 of the Second Schedule to the said Act.”

(Punjab Government Notification No. 1007-St., dated the 6th July, 1940, is hereby cancelled).

“(c) Revenue Department Notification No. 181-St., dated the 11th February, 1941.

In exercise of powers conferred by Section 35 of the Court-Fees Act, 1870, the Governor of the Punjab is pleased to remit the fee leviable under Article 1 of Schedule II to the said Act on an application made by a Collector to a Court under:--

- (a) sub-section (i) of Section 61 of the Indian Stamp Act, 1899,
- (b) sub-section (4) of Section 19-H of the Court-Fees Act, and
- (c) rule 12 of Order 33 of the Code of Civil Procedure.”
- (d) Punjab Government Notification No. 1799-St., dated the 8th December, 1941.

Under Section 35 of the Court-Fees Act, 1870 as modified by the Devolution Act, 1920, it is hereby notified that in exercise of the powers to reduce or remit in the territories administered by the Governor of the Punjab all or any of the fees mentioned in the First and Second Schedules of the said Act, the Governor of the Punjab has been pleased to make the reductions and remissions hereafter set forth, namely:---

- (i) To direct that in appeal against an order under Order 21, rule 50(2) of the Code of Civil Procedure, adjudging a person as a partner of a firm against whom a decree is being executed, the fee shall be the same as in a declaratory suit, namely Rupees ten, if the fee otherwise payable exceeds that amount.
- (ii) To direct that in appeal against a personal decree under Order 34, rule 6 of the Code of Civil Procedure, when only the personal liability of the defendant and not the amount decreed is in dispute, the fee shall be the same as in a declaratory suit, namely Rs. 10, if the fee otherwise payable exceeds that amount.

(Government of India, Legislative Department, Notification No. F. 233/42-C & G (Judl.), dated the 2nd May, 1942.)

In exercise of the powers conferred by Section 35 of the Court-Fees Act, VII of 1870, the Central Government is pleased to direct in respect of the Chief Commissioner’s Province of Delhi:---

- (i) That in appeal against an order under rule 50(2) of Order XXI of the First Schedule to the Code of Civil Procedure, 1908 (Act V of 1908) adjudging a person as a partner of a firm against whom a decree is being executed, the fee shall be the same as in a declaratory suit, namely, Rs. 10 if the fee otherwise payable exceeds the amount.
- (ii) That in appeal against a personal decree under rule 6 of Order XXXIV of the First Schedule to the Code of Civil Procedure, 1908 (Act V of 1908), when only the personal liability of the defendant and not the amount decreed is in dispute, the fee shall be the same as in a declaratory suit, namely Rs. 10, of the fee otherwise payable exceeds that amount.”
- (e) Punjab Government, Revenue Department (Stamps), Notification No. 1803-St., dated the 18th October, 1943.

In exercise of the powers conferred by Section 35 of the Court-Fees Act, 1870, the Governor of the Punjab is pleased to direct that Court-fee leviable under Article 11 of Schedule I to the said Act on a probate of a will or letters of administration and Article 12 of the said Schedule on a Succession Certificate granted under the Indian Succession Act, 1925, in respect of a Government Savings Bank deposit not exceeding five thousand rupees shall be remitted.”

**PART B — DESCRIPTION OF STAMPS TO BE USED FOR DENOTING FEES
CHARGEABLE UNDER THE COURT-FEES ACT**

1. Kinds of stamps.—Section 26 provides that the stamps to be used under the Act shall be impressed or adhesive.

2. The following rules known as “The Punjab Court-fee Stamp Rules, 1934” have been made by the Punjab Government for regulating the kind and number of stamps to be used for denoting fees chargeable under the Court-Fees Act, *vide* Punjab Government Notification No. 4860-E, & S, dated the 7th August, 1934:--

- (1) **When fee chargeable less than Rs. 25.**—When in any case the fee chargeable under the Act is less than Rs. 25 and the amount can be denoted by a single adhesive stamp, such fee shall be denoted by a single adhesive stamp of the required value bearing the words “Court-Fee”. But, if the amount cannot be denoted by a single adhesive stamp, or if a single adhesive stamp of the required value is not available, a stamp of the next lower value available shall be used, and the deficiency shall be made up by the use of one or more additional adhesive stamps of the next lower values which may be required to make up the exact amount of the fee.
- (2) **When fee chargeable is Rs. 25 or more.**—When in any case the fee chargeable under the Act amounts to or exceeds Rs. 25 and the amount can be denoted by a single impressed stamp, it shall be denoted by a single impressed stamp of the required value bearing the words “Court-fee.” But, if the amount cannot be denoted by a single impressed stamp, or if a single impressed stamp of the required value is not available, an impressed stamp of the next lower value available shall be used, and the deficiency shall be made up by the use of one or more additional impressed stamps of the next lower value available which may be required to make up the exact amount of the fee, in combination with adhesive stamps to make up fractions of less than Rs. 25.
- (3) **Fraction of an anna to be remitted.**—If in any case the amount of the fee chargeable involves a fraction of an anna, such fraction shall be remitted.
- (4) **Certificate in case stamp of the required value is not available.**—Where a stamp of the required value is not available, the purchaser shall obtain a certificate from the vendor to that effect in the form below. This certificate shall be affixed to the document and filed with it:---

(FORM OF CERTIFICATE)

“Certified that a single stamp of the value of Rs. required for this document is not available, but in lieu thereof, I have furnished a stamp of the next lower value available and made up the deficiency by the use of one or more adhesive/impressed stamps of the next lower values available required to make up the exact amount of the fee.

Date: _____ Signature of stamp vendor.”

- (5) **Mode of affixing adhesive stamp.**—An adhesive stamp which may be used under rule 2 shall be affixed to the impressed stamp of the highest value employed in denoting the fee, or to the first sheet of the document, to be inscribed in such manner as not to conceal the value of stamp thereon.
- (6) **Plain paper may be joined if impressed stamp paper is insufficient for writing the document.**—When one or more impressed stamps used to denote a fee are found insufficient to admit of the entire document being written on the side of the paper which bears the stamp, so much plain paper may be joined thereto as may be

necessary for the complete writing of the document, and writing on the impressed stamps and on the plain paper shall be attested by the signature of the person or persons executing the document.

PART C – CANCELLATION OF COURT-FEE STAMPS

Rules made by the High Court for regulating the cancellation of Court-fee Stamps

RULES

1. Cases when cancellation of Court-fees is to be effected.—The cancellation of Court-fee stamps shall be effected:--

- (a) when a document bearing a Court-fee stamp is received by a Court competent to receive the same;
- (b) when a Court-fee stamp is paid in on account of process-fee;
- (c) when a Court-fee stamp is affixed to a document issued by any Court or office;
- (d) when the record of a case in which Court-fee stamps have been filed in finally made over to the Record-keeper for safe custody.

2. Mode of cancellation of stamps on documents received by a Court or received on account of process fee.—Court-fee stamps falling under clauses (a) and (b) of the foregoing rule shall be cancelled immediately on receipt of the document or stamp, by such officer as the Court may from time to time appoint, in writing, in the manner prescribed by Section 30 of the Court-Fees Act. As an additional precaution, the cancelling officer should affix his signature, and the date, across each label, at the time of cancellation, in durable ink.

Note: In order to ensure compliance with rules 2, 3 and 4 and uniformity of practice in the province, it has been decided that round punches shall be used by Courts and offices and triangular punches by the record room staff. Both kinds of punches are obtainable from the Controller of Stationery, Calcutta. Care should be taken to see that all round punches in Courts and offices in a District are of uniform size in order to prevent fraud arising from the stamps, already punched being punched again with a larger punch.

3. Mode of cancellation of stamps on documents issued by a Court or office.—In regard to stamps on documents falling under clause (c) of rule 1 the Central Government have directed in Financial Department resolution No. 3373, dated the 24th September, 1875, that the Court or office *issuing* copies, certificates, or other similar documents liable to stamp duty under the Court-Fees Act shall, *before issue*, cancel the labels affixed to them by punching out a portion of the label in such a manner as to remove neither the figure-head nor that part of the label on which its value is expressed, and that, as an additional precaution, the signature of the officer attesting the document, with the date, shall be written across the label, and upon the paper on either side of it.

4. Cancellation of stamps by record-keeper.—The rules for the cancellation of Court-fee stamps by the Record-keeper are contained in a resolution of the Central Government in the Financial Department, No. 1763, dated the 24th July, 1873, in which it is ordered that the Record-keeper of *every* Court shall, when a case is decided and the record consigned to his custody, punch a second hole, or, in the case of stamps falling under clause (c), Rule 1, a third hole, in which label, distinct from the first, *and note the date of doing so at the same time*. Special attention is required to the words in italics, as the direction therein contained is always not complied with. The Record-keeper's punching should not remove so much of the label as to render it impossible or difficult to ascertain its value or nature. From the resolution of the

Central Government, No. 3047,* dated 5th September, 1883, it will be seen that these directions apply only to *adhesive labels* used under the Act, and not to *impressed stamps* which need not be punched a second time.

5. Certificate required when a record is transferred from and official to another.—Whenever the custody of a record containing Court-fee stamps is transferred from one official to another before final disposal, the receiving officer shall examine the Court-fee stamps in the record and either certify on the index of papers that they are complete, or immediately bring to notice any deficiency, as the case may require.

6. Record-keeper to see that stamps in the record are complete.—Record-keepers will be held personally responsible that the stamps appertaining to the records under their charge are complete, and that they have been duly cancelled in accordance with these instructions. Should a record be sent into the record-room in which the stamps are incomplete or not duly cancelled, the Record-keeper shall report the circumstance at once to the head of the office, and shall defer entering the case in its appropriate register until orders have been passed in the matter.

7. Certificate as to the completeness of stamps when a record is taken out of record room.—When a record containing Court-fee stamps is taken out of the record-rooms for, any purpose, each official through whose hands it passes must not on the index of papers or on the list of records where such a list is with the record, that he has examined the Court-fee stamps in the record, and that they are complete, or, if then are not complete, at once report the fact for orders.

Note--1. To facilitate the examinations required by the above rules a column has been inserted in the index of papers attached to each record which shows at a glance what papers in the record bear Court-fee stamps, and the number and value of the stamps attached to each of such papers.

2. Precautions against the fraudulent use of stamps.—Further precautions against the fraudulent use of Court-fee labels a second time were, under the orders of Government, prescribed by the Superintendent of Stamps in his Circular No. 1, dated 24th April, 1877, of which the effective portions are extracted below. It is to be noted that at that time adhesive labels alone were used to denote fees of Court:--

The most important point to be guarded against is the re-use of stamps which have once been used; such stamps may have been punched, or they may have been left unpunched, and passed into the record-office and there removed. In the case of a removed stamp that has been punched once, it is clear that its use a second time can only be effected by the dishonesty of the subordinate official who, in the first instance, receives the document presented by suitors. In the case of a removed stamp that has not been punched, it is possible that it may have been so little injured in the removal as to be used a second time without detection, unless the stamps be closely examined, and it may pass undetected, either from dishonesty or from want of vigilance on the part of that official. In order effectually to prevent frauds of this nature, it is absolutely necessary that the subordinate official whose duty it is to see that the full fee has been affixed in each case and to punch the stamps and to record orders, should be made to stand or sit within full view of the officer and in that

* Copy of a resolution of the Central Government in the Department of Finance and Commerce, No. 3047, dated Simla, the 5th September, 1883.

Resolution – It was directed in Financial resolution No. 1763, dated 24th July, 1873, that the Record-keeper to every Court shall, when a case is decided and the record consigned to his custody, punch a second hole in each label distinct from the first which is prescribed by Section 30 of the Court-Fees Act, and note the date of doing so at the same time.

These directions apply only to adhesive labels used under the Court-Fees Act. Impressed stamps used for denoting Court-fees need not be cancelled or punched otherwise than as required by Section 30 of the Court-Fees Act.

position to perform his task, certifying on each petition that the full fee has been affixed, and all stamps have been punched. It is of the utmost importance that this subordinate should be allowed no time or opportunity for tampering with the stamps. When files of decided cases are sent to the record-room, the Record-keeper should be required, without any loss of time, to examine the stamps and punch a second hole in each stamp, affixing the date on which he does so.

8. Instructions to be observed when two or more impressed stamps are used.—The following executive instructions to be observed when a document is written upon two or more impressed stamps which are used to make up the fee chargeable under the Court-Fees Act, 1870, have been issued by the Financial Commissioner:--

When two or more impressed stamps are used to make up the amount of the fee chargeable under the Court-Fees Act, a portion of the subject-matter shall ordinarily be written on each stamped sheet. Where this is impracticable or seriously inconvenient, the documents shall be written on one or more sheets bearing impressed stamps of the highest value, and the remaining stamps shall be punched and cancelled by the Court and filed with the record, a certificate being recorded by the Court on the face of the first sheet of the document to the effect that the full Court-fee has been paid in stamps. The writing on each stamped sheet shall be attested by the signature of the person or persons executing the documents.

PART D—INSTRUMENTS NOT DULY STAMPED UNDER THE INDIAN STAMP ACT, 1899.

1. Sections 33 to 35 of the Stamp Act are mandatory.—Attention is called to the provisions of Sections 33 to 35 of the Indian Stamp Act, II of 1899, in regard to instruments not duly stamped. The procedure laid down in these sections is mandatory and not discretionary; whatever discretion is permitted under the Act vests in the Collector alone, after the instrument is before him, and with that the Civil Courts have no concern.

2. Duty of public officers to examine and impound documents not duly stamped.—By Section 33 of the Indian Stamp Act, 1899, all public officers, with certain exceptions, are required to examine every instrument chargeable with duty which comes before them in the performance of their official functions and to *impound* any instrument which appears not duly stamped. Every Court impounding on instrument must forthwith note it as “impounded,” such note being dated and signed with the ordinary full signature of the impounding officer.

3. Conditions on which a document not duly stamped be admitted in evidence.—Under Section 35 of the same Act, every such instrument, no being an instrument chargeable with a duty of one anna or half an anna only, or bill of exchange or promissory note, may be admitted in evidence in a Civil Court if the party desiring to use it shall pay the amount necessary to make up the proper stamp duty, together with a penalty of Rs. 5, or when ten times the amount of the proper duty or deficient portion thereof exceeds Rs. 5, then with a penalty of ten times such duty, or portion. Under clause (b) of Section 35, however, an unstamped receipt may be admitted in evidence against the person who has given it, on payment of a penalty of one rupee by the person tendering it.

The amount realised under Section 35 should be paid into the local treasury, sub-treasury, or branch of State Bank, as the case may be, the same day or on the morning of the next day at the latest and the original treasury or bank receipt transmitted to the Superintendent of the Collector’s Office together with an authenticated copy of the impounded document as referred to in paragraphs 5 and 6 below.

Note: So far as the deposit of the amount realised under Section 35 is concerned these orders may be relaxed in the case of Court which are situated at place where there is no treasury, sub-treasury, or branch of the State Bank of Pakistan. In such cases the amount may be

deposited at the nearest treasury or sub-treasury twice a month or at such intervals as may be prescribed in the case of other deposits.

4. Certificate to be endorsed on a document admitted in evidence on payment of duty and penalty.—Section 42 requires that Civil Courts shall certify by endorsement on every instrument admitted in evidence under Section 35 that the proper duty and penalty have been levied in respect thereof, and shall also state the name and residence of the person paying them.

5. Duty of Court to send Collector the impounded document or its copy in certain cases.—Section 38 requires every Civil Court to send to the Collector an authenticated copy of every impounded instrument admitted in evidence, with a certificate in writing stating the amount of the duty and penalty levied in respect thereof. The endorsement required by Section 42 should be transcribed on such copy. When an impounded instrument has not been admitted in evidence whether from failure to pay the requisite duty and penalty, irrelevancy, want of registration or other cause it must be sent in original to the Collector, in such cases the provisions of Section 46, sub-section (2), are applicable. The copy to be made under this section must be retained in the custody of the Court.

6. Return of documents admitted in evidence on payment of duty and penalty.—Section 42, sub-section (2), entitles any person tendering a document on which deficient stamp duty and penalty has been levied under Section 35 to reclaim the same, but the proviso to that section directs that the Court shall not, under any circumstances, deliver such documents before the expiration of one month from the date of impounding it. If the Collector has certified that the further detention of such document is necessary, the Court shall not deliver it until such certificate is cancelled. It is obvious that the transmission of the copy to the Collector should be made with the least possible delay to enable him to make such inquiry as may be necessary within the month for which the instrument is to be detained. Every such copy should be dispatched not later than 48 hours from the time when the original is impounded.

7. Duty or penalty paid may be included in costs.—Any duty or penalty paid under Section 35, 37, 40 or 41 by any person, which by agreement or under Section 29 or any other law, another person was bound to pay, may be included in costs or otherwise recovered by the person paying such duty or penalty as provided in Section 44.

PART E – STAMP DUTY ON COPIES AND PETITIONS

1. Copies not liable to Court-fee duty.—The authenticated copies required by Section 38 and Section 46, sub-section (2) are not liable to Court-fee duty.

2. Copies liable to Court-fee duty.—The attention of all Civil Courts is drawn to the annexed circular of the Punjab Government, No. 6-699, dated the 18th April, 1894 (Financial), on the subject of the levying of stamp duty on copies of documents falling under the Court-Fees Act and the Stamp Act:---

“It has been brought to the notice of the Lieutenant Governor that copies of documents falling under Articles 6, 7 and 9 of Schedule I of Act VII of 1870 (the Court-Fees Act) and Article 22 of Schedule I of Act I of 1879 (the Indian Stamp Act) are often submitted with petitions without being stamped, in the former case the copies being no doubt obtained for private use.”

“The exemption from stamp duty of copies of documents taken for private use does not, however, cover the receipt of such copies by a public officer, and the Lieutenant-Governor is, therefore, pleased to issue the following order for information and guidance of all officers:--

“A copy of a document referred to in Article 6, 7 or 9 of Schedule I, Act VII of 1870, or in Article 22 of Schedule I, Act I of 1879, and accompanying a petition to a public officer must bear the stamp of the value indicated in the above articles.

“Section 6 of VII of 1870 absolutely prohibits the receipt of document not duly stamped. Every such document should be returned to the sender or presenter. A petition enclosing copy not duly stamped should, ordinarily, if the consideration of the unstamped document is essential, be returned to the sender or presenter with a direction that orders cannot be passed unless it is resubmitted with the copy duly stamped.”

3. Court-fees on application to Chief Revenue or Executive authority.—Attention is called to the annexed letter on the subject of the levying of stamp duty on petitions under the Court-Fees Act.

No. 3790-S.R. dated Simla, 27th July, 1894.

From – J.E. O.’Conner, Esq., Assistant Secretary to the Government of India, Finance and Commerce Department.

To – The Chief Commissioner of Burma.

I AM directed to acknowledge the receipt of your letter No. 313-2-S-10, dated the 16th April, 1894, requesting, in connection with an application to the Financial Commissioner from a lessee of certain lead mines in Burma, to dispose of his interest in them to another party, that it may be authoritatively ruled what are the classes of communications from the general public to Government which are liable to the duty leviable under the Court-Fees Act, VII of 1870.

2. I am to say that in the opinion of the Governor-General in Council the law does not require, and was not intended to require, that application of every description to a Chief Commissioner or other Chief Revenue or executive authority should be stamped under clause (c) of Article I of Schedule 11 of the Court-Fees Act, VII of 1870. That clause applies only to petitions and applications in connection with a proceeding which is being taken before a Chief Commissioner or other authority specified therein with a view to the exercise or non-exercise of some power or authority conferred upon him by some law or rule having the force of law.

3. I am to request that this view may be acted upon in future.

PART F – AUDIT AND CONTROL OF STAMP REVENUE IN THE PUNJAB

The following instructions for the audit and control of Stamp Revenue in the Punjab, are issued by the Governor in Council sitting with his Ministers, the High Court of Judicature at Lahore, and the Financial Commissioners, in their judicial capacity, for the guidance of the officers and Courts under their respective control:---

RULES

(1) Title.—(1) These rules shall be termed “The Punjab Stamp Audit Instructions, 1933.”

(2) Appointment of Stamp Auditor.—There shall be appointed a Stamp Auditor for purpose of the audit of every document requiring a stamp which is presented to a Court of law other than the High Court or a public order.

(3) Controlling Authority.—The Financial Commissioner as the Chief Controlling Authority will determine the districts within the jurisdiction of each auditor and fix his headquarters. The auditors shall be under the direct control of the Commissioner of the division in which they are from time to time operating and shall be authorized by the Collector in writing in the term of Section 73 of the Indian Stamp Act.

(4) Tour programme of auditors.—The auditor shall prepare a bi-monthly programme of his tour by districts and after obtaining the approval of the Financial Commissioner give due notice to the Collector of the district concerned and the Commissioner of the division of his

forthcoming visit.

The auditor shall spend the least possible time on traveling and more time on actual audit work. He shall visit each district in his charge once a quarter and spend about eight days at the headquarters of a district and two days at each tehsil.

(5) Scope of audit.—The auditor shall, on visiting a district, audit all fresh institutions, documents and files pending or otherwise in all Courts and registration and other offices including record-rooms. Such inspection shall be from the date on which the last audit terminated.

The auditor shall, in particular, see that the stamps used are genuine and have not been removed from files and re-used.

(6) Registered stamp deficiency.—Every person described in Section 33 of the Indian Stamp Act and every public official referred to in Section 6 of the Court Fees Act shall maintain a record of stamp deficiencies in Civil Register XVIII. The Collector shall, in addition to the said register maintained by him in respect of his own Court, maintain a register in form S. A. 5, of documents sent to him maintained in respect of all deficiencies whether found in audit or independently.

(7) Auditor to check these register.—The auditor shall examine the register No. XVIII maintained by the Court or office with a view to seeing that it is properly maintained and that collections are made not only on account of deficiencies detected in audit but on account of deficiencies detected independently. He shall also examine the register maintained by the Collector in Form S. A. 5.

(8) Deficiencies in stamps to be notified to the Collector.—Once a case has been decided and consigned to the record-room, deficient Court-fees are not recoverable under the existing law; instances, therefore, of such short recoveries in Court-fees as may be brought to light in the general record-room will merely serve the purpose of educating readers and moharrirs or taking disciplinary action against them. But deficiencies in stamp duty may be brought to the notice of the Collector of the district with a view to action under Section 61 of the Stamp Act.

(9) Help to be rendered to the auditor by the Courts and officials.—The presiding officers of all Courts and heads of offices will give the auditor access to all records and accounts, etc., and, so far as lies in their power, assist him in the performance of his duties.

(10) Auditor to draw attention of officers as to their powers and duty re-insufficiently stamped documents.—In the course of his audit the auditor shall draw the attention of presiding officers of Courts and heads of offices to documents before them which are insufficiently stamped, and shall advise them where necessary in relation to their powers and obligations as follows:—

- (i) Under the Stamp Act:--
 - (a) To impound documents under Section 33 of the Stamp Act.
 - (b) To admit unstamped documents in evidence under Section 35.
 - (c) To dispose of impounded documents under Section 38, cases coming before him under Sections 39 to 43 and also seek any other assistance which he may consider necessary.
- (ii) Under the Court-Fee Act:--

To determine correct fee leviable on any document. The auditor, it necessary, will discuss the point at issue with the presiding officer and if required by him

be present at the discussion in Court before orders are passed.

(11) Register S. A. 1.—The auditor will maintain for each district a register in Form S.A. 1, in which he will note as it is discovered, each deficiency in stamp duty and Court-fees.

(12) Officers to whom copy of audit note is to be sent.—After discussions of his preliminary notes with the presiding officer or head of office, the auditor will prepare a formal audit note and send typewritten copies to the presiding officer or the head of the office, as the case may be, and to the Collector to the district concerned. This note will include a statement in form S.A. 3, of deficiencies discovered, and columns 1 and 6 to 15 will be left blank.

Copies of audit notes on Revenue Courts and offices, including Sub-Registrars, should also be sent to the Commissioner of the division. In the case of Civil Courts, where the audit discloses some serious defects, a copy of the audit note should be sent to the District and Sessions Judge through the Collector of the district.

(13) Action to be taken. Audit Note, Form S. A. 3.—The presiding officer of the Court or the head of the office shall transfer columns 2 to 5 of Form S. A. 3 to Civil Register XVIII and proceed to take necessary action on the note. In cases where he does not agree with the auditor or where he considers it necessary to hear the party concerned before passing order, he shall, where possible, discuss the matter with the auditor. The presiding officer or head of the office will return the Form S. A. 3 to the auditor after completing columns, 1, 6 to 8 and noting in column 15, the cases, if any, in which he disagrees with the auditor, but without necessarily completing columns 9-14. The auditor after completing his register will return the form to the Court or office and report to the Collector any case in which the presiding officer or head of the office has been unable to take the advice of the auditor. The Collector (if he thinks fit and after consulting the Financial Commissioner, if necessary) will take action under Section 61 of the Stamp Act, or in the case of the Court-Fees Act, draw the attention of the Appellate Court, or take other appropriate action in the case of other offices.

(14) Posting of recoveries in proper register and writing off irrecoverable items.—All Courts and offices shall, in addition to the account of recoveries effected by them in Civil Register XVIII, show recoveries effected at the instance of the stamp auditor in columns 10 and 11 of the said register and also S.A. 3. Irrecoverable loss of stamp revenue is required to be written off under paragraph 20.19 of the Book of Financial Powers, and shall be entered in columns 18 and 19 of register XVIII and columns 11 and 12 of Register S.A. 3. They shall also send to the auditor at the end of each month, their copies of Form S.A. 3 so that he may complete his returns of recoveries made at his instance from time to time and irrecoverable items written off, after which he will return the form of the Court or office. If the Court or office has sent a document to the Collector under Section 38 of the Stamp Act, it will have no concern with columns 9 to 12.

(15) Action to be taken by auditors re pauper suits Register S. A. 5.—Special attention shall be paid by the auditors to pauper suits and all their stages carefully watched while they are pending in Courts. After their disposal the auditors shall draw the attention of the Collector to the Court-fees realizable, and shall suggest to him what steps will ensure early realization. When a Court fails to pass an order for costs, the auditor shall advise the Collector to move the Court concerned under Order 33, Rule 12, Civil Procedure Code. The auditor shall keep a register of all such cases in Form S. A. 5.

(16) Auditor to check applications for refund of value of stamps and register of stamp vendors.—The auditor shall, at the time of his visit to a district, inspect the applications for grant of refund of the value or renewal of spent and unused Court-fee and non-judicial stamps and register maintained by the Refund Clerk and report the result of his inspection to the Collector of the district.

The auditor shall also inspect the registers of stamp vendors and check their stock of

stamps.

(17) Defects in the vend arrangements to be brought notice of the Collector.—The auditor shall bring to notice of the Collector defect in the vend arrangements and make suggestions where necessary for improvement of the arrangements.

(18) Monthly reports by auditors Form S. A. 4.—The auditors shall monthly submit reports by districts to the Assistant Secretary to Financial Commissioners through the Collector and Commissioner.

In these reports the auditors should give details of the period spent, and of the work done on each day. They should also state the total number of cases examined by them and note separately for each district the total number of deficient stamp duty discovered and recovered at their instance under the following heads:---

- (1) on plaints;
- (2) on copies;
- (3) on applications; etc.
- (4) on process fees;
- (5) on objection petitions;
- (6) on power-of-attorney;
- (7) on security bonds, etc., filed in Courts;
- (8) on miscellaneous petitions in the English record; and
- (9) on documents filed by the parties.

The report shall be accompanied by a statement in Form S. A. 4. showing district totals and also copies of the audit notes on the Courts and offices audited.

(19) Certificate in form S. A. 6. to be attached to traveling allowance bills by auditors.—In support of their claims for traveling allowance the auditors will obtain from the presiding officers of Courts and Collectors a certificate in Form S.A. 6 and attach A to their monthly traveling allowance bills.

(20) Review of stamp audit system by Financial Commissioner.—The Local Audit Department is relieved of the audit of stamp duty and Court-fees.

A brief account of the work done under this system shall be included by the Financial Commissioners in their annual note on the Stamp Administration.

(Punjab Government U.O. No. 418-P.F.-47-S, dated the 19th May, 1933).

2. The forms prescribed in these rules may be obtained on indent from the Superintendent, Government Printing, Punjab.

F.Cs. Stereo A & T. No. 351.
(Form S.A. 1)

District of _____

REGISTER OF STAMP DEFICIENCIES DISCOVERED BY THE AUDITOR (AUDITOR'S REGISTER)

Serial No.	Court or office and name of presiding officer	No. of suit.	Brief particular of suit or case	Deficiency in stamp duty or Court-fees discovered	State if case has been sent to Collector under Section 38 of Stamps Act.	Penalty if any under Section 35 of the Stamp Act.
1	2	3	4	5	6	7

BY COURT OR OFFICE		BY COLLECTORS				Remarks
Amount recovered at the instance of the Auditor		Amount recovered at the instance of the auditor		Amount written off as irrecoverable by competent authority		
Duty	Penalty under Section 35 of Stamp Act	Duty	Penalty under Section 35 or 40 of Stamp Act	Duty	Penalty	
8	9	10	11	13	13	14

F.Cs. Stereo A & T. No. 353.

(Form S.A. 3)

**NOTE OF DEFICIENCIES DISCOVERED IN AUDIT TO BE SUBMITTED TO COURT OR OFFICE CONCERNED WITH HIS
INSPECTION NOTE BY THE AUDITOR**

DISTRICT _____ COURT ON OFFICE _____

Serial No. in civil register XVIII	No. of suit	Brief particulars of suit or case	Deficiency in stamp duty or Court-fees discovered	Serial No. in register S.A. I	State if sent to Collector under Section 33 of Stamp Act.	Duty recoverable under section 35 of Stamp Act or under the Court Fee Act
1	2	3	4	5	6	7

Penalty imposed under section 35 of Stamp Act	<i>Recovered</i>		<i>Written off as irrecoverable by competent authority</i>		Balance		Remarks
	Duty	Penalty	Duty	Penalty	Duty (column 7 – columns 9 and 11)	Penalty (column 8 – column 10 and 12)	
8	9	10	11	12	13	14	15

F.Cs. Stereo A & T. No. 353.

(Form S.A. 4)

**STATEMENT SHOWING DEFICIENCIES IN STAMP DUTY AND COURT-FEES DISCOVERED BY _____ STAMP AUDITOR
AND RECOVERIES MADE BY COURTS AND COLLECTORS OF THE _____ DISTRICTS DURING THE MONTH 104**

(To be submitted by the Auditors to the Financial Commissioners monthly)

District	<i>Deficiencies in Court-fees and stamp duty discovered during the month</i>		<i>Deficiency in Court-fees and stamp duty discovered during the previous month</i>		TOTAL OF COLUMNS		<i>Recoveries made by Courts and Collectors at the instance of the auditor during the month</i>		<i>Recoveries made during the previous months</i>	
					2 & 4	3 & 5				
	Duty	Penalty	Duty	Penalty	Duty	Penalty	Duty	Penalty	Duty	Penalty
1	2	3	4	5	6	7	8	9	10	11

<i>Amount written off as irrecoverable during the month</i>		<i>Amount written off as irrecoverable during previous month</i>		TOTAL OF COLUMNS		BALANCE		Remarks
Duty	Penalty	Duty	Penalty	8, 10, 12 & 14	9, 11, 13 & 13	Column 6 – Column 16	Column 7 – Column 17	
				Duty	Penalty	Duty	Penalty	
12	13	14	15	16	17	18	19	20

F.Cs. Stereo A & T. No. 353.
(Form S.A. 5)

District _____

REGISTER OF DEFICIENCIES IN STAMP DUTY DEALT WITH BY THE COLLECTOR

Serial No.	BRIEF PARTICULAR OF CASE		Court of office from which sent	Section under which sent	Description of document impounded and nature of deficiency	Name and address of the person presenting the document	If discovered in audit, state date and serial No. in Register S.A. 1	DEMAND		REOCERED			WRITTEN OFF AS IRRECOVERABLE			BALANCE		Remarks
	Name of plaintiff or appellant	Name of defendant or respondent						Duty	Penalty	Duty	Penalty	Name of treasury or sub-treasury with No. and date of treasury receipt	Duty	Penalty	Authority	Duty	Penalty	
1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16	17	18	19
								Rs. A.P. .	Rs. A.P. .	Rs. A.P. .	Rs. A.P. .		Rs. A.P.	Rs. A.P.		Rs. A.P. .	Rs. A.P. .	

F.Cs., Stero. A & T No. 356.

(FORM S. A. 6).

Certified that _____, Stamp auditor, started audit in this Court/Office on _____ and audited the stamp and Court-fee accounts of this Court of place/office for _____ days.

Place _____

Signature of Presiding

Dated _____

Officer of Court, or Head of Office.

PART- G: – AUDIT AND CONTROL OF STAMP REVENUE IN THE DELHI PROVINCE

The following instructions for the audit and control of stamp revenue in the Delhi Province are issued by the Chief Commissioner in consultation with the Honourable Judges of the High Court for the guidance of all officers and Courts under their respective control:--

RULES

1. **Title.**—These rules shall be termed “The Delhi Stamp Audit Instructions, 1939”.
2. **Appointment of stamp auditor.**—There should be appointed a stamp auditor for the purpose of the audit of every document requiring a stamp which is presented to a Court of law other than the High Court, or to a public officer.
3. **Controlling authority.**—The auditor shall be under the direct control of the Chief Commissioner and shall be authorized by the Collector in writing in the terms of Section 73 of the Indian Stamp Act.
4. **Monthly programme of auditor.**—The Auditor shall prepare a monthly programme of audit and after obtaining the approval of the Chief Commissioner to it, give due notice to Presiding Officers of Courts and heads of offices of the work which he proposes to do.
5. **Scope of audit.**-- The auditor shall audit all fresh institutions, documents, and files pending or otherwise in all Courts and registration and other offices including record rooms. Such inspection shall be from the date on which the last audit terminated.

The auditor shall, in particular, see that the stamps used are genuine and have not been removed from files and re-used.
6. **Registers of stamp deficiency.**-- Every person described in Section 33 of the India Stamp Act and every public official referred to in Section 6 of the Court-Fees Act shall maintain a record of stamp deficiencies in Civil Register No. XVIII. The Collector shall, in addition to the said register maintained by him in respect of his own Court, maintain a register in Form S. A. 5 of documents sent to him under Section 38 of the Stamp Act. These registers shall be maintained in respect of all deficiencies whether found in audit or independently.
7. **Register to be checked by auditor.**—The auditor shall examine the register No. XVIII maintained by each Court or office with a view to seeing that it is properly maintained and that collections are made not only on account of deficiencies detected in audit but on account of deficiencies detected independent. He shall also examine the register maintained by the Collector in Form S.A. 5.

8. **Deficiencies in stamps to be notified to the Collector.**—Once a case has been decided and consigned to the record-room, deficient Court-fee are not recoverable under the existing law, instances, therefore, of such short recoveries in Court-fees as may be brought to light in the general record-room will merely serve the purpose of educating readers and moharrirs or taking disciplinary action against them. But deficiencies in stamp duty may be

brought to the notice of the Collector with a view to action under Section 61 of the Stamp Act.

9. Facilities to be afforded to the auditor.—The presiding officers of all Courts and heads of offices will give the auditor access to all records and accounts, etc., and, so far as lies in their power, assist him in the performance of his duties.

10. Auditor to draw attention of officers as to their powers and duties insufficiently stamped documents.—In the course of his audit the auditor shall draw the attention of presiding officers of Courts and heads of offices to documents before them which are insufficiently stamped, and shall advise them where necessary in relation to their powers and obligations as follows:--

(i) Under the Stamp Act:--

- (a) to impound documents under Section 33 of the Stamp Act.
- (b) To admit unstamped documents in evidence under Section 35.
- (c) To dispose of impounded documents under Section 38. The Collector may also ask the auditor to note on cases coming before him under Sections 39 to 43 and also seek any other assistance which he may consider necessary.

(ii) Under the Court-Fees Act:--

To determine correct fee leviable on any document. The auditor, if necessary, will discuss the point at issue with the presiding officer and, if required by him, be present at the discussion in Court before orders are passed.

11. Register S.A. 1.—The auditor will maintain a register in Form S. A. 1, in which he will note as it is discovered, each deficiency in stamp duty and Court-fees.

12. Officers to whom copy of audit note to be sent.—After discussion of his preliminary notes with the presiding officer or head of office, the auditor will prepare a formal audit note and send typewritten copies to the presiding officer or the head of the office, as the case may be, and to the Collector. This note will include a statement in form S. A. 3 of deficiencies discovered, and columns 1 and 6 to 15 will be left blank.

Copies of audit notes on revenue Courts and offices, including Sub-Registrars, should also be sent to the Chief Commissioner, Delhi. In the case of Civil Courts, where the audit discloses some serious defects, a copy of the audit note should be sent to the District and Sessions Judge through the Collector.

13. Action to be taken on audit note Form S.A. 2.—The presiding officer of the Court or the head of the office shall transfer columns 2 to 5 of Forms S. A. 3 to Civil Register No. XVIII and proceed to take necessary action on the note. In case where he does not agree with the auditor or where he considers it necessary to hear the party concerned before passing orders, he shall, where possible, discuss the matter with the auditor. The presiding officer or head of the office will return the form S. A. 3 to the auditor after completing columns 1 and 6 to 8 and noting in column 15, the cases, if any, in which he disagrees with the auditor, but without necessarily completing columns 9-14. The auditor after completing his register will return the form to the Court or office and report to the Collector any case in which the presiding officer or head of the office has been unable to take the advice of the auditor. The Collector (if he thinks fit and after consulting the Chief Commissioner, if necessary) will take action under Section 61 of the Stamp Act, or in the case of the Court-fee Act, address the Appellate Court, or take other appropriate action in the case of other offices.

14. Posting of recoveries in proper registers and writing off irrecoverable items.—All Courts and offices shall, in addition to the account of recoveries effected by them in civil register XVIII, show recoveries effected at the instance of the Stamp auditor in columns 10 and

11 of the said register and also in register S. A. 3. Irrecoverable loss of stamp revenue is required to be written off under Article 227 of Civil Account Code, Volume 1, and shall be entered in columns 18 and 19 of register No. XVIII and Columns 11 and 12 of register S. A. 3. They shall also send to the auditor at the end of each month, their copies of register S.A. 3, so that he may complete his returns of recoveries made at his instance from time to time and irrecoverable items written off, after which he will return the form to the Court or office. If the Court of office has sent a document to the Collector under Section 28 of the Stamp Act, it will have no concern with columns 9 to 12.

15. Action to be taken by ancestors *re pauper suits* Register S. A. 5.—Special attention shall be paid by the auditor to pauper suits and all their stages carefully watched while they are pending in Courts. After their disposal the auditor shall draw the attention of the Collector to the Court-fees realizable, and shall suggest to him what steps will ensure early realization. When is Court fails to pass an order for costs, the auditor shall advise the Collector to move the Court concerned under Order 33, Rule 12, Civil Procedure Code. The auditor shall keep a register of all such cases in form S. A. 6.

16. Auditor to check applications for refund of value of stamps and also register of stamp vendors.—The auditor shall also inspect the applications for grant of refund of the value or renewal of spoilt and unused Court-fee and non-judicial stamps and register maintained by the Refund Clerk and report the result of his inspection to the Collector.

The auditor shall also inspect the registers of stamp vendors and check their stock of stamps.

17. Defects in arrangement for sale of stamps.—The auditor shall bring to the notice of the Collector defects in the vend arrangements and make suggestions where necessary for improvement of the arrangements.

18. Monthly reports by auditors.—The auditor shall monthly submit report to the Registrar to the Chief Commissioner through the Collector.

Form S. A. 4.—In these reports the auditor should give details of the period spent, and of the work done on each day. He should also state the total number of cases examined by him and note the total number of deficient stamp duty discovered and recovered at his instance. The report shall be accompanied by a statement in Form S. A.4.

19. Certificate to be attached to traveling allowance bills.—In support of his claims for traveling allowance the auditor will obtain from the presiding officers of Court and Collector a certificate in Form S. A. 6 and attach it to his monthly traveling allowance bills.

20. Review of stamp Audit System.—The total Audit Department is relieved of the audit of stamp duty and Court-fees.

A brief account of the work done under this system shall be included in the Annual Administration Report.”

CHAPTER 5

PROCESS FEES

A – Remarks and Directions

1. Table of fees to be exhibited in each Court house.—A table of the fees chargeable on processes should be exhibited in each Court in some conspicuous place.

2. Fee on criminal processes.—The Court-Fees Act, Section 20, clause (ii), restricts the levy of a fee on criminal processes to non-cognizable cases. The fee for such processes has been fixed at a uniform rate of Eight Anna.

3. Agency for service of criminal processes on which fee is levied.—Every criminal summons for the service of which a fee is levied under the rules framed by the High Court under Section 20 of the Court-Fees Act (VII of 1870) shall be served by the process-serving establishment of the Court issuing the summons.

4. Recovery of process fee from accused as a fine in certain cases.—Courts are reminded that, under Section 546-A of the Code of Criminal Procedure, in cases of conviction of an accused of the offence of wrongful confinement, wrongful restraint, or of any non-cognizable offence, the Court may by its order direct that the accused should pay to the complainant any sum that he may have expended in issue of processes; and such sum may be recovered in the manner provided for recovery of fines.

5. Controlling authority over process serving agency, Registers and accounts to be kept and returns submitted by all Courts.—Notwithstanding the separation of the Revenue from the Civil Courts, the control over income derived from process fees in all Revenue Courts and Revenue Offices, and the expenditure on establishment, etc., from this source, is still, at the desire of the Financial Commissioners, retained by the High Court, to which all references on the subject should be made as heretofore. It will be necessary for Commissioners and District Courts to maintain the registers and accounts prescribed by these rules and orders, and to submit the annual returns, in the prescribed form.

For the purpose of the rules under Part B, Revenue Courts and Revenue Officers have been divided into three grades as follows:---

<i>Court</i>	<i>Grade</i>
Financial Commissioners	First Grade
Commissioners	Second Grade
Collectors and Assistant Collectors	Third grade

6. Diary of process-fees, Receipts for process-fees, Preparation and issue of processes.—No process shall be prepared or issued until the proper fee for the service thereof has been paid, but as soon as the process fee (talbana) is paid by a litigant, his agent or his pleader, a receipt in the form given below shall be granted by the ahlmad or other official receiving the same, and thereafter the Court-fee label denoting the fee shall be affixed to the diary of process fee and immediately punched. The process shall then be prepared but it will be left to the party who applied for the process ^{to} issue it or not as he thins fit. This will obviate the necessarily for making any refund of the value of Court-fee filed on account of processes which are not eventually issued.

7. Particulars to be noted on processes issued.—On every process issued from any Court the following particulars shall be recorded, namely:-- (1) the name of the process-server deputed to serve or execute the same; (2) the period within which the process-server is required to certify service of execution; (3) the amount of fee paid and the date of payment; and (4) date

of ,return after service or execution.

Such endorsements shall be signed by the Civil Nazir or Naib Nazir, or Bailiff.

8. Accounts of process-fees and costs of establishment to be maintained.—An account of Court-fee stamps realized as process fee of processes issued (civil and criminal), of the number of process-servers employed, of the cost of establishment and of contingencies shall be kept for each Court where a separate establishment is entertained.

9. Review of process-serving establishment in civil report.—A statement giving information on the above points should be submitted with the annual civil reports.

10. Diary of process-fees.—With the record of each civil case, and of each criminal case in which process fees are levied, should be kept a separate sheet of paper to be termed the ‘Diary of process of fee’ which should be devoted to the sole purpose of maintaining a record of process fees. This diary should be in the prescribed form, and should form a portion of part B. In it entries should be made in chronological order of every process order to be issued in the case, and the stamps should be affixed opposite each entry and cancelled immediately upon being affixed.

11. Process fee in case of substituted service.—In case of substituted service under Order 5, Rule 20, Civil Procedure Code one process fee shall be charged to cover all the acts done under the rule. In case of drum beating or publications in a Newspaper the charges for the same shall be paid in addition to the process fees.

12. No process fee for several attempts to serve the same process.—Where a process-server makes several visits before the date of hearing in order to serve the *same* process, no additional process fee shall be charged for those extra visits.

13. Fresh fee payable for every fresh process.—Where however a fresh process is issued a fresh fee shall be paid.

14. Fresh fee payable when a fresh process has to issue for want of correct address.—A fresh fee will also be charged when service cannot be effected owing to want of correct or adequate address and a fresh process has to issue.

15. No fee to be charged for serving and executing processes on behalf of prosecution in certain criminal proceedings.—Attention is drawn to the Court-Fees (Punjab Amendment) Act, 1939, Punjab Act IV of 1939, which lays down that no fees shall be charged for serving and executing processes on behalf of the prosecution in any criminal proceedings taken on information presented or complaint made by a public officer acting in his official capacity.

The Provincial Government may by notification determine what persons shall be deemed to be public officers for this purpose.

Note: The Government has declared all police officers to be public officers for this purpose.

PART B — RULES UNDER SECTION 20, CLAUSES (i) AND (ii)

Rules made by the High Court under the power conferred by Section 20, clauses (i) and (ii) of the Court-Fees Act, 1870, confirmed by the Provincial Government regarding the fees chargeable for serving and executing processes issued by the High Court in its appellate jurisdiction and by the Civil and Criminal Courts established within the local limits of such jurisdiction.

RULES

1. Grades of Courts for purposes of process fees.—The Civil Courts of the Punjab, shall, for the purpose of levying process-fees, be divided into three grades as shown in annexed

table:

Grade	Civil Courts
First	The High Court
Second	District Courts
Third	Courts subordinate to the District Court

Note:- For the purposes of this rule a Tribunal established under Section 12 of Punjab Act, VIII of 1925 (The Sikh Gurdwaras Act, 1925) shall be deemed to be a Civil Court of the second grade.

2. The Court of a Sub-Judge, invested with appellate powers, is deemed to be a District Court for the purposes of all appeals preferred and is therefore a Court of the second grade.

2. Fees for each grade of Court.—Fees for the service of processes shall be levied in each grade of Court according to the following scale, namely:---

Name of process	Courts of first grade	Courts of second grade	Courts of third grade
Summons, notice or other process, not being a warrant of	2.00	1.00	0.80
Warrant of attachment	4.00	2.00	1.00
Warrant of arrest	4.00	2.00	2.00

3. Separate process to issue for each person to be served and a separate fee to be charged.—A separate process shall be issued for each person summoned or arrested, or upon whom a notice served; and *subject to be rule next following*, a separate fee shall be charged for each process.

In a case in which it is desired to attach the property of more than one person (judgment-debtors or their sureties), the same village, a combined warrant of attachment shall be issued and only one attachment fee shall be charged, but if the property lies in more than one village a separate fee shall be charged for each village.

4. Process fee when a process has to be served on 4 or more persons.— When any process, other than a warrant of arrest or of attachment, is to be served upon four or more persons being parties, one fee only shall, according to the scale in rule 2, be charged in respect of first four processes, and an additional fee, according to the subjoined scale, shall be charged for each process to be served in process of four, provided that the aggregate amount of the fee leviable under this rule shall not exceed the maximum prescribed for each grade of Court:---

	Courts of first grade	Courts of second grade	Courts of third grade
Rate of additional fee	0.80	0.40	0.20
Maximum	15.00	10.00	5.00

Note: This rule is not applicable to processes issued for service on witnesses.

5. No fee chargeable for criminal processes in cognizable cases.—No fee shall be chargeable for any process of a Criminal Court issued through the police in cognizable cases. In non-cognizable cases a fee of eight annas shall be levied for every such process, *whether such process be served through the process-serving establishment or the police.*

6. Processes issued by and sent to Courts in British territory to be served free of charge.—A process issued by any Court in British territory whether of Civil, or Criminal jurisdiction, shall be served free of charge by any Court in the Punjab if it be certified on the process that the proper fee has been levied under the rules in force in the territory in which the

Court issuing the process is situated. When any Court in the Punjab, whether of Civil or Criminal jurisdiction, transmits a process for service or execution to any Court beyond its jurisdiction, a certificate shall be endorsed on process that the free chargeable under rule 2 or rule 4, as the case may be, has been levied.

7. Travelling allowance of process-servers.—Ordinarily process-servers should travel on foot when proceeding to serve or execute process; but in special cases, the Judge of the Court issuing the process, may permit the journey to be made by railway. In such cases the permission should be in writing and the railway fare should be charged to the budget heads. Travelling allowance of process-servers under process-serving establishment is not charged to the person at whose instance the process is issued.

CHAPTER 6

PROCESS-SERVING ESTABLISHMENT

A – REMARKS AND DIRECTIONS

1. General.—The rules in Parts B and C have been made by the High Court with the sanction of Government and are republished for the guidance of Civil Courts on supersession of all previous rules on the subject.

2. Chapter 18-A deals with appointments.—Process-serving establishment are appointed and dealt with in accordance with the rules given in Chapter 18-A, Volume-1.

3. Controlling Authority.—The Senior Sub-Judge or the Administrative Sub-Judge in districts where there is an Administrative Sub-Judge, has control over and is responsible for the efficiency of the process-serving establishment of the district except that of the District Judge and Judge Small Cause Court.

4. Duties of Civil Nazir.—The Civil Nazir is to be regarded as the ministerial head of the process-serving establishment under the control of the Senior Subordinate Judge (or the Administrative Sub-Judge in districts where an Administrative Sub-Judge has been appointed). His main duty is to maintain the efficiency of the process-serving establishment and for this purpose he will submit reports and make suggestions from time to time to the Senior Sub-Judge or the Administrative Sub-Judge as the case may be.

5. Registration of process-servers.—Every appointment of a process-server shall be registered in the Court of the Senior Subordinate Judge or the Administrative Sub-Judge, of the District in which the appointment is made, together with the following particulars:-- The name of the process-server, his age, his place of abode, his father's name, and the date of appointment. The names of the process-servers should be entered according to the date of their appointment in a register containing the above particulars, and a column of remarks should be added for the entry of such notice respecting the conduct of each process-server as the Presiding Judge may from time to time deem it necessary to record.

6. Courts by whom the register is to be kept.—There shall be one such register for the Court of the District Judge, one for the Senior Subordinate Judge's Court and other Subordinate Courts, and one for each Court of Small Causes.

7. Only registered process-servers to be employed.—Except in cases of necessity, when the special leave of the Court must be obtained, no person other than a registered process-server shall be employed in the service or execution of any Civil or Criminal process: the reason for granting such leave should be recorded.

8. Belts and badges of bailiffs and process-servers.—Every registered bailiff and process-server shall be supplied with the following equipment, the cost of which will be met from the contingencies of the Court to which he is attached:

Bailiffs:

- (a) Brown leather waist belt with cross strap over left shoulder. Brass buckle combined with badge prescribed by High Court to be fixed on waist belt.

Maximum cost	Rs. 8 with buckle and badge or Rs. 3.40 without buckle and badge.
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- (b) Khaki drill haversack:

Maximum cost	Rs. 2.80
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Process-servers:

- (a) Brown leather waist belt brass buckle combined with badge prescribed by High Court to be fixed to belt.

Maximum cost Rs. 6.60 with buckle and badge or Rs. 1.10 without buckle and badge.

- (b) Khaki drill haversack:

Maximum cost Rs. 2.80

Belts should last four years, and badges and buckles for an indefinite period. Haversacks should last two years. No article will be replaced unless the presiding officer of the Court to which a bailiff or process-server is attached certifies that it requires replacement. All equipment will remain Government property and should be inspected by Presiding Officers of Courts from time to time. Losses will be made good by the process-server or bailiff responsible.

9. Duties of Civil Nazir.—The Civil Nazir will be expected to keep up the Civil Deposit and Repayment Accounts and to manage the execution of decree business. It is left to Senior Subordinate Judges to issue detailed instructions as to the duties which are to be performed by the Civil Nazir. The Civil Nazir should devote his time to the distribution of business amongst process-servers, the transmission of processes to agencies located at tehsils of service, the management of the accounts and correspondence regarding the payment of diet money to witnesses, and other similar matters connected with the carrying out of the system of serving processes through agencies located at outlying tehsils.

10. Scale of process-servers and their distribution among different Courts.—The maximum scale of process-server having establishments allowed to each district has been fixed, but the Senior Subordinate Judge or the Administrative Sub-Judge as the case may be has power to distribute the process-servers sanctioned for the Courts of Sub-Judges in such manner as he thinks fit, with reference to the amount of business coming before the different Courts and the distances to be traversed in serving processes; it must be understood, however, that the full number of process should not be entertained unless they are actually required, Civil Register No. XXIII is intended to show how the work is distributed amongst the different process-servers, and controlling authorities should frequent inspect this register for the purpose of satisfying themselves that no unnecessary process-servers are entertained. Every marked diminution in work or income should be followed by a reduction of establishment.

11. Contingent expenditure.—The total amount of contingencies expended on process-serving establishment should not exceed ten per cent of the cost of such establishment for the year.

12. Special messenger and special bailiff.—No sanction of the higher authorities is necessary if one of the registered process-servers attached to a Court can be spared for employment as a special messenger in the circumstances mentioned in Chapter 6-B. If, however, all process-servers in the district are attached to the Senior Subordinate Judge, the matter should be referred to him for necessary action. Special fee will be course be levied in either case.

The appointment of a special messenger need not necessarily cause the creation of a new temporary post. If, however, a temporary post is required, a reference should be made to High Court under paragraph 20.5 of the Book of Financial Powers. The District and Sessions Judge can create posts of bailiffs required for execution of work of the Co-operative Societies only, and not for others.

A special bailiff may be appointed for the execution of a warrant of arrest if service cannot be effected in the ordinary course. The period of such appointment can be determined by the Court concerned in the circumstances of each case but no special fee should be levied.

PART B – RULES UNDER SECTION 20, CLAUSE (iii)

Rules made by the High Court under the power conferred by Section 20, clause (iii), of the Court-Fees Act, 1870, confirmed by the Provincial Government regarding the remuneration of the process-servers and all other persons employed by leave of a Court in the service or execution of processes.

RULES

1. Scale of salary of process-serving establishment.—The salaries of the process-serving establishment, as such, shall not, except with special sanction of the High Court, exceed the scale shown below against each officer:---

		Rs.
Civil Nazir	{	<u>50-1-70</u>
		40-1-60
Naib-Nazirs	{	<u>30-1-50</u>
		25-1-45
Maded Naib-Nazirs		25
Execution Bailiff		22
Process-server		17

Provided that existing establishment and existing salaries shall in all cases remain unchanged until the sanction of the High Court has been given to any alteration.

Note 1.—Civil Nazirs, Naib-Nazirs and Madad Naib-Nazirs serving in Lahore, Layalpur, Sargodha, Rawalpindi and Amritsar will draw the compensatory allowance of Rs.3/- and bailiffs and process-servers serving in these stations will draw a similar allowance of Rs.2/- and Re.1/- respectively.

Note 2.—European bailiffs are now paid a monthly salary of Rs. 30 and Rs. 3 for each process server.

2. Pay of additional process-servers.—Whenever it is necessary to employ additional persons as process-servers, that is to say, persons other than the registered process-serves, the pay of a person to employed shall be at the rate of seventeen rupees per month.

3. Remuneration of special messenger.—Should it appear to the Court, on the motion of a party to a suit or proceedings, or otherwise, that, for the convenience of the parties or for some other reason, it is expedient that any process should be executed by special messenger, such process shall be so executed. Except in the case of a warrant for arrest, a special fee will be payable for such emergent service; and the Court will, at the time of making its order, declare by whom the fee shall be paid and whether it shall be included in the costs of the suit or be charged to a particular party.

PART C – RULES UNDER SECTION 22

Rules made by the High Court with the approval of the Provincial Government, under the power conferred by Section 22 of the Court-Fees Act, 1870, regarding the number of persons necessary to be employed for the service and execution of processes issued out of the Civil and Criminal Courts established within the local limits of their jurisdiction, respectively.

RULES

1. High Court, to fix number of process-servers for each district.—The High Court shall fix, and shall from time to time, as may be necessary, after the maximum number of process-servers to be retained for the Court of each District and Sessions Judge, and for each district in the Province.

2. Distribution of process-servers among senior Courts.—The number of process-

servers to be retained in each district shall be allotted by the Senior Subordinate Judge, subject to the control of the District Judge and High Courts, to the various Courts of the District in to such manner as shall be most convenient for the service of processes.

3. How to fix the number of process-servers for each district.—In submitting proposals with regard to the maximum number of process-servers to be retained in any district, and in distributing the process-servers retained amongst the various Courts, the Senior Subordinate Judge or the Administrative Sub-Judge should ascertain, and report, when necessary, the number of processes issued from his own Court and from every other Civil and Criminal Court in the district during each month of the previous year; and the maximum number of process-servers fixed for each Court shall be so many as are sufficient for the service of the largest number of processes ascertained to have been issued in any one month. In calculating the number of process-servers capable of serving such ascertained number of processes, regard shall be paid to:--

- (a) the average distance travelled by the peon;
- (b) the nature of the country to be traversed and the local circumstances;
- (c) the number of process-servers by whom the processes were actually served.¹

4. Process-servers not to be employed for any other work.—The process-servers entertained under these rules shall be employed exclusively in the work of serving and executing processes.

¹In fixing the number of process-servers regard must be had to the system of serving processes through agencies located in tehsil.

CHAPTER 7

PROCESSES — CIVIL COURTS

PART A — GENERAL

1. General provisions regarding service of summons.—The provisions regarding the service of summons of the parties, contained in Sections 27, 28 and 143, Order V, Rules 9 to 30, Order XXVII, Rule 4, Order XXIX, Rule 2, Order XLVIII, Rules 1, 2 and 3, Order III, Rules 3, 5 and 6, Order XXVIII, Rule 3, Order XXX, Rule 3, and Order XLI, Rule 14 of the Civil Procedure Code as amended by the High Court should be strictly observed, as neglect of them may often render the service ineffectual, especially when personal service cannot be made.

2. Rules regarding service in particular cases.—Attention is drawn to the following rules regarding service in particular cases:--

<i>Re</i> service on agents	Order III, Rules 3 and 6 and Order V, Rules 12, 13 and 14
<i>Re</i> service on pleaders	Order III, Rule 5.
<i>Re</i> service on Corporations	Order XXIX, Rule 2
<i>Re</i> service on Firms	Order XXX, Rule 3.
<i>Re</i> service in suits against the State	Order XXVII, Rule 4 and Chapter 10 of Volume 1.
<i>Re</i> service in suits against Military or Naval men or Airmen.	Order XXVIII, Rule 3, Order V, Rules 28 and 29 and Chapter 7-D of this volume.
<i>Re</i> service by post	Order V, Rule 10, as amended by the High Court and Rules 21, 24 and 25
<i>Re</i> service <i>re</i> appeals	Chapter 14-B, Volume I.
<i>Re</i> service <i>re</i> execution	Chapter 12-E, paragraph 9, Volume I.

3. Service in cantonments.—Summonses for service on persons residing within the limits of cantonments should not be sent to Executive Officers of cantonments.

4. Service on witnesses.—The general procedure for serving processes on witnesses is the same as in the case of defendants.-- (See Order XVI, Rule 8, and also Volume I, Chapter 5 “Witnesses — Civil Courts.”)

5. Service of orders and notices.—All orders and notices issued under the Code are to be served in the manner provided for the service of summons. (Order XLVIII, Rule 2).

6. Service of processes during trial, appeal and execution.—In connection with the service of processes during the trial, attention is invited to Rules 19 to 25 of Order VII, Rules 11 and 12 of Order VIII and Order XLI (appeals), Rule 38, of the Code framed by the High Court under Section 122 of the Code of Civil Procedure. Under the new rules parties are required to file addresses for the purposes of serving notices on them during the trial. If the party concerned is not found at the address given, the procedure laid down in Order VII, Rule 22, should be followed, and if the party fails to appear on the date fixed notice should be sent to the address by registered post. Such service is then taken to be as effectual as personal service.

The new rules are intended to facilitate service of processes on parties throughout the trial including appeals and executions and should be carefully studied.

7. Forms of processors.—Forms of processes will be found in Appendix B to Schedule I of the Code of Civil Procedure. In the case of persons of distinction a letter may be substituted for a summons if the Court thinks fit (Order V, Rule 30).

8. Form for return of processes.—The forms prescribed for the return of processes by process-servers (as amended by the High Court) should be followed as early as the circumstances of the case permit. These forms are reproduced in Appendix I of this Chapter.

9. Scale of process-fees.—For the scale of process-fees see Chapter 5 of this Volume. For instructions as to the levy of fresh process-fees in certain cases and fees for substituted service see Part A of Chapter 5 of this Volume.

10. Processes sent by post.—When processes are transmitted by post, they should be sent under service covers, and should ordinarily be registered. (Section 143, Civil Procedure Code).

11. Employment of process-servers for execution of warrants attachment, arrest and sale.—Ordinarily bailiffs are to be employed for the execution of warrants of attachment, arrest and delivery of possession, etc., but process-servers may be employed for this purpose with the permission of the officer-in-charge of the Nazarrat where the value of property involved is not high. *Re: execution of warrants of sale by process-servers see Rule 20(v) Chapter 12-L, Volume I.*

PART B – SERVICE OF PROCESS

(a) Mode of Service

1. Service by affixation not to be made before the date fixed for scrutiny of service.—Every attempt should be made to effect personal service in the first issuance and failing that service on an agent or a member of the family. The process-server should go again and again for this purpose if there is time before the date fixed for scrutiny of service. In other words service in any of the ways enumerated in Order 5, Rules 12 to 16 of the Code of Civil Procedure, should be insisted upon and service by affixation as provided in Order V, Rule 17, Civil Procedure Code, should not be allowed till after the day fixed for scrutiny.

2. Substituted service.—Order V, Rule 20(1), of the Code of Civil Procedure, provides that when the Court is satisfied that the defendant is keeping out of the way for the purposes of avoiding service, or that, for any other sufficient reason that summons cannot be served in the ordinary way, service may be effected by affixing a copy of the summons in some conspicuous place in the Court house, and also in some conspicuous place of the house, if any, in which the defendant is known to have last resided, or carried on business, or personally worked for gain, *or in such other manner as the Court thinks fit.*

3. Plaintiff's duty before obtaining orders substituted service.—It should be noted, in this connection, that it is the plaintiff's duty to use his best endeavours to discover the defendant's residence and to satisfy the Court that he has done so and that the defendant is evading service or for any other sufficient reason cannot be served in the ordinary way. It is only after all the other prescribed methods of effecting service have been tried and have failed that it is open to the Courts to exercise the discretionary power conferred by the concluding words of Order V, Rule 10(1), of the Code.

4. Publication in.—The discretionary power alluded to above is frequently exercised by Courts by publication in one or more newspapers of a notice calling upon by defendant to appear. But in many cases this method is quite unsuitable. When, for example, the defendant is illiterate or belongs to a class which cannot be expected to read newspapers such notice is obviously useless. In the case of Europeans or educated Pakistanis likely to read newspapers it may be proper to resort to this method, but even in such cases, the practice should only be adopted as a last resort.

5. **Publication allowed in approved papers only.**—Whenever notice is to be published in a newspaper it should be published in newspapers approved by the High Court. A list of approved newspapers is circulated to subordinate Courts periodically.

6. **Selection of paper to be made by the Presiding Officer.**-- The object of effecting substituted service by advertisement in a newspaper is to inform the defendant that proceedings are pending against him and that he should appear in Court. This object can only be achieved by publication in a newspaper of wide circulation, which is likely to be read by the defendant or the class to which he belongs. The selection of newspapers in which it is proposed to advertise should, therefore, be made by the Presiding Officer himself and not by a Clerk of his office.

7. **Preference to vernacular papers printed in the district of the person to be notified.**—Care should also be taken that such notices are published as far as possible in vernacular papers, vernacular being the language of the subordinate Courts. They should only be published in papers printed in English if there is good reason to suppose that the person concerned read English papers and are more likely to be reached in that way. Preference should be given to such papers as are printed in the District where the person notified resides; or if no newspaper is printed in that District, to those printed in the District nearest to it, provided such papers have a good circulation and are likely to be read by the defendant or the class to which he belongs.

8. **Publication to be arranged through Public Information Bureau.**—In sending a judicial notice for publication in a newspaper, the Court should, in the covering letter, require the manager of the newspaper to send, under postal certificate, the copy of the paper containing the notice to the party for whose perusal it is intended at the address given in the notice, marking the notice in question with red ink; he should also be required, as proof of compliance with this order, to attach the postal certificate to his bill when submitting the letter to the Court of payment.

9. **Covering letter to be forwarded to the Director, Information Bureau and action to be taken by him.**—This covering letter should be addressed to the Director, Information Bureau, Punjab, and not to the Manager of the selected newspaper. The Director Information Bureau, will arrange for the publication of the Court notice in the newspaper indicated. He will receive the bills or bills for this publication, and after satisfying himself about their correctness will countersign them. He will then forward the bills to the Courts concerned for payment direct to the Managers of the newspapers concerned.

10. **Advertisements in papers not on the approved list.**—If it is proposed for any special reasons to advertise to any newspaper, not on the approved list whether published in the Punjab or elsewhere, a reference should first be made to the High Court to ascertain whether there is any objection to the course proposed.

(b) Personal attention to service

1. **General.**—It has been found by experience that delays in the disposal of civil suits are very often due to the failure of Presiding Officers to pay personal attention to matters connected with the issue and service of processes. The following instructions, must therefore, be strictly observed in future:--

2. **The Judge should watch process of service before date of hearing.**—Between the date of the issue of process and the date of hearing, Presiding Officers of Court must personally satisfy themselves that service is being effectually carried out and not content themselves with looking into the matter only on the date of hearing.

3. **Court to fix dates for furnishing talbana, etc., and date for return of process.**—In order to achieve this object the following procedure shall ordinarily be observed in respect of service of all processes for attendance of parties or their witnesses:--

- (a) A very near date shall be fixed for payment of process-fees and for the giving of adequate details of the persons to be served. On this date, the Judge shall satisfy himself that the fees, diet money, etc., have been paid and that the name, address and other particulars of the person to be summoned are reasonably sufficient to secure service. If these conditions have been satisfied, process shall then issue and two dates shall be fixed, the first for the return of the process with a report of the process-serving agency, and the order for the hearing of the case. The interval between the dates of issue and return on the one hand and between the dates of return and hearing on the other, shall in each case leave adequate time for the service of the process. It is not to be left to the discretion of the process-server to decide whether he shall effect personal or substituted service.
- (b) The date of the return should be clearly written on the summons and the Nazir should be warned to return the process before the said date.
- (c) **Reader's note about service.**-- A printed slip showing the following particulars should be filled in by the Reader of the Court and pasted below each order for issuing a process against a party or a witness:---
 - (1) The date when Talbana and address were put in.
 - (2) The date on which the summonses were delivered by the Ahlmad to the Nazir.
 - (3) The date on which the Nazir delivered the process to the process-server or sent it to any other agent.
 - (4) The date of return by the process-server, or agent.
 - (5) The date of return by the Nazir.
 - (6) The name of the official who is to blame for non-service.

Note: If the interval between the dates of return and hearing is sufficient, a second date for return may be fixed.

- (d) **Parties' and Judge's duty as to scrutiny of service on date of return.**—Parties could be invited and encouraged to attend in person or by pleader on the date fixed for return of the summons. Whether they do so attend or not, the Presiding Officer should scrutinize the record and pass any order which may be required, such as an order for the issue of a fresh process. Parties should be encouraged throughout to take dasti summons to accompany the process-servers and to render all assistance in their power.
- (e) **Judge to take into consideration party's conduct in deciding about adjournment.**—In deciding whether to give a further adjournment when a process is not served, the Presiding Officer will be justified in taking into consideration whether the party asking for an adjournment had complied with the orders of the Court in paying process-fees, diet money, etc., and in giving correctly and promptly the names and addresses of the persons to be served.

4. Process-server's affidavit *re* service of process.-- A form of affidavit of the process-server which should accompany the return of the summons has been prescribed by the High Court. See form 11 of Appendix B. Before passing an *ex parte* order the Court should make it a point to see that this affidavit duly filed in, is with the report of the process-server.

(c) Proof of Service

1. Court shall not proceed *ex parte* if summons has not been duly served.—No Court can rightly proceed to hear a suit *ex parte* until it has been proved to the satisfaction of such Court that the summons to a defendant to appear has been duly served, that is, has been served

strictly in such manner as the law provides.

2. Process-server's report to be proved by affidavit or examination in Court.—Whenever it is necessary, in *ex parte* proceedings, under Order IX, Rule 6, of the Code of Civil Procedure, to have the report of service of summons proved by the affidavit or statement in Court of the process-server he should be ordered by the Court to appear before the proper officer or Court.

3. Nature of proof of services in different cases.—The nature of the proof of service which the Court ought to require in each case, according as it falls under one or other of the various relevant provisions of the Code of Civil Procedure relating to service of summons, may be shortly stated as follows:---

- (i) **Personal service.**—When the summons or notice is served on the defendant or respondent personally, the service and the signature of the defendant or respondent on the back of the process should be proved.
- (ii) **Service on agent.**—If the service be made under Order V, Rule 12, on an agent, it should be proved that this person was empowered to accept service, under Order III, Rule 2, 5 or 6, or Order V, Rule 13, of the Code, as the case may be. The party causing the service to be effected must give proof to this effect. It is a matter of which, ordinarily speaking, the serving officer would have no knowledge.
- (iii) **Service on in charge property.**—If the service be made under Order V, Rule 14, it should be proved in like manner that the summons or notice could not be served on the defendant or respondent in person, and that he had no agent empowered to accept the service and that the person to whom the process was delivered was an agent of the defendant or respondent in charge of the land or other immovable property forming the subject-matter of the suit.
- (iv) **Service on adult male member of the family.**—If the service be made under Order V, Rule 15, it should be proved that the defendant could not be found or was absent from his residence and had no agent empowered to accept the service, and that the person to whom the process was delivered was an adult male member of his family, and was actually residing with him at the time of such service. It is to be noted that a servant is not a member of the family within the meaning of this rule.
- (v) **Service by affixation under Order 5, Rule 17.**—If the service be made under Order V, Rule 17, it should, in like manner, be proved, according to the circumstances of the case, either that the person to whom the summons or notice was tendered refused to sign the acknowledgement, though he was informed of the nature and contents of the document, or that the defendant could not be found or was absent from his residence, and that there was no agent empowered to accept service, nor any other person on whom the service could be made; and, in either case, that the house, on the outer door of which a copy of the process was affixed, was the ordinary residence or place of business of the defendant at the time when it was so affixed. It is the duty of the Court in such cases to satisfy itself after taking the process-server's affidavit or statement on solemn affirmation and after such further inquiry as may be necessary, that reasonable efforts were made without success to serve the defendant personally and then declare whether the summons was 'duly served'. Without such a declaration under Order v, Rule 19, the summons cannot be held to be duly served.
- (vi) **Substituted service under Order 5, Rule 20.**—If the service be made under Order V, rule 20, it should, in like manner, be proved that the house upon the door of which a copy of the process was affixed, was the house in which the defendant last resided or carried on business or personally worked for gain, and that the service was made in all respects in conformity with the order for substituted service which should

accompany the process.

- (vii) **Service at address given by parties.**—If service has been effected under Order 8, Rule 12, read with Order 7, Rule 22 (a framed by the High Court), it should be proved that the defendant was not found at the address given by him for service, that there was no agent or adult male member of his family on whom service could be made, that a copy of the summons or notice was affixed on the outer door of his house, and that on his failure to appear on the fixed date, summons or notice was sent to the registered address by registered post for the next date.
- (viii) **Service on firms.**—If the service be made under Order XXX, Rule 3, it should be proved that the summons or notice was served upon any one or more of the partners of the firm concerned, or at the principal place at which the partnership business is carried on within Pakistan, on any person having, at the time of service, the control or management of the partnership business there. In the case of a partnership which has been dissolved, the summons shall be served on every person within Pakistan, whom it is sought to make liable.

4. Proof of service is imporative.—The Court should in all cases obtain the proof which is above described as requisite by the verified statement, recorded in writing, of the person by whom the service was effected, or, if deemed necessary, by the examination in Court, as witnesses, of such persons as the Court may think fit to examine.

PART C — ISSUE OF SUMMONS OR OTHER PROCESS FOR SERVICE ON A PERSON EMPLOYED IN THE PUBLIC SERVICE

1. Service of summons on public officers or servants of local or railway company.—In regard to the service of summons upon the party or witness who is a public officer (not belonging to his Majesty's Military, Naval or Air Service) or is the servant of a railway company or local authority it is open to the Court as provided under Order V, Rule 27 of the Code of Civil Procedure to serve the summons through the head of the office in which the said party or witness is employed if this course is considered more convenient. Ordinarily the summons should be served on the defendant or witness in the ordinary way and a copy sent to the head* of the office or department at least 15 days (10 days in the case of local officers) before the date fixed for the hearing.

The method of effecting service through the head of the office will probably be found the most convenient in the case of defendants or witnesses employed in large administrative offices, such as are situated in Lahore. In all cases where the summons is ordered to be served through the head of the office, an endorsement should be attached to, or written in the body of the summons, conspicuously in red ink, quoting the exact words of sub-rules (1) and (2) of Rule 29, Order V, Civil Procedure Code, which (in the case of witnesses read with Order XVI, Rule 8. Civil Procedure Code) imposes a duty on the head of the office to serve the summons on the subordinate to whom it relates if possible and to return it under his signature, with the written acknowledgement of the defendant or witness; or if service is not possible, to return the summons to the Court with a full statement of the reasons for non-service.

Note: The case of Patwaris forms an exception to the above rule, and is governed by the rules in Chapter 5-B of Volume 1, It should be noted that in *such cases* the summons should be forwarded to the Tehsildar for service, and should not be served direct or through the Deputy Commissioner.

2. Service of summons in suits against railway companies.—In the case of suits against railway companies, in addition to service in the usual way, a copy of the summons should be sent by post under Order XXIX, Rule 2(b): provided that if the summons is sent by registered post, service in the usual way may be dispensed with.

3. Sufficient time to be allowed for the official superior to arrange for relief of the person summoned.—A reasonable time should be allowed for the attendance of the person summoned, in order that his official superior may be able to make suitable arrangements for the conduct of his duties during his absence.

Note: In the case of employees of the North-Western Railway, a copy of the summons should be addressed to the Divisional Superintendent or other superior officer concerned according to the list given in the appendix to Chapter 8.

4. Vernacular robkars may be sent to summon revenue officials but not to offices where business is transacted in English.—If a non-English speaking Judge has occasion to summon a Kanungo or any other official subordinate to Deputy Commissioner to give evidence, he should send a robkar intimating that fact to the Deputy Commissioner to whom such officer is subordinate. Robkars should not be addressed to the heads of public offices and departments in which business is transacted in English. A covering letter or docket in English should be used.

PART D — ISSUE OF SUMMONS OR OTHER PROCESS FOR SERVICE ON PERSONS IN THE ARMY, NAVY OR AIR FORCE

1. Service of processes on employees in the Army, Navy and Air Forces.—(1) Order V, Rules 28 and 29, of the Code of Civil Procedure, provide for the service of processes on soldiers, sailors or airman other than commissioned officers. Such processes should invariably be transmitted for service to the proper military authority.

Sufficient time to be allowed in fixing dates.—(2) There is no special provision in the Code for the service of processes on officers as distinct from soldiers; and such processes should ordinarily be served personally by the European Bailiff of the Court. If there is no European Bailiff attached to the Court, it will be convenient to send the process to the commanding officer or the officer concerned for service in the manner indicated in Order V, Rules 28 and 29.

2. Fresh date should be given if time allowed proves insufficient.—In fixing dates for the attendance of persons in the Army, Navy or Air Force, the Courts should be careful to allow sufficient time. It should be remembered that in fixing a date for the appearance of the defendant in such cases, the time necessary for the transmission of the summons, through the usual channels, for service on the defendant must be taken into consideration, as well as the time which the defendant may, after service, reasonably require to make arrangements for obtaining leave and appearing in person or for appointing and giving instructions to an agent to represent him in the case.

3. On the day fixed for hearing, if it appear that from any cause the summons was not served in sufficient time to enable the defendant to make the necessary arrangements for appearing in person, or by agent, a fresh date must be fixed and notice given to the defendant; but this will seldom be necessary if Courts are careful in the first instance to allow sufficient time, as required by Order V, Rule 6, of the Code of Civil Procedure, and explained in the above remarks.

4. Service on agent or pleader.—It may be noted that when an officer, soldier, sailor or airman has authorized any person under Order XXVIII, Rule 1, to sue or defend in his stead processes may be served on such agents or upon any pleader appointed by such agent. (Order XXVIII, Rule 3).

PART E—ISSUE OF SUMMONS OR OTHER PROCESS FOR SERVICE ON A PERSON RESIDING WITHIN THE JURISDICTION OF ANOTHER COURT IN THE SAME OR ANOTHER PROVINCE WHO HAS NO AGENT TO ACCEPT SERVICE WITHIN THE JURISDICTION OF COURT ISSUING THE PROCESS SERVICE OR PROCESS ISSUING TO OR FROM OTHER PROVINCES

General

1. Different modes of service.—When the person to be served resides within the jurisdiction of another Court the Judge must decide how service is to be effected, and pass orders accordingly.

If the process has to be served within the jurisdiction of another Court but within the same district, the agencies located at tehsils will be employed, the process being transmitted by post from one agency to another. If the process has to be served in another district, but within the Province; it should be transmitted by post of the Senior Sub-Judge for service and return. But no Court should refuse to serve any process received for service within its jurisdiction from a Court in another district or Province, merely by reason of the process not having been sent through the Senior Subordinate Judge. Processes issued to districts in other Provinces, should be forwarded for execution to the District Judge of the district in which service of such process is desired, except where they are to be served within one of the Presidency towns (Order V, Rule 22, Civil Procedure Code), when they should be transmitted for service to the Judge of the Court of Small Causes.

The Government of Bengal have decided that in the case of all warrants or other processes which are required to be executed or served by the Court of Small Causes, Calcutta, on or after the 1st June, 1942, conveyance charges at the rate of Re. 1.80 per warrant and 25 Paisa per copy of summons or other process shall be realized and paid in Court-fee stamps in advance and that before warrants or other processes are transmitted to that Court for execution or service, a certificate of realization of the charges should be endorsed on the warrants or other processes, as the case may be, for the information of the Court of Small Causes, Calcutta, in the absence of which certificate it will not be possible for that Court to execute or serve warrants or processes. —(*General letter No. 4 (Civil) of 1942, from the Registrar of the High Court of Judicature at Fort William in Bengal, Appellate Side, copy endorsed to all District and Sessions Judges in the Punjab and Delhi with Lahore High Court endorsement No. 7391-R/XIX F-2, dated the 4th August, 1942*).

2. Full description to be given of person summoned.—In issuing processes for service in other Provinces the presiding officer of the Court issuing the process should personally satisfy himself that such full particulars of the description of the person summoned are entered in the process as will render it unlikely that the serving officer should mistake the identity of the person summoned. In the cases of Europeans and Anglo-Pakistani, the Christian name or names in full, if possible, and certainly the initials, the profession or trade, and the full address of the person summoned, should be accurately set forth. In the case of Pakistanis, the name, father's name, caste, occupation and address should be recorded in the summons, together with any further particulars which, in the opinion of the Court, will facilitate service of the process. The issue of the process should be delayed until such particulars are satisfactorily furnished by the person applying therefor. The same care should be taken in regard to all processes which are to be served outside the jurisdiction of the Court issuing the person.

3. Processes should bear the seal and signature of the Court and show the name of the Court and District.—All processes should set forth distinctly both the Courts from which the process issues and the name of the district. They should bear the seal of the Court and should be signed legibly.

4. Cases wherein processes should be accompanied by translation in English.—All processes sent for service to any district, the vernacular of which differs from that in which the process is written, should be in duplicate and accompanied by a translation in English.

5. Note on the process that proper fee has been levied.—In every case in which application is made for the issue of a process to a place in British territory, but beyond the limits of the jurisdiction of the Court, the stamp requisite for the issue of such process, under the rules

in force in the Punjab will be levied and affixed to the diary of process fees; and a note will be made on the process to the effect that the proper fee has been levied. A process issued by any Court in the Punjab will be served or executed free of charge in any other part of British territory, if it be certified on the process that the proper fee has been levied under the rules in force in the Punjab. (See also Chapter 5).

6. Processes issued to or by any Court in British territory to be served free of charge.—Processes issued by any Courts in British territory will be served free of charge by the Punjab Courts under the same conditions as are mentioned in the preceding paragraph, i.e., if it be certified on the process that the proper fee has been levied under the rules in force in that Province or territory-. It will be observed that all special charges for service of process issued by a Court in one part of Sub-continent to be served in any other part have been abolished.

Note:- The procedure laid down in paragraphs 5 and 6 has been extended to certain Indian States, as explained hereafter.

7. Process sent to British possessions out of India should be sent by post.—Summonses issued for service on persons residing in Foreign Countries, should be addressed to the defendant at the place in which he is residing and *sent* by post in accordance with Order V, Rule 25, of the Code.

8. Correspondence between judicial officers in the Punjab and Courts of other Provinces to be conducted in English.—All correspondence between judicial officers in the Punjab and the Courts of another Province should be conducted in the English language. In the case of non-English speaking officers, the District Judge should be the channel of communication.

9. Service of processes received from other districts should be watched by the presiding officer.—Complaints are frequently received that the processes sent for service to other districts and not properly attended to. All processes received from other districts should be shown regular in the register "*Tamil Zilla Ghair*" and the disposal of the processes should be watched by the presiding officer on the Court from time to time.

10. Duty of Court receiving summons from another Court for service.—If a summons is issued under the provision of Order V, Rule 21 of the Code of Civil Procedure, it is the duty of the Court serving the summons (a) to proceed as if it had been issued by such Court, (b) to return the summons to the Court of issue together with the record (if any) of its proceedings with regard thereto and (c) to make the declaration referred to in Order V, Rule 19.

In returning the summons the form 10 of Schedule I, Appendix B of the Civil Procedure Code, should be used and should be duly signed and sealed.

PART F — SERVICE OF THE PROCESSES OF THE COURTS IN PAKISTAN IN PLACES BEYOND PAKISTAN

1. Service of summonses by post.—Order V, Rule 25, of the Code of Civil Procedure provides, generally, that if the defendant resides out of Pakistan, and has no agent in Pakistan empowered to accept the service, the summons shall be addressed to the defendant at the place where he is residing, and forwarded to him by post, if there be postal communication between such place and the place where the Court is situate. In practice, all summonses so sent should, where possible, be sent by registered post, and should be "registered acknowledgement due".

The letter containing the summons which should always be sent in an envelope, should be properly and fully addressed and prepaid. A copy of the address on the letter should also be kept on the judicial record and care should be taken that the certificate given by the Postal authorities also contains the full address on the letter.

2. Service of summonses under Order 5, Rule 26, C.P.C.—If it is impossible to effect

service in the above manner, advantage may be taken of the provisions of Order 5, Rule 26, in the following cases:--

- (a) Where in a foreign territory a Political Agent has been appointed or a Court has been established or continued by the Central Government State Representative with power to serve a summons issued by Court in Pakistan (See Notification of the Central Government, No. 322-I, dated the 15th May, 1929, given in Appendix to Chapter 12-S, Volume I).
- (b) Where although no such Court has been established or continued yet the Provincial Government has declared by a notification under Order 5, Rule 26(b) in respect of a Court in foreign territory that service by such Court of any summons issued by a Court of Province shall be deemed to be valid service.

A list of the Courts to which these provisions apply will be found in Appendix VI to this Chapter.

3. Service of summonses under Order 5, Rule 20, C.P.C.—Where the provisions of Order 5, Rule 26, cannot be availed of and service by post has been tried and failed, action may be taken under Order 5, Rule 20, Civil Procedure Code.

4. Instructions *re* service under Order 5, Rule 26, C.P.C.—In cases where service is desired to be effected under Order 5, Rule 26, the following instructions should be followed:--

- (a) The summons should be forwarded in an envelope through the District Judge with a covering letter to the High Court, for transmission to the Provincial Government duly certified that service by post has been tried and failed and in what manner it has failed. The channel of communication *within India* of summonses for service in foreign countries, as distinct from Empire countries is the Provincial Government and the Government of India in the External Affairs Department. As regards documents for service in the Empire countries the channel of communication continues to be the Provincial Government and the Government of India in the Home Department. *It should never be sent direct* unless a special Procedure is otherwise prescribed except in cases where the High Court has allowed that summonses may be sent direct, *e.g.*, in the case of Indian States. An exception is also made in the case of certain countries *viz.*, the Federated Malay States, Johore State (an unfederated Malay State), Iraq and Nepa to which processes may be forwarded direct by the British Indian Courts.
- (b) **Date of return of summonses.**—In no case should a precise date be fixed in the summons or forwarding letter for the return of the service. It is impossible for a Court in Pakistan to order a date before which a foreign judicial authority must execute a request which the foreign judicial authority is under no obligation to execute at all.

A sufficiently long date however (in any case not less than four months) may be fixed for the appearance of the parties before the Court in expectation of the return of the service after making allowance (a) for the time which is bound to be taken by the various channels through which the documents have to pass, and (b) the time which should be given to the person on whom service is effected to prepare his case and attend the Court.

- (c) **Duplicate copies and translation.**—The covering letter, both copies of the summonses and all other documents should be prepared in duplicate and translated in English and typewritten and must be checked and legibly signed by the presiding officer of the Court and should bear the seal of the Court. Where it is not possible to type them in English they should be neatly and legibly written by the presiding officer in his own hand-writing. All translations should be certified to be correct.

- (d) **Names and addresses and translation in foreign language.**—The names and addresses of the persons on whom service of summonses is desired should be neatly and legibly written and should also be given in the forwarding letter. The name and address of the Court should be legible, and its seal should also be legible and properly affixed. Summonses, notices, copies of plaint and other judicial documents should be accompanied by translation in duplicate in the language of the country in which service is to be effected, at the expense of the party at whose instance summonses, etc., are issued. When the party concerned is unable to prepare such translation a request should be made that translation be arranged by the Foreign Office.

The approximate charges for translations into certain foreign languages are the same as given in Rule 28 of Chapter 10-E, Volume I.

Similarly request should be made that the executing officer should cause translations of all the documents sent by him to be made in English and money for this purpose should be recovered in advance from the party concerned.

Where documents in English are being served by a British Consular Officer it is not necessary to supply translations in the language of the country when the recipient is of British nationality, but in other cases translations should be supplied.

- (e) **Cost of translation and service.**—An amount equal to 50 percent more than the estimated costs of effecting service and translation should be recovered from the party concerned in advance and deposited. This amount needed not be sent alongwith the process and heretofore but should be sent when a demand is made to that effect.
- (f) **Presiding Officer responsible for completion of the documents.**—The preparation of summonses must not be left to clerks. The Presiding Officer of the issuing Court will primarily be held responsible for its accuracy and completeness in every respect before transmission to the High Court and it is the duty of the Clerk of Court to District Judge to examine the summonses and its accompaniments carefully and to see that all instructions have been complied with.
- (g) **Index and schedule of documents sent.**—The forwarding letter should either at the foot thereof contain a schedule of all the documents sent alongwith it or be followed immediately by an index of such documents. The first document should be a concise narrative of the action of the parties thereto and of the course to be pursued. The documents should be numbered or lettered so as to correspond with the schedule or index mentioned above.
- (h) **Copies to be certified.**—All copies should be certified by an official of the Court that they have been examined and are true copies. Such certified copies should also bear the seal of the Court.
- (i) **Service by British Consular Officers.**—Pakistan is not a party to any civil procedure convention and therefore it depends entirely on the local law of the foreign country in question whether Pakistan Embassy Officers are permitted to serve documents or to take evidence on behalf of Courts in Pakistan and if so, under what circumstances. In some countries this is permitted where the recipient of the documents or the intended witness is a Pakistani subject and not otherwise.

A request should not be made for the service of documents by a Pakistan Consular Officer in any foreign country unless it has been previously ascertained that the Consular Officer is able to give effect to it. The names of countries where there is no difficulty as regards the service of documents by Pakistani Consular Officers and in which it is unnecessary to apply for permission to the Foreign Office, are given in the Schedule to this chapter.

- (j) **Stitching of papers sent.**—The forwarding letter and all its accompaniments should be on strong paper and sewn together in a parchment paper cover down the left hand side, the end of the silk, tape or thread with which they are sewn being brought out on the front cover and the ends sealed down and the binding signed and sealed by the Judge so that there is no possibility of the removal, substitution or addition of any sheet without breaking the seal.
- (k) **Directions to be given in forwarding letter.**—The forwarding letter or the first annexed document should indicate clearly (a) which is the actual document (or documents) to be served, and (b) if any special method of service is desired (as opposed to a case where any method usually employed by the Courts of the foreign country in question will suffice) the method of service desired: (viz., that one copy of the documents to be served should be left with the intended recipient; that a certificate of service by the process-server should be written on the copy of the documents to be served, that the recipient should be asked to sign a copy of the document served, etc., as the case may be).
- (l) **Address.**—Letters to a Pakistani Consular Officer should refer to Ambassador at _____ or his Deputy. The letter to a Foreign Court, where the proper description of the Foreign Judicial Authority in question is not known, should be addressed to the Competent Judicial Authority in _____ (Name of the country concerned).

5. **Service in Indian States.**—With regard to several Indian States special arrangements have been made to meet the mutual convenience of the Courts of these States and the Courts in British India; reference is made to those below. Where no such arrangements exist, the costs of effecting service, where the summons is not sent direct to the defendant by post, must be remitted with the process to the Political Officer or Court addressed under Order 5, Rule 26, of the Code. With regard to the Punjab States, in regard to which no special directions are here given process will be served in the manner prescribed by Order 5, Rule 26, of the Code. In the absence of any specific rule to the contrary a period of not less than six weeks should, as a rule, be allowed for service of processes in Indian States.

(i) *Balochistan*

Processes intended for service on persons resident in Balochistan shall be sent to the Deputy Commissioner or Political Agent of the District in which such person resides. A list showing the principal Railway Stations and places within the jurisdiction of the several Deputy Commissioners and Political Agents in Balochistan is given in Appendix III.

In fixing dates for the return of such processes a reasonable time, not less than six weeks, should be allowed for effecting service.

(ii) *Jammu and Kashmir, Gwalior, Alwar, Indore and Gondal*

Processes issued by the Courts in British India for service within the territories of His Highness the Maharaja of Jammu and Kashmir, His Highness the Maharaja of Gwalior, His Highness the Maharaja of Alwar and His Highness the Holkar of Indore will be served by State Courts free of charge and *vice versa*, no fee will be charged by Courts in British India on processes issued by the Courts in those territories and sent for service within British territory.

The scale of process fee as laid down by the Gondal Durbar for the service of summonses in civil suits is four annas for every Rs. 25 of the value of the suit or part thereof up to a maximum of Rs. 10/-. This amount is to be remitted by Postal Money Order. No process fee is, however, charged by the state for service of summonses in criminal cases,

The term “Civil Process” means and includes a summons, a proclamation, a notice and interrogatories.

Note.-- So far as the Government of His Highness the Maharaja Holkar of Indore is concerned, the terms "Civil Process" include "Commissions for the examination of witnesses".

All summonses intended for service on persons resident within the territory of Azad Jammu and Kashmir shall be sent direct by the Courts issuing them to the Courts in Kashmir *concerned* and not through the Resident.

In fixing dates for the return of such summonses a Court should have regard to the situation of the Kashmir Court through which the summonses are not to be served. A list of Civil Courts in Azad Jammu and Kashmir is given in Appendix IV.

(iii) *Hyderabad*

For a list of persons privileged in the Indore State on whom civil processes should be served through the agency of the Hon'ble the Resident for Central India, see High Court Circular No. 9798-R/XIX-F.-15, dated the 17th October, 1939.

By arrangement between the Government of India and His Exalted Highness the Nizam of Hyderabad, civil processes for service or execution within His Highness' territories will be issued and served in accordance with the rules applicable to processes of Civil Courts established in British India.

Process issued by Civil Courts in His Highness the Nizam's territories will be served or executed in the Province as if they were processes of Civil Courts established in British India.

In the case of processes for service in the city of Hyderabad, a period of not less than six weeks should be fixed for the return; and in the case of processes for service elsewhere in His Highness the Nizam's territories, a period of not less than two months should be allowed.

The Paigah* and Jagir Ilakas in the territories of His Highness the Nizam of Hyderabad are excluded from the reciprocal arrangements. All civil processes for service on persons residing in these Ilakas should be forwarded to the District Court of High Highness' Government, in the jurisdiction of which the Paigah* or Jagir village concerned is situated and not direct to the Paigah* or Jagir authorities.

As the Paigah* and Jagir villages are very numerous, the Court, when issuing a summons to any person residing in His Highness the Nizam's territories, should ascertain from the party at whose instance the summons issues, whether the person named in the summons resides in a Paigah* or Jagir village and if so the name of the district within the jurisdiction of which the village is situated.

(iv) *Baroda*

Government of India, Foreign Department, Notification No. 1568-IB, dated the 10th August, 1909, provides that summonses issued by Courts in British India under the Code of Civil Procedure may be served by any Civil Court of the Baroda State. The Baroda Durbar have instructed their Civil Courts to receive Summonses and other civil processes direct from Courts in British India and so return them direct after service.

A list of Civil Courts in the Baroda State, showing the locality of each Court and the area of its jurisdiction, will be found in Appendix V of this part.

(v) *Rampur State*

*Paigah Ilakas are certain estates in Hyderabad State comprising 23, talukas dispersed over the districts of Bidar, Nander Osmanabad, Gulbarga, Medak Atrai-i-balds- and Nizamabad and a few scattered villages in Aurangabad, Warangal Muhibnagar and Nalgonda. These estates belong to the representatives of three deceased noblemen and were originally granted to them for maintaining troops for the Nizam.

Processes issued by British Courts for service within the territory of High Highness the Nawab of Rampur State will be received direct by the State Courts and served free of charge. Similarly, processes issued by the Courts in the Rampur State will be received direct by the British Courts and served free of charge.

A list of Civil Courts in the Rampur State will be found in Appendix VI to this Chapter.

6. Special procedure in regard to some particular foreign countries is given below:-

(i) *Afghanistan*

There is no agency in Afghanistan for the service of summonses on witnesses issued by the Punjab Courts. It is, therefore, unless to issue such summonses.

Defendants can only be summoned under Rule 25 of Order V of the Civil Procedure Code in other words by issue of a summons direct to them by post and *not* through any agency.

If action under Rule 25 of Order V fails, Order V, Rule 26 *does not* apply, as there is no Pakistan authority for the service of such summonses in Afghanistan.

The Punjab Courts should, in no case, address Afghanistan Courts or officials or the Pakistani Consulate in Kabul direct.

Violation of these instructions by Subordinate Judges, Magistrates and members of their staffs concerned with the dispatch of summonses causes much embarrassment to the Government of Pakistan.

It will be impossible to treat breaches of them with leniency even though they may have been the result of mere carelessness.

In case of any further contravention, disciplinary action will be taken by way of stopping the increments of the official or officials concerned or otherwise as may be considered suitable.

(ii) *Mauritius*

Every process for service in the town of Mauritius shall be accompanied by a remittance of Rs. 3 per person to be served. If the process is to be served in the country, a further sum at the rate of 75 cents or about two rupees per mile (to and fro) should be remitted. When documents are written in the vernacular, a sum of Rs. 10 should be remitted as translation charges. But in all cases in English translation should be sent.

(iii) *United States of America*

Service in this country is normally done by appointing a local lawyer acting as agent for the parties. Where desired Pakistani Consular Officer will recommend suitable firm of local lawyers.

(iv) *Keyna*

Processes for service should be sent in duplicate, the copies to be identified “original” and “duplicate”, and should be sealed with the Court’s Seal. A Postal Order of 10 Shillings for expenses of service should accompany the process.

(v) *Union of South Africa*

Summonses and other processes should not be sent direct to that country but should be sent as mentioned in rule 4(a).

The returnable date of the summonses or other processes should be at least six months.

The charges for service should be sent alongwith the summonses or other processes.

The fees ordinarily charged by the Courts in the various provinces of the Union of South Africa for the service of summonses issued by Courts in Pakistan are given below:---

Province	Fees for service	Travelling allowance (per mile or fraction of a mile)	Radius (from Deputy Sheriff's office) within which no transport- allowance allowed
Cape	5	Civil matters 1/6d Criminal I	3 Miles
Orange Free State	6/3	1/3d,,	1 Mile
Natal	5	2 (for outward journey only)	1 Mile
Transvaal	7	1/3d	3

SCHEDULE

(Vide Paragraph 4(i), Chapter 7-F – Volume IV)

List of countries in which it is unnecessary to apply for permission to the Foreign Office for service of processes:---

- (1) Aden
- (2) British East Africa
- (3) Japan
- (4) Thailand
- (5) Netherlands East Africa
- (6) Iran
- (7) Federated Malay States

PART G – ASSISTANCE BY VILLAGE OFFICERS IN PROCESS-SERVING

1. The Financial Commissioners have invited the attention of all the Collectors in the Punjab to the necessity of impressing upon the *Lambardar* that as one of their duties under Rule 20 of the Land Revenue Rules, is to assist all officers of the Government in the execution of their public duties, they are expected to assist the process-servers in serving processes in Civil and Criminal cases and that the more care they devote to this branch of the administration, the more expeditiously will the suits be decided. It was further pointed out that it was obviously to the benefit of the village that the *Lambardars* should do his best to assist in the service of the processes. Subordinate Courts should bring to the notice of the Collectors cases of wilful negligence of duty in this direction on the part of *Lambardars* and should not hesitate to move the High Court through the proper channel if matters do not improve *even* then.

2. In order to reduce the possibility of false reports being made on notices of sale, which are not uncommon, it has been decided that the process-server's report on a notice of sale should be attested by a *Lambardar* and, whenever possible, also by the village patwari or school master. The Financial Commissioner, Revenue, and the Director of Public Instruction have respectively instructed patwaris and school masters to attest such reports when asked. The absence of attestation by a patwari or school master should not necessarily be regarded as proof that the process-server's report is false.

PART H – COST OF POSTAGE AND REGISTRATION ON PROCESSES FORWARDED BY POST, HOW TO BE DEFRAIDED

1. Service stamps to be used. Party not required to pay postal charges except under Order 5, Rule 10, C.P.C.—Postal charges on all processes, notices, and other such documents, issued from any Court and transmitted by post, are to be paid by means of service postage stamps, without any additional charge being levied from the parties at whose instance the process of document is issued. In cases in which it is considered necessary to register the cover, the fee for registering it will also be paid by means of service postage stamps. (See Section 143 of the Code of Civil Procedure).

In the case of processes transmitted by post under the proviso to Rule 10, Order V, of the First Schedule to the Code of Civil Procedure, when the order is that service should be made in the ordinary way as well as post by, the party at whose instance the process is issued, will be required to pay all postal charges for postage and registration; if service is to be effected by post only, the postal charges will be paid by means of service postage stamps and he will pay only the normal process-fee. When the party concerned puts in a stamped postal envelope, the Ahlmad or the Moharrir should give him a receipt in lieu thereof.

2. Service stamps to be used for transmission of processes to another Province.—Processes received for service from Courts in other Provinces should be returned in service postage paid covers, the stamps being provided by the returning Court. Similarly, processes returned to Punjab Courts from Courts in other Provinces will be sent in service postage paid covers. The same rule, of course, applies to processes returned by or to other Courts in the same Province.

Service postage labels required for this purpose will be obtained in the usual way.

PART J – POLICE ASSISTANCE

1. The Punjab Government has decided that the following conditions should govern the rendering of Police assistance to the Civil Courts in the execution of warrants of arrest and distress.

2. When request may be made for Police assistance.—A Subordinate Judge may move the District Judge, or in his absence from the district, the Senior Subordinate Judge to ask the District Magistrate for Police assistance. The request must be accompanied by evidence of the circumstances sufficient to satisfy the District Magistrate that there is a design to commit a cognizable offence or that there is a likelihood of the commission of a cognizable offence by the person or persons on whom a warrant of arrest or distress or for the possession of immovable property is to be served.

3. Government should be informed when Police assistance permitted.—In all cases in which the District Magistrate has given permission for the employment of Police for the assistance of the Civil Courts in the execution of warrants, a report of the circumstances should be submitted by him through the Commissioner to the Provincial Government.

4. Cost of the Police employed.—The cost of the Police employed on such duty will be shown in the Budget of the Judicial Department, under the head “27 — Administration of Justice — Civil and Sessions Courts — District and Sessions Judges” under the primary unit of appropriation “Charges payable to other Governments, Departments, etc.,” and the credit will be taken by the Police Department under the head “26 — Police — District Executive Force” by reduction of expenditure under that head under an entry “deduct cost of establishment debitable to ‘27 — Administration of Justice, etc.’”

(Punjab Government letter No. 37074 (H. — Judi.), dated the 19th November, 1929)

PART K — FILLINGUP OF FORMS OR PROCESS

1. Option of a party to fill up forms.—With their applications for the issue of process, parties may, if they so desire, file printed forms of the same duly filled up in accordance with the rules of the High Court regarding the issue of the process. The date of appearance and the date of the process will be left blank.

2. Responsibility for accuracy of contents.—The parties or their pleaders shall sign the forms thus filed in the left bottom corner, and will be held responsible for the accuracy of the information entered in the forms.

3. Legible handwriting.—The form must be filled up in a bold, clear and easily legible handwriting.

4. Dates to be titled in by office.—When orders for the issue of process are passed by the Court, the date fixed for appearance will be inserted in the form and the process will be dated by an officer of the Court before the processes are signed.

5. Free supply of forms.—The necessary number of printed forms of process will be supplied to the parties or their pleaders, free of cost, on application to such officer of the Court as the Presiding Judge shall direct.

APPENDIX I

Affidavit of Process-tarter to accompany Return of a Summons or Notice (O. 5, R. 18)

(Title)

The Affidavit of _____ son of _____

I _____ make oath/affirm and say as follows:--

(1) I am a process-server of this Court,

(2) On the _____ day of _____ 19____ I received a summons notice issued by the Court of _____ in Suit No _____ of 19____, in the said Court, dated the _____ day of _____ 19____ for service on _____.

(3) The said _____ was at the time personally known to me and I served the said summons/notice on him/her on the _____ day of _____ 19____ at about _____ o'clock on the _____ moon at _____ by tendering a copy thereof to him/her and requiring his/her signature to the original summons/notice.

(a) _____

(b) _____

(a) Here state whether the person served signed or refused to sign the process and in whose presence.

(b) Signature of process-server.

or

(3) The said _____ not being personally known to me accompanied me to _____ and pointed out to me a person whom he stated to be the said _____ and I served the said summons/notice on him/her _____ day of _____ 19____ at about _____ o'clock in the _____ noon at _____ by tendering a copy thereof to him/her and requiring his/her signature to the original summons/notice:

(a)

(b)

- (a) Here state whether the person served signed or refused to sign the process and in whose presence.
- (b) Signature of process-server.

or

(3) The said _____ and his house in which he ordinarily resides being personally known to me/pointed out to me by _____ I went to said house in _____ and there on the _____ day of _____ 19____; at _____ o'clock in the fore/after noon I did not find the said I enquired from (a) _____ neighbours

(b) _____ neighbours

I was told that _____ had gone to and would not be back till

Signature of process-server

or

If substituted service has been ordered, state fully and exactly the manner in which the summons was served with special reference to the terms of the order for substituted service.

Sworn/Affirmed by the said _____ before me this _____ day of _____ 19____.

Empowered under section 139 of the code
of Civil Procedure to administer the
oath to deponents.

APPENDIX II

The following notifications provide for the service of summonses issued out of Civil Courts in British India by Courts established or continued by the Government of India in the territories of Native States, and similar cases:---

- (i) *Government of India Notification No. 1336-4 dated the 29th March, 1899.*

In exercise of the powers conferred by Sections 4 and 5 of the Foreign Jurisdiction and Extradition Act, 1879, and of all other powers enabling him in this behalf, the Governor-General in Council is pleased to direct that a summons issued by any Civil or Revenue Court in British India, for service within the local limits of the jurisdiction of a Court established or continued by the authority of the Governor-General in Council in the territories of any Foreign Prince or State shall, if sent to that Court, be served by that Court within those limits in manner provided by Code of Civil Procedure, and after being so served be returned with such an endorsement under the hand of the Judge of the Court as is mentioned in Section 90 of the Code.¹

- (ii) *Government of India Notification No. 1367-J, dated the 29th March, 1889.*

In exercise of the powers conferred by Sections 4 and 5 of the Foreign Jurisdiction and Extradition Act, 1879, and of all other powers enabling him in this behalf, the Governor-General in Council is pleased to direct that a summons issued by any Court established or continued by the authority of the Governor-General in Council in the territories of any Foreign Prince or State for service within the local limits of the jurisdiction of any other such Courts shall, if sent to the other Court, be served by that Court within those limits in manner provided

¹Order V, Rule 26, Code of 1908.

by the Code of Civil Procedure, and after being so served, be returned with such an endorsement under the hand of the Judge of the Court as is mentioned in Section 90 of that Code.¹

APPENDIX III

List of places within the jurisdiction of the Political Agents, Quetta, Sibi, Loralai, Zhob, Kalat and Chaghai.

QUETTA-PESHIN DISTRICT

Aghbarg, Alezai, Arambi, Badezai, Baleli, Band Malezi, Bostan, Chaman, Gulistan, Gulistan Karez, Habibzai, Haikalzai, Hanna, Inayatullah Karez, Kakozi, Karbala, Kasi Kazha Viald, Kechi Beg, Khanozai, Khar, Khanai, Khudazai, Killa Abdulla Kirani, Kotwal, Kuchlak, Manzaki, Manzari, Mohammad Khel, Panjpai, Pishin, Quetta, Sanzal, Sanzalla, Saranan, Sariab, Segi, Shalabagh, Sra Ghurk, Syed Hamid and Yaru.

SIBI DISTRICT

Ahmadun, Azad Shahr, Babarkach, Belpat, Bhakra, Ghulam Bolak, Chandia, Dehpal, Dirgi, Gandakha, Dashkori, Gullu Shahr, Hamidpur, Harnai, Jhatpat, Kach, Karam Khan Shahr, Khajak, Khost, Khowas, Kohlu, Kurk, Mindsay, Malikzai, Mamal, Mangi, Manjhipur, Mian Kach, Mithri Muhammadpur, Nakus, Nari, Nattal, Oriani, Rojhan, Sangar, Shahrig, Sohbatpur, Spintangi, Sunari, Talli, Temple Dera, Yateabad, Zandra and Zardaloo.

LORALAI DISTRICT

Barkhan, Chotiali, Chuhr Kot, Dhamani, Dirgi, Duki, Haji Kot, Hazara Shahr, Ismail Shahr, Khujuri, Kingri, Kudezai, Lagharbah, Leghari Kot, Loralai, Mekhtar Nahar Kot, Nimki, Pathan Kot, Pitoo, Husan Khel, Rakhni, Salli, Shahbozai, Shadezai, Sinjawai, Shira, Smallan, Tai, Tap, Wah, Wahan Kalan, Wahan Khurd, Wani, Yaru, Shahr, Zama Zawar Zebri, and Zhazha.

ZHOB DISTRICT

Akhtarzai, Alikhel, Apozai, Babu China, Badinzai, Bahadurwal Bandat Mirzai, Batozai, Brunj, Chalera Pasta, Fort Sandeman, Gadai Khel, Ghorezai Pitao, Girda, Gwal Ismailzai, Haidarzai, Hindubagh, Hurmzai, Inder Bes, Kajir, Kakha, Kamar-ud-Din Karez, Kapip Kaur Mehtarzai, Kazha Killa Saifullah, Korla Wasta, Kunder, Marghbal, Mardanzai.

¹Order V, Rule 26, Code of 1908.

APPENDIX IV

List of Civil Courts in the Jammu and Kashmir State

S.No.	Name of the Court	Headquarters
AZAD JAMMU & KASHMIR		
1.	Sub-Judge, Jammu	Jammu
2.	City Magistrate	Jammu
3.	Munsif, Jammu	Jammu
4.	Munsif, Sri Ranbirsinghpura	Ranbirsinghpura
5.	Sub-Judge, Mirpur	Mirpur
6.	Munsif, Mirpur	Mirpur
7.	Sub-Judge, Kotli	Kotli
8.	Sub-Judge, Udhampur	Udhampur
9.	Munsif, Reasi	Reasi
10.	Munsif, Kishtwar	Kishtwar in summer and Doda in winter
11.	Munsif, Rajouri	Rajouri
12.	Munsif, Nowshera	Nowshera
13.	Munsif, Kathua.	Kathua
14.	Munsif, Bhimber	Bhimber
15.	Munsif, Ramnagar	Ramnagar
16.	Munsif, Samba	Samba
17.	Wazir Wazarat, Kathua	Kathua
18.	Tehsildar, Ramban	Ramban
19.	Tehsildar, Basohli	Basohli
KASHMIR PROVINCE		
20.	Chief Judge, Kashmir	Srinagar
21.	Sub-Judge, Srinagar	Srinagar
22.	City Magistrate	Srinagar
23.	Munsif, Srinagar (City)	Srinagar
24.	Munsif, Pulwama	Pulwama
25.	Judge, Small Cause Court	Srinagar
26.	Sub-Judge, Muzaffarabad	Muzaffarabad.
27.	Munsif, Baramula	Baramula
28.	Munsif, Anantnag	Anantnag
29.	Tehsildar, Uri	Uri
30.	Tehsildar, Karnab	Karnab
31.	Naib-Tehsildar, Gurez	Gurez
GILGIT WAZARAT		
32.	Wazir Wazarat, Gilgit	Gilgit
33.	Tehsildar, Gilgit	Gilgit
LEH WAZARAT		
34.	Wazir Wazarat, Leh	Leh
35.	Tehsildar, Leh	Leh
36.	Tehsildar, Skardu	Skardu
37.	Tehsildar, Kargil	Kargil
CHUNENI		
38.	Raja Sahib, Chuneni	Chuneni
POONCH		
39.	Chief Judge, Poonch	Poonch
BHADARWAH		
40.	Wazir Wazarat, Bhadarwah	Bahadarwah
LANGET		
41.	Tehsildar, Langet	Langet

APPENDIX V

List of Civil Courts of the Baroda State

Serial No.	Name of Court	Location		Area of jurisdiction
		Locality	District	
1	2	3	4	5
1	Baroda Prant Nyayadhish*	Baroda	Baroda	Baroda district.
2.	Baroda city Munsif's Court	-Do-	-Do-	Baroda City, Baroda Taluka and Waghodia Taluka.
3.	Petlad Mahal Nyayadhishi	Petlad	-Do-	Petlad Taluka and Bhadram Peta Mahal.
4.	Dabhoi Mahal Nyayadhishi	Dabhoi	-Do-	Dabhoi Taluka.
5.	Sunkhoda Mahal Nyayadhishi.	Sunkheda	-Do-	Sunkheda Taluka.
6.	Sinere Mahal Nyayadhishi	Sinore	-Do-	Sinore Taluka.
7	Padra Mahal Nyayadhishi	Padra	-Do-	Padra Taluka
8	Karjan Mahal Nyayadhishi	Karjan	-Do-	Kadan Taluka and Baroda Taluka.
9	Saoli Mahal Nyayadhishi	Saoli	-Do-	Saoli Taluka.
10	Chanded Vabiwatdar's Nyayadhishi	Chandod in Baroda	-Do-	Chandod.
11	Tilakwada Diwani Kamdar's Court.	Tilakwada in Baroda	-Do-	Tilakwada Peta Mahal.
12	Kadi Prant Nyayadhishi	Mehsana	Kadi	Kadi district.
13	Pattan Mahal Nyayadhishi	Pattan	-Do-	Pattan Taluka and Harij Peta Mahal.
14	Sidhpur Mahal Nyayadhishi	Sidhpur	-Do-	Sidhpur Taluka
15	Visnagar Mahal Nyayadhishi.	Visnagar	-Do-	Visnagar and Kheralu Talukas and Wadnagar Peta Mahal
16	Kadi Mahal Nyayadhishi	Kadi	-Do-	Kadi Taluka
17	Kalol Mahal Nyayadhishi	Kalol	-Do-	Kalol Taluka
18	Mehsana Mahal Nyayadhishi	Mehsana	Kadi	Mehsana Taluka
19	Vijapur Mahal Nyayadhishi	Vijapur	-Do-	Viapur Taluka
20	Dehegam Mahal Nyayadhishi	Dehegam	-Do-	Dehegam Taluka and Attarsumba Peta Mahal.
21	Chanasma Mahal Nyayadhishi	Chansama	-Do-	Chanasma Taluka

*The Prant Nyayadhishi is the District Court. When it is known in which Mahal (Taluka) of the District the person to be summoned resides the summons should be sent direct to Mahal Nyayadhishi.

22	Mandwa Nyayadhishi*	Mandwa	-Do-	Village in the jurisdiction of the Mian of Mandwa.
23	Naosari Prant Nyayadhishi ¹	Naosari	Naosari	Naosari district.
24	Kathore Mahal Nyayadhishi	Kathore	-Do-	Kathore, Velachh and Kamrej Talukas and Wakal Peta Mahal.
25	Vyara Mahal Nyayadhishi	Vyara	-Do-	Vyara, Balsana, Mahuva and Songad Talukas.
26	Vajpur Divini Kamdars Nyayadhishi	Vajpur	-Do-	Vajpur Peta Mahal
27	Malangdeo, Diwani Kamdars Nyayadhishi	Malangdeo	-Do-	Malangdeo Peta Mahal.
28	Salher Diwani Kamdars Nyayadhishi	Salher	-Do-	Salher Peta Mahal.
29	Umarpada Diwani Kamdars Nyayadhishi	Umarpada	-Do-	Umarpada Peta Mahal.
30	Amreli Prant Nyayadhishi ¹	Amreli	Amreli	Amreli district.
31	Dhari Mahal Nyayadhishi	Dhari	-Do-	Dhari Taluka.
32	Kodinar Mahal Nyayadhishi	Kodinar	-Do-	Kodinar Taluka.
33	Okhamandal Mahal Nyayadhishi	Dwarka	-Do-	Okhamandal Taluka
34	Bet Diwani Kamdars Nyayadhishi	Bet	-Do-	Pet Shankhodhar
35	Ratanpur Diwani Kamdars Nyayadhishi	Ratanpur	-Do-	Ratanpur Peta Mahal.
36	Bhim Katta Diwani Kamdars Nyayadhishi	Bhim Katta.	-Do-	Bhim Katta Peta Mahal.
37	Kambha Diwani Kamdars Nyayadhishi	Khambha	-Do-	Khambha Peta Mahal

*Mandwa is situated on the Vatrak river, and these villages adjoin it in the Baroda enclave, that is bounded by Vatrak river on the west and by the Mahi Kantha and the Kapadvanj and Prantij tahsils on the remaining sides.

¹The Prant Nyayadhishi is the District Court. When it is known in which Mahal (Taluka) of the District the person to be summoned resides, the summons should be sent direct to that Mahal Nyayadhishi.

APPENDIX VI

List of countries and Courts to which Section 29 and Clause (b) in Rule 26 of Order V in the First Schedule of the Code of Civil Procedure, 1908 (Act V of 1908) have been applied.

1. Federation of Malaya.
2. Courts in Ceylon.
3. Civil Courts in France, Spain, Belgium, Russia and Portugal.
4. Egyptian mixed Courts.
5. All Civil and Revenue Court in Iraq.
6. All Civil and Courts in Kenya.
7. Civil Courts in Iran.
8. Civil Courts in Sweden.
9. Civil Courts in Japan.
10. Certain Courts in Nepal.
11. Civil Courts in the Union of South Africa.
12. Indian States in direct relation with the Government of India and the Punjab Government (*see First Schedule*).
 - (i) *Government of India, Legislative Department, Notifications No. F. 202/4/11/41-C, & G. (Judi.), and No. F. 202/4/1/41-C & G. (Judl.), dated the 20th February, 1942, as subsequently amended by Government of India notifications mentioned in Statement A annexed hereto.*
 - (ii) *Punjab Government Political Department – General Notification No. 1191-P. G-42/25398, dated the 22nd April, 1942, as subsequently amended by Punjab Government notifications mentioned in Statement B annexed hereto.*
13. Courts in Johore State (an Unfederated Malaya State) (*see Second Schedule*).

FIRST SCHEDULE

(See item 12 of this Appendix)

“(a) For Delhi Province

(1) “GOVERNMENT OF INDIA – LEGISLATIVE DEPARTMENT

Notification No. F. 202/4/1/41/C & G. (Judl.), dated the 20th February, 1942, as subsequently amended by Government of India notifications mentioned in Statement A annexed hereto.

In pursuance of the proviso to Section 29 of the Code of Civil Procedure, 1908 (Act V of 1908), and in supersession of the Notification of the Government of India in the late Foreign Political Department No. 323-1, dated the 15th May, 1929, and of all notifications amending the same, insofar as they relate to the Chief Commissioners’ Provinces, the Central Government is Placed to direct that, insofar as those Provinces are concerned, the provisions of the said section shall apply to the Courts specified in the Schedule hereto annexed:---

THE SCHEDULE

<i>Agency</i>	<i>State</i>	<i>Court</i>
Baroda and Gujrat States Agency	Baroda	All Civil and Revenue Courts.
	Agar	Court of the Thakore.
	Balasinor	High Court, Balasinor.
		Court of the Sar Nyayadhish
		Court of the Nyayadhish
		Court of the Sub-Judge, Birpur.
	Bansda	Huzur Court.
		Court of the District and Sessions Judge
		Court of the Nyayadhish
	Baria	Huzur Court.
		Court of the Sar Nyayadhish
	Bhaderwa	Huzur Court
		Court of the Nyayadhish
	Cambay	Court of the Sar Nyayadhish
		Court of the Nyayadhish
1 Baroda and Gujarat States Agency- conclud.	Chhota Udepur	Huzur Court
		High Court
		Court of the Sar Nyayadhish.
		Court of the Nyayadhish.
	Dharampur	Court of the Judge.
		Court of the District Judge.
	Gad Bariad	Court of the Manager.
	Jambughoda	Huzur Court.
	Baroda – conclud.	Court of the Sar Nyayadhish.
		Court of the Nyayndhish.
	Jawhar	Court of the Sar Nyayadhish.
		Court of the Nyayadhish.
	Kadana	Court of the Manager, Kadana.
		Court of the Nyayadhish, Kadana
	Lunawada	Huzur Court.
		Court of the Sar Nyayadhish.
		Court of the Nyayadhish.
	Mandwa	Court of the Thakore.
		Court of the Karbhari.
		First Class Sub-Judge's Court.
		Nyayadhish's Court.
	Naswadi	Court of the Thakore.
		Court of the Nyayadhish.
	Palasni	Court of Thakore.
	Rajpipla	Huzur Court.
		Court of the Sar Nyayadhish.
		Court of the Munsiff of Nandod.
		Court of the Munsiff of Jhagadia.
	Sachin	High Court of Sachin.
		District and Session Judge, Sachin.
		District Magistrate and Sub-Judge of Sachin.
	Sanjeli	Court of the Manager, Sanjeli.
	Sent	Huzur Court.

	Shanor	Court of the Nyayadhish.
	Sihora	Court of the Thakore.
	Sargana	Court of the Thakore.
	Uchad	Court of the Magistrate, Sargana.
	Umeta	Court of the Thakore.
	Vajiria	Court of the Manager.
2. Central India		Court of the Thakore.
		Civil Courts
(i) Bhopal	Bhopal	The High Court, Bhopal.
		District Court, Eastern District
		(including Tahsils Nasrullaganj and
		Madanpur and excluding Tahsils
		Dewanganj and Piklon), Bhopal.
		District Court, Bhopal City.
		District Court, Western District
		(including Tahsils Dewanganj and
		Piklon and excluding Tahsils
		Nasrullaganj and Madanpur).
		Sehore.
		Sub-Judge, Bhopal City.
		Sub-Judge, Begumganj.
		Sub-Judge, Bereli.
		Sub-Judge, Gohargunj.
		Sub-Judge, Dewanganj, Bhopal.
		Sub-Judge, Berasia.
		Sub-Judge, Huzur Bhopal.
		Sub-Judge, Sehore.
		Munsiff, Sehore.
		Munsiff, Bhopal City.
		Munsiff, Raisen.
		Munsiff, Bambori.
		Munsiff, Udaipura.
		Munsiff, Nasrullaganj.
		Munsiff, Dewanganj, Bhopal.
		Munsiff, Piklon.
		Munsiff, Hazur Bhopal.
		Revenue Courts:
		Revenue Member's Court, Bhopal.
		Nazim of Eastern District, Raisen.
		Nazim of Western District, Sehore.
		Sub-Judge's Court, Dewas Senior Branch.
		District Court, Dewas Junior Branch.
		Civil Judge's Court, Khilchipur.
		Court of the Dewan, Khilchipur.
	Dewas Senior	Civil Court, Kurwai.
	Dewas Junior	Revenue Court, Kurwai.
	Khilchipur	All Civil and Revenue Courts.
	Kurwai	Court of the Superintendent,
	Makrai	Mohammadgarh.
	Mohammad-garh	District Judge, Narsingarh.
	Narsingarh	Musif, Sadar Narsingarh.
		Munsiff, Khujner.
		Court of the Revenue Officer,
		Narsingarh.
	Pathari	Civil Court, Pathari.

	Rajgarh	Court of Superintendent, Pathari. Sub-Judge's Court, Biaora. Munsiff's Court, Rajgarh. Munsiff's Court, Talen. Munsiff's Court, Kotre.
(ii) Bundel-khand	Ajaigarh Baoni	Darbar's Court, Ajagarh. Court of the Diwan, Baoni State, Kadaura.
	Baraundha	Court of the Diwan, Baraundha.
	Bijawar	Court of the Darbar, Bijawar.
	Charkhari	Court of the Darbar, Charkhari.
	Datia	High Court, Datia. Chief Revenue Officer's Court, Datia.
	Maihar	Court of the Dewan, Maihar.
	Nagod	Court of the Dewan, Nagod.
	Panna	Court of the Darbar, Panna.
	Sohawal	Court of the Dewan, Sohawal.
(iii) Indore	Indore	Civil Courts. High Court of Judicature, Indore. District Court, Nimar, Mandlesar. 1st Grade Munsiff's Court, Mandlesar. District Court, Rampura Bhanpura Garote. District Court, Mahidpur. District Court, Nimawar, Kannod. District Court, Indore. 1st Grade Munsiff's Court, Khargone. 1st Grade Munsiff's Court, Manasa.
		Revenue Courts: All Revenue Courts in the Indore State.
	Rewa	Civil Courts: Chief Court, Rewa State, Rewa. District and Sessions Judge, North Rewa, Rewa. Deputy Magistrate and Munsiff Rewa, Rewa. Deputy Magistrate and Munsiff, Raghurajnagar, Satna. Deputy Magistrate and Munsiff, Teonthar, Teonthar. Deputy Magistrate and Munsiff, Mauganj, Mauganj. District and Sessions Judge and Deputy Revenue Commissioner, East Rewa, Baghaun. Deputy Magistrate and Munsiff, Gopad Banas, Sidhi. District and Sessions Judge and Deputy Revenue Commissioner, South Rewa, Umaria. District Magistrate and Munsiff, Sohagpur, Burhar. Court of the Revenue Minister, Rewa. Deputy Revenue Commissioner, Rewa. Tahsildar, Hazoor Tahsil, Rewa. Tahsildar, Raghurajnagar, Satna.

		Tahsildar, Teonthaj, Teonthar.
		Tahsildar, Sirmour, Sirmour.
		Tahsildar, Maughanj, Maughanj.
		District and Sessions Judge and
		Deputy Revenue Commissioner,
		East Rewa, Baghaun.
		Tahsildar, Gopad Banas, Sidhi.
		Tahsildar, Beohari, Beohari.
		Tahsildar, Deosar, Deosar.
		District and Sessions Judge and
		Deputy Revenue Commissioner,
		South Rewa, Umaria.
		Tahsildar, Sire Bandhogarh, Umaria.
		Tahsildar, Sohagpur, Sohagpur.
(iv) Malwa	Alirajpur	Munsiff's Court, Alirajpur.
	Barwani	Chief Judge's Court, Barwani.
		Revenue Officer's Court, Barwani.
	Dhar	District Magistrate's Court, Dhar.
		Chief Revenue Officer's Court, Dhar.
	Jaora	Chief Judge's Court, Jeora.
		Chief Court of the Suba of Jaora.
	Jhabua	Nazim's Court, Jhabua.
	Jobat	Court of the Kamdar, Jobat.
	Kathiwara	Court of the Thakur of Kathiwara,
		Post Office Kathiwara <i>via</i> Alirajpur.
	Mathwar	Court of the Kamdar, Mathwar State
		Post Office Kanvat, Chhota Udepur, State.
	Pipoda	Court of the Superintendent Piploda State.
	Ratanmal	Court of the Kamdar, Ratanmal
		State, Post Office Devgad Baria.
	Ratlam	Judge's Court, Ratlam.
	Sailana	Court of the Sar Nyayadhis of Sailana.
	Sitamau	Court of the Sar Nyayadhis, Sitamau.
3. Eastern States:		
(i) Bengal States	Cocch Behar	All Civil and Revenue Courts.
	Mayurbhanj	Ditto
	Tripura	Ditto
(ii) Chhattisgarh	Bastar	Ditto
States:		
	Changbhakar	Ditto
	Chhuikhadan	Ditto
	Jashpur	Ditto
	Kalahandi (Karond)	Ditto
	Kanker	Ditto
	Kawardha	Ditto
	Khairagarh	Ditto
	Korea	Ditto
	Nandgaon	Ditto
	Patna	Ditto
	Raigarh	Ditto
	Sakti	Ditto
	Sarangarh	Ditto
	Surguja	Ditto
	Udaipur	Ditto
(ii) Orissa States	Athgarh	All Civil and Revenue Courts.
	Athmallik	Ditto

	Bamra	Ditto
	Baramba	Ditto
	Baudh	Ditto
	Bonai	All Civil and Revenue Courts.
	Daspalla	Ditto
	Dhenkanal	Ditto
	Gangpur	Ditto
	Hindol	Ditto
	Koenjha	Ditto
	Khandpara,	Ditto
	Kharsawan	Ditto
	Narsinghpur	
	Nayagarh	Ditto
	Nilgiri	Ditto
	Pal-Lahara	Ditto
	Rairakhot	Ditto
	Ranpur	Ditto
	Seraikela	Ditto
	Sonepur	Ditto
	Taleher	Ditto
	Tigiria	Ditto
4. Gwalior	Benarc	Civil Courts: Chief Court, Ramnagar. District Judge's Court, Gyanpur, District Bhadohi. District Judge's Court, Chakia. District Judge's Court, Ramnagar. Munsiff s Court, Gyanpur, District Bhadohi. Munsiff s Court, Chakia. Munsiff s Court, Ramnagar. Revenue Courts: Collector's Court, Gyanpur, District Bhadoi. Collector's Court, Chakia. Collector's Court, Ramnagar. Deputy Collector's Court, Gyanpur, District Bhadohi. Assistant Collector's Court, Tahsil East Gyanpur, District Bhadohi. Assistant Collector's Court, Tahsil West Gyanpur, District Bhadohi. Assistant Collector's Court, Ramnagar. Assistant Collector's Court, Chakia. All Civil and Revenue Courts.
	Gwalior	Civil and Revenue Courts: Ijlas Humayun. Judicial Committee of the Ijlae Humayun. The High Court of Judicature. Court of Civil Judge. Court of Additional Civil Judge. Board of Revenue. Nizamat. Court of Assistant Collector, Tahsil Huzur. Court of Assistant Collector, Tahsil Shahabad.
	Rampur	

			Court of Assistant Collector, Tahsil Milak. Court of Assistant Collector, Tahsil Suar. Court of Assistant Collector, Tahsil Tanda. All Civil and Revenue Courts.¹
5.	Hyderabad	Hydrabad	
6.	Kashmir	Kashmir	All Civil and Revenue Courts.
7.	Kolhapur and Deccan State	Akalkot	Court of the Raja of Akalkot.
			High Court of Judicature, Akalkot. Court of District and Sessions Judge, Akalkot. Court of the Joint Nyayadhish, Akalkot. Court of the Subordinate Judge at Piliv. Court of the Subordinate Judge at Kurala. Court of the Nyayadhish, Aundh State. Court of the Subordinate Judge, Aundh, Taluka. Court of the Subordinate Judge, Gundal, Taluka. Court of the Subordinate Judge, Atpadi Taluka. Court of Subordinate Judge, Kundal Taluka.
		Aundh	
		Bhor	High Court, Bhor. Court of the District Judge, Bhor. Court of Munsif at Bhor. Court of the Munsiff at Pirangut. Court of the Munsiff at Pali.
		Jamkhandi	Huzur or Court of the Raja of Jamkhandi. High Court, Jamkhandi. Court of Sar Nyayadhish or the District Judge, Jamkhandi. Court of the Nyayadhish and First Class Sub-Judge, Jamkhandi. Court of the Munsiff and First Class sub-Judge, Kundgol. Court of Munsiff or Wahiwaftur, Thana Wathar. Court of Munsiff or Wahiwatdar, Thana Patkal.
		Janjira	High Court, Janjira. Court of the Sar Nyayadish of Janjira. Court of the Munsiff of Janjira. Court of the Munsiff at Jafarabad in Kathiawar. Court of the Mamlatdar at Jafarabad in Kathiawar.
		Jath	Supreme Court of the Ruler. High Court of Judicature, Jath State. Court of the District Judge.
		Kolhapur	Court of the First Class Subordinate Judge. (1) Courts in the Kolhapur State proper: The Combined Court of the Resident for Kolhapur and the Deccan States and His Highness the Chhatrapati Maharaja of Kolhapur. The Supreme Court of His Highness. The High Court of Judicature at Kolhapur.

The Court of the District Judge, Kolhapur.
 The Court of the Assistant Judge, Kolhapur.
 The Court of the First Class Sub-Judge,
 Kolhapur.
 The Court of Second Class Sub-Judge,
 Kolhapur.
 The Court of the Second Class Sub-Judge,
 Shirol.
 The Court of the Second Class Sub-Judge,
 Gadhingalaj.
 The Court of the Second Class Sub-Judge,
 Radhanagari.
 The Court of the Second Class Sub-Judge,
 Panhala.
 The Court of the Second class Sub-Judge,
 Katkol.
 The Court of the Second Class Sub-Judge,
 Raibagh.
 The Court of the Second Class Sub-Judge,
 Hatkanangale.
 The Second Class Sub-Judge,
 Meh-Malharrao-Gaikwad Vishwasrac.
 The Second Class Sub-Judge, Mah.
 Kashatra-Jagad-guru.
 The Second Class Sub-Judge, Meh.
 Chinchalikar.
 The Second Class Sub-Judge, Meh.
 Khanawatkar.
 The Second Class Sub-Judge, Meh.
 Patankar.
(2) Courts in the Feudatory Jaghirdars:
 The Court of the Jaghirdar of Jehakaranji.
 The Court of the Jaghirdar of Kagal
 (Senior).
 The Court of the Jaghirdar of Vishalgad.
 The Court of the Jaghirdar of Bavada.
 The Court of the Jaghirdar of Kagal
 (Junior).
 The Court of the Jaghirdar of Kapshi.
 The Court of the Jaghirdar of Himat
 Bahadur.
 The Court of the Jaghirdar of Torgal.
 The Court of the Jaghirdar
 of Sarlashk Bahadur.
 The Munsiff's Court, Ichalkaranji.
 The Munsiff's Court, Ajra.
 The Munsiff's Court, Kagal (Senior).
 The Munsiff's Court, Vavada.
 The Munsiff's Court, Kagal (Junior).
 The Munsiff's Court, Vishalgad.
 The Munsiff's Court, Sarlashkar Bahadur.
 The Munsiff's Court, Torgal.
 The Munsiff's Court, Kapshi.
 The Munsiff's Court, Himat Bahadur.
 The Court of Joint Officer, Mahagaon.
 Chief's Court of High Court.

	(Senior)	Sar Nyayadhish Court and the District Judge's Court. First Class Sub-Judge's Court. Court of the Munsiff, Taluka Kurundwad. Court of the Munsiff, Taluka Angol. Court of the Munsiff, Taluka Tikota.
	Kurundwad (Junior)	All Civil and Revenue Courts.
	Miraj (Senior)	High Court. District Court, Miraj. Court of the Second Class Sub-Judge, Miraj. Court of the Second Class Sub-Judge, Laxmeshwar. Court of the Second Class Sub-Judge, Modnimb.
	Miraj (Junior)	Huzur Court. Court of the District Judge. Court of the Munsiff of Gudguri Court of the Munsiff of Budhgaon. Court of the Munsiff of Khandali.
	Mudhel	Court of the Council of Regency. High Court. Court of the District Judge. Court of the First Class Sub-Judge. Court of the Second Class Sub-Judge. Court of the Small Causes Judge.
	Phaltan	High Court. Court of the District Judge. Court of the First Class Subordinate Judge.
	Ramdurg	Huzur Court. Court of the District Judge. Court of the First Class Subordinate Judge. Court of the Second Class Subordinate Judge.
	Sangli	All Civil and Revenue Courts.
	Savanur	High Court, Savanur. Court of the District Judge, Savanur. Court of the First Class Subordinate Judge, Savanur.
	Sawantwadi	Huzur Court, Sawantwadi. High Court (Civil), Sawantwadi. Court of the Sar Nyayadhish. Court of the Nyayadhish, Sawantwadi. Court of the Nyayadhish, Kudal.
8.	Madras State	Coehin High Court of Coehin, Ernakulam. District Court (Principal), Anjikaimal. District Court (Additional), Anjikaimal. District Court (Principal), Trichur. District Court (Additional), Trichur. Munsiff s Court, Chitur. Munsiff s Court, Cochin. Munsiff s Court, Cranganur. Munsiff s Court, Ernakulam.

		Munsiff's Court, Irinjalakuda. Munsiff's Court (Principal), Trichur. Munsiff's Court (Additional), Trichur. Munsiff's Court, Vadakkancheri. Chief Court, Pudukkottai. Second Appeals Court, Puddukkottai. Court of the Registrar and Small Causes Judge, Chief Court, Pudukkottai. Court of the Small Cause Judge and Sub-Registrar, Alangudi. Court of the Small Cause Judge, and Sub-Registrar, Annavasal. Court of the Small Cause Judge and Sub-Registrar, Karambakudi. Court of the Small Cause Judge and Sub-Registrar, Keelaniilai. Court of the Small Cause Judge and Sub-Registrar, Keeranur. Court of the Small Cause Judge and Sub-Registrar, Perungalur. Court of the Small Cause Judge and Sub-Registrar, Ponnamarvathi. Court of the Small Cause Judge and Sub-Registrar, Tirumayam. Court of the Small Cause Judge and Sub-Registrar, Viralimalai.
Mudras States	Travancore	High Court of Travancore, Trivandrum. District Court, Alleppey. District Court, Kottayam. District Court, Mavelikar. District Court, Nagercoil. District Court, Parur. District Court, Quilon. District Court, Trivandrum. Munsiff's Court (District), Adoore. Munsiff's Court (Principal), Alleppey. Munsiff's Court (Additional), Alleppey. Munsiff's Court (District), Attungal. Munsiff's Court (Temporary), Attungal. Munsiff's Court (District), Changancherry. Munsiff's Court (District), Che. Munsiff's Court (District), Devicolam. Munsiff's Court (District), Ettumanur. Munsiff's Court (District), Haripad. Munsiff's Court (District), Kanjirapalli. Munsiff's Court (District), Karunagapalli. Munsiff's Court (District), Kottarakara. Munsiff's Court (Principal), Kottayam. Munsiff's Court (Temporary), Kottayam. Munsiff's Court (District), Kuzhithurai. Munsiff's Court (District), Mavelikara. Munsiff's Court (District), Meenachil. Munsiff's Court (District), Muvattupuzha. Munsiff's Court (Principal), Nagercoil. Munsiff's Court (Additional), Nagercoil. Munsiff's Court, Nedumandgad.

			Munsiff's Court, Neyyattinkara. Munsiff's Court (Principal), Padmanabhapuram. Munsiff's Court (Additional), Padmanabhapuram. Munsiff's Court (District), Parur. Munsiff's Court (District), Pathanamthitta. Munsiff's Court (District), Perumbavur. Munsiff's Court (Principal), Quilon. Munsiff's Court (Additional), Quilon. Munsiff's Court (District), Sheneottah. Munsiff s Court (Principal), Shertallai. Munsiff's Court (Temporary), Shertallai. Munsiff's Court (District), Thiruvellah. Munsiff's Court (Temporary), Thiruvellah. Munsiff s Court (District), Todupuzha. Munsiff's Court (Principal), Trivandrum. Munsiff's Court (Additional), Trivandrum. Munsiff's Court (Temporary), Trivandrum. Munsiff's Court (District), Vaikom.
9.	Mysore	Banganapalle	<i>Revenue Courts</i> — Dewan's Court, Banganapalle. Research Officer's Court, Banganapalle. <i>Civil Court</i> Chief Court of Banganapalle, Court of the Civil and Sessions Judge, Banganapalle. Munsiff's Court, Banganapalle. All Civil and Revenue Courts.
		Mysore	All Civil and Revenue Courts. -
		Sandar	High Court of Judicature at Baghdad-ul-Jadid.
10.	Punjab States	Bahawalpur	District Judge, Bahawalpur at Bahawalnagar. District Judge, Rahimyar Khan Bahawalpur. Additional District Magistrate, Rahimyar Khan at Ahmadpur East. Additional District Magistrate, Bahawalpur. Assistant Commissioner, Bahawalpur. Assistant Commissioner, Bahawalnagar. Assistant Commissions, Allahabad. Assistant Commissioner, Rahimyar Khan. Munsif, Sadiqabad. Tahsildar, Sadiqabad. Munsiff, Rahimyar Khan. Tahsildar, Rahimyar Khan. Munsif, Khanpur. Tashidar, Khanpur. Munsiff, Allahabad. Tahsildar, Allahabad. Sub-Judge Ahmadpur East. Tahsildar, Ahmadpur East. Munsiff, Bahawalpur. Tahsildar, Bahawalpur. Munsiff, Chishtian. Tahsildar, Chishtian.

	Munsiff, Bahawalnagar. Tahsildar, Bahawalnagar. Munsiff, Minchinabad. Tahsildar, Minchinabad. Tahsildar, Fortabbas. Chief Court. Court of the District and Sessions Judge. Court of the State Vakil at Dalhousie. Court of the Sub-Judge No. 1. Court of the Sub-Judge No. 2. Court of the Sub-Judge No. 3. Court of the Sub-Judge No. 4.
Chamba	
Dujana	The Dewan, Dujana Statp. The Nazim, Dujana State. The Tahsildar of Dujana. The Tahsildar of Nahar. Bench of Honorary Magistrates at Nahar.
Faridkot	Civil Courts: Chief Justice, High Court. District Judge, Senior Sub-Judge. Junior Sub-Judge. Revenue Courts: Chief Justice, High Court. Judicial and Revenue Secretary. Revenue Assistant. Naib-Tahsildar, Kotkapura. Naib-Tahsildar, Nehianwala. Naib-Tahsildar, Faridkot Civil Courts: Revenue Courts: Revenue Minister's Court. Collector's Court. Tahsildar Sadar's Court. Tahsildar, Ahmadgarh's Court.
Mandi	Civil Courts: Judge, Ijlas-i-Alin. Court of Appeal. Senior Judge, Court of Appeal. Junior Judge, Court of Appeal. Sub-Judge and Magistrate, 1st Class, Sadar. Treasury Officer (Magistrate, 1st Class and Sub-Judge, IInd Class). Revenue Assistant (Magistrate, 1st Class and Sub-Judge, IInd Class). Honorary Magistrate, IInd Class, and Sub-Judge, IIIrd Class. Sub-Judge, IInd Class, and Magistrate, 1st Class, Jogindernagar. Sub-Judge, 1st Class, and Magistrate, 1st Class Sarkoghat. Tahsildar, Sadar (Magistrate, 2nd Class) Tahsildar, Jogindernagar (Magistrate, 2nd Class). Tahsildar, Sarkaghat (Magistrate, 2nd Class). Tahsildar, Chachiot (Sub-Judge and Magistrate, 2nd Class)

	Revenue Courts: Chief Minister's Court. Revenue Secretary's Court. Revenue Assistant. Tahsildar, Sadar. Tahsildar, Jogindernagar. Tahsildar, Sarkaghat. Tahsildar, Chachiot. High Court, Nabha. District and Sessions Judge, Nabha. Nazim of Amolh, District Nabha. Nazim of Phul, District Phul. Nazim of Bawal, District Bawal.
Nabha	
Pataudi	High Court and Financial Commissioner (These powers are exercised by the Ruler). Dewan exercising the powers of District Magistrate, Sessions Judge, Collector and District Judge. 2 Sub-Judges. Tahsildar.
Patiala	Civil Courts: Minister of law, Patiala. High Court, Patiala. District and Sessions Judge, Patiala. District and Sessions Judge, Sunama. District and Sessions Judge, Bhatindd. Naib Nazim Dewani, Patiala. Naib Nazim Dewani, Bassi. Naib Nazim Dewani, Sunam. Naib Nazim Dewani, Bamalo. Naib Nazim Dewani, Bhatinda. Naib Nazim Dewani, Mansa. Naib Nazim Dewani, Rajpura. Naib Nazim Dewani, Bhawanigarh. Naib Nazim Dewani, Dhuri. Naib Nazim, Dewani, Narwana. Naib Nazim Dwani, Narnual. Revenue Courts: Revenue Minister, Patiala. Revenue Commissioner, Patiala. Nazim, Patiala, District Patiala. Nazim, Barnala, District Barnala. Nazim, Sunam, District Sunam. Nazim, Narnaul, District Narnam. Nazim Bassi, District Rassi. Nazim, Kohistan, Kandaghat. Naib Nazim Mal, Barnala, District Barnala. Naib Nazim, Mal, Patiala, District Patiala. Naib Nazim Mal, Sunam, District Sunam. Tahsildar, Patiala. Tahsildar, Rajpura. Tahsildar, Bhawanigarh. Tahsildar, Sunam. Tahsildar, Narwana. Tahsildar, Barnala. Tahsildar, Bhatinda. Tahsildar, Mansa. Tahsildar, Mansa.

Unjab Hill States	Suket	Tahsildar, Sirhind. Tahsildar, Dhuri. Tahsildar, Narnaul. Tahsildar, Kandaghat. Chief Courts. District Judge's Court. Sub-Judge Suket State, Sundarnagar. Tahsildar, Balh, Sundamagar. Judicial Bench, Suket State.
		Civil Courts: Ijlas-i-Alia. The Sessions and District Judge's Court. The Court of the Magistrate, 1st Class. The Court of the Magistrate, 2nd Class. The Court of the Sub-Judge, 1st Class. The Court of the Sub-Judge, 2nd Class.
	Bilaspur	Revenue Courts: The Revenue Secretary's Court. The Collector's Court. The Tahsildar of Suddar's Court. The Tahsildar of Ghumarvin's Court.
		Ijlas Khas. High Court District and Sessions Court. Court of the Magistrate, 1st Class, Chachrauli. Court of the Magistrate, 1st Class, Dera Bassi. Court of the Magistrate, 1st Class, Chirak. Court of the Sub-Judge, Chachrauli. Court of the Sub-Judge, Dera Bassi. Court of the Sub-Judge, Chirak. Court of the Financial Commissioner. Court of the Chief Revenue Officer. Court of the Collector, Chachrauli. Court of the Collector, Dera Bassi. Court of the Collector, Chirak. Court of the Tahsildar, Chachrauli.
	Kalsin	Raj Niya Sabha. High Court. District and Sessions Judge. Collector and District Magistrate. Magistrate, 1st Class. Tahsildar, Ranika. Tahsildar, Pachhad. Tahsildar, Paunts. Tahsildar, Nahan.
		All Civil Courts of the State through the Judicial Secretary, Tehri (Garhwal) State.
	Sirmur	
	Tehri (Garhwal)	
	Bharatpur	All Civil and Revenue Courts.
	Bundi Dholpur Jhalawar	All Civil and Revenue Courts. All Civil and Revenue Courts. All Civil and Revenue Courts.

11. Rajputana:
(i) Eastern
Rajputana States
Agency

	Karauli	All Civil and Revenue Courts.
	Kotah	All Civil and Revenue Courts.
(ii) Jaipur Agency	Alwar	All Civil and Revenue Courts.
	Jaipur	All Civil and Revenue Courts.
	Kishangarh	All Civil and Revenue Courts.
	Shahpur	All Civil and Revenue Courts.
	Tonk.	All Civil and Revenue Courts.
(iii) Mewar and Southern Rajputana States Agency	Banswara	All Civil and Revenue Courts.
	Dungarpur	All Civil and Revenue Courts.
	Mewar	All Civil and Revenue Courts.
	Partabgarh	All Civil and Revenue Courts.
(iv) Western Rajputana States Agency	Danta	Huzur Court.
		Dewan's Court.
		Naib Dewan's Court.
		State Munsiff's Court.
		Court of the Munsiff at Shri Mataji.
		Court of the Munsiff at Hadad.
		Court of the Munsiff at Tarsang.
		Court of the Munsiff at Joita
		All Civil and Revenue Courts.
	Jaisalmer	All Civil and Revenue Courts.
	Jodhpur	Huzur Court.
	Palampur	Sar Nyayadhish Court.
		Palampur Small Causes Court.
		Palampur Diwani.
		Nyayadhish Court.
		Dess Dhanera Munsiff's Court.
		Dhanera Nyayadhish Court.
		Panthawada Nyayadhish Court.
		Dabela Nyayadhish Court.
		Bapla Kamdar's Diwani Court
	Sironi	All Civil and Revenue Courts.
	Bikander	All Civil and Revenue Courts.
12. Sikkim	Sikkim	The Chief Court of Sikkim in the exercise of its civil jurisdiction.
13. Western India States:		
(i) Western India States Agency.	Bhavnagar	Darbar Hazur Court, Bhavnagar.
		Sar Nyayadhish Court, Bhavnagar.
		Joint Sar Nyayadhish Court, Bhavnagar.
		City Bhavnagar Diwani Nyayadhish Court, Bhavnagar.
		City Bhavnagar Fouzdari Nyayadhish Court, Bhavnagar.
		City Bhavnagar Honorary Magistrates Bench Court, Bhavnagar.
		Mahuva Nyayadhish Court, Mahuva.
		Kundla Nyayadhish Court, Kundla.
		Talaja Nyayadhish Court, Talaja.
		Lilia Nyayadhish Court, Lilia.

(ii) Western India
Cutch States Agency

Sihor Nyayadhish Court, Sihor.
Umralla Nyayadhish Court, Umralla.
Gaghada Nyayadhish Court, Ganghada.
Botad Nyayadhish Court, Botad.
Victor Nyayadhish Court, Rajula.
Huzur Court.

Varisht Jadehja Court.
Varisht Khalsa Court. Bhaj Court.
Mandvi Court.
Mundra Court.
Anjar Court.
Bhachan Court.
Rabpur Court.
Nakhtrana Court.
Abdasa Court.
Lakhpat Court.
Khabada Court.
Khadir Court.
Jakhaui Court.
Madh Court.

Court of Small Causes, Bhuj.
Court of Small Causes, Mandvi.
Court of Small Causes, Mundra.
Court of Small Causes, Anjar.
Court of Small Causes, Bhachan.
Court of Small Causes, Rahpur.
Court of Small Causes, Abdasa.
Court of Small Causes, Lakhpat.
Court of Small Causes, Nakhtrana.

Dhrangadhra

High Court of Judicature,
Dhrangadhra.
District and Sessions Court,
Dhrangadhra.
First Class Sub-Judge's Court, Dhrangadhra.
Second Class Sub-Judge's Court,
Dhrangadhra.
First Class Magistrate, Dhrangadhra.
Second Class Sub-Judge, Halvad.
First Class Magistrate, Halvad.
Second Class Sub-Judge, Rajsitapur.
First Class Magistrate, Rajsitapur.
Court of Small Causes, Dhrangadhra.
Court of Small Causes, Halvad.
Court of Small Causes, Rajsitapur.
Rajprakarni Bhayati Court at Dhrangadhra.
Survey and Settlement Court at
Dhrangadhra.

Dhrol

Huzur Court.
Court of the Sar Nyayadhish.
Small Causes Court.
Court of the Nyayadhish Dhrol.

Gondal

Sarapdad Nyayadhish's Court.
Huzur Court, Gondal.
Court of the Sar Nyayadhish, Gondal.
Munsiff's Court, Gondal.

	Munsiff's Court, Dhoraji.
	Munsiff's Court, Uplota.
	Court of the Diwani Nyayadhish, Sarsari.
Idar	Court of the Sar Nyayadhish.
Jafrabad	Court of Mamlatdar and Sub-Judge, Jafrabad.
	Court of Munsiff and Sub-Judge, Jafrabad.
Junadagh	Huzur Court, Junagadh.
	Sadar Court, Junagadh.
	Civil Court, Junagadh.
	City Magistrate's Court, Junagadh.
	Nageshri Court, Junagadh.
	Una Court, Una.
	Veraval Court, Veraval.
	Malia Court, Malia.
	Shil Court, Shil.
	Kudana Court, Kutiana.
	Vanthali Court, Vanthali.
	Bhesan Court, Beshan.
	Visavadar Court, Visavadar.
	Talala Court, Talala.
	Huzur Court, Mangrol.
	Nyayadhish Court, Mangrol.
	Small Causes Court, Mangrol.
	District Judge's Court, Mangrol.
Limbdi*	Huzur Court, Limbdi.
	Court of Small Causes, Limbdi.
	Court of the Sar Nyayadhish, Limbdi.
	Munsiff's Court, Limbdi.
Morvi	Huzur Court, Morvi.
	Court of the Sar Nyayadhish, Morvi.
	Court of the First Class Magistrate, Morvi.
	Court of the Dewani Nyayadhish, Morvi.
	Small Causes Court, Morvi.
	Court of the Nyayadhish, Adhoi.
Nawanagar	Nawanagar Judicial Secretary's Court (High Court), Jamnagar.
	Nawanagar Sar Nyayadhish and Sessions Court, Jamnagar.
	Jawanagar Small Causes Court, Jamnagar.
	Nawanagar Nyayadhish Court, Jamnagar.
	Nawanagar Joint Nyayadhish Court, Jamnagar.
	The Bhayati Court, Jamnagar.
	Nawanagar City First Class Magistrate's Court, Jamnagar.
	Munsiff and First Class Magistrate's Court, Khambhalia.
	Munsiff and First Class Magistrate's Court, Kalyanpur.
	Munsiff and First Class Magistrate's Court, Bahanvad.

*All summonses for the Courts of this State are to be addressed to the Huzur Court, Limbdi.

		Munsiff and First Class Magistrate's Court, Lalpur.
		Munsiff and First Class Magistrate Court, Jodia.
		Munsiff and First Class Magistrate Court, Kandorna.
		Munsiff, Court, Kalvad.
		Munsiff's Court, Atkot.
	Palitana	Huzur Court, Palitana.
		Court of the Sar Nyayadhis, Palitana.
		Court of the First Class Magistrate, Palitana.
		Small Causes Court, Palitana.
	Porbandar	Huzur Court, Porbandar.
		Court of the Sar Nyayadhis, Porbandar.
		Court of the Nyayadhis, Porbandar.
		Munsiff's Court, Porbandar.
		Munsiff's Court, Ranavay.
		Munsiff's Court, Navibander.
	Radhanpur	Court of the Sar Nyayadhis.
		Court of Radhanpur Munsiff.
		Court of the Sarni Munjpur Munsiff.
	Rajkot ¹	Huzur Court.
		Court of the Sar Nyayadhis, Rajkot.
		Court of the Diwani Nyayadhis, Rajkot.
		First Class Magistrate's Court, Rajkot (which exercises the powers of a Small Causes Court).
		Sardhar Thana Court, Sardhar.
		Kuvadva Thana Court, Kuvadva.
	Vijaynagar	Court of the Sar Nyayadhis, Vijaynagar.
	Wadhwan	Huzur Court, Wadhwan.
		Court of the Sar Nyayadhis, Wadhwan.
		Court of the Nyayadhis, Wadhwan.
	Wankaner	Huzur Court, Wankaner, Wankaner.
		Court of the Sar Nyayadhis, Wankaner.
		Court of the Nyayadhis, Wankaner.
		Court of Small Causes, Wankaner.
(ii) Saba Kantha Agency	Adesar-Santalpur	Court of the Kamdar of Adesar-Santalpur.
	Ambaliara	Court of Thakor of Ambaliara.
	Bolundra	Court of Thakor of Bolundra.
	Dabha	Court of Manager of Dabha.
	Dadhalia	Court of Manager of Dadhalia.
	Deodar, W.S. Viramsinhji's Taluka	Court of Waghela Shri Viramsinhji of Deodar.
	Deodar, W.S. Viramsinhji's Taluka	Court of Waghela Shri Viramsinhji of Deodar.
	Dedhrota	Court of Thakor of Dedhrota.
	Derol	Court of Thakor of Derol.
	Gabat	Court of Thakor of Gabat.
(ii) Sabar Kantha Agency	Ghodasar	Court of Thakar of Ghodasar.

¹All summons for the Courts of this State are to be addressed to the Huzur Court, Rajkot.

	Hapa	Court of Thakor of Hapa.
	Ilol	Court of of Manager of Ilol.
	Kadoli	Court of Thakor of Kadoli.
	Katosun	Court of Manager of Katosun.
	Khadal	Court of Thakor of Khadal.
	Khedavada	Court of Thakor of Khedavada.
	Likhi	Court of Thakor of Likhi.
	Magodi	Court of Manager of Magodi.
	Malur	Court of Raolji of Malpur.
	Mansa	Court of Raolji of Mansa.
	Mohanpur	Court of Takor of Mehanpur.
	Prempur	Court of Thakor of Prempur.
	Punadra	Court of Thakor of Punadra.
	Ramas	Court of Thakor of Ramas.
	Ranasan	Court of Thakor of Ranasan.
	Rupal	Court of Manager of Rupal.
	Sathamba	Court of Manager of Sathamba.
	Sudasna	Court of Thakor of Sudana.
	Tervada	Court of the Judicial Kamdar, Tervada.
	Thara	Court of the Judicial Kamdar, Thara.
	Tharad	Court of the Manager of Tharad.
		Court of Sar Nyayadhish, Tharad.
		Court of Morvada Tahsildar.
		Court of the Bhorole Talukar.
	Vadagam	Court of the Thakor of Vadagam.
	Vakhtapur	Court of Manager, Vakhtapur.
	Valasna	Court of Thakor of Valasna.
	Varahi, Malek	Court of Manager, Malek Shri
	Shri	Husseinyavarkhanji's Taluka,
	Husseinyavarkhana	Varahi.
	ji's Taluka	
	Varsoda	Court of Thakor of Versoda.
	Vasna	Court of Thakor of Vasna.
	Wao	Huzur Court, Wao State.
		Court of the Karbhari, Wao.
		Court of the Sar Nyayadhish, Wao.
		Court of the Nyayadhish, Wao.
(iii) Eastern	Anandpur	The Court of K.S. Hathia Desa Estae
Kathiawar Agency	(Kachar Shri Hathia	of Anandpur.
	Desa)	
	Anandpur (Khachar Shri	The Court of K.S. Dada Jiwa Estate of
	Dada Jiwa)	Anandpur.
	Bajana	Huzur Office, Bajana.
		First Class Magistrate's Office, Bajana.
	Chuda	Huzur Court, Chuda.
		Court of the Nyayadhish, Chuda.
	Lakhtar	Court of the Judicial Karbhari, Lakhtar.
		Court of the Nyayadhish, Lakhtar.
		Court of the Nyayadhish, Than.
	Lathi	Huzur Court, Lathi.
		Court of the Sar Nyayadhish, Lathi.
		Court of the Nyayadhish, Lathi.
	Muli	Huzur Court, Muli.
		Court of the Nyayadhish, Muli.
	Patdi	Huzur Court, Patdi.
		Bhayati Court, Patdi.

		Court of the Sar Nyayadhis, Patdi.
		Court of the Nyayadhis, Patdi.
	Rai Sankli	The Court of the Manager, Rai Sankli Taluka.
	Rajpur	The Court of the Talukdar, Rajpur.
	Sayla	Hazur Court, Sayla.
		Court of the Nyayadhis, Sayla.
		Sara Thandar Court, Sayla.
	Vala	Huzur Court, Vala.
		Court of the Sar Nyayadhis, Vala.
		Court of the Nyayadhis, Vala.
	Vanod	The Huzur Court, Vanod.
		Court of the Nyayadhis, Vanod.
	Vithalgadh	Huzur Court, Vithalgadh.
		The Court of the First Class Magistrate, Vithalgadh.
	Zainabad	The Court of the Talukdar, Zainabad.
		Court of the Nyayadhis, Zainabad.
(iv) Western Kathiawar Agency	Alidhra	Nyayadhis, Alidhra Taluka.
	Anida	Nyayadhis, Anida Taluka.
	Bagasra (Ram Mulu) (Khari).	Nyayadhis, Khari Talukdar.
	Bantwa	Taluka Nyayadhis, Bantwa Taluka.
	Barwala	Kamdar, Barwala Taluka
	Bhadwa	Kamdar, Bhedwa Taluka.
	Bhayavadar	Manager, Bhayavadar Taluka.
	Bilkha	Huzur Court, Bilkha.
		Court of the Sar Nyayadhis, Bilkha.
	Champrajpur	Nyayadhis, Champrajpur Taluka.
	Dadan	Court of K.S. Unad Bhan, Talukdar of Dadan.
	Gadhka	Kamdar, Gadhka Taluka.
	Gavridad	Manager, Gavridad Taluka.
	Hadala-Bagasra	Nyayadhis, Hadala-Bagasra Taluka.
	Jalia Devani	Kamdar, Jalia Devani.
	Jasdan	Huzur Court, Jasdan.
		Court of the Sar Nyayadhis, Jasdan.
		Court of the Nyayadhis, and First Class Magistrate, Jasdan.
	Jatpur	Sar Nyayadhis, and Nyayadhis, Jatpur State.
	Khijadia	Manager, Khijadia Talukgt.
	Khirasara	Nyayadhis, Sar Nyayadhis and Huzur Court, Khirasara State.
	Kotda-Pitha	Majmu Nyayadhis, Kotda-Pitha Taluka.
		Huzur Court, Kotda-Sangani.
		Karbohari Court, Kotda-Sangani.
		Court of the Nyayadhis, Kotda-Sangani.
	Kotharia	Talukdar of Kotharia Taluka.
	Lodhika (T.S. Mulwaji).	Mulwaji Estate, Lodhika Taluka.
	Lodhika (T.S. Vijaysinhji).	Vijaysinhji Estate, Lodhika Taluka.
	Malia	Nyayadhis, Malia State.
	Manavadar	Huzur Court, Manavadar.

	Court of the Sar Nyayadhis, Manavadar.
	Court of the Nyayadhis, Manavadar.
Manpur	Nyayadhis and First Class Magistrate
	Court of the Nyayadhis, Manpur Taluka.
Mayapadar	Court of the Nyayadhis,
	Maynpadar Taluka.
Mengani	Second Class Magistrate, Mengani Taluka.
Nadala	Talukdar, Nadala Taluka.
Natwarnagar	Nyayadhis, Natwarnagar Taluka.
Pal	Talukdar, Pal Taluka.
Rajpara	Kamdar, Rajpara Taluka.
Sanala	Manager, Sanala Taluka.
Sardargadh	Nyayadhis, Sardargadh.
Sardarpur	Nyayadhis Sardarpur.
Shahpur	Shahpur Taluka.
Thana-Devli	Huzur Court, Thana-Devli State.
	Court of the Nyayadhis, Thana-Devi State.
Thumbala	Nyayadhis, Thumbala Taluka.
Vadia	Huzur Court, Vadia State.
	Court of the Sar Nyayadhis, Vadia.
Vasavad	Majmu Nyayadhis, Vasavad.
Virpur	Huzur Court, Virpur.
	Court of the Sar Nyayadhis, Virpur.

(ii) GOVERNMENT OF INDIA, – LEGISLATIVE DEPARTMENT

Notification No. F. 202/4/II/41-C. & G. (Judl.), dated the 20th February, 1942

“In pursuance of Clause (b) of Rule 26 of Order V of the First Schedule to the Code of Civil Procedure, 1908 (Act V of 1908), the Central Governemnt is pleased to declare that service by any Civil Court specified in the Schedule annexed to the Notification of the Governemnt of india in the Legislative Department No. F.202/4/II/41-C. & G. (Judl.), dated the 20th Feruary, 1942 of any summons issued under the said Code by a Court of any Chief Commissioner’s Province shall be deemed to be valid service.”

¹.Summonses for service in the Hyderabad State shall be forwarded to the city Civil Court and District Civil Courts only.

“(a) For Punjab Province”**“PUNJAB GOVERNMENT, — POLITICAL DEPARTMENT/GENERAL.”**

Notification No. 1191-P.G. 42-25398, dated the 22nd April, 1942, as subsequently amended by Punjab Government Notifications mentioned in Statement B annexed hereto.

“In pursuance respectively of the proviso to Section 29 and of Clause (b) of Rule 26 of Order V of the First Schedule to the Code of Civil Procedure, 1908 (Act V of 1908), the Governor of the Punjab is pleased to declare:—

(1) that the provision of Section 29 of the said Code shall apply to the Courts specified in the Schedule annexed; and

(2) that service by any Civil Court specified in the said Schedule of any summons issued under the said Code by a Court in the Punjab shall be deemed to be valid service.”

Note: The Schedule for the Punjab Provinces is the same as is annexed to the Government of India.—Legislative Department, Notification No. F-202/4/1/41-C. & G (Judi.), dated the 20th February, 1942 as subsequently amended by notifications mentioned in statement A annexed hereto).

STATEMENT A

(See item 12(i) of this Appendix and item (a)(i) of the First Schedule)

**GOVERNMENT OF INDIA,—LEGISLATIVE DEPARTMENT
NOTIFICATIONS**

- (1) No. F.-202/4/41-C. & G. (Judi.), dated 15th June, 1942.
- (2) No. F.-202/4/41-C. & G. (Judi.), dated 18th July, 1942.
- (3) No. F.-202/4/41-C. & G. (Judi.), dated 24th November, 1942.
- (4) No. F.-202/4/43-C. & G. (Judi.), dated 19th April, 1943.
- (5) No. F.-202/4/43-C. & G. (Judi.), dated 14th May, 1943.

STATEMENT B

(See item 12(ii) of this Appendix and item (b) of the First Schedule)

**PUNJAB GOVERNMENT,—POLITICAL DEPARTMENT
GENERAL NOTIFICATIONS**

- (1) No. 3227-611-S.-PG-42/40798, dated 18th July, 1942.
- (2) No. 3790-PG-42/48039, dated 3rd September, 1942 as corrected by Notification No. 5059-PG-42/58088, dated 23rd October, 1942.
- (3) No. 6657-PG-42/1674, dated 9th January, 1943.
- (4) No. 2729-PG-43/36016, dated 8th June, 1943.
- (5) No. 3507-PG-43/40864, dated 5th July, 1943.

SECONDSCHEDULE

(See item 13 of this Appendix)

STATE OF JOHORE (MALAY)

District

Court held at

- | | | | |
|----|----------------|------|-------------------------------|
| 1. | Johore Baliru | | Johore Bahra. |
| 2. | Muar | | Bandar Maharani, Muar. |
| 3. | Batu Pohat | | Bandar Penggaram, Batu Pohat. |
| 4. | Kluang ... | | Kluang. |
| 5. | Segamat ... | | Segamat. |
| 6. | Kota Tinggi | | Kota Tinggi. |
| 7. | Mersing ... | | Mersing. |
| 8. | Pontian ... | | Pontain. |
| 9. | Tangkak (Muar) | | Tangkak. |

CHAPTER 8

PROCESSES — CRIMINAL COURTS

A — ISSUE AND SERVICE OR SUMMONS

1. **Signing of summons.**—Every summons in a Criminal case should be signed legibly and in full by the Magistrate by whom it is issued, with the name of his office or the capacity in which he acts. The practice of signing initials only or of using a stamp is objectionable and should not be adopted.

2. **Regarding service of summons in non-cognizable cases.**—In Criminal cases which are not cognizable by the Police, within the meaning of Section 4, clause (f) of the Code of Criminal Procedure, summonses are to be served through the civil process-serving establishment attached to the Courts. District Magistrates shall see that the prescribed fee is duly paid in such cases.

3. **Fee of eight annas to be paid for such process.**—Rules under the Court-Fees Act, 1870, for the realization of process fees, will be found in Chapter 5, “Process Fees”. Under Rule 5 of the Rules in Part B of that chapter, a fee of eight annas is to be levied for each process issued in every non-cognizable case, that is, in every case in which the Police may not arrest without a warrant according to the Second Schedule of the Code of Criminal Procedure. By the Notification of the Punjab Government No. 314 of the 21st March, 1883, issued under Section 68 of the Code, every Criminal summons for the service of which a fee is levied under rules made by the High Court under the Court-Fees Act, shall be served by the process-serving establishment of the Court issuing the summons.

4. **Service of summons sent by a Court to a place outside its jurisdiction.**—(a) Under Section 73 of the Code of Criminal Procedure, a summons issued by a Court for service at any place outside the local limits of its jurisdiction should ordinarily be sent in duplicate to a Magistrate within the local limits of whose jurisdiction to person summoned resides or is to be there served. In special cases, however, *e.g.*, when particular urgency in service is required the Courts may subject to the general or special orders issued by him, permit the prosecuting agency to send summons direct by registered post, acknowledgment due, to the police station concerned.

(b) When the summons has to be sent for service from a Court to any district, the vernacular of which differs from that in which the process is written, it should be accompanied by a translation in English.

5. **Affidavits by Police Officers and process-servers who serve summons.**—Attention is invited to the provisions of Section 74 of the Code of Criminal Procedure which makes an affidavit of service admissible in evidence in certain cases. When the Police serve a summons outside the local limits of the jurisdiction of the Court from which it issued, and in all cases in which it is probable that the Police Officer who serves a summons will not be present at the hearing of the case, the Police Officer, who has served such summons should make an affidavit in the form given below before the nearest Magistrate. The affidavit, and a duplicate of the summons endorsed in the manner provided by Section 69 or Section 70 of the Code, should then be forwarded to the Court, which issued the summons.

(ii) The same procedure will be observed by process-servers in regard to criminal processes in similar circumstances.

(iii) Printed forms of the affidavits mentioned above will be provided. These should be supplied to all officers in charge of Police Stations.

(iv) Magistrates must not detain Police Officers and process servers, who attend their Courts merely to make affidavits, longer than is necessary for that purpose.

Declaration of service of summons

I _____ son of _____ do hereby solemnly declare that I did on _____ the _____ day of _____ serve _____ son of _____ of _____ with the summons now shown to me and marked A, by delivering (or tendering) a duplicate to him [or, by leaving a duplicate for him with _____ an adult male member of his family residing with him or by affixing duplicate to a conspicuous part of his house or homestead].

(Signed)

Declared before me at _____ by _____ this _____ day of _____ 19____.

6. Instructions re-issue of summons for particular class of persons.—The following instructions are issued with regard to the issue of summons for particular classes of persons:--

(i) *Government servants generally.*—When the person summoned is in the active service of Crown, the Court or Magistrate issuing the summons should in accordance with the provisions of Section 79 of the Code of Criminal Procedure, ordinarily send it duplicate, to the head of the office in which the person summoned is employed, who will cause the summons to be served on the person named therein. This rule applies to every summons issued under the Code (Section 93).

(ii) *Bodies corporate.*—When the summons has to be served on an Incorporated Company or other body corporate, such as a Municipal Committee, service may be effected by serving the summons on the Secretary, Local Manager or other principal office of the Corporation, or by registered post letter addressed to the chief officer of the Corporation in British India. In such cases the service should be deemed to have been effected when the letter would arrive in ordinary course of post (vide Section 69(3) of the Code of Criminal Procedure).

(iii) *Soldiers in military employ.*—When a Criminal Court issues a summons for the appearance of a soldier in military employ, the summons should be sent for service to the Officer Commanding the Regiment in which such soldier is serving. The provisions of Section 72 of the Code of Criminal Procedure are wide enough to include persons in military employ; and whenever it is necessary to summon an officer or soldier or other person in military employ, the summons should always be sent for service to the head of the Office or Head of Department or Officer Commanding the of regiment in which such officer, soldier or other person is serving, unless there are special reasons, which should be recorded, for proceeding otherwise.

(iv) *Railway officials.*—(a) Persons in the active service of any Railway Company or Administration are subject to the same rules regarding the issue of summons as Crown servants (see (i) above).

(b) Considerable inconvenience results from the indiscriminate summoning of the superior officers of the Railway to give evidence on points of railway practice, customs, orders &c., which could equally well be done by subordinate Railway officials at or near the place where the trial is being held, and subordinate Courts should in the exercise of their discretion abstain from requiring the attendance of the Manager or other high officials of the Railway, except in special cases in which their evidence is absolutely necessary.

(c) To assist the Courts in summoning the subordinate officials who would most probably be able to give the evidence required with the smallest inconvenience to the Railway a list of the superior officers under whose immediate orders the Railway subordinates are, is given in the Appendix to this order, and, except where a strict adherence to this rule would cause delay or inconvenience, all processes for the attendance of any subordinate official should ordinarily be served through his immediate superior.

(v) *Police.*—Whenever a summons is issued to an officer of Police to appear as witness it should be served upon such officer through the Superintendent of Police, or, in the case of an outpost, the Assistant or Deputy Superintendent in charge of the outpost to which the individual summoned may belong.

(vi) *Medical Officers.*—The following instructions regarding the summoning of Medical Officers and their subordinates to give evidence in criminal cases should be observed:---

(i) On all summonses intended for service on officials of the Medical Department it should be stated whether the official concerned is being called to give evidence as an expert, or to give evidence in a case with which he has had to deal in the ordinary course of his duties as a Medical Officer.

- (i) Summonses for medical officers and subordinates in cases in which their evidence as experts is not required, whether the Court is in their own district or not, should be forwarded to the Civil Surgeon concerned for service.
- (ii) Notice should be given to the Inspector-General of Civil Hospitals whenever a summons has been issued to a medical man in civil employ under the Punjab Government to give evidence as an expert outside his district.
- (iii) The evidence of medical officers under orders of transfer should, wherever possible, be taken before they hand over charge. With this object in view, the Inspector-General of Civil Hospitals has been requested to communicate to the District Magistrates information about impending transfers of medical officers as soon as orders are received in his office. When the orders are so communicated, the Magistrates of the district, the Superintendent of Police, and the medical officer concerned should be consulted and the evidence of the medical officer in pending cases should be recorded, so far as it may be practicable, before he hands over charge. For the remaining cases, in which it would be necessary for the medical officer to return in order to give his evidence, effort should be made to fix one or two suitable days for the evidence being recorded by all the Courts concerned, so as to avoid the necessity of frequent trips to the district for that purpose.

(High Court Circular letter No. 1417-RIXXV-5, dated the 18th February, 1942).

(vii) *Consuls-General.*—When it is necessary to summon certain Consuls-General residing in or visiting the Punjab to give evidence in a criminal case, the summons should issue in the form of a letter. The form of summons given in Form XXXI of Schedule V attached to the Code of Criminal Procedure will be used, except that it will begin and end as a letter, and the body of the letter need not be so abrupt as the form itself is.

Before summoning a Consular Officer whose office is at a distance from the Court, the Magistrate should consider the possibility of taking evidence on commission as provided by Section 503 of the Code of Criminal Procedure.

This privilege should be confined to the Consuls-General of Aghanistan, Persia, America, Holland, Germany, Japan and Italy. Other consular officers may continue to be summoned in the inary way.

PART B — PREPARATION OF ISSUE OF WARRANTS OF ARREST AND OTHER PROCESSES

1. General warrants.—General warrants for arrest should never be issued by a Court of Justice.

2. Prescribed form of warrants which should state the special cause on which it is granted.—Every warrant should state as shortly as possible the special matter on which it s, and

should be in the Form II given in Schedule V of the Code of Criminal Procedure. This form expresses on the face of it the special cause on which it is granted, viz., that the party 'stands charged with the offence of (stating the offence)'. A warrant issued under Section 90 should in like manner be made out in Form VII. A strict adherence to the form of warrants of arrest prescribed by the Code will tend to prevent their being granted irregularly and without inquiry as to whether the circumstances justify their issue.

3. What a warrant or process should contain.—In all warrants and processes of every description, whether under the Code of Criminal Procedure or any other law in force, the father's name, caste, tribe or nationality, and residence of the person to be arrested, summoned, etc., should be entered, so as to place his identity beyond all doubt. The warrant should also set forth the Court from which it issues, and the name of the district.

4. Care to be exercised in distinguishing forms of warrants and summons.—(i) Great care should be exercised in distinguishing forms of warrants forms of summons, and in making the Police and the public acquainted with the difference, different tinted paper and lithographed or printed forms should always be used. The people of the country will gradually become familiar with the appearance of each sort of process and know how to act.

(ii) All vernacular warrants of commitment to jail should be drawn up in the Roman character, except in the case of Indian Magistrates who are unable to read this character, and ordinary country ink should never be used in filing up the blanks in the printed form of warrant, or in warrants drawn up upon English paper.

5. A warrant should not be issued where a summons can serve the purpose.—Great care should also be taken that a warrant, which always implies personal arrest and restraint, is never issued when a summons to attend would be sufficient for the ends of justice; and any attempt to coerce or restrain a party called upon to appear in obedience to a *summons* should be checked and punished. It must be understood that the Police will carry out to the latter the instructions issued in the writ handed over to them, but the Magistrate is responsible for the consequences of an informal or illegal process bearing his official seal and signature.

6. Service of warrants on Railway servants.—Warrants issued against Railway servants should be entrusted for execution to some Police Officer of superior warrant, that the immediate arrest of the Railway servant would occasion risk or inconvenience, make all arrangements necessary to prevent escape, and apply to the proper quarter to have the accused relieved, deferring arrest until he is relieved.

7. Execution of a warrant outside the jurisdiction of the Court.—Under Section 83(1) of the Code a warrant to be executed outside the local limits of the jurisdiction of the Court issuing it, may be forwarded by post or otherwise to the Superintendent of Police of the district in which it is to be executed. Similarly, by Section 85, an offender when arrested may be taken before the Superintendent of Police instead of a Magistrate, and by Section 56, the Superintendent of Police may send the offender to the Court issuing the warrant.

8. Warrants under the Gambling Act.—Every warrant issued under the Gambling Act, 1867 if not executed, shall be returned to the Magistrate or Superintendent of Police, who issued it, within a period of not more than fifteen days from the date of issue. The Magistrate or Superintendent of Police will then cancel the warrant, but a fresh warrant can immediately be applied for or issued, if necessary (*Chief Court circular memo. No. 9-1970-G, dated the 4th June, 1896*).

9. Handcuffing of prisoners.—The orders of Government regarding the handcuffing of prisoners are that unless a prisoner falls within classes (b) to (f) of clause (1) of rule 26/23, Punjab Police Rules, or is accused of murder, he should not be handcuffed on his way to an from the lock-up to the Court house, unless the officer-in-charge of the escort decided to handcuff him owing to his being:--

- (a) a man who is likely to attempt an escape, or
- (b) a man who, owing to the existence of local feeling or other circumstances, is likely to be the subject of an attempt at rescue.

It is not desirable to handcuff and under-trial prisoner, who is charged only under Section 124-A or 153-A of the Indian Penal Code, unless the officer-in-charge of the escort has definite reasons for delivering that such prisoner is likely to attempt to escape or to be the subject of an attempt at rescue.

Note: Classes (b) to (f) of clause (1) of the Punjab Police Rules 26/23 as follows:--

- (b) Persons accused of, an offence punishable under Section 148 or 226, Indian Penal Code.
- (c) Persons accused of, and previously convicted of, such an offence as to being the case under Section 75, Indian Penal Code.
- (d) Desperate characters.
- (e) Violent Persons.
- (f) Persons under sentence.

PART C — ATTENDANCE AS WITNESSES AND EVIDENCE OF PERSONS RESIDING BEYOND THE LIMITS OF BRITISH INDIA

1. Warrant for the arrest of a witness outside British India.—The issue of warrants for the arrest beyond the limits of British India of persons whose attendance is required to give evidence, but who are at the time resident beyond the limits of British India, is illegal and should not be resorted to, as warrants for the arrest of a witness can, under Section 82 of the Code of Criminal Procedure, only be executed at some place in British India.

2. Letter or summons for the attendance of a witness residing in Indian State.—There is, however, no objection to the issue of a letter or precept of the nature of a summons to a person resident in the dominions of any of the Princes and States in India in alliance with His Majesty, inviting him to attend and give evidence, where there is an established channel of communication in the person of a Political Agent or other similar officer, through whom the letter can be sent with the prospect of prompt delivery.

3. If the witness does not comply, commission may be issued to the Political Officer to record evidence.—If the person whose attendance is required does not comply with the directions contained in the letter, no further steps to compel him to appear can be taken. But if his evidence is shown to be necessary for the ends of justice, a Commission to take it may be issued under Section 503 of the Code of Criminal Procedure, to the officer representing the British Indian Government in the State or place where the person is residing. If there is no such officer, the case must be decided without the testimony of such person.

4. Commission to issue only when evidence is indispensable.—Officers presiding over Criminal Courts are reminded that criminal proceedings ought not to be unduly prolonged for the attendance as witnesses of persons whose attendance the Courts are not competent to compel if they fail to attend voluntarily, and that the discretionary power to issue a Commission for the examination of an absent witness should be exercised only when the evidence appears to be indispensable. When a Commission is refused, the grounds for refusal should be briefly recorded to anticipate subsequent objections on the ground of such refusal.

5. Reciprocal arrangement between British Indian Court and certain Courts In Indian State for the direct service of summons against witnesses.—The Provincial

Government have sanctioned the introduction of reciprocal arrangements for the direct service of summonses for the attendance of witnesses in criminal cases between Courts in British districts on the one hand and those in the following Indian States on the other:--

Patiala, Jind, Kapurthala, Faridkot, Maler Kotla, Loharu, Bahawalpur, Nabha, Sirmur, Bilaspur, Chamba, Mandi, Suket and Bikaner.

Note: Summonses for witnesses in Kapurthala State should be sent direct to the Senior Judge, High Court Kapurthala and not to the Chief Minister Kapurthala State.

6. Reciprocal arrangements between British Indian Courts and certain Courts in Indian States for the direct service of summons against witnesses.—The Central Government have also agreed to the introduction of similar arrangements for the direct service of processes (summonses and notices to witnesses in Criminal cases) between the Gurgaon District and the Patiala and Nabha States on the one hand and the Jaipur, Bharatpur and Alwar States on the other.

7. Communications with the Indian States in the Punjab re criminal cases.—In Criminal cases in which communications have to be made with Indian States in the Punjab under the political control of the Crown Representative, such communications should be addressed through the Deputy Commissioner to the Hon'ble the Resident for the Punjab States. Communications with the Kashmir Darbar should be made through the Resident.

8. Summonses to witnesses in Afghanistan not to issue.—The Punjab Courts should, in no case, address Afghanistan Courts or officials or the British authorities in Kabul direct. There is no agency in Afghanistan for the service of summonses on witnesses issued by the Punjab Courts and it is, therefore, useless to issue such summonses.

Serious notice will be taken of the violation of these instructions as the continued recurrence of such cases causes much embarrassment to the Government of India.

Summons to members of the staff of British Legation.—In connection with the issue of summonses for members of the staff of the British Legation at Kabul, His Majesty's Minister at Kabul has drawn the attention of the Government of India to the difficulties caused to the personnel of the British Legation by the receipt of summonses from Courts in the Punjab which do not take into account the difficulties of business which may be caused in the Legation if its members are suddenly summoned to attend Courts in India at short notice. These difficulties should, therefore, be borne in mind when it is found necessary to issue summonses to the members of the staff of the Legation in Kabul and care should be taken to fix a sufficiently long date so as to avoid any inconvenience and to enable service to be effected through the proper channel before the date fixed.

9. Service of summons in Balochistan.—*Balochistan*—The instructions regarding service of summonses in Balochistan given in paragraph 5 of Part F of Chapter 7, and in Appendix III to that Chapter, apply also to Criminal Courts.

APPENDIX

**LIST OF NORTH-WESTERN RAILWAY OFFICIALS TO WHOM SUMMONSES
SHOULD ORDINARILY BE ADDRESSED**

*Statement showing designation of Heads of Offices of Operating, Locomotive and Engineering
Departments through whom summonses are to be served*

	Head of Office	Officers through whom summon should be served	Staff employed under each
RAWALPINDI DIVISION			
1.	Sub-Divisional Officers:--- Nowshehra, Cambellpur, Jhelum, Rawalpindi, Kundian, Malakwal, Sargodha, Kalabagh Ghat, Kohat, Cantonment,	Sub-Divisional Officers of these places.	Permanent way Inspectors, Assistant Permanent Way Inspectors, Sub-way Inspectors, Inspectors of Works, Sub-Inspectors of works, Overseers, Time-Keepers, Sub-Divisional clerks, Ballast Inspectors, Mistries, Carpenters, Masons, Blacksmiths, Mates, Keyman, Gangmen, Gatemen, Sainitary Inspectors, Chowkidars.
2.	Loco, Foreman of:--- Lalamusa, Malakwal, Kundian, Peshawar Cantonment, Rawalpindi, Kalabagh Ghat, Kohat Cantonment.	Loco, foremen of these places.	Drivers, Shunters, Firemen, Pump Inspectors, Shedmen, Shed Clerks, Fuel Clerks, School Masters, Fitters, Boiler Makers, Cleaners, Fitter, Coolies, Boiler Maker Coolies, Store Cler, Carpenters, Blacksmiths, Painters, Masons, Washout Coolies Fire Droppers, Fuel Coolies, Hammermen, Telephone Attendants and Chowkidars.
3.	Station Master of Peshawar Cantonment--- Peshawar Cantonment, Peshawar City, Nowshehra, Mardan, Jhelum, Lalamusa, Malakwal, Kundian, Kalabagh Ghat and Station Superintendent of Rawalpindi	Station Masters of these places.	Station Masters, Assistant Station Masters, Signallers, Booking Clerks, Goods Clerks, Transit Clerks, Yard Formen, Yard Masters, Assistant Yard Masters, Trains Despatchers, Luggage Inspectors, Platform Inspectors, Correspondence Clerks, Makers, Guards, 2nd Guards, Brakesman, Cabinmen, Shunting Jamadars, Shunting Porters, Pilot Jamadars, Points Jamabgars, Gatemen, Luggage Porters, Signalmen, Waiting Room Staff, Telegraph Peons and Station Peons, Sweepers and Chowkidars.
4.	Ferry Engineer of:-- Kalabagh Ghat and	Ferry Engineers of these places.	Syrang, Quarter-masters, Tindais, Oilmen, Pilots, Khalasis, Stockers,

	Dera ismail Khan		Topas, Firemen, Ferry Clerks.
5.	Head Train Examiner of:-- Peshawar Cantonment, Lalamusa, Kalabagh Ghat, Rawalpindi.	Head Train Examiners of these places.	Train examiners, Number Takers, Carriage Clerks, Store Clerks, Vacuum Fitters Brass fitters, Carpenters, Blacksmiths, Paintes, Wheelmen, Re-packers, Carriage Cleaners, Bhishties, Sweepers and Chowkidars.
6.	Divisional Electrician, Rawalpindi	Divisional Electrician, Rawalpindi	Electricians, Electric Examiners, Assistant Electric Examiners, Electric Collies and Number Takers.
7.	Block Inspector, Rawalpindi.	Block Inspector, Rawalpindi.	Black Maintainers, Senior Mistries, Junior Mistries, Battteryemen, Linemen, Blacksmiths, Hammermen, Painters, Masons and Cleaners.
8.	Signal interlocking and Inspector, Rawalpindi	Signal Interlocking nspector, Rawalpindi.	Ditto Ditto
LAHROE DIVISION			
1.	Sub-Divisional Officers:-- No.1, Lahore, No.2, Narowal, No.3, Amritsar, No.4, Moghalpura, No.5 Lahore, No.6, Stores, Lahore, No.7, Wazirabad, No.8 Palampur.	Sub-divisional Officers of these places.	Permanent way inspectors and Inspectors of Works, Sub-way Inspectors of works, Oerseers, Time-Keeper, Mistries, Carpenters, Keymen, Gangmen, Gatemen, Mates, Sub-Engineers, Surveyors and Sanitary Inspectors.
2.	Loco, Foreman of:-- Lahore, Pathankot.	Loco, foreman and Shedmen incharge of these plaes.	Driverss, Shunters, Firemen, Shedmen, Fuel Munshis, School Masters, Fitters and Fitter Coolies, Store Munshies and Shed Menial Staff, Shed Clerks.
3.	Station Superintendent, Lahore. Station Master of:-- Amritsar, Jullundur, Wazirabad, Sialkot, Gujranwala, Kasur, Gujrat, Moghalpura	Station Masters at these plaes.	Station Masters, Assistant Station Masters, Signaliers, Goods, Clerks, Trains Clerks, Transit Clerks, Booking Clerks, Parcel Clerks, Ticket Collectors, Phone Clerks, Correspondence Clerks, Yard Foremen, Chaukidars, Shunting Jamadars, Shunting Porters, Chairmen, Signal and Pointsmen, Luggage Porters, Gatemen, Waiting Room Staff, Running Room Staff, Guards and 2nd Guards, Gunners,

	Lahore Cantonment, Raewind, Okara, Pathankot, Batala, Jullundur Cantonment, Badamibagh, Jammu Tawi, Shahdara Chhangamanga, Gurdaspur, Pattoki, Phagwara.		Markers, Telegraph Peons and Station Peons.
4.	Black Inspector of:--- No.1, Lahore No.2, Lahore. Signal and interlock:- -- No.1, Lahore. No. 2, Lahore Assistant Block Inspector:--- No.1, Amritsar.	Black and Interlocking Inspectors of these places.	Block maintainers, Senior and Junior Mistries, Carpenters, Linemen, Batterymen, Trellymen, Cleaners, Painters, Gatemen, Masons, Hammermen, Bhishties, Blacksmith, Time-Keeper.
5.	Goods Supervisors of:--- Lahore, Amritsar.	Goods Supervisors of these Places.	Goods clerks, Makers and Chaukidar in Lahroe and Amritsar goods sheds.
6.	Head Train Examiner of:--- Lahore, Washing Line, Lahore, Mughalpur, Wazirabad, Amritsar, Pathankot.	Head Train Examiners at these places.	Train Examiners, Number Takers, Storemen, Wheelmen, Cleaners, Wrenchmen, Greasers, Hammermen, Carpenters, Blacksmiths and Bhisties.
7.	Divisional Electrician, Lahore.	Divisional Electrician	Electricians, Electric Examiners, Assistant Electric Examiners, Electric Coolies and Number Takers.
MULTAN DIVISION			
1.	Sub-Divisional officers :--- Multan, Lyallpur 1 Lyallpur 2 Shorkot Road,	Sub-Divisional officers of these places.	Permanent way Inspectors, Sub-way Inspectors, Sub-Inspectors of Works, Overseers, TimeKeepers, Ministries, Carpenters, keymen, Gangmen, Gatemen, Mates, Sub-Engineers, Surveyors and Sanitary Inspectors.

	Lodhran.		
2.	Locomotive foreman of:-- Multan, Samasatta Khanewal, Montgomery. Shedman incharge of:-- Shorkot road, Bhakkar, Locomotive Foreman, Lyallpur.	Locomotive Foremen at these places.	Drivers, Shunters, foremen, Shedmen, Fuel munshis, School Masters, Fitters and Fitter coolies, Store Munshies and Shed Menial Staff.
3.	Train Examiner:--- Multan, Samasatta, Khanewal, Montgomery, Lyallpur, Shorkot Road.	Head Train Examiners at tehse stations.	Train Examiners, Number Takers, Storemen, Wheelmen, Cleaners, Wrenchmen, Greasers, Hammermen, Carpenters, Blacksmiths and Bhisities.
4.	Station master of:--- Multan, Multan city, Khanewal, Samasatta, Lyallpur, Sangla Hill.	Station masters at these places.	Station Masters, Assistant Station Masters, Signalers, Train Clerks, Transit Clerks, Booking Clerks, Parcel Clerks, Ticket Collectors, Phone Clerks, Correspondence Clerks, Yard Foremen, Chowkidars, Shunting Jamadars, Shunting Porters, Cabinmen, Signal and Pointsmen, Luggage Porters, Gatemen, Sweepers, Watermen, Waiting room Staff, Running Room Staff, Guards, makers, Telegraph Peons and Station Peons.
	Yard master of:--- Samasatta.		
5.	Divisional Electrician, Multan.	Divisional Electrician	Electricians, Electric Examiners, Assistant Electric Examiners, Electric Coolies and Number Takers.
FEROZEPUR DIVISION			
1	Sub-Divisional Offier of:--- Ferozepur, Kasur, Ludhiana, Jullunder, Mailsi, Bahawalnagar.	Sub-Divisional Officer of these palces.	Permanent Way Inspectors, Sub-way Inspectors, Inspectors of Works Sub-Inspectors of Works, Overseers Works Celrks, Mistries, Carpenters, keymen, Gangmen, Mates, Surveyors and Sanitary Inspectors.

2.	Assistatn Signal Engineer, Ferozepur	Assistant Signal Engineer.	Block Inpectors, Sub-Assistant Block Inspector, Assistant Signal and Interlocking Inspector, Sub-Assistant Interlocking Inspectors, Time-keepers, Mistis, Carpenters, Painters, Blacksmiths, Hammermen, Fitters, Coolies, Cleaners, Batteryemen, Linemen, Trollymen, Khalasis.
3.	Loco. Foreman of:--- Ludhiana, Ferozepur, Jullunder, Bahawalnagar, Pakpattan.	Loco. Foremen at these places.	Drivers, Shunters, Firemen, Shedmen, Fuel Munshies, School Masters Fitter and Fitter Collies, Store Munshis, Shed Menial Staff.
4.	Head Train Examiner of:--- Ferozepur, Jullunder, Hissar, Bahawalnagar.	Head Train Exdamienrs at these places.	Train Examiners, Number Takers, Storemen, Wheelman, Cleaners, Wrenchmen, Greasers Hammermen, Carpenters, Blacksmiths and Bhisties and Box porters.
5.	Divisional inspector, Powers:-- (Fuel) "S" (Fule) "N" Pumps. rolling Stock.	Divisional Inspector – Loco. Ferozepur. Pumps, Ferozepur. Rolling Stock, Ferozepur.	Box porters.
6.	Traffic Inspectors of:--- Ferozepur, Pakpattan, Jullunder, Bahawalnagar, Ludhiana	Taffic Inspectors at these places.	Shunnting Jamadars, Pointsmen, Cabinmen, Shunting Poters.
7.	Train Light Electrician, Ferozepur.	Trian Lighting Electrician, Ferozepur.	Electricians, Electric Examiners, Assistatn Electric Coolies and Number Takers.
	Stations Master of:--- Ferozepur Cantonment, Ferozepur City, Bahawalnagar- MecLeod Ganj Road, Abohar, Lohian Khas, Nawanashahr Doaba, Hashiarpur, Taran Taran, Patti, Moga Tehsil, Jagraon City,	Statiostn Master at these places.	Station Masters, Assistant Station Masters, Signalers, Goods Clerks, Transit Clerks, Booking Clerks, Parcel Cloerks, Correspondence clerks, Yard Foremen, Shuntign Jamadarss, Shunting Porters, Cabinmen, Signal and Pointsmen, luggage Porters, Gatemen, Sweepers.

	Jullundur, Ludhiana, Amritstar, Pakpattan.		
KARACHI DIVISION			
1.	Sub-Divisional Officer of:--- Karachi City, Hyderabad, Sukkur	Sub-Divisional Officers of these places.	Permanent Say Inspectors, Sub-way Inspectors, Inspectors of Works, sub- Inspectors of Works, Overseers, Time-Keepers, Mistris, Carpenters, Blacksmiths, Chowkidars, Keymen, Gatemen, Gangmen, Mates, Sub- Engineers, Hammermen, Bellowmen, Sanitary Inspectors, & c.
2.	Shed Foreman of Karachi Cantonment:--- Kotri, Rohri, Khanpur.	Shed foremen of these places.	Drivers, Shunters, Firemen, Shedmen, Fuel Munshies, Store Munshies, School Masters, Fitters, Fitter Coolies, Boiler Makers, Boiler Maker Coolies, Painters, Masons, & c., Shed Menial Staff.
	Shedman incharge of:--- Dadu, Larkana, Ruk, Jacobabad, Pad Idan.	Shedmen incharge at these places.	
3.	Station superintendent of:--- Kaimari, Karachi City.	Station Superintendents at these places.	Station Masters, Assistant Station Masters, Signalers, Goods Clerks, Transit Clerks, Train Clerks.
4.	Station Master of:--- Karachi Cantonment, Kotri, Hyderabad Pad idan, Rohri, Sukkur, Khanpur, Ruk, Dadu.	Station Masters at these places.	Booking clerks, Parcel Clerks, Ticket Collectors, Phone Clerks, Correspondence Clerk, Yards Foreman, Chowkidars, Shunting and Points Jamadars, Shunting Porters, Cabmen, Signaland Pointsmen, Luggage Porters, Gatemen, Sweeper Watermen, Waiting Room Staff, Running Rook Staff, Guard, Goods Markers, Telegraph Peons, Station Peons, Box Porters, Lampmen, & c.
5.	Goods Supervisor of:--- Karachi Bandar Karachi city.	Goods Supervisors at these places	
6.	Chief Goods Clerks, Sukkur Bandar.	Chief Goods clerk of this place.	

7.	Divisional Boiler Inspector, Karachi Cantonment	Divisional Boiler Inspector of this place.	Boiler makers and boiler make coolies.
8.	Pump Inspector of:-- - Kotri, Sukkur.	Pump inspectors at these places.	Fitter and fitter coolies, Pump Engine Drivers and Firemen, Pump Engine Collies.
9.	Signal and Interlocking Inspector of:--- Karachi City, Kotri, Rohri.	Signal and Interlocking Inspectors at these places.	Signal Fitters, Mistries, Cleaners Trollymen, Bhishties, Hammermen, Carpenters, Painters, Tingkers, & c.
10.	Block Inspector:--- Kotri, Sukkur.	Block Inspectors of these places.	Block Fittes, Mistris, Batteryman, Linkmen, Block Maintainers, Carpenters, Trollymen, Cleaners, & c.
11.	Divisional Electrician, Karachi City.	Divisional electrician of this place.	Electricians, Electric Examiners, Assistant Electric Examiner, Electric Coolies, Number Takers, Carpenters Gas Fitters, Painters Gas Fillers and Lampen, &c.
12.	Electrician, Sukkur.	Electrician of this place.	Ditto
13.	Divisional Watch and Ward Inspector, Karachi City.	Divisional Watch and Ward Inspector of Karachi.	Assistant Watch and Ward Inspectors, Chowikdars, Head Watchmen Khalasis.
14.	Gas Overseer, Karachi Cantonment.	Gas Overseer, Karachi Cantonment.	Gas Gitters, Firemen, Stockers, Gas Coolies, &c.
15.	Divisional Millwright, Karachi City.	Divisional Millwright, Karachi City.	Weight Machine an Millwright Fitters, Collies, Mistries, &c.
16.	Head Train Examiner of:--- Kaimari, Karachi City, Kotri, Ruk, Rohri.	Head Train Examiners of these places.	Train Examiners, Number Takers, Storemen, Weheelmen, Cleaners, Wrenchmen, Greasers, Hammermen, Carpenters, Blacksmiths, Bhishtis, Sweepers, Washing lampmen &c.
CONTROLLER OF STORES			
1.	Controller of Stores, North-Western Railway Headquarters Officers, Lahore.	Controller of Stores, North-Western Railway.	Gazetted Officers, Senior Head Clerks, Head Clerks, Senior Clerks, Clerks and Office Menials employed therein.

2.	District Controller of Stores Officer, Moghalpura.	District Controller of Stores.	District Store-Keepers, Sub-Store-Keepers, Ward Keepers, Clerks, Printing Press Staff, Stores Manufactory Staff, Clothing Factory Staff, Office Menial and Labour Staff.
3.	Foreman, Kalka	Foreman, Kalkas	Clerk, Motor Fitters, Carpenters Riveters, Painters, Shop Jamadar, Lifters, Re-Packers Mashineman, Blacksmiths, Hammermen, Cooper and Tinsmiths, Millwright, Moulders, Cranemen.
MEDICAL DEPARTMENT, NORTH-WESTERN RAILWAY			
	CHIEF Medical and Health Officer, North-Western Railway, Lahore.	Chief Medical and Health Officer, North-Western Railway, Lahore.	Medical Officer, Jind, Bhatinda, Khanpur, Kotri, Malakwal, Pakpattan, Kalabagh Ghat, Bahawalnagar, District Medical Officer, North-Western Railway, Saharanpur and Multan.
		1. Medical Advisor, Quetta. 2. Medical Officer, Amritsar. 3. Medical Officer, Cambelpur. 4. Medical Officer, Delhi. 5. Medical Officer, Ferozepur. 6. Medical Officer, Gujranwala. 7. Medical Officer, Gujrat. 8. Medical Officer, Gurdaspur 9. Medical Officer, Jhelum 10. Medical Officer, Karachi. 11. Medical Officer, Kohat. 12. Medical Officer, Lahore. 13. Medical Officer, Mardan. 14. Medical Officer, Mianwali.	For themselves and medical subordinate staff working under them viz., Assistant Surgeons, Sub-Assistant Surgeons, Nurses, Dispensers, Clerks Malis, Sweepers, Bhists, Chowkidars, Peons, Ward Boys &c., as the case may be.

		15. Medical Officer, Peshawar. 16. Medical Officer, Rawalpindi. 17. Medical Officer, Kangra (at Dharamshala). 18. Medical Officer, Sailkot. 19. Medical Officer, Sukkur. 20. Medical Officer, Bahawalnagar. 21. Medical Officer, Bhatinda. 22. Medical Officer, Jind. 23. Medical Officer, Kalabagh Ghat. 24. Medical Officer, Khanpur. 25. Medical Officer, Kotri. 26. Medical Officer, Malakwal. 27. Medical Officer, pakpattan. 28. District Medical Officer, Multan. 29. District Medical Officer, Saharanpur.	
	Land Acquisition Officer, Morth- Western Railway Headquarters Officer, Lahore.	Land Acquisition Officer, North- Western Railway, Headquarters Office.	Surveyors, Draftsmen, Tracers, Clerks, Accounts Clerks, Jamadars, Peons.
	Track Supply Officer, North- Western Railway, Lahore.	---	All staff under Track Supply Officer, Lahore.
	Executive Engineer, Capital Works, Tube Boring, Lahore.	---	All Staff un der Executive Engineer Capital works, Tube Boring, Lahore.
	Deputy Chief Engineer, Bridges, North-Western	---	All staff uner Deputy Chief Engineer, Bridges, Moghalpura.

	Railway, Moghalpura.		
	Executive Engineer, bridges, Jhelum.	---	All staff under Executive Engineer, Bridges, Jhelum.
	Executive Engineer, Bridges, Sukkur.	---	All staff under Executive Engineer, Bridges, Sukkur.
	Superintendent, Mechanical Workshop, North- Western Railway, Moghalpura.	---	All staff under Superintendent Mechanical workshops, North-Western Railway, Moghalpura.
	Signal Engineer, North-Western Railway, Lahore.	---	All staff under Signal Engineer, North-Western Railway, Lahore.
	Senior Electrical Engineer, North- Western Railway, Moghalpura.	---	All staff under Senior Electrical Engineer, North-Western Railway, Moghalpura.
	Chief Engineer, Surveys and Construction, Lahore.	---	All staff under Chief Engineer, Surveys and Construction, North- Western Railway, Lahore.
DELHI DIVISION			
1.	Sub-Divisional Officer:-- Delhi, Saharanpur, Ambala, Bhatinda, Jind, Dharampur.	Sub-Divisional Officers of the places.	Permanent way Inspectors, Sub-way Inspectors, Sub-Inspectors of Works, Inspector of works, Overseers, Time- Keepers, Mistris, Carpenters, Keymen, Gangmen, Gatemen, Mates, Sub-Engineers, Surveyors and Sanitary Inspectors.
2.	Loco-Foreman:--- Delhi, Ghaziabad, Saharanpur, Ambala, Bhatinda, Jind, Shakur Basti, kalka.	Loco foremen at these places.	Drivers, Shunters fireman, Shedmen, Fuel Munshies, School Masters, Fitters and Fitter Coolies, Store Munshies and Shed Menial Staff.
3.	Station Master:--- Meerat Cantonment, Meerat City, Saharanpur, Ambala Cantonment, Rajpura, Ludhiana,	Station Master of these places.	Station Master, Assistant Station Master, Signallers, Goods Clerks, Transit Clerks, Train Clerks, Booking Clerks, Parcel Clerks, Ticket Collectors, Phone Clerks Correspondence Clerks, Yard Foreman, Chaukidars, Shunting

	Bhatinda, Jind, Shakur Basti, Kalka, Simla, Ghaziabad, N.-W.Ry., Delhi and Goods Supervisor, Delhi Sader. Station Superintendent, Delhi.		Jamadars, Shunting Porters, Cabin Men, Signal and Pointsmen, Luggage Porters, Gatemen, Sweepers, Water Men, Waiting Room Staff, Running Room Staff, Guards and 2nd Guards, Gunners, Markers, Telegraph Peons and Station Peons.
4.	Head Train Examner: Delhi, Ghaziabad, Saharanpur, Ludhiana, Bhatinda, Kalka.	Head Train Examiner at these places.	Train Examiners, Number Takers, Storemen, Wheel Men, Cleaners, Wrenchmen, Greasers, Hammermen, Carpenters, Blacksmiths and Bhishtis.
	Division Electrician, Delhi.	Divisional Electrician	Electricians, Electric Examienrs, Assistant Electric Examiners, Electric Coolies, and Number Takers

CHAPTER 9

FINGER IMPRESSIONS; HANDWRITING; FORGED STAMPS AND CURRENCY AND BANK NOTES

PART A – DOCUMENTS AND PAPERS ON WHICH THUMB AND FINGER MARKS SHOULD BE AFFIXED

1. Documents on which thumb-impressions are to be affixed.—The Judges, having considered the reports submitted from time to time on the working of the system of taking thumb and finger impressions on judicial records as a means of identification of individuals, are pleased to direct that such impression be affixed to the following documents and papers, viz.:---

- (1) Petitions;
- (2) Entries in Petition-writers' Registrars;
- (3) Statements and confessions by accused persons;
- (4) Statements by persons against their own interests;
- (5) Compromises;
- (6) References to arbitration;
- (7) Withdrawals of suits under Order XXIII, Rule 1, Civil Procedure Code, 1908, of complaints under Section 248, Criminal Procedure Code;
- (8) Security bonds;
- (9) Receipts filed in Court.

2. Appliances required and mode of taking impressions.—For taking thumb-and finger impressions the following appliances are required:--

- (1) A tin slab.
- (2) Printer's ink.
- (3) A rubber roller (to spread the ink)

A very small quantity of printer's ink should be poured on the slab and spread thereon with the rubber roller till it forms into a very thin film. The bulbs of the thumb and all the fingers of one hand, after being carefully wiped, should be laid lightly over the inky film and then impressed on the paper.

3. Further directions.—The film once spread is sufficient for taking a large number of impressions at a time, but should the ink become too thick a drop or two of common sweet oil may be added and rubbed over again with the rubber roller. The tin slab should be properly cleaned everyday before the ink is poured on it.

4. Appliances required for reading impressions.—For reading impressions the following appliances are required:--

- (1) A pointer.
- (2) A reading glass.
- (3) A pocket lens.

(2) and (3) need only be kept by District Judges and District Magistrates.

5. Henry's treaties on impressions.—A Manual on the classification and uses of finger

prints by Mr. E.R. Henry has been circulated to all Sessions Judges, District Magistrates and District Judges in the Punjab. It contains full instructions for taking impressions.

6. Petition writers to obtain proper apparatus and apply proper impressions.—District Judges should make a point of seeing that Petition-writers obtain proper apparatus and apply proper impressions to petitions and on their registers.

7. Appellate Courts to see that these instructions are followed.—Appellate Court are requested to see that subordinate Court comply with these instructions.

8. Impressions should be affixed on a document on a space not occupied by the stamp.—Persons responsible for affixing thumb and finger impressions on documents which bear receipt or Court-fee stamps, should be careful to take such impressions on the actual document itself, in a place where the paper is clean and free from writing or other marks, and not on the stamp.

PART B: PHILLAUR FINGER PRINT BUREAU

1. Examination Year.—The following are the fees for the examination of finger impressions by Experts of the Finger Print Bureau, Phillaur:--

Rs. 16/- for every reference and a further fee of Rs. 4/- for each finger impression sent for examination when the total number so sent exceeds five (*Punjab Government Letter No. 9076-Police, dated the 25th March, 1924*).

These fees shall be credited to Government in the local treasury under the head "XXIII-Police-Fees, Fines and Forfeitures". The treasury receipt shall be sent with the exhibits to the Bureau and the fact mentioned in the letter forwarding the exhibits for expert opinion.

2. Fees payable to the Police Finger Print Proficients.—As the work of taking thumb-impressions in civil cases for transmission to Phillaur is not one of the regular duties of a Police Officer, the Governor has been pleased to decide that Police Finger Print Proficients, who are required to take such impressions, shall be paid a fee of Re. 1/- for each set of impressions taken and that such fee shall be paid by litigants themselves in addition to the other charges. (*Punjab Government letter No. 2830-H-Judl., dated the 27th January, 1927*).

Note: The fee of one rupee prescribed in this paragraph is for a complete set of plain and rolled prints of both hands of a person.

3. Instructions re evidence of a Phillaur expert.—The following instructions have been framed for the guidance of Civil Court when the evidence of Bureau Expert is required:---

Instructions

(i) **Evidence to be taken on commission through Sub-Judge, Phillaur.**—When the evidence of a Bureau Expert is required in a civil case the Sub-Judge of Phillaur shall be appointed to be the Commissioner to record it.

(ii) **Documents may be sent, in the first instance direct to the experts for examination and opinion.**—Courts shall continue to send exhibits in civil cases direct in the first instance to the Bureau for examination and opinion by experts.

(iii) **Sub-Judge, Phillaur, to set apart a day each week for examination of Phillaur experts.**—If a party to a suit desire such opinion to be received in evidence, an expert of the Bureau staff shall be summoned to the Court of the Sub-Judge at Phillaur and examined on Commission on a day to be set apart each week for the hearing of evidence in such cases.

(iv) **Bureau shall decide the name of the expert deputed to be examined.**—It shall be left to the Bureau to enter on the summons the name of the expert deputed to be examined.

(v) **Commissioners' fees.**—The fee to be paid for the Commissioner's work shall vary with the value of the civil suit in connection with which the Commission is issued subject to a maximum of Rs. 20/-; for suits of small value a small fee shall be charged, but the maximum fee shall be charged in suits of large value; the amount of the fee shall in each case be fixed by the Court issuing the Commission, and it shall all be credited to Government in the local treasury under the head "XXI-Administration of Justice-General Fees, Fines and Forfeitures-Other General Fees, Fines and Forfeitures".

(vi) **Fees for the evidence of experts.**—As regards the fee to be paid for the experts' scrutiny of finger impressions and or their examination in Court, the present fee for the scrutiny (plus written opinion) shall stand and an additional fee, to be fixed by the Court issuing the Commission, subject to a maximum of Rs. 16/-, shall be levied for the attendance of the expert in Court, one-third of which shall be paid to the expert (being remitted by the Court issuing the Commission direct to the Sub-Judge at Phillaur who will make it over to the expert), and two-thirds credited by the Court into the local treasury under the head "XXIII-Police-Fees, Fines and Forfeitures", the treasury receipt being forwarded with the Commission to the Sub-Judge at Phillaur who will send it to the Bureau when summoning the expert.

(vii) **Summoning of experts in criminal cases.**—Experts may continue to be summoned to give evidence in Courts in criminal cases, and no fee shall be leviable in criminal cases prosecuted by Government.

(viii) **Instructions *re* dispatch of documents to Phillaur.**—In order to ensure the protection of documents accompanying interrogatories sent by Civil Courts to the Sub-Judge, Phillaur, care must be taken to see that they are sent in stout envelopes or strong paper or cloth wrapping. They should be sent by registered post; acknowledgement due, at Government expenses, both to and from Phillaur. For the return of the documents to the Courts concerned, the Sub-Judge, Phillaur, will use cloth-lined envelopes of appropriate size to be obtained an indent for universal forms from the Superintendent, Government Printing, Punjab.

PART C – RULES REGULATING APPLICATIONS FOR AND PAYMENT OF THE SERVICES OF THE GOVERNMENT EXAMINER OF QUESTIONED DOCUMENTS

The rules circulated to all Provincial letter No. F.128-9-31-Police, dated the 17th May, 1934, are reproduced below for the information and guidance of all Courts:--

RULES

1. Applications to be sent to the Government Examiner of Questioned Documents.—Application should be sent direct to the Government Examiner of Questioned Documents, Intelligence Bureau, Home Department, New Delhi or Simla, as the case may be, according to the location of the headquarters of the Government of India at the time. (The Simla season ordinarily begins about the middle of April and ends about the middle of October).

2. Applications from private individuals.—Applications received direct from private individuals will not be entertained.

3. Acceptable applications.—Acceptable applications fall into two classes:--

(A) **Official applications.**—Official applications from Provincial Governments or officers subordinate to them, including the Presiding Officers of Criminal Courts, and from High Courts.

(B) Other application. The include:--

(i) **Cases from private parties in civil suits.**—Cases from private parties in civil suits in British Indian Courts.

These will be accepted only on application from the Court in which the case is

being heard. The party concerned must move the Court and it will rest with the Court to take the further steps necessary to obtain the services of the Government Examiner of Questioned Documents.

Explanation.—References made by a Court *suo motu* in civil cases to which the grown is not a party will be deemed to be cases from private parties for the purposes of these rules.

- (ii) **Cases from municipal corporations and other local bodies, universities and railway authority.**—Cases from municipal corporations, district boards, municipalities and other local bodies and from universities and railway administrations, in British India.

Applications from recognized universities will be received direct. Applications from railway administrations should be submitted through the Agent of the railway concerned. Applications from municipal corporations will be received direct, but from other local bodies will be accepted only if received through the local District Magistrate who should satisfy himself, before forwarding the applications, that it is desirable that the Government Examiner of Questioned Documents should be consulted.

- (iii) **Cases from Indian States.**—These cases will be accepted only if forwarded by the Durbar or Government concerned through the local Political Officer.

4. Discretion of the Government Examiner to accept or refuse applications falling R. 3-B above.—Applications falling under class B will ordinarily be accepted but may be refused at the discretion of the Government Examiner of Questioned Documents if they cannot be undertaken without detriment to his other work.

5. Scale of fees.—An inclusive fee will be charged in each case in which an opinion is given and will normally cover the opinion, the cost of photographs and the giving of evidence, limited in class B cases to one day. The inclusive fee for class A cases (see rule 3) will be Rs. 185/- and for class B cases Rs. 200/-. (This fee does not cover travelling allowance which is governed by rule 15 below)

6. Payment of fees in advance.—Subject to the exception stated at the end of this rule, the fee is payable in advance in all cases and each application should be accompanied by a certificate in the following form:--

“Certified that the sum of rupees one hundred and eighty-five (Rs. 185) / Two hundred (Rs.200/-) has been deposited in the _____ Treasury on _____ 194____, on account of the Government Examiner of questioned Documents’ fee in (Here fill in the details of the case) _____; and that this amount has been shown under head XLVI-Miscellaneous-Central-Other Fees, Fines and Forfeiture-Fees for the services of the Government Examiner of Questioned Documents, in the Cash Account and appears at item No. _____ in the relevant Receipt schedule.

Signature of Treasury Officer

Countersigned

(Signature of officer submitting the case)

In special circumstances, which should be stated in the application, class A cases will be accepted without this certificate, but the certificate should be forwarded as soon as possible.

7. Additional cost of photographs.—In case where the cost of photographs is exceptionally heavy the fee will, with the concurrence of the Director, Intelligence Bureau,

Home Department, be Rs. 150/- *plus* the actual cost of the photographs.

In class B cases the authority submitting the case will be informed of the extra cost involved before it is incurred and will be required to certify that it has been deposited before the Government Examiner of Questioned Documents proceeds with the case.

8. Fees for opinion only.—In cases in which an opinion is given but no photographs are taken, the fee will be Rs. 150/- only.

9. Fees for photographs only.—In cases in which no opinion is given but photographs are taken, only the actual cost of the photographs will be charged.

10. No reduction of fee if evidence is not required.—No reduction in the fee will be allowed if evidence is not required.

11. Additional fee of Rs. 150/- for each day after the first on which the examiner is detained.—In class B cases an additional fee of Rs. 150/- will be charged for each day after the first day on which evidence is given, whether in Court or on commission or on which the officer is detained. The Presiding Officer or the commissioner will be requested to certify before the second and each subsequent day's work is begin, that the fee for that day and also for any intervening day or days of detention has been deposited, and subsequently to furnish a certificate as in rule 6 above.

12. Evidence of the Government Examiner in class B cases.—In cases falling under class B the Government Examiner or his Assistant will be prepared to attend Courts, provided that he can do so without detriment to his other work. When evidence is taken on commission, the commission should be issued to the Senior Sub-Judge, Delhi or Simla, as the case may be, and normally should be so worded that either the Government Examiner or his Assistant can give evidence.

13. Instructions to Courts not to detain the Government Examiner unnecessarily and to fix dates offered by the Examiner as far as possible.—Presiding Officers of Courts are requested to detain the Government Examiner of Questioned Documents for his Assistant for the least possible this compatible with the requirements of the case. They are also requested to accept, so far as possible, the time and dates for attendance offered by these officers, because the latter frequently have to attend several Courts in the course of one tour.

14. Right of the Central Government to levy extra charges in certain cases.—The Central Government in the Home Department reserve the right to impose an extra charge in any case in which they consider that the usual fee is incommensurate with the time and labour spent on the case.

15. Travelling allowances of Government Examiner.—When the Government Examiner of Questioned Documents or his Assistant is required to travel in order to give evidence or for any other purpose, the authority or party employing his services will be required to pay travelling allowance at the rates laid down for first-grade officers in the Supplementary Rules of the Government of India for journeys on tour. Travelling allowance will also be payable for the peon accompanying the officer at the rates fixed for Central Government peons. These payments will be adjusted as directed in the Home Department letter No. F.-128/VII/27-Police, dated the 12th January, 1928 (see Appendix at the end of these rules).

In class B cases the Presiding Officer of the Court concerned will be required to certify that the cost of travelling allowance has been deposited before the Government Examiner of Questioned Documents or his Assistant undertakes the journey.

APPENDIX

(SEE RULE 15)

Procedure for the payment and audit of travelling allowance drawn by the Government Examiner of Questioned Documents or his Assistant during tour, —vide Home Department letter No. F-128/VII/27-Police, dated the 12th January, 1928.

1. (1) The Examiner or his Assistant should submit his travelling allowance bills to the Accountant-General, Central Revenues, for audit and payment.

(2) As soon as a journey is complete, this is, in respect of any complete journey from headquarters to headquarters, the Examiner or his Assistant should send a statement to the Accountant-General, Central Revenues, showing the total amount of travelling allowance claimed to draw and the distribution of the entire amount among the various Courts for recovery.

(3) In cases where several Courts are attended, the cost should be distributed between them in proportion to the distance by rail from headquarters.

(4) As the travelling allowance is debitable to the various local Government or the parties concerned, the recoveries should be treated as follows:---

- (i) recoveries from the various local Governments should be taken in reduction of expenditure, provided they are effected within the accounts of the same year; if not, they should be shown as receipt; and
- (ii) recoveries from parties such as local boards, local bodies and private persons should be taken as receipts.

2. The principles laid down above apply to the payment and audit of the travelling allowance of the peon accompanying the Examiner or his Assistant.

3. If after the Examiner or his Assistant has actually commenced a tour, intimation is received from a Court included in the tour to the effect that his evidence would not be required on the date originally fixed the Court shall pay the difference between the total expenditure actually incurred on the tour and the expenditure that would have been incurred if attendance in that Court had not been included in the tour. This shall be specially made clear when the bill is sent to the Court for acceptance.

4. The Examiner and his Assistant shall observe the provisions of Supplementary Rule 30 when they frame their programme for tour.

PART D – EXPERT OPINION IN FORGERIES RELATING TO STAMP AND CURRENCY AND BANK NOTES

1. The Central Government has suggested that in any cases of doubt in which the opinion of an expert may be required on the question whether stamps are genuine or forged, reference should be made to the Master, Security Printing, India, Nasik Road, for his or his nominee's report.

Fees chargeable by the Master, Security Printing.—The following fees will be charged by the Master, Security Printing, for the examination of stamps and for giving evidence on commission:--

- (1) For each stamp examined, Rs. 10/-, but where the stamps to be examined consist of a block or blocks from the same sheet this fee will be charged for the examination of each block, as any one of the stamps is representative of the whole block.
- (2) For stamps examined on commission, Rs. 20/- per document, irrespective of the number of stamps requiring examination on each document; provided that where more than one document relating to the same case is to be examined on the same day, the charge will be Rs. 20/- for the first and Rs. 10/- for each subsequent document.

These fees will be credited to “VII–Stamps–Central–Security Printing Press–Miscellaneous”.

(Government of India, Finance Department, letter No. R.-Dis. No. 44-Stamps/35, dated the 26th April, 1935, to all Provincial Government, etc.)

2. Expert opinion about genuineness of currency and Bank Notes. Fees of the Expert.—The Government of India have approved of the following scale of charges to be made by the Master, Security Printing, India, Nasik Road, for the examination of currency and bank notes and for giving evidence on commission:--

- (1) For each note examination, Rs. 10/- per note.
- (2) For notes examined on Commission in connection with forgery cases, Rs. 20/-per case.

These fees will be credited to “XXVII-Currency-Miscellaneous”.

(Government of India, Finance Department letter No. D-5227-F, dated the 1st August, 1936, to all Provincial Governments, etc.)

3. Fees of expert when opinion is required by the Police or the Reserve Bank.—The Central Government have decided that no charge should ordinarily be made by the Master, Security Printing, India, for giving expert assistance to the Police or to the Reserve Bank in connection with any criminal prosecution. In any case, however, where the Master, Security Printing, India, considers that his free services are being abused, he will bring the matter to the notice of Central Government. He will, of course, be entitled to charge for assistance given to private parties or in civil suits in which Government is not one of the parties.

(Government of India, Finance Department, letter No. D/1880-F, dated the 12th March, 1937, to all Provincial Government, etc.).

CHAPTER 10

FORFEITED AND UNCLAIMED PROPERTY AND MALKHANAS

PART A — ITEMS OF ACCOUNT CONNECTED WITH LAW AND JUSTICE, SALES AND UNCLAIMED PROPERTY, JUDICIAL FORFEITURES, &C.

(i) **General.**—The annexed rules, framed at the instance and with approval of the Provincial Government, aim at the prevention of fraud so far as items of account connected with law and justice are concerned.

(ii) **Subjects dealt with.**—They deal with:--

- (1) Sale-proceeds of unclaimed and escheated property; and
- (2) Judicial forfeitures, including:--
 - (a) the proceeds of property of absconding offenders and witnesses, sold under the provisions of Section 88 of the Code of Criminal Procedure;
 - (b) forfeitures of earnest-money deposited at sales of immovable property in execution of decrees; and
 - (c) sums realized under forfeited security and bail-bonds.

(iii) **Officer-in-charge.**—Heads of office will take particular note of the instructions contained in rules 1-4 inclusive, and will not fail to appoint an officer of the headquarters staff to supervise the Nazirs' Store-room and Miscellaneous Register K as required by rule 4.

(iv) **Directions as to preparation of returns.**—The principles underlying rules 6 and 7 for the preparation of the return thereby required, are those which regulate the Monthly Fine Statements. As subordinate Judges are under the operation of rule 6 required to furnish a return of the forfeiture of earnest money deposited at sales of immovable property in execution of decrees, District Judges should take steps to instruct Subordinate Judges in the rules, regulating the preparation and submission of fine statements, and direct strict compliance therewith, *mutatis mutandis*, for the preparation and submission of the statement prescribed in rule 6. It will not escape notice that the statements required by Rules 6 and 7 must be separate and distinct from each other, and from the statement of fines. The caution to Record-keepers at the end of rule 6 should be brought prominently to the notice of those officials.

(v) **Statements to be submitted monthly.**—The statements should be submitted monthly to the Accountant-General, as soon as possible after the close of the month to which they refer.

(vi) **Items of uncertain revenue, stamps etc., require special attention.**—The attention of Deputy Commissioners is specially invited to the following remarks, regarding items of uncertain revenue, recorded by the Accountant-General:--

“All items of uncertain revenue for which there is no fixed demand, or for which there are no vouchers, as in the case of stamps, are liable to be misappropriated in the first instance by the establishment which collects them, the statements of receipts being falsified in its preparation and made to agree with the sum actually paid into the Treasury. The system of check now proposed will reveal no fraud designed and perpetrated at this stage; and with the knowledge before them, that independent statements of realizations by the collecting officers, and of Treasury credits, exist for comparison, the perpetrators of such frauds would be careful to see that the statement of receipts corresponds with the sums actually paid in by them.”

(vii) **Portions of bail and security bonds forfeited.**—Demands on account of amounts forfeited on bail and security-bonds should be entered in Criminal Register No. XIV, and

realization of such demands in Fine Register No. XV.

(viii) **Nazir's strong box not to contain property exceeding Rs.1,000/- Nazir's store room and Police guard.**—Every Nazir shall be provided with a strong box and store room for the custody of all property made over to him, including bullion or jewels of less value than one thousand rupees. The bullion or jewels shall be kept in the strong box which shall be deposited in the Treasury under single lock, while the other property shall be kept in the store room which shall be guarded by the police with Government property. It shall be the duty of the officer-in-charge of the store room to see that the value of valuable property such as bullion or jewels lying with the Nazir at any time does not exceed Rs. 1,000/-. If at any time this limit is exceeded, the property shall be sent to the Treasury Officer for safe custody.

(ix) **Disposal of property attached and subsequently found to be unclaimed.**—If there is any property which has been attached by a Court in execution of a decree and is subsequently found to be unclaimed and incapable of being returned, it should be disposed of under Sections 25 to 27 of the Police Act.

RULES

1. **Entry of property made over to Nazir in Register K and its safe custody.**—All property made over to the Nazir under the rules contained in Chapter 11-E of Volume III of the Rules and Orders, or otherwise under the orders of a Judicial Officer acting as such, shall, after each article has been entered in Miscellaneous Register K; be kept in such place as may be appointed by the head of the office concerned in consultation with the Police authorities.

2. **Articles forfeited and made over to the Nazir to be entered in one register, etc., and directions are the entries to be made in this register.**—One register in 2 volumes shall be maintained in each office for both the Civil and Criminal Departments, the first volume for articles which have been forfeited and the second for articles which have been made over to the Nazir pending the decision of a case. If it is subsequently decided that an article entered in the 2nd volume should be forfeited, it should be entered in the 1st volume, Columns 1 to 5 of this register shall be filled up on receipt of the property. When the property is received from the Police the number given to the deposit in column 1 shall be entered by the Nazir in the Police register in which he acknowledges the receipt of the property. When the property is received otherwise than through the Police, the number given to the deposit in column 1 shall be noted by the Nazir on the record of the proceedings ordering the property to be made over to him. To ensure due compliance with these instructions, the police Registers should occasionally be compared with the Nazir's registers and Record-keepers should be instructed not to receive into their record-rooms any record in which property appears to have been made over to the Nazir, otherwise than through the Police, unless the acknowledgement of the Nazir and the number given to the deposit in his register have been duly entered on the record.

3. **Directions with regard to the above-mentioned register.**—Columns 6 to 8 of the register will be filled up when the property is disposed of. If the property is disposed of by delivery to a private person, the delivery shall always take place in the presence of the officer ordering the delivery and be attested by his initials in column 6. In cases in which the sale-proceeds of property or the property itself, where it consists of cash, are paid into the Treasury, the date of payment and number of the Treasury receipts shall be entered in column 8, in addition to the Treasurer's signature; and when items pertaining to several cases are acknowledged in one receipt, the register numbers of the different cases and the amount paid in each shall be endorsed on the Treasury receipt.

4. **Monthly statements by Nazir and its verification by the officer-in-charge. Six-monthly inspection of store room and monthly inspection of Register K.**—The Nazir's store room and Miscellaneous Register K shall always be placed under the special supervision of an officer of the headquarters staff, who shall examine and countersign the register at least once a

month, and inspect the contents of the store room at least once in 6 months. The District Nazir shall be responsible under the officer-in-charge for the disposal of such property and he will prepare the monthly statement of sale-proceeds of unclaimed and escheated property created into the Treasury for submission to the Accountant-General. The office copy of the statement will be used for the purposes of checking the Treasury credits and a reference to the number of the entry in Miscellaneous Register K should therefore be made in the last column of the office copy. The officer-in-charge should, when signing the monthly statement after verification by the Treasury, compare the entries in the office copy with those in the Miscellaneous Register K and initial in column 6 of the Register all entries of sale of unclaimed property brought to account in the monthly statement and also all orders of competent authority to destroy such property. Papers relating to orders authorizing destruction or those relating to sale fetching less than Re. 1/- should be kept by the Nazir in quarterly files till the accounts have been audited, when those with regard to which no objection has been raised may be destroyed and the others kept pending till the next audit. The rest should be arranged in monthly files and sent to the Record-room.

*Note:--*The officer-in-charge at the time of the six-monthly inspection, required by this rule, should report to the District Magistrate the total value of the property lying with the Nazir and the District Magistrate should satisfy himself that proper steps have been taken to return the articles of private property to their owners and to dispose of unclaimed property by auction.

5. Judicial forfeitures — Duty of Courts to send monthly statements and verify Nazir's District statement.—The papers relating to the disposal of property forfeited in judicial cases are included in the proceedings in which the order of forfeiture is given. Each Court shall send to the Nazir a monthly statement of such realizations. From these statements the Nazir will compile the District statement, but the comparison of entries in the office copy with those in Miscellaneous Register K and the initialing of entries in column 6 of Miscellaneous Register K shall be the duty of the Court dealing with the proceedings for forfeiture.

6. Forfeiture of earnest money auction sales in execution. Duty of Court to submit statement. Duty of record-keeper on receipt of execution record.—In the event of an order of forfeiture of the earnest money mentioned in Order XXI, Rule 84, Civil Procedure Code, becoming necessary under the operation of Order XXI, Rule 85, the Presiding Officer of the Court ordering the sale and subsequently forfeiture shall prepare, for submission to the Accountant-General, according to the present procedure for the preparation and submission of the monthly statement of realization of fine by each Court, at the beginning of the monthly next following that in which the forfeiture occurred, a statement of the sum credited to Government under the provisions of Order XXI, Rule 86; and such Presiding Officer will be responsible that the legitimate “expenses of the sale” only have been deducted from amount deposited. The Treasury receipt for the amount actually credited to Government shall remain in the record of proceedings, and Record-keepers shall not receive into the record office any record which is not accompanied by such receipt.

7. Statement of sums realized under forfeited security and bail bonds.—Sums realized under forfeited security and bail bonds shall be entered in the Register of Fine Realizations (Criminal Register No. XV) maintained by the District Fine Moharrir for all Courts in the District. Each Court shall, at the beginning of every month, prepare, for submission to the Accountant-General, according to the present procedure for the preparation and submission of the monthly statement of realizations of fines by each Court, a list of all sums so realized by it during the month preceding.

*Note:--*The statement mentioned in rule 6 and the list in rule 7 will be separate from each other and from the monthly statement of fines realized, sent to the Accountant-General in accordance with paragraph 29(1) Chapter II of the Volume.

PART B – CUSTODY AND DISPOSAL OF THE PROPERTY ATTACHED UNDER THE

CRIMINAL PROCEDURE

In order that all property which is at the disposal of the Government under Section 88 or attached under Section 386 or 332 or any other section of the Criminal Procedure Code may be brought to account and the responsibility of the Government may be properly discharged, the following rules have been made under Section 224, Government of India Act, 1935 by the High Court with the approval of the Provincial Government:---

1. Arrangements for the safe custody, preservation and proper management of the property attached.—Whenever property is attached under the orders of a Criminal Court, the Court shall make suitable arrangement for its safe custody, preservation and property management.

2. Registers to be maintained.—The Court shall maintain the following registers in which all property attached shall be entered:---

- (i) Miscellaneous Register K/L.
- (ii) Index Register.

The forms of these registers are appended to these rules.

In the Index Register the names of the persons whose property is attached should be entered in chronological order and an alphabetical index giving reference to the pages of the register should be maintained in the beginning.

3. Time for the disposal of the attached property by sale.—The attached property of a proclaimed offender other than that ordered by the Court immediately to be sold under the provisions of Section 88(5), Criminal Procedure Code, shall not be sold until the expiration of six months from the date of attachment and until all claims preferred or objections made under Section 88 have been disposed of.

4. Time for the disposal of the attached property by sale.—If the proclaimed offender does not appear before the Court within six months from the date of attachment and after all the objections, if any, made under Section 88 have been disposed of the Court shall take steps to sell the property unless for sufficient reasons it deems fit to postpone the sale.

5. Directions as to be delivery of property released.—Whenever the Court directs the release of the property attached in favour of any person, in whole or in part, it shall be delivered to him or his authorized agent in the presence of the Court or by an officer of the Court in the presence of respectable witnesses.

6. Deposit of sale proceeds or income of property in Treasury.—The price realized from sale of the property attached or its income shall be forthwith deposited in Government Treasury under the head “XXI — Administration of Justice.”

7. Refund of proceeds or income.—Whenever the price or income of the property is ordered to be delivered to a person, it shall be paid to him by means of a refund voucher.

INDEX REGISTER

Date of Attachment	Name and Address of the person whose property has been attached	Particulars of the case	Reference of Miscellaneous Register K/1	Date of release	REMARKS

**MISCELLANEOUS REGISTER K/1 OF THE MOVABLE AND IMMOVABLE
PROPERTY**

Serial Number	No. in Index Register	Name and address of the person whose property has been attached	Particulars of the case and date of attachment	Details of property attached and marks of identification	Estimated value and income	Arrangement for custody and management	How disposed of and when	Amount realized	Signature of person to whom property is delivered	REMARKS
1	2	3	4	5	6	7	8	9	10	11

Note:-- In column 8, if released, give reference to date of order. If sold, mention the agency through which it has been disposed of State also for what price sold and whether by public auction or private.

2. In column 9 give the number of the Treasury receipt.
3. In column II mention the various orders passed by the Court.

PART C – ARMS AND AMMUNITION

The following rules have been framed by the Punjab Government for the guidance of officers dealing with arms, ammunition and military stores deposited in district *malkhanas*:---

RULES

1. Nazarat Officer – Separate room in Malkhana under double lock to be provided for custody of arms, etc.—A separate room in every district *malkhana* shall, if possible, be set apart for the deposit of arms, ammunition and military stores. Where such a separate room is used, it shall be kept under double lock, one key being retained by the officer of the headquarters staff responsible for the supervision of the *malkhana*, who is referred to in these rules as the “Nazarat Officer”, and the other by the “District Nazir”.

2. Responsibility of the Nazarat Officer.—The Nazarat Officer shall be generally responsible for the supervision and disposal of arms, ammunition and military stores deposited in the *malkhana*. He shall compare the arms, ammunition and military stores in stock in the

malkhana with the register prescribed by rule 4 once a month; and shall submit a report of this inspection to the District Magistrate by the 10th of each month.

3. Responsibility of the District Nazir.—Subject to the control of the Nazarat Officer, the District Nazir, and not any of his assistants, shall be held personally responsible for the proper receipt, safe custody and disposal of all arms, ammunition and military stores.

4. Return of arms, etc., deposited in *Malkhana*.—Particulars of all arms, ammunition or military stores received in the *malkhana* shall at once be entered in register to be kept for this purpose, in addition to Miscellaneous Register K, in form I appended to these rules. On the receipt of any arms, ammunition or military stores, columns 1 to 13 shall forthwith be filled up, and the register shall then be submitted to the Nazarat Officer who, after satisfying himself as to the accuracy of the entries, shall place his initials in column 14.

5. Return of arms, etc., deposited in the *Malkhana*.—Arms, ammunition and military stores which have been deposited in the *Malkhana*, and have not been forfeited to Government, shall be returned to the persons entitled to possess them in cases in which the deposit was made by a Court, under the orders in writing of the Court, and in other cases under the orders in writing of the Nazarat Officer. The return of all arms, ammunition and military stores under this rule shall take place in the presence of a Gazetted Officer, who shall be responsible for seeing that the relevant columns of the register are filled up.

6. Sales of arms, etc., forfeited and not ordered to be destroyed.—All arms, ammunition and military stores which have been deposited in the *malkhana*, and have been forfeited to Government, and have not been ordered by a Court to be destroyed, may be sold under the orders in writing of the District Magistrate to persons entitled to possess them. A specific and distinct order must be passed with respect to the sale of each weapon or of each lot of ammunition or military stores proposed to be sold, and the sale price must be fixed by the District Magistrate unless the sale is to be by auction. In passing orders for the sale of arms, ammunition and military stores, the District Magistrate should remember that arms, ammunition and stores which can be utilized by the police or by any department under Government may be retained and brought into use with the sanction of the Provincial Government, and should refer for orders any case in which it appears that it would be to the advantage of Government that the arms, ammunition or stores should be retained.

7. Magistrate dealing with administration of the Indian Arms Act to be informed of the sale.—The officer of the headquarters staff who, under the orders of the District Magistrate, deals in the first instance with questions relating to the administration of the Indian Arms Act, 1878, and of the rules thereunder, shall be informed of the sale of all arms, ammunition and military stores, and shall be furnished with a full description of the articles and sold and with information as to the address of the purchaser.

8. Procedure for destruction of arms, ammunition and military stores.—All arms, ammunition and military stores which have been ordered by a Court to be destroyed, or for the destruction of which the District Magistrate, after considering the possibility of their disposal under rule 5 has passed express orders, shall be dealt with as follows:—

- (a) All rifled fire-arms and fire-barrels, pistols and revolvers shall be sent to the nearest Ordnance Officer, under proper precautions, to be broken up. The Nazarat Officer shall advise the Ordnance Officer concerned of the despatch of such arms, and shall personally supervise their dispatch. He shall also inform the District Magistrate as soon as he has actually dispatched them, and shall in the course, submit the receipt of the Ordnance Officer to the District Magistrate, for his information.
- (b) All arms, other than those referred to in clause (a) of this rule, ammunition and military stores shall be broken up or destroyed locally in the presence of the Nazarat Officer and the materials (if any) remaining shall be sold.

When the procedure prescribed by this rule has been completed, the relevant columns of the register shall be filled up. It is of great importance that the number of articles awaiting disposal under this rule should not be allowed to become excessive. Articles, the destruction of which has been ordered, should be kept as far as possible separate from the remainder of the arms, ammunition and military stores in the *malkhana*, and should be dispatched to the Arsenal or destroyed locally, as the case may be, at least once a month. A simple register of such articles should be kept in form II appended to these rules.

9. Register No. I to be opened a new every year. Its checking by the Nazarat Officer and the District Magistrate.—The register mentioned in rule 4 shall be an annual register. At the beginning of each year a new register shall be opened on to which all arms, ammunition and military stores lying in the *malkhana* shall be brought before the 10th of January. The Nazarat Officer shall be personally responsible for seeing that all arms, ammunition and military stores not shown as disposed of in the previous year's register are in the *malkhana*, and he shall at once report if there is any deficiency. The District Magistrate shall, during the month of January, check the entries in the register with the arms in the *malkhana*, and, in order to satisfy himself that the register has been properly prepared, he shall examine a sufficient number of entries in the previous year's register. He shall specially arrange for the disposal of arms liable to sale or destruction if their number is excessive.

REGISTER SHOWING ARMS, AMMUNITION AND MILITARY STORES INT EH MALKHANA AT

[illegible]

FORM II
(SEE RULE 8)

**REGISTER OF ARMS, AMMUNITION AND MILITARY STORES,
THE DESTRUCTION OF WHICH HAS BEEN ORDERED**

1	2	3	4	5	6
Serial No.	Reference to the serial number in the register in Form I	Descriptio n of articles	Date of dispatch to Arsenal	Date of destruction	Initials of Nazarat Officer

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PART D – CIVIL COURTS’ MALKHANAS

1. **Custody and supervision of *Malkhana*.**—There shall be one common store room at the District Headquarters for all the Civil Courts of a district under the control of the Civil Nazir to be known as the Civil Nazir’s *malkhana*. The *malkhana* shall be placed under the direct supervision of the Senior Subordinate Judge (or the Administrative Sub-Judge in the districts where one has been appointed) or any other officer whom the High Court may, by general or special directions appoint. This officer shall be known as the officer-in-charge for the purpose of these rules.

2. **Custody of property with the Civil Nazir.**—Every Civil Nazir shall be provided with a strong box for the custody of all light property such as jewels, bullion, etc., upto the value of one thousand rupees. This strong box may be placed in the outer room of the Treasury, if it is open, as provided in chapter 3 of the Punjab Financial Rules and it is closed, the officer-in-charge should arrange for its safe custody in the Civil Nazir’s *malkhana*, subject to the provision of rule 89. The Civil Nazir shall be primarily responsible for the safe custody of the *malkhana*, the strong box, and the keys thereof subject to the general superintendence of the officer-in-charge. It shall be the duty of the officer-in-charge to see that the aggregate value of property such as jewels, bullion, etc., in custody of the Civil Nazir, does not at any time exceed Rs. 1,000/-.

3. **Custody of property with the Treasury Officer.**—Where the property consists of bullion, coin, currency notes, valuable securities or jewels, and its value exceeds one thousand rupees, it should, instead of being kept in the custody of the Civil Nazir, be made over to the Treasury Officer for safe custody in the Treasury; coin or currency notes (other than counterfeit coin and notes) will be treated as regular deposits under the rules in Chapter XII of the Punjab Financial Rules; bullion at its estimated value, securities, irrespective of their face value, and jewels will be deposited for safe custody, and an entry made by the Treasury Officer in the special register kept in form P.F.R. 2 which should be countersigned every month by the District Magistrate, or of the Additional District Magistrate. The orders of the Deputy Commissioner must be obtained before placing bullion or jewellery, etc., for safe custody in the Treasury.

4. **Miscellaneous Register K.**—Columns 1 to 5 of the Miscellaneous Register K shall be filled up by the Civil Nazir on receipt of the property. The number given to the deposit in column No. 1 shall be noted by the Nazir on the record of the proceedings ordering the property to be made over to him.

5. **Record-keepers’ responsibility.**—Record-keepers should be instructed not to receive into their record rooms any record in which property appears to have been made over to the Civil Nazir, unless the acknowledgement of the Civil Nazir and the number given to the deposit in his register have been duly entered on the record.

6. **Disposal of the property.**—Columns 6 to 8 of the register will be filled up after the disposal of the property. If the property is delivered to a private person, the delivery shall take place in the presence of the Court ordering the delivery or of the officer-in-charge of the *malkhana* as may be convenient and shall be attested in column 6 by the initials of the officer responsible for the delivery.

7. **Duties of the officer-in-charge, *Malkhana*.**—The officer-in-charge shall examine and countersign the register at least once a month and inspect the contents of *malkhana* at least once in six months. He shall at the time of the six-monthly inspection, report to the District Judge the total value of property lying with the Civil Nazir and the efforts made to dispose of

the property.

8. Guarding of Malkhanas.—The Civil Nazir's *malkhana* shall be guarded by a *Chaukidar* but if the value of the property is large and the property is not of such a nature that it can be conveniently deposited in the Treasury or kept in the Civil Nazir's strong box, the officer-in-charge may appoint temporary additional guard or guards.

9. Control and supervision of outlying store-rooms.—Where there is a storeroom attached to the Court of an outlying Civil Court, it shall be under the immediate control and supervision of the Naib-Nazir, who shall be responsible for the safe custody of the contents thereof and the keys, subject to the general superintendence of the officer-in-charge.

10. Custody of valuable securities, jewels, etc., in outlying Courts.—Valuable securities or jewels shall not be kept in outlying store-rooms. Where there is a sub-treasury near the Court, such valuable property shall be treated as subject to the provisions of Rule 3 and be kept in the local sub-treasury, or where there is no such sub-treasury it shall be transferred for safe custody at District headquarters according to the foregoing rules.

General

11. Custody of perishable property and live-stock.—Perishable property or livestock shall not be returned by the Civil Nazir or Naib-Nazir for custody in a *malkhana*, but made over to a *Sapurdar*.

**REGISTER OF BULLION, JEWELLERY AND OTHER VALUABLES CONNECTED WITH CASES REQUIRED TO BE TAKEN OUT
FREQUENTLY**

[illegible]

CHAPTER 11

REALIZATION OF FINES

1. **Discretion to be used in making further efforts to realize fine if sufficient efforts may have failed.**—Although Section 70 of the Indian Penal Code gives the power to levy a fine at any time within six years or during the term of imprisonment of the offender, if this be more than six years, neither that section nor Section 386 of the Code of Criminal Procedure requires that the power should be exercised in every case. The law is permissive and not imperative. When sufficient efforts have been made to realize a fine by distress and sale, but without any success, the Court should exercise its discretion, according to the circumstances of each particular case, as to whether any further steps should be taken towards the realization of the fine within the period allowed by law. If there is reason to believe that the offender is able to pay, but will not do so preferring to undergo imprisonment, the law should be strictly enforced; but if it appears that the fine was not paid for want of means or that its full realization would be ruinous to the offender or his family, it is not desirable that further steps should be taken.

2. **Warrant for recovery of fine to be issued only for special reasons if accused has undergone imprisonment in lieu of fine.**—Under Section 386, as amended in 1923, the offender movable as well as immovable property is now liable to be sold for realization of the fine. But sale of immovable property must be made through the Collector of the District. When an offender has undergone the sentence of imprisonment awarded in default of payment of the fine, no Court can issue a warrant for realization of the fine unless for special reasons to be recorded in writing, it considers it fit to do so.

3. **Fine Register. Its scope and inspection.**—Every Court, whether Criminal or Civil, will keep up in the vernacular a separate Fine Register (No. XIV Criminal), and it will be the duty of the Reader of each Court to see that all fines imposed by the Judge or Magistrate are entered the same day in this register. Compensation awarded under Section 545 of the Code of Criminal Procedure will be treated as a fine imposed in a case instituted on complaint by the original defendant. Fines imposed under Section 480 of the Code of Criminal Procedure, or under Order XVI, Rules 12, 17 of the Code of Civil Procedure, will also be entered in the register and dealt with according to the instructions laid down in these directions. The register should be inspected and signed in the case of Sessions Courts, by the Judge once a month, and, in other Courts, by the Presiding Officer once a week.

4. **General Register of fines. Its scope and inspection.**—In addition to the above register there will also be kept up in the same form, at the headquarters of each District, a General Register of Fines. This register will be under the special charge of the Fine Moharrir, whose duty it will be to see that the register is correctly maintained, that the necessary measures are taken from time to time to realize the fines, and that sums realized are duly disposed of. He should in each case look for his orders to the officer who, under these directions, is responsible for the due execution of the sentences of fine. Separate pages of this register and separate serial numbers should be assigned to the Court of each Magistrate and each Civil Court in the District, and also to the Sessions Court exercising jurisdiction therein. The Presiding Officer of each Court will send to the Fine Moharrir a copy of all entries made in his separate register on the day on which they are made. Fines imposed by the Sessions Court will be entered in accordance with the rules hereinafter provided.

This register should be inspected and signed by the Magistrate of the District, or the Assistant Commissioner or Extra-Assistant Commissioner specially charged with the supervision of the Fine Department, once a week at least.

5. **Payment of fine at the time of pronouncing sentence — procedure.**—(i) If a person, at the time of being sentenced to fine, whether or not in addition to other punishment, tenders payment, in whole or in part, to the Judge or Magistrate imposing the fine, such Judge

or Magistrate will receive the amount tendered and grant, under his hand, a receipt in the form prescribed for the same.

(ii) If the fine has been paid in full, the Court will cause an entry to that effect to be made on the file of the case and will sign such entry; and, if the Court is a Court of Session, will, in forwarding a copy of the sentence to the Magistrate of the District, under Section 373 of the Code of Criminal Procedure, notify the fact of payment with a view to the necessary entry being made in the District Register of Fines. If the fine has been paid only in part the Court will likewise cause such payment to be entered on the file of the case, and will then proceed as provided hereinafter.

(iii) Fines thus paid direct into Court at the time of sentence should be entered at once in the Court's Fine Register, the amount received being noted by the Presiding Officer with his own hand in column 12, and should be then dealt with in the manner provided in paragraph 19 of these directions.

6. Procedure for recovery of fine imposed by the Sessions Judge.—Under Section 386 of the Code of Criminal Procedure it is in the discretion of the Court passing a sentence of fine to issue a warrant for the levy of the amount by distress and sale of movable property belonging to the offender, although the sentence provides for his imprisonment in default. If the fine is imposed by a Court of Session, the Judge should, in the absence of any special direction to the contrary in the law under which the fine is imposed, direct the warrant to the Magistrate of the District. If the whole or a portion of the fine has been awarded in compensation or reward, this fact should be communicated, alongwith the warrant. The Magistrate of the District to whom the warrant is addressed will, on receipt, cause the particulars to be entered in the proper page of the General Fine Register, and the Fine Moharrir will then be responsible that the proper steps are taken for the realization of the fine.

7. Production for recovery of fine imposed by Magistrates.—If the fine is imposed by a Magistrate the warrant should, except when issued by a Tehsildar for execution in his own tehsil, or as hereinafter provided in paragraph 11, ordinarily be addressed to the Tehsildar within whose jurisdiction the offender resides. Warrants for the levy of fine, received by a District Magistrate under the preceding paragraph, should also be executed through the Tehsildars in the same manner as the warrants issued by Magistrates.

8. Warrants for recovery of fine not to be sent to Police.—The practice of issuing a written order to the police for the realization of the fine has been discontinued under the orders of the Provincial Government. In considering whether a warrant of distress should or should not be issued the Court will bear in mind the provisions of Section 386 of the Code of Criminal Procedure.

9. Recovery of fine in instalments and suspension of execution of sentence of imprisonment.—Section 388 of the Code (as recently amended) provides for the realization of fine in instalments and suspension of the execution of the sentence of imprisonment in default of payment of the fine, when an offender is sentenced to fine only.

10. Recovery of fine in cantonment.—Warrants issued for the levy of fines by distress and sale of movable property situate in Cantonments will not be executed by the Tehsildar, but through the Magistrate entrusted with the Judicial work of the Cantonment concerned.

11. Procedure for attachment, sale and objections as laid down in C.P.C.—Formalities will be observed in attachment, sale and adjudicating upon objections similar to those in force in the execution of Civil decrees, with this difference, that the process issues on the Criminal side.

12. Attachment of agricultural implements should be rarely resorted to.—Although agricultural implements are not exempt from distress and sale in realization of a fine, the

measure is one which should be resorted to with discretion; otherwise it may entail undue hardship.

13. Objections to attachment.—When an objector comes forward, he should be warned to the penalties prescribed in Section 207 of the Indian Penal Code for a fraudulent claim to property to prevent its seizure in satisfaction of fine. After this warning, the objection should be inquired into and disposed of, either by admitting the claim or referring the objector to a civil action if his claim seems *prima facie* groundless.

14. Commission on sale.—The officer employed on the duty of selling property attached in default of payment of fines will receive a commission at the following rate, to be deduced from the sale-proceeds:--

if the sale-proceeds do not exceed Rs. 5,000/- at 5 percent.

if the sale-proceeds do not exceed Rs. 5,000/- 5 percent on Rs. 5,000/- and as 1/2 percent on the remainder.

15. Action to be taken subsequent to the realization of a fine.—When a Tehsildar has realized a fine or part of a fine, in the manner above provided he will forthwith dispose of it as hereinafter directed in paragraph 19 below, and return the warrant to the Magistrate who issued it with an endorsement that he has done so. In the endorsement should be noted the date of payment into the Treasury and the number of the Treasury receipt. On the return of the warrant the Magistrate will at once notify in the form prescribed, under his hand and seal, the payment endorsed thereon to the Superintendent of the jail in which the offender is confined, if he is in prison, and, after causing the necessary entries to be made in his Fine Register and attaching the warrant to the file of the case, will pass on the papers to the Fine Moharrir with a view to the results reported by the Tehsildar being noted in the General Fine Register, a fresh warrant being prepared if further proceedings appear to be called for.

Note:--The notice (see form No. 93 of Rules and Orders, Volume VI-B, Part B-1) of payment of the Superintendent of the Jail shall be sent by the Magistrate by registered post, or by a special messenger if the offender is confined in the local jail.

16. Fine may be tendered at any time to Magistrate, Tehsildar and Superintendent of Jail and District Magistrate.—(i) All Magistrates will, at any stage of the proceedings, receive fines imposed by themselves or their predecessors in office, if tendered in their Court, and proceed in the manner described in paragraph 5, and, if the offender is in prison, intimate the payment in the prescribed way to the Superintendent of the Jail in which he is confined.

(ii) Magistrates of Districts will likewise receive fines tendered to them in satisfaction of warrants received from the Courts of Sessions, under the provisions of paragraph 6.

(iii) Tehsildars will always receive fines by whomsoever tendered and will grant receipts. These receipts must be in the prescribed form and be signed by the Tehsildar in full, and will then be admitted by the Magistrate executing the sentence as proof of payment.

(iv) Superintendents of Jails will also receive fines in respect of prisoners in their jails, and send the money with a report to the Magistrate of the District. The Magistrate of the District will make over sums so received to the Nazir, to be dealt with according to the provisions of paragraph 19, and when this has been done, will forward the report of the Superintendent of the jail, duly endorsed with the date on which the fine was paid into the Treasury and the number of the Treasury receipt, to the Magistrate executing the sentence, who will inform the Tehsildar, and cause the necessary entries to be made in his Fine Register and the report to be attached to the file of the case.

17. Form of receipt of fine. Number of copies be prepared.—A form of receipt has been prescribed. When a fine is received by a Tehsildar on behalf of another Magistrate, the

receipt should be prepared in triplicate; one part should be given to the person paying the fine; the second part should be sent to the Court which imposed it, the third part being retained by the Tehsildar himself. Where the fine is paid direct to the Court which imposed it, the receipt need only be prepared in duplicate, one copy being given to the person paying the fine and the counterfoil being retained for record by the Court.

Where a fine is remitted by a Superintendent of a Jail to the Magistrate of the District as provided in sub-paragraph (iv) to paragraph 16, the receipt will also be prepared in duplicate, one copy being sent to the Superintendent of the Jail and the counterfoil being retained by the Magistrate of the District. The form of receipt referred to in this paragraph will be found at No. 142 of Part B-111, Rules and Orders, Volume VI-B.

18. Procedure will be followed when fine is paid in another district.—Fines may be paid in any district, but if paid in any district other than that in which the offender was sentenced, the following procedure should be carefully observed:--

(a) When a warrant or intimation has been received from the district where the fine was imposed the amount received or realized should either be at once credited to Government and intimation sent to the Magistrate of that district, or in case the whole or any part of the fine is to be paid in compensation or to be credited to any Local Fund, so much should be remitted to the Magistrate of that District, and intimation sent to him that the remainder has been credited to Government. In case the fine is only partially realized and it is not clear in what way the amount should be disposed of, it should be kept in deposit pending instructions from the Magistrate of the District concerned, to whom reference should at once be made.

(b) In case no warrant or intimation has been received, the amount received or realized should be placed in deposit and intimation at once sent to the magistrate of the District where the fine was imposed with a request for instructions as to its disposal.

(c) Any fine, or portion of a fine, which has to be finally credited to Government, should be credited in the District in which it is levied, and the Magistrate of the District in which the fine was imposed, should, when communicating, as laid down in clauses (a) and (b) of this paragraph, with the District Magistrate who has received the fine, notify to him the amount to be so credited.

(d) Unless the payment is made to the Jail authorities, notice of the realization should at once be sent in the manner prescribed in the note to paragraph 15 to the Superintendent of the Jail in which the prisoner is confined, either by the Magistrate of the District where the offender was sentenced, or by the Magistrate of the District where the offender is confined, in case the fine is paid in that district.

District Officers are not to require the Vakils of Indian States attached to their Courts to realize fines awarded against offenders whose homes are in foreign territory for offences committed in British territory. They should merely record the fine and acquaint the offender's relatives through the Vakil. If the fine be not paid the prisoner must undergo the term of imprisonment in default (if any) awarded in the sentence.

19. Sums received by Courts in payments of fine shall be paid into the Treasury.—(i) Every sum received by a Judicial Officer in payment of fine will be taken charge of by the Nazir of his Court, or by the Assistant Nazir or other officer performing the duties of Nazir, except in Honorary Courts where the Honorary Magistrate himself takes charge of such sums until such time as they can be paid into a Government Treasury. If the officer holds his Court in the immediate vicinity of a Government Treasury, whether District, Sub-Divisional or Tehsil, the realizations of each day will be paid into the Treasury at the close of the day. If the officer holds his Court at a distance from a Government Treasury, sums received in payment of fine will be paid into the nearest Treasury once a month at least, on the 25th day of each month, and oftener if the amount received since the last payment exceed Rs. 100/- in all. When the payment into the

Treasury is made on account of fines which have been paid direct to the Court which imposed them, or, if imposed by the Court of Session, to the Magistrate of the District acting under paragraph 6, the date of payment into the Treasury with the number of the Treasury receipt will be noted in respect of each fine so paid in the Court's Fine Register and on the record of the case.

Sums realized by Honourary Magistrates may be sent to Treasury by money order in certain cases.—(ii) Sums realized on account of fines or otherwise in Criminal cases, in the Court of any Honorary Magistrate whose place of sitting is at a distance from a Treasury or Sub-Treasury, may be remitted to the Treasury by money-order, instead of by messenger, if the District Magistrate considers it expedient to direct that this course shall be followed in the case of any such Court.

Re cost of money order.—(iii) The cost of such money order will be debited to Judicial contingencies.

Directions as to the credit of the sums sent to the Treasury.—(iv) Sums thus paid into the Treasury will be paid to the credit of Government, or as a deposit, according as the fine is under the terms of the sentence or the orders relating thereto be credited to Government or to be paid in compensation or reward.

Refund of fines credited to Government.—(v) Sums paid into the Treasury for credit to Government should, even in appealable cases, be credited at once to Government, and will be subject to refund if remitted on appeal or in revision. A form of certificate for refund of fine has been prescribed. Before the amount of the remitted fine, or any portion of it, can be refunded, the exact amount realized and credited in the accounts of the Treasury must be ascertained and certified by the Superintendent of the Deputy Commissioner's Officer, and the certificate must be passed for payment by the officer-in-charge of the Treasury to which it is presented for that purpose.

Withdrawal of fines paid in Treasury as deposit.—(vi) Sums paid into the Treasury as deposits will be withdrawable on the order of the Court executing the sentence, on application being made therefore by the party or parties entitled to receive the same after the expiry of the period of appeal or, if an appeal has been presented after the decision of the appeal. When sums are realized which, under the term of the sentence, are payable in compensation or reward, intimation should be given to the party or parties concerned by the Court which is executing the sentence.

Consequences of neglect to follow the directions.—(vii) A strict observance of the foregoing directions is necessary, as the Code of Criminal Procedure contains no provision for recovering sums once paid away in in compensation or reward.

20. Statement of fines imposed realized and credited to Government to be sent to the Accountant-General every month.—(i) Further rules on the subject of crediting and accounting for fines have been issued by the Accounts Department, and these rules must be strictly observed. At the close of each month a statement, for the whole District, of all the fines imposed by Courts, which were realized, and credited to Government during the month, should be prepared and submitted to the Accountant-General or, if no fines were so realized, a certificate that no realizations were effected, should be submitted. The statement for the Sessions Court will be prepared by the District Moharrir of Fines and signed by the Magistrate of the District. The officer who signs the statement will be responsible for its accuracy. The certifying officer should be at the same time satisfy himself that realizations excluded from the statement have been duly accounted for.

Register XV of fine realizations.—(ii) To facilitate the preparation of these statements and the checking of the items excluded from them a register of fine realizations, No. XV, will be kept by the District Fine Moharrir for all Courts in the District and for the Sessions

Court. The entries in this register should invariably be made at the same time as the corresponding entries are made in the General Register of Fines, No. XIV, prescribed in paragraph 4 above. The register should be totalled at the end of each month and should then be examined and checked by the officer-in-charge of fines with reference to the Treasury certificate in regard to credit of fines in the Treasury during the month. Register No. XV is not to be maintained in future by Courts.

21. Duty of Fine Moharrir to draw the attention of the Magistrate to unrealized fines.—Under the foregoing rules, as each fine has been realized, the Fine Moharrir will have noted the fact in the proper column of his register, after satisfying himself that the amount has been credited to Government or otherwise duly dealt with; if a Tehsildar has reverted that there are no effects, this also will have been noted; if payment has been made this will also have been noted. It is also the duty of the Fine Moharrir, from time to time, to draw the attention of the Magistrate to unrealized fines, in order that fresh processes may issue as assets are indicated.

22. Quarterly statement of fine realized to be sent to Sessions Judge. Action to be taken by Sessions Judge.—At the close of each quarter, a return will be submitted to the Sessions Judge, in the prescribed form, showing the progress which has been made during the quarter in realizing the fines imposed by his Court. The realizations shown in this return should be carefully noted in the appropriate column of the Sessions Court's Fine Register, and explanations should be called for or instructions issued in cases in which failure to realize seems to call for explanation or orders. The result of this return will be embodied in the Sessions Judge's Annual Statements.

23. Illegal detention after the fine has been recovered should be prevented.—Care should be taken to prevent illegal detentions in prison. When the Superintendent of a Jail receives a fine or a notice, in the prescribed form, that a fine has been realized, he will note the realization in the warrant of imprisonment, and, if the prisoner is entitled to his release, will release him and return the warrant, duly endorsed, to the Magistrate.

24. Precautions to be taken as to noting of fines as to prisoners transferred to another jail.—Whenever prisoners under sentence of fine are transferred to a Jail in another district, care should be taken to notify on the back of the warrant the amount of fine realized, if any realization has been effected. The name of a transferred prisoner who is sentenced to fine must necessarily remain on the Fine Register of the District in which sentence was passed until the whole of the fine has been paid or until the period within which it can be realized has expired.

25. A general result of the directions.—A careful observance of the foregoing directions will result in the following checks:--

- I.- **Duty of officer-in-charge of the Fine department to check the District Fine Register.**—Every fine imposed by Courts exercising jurisdiction in the District will be entered in the Fine Registers.
- II.- When the fine has been paid into Court, the fact will appear in the proper register, under the hand of the Judge or Magistrate, and on the file of the case.
- III.- In other cases, the proceedings of the Tehsildar will show what steps have been taken for forcible levy.
- IV.- Each realization will be checked by the Fine Moharrir.
- V.- The realizations of each Court will be checked and certified once a month by the Presiding Officer of the Court, or, in the case of fines imposed by the Sessions Court, by the Magistrate of the District.
- VI.- An inspection of the District Register of Fines will always at once show every stage

of each transaction, and quarterly, half-yearly or annual audit can be held of the whole fine transactions of the period, by comparing each entry of the register with the record of the case and the credit in the Treasury. The officer-in-charge of the Fine Department should occasionally test the correctness of the entries in the District Fine Register by comparing some of them with the records of the cases to which they relate and with the credits in the Treasury.

26. Some directions apply to fines imposed by Civil Courts for contempt of Court.—

It will be observed that fines imposed by Civil Courts under the powers conferred by Section 480 of the Code of Criminal Procedure, must be dealt with in accordance with the instructions laid down in this Chapter so far as they are applicable. It will accordingly be necessary for Courts of purely Civil jurisdiction to keep up Criminal Register No. XIV.

27. Appointment of an officer to supervise the Fine Department. Duty of District Magistrate and controlling officer's re-supervision.—District Magistrates should invariably appoint an Assistant or an Extra Assistant Commissioner to supervise the Fine Department, and should themselves, from time to time, see that these directions are understood and carried out. Whenever any Court is inspected by a controlling officer, special attention should be given to the subject.

CHAPTER 12

I – FORMS OF OATHS AND AFFIRMATIONS TO BE ADMINISTERED TO WITNESSES

Whether oath or affirmation	Form of oath or affirmation to be administered to <i>Witness</i> in civil cases and in criminal cases (other than cases tried by a Jury) or in a proceeding before any other authority empowered to administer an oath or affirmation and to take evidence.	Form of oath or affirmation to be administered to a <i>Witness</i> in a criminal case tried by a Jury.
A – SIMPLE AFFIRMATION		
<i>For a person who has an objection to making an oath or solemn affirmation, or who, by reason of immature age, or of the want of or defect in religious belief, ought not, in the opinion of the Court or person authorized to administer an oath or affirmation, to be permitted to take an oath or solemn affirmation.</i>	I solemnly affirm that the evidence which I shall give to the Court (or as the case may be), in this case (or matter) shall be the truth, the whole truth, and nothing but the truth.	I solemnly affirm that the evidence which I shall give to the Court and Jury touching the matters in question between our Sovereign Lord the King-emperor and the prisoner at the bar, shall be the truth, the whole truth, and nothing but the truly.
A – SOLEMN AFFIRMATION		
<i>For a person who is a Hindu or Muhammadan or who has an objection to making an oath.</i>	I solemnly affirm in the presence of Almighty God, that the evidence which I shall give to the Court (or as the case may be) in this case (or matter) shall be the truth, the whole truth, and nothing but the truth.	I solemnly affirm in the presence of Almighty God that the evidence which I shall give to the Court and Jury touching the matters in question between our Sovereign Lord the king-emperor and the prisoner at the bar, shall be the truth, the whole truth, and nothing but the truth.
C – OATH		
<i>For a person who is not a Hindu or Muhammadan and who has no objection to making an oath.</i>	I solemnly swear that the evidence which I shall give to the court (or as the case may be) in this case (or matter) shall be the truth, the whole truth, and nothing but the truth; so help me God!	I solemnly swear that the evidence which I shall give to the Court and Jury touching the matters in question between our Sovereign Lord the King-Emperor and the prisoner at the bar, shall be the truth the whole truth, and nothing but the truth so help me God!

II – FORMS OF OATHS AND AFFIRMATIONS TO BE ADMINISTERED TO WITNESSES

Whether oath or affirmation	Form of oath or affirmation to be administered to an <i>Interpreter</i> in civil cases and in criminal cases (other than cases tried by a Jury) or in a proceeding before any person authorized to administer an oath or affirmation and to take evidence.	Form of oath or affirmation to be administered to a <i>Interpreter</i> in a criminal case tried by a Jury.
A – SIMPLE AFFIRMATION		
<i>For a person who has an objection to making an oath or solemn affirmation, or who, by reason of want of or defect in religious belief, ought not, in the opinion of the Court or person authorized to administer an oath or affirmation, to be permitted to take an oath or solemn affirmation.</i>	I solemnly affirm that I shall well and truly interpret what is deposed by the witness before the Court (or as the case may be) and as may be required by the Court.	I solemnly affirm that I shall well and truly interpret what is deposed by the witness as between our Sovereign Lord the King-Emperor and the prisoner at the bar.
A – SOLEMN AFFIRMATION		
<i>For a person who is a Hindu and Muhammadan or who has an objection to making an oath.</i>	I solemnly affirm in the presence of Almighty God, that the evidence which I shall well and truly interpret what is deposed by the witness before the Court (or as the case may be) and as may be required by the Court.	I solemnly affirm in the presence of Almighty God, that I shall well and truly interpret what is deposed by the witness as between our Sovereign Lord the King-Emperor and the prisoner at the bar.
C – OATH		
<i>For a person who is not a Hindu or Muhammadan and who has no objection to making an oath.</i>	I solemnly swear that I shall well and truly interpret what is deposed by the witness before the Court (or as the case may be) and as may be required by the Court; so help me God!	I solemnly swear that I shall well and truly interpret what is deposed by the witness as between our sovereign Lord the King-emperor and the prisoner at the bar; so help me God!

III – FORMS OF OATHS AND AFFIRMATIONS TO BE ADMINISTERED TO JURORS

Whether oath or affirmation	Form of oath or affirmation to be administered to a <i>Juror</i> in a criminal case tried by a Jury
A – SIMPLE AFFIRMATION	
<i>For a person who has an objection to making an oath or solemn affirmation, or who, by reason of the want of or defect in religious belief, ought not, in the opinion of the Court or person authorized to administer an oath or affirmation, to be permitted to make an oath or solemn affirmation.</i>	I solemnly affirm that I shall well and truly try, and a true verdict give, between our Sovereign Lord the King-Emperor and the prisoner at the bar according to the evidence.
B – SOLEMNLY AFFIRMATION	
<i>For a person who is a Hindu or Muhammadan or who has an objection to making an oath.</i>	I solemnly affirm in the presence of Almighty God, that I shall well and truly try, and a true verdict give between our Sovereign Lord the King-Emperor and the prisoner at the bar according to the evidence.
C – OATH	
<i>For a person who is not a Hindu or Muhammadan, and who has no objection to making an oath.</i>	I solemnly swear that I shall well and truly try, and a true verdict give, between our Sovereign Lord the King-Emperor and the prisoner at the bar, according to the evidence, so help me God!

PART B – AFFIDAVITS

1. **Relevant law.**—The provisions of the Code of Civil Procedure, 1908, on the subject of affidavits, are contained in Section 139 and Order XIX of the Code.

2. **Superior Court may send affidavit for attestation to a lower Court.**—When an application for the attestation of an affidavit is presented to any Court superior to the Court of Sub-Judge, 4th Class, such Court may, if convenient, refer it for disposal to an inferior Court sitting at the same place.

3. **Affidavit exempted from Court-fee.**—No Court-fee or other stamp is required upon an affidavit made for the immediate purpose of being filed and used in any Court or before an officer of any Court (Indian Stamp Act, 1899, Schedule 1, Article 4, exemption (b) and no fee has been prescribed as chargeable for the attestation of an affidavit except as laid down in paragraph 5 below.

4. **Joint affidavit.**—There is no legal objection to several persons joining in a single affidavit in whole or in part; but Courts or Magistrates should, in such cases, be careful that

each declarant deposes separately, and that the certificate is adapted to the actual circumstances of the particular case.

“5. Oath Commissioners, their appointment, fees, etc.—(i) Under Section 139(b) of the Code of Civil Procedure approximately two to four legal practitioners at the Headquarters of each district and one at each station, where there is a Subordinate Judge, are appointed as Commissioners for the purpose of administering oaths and affirmations.

(ii) Such Commissioners are ordinarily appointed from among legal practitioners of not less than three years’ standing at the Bar. They may continue as such until the expiry of thirteen years reckoned from the date of first admission as a legal practitioner, provided that their work is satisfactory, or until the further orders of the High Court, whichever is earlier.

*Note:--*The thirteen years referred to in this clause include period during which a legal practitioner does not practice.

(iii) Commissioners may charge a remuneration of annas eight in cash for each affidavit and shall keep a register in the form prescribed in paragraph 7 *infra* in which all affidavits shall be entered. A written receipt for the amount paid shall be given by the Commissioner to the deponent. The receipt shall be in a printed form consisting of foil and counter-foil, the foil being handed over to the person paying the money and the counterfoil being kept by the Commissioner for purposes of inspection.

The above charge will be in addition to any stamp duty payable on the affidavit under the Indian Stamp Act, 1899, Schedule I, Article 4.

Note:-- The Commissioner will be entitled to an additional fee of Rs. 1-8-8 from a deponent when he is required to attend the deponent’s residence.

5-A. All Official Receivers in the Punjab and Delhi, except the Special Official Receiver attached to the High Court, have been appointed *ex-officio* Oath Commissioners in their respective districts. They will continue as such for the period they hold the office of Official Receiver or until the further orders of the High Court, whichever is earlier.

(High Court Notification No. 205R/X-B-9(b), dated the 16th July, 1943).

6. Attestation of affidavits by process serving and other officials.—In order to facilitate the verification of affidavits of serving officers made under Order V, Rule 19, or Order XVI, Rule 10, of the Code of Civil Procedure, the Provincial Government has empowered the Court of the Subordinate Judge of the First Class in charge of the Nazarat to appoint an officer subordinate to itself to administer oaths to process-servers, bailiffs, naib-nazirs and nazirs making affidavits of service of summons, notices and other processes under the Code of Civil Procedure. (Punjab Government Notification No. 216-19, dated the 20th June, 1931). In the case of such affidavits and of all other affidavits made by officers of the Courts in their official capacity, no application, such as is referred to in paragraph 2 is necessary.

7. Register of affidavits.—A register of affidavits, in the following form, should be maintained at the head-quarters of every district and at each Court at a distance from headquarters in which every application to have an affidavit attested and every affidavit verified, should be entered:---

FORM OF REGISTER

REGISTER OF AFFIDAVITS ATTESTED IN THE _____ COURT OF THE
_____ IN THE _____ DISTRICT

1	2	3	4	5	6	7	8
---	---	---	---	---	---	---	---

Serial No.	Date of application of tendering affidavit	Name of person tendering application (if any) or affidavit	Name of affidavit briefly stated – (if the affidavit relate to a cause in Court, the cause should be specified	Detail of exhibits (if any) attached to affidavit	Civil court, magistrate or other officer empowered in that behalf administering the oath of affirmation	Date of administering oath of affirmation	Signature and designation of Civil Court Magistrate or other officers

8. Title of affidavits.—(i) Every affidavit to be used in a Civil Court shall be entitled:--

“In the Court of _____ at _____ (naming the Court and place of sitting).

(ii) If there be a cause in Court, the affidavit in support of or in opposition to an application respecting it shall also be entitled in the cause, thus:

_____ PLAINTIFF

against

_____ DEFENDANT.

Claim: _____
(naming the parties and stating the nature of the claim).

(iii) If there be no cause in Court, the affidavit shall be entitled:--

“In the matter of the petition of _____
(name) praying _____
_____.”

(brief statement of subject)

(iv) Every affidavit shall be further entitled:--

“Affidavit of _____ (name) made on this _____
day of _____ 19____ (date) before _____
(name of attesting officer), at _____” (place).

9. Contents of affidavits.—(i) Every affidavit containing any statement of facts shall be divided into paragraphs, and every paragraph shall be numbered consecutively, and, as nearly as may be, shall be confined to a distinct portion of the subject.

(ii) Every person, other than a plaintiff or defendant in a suit in which the application is made, making any affidavit, shall be described in such manner as will serve to identify him clearly; that is to say, by the statement of his full name, the name of his father, his profession or trade, and the place of his residence.

(iii) When the declarant in any affidavit speaks to any facts within his own knowledge, he must do so directly and positively, using the word ‘I affirm’ or ‘I make oath and say’.

(iv) When the particular fact is not within the declarant's own knowledge, but is stated from information obtaining from others, the declarant must use the expression '*I am informed*', — and, if such be the case, should and '*and verily believe it to be true,*' — or he may state the source from which he received such information. When the statement rests on facts disclosed in document, or copies of documents procured from any Court of Justice or other source, the declarant shall specify the source from which they were procured, and state his information or belief as to the truth of the facts disclosed in such documents.

10. Affidavits generally to be confined to facts which are within defendant's knowledge.—Attention is drawn to Order XIX, Rule 3, which lays down that affidavits shall be confined to such facts, as, the deponent is able of his own knowledge to prove, except, interlocutory applications (See Order XXXIX, Rules 6 to 10), on which statements of his belief may be admitted: provided that the grounds thereof are stated.

11. Identification of deponent.—Every person making an affidavit shall, if not personally known to the Court, Magistrate or other officer appointed to administer the oath or affirmation, be identified to such Court, Magistrate or officer by some person known to him; and such Court, Magistrate or officer shall specify, at the foot of the affidavit, the name and description of the person by whom the identification is made, as well as the time and place of the identification and of the making of the affidavit.

12. Mode of attestation.—The Court, Magistrate, or other officer as aforesaid, before whom an affidavit is made, shall certify at the foot of the affidavit the fact of the making of Such affidavit before him, and shall enter the date and subscribe his signature to such certificate, and shall, for the purpose of identification, mark, date, and initial every exhibit referred to in the affidavit. The name of the verifying authority must be signed in full, and care must be taken that his proper designation as a Civil Court or Magistrate is added.

13. Female deponents.—An affidavit purporting to have been made by a female declarant, who has not appeared unveiled before the Court, Magistrate, or other officer as aforesaid, before whom the affidavit is made, shall not be certified, unless and until she has been duly identified before, and an affidavit of her identity by the person identifying her has been made before, and certified by such Court, Magistrate or officer.

14. Attesting Officer's duty.—If any person making an affidavit appears to the Court, Magistrate or other officer administering the oath or affirmation, to be ignorant of the language in which it is written, or to be illiterate, or not fully to understand, the contents of the affidavit, such Court, Magistrate or officer shall cause the affidavit to be read and explained to him in a language which both he and such Court, Magistrate or officer understand; either doing so himself, or causing another person to do so in his presence. When an affidavit is read and explained as herein provided, such Court, Magistrate or other officer as aforesaid shall certify in writing at the foot of the affidavit that it has been so read and explained, and that the declarant seemed perfectly to understand the same at the time of making it.

15. Attesting, signing and verification of affidavits.—Every affidavit shall be signed or marked and verified at foot by the declarant and attested by the Court, Magistrate or other officer administering the oath or affirmation, the verification by the declarant shall be in one of the forms attached hereto, and shall be signed or marked by the declarant. The attestation of the Court, Magistrate also be in the form prescribed below.

16. Manner of administering oath to deponent.—In administering an oath or affirmation to the declarant in the case of any affidavit under the Code of Civil Procedure, the Court, Magistrate or other officer appointed in that behalf shall be guided by the rules under the Indian Oaths Act, 1873, printed in Part A of this Chapter and shall follow the form of verification by oath or affirmation hereto appended.

I — FORM OF VERIFICATION OF OATH OR AFFIRMATION

(*VIDE* PARAGRAPH 15 ABOVE)
OATH

I solemnly swear that this my declaration is true, that it conceals nothing, and that no part of it is false — so help me God!

Affirmation

I solemnly affirm that this my declaration is true, that is conceal nothing, and that no part of it is false.

II.— FORM OF CERTIFICATE

(*VIDE* PARAGRAPHS 12, 14 AND 15 ABOVE)

Certified that the above was declared on (a)_____ before me this (b)_____ day of (c)_____ 19_____, at (d)_____ in the district of (e)_____ by (f) _____ who is (g)_____

(full signature) A.B.,

(*Office*) District Judge (or as the case may be) of _____ :--

- (a) here enter oath/affirmation as the case may be,
- (b) date,
- (c) month,
- (d) place,
- (e) name of district
- (f) full name and description of declarant,
- (g) here enter “personally known to me” or “identified at time and place of identification) by (full name and description of person making the identification, who is personally known to me”.

(11-A)

The exhibits marked A, B, C, (as the case may be) above-referred to are annexed hereto under this date and my initial.

(11-13)

Certified further that this affidavit has been read and explained to (name)_____ the declarant who seemed perfectly to understand the same at the time of marking thereof.

CHAPTER 14

LEGAL PROCEEDINGS BY OR AGAINST JUDICIAL OFFICERS

1. Institution of proceedings by Crown servant against defamatory attacks on his public acts with the sanction of Government.—Without obtaining the authorization of the Government to which he is immediately subordinate, no servant of the crown is permitted to have recourse to the Courts for the vindication of his public acts or of his character as a public functionary, from defamatory attacks. In giving authority to institute proceedings the Provincial Government concerned will decide whether the circumstances of the case are such that the Government should bear the cost of the proceedings, Civil or Criminal, or leave the officer to institute the prosecution or suit at his own expense, and in the latter case it will also determine, in the event of the matter being decided by the Courts in the officer's favour whether he should be recouped by Government the whole or any part of the cost of the action.

2. No sanction required for private cases.—The ruling above laid down does not affect an officer's right to defend his private dealings or behaviour in any way that he may be advised; but -his official reputation is in the charge of the Government which he serves, and it is for that Government to decide in each case whether the institution of proceedings to vindicate his public acts or character is necessary or expedient.

3. Detailed rules.—Detailed rules in connection with suits by or against Public Officers will be found in Part III, paragraphs 20 to 23, of the Punjab Law Department Manual, 1926 (pages 61 to 63).

4. No criminal prosecution of a Crown servant for official acts without sanction of the Governor.—Attention is also invited to Section 197 of the Code of Criminal Procedure, which prohibits any Criminal Court from taking cognizance of an offence alleged to have been committed by a Judicial Officer while acting or purporting to act in the discharge of his official duty, except with the previous sanction of the Governor of the Province exercising his individual judgment; and to Section 80 of the Code of Civil Procedure, which requires two months' notice of a suit against a public officer in respect of any act purporting to be done by him in his official capacity.

5. Report about legal proceedings by or against judicial officer in his official capacity to be sent Registrar.—A detailed report in respect of any legal proceedings civil or criminal which may be brought by or against a Judicial Officer in his official capacity, should be submitted through the usual channels to the Registrar, High Court, by the officer concerned, as soon as the question of their institution arises.

CHAPTER 15

FOREIGN JURISDICTION

PART A — GENRAL

1. **Jurisdiction in Foreign States.**—British Courts in Foreign States are regulated by orders of the Governor-General in Council in exercise of the powers conferred by the Indian (Foreign Jurisdiction) Order in Council 1902 as amended by the Indian (Foreign Jurisdiction) Order in Council, 1937. The functions of the Crown in relation to Indian States are now exercised by His Excellency the Crown Representative. These two orders are published in Appendix A and B to this part.

2. **Extradition.**—Volume III, Chapter 16, “Extradition and Foreign Jurisdiction” should be consulted with regard to extradition and the jurisdiction of British Courts in respect of offences committed abroad.

3. **Service of processes.**—Rules regarding service of processes in India and Foreign States will be found in Chapters 7 and 8 of this volume regarding processes.

4. **Execution.**—Rules regarding the execution of decrees and service of summonses of Courts in Indian or other Foreign States by British Courts and *vice versa* will be found in Volume 1, Chapter 12-S, and Volume IV, Chapters 7-F and 8-C.

5. **Commission and Letters of Request.**—For rules regarding issue of Commissions and Letters of Request to Indian and other Foreign States *see* Volume I, Chapter 10, and Volume III, Chapter 9.

APPENDIX A

**INDIAN (FOREIGN JURISDICTION) ORDER IN COUNCIL, 1902
AT THE COURT AT BUCKINGHAM PALACE****The 11th day of June 1962****PRESENT:**

The King's Most Excellent Majesty,
Lord President,
Earl of Kintore,
Lord Balfour of Burleigh,
Sir John Winfield Bouser.

WHEREAS by treaty, grant, usage, sufferance, and other lawful means, His Majesty the King has powers and jurisdiction, exercised on His behalf by the Governor-General of India in Council, in India and in certain territories adjacent thereto;

Now, therefore, His Majesty, by virtue and in exercise of the powers by the Foreign Jurisdiction Act, 1890, or otherwise in His Majesty vested, is pleased, by and with the advice of His Privy Council, to order, and it is hereby ordered as follows:--

1. This Order may be cited as the Indian (foreign Jurisdiction) Order in Council, 1902.
2. The limits of this Order are the territories of India outside British India, and any other territories which may be declared by His Majesty in Council to be territories, in which jurisdiction is exercised by or on behalf of His Majesty through the Governor-General of India in council, or some authority subordinate to him, including the territorial waters of any such territories.
3. The Governor-General of India in Council may, on His Majesty's behalf, exercise any power or jurisdiction which His Majesty or the Governor-General of India in Council for the time being has within the limits of this Order, and may delegate any such power or jurisdiction to any servant of the British Indian Government in such manner, and to such extent, as the Governor-General in Council from time to time thinks fit.
4. The Governor-General in council may make such rules and orders as may seem expedient for carrying this Order into effect, and in particular:--
 - (a) for determining the law and procedure to be observed, whether by applying with or without modification all or any of the provisions of any enactment in force elsewhere, or otherwise;
 - (b) for determining the persons who are to exercise jurisdiction, either generally or in particular classes of cases, and the powers to be exercised by them;
 - (c) for determining the Courts, authorities, Judges, and Magistrates, by whom, and for regulating the manner in which, any jurisdiction, auxiliary or incidental to or consequential on the jurisdiction exercised under this Order, is to be exercised in British India;
 - (d) for regulating the amount, collection and application of fees.
5. All appointments, delegations, certificates, requisitions, rules' notifications, processes, orders and directions made or issued under or in pursuance of any enactment of the Indian Legislature regulating the exercise of foreign jurisdiction, are hereby confirmed, and shall have effect as if made or issued under this Order.
6. The Interpretation Act, 1889, shall apply to the construction of this Order. (Government of India Notification No. 3917-I. A., dated 12th September 1902, published in

Gazette of India, 1902, Part I, pages 667-68).

APPENDIX B

**THE INDIAN (FOREIGN JURISDICTION) ORDER 1937
AT THE COURT AT BUCKINGHAM PALACE****The 18th day of March 1937****PRESENT:**

The King's Most Excellent Majesty in Council.

WHEREAS by the proviso to sub-section (1) of section two of the Government of India Act, 1935, it is provided that any powers connected with the exercise of the functions of the Crown in its relations with Indian States shall, in India, if not exercised by His Majesty, be exercised only by, or by persons acting under the authority of, His Majesty's Representative for the exercise of those functions of the Crown:

AND WHEREAS provision is made by the said Act and the Government of Burma Act, 1935, as to the authorities which are respectively to exercise on behalf of His Majesty the rights, authority and jurisdiction of His Majesty in, and in relation to, the tribal areas in India, and in and in relation to, areas in Burma which are not part of the territories of His Majesty:

AND WHEREAS it is accordingly expedient to amend the Indian (Foreign Jurisdiction) Order in Council, 1902 (in this Order referred to as "the principal Order"):

Now, therefore, His Majesty, by virtue and in exercise of the powers by the Foreign Jurisdiction Act, 1890, or otherwise in His Majesty vested, is pleased by and with the advice of His Privy Council to order, and it is hereby ordered as follows:---

- (1) This Order may be cited as the Indian (Foreign Jurisdiction Order in Council, 1937.
- (2)
 - (i) As from the commencement of Part III of the Government of India Act, 1935, the powers conferred by the principal Order on the Governor-General in council shall, so far as they are connected with the exercise of the functions of the Crown in its relations with Indian States, be powers of His Majesty's Representative for the exercise of those functions of the Crown, and he may delegate those powers to such extent and in such manner as he thinks fit.
 - (ii) The person appointed to be His Majesty's Representative for the exercise of those functions of the Crown may, before the commencement of Part III of the said Act, make any rules, orders, delegations and appointments and issue any other instruments which he would have power to make or issue after the commencement of part III of the said Act, but no such rule, order, delegation or appointment shall come into force until the commencement of Part III of the said Act.
 - (iii) Orders and other instruments made and executed in the name of the Crown Representative shall be authenticated in such manner as may be specified in the Rules to be made by him and the validity of an Order or Instrument which is so authenticated shall not be called in question on the ground that it is not an Order or instrument made by the Crown Representative.
3. As from the commencement of Part III of the said Act and the Government of Burma Act, 1935, the Principal Order shall cease to have effect as respects the tribal areas in India and any areas in Burma, without prejudice, however, to the validity of anything previously done thereunder:--

Provided that any rules, orders, delegations, appointments or other instruments made or issued under the said Order shall continue in force, except so far as revoked or varied by the authority competent for the purpose under the Government of India Act, 1935, or the Government of Burma Act, 1935, as the case may be.

4. Save as aforesaid, the powers conferred by the principal Order on the Governor-General in Council shall continued to be exercisable on behalf of His Majesty by the Governor-General in Council until the establishment of the Federation of India and shall thereupon become exercisable on behalf of His Majesty by the Governor-General of India.
5. The Interpretation Act, 1889, shall apply to the construction of this Order.

**PART B – JUSTICES OF THE PEACE FOR THE PUNJAB STATE; CRIMINAL LAW
AND PROCEDURE**

APPLICABLE

(a) Crown Representative's Notification No. 323-1, B, dated the 9th December, 1937.

Appointment of Justices.—In exercise of the powers conferred by the Indian (Foreign Jurisdiction) Order in Council, 1937, and of all other powers enabling him in that behalf, the Crown Representative is pleased, in supersession of the Notification of the Government of India in the late Foreign and Political Department No. 674-167-1, dated the 24th April, 1923, to appoint the officers for the time being holding the offices specified in the first column of the Schedule hereto annexed, being European British subjects, to be Justices of the Peace within the territories of the States and Estates entered in the second column of the Schedule opposite their respective names and to direct that the High Court of Judicature at Lahore shall be the Court to which such officers shall commit European British subjects for trial.

SCHEDULE

The Hon'ble Resident for the Punjab States.	Bahawalpur, Chamba, Dujana, Faridkot, Jind, Kapurthala, Khairpur, Loharu, Maler-kotla, Mandi, Nabha, Pataudi, Patiala and Suket.
---	--

Secretary to the Hon'ble the Resident
for the Punjab States.

The Political Agent, Punjab Hill
States Agency.

Baghal, Baghat, Balsan, Bashahr, Bhajji, Bilsapur, Bija, Darkoti, Delath Estate, Dhadi Estate, Dhami, Ghund Estates, Jubbal, Kalsia, Keonthal, Khaneti Estate, Koti Estate, Kumharsian, Kunihar, Kuthar, Madan Estate, Mahlog, Mangal, Nalagarh, Ratesh Estate, Rawingarh Estae, Sangri, Sirmur, Tehri (Garhwal). Tharoch, and Theog Estate.

(b) Justices of the Peace to commit for trial to the High Court having jurisdiction

Government of India Notification No. 582-D., dated the 26th January, 1917 as amended by Notification No. 881-I.B., dated the 24th May, 1917.—In exercise of the powers conferred by the Indian (Foreign Jurisdiction) Order in Council, 1902, and of all other powers enabling him in that behalf, and in supersession of the notification of the Government of India in the Foreign Department, No. 2616-1, dated the 6th August, 1890, the Governor-General in Council is pleased to direct that a Justice of the Peace for the time being in any Native State, Territory or Chiefship specified in the notifications of the Government of India in the Foreign and Political Department, Nos. 580-D, and 581-D, dated the 26th January, 1917, shall commit for trial to the High Court which under those notifications has original and appellate criminal jurisdiction in pursuance of Section 109, sub-section (1) of the Government of India Act, 1915 (5 & 6 Geo. V., Ch. 61), over European British subjects (for the time being within) such State, Territory or Chiefship.

(c) Justices of the Peace invested with powers of Magistrates of the 1st Class and to hold inquests

Government of India Notification No. 391-D, dated the 16th January 1917, as amended by Notification No. 881-LR, dated 24th May, 1917.—In exercise of the powers conferred by the India (Foreign Jurisdiction) Order in Council, 1902 and of all other powers enabling him in that behalf of India in the Foreign Department, No. 680-1. B., dated the 19th March, 1912, the

Governor-General in Council is pleased to direct:--

- (1) that any European British subject appointed either by name or by virtue of his office to be a Justice of Peace in or for any country or place beyond the limits of British India shall have, in regard to European British subjects and persons accused of having committed offences jointly with European British subjects, and persons accused of having committed offences jointly with European British subjects, all the powers of a Magistrate of the 1st Class under the Code of Criminal Procedure, 1898 (V of 1898), and in addition all powers under Section 186 and 190 of the said Code;
- (2) that any European British subject appointed either by name or by virtue of his office to be a Justice of the Peace in or for any country or place beyond the limits of British India shall have power to hold inquests under Section 147 of the said Code.

(d) Criminal law and procedure of British India applicable to British subjects in the territories outside British India in which jurisdiction is exercised by the Governor-General in council

Government of India No.1863-1-A., dated the 13th May, 1904, as amended by No.184-1, dated the 20th March, 1930.—In exercise of the powers conferred by the Indian (Foreign Jurisdiction) Order in Council, 1902, the Governor-General in Council is pleased, with effect from the 1st day of June 1904 to direct that, for the purposes of any power or jurisdiction exercised under that Order, the law relating to offences and to criminal procedure for the time being in force except Section 443 to 447 of the Code of Criminal Procedure, 1898 (Act V of 1898) in British India shall, subject as to procedure to such modifications as the Governor-General in Council from time to time directs, apply, so far as applicable, to all subject of His Majesty.

(e) Jurisdiction of High Courts over European British Subjects in Indian States

Government of India Notification No. 580-D, dated the 26th January, 1917.—In exercise of the powers conferred by Section 109, sub-section (1) of the Government of India Act, 1915 (5 & 6 Geo. V, Ch. 61), and in supersession of the notification of the Government of India in the Foreign department, No. 853- I.B., dated the 16th April, 1913, as amended by the notification of the Government of India in the Foreign and Political Department, No. 1589-I.B., dated the 2nd August 1916, the Governor General in Council is pleased to direct that original and appellate criminal jurisdiction over European British subjects of His Majesty (for the time being within) the territories of the States of India named below shall, until the Governor-General in Council otherwise orders, be exercised by the High Courts of Jurisdiction established at Fort William in Bengal, Madras, Bombay, Alahabad and Patna and Lahore respectively, as follows:--

(By the High Court of Judicature at Lahore In:--

Jammu and Kashmir.

Kalat.

Las Bela.

The territories administered by the Agent of the Governor-General in Balochistan as such Agent.

The States in the political controlled of the Government of the Punjab.

The States within the political charge of the Agent to the Governor-General, Punjab States (now the Hon'ble the Resident for the Punjab States).

The territories administered by the Agent to the Governor-General, North-West

Frontier Province, as such Agent).

As amended b Notification:--

No. 880-I.B., dated 24th May, 1917.

No. 90-B.S., dated the 1st April, 1919.

No. 274-X, dated 23rd April, 1930.

No. 149-1, dated 1st April, 1913.

No. 157, dated 1st April, 1933.

No. 172-I.B., dated 18th March, 1927.

PART C - POWERS UNDER ADMINISTRATOR-GENERAL'S ACT

Central Government, Home Department, Notification No. 202/37-II, dated the 8th November 1939

1. High Court.—In pursuance of sub-clause (j) of clause (2) of Section 2 of the Official Trustees Act, 1913 (II of 1913) and sub-clause (j) of clause (12) of Section 2 of the Administrator-General's Act, 1913 (III of 1913), and in supersession of the Notification of the Government of India, in the Home Department Nos. 1823-C and 1824-C., dated the 13th March, 1914, and in the foreign and Political Department, Nos. 1449-D and 1450-D., dated the 19th March, 1914, the Central Government is pleased to appoint, in relation to British subjects in the Indian States or parts of Indian States specified in column 1 of the annexed Schedule, the court specified in the corresponding entry in column 2 thereof to be the High Court for the purposes of the said Acts:

Provided that all proceedings pending in any court at the date of this notification shall be carried on as if this notification had not been issued.

SCHEDULE

1	2
Indian States	Court
(5) The States and Estates of the Punjab Station Agency (including the Punjab Hill States Agency).	The High Court at Lahore
Jammu and Kashmir (including the Gilgit Agency).	

2. District Judge.—The following Notification of the Government of India provides for the discharge of the duties imposed on a District Judge by section 64 of the Administrator-General's Act (II of 1874):--

Government of India Notification No. 3542-L, dated the 21st August 1891.—In exercise of the powers conferred by Sections 4 and 5 of the Foreign Jurisdiction and Extradition Act (XXI of 1879) (now Indian Jurisdiction Orders 1902 and 1937) and of all other powers enabling him in this behalf, the Governor-General in Council is pleased to declare that the powers and duties which are conferred and imposed on a District Judge by section 64 of the Administrator-General's Act (II of 1874), as amended by Section 13 Act II of 1890 (now Act III of 1913), shall, in the dominions of Princes and States in India in alliance with Her Majesty, be respectively conferred upon and discharged by the following officers:--

- (a) In dominion in or for which a District Court has been established or continued by the Governor-General in Council, the Judge of that Court: provided that when

more than one officer exercise the powers of a District Judge in any such dominion, it shall be competent for the officer who exercise in that dominion the powers of a District Judge in any such dominion, it shall be competent for the officer who exercise in that dominion the powers of a High Court to determine by whom the aforesaid powers and duties shall be exercised in any particular case or within any specified area in that dominion; and

- (b) In all other cases, the Political Agent (as defined in section 3 of the first mentioned Act).

Note.--By Government of India (F, and B,) Notification No. 140-I, dated the 11th March, 1931, the above notification has been superadded in its apheation to the territories of Jammu and Kashmir.

3. District Judge.—By virtue of Punjab government Notification No. 202270-Judi., dated the 3rd of May, 1932 and No. 23774-Judi., dated the 14th June, 1932, the Senior

Subordinate Judge has been appointed, by virtue of his office, Additional Judge of Simla in order that the District Judge, Ambala, may assign to him under section 21 (2) of Punjab Courts Act 1918 the functions of the District Judge in respect of Section 54, Administrator-General's Act, VII of 1913.

Government of India Home Department, Notification No. 202137-1, dated the 8th November, 1939

Delegation of powers to Punjab Government.—In exercise of the powers conferred by sub-section (1) of Section 124 of the Government of India Act, 1935, the Central Government is pleased, wit the consent of the Provincial Governments specified in column 1 of the annexed Schedule, to entrust to them the functions of the Central Government under--

- (a) Sections 4, 5, 17 to 21, and 30 of the Official Trustees Act, 1913 (II of 1013), and
- (b) Sections 3, 4, 27, 32, 42, to 47 and 50 of the Administrator-General's Act, 1913 (III of 1913), in relation to the Chief Commissioner's Province or Provinces (if any) specified in the corresponding entry in column 2 of the said Schedule and in relation to British subjects in the Indian States or parts of Indian States specified in the corresponding entry in column 3 of the said Schedule.

THE SCHEDULE

Provincial Government	Chief Commissioner's Province	Indian States
1	2	3
*****	*****	*****
The Provincial Government of the Punjab	Delhi	The State and Estates of the Punjab States Agency (including the Punjab Hill States Agency) Jammu and Kashmir (including the Gilgit Agency).

**PART D - PERSONS AUTHORIZED TO CERTIFY DOCUMENTS FOR THE
PURPOSES OF SECTION 79 OF THE INDIAN**

Evidence Act

*Government of India Notification No. 417-1 published in the Gazette of India,
dated the 6th August, 1932.*

Jammu and Kashmir State

1. Registrar, High Court, Jammu and Kashmir.
2. District and Sessions Judge, Srinagar.
3. District and Session's Judge, Jammu.
4. Wazir Wazarat, Gilgit.
5. Wazir Wazarat, Ladakh.

Notification No. 98-I, dated the 26th October, 1923

Patiala State

The Foreign Secretary and Assistant Foreign Secretary.

The Revenue Commissioner.

All District and Sessions Judges.

All Nazims (District Magistrates).

All Naib Nazims Faujdari (Magistrates, 1st Class).

All Naib Nazims Dewani (Subordinate Judges).

All Naib Nazims Mal (Revenue Assistants).

The Registrar, High Court.

Foreign and Political Notification No. 541-I, Gaz. of India, dated 12th September, 1931.

Chamba State

The Chief Secretary.

The Chief Judicial Officer.

Notification of the Crown Representative No. 246-I.B., dated 3rd November, 1933.

Tehri Garhwal State

1. Chief Secretary, Tehri State.

Foreign and Political Department Notification No. 141-I, dated the 2nd April, 1924.

Malerkotla State

Foreign Secretary and the Assistant Foreign Secretary.

The Member, Revenue Board.

The District and Sessions Judge.

The District Magistrate.

The Collector.

All the Magistrates, 1st Class.

All the Sub-Judges.

The Revenue Officer.

Judge of the Chief Court.

Crown Representative, Political Department Notification No. 84-1, B., dated the 24th March, 1939.

Jind State

1. Judges of the High Court.
2. Revenue Minister.
3. Political Minister.
4. Political Secretary.
5. Sessions Judge.
6. All Nazims (District Magistrates).
7. All Magistrates, 1st Class.
8. All sub-Judges.
9. All Tehsildars.
10. Mohtim, Record Office.

Government of India, Foreign and political Department, Notification No. 270-I, dated the 16th May, 1933.

Nabha State

1. Sessions Judge, Nabha.
2. Nazim of Amloh.

PART E - EXECUTION OF CONDEMNED PRISONERS

The following notification provides for the execution of prisoners condemned by British Courts exercising jurisdiction outside British India:--

Government of India Notification No. 1431-I, dated the 27th April, 1893

Whereas a capital sentence is occasionally passed by a British Court exercising in or with respect to territory beyond the limits of British India jurisdiction which the Governor-General in Council has in such territory;

And whereas there may be in such territory no secure place for the confinement of a prisoner under sentence of death or no suitable appliances for his execution in a decent and humane manner;

In exercise of the powers conferred by Sections 4 and 5 of the Foreign Jurisdiction and Extradition Act (XXI of 1879) (now Indian Foreign Jurisdiction Orders, 1902 and 1937), and of all other powers enabling him in this behalf, the Governor-General in Council is pleased to direct as follows:--

1. When any person is sentenced to death by a British Court in the exercise of such jurisdiction as is referred to in the first paragraph of the preamble to this notification, and in the opinion of the Court, such sentence should for any such reason as is referred to in the second paragraph of the said preamble be executed in British India, the Court shall issue its warrant for such execution to the Superintendent or Keeper of a Jail in British India, and shall in such warrant prescribe, as nearly as may be, the place in British India where such Superintendent or Keeper is to cause the execution to be carried out.

2. The jail in British India to which the Court may send its warrant under the provisions of this notification shall be such as the Governor-general in Council or a Local Government authorized by him in this behalf, may by general or special order direct.

3. Every warrant for the execution of a sentence of death to be issued by a Court under the Provisions of this notification shall be in the form set forth in the schedule hereto annexed.

SCHEDULE

FORM OF WARRANT

To the Superintendent or Keeper of the Jail at _____ in British India.

Whereas at a trial held on the _____ day of _____ 19__ (name of place) in (name of territory), before me, A.B. (name of Judge), being the presiding officer of a British Court exercising (or with respect to) territory beyond the limits of British India jurisdiction which the Governor-General in Council has in such territory, C.D. (name of prisoner) was duly convicted of the offence of culpable homicide amounting to murder and sentenced to suffer death and the said sentence has been confirmed by E.F. (name of authority);

And whereas there is in (name of territory) no secure place for the confinement of a prisoner under sentence of death (or no suitable appliances for the execution of a person under sentence of death in a decent and humane manner);

And whereas this Court is of opinion that for the reason aforesaid the said sentence should be executed in British India;

This is to authorize and require you, the said Superintendent (or Keeper) being a Superintendent (or Keeper) of a Jail specified in an order under Section 2 of Act No. V of 1893, passed by the Governor-General of India in Council, to receive the said C.D. (prisoner's name) into your custody in the said jail, together with this warrant, and there him safely to keep until the time hereinafter appointed. And then to carry the said sentence into

execution by causing the said C.D. (prisoner's name) to be hanged by the neck until he be dead,
At (time and place of execution) and to return this warrant to this Court with an endorsement
certifying that the sentence has been executed.

Given under my hand and the seal of the Court this _____ day of
_____ 19 .

(Seal)

(Signature).

PART F - RAILWAY LANDS

1. **Categories.**—These are divided into two categories, viz,:---

- (i) lines where arrangement are assimilated to those of the neighboring British districts, and
- (ii) lines where particular Acts have been applied and special Courts have beer created.

2. **Railways included in and Laws applicable.**—The former are provided for by Crown Representative's Notification No. 206-I.B., dated the 15th June, 1939. It may be noted that Kalka-Simla Railway mentioned in Central Government Notification No. 343-1, dated the 2nd July, 1924 and Kangra Valley Railway mentioned in Central Government Notification No. 546-I, dated the 10th September, 1931 have now been included in Notification No. 206-I.B., stated above.

The latter are provided for by Government of India Notification No. 345-I, dated the 2nd July, 1924, *and* Punjab States Railway Lands (Application of Laws) Order, 1939,---*vide* Notification No. 341-1. B., dated the 13th September, 1939.

3. Magistrates having jurisdiction in Railway Lands have been directed to execute under certain conditions processes issued by Magistrates having jurisdiction in Indian States, *vide* Central Government, Foreign and Political Department Notification No. 34-I. B., dated the 14th January, 1937.

The relevant notifications have been given in the Appendix.

APPENDIX

- (i) **Political Department Notification No. 206-I.B., dated the 15th June 1939 as amended by notifications Nos. 318-I.B., and 342-1, B., dated the 26th August, 1939 and 14th September, 1939, respectively.**

NOTIFICATION

Whereas the Crown Representative has full and exclusive power and jurisdiction over the lands lying within the States specified in the second column of the Schedule hereto annexed, which are, or many hereafter be, occupied by the Railway specified in the first column of the said Schedule (including the lands occupied by stations, by out-buildings and for other railway purposes) and over all persons and things whatsoever within the said lands;

In exercise of the powers conferred by the Indian (Foreign Jurisdiction) Order in Council, 1937, and of all other powers enabling him in that behalf, and in supersession of the notification of the Government of India in the late Foreign Department, No. 515-I.B., dated the 17th March, 1913, the Crown Representative is pleased to provide as follows for the administration of justice within the said lands:--

(1) All laws for the time being in force in the districts of the Punjab specified in the third column of the said Schedule shall, subject to such modifications, if, any, as may be specified by the Crown Representative in this behalf, be in force in the lands lying within the States specified in the corresponding entry in the second column which are occupied by the portions of the railways specified in the corresponding entry in the first column thereof:

Provided that, except where the context otherwise requires, references in the said laws to the Central Government shall be construed as if they were reference to the Crown Representative, references to the Provincial Government shall be construed as if they were references to the Governor of the Punjab and references to British India (Except in Section 124-A of the Indian of the Indian Penal Code), or to a Province or to any part thereof, shall be construed as if they were references to the said lands:

Provided, further, that the reference in Section 124-A of the Indian Penal Code to the Government established by law in British India shall be deemed to include a reference to the Government established by law in, or the Ruler of, the State in which the said lands are situate:

Provided, further, that any Court may construe the provisions of the said laws with such modifications not affecting the substance as may be necessary or proper in order to adapt them to the matter before the Court.

(2) The Governor of the Punjab and all officers subordinate to him who for the time being exercise executive authority within the said districts for the purpose of administration of justice shall exercise the like authority within the said lands:

Provided that the police jurisdiction in the said lands shall be exercised exclusively by the Railway Police of the Punjab.

(3) All Courts having for the time being jurisdiction within the said districts shall have the like jurisdiction within the said lands.

SCHEDULE

Railway	State	District
1	2	3
(Bombay Baroda and Central India Railway System:		
Ahmadabad – Delhi Section	Nabha Patudi	Gurgaon
Rewari-Bhatinda-Fazilka	Dujana	

	Jind Patiala	Hissar
Faridkot Frontier-Muktsar	Faridkot Nabha	Ferozepore
(2) North-Western Railway System:		
Delhi-Ambala-Kalka Railway	Patiala Kalsia	Ambala
Kalka Simla Railway	Bhagat Keonthal Patiala	Simla
Main Line Ambala-Khanna	Patiala Nabha	Ambala
Khanna-Ludhiana Ludhiana-Amritsar Kangra Valley Railway Raiwind-Bhatinda Branch	Patiala Kapurthala Mandi Faridkot	Ludhiana Jullundur Kangra
	Nabha Patiala	Ferozepore
Jammu-Kashmir Sections- Sialkot-Jammu Bhatinda-Samasatta	Kashmir Bahawalpur Bikaner	Sialkot Multan Ferozepur
Adamwaham-Reti McLeodganj-Fazilka	Bahawalpur Bahawalpur	Multan Multan

Note: Jurisdiction over European British subjects in these railway lands vests in the High Court of Judicature at Lahore. See Notification No. 580-D, dated the 26th January, 1917.

The lands have been included as part of the States whose territory they are, in the Province of the Punjab for the purposes of the Administrator-General's Act, 1915, and the Official Trustees Act, 1913, by Notification Nos. 1449-D, 1450-D, dated 19th March, 1914.

(ii) Government of India Notification No. 345-1, dated the 2nd July, 1924

Whereas the Governor-General in Council has full and exclusive power and jurisdiction of every kind over the land lying within the States specified in the second column of the Schedule hereto annexed which are, or may hereafter be occupied by the Railways specified in the first column of the said Schedule (including the lands occupied by stations, by out-buildings and for other railway purposes), and over all persons and things whatsoever within the said lands.

In exercise of the powers conferred by the Indian (Foreign Jurisdiction) Order in Council, 1902 and of all other powers enabling him in that behalf, the Governor-General in Council is pleased to provide as follows for the administration of justice within the said lands:--

PART I – CRIMINAL JURISDICTION

For the purposes of criminal jurisdiction, except in proceedings, against European British subjects and persons jointly charged with European British subjects, the following arrangements shall be made, namely:--

With the lands occupied by the Railways as aforesaid, the officers and the Court mentioned in the corresponding entries in the third, fourth and fifth columns of the Schedule shall exercise, respectively:--

- (a) The powers of a District Magistrate including all powers conferrable on a District Magistrate;
 - (b) the powers of a Court of Sessions, and
 - (c) the powers of a High Court.
- as described in the Code of Criminal Procedure, 1898, as for the time being in force in the said lands.

PART II – CIVIL JURISDICTION

For the purposes of civil jurisdiction the following arrangements shall be made, namely:--

Within the lands occupied by the Railways, as aforesaid, the officers and the Court mentioned in the corresponding entries in the sixth and seventh columns of the Schedule with the administration of civil justice:---

- (a) the powers of a District Court, and
- (b) the powers of the High Court.

as described in the Punjab Courts Act, 1918, as for the time being in force.

SCHEDULE

	1	2	3	4	5	6	7
	Railway	State	CRIMINAL JURISDICTION			CIVIL JURISDICTION	
			District Magistrate with powers conferred under Section 30 of Criminal Procedure, 1898	Court of Session	High Court	District Court	High Court
Bombay-Baroda and Central India Railway system jodhpur Bikaner Railway system.	1. Rajputana-Malwa Railway 2. Jodhpur-Bikaner Railway. Bhatnda-Bikaner Fronter	Nabha-Patiala Patiala	The Deputy Commissioner, Gurgaon. The Deputy Commissioner, Ferozepur.	In the areas in which in pursuance of this notification the Deputy Commissioner of the district exercises the powers of a District Magistrate, the District Judge of that district.	The High Court of Judicature at Lahore.	In the Areas in which in pursuance of this notification the Deputy Commissioner of a district exercises the powers of a District Magistrate the District Judge of that district.	The High Court of Judicature at Lahore.
Jaipur State Railway	Jhunjhunu-Loharu Section	Loharu	Deputy Commissioner, Hissar.	District and Session Judge, Hissar.	Ditto	District and Sessions Judge, Hissar	Ditto.
Bikane Railway System	3. Ludhiana-Rewari Chod.	Patiala	Deputy Commissioner, Gurgaon.	District and Sessions Judge, Hissar		District and Sessions Judge, Hissar.	Ditto

		Loharu	Deputy Commissioner, Hissar.				
	4. Dhuri Jakhal Railway. Ludhiana- Maler-Kotla Frontier, near Lachche- Baddl. Maler Kotla, Frontier, Jakhal.	Malerkotla, Patiala, Nabha, Jind.	The Deputy Commissioner, Ludhiana.	In the areas in which in pursuance of this notification the Deputy Commissioner of a district exercises the powers of a District Magistrate, - the District Judge of that district.	The high Court of Judicature at Lahore.	In the areas in which in pursuance of this notification the Deputy Commissioner of a district exercises the powers of a District Magistrate, the District Judge of that district.	The high Court of Judicature, at Lahore.
	5. Rajpura- Bhatinda, Railway Rajpura- Dhuri. Dhurr- Bhatinda	Patiala- Nabha Patiala- Nabha	The Deputy Commissioner, Ambala. The Deputy Commissioner Ludhiana.				
	6. Southern Punjab Railway Mian Lind Giddarbaha- Budhlada Budhlada-	Patiala Patiala	The Deputy Commissioner, Ferozepure. The Deputy Commissioner,				

	Jind Frontier near Uchana Jind Frontier near Uchana- Karainthi.	Jind	Rohtak. “				
	Narwana- Kaithal Branch.	Patiala	The Deputy Commissioner, Karnal.				
Eastern Indian Railway System	7. Jullundur Doab Railway.	Karpurthala	The Deputy Commissioner, Jullundur.	The Commissioner, Jullundur Division.		The Commissioner, Jullundur Division.	
	8. Phagwara- Rahon Railway	-do-	Ditto				
	9. Jind-Panjpat Railway	Jind	The Deputy Commissioner, Karnal.	In the area in which in pursuance of this notification the Deputy Commissioner of a district exercises the powers of a District Magistrate, the District Judge of that district.		In the areas in which in pursuance of this notification the Deputy Commissioner of a district exercises the powers of a District Magistrate, the District Judge of that district.	

Note: The schedule has been amended by notification No.45-I.B., dated the 25th January 1937, No.55-I.B., dated the 1st march 1939, and No.381-A-I.B., dated the 1st November, 1939, No. 291-I.B., dated the 12th December, 1938.

(iii) Political Department notification No. 341-I.B., published in the Gazette of India, dated the 16th September, 1939.

No. 341-I.B.—In exercise of the powers conferred by the Indian (Foreign Jurisdiction) order in Council, 1937, and of all other powers enabling him in that behalf, the Crown Representative is pleased to make the following Order:--

1. This Order may be cited as the Punjab States Railway Lands (Application of Laws) Order, 1939.

2. In this Order:--

“Crown Representative” means His Majesty’s Representative for the exercise of the functions of the Crown in its relations with Indian States, and includes:--

- (i) any person or persons acting under his authority, and
- (ii) in relation to anything done before the 1st April 1937, the Governor-General in Council and any person or persons acting under the authority of the Governor-General in Council.

“Punjab State Railway Lands” means the railway lands specified in the notification of the Government of India in the late Foreign and Political Department, No. 345-1, dated the 2nd July, 1924.

“Resident” means the Resident for the Punjab States.

3. The enactments mentioned in the first column of the Schedule to this Order shall apply to the Punjab State Railway lands subject to the modifications and restrictions specified in the second column thereof and to the provisions of this Order.

4. References in the Schedule to this Order to an Act of the Central Legislature or of any Provincial Legislature shall be deemed to be references to that Act as for the time being amended by the Central Legislature or, as the case may be, by the Provincial Legislature and as adapted or modified by any Order in Council made by His Majesty under Section 293 of the Government of India Act, 1935.

5. The enactments applied by this Order shall, except where the context otherwise requires and except in the modifications and restrictions referred to in paragraph 3, be construed as if references therein to the authorities, gazette and territories mentioned in the first column of the Table hereinafter printed were references to the authorities, gazette and territories respectively mentioned opposite thereto in the second column of the said Table.

TABLE

(i) Central Government, Governor-General or Federal Railway Authority	Crown Representative.
(ii) Provincial Government, Governor or Chief Controlling Revenue Authority.	Resident.
(iii) Government	Crown or Crown Representative or Resident as the context may require.
(iv) High Court	High Court of Judicature at Lahore.
(v) Official Gazette	Official Gazette of the Crown Representative or the Resident as the context may require.
(vi) British India, any Province in British India or any part thereof.	The Punjab States Railway lands.

6. A direction in the Schedule in this Order that an enactment or portion of an enactment

shall stand unmodified shall be regarded as a direction that it is not to be construed in accordance with the provisions of paragraph 5.

7. Any Court may construe the provisions of any enactment applied by this Order and of the notifications, orders, by-laws rules or regulations, made or issued thereunder with such modifications not affecting the substance as may be necessary or proper in order to adapt them to the matter before the Court.

8. The Punjab Railway Lands (Application of Laws) Order, 1937, is hereby repealed:--

Provided that all proceedings taken under any of the enactments applied by that Order and pending at the commencement of this Order shall be continued as if this Order had not been made:---

Provided further that all appointments, delegations, notifications, orders, by-laws rules and regulations made or issued under or in pursuance of, any of the enactments applied by that Order shall have effect as if made or issued under, or in pursuance of, the corresponding enactment applied by this Order, or, as the case may be, the corresponding enactment in force in the Kalka-Simla Railway Lands and the Kangra Valley Railway Lands.

APPENDIX A

INDIAN (FOREIGN JURISDICTION) ORDER IN COUNCIL, 1902
AT THE COURT AT BUCKINGHAM PALACE*The 11th day of June, 1902*

PRESENT:

The King's Most Excellent Majesty,
 Lord President,
 Earl of Kintore,
 Lord Balfour of Burleigh,
 Sir John Winfield Bouser.

Whereas by treaty, grant, usage, sufferance, and other lawful means, His Majesty the King has powers and Jurisdiction, exercised on His behalf by the Governor-General of India in Council, in India and in certain territories adjacent thereto:

Now, therefore, His Majesty, by virtue and in exercise of powers by the Foreign Jurisdiction Act, 1890, or otherwise in His Majesty vested, is pleased, by and with the advice of His Privy Council, to order, and it is hereby ordered as follows:--

1. This Order may be cited as the India (Foreign Jurisdiction) Order in Council, 1902.
2. The Limits of this Order are the territories of India outside British India, and *any* other territories which may be declared by His Majesty in Council to be territories, in which jurisdiction is exercised by or on behalf of His Majesty through the Governor-General of India to Council, or some authority subordinate to him, including the territorial waters of any such territories.
3. The Governor-General of India in Council may, on His Majesty's behalf, exercise any power or jurisdiction which His Majesty or the Governor-General of India in Council for the time being has within the limits of this Order, and may delegate any such power or jurisdiction to any servant of the British Indian Government in such manner, and to such extent, as the Governor-General in Council from time to time thinks fit.
4. The Governor-General in Council may make such rules and order as may seem expedient for carrying the Order into effect, and in particular:--
 - (a) for determining the law and procedure to be observed, whether by applying with or without modification all or any of the provisions of any enactment in force elsewhere, or otherwise;
 - (b) for determining the persons who are to exercise jurisdiction, either generally or in particular classes of cases, and the powers to be exercised by them'
 - (c) for determining the Courts, Authorities, Judges, and Magistrates, by whom, and for regulating the manner in which, any jurisdiction, auxiliary or incidental to or consequential on the jurisdiction exercised under this Order, is to be exercised in British India;
 - (d) for regulating the amount, collection and application of fees.
5. All appointments, delegations, certificates, requisitions, rules' notifications, processes, orders and directions made or issued under or in pursuance of any enactment of the Indian Legislature regulating the exercise of foreign jurisdiction, are hereby confirmed, and shall have effect as if made or issued under this order.
6. The Interpretation Act, 1889, shall apply to the construction of this Order.

(Government of India Notification No. 3917-1, A., dated 12th September, 1902, published in Gazette of India, 1902, Part I, pages 667-68).

APPENDIX B

THE INDIAN (FOREIGN JURISDICTION) ORDER, 1937

AT THE COURT OF BUCKINGHAM PALACE

The 18th day of March, 1937

PRESENT:

The King's Most Excellent Majesty in Council.

Whereas by the proviso to sub-section (1) of section two of the Government of India Act, 1935, it is provided that any powers connected with the exercise of the functions of the Crown in its relations with Indian States shall, in India, if not exercised by His Majesty, be exercised only by, or by persons acting under the authority of, His Majesty's Representative for the exercise of those functions of the Crown:

And whereas provision is made by the said Act and the Government of Burma Act, 1935, as to the authorities which are respectively to exercise on behalf of His Majesty the rights, authority and jurisdiction of His Majesty in, and relation to, the tribal area in India, and in and in relation to, areas in Burma which are not part of the territories of His Majesty:

And whereas it is accordingly expedient to amend the India (Foreign Jurisdiction) Order in Council, 1902 (in this Order referred to as "The principal Order");

Now, therefore, His Majesty, by virtue and in exercise of the powers by the Foreign Jurisdiction Act, 1890, or otherwise in His Majesty vested, is pleased by and with the advice of His Privy Council to order, and it is hereby ordered as follows:---

- (1) This Order may be cited as the Indian (Foreign Jurisdiction) Order in Council, 1937.
- (2)
 - (i) As from the commencement of Part III of the Government of India Act, 1935, the powers conferred by the principal Order on the Governor-General in Council shall, so far as they are connected with the exercise of the functions of the Crown in its relations with Indian States, be powers of His Majesty's Representative for the exercise of those functions of the Crown, and he may delegate those powers to such extent and in such manner as he thinks fit.
 - (ii) The person appointed to the His Majesty's Representative for the exercise of those functions of the Crown may, before the commencement of Part III of the said Act, make any rules, orders, delegations and appointments and issue any other instruments which he would have power to make or issue after the commencement of Part III of the said Act, but no such rule, delegation or appointment shall come into force until the commencement of Part-III of the said Act.
 - (iii) Orders and other instruments made and executed in the name of the Crown Representative shall be authenticated in such manner as may be specified in the Rules to be made by him and the validity of an Order or Instrument which is so authenticated shall not be called in question on the ground that it is not an Order or Instrument made by the Crown Representative.
- (3) As from the commencement of Part-III of the said Act and the Government of Burma Act, 1935, the principal Order shall cease to have effect as respects the tribal areas in India and any areas in Burma, without prejudice, however, to the validity of anything previously done thereunder:

Provided that any rules, orders, delegations, appointments or other instruments made or issued under the said Order shall continue in force, except so far as revoked or varied by the authority competent for the purpose under the Government of India Act, 1935, or the Government of Burma Act, 1935, as the case may be.

- (4) Save as aforesaid, the powers conferred by the principal Order on the Governor-General in Council shall continue to be exercisable on behalf of His Majesty by the Governor-General in Council until the establishment of the Federation of India and shall thereupon become exercisable on behalf of the His Majesty by the Governor-General of India.
5. The Interpretation Act, 1889, shall apply to the construction of this Order.

**PART B – JUSTICES OF THE PEACE FOR THE PUNJAB;
CRIMINAL LAW AND PROCEDURE APPLIABLE
SCHEDULE**

(a) Crow Representative's Notification No. 323-1, B., dated the 9th December, 1937

Appointment of justices.—In exercise of the powers conferred by the Indian (Foreign Jurisdiction) Order in Council, 1937, and of all other powers enabling him in that behalf, the Crown Representative is pleased, in supersession of the Notification of the Government of India in the late Foreign and Political Department No. 647-167-1, dated the 24th April, 1923, to appoint the officers for the time being holding the officers specified in the first column of the Schedule hereto annexed, being European subjects, to the Justices of the Peace within the territories of the State and Estates entered in the second column of the Schedule opposite their respective names and to direct that the High Court of Judicature at Lahore shall be the Court to which such officers shall commit European British subjects for trial.

SCHEDULE

The Hon'ble the Resident for the Punjab	Bahawalpur, Khairpur
Secretary to the Hon'ble the Resident for the Punjab States	
The Political Agent, Punjab Hill States Agency	Baghal, Baghat, Balsan, Bashahr, Bhajji, Bilaspur, Bija, Darkoti, Delath Estate, Dhadi Estate, Dhami, Ghund Estate, Jubbal, Kalsia, Keonthal, Khaneti Estate, Koti Estate Kumharsain, Kunihar, Kuthar, Madan Estate, Mahlog, Mangal, Nalagarh, Ratesh Estate, Rawingarh Estate, Sangd, Sirmun Tehri (Garhwal), Tharoch, and, Theog Estate.

(d) Justices of the Peace to commit for trial to the High Court having jurisdiction

Government of India Notification No. 582-D, dated the 26th January, 1917 as amended by Notification No. 881-LB., dated 14th May, 1917.—In exercise of the powers conferred by the Indian (Foreign Jurisdiction) Order in Council, 1902, and of all other powers enabling him in that behalf, and in supersession of the notification of the Government of India in the Foreign Department, No. 2616-1, (dated the 6th August, 1890, the Governor-General in Council is pleased to direct that a Justice of the Peace for the time being in any Native State, Territory or Chiefship specified in the notifications of the Government of India in the Foreign and Political Department, Nos. 580-D., and 581-D., dated the 26th January 1917, shall commit for trial to the High Court which under those notifications has original and appellate criminal jurisdiction in pursuance of Section 109, sub-section (1) of the Government of India Act, 1915 (5 & 6 Geo-V., Ch. 61), over European British subjects (for the time being within) such State, Territory or Chiefship.

(c) Justices of the Peace invested with powers of Magistrates of the 1st class and to hold inquests

Government of India Notification No. 319-D, dated the 16th January, 1917, as amended by Notification No. 881-1, B., dated 24th May, 1917 – In exercise of the powers conferred by the Indian (Foreign Jurisdiction) Order in Council, 1902, and or all other powers enabling him in that behalf, and in supersession of the notification of the Government of India in the Foreign Department, No. 680-I, B., dated the 19th March, 1912, the Governor-General in Council is pleased to direct:--

- (1) that any European British subject appointed either by name or by virtue of his office to be a Justice of Peace in or for any country or place beyond the limits of British India shall have, in regard to European British subjects, and persons accused of having committed offences jointly with European British subjects, all the powers of a Magistrate of the 1st Class under the Code of Criminal Procedure, 1898 (V of 1898), and in addition all powers under Sections 186 and 190 of the said Code;
- (2) that any European British subject appointed either by name or by virtue of his office to be a Justice of the Peace in or for any country or place beyond the limits of British India shall have power to hold inquest under Section 147 of the said Code.

(d) Criminal law and procedure of British India applicable to British subjects in the territories outside British India in which jurisdiction is exercised by the Governor-General in Council

Government of India No. 1863-1-A., dated the 13th May, 1904, as amended by No. 184-J,K dated the 20th March, 1930.—In exercise of the powers conferred by the Indian (Foreign Jurisdiction) Order in Council, 1902, the Governor-General in Council is pleased, with effect from the 1st day of June, 1904 to direct that, for the purposes of any power of jurisdiction exercised under that Order, the law relating to offences and to criminal procedure for the time being in force except Sections 443 to 447 to the Code of Criminal Procedure, 1898 (Act V of 1898) in British India shall, subject to the procedure to such modifications as the Governor-General in Council from time to time directs, apply, so far as applicable, to all subjects of His Majesty.

(e) Jurisdiction of High Court over European British subjects in Indian States

Government of India Notification No. 580-D., dated the 26th January 1917.—In exercise of the powers conferred by Section 109, sub-section (1) of the Government of India Act, 1915 (5 & 6 Geo. V, Ch. 61), and in supersession of the notification of the Government of India in the Foreign Department, No. 853-I.B., dated the 16th April, 1913, as amended by the notification of the Government of India in the Foreign and Political Department, No. 1589-I.B., dated the 2nd August 1916, the Governor-General in Council is pleased to direct that original and appellate criminal jurisdiction over European British subject of His Majesty (for the time being within) the territories of the States of India named below shall, until the Governor-General in Council otherwise orders, be exercised by the High Courts of Judicature established at Fort William in Bengal, Madras, Bombay, Allahabad and Patna and Lahore respectively, as follows:—

* * * *

(By the High Court of Judicature at Lahore In—
Jammu and Kashmir
Kalat.
Las Bela.

The territories administered by the Agent to the Governor-General in Baluchistan as such Agent.

The States in the political control of the Government of the Punjab.

The States within the political charge of the Agent to the Governor-General, Punjab States (now the Hon'ble the Resident for the Punjab States).

The territories administered by the Agent to the Governor-General, North-West Frontier Province, as such Agent.)

As amended by Notifications:—

No. 880-I.B., dated 24th May, 1917.

No. 90-B.S., dated the 1st April, 1919.

No. 247-X, dated 23rd April, 1930.

No. 149-1, dated 1st April, 1933.

No. 157, dated 1st April, 1933.

No. 172-I.B., dated 18th March, 1937.

PART C – POWERS UNDER ADMINISTRATOR-GENERAL'S ACT

Central Government, Home Department, Notification No. 202/37-11, dated the 8th November, 1939.

1. High Court.—In pursuance of sub-clause (j) of the clause (2) of Section 2 of the Official Trustees Act, 1913 (II of 1913) and sub-clause (j) of clause (12) of Section 2 of the Administrator-General's Act, 1913 (III of 1913), and in supersession of the notification of the Government of India, in the Home Department Nos. 1823-C and 1824-C., dated the 18th March, 1914, and in the Foreign and Political Department, Nos. 1449-D, and 1450-D., dated the 19th March, 1914, the Central Government is pleased to appoint, in relation to British subjects in the Indian States or parts of Indian States specified in column 1 of the annexed Schedule, the Court specified in the corresponding entry in column 2 thereof to be the High Court for the purpose of said Acts:

Provided that all proceedings pending in any Court at the date of this notification shall be carried on as if this notification had not been issued.

SCHEDULE

<i>Indian State</i>	<i>Court</i>
(5) The States and Estates of the Punjab States Agency (including the Punjab Hill States Agency) Azad Jammu and Kashmir (including the Gilgit Agency)	The High Court at Lahore

2. District Judge.—The following notification of the Government of India provides for the discharge of the duties imposed on a District Judge by Section 64 of the Administrator-General's Act (II of 1874):--

Government of India Notification No. 3542-1, dated the 27th August, 1891.—In exercise of the powers conferred by Sections 4 and 5 of the Foreign Jurisdiction and Extradition Act (XXI of 1879) (now Indian Foreign Jurisdiction Orders 1902 and 1937) and of all other powers enabling him in this behalf, the Governor-General in Council is pleased to declare that the powers and duties which are conferred and imposed on a District Judge by Section 64 of the Administrator-General's Act (II of 1874), as amended by Section 13 of Act II of 1890.(now Act III of 1913), shall in the dominions of Princes and States in India in alliance with Her Majesty, be respectively conferred upon and discharged by the following officers:--

- (a) In any dominion in or for which a District Court has been established or continued by the Governor-General in Council, the Judge of that Court; provided that when more than one officer exercises the powers of a District Judge in any such dominion, it shall be competent for the officer who exercises in that dominion the powers of a high Court to determine the whom the aforesaid powers and duties shall be exercised in any particular case or within any specified area in that dominion; and
- (b) In all other cases, the Political Agent (as defined in Section 3 of the first mentioned Act).

Note: By Government of India (F. and B.) Notification No. 140-1, dated the 11th March, 1931, the above notification has been superseded in its application to the territories of Jammu and Kashmir.

3. District Judge.—By virtue of Punjab Government Notification No. 20227-Judl., dated the 3rd of May, 1932 and No. 23774-Judl., dated the 14th June, 1932, the Senior Subordinate

Judge has been appointed, by virtue of his office, Additional Judge of Simla in order that the District Judge, Ambala, may assign to him under Section 21(2) of Punjab Courts Act 1918 the functions of the District Judge in respect of Section 54, Administrator-General's Act, VII of 1913.

Government of India Home Department, Notification No. 202/37-1, dated the 8th November, 1939.

Delegation of powers to Punjab Government.—In exercise of the powers conferred by sub-section (I) of Section 124 of the Government of India Act, 1935, the Central Government is pleased, with the consent of the Provincial Governments specified in column 1 of the annexed Schedule, to entrust to them the functions of the central Government under :---

- (a) Sections 4, 5, 17 to 21 and 30 of the Official Trustees Act, 1913 (II of 1913), and
- (b) Sections 3, 4, 27, 32, 42 to 47 and 50 of the Administrator-General's Act, 1913 (III of 1913), In relation to the Chief Commissioner's Province or Provinces (if any) specified in the corresponding entry in column 2 of the said Schedule and in relation to subjects in the Provinces of Pakistan or parts of Provinces of Pakistan specified in the corresponding entry in column 3 of the said Schedule.

THE SCHEDULE

Provincial Government	Chief Commissioner's Province	Parts of Province
The Provincial Government of Punjab	Lahore	The Estates of the Punjab Agency (including the Punjab Hill Jammu & Kashmir (including the Gilgit Agency)

PART D – PERSONS AUTHORIZED TO CERTIFY DOCUMENTS FOR THE PURPOSES OF SECTION 79 OF THE EVIDENCE ACT

Government of India Notification No. 417-1, published in the Gazette of India, dated the 6th August, 1932.

Azad Jammu and Kashmir State

1. Registrar, High Court, Azad Jammu and Kashmir.
2. District and Sessions Judge, Srinagar.
3. District and Sessions Judge, Jammu.
4. Wazir Wazarat, Gilgit.
5. Wazir Wazarat, Ladakh.

Notification No. 98-1, dated the 26th October, 1923

Patiala State

1. The Foreign Secretary and Assistant Foreign Secretary.
2. The Revenue Commissioner.
3. All District and Sessions Judges.
4. All Nazims (District Magistrates).
5. All Naib Nazims Faujdari (Magistrates, 1st Class).
6. All Naib Nazims Dewani (Subordinate Judges).

7. All Naib Nazims Mal (Revenue Assistants).

8. The Registrar, High Court.

Foreign and Political Notification No. 541-I, Gaz. Of India, dated 12th September, 1931.

Chamba State

The Chief Secretary.

The Chief Judicial Officer.

Notification of the Crown Representative No. 246-I. B., dated 3rd November, 1938.

Tehri Garhwal State

Foreign and Political Department Notification No. 141-I, dated the 2nd April, 1924.

Malerkotla State

1. Foreign Secretary and the Assistant Foreign Secretary.

2. The Member, Revenue Board.

3. The District and Sessions Judge.

4. The District Magistrate.

5. The Collector.

6. All the Magistrates, 1st Class.

7. All the Sub-Judges.

8. The Revenue Officer.

9. Judge of the Chief Court.

Crown Representative, Political Department Notification No. 84-I. B., dated the 24th March, 1939.

Jind State

1. Judges of the High Court.

2. Revenue Minister.

3. Political Minister.

4. Political Secretary.

5. Sessions Judge.

6. All Nazims (District Magistrates).

7. All Magistrates, 1st Class.

8. All Sub-Judges.

9. All Tehsildars.

10. Mohtmim, Record Office.

Government of India, Foreign and Political Department, Notification No. 270-1, dated the 16th May, 1933.

Nabha State

1. Sessions Judge, Nabha.

2. Nazim of Amloh.

PART E - EXECUTION OF CONDEMNED PRISONERS

The following notification provides for the execution of prisoners condemned by Courts exercising jurisdiction outside Pakistan:

Government of India Notification No. 1431-1, dated the 27th April 1893.

Whereas a capital sentence is occasionally passed by a British Court exercising in or with respect to territory beyond the limits of British India jurisdiction which the Governor-General in Council has in such territory;

And whereas there may be in such territory no secure place for the confinement of a prisoner under sentence of death or no suitable appliances for his execution in a decent and humane manner;

In exercise of the powers conferred by *Sections 4 and 5 of the Foreign Jurisdiction and Extradition Act (XXI of 1879) (Now Indian Foreign Jurisdiction Orders, 1902 and 1937)*, and of all other powers enabling him in this behalf, the Governor-General in Council is pleased to direct as follows:--

1. When any person is sentenced to death by a British Court in the exercise of such jurisdiction as it referred to in the first paragraph of the preamble to this notification, and in the opinion of the Court, such sentence should for any such reason as is referred to in the second paragraph of the said preamble be executed in Sub-continent the Court shall issue its warrant for such execution to the Superintendent or Keeper of a Jail in Sub-continent and shall in such warrant prescribe, as nearly as may be, the place in Sub-continent where such Superintendent or Keeper is to cause the execution to be carried out.
2. The jail in Sub-continent to which the Court may send it warrant under the provisions of this notification shall be such as the Governor-General in Council, or a Local Government authorized by him in this behalf, may be general or special order direct.
3. Every warrant for the execution of a sentence of death to be issued by a Court under the provisions of this notification shall be in the form set forth in the schedule hereto annexed.

SCHEDULE

FORM OF WARRANT

To the Superintendent of Keeper of the Jail at _____ in _____.

Whereas at a trial held on the _____ day of _____ 19 _____. (*name of place*) in (*name of territory*), before me, A.B. (*name of Judge*), being the presiding officer of a _____ exercising (or with respect to) territory beyond the limits of _____ jurisdiction which the Governor-General in Council has in such territory, C.D. (*name of prisoner*) was duly convicted of the offence of culpable homicide amounting to murder and sentenced to suffer death and the said sentence has been confirmed by E.F. (*name of authority*);

And whereas there is in (*name of territory*) no secure place for the confinement of a prisoner under sentence of death (or no suitable appliances for the execution of a person under sentence of death in a decent and humane manner);

And whereas this Court is of opinion that for the reason aforesaid the said sentence should be executed in British India.

This is to authorize and require you, the said Superintendent (or Keeper) being a Superintendent (or Keeper) of a Jail specified in an order under Section 2 of Act No. V of 1893, passed by the Governor-General of India in Council, to receive the said C.D. (*prisoner's name*) into your custody in the said jail, together with his warrant, and there him safely to keep until the time hereinafter appointed, and then to carry the said sentence into execution by causing the said C.D. (*prisoner's name*) to be hanged by the neck until he be dead, at (*time and place of execution*) and to return this warrant to this Court with an endorsement certifying that the sentence has been executed.

Give under my hand and the seal of the Court this _____ day of _____ 19 ____.

(Seal).

(Signature)

PART F — RAILWAY LANDS

1. Categories.--These are divided into two categories, viz.

- (i) lines where arrangements are assimilated to those of the neighbouring British districts, and
- (ii) lines where particular Acts have been applied and special Courts have been created.

2. Railways included in and Laws applicable.—The former are provided for by Crown Representative's Notification No. 206-I.B., dated the 15th June, 1939. It may be noted that Kalka-Simla Railway mentioned in Central Government Notification No. 343-1, dated the 2nd July, 1924 and Kangra Valley Railway mentioned in Central Government Notification No. 546-1, dated the 10th September, 1931 have now been included in Notification No. 206-I.B., stated above.

The latter are provided for by Government of India Notification No. 345-1, dated the 2nd July, 1924, and Punjab States Railways Lands (Application of Laws) Order, 1939, — *vide* Notification No. 341-I.B., dated the 13th September, 1939.

3. Execution of Processes.—Magistrates having jurisdiction in Railway Lands have been directed to execute under certain conditions processes issued by Magistrate having jurisdiction in Indian States, *vide* Central Government, Foreign and Political Department Notification No. 34-1. B., dated the 14th January, 1937.

The relevant notifications have been given in the Appendix.

APPENDIX

- (i) *Political Department No. 206-1. B., dated the 15th June, 1939 as amended by notifications Nos. 318-I. B., and 342-I. B., dated the 26th August 1939 and 14th*

September, 1939, respectively.

NOTIFICATION

Whereas the State Representative has full and exclusive power and jurisdiction over the lands lying within the States specified in the second column of the Schedule hereto annexed, which are, or may hereafter be, occupied by the Railways specified in the first column of the said Schedule (including the lands occupied by stations, by out-buildings and for other railway purposes) and over all persons and things whatsoever within the said lands:

In exercise of the powers conferred by the Indian (Foreign Jurisdiction) Order in Council, 1937, and of all other powers enabling him in that behalf, and in supersession of the notification of the Government of India in the late Foreign Department, No. 515-I. B., dated the 17th March, 1913, the Crown Representative is pleased to provide as follows for the Administration of Justice within the said lands.

(1) All laws for the time being in force in the districts of the Punjab specified in the third column of the said Schedule shall, subject to such exceptions by the State Representative in this behalf, be in force in the land lying within the States specified in the corresponding entry in the second column which are occupied by the portions of the railways specified in the corresponding entry in the first column thereof:

Provided that, except where the context otherwise requires, references in the said laws to the Central Government shall be construed as if they were reference to the State Representative, references to the Provincial Government shall be construed as if they were references to the Governor of the Punjab and references to Sub-continent (except in Section 124-A of the Penal Code), or to a Province or to any part thereof, shall be construed as if they were references to the said lands:

Provided, further, that the reference in Section 124-A of the Penal Code to the Government established by law in Sub-continent shall be deemed to include a reference to the Government established by law in, or the Ruler of, the State in which the said lands are situate:

Provided, further, that any Court may construe the provisions of the said laws with such modifications not affecting the substance as may be necessary or proper in order to adapt them to the manner before the Court.

(2) The Governor of the Punjab and all officers subordinate to him who for the time being exercise executive authority within the said districts shall exercise the like authority within the said lands:

Provided that the police jurisdiction in the said lands shall be exercised exclusively by the Railway Police of the Punjab.

(3) All Courts having for the time being jurisdiction within the said districts shall have the like jurisdiction within the said lands.

SCHEDULE

S.No.	Railway	State	District
(1)	Bombay Baroda and Central India Railway system:		
	Ahmadabad-Delhi Section	Nabha Pataudi	Gurgaon
	¹ [“Rewari-Bhatinda-	Dujana	Hisar

¹[Notification No.247-I-B., dated 25.5.1944).

Fazilka	Jind	
	Patiala (up to the outer signal of Railway Station Bhatinda towards Sher Garh)	
	Patiala (from outer signal of Ferozepur. Railway Station Bhatinda towards Sher Garh up to Patiala-Faridkot frontier)]	
Faridkot	Frontier-Faridkot	Ferozepore
Muktsar	Nabha	
(2) Nort-Western Railway Station:		
Delhi-Ambala-Kalka Railway	Patiala	Ambala
Kalka-Simla Raliway	Kalsia	
	Bhagat	Simla
	Keonthal	
	Patiala	
Main Line		
Ambala-Khanna	Patiala	Ambala
	Nabha	
Khanna-Ludhiana	Patiala	Ludhiana
Ludhiana-Amritsar	Kapurthala	Jullundur
Kangra Valley Railway	Mandi	Kangra
Raewind-Bhatinda Branch	Faridkot	Ferozepore.
	Nabha	
	Patiala	
Jammu-Kashmir Section		
Sialkot-Jammu	Kashmir	Sialkot
Bhatinda-Samasatta	Bahawalpur	Multan
	Bikaner	Ferozepore
Adamwahan-Reti	Bahawalpur	Multan
McLeodganj-Fazilka	Bahawalpur	Multan

Note: Jurisdiction over European British subjects in these railway lands vests in the High Court of Judicature at Lahore. See Notification No. 580-D, dated the 26th January, 1917. These lands have been included as part of the State whose territory they are, in the

Province of the Punjab for the purposes of the Administrator-General's Act, 1915, and the Official Trustees Act, 1913, by notification Nos. 1449-D, and 1450-D, dated the 19th March, 1914.

“(ii) *Government of India, Political Department Notification No. 345-I. B., dated the 2nd July, 1924.*”

Whereas the State Representative has full and exclusive powers and jurisdiction over the lands lying within the States specified in the second column of the Schedule hereto annexed, which are, or may hereafter be, occupied by the railway specified in the first column of the said Schedule (including the lands occupied by stations, by out-buildings and for other railway purposes), and over all persons and things whatsoever within the said lands;

In exercise of the powers conferred by the Indian (Foreign Jurisdiction) Order in Council, 1937, and of all other powers enabling him in that behalf, the State Representative is pleased to provide as follows for the administration of justice within the said lands:--

PART I — CRIMINAL JURISDICTION

For the purpose of criminal jurisdiction, except in proceedings against European British subjects and persons jointly charged with European British subjects, the following arrangements shall be made, namely:--

Within the lands occupied by the railways, as aforesaid, the officers and the Court

mentioned in the corresponding entries in the third, fourth and fifth columns of the schedule shall exercise respectively:--

- (a) the powers of a District Magistrate, including all powers conferrable on a District Magistrate.
- (b) the powers of a Court of Sessions, and
- (c) the powers of a High Court.

as described in the Code of Criminal Procedure, 1898, as for the time being in force in the said lands.

PART II – CIVIL JURISDICTION

For the purposes of civil jurisdiction the following arrangements shall be made, namely:--

Within the land occupied by the railways, as aforesaid, the officers and the Court mentioned in the corresponding entries in the sixth and seventh columns of the schedule shall exercise respectively, for all purposes connected with the administration of civil justice:---

- (a) the powers of a District Court, and
- (b) the powers of High Court.

as described in the Punjab Courts Act, 1918, as for the time being in force.

II. The notification of the Government of India in the late Foreign and Political Department No. 345-1, dated the 2nd July, 1924 is hereby cancelled.

Provided that all civil and criminal proceedings pending at the date of his notification shall be carried on as if this notification had not been issued.

SCHEDULE: As pertaining to present India territory therefore not printed.

(iii) *Government of India Political Department Notification No. 442-I. B., dated the 11th November, 1942, as amended by Notification No. 5-1. B., dated the 5th January, 1944.*

No. 442-I.B.—In exercise of the powers conferred by the Pakistan (Foreign Jurisdiction) Order in Council, 1937, and of all other powers enabling him in that behalf, and in supersession of the Punjab Railway Lands (Application of Laws) Order, 1939, the State Representative is pleased to make the following Order:--

1. This Order may be cited as the Punjab States Railway Lands (Application of Laws) Order, 1942.

2. In this order:--

“State Representative” means Representative of the Central Government for the exercise of the functions of the State in its relations with Pakistan provinces and includes:---

- (i) any person or persons acting under his authority, and
- (ii) in relation to anything done before the 1st April, 1937 the Governor General in Council and any person or persons acting under the authority of the Governor or General in Council;

“Punjab Railway Lands” means the railway lands specified in the notification of the Political Department No. 390-I.B., dated the 20th October, 1943, as amended from time to time. “Resident” means the Resident for the Punjab.

3. The enactments mentioned in the first column of the Schedule to this Order shall apply to the Punjab Railway Lands subject to any amendments to which the enactments are for the time

being generally subject in the territories to which they extend, the modifications and restrictions specified in the second column of the Schedule and the provisions of this Order.

4. The enactments applied by this Order shall except where the context otherwise requires and except in the modifications and restrictions referred to in paragraph 3, be construed as if references therein to the authorities, gazette and territories mentioned in the first column of the table hereinunder printed were references to the authorities, gazette and territories respectively mentioned opposite thereto in the second column of said table:--

TABLE

(i) Central Government, President or Federal Railway Authority.	Crown Representative
(ii) Provincial Government, Governor or Chief Controlling Revenue Authority.	Resident.
(iii) Government.	State or State Representative or Resident the context may require.
(iv) High Court	High Court of Judicature at Lahore.
(v) Official Gazette	Official Gazette of the State Representative, or, as the case may be, of the Resident.
(vi) British India or any para thereof	The Punjab States Railway Lands.

6. A direction in the Schedule to this Order that an enactment or portion of an enactment shall stand unmodified shall be regarded as a direction that it is not to be construed in accordance with the provisions of paragraph 4.

7. Any Court may construe the provisions of any enactment applied by this Order and of any notifications, orders, by-laws, rules or regulations made or issued thereunder with such modifications not affecting the substance as may be necessary or proper in order to adapt them to the matter before the Court.

8. That Punjab Railway Lands (Application of Law) Orders, 1937, is hereby repealed:---

Provided that all the proceedings taken under any of the enactments applied by that Order and pending at the commencement at this Order shall be continued as if this Order had not been made:

Provided further that all appointments, delegations, notifications, orders, by-laws, rules and regulations made or issued under, or in pursuance of, any of the enactments applied by that Order shall have effect as if made or issued under, or in pursuance of, the corresponding enactment applied by this Order, or, as the case may be, the corresponding enactment in force in the Kalka-Simla Railway Lands and the Kangra Valley Railway Lands.

SCHEDULE

Enactments applied	Modifications and restrictions
<i>Acts of the Central legislature</i>	
1. The Postal code (act XLV of 1860).	(1) In clause second of Section 21, the words British India shall stand unmodified.
	(2) In Section 55, after the words "shall have been passed" insert "the Crown Representative or."
	(3) Section 75 shall stand unmodified.

	(4) In Section 121-A, for the words “British India” where they occur for the second time, substitute “British India” or of the Punjab States Railway Lands.”
	(5) In Section 124-A, for the words “British India”, substitute “British India” or the Punjab States Railway Lands, or towards the Ruler of, or the Government established by law in, the State in which the said lands are situate.”
	(6) In Sections 244 and 245 for the words “British India” substitute “British India or the Punjab States Railway Lands”.
	(7) In Section 271 reference to “Central Government” shall stand unmodified.
2. The Police Act, 1861 (V of 1861)	(1) In Section 1 for the second paragraph <i>substitute</i> : “the words “Magistrate of the district” shall mean an officer exercising within the Railway Lands the powers of a District Magistrate as described in the Code of Criminal Procedure, 1898.”
	(2) In Section 34, for the words “road or in any open place or street or thoroughfare within the limits of any town” <i>substitute</i> “Railway lands.
	(3) In Section 46, <i>omit</i> sub-section (1) and the words “when the whole or any part of this Act shall have been so extended” in sub-section (2).
3. The foreigners Act, 1864 (III of 1864).	(1) Throughout the Act for the words “Central Government” <i>substitute</i> “Resident”
	(2) In clause (b) of Section 1, the words “British India” shall stand unmodified.
4. The Public Gambling Act, 1867 (III of 1867).	<i>Omit</i> the preamble and Section 2.
5. The court-fees Act, 1870 (VII of 1870).	(1) <i>Omit</i> the least sentence of Section 1 and Section 1-A.
	(2) In Sections 26, 27, 34 and 35 for the words “Appropriate Government”, substitute “Resident”.
6. The Cattle-trespass Act, 1871 (I of 1871)	(1) <i>Omit</i> sub-section (2) of Section 1.
	(2) In Section 6 for the words “Provincial Government”, substitute “Magistrate of the District”.
7. The Indian Evidence Act, 1872 (I of 1872)	(1) <i>Omit</i> sub-section (2) of Section 1.
	(2) In Section 37 the words “British India” shall stand unmodified.
	(3) In Section 57, for clause (I) <i>substitute</i> : “(I) All laws or rules having the force of law now, or herebefore in force, or hereafter to be in force, in any part of British India or in any area outside British India under the

	administration of the Crown Representative.”
	(4) In Sections 74 and 79 the expression “British India” shall be read as referring to “British India” and the area outside “British India” under the administration of the Crown Representative.
8. The Indian Contract Act, 1872 (IX of 1872)	<i>Omit</i> the second sentence of Section 1 and the second paragraph of Section 21.
9. The Oaths Indian Act, 1873 (X of 1873)	(1) <i>Omit</i> the second sentence of Section 1.
	(2) In Sections 3 and 4 the words “British India” shall stand unmodified.
10. The Dramatic Performances Act, 1876 (XIX of 1876).	<i>Omit</i> the second sentence of Section 1, Section 2 and the words “The Provincial Government, or out side the Presidency towns” in Section 3.
11. The Opium Act, 1878 (I of 1878)	In Section 1 <i>omit</i> the second and third paragraphs.
12. The India arms Act, 1878 (XI of 1878)	(1) In clause (b) of Section 1 the words “by Order of any Government in “British India” shall stand unmodified; and after those words, the word “or of the Crown Representative” shall be inserted.
	(2) <i>Omit</i> Section 2.
	(3) In Sections 6, 7, 11, 13, 15, 16, clause (c) of Section 17, Sections 18, 25, 26, 30 and 32 for the words “Central Government” wherever they occur, <i>substitute</i> “Resident”.
13. The Explosives Act, 1884 (IV of 1884)	(1) <i>Omit</i> Section 2.
	(2) The powers of the Crown Representative under Sections 5 and 7 may also be exercised by the Resident with the previous sanction of the State Representative.
	(3) In sub-section (1) of Section 9 for the words “Central Government” <i>substitute</i> “Resident”.
	(4) In clauses (a) and (b) of Section 14, for the words “any Government in British India” <i>substitute</i> “the Crown Representative or the Resident”.
	(5) In Section 18 <i>omit</i> sub-sections (1) to (4).
14. The Indian Telegraph Act, 1885 (XIII of 1885)	(1) <i>Omit</i> sub-section (2) and (3) of Section (1)
	(2) In sub-sections (1) of Section 4 omit the words “on ships within Indian territorial waters and” “or Indian territorial waters”.
	(3) In Section 15, for the words “Central Government” wherever they occur, <i>substitute</i> “Resident”.

	(4) <i>Omit</i> Section 34.
15. The Provincial Small Cause courts Act, 1887 (IX of 1887).	<i>Omit</i> sub-sections (2) and (3) of Section 1 and Section 2.
16. The Police Act, 1888 (II of 1888).	--
17. The Revenue Recovery Act, 1890 (I of 1890).	(1) <i>Omit</i> sub-section (2) of Section 1
	(2) For Section 8, <i>substitute</i> .- “8. The provisions of this Act shall also apply to the recovery in the Punjab States Railway Lands of any arrear of land revenue or sum recoverable as an arrear of land revenue payable to a Collector or other public officer or to a local authority in any part of British India, or in any local which is not part of British India, but which is under the administration of the Central Government or of the Crown Representative, and to which this Act has been applied.”
18. The Epidemic Diseases Act, 1897 (III of 1897).	<i>Omit</i> sub-section (2) of Section 1 and Section 2-A.
19. The General Clauses Act, 1897 (X of 1897)	(1) Sections 3, 4 and 4-A shall stand unmodified:-- Provided that for the interpretation of any enactment in the Punjab States Railway Lands the definition contained in these sections shall be applicable only after effect has been given to any modification restriction or rule of construction prescribed in respect of the enactment by this Order.
	(2) <i>Omit</i> Sections 5 and 5-A.
20. The Code of Criminal Procedure, 1898 (Act V of 1898).	(1) In Section 1 <i>Omit</i> the words and figures “and it shall come into force on the first day of July, 1898” and the words from “or shall apply” to the end of the Section.
	(2) <i>Omit</i> clause (j) of sub-section (1) of Section 4 and Sections 22 and 25.
	(3) In sub-section (2) of Section 45 the words “Central Government”; shall stand unmodified.
	(4) In Section 197: (i) for clause (a) and (b) of sub-section (1) <i>substitute</i> “of the Resident”; (ii) in sub-section (2) for the words “the Governor-General or Governor, as the case may be exercising his individual judgment” <i>substitute</i> “The Resident” and (iii) <i>Omit</i> sub-section 3.
	(5) <i>Omit</i> Section 266.
	(6) A sessions Judge at his discretion:-- (a) may take cognizance of an offence without the accused person being committed to the Court of Session by a Magistrate, and if so, shall follow the procedure laid down by this Code for the trial of warrant cases by the Magistrate; and (b) in other cases may direct that any trial before the Court of Session shall be without jury or aid of assessors.

	(7) In Section 402-A, omit the words “in the case of sentences of death”; and for the words “Governor-General in his discretion” <i>substitute</i> “Crown Representative”.
	(8) In sub-section (1) of Section 503 after the words “Such attendances and” <i>insert</i> “if such witness resides in British India or any area to which this Code has been applied”; and sub-section (2) shall stand unmodified.
	(9) In Section 565 for the words “British India” wherever they occur, <i>substitute</i> “British India or the Punjab States Railway Lands”; and the words “Central Government” shall stand unmodified.
	(10) Nothing in the Code as applied shall be deemed to apply to proceedings against European British subjects or persons charged jointly with European British subjects.
21. The Indian Post office Act, 1898 (VI of 1898).	(1) Omit sub-sections (2) and (3) of Section 1.
	(2) In Section 2, in clause (b), except in the proviso, and in clause (d), the words “Central Government” shall stand unmodified.
	(3) <i>Omit</i> Chapter VIII.
22. The Indian Stamp Act, 1899 (II of 1899).	(1) <i>Omit</i> sub-sections (2) and (3) of Section 1, and clause (12-A) of Section 2.
	(2) In sub-section (1) of Section 57 for clauses (a) to (j), <i>substitute</i> “to the Lahore High Court of Judicature at Lahore.”
	(3) In Section 76-A <i>omit</i> the words and figures “Central Government subject to the provisions of Section 124(1) of the Government of India Act, 1935, and”
	(4) All references to the collecting Government shall be read as referring to the Resident.
23. The Indian Extradition Act, 1903 (XV of 1903).	<i>Omit</i> sub-sections (2) and (3) of Section 1 and Chapters IV and V.
24. The Indian Coinage Act, 1906 (III of 1906)	(1) <i>Omit</i> sub-section (2) of Section 1, and Sections 3 and 10
	(2) In Sections 16 and 20, for the words “authorized by the Central Government” <i>substitute</i> “authorized by Crown Representative or by the Resident.”
25. The Code of Civil Procedure, 1908 (Act V of 1908).	(1) <i>Omit</i> sub-sections (2) and (3) of Section 1.
	(2) In clause (5) of Section 2 and Sections 10 and 16 the words “British India” shall be read as referring to British India and the Punjab States Railway Lands; and in clause (5) of Section 2 and Section 10 the words “Central Government” shall stand unmodified.
	(3) In the proviso, the Section 29 after the word “summones” <i>insert</i> “are situate in “British India”; and the words “Central Government” shall stand unmodified.
	(4) (4) Section 43 shall stand unmodified except that for the words “to which the provisions relating to execution do not

	extend” <i>substitute</i> “or British India or the Punjab States Railway Lands”; and for the words “in British India” <i>substitute</i> “in the Punjab States Railway Lands”.
	(5) In Section 44 for the words “Provincial Government” <i>substitute</i> “Crown Representative” and the words “Central Government” shall stand unmodified.
	(6) In Section 45 after the words “any Court” <i>insert</i> “situate in British India or”; and the words “Central Government” shall stand unmodified.
	(7) In clause (a) of Section 78 the words “Central Government” shall stand unmodified; and for clause (b) <i>substitute</i> : (b) Courts situate in British India or in any other part of the British Empire”.
	(8) Sections 79 and 80 shall stand unmodified.
	(9) in sub-section (i) of Section 85 for the words “The Government”, wherever they occur, <i>substitute</i> “the Crown Representative” omit the explanation.
	<i>First Schedule</i> (10) The rule 25 of order V <i>add</i> the following proviso:-- “Provided that, if the defendant resides in British India, the summons may be sent for service to a Court (not being a High Court) having jurisdiction at the place where he resides and if the Court returns the summons with an endorsement signed by the Judge or other officer of the Court that the summons has been served on the defendant in manner hereinbefore directed, such endorsement shall be deemed to be evidence to service.”
	(11) The provisions of rule 48 of Order XXI shall apply only those cases in which the salary or allowances are payable in the Punjab States Railway Lands.
	(12) In sub-rules (4) and (5) of rule 49 of Order XXI the words “British India” shall be read as referring to British India and the Punjab States Railway Lands.
	(13) Rule 8-B of Order XXVII shall stand unmodified.
26. The Explosive Substances Act, 1908 (VI of 1908)	(1) <i>Omit</i> sub-section (2) of Section 1.
	(2) In Section 4 for the words “British India” wherever they occur, <i>substitute</i> “India”.
	(3) In Section 7 for the words “Central Government” <i>substitute</i> “Resident”.
27. The Indian Limitation Act, 1908 (IX of 1908)	(1) <i>Omit</i> sub-sections (2) and (3) of Section 1.
	(2) Section 13 shall stand unmodified except that the words “and from” <i>substitute</i> “the Punjab States Railway Lands from”.
	(3) In the case of Articles 52, 53, 57, 59, 61, 63, 64 and 66 to 80 in the First Schedule the period of limitation shall be six years.
	(4) Article 149 of the First Schedule and stand unmodified.
28. The Indian Registration Act, 1908	(1) <i>Omit</i> sub-section (3) of Section 1.

(XVI of 1908)	
	(2) in sub-section (1) of Section 33 after the words “power-of-attorney resides” in clause (a) and after the words “does not reside” in (c) <i>insert</i> “in the Punjab States Railway Lands or”.
29. The Whipping Act, 1908 (IV of 1909).	(1) <i>Omit</i> sub-section (2) of Section 1 and Section 6.
	(2) In clause (b) of Section 5 for the words “Provincial Government” <i>substitute</i> “Crown Representative”.
30. The Indian Lanacy Act, 1912 (IV of 1912)	(1) <i>Omit</i> sub-section (2) of Section 1.
	(2) In clause (1) of Section 3, for the words “by any Government in British India” <i>substitute</i> “by the Crown Representative in the Punjab States Railway Lands, and includes any asylum in the Punjab which the Resident may, by general and special order, appoint in this behalf.”
	(3) Sections 14, 15 and 67 shall be subject to the proviso that if a lunatic is an inhabitant of an Indian State, the Magistrate or Judge, as the case may be, may make him over to the care of such State with its consent and, in the case of an order under Section 67, with the consent of the person on whose application the inquisition was instituted.
	(4) <i>Omit</i> Section 17.
	(5) In sub-sections (1) and (2) of Section 35 for the words “any other Province” <i>substitute</i> “any Province in British India”.
	(6) The Provinces of Chapter IV shall not be applicable except as provided in Chapter V.
	(7) In Section 85 for the words “other Province”, wherever they occur, <i>substitute</i> “British India Province”.
	(8) <i>Omit</i> sub-section (2) of Section 89-A and Section 89-B.
	(9) In clause (a) of sub-section (1) of Section 91 <i>omit</i> the words “other than a proceeding before a High Court which is or may hereafter be constituted by His Majesty by Letters Patent”.
	(10) In Section 98 the words “Central Government” shall stand unmodified.
31. The Cinematograph Act, 1918 (II of 1918)	<i>Omit</i> sub-sections (2) and (3) of Section 1.
32. The Provincial insolvency Act, 1920 (V of 1920)	(1) <i>Omit</i> sub-sections (2) and (3) of Section 1.
	(2) In Section 2 for clause (b) of sub-section (1) (<i>substitute</i>):-- “(b) ‘District Court’ means the principal Civil Court of original jurisdiction.”
33. The Police Incitement to Disaffection) Act, 1922 (XXI of 1922).	<i>Omit</i> sub-sections (2) and (8) of Section 1.
34. The Workman’s Compensation Act, 1923 (VIII of 1923)	<i>Omit</i> sub-sections (2) and (3) of Section 1.

35. The Official Secrets Act, 1923 (XIX of 1923)	(1) <i>Omit</i> sub-section (2) of Section 1.
	(2) Clause (1-A) of Section 2 shall stand unmodified.
	(3) In sub-section (1) of Section 8 and sub-section (2) of Section 10, for the words “an Inspector-General or Commissioner of Police” <i>substitute</i> “the Resident”.
	(4) In Section 13:-- (a) in sub-section (1), for the word “appropriate Government” <i>substitute</i> “Resident”. (b) in sub-section (3), for the words “appropriate Governments”, wherever they occur, <i>substitute</i> “Crown Representative”, and (c) <i>Omit</i> sub-section (5).
	(5) Nothing in the Act as applied shall be deemed to apply to British subjects.
36. The Indian Soldiers (Litigation) Act, 1925 (IV of 1925)	(1) <i>Omit</i> sub-sections (2) and (3) of Section 1.
	(2) In Section 13 for the words “Central Government” <i>substitute</i> “Resident”.
	(3) In Section 14, <i>omit</i> the words “As respects the Provincial Public Services, the Provincial Government, and in other cases.”
37. The Indian Succession Act, 1925 (XXXIX of 1925)	(1) <i>Omit</i> Sections 11 and 57, the words and figures “save as provided by Section 77” in Section 58 sub-section (2) of Section 264 and Schedule III.
	(2) For Section 382 <i>substitute</i> :-- “382. Where a certificate in the form of the English Schedule to this Act has been granted by a Court having jurisdiction under the Act in British India, or under the Act as applied in any area outside British India which is under the administration of Crown Representative or where a certificate has been granted to a subject of, or resident within, a foreign State in the Agency by a Political Agent on the production by such subject or resident of a certificate granted to him by a State Court, or where a certificate so granted has been extended, the certificate shall, If it has been stamped in accordance with the provisions of the Court Fees Act, 1870, have the same effect as certificates granted or extended under this Act.”
38. The Dangerous Drugs Act, 1930 (II of 1930)	(1) <i>Omit</i> sub-sections (2) and (3) of Section 1.
	(2) In Section 2 of clauses (i) to (m) <i>substitute</i> :-- “(i) to import into Punjab States Railway Lands’ means subject to the provisions of clause (j) to being into the Punjab States Railway Lands by land, or air;”
	(j) “To import inter-provincially” means to bring into the Punjab States Railway Lands from British India and includes:-- (i) the bringing of a dangerous drug into the Punjab States Railway Lands from any Indian State which the Crown Representative, may by notification in the Official Gazette

	declare to be inter-provincial import; and (ii) bringing to the Punjab States Railway Lands from any Province in British India in the course of a continuous journey by sea or through the territory of an Indian States.
	(k) “to export from the Punjab States Railway Lands” means subject to the provisions of clause (1) to take out of the Punjab States Railway Lands by land or air;
	(l) “to export inter-provincially” means to take out of the Punjab States Railway Lands into any Province of British India and includes:--- (i) the taking of a dangerous drug out of the Punjab States Railway Lands into an Indian State which the Crown Representative may by notification in the Official Gazette declare to be inter-provincial export; and (ii) taking out of the Punjab States Railway Lands into any Province of British India in the course of a continuous journey through the territory of an Indian State; and
	(m) “to transport” means to take from one place to another in the Punjab States Railway Lands.
	(3) In sub-section (2) of Section 8 after the words “Provincial Government may” <i>insert</i> “subject to the control of the Crown Representative”.
	(4) In Section 31, for the words “by the appropriate Government” <i>substitute</i> “by the Resident”; and <i>omit</i> the second sentence.
	(5) In Section 35 the words “In connection with offences against rules which under this Act fall to be made by the Provincial Government, the Provincial Government, and in connection with other offences” shall be omitted.
39. The Indian Sales of Goods Act, 1930 (III of 1930)	(1) <i>Omit</i> sub-section (2) and (3) of Section 1.
40. The Indian Press (Emergency Powers Act, 1931 (XXIII of 1931)	(1) <i>Omit</i> sub-section (2) of Section 1.
	(2) In Section 2, <i>omit</i> clause, (3) and the words “or Chief Presidency Magistrates” in clause (4).
	(3) In Sections 16 and 17 <i>omit</i> the words, “Presidency Magistrate” wherever they occur.
	(4) In Section 24, <i>omit</i> the words “composed of three Judges, or, where the High Court consists of less than three Judges, of all the Judges.”
	(5) <i>Omit</i> sub-section (3) and (4) of Section 25.
	(6) In Section 32, <i>omit</i> the words “in a Presidency town before the Chief Presidency Magistrate, and elsewhere.”
	(7) The expression “securities of the Central Government” wherever it occurs shall stand unmodified.
41. The Indian Wireless Telegraphy Act, 1933 (XVII of 1933).	(1) Throughout the Act, for “Central Government” <i>substitute</i> “Resident”.
	(2) <i>Omit</i> sub-sections (2) and (3) of Section 1.

42. The Indian Aircraft Act, 1934 (XXII of 1934)	Omit sub-section (2) of Section 1, and Sections 9, 14, 15 and 16.
43. The Petroleum Act, 1934 (XXX of 1934)	(1) Omit sub-sections (2) and (3) of Section 1.
	(2) In Section 25 omit the words “in the Presidency towns, by a Presidency Magistrate, and elsewhere”.
44. The Payment of Wages Act, 1936 (IV of 1936).	-----
45. The Registration of Foreigners Act, 1939 (XVI of 1939).	(1) Omit the words “after previous publication” in Section 3.
	(2) Omit the proviso to section 6.
<i>Acts of the Provincial Legislature</i>	
46. The Punjab Excise Act, 1914 (Punjab Act 1 of 1914).	(1) Omit sub-sections (2) and (3) of Section 1.
	(2) In Section 3 for clauses (10) and (12) substitute:--- “(10) ‘export’ means to take out of the Punjab States Railway Lands”; and
	(12) ‘import’ means to bring into the Punjab States Railway Land”.
	(3) Omit section 33A.

(iv) *Service of processes of Indian States in Railway Lands*

FOREIGN AND POLITICAL DEPARTMENT

NOTIFICATION

[New Delhi, the 14th January, 1937]

No. 34-I. B.—In exercise of the powers conferred by the (Foreign Jurisdiction) Order in Council, 1902, and of all other powers enabling him in that behalf of the Governor-General to Council is pleased to direct that all criminal processes issued in a manner similar to that prescribed by the Code of Criminal procedure, 1898, by a magistrate having jurisdiction in any State in India shall be and police officers having jurisdiction in such railway lands under the same manner as if such processes had been issued by a Magistrate having jurisdiction in such railway lands:

Provided that any modification of the manner of executing such processes may be made by rules to be framed by the Governor General in Council in this behalf and notified in this *Gazette of India*.

Provided further that nothing hereinbefore contained shall require a Magistrate or Police Officer having jurisdiction in such railway lands to execute any process so issued against any person who is not a subject of the State by the Court of which the process has been issued or be construed as authorizing him to execute any such process against any subject or servant His Majesty.

(v) *Government of India Notification No. 467-I., dated the 29th September, 1924*

In exercise of the powers conferred by Section 34 of the Arms Act, 1878 (XI of 1878),

as applied to the railway lands specified in the notification of the Government of India in the Foreign and Political Department, No. 343-1, dated the 2nd July, 1924, the Governor-General of Council is pleased to apply the Arms Rules, 1924, to the said lands, subject to any amendment to which the said rules may be subject in Sub-continent, and subject also to the modifications specified in the first proviso to the notification of the Government of India in the Foreign and Political Department, No. 344-1., dated the 2nd July, 1924, and to such further modifications, not affecting the substance, as may be necessary or proper to adopt the said rules to the said lands.

2. *****

(vi) Government of India notification No. 53-I, dated the 27th January, 1925

In exercise of the powers conferred by Section 34 of the Arms Act, 1878 (XI of 1878), as applied to the Railway lands specified in the notification of the Government of India in the Foreign and Political Department No. 345-1, dated the 2nd July, 1924, the Governor-General in Council is pleased to apply the Arms Rules, 1924, to the said lands subject to any amendment to which the said rules may be subject in Pakistan, and subject also to the modification of the Government of in The Foreign and Political Department, No. 346-1, dated the 2nd July, 1924, and to such further modifications, not affecting the substance, as may be necessary or proper to adapt the said rules to the said lands.

2. *****

(vii)

No. 313-I.B., as published in *Gazette of India*, part 1-A, 4th December, 1937.—In exercise of the powers conferred by Section 34 of the Arms Act, 1878 (XI of 1878), as applied by the Notification of the Political Department No. 312-I.B., dated 2nd December, 1937 to the lands lying within the States specified in the second column of the Schedule annexed to the notification of the Government in the Foreign Department No. 515-I.B., dated the 17th March, 1913, which are occupied by the railways specified in the first column thereof, the State Representative is pleased to apply to provisions of the Arms Rules, 1924, to the said lands subject to the following notification namely:--

To sub-rule (i) of rule 37 of the said Rules the following Exception shall be added, namely:--

“*Exception.*—A certificate issued by an official of an State to the subjects of that States for carrying arms within the territory of the State shall have the effect of a licence granted this sub-rule provided that:--

- (i) the official granting the certificate holds an office corresponding to that of a District magistrate in Pakistan; and
- (ii) The journeys in respect of which the certificate shall have such effect are performed wholly within the territory of the State.”
- (iii) *****

“*Note:* (i) Government of Political Department, Notification No. 345-1, dated the 2nd July, 1924, has been cancelled by Notification No. 389-I.B., dated the 20th October, 1943.
(ii) Government of Political Department, Notification No. 343-I.B., dated the 2nd July, 1924, has been cancelled by Notification No. 390-I.B., dated the 20th October, 1943.”
(C.S. No. 10/XXI-A-I, dated the 16th December, 1944).

No. 314-I.B., as published in *Gazette of India* December, 4, 1937, Part I-A. In exercise of the powers conferred by Section 34 of the Arms Act, 1878), (XI of 1878 as applied by the Railway Lands (Application of Laws) Order, 1937, to the Railway Lands specified in clause 2 thereof the State Representative is pleased to direct:--

- (1) that in the Pakistan Arms Rules, 1924, as applied to the Railway Lands and the Punjab

Railway Lands by the notifications of the Government of India in the late Foreign and Political Department Nos. 467-1., and 53-1., dated the 29th September, 1924 and 27th January, 1925 respectively, the following Exception shall be inserted in sub-rule (i) of rule 37 thereof, namely:---

- (2) that the Pakistan Arms Rules, 1924, shall apply to the Railway Lands, subject to any amendment to which the said rules may be subject in Pakistan and subject to the following modification, namely:---

To sub-rule (i) of rule 37 thereof the following Exception shall be added, namely:---
“Exception.--A certificate issued by an official of an Indian State to the subjects to that State for carrying arms within the territory of the State shall have the effect of licence granted under this sub-rule, provided that:--

- (i) The official granting the certificate holds an office corresponding to that of a District Magistrate in sub-continent and
- (ii) The journey to respect of which the certificate shall have such effect are performed wholly within the territories of the State.

(ix) As regards the application of Petroleum Act and its rules to Railway Lands, the powers exercised by State Representative under the Act and the application of that Act and its rules the Carbide of Calcium Phosphate, Acetone Wood Naphtha, Methyl Alcohol, etc., see State Representative's Notification Nos. 138-I.B., to 151-I.B., dated the 18th May, 1938, at pages 68-69 of the *Gazette of India*, May 20, 1939, Part I-A. and notification no. 207-I.B., dated the 22nd September 1938 at page 144 of the *Gazette of India*, September 24, 1938, Part I-A.

No. 177 I.B., dated the 10th August, 1938. In exercise of the powers conferred by the sub-continent (Foreign Jurisdiction) Order in Council, 1937, and of all other powers enabling him in that behalf, the State Representative is pleased to direct that where by any provision of any enactment, as applied to any territory in India in which the State Representative has power to exercise jurisdiction on behalf of the Federal Government a power to issue rules, regulations or by-laws is conferred on any authority, then, unless it is otherwise expressly provided, and without prejudice to any express provision in this behalf, that authority may, subject to the restraints and conditions imposed on the exercise of such powers, and, where such authority is not the State Representative, subject to the previous sanction of the State Representative, apply to that territory any rules, regulations or by-laws, as the case may be, made under such provision, as in force in sub-continent which are for the time being in force in sub-continent subject to any amendments to which such rules, regulations or by-laws, as the case may be, are for the time being subject in subcontinent with such modifications as may be necessary or proper in order to adapt the rules, regulations or by-laws, as the case may be, to the requirements of such territory, any rules, regulations or by-laws applied shall have effect in that territory as if made in pursuance of such provisions as applied to that territory.

CHAPTER –16

RECORDS

PART A – PREPARATION OF JUDICIAL RECORD

I – General Directions

1. **Quality of paper to be used for applications, etc.**—All applications and petitions presented to Civil and Criminal Court shall be written on ‘water-marked plain paper’ (formerly styled as water-marked petition paper). This paper is sold at all treasuries. All petition-writers should be required to use it.

The use of petition paper is not necessary for powers of attorney filed by counsel, *Fard Talbanas*, and lists of documents. The Courts should, however, insist on foolscap paper of good quality being used for such documents.

COMME7NTS

Maintenance of true, correct and proper record of judicial proceedings, *held*, was essential for safe administration of justice and also for safeguarding valuable rights of citizens. Application of judicial mind could only be ensured when diligently prepared correct judicial record was available. Strict vigilance over administrative staff would ensure availability of true and complete judicial record. Where such record was not made available, Judicial Officer should be able to find out deficiency in record placed before him. Administrative staff having been found guilty of gross negligence in maintaining judicial record properly. High Court directed Court below to initiate disciplinary action against officials responsible for not maintaining record of case properly.¹

2. **Paper to be used for English record.**—The official foolscap half-sheet, which is very nearly the same size as the petition paper alluded to in the last paragraph, should be used for all English portions of the record.

3. **Paper to be used for forms.**—All Judicial forms which are in the English language are supplied on paper of the size of half a sheet of foolscap. Forms which are in the Vernacular should be printed on paper of the size of the standard petition paper, or of a quarter sheet of standard Jail paper as may be most convenient.

4. **Paper to be used for vernacular records of Court.**—The Vernacular portion of the record should be written on ‘B’ quality paper as supplied by the Jail Department, folded to quarter sheet, which will be as nearly as possible of the same size as a half sheet of ordinary foolscap, and as the standard pattern petitioner paper. There is no objection of paper of lighter texture being used for forms of processes which may have to be transmitted by post, but the size should always be that prescribed above. Decretal order forms and other forms used for purposes of records should always be printed on stout durable paper ‘B’ standard quality paper supplied by the Jail Department should be used exclusively for all Vernacular Records, Proceedings and Registers.

5. **Paper to be used for vernacular autograph records of Courts.**—Country-milled *badami* paper may be used for the autography records of *Judges* and Magistrates who do not write their records in English. This paper is obtainable on indent from the Provincial Stationery Officer, Lahore, in accordance with the rules in the Punjab Printing and Stationery Manual.

6. **General instructions for preparation of record.**—Attention should be paid to the following matters:--

- (a) **Writing on top and sides.**—The practice of writing orders and other matters across the top and along the sides of page is forbidden;

1. 1988 CLC 1873.

- (b) **Margin to be left on either sides.**—In all Vernacular proceedings a sufficient margin should be left on each side of the paper, so that writing may not be obliterated by fraying at the edges;
- (c) **how records should be tied and kept between stiff covers.**—Records in used in Courts should be placed between stiff wooden or cardboard protectors of the standard size so that the strain of the cloth or other covering, or of the string or tape, does not fall on the papers within. It is not intended that the record of each case should be placed between stiff covers; all that is necessary is to tie each record with broad tape or *nawar* instead of string. But each *bundle* of records should, until consigned to the Record-room, be kept between stiff covers to prevent fraying, folding, etc.;
- (d) **English papers.**—All English papers should be placed full size, unfolded and tagged together within a cover of strong country paper;
- (e) **Exhibits.**—Exhibits should be folded to as nearly as possible the same size and placed in envelopes of the size of the record;
- (f) **Abstracts to the case, evidence and Judgment.**—The abstract of the case, depositions of witnesses and judgments must in every instance be written on paper of good quality of uniform foolscap size. On no account *should judgments ever be written on scraps of paper, or on the back of the Vernacular petition or order*;
- (g) **Number of pages.**—Every page (not sheet) should be consecutively numbered;
- (h) **Handwriting.**—It should be remembered that one of the essentials of a good record is that it can be read without difficulty by others. Cases sometimes come before the High Court in which the record is so illegible as to cause serious inconvenience.

II — Index of Papers, Consigning and Checking of Record

1. **Index.**—Each civil and criminal record should have prefixed to it an index of its contents, and such index should be in the prescribed form.

2. **Directions as to preparation of index.**—Each paper admitted should be entered in the index on the day on which it is so admitted by the official in charge. The autograph record of the presiding officer should be entered, as a single paper, as soon as the case is concluded. The entries in column 4 must be in sufficient detail to allow of the papers described being readily identified, *e.g.*, the entry regarding a power-of-attorney should specify by whom the power is granted and whom it empowers; the entry regarding a deposition sheet should note the name of the deponent etc., etc.

3. **Index number on record. Withdrawal documents to be noted on index.**—Each paper on being entered in the index should be marked with its index number. Where a paper consists of more than one sheet, each sheet should be thus marked. Whenever documents used in evidence are withdrawn, whether before or after judgment, a note of such withdrawal should be made in the column of remarks, and it should be stated whether a copy has been substituted or not.

4. **Separate index for each part. Note about destruction and certificates.**—At the conclusion of the case, the official who has had charge of the record should separate the papers and arrange them into two or three parts (Part A, and Part B, or Part, A, Part A(i) and Part B, as the case may be) according to rules 3 and 4 of Part F of this chapter. For each Part there shall be a separate index. The index on Part A will show all the papers which were originally on the record, while those on Part A(i) and Part B will only show those papers which are transferred to those parts. When any paper is transferred to Part A(i) or Part B, an entry should be made in the Remarks column of the index of Part A showing the Part to which the paper has been transferred. The said official should also enter in red ink the words “Not to be destroyed” in the remarks column of the index of Part A of the record against any paper which is to be preserved under paragraph 17 of Para F of this chapter. The certificate at the foot of the index should be signed and the record should then be made over to the record department.

5. Consigning record to records-room.—Records of cases decided by all criminal and civil Courts excepting those Courts which have separate record-rooms of their own (*e.g.*, the Courts of District and Sessions Judges and Courts of Small Causes at Lahore) are consigned to the District Record Room under the control of the Deputy Commissioner.

Record of Small Cause Court:

Note 1. The records of a suit decided by a Sub-Judge in exercise of the powers of a Judge or Registrar which have been specially conferred, or of a Judge or Registrar of a Court of Small Causes in exercise of the powers of a Sub-Judge, are consigned to the record room of the Deputy Commissioner.

Insolvency and Guardianship record:

Note 2. Records of cases under the Guardians and Wards Act and the Provincial Insolvency Act decided by a Sub-Judge specially empowered in this behalf are consigned to the record room of the Deputy Commissioner.

Records of a civil appeal revision decided in a Sub-Judge specially empowered:

Note 3. Records of Civil appeals and Revisions Decided by a Sub-Judge specially empowered, are consigned to the record room of the District Judge except in the districts which are not the headquarters of a District Judge where they are consigned to the record room of the Deputy Commissioner.

[“5-A. Civil and Criminal Courts while sending records for consignment to the District Record Room under the control of the Deputy Commissioner shall comply with the following instructions:---

- (i) In the case of Courts at headquarters of Districts, a challan in duplicate in form given hereinafter, alongwith the Court registers, duly completed, will accompany the records. The Court registers will be immediately returned after being signed by the Record Room Clerk receiving the records. One copy of the challan will be returned later, after entry of Goshwara number with date against each record and signature in full of the Record Room Clerk. The other copy of the challan will be returned by the Record Room staff.
- (ii) In the case of outlying Courts, the challan will be prepared in triplicate and sent to the District Record Room alongwith records sought to be consigned. The Record Room Clerk will acknowledge receipts of the records by signing and immediately returning one copy of the challan without waiting to enter the Goshwara number and date, to the Court concerned. The second copy will be returned later after entry of the Goshwara number with date against each record and signature in full of the record Room Clerk. The third copy will be retained by the Record Room staff.¹
- (iii) The Goshwara numbers given by the Record Office in the challan will be entered in the Court registers by the Ahlmad. Presiding Officers of Courts should, on the first working day in the months of February, May, August and November check the Goshwara numbers given in the Court registers Ahlmads with those entered in the challan in order to see that entries are correctly made in the Court registers, and sign the Court registers in token of their check.
- (iv) Copies of challans retained by the Record Room staff will be kept for 3 years and destroyed thereafter.

1. (C.S. No. 45/XX, C.32, dated the 21st February, 1947).

(Form of challan)

COURT OF _____ IN _____ DISTRICT CHALLAN OF FILES CONSIGNED
TO DISTRICT RECORD ROOM

Date of dispatch of records to District Record Room	Serial Number	Case Number	Names of parties	Nature of case	Date of decision
1	2	3	4	5	6

Name Of Village Basta In which records consigned	Signatures in full of Record Room Clerk receiving the file with date	Goshwara number with date
7	8	9

6. Checking of record by the record-keeper.—On receipt of the case in the record room, the Record-Keeper will examine the index and check the entries in columns 1, 2 and 6 with the papers and stamps in the record. He will then, if the record is complete, sign the certificate to that effect at the foot of the index, and enter, the case in its appropriate Register; if any papers or Court-fee stamps are missing he will at once bring the deficiency to notice.

7. Checking of record on its passing from official to another.—In every office there should be a responsible Despatcher and Receiver of Judicial records, whose duty should be to check the papers in each record which passes through his hands, and either certify, in the manner provided in Part B that the index is correct and the record complete, if this is the case, or immediately bring to notice any deficiency in papers or Court-fee stamps. This course will be followed by every succeeding official into whose hands the record passes for any purpose unless such official has been specially exempted by the head of the office from complying with this rule. Heads of offices should only permit exemptions in cases in which the purpose for which the record is required is of so temporary or special a nature as to render compliance with the rule unnecessary. The last certifying official ordinarily be held responsible in the event of any deficiency in papers or Court-fee stamps being subsequently discovered.

III – Execution Records

1. Statement of case in which decrees have been satisfied or have become Capable execution to be statement to record-keeper.—To enable proper destruction of records in accordance with sub-rule (1) of rule 12 of Chapter 16-E., Rule and Orders, Volume IV, all civil Courts will, in January, April, July, and October each year, send to the record-keeper a list of their execution cases in respect of records which are six years old or are about to become 6 years old in which the decrees have been fully executed or have become incapable of further execution. For the preparation of these lists, reference should be made to civil register No. 1 (civil suits) and to civil register No. X (execution of decrees) as prescribed in Part A-IV of Rules and Orders, Volume VI, Part A. Columns 16 to 18 and 20 of register No. 1 show what happens in execution, while column 22 of register No. X contains the date on which an execution case was struck off the file and the purport of the final order. It is the duty of each presiding officer to see that the registers of his Court are properly maintained, and that the quarterly statement prescribed here is correctly prepared and dispatched to the record-keeper promptly.

PART B – TRANSMISSION OF JUDICIAL RECORDS

1. Duplicate Challans.—When records are transmitted from one office to an other, a list

or the records transmitted should be prepared in duplicate in the vernacular in the prescribed form, and be sent with them. This list will be in addition to the regular index of papers attached to each record. The signature of the Despatcher in column 9 will, in the absence of a report to 'the contrary, operate as a certificate that the record is complete according to the index.

2. Checking of record.—On receipt of the record the proper official of the receiving office should check the list referred to in the preceding rule. If the list is correct, he should note the date of receipt of the record in the appropriate column (of both copies) and sign the entry; if the list is incorrect, he should make a note to that effect thereon, and forthwith report the fact to the head of the office for orders. One copy of the list will be returned to the dispatching office immediately after examination, with the intimation that the papers received are correct, or, if this not the case with a note of objection. A similar note of receipts, etc., should be made (in column 11) by each succeeding official into whose hand the records pass, unless he has been exempted under rule 7, Part A. When the records are no longer required, the second copy of the list will be returned with the records to the office from which they were received. Here the list will again be checked; and, if found to be correct, will be returned, attested as such, to the office to which the records went to be kept with the record of the proceedings in connection with which the records were required.

COMMENTS

Maintenance of judicial record.—Negligence of administrative staff, effect. Maintenance of true, correct and proper record of judicial proceedings, *held*, was essential for safe administration of justice and also for safeguarding valuable rights of citizens. Application of judicial mind could only be ensured when diligently prepared correct judicial record was available. Strict vigilance over administrative staff would ensure availability of true and complete judicial record. Where such record was not made available, Judicial Officer should be able to find out deficiency in record placed before him. Administrative staff having been found guilty of gross negligence in maintaining judicial record property. High Court directed Court below to initiate disciplinary action against officials responsible for not maintaining record of case properly.¹

3. Docket to accompany records.—All records transmitted from one office to another should, except in the case of records transmitted to or from a Tehsil or Honorary Court, be sent under cover of an English docket in which an indication must be given of the No. and date of the requisition and the class and No. of the case in the Court for which the records are being transmitted.

4. Transmission of record to Appellate Courts in parts.—In transmitting the record of an original Court to an Appellate Court, where there are duplicate records in English and Urdu, one part should be sent to the Appellate Court at one time and the other part separately thereafter.

5. Precepts of High Court.—As regards compliance with precepts of the High Court, see Chapter 20, Volume IV.

6. Quarterly list of record sent from record room but not returned.—On the 2nd day of the first month of each quarter, the register of files taken out of the Record Room (Form No. D on page 27 of Part A-VI. Rules and Orders, Volume VI, Part A), should be checked by the Record Keeper and a list of the files not returned to the Record Room should be prepared and forwarded to each Court for verification in the form annexed, which is a revenue standard form No. 71.

LIST OF FILES ISSUED

To the Court of _____ dated _____

1. 1988 CLC 1873.

Number of file in issue register	Record-room No. of file	Name of Parties	Description of case	Date fixed for hearing	Date on which the file left the record-room	Verification of Ahlmad of Court
1	2	3	4	5	6	7

PART C – INSPECTION OF JUDICIAL RECORDS

Rules made by the High Court under Section 107(c) now Section 224) of the Government of India Act, regulating the procedure in Courts subordinate to the High Court, in cases where any person is entitled to inspect a record of any such Court, and prescribing the fee payable by such persons for inspection.

RULES

1. Inspection of decided case.—Records of decided cases shall be open to the inspection of the public, subject to the general control of the head of the office.

The District Judge for the records of his own Court, the Deputy Commissioner for the records of all District Courts, and the Judge of a Court of Small Causes for the records of such Court, shall be deemed to be the head of the office.

2. Inspection of pending cases.—Records of pending cases shall be open to the inspection of the parties or their pleaders or agents alone, subject to the general control of the Judge of the Court in which the case is pending; Inspection by petitioner-writers is absolutely forbidden; and Legal Practitioners' Clerks may only inspect records when the Legal Practitioner concerned is present.

Inspection shall not be allowed on the day fixed for the hearing of the case without the special permission of the presiding Judge, and then only if/the urgent fee is paid (*vide* Rule 5 below), [except in Challan cases which may be inspected at ordinary fees even on the date of hearing].¹

3. Time and place for inspection. Inspection by Government Law officers.—The inspection of records shall be made at such time, in such place, and in the presence of such official as the head of the office, in the case of records of decided cases, and the presiding Judge, in the case of records of pending cases, may direct; if the record is not inspected on the date fixed by the proper officer it shall be restored and a fresh application must be submitted before the record can again be taken out for inspection.

Provided that records of cases, to which Government is a party, may be inspected by the Advocate-General or the Assistant Legal Remembrances of the Punjab at the office of the Deputy Registrar of the High Court at Lahore. The Deputy Registrar will, on the application of the Advocate-General, call for the records of any case required from the District in which such case is pending, or is on record, and will cause the records to be returned in due course after inspection.

4. Court-fees on applications for inspection.-- Application for inspection of records

¹Added by items (3)(i) of correction Pamphlet No.14 dated 3.6.1947.

shall be made in writing, and shall distinctly specify the record which it is desired to inspect, [and shall, if inspection is required of the records of a decided case, bear one rupee Court-fee Stamp, being the amount of the fee charged for search].¹

4-A. Day to day inspection.—When any person inspecting the records of a case desires to continue inspection of the same record on the following day, he may give notice of his intention to the official in whose presence inspection is made; and in such cases no fresh application need be made in writing, provided that the inspection is continued from day to day. This will not affect the fees payable under Rule 5.

5. Inspection fees. Account and made of payment.—The inspection fee for each hour or part of an hour is one rupee for ordinary, and two rupees for urgent inspections, i.e., on the date of hearing but urgent fee is not to be recovered when inspection is carried out after the hearing is over, even though it be done on the date of hearing.²[Inspection of Challan cases should, however, be allowed at ordinary fees even before the case is heard on the date of hearing]. The fee shall be paid by means of an additional Court-fee stamp or stamps affixed to the original application before the record is handed over to the applicant. If more time than is covered by the above fee is occupied in the inspection, the balance shall be paid at the close of the inspection by affixing on additional stamp or stamps to the application.

No fees when a record is sent for under Order 13, Rule 10, C.P.C.

Note I.—These rules do not authorize a Court to charge a fee when a record is sent for and inspected by a Court of first instance on the application of a party. Under the provisions of Order XIII, Rule 10 of the Code of Civil Procedure, 1908. But every application made under Order XIII, Rule 10, must (unless the Court otherwise directs) be supported by an affidavit of the applicant or his pleader, showing that the production of the record is necessary.

No fees when record is inspected by lawyers of Government.

2. Note II.—No fee should be charged for inspection of records in Civil and Criminal cases by the Advocate-General, public Prosecutor or Advocate of the Custodian of Evacuee Property as such or by any counsel appearing for Government in such cases.

3. Note III.—In pending civil cases, where a serving Pakistani soldier is either a party to the proceedings or is materially concerned in the outcome of the proceedings no fee shall be charged under these rules when a record is inspected on behalf of such a soldier by counsel engaged by District Soldiers' Boards which have been approved by the High Court].

6. Inspection of separate record.—A separate application shall be made, and a separate fee paid for each record which it is desired to inspect, unless the records are so closely connected that, in the opinion of the head of the office or presiding Judge, they may be regarded as one, in which case *one* application *and one* fee will suffice.

7. Copying disallowed, but notes may be taken.—³[No mark shall be made on any record or paper inspected, and no servant of any member of the Bar shall be allowed on any account to take notes for his master except in the presence and under the supervision of his master. The copying or any document or portion of the record in pen and ink is strictly prohibited; but pencil copies of a document or portion of the record may be made by counsel or under his supervision and in his presence, by his clerk or servant. Any person infringing or attempting to infringe the rule, shall be liable to be deprived of the right to inspect records for such period as the head of the office or Presiding Officer of the Court concerned may think fit].

8. Fees in Court-fee stamps.—Fees under these rules are realized in Court-fee stamps.

¹Submitted by item (2) of Correction Pamphlet No.9, dated 3.4.1946.

²Added by item (3)(ii) of C.P.No.14, dated 3.6.1947.

³(C.S.No.31/XXC-10, dated the 14th February, 1946.

All Courts should keep an account of receipts from inspection fee so realized.

9. Free inspection of Court registers.—In order to trace particulars of a suit for documents; Counsel may, with the previous permission in writing of the Presiding Officer of the Court concerned and in the presence of Court official, inspect the civil or criminal registers of the Court on behalf of parties, free of charge.

Note: For inspection of Records by the Police, see Chapter 11-E of Volume III.

PART D – CUSTODY OF JUDICIAL RECORDS

1. The following orders as to the assumption and relinquishment of charge of judicial records shall apply to holders of the under mentioned posts:---

- | | |
|--|---|
| (a) Courts of District and Sessions Judges, Additional District and Sessions Judges | (1) Ahlmads.
(2) Record Keeper |
| (b) Courts of Senior Subordinate Judges, Administrative Subordinate Judges, and others Subordinate Judges. | (1) Ahlmads
(2) Execution Moharrirs
(3) Guardian Moharrirs
(4) Readers to Administrative Subordinate Judges. |
| (c) Small Cause Courts | (1) Ahlmads.
(2) Naib-Sheriffs-in-charge of execution work.
(3) Insolvency Clerks. |

2. When any of the officials named in Rule 1, having custody of pending judicial records is transferred to another office permanently, or proceeds on leave for a period of two months or more, he shall make over full and complete charge of the records in his custody to the official relieving him.

3. The relieving official shall, in the presence of the official to be relieved check all the records leaf by leaf with the indices attached thereto, see that no document is missing, and then sign a certificate to the effect that he has carefully checked all the records made over to him, and has received the documents mentioned in the indices attached to them. If any part of any record or any document is found to be missing the matter shall immediately be brought to the notice of the Presiding Officer of the Court.

4. If any document or part of the record is subsequently found to be missing, the Presiding Officer of the Court shall immediately take action for its recovery or reconstruction. He shall also fix responsibility on the custodian if the document was on the index, or on the official whom the custodian relieved, if it was not on the index.

5. When an official having charge of such records is granted leave for a period of less than two months or is temporarily transferred to another post, those records only which are required for cases which are likely to come up for hearing in the ordinary course during his absence shall be taken over by the relieving official and the procedure laid down in paragraphs 2 and 3 adopted. The remaining records shall be locked up, the key of the lock being kept by the Presiding Officer of the Court. If any further records are needed during the absence of the permanent custodian, they shall be taken out and properly checked under the supervision of the Presiding Officer before being taken over by the temporary custodian.

6. So far as the record room is concerned, only the files not yet acknowledged by the Record Keeper need be checked.

7. For the purposes of paragraphs 2 to 6, both the relieved and relieving official will be regarded as on duty in the same post while charge is being transferred. In cases covered by paragraph 2, the transfer of charge shall not ordinarily take more than four days, but this period

may be extended to 7 days under the written sanction of the Presiding Officer of the Court, and to 10 days under the written sanction of the District and Sessions Judge. In cases under paragraph 5, not more than half a day should be allowed for the transfer of charge.

8. Frequent transfers of officials holding charge of records should be avoided.
9. These instructions do not apply to the transfer of charge of administrative files.

PART E — PRODUCTION OF REVENUE RECORDS

1. Requisition to be made to Deputy Commissioner.—Requisitions by the High Court or by Courts subordinate thereto for original Revenue records will be addressed to the Deputy Commissioner, who will take measures to transmit such records to the High Court calling for them. Such Court will be responsible for the safe custody of the records, and if in any case a record is found to have been damaged in the Court concerned, the Deputy Commissioner will report the fact to such Court and to the Financial Commissioner within twenty-four hours of its being returned.

2. Production of records by a revenue official.—Original Revenue records will be produced in Courts of first instance by the Special Kanungo, or Patwari Moharrir in accordance with the instructions mentioned in paragraph 5 below.

3. Measures to obviate production of revenue record.—In every case it is the duty of the Court to insist:—

- (a) on the plaintiff filing with the plaint the statement required by paragraph 10(ii) of Chapter 1-C, Rules and Orders, Vol. I;
- (b) on both parties filing certified copies or extracts of all relevant entries on which they rely.

4. Appellate Courts to avoid calling for original revenue record.—Appellate Courts should refrain from calling for original records unless it is absolutely necessary for a determination of the case, and, if the necessity arises from the neglect of a Court of first instance to comply with the instructions here issued, such Courts should be severely dealt with by the Appellate Court in the exercise of the functions of administrative control vested in it.

5. Excerpts from revenue records.—For the convenience of the public, excerpts from the Revenue records are prepared by the Special Kanungo. For the detailed instructions regarding the manner in which the services of the Special Kanungo are to be utilized, see Chapter 9, Volume 1, of the Rules and Orders.

PART F — DESTRUCTION OF RECORDS

Rules made by the Lahore High Court of Lahore under Section 3 of the Destruction of Records Act, 1917, with the previous sanction of the Provincial Government for the disposal, by destruction or otherwise, of such documents in the possession or custody of the Courts of Civil and Criminal jurisdiction subordinate to the High Court as are, in the opinion of the High Court, not of sufficient public value to justify their preservation.

RULES

A - General

[1. Timely destruction of records.—All judicial records and registers which, under these rules, become liable to destruction, shall be destroyed as soon as the period for their retention has expired:

Provided that the District Judge in the case of Civil Judge records, the Sessions Judge in the case of records of the Court of Sessions and the District Magistrate in the case of Magisterial records may order, for reasons to be specified, that any particular paper or the record of any particular case be preserved beyond such period].

2. **Manner of destruction and disposal of waste paper.**—The destruction of such records and registers shall be carried out under the supervision of the Record Keeper and shall be effected by tearing, care being taken that all Court-fee stamps have been duly cancelled. The paper shall then be sent to the nearest paper-making jail (list given in rule (II) below) after first ascertaining from the jail concerned whether it does require the waste paper. The paper should be sold in the open market if the reply of the jail is in the negative; that sale-proceeds being credited to the head “XXI — Administration of Justice — Miscellaneous Fees and Fines — Judicial Record Room Receipts.”

Note (i): In the case of Small Cause Courts the work of destruction shall be carried out under the supervision of the Registrar.

Note (ii): The following are the paper-making jails:---

- (1) Rawalpindi District Jail.
- (2) Multan District, Jail.
- (3) Gujranwala District Jail.
- (4) Sialkot District Jail.

Note (iii): Offices at Lahore should send their waste paper to the Central Jail, Lahore.

2-A. Documents of a secret or confidential nature should not be sold but destroyed by being burnt under proper supervision.

B - Records

3. **Arrangement of certain civil records in three part.**—The following Civil Records shall be arranged in three parts, A, A(i) and B, namely, those of:--

- (1) Suits involving the title to immovable property as defined in Section 3, clause 25, of the General Clauses Act, 1897, other than suits for appears of rent, or for a share in the produce, when the right is not disputed and only the amount contested;
- (2) Suits relating to succession to an office, or to establish or set aside an adoption, or otherwise determine the status of an individual, and all suits relating to trusts or religious endowments.
- (3) Proceedings under the Succession Act, 1925, and under the repealed Acts entered in Schedule 9 of that Act.
- (4) Proceedings under the Divorce Act, 1869.

Part A shall contain the following papers:--

- (1) The index of papers.
- (2) The order sheet or chronological abstract of orders.
- (3) The plaint together with any schedule annexed thereto.

Note:- In miscellaneous cases the petition or written application of the party setting the Court in motion will take the place of the plaint.

- (4) The written statements and pleadings of the parties.
- (5) The memorandum of issues with amended or additional issues, if any.
- (6) All depositions of witnesses.
- (7) All documents received by the Court during the trial, as evidence between the parties other than copies of Civil, Revenue or Municipal records.

- (8) Commissions, proceedings held thereunder, and reports of Commissioners.
- (9) Applications to refer to arbitration, the award or other final return of the arbitrators, with the proceedings, depositions and documents submitted therewith, and any application to set aside the award with the Court's orders thereon.
- (10) Instruments of withdrawal, compromise or confession of judgment.
- (11) The judgment or other final order.
- (12) The decree and all documents relating to the preparation or amendment thereof.
- (13) All notes in the handwriting of the Judge.
- (14) Any order by the Court accepting an application for review of judgment or for a new trial.
- (15) Judgments and decrees of Appellate Courts, if any.
- (16) All orders passed in execution proceedings with all applications, objections, writs, of which service has been effected, notices, reports and returns relating thereto.
- (17) All receipts and acknowledgments filed in execution proceedings.
- (18) Processes by which service is effected on the defendants in civil suits decided *ex parte*.
- (19) Powers of attorney of Counsel or agents of parties.

Part A (i) shall contain the following papers:---

- (1) Copies of Civil, Revenue and Municipal record received by the Court during the trial as evidence between the parties.
- (2) Applications of parties who are strangers to the suit, with the Court's orders thereon.
- (3) Reports furnished by the Record Department.
- (4) Orders of arrest or attachment before judgment with all documents relating thereto.
- (5) Applications for review of judgment or for a new trial, with the Court's orders thereon, other than orders accepting such applications.

Part B shall consist of all papers not included in Parts A and A(i):--

4. Records to be divided into two parts A and B.—All other Civil records and all Criminal records shall be arranged in two parts A and B.

5. Papers included in parts A and B of civil record.—In the case of such other Civil Records Part A shall contain the following papers:--

- (a) *In original cases, other than those to which Rule 3 applies, heard by any Court other than a Court of Small Causes.*

Those papers specified in Rule 3 as contained in Parts A and A(i).

- (b) *In cases heard by a Court of Small Causes:---*

- (1) The index of papers.
- (2) The order sheet or chronological abstract of orders.
- (3) The plaint with the papers annexed thereto.
- (4) Any cross-claim set up by the defendant by way of set-of.
- (5) All documents received by the Court during the trial as evidence between the parties.

- (6) Any award of arbitrators, or deed of withdrawal, compromise or confession of judgment.
- (7) The judgments or other final order.
- (8) The decree.
- (9) All notes in the handwriting of the Judge.
- (10) Any application for review of judgment, or for a new trial, with the Court's orders thereon.
- (11) Any order passed by the High Court as a Court of reference or revision.
- (12) All orders passed in execution proceedings with all applications, writs of which service has been effected, notices, reports and returns relating thereto.
- (13) All receipts and acknowledgments filed in execution proceedings.
- (14) Written statements of parties.
- (15) Processes by which service is effected on the defendants in suits decided *ex parte*.
- (16) Powers-of-attorney of Counsel or agents of parties.
- (c) *In appeal cases:---*
 - (1) The index of papers.
 - (2) The order sheet or chronological abstract of orders.
 - (3) The petition of appeal.
 - (4) Copies of judgments and decrees of Lower Courts.
 - (5) Any cross-objection filed by the respondent under Order XLI, Rule 22, of the Code of Civil Procedure.
 - (6) Issues referred for trial by the Appellate Court, with the evidence and findings thereon.
 - (7) Commissioners' proceedings held thereunder, and reports of Commissioners.
 - (8) Any additional evidence, oral or documentary admitted by the Appellate Court under Order XLI, Rule 27, of the Code of Civil Procedure.
 - (9) Application to the Appellate Court to refer to arbitration, references, the award or other final return of the arbitrators, with the proceedings, depositions and documents submitted therewith and any applications to set aside the award, with the Court's orders thereon.
 - (10) Deeds of withdrawal, compromise or confession of judgment.
 - (11) The judgment or other final order.
 - (12) The decree of the Appellate Court.
 - (13) All notes in the handwriting of the Judge.
 - (14) Applications for review of judgment; with the Court's orders thereon.
 - (15) Any judgment and decree of a superior Court of appeal.
 - (16) Powers-of-attorney of Counsel or agents of parties.

Part B shall consist of all papers not included in Part A:

- 6. Papers included in parts — A and B of criminal record.**—In the case of criminal

records Part A shall contain the papers noted below:--

- (a) In original cases tried by a Court of Session:--
 - (1) The index of papers.
 - (2) The order sheet or chronological abstract of orders.
 - (3) The charge, original and as amended by the Sessions Judge.
 - (4) All depositions of witnesses and statements of accused persons, including depositions and statements transferred from the file of the Committing Magistrate.
 - (5) All documentary evidence.
 - (6) The final order.
 - (7) The finding of the assessors or verdict of the jury.
 - (8) All notes in the handwriting of the Judge.
 - (9) The judgment or order of the High Court as a Court of appeal, reference or revision.
 - (10) Warrants returned after execution of sentence.
 - (11) All proceedings relating to the realization of fines.
- (b) In Magisterial inquiries and trials:--
 - (1) the index of papers.
 - (2) The order sheet or chronological abstract of orders.
 - (3) The final Police report (Challan), or petition of complaint.
 - (4) All depositions of witnesses and statements of accused persons.
 - (5) All documentary evidence.
 - (6) The charge, where a formal charge is drawn up.
 - (7) The final order of the Court.
 - (8) All notes in the handwriting of the Magistrate.
 - (9) The judgment of the Appellate Court, if any.
 - (10) The judgment of the High Court in revision, if any.
 - (11) Warrants returned after execution of sentence.
 - (12) All proceedings relating to the realization of fines.
 - (13) Bonds of for good behaviour taken under Section 110 of the Codes of Criminal Procedure.
- (c) In appeal cases--
 - (1) The index of papers.
 - (2) The order sheet or chronological abstract of orders.
 - (3) The petition of appeal.
 - (4) Copy of the judgment of the Lower Court.
 - (5) Any additional evidence taken under Section 428 of the Code of Criminal Procedure.

- (6) The final order of the Court.
- (7) All notes in the handwriting of the Judge.

Part B shall consist of all papers not included in Part A.

7. Records to be presented in perpetuity.—The following records shall be preserved in perpetuity:--

- (1) Part A of all suits and appeals involving title to immovable property as defined in Section 3, clause 25, of the General Act, 1897.

Note: In suits for arrears of rent or for a share in the produce, when the right is not disputed and only the amount is contested clause I of Rule 12 will apply.

- (2) Part A of all suits and appeals relating to the succession to an offence or to establish or set aside an adoption or otherwise the status of an individual and of all suits and appeals relating to trusts or religious endowments.
- (3) Records of attachment, sale and delivery of immovable property in execution of decrees, including all objections, proceedings and orders thereon.
- (4) Part A of proceedings under the Succession Act of 1925, and the repealed Acts entered in Schedule 9 of that Act.
- (5) Part A of proceedings under the Divorce Act, 1869.
- (6) Records relating to the disposal of immovable property forfeited to Government under Section 62 of the Pakistan Penal Code.
- (7) Insolvency proceedings under the Provincial Insolvency Act, 1920, where the Court has decided a question of title to immovable property under Section 4 of the Act.
- (8) Correspondence with other offices on matters connected with the administration of justice, including annual reports and the statements appended thereto; provided that heads of offices may, with the previous sanction of the District Judge, order the destruction after three years, personally satisfying themselves, in regard to each paper ordered to be destroyed, that its retention is no longer necessary.

Also, annual confidential reports on the work of Magistrates and subordinate Judges, stipendiary and honorary, may be destroyed five years after the end of the year to which they relate.
- (9) Part A of proceedings under the Lunacy Act, IV of 1912.
- (10) Part A of proceedings under the Companies Act, VII of 1913, and VI of 1882.

Note: A list of all papers which it is proposed to destroy under this clause must be prepared, and, in the case of subordinate office, be submitted to the District Court for sanction. This list will be preserved in perpetuity.

8. Records to be preserved for 60 years.—The following records shall be preserved for sixty years and shall then be destroyed:--

- (1) Part A of proceedings under Sections 7 and 8 of Regulation XVII of 1806.

9. Records to be preserved for 50 years.—The following records shall be preserved for fifty years and shall be destroyed:--

- (1) Part A of proceedings under the Guardians and Wards Act, 1890, and under Act XL of 1858 and IX of 1861, other than those in which the petitions have been rejected.
- (2) Records of insolvency proceedings under all Act other than those falling within Rule 7(7) which have not been destroyed previously under Rules 11 and 13. The period of

fifty years shall be taken to run from date of the order of adjudication.

- (3) Part A of the case relating to any of the offences specified in Section 44 of the Code of Criminal Procedure, as offences of which all persons are bound to give information, in which any of the suspected persons have escaped apprehension; provided that, whenever it is known that the offender or offenders on whose account such records are kept, are dead, the records may be destroyed.
- (4) Part A of criminal cases in which the offence is punishable with death, and it is not known who the offender is.

Note: The records specified in clauses 3 and 4 when the time comes, when under ordinary circumstances they would be liable to destruction, shall be removed to a separate bundle of cases of absconding and unknown offenders.

- (5) Part A of Criminal cases in which a lunatic is concerned, unless the lunatic shall have been subsequently tried or have died.

10. Records to be preserved for 20 years.—The following records shall be preserved for twenty years and shall then be destroyed:--

- (1) Part A (i) of the Civil records specified in Rule 3 above.
- (2) The charge, finding and sentence in cases in which conviction has been had of an offence for which enhanced punishment is provided on a second or subsequent conviction.
- (3) Part A of cases in which any public servant has been tried, whatever may have been the result of the case.
- (4) Part A of all civil suits and appeals, other than suits and appeals falling under Rule 7, where one of the parties is a minor suing or used through a guardian under Order XXXII, of the Code of Civil Procedure.
- (5) Part A of Criminal cases relating to any offences other than those specified in Section 44 of the Code of Criminal Procedure in which any of suspected persons have escaped apprehension provided that, whenever it is known that the suspected offender or offenders on whose account such records are kept, are dead, the records may be destroyed.

11. Records to be preserved for 12 years.—The following records shall be preserved for twelve years and shall then be destroyed unless their preservation for a longer period is necessary on the special grounds noted below:--

- (1) Part A of Sessions case: provided that, if the sentence has been fully executed, the record shall be preserved until the return of the warrant, and then destroyed.
- (2) Part A of cases under Chapter XXXVI of the Code of Criminal Procedure in which maintenance is awarded.
- (3) Insolvency proceedings under Chapter XX of the Code of Civil Procedure, 1882, or under the Provincial Insolvency Acts, where immovable property is involved. The period shall be taken to run from the date of the order of the Court declaring the insolvent discharge from further liability in respect of the schedule debts.
- (4) Part A of proceedings under the Guardian and Wards Act, 1809, and under Act XL of 1858 and IX of 1861 in which the petitions have been rejected.

12. Records to be preserved for 6 years.—The following records shall be preserved for six years and shall then be destroyed unless their preservation for a longer period is necessary of any of the special grounds noted below:--

- (1) Part A of all Civil suits and appeals other than suits and appeals falling under Rule 7: provided that, if the decree has not been fully executed or become incapable of further execution. Part A must be preserved until such time as the decree has been fully executed or become incapable of further execution.

Note 1: A note of all cases destroyed in District offices under this clause shall be made at the time of destruction in the list of cases put up with the village bundle.

Note 2: In January, April, July and October, each year, the record-keeper will receive Civil Courts, - *vide* paragraph 1 of Chapter 16-A, Part III, Rules and Orders, Volume IV, lists of execution cases in respect of records which are six years, old or about to become six years' old in which decrees have been fully executed or have become incapable of further execution cases in respect of records which are six years, old or about to become six years' old in which decrees have been fully executed or have become incapable of further execution. On the receipt of these lists, the record-keeper should make a note to this effect on each file and he should not destroy any file unless it contains that note without ascertaining whether the decree has been fully executed or has become incapable of further execution.

Note 3: Only such portion of the record, if any, as relates to the attachment, sale and delivery of immovable property in execution of decrees, including all objections, proceedings, and others thereon should be taken out and preserved permanently as required by rule 7 when the record is destroyed under rule 12.

- (2) Part A of cases tried by the Magistrate of the District under Section 30 of the Code of Criminal Procedure, in which he has inflicted a heavier punishment than might have been inflicted by a Magistrate of the first class; provided that, if the sentence has not *been* fully executed, the record shall be preserved until the return of the warrant and then destroyed.
- (3) Records relating to the realization of fines of Criminal Courts.

13. Records to be preserved for 3 years.—The following records shall be preserved for three years and shall then be destroyed.

- (1) Insolvency proceedings under Chapter XX of the Code of Civil Procedure, 1882, or under the Provincial Insolvency Acts where no immovable property is involved. The period shall be taken to run from the date of the order of the Court declaring the insolvent discharged from further liability in respect of the scheduled debts.
- (2) Records of criminal cases inquired into or tried by Magistrates and not otherwise provided for in these rules.
- (3) Part A of appeals from orders passed by the Magistrates.
- (4) All correspondence between the District Magistrate or District Judge and Subordinate Courts, and other records, periodical statements, reports, proceedings, applications, etc., not expressly provided for in these rules; provided that, in respect of records falling under this clause, heads of offices must exercise their discretion in preserving report, return and proceedings likely to be usefully in the future, as containing the result of inquiries or other information, or the opinions of experienced officers on matters connected with the general administration of justice.

14. Records to be preserved for 1 year.—The following records shall be preserved for one year and shall then be destroyed:--

- (1) Part B of all civil and criminal cases and appeals provided that papers relating to deposits and payments thereof shall be separated and preserved until such time as the accounts of the deposits and repayments concerned have been audited and any objections raised in connection therewith have been finally settled and that Part B of

civil cases, and civil appeals in which a first or a second appeals lies to the High Court, shall not be destroyed until the period of limitation for instituting such an appeal has expired or until the appeal, if instituted, is decided by the High Court.

- (2) Proceedings of other Courts and officers forwarding notices, proclamations, calling for records, etc.

15. Mode of reckoning period.—The periods prescribed above shall, except in the case noted below, be taken to run from the date of the final order of the Court of first instance, or, in the event of an appeal, or revision from that of decision of the appeal or revision.

In cases under Chapter XXXVI of the Code of Criminal Procedure, in which maintenance is awarded, the period shall be taken to run from the date of the last order passed for the enforcement of the award.

16. Notes of destruction.—(i) When under the above rules the whole of the papers of Part A of the record are destroyed, a note to the effect shall be made, at the time of destruction, against the entry of the case in the Goshwara. In the case of the record offences of District and Sessions Courts where no Goshwaras are kept, the note shall be made against the entry of the case in the General Register.

(ii) When some only of the papers Part A of the record are destroyed and some are retained, a note of the papers destroyed shall be made, at the time of destruction, on the fly index of the case.

(iii) All notes made under the above instructions (i) and (ii) shall be attested by the Record-keeper.

(iv) No note whatever need be made of the destruction of Part B of a record.; Such destruction will be presumed to have been effected in accordance with Rule 14 above.

17. Preservation of papers belonging to Government or private persons.—Before destroying Part A of any judicial proceedings, care must be taken to separate and remove from the record all documents belonging to private persons or to Government, as a party to the proceedings, which have not been superseded by the decree or impounded in the case in which they were produced. These documents shall be preserved and tied up in a separate parcel, and notice shall, whenever practicable, be given to the persons who produced them in Court, requiring them to take them into their own keeping within six months from the date of the notice, and warning them that they will be kept at their risk, and that the Court declines all responsibility for them. Copies of this notice should also be put up in a conspicuous place of the Court-house of the Deputy Commissioner of the District, and of the Court in which the suit was tried, or, if such Court has been abolished, of such other Court or Courts as may be exercising jurisdiction in lieu of it. Heads of offices must make the best arrangements for the custody of these documents that the circumstances admit of. In District offices it will probably be most convenient to keep them with the appropriate village bundles.

18. Registers to be preserved in perpetuity.—The following judicial registers shall be preserved in perpetuity:—

Civil registers Nos. I, II, III, IV, V, XV and XXIV.

Criminal Registers Nos. VII, VIII and XVI.

19. Register to be preserved for 50 years.—The following registers shall be preserved for fifty years from the date of the last entry and shall then be destroyed:—

Civil Registers Nos. XXVI and XXVIII.

Criminal Register No. IX.

Miscellaneous Register J and L.

20. Registers to be preserved for 20 years.—The judicial registers shall be preserved for twenty years for the date of the last entry and shall then be destroyed:---

Civil Registers Nos. X, XI and XIII.

Criminal Register Nos. II and X.

Miscellaneous Registers Nos. A, K and N.

21. Registers to be preserved for 12 years.—The following judicial registers shall be preserved for twelve years from the date of the last entry and shall then be destroyed:---

Civil Registers Nos. VI and XIV.

Criminal Registers Nos. I, III, IV and XIV.

22. Registers to be preserved for 6 years.—The following judicial registers shall be preserved for six years from the date of the last entry and shall then be destroyed:---

Civil Registers Nos. XVI, XVIII, XXI-A, XXI-B and XXV.

Criminal Register No. XV.

Miscellaneous Registers B and C.

23. Registers to be preserved for 3 years.—The following judicial registers shall be preserved for three years from the date of the last entry and shall be destroyed:---

Civil Registers Nos. VII, VIII, IX, XII, XVII, XXI-C, XXII and XXIII.

Criminal Registers Nos. V, VI, XI, XXII and XXIII.

Miscellaneous Registers D, E, F, G, H, I, P and Q.

24. Instruction regarding destruction of Civil Register No. XX and Miscellaneous Register M.—Civil Register No. XX and Miscellaneous Register M should be treated as follows:--

When a book is full, the names of the peons still in service of the petition-writers still holding licences should be copied into a new register and the old register destroyed.

25. No judicial registers to be destroyed.—No judicial Registers shall be destroyed as directed above.

D — Other Papers

¹**26. Regarding personal file of officers, and ministerial and menial servants.**—No personal files of all officers and ministerial and menial servants of Government. Also, annual confidential reports on the work of Magistrates and Civil Judges, may be destroyed five years after the end of year to which they relate.

- (a) who die while in service, shall be preserved for three years after their death and then destroyed, provided there are no outstanding claims on the part of their heirs; and
- (b) Who have retired, shall be preserved until their death and then destroyed, provided that on file shall be destroyed before three years from date of retirement when death occurs within three years of retirement.

27. Destruction of vouchers relating to contingencies.—Vouchers relating to contingencies should be preserved for 3 years and then destroyed, this period being reckoned from 1st January following the date of payment.

¹Added by item (iii) of Correction Pamphlet No.34, dated 3rd October, 1956.

28. Preservation of records relating to Sheriffs' Petty and Civil Courts Deposit Accounts.—The records relating to Sheriffs' Petty and Civil Court Deposit Accounts shall be preserved for the period noted against each in the sub-joined statements.

CIVIL COURT DEPOSIT ACCOUNTS

CIVIL COURT DEPOSIT ACCOUNTS REGISTERS AND FORMS		Period for which it is proposed to preserve the registers, etc.
Number	Heading	
Form No. 1	Note Book of Execution Bailiff	3 years
Form No. 2	Register of Receipts (Cash system)	Permanently
Form No. 3	Register of Receipts (Voucher system)	Permanently
Form No. 4	Register of Disbursement Cash System)	12 years.
Form No. 5	Cash Book (Cash system)	6 years
Form No. 5	Cash Book (Cash system)	Permanently
Form No. 6	Receipt Form (Cash system)	6 years
Form No. 7	Voucher Form (Cash and voucher systems)	One year from the date of last audit
Form No. 8	Cheque Form (Cash system)	3 years
Form No. 9	Challan Form (Cash Voucher systems)	6 years
Form No. 11	Treasury Pass Book (Cash systems)	Permanently
Form No. 12	Extract register of receipts (Cash system) (Form 28, Civil Account Code, Volume 1)	6 years
Form No. 13	Clearance Register (Cash system)	6 years
Form No. 14	List of repayments (Cash system) (Form 47, civil Account Code, Volume II).	3 years
Form No. 15	Lapsed Deposits (Cash system) (Form No.29, Civil Account Code, Volume I).	Permanently
Form No. 16	Refund of lapsed deposit (Cash and Voucher systems) (Form No. 30 Civil Account Code, Volume I).	3 years
Form No. 17	Intermediate Register of money orders, etc.	One year from the date of last audit
Form No. 18	Stock Book of Forms of Receipt Books/Cheque Books	One year from the date of last audit.

SHERIFFS' PETTY ACCOUNTS
SHERIFFS' PETTY ACCOUNTS REGISTERS AND FORMS

Name number	Heading	Old Number	Heading	Period for which it is proposed to preserve the registers
Form 1	Register of receipts	Register A	Register of Receipts	Permanently
Form 2	Register of Disbursement	Register B	Showing payments	12 years
Form 3	Cash Book	Register C	Showing receipts and disbursements and cash balance in hand of Agent each day	Permanently
Form 4	Treasury Pass Books	--	--	Permanently
Form 5	Receipt Form	Form G	Receipt Book	Six years from the date of last entry in the cash book
Form 6	Register of Processes received and disposed	Register D	Register of Processes received and disposed of the Agent	Three years from the date of the last entry, but subject to the condition mentioned against Form 8.
Form 7	Note Book of Process Servers	Form H	Note Book of Process Servers	As against Form No.6.
Form 8	Payment Order form	Form I	Court Payment order	One year from the date of last audit and if at the last audit any objection was raised in connection with any documents or records the should be retained until the next audit, and should not be destroyed until one year has elapsed since the removal of the objection originally raised.
Form 9	Challan Form	Form J	(a) Memo. To accompany remittance of surplus money to the treasury	6 years
		Form K	(b) Of mostly balance to the treasury	
		Form L	(c) Consolidated Memo. Of remittance to the treasury	
Form 10	Cheque Form			3 years
Form 11	Statement of lapsed deposit (From 29 Civil Account Code Volume I)			Permanently
Form 12	Voucher for refund of lapsed deposits Form No.30, Civil Account Code, Volume I)			3 years
Form 13	Stock Book of Forms of Receipt Books and Cheque Books	Form M	Stock Book of Forms	As against Form No.8

CHAPTER –18

LIBRARIES

Instructions regulating the supply, care and custody of books of reference, Acts of the Legislature and legal periodicals required for use of Civil and Criminal Courts under the Lahore High Court, Lahore.

1. Books of reference, Acts of the Legislature and legal periodicals required for the use of civil and criminal Courts are to be obtained as follows:--

- (a) Books of reference and Acts of the Legislature entered in the lists in paragraphs 4 and 5 and in the Appendix to these rules may, subject to budget provision, be purchased from any law publisher in Pakistan and India Books not on the lists cannot be purchased without the previous sanction of the High Court and no book can be added to the lists without similar sanction.
- (b) District and Sessions Judges alone have the power to sanction purchase of prescribed books for their own Courts and for Courts of Small Causes and Courts of Subordinate Judges under paragraph 20.8 (Serial No. 18) of the Punjab Financial Rules, Volume I. Payment, however, will be made by a District and Sessions Judge only in respect of books required by him or by an Additional District and Sessions Judge, by a Senior Subordinate Judge in respect of books required by him and by all Subordinate Judges in his district, and by a Judge, Court of Small Causes, in respect of books required for that Court, the expenditure in each case being debited to the grants for “Other Contingencies” under “District and Sessions Judges,” “Subordinate Judges or “Courts of Small Causes”, as the case may be, in respect of which the officers named are disbursing officers under paragraph 20.8 (Serial No. 1) of the Punjab Financial Rules, Volume I.

Criminal Courts other than those of Sessions Judges being under the control of the District Magistrate for purposes of budget, will be governed by the procedure laid down in Chapter 7 of the District Office Manual.

- (c) Acts of the Legislature, Codes and Manuals as published by the Provincial Government are supplied free of cost by the Superintendent, Government Printing, Punjab, to Courts approved by the Provincial Government.
- (d) Acts of the Legislature and all official publications of the Central Government and Governments of other provinces are obtained on payment from the Superintendent of the Press or Book Depot of the Government concerned, the cost being debited to “57-Miscellaneous-Cost of Books and Periodicals” where payment is required to be made by book adjustment, or as provided in paragraph (b) where cash payment is required to be made, such payment being remitted either by money order, or by cheque on the National Bank or on any other local bank or Remittance Transfer Receipt, direct to the Superintendent, Government Printing, or to the Book Depot, of the Government concerned. This applies also to all Codes and Manuals, etc., issued by the Auditor-General and his subordinate audit officers, and the Defence Department.
- (e) Pakistan Law Reports, all series, which are also official publications of the various Governments in Pakistan and Burma, are obtainable and paid for as provided in subparagraph (d).
- (f) The Post and Telegraph Guide and the Telephone Directory are to be obtained on cash payment from the Post and Telegraph Department.

2. Nothing in the foregoing instructions is to be deemed to sanction the purchase of any book from a publisher not in Pakistan. Special application must be made to the High Court in the event of it becoming necessary to obtain for any civil or criminal Court a book not procurable in Pakistan, whether such book is or is not on the lists of approved books. In submitting such

applications the District and Sessions Judge or the District Magistrate, as the case may be, should specify the name of the publisher, the published price and whether budget provision is sufficient to meet the cost of the book and all incidental charges connected therewith. Such books will not be purchased by placing an order direct with the publisher but by addressing the indent to the High Commission for Pakistan, Public Department, it is possible to obtain them at a discount on publishers' prices.

3. The responsibility for the existence of sufficient budget provision to met the cost of books, Acts and legal periodicals purchased under these rules rests entirely with the disbursing officers, that is, the District and Sessions Judge, and District Magistrate, the Judge, Court of Small Causes, and the Senior Subordinate Judge, as the case may be. These officers are also responsible to see that adequate provision for books admissible to Courts under these rules is suggested at the time of the preparation of budget estimates each year.

4. The following minimum books have been prescribed by the High Court for the library of each civil and criminal Court presided over the English-speaking Judges and Magistrates:---

A – Books for libraries of every Civil Court

- (1) Annotated editions of:--
 - (a) The Code of Civil Procedure.
 - (b) The Evidence Act.
 - (c) The Contract Act.
 - (d) The Limitation Act.
 - (e) The Specific Relief Act.
 - (f) The Punjab Pre-emption Act.
 - (g) The Court Fees Act.
 - (h) The Registration Act.
 - (i) The Punjab Land Revenue and Tenancy Act.
 - (j) The Stamp Act, 1899.
- (2) Rattigan's Digest of Customary Law, and Customary Law or Riwaj-i-Am of the district.
- (3) Civil Digest of the Punjab Record and Pakistan Law Reports, Lahore Series.
- (4) Manuals on:---
 - (a) Muhammadan Law.
 - (b) Hindu Law and Usage.
- (5) The Unbrepeable Central Courts.
- (6) The Punjab Code.
- (7) The High Court Rules and Orders, Volumes I, II, IV and VI-A.

B – Books for libraries of every Criminal Court

- (1) Annotated editions of:--
 - (a) The Penal Code.
 - (b) The Code of Criminal Procedure.

- (c) The Evidence Act.
- (d) The Stamp Act, 1899.
- (2) Criminal Digest of the Punjab Record and Pakistan law Reports, Lahore Series.
- (3) The Punjab Code.
- (4) The Criminal Acts in force in Punjab.
- (5) The High Court Rules and Orders, Volumes III, IV and VI-B.
- (6) A handbook for Magistrates by Rai Sahib Lala Labhu Ram.

Only those annotated editions of Acts, Codes, Digests and Manuals prescribed of libraries in this paragraph will be obtained as are specified in the Appendix to these rules.

¹[4-A. One set of all series of the Pakistan Law Reports only will be obtained by a District and Sessions Judge or where there is no District and Sessions Judge at the headquarters of a district – by the Senior Sub-Judge, for use of all Civil and Criminal Courts in the district. Every Civil and Criminal Court, however, will obtain one copy of the Lahore Series only).

5. The Appendix to these rules contains lists of books which may be purchased in accordance with Paragraphs 1 and 2 for various classes of civil and criminal Courts in addition to those mentioned in paragraph 4. A new edition or publication or vernacular edition of any work may be substituted for the edition or work specified in the lists.

6. The arrangement or libraries of criminal Courts other than Sessions Courts will be governed by the instructions contained in Chapter 7 of the District Office Manual.

7. A catalogue shall be maintained in all District and Sessions Courts and Courts of Small Causes in respect of books, Act and other publications supplied or obtained for their use, and in all Senior Subordinate Judges' Courts for these Courts and all Subordinate Judges in the same district. The catalogue maintained in Senior Subordinate Judges' Courts shall contain separate lists for each Court of Subordinate Judge to which books, etc., have been supplied by the Senior Subordinate Judge, a copy of *such* lists being supplied to the presiding officer of each such Court; similar procedure will be adopted where a District and Sessions Judge's Court supplies books to an Additional District and Sessions Judge and where a Court of Small Causes supplies books to an Additional Judge of such Court. The catalogue which should be a blank register carefully ruled out, will contain the following columns:---

- (a) Serial number.
- (b) Name of work.
- (c) The edition or date of publication.
- (d) The cost, if any.
- (e) Date of receipt.
- (f) Date when it ceases to be in the Court library, and reason for same, e.g., transfer, weeded out, lost, etc.
- (g) Remarks.

8. As soon as a new book is received either by purchase or otherwise it must be stamped on the title page and in several places *in* the volume with the seal of the purchasing or receiving (if not by purchase) office and entered in the catalogue, and when any book has from any cause ceased to be in the library of any Court a note should be made in the catalogue of the manner in

¹(C.P. No.15 of 24th February, 1948.)

which it has been disposed of.

9. Presiding Officers of Courts will be held personally responsible for arrangements made in accordance with these rules for the custody of books and the maintenance of catalogues and lists. The following officials shall hold charge of the library of a Court under the control of the Presiding Officers:---

<i>Court</i>	<i>Official-in-charge</i>
(i) District and Sessions Judge's Court	Clerk of Court and English Clerk
(ii) Court of small Causes	Clerk of Court
(iii) Senior subordinate judge's Court	Clerk of court
(iv) subordinate Judge's Court	Reader of Ahlmad at places where there is no permanent Civil Judge.

In the cases of (i) to (iii), the presiding officer may appoint any other Clerk to assist the official-in-charge without any lessening of the responsibility of the latter, provided that the Reader in such case shall hold charge of books kept in a Court room for the presiding officer's daily use and provided further that in no case shall a menial be required to perform any responsible duty connected with the custody of books other than what may ordinarily be expected of a menial. These officials shall be personally responsible to the presiding officer for the proper arrangement of books, and their receipt and issue; and for their protection from insects, etc. they should ensure that all books are removed from almirahts or other place of keep at least once a quarter and thoroughly dusted; the most convenient way to do this where large libraries are maintained is to remove the contents of shelves in rotation at fixed intervals, say, of a week or ten days, so that the turn of each shelf will come round at least once in three months. [In the case of (iv) the Ahlmad shall be responsible for looking after the Court library at places where there is no permanent Civil Judge. It will, however, be necessary that each time the Reader goes on tour with the Presiding Officer he should inspect the library to see that the Ahlmad is looking after it properly].

(ii) [At the end of the rule add "In the case of (iv), the Ahlmad shall be responsible for looking after the Court library at places where there is no permanent Civil Judge. It will, however, be necessary that each time the Reader goes on tour with the Presiding Officer he should inspect the library to see that the Ahlmad is looking after the properly."

10. It will be the duty of the Reader to each Court to see that no unauthorized persons *are* allowed to *remove* or otherwise tamper with the books in the Court room. He shall see that the Court room is locked before he leaves for the day. -

11. A peon or an orderly of each Court will be responsible for the dusting of the books of the library or the Court room and he shall see that the dusting is done without disturbing the under the books.

12. No book shall be issued from the library without a written requisition for it. The requisition will be placed where the book was and should be destroyed or returned when the book is restored to its place. If a book is not returned, the official-in-charge as described in paragraph 9 will enquire for it and invariably submit monthly reports to the presiding officer of books removed and not returned.

13. Each series of Law Reports and other legal periodicals published serially will be kept on a separate file till the series is complete and when it is complete be bound into volumes and brought on to the catalogues and lists.

14. All correction slip of various Acts Manuals, codes, and Rules and Orders of the High Court, shall be inserted as soon as they are received. To ensure that this is done in respect of the Rules and Orders of the High Court, a register shall be maintained in each Court by the officials named in paragraph 9 in which the number and date of every correction slip received shall be

entered with the date of receipt also noted therein; they will have the entry attested by the presiding officer of the Court in token of the correction slips having been pasted in the relevant volumes, and the presiding officer must see that no undue delay occurs in each pasting.

15. When a change of presiding officers of a civil or Criminal Court takes place, the relieving officer will satisfy himself on taking over charge of office that the library of the Court is complete, that the books are in good condition and that the catalogues or lists, as the case may be, are up-to-date. Any deficiencies will at once be brought to the notice of the Court to which he is subordinate.

16. Once a year, as soon after the 1st January as possible, every presiding officer of a Civil Court shall submit through the District and Sessions Judge for the orders of the High Court, a list of book and publications which he thinks should be weeded out of his library. Books to be weeded out with the sanction of the High Court shall be sold in the local market and the proceeds credited in the local treasury under the head “XXI – Administration of Justice –Miscellaneous” All books sold to private persons must be endorsed ‘sold; with signature on the title page. Care must be taken by all concerned that no book is suggested for weeding out unless it is quite clear that it is of no use and that orders by the High Court for the sale of weeded out books is subject to the condition that the books are not of any use of other Courts or officers in the district. Criminal Courts will act in this matter as provided in Chapter 7 of the District Office Manual.

17. The books in the library of every Court shall be checked annually in the month of March by the presiding officers and the result reported to the District and Sessions Judge and the District Magistrate by civil Courts and criminal Courts, respectively. The District and Sessions Judge and the District Magistrate shall then by the 31st of the same month, report to the High Court the result of the check including that of their own Courts. All presiding officers should remember that these annual inspections must not be performed perfunctorily.

18. Personal responsibility must be fixed for all losses of books and in doing so regard shall be paid whether the rules for the care, custody and checking of books have or have not been observed by all concerned. The Provincial Government have decided that they will not hesitate to recover the cost of missing books from those concerned where the loss is found to be due to any failure, even on the part of a presiding officer, to comply with rules. It will only be when personal responsibility is not enforceable that losses will be written off – by the High Court where District and Sessions Courts and other civil Courts are concerned, and by the Commissioner or the Deputy Commissioner where Criminal Courts are concerned, under paragraph 20.17 (Serial No. 6) of Punjab Financial Rules, Volume I.

19. Inspecting Officers should be careful to satisfy themselves that the catalogues or list prescribed in these rules or in the District Office Manual, as the case may be, in regard to a Civil Court or Criminal Court, respectively, are properly kept up, that the books, Acts and periodical publications are complete and in good condition, and that where Acts and periodical publications are required by these rules to be bound, they are duly bound into volumes.

APPENDIX

LIST OF BOOKS AND ACTS WHICH MAY BE SUPPLIED TO COURTS IN THE PROVINCE SUBJECT TO THERE BEING BUDGET PROVISION TO MEET THE COST

Note: New editions or publications of any work mentioned in this list may be substituted for the edition or work here specified. Vernacular editions of any Work specified in the -list the included.

PART – I

(For the use of every Civil and Criminal Courts)

1. Acts of the Legislature.

2. Indian Evidence Act Women.
3. Income Tax Ordinance.
4. Law relating to Motor Vehicles in Pakistan.
5. Punjab Code.
6. Punjab Records (Judicial part only).
7. Indian Law Reports (Lahore Series).
8. Complete Digest of the Punjab Cases Law, 1866 – 1932.
9. Punjab Digest, 1900-1926.
10. The Punjab Digest, 1931-1918.
11. Indian Digest (Civil, Criminal and Revenue); Quinquennial Digest, Decennial Digest and Yearly Digests.
12. High Court Rules and Orders.
13. Concise Law Dictionary.:
14. Universal Ready Reckoner.
15. Concise Oxford Dictionary.
16. Rahnuma-i-amala-i-Muharran.
17. Notable Judgments of Judge Young, edited by Bankey Behari and Sri Ram.
18. The Punjab and North-West Frontier Province Acts (Civil, Criminal and Revenue) the Punjab Acts (Civil, Criminal and Revenue) Important Punjab Acts with Commentary, by Kazi Muhammad Ashraf.”
19. Stamp Act.
20. A Treatise on the Law of Contempt of court.
21. Annual Medical List published by the Punjab Medical Council.
22. The Cantonments At, 1924 and the Cantonments (House Accommodation) Act, 1923.
23. Holy Bible.
24. For Necessary Act, speeches and judgments by Sir Douglas Young edited by Shri Ram and V.M. Kulkarni.
25. All Indian Comparative Tables.
26. Table showing the corresponding dates of the Christian Era and the Higri and Banker’s Era from 1880-1950.
27. Cross-examination.

PART-II

(For the use of every Civil Court, in addition to works in Part I)

1. Code of Civil Procedure by A. Amir Raza.
2. Contract Act and Specific Relief Act or the Law of Contracts.

3. Sale of Goods Act by M.G. Hussain.
4. Specific Relief Act by Ch. Naseem.
5. Limitation Act Law of Limitation and prescription in Pakistan including Easements.
6. Court-fees and- Suit Valuation Act (M.G. Hussain), or the Law regulating Court-fees and Jurisdiction (Students abridged edition) By D.C. Obhai.
7. Stamp Law (in Urdu).
8. Provincial Small Cause Courts Act.
9. Registration Act -by Mulla by M.G. Hussain.
10. Usurious Loans Act.
11. Negotiable Instruments Act by M.G. Hussain
12. Civil Court Manual (Kazim Khan) or the Civil Court Manu⁴¹.
13. Punjab Courts Act.
14. Punjab, Alienation of Land Act.
15. Punjab Pre-emption Act by Noor Elahi.
16. Punjab Municipal Act with Small Towns and Executive Officer Act Municipal Law and Practice.
17. Punjab Small Towns Act.
18. Punjab Tenancy Act.
19. Punjab Land Revenue Act by Ch. Naseem.
20. Hindu Law.
21. Wilson's Anglo-Muhammadan Law or Mulla's Muhammadan Law by Ali Hassan
22. Marriage and Dower under the Muhammadan Law by Ali Hassan.
23. Marriage and Dissolution of Marriage in Muslim Law.
24. Digest of Civil Law for the Punjab.
25. Customary Law in the Punjab.
26. Transfer of Property Act by M.G. Hussain.
27. Law relating to mortgage in the Punjab.
28. Law of execution.
29. Law of Torts (Ratan Lal).
30. Twenty-four years' Calendar from 1917 to 1940.
31. Rahnuma-i-Amla-i-Tamil.
32. Law of Partnership by Tirath Das Sehgal or Indian Partnership Act by Pollock and Mulla Or Law and Practice of Partnership and Private Companies.
33. Punjab Relief of Indebtedness Act.
34. Customary Law Series.
35. Handbook of procedure and every day civil law.

36. Punjab Debtor's Protection Act.
37. Hire-Purchase, by V.S. Nayyar and C.L. Varma.
38. Relief Legislation in the Punjab.
39. Land Alienation Act with Bedami Laws.
40. Easements. and Licenses by K.N. Joshi, or Law of Easements by Naveed Abbas.
41. The Law Lexicon.
42. Law of Arbitration by Ch. Ahsanul Haq.
43. Law and Practice of Conveyancing by M.G. Hussain Dutt's Law of Conveyancing.

PART-III

(For the use of every Criminal Court, in addition to works in Part I)

1. Law of Fatal Accidents by Key Law Reports.
2. Pakistan Penal Code by M.A. Zafar.
3. Code of Criminal Procedure by Nazam.
4. Police Act by S.A. Abid.
5. Public Gambling Act.
6. Pakistan and Punjab Criminal Acts or local and special Laws (Criminal) Court Manual (Imperial Acts) published by the Madras Law Journal Office all India Digest, 1931-1940 (Criminal and yearly Digest, published by Madras Weekly Notes Office.
7. Administration of Cantonments (Lincoln).
8. Police Diaries and Statements (A.K. Khan).
9. Handbook for Magistrates.
10. Medico-legal Court Compensation (M.G. Hussain).
11. Outlines of Medical Jurisprudence (Lyon).
12. Taylor's Medical Jurisprudence.
13. Classification and Uses of Finger Prints. (Henry)
14. Criminal Practice by (S.A. Abid).
15. Law relating to bails in criminal matters by Ram Lal Anand.
16. Arms Ord. Manual or Arms Act Law of Arms and Explosives of Law or Arms in Pakistan by M.A. Zafar.
17. Law relating to Electricity by G.M. Hussain.

PART-IV

(For the library of (1) District and Sessions Judges and (2) Senior Sub-Judges or Additional Judges, in addition to the works in parts I, H and III.

1. A second annotated edition of Penal Code

2. A second annotated edition of Criminal Procedure Code.
3. A second annotated edition of Civil Procedure Code.
4. Negotiable Instruments Act.
5. Land Acquisition Act by S.A. Abid.
6. Guardians and Wards Act by S.A. Abid.
7. Law relating to Minors by Trevelyan
8. Companies Act by M.A. Zafar.
9. Law of Transfers of Property by Ch. Naseem.
10. Law of Mortgages.
11. Copyright Act and Regulations, 1914 and Laws relating to published by Majad Bashir.
12. The Law of Copyright by Awais Khalid.
13. Legal Practitioner's Act by M. Javid Iqbal.
14. Professional Ethics.
15. Provincial Insolvency Act by M.J.D. Arian.
16. Succession Act (Act XXXIX of 1925) by S.A. Abid.
17. Railways Act, IX of 1890 by M.J.D. Arian.
18. Law of Carries and Railways.
19. Law of Arbitration by M.G. Hussain.
20. Law of compromise.
21. Law of Principles of Co-operation.
22. Stamp Law and Practice by S.A. Abid.
23. Jail Manual.
24. Police Rules.
25. Police Reports and Investigation by M.K.A. Khan.
26. Police Diaries and Statement by M.K.A. Khan.
27. Law of Accomplice and Approver by M.K.A. Khan.
28. Registration Manual.
29. Law of Excise in the Punjab by Pindi Dass and Des Raj Bhasin.
30. Law of Contract by Asmat Kamal.
31. Principles of Contract by Pollock.
32. Anson on Contracts.
33. Digest of the Law of Partnership by Lindley.
34. Law of Agency by Bowstead or Katiar.
35. Hindus Law, by Mayne or Gour.
36. Muhammadan Law by Amir Ali or Tyabji or Sexena.

37. Treatise on Customary Law in the Punjab by Rustomji.
38. Central Punjab Customs by N.H. Prenter.
39. Law of Torts by Pollock.
40. Mayne on Damages, or a Treatise on the Damages and Compensation in British India, by C. Kameswara Rao.
41. Kerr on Fraud and Mistake.
42. Banking Law and Practice in India by M.L. Tannon.
43. Tagore Law Lectures (as published).
44. Cantoment Laws in India by Kidar Nath.
45. Science of Jurisprudence, by Salmond.
46. Conflict of Laws, by Dicey.
47. Doctrine of *Res Judicata* by Bower.
48. Mogha's Pleadings.
49. Law of Estoppel by Bower on Everst and Stroud.
50. Law of Injunctions by Kerr and Basu.
51. Treatise on the Law of Easements and Licensee in British India (Katiar).
52. Principles of Equity, by Snell.
53. Common Law, by Odgers.
54. Maxwell on Interpretation of Statutes.
55. Forbes Hindustani and English and English and Hindustani Dictionary.
56. Platt's Hindustani Dictionary.
57. Standard English Urdu Dictionary by Abdul Haq.
58. Law Lexicon, by Wharton.
59. Stroud's Judicial Dictionary.
60. Legal Maxims by Broom.
61. All India Consolidated Digest, 1811-1934 (Criminal). Three volumes by Desai.
62. All India Consolidated Digest, 1811 to 1934 (Civil), 9 volumes by Desai.
63. Pal's Civil and Criminal References.
64. Desai's Index of Case Judicially noticed.
65. A compilation of orders on the subject of the personal conduct of Public Officers in their relation to Government by G.K. Roy.
66. Time and Fare Table of the North-Western Railway or in the case of districts served by Railways other than the North-Western Railway, the Time and Fare Table of the Railway concerned.
67. Law of adoption in India and Burma by J.L. Kapur.
68. Dr. Nand Lal's Law and Doctrine of *Res Judicata*.

69. Workmen's Compensation Act, by P.R. Aiyar and S.K. Iyer or by Narinjan Singh or by A.G. Clow.
70. Commentaries on the Indian Trusts Act by S.K. Aiyar (as an alternative to "Law of Trusts in British India" comprising one of the series of Tagore Law Lectures in item 43 above).
71. Northern Indian Canal and Drainage Act by (R.N. Rao).
72. Hindu Law applicable to the Punjab (Rust).
73. Benami Transaction (Ghosh).
74. Government of India Act, 1935.
75. Contested Documents and Forgeries (Brewester).
76. Law and Procedure of Execution (Bhaumik).
77. Finger Prints (Brewester).
78. Police Finger Print Bureau Manual.
79. Law of Fraud and Fraudulent Transfer (Dhodi).
80. Law of Gift in British India (Bimla Charan).
81. Indian Partition Act (Balwant Singh).
82. Law of Promissory Notes (Aiyar).
83. Law of Provident Fund (Duct).
84. Law of Receivers (Basu).
85. Law relating to Official Receiver (Rao).
86. Government of India Act, by C.L. Anand or Law of the Indian Constitution by Ramswamy.
87. Law of Insurance Bishan Nath.
88. Laws of India by Doulat Ram Prem.
89. The Legal Phrase Book for Shorthand writers, and Rapid Methods in Recording Numerical by P.G. Subramania Iyer.

PART-V

(For the library of District and Sessions Courts in addition to works in Parts I to IV)

1. Dr. Naud Lal's Penal Law in India.
2. Indian Divorce Act (Rattigan) or the Law and Practice of Divorce by S.C. Manchanda.
3. Haydon on Divorce.
4. House owners and Tenants in Cantonments (Lincoln).
5. Law of Compulsory Land Acquisition and Compensation or Ghosh's Land Acquisition Acts.
6. A handbook of the Law relating to Press in India, by G.K. Roy.
7. Punjab Court of Wards Manual (D.R. Prem).

8. Law of Torts, by Salmond, Clark and Lindsell, Iyr, Underhill or Ratan Lal.
9. Smith's leading Cases.
10. White and Tudor's Leading Cases on Equity.
11. The Shorter Oxford English Dictionary.
12. Wills on Circumstantial Evidence (Indian, edited by Krishnamachariar).
13. Law and Practice of Elections and Election Petitions Pandit Nanak Chand and others.
14. Election Cases - India and Burma - 1920-1935, by Hammond.
15. Law relating to places of entertainment and amusement (K. Venkoba Rao).
16. Kerry's India Sale of Goods Act.
17. Kerry's Partnership Act.
18. Encyclopaedia of the General Acts and Codes of India, published by Butterworth and Co. India Ltd.).
19. Law of Identification (M.K.A. Khan).
20. Law of Homicide and Hurt in British India (Rust).
21. Law of Confessions (Roy or M.K.A. Khan).
22. The Payment of Wages Act (H.L. Sarin)

PART-VI

(For the library of District Magistrates in each District within the limits of which Military forces are stationed and for the library of each Cantonment Magistrate)

1. Army Regulations India, Volume 2 Discipline.
2. Army Act.
3. An authorized work on Military Law.
4. House Owners and Tenants in Cantonments by Lincoln.

PART-VII

(For the libraries of District Magistrates only)

1. Law and Practice of Elections and Election Petitions by Pandit Nanak Chand.
 2. Election Cases India and Burma 1920-1935, by Hammound.
 3. Law relating to places of entertainment and amusement (K. Venkoba Rao).
 4. Law of Identification (M.K.A. Khan).
 5. Law of Homicide and Hurt in British India (Rust).
 6. Law of Confessions (Roy or M.K.A. Khan).
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CHAPTER — 19

CORRESPONDENCE

PART A — GENERAL DIRECTIONS

1. Correspondents with High Court.—All communications to and correspondence with the High Court should be in English, and should be addressed to the *Registrar of the Lahore High Court, Lahore*.

2. Correspondence with High Court.—The orders contained in Punjab Government Consolidated Circular No. 5 regarding the routine and procedure to be observed in the submission of correspondence, should be carefully observed by all officers of Judicial Department. The directions relating to correspondence with the Punjab Civil Secretariat are to be followed, *mutatis mutandis*, in corresponding with the High Court. Judicial Officers are not allowed to correspond direct with the Judges on matters affecting leave, transfer, etc., or other such official questions.

3. Letters.—(a) Every letter should have at the commencement its number, the name (when possible) as well as the office of both the writer and the officer addressed, and the place from which it is written, and its date. This rule applies as well to copies as to original documents.

(b) Every letter should refer to the last preceding letter, if any, on the subject and also give, either as a heading or on the margin, a brief description of the subject; the subject in respect of a judicial case pertaining to the Court which is being addressed, will be the title of the case (i.e., the class, number and year of the case and the parties' names). This will also be done when reminders are issued to facilitate the quick tracing of cases.

4. Margins, size and filing.—Correspondence should ordinarily be conducted on the 3/4 margin system. The docket size should ordinarily be used. For the filing of correspondence the *flat file* system will be found to be the most convenient (the size of a half-sheet of footscap).

5. Loss or damage.—A report should be made to the High Court through the District and Sessions Judge whenever any judicial record or file or correspondence is found to have been seriously demanded, tampered with, destroyed, lost or mislaid. Every effort should be made to replace missing or damaged papers from all available sources.

6. Challan.—(i) When several papers or records are transmitted under one cover, a list or invoice (*challan*) in duplicate, should accompany the parcel. In the case of judicial records each of which has an index to the papers contained in it, the files only need be entered in the *challan* but in this *challan* the No. and date of the requisition and the class and No. of the case to the Court by which each record is requisitioned, must be given for the convenience of that Court which may not otherwise know the purpose for which the records have been transmitted.

(ii) **Verification of challan.**—The receiving officer should, on receipt, verify the list or invoice with the papers received, and return on copy thereof after entering the date of receipt thereon and signing it. If any paper or record entered in the list of invoice has not come to hand, the fact should be noted on each copy of the list or invoice and the dispatching office informed of the fact by letter also, as soon as possible.

(iii) **Checking of judicial records received with challan.**—In the case of judicial records the receiving officer will, after despatching a copy of the list or invoice, subject each record to examination to order to satisfy himself that the papers thereon correspond with those entered in the index; that the papers are not in a seriously damaged state; and that the Court-fees are complete and in good condition. If any document or Court-fee is missing or damaged, or appears to have been tampered with, intimation of the fact should be sent, as soon as possible, to the office of dispatch. Unless objection is taken within one week of receipt, responsibility will ordinarily be taken to have been transferred to the receiving office. [See also Chapter 16, "Records," Part B, regarding the transmission of Judicial Records.]

7. Destruction of Correspondence.—The destruction of judicial records is governed by

the rules in that behalf contained in Chapter 16 “Records”, Part F. As regards ordinary official correspondence, routine, and ephemeral correspondence may be destroyed after one year, under the supervision of the head of the office, a note in red ink (under the signature of the head of the office) being made of the fact in the column of remarks of the register.

8. High Court Circulars and correction slips to Rules and Orders.—All High Court Circulars should be placed, as received, on a file. All correction slips relating to the Rules and Orders should be duly noted and the Volumes kept up-to-date.

9. Correspondence with Indian States and places abroad.—Special directions regarding judicial communications intended for Indian States abroad will be found in High Court Rules and Orders, Volume 1, Chapter 10, Volume III, Chapter 9-C, and Vol. IV, Chapters 7-F, 8-C, and 15.

10. Precepts of High Court.—Further instructions regarding compliance with the precepts of the High Court will be found in Chapter 20.

11. Other references.—Instructions regarding the submission of building references will be found in Chapter 22, “Judicial Buildings”, and with regard to submission of the annual budget in Chapter 21, ‘Budget’. Attention is also drawn to Chapter 8-C, paragraphs 7 and 8, Chapter 7-C, paragraph 4 and Chapter 7-E, paragraph 8 on the subject of correspondence.

12. All letters received from mercantile bodies, firms, private individuals, etc., not under Government, should be replied to unless they are in reply to communications from the Court or office itself and call for no further action. If there is likely to be any delay in disposing of such letters, an *ad interim* acknowledgement should be sent as soon as possible. The acknowledgement should ordinarily issue in the form below.

I am directed/have the honour to acknowledge the receipt of your letter
No. _____ dated the _____

A reply will follow.

(Punjab Government Letter No. 3937-P.G.P. 41/58974, dated 12th November, 1941).

PART B – VERNACULAR CORRESPONDENCE CONNECTED WITH JUDICIAL MATTERS

1. When correspondence in vernacular advisable.—The rule regarding correspondence being ordinarily conducted in English is not intended to require the use of the English language when the vernacular language is obviously the most expeditious and convenient vehicle of communication.

2. When correspondence in vernacular advisable.—For instance, if a Judicial Officer requires further information on some subject from an Pakistan subordinate of an adjoining district, he should so word and engross his enquiry in the Vernacular that the same sheet of paper which he sends may be forwarded to such subordinate, through the agency of, but without troubling, the Deputy Commissioner of District Judge of that District; and be returned, in the same way, with the information endorsed on it, but leaving no trace of itself but the receipt in the latter despatch book.

3. Correspondence regarding arrest and transmission of offenders.—Similarly, whenever offenders have to be arrested or transmitted, a vernacular paper is the most convenient medium, so that there may be no mistake in the name and residence of the party but the same paper which is sent will be received back with the proper endorsement.

4. Public notices and proclamations.—In like manner, when offenders have to be proclaimed or public notice given of any fact, the proclamations for notices should be prayed by the officer who has occasion for them in the jail press or elsewhere; he should use a proper selection in determining the places where the notices are to be published, and will then forward them by a vernacular docket to District Officers, Officers -in charge of Sub-Divisions or Tehsildars, as the case may be, taking care not to entail on the office receiving the notice any more

trouble than is involved in executing the order, and in endorsing the fact on the docket, and returning it.

5. English figures.—English figures alone shall be used in all official papers prepared and registers maintained in the Judicial Department, except in the case of vernacular summonses of notices, or in the vernacular judgments of judicial Officers, or in vernacular translations of English judgments.

6. Judicial orders and processes: Signatures and addresses of the officers.—Judicial Officers are reminded that, as a rule, every order passed by them, and every process issued from their Courts under their signatures, should be signed *in full, with the name of their office, or the capacity in which they act, whether as Judge, Magistrate, Deputy Commissioner, etc.* The practice adopted by many officers of endorsing important orders and issuing *robkars* with only the initial letters of their names and three often illegible, causes much inconvenience and it should be avoided.

7. Vernacular correspondence between officers of different ranks.—Vernacular correspondence between an officer of superior rank and an officer of lower rank shall be conducted by *par vana* on the part of the former and by *arzi* on that of the latter, but the latter should be addressed as *a* and not as *turn*. A Tehsildar or other officer of superior rank, corresponding with an officer of equal rank with himself, will make use of the *robkari* form.

PART C — THE USE OF RUBBER STAMPS FOR SIGNATURES IN OFFICIAL CORRESPONDENCE

1. Rubber stamps for signatures not allowed.—The Honourable Judges have observed the use by a certain District and Sessions Judge of a rubber stamp in place of signature in correspondence addressed to this office.

2. Rubber stamps for signatures not allowed.—The procedure in official correspondence, even in matters of a routine nature, is objectionable for obvious reasons. Full signatures should always be affixed by the forwarding officer to all correspondence addressed to this Court.

3. When letters may be signed by an official.—Should it not be possible for the forwarding officer to sign all letters, they should be signed for him by some responsible official.

CHAPTER — 20

COMPLIANCE WITH THE HIGH COURT PRECEPTS

All precepts issuing from the High Court are in English.

1. **Language of precept.**—The process of order enclosed within the precept for service or compliance is, in cases in which the parties are Pakistanis issued in the Vernacular.

2. **Language of endorsement of return.**—If in any case it is found inconvenience to make the endorsement of return of a precept in English, there is no objection to its being made in the Vernacular. In most cases, however, no difficulty should be found in making the return to the precept in English. The endorsement on the process or order of service or compliance (as the case may be) may be made in Vernacular.

3. **Precept to be treated urgent.**—Extreme inconvenience is caused by the failure on the part of lower Courts to attend promptly to High Court precepts, and orders should be issued to prevent such precepts from being lost sight of or treated in a leisurely or routine fashion. In criminal cases precepts are invariably *urgent* matters.

4. **Papers sent to be entered in Despatch Register.**—A Despatch Register should be maintained in each subordinate Court, showing records and other papers dispatched (on requisition) to the High Court. The number and year of the case noted in the precept of the Court should be entered in the Register, and the number in the Register should be noted on the reverse of the precept, with the date of dispatch of the records.

5. **Despatch of connected records.**—It occasionally happens that in transmitting records all connected records are not submitted. In order to ensure the dispatch of all the necessary records and papers, the Reader of every original Court should be required to attach a list of connected records to each original record, this list being initialed by the Reader. When a case is called for, the Record-keeper will then be able to decide at once what records it is necessary to dispatch. The Record-keeper should be held responsible that no record of a decided case is received in his office without the list of connected records being attached, and that when a case is called for by an Appellate Court all such records are despatched.

6. **Checking of records received from High Court.**—Intimation should be given direct to the Registrar, within one month of the receipt of records returned from the High Court, if, in any record, any papers, stamps or Court-fees are found to be missing, damaged or incomplete, otherwise than as noted on the “State of Record Sheet” transmitted with the records. Unless such intimation is given in due time the office of the High Court will not be held responsible.

7. **Transmission of records of High Court.**—In transmitting records to the High Court, the instructions regarding the preparation of an index and the transmission of records should be carefully complied with, and the list of the records should be submitted in duplicate. An indication must be given in the list of the No. and date of the requisition and of the class and No. of the case in the High Court and which the records are transmitted. On receipt of the records in the High Court the Superintendent of the Judicial Branch will fill in columns 10 and 11, and return the duplicate copy of the office of the dispatch. When the records are returned by the High Court, the receiving office will fill in columns 15 and 14 in the original list, and will return it for record as an acknowledgment.

8. **Packing of records sent.**—Records dispatched to the High Court should be packed in an inner cover of paper tied across with tape and secured in an outer cover of course cloth. During the rainy season wax-cloth should, if possible, be used for the outer covering. All parcels should be securely closed and sealed.

9. **Despatch of connected records.**—Before records are dispatched in civil or criminal cases they should be carefully examined the *challan*, and all the records of connected cases to which reference is made in the judgments of the Original Appellate Courts should also be sent up, as well as any special records and papers called for. In criminal cases care should be taken to see

that the Police reports (first and intermediate) accompany the records.

10. Extract from Settlement records to be sent.—Where an extract from the settlement records is not with the records it should be prepared and put up before, dispatch.

11. Requisition for records should be promptly complied with.—Requisitions for records must be complied with within a week of the receipt of the precept or docket calling for them, except where compliance is desired by return of post. If there is likely to be delay in forwarding a record, or a record is still required by a lower Court, the fact should be intimated at once and the probable date of dispatch of the record given.

12. High Court notices to be promptly served.—Notices issued by the High Court in civil and criminal cases should be served and returned with promptitude.

CHAPTER - 21

BUDGET

PART A - GENERAL

1. Introductory.—The Punjab Budget Manual contains detailed instructions in regard to all matters concerning the preparation of budget estimates. This manual should be consulted whenever any question regarding the budget arises. The instructions given below are intended only for a brief summary of the principal points to be borne in mind by judicial officers in dealing with expenditure.

2. Sanction and budget provision necessary for expenditure.—The mere fact that budget provision exists is no authority for incurring expenditure. Sanction of competent authority must in all cases be obtained before any expenditure is incurred; and the sanctioning authority must ascertain whether budget provision exists before according sanction.

3. Heads of departments, controlling and disbursing authorities.—For the purposes of these rules the Head of the Department, Controlling Officer, and Disbursing Officer for each major or minor head of accounts concerning the Judicial Department shall be the authority named in the following statement:--

Major Heads including group heads thereunder	Minor heads including sub-heads there-under	Disbursing Officer	Controlling officer	Head of Department
27-Adminis- tration of Justice	A-High Court	Registrar, High Court	Registrar, High Court	Chief justice of the High Court
	E-Civil and Session Courts			
	(1) District and Session Judges	District and Session Judges	District and Sessions Judges	Chief Justice of the High Court
	(2) Subordinate Judges	Senior Subordinate Judges	District and Sessions Judges	Chief Justice of the High Court
	(3) Process-serving Establishment – District and Sessions Judges’ Courts.	District and Sessions Judges	District and Sessions Judge	Chief Justice of the High Court
	(4) process-serving establishment – sub-Judges’ Courts	Senior Subordinate judges	District and Session judges	Chief justice of the High Court
	(5) Circuit and Sessions Houses.	District and Sessions Judges	District and Sessions Judges	Chief justice of the High Court
	F-Courts of Small Causes	Judges of Small Cause	District and Sessions Judges	Chief Justice of the High Court
	G-Criminal Courts	Deputy Commissioners	District and Sessions Judges	Chief Justice of the High Court.

4. Responsibility for the preparation of the statements of estimated revenue and expenditure, as well as for applications for supplementary grants, or demands for excess grants lies with the controlling and disbursing officers shown above.

PART B — PREPARATION OF BUDGET ESTIMATES AND SCHEDULES OF NEW EXPENDITURE

1. Estimates.—All demands for supply in the ensuing year must be entered in one of the following estimates:--

- (1) Estimates of ordinary charges.
- (2) Schedule of New Expenditure.
- (3) Supplementary Schedule of New Expenditure.
- (4) List of Major and Minor Works.

The list of Major and Minor Works is dealt with in Chapter 22-A.

2. Budget Forms.—Budget forms are supplied direct to District and Sessions Judges and Deputy Commissioners by the Finance Department. On their receipt, these officers should take immediate steps to collect the necessary material for compilation of the estimates. If forms are not received in time, copies should be typed from the specimens in the Budget Manual.

3. Date of submission of estimates.—The date for submission of the estimates are printed at the top of the budget forms, and are also given in Appendix D of the Budget Manual. Controlling and disbursing officers are responsible for seeing that estimates are submitted punctually on the date fixed.

4. Classification of items of the estimate.—There is room for considerable misconception in the matter of distinguishing items which should appear in the estimates of ordinary expenditure and in the Schedule of New Expenditure, and particular care is necessary in this respect. The principle which should guide officers in deciding whether expenditure of a particular kind is to be included in the estimates of ordinary expenditure or in the Schedule of New Expenditure is laid down in detail in paragraphs 5.1, 5.4, 7.1 of the Budget Manual. The Schedule should be drawn up in Form B.M. 16.

5. Estimates of ordinary expenditure.—Particular attention is drawn to the following points in connection with the estimates of ordinary expenditure:--

Pay of Officers and Establishment

- (i) Provision should be made with reference to the pay done on April 1 and increment which may be due during the year.
- (ii) The estimate should be supported by a nominal roll, prepared separately for Gazetted and non-gazetted officers, showing the pay to be drawn by each officer during the year for which the estimate is made.
- (iii) The number of posts should be carefully checked. Any variations in the number of posts or pay should be explained, a reference being given to the orders of Government, if any.
- (iv) Permanent and temporary establishment should be shown separately.
- (v) Special care should be taken to show voted and charged expenditure separately.

Miscellaneous expenditure

- (vi) All variations must be clearly explained in a separate note.
- (vii) For fluctuating expenditure, the modified grant and last year's actuals should be taken as a guide, regard being had to any extraordinary expenditure had or anticipated.
- (viii) No chance may be made in the contract contingent grants without the previous sanction of Government.

- (ix) With the estimates or ordinary expenditure estimates should be submitted for:--
 - (a) Rewards for examinations in Oriental languages.
 - (b) Official publications, the cost of which is adjusted on the books of the Accountant-General, and not paid in cash.

These estimates should be submitted in accordance with paragraphs 5.18 and 5.14 of the Budget Manual.

- (x) Under the head “Other Contingencies” provision should be made for the cost of:--
 - (a) Survey maps.
 - (b) Bicycles.
 - (c) Law books (including official publications) paid for in cash.

6. Schedule of New Expenditure.—For any item which it is proposed to include in the Schedule of New Expenditure, Administrative approval must be obtained in good time before the Schedule is submitted.

Any item not supported by administrative approval (which should be clearly quoted) will be automatically cut out.

7. Other estimates.—In addition to the estimates mentioned in paragraph 5 above, the following statements are also required:--

- (1) Forecast of stores likely to be purchased through the High Court Commissioner in England.
- (2) Estimates of leave and deputation allowances to be drawn from the Home Treasury.
- (3) Stationary to be purchased from the Provincial Stationary Office, Punjab, Lahore.
- (4) Estimates of advances payable to Government servants, *e.g.*, Home building, Conveyance and Purchase of typewriters.
- (5) Estimates of superannuation allowances, pensions, and commuted value of pensions.

Provision should be made for all articles of Stationary which are obtainable from Lahore, so as to reduce local purchases of such articles to a minimum. Local purchases, due to a failure to make proper budget provision are frequently brought to light during audit.

8. Instructions should be strictly followed.—Although the personal attention of District and Sessions Judges has been drawn to the necessity of complying with these instructions the Judges regret to notice that the estimates received continue to exhibit the same defects as before. The only conclusion to be drawn is that little or no trouble is taken to read and understand these instructions.

9. Importance of punctual submission of correct estimates.—Owing to the submission of estimates to the Legislative Assembly on a fixed date, a great burden is thrown upon the Finance Department of the Provincial Government in collecting and co-ordinating estimates received from all departments throughout the province within a time which is comparatively short for the work involved. The late submission of a single return relating to one head delays consideration of all the other returns which may have been received in time. Incorrect classification makes submission of the estimates in the form required by Assembly impossible; and when errors cannot be corrected at headquarters, the result is a final estimate which may lead to a reduced allotment of funds.

10. Common errors.—The Honourable Judges trust that District and Sessions Judges will bear these considerations in mind, and after making a note of the dates on which the various estimates are due, they will themselves personally insist on the preparation of estimates by their

office before these dates. Among errors which are most frequently noticed are the failure to distinguish between voted and charged expenditure, the failure to submit the names and designations of officers, and the lack of explanations for variations in expenditure proposed compared with the modified grants for previous years. These are the principal omissions, but there are many others of the same kind which occur. Punishment has already been awarded to Clerks of Courts and other ministerial officers responsible for delays, errors and omissions. It is, however, necessary to repeat that disciplinary action will again be taken if serious irregularities continue to occur.

PART C – APPROPRIATIONS AND RE-APPROPRIATIONS

1. Primary units of appropriation.—When a grant has been voted by the Legislative Assembly, the amount voted, together with any sum assigned to the same major head and heads of account which does not require the vote of the Assembly, is communicated to the High Court by the Finance Department in the shape of lump sum allotted under minor and sub-heads of account distributed under one or more of the following heads:---

Primary Units of Appropriation

1. Pay of Officers.
2. Pay of Establishments.
3. Travelling allowances.
4. Other allowances and honoraria.
5. Contingencies.
6. Grants-in-aid, Contributions and Donations.
7. Works.
8. Assignments and compensations.
9. Establishment charges paid to other Governments, Departments etc.
10. Reserve.
11. Suspense.

2. Appropriation of the supply.—Out of the supply allotted in each primary unit of appropriation, the High Court, and any officer to whom it has distributed supply, has full power to appropriate sums to meet expenditure falling under that unit, provided that:--

- (a) supply provided for charged items of expenditure must not be appropriated to votable items, and without the previous consent of the Finance Department, supply provided for voted items must not be appropriated to charged items;
- (b) supply must not be appropriated to any item of expenditure which has not been sanctioned by an authority competent to sanction it;
- (c) supply shall be appropriated only to objects for which the grant is sanctioned;
- (d) no expenditure shall be incurred without previous approval of competent authority on objects the demands for which have been specifically refused or the provision for which has been specifically reduced either by the legislature or by the Government;
- (e) supply shall not be appropriated towards expenditure which should be met from a contract contingent beyond the amount specified in the grant.

3. Re-appropriation.—No re-appropriation can be sanctioned by Controlling or

Disbursing Officers, except from one secondary unit to another secondary unit subordinate to the same primary unit.

4. Re-appropriation.—Other re-appropriations require the sanction of the High Court, and are subject to the same rules as those set out in paragraph 2 above.

5. Application for additional appropriation.—Applications for additional appropriations shall be prepared in Form B.M. 33 and shall set forth the particular primary unit of appropriation, the provision for which has been exceeded or is likely to be exceeded.

6. Reasons.—The reasons for the insufficiency of the appropriation and remarks regarding re-appropriations should be given in the form by the Disbursing Officer, and also, if necessary, by the Controlling Officer, and the Head of the Department. No separate re-appropriation statement or covering letter is required.

7. Additional appropriation already sanctioned should be mentioned.—If the amount shown in column 2 includes any additional appropriation already sanctioned during the year, the number and date of the order sanctioning it should be quoted.

8. Submission of the application.—The application will be numbered and dated by the Disbursing Officer, and subject to paragraph 11 below, forwarded through the Controlling Officer to the High Court.

9. Duty of forwarding authority.—The officer forwarding the application should endeavour to suggest a source of re-appropriation; and if he is competent to sanction it himself he should do so, instead of forwarding the application.

10. Prompt submission of the application.—All applications for additional appropriations must be submitted by the Disbursing Officer as soon as the necessity can be foreseen and should not be postponed.

11. Additions to contract contingent grants.—In the case of applications for additions to contract contingent grants for the current year only, the Disbursing Officer should report the savings, if any, from his grant for the previous financial year.

PART D — CONTROL AND DISTRIBUTION OF GRANTS

1. Communication of grant to the High Court.—As soon as the Legislative Assembly has voted a grant, the Finance Department communicates to the High Court the amount so voted, together with any sum assigned to the same major head or heads of accounts which does not require the vote of the Assembly. The amounts are communicated in the shape of lump sums allotted under minor and sub-heads of account and distributed over such of the prescribed primary units of appropriation as may be necessary. Such grants are communicated not later than the 15th April in each year.

2. Grants for pay of officers and establishment.—Grants under the primary units of appropriation “Pay of Officers” and “Pay of Establishment” which represents the cost of permanently sanctioned posts borne on Provincial Scales, are regarded as supply distributed by the Finance Department, and are not distributed.

3. Distribution by High Court.—The High Court, out of the supply allotted to it, distributes among the Controlling and Disbursing Officers concerned in such manner as may appear suitable:—

- (a) any portion of the grants for the primary unit “Travelling Allowance”.
- (b) any portion of the grant under the primary unit “Contingencies” other than sanctioned contract grants.
- (c) any portion of the grant under the primary units “Other Allowances and Honoraria”,

Works “Works”, “Contributions”, “Suspense” or “Reserves” as is not excluded from distribution. (See paragraphs 10.5 and 10.6 of the Punjab Budget Manual).

4. **Reserve.**—The High Court may in carrying out such distribution retain a portion of the grant as a reserve in its own hands. The distribution is carried out not later than the 15th May in each year.

5. **General control of High Court.**—The High Court exercises general control over the actual expenditure incurred against grants communicated to Controlling and Disbursing Officers. Article 55 of the Audit Code lays down that the authority administering a grant and not the Audit Department is ultimately responsible for keeping expenditure within the grant. For this purpose monthly statements are prepared and forwarded to the Accountant-General for reconciliation. Both the Head of the Department and the Accountant-General are responsible for reconciling differences and correcting misclassifications.

The High Court may issue such instructions to the Controlling and Disbursing Officers in this matter as may appear necessary for carrying out the duty of control.

Should the grant under any minor and appear likely to be exceeded, the High Court will arrange for the excess being provided by a re-appropriation or, if necessary, for the submission of a supplementary demand.

6. **Duty of controlling officer to prevent expenditure beyond grant.**—The controlling Officer is primarily responsible for watching the progress of expenditure against grants allotted to him under each primary unit of appreciation concerned and for taking necessary steps to prevent expenditure in excess of grant:--

- (a) by transfer from one Disbursing Officer to another under the powers of appropriation within the primary unit of appropriation.
- (b) by exercise of his delegated powers of re-appropriation.
- (c) by application for an excess grant under the prescribed rules as soon as the necessity arises for this course.

The Accountant-General will on request supply him with the same information as to progress of actual as is given to the High Court, and he may call for returns from Disbursing Officer.

7. **Duty of Disbursing Officer.**—The Disbursing Officer is the officer directly responsible for the expenditure incurred against the grant allotted to him under each primary unit of appropriation. He shall keep a close watch over the progress of expenditure, and in no case should he allow the appropriation for any unit to be exceeded without obtaining the approval of competent authority. He shall pay prompt attention to any warnings received from the Accountant-General and arrange to submit an application for an additional appropriation as soon as the necessity arises.

8. **Money to be spent only on the objects for which sanctioned.**—The Disbursing Officer is required to utilize the appropriations placed in his disposal only towards expenditure on the objects for which the grants are sanctioned and, in particular, no expenditure should be incurred without previous approval of competent authority on objects the demands for which have been specifically refused either by the legislature or by the Provincial Government.

9. **Duty of Audit Officer.**—The duty of the audit officer is to keep a close watch over orders of appropriation and re-appropriation and to pay attention to the progress of expenditure against (1) the grant as a whole, (2) the appropriations for primary units. The Accountant-General will report to the head of the Department any excesses likely over the grant as a whole.

CHAPTER – 22

JUDICIAL BUILDINGS

PART A – SUBMISSION OF PROPOSALS AND ESTIMATES

1. What are judicial buildings.—These instructions relate to buildings which are purely judicial, and not judicial and General Administration jointly. The latter (*e.g.*, the district Kutchery) are dealt with under the orders of the Financial Commissioners under paragraph 20.13 of the Book of Financial Powers. All buildings of which the Deputy Commissioner is in charge are “General Administration” buildings. Purely “Judicial” buildings include District and Sessions Judges’ Courts, Sessions Houses, Court of Small Causes and Subordinate Judges’ Courts and all subsidiary buildings attached to them – *vide* serial No. 6 of paragraph 20.13 of the Book of Financial Powers. Buildings which are both Judicial and General Administration, that is, buildings, which are used for both purposes and are not exclusively applied to judicial purposes (*e.g.*, Sub-Judge’s Court located in a Tehsil building), and buildings subsidiary to them will or purposes of additions and alterations, be dealt with by the department requiring the larger amount of accommodation, *viz.*, the High Court, through the District and Sessions Judge, or the Financial Commissioners through the Deputy Commissioner, as the case may be.

2. Bar Rooms and Waiting rooms.—As regards Bar Rooms, that is, accommodation specially provided by the Provincial Government for the convenience of Legal Practitioners, the Punjab Government have decided that Bar Rooms, which are detached buildings, even though they may be situated in the compounds of a Tehsil or a Commissioner’s office, etc., shall be classified as Judicial buildings under the control and management of the High Court. A Bar Room which forms part of another building shall be classified in accordance with the classification of that building. Bar Rooms at the headquarters of districts and at outlying stations where there are more Courts than one will be of two classes according to standard plans which have been approved by the Punjab Government and are kept by the Public Works Department, *viz.*, class A for stations where there are more than fifty lawyers, and class B where there are fifty or less. It is intended that Bar Rooms of this description should be situated in a central position within reasonable distance and roughly equidistant from the civil, criminal and revenue Courts. When the Sessions Court is at some distance from the main Kutchery, a separate waiting room and bath room should be provided in the former, and similarly, in the rare cases where any one subordinate Court or block of Courts is far distant from the remainder similar provision should be made. These waiting rooms will be under the entire control concerned and will ordinarily be open to respectable litigants as well as to members of the Bar. *It should be understood that Bar Rooms and Waiting Rooms so provided will be open only to the members of the recognized local bar associations.*

3. References.—Local officers will be guided by Chapters II and III of the Public Department Code (1st edition), and Chapter 8 and Appendix B of the Punjab Budget Manual in the matter of all definitions and proposals relating to works.

4. Procedure to be adopted whenever a work is to be proposed.—Whenever the necessity for a work other than a petty work, becomes apparent the District and Sessions Judge, before calling upon the Public Works Department to prepare rough plans and estimates for any work, should first of all obtain the consent of the High Court to taking up the scheme. If the Judges are of the opinion that the scheme for any reason is not likely to mature in the near future, they will veto it at this stage. Consent to proceed having been obtained, the next move of the local officer should be to prepare, in tabular form, a statement of accommodation required, and to convey, in a brief note, any remarks he may wish to make about special features and design, and whether cheapness, appearance or finish is a primary consideration. The requirements should be formulated as concisely as possible, *e.g.*, so many rooms for accommodating so many officers of a certain standing or records of a certain quantity or other details which the Public Works Department might require to know; but all details which might unnecessarily tie the hands of the Public Works Department should be excluded, *e.g.*, if it is stated that a room for two junior clerks is among the requirements, it need not be stated what its area or dimensions should be. At this stage the Executive Engineer or the Superintending Engineer should be consulted personally and

orally by the local officer himself if the latter has any difficulty in framing his list of requirements, but the system of deputing a subordinate to consult a Public Works Department subordinate should be rigorously avoided. The local officer should then submit his list of requirements to the Executive Engineer according to paragraph 2.10 of the Public Works Department Code; a rough estimate and pencil plan (unless a standard plan exists) will then be prepared by the Public Works Department after which the District and Sessions Judge will take steps to obtain the necessary administrative approval.

5. Submission of proposal to obtain High Court's sanction.—In applying to the High Court for administrative approval, the District and Sessions Judge will see that all proposals for new buildings, etc., are not submitted in a form which fails to explain clearly either the nature of the proposals or the reasons for making them. All proposals should, therefore, be submitted with a self-contained letter describing the nature and extent of the requirement with such plans and maps as may be required to understand them. The High Court should not be left to extricate the details from the plans and estimates supplied by the Public Works Department. When proposals are submitted relating to different Courts, these should be dealt with in separate letters whenever this can be conveniently done. It is sometimes necessary to refer to a scheme relating to several Courts as a whole, but the aim should be to keep works relating to different Courts distinct, and it should be borne in mind that when several proposals are submitted together each of them is likely to be delayed by this course.

6. Limits of High Court's power to sanction.—Certain powers to accord administrative approval have been delegated to the Judges of the High Court, viz.:--

- (a) works relating to judicial buildings other than residential buildings to the extent of Rs. 10,000/- (that is, Minor Works), - *vide* serial No. 6 of paragraph 20.13 of the Book of Financial powers;
- (b) estimates of capital expenditure on the construction or purchase of residences for Government servants of the Judicial Department to the extent of Rs. 2,000, —*vide* serial No. 23 of paragraph 2.13 of the Book of Financial Powers.

Power to accord administrative approval in excess of the limits mentioned in (a) and (b) above vests with the Provincial Government. Works under (a) above in excess of Rs. 10,000 are termed "Major Works" and those upto that limit "Minor Works".

In the case of alterations of *existing* residential buildings, the power to accord administrative approval vests with:--

- (1) The Superintending Engineer in the Public Works Department circle concerned upto a limit of Rs. 200;
- (2) The Chief Engineer, Public Works Department, up to a limit of Rs. 2,000; and
- (3) the Provincial Government beyond Rs. 2,000.

vide paragraph 20.13 of the Book of Financial Powers.

7. Date of submission of project.—Lists of Major Works and of Minor Works for the whole of the Judicial Department are prepared annually in the High Court Officer and forwarded to the Provincial Government in the Administrative Department not later than the 1st September in each year. No work can be included in the list of Major Works unless it has first received the administrative approval of the competent authority and such approval is operative within the meaning of paragraph 18.16 of the Book of Financial Powers. The rules regulating the preparation and submission of these lists are laid down in Chapter 8 of the Punjab Budget Manual.

A project for which funds are required in the following year must be forwarded to the High Court in time for administrative approval to be obtained before the beginning of September. As the preceding months are usually occupied by the High Court vacation, it is advisable to forward the completed project for the orders of the Judges at least two or three weeks before the

vacation begins. Unless this is done, it will not ordinarily be possible to provide funds during the following years unless (a) the work is a petty one the cost of which can be met from the reserve at the disposal of the Judges for Minor Works or (b) it is of sufficient urgency to justify a demand for a supplementary grant.

8. Allotment of funds for works.—Funds for Major Works when voted by the Legislative Assembly are allotted by the Provincial Government to the Public Works Department and that department then begins execution in respect of such works for which funds are assigned. In the case of Minor Works, however, funds are placed at the disposal of the High Court under the head “50 - Civil Works (Transferred) Voted - Original Works Buildings - (G) Administration of Justice”, and the Judges then proceed to sheet the works for execution during the year, due regard being paid to the relative urgency of projects and to the amount of funds available.

9. Intimation of administrative approval to P.W.D.—Intimation of all administrative approvals to Minor Works will be give by the High Court, where the High Court accords such approval, to the Superintending Engineer of the Public Works Department circle concerned to whom also the plans and estimates will be forwarded for disposal under the rules of that department. Funds will either be allotted simultaneously or at a subsequent date when they are available. Such intimations will also be communicated to the District and Sessions Judge concerned.

10. Registers of works approved.—In the High Court registers will be maintained of (a) Major Works and (b) Minor Works in which all works will be entered as administrative approval is accorded and the entries therein will be completed as each event occurs. The registers will contain the following entries:--

(a) Major Works

- (1) Annual serial number.
- (2) High Court file number.
- (3) Name of Work.
- (4) Number and date of authority conveying administrative approval.
- (5) Amount of administrative approval.
- (6) Number and date of authority conveying technical sanction.
- (7) Amount of technical sanction with cost of “Original Works” and “Repairs” shown separately.
- (8) Remarks, viz., budget in which provision was suggested and provided, dates of commencement and completion of work, etc.

(b) Minor Works

- (1) Annual serial number.
- (2) High Court file number.
- (3) Name of work.
- (4) Number and date of authority conveying administrative approval.
- (5) Amount of administrative approval with cost of “Original Works” and “Repairs” shown separately.
- (6) Remarks, viz., amount of fund allotted and date thereof.

A third register in the prescribed form will be maintained for the purpose of keeping a running account of the allotment for Minor Works placed at the disposal of the Judges in each year.

PART B - SESSIONS HOUSES

1. The following instructions have been issued by the Judges with regard to control over Sessions Houses. (Letter No. 3863-G, dated the 5th June, 1928).

2. **Management.**—In accordance with Punjab Government Consolidated Circular No. 28, the management of Sessions Houses is vested in the Sessions Judges concerned. Funds are provided under the head “27—Administration of Justice—Civil and Sessions Courts---Circuit and Sessions Houses” for which they are both the disbursing and the controlling officers, — *vide* Appendix D in the Punjab Budget Manual, page 232.

3. **District Judges are disbursing officers.**—It has been brought to the notice of the Honourable Judges that in certain districts the allotment placed at the disposal of the Sessions Judges by this Court is, according to past practice, transferred to the Deputy Commissioners, who incur expenditure therefrom on their own responsibility. This is perhaps due to misapprehension of the revised rules. They are, therefore, pleased to direct that District and Sessions Judges should in future keep the allotment in their own hands, if they so desire.

4. **Use of Sessions Houses by other offences.**—It should be made clear to all concerned that, as laid down in the circular quoted, a Sessions House is primarily intended for the use of a Sessions Judge as a Session Court for trial of sessions cases, and that it can also be used by the Commissioner of the Division in which it is located, while on tour, without permission, provided that officer first ascertains that it is not required by the Sessions Judge for the trial of cases. This circular further directs that subject to the lien first of the Sessions Judge and then of the Commissioner, Sessions Houses can also be used as Rest Houses, but subject further to the other rules given in the circular.

5. **Use of Sessions Houses by other officers.**—Whenever a Commissioner requires the use of a Sessions House as his residence while on tour, the correct procedure would be for the Deputy Commissioner on his behalf or for the Commissioner direct to enquire whether cases have been fixed or not. In one instance a Sessions Judge was asked to postpone the cases, if fixed, as the Sessions House was required for the use of the Commissioner and in another case the same request was made as it was wanted by another high officer, the excuse advance for his being that Sessions Houses are shown in the list of Rest Houses and could, therefore, be used as such by Government officers entitled to the use of Rest Houses. This view of the case is wrong. A Sessions House can be used as a Rest House only if it is not first required by the Sessions Judge and then by the Commissioner of the Division.

PART B — ANNUAL DISTRICT CIVIL AND CRIMINAL REPORTS

1. **Statements to be prepared strictly according to instructions.**—The Annual Civil and Criminal Statements should be foot of the printed forms of each statement. To ensure this being done, reporting officers should each year, on receiving the blank forms, have each note carefully explained to the person whose duty it is to compile the statements, and again, before dispatching the statements, satisfy themselves that all instructions as to compilation have been properly observed.

2. **Reports accompanying statements.**—(i) The reports which accompany the statements should be as concise as it consistent with the omission of nothing that really requires notice or explanation, and should be written on half sheets of foolscap and on one side of the paper only. Half sheets, with printed headings, will be supplied from the High Court Office. Where the subject discussed requires more than one half sheet, other half sheets should be tacked on according to requirements. Where a subject calls for no remarks, the half sheet with the printed heading should still be inserted in its place, and en faced with the word ‘no remarks.’ The subject headings will ordinarily be as shown in the Annexure I to this part.

(ii) The Annual District Civil and Criminal Reports should be limited to 15 pages, and the Annual Reports of District and Sessions Judges on the work of their own Courts should be limited in the case of Civil Report to 5 pages and in the case of the Criminal Report to 6 pages; and the rest will be in marginal comments on the reports of District Magistrates.

3. Date of submission.—District Magistrates' Criminal statements and reports should be submitted to the Sessions Judge not later than the 1st February of each year, the office copies being despatched to the High Court at the same time. The Sessions statements should likewise be despatched to the High Court not later than the 15th February, and the Sessions Judges' report, with the fair copies of the District reports and statements, should follow not later than the 15th February.

4. Date of submission.—District Judges' Civil statements and reports for their own and Subordinate Courts should be submitted to the High Court not later than the 15th February of each year.

PART C - COURT FURNITURE

1. Scale.—The following scale has been prescribed by the Judges for furnishing of the Courts of Subordinate Judges:--

Court Room

1. One writing table for Presiding Officer.
2. One table for Counsel.
3. One chair for Presiding Officer.
4. Six office chairs for Counsel.
5. Two office chairs for dais.
6. Matting.
7. Chicks, according to requirements.
8. Durrie for dais.
9. Bench for litigants.

Bath Room

1. Wash-hand stand, with crockery, consisting of bowl, jug, soapdish and brush dish.
2. Commode.
3. Chamber utensil.

Retiring Room

1. One table with cloth.
2. Two ordinary chairs
3. One arm chair.
4. One book case.
5. A row of pegs.
6. One durrie.
7. A curtain on curtain (according to requirements).

2. **List of furniture for each year.**—A card must be placed on the wall of each Subordinate Judge's Court, showing the number of articles supplied for the room. Inspecting Officers must satisfy themselves that all articles are present at inspection; and in particular that chairs, tables and durries are not allowed to wander into office rooms, retiring rooms and residences.

3. **Renewal of furniture.**—The re-furnishing of Subordinate Judges' Courts will be done by District Judges out of their grants. The Presiding Officer of each Court is responsible for seeing that all furniture is maintained in good condition, and he will apply to the District Judge for renewal when required. If any article of furniture is broken or becomes useless, immediate steps must be taken to mend it or replace it, if necessary. When any article is replaced, the old article must be destroyed or sold. The storing of broken and useless chairs, etc., in godowns is absolutely forbidden.

CHAPTER — 23

REPORTS AND RETURNS

PART A — GENERAL

1. Different kinds of returns.—There are four main *classes* of returns relating to Judicial Work. These are:--

- (i) The statements attached to the Annual Civil and Criminal District Reports, which are combined into provincial statements for the purpose of making a yearly survey of the judicial administration.
- (ii) Periodical returns, usually monthly or quarterly, made to the High Court in order that the Judges may keep a check on the progress of judicial business.
- (iii) Periodical returns made by Subordinate Courts to the District and Sessions Judge or to the District Magistrate for the same purpose.
- (iv) Returns made to other departments, such as the Police, for their own uses.

2. References.—The purpose for which the returns are made should be clearly understood by the officers by whom they are prepared and to whom they are submitted. Annual reports and returns are dealt with in Part B of this chapter. Classes (ii) and (iii) are dealt with in Part C. Instructions regarding information to be supplied to the police will be found in Part D.

3. References.—Appendix I to this Chapter gives a list of the reports and returns which are to be submitted to the High Court, and the dates and which they are due. Appendix 11 gives a list of returns for which blank forms will be supplied by the High Court with indent.

PART B — ANNUAL DISTRICT CIVIL AND CRIMINAL REPORTS

1. Statements to be prepared strictly according to instructions.—The Annual Civil and Criminal Statements should be compiled with strict attention to the explanatory notes at the foot of the printed forms of each statement. To ensure this being done, reporting officers should each year, on receiving the blank forms, have each note carefully explained to the person whose duty it is to compile the statements, and again, before dispatching the statements, satisfy themselves that all instructions as to compilation have been properly observed.

2. Reports accompanying statements.—(i) The reports which accompany the statements should be as concise as is consistent with the omission of nothing that really requires notice or explanation, and should be written on half sheets of foolscap and on one side of the paper only. Half sheets, with printed headings, will be supplied from the High Court Office. Where the subject discussed requires more than one-half sheet, other half sheets should be tacked on according to requirements. Where a subject calls for no remarks, the half sheet with the printed headings should still be inserted in its place, and en faced with the words ‘no remarks.’ The subject headings will ordinarily be as shown in the Annexure I to this part.

(ii) The Annual District Civil and Criminal Reports should be limited to 15 pages, and the Annual Report of District and Sessions Judges on the work of their own Courts should be limited in the case of the Civil Report to 5 pages and in the case of the Criminal Report to 6 pages; and the rest will be in marginal comments on the reports of District Magistrates.

3. Date of submission.—District Magistrates’ Criminal statements and reports should be submitted to the Sessions Judge not later than the 1st February of each year, the office copies being despatched to the High Court at the same time. The Sessions statements should likewise be dispatched to the High Court not later than the 15th February, and the Sessions Judges’ report, with the fair copies of the District reports and statements, should follow not later than the 15th February.

4. Date of submission.—District Judges’ Civil statements and reports for their own end

for Subordinate Courts should be submitted to the High Court not later than the 15th February of each year.

5. Scope of statements.—The statements of Judicial business required annually from the Criminal and Civil Courts of the Punjab comprise:---

- (a) Statements prescribed by Government — whether Central or Provincial;
- (b) Statements prescribed by the High Court for submission by subordinate Court.

6. Provincial statements.—No special statements have been prescribed by the Provincial Government, but the Provincial Statements submitted by the High Court with the Annual Notes on Criminal and Civil Justice supply more detailed information under many heads than is required by the Central Government, and have been framed so as to supply all information required by the Provincial Government. Excluding sub-divisions of statements, there are six Criminal and eleven Civil (including five relating to Sikh Gurdwaras Tribunal, five to the other Civil Courts and one to Insolvency cases).

7. District Statements.—In order to obtain the information necessary for the Provincial Judicial Statements and the Annual Reports, statements are prescribed for submission by District and Sessions Courts. These are:--

10 Civil Judicial Statements.

6 Criminal Judicial Statements (Sessions Judge).

8 Criminal Judicial Statements (Courts subordinate to Sessions Judge).

8. Discrepancies between statements submitted by Police and District Magistrates.—As serious discrepancies often exist between the annual returns submitted by District Magistrates as to the state of crime in their districts, and the reports submitted by the local Police authorities, the attention of all District Magistrates is called to the following points, with a view to the prevention of such discrepancies in future:---

- (i) In the District returns, cases which have actually been pending since the previous year, and shown as cases reported during the current year.
- (ii) When a charge is made of one offence, but the accused person is actually convicted of another offence, care is not always taken to note the change, with the result that the returns of the Police and the District Magistrate are mutually inconsistent. Both should, of course, return it as a case of the offence for which the accused stood convicted.
- (iii) When the Police authorities send in cases for cancellation at the end of the year, just before the Annual District and Police returns are due, in sometimes occurs that District Magistrates continue to cancel cases after their own District reports have been dispatched. The result is that a case figures as *true* in the District reports and as *false* in the Police returns, which are delayed until every case sent up for cancellation has been received back from the District Magistrate. District Magistrates should either insist on all cases for cancellation being sent in to them in time to allow of the result being incorporated in the District returns, or should decline to continue to cancel cases after the dispatch of their own District report.

9. List.—A list of all the statements required will be found in Annexure II to this part. The Provincial Statements are compiled in the High Court.

10. Forms.—Forms of the statements will be found in Volume VI of the Rules and Orders of the High Court.

**ANNEXTURE I TO PART B
SUBJECT HEADINGS**

Number	Subject		Reference to Statements
	Printed Head	Points to be noticed	
A – ADMINISTRATION OF CIVIL JUSTICE			
	Original Suits		
1	Institutions	Increase or decrease of litigation	Statement IV (Part I)
2	Classification of suits	---	Statement II (Part I)
3	Value and cost of suits	---	Statement III
4	Details of disposal, duration and pending cases	---	Statements IV and VIII
5	Agency by which suits were disposed of	Distribution of civil business	Statement IV (Part I)
6	Miscellaneous cases		Statement II (Part II) and IV (Part II)
7	Execution of decrees		Statements VI and VII
8	Cancelled		
9	Working of Small Cause Courts		Statements II, III and IV
10	Appeals	(a) Institutions	Statement V
		(b) Details of disposal, during and pending files	
11	Procedure	All or any of the following points may be noticed.	Statement VIII
		(a) Issue of summons for final disposal	
		Time allowed for appearance of defendant.	
		(b) Cause Lists	
		(c) Adjournments, intimation to parties of time and place of hearing.	
		(d) commissions for local investigations or to examine accounts	
		(e) Recording evidence and preparation and delivery of judgment.	
		(f) any point or points of procedure not included in the above.	
	Miscellaneous		
12	Process Fee and Process-serving Establishment	Number of Civil, revenue and criminal processes issued. Receipts and expenditure as compared with previous years	Statement IX
13	Supervision of Civil		

Number	Subject		Reference to Statements
	Printed Head	Points to be noticed	
	Work of subordinate Courts		
14	Notice of Officers		
15	Any subject connected with the Administration of Civil Justice not included in the above.		
B – ADMINISTRATION OF CRIMINAL JUSTICE			
	Original Jurisdiction		
1	General review of offences committed and brought to trial.	Offences reported, struck off register upon application of the Police, and admitted and have occurred.	Statement II
		Variations in crime	
		Proportion of offences brought to trial to offences admitted to have occurred.	
2	Offences classified under the Penal Code	Under these heads (viz., 2 3 and 4) comment should be made, and, if possible, explanation given of the predominance, or the increase or decrease of any special offence, and of anything that appears unusual in the disposal of any special offence or class of offences.	Statement II
3	Offences classified – Local and special Laws		
4	Offences classified – miscellaneous proceedings under the Criminal Procedure Code.		Statements III and VIII
5	General result of inquiries and trials	Cases and persons of disposal and disposed of, with details of disposal cases pending and duration cases.	Statement IV (Part I)
6	Agency by which Criminal work was disposed of		Statement IV (Part I)
7	Special jurisdiction	Trials under Section 30, Criminal Procedure Code	Statement VIII
		Summary Trials	Statement IV (Part I)
		Jurisdiction over European British subjects.	
8	Trials under Frontier Regulations		

Number	Subject		Reference to Statements
	Printed Head	Points to be noticed	
9	Witnesses	Number	Statement IV, column 37
		Detention	
		Diaries	
		Payment of expenses to witnesses	
		Service of summons by means of Process-serving Establishment and Police	
10	Punishments	<i>Imprisonment – Rigorous and simple</i>	Statement V (Para 1)
		Solitary confinement	
		Forfeiture of property	
		Whipping	
		<i>Fine</i> – amount awarded and realized	
11	<i>Appeals</i>	Number of appeals	Statement VI
		Proportion of appeals to appealable convictions	
		Distribution of appellate business	
Details of disposal			
		Pending files and duration of appeals	
12	<i>Procedure</i>	Examination of complainant and preliminary investigation by Police (Sections 200 and 202, Criminal Procedure Code).	
		Recording of evidence and of examinations and confessions of accused persons	
		Habitual offenders and offenders previously convicted	
		Sections 348 and 349, Criminal Procedure Code	
		Section 75, Penal Code	
		Proof of previous convictions, Sections 221 and 511, Criminal Procedure Code.	
		Any other points calling for notice.	
13	<i>General</i>	Supervision of subordinate Courts:-- by means of appeals by inspection of files and registers	
		Cases referred for revision or criticized.	
14	Notice of Officers		
15	Any other subject	Here insert any subject that is not	

Number	Subject		Reference to Statements
	Printed Head	Points to be noticed	
	connected with the Administration of Criminal Justice	directly connected with any subject contained in the first twelve heads, and yet is connected with the Administration of Criminal Justice	

ANNEXURE II
LIST OF ANNUAL STATEMENTS

Number	Brief Description of contents
	A – PROVINCIAL STATEMENTS
	(a) <i>Civil</i>
I. Part I	Showing the number of Judicial Divisions and number of officers exercising appellate or original jurisdiction in the Punjab on 31st December 19_____.
I. Part II	Showing the number of cases decided in the Courts of the Punjab for the year 19_____.
II	Showing the number and description of civil suits instituted in the civil Courts of Punjab during the year 19_____.
III	Showing the number and value of civil suits instituted in the Civil courts of the Punjab during in year 19_____.
IV. Part I	Showing the general result of the trial of civil cases in the Courts of original jurisdiction in the Province of the Punjab in the year 19_____.
IV. Part II	Showing the general result of the trial of civil cases in the Court of original jurisdiction in the province of the Punjab in year 10_____.
V. Part I	Showing the business of Civil Appellate Courts of the Province of the Punjab in the year 19_____.
V. Part II	Showing the business of Civil Appellate Courts of the Province of the Punjab in the year 19_____.
	SUPPLEMENTARY STATEMENT
	Proceedings in Insolvency under the Provincial Insolvency Act, 1920 (V of 1920) in the Civil Courts of the Punjab during the year 19_____.
Part I	Showing number and results of Insolvency Petitions presented under Section 7 of the act and the number of Insolvents before the Courts.
Part II	Showing the number of estates in the hands of Receivers and the progress made in winding them up during the year 19_____.
	(b) <i>Criminal</i>
	Showing the number of Judicial Divisions and number of officers exercising appellate or original jurisdiction in the Punjab during the year.
II	Showing the number of cases decided by various classes of Tribunals in the Punjab during the year.
III	Showing the general results of trials of Criminal cases in the Punjab during the year.
IV	Showing the results of appeals and revisions in (Criminal cases in the Punjab during the year.
V	Showing nature of offences reported and number of persons tried, convicted

Number	Brief Description of contents
	and acquitted of each class of offence in the Punjab during the year.
VI	Showing the punishments inflicted in Criminal cases by various Tribunals in the Punjab during the year.
	B – DISTRICT AND SESSIONS STATEMENTS
	(a) District Statements -- Civil
I	Showing the number of officers exercising jurisdiction in Civil cases on the last day of the year
II. Part I	Showing the number and description of civil original cases instituted in the Civil Courts.
II. Part II	Showing the number and description of miscellaneous cases instituted in the Civil Court.
III	Showing the value of suits instituted.
IV. Part I	Showing the general result of the Trial of Civil cases in the Civil Courts of original jurisdiction.
IV. Part II	Showing the general result of miscellaneous cases
	(b) Sessions Statements
V. Part I	Showing the business of the civil Appellate Courts.
V. Part II	Miscellaneous appeals.
VI	Showing the result of proceedings on application for the execution of decrees.
VII, Part I	Showing the number of result of Insolvency petition presented under Section 7 of the Act and the number of insolvents before the Courts.
VII, Part II	Showing the number of estates in the hands of Receivers and the progress made in winding them up.
VIII	Showing the final result of dismissals for default, <i>ex parte</i> decisions, references to arbitration, and applications for review of judgments with particulars regarding the issue of commissions, attachment before judgment, and the award of interest on decrees.
IX	Showing the income from process-fees and expenditure on account of the service of process.
X	Showing classification of suits.
	(b) Sessions Statements
I	General Sessions Statement.
II	Showing the punishment inflicted by the Sessions Court.
II-A	Showing the particulars of whipping inflicted by the Sessions Court.
III	Showing the result of appeals and applications for revision preferred to the Sessions Court.
IV	Showing the use of Juries and Assessors in the Sessions Courts.
V	Showing the general result of the trial of European British subjects.
VI	Showing persons convicted in murder cases.
	(c) District Statements -- Criminal
I	Showing the number of officers exercising jurisdiction in criminal cases on the last day of the year.
II	Showing the offences reported and persons tried, convicted and acquitted during the year.
III	Showing miscellaneous proceedings under the code of Criminal Procedure.
IV, Part I	Showing the general result of criminal trials in the various Courts (Individual officers).
IV, Part II	Showing the general result of criminal trials in the Tribunals of various classes. (Classes of Courts).
V, Part I	Showing the punishments inflicted the Magisterial officers.

Number	Brief Description of contents
V, Part II	Showing punishments by the various Criminal Tribunals.
V-A	Showing particulars of whipping inflicted.
VI	Showing the result of appeals and applications for revision in criminal cases.
VII	Showing the use of juries under Chapter X of the Criminal Procedure Code.
VIII	Showing the general result of trial of European British subjects.

**PART C — PERIODICAL REPORTS AND RETURNS DUE TO DISTRICT AND
SESSIONS JUDGES AND DISTRICT MAGISTRATES, AND BY THEM BY THE HIGH
COURT**

1. Introductory.—In addition to the annual statements, certain monthly and quarterly returns have been prescribed by the High Court in order to enable the Judges to exercise a constant check upon the state of business in subordinate Courts and the manner in which that business is disposed of.

2. District and Sessions Judges' Statements.—District and Sessions Courts are required to submit the following monthly returns:--

No. 1. Statement of Sessions cases, Criminal appeals and Criminal References and of Civil appeals, Original Civil cases, Insolvency and Liquidation cases instituted, disposed of and pending in the Court of the District and Sessions Judge during the month.

No. 2. Statements of persons punished and acquitted by the Sessions Court during the month.

No. 3. Statements of persons awaiting trial by the Sessions Courts.

No. 4. Statement showing the number of civil suits instituted, disposed of and pending in the Courts of Subordinate Judges during the month (except for the month of September).

3. Monthly statements to be retained in High Court.—All monthly statements submitted to the High Court will be retained in the High Court Office.

4. Subordinate Judges' statements.—The following returns are required from Civil Courts subordinate to the District Judge:--

Civil Quarterly District Statements

No. 1 Showing civil suits and appeals disposed of and pending and execution work, and the number of hearings fixed for civil cases in each Court.

No. 2 Showing the number of fresh Civil suits and Execution cases instituted in the Civil Courts.

Note: Quarterly returns must reach the High Court by the 10th of the month succeeding the quarter to which they relate.

5. District Criminal Courts' statements.—District Criminal Courts are required to submit the following returns:--

Criminal Quarterly District Statements

No. 1 — Showing Criminal cases instituted, disposed of and pending

No. 2 — Showing convictions of persons previously convicted.

No. 3 — Showing the number of fresh cases instituted.

Note: Due by District Magistrates to Sessions Judges on the 5th and to High Court of the 10th of the month succeeding the quarter to which they relate.

6. Criminal Courts' Statement No. 2.—Magistrate's statement No. 2 should be prepared according to the following directions:--

- (a) Columns 1 to 6 should be filled in by the official concerned.
- (b) The cases should be entered in the order in which they were instituted.
- (c) The Magistrate should sign the statement and he will be responsible for the correctness of the entries thereof.
- (d) In column 7 the explanation for delay in the disposal of a case should be given in some detail. The circumstances in which service on witnesses or accused could not be effected, the time actually taken by the Appellate Court in disposing of transfer application etc. should be given. If the record was sent to some Court, the number and date of the letter by which it was requisitioned and also the number and date of the letter by which it was sent should be given.
- (e) History sheets containing abstracts of orders passed on different dates to all cases pending over one year (provided they are not stayed) should be furnished with the Statement.

7. Remarks.—District Magistrates and District and Sessions Judges should carefully scrutinize the monthly statements of their Districts, as they come before them, in order to enable them to remarks, upon anything that may appear to be irregular or unsatisfactory, and to take immediate steps to correct what is a miss. Their remarks and orders should be communicated once to the officer concerned. The District Magistrate should forward a copy of his remarks and orders with the statements, to the Sessions Judge, the original draft being retained with the office copies of the statements in the District office for record.

8. Submission to High Court.—On receipt of the District Criminal Statements, the Sessions Judge should carefully review them, notice and take measures to correct any irregularities which have been passed over by the District Magistrate and forward at once a copy of his remarks to the District Magistrate, for communication to the officer concerned. When the Sessions Judge has thus disposed of that District Criminal Statements he will submit them, with the District Magistrate's remarks, and a copy of his own, to the High Court, retaining a copy of his own remarks for record in his office.

The Sessions Judge should note in the covering letter whether a copy of the remarks recorded by him was sent to the District Magistrate.

9. Statement No. III.—With reference to quarterly statement No. III, of convictions of persons previously convicted, it is directed, that, when intimation is received by a District Magistrate from the Sessions Judge or the High Court that the sentence passed by a subordinate on a second conviction is light, without the records being called for, the District Magistrate shall look into the case himself and make such communication as he thinks proper to the Magistrate concerned; or, if he considers the punishment awarded completely inadequate, report the case for revision in the usual way.

10. Forms.—Forms of the statements required in paragraphs 2; 4 and 5 above will be found in the Books of Forms given in the Rules and Orders, Volume VI.

11. Reference.—Detailed instructions regarding the annual reports and returns required for the preparation of the annual notes on the Administration of Civil and Criminal Justice will be found in Part B of this Chapter.

12. Certificate as to delivery of judgments.—(i) All District and Sessions Judges should, in their monthly statements of work, furnish a certificate to the following effect:--

“Certified that judgments have been delivered within a month of the final hearing of arguments in all suits and appeals except in the following cases....”

They should also append a certificate in the following form on the Subordinate Civil Courts statement referred at paragraph 2(4) above:--

- (1) Certified that all stipendiary and Honorary Subordinate Judges have pronounced judgments within a month of the final hearing of arguments in all suits and appeals, except in the cases for which explanations are attached.
- (2) Certified that the provisions of [Section 15 of the West Pakistan Money Lenders Ord. 1960] were duly complied with in all suits for debts tried by all the Civil Courts.
- (ii) A certificate in the following form should also be furnished with the statements showing the work instituted, disposed of and pending in the Court of the District Judge and the Courts of Subordinate Judges during the month of August each year.

Certified that decrees have been drawn-up in all suits and appeals decided by the undersigned/all Subordinate Judges before the vacation and that the records of all such suits and appeals have been consigned to the Record Room¹ “except in the following cases for which explanations are attached:---

13. List of cases adjourned for arguments.—Each Subordinate Judge must furnish to the District Judge, with his monthly statement of his pending file, a list showing all cases that have been adjourned by him for arguments during the month and the period for each has been so adjourned. (High Court letter No, 8228-G, dated the 30th November, 1928).

14. Remarks by District Judge on monthly statements.—It is the duty of the District Judge to control and adjust to the best advantage and equalize the work in subordinate Courts. He should watch institutions and disposals and see that each officer’s outturn is normal. He should therefore make his remarks on the monthly pending file statements under the following heads:--

- (i) Subordinate Judges who in his opinion have not given sufficient outturn and have therefore been warned.
- (ii) Steps taken or proposed to be taken to equalize work in different Courts.
- (iii) Suggestions for investiture of or enhanced Small Cause powers in order to quicken disposal of petty cases.
- (iv) Steps taken or proposed to be taken to prevent accumulation of execution cases where such work is heavy.
- (v) Steps taken to ensure that 3rd and 4th class cases are not neglected owing to higher class cases.

15. In order to put a stop to bad cases of delay in subordinate Courts, abstracts of order sheets shall be submitted by each Subordinate Judge to his District Judge in respect of all original suits, appeals and execution cases pending over for more than a year. The District Judge shall examine them and after recording his remarks thereon, with details of action, if any taken, by him to prevent a recurrence of the same mistake, shall forward them to the High Court. They shall not be forwarded simply “for examination by the Judges.” District Judges shall similarly submit abstracts of order sheets for their own Courts.

16. Date of submission of abstracts.—Abstracts for the whole division shall be submitted at one and the same time and by the 15th of the month following the quarter to which they relate which shall be clearly specified in the forwarding letter.

PART D — INFORMATION TO BE SUPPLIED TO THE POLICE IN REGARD TO CRIMINAL STATISTICS

¹Delete if necessary.

1. **Statements to be supplied to Police.**—The Judges are pleased to direct, in accordance with the letter No. 277 (Home — Police), dated the 24th October, 1905, from the Secretary to Government, Punjab, that certain statements giving criminal statistics shall be supplied by each District Magistrate to the District Superintendent of Police in his district, as soon after the 1st January in each year as possible. The forms of these statements will be found in Volume VI-B, Part B-V.

2. **Columns to be filled in by Magistrates.**—It should be noted that the only columns of Statement A, Parts I and II, which Magistrates are required to fill up, are columns 1, 2, 3, 15 and 16 of Part I, and columns 1, 2, 3, 13, 14 and 15 of Part II. But Magistrates are required to fill up the whole of Statements B, Parts I and II, and the whole of Statement C, which only refers to property stolen and recovered in cases taken up direct by Magistrates.

3. **Directions as to certain columns.**—Columns 15 and 16 of Statement A, Part I, should show all cognizable offences taken up direct by Magistrates otherwise than on a Police report. Columns 13, 14 and 15 of Statement A, Part II, should show all persons concerned in cases taken up direct by Magistrates, otherwise than on a Police report.

4. **Final order to be entered.**—It should be noted that the order to be shown in these returns as the result of a trial is the final order in the case, and therefore the order in force at the close of the year should be shown. If the order of the lower Court has been reversed or modified within the year, it is the order of the Appellate or Revisional Court which must appear in the statement.

PART E – INFORMATION TO BE SUPPLIED TO THE CANAL AUTHORITIES

The annual return showing the number and nature of judicial cases disposed of by the Canal Deputy Collectors and Sub-Divisional Officers during a year has been discontinued as a result of the withdrawal of Magisterial Powers from Canal officers. It is, however, necessary, that the Irrigation Department should still continue to get information as to the number of cases instituted under the Canal Act, Information relating to all the cases instituted under the Canal Act, VIII of 1873, should be supplied by the District Magistrate to the Superintending Engineers of the Irrigation Department annually, as soon after the close of the calendar year as possible to enable the latter to submit the same to the Chief Engineer by the 1st February.

PART F – RETURN OF CASES IN WHICH THE COLLECTOR ACTS AS MINISTERIAL OFFICER IN THE EXECUTION DECREES

The Judges have been pleased to direct that the Civil Courts should submit periodical returns concerning all cases in which the execution remains in the hands of the Court and the Collector only assists as a Ministerial Officer of the Court in arranging temporary alienations, that is to say, all cases, except those in which the Court has authorized the Collector under Section 72 to provide for the satisfaction of the decree by temporary alienation of land against the sale of which there is no legal prohibition. In three excepted cases the Collector acts judicially as laid down in Section 72(2) read with Section 71. Collectors are being directed by Financial Commissioners to furnish periodical returns relating to these cases. The Judges have, with the concurrence of the Financial Commissioners, drawn up three forms of quarterly statements (A) for return by Collectors, and (B) and (C) for return by Courts. These are given in the Book of Civil Forms – (*High Court letter No. 6076-G, dated the 28th September, 1926*).

APPENDIX I

**List of Periodical Reports and Returns submitted to the High Court and the dates
on which they are due**

Description of Report or Return	Latest date of submission to High Court	Remarks
YEARLY		
Statement of probates and letters of administration	10th April	By District Judge
List of legal Practitioners	15th January	By District Judge
List of the Pleaders and Mukhtars who certificates have been renewed.	15th January	By District Judge
Criminal report and statements.	1st February	By District Magistrate to Sessions Judge not later than 1st February, office copies being sent to High Court at the same time. Fair copies are to be sent by Sessions Judge to High Court not later than 15th February.
Civil report and statements	15th February	By district Judge
Confidential list of certain persons who are considered fit to exercise or fit to be tried with certain judicial powers.	15th February	By district Judge
Report on the condition of Libraries of Subordinate Courts	1st. April	By District Judge
Reports on the civil judicial work of officers of the I.C.S. and P.C.S.	2nd April	By District Judge
Reports on the civil judicial work of Political Probationers of the Central Government	2nd April	By District Judge
Reports on the civil judicial work of Honorary Subordinate judges.	2nd April	By District Judge
Reports on the magisterial work of officers of the S.C.S. and P.C.S.	21st April	By Session Judge to whom they will be sent by District magistrate by 2nd April.
Estimates of Expenditure for Stationery.	15th July	By District Judge
Annual return of licensed Petition-writers	1st October	By District Judge
Budget estimates	15th September	By District Judge
Annual indent for Stationery for Subordinate Courts.	1st September	By District Judge

Description of Report or Return	Latest date of submission to High Court	Remarks
Recommendations for the issue of licenses to Petition-writers	15th November	By District Judge
Coinage statement	15th January	By District Magistrate
List of judicial buildings	1st July	By District Judge
QUARTERLY		
¹ District Civil Statement No.1	10th of month succeeding quarter for which due	By District Judge
District Criminal Statements I to III	10th of month succeeding quarter for which due	By District magistrate to Sessions judge on 5th and to High Court on 10th
Abstract of order sheets of cases pending over a year.	15th of the month succeeding the quarter for which due	District Judge and Subordinate Judge
Notes about inspection of their Courts by the pending officers.	15th of the month succeeding the quarter for which due	District judge and Subordinate Judge
MONTHLY		
Statement of Civil and Criminal work of District and Sessions Courts.	15th of next month.	By District and Sessions Judge.
District Criminal Statements I to III	---	By District Magistrate to Sessions Judge on 7th of next month.
Return of suits pending in Courts of Subordinate Judge	10th of next month	By District Judge.

¹ Note: It is discretionary with District and Sessions Judges to call for either monthly or quarterly Civil Statements from Courts subordinate to them.

APPENDIX II

List of periodical returns of which blank forms will be supplied by the High Court without indent

Description of Return	Number of Copies supplied	
	To District or Sessions Judge	To District Magistrate
YEARLY		
District Criminal Statements Nos. I to VIII, in English	---	4
District Criminal Statements Nos. I to VIII, in Vernacular	---	30
District Civil Statements Nos. I to XI, in English	4	---
District Civil Statements Nos. I to XI, in Vernacular	30	---
Sessions Statements Nos. I to V, in English	3	---
Sessions Statements Nos. I to V, in Vernacular	3	---
Civil Appeal Statements Nos. I to IV, in English	3	---
Civil Appeal Statements Nos. I to IV, in Vernacular	3	---
Subject headings for Civil and Criminal reports	3	---
Statement of probates and letters of administration	3	---
Coinage Statement, in English	---	3
Coinage Statement, in Vernacular	---	30
Statement of Cognizable Crimes, A, B and C, in English	---	3
Statement of Cognizable Crimes, A, B and C, in Vernacular	---	50
QUARTERLY		
Statement of fines realized in Sessions cases	---	11
Statement of grants of probate or letters of administration	8	---
MONTHLY		
District Criminal Statements Nos. I to IV, in English	---	22
District Criminal Statements Nos. I to IV, in Vernacular	---	45
District Civil Statement No. I, in English	16	---
District Civil Statement No. I, in Vernacular	45	---
Statement of Civil and Criminal work of District and Sessions Judge, Nos. I to III	30	---
Return of suits pending in the Courts of Subordinate Judges	30	---

CHAPTER - 24

REGISTERS

1. Indents.—The Registers prescribed for use in all Civil and Criminal Courts will be obtained from the Superintendent, Government Printing, Punjab, Lahore, to whom indents will be submitted by District and Sessions Judges in accordance with the instructions laid down in the Punjab Printing and Stationery Manual.

2. Building, size etc.—All registers will be made of convenient sizes with all headings and columns printed and ruled. The paper will be country-milled paper, known as *Badami*, and the binding will be of card board with leather backs and corners in the case of registers which are preserved for 12 years or more, and with *Kharwa* cloth in the case of other registers.

3. Suggestions for alterations.—Should any officer desire to suggest alteration of a prescribed register, he should address the District and Sessions Judge who will make such recommendations as he thinks fit to the High Court. In no case should be Superintendent, Government Printing, Punjab, be addressed direct in such a matter.

4. Explanation of the list be given in the Appendix.—The registers which have been prescribed by the High Court, with the sanction of the Provincial Government, for adoption in the subordinate Civil and Criminal Courts of the Punjab are enumerated in the appendix to this chapter in which is also indicated the Courts in which each register is to be maintained and the officials who will maintain them. Part I of the appendix enumerates the registers which are reproduced in Volumes VI-A and VI-B, Rules and Orders of the High Court; Part II of the Appendix enumerates the registers which are not reproduced in Volumes VI-A and VI-B but in the other Volumes I to IV. The remarks made in the column of remarks in the appendix should be read with the foot-notes, where they exist, to the registers reproduced in Volumes VI-A and VI-13 for instructions as to the manner in which certain registers are to be maintained.

¹**5. Registers to be kept in English.**—The headings of registers in all Civil and Criminal Courts will be in Urdu and should be maintained in that language].

²**5-A.** In all registers Challans, Vouchers and receipts in respect of monetary transactions amount should be mentioned both in figures and words in such a manner that it becomes impossible to alter them or make any interpolation without disfiguring the entries. In particular, the amount in words should be in a straight line with the printed word “rupees” and not below the level of the printed matter.

6. Common mistakes in filling up register.—Presiding Officers must remember that they are responsible to see that the registers of their Courts are correctly and regularly written up. The following is a list of the common mistakes made by officials in writing up registers, Mistakes of this kind must be avoided:---

- (1) Many registers have no *peshani* or heading at all, while some of them are in such a torn and mutilated condition that they are of no practical value. It is impossible to maintain any register correctly unless it has a regular heading in good condition.
- (2) Entries are sometimes made in a running order across several columns. Each individual column must be filled up separately.
- (3) Entries do not follow the column headings, but are made regardless of them. This creates confusion.
- (4) Some entries are written partly in English and partly in Urdu.

¹(C.S.No. 54/XVIII-D-20(a), dated the 23rd October, 1948).

²(C.S.No. 133-Genl./XII, A-12, dated Lahore the 31st January, 1968).

- (5) Entries cancelled do not bear any initials.
- (6) Persian *raqums* are used in filling some columns. English numerals should always be used.
- (7) Entries are sometimes made in pencil which is objectionable.
- (8) Separate serial numbers are not given for each calendar year.
- (9) Sometimes the serial number is changed with a change of register; it should only be changed with the new year.
- (10) In the several registers in which an abstract of the orders passed is to be entered, the entry very often merely says “*dakhal dafter ho*” or “consigned to the record room”. This is not sufficient. The particulars of the orders passed should be entered in greater detail so as to show exactly how the case was disposed of or why was consigned to the record room.
- (11) In the several registers in which the name of the Judge or Magistrate deciding the case is to be entered, the name should always be set out in full. Entries saying “Malik Sahib” or “Sardar Sahib” are meaningless and will not be understood after a few years if and when it becomes necessary to find out the name of the presiding officer. The name of an English Officer, or of an Pakistan Officer, who has anglicized his name, should be written in English characters, even if the register is kept in Urdu.

7. All civil and criminal registers shall be consigned to the Record Room to which Judicial files are normally consigned; they should be destroyed under the supervision of the Record keeper in accordance with the rules contained in Chapter 16-F of Volume IV.

8. The Execution Moharrir of each Court shall be responsible for the safe custody of old volumes of civil Register No. 1 till they are consigned to the Record Room. The officials who maintain the other registers shall be responsible for the safe custody of old volumes of them.

9. The following registers shall be consigned to the Record Room 12 years after their completion:--

Civil Registers Nos. I and X.

10. The followings registers shall be consigned to the Record Room 6 after years after their completion:--

Civil Registers Nos. II, III, IV, VI, VII, XI, XII, XIII, XIV, XXVI and XXVII.

(Note): When civil Register No. XXVI is sent to the Record Room, entries relating to properties of minors (not accounts) in cases still pending should be copied into the new register.

Miscellaneous Registers A and B

11. The following registers shall be consigned to the Record Room 3 years after their completion:--

Civil Register Nos. XXV, XXVIII, XXIX, XXX and XXXII. Miscellaneous Registers C, E, F, G, H, I, J, K, L, M and P. Criminal Registers Nos. V, VI, VII, VIII, IX, X and XVIII.

12. The following registers shall be consigned to the Record Room 2 years after their completion:--

Criminal Registers Nos. I, II, III, IV, XI, XII and XVII.

13. The following registers shall be consigned to the Record Room one year after their completion:--

Civil Registers Nos. V, VIII, IX, XVI, XVII, XVIII, XIX, XX, XXI-A, XXI-B, XXI-C, XXII,

XXIII and XXIV.

14. Criminal Registers Nos. XIV and XV shall be consigned to the Record Room after the expiry of every calendar year; and criminal register No. XIII shall be consigned when it is finished.

15. No register should ordinarily be retained in a Court after the period prescribed for its consignment to the Record Room. If the Presiding Officer of a Court wishes to retain any register for a longer period, he should record his reasons for doing so in writing and communicate them to the Record Keeper concerned.

APPENDIX

PART I – REGISTERS REFERRED TO IN PARAGRAPH 4 AS BEING REPRODUCED IN VOLUMES VI-A AND VI-B, RULES AND ORDERS

No of Register	Name of Register	Court in which to be kept	Official by whom to be kept	Remarks
(a) LIST OF CIVIL REGISTERS				
I	Register of Civil Suits	(a) All sub-Judges' Courts (honourary and stipendiary)	Ahlmad	(i) A separate register should be opened in each Court exercising original Civil Jurisdiction.
		(b) Small Cause Court	Clerk of Court	(ii) See footnotes to form in Volume VI-A, Part A-IV.
				(iii) Costs should be shown separate from the thing, or substantive sum, decreed in column II.
				(iv) The names of the Counsel of the parties should be noted in each case together with a remark as to whether or not be Counsel is authorized to receive moneys in execution.
				(v) The terms of a decree passed on a compromise should always be entered in detail. A mere note saying "decree on compromise" is not sufficient
II	Register of Miscellaneous suits cognizable only by a principal Court of original jurisdiction	(a) Courts of District Judge. (b) Courts of sub-Judges where empowered.	Ahlmad	In this register should be entered all cases cognizable by a principal Court of original jurisdiction for which no special register is prescribed, e.g., applications relating to minors under Act VIII of 1890, & applications for Succession Certificates Probates, or Letters of Administration, under the Succession Act. See footnotes to form in Volume VI-A, Part A-IV.
III	Register of Divorce and Matrimonial cases	Courts of District Judge	Ahlmad	See footnotes to form in Volume VI-A, Part A-IV. All petitions under Section 5 of the Muslim Personal Law (Shariat) Act XXVI of 1937, should be entered in this Register.
IV	Register of cases under	Courts of District Judge	Ahlmad	See footnotes to form in Volume VI-A, Part A-IV. All

No of Register	Name of Register	Court in which to be kept	Official by whom to be kept	Remarks
	the Land Acquisition Act			petitions under Section 5 of the Muslim Personal Law (Shariat) Act XXVI of 1937, should be entered in this Register.
V	Register of Probates, Letters of Administration and Succession Certificates granted.	(a) Courts of District Judge. (b) Courts of Sub-Judges where empowered.	Ahlmad	In compliance with the orders of Government, Courts are directed to keep up a register of Probates, Letters of Administration and Succession Certificates granted by them and of the amount of stamp duty levied thereon.
				The register may be opened as subsidiary to register II and in a part of the same book, if convenient. The information is required annually and the return should be dispatched to the High Court.
VI	Register of Miscellaneous petitions and applications	All Civil Courts	Ahlmad	See footnotes to form in volume VI-A, Part A-IV.
VII	Register of applications to sue and appeal as a pauper	All Civil Courts	Ahlmad	
VIII	Register of rejected and returned plaints and memoranda of appeal	All Civil Courts	Reader	(i) The entries should be made the Reader on the order of rejection or of return being made by the presiding officer of the Court. It is not correct to wait until the party concerned turns up to take back the papers before making and entry in this register.
				(ii) This register must not be used for “documents returned” for which a separate register XXIV is prescribed.
IX	Register of dates fixed for trial of original suits, appeals, and	All Civil courts	Reader	When the number of appeals and execution cases is very large separate registers may be kept for the dates fixed for appeals and execution cases. There should be a

No of Register	Name of Register	Court in which to be kept	Official by whom to be kept	Remarks
	execution of decrees			separate page for each working day the year and when a cause is set down for hearing on any date, the cause should be entered in the proper page of the register. See also footnotes to form in Volume VI-A, Part A-IV, as amended by Correction Slip No. 6, dated 26th April, 1935.
X	Register of execution of decrees	All Civil courts	Execution Mohararrir	(i) Column 9 for adjustments subsequently to the decrees should be filled up carefully and regularly.
				(ii) Column 8 is for the amount decreed and column 10 for the amount for which execution is sought in any particular execution. It is a common mistake to put down the same amount in both the columns. The mistake should be avoided.
				(iii) See footnote to form in Volume VI-A Part A-IV.
XI	Register of miscellaneous petitions in execution proceedings	All Civil Courts	Execution Moharrir	Column 8 is for the "specification of the property, if any, to which the claim in the petition relates." These specifications must be given in sufficient details. Such entries as "Jaidad Maqraka" or "property attached" are meaningless. The Khasra Numbers of Agricultural land, boundaries of house properties, and a description of the cattle in dispute should be given.
XII	Register of applications for review in suits and appeals and for amendment of decrees.	All Civil Courts.	Ahlmad	---
XIII	Register of appeals from decrees	Courts invested with appellate powers	Ahlmad	When a memorandum of appeal is admitted, the Appellate Court shall endorse thereon the date of presentation, and shall register the appeal in a book to be kept for the purpose; such books shall be called the

No of Register	Name of Register	Court in which to be kept	Official by whom to be kept	Remarks
				Register of Appeals. (Order XLI, Rule 9, of Act V of 1908).
XIV	Register of miscellaneous appeals	Courts invested with appellate powers	Ahlmad	In this register should be entered all appeals from orders which do not appear in Register XIII.
XV	Record-keeper's General Register of suits and appeals disposed of	Record Rooms of: (a) courts of District Judges (b) Small Cause Courts (c) other Civil Courts	Record-keeper.	The entries in this register should be made as the file of each decided case is received in the record room by the record-keeper. If more than a week expires between the date of decision and the date of filing of any record, the record-keeper should bring the delay to the notice of Deputy Commissioner or the District Judge, as the case may be furnished.
XVI	Register of Judgment-debtors imprisoned in execution of decrees	All Civil Courts	Ahlmad	(i) Column 10 is for the amount of diet money deposited with the period for which it is deposited and the rate at which it is calculated. All these particulars must be furnished.
				(ii) The reason of release must be noted invariably in column 13.
XVII	Register of persons punished for Contempt of Court	All Civil Courts	Reader	---
XVIII	Register of stamp deficiencies to be maintained by Courts and Offices	All Civil Courts	Reader	(i) At the end of every, month an extract from this register showing the duties and penalties levied during the month, with the other particulars entered in the register, must be sent to the Deputy Commissioner
				(ii) An adequate description of each document must be given in column 6.
				(iii) Column 22 (Brief Reasons) must be filled up intelligently and not left blank

No of Register	Name of Register	Court in which to be kept	Official by whom to be kept	Remarks
XIX	Register of Commissions	All Civil Courts	Reader or Clerk of Court	---
XX	Register of Process-Servers	Court of: (a) District Judge; (b) Senior Sub-Judge (c) Small Cause Courts	Nazir	---
XXI-A	Register for Special Qanungo	Special Qanungo	Special Qanungo	---
XXI-B	Register of Commissioners issued to the Special Qanungo	All Civil Courts	Ahlmad	Column 4 is for a brief description of the kind of evidence required. This must be given, in details.
XXI-C	Register of inspection notes	(i) District Judge; (ii) Senior sub-Judge.	Clerk of Court	---
XXII	Register of warrants executed by Bailiffs	Senior sub-Judge	Civil Nazir	---
XXIII	Register of processes-served by process servers	Senior sub-Judge	Naib-Nazir	The register should be constantly inspected by the court to see that there is a proper distribution of work amongst the different process-servers.
XXIV	Register of documents returned	(a) All Civil Courts.	Reader	(i) On the return of a document which has been admitted in evidence a receipt shall be given by the party receiving it in a receipt book kept for the purpose (Order XVI, Rule 9, of Act V of 1908).
				(ii) An adequate description of the document returned must be given in column 4.
		(b) All Record Rooms	Record-Keeper	The Record-keeper will maintain this register for return of documents in cases which have been consigned to the Record Room.
XXV	Register of deposits and refunds of	(a) Courts of District Judge.	Reader	---

No of Register	Name of Register	Court in which to be kept	Official by whom to be kept	Remarks
	commission on sale proceeds in execution proceedings			
		(b) All other Civil Courts	Ahlmad	---
XXVI	Register relating to the property of minors and annual accounts of their estates.	(a) District Judge	Ahlmad	Special attention must be given to filling up the entries in part 2 of the Register.
		(b) Sub-Judge where empowered		
XXVII	Register of persons adjudicated insolvents and administration of their estates	All Courts exercising insolvency jurisdiction.	Ahlmad	---
XXVIII	Register of applications under Section 31 of the Punjab Relief of Indebtedness Act, 1934	All Civil Courts	Reader or Ahlmad	---
XXIX	Diary Register for process-servers and Bailiffs	All Civil Courts	Process-server for Bailiff	---
XXX	Register of declarations under the Muslim personal Law (Shariat) Application Act, 1937	All Civil Courts	Reader	---
XXXI	Register of records under the Muslim Personal Law (Shariat) Application Act, 1937.	Record Rooms under the control of Deputy Commissioners	Record-Keeper	---

No of Register	Name of Register	Court in which to be kept	Official by whom to be kept	Remarks
XXXII	Register of appeals under the Muslim Personal Law (Shariat) Application Act, 1937	District Judge	Ahlmad	---
XXXIII	Register showing the decrees transferred to the other Courts and <i>vice versa</i> .	All Civil Courts	Ahlmad	---
XXXIV	Register of applications for revision under the conciliation courts ordinance, 1961	District/Additional judges Court or Courts of Sub-Judges/Civil Judge	Reader or Ahlmad at the discretion of the Court	---
(b) LIST OF CRIMINAL REGISTERS				
I	Register of cognizable and non-cognizable offences instituted on complaint or on Magistrate's own motion or reported by the Police under Sections 157 and 173, Criminal Procedure Code.	Courts empowered to receive complaints or reports	Ahlmad	(i) Under section 157, Criminal Procedure code, intimation is to be sent to the Magistrate having jurisdiction of all complaints or information preferred to the police of all cognizable offences, Columns 1 to 13 of Register should be filled up by the proper officer of the court as soon as orders have been passed by the Magistrate on the complaint or report submitted by the police.
				(ii) Entries in column 3 should be classified as "Alif" or "Be" according to the instructions given in the printing heading.
				(iii) Column 11 should not be left blank as is often done. See footnotes to form in Volume VI-B, Part B-IV.

No of Register	Name of Register	Court in which to be kept	Official by whom to be kept	Remarks
II	Register of cases under the Penal Code	All Magistrates' Courts (honourary and stipendiary)	Ahlmad	(i) In this register should be entered all cases under the Penal Code sent up for trial by the Police, or entertained by the Magistrates on complaint preferred directly to themselves.
				(ii) Appealable cases should always be marked as such.
				(iii) Column 15 should mention the "Head of Crime" applicable as given in the police statement A, on page 40-43, Part B-V of the Rules and Orders, Volume VI-B.
III	Register of cases under Special and Local Laws and under the code of Criminal Procedure	All Magistrates' Courts (stipendiary and honorary).	Ahlmad	All cases of offences punishable under Special and Local Laws and security cases under Chapter VIII of the Code of Criminal Procedure should appear in this register.
IV	Register of Miscellaneous Criminal Cases	(a) Sessions Courts (b) All Magistrate's Courts (honourary and stipendiary)	Ahlmad	In this register should be entered all cases under the Code of Criminal Procedure not involving offences and miscellaneous case not forming the subject of a regular trial, such as inquiries into claims to suspected property, claims to restore property declared to be forfeited under Sections 87 and 88 of the Criminal Procedure Code, rights to unclaimed property cinder Sections 25 to 27 of Act V of 1861 etc.
V	Register of case decided in each Court	All Magistrates' Courts (honourary and stipendiary).	Ahlmad	This and register VI are intended to furnish materials for the compilation of the annual returns. The entries in this register are to be made at once on the conclusion of the trial. In columns 38 to 41 a distinctive mark should be used to show whether the imprisonment was rigorous or simple. At the close of the year the persons and cases in the pending file must be added in

No of Register	Name of Register	Court in which to be kept	Official by whom to be kept	Remarks
				the appropriate columns 5 to 10 and 20 to complete the figures for the annual statements. When a case is transferred from one Court to another in the same District, the case will not be entered in the register of the transferring Court, but will be shown as if it had been originally instituted in the Court which eventually disposed it of. When a case is transferred to another District or Province a note in the column of remarks should show the District or Province to which the case has been transferred. In cases in which a complainant is required to pay compensation to the accused, the fact should be noted in the column of remarks. A note in the column or remarks should also show whether the persons entered in columns 29 to 31 were imprisoned in default; and if so, for how many days they remained in prison, the amount of security or recognizance demand being specified.
VI	Register showing the number of offences reported and brought to trial and of persons discharged, acquitted or convicted.	District Magistrate	Statistical Clerk	Cases on which orders have been passed will be entered under the proper head of crime from time to time. To enable the Statistical Clerk to write up this register, all Courts will furnish a return in vernacular form No. C.O. 124 to reach him on the 7th, 15th, 22nd and the last day of each month. Pending cases will be added at the end of the year in order to complete the entries to be made in the annual statement II. It must be remembered that cases committed or referred to a higher Court are to be entered when the result in the higher Court has been ascertained; until then they will be treated as pending. In such cases the Court which finally disposed of the case and the number of the case in the register of that Court will be entered in column 2. Cases transferred to another

No of Register	Name of Register	Court in which to be kept	Official by whom to be kept	Remarks
				Court in the Punjab will not be entered until the case has been finally disposed of. To ensure this register being properly brought up-to-date at the close of each year, Sessions Judges should take care that the results of all cases (whether received on commitment or reference) decided during the year are duly intimated to the Magistrate of the District concerned before the close of the year. Similarly care should be taken that the results of all references under Section 374, Criminal Procedure Code, and of committals to the High Court disposed of during the year, are duly communicated before the close of the year.
VII	Register of Sessions trial and of references made to the Court of Sessions under Section 123, Criminal Procedure Code	Sessions Courts	Ahlmad	---
VIII	Register of trials of European British Subjects	Sessions Courts	Clerk of Court	---
IX	Registers of Complaints against, or inquiries into, conduct of the servants of the State.	(a) District Magistrates (b) Sessions Courts	(a) Superintendent (b) Clerk of Court.	---
X	Register of appeals and revisions in Criminal cases	(a) District Magistrate (b) Other magistrates empowered to hear	Ahlmad	Separate registers for appeals and for revisions will be maintained.

No of Register	Name of Register	Court in which to be kept	Official by whom to be kept	Remarks
		appeals (c) Sessions Courts		
XI	Register of dates fixed for trial of criminal cases including dates of receipt of cases sent up for trial by the Police	(a) All magistrates' Courts (stipendiary and honorary). (b) Sessions Courts.	Reader	Section 344 of the Code of Criminal Procedure limits to a maximum of 15 days the period for which an adjournment or remand can be granted and under Section 247 summons should always fix a date. Every criminal case should be decided on the first day that it is brought to Court or adjourned to a fixed date.
XII	Register of prisoners under trial.	All Judicial lock-ups.	Officer-in-charge	The register is intended to keep the Magistrate informed of the number of persons in the lock-up and to serve as a check on the illegal detention of any persons in custody and should be carefully maintained.
XIII	Register of persons admitted to and removed from the lock-up in the Districts.	All Judicial lock-ups.	Officer-in-charge	
XIX	Register of Judicial fines.	(a) All Magistrates' Courts (stipendiary and honorary). (b) Sessions Courts.	See next column.	(i) In every Criminal and Civil Court the Reader of the Court will keep up a separate fine register. (ii) In addition to this register there will be kept up in the same form at the headquarters of each district and general register of fines by the District Fine Moharrir. (iii) The amount of fine released should always be entered in column 12 in the Magistrate's own handwriting as required by Rule 5(iii) of Chapter II, Volumes IV, of the Rules and Orders. (iv) The number and date of the Treasury Receipts should always be given in column 13.

No of Register	Name of Register	Court in which to be kept	Official by whom to be kept	Remarks
XV	Register of Judicial fine realizations	District Magistrate	District Fine Moharrir	See Chapter II, Volume IV, Rules and Orders.
XVI	Record Keeper's General Register of decided cases	Record Rooms of:-- (a) Sessions Courts; (b) Other Criminal Courts.	Record Keeper	The entries in the Register should be made in the order in which the files are deposited in the Record Room; and if more than a week expires between the date of decision and the date of filling the record, the delay should be brought to the notice of the District Magistrate or the Sessions Judge, as the case may be. It is unnecessary to enter in this register cases dismissed under Section 203 of the Code of Criminal Procedure, or cases under the Police, Hackney and Stage Carriages, Cantonments, Cattle Trespass, Workman's Contract, Punjab Municipal, Cruelty to Animals, and Vaccination Acts.
XVII	Register of Summary Trials	All Magistrates exercising summary powers.	Reader	Columns 7 to 14 should be filled in by the Magistrate himself.
XVIII	Register of Road and witnesses Diet money of ----- assessors	(a) Sessions' Courts. (b) Magistrates Courts	Nazir Reader	See Chapter 9-B, Rules and Orders, volume III. This register should be checked by the Magistrate or the Sessions Judge, at least once a week and column 10 initialled.
XIX	Register of prisoners who are released or whose punishment is reduced on appeal or revision.	(a) All Magistrates' Courts. (b) Sessions Court.	Ahlmad or any other official to be nominated by the Court.	This register should be checked once a week by the Presiding Officer of the Court who should see that all warrants are being complied with or received in the jails. He should verify this from the detachable portion of each warrant.
XX	Register of applications for transfer of criminal cases.	District Magistrates and Sub-Divisional Magistrates.	Ditto	-----
XXI	Register of traffic	All Magistrates appointed to	Ahlmad	(1) All cases relating to traffic filed by the Police under

No of Register	Name of Register	Court in which to be kept	Official by whom to be kept	Remarks
	cases	try traffic cases.		any Act other than the Indian Penal Code shall, after entry in the Police Traffic Register, be handed over to the Ahmad of the Magistrate appointed to try traffic cases. The Ahlmad shall sign the Police Traffic Register in token of receipt of the complaints and other papers shown in the Police Traffic Register, and shall within 24 hours enter these cases in the Court Register of Traffic Cases (Register No. XXI).
				(2) Cases entered in this register shall not be entered in Criminal Registers Nos. I and III (prescribed in Volume VI, Part B-IV of Rules and Orders of the High Court). For purposes of statistical returns, e.g., pending and old cases, figures relating to traffic cases which were formerly taken from Criminal Registers Nos. I and III will now be taken from the Register of Traffic Cases.
				(3) The Traffic Magistrate shall check once a month the Register of Traffic Cases maintained in his Court and in the course of his check he shall have before him the Police Traffic Register. He shall, in particular, satisfy himself that all cases and licences shown in the Police Traffic Register have been entered in the Court's Register. At the conclusion of his checks, he shall sign both the registers.
				(4) If in any case it has been impossible to obtain the appearance of the accused, the Magistrate before consigning the records to the Record Room shall satisfy himself that any licence shown as having been impounded and attached to the report is still present. He shall then forward the impounded

No of Register	Name of Register	Court in which to be kept	Official by whom to be kept	Remarks
				licence to the licensing authority by whom it was originally issued, through the Police by attaching it to the "Conviction slip" in which a reference should be made to it.
				(5) As far as possible, the records of traffic cases which are not actually being heard by the Magistrate should be kept under lock and key, the keys being retained either by the Magistrate himself or some particular court official on whom individual responsibility can be fixed in the event of any loss.
				(6) This register will be maintained only in courts to be selected by the District Magistrate. (C.S. No. 15/XVIII.D-20 (a), dated the 1st May 1945).
(c) LIST OF MISCELLANEOUS REGISTERS FOR EITEHR OR BOTH CIVIL AND CRIMINAL COURTS				
A	<i>Deleted (C.S. No. 81/XVIII-D.20 (a), dated the 21st January, 1954.</i>			

B	Register of files taken from the Record Room for reference.	Record Rooms of— (a) District and Sessions Courts. (b) Small Cause Courts (c) Other Civil and Criminal Courts.	} Record Keeper	
C	Register of miscellaneous proceedings received	All Civil and Criminal Courts		Ahlmad

	from other Districts or Courts			
D	Register of dispatch of packets or letters	Ditto	Do.	
E	Register of general orders issued in eh judicial department	(a) District Magistrates (b) District and Sessions Judges	Reader of the Court	In this register should be copied all orders issued for the guidance of subordinate Courts in the order and date on which they were issued.
F	Register of property received into the Nazir's store room.	(a) Criminal Courts at head-quarters (b) Civil courts at head-quarters. (c) Civil and Criminal Courts at Tehsils. (d) Small Cause Courts	(a) District Nazir (b) Civil Nazir Nazir Nazir	See Chapter 10-A, Rules and Orders, Volume IV.
G	Register of ministerial officers	(a) District and Sessions Courts and Subordinate Judges' Courts. (b) Small Cause Courts	(a) English Clerk (b) Clerk of Court	At the beginning of each year a list of officials should be made out in the prescribed form, the names of officers who have been removed or transferred being omitted.
H	Register of petition-writers	District and Session Court	English Clerk	See Chapter 17-A, Rules and Orders, volume I, Rule 2.
I	Register of Affidavits	All Civil and Criminal Courts.	Reader	See Chapter 12-B, Rules and Orders, Volume IV.
	Register of general correspondence	District and Sessions Courts	English Clerk	

**PART II – REGISTERS REFERRED TO IN PARAGRAPH 4 AS NOT BEING
REPRODUCED IN VOLUMES VI-A AND VI-B, BUT IN
VOLUMES I TO IV**

Name of Register	By whom kept	Reference to rules and Orders, Volumes I to IV
Register of decrees in which the Collector is authorized to provide for satisfaction	Collector	Volume I, Chapter 12-M.
Register of officials required to furnish security and the amount of security deposited	Clerk of Court to District and Sessions Judge, Senior Sub-Judge and Small Cause Court.	Volume I, Chapter 18-C.
Register E of Guardians	Ahlmad	Volume II, Chapter 2-B.
Insolvency registers	Do.	Volume II, Chapters 4 and 5.
Official Receivers' registers	Official Receivers	Volume II, Chapter 5.
Civil Court Deposit Registers	Civil Nazir and Nazir	Volume II, Chapter 8-E.
Sheriffs Petty Accounts Registers	Civil Nazir and Nazirs or Cashiers.	Volume II, Chapter 8-D.
Note Book of Bailiffs	Bailiffs	Volume II, Chapter 8-E.
Note Book of Process-servers	Process-servers	Volume II, Chapter 8-D.
Register of maintenance orders made by Courts outside British India for enforcement in British India.	Presiding officer of Court	Volume III, Chapter 7-B.
Register of Arms and Ammunition.	Officer-in-charge of Nazarat.	Volume IV, Chapter 10-B.
Supply of copies registers	Independent Examiner where such officer exists or senior copyist in— (a) District and Sessions Judges Courts. (b) Small Cause Courts.	Volume IV, Chapters 17-D and 17-E.

CHAPTER 25

SUPPLY OF FORMS

PART A – SUPPLY OF FORMS

1. Indents.—The forms prescribed for the use of Courts are printed by the form work contractors to the Punjab Government and dispatched direct to indenting officers. All indents for such forms should be addressed to the Superintendent, Government Printing, Punjab, who has been appointed the medium of communication between the indenting officers and the printers.

2. Date of submission of indent.—The annual consolidated indent for such forms is due with the Superintendent, Government Printing, Punjab by the 15th March and district and Sessions Judges are enjoined to see that this date is strictly adhered to or the Press will not be responsible for any delay that may occur in the supply of printed forms. District and Sessions Judges are included in the list of officers entitled to indent direct for Departmental English forms,—*vide* Appendix D of the Punjab Printing and Stationery manual (Punjab Financial Handbook No.4).

3. Instructions for preparing indents.—The indents will be prepared in duplicate in the prescribed form. One copy will be retained by the Press and the other will be forwarded by the Press to the High Court, at the close of the year for examination and record.

Indenting officers should so frame their *annual* indents as to obviate the necessity for a large or frequent supplementary indents. Notice will be taken of any case in which these instructions are found to have been neglected.

4. Chalan of forms dispatched.—When dispatching packages containing forms to indenting officers, the Contractors will also forward by a letter-post a dispatch note or *chalan*. One receipt of the package the officer concerned should examine the contents carefully, and, after ascertaining that they are correct, return the *chalan*, duly signed, to the dispatching officer.

5. Periodical returns.—These instructions do not apply to periodical returns, forms for which will be supplied by the High Court without indents, according to the Appendix II attached to Chapter 23 of this Volume—“Reports and Returns”.

6. List of forms. Stocked forms.—Lists of the Civil and Criminal forms which have been prescribed by the High Court for general use in the Punjab will be found in the Books of Civil and Criminal Forms given in the Rules and Orders, Volumes VI A and B.

It will be observed that only such forms as are in most general use and are marked “Stocked” will be supplied in print: the others must be prepared in manuscript whenever required. Books containing complete sets of Civil and Criminal forms are supplied to each Court, and should be kept carefully up to date.

7. Establishment and contingent bills.—Forms of establishment and contingent bills will be supplied by the Accountant-General.

8. Civil Nazir to stock forms.—All civil forms will be stocked by the Civil Nazir whose duty it will be to supply them to Subordinate Judges and Extra Assistant Commissioners when required.

9. Universal forms and envelopes.—Instructions for the submission of indents for universal forms and envelopes are contained in Chapter 3 of the Punjab Printing and Stationery Manual and should be carefully followed by officers entitled to indent direct for such. (Appendix D to the Manual).

Vernacular Forms for Judicial Purposes

10. Vernacular forms.—Vernacular forms used by subordinate Courts are obtained locally by District Courts. Vernacular forms are to be printed on paper of the size of official petition paper, or a quarter of a sheet of the standard jail paper, as may be most convenient. The paper

prescribed is “B” quality paper as supplied by the Jail Department.

11. Forms should be correctly prepared.—Care should be taken to adhere strictly to the wording of judicial forms prescribed by law or by the orders of the High Court.

12. Indents.—Officers who used to obtain their vernacular forms from the Central Jail, Lahore, will in future submit their indents yearly to the Superintendent, Government Printing, Punjab, Lahore, by the 15th April of each year at latest, so as to enable that officer to comply with all indents in proper time. In preparing the indent care should be taken to form a proper estimate of the probable requirements for the year, so as to avoid the necessity of submitting supplementary indents.

PART B – PRINTING

1. Lithographed forms.—All lithographic printing has, under the orders of the Punjab Government, to be done, as far as possible, at the Central Jail Press at Lahore. Lithographed forms, a revised list of which has been prepared by the Superintendent, Government Printing, Punjab, and will be supplied to departments concerned, are to be obtained from the Jail Press on indent to cover the annual requirements of each Department. Supplementary indents must be avoided as far as possible.

2. Date of submission of indents.—The annual indent of Civil and Criminal Vernacular forms from District and Sessions Judges, to cover the requirements of the District, is due with the Superintendent, Government Printing, by the 15th April. This date must be strictly adhered to or the Press will not be responsible for any delay that may occur in the supply of printed forms.

3. Printing at private press direct prohibited.—Unless Government has specially permitted a deviation from the rule, no work must be sent direct to a private press. All indents for printing of every description whether typographic or lithographic should be sent to the Superintendent, Government Printing, Punjab, who will decide with regard to the state of work in the various Government Presses whether to carry out the work himself or place it at a private press. In the latter case he will pay the bill himself from the allotment for printing at private presses or lithography, as the case may be.

4. Emergent printing.—Heads of Departments and District and Sessions Judges have been delegated powers to sanction expenditure in emergent cases on account of printing – typographic or lithographic – at a private press, to a limit of Rs. 10 in each case. These orders will be paid for by the officers concerned but a duplicate copy of the bill, together with a voucher copy of the work, should be forward to the Superintendent, Government Printing, Punjab, for examination and record. Such expenditure should be charged to the head “56-Stationery and Printing” Minor heads, “Printing at Private Presses” or “Lithography” and should not be met from the contingent grant.

5. Complaints against Jail Press.—If the work supplied by the Jail Press proves unsatisfactory or if it is not done promptly the fact should be reported to the Superintendent, Government Printing, Punjab, and the High Court informed at the same time.



IN THE NAME OF ALLAH,
MOST GRACIOUS
MOST MERCIFUL

RULES AND ORDERS
OF THE
LAHORE HIGH COURT, LAHORE
VOLUME V

Relating to Proceedings in the High Court

(REVISED EDITION) 2005

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Hon'ble Mr. Justice Iftikhar Husain Chaudhry.

Chief Justice

Lahore High Court Lahore

Hon'ble Judges of the, Lahore High Court, Lahore.

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1.	Mr Justice Iftikhar Hussain Chaudhary
	Chief Justice
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3.	Mr. Justice Syed Jamshed Ali
4.	Mr. Justice Khawaja Muhammad Sharif
5.	Mr. Justice Sayed Zahid Hussain
6.	Mr. Justice Mian Muhammad Najum-uz-Zaman
7.	Mr. Justice Mian Saqib Nisar
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6.	Mr. Justice Mian Muhammad Najum-uz-Zaman
7.	Mr. Justice Mian Saqib Nisar

Hon,ble Members of the Rule Committee.

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2.	Mr. Justice Syed Jamshed Ali
3.	Mr. Justice Sayed Zahid Hussain

Register

Mr. Dost Muhammad Malik

Compiled & edited by:

Legislation Wing

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Key to the symbols used in Volume V

- * Substituted vide Lahore High Court Notification No.436/Rules II.D.4(V).
Dated 6-12-2000
- ** Added vide Lahore High Court Notification ibid,
*** Omitted vide Lahore High Court Notification ibid,
.....
- *₀₁ Substituted vide Lahore High Court Notification NO.94/Rules II.D.4(V).
Dated 18-04-2001.
- **₀₁ Added vide Lahore High Court Notification ibid.
- ***₀₁ Omitted vide Lahore High Court Notification ibid.
- ****₀₁ Substituted vide Lahore High Court Notification No. 295
Dated 20-06-2002.
.....
- Note: For original text and earlier amendments therein, the previous edition(s) of the volume may be consulted.

Explanation: The words, appearing in the rules as "the Deputy Registrar", mean the Deputy Registrar (Judicial) and include the Additional Registrar (Judicial) as well.

CHAPTER 1

Judicial Business

PART A (a) THE PRESENTATION AND RECEPTION OF APPEALS, REVISIONS, APPLICATIONS FOR REVIEW AND OTHER PETITIONS.

1. (a) All judicial matters to be brought before the Court shall:
 - (i) be in a specific form prescribed by the High Court in the rules;
 - (ii) be drawn up in the manner prescribed by law;
 - (iii) be signed by the party or his counsel, however, pleadings in the original causes be necessarily signed by the party;
 - (iv) be properly stamped according to law;
 - (v) specify the law under which it lies;
 - (vi) be presented within the time limit prescribed by law, and, if filed beyond time, be accompanied by an application for condonation of delay;
 - (vii) be placed in the prescribed folders except in the case of Misc. application arising in a pending matter;
 - (viii) be accompanied by a photocopy of the National Identity Card of the petitioner / applicant/ appellant;**
 - (ix) be accompanied by a certificate to the effect that as per instructions of the petitioner/ applicant / appellant no such petition/application/appeal has earlier been filed in the High Court in this matter.**
- (b) All judicial matters not intended to be taken up as urgent shall be deposited in the petition box kept outside the room of the Institution Section between the working hours as may be prescribed from time to time.
- (c) (i) All judicial matters intended to be taken up urgently the next day shall be marked "Urgent" and deposited in the petition box kept outside the room of the Institution Section before 11.00 a.m.

In case a litigant is unable to deposit an urgent matter before 11.00 a.m. or if he wants it to be heard the same day, he may approach the Deputy Registrar (Judicial) for

the purpose who will look into the urgency and fix the matter for the same day or the next day, or direct the same to be fixed in motion.

- (ii) An order passed by the Deputy Registrar (Judicial) not treating the matter as urgent may be challenged before the nominated Judge on administrative side whose decision in the matter shall be final.
 - (d) The Chief Justice or in his absence the most senior Judge available at Lahore may, in his discretion, entertain at his residence an application requiring immediate orders at a reasonable hour.
 - (e) Petitions sent by litigants through post for taking judicial action shall not be entertained but returned per bearing post.
 - (f) Every memorandum of appeal shall be accompanied by copies of decree and the judgment as prescribed by Order XLI rule 1 of the Civil Procedure Code, 1908. In the case of second appeals, in addition to the documents prescribed by Order XLI rule 1 of the said Code, the memorandum shall be accompanied by a copy of the judgment unless the appellate Court dispenses therewith.**
2. ***[Omitted].
 3. ***[Omitted].
 4. Every Intra Court Appeal to the High Court under the Law Reforms Ordinance, 1972 from a judgment of a Judge sitting singly shall be presented within 20 days from the date of judgment appealed from, unless the admitting Bench in its discretion, for good cause shown, in writing, grants further time.
In an Intra Court Appeal the memorandum of appeal need not be accompanied by a copy of decree, order or judgment appealed from. The period of limitation prescribed in this rule shall be computed in accordance with the provisions of section 12 of the Limitation Act, 1908.
 5. *** [Omitted].
 6. A petition to the High Court to exercise the powers conferred by section 115 of Civil Procedure Code shall specify the particular ground on which the aid of the High Court is invoked.—
 - (a) if the ground be that the court which decided the case exercised a jurisdiction not vested in it by law, the petition shall set out clearly the particular exercise of jurisdiction complained of;
 - (b) if it be that the court which decided the case failed to exercise a jurisdiction so vested, the jurisdiction which ought, in the

petitioner's opinion, to have, and has not been exercised shall be clearly set out;

- (c) if it be that the court acted in the exercise of its jurisdiction with material irregularities the particular irregularity or irregularity complained of shall be similarly set out.
- 7. (i) Every such petition shall be stamped as required by law and shall be accompanied by certified copies of the pleadings and the documents which are necessary to support the pleas taken and the relief sought in the petition, unless the Court on sufficient cause shown orders otherwise, as well as a copy of the decree or order in respect of which such application is made and by a copy of the judgment upon which such decree is founded.
- (ii) In the case of petition for revision of the decree or order of an appellate court, a certified copy of the judgment or order of the court of first instance shall also be filed.
- (iii). Every such petition shall be made within ninety days of the decision of the subordinate court which shall provide a copy of such decision within three days thereof and the High Court shall dispose of such petition within three months without calling for the record of the subordinate court.*
- 8. A petition to exercise the power conferred by section 25 of the Provincial Small Cause Courts Act, 1887, shall specify in what particular the decree or order of the Small Cause Court is not in accordance with law.
- 9. (i) The Deputy Registrar (Judicial) is authorized to return memorandum of any suit, appeal, or petition, or application, etc., -
 - a) if it is not maintainable under any law; or
 - b) if it is not properly constituted; or
 - c) if it contains scandalous or objectionable language or material; or
 - d) if it is not drawn up in conformity with the foregoing directions; or

- e) for amendment, making up of the deficiency or for filing requisite documents, within the time to be specified in the Objection Memorandum Appendix I(a), I(b) & I(c).
 - (ii) The order of the Deputy Registrar (Judicial) returning the memorandum of any suit, appeal, petition or application may be challenged before the Chief Justice or Judge nominated by the Chief Justice on administrative side whose decision shall be final and shall not be assailed in any other proceeding before the High Court.
 - 9-A. A list of petitions, appeals, etc., ordered to be returned shall be notified on the Notice Board and petitions, appeals, etc., not received back within seven days of the publication of the list shall be placed before a Judge of the High Court for orders on a date to be notified by including such petition in a motion cause list. It is made clear that any delay in placing such petition before the Court or issuing the list shall not furnish any justification for non-receipt of the returned petition in time and non-compliance of the objection taken within time specified by Deputy Registrar (Judicial).*
 - 10. Every application for review of a judgment or order of a Division Bench, or of a Single Bench of the High Court presented by an Advocate shall be signed by him, and he shall certify that the grounds contained therein are good and sufficient grounds for the review sought. No Advocate shall be heard in support of an application for review of any such judgment or order unless and until he has certified in the manner above prescribed the grounds already taken or any amended grounds of application.
 - 11. No petition, memorandum of appeal or other document, which ought to bear a stamp under the Court Fees Act, 1870, shall be received in the Court until it is properly stamped.
 - 12. The Chief Justice has been pleased to declare that the Registrar of the High Court at the Principal Seat and the Additional Registrars of the Rawalpindi, Multan and Bahawalpur Benches shall be the Taxing Officers within the meaning of section 5 of the Court Fees Act, 1870.
- Note:** For delegation of powers to the Additional Registrars see Notification No 222-Gaz-I/V. A (17), dated the 25th of October 1989.
- 13. Attention is drawn to the provisions of sections 4 and 28 of the Court Fees Act, and it must be understood in connection with section 5 of the Limitation Act that an improperly stamped document even

though received, filed or used in the Court remains invalid, unless it is proved to the satisfaction of the Court that it was so filed or used through mistake or inadvertence, and time is extended for making up the deficiency in the Court fee.*

14. The Deputy Registrar is authorized to examine and impound under section 33 (2) (b) of the Stamp Act, 1899, any instrument not duly stamped.*

Part A (b) THE PRESENTATION OF PETITIONS FOR REVISION UNDER SECTIONS 435 AND 439 OF THE CODE OF CRIMINAL PROCEDURE.*01

1. Every petition for revision under sections 435 and 439 of Criminal Procedure Code shall state:

- (i) that no petition under the aforementioned sections has been moved before the Court of Sessions.
- (ii) the reason for not moving the Court of Sessions, and other petitions connected with judicial business of the Court shall be presented by litigants or their Advocates by depositing them in the petition box of the Court outside the room of the Institution Section between the working hours as may be prescribed from time to time.

Appeals, applications, etc., accompanied by a petition to treat the same as urgent shall, however, be presented personally to the Reader to the Deputy Registrar (Judicial) on any working day before 11.00 a.m. but may in exceptional circumstances be received not later than 12 noon.

- (iii) Appeal under section 410, Cr.P.C. shall be filed within the period of limitation prescribed by law and shall be accompanied by a certified copy of the impugned judgment of the trial court.
- (iv) Application made by the complainant under section 417 (2), Cr.P.C. shall be filed within sixty days along with the certified copies of the complaint and the impugned judgment and shall be placed before a Single Bench. In case of acceptance of the application by the Single Bench it shall be converted into appeal and shall be placed before a Division Bench.
- (v) Appeal under section 417(2-A), Cr. P.C. shall be filed by an aggrieved person against the order of acquittal within thirty days and shall be accompanied by the certified copies of the F.I.R. and the impugned judgment. This appeal shall be

placed before a Division Bench in motion and further action taken in accordance with the orders passed by the Division Bench. *01

- 1-A. With reference to section 439 (5), Criminal Procedure Code, the Deputy Registrar will not receive any petition for revision of an order of acquittal unless it is accompanied by a copy of an order of the Magistrate of the district, refusing to move the Provincial Government to appeal under section 417, Criminal Procedure Code.
2. As regards petitions under section 435 and section 439, Criminal Procedure Code, the Deputy Registrar will not receive petitions for revision of orders of original courts in non-appealable cases, unless the applicant files with his petition a copy of the order of the Sessions Judge to show that he has applied to him and his petition has been refused. The Sessions Judge can release a prisoner on bail or suspend a sentence pending a reference to the High Court.
3. Copies of all bail applications received in the High Court relating to criminal cases pending in lower courts when bail has already been refused by the lower courts shall be supplied to the Advocate General by the Deputy Registrar to enable him to appear, if desired, on behalf of the State provided that hearing of any particular case by the Judge to whom it is assigned is not delayed by this procedure.
- 3-A. Every application for bail shall be accompanied by the copy of F.I.R. and the orders of lower courts, if any, unless the Judge specifically dispenses therewith. *01
4. Petition for transfer or for revision of an interlocutory order in a pending criminal case shall be refused by the Deputy Registrar unless accompanied by attested copies of the documents relied on by the petitioner. If admitted, the records should not be sent for unless a Judge specifically so orders.
5. Petitions for transfer of cases shall *ipso facto* be treated and dealt with as urgent petitions.
6. Notice of the hearing of urgent petitions shall not be given individually to the petitioner or his counsel but a list of such petitions shall be hung up for the purpose on the notice board outside the Deputy Registrar's room and / or displayed in electronic media on the day

preceding the date fixed for the hearing of these petitions giving the name of the Judge by whom the petition will be heard.

7. In petitions for transfer of cases under section 526, Criminal Procedure Code, filed in the High Court, the Sessions Judge shall, without fail, return all notices received by him from the High Court, whether for himself or for parties, after service, within one week from the date of their receipt.
8. The Sessions Judge shall, without fail, also submit, within one week from the date of receipt of the High Court letter, all reports or explanations called for by the High Court from himself or the Magistrate concerned with regard to allegations contained in the petitions for transfer or affidavit, copy whereof will accompany the said letter.
9. In petitions under section 439, Criminal Procedure Code, against the order of a Magistrate, in cases tried summarily and in which there are no records except entries in the Register of Summary Trials (Criminal Register No. XVII), certified copies of the relevant entries in the register shall be called for, instead of the register unless otherwise directed by the Court.

PART B THE RECEPTION OF PAUPER APPEALS.

1. No application for leave to appeal as a pauper shall be received unless it is accompanied by a memorandum of appeal nor shall a memorandum of appeal purporting to be on behalf of a pauper be received unless it is accompanied by an application for leave to appeal as a pauper.
2.
 - (a) No such application or memorandum shall be received from any person other than the alleged pauper, unless it appears, on the face of the application, that the alleged pauper is a person who is exempt, under section 132 or section 133 of the Code of Civil Procedure, from personal appearance in Court . In the latter case the application or memorandum shall not be received if presented by any person other than an agent duly authorized, who is in a position to answer all material questions relating to the application, and who is willing to be examined in the same manner as the party represented by him might have been examined, had such party attended in person.
 - (b) Every such application, if presented by an agent, shall state, on the face thereof, that the applicant is a person exempted from personal appearance in Court under the provisions of section 132 or section 133 of the Code of Civil Procedure, and shall not be received unless it contains such statement.
3. When an application or memorandum of appeal is one that cannot be received under the foregoing directions, the Deputy Registrar shall record, or cause to be recorded thereon, the name of the person presenting such application or memorandum, the date of its presentation, and an order returning the same for due presentation with the reason for such order, and shall sign and date such order with his own hand.

PART C APPLICATIONS UNDER ORDER XXII, CODE OF CIVIL PROCEDURE.

(i) Legal representatives of deceased parties and appeals by persons who were not parties to the decree or order.

1. Whenever a party to a decree or order, which is appealable to the High Court, desires to appeal therefrom and to make as a respondent to his appeal the legal representative of a person who, having been a party to such decree or order, has died after the date of such decree or order, and who, if alive, would be a necessary party as a respondent to such appeal, and whose legal representative has not as such been made a party to the decree or order, or to subsequent proceedings thereunder or thereon, the party so desiring to appeal may present to the High Court for admission a memorandum of appeal with the name of such legal representative mentioned therein as such as that of a respondent if at the time when he presents such memorandum of appeal for admission, he along with such memorandum of appeal, presents an application for leave to make such legal representative as such a party as a respondent to his appeal, and, except as hereinafter provided, an affidavit stating such facts as may be necessary in support of his application: Provided always that a Judge of the High Court may, by an order under his hand, allow in his discretion a reasonable time in that behalf for the presentation of such affidavit, if it appears to him that the applicant could not by the exercise of due diligence have procured such affidavit in time for presentation along with the memorandum of appeal.
2. Whenever by a decree or order which is appealable to the High Court the interest of-
 - (a) a beneficiary in property which at the date of such decree or order was vested in or in the possession of a trustee, an executor, an administrator, or a receiver or manager appointed by a court who as such was a party to such decree or order, or
 - (b) a legal representative as such of a deceased party to such decree or order, or
 - (c) an assignee of a party to such decree or order by assignment subsequent to the date of such decree or order, or

- (d) a person whose interest arose after the date of such decree or order by reason of any creation or devolution of interest, by, through, or from any party to such decree or order is affected,

and such beneficiary, legal representative, assignee, or person was not or has not been made a party to such decree or order or to proceedings thereunder or thereon, and desires to present to the High Court for admission a memorandum of appeal from such decree or order, he may name himself therein as an appellant if at the time when he presents such memorandum of appeal for admission he along with such memorandum of appeal presents an application for leave to make himself an appellant, and, except as hereinafter provided, an affidavit stating such facts as may be necessary in support of his application:

Provided always that a Judge of the High Court may, by an order under his hand, allow in his discretion a reasonable time in that behalf for the presentation of such an affidavit, if it appears to him that the applicant could not by the exercise of due diligence have procured such affidavit in time for presentation along with the memorandum of appeal.

3. Whenever in any suit or appeal from the decree or order, in which an appeal may be preferred to the High Court, a party has, before the appealable decree or order in such suit or appeal has been made, died, and the name of such deceased party appears in such decree or order as that of a party thereto, and his representative has not been brought upon the record, and such deceased party would, if alive, be a necessary party to an appeal to the High Court from such decree or order, and any party to such decree or order, or the legal representative of any such party, having a right of appeal from such decree or order, desires to appeal from such decree or order, and to make the legal representative of such deceased party a party to the appeal, he may present to the High Court for admission a memorandum of appeal with the name of such legal representative mentioned therein as a party to the appeal, if at the time when he presents such memorandum of appeal for admission he along with such memorandum of appeal presents an application for leave to make such legal representative a party to the appeal, and, except as hereinafter provided, an affidavit showing that he did not know, before the decree or order from which he desires to appeal was made, that such deceased party had died, or that he had no reasonable opportunity of informing the Court which made the decree or order, before such decree or order was made, that such deceased party was dead, and stating such other facts as may be necessary in support of his application: Provided that a Judge of the High Court may, by an order under his hand, allow in his discretion

a reasonable time in that behalf for the presentation of such affidavit, if it appears to him that the applicant could not by the exercise of due diligence have procured such affidavit in time for presentation along with the memorandum of appeal.

4. Whenever after a memorandum of appeal has been presented to the High Court, any appellant or any party interested in the maintenance of any objection filed in the appeal under Order XLI rule 22 or 26 of the Code of Civil Procedure first ascertains that a person, whose name appears in the memorandum of appeal as that of a party to the appeal, and who, if alive, would be a necessary party to such appeal or objection, had died before the memorandum of appeal was presented to the High Court or admitted, such appellant or party so interested as aforesaid may, but subject to the law of limitation, apply for an order that the memorandum of appeal be amended by substituting for the person, who had so died as aforesaid, his legal representative, if at the time when he presents such application, he along with such application, except as hereinafter provided, presents for filing an affidavit showing that such application is made with all reasonable diligence after the fact of the death of such person first came to the knowledge of such applicant or the agent, if any, acting on his behalf in the litigation: Provided that a Judge of the High Court may, by an order under his hand, allow in his discretion a reasonable time in that behalf for the presentation of such affidavit, if it appears to him that the applicant would not by the exercise of due diligence have procured such affidavit in time for presentation along with application.

- 4-A. (1) In every appeal of the nature referred to in Order XXII rule 3 of the Code of Civil Procedure, the memorandum of appeal shall be accompanied by a statement giving:
 - (a) the names and addresses of the persons who, in the event of the death of the appellant, may be made a party as his legal representatives; and
 - (b) the name and address of the person who, in the event of the death of the appellant, shall intimate such fact to the Court, furnish the Court with the names, particulars and addresses of the legal representatives of the appellant and make an application for the legal representatives to be made a party.
- (2) (a) An appellant may at any time file in the Court an amended list of his presumptive legal representatives; and

(b) nominate another person, in the place of the person nominated under clause (b) of sub-rule (1), for the purposes of that clause.

(3) A nomination made under clause (b) of sub-rule (1) shall, unless varied under clause (b) of sub-rule (2), remain in force throughout the pendency of the appeal and any proceedings arising therefrom, including appeal and review.

(4) If the appellant has filed the aforesaid statement in the suit giving rise to the appeal it shall stand superseded by the statement filed under this rule.**

4-B. (1) In every appeal of the nature referred to in Order XXII rule 4 of the Code of Civil Procedure the respondent shall by the date, Farzi or actual, specified in the notice of the appeal served on him, file a statement giving:

(a) the names and addresses of the persons who in the event of the death of the respondent, may be made a party as his legal representatives; and

(b) the name and address of the person who, in the event of the death of the respondent, shall intimate such fact to the Court, furnish the Court with the names, particulars and addresses of the legal representatives of the respondent and make an application for the legal representatives to be made a party.

(2) (a) A respondent may at any time file in the Court an amended list of his presumptive legal representatives; and

(b) nominate another person in the place of the person nominated under clause (b) of sub-rule (1), for the purposes of that clause.

(3) A nomination made under clause (b) of sub-rule (1) shall, unless varied under clause (b) of sub-rule (2), remain in force throughout the pendency of the appeal and any proceedings arising therefrom, including appeal or review.

(4) If the respondent has filed the aforesaid statement in the suit giving rise to the appeal, it shall stand superseded by the statement filed under this rule.

(5) Notice of appeal issued to the respondent shall contain direction requiring him to file the statement referred to in sub-rule (1) by the date specified in the notice.**

(ii) General Rules as to Suits and Appeals.

5. Every application-

(a) under Order XXII rules 3 (1) and 11 of the Code of Civil Procedure, by a person claiming to be legal representative of

deceased plaintiff or appellant to enter his name on the record in place of the deceased party;

- (b) under Order XXII rules 4 and 11 of the Code of Civil Procedure, to make the legal representative of a deceased defendant or respondent a party in place of the deceased; and
- (c) under the second clause of Order XXII rule 3 of the Code of Civil Procedure, by a defendant or respondent;

shall, in addition to any particulars required by law, state approximately the date of the death of the deceased party.

6. Every application under Order XXII rule 9 (read with rule 11) of the Code of Civil Procedure, by a person claiming to be the legal representative of a deceased party, or the assignee or the receiver of the insolvent plaintiff or appellant for an order to set aside any order made or judgment passed in his absence shall state the cause which prevented him from continuing or defending the suit or appeal, as the case may be.*
7. Every application of the kind specified in rules 5 and 6 of these rules and every application under Order XXII rule 10 of the Code of Civil Procedure, to make the petitioner or some other person an additional or substituted party in a suit or appeal, shall, as to the allegations of fact contained in such application, be verified by affidavit.
8. Every application under Order XXII of the Code of Civil Procedure shall ordinarily be presented to the Deputy Registrar, who shall cause the date of presentation to be entered thereon.
9. The Deputy Registrar shall examine the application, and, if it does not satisfy the requirements of the Code or of these rules in that behalf, may return it to the person presenting it, for amendment and re-presentation within a time to be noted on such application under his signature, or may refer the application to a Judge for orders.

10. Any such application may be presented to a Judge or to a Bench (as the case may be) on the date fixed for the hearing of the case; but unless sufficient cause be shown for the application not having been presented in the ordinary course to the Deputy Registrar, before such hearing, the applicant will become liable to pay the costs of any adjournment or postponement caused by the omission to present the application to the Deputy Registrar.
11. When an application to have the name of the legal representative of a deceased party, or the name of an additional or substituted party, brought on the record, or to have the name of a party struck off the record, is granted by order of a Judge or Bench (as the case may be), the Deputy Registrar shall cause the record of the proceedings in the High Court to be amended in conformity with such order.
12. Every person admitted on the record as the legal representative of a deceased plaintiff, defendant, appellant or respondent, shall be described as "the legal representative of A.B., deceased plaintiff"(or defendant, appellant or respondent, as the case may be); and, similarly in the case of an insolvent plaintiff, defendant, appellant, or respondent.

(iii) Special Rule as to Suits.

13. Application under Order XXII of the Code of Civil Procedure, in original suits, when presented to the Deputy Registrar, shall, subject to rule 9 of these rules, be laid by him for orders before a Judge who shall ordinarily be the Judge before whom the suit to which it relates is pending.

(iv) Special Rules as to Appeals.

14. When an application of the kinds specified in rule 5 of these rules is presented to the Deputy Registrar in relation to an appeal pending before the Court, and is deemed by him sufficient, without or after amendment, and the Deputy Registrar does not deem it necessary to refer the application for the order of a Judge, he is authorized to make an order granting the application "subject to all just exceptions" and to cause the necessary amendments to be made in the memorandum of parties' names and notices to be issued to the

parties concerned to show cause on the date fixed for hearing the appeal.

15. Every application under Order XXII of the Code of Civil Procedure, not falling within rule 14 of these rules or not granted under that rule, shall be laid before a Judge for orders.

(v) Rules as to proceedings other than Suits and Appeals.

16. (i) The foregoing rules shall apply to all proceedings of a civil nature, other than suits or appeals, to which Order XXII of the Code of Civil Procedure is applicable.
- (ii) So far as possible, the provisions of the foregoing rule shall also apply to proceedings in the constitutional petitions.

**PART D THE REPRESENTATION OF MINORS AND PERSONS OF
UNSOUND MIND.**

1. Whenever a Judge or Bench sees cause to appoint a next friend of a minor plaintiff or appellant or a guardian in the suit or appeal of a minor defendant or respondent, and an order to that effect is passed, the Deputy Registrar shall cause the memorandum of parties' names in the suit or appeal to be amended accordingly.
2. In every appeal presented to the Deputy Registrar in which it appears from the memorandum of appeal or the copies of the judgments filed therewith, that the appellant or respondent or any of the appellants or respondents is a minor, the Deputy Registrar shall cause a note to be made on such appeal for the information and orders of the Judge or Bench exercising jurisdiction in the appeal.
3. No notice in relation to an appeal shall be issued to any respondent who, from the memorandum of appeal or the proceedings of the lower courts, appears to be a minor, unless and until a guardian for such minor has been appointed by an order of the Court or unless the issue of such notice be authorized by the special order of a Judge.
4. The foregoing rules shall apply, so far as may be, to proceedings in review of judgment or in revision and to proceedings of a civil nature other than suits or appeals, to which Order XXXII of the Code of Civil Procedure is applicable.
5. The foregoing rules relating to the representation of minors shall apply, *mutatis mutandis*, to the representation of persons of unsound mind, adjudged to be so under any law for the time being in force.
6. The foregoing rules are subject to the provisions of Order XXXII rule 16 of the Code of Civil Procedure.
7. Nothing in the foregoing rules shall be deemed to require that any order made thereunder shall be made or signed by more than one Judge of the Court.

PART E THE MAKING AND FILING OF AFFIDAVITS IN THE HIGH COURT.

1. Affidavits intended to be presented in the High Court in support of any memorandum of appeal, cross-objection on appeal, application for review or petition for revision or any other application or petition under the Code of Civil Procedure, shall be drawn up and attested in the manner prescribed for the Civil Courts of the Punjab by the rules made by the High Court in that behalf, and be declared before some Court or Magistrate or officer appointed to administer the oath to the deponent.
2. When a memorandum of appeal, cross-objection on appeal, application for review or petition for revision or any other application or petition presented in a suit or appeal under the Code of Civil Procedure, or in a proceeding to which section 141 of the Code applies, contains an assertion of any fact or facts contrary to or outside the record, or not supported by evidence already on the record, such assertion shall be supported by one or more affidavits.
3. Such affidavit shall ordinarily be presented with the memorandum of appeal, cross-objection, application or petition.
4. Any ground contained in any such memorandum of appeal, cross-objection, application, or petition containing an assertion of fact not supported by affidavit may on the hearing thereof be ordered, by the Judge or Bench, to be struck out or amended summarily, unless leave be granted to present an affidavit in support thereof.
5. Facts asserted by a party showing cause against any appeal, application or petition supported by affidavit, shall likewise be supported by affidavit, whether the facts asserted be in contradiction of the facts asserted in support of the same or be fresh matter. Such affidavits must ordinarily be presented before the date fixed for the hearing but may with the permission of the Judge be presented at the hearing.
6. When upon any application any evidence is to be given, such evidence shall ordinarily be given by affidavit as provided in Order XIX rule 2 of the Code of Civil Procedure, and not otherwise, unless by an order of a Judge or Bench.

Explanation. - Evidence given in support of any of the following or similar applications should be given by affidavit unless otherwise ordered:-

- (a) application to admit an appeal or application which is *prima facie* barred by time;
- (b) application to add parties or to substitute representatives of parties;
- (c) application to re-admit an appeal or application which has been dismissed for default or to re-hear an appeal heard in the absence of the respondent;
- (d) application to transfer or withdraw a suit or appeal;
- (e) application to stay execution of decree or order;
- (f) application for security of costs; and
- (g) application for leave to appeal in *forma pauperis*.

7. Affidavits intended to be used in any proceeding before the High Court may be presented, unless otherwise directed, to the Judge or Bench at the time when the proceeding is called on, or before such time to the Deputy Registrar, who shall thereupon file them with the proceeding after noting thereon the date of presentation.

8. Under the provisions of section 139(b) of the Code of Civil Procedure and section 539 of the Code of Criminal Procedure, certain ministerial officers of the High Court are appointed from time to time by the High Court to administer oaths and affirmations to deponents of affidavits required to be presented in the High Court. The rules and instructions contained in Chapter 12, Parts A and B, High Court Rules and Orders, Volume IV, will be followed in all respects. The names of the ministerial officers so appointed in the High Court from time to time are communicated to the High Court Bar.

**PART F PROCESSES ISSUED BY THE HIGH COURT IN THE EXERCISE OF
ITS JURISDICTION.**

1. A fee of rupees ten in court-fee labels shall, subject to rules in Chapter 5–B, High Court Rules and Orders, Volume IV, be charged for each summon, notice or other process issued by the Court.

Whenever there is default in payment of process fee, printing charges or similar dues, the official concerned may without reference to the Deputy Registrar or any other officer place the case before the Registrar after informing the Advocate concerned of the date and the Registrar may permit the deposit of the fee, charges or other dues, as the case may be, within a further period of seven days. In the event of further default, the case shall be placed before the Court for orders.

However, the office may accept the fee, charges or dues before the case is actually placed before the Registrar.*

**PART G LAHORE HIGH COURT (ESTABLISHMENT OF BENCHES)
RULES, 1981.**

In exercise of the powers conferred by Clause (3) of Article 7 of the Provisional Constitution Order, 1981 (CMLA Order No.1 of 1981), the Governor of the Punjab, in consultation with the Chief Justice of the Lahore High Court, was pleased to make the following rules, vide Notification No. SO (CAB)-III-1-17/81 dated 16th July, 1981:-

1. (1) These rules may be called the Lahore High Court (Establishment of Benches) Rules, 1981.
 (2) They shall come into force at once.
2. In these rules, unless the context otherwise requires-
 - (a) "Bench" means a Bench established under clause (3) or clause (4) of Article 7 of the Order;
 - (b) "Chief Justice" means the Chief Justice of the Lahore High Court and includes the Judge for the time being acting as Chief Justice of the Lahore High Court;
 - (c) "Judge" means a Judge of the Lahore High Court and includes the Chief Justice, Acting Chief Justice, or Additional Judge of the Lahore High Court ;and
 - (d) "Order" means the Provisional Constitution Order, 1981 (CMLA Order 1 of 1981).
3. All matters arising within the area assigned to a Bench shall be filed before and disposed of by that Bench, unless otherwise directed by the Chief Justice.
4. There shall be established a "Registry" of the High Court at each Bench consisting of an Additional Registrar and such other officers and servants of the High Court as the Chief Justice may appoint to receive proceedings to be heard before that Bench.
5. The Chief Justice may transfer any proceedings pending at the Principal Seat of the Lahore High Court or a Bench to another Bench or the Principal Seat of the Lahore High Court.
6. The Chief Justice may determine cases or class of cases which may be disposed of at the Principal Seat or a Bench, as may be deemed expedient.
7. If at any time it is found expedient for the efficient functioning of the Principal Seat, the Benches or the Circuit Courts, the Chief Justice may require any Judge to sit, for such period as may be determined by him, at any Bench, Circuit Court or at the Principal Seat.

8. A Judge nominated by the Chief Justice under clause (5) of Article 7 of the Order to sit at a Bench shall be entitled to the same allowances and privileges as may be admissible to a Judge on transfer under clause (2) of Article 10 of the Order.
9. The area assigned to each Bench shall be its Civil Division:
Provided that if in the interest of justice or efficient working of the Bench it is considered necessary, the Chief Justice may with the prior approval of the Governor make adjustments in the above areas.
10. The most Senior Judge for the time being at a Bench shall exercise such powers of the Chief Justice as may be delegated to him by the Chief Justice.
11. Without prejudice to the generality of the foregoing rules and subject to the provisions of the Order, the Chief Justice may, from time to time, pass such orders as may be considered necessary for efficient working of the Benches.

Appendix I (a) (Civil)

IN THE LAHORE HIGH COURT, LAHORE

OBJECTION MEMO

ADVOCATE:

DIARY NO. _____

1. It is time barred by _____ days.
 2. Separate application under section 5 of the Limitation Act for condonation of delay may be filed.
 3. Court fee is insufficient to the extent of Rs. _____.
 4. Court fee is insufficient to the extent that it should be paid according to section 7 of the Court Fees Act 1870, as amended by Punjab Finance Act of 1973.
 5. Certified copy of the judgment/decreed/order of the trial court to be filed.
 6. Certified copy of the judgment/decreed/order under appeal/revision to be filed.
 7. Prescribed form of the appeal to be filed/filled.*
 8. Proper section of law in stay/vacation of stay/dispensation/T.A. to be quoted.
 9. Properly executed complete/fresh _____ power of attorney to be filed.
 10. Properly attested affidavit to be filed (correct affidavit).
 11. Receipt of Rs.500/- advance printing charges to be filed as required by rule 8, Chapter 2-A, High Court Rules and Orders, Volume-V.*
 12. Opening form duly filled is to be attached.
 13. Entries in the opening form need correction/completion.
 14. Correction/cutting to be properly authenticated.
 15. How Appeal/Revision/Application is competent.
 16. Memo of parties to be filed.*
 17. The matter being D.B. requires 1+3 copies of paper books to be supplied alongwith 3 file covers.**
 18. A certificate that no Appeal/Revision/T.A. in the matter was filed earlier be appended.
 19. Impugned order to be flagged and page marked according to index/pages are not marked.
 20. Receipt of Rs.5/- as advance typing charges in L.C.A. to be appended.
 21. Certified copies of pleadings and/or other documents have not been filed.*
 22. Pages are not properly arranged.
 23. Please file better written typed copies of pages: _____.
 24. Please affix revenue stamp of 3.00/- rupees on each non-judicial paper, pay court fee of Rs. 2/- on decree and 50 paise on each sheet of certified copies.*
 25. Each better copy be certified as "compared with the original/certified copy and found correct".
 26. Uncertified copies of pages _____ be replaced with certified copies.
 27. Signature or code number of the counsel is wanting.
- Returned with objection/s at serial No(s) _____ above.
- To be re-submitted after removal of these objections within _____ days subject to limitation.*

D.R.R. (CIVIL)

A.R.(Judl.)/D.R.(Judl.)

Appendix I (b) (Writ)
IN THE LAHORE HIGH COURT, LAHORE

OBJECTION MEMO**ADVOCATE:****DIARY NO.** _____

1. The court fee is insufficient to the extent of Rs. _____
 2. Revenue stamps worth Rs.3.00 to be paid for each non-judicial paper.
 3. Signature or code number of learned counsel is wanting.
 4. Certified copy of the impugned order to be filed.
 5. _____ spare copies to be filed.
 6. All annexures and impugned order to be flagged.
 7. Certificate to the effect that no other petition (I.C.A./Review) of the same subject matter was filed, should be appended.
 8. List of books to be added.*
 9. Un/certified copies and dim ones to be replaced with bright hand-written/typed ones.
 10. Documents/copies which are with pencil should be replaced with the ones in ink.
 11. Documents/copies which are with pencil should be replaced with the ones in ink.
 12. _____ approved file covers to be supplied.
 13. Duly executed Power of Attorney to be filed.
 14. Typed index to accompany the petition.
 15. Uncertified copies of annexures to be attested by learned counsel giving his name in block letters.
 16. Application to dispense with the production of certified copies of the impugned order/annexures with necessary particulars to be filed.
 17. Annexure(s) is /are insufficiently stamped to the extent of Rs. _____*
 18. Names of respondents/contemners wanting since the present petition relates to contempt proceedings.*
 19. Petition/Appeal has not been signed by an authorized person.
 20. Certificate to be appended to the effect that the officer, impleaded by name, as respondent has personal liability.
 21. An affidavit duly attested to be filed.
 22. One writ petition is not competent. Separate writ petition of each petitioner to be filed.
 23. Writ petition is not arranged according to the office order/index.
 24. Certificate to be given to the effect that I.C.A./Review is competent.
 25. Please file it at _____ Seat Bench.
 26. Copies to be delivered to the office of Attorney General/Advocate General.*
 27. Petition is not paged nor the annexures marked.*
 28. Writ petition cannot be entertained against private person.
 29. Certificate " compared with the original/certified copy and found correct" to be given on every better copy.
 30. Computer slip/Code number to be given.
 31. Details of the annexures mentioned in the index be given i.e. original, certified or uncertified.
 32. Certified copies of annexures _____ to be filed.
 33. _____
 34. _____
- Returned with the objection/s at Serial No (s). _____ above.
 To be resubmitted after removing the objection within _____ days.*

D.R.R. (WRIT)

A.R.(Judl.) /D.R.(Judl.)

Appendix I (c) (Criminal)
IN THE LAHORE HIGH COURT, LAHORE

OBJECTION MEMO

ADVOCATE:
DIARY NO. _____

1. Revenue stamps of Rs.3.00 to be paid for each non-judicial paper.
 2. Signature of the counsel of the appellant/petitioner is wanting.
 3. The provision under which the appeal/petition has been filed be mentioned/corrected.
 - 3-A. Documents/copies which are with pencil should be replaced with the ones in ink. ^{~01}
 4. Approved file cover be filed. ^{~01}
 5. Affidavit is not attested/appended.
 6. Appeal/petition and certified copies of annexures are not properly indexed/paged/marked. ^{~01}
 7. Certificate to be furnished as to whether any Appeal/Petition on the subject was previously filed. ^{~01}
 8. No indication of urgency on the form.
 9. There should be separate application for each prayer.
 10. Copy of Appeal/Petition has not been delivered to the office of the Attorney General/Advocate General. ^{~01}
 11. The Appeal/Petition is barred by _____ days. ^{~01}
 12. Certified copy of _____ be filed. ^{~01}
 13. Correct number of referred case(s) has not been given.
 14. Memorandum of parties' names has not been filed. ^{~01}
 15. Petition containing over-writing, addition and deletion is not entertained. Kindly file fairly drafted petition.
 16. Appeal/Revision is not competent.
 17. Power of Attorney has not been attached.
 18. Petition should be signed by a person competent to do so. ^{~01}
 19. Case relates to _____ Seat/Bench.
 20. Please specify where the petitioner/appellant is confined/detained?
 21. _____ spare copies be filed.
 22. Prescribed form of revision/appeal be filed. ^{~01}
 23. Appeal/petition/documents be paged/ flagged/ marked.
 24. Certificate "compared with the original/certified copy and found correct and nothing has been deleted, added, omitted or changed" by the counsel, if engaged, otherwise by the petitioner, be given on every better copy.
 25. Please give certificate with regard to uncertified copies placed on record that you have checked yourself and no deletion, addition, omission or change has been made therein.
 26. Certificate to be furnished by learned counsel that the petitioner in the pre-arrest bail is genuine person and that he identifies him or a photocopy of National Identity Card of the petitioner be filed.
 27. Typed index to accompany Appeal/Petition. ^{~01}
 28. Separate application for condonation of delay under section 5 of the Limitation Act should be filed.
 29. Computer slip/Bar Code number to be furnished.
- Returned with the objection (s) at serial No (s). _____ above.
- To be re-submitted after removing the objection (s) within limitation/ _____ days. ^{~01}

D.R.R. (CRIMINAL)

A.R(Judl.)/D.R. (Judl.)

CHAPTER 2

Preparation of Paper Book and Records

PART A THE PREPARATION OF PRINTED RECORDS IN FIRST APPEALS.

1. In first appeals from orders no printing will be required unless specially directed by the Judge admitting the appeal, who will in that case order at his discretion the printing of either
 - (i) an ordinary paper book, or
 - (ii) a printed record under these rules.
2. In first appeals from decrees admitted to a hearing, a printed record shall, unless special orders are given to the contrary, be prepared in accordance with the instructions hereinafter contained.
3. In the absence of a special order the printed record under rule 2 shall consist of:
 - (i) (a) The plaint and pleas.
 (b) Such documents either referred to in the plaint as forming the basis of the suit or considered by the trial court in its judgment, or duly proved by either of the parties in the trial Court, as may be specified by either party in response to a printed notice within the period of 30 days prescribed in rule 5 (i).
 - (ii) The autograph record of the trial court.
 - (iii) The report of the local Commissioner, if any, appointed under Order XXVI of the Civil Procedure Code. With the report should be printed any statements of the parties recorded before the Commissioner and tabular statements prepared by him, if they form an integral portion of his report.
 - (iv) Evidence taken on commission under Order XXVI of the Civil Procedure Code.
 - (v) The grounds of appeal to the High Court, in English.
 - (vi) The order of the Judge or Bench admitting the appeal.

4. Any part of the record not printed under rule 3 may be referred to at the hearing with the permission of the Court, but no party shall have a right to refer, during the hearing, to any documents not printed:
Provided that extracts from Revenue Records need not be printed *in extenso*. The parties may refer to the original record for such extracts, maps and plans.
5. (i) The Deputy Registrar shall, as soon as the record in a First Appeal has been received, cause notice to be given to the appellant and respondent, or their counsel if any, to specify within 30 days of the date of notice the documents mentioned in rule 3 (i)(b) above, which should be included in the printed record of the appeal. In default of their doing so, the printed record will consist of the documents specified in rule 3 (i) (a) and (ii) to (vi) only.
- (ii) The cost of including the documents specified in rule 3 (i) (a) and (ii) to (vi) shall be borne by the appellant and shall be paid as provided for in rules 8 and 9 below.
- (ii) The cost of including the documents mentioned in rule 3 (i) (b) shall be borne by the party at whose instance they are so included and must be paid within 30 days from the date of demand; otherwise they shall be excluded.
6. All documents included in the printed or photocopied record shall be printed or photocopied according to their serial order, first those produced by the plaintiff and then those produced by the defendant. On each document shall be endorsed the order by, and date on, which it was admitted by the trial court:
Provided that when counsel for both the parties agree that the documents should be arranged for convenience in a different order, the documents shall be printed in that order. In that case, a footnote shall be added on the first page of the volume of documents that the documents have been printed in the order suggested by counsel for the parties.
7. Vernacular documents printed or photocopied by desire of parties under rule 5 shall not ordinarily be translated into English unless especially desired in writing by the party at whose instance they are included in the printed or photocopied record.

Note: Documents in Hindi, Gurmukhi and other characters shall, if their translation into simple idiomatic Urdu is not already on the record, be sent to the trial Court for this purpose. The parties shall be required to

appear before the trial Court to assist in the translation of such documents. Failure on their part to do so will result in the omission of such documents from the printed or photocopied record. The translation shall be accompanied by an affidavit as to its correctness.

8. In every appeal in which under these rules a record has to be printed or photocopied, the appellant shall, with his appeal, attach a receipt for a sum of five hundred rupees which should be deposited with the Treasurer of the High Court to cover the cost of printing or photocopying the record. No first appeal from a decree shall be received unless such receipt accompanies it.

Exception.- This rule does not apply to an appeal filed in *forma pauperis*, in which case the appellant will be required to pay the approximate cost of printing or copying of such portion of the record as the Judge admitting the appeal, may, under rule 2 of this chapter, order.*

9. (a) If the deposit required under rule 8 proves insufficient to cover the cost of that part of the printed or photocopied record which is to be borne by the appellant, the Deputy Registrar may, by a notice in writing, require that such further deposit as seems to him necessary shall be made within one month.
- (b) If such further deposit be not made within one month from the date of receipt of the notice, the appeal shall, on the expiry of that period, be sent, without notice to the appellant, to a Judge for an order of dismissal: Provided that, if the appellant makes an application within fifteen days after dismissal for the suspension of this rule, he may be granted one period of fifteen days in which to pay the deposit. Should he again make default, the appeal shall forthwith be sent, without notice to the appellant, to a Judge for an order of dismissal or other disposal.
- (c) When after deposit an *ad interim* order has been passed in the appeal it shall be discharged unless the further deposit, if any, is made within the period specified, according to clauses (a) and (b) of this rule.
10. The period fixed by rule 9 for the payment of the deposit may, on cause being shown in an application duly stamped, be enlarged by an order of the Court so as to permit the amount of such deposit to be paid by installment.
11. Such number of copies of the record shall be printed or photocopied as the Court may, by general rule in this behalf or by special order in any particular case, direct.

Note: The number of copies ordinarily to be printed has been fixed at ten. Enough copies should be printed or photocopied to enable juniors watching the case to be provided with them.

12. The appellant and respondent may each obtain two copies of the printed or photocopied record free of charge and one additional copy free of charge for each Advocate or Pleader employed in excess of two. Additional copies, if available, may be purchased at two rupees per page of printed or photocopied matter.*
13. Parties and counsel shall be entitled to receive copies of the printed or photocopied record on application to the Registrar or Deputy Registrar at least one month before the date fixed for hearing.
14. (a) At the foot of every printed record shall be noted the amount of the printing and incidental charges and the party from whom levied, and such amount shall be included in the costs of the appeal unless the Court shall in any case otherwise direct.
(b) Should the amount so charged be less than the sum or sums deposited under rules 5, 8 and 9, the Registrar or the Deputy Registrar shall refund the unexpended balance to the party by whom the deposit was made. Should it be more he will take action under rule 9 or 10.
15. The Registrar or the Deputy Registrar may and, if so required by either party by petition duly stamped, shall refer to the Court any matter not herein expressly required to be referred.
16. For the purposes of these rules, when an order of the Court is required, the order of one Judge shall be sufficient and such order shall, subject to reconsideration by the Bench hearing the appeal, be conclusive.
17. (a) When an order has been made by a Division or Full Bench, under Order XLI rule 25 or rule 27 of the Code of Civil Procedure, in an appeal to which these rules have been applied, and additional evidence has been taken in pursuance of such order, a Judge may, at any time after completion of the record of the enquiry, make an order that a supplementary printed or photocopied record be prepared of:
 - (i) the order made under Order XLI rule 25 or rule 27, Civil Procedure Code, and
 - (ii) the proceedings taken thereunder or any part thereof.

- (b) The order shall direct by which party or parties the expense of preparing the supplementary record or any part thereof shall be borne in the first instance.
- (c) When a Judge's order for the preparation of a supplementary record has been made, the Registrar or the Deputy Registrar shall deal with the matter under the foregoing rules so far as applicable.

SCHEDULE A

Index of the papers printed.

FIRST APPEAL NO. OF

(Name) (Plaintiff or Defendant) – Appellant.

(Name) (Defendant or Plaintiff) – Respondent.

Sr. No.	Date of the document, etc.	Description of the document, etc.	Page.
		Petition of plaint (documents referred to in the plaint or considered in the judgment or duly proved by either of the parties in the trial court). Written statement of defendants. Plaintiffs' replication to above. Defendants' rejoinder to above. Issues. Plaintiffs' oral evidence (each witness by name). Defendants oral evidence (each witness by name). Notes of the arguments advanced by the parties. Judgment of the trial Court. Decree of the trial Court. Petition of appeal to the High Court. Order of Judge admitting the appeal to a Bench.	

N.B.-- Intermediate orders of the Court should be inserted in
 chronological order as they occur.

SCHEDULE B

The work of transcribing, transliterating, translating, printing and photocopying the record will be charged for at the following rates under rules 5, 8 and 9: -

Typing and revising the record per 1000 words Rs.10/-

Photo copy per page of printed matter Rs. 2/-

Note: Since the printing of paper-books has been dispensed with, the rates for transcribing, examining, certifying, transliterating and translating work are not being fixed.

PART B THE PRINTING OF PAPER-BOOKS IN SECOND APPEALS AND REVISIONS.

1. (1) Paper-books shall be printed in all second appeals and revisions admitted to a hearing before or referred to a Division Bench or a Full Bench, unless there is an order to the contrary, passed by the Motion Bench or the referring Judge or Judges.
 (2) No paper-book shall be printed in second appeals admitted to hearing before a Single Judge, except when so ordered by the Motion Bench.

2. The printed paper-book shall consist of :-
 - (a) copies or translations of the judgments of the lower courts and the decree of the lower appellate court,
 - (b) the grounds of appeal or revision and a memorandum of the names of the parties or, if the appeal or revision was filed in vernacular, a translation thereof, and
 - (c) a copy of the order of the Judge admitting the case to a Bench.

3. (1) In every appeal and cross appeal in which a paper-book has under these rules to be printed, the appellant shall, within fifteen days of the date of the order admitting the appeal, deposit with the Treasurer of the High Court, a sum of rupees five hundred to cover the cost of the paper-book at the rates specified in the Schedule.*
 (2) An additional sum of rupees fifty for translating the plaint and pleas shall be similarly deposited in every case in which the plaint and the pleas are to be included in the paper-book. The plaint and pleas shall not, however, be printed except at the express request of the parties or their counsel, or, when so directed by the Judge or Judges admitting the appeal.*

4. If the appellant or respondent fails to deposit the sum or sums required under rule 3 within the prescribed period, the procedure laid down in clause (b) of rule 9 of Part A of this Chapter shall be followed.

5. Such number of copies of the paper-book shall be printed as the Court may, by general rule in that behalf or special order in a particular case, direct.

Note: The number of copies ordinarily to be printed has been fixed at thirteen. Enough copies should be printed to enable juniors watching the case to be provided with a paper-book.

6. Each appellant and the respondent appearing separately may obtain two copies of the printed paper-book free of charge, and additional copies, if available, may be purchased at rupees two per page.*
7. (1) At the foot of every printed paper-book shall be noted the amount of printing and other charges, and the party from whom levied, and such amounts shall be included in the costs of the appeal, unless the Court in any case directs otherwise.
(2) Should the amount so charged be less than the sum or sums deposited under rule 3, the Registrar or the Deputy Registrar shall refund the unexpended balance to the party by whom deposit was made. Should it be more, he will take action under rule 4.
8. For the purposes of rules 3 to 7 the expression “appeal” shall include a petition for revision admitted to a hearing before a Division Bench or referred to a Full Bench and the expression “Appellant” shall include a petitioner in the revision petition.*

Schedule **(referred to in rule 3).**

The work of transcribing, transliterating, translating, printing and photocopying the record will be charged for at the following rates under rule 3:-

Typing and revising the record per 1,000 words Rs. 10.00

Photo copy per page of printed matter Rs. 2.00

Note: Since the printing of paper-books has been dispensed with, the rates for transcribing, examining, certifying, transliterating and translating work are not being fixed.*

PART C PREPARATION OF PAPER-BOOKS IN INTRA COURT APPEALS.

1. In Intra Court Appeals no printing will be required unless specially directed by the Judges admitting the appeal.*
2. The paper-book in such appeals shall ordinarily consist of –
 - (c) the memorandum of appeal;
 - (c) a copy of the judgment appealed from;
 - (c) a copy of the paper-book which was before the Judge from whose judgment the appeal is preferred.
3. The paper-book shall be prepared in duplicate for the use of the two Judges of the Bench by which the motion for admission of the appeal is heard. One copy shall be made up from the contents of the original record. The other shall be prepared at the expense of the appellant.
4. In every Intra Court Appeal, the appellant shall, with his appeal, attach a receipt for a sum of Rs.100/-, which should be deposited with the Treasurer of the High Court, to cover the cost of the preparation of the second paper-book at the rates laid down in Schedule B to Part A.

PART D PREPARATION OF PAPER-BOOKS IN CUSTOM/USAGE
CASES.

***[Omitted].

**PART E THE TRANSLATION OF CERTAIN VERNACULAR
DOCUMENTS PRESENTED TO THE HIGH COURT.**

1. (i) Such vernacular documents filed in the High Court in its civil appellate or civil revisional jurisdiction as may from time to time be prescribed by the Court,* shall be translated, and, subject to rule 4, the expense of such translation shall be paid by appellant or petitioner.
- (ii) Nothing in this part shall be deemed to require the translation of any documents into English for presentation to a Judge sitting in Single Bench.
2. The translation shall be made and certified by such agency as the Court may from time to time appoint, and the maximum total charge shall not exceed thirty rupees for one thousand words.*
3. On the presentation of an appeal or petition to which these rules apply, the person presenting the same shall deposit the amount required to defray the cost of translation, if any, and no appeal or petition will be accepted unless accompanied by such deposit.
4. The Court, in regard to any particular class or classes of cases, by a rule of Court, and a Judge, in respect of any particular case not provided for by rule of Court, by an order stating the grounds thereof, may dispense with the payment prescribed by these rules.

* The following vernacular documents are required to be translated:-

- (1) Memorandum of appeal.
- (2) Petition for revision.
- (3) Annexures to such memorandum or petition.
- (4) Copies of decrees, judgments or orders.
- (5) Application for--
 - (i) review of judgments of the High Court;
 - (ii) appointment of guardian *ad litem*;
 - (iii) appointment of new parties or representatives of existing or deceased parties;
 - (iv) re-admission of case for--
 - (a) non-appearance; or
 - (b) non-payment of translation, printing or process fees;
 - (v) stay of execution of decrees;
 - (vi) transfer;
 - (vii) alteration of dates of hearing ;
 - (viii) compliance with or connected with the rules relating to the preparation of printed records.
- (6) Returns to orders of remand of the High Court.
- (7) Objections to orders of remand of High Court.
- (8) Deed of compromise.

CHAPTER 3

Jurisdiction

PART A RULES REGULATING THE PRACTICE OF THE HIGH COURT IN THE HEARING OF CAUSES AND OTHER MATTERS.

1. The Court will open daily, except on notified holidays, for the transaction of judicial business between such hours as may be prescribed from time to time.
No fresh case will ordinarily be called for hearing by a Bench after 2.30 p.m but the hearing of a part heard case may be continued so long as the Bench hearing it may deem necessary.*
2. The Judges will sit singly or in benches of two or more Judges in accordance with a roster to be prepared by the Deputy Registrar with the approval of the Chief Justice from time to time.*
3. Complaints, appeals, applications and petitions for a preliminary hearing will be distributed by the Deputy Registrar two days previously. The distribution lists will be initialed by the Deputy Registrar, and no change in them will be made without his authorization and initials. A copy of the list will be supplied to the Judges' Readers and to the Bar Room, and the Judges' Readers will bring to the notice of the Judges and the Deputy Registrar any alterations that appear unauthorized.
4. Ordinary and urgent petitions shall be set down for hearing by the Deputy Registrar before Single and Division Benches in accordance with the roster for the time being prescribed under rule 2 above.
5. (a) A register of civil cases, complete in every respect, will be maintained in the High Court. From this register, cases will be taken up according to the order of institution for incorporation in a weekly list of cases to be heard by Division and Single Benches. The weekly list will be broken up into daily list after every week. The special order cases should be placed with indication only. No indication is to be given as 'No.1' without the specific order of the Court or indication on result parcha. The daily cause list for the week shall be issued immediately on preceding Wednesday. All left-over cases of the week shall, as far as possible, be fixed on the corresponding day of the week following the next

week, for instance a case left-over on Wednesday, the 24th November, 1965 will be fixed for Wednesday, the 8th December, 1965. No supplementary list of part-heard cases or of cases adjourned by a Judge specifically to the next week will be issued as they are expected to be taken up on the next day unless otherwise directed by the Judge.

- (b) A separate register of criminal cases within the jurisdiction of Division and Single Benches, complete in every respect, will be maintained in the High Court. From this register cases will be taken according to order of institution for incorporation in a weekly list of cases to be heard by both Division and Single Benches. The weekly list will be broken up into daily list and dealt with as in rule 5 (a) above.
 - (c) Full and Special Bench cases which cannot conveniently be heard on ordinary Bench days, will be heard on the first Monday in every month or on such other day or days as the Chief Justice may direct in the event of the first Monday being a holiday, or the work being excessive for one day. *
6. Cases will be set down in the lists in the order of the date of admission except as directed below and will be heard in that order, unless directed otherwise by the Court.

Exceptions. -

- (a) Postponed cases take priority over all other cases before a Bench in their own class.*
- (b) Remanded cases take priority over all others except postponed cases.
- (c) Cases fixed for "actual dates" under the second proviso to rule 8 shall be listed first in the daily lists subject to part-heard cases. Cases fixed by Judges for actual dates shall be listed next.
- (d) Cases marked "very early" or "early" by order of a Judge or Judges and commercial causes, family matters and rent cases shall take priority over ordinary cases.*
- (e) An appeal or petition against an order of remand of a lower court shall be marked "early" and shall take priority over ordinary cases.
- (f) An appeal or petition in connection with which proceedings pending in the lower court are ordered to be stayed or have to be stayed in consequence of the record being sent for by the High Court for the disposal of such appeal or petition, shall be marked "early" and shall take priority over ordinary cases.

7.
 - (i) An application for the postponement of a case shall be presented to the Deputy Registrar and shall not be taken direct to a Judge.
 - (ii) Cases may be postponed by the Deputy Registrar or, in his absence, under the orders of such other officer as may be in charge of the judicial department for the time being--
 - (a) if, two days before the date of hearing, the record has not been received, or the case is otherwise incomplete;
 - (b) if, before the day of hearing, the death of a party is announced and an adjournment is thereby necessitated;
 - (c) if the lower courts have not complied with a precept or process.
 - (iii) Except as provided above, no application for the adjournment of a case shall be entertained unless a Bench or Judge, as the case may be, is satisfied that by reason of recent death, sudden illness or domestic bereavement a party cannot be properly represented at the hearing unless such order is made.
 - (iv) Ordinarily part-heard cases will be proceeded with on the following day or days till they are concluded.

8. Parties and their Advocates, or Agents are required to attend the Court on the day or days for which their cases are set down, and on subsequent days until their cases are disposed of or are postponed: Provided that intimation of the *pacca* date fixed in a case will be sent by post card to such parties as are not represented by counsel at the addresses originally given by them in their appeals or petitions or at the fresh addresses supplied by them at any later stage: Provided further that in a case in which an Advocate not ordinarily resident in Lahore, Rawalpindi, Multan or Bahawalpur has to appear, the Deputy Registrar concerned shall fix the "actual date" sufficiently in advance and give to the said Advocate notice thereof by registered post card. Such date shall not be altered except by an order of the Bench concerned or of the first Division Motion Bench if the case is not listed before a particular Bench.*

9.
 - (i) Urgent petitions must ordinarily be presented between such hours as may be prescribed from time to time.*
 - (ii) These petitions will be laid before the Deputy Registrar who shall ordinarily fix them for hearing on the next day. If, however, the Deputy Registrar is satisfied that there is sufficient urgency, he shall mark the petition for hearing on the same day.

PART B JURISDICTION OF A SINGLE JUDGE AND OF BENCHES OF THE COURT.

1. Save as provided by law or by these rules or by a special order of the Chief Justice, all cases shall be heard and disposed of by a Judge sitting alone.

Explanation. - A case includes a motion application, petition, reference, suit, appeal, revision or other proceedings to be heard and disposed of by the High Court under any law in the exercise of its ordinary, extra-ordinary, original or appellate jurisdiction.

2. (1) Save as provided by these rules, the following cases shall be heard and disposed of by a Division Bench:-

- (i) (a) A regular first appeal from the decree of a subordinate court, jurisdictional value of which exceeds that of the District Court prescribed by the Civil Courts Ordinance, 1962 (No.II of 1962), and any cross-objection to decree.

- (b) An appeal under the Land Acquisition Act if the jurisdictional value involved in the appeal exceeds the one indicated in sub-clause (a) above.

- (ii) (a) An appeal or reference in a case in which a sentence of death has been passed.

- (b) A case in which a notice has been issued to person sentenced to imprisonment or imprisonment for life requiring him to show cause as to why the sentence should not be altered to death.

- (c) An appeal by -

- (i) the Provincial Government under section 417(1) of the Code of Criminal Procedure, or

- (ii) the complainant under section 417(2) of the Code after grant of leave by a Single Judge, or

- (iii) an aggrieved person under section 417(2-A) of the Code,

from an order of acquittal of a charge punishable with death or imprisonment for life.

- (2) A Single Judge while sitting in the long vacation or winter holidays, or when he is the only Judge available at a Bench, may exercise the original and appellate jurisdiction vested in the Court-

- (i) in any criminal matter other than one mentioned in clause (ii) of sub-rule (1);
 - (ii) in any urgent matter connected with, relating to or arising out of, the execution of a decree; and
 - (iii) in any miscellaneous matter which in his opinion requires immediate attention.
- 3. In cases not provided for by Order XLVII rule 5 of the Civil Procedure Code, an application for a review of a decree or order shall be heard:
 - (a) if the decree or order , review of which is applied for, was passed by a Judge sitting alone, by a Bench of two or more Judges, or
 - (b) if the said decree or order was passed by a Bench of two or more Judges, by a Bench consisting of at least as many Judges as the Bench review of whose decree or order is applied for .
- 4. A Full Bench shall ordinarily be constituted of three Judges, but may be constituted of more than three Judges in pursuance of an order in writing by the Chief Justice.
- 4-A. (i). A Judge may, if he thinks fit, refer any matter with the permission of the Chief Justice to a Division Bench of two Judges.
- (ii) A Division Bench, if it thinks fit, may refer any matter with the permission of the Chief Justice to a Full Bench.**
- 5. The Chief Justice shall nominate the Judges constituting a Division or Full Bench.*
- 6. The Judge or Judges of a Bench by whom any question or case is referred shall ordinarily be members of the Division or Full Bench, as the case may be, appointed to consider such question or case.*
- 7. If a majority of a Full Bench of three Judges so determine, by order in writing at any time before final decision, the Full Bench for the decision of any question or case referred to a Full Bench of three Judges shall be constituted by four or more Judges according to such direction.

**PART C POWERS DELEGATED TO THE REGISTRAR FOR THE DISPOSAL
OF CERTAIN JUDICIAL MATTERS.**

1. In accordance with the powers vested in them by Clause 35 of the Letters Patent, the Chief Justice and the Judges have been pleased to delegate the following functions to the Registrar: Provided that if the Registrar, has had no experience as a Judicial Officer of the status of the District and Sessions Judge or Additional District and Sessions Judge he shall not exercise the powers mentioned in clauses (iii), (iv), (v), (viii) and (xvi) below: Provided further that if an officer other than the Registrar who has had experience as a Judicial Officer of the standing of District and Sessions Judge or Additional District and Sessions Judges be available, then powers mentioned in these clauses shall stand delegated to him:-
 - (i) Power to issue notices on an application for Probate or Letters of Administration or for revocation of the same.
 - (ii) Power to dispose of all matters relating to the service of notices or other processes, including substituted service, except the power to dispense with service on *proforma* respondents.
 - (iii) Power to receive and dispose of an application under Order XXII rules 2, 3, 4 and 10 of the Code of Civil Procedure, and to amend the record, if necessary, except in cases under appeal to the Supreme Court.
 - (iv) Power to appoint or discharge a next friend or guardian *ad-litem* of a minor or person of unsound mind, except in cases under appeal to the Supreme Court and to amend the record accordingly.
 - (v) Power to receive and dispose of an application for the withdrawal of an appeal or a consent decree or order.
 - (vi) Power to receive and dispose of an application under Order XLI rule 10 of the Code of Civil Procedure.
 - (vii) Power to receive an application under Order XLV rule 15 of the Code of Civil Procedure, and to issue notice thereon.
 - (viii) Power to receive an application for substitution of names in an appeal to the Supreme Court, and to issue notice thereon.
 - (ix) Power to receive and dispose of an application for the return of a document.

- (x) Power to require any person or party to file an affidavit with respect to any application or matter in respect of which he has power to exercise any discretion or to make any order.
- (xi) Power to call for a further deposit when the deposit already made by the appellant in an appeal to the Supreme Court is not sufficient to defray the cost of preparing the record.
- (xii) Power to order payment of the profit accruing on Government Securities deposited under Order XLV rule 7 of the Code of Civil Procedure, and to order the refund of any unexpended balance under Order XLV rule 12, C.P.C.
- (xiii) Power to direct in what newspapers the publication referred to in Order XLV rule 9-A of the Code of Civil Procedure, shall be made.
- (xiv) ***[Omitted]
- (xv) Power to pass formal orders regarding translation and typing or photocopying of documentary evidence and to summon files and records.
- (xvi) (a) ***[Omitted].
- (b) ***[Omitted].
- (xvii) Power to grant time for making up deficiency in court-fees in cases referred to him as Taxing Officer under section 5 of the Court Fees Act, 1870.
No application for extension of the time will be refused without the orders of the Court.

Note: (1) The above powers will be exercised by the Registrar subject to any general or special orders passed by the Chief Justice in this behalf.

(2) The power delegated to the Registrar under clauses (i) to (xiii) and (xv) may also be exercised by the Deputy Registrars.*

2. Under the Code of Criminal Procedure, the Registrar has been delegated with the following functions:-
 - (1) Power to sign complaints under the proviso to section 476(1), Criminal Procedure Code.
3. In accordance with the powers vested by Clause 35 of the Letters Patent, the Chief Justice and Judges have been pleased to direct that any person holding the post of Registrar of the High Court or any other officer of the High Court who has had experience as Additional District and Sessions Judge or District and Sessions Judge may be empowered by name by the Chief Justice to perform

any of the following duties:-

- (a) To decide the question of the necessity for transcribing and printing or photocopying any document not specially applied for by the parties to an appeal to the Supreme Court.
- (b) ***[Omitted]
- (c) To issue notice to parties in criminal references.
- (d) To hear motions for the admission of first appeals and either to admit them or to direct them to be laid before a Bench for orders.
- (e) To hear appeals from, or petitions for revision of the orders of District Judges in cases affecting their establishment or those of the Courts subordinate to them, and to advise the Chief Justice what orders should be passed.

PART D APPEALS FROM DECREES IN COMMERCIAL CAUSES.

1. "Commercial causes" include causes arising out of the ordinary transactions of merchants, bankers and traders, such as those relating to the construction of mercantile documents, export or import of the merchandize, affreightment, carriage of goods by land, insurance, banking and mercantile agency, and mercantile usage. Suits on ordinary loans and mortgages are not "Commercial causes".
2. The Chief Justice shall, from time to time, nominate one or more of the Judges of the Court to hear "Commercial causes".**
3. (a) All cases under the Companies Act and cases affecting the responsibility of a Railway Administration as carriers, will be treated as "Commercial causes".
(b) The Judges may, however, mark any other case as a "Commercial cause" either at the request of the parties or *suo motu*, if satisfied that the said case is a commercial cause as defined in rule 1.
4. All appeals, which have been marked as "Commercial causes" by order of a Judge under rule 3, shall be brought to a hearing as early as may be practicable, and shall, as far as possible, be set down before the Judge appointed from time to time by the Chief Justice to hear "Commercial causes" or before a Bench of which such Judge is a member. Such causes shall be given priority on the day of hearing over all other appeals except part-heard appeals and cases frequently postponed.

CHAPTER 4 Special Procedure

Part-I

(CRIMINAL)

PART A SPECIAL RULES OF PROCEDURE IN CRIMINAL CASES.

1. In original trials, in proceedings taken under section 428 of the Code of Criminal Procedure, upon the hearing of an appeal or a revision petition, and in any other criminal proceedings coming before one or more Judges, the Judge or one of the Judges shall make a memorandum in Urdu or English of the substance of the evidence of each witness as the examination proceeds.*01
 Provided that, by direction of a Judge, the evidence may be taken down in shorthand by an officer of the Court, or other person specially appointed for that purpose.
 The transcript of the shorthand shall be corrected and signed by the Judges or one of them and shall then be placed on the record.
2. The evidence shall ordinarily be recorded in narrative form, and shall be signed by the Judge or one of the Judges and placed with the record.
3. When a sentence of death or of imprisonment for life or of imprisonment has been passed on an accused person convicted at a trial held before the High Court in exercise of its original criminal jurisdiction, the Court shall issue a warrant in order to cause such sentence to be carried into effect.*01
4. A warrant for the execution of any of the following sentences passed by the Court in exercise of its original criminal jurisdiction, namely, -
 - (a) sentence of death;
 - (b) sentence of imprisonment for life;
 - (c) sentence of imprisonment;
 shall conform, as nearly as may be, to the forms prescribed by the Code of Criminal Procedure. *01

5. A warrant for the execution of any sentence mentioned in rule 4 shall be signed by the Judge or one of the Judges, who passed the sentence, or, if this be not practicable, by the Chief Justice.
6. (a) When the sentence passed upon an accused person is of any of the kinds specified in rule 4, the Court shall forthwith cause the warrant to be forwarded to the jail in which he is to be confined, and unless the accused person is already confined in such jail, shall cause him to be forwarded to such jail with the warrant *01
- (b) ***₀₁[Omitted]
7. Whenever, either by reason of the commutation or alteration of any such sentence as aforesaid or otherwise, an amended warrant becomes necessary, such warrant shall conform, so far as may be, *mutatis mutandis*, to Form No. XXXVI in Schedule V of the Code of Criminal Procedure, and shall be signed in the manner prescribed in rule 5.
8. An order under section 471 of the Code of Criminal Procedure shall be made in such form as the Judge making the same thinks fit, and shall be signed by the Judge who makes it, and the Court shall forthwith cause the accused person to be forwarded with the order to the place in which he is to be kept in custody.
9. Whenever an offender has been sentenced by the Court in exercise of its original criminal jurisdiction to pay a fine, and the Court directs that a warrant shall be issued under section 386 of the Code of Criminal Procedure, the warrant shall conform, so far as may be, *mutatis mutandis*, to Form No. XXXVII in Schedule V of the said Code, and may be signed by the Deputy Registrar. *01
NOTE.***[Omitted]
10. Every warrant, amended warrant and order made and signed under the preceding rule shall, before being issued, be sealed with the seal of the Court.
11. Processes issued by the High Court may issue over the signature of the Assistant Registrar of the Branch dealing with the case. *01

**PART B RULES REGARDING THE SUMMONING AND EMPANELLING OF
JURORS.**

*****[Omitted]**

**PART C SUBSISTENCE AND TRAVELLING ALLOWANCE TO
COMPLAINANTS AND WITNESSES ATTENDING TRIALS BEFORE
THE HIGH COURT**

Rules made by the Lahore High Court Lahore, with the previous sanction of the Provincial Government, under the power conferred by section 554 of the Code of Criminal Procedure, regulating the payment of subsistence and travelling allowance to complainants and witnesses attending trials before the High Court, in the exercise of its original criminal jurisdiction, in public prosecutions.

RULES

1. All disbursements on account of the expenses of complainants and witnesses attending criminal trials before the High Court, will be made by the Deputy Registrar and will be adjusted by him.
The Deputy Registrar will determine the class to which each complainant and witness belongs. *01
2. The complainant and witnesses shall be paid for the journey at the rate chargeable for the cheapest and expeditious mode of transport. *01
3. The complainant and witnesses shall report themselves to the Deputy Registrar and will inform him of their names, the class to which they belong, the date of their departure to attend the High Court and whether any advances have been made to attend the High Court. *01
4. ***₀₁[Omitted]
5. ***₀₁[Omitted]
6. ***₀₁[Omitted]
7. ***₀₁[Omitted]
8. These rules apply, *mutatis mutandis*, in the case of trials held by the High Court elsewhere than at Lahore.
9. In the event of a witness being summoned to attend the High Court in a criminal case, other than a trial before the High Court in exercise of its original criminal jurisdiction, the expenses of such witness will be paid by the Registrar at such rates as the Court may direct.

Notes: (1) The Superintendent of the Mental Hospital, being the Government specialist in lunacy, is not entitled to any fee for giving expert evidence on behalf of Government in the High Court.

(2) The Chemical Examiner or the Assistant Chemical Examiner when summoned to give evidence before the High Court shall be entitled to recover the following fee for each appearance:-

Chemical Examiner	Rs.100/-
Assistant Chemical Examiner	Rs. 50/-

(3) As charges under rule 7 are debitable to audited contingencies, vouchers for sum above Rs.100/- should accompany the bill sent to the Accountant-General for audit.

*01

**PART D RULES OF PROCEDURE IN CASES UNDER SECTION 374 OF THE
CODE OF CRIMINAL PROCEDURE.**

1. The rules of procedure to be followed by Sessions Judges in the submission of proceedings to the High Court under section 374 of the Code of Criminal Procedure are contained in Chapter 24-B, High Court Rules and Orders, Volume III.
2. On receipt of the proceedings the Deputy Registrar shall take immediate steps to have the record printed under the rules next following.
3. The printed record in Murder Reference cases shall consist of the following documents:-
 - (1) Opening sheet of Sessions record.
 - (1-A) Forwarding letter from the Sessions Judge along with explanation, if any, for cause of delay.**
 - (2) Notes and orders of the Sessions Judge.
 - (3) Charge sheet.
 - (4) First Information Report in Urdu only.
 - (5) Report of Chemical Examiner and Serologist, if any.
 - (6) Statements under sections 342 and 364, Criminal Procedure Code.
 - (7) *** [Omitted]
 - (8) Record of evidence in Court of Sessions with any further examination under section 364, Criminal Procedure Code, and altered charge, if any.
 - (9) Material documentary evidence, if any.
 - (10) Recovery memos in Urdu only.
 - (11) Record of opinion of Assessors.
 - (12) Judgment of Sessions Judge.
 - (13) Petition of appeal.
4. Twenty copies of the Sessions record shall be printed at Government expense with the least possible delay, if there is only one accused, but in case the number of the accused exceeds one, an extra copy shall be printed for each additional accused.
5. In a case where the Sessions Judge certifies that the accused person cannot afford to engage counsel for his defence in the High Court, the Deputy Registrar shall take steps to have counsel engaged for his defence at Government expense.

6. The hearing of the Murder Reference, in view of confirmation or otherwise of the sentence of death passed by the Sessions Judge under section 374 of the Code of Criminal Procedure, shall take place as a rule within about six weeks after the date of despatch of the copy of the Sessions Judge's judgment to the convict.
7. Immediately on the sentence of death being confirmed or not confirmed, as the case may be, by the High Court, the Deputy Registrar shall inform the Superintendent of the jail in which the prisoner is confined of the decision and direct him to communicate the same to the prisoner forthwith. The Deputy Registrar shall at the same time inform the Sessions Judge concerned and return the record to him for taking steps under section 381 of the Criminal Procedure Code. Copies of the High Court judgment shall be sent to that officer later, and as promptly as possible.
8. The record of every case as prepared for the use of the High Court in which the sentence of death has been confirmed by the High Court, together with a copy of the High Court judgment and translations of Police *Zimnis*, shall, as soon as orders have been passed confirming the death sentence, be forwarded to the Provincial Government.

**PART E RULES REGARDING LEGAL ASSISTANCE TO PERSONS
CHARGED WITH CAPITAL OFFENCES IN THE HIGH
COURT.**

The High Court has framed the following rules for giving legal assistance to persons charged with an offence punishable with death:-

1. (a) When an accused is to be tried by the High Court in its original criminal jurisdiction for an offence punishable with death he shall be asked by the Court whether he can afford to engage counsel for his trial. *01
- (b) When an accused person has been called upon by the High Court to show cause why a lesser sentence should not be enhanced to a sentence of death, the Sessions Judge, on receipt of notice for service upon the person called upon to show cause, shall, if he is satisfied that the accused is unable, because of poverty, to engage counsel for his defence, furnish a certificate that the accused is entitled to be defended in *forma pauperis*.
- (c) When a sentence of death is referred by a Sessions Judge to the High Court for confirmation under the provisions of section 374, Criminal Procedure Code, the Sessions Judge shall note whether the accused person was represented by counsel in his Court, and whether the accused can afford to engage counsel for his defence in the High Court.
- (d) When in an appeal against acquittal in a murder case the accused is undefended, the Sessions Judge, on receipt of a notice for service, shall, if he is satisfied that the accused is unable, because of poverty, to engage a counsel for his defence in the High Court, furnish a certificate that the accused is entitled to be defended in *forma pauperis*.
2. If the High Court decides that the accused is unable on account of poverty to engage counsel for his defence, the High Court shall make arrangements to employ counsel at Government expense.
The High Court may also employ counsel, if it thinks fit, in every case when the accused is unrepresented, irrespective of considerations relative to the means of the accused to engage counsel.

3. The High Court shall, for the above purpose, maintain a list of legal practitioners whom the Chief Justice may select from time to time as fit to be employed in such cases.
4. When a counsel is required, the Court shall select from this list a legal practitioner to defend the accused. Counsel appointed in such cases should be given sufficient time to enable him to study the necessary documents, which will be the printed record of the case as prepared in the High Court. This will be supplied free of cost.
5. The legal practitioner so employed shall receive a fee of not less than Rs.2000/- or if the hearing lasts more than a day, a fee not exceeding Rs.200/- per day. This payment shall be made through the Provincial Law Secretary on the production of a certificate signed by the Deputy Registrar (Judicial), in which the total amount of fees allowed to the legal practitioner by the Judges hearing the case shall be stated.****₀₁

**PART F RULES FRAMED UNDER SECTION 491(2) OF THE CODE OF
CRIMINAL PROCEDURE, 1898, TO REGULATE PROCEDURE IN
CASES UNDER SECTION 491.**

1. An application for an order under section 491 shall be made on an affidavit setting forth the circumstances under which the order is sought:
 Provided that all communications addressed to the High Court by a person in the custody of a public officer complaining of his detention or the conditions of his detention, whether supported by affidavit or not, shall be laid before a Judge for orders as applications under this rule.
2. Where the court is of the opinion that a *prima facie* case for granting the application is made out, a rule *nisi* may be issued calling upon the person or persons against whom the order is sought to appear on a day to be named therein to show cause why such order should not be made and at the same time to produce in Court the body of the person or persons alleged to be illegally or improperly detained then and there to be dealt with in accordance with law:
 Provided that if the Court so orders, production of the body of the person alleged to be illegally or improperly detained may be dispensed with.
3. If the application for an order under clause (a) or (b) of sub-section (1) of the section alleges that a person is confined under such circumstances that the confinement amounts to an offence, the Court may, at the time of issuing a rule *nisi*, also issue a search warrant, and the person to whom the warrant is directed may search for the person so confined; and such search shall be made in accordance therewith, and the person, if found, shall be immediately brought before the Court, which shall make such order as in the circumstances of the case may seem to be proper.
4. The provisions of sections 43, 75, 77, 79, 82, 83 and 84, Criminal Procedure Code, shall, so far as may be, apply to all such warrants issued under rule 3.
5. If the Court issuing a search warrant under rule 3 has reasons to believe that the person to whom the warrant has been directed may not be able to identify the person confined, the Court may order a person named in the warrant to accompany the person to whom the warrant is directed, to assist him in the execution of the warrant.

6. The writ or the warrant shall be served by the bailiff of the Court out of the list prepared by the Registrar in consultation with the Deputy Registrar, or by such other person as may be appointed by the Judge. Where the application is by or on behalf of a security prisoner, the writ will be served on the appropriate Government and not on the officer detaining the prisoner.

A security prisoner means a person who has been detained under the orders of the Federal or Provincial Government under a law providing for preventive detention. *01

7. On the return day of such rule or on any day to which the hearing thereof may be adjourned, where no cause is shown or where cause is shown and disallowed, the Court shall pass an order that the person or persons illegally or improperly detained shall be set at liberty or delivered to the person entitled to his or their custody. Where cause is allowed, the rule shall be discharged.
8. The Court may, if necessary, in disposing of such rule, take evidence or direct a Court of Sessions or a Magistrate to take evidence
9. Upon the return and production of the party on whose behalf the rule was issued, the custody of the prisoner shall be under the control and direction of the Court until the disposal of the rule. Pending the hearing, the Court may admit the prisoner to bail or remand him to the prison where he is in custody.
10. When a bailiff is deputed by the Court to produce an alleged detenu/detenus, the party requiring the production should deposit with the Treasurer in advance, an amount equal to the calculated expenses for the journeys involved keeping in view his grade of pay and the daily allowance admissible to him under the relevant rules. The amount shall be paid to the bailiff after sanction by Deputy Registrar(Judl.) before proceeding to his destination against a receipt which shall be kept on the file of the case. *01
11. ***01[Omitted].
12. ***01[Omitted].
13. In case the bailiff does not submit his claim within the time mentioned in the last rule, the amount or the balance thereof

should be refunded to the party concerned. In case, however, the party fails to claim refund within six weeks, the amount due to it be credited to Government under the head

“ Major head 1200000,

Minor head 1230000 Law & Order Receipts,

Detailed head 1231000 Justice,

1231003 Justice-General fees,

finer and forfeitures (74)”

and the treasury challan showing the credit should be attached to the file of the case. *01

14. If the writ is to be executed at State expense, the bailiff should be paid his expenses as admissible under the rules.
15. If, at any time, on sufficient ground shown to the satisfaction of the Registrar, it is proved that the bailiff submitted an exaggerated or incorrect claim or claimed expenses though they were met by the party concerned, this should be taken to be a misconduct and necessary proceedings against him be initiated under the High Court Establishment (Appointment & Conditions of Service) Rules, which may result in major penalty provided by the relevant rules.
16. To check the tendency to file frivolous *habeas corpus* petitions, the Court may, at its discretion, require the party concerned to deposit in advance an amount as fixed by the Court directing the issuance of rule *nisi* to be paid to the detenus as a compensation if the petition is found to be frivolous or vexatious. *01
17. In disposing of any such rule the Court may, in its discretion, make an order for the payment by one side or the other of the costs of the rule.
18. The forms of warrants No.1 and 2 in the Appendix to these rules shall be followed.

APPENDIX
(see rule 18)

Form of Warrant No.1
(see rule 2)

IN THE LAHORE HIGH COURT, LAHORE.

To

The Officer in charge of (name of jail or lunatic asylum or other place, where the person is detained in custody) or to (name of person).

You are hereby required to have the body of B.C. now a prisoner in your custody (or now in your custody) before the High Court, on the day of _____ next, by _____ of the clock in the forenoon of the same day to be dealt with according to law and you shall then and there abide by such order as shall in that behalf be made by the said Court (if the prisoner is detained in public custody add) and unless the said B.C. shall then and there, by the said Court, be ordered to be released, you shall, after the said Court shall have dispensed with his further attendance cause him to be conveyed, under safe and sure custody back to the said (jail or asylum or other place of custody).

Given under my hand and the seal of the Lahore High Court, _____ this
_____ day of _____ 20.....

Deputy Registrar

NOTE:- This warrant is in duplicate. One copy thereof should be signed and dated in token of receipt and forwarded to the High Court with the least possible delay.

Form of Search Warrant No.2
(see rules 3 and 5)

IN THE LAHORE HIGH COURT, LAHORE.*01

To

(The name and designation of
person to whom the warrant is directed).

Whereas information has been laid before this Court that (give name and description of the person alleged to be illegally detained) is being illegally detained in (describe the house or place where the person illegally detained). This is to authorize and require you, with assistance of (give the description of the person authorized to accompany the person to whom the warrant is directed) to search for the aforesaid (give the name and description of the person illegally detained) in the (describe the place to which the search is to be confined) and, if found, to produce him forthwith before this Court to be dealt with according to law.

Given under my hand and the seal of the Lahore High Court,
this _____ day of _____ 20.....

Deputy Registrar

PART II (CIVIL)**PART G SPECIAL RULES OF PROCEDURE IN ORIGINAL CIVIL CASES.****(a) Evidence.**

1. (i) When, at the first or at any subsequent hearing of a suit, any party appearing in person or present in Court, or any person able to answer any material question relating to the suit by whom such party or his pleader is accompanied, is examined by the Court, the substance of such examination shall be reduced to writing by the Judge and shall form part of the record; the substance of what each witness deposes shall similarly be reduced to writing by the Judge, and shall form part of the record: Provided that the Judge may, if he thinks proper, direct the substance of the examination or the evidence to be recorded in shorthand by an officer of the Court or other person specially appointed for the purpose. In the latter case, the transcript of the shorthand shall be corrected and signed by the Judge and then placed on the record.
- (ii) In a suit tried in the High Court by a Bench of two or more Judges the evidence may be recorded by any one Judge. The Judge recording the evidence shall dispose of all objections of whatever nature regarding the relevancy or admissibility of evidence unless he, in his discretion, considers that any objection or objections may be referred to the Bench for decision.
2. If the Judge who has recorded evidence or caused it to be recorded in his presence, under these rules, dies or ceases to be attached to the Court before the conclusion of the suit, the Judge before whom the suit is continued may, if he thinks fit, deal with the evidence so recorded as if it had been recorded by himself or in his presence.

(b) Judgment and Orders.

3. Judgments may be written by the Judge in Urdu or English or delivered orally, and in the latter case a note thereof in writing in Urdu, English, or shorthand, shall be taken by an officer of the Court in attendance for the purpose. The note so taken shall be written out or typed in full by the officer by whom it was taken, and shall be submitted by him to the Judge for correction. After being corrected by the Judge, where necessary, it shall be filed as the judgment of the Court.**
4. The judgment shall contain a concise statement of the case, the points for determination, the decision thereon and the reasons for such decision. When issues have been framed, the finding or decision of the Court upon each separate issue shall be stated, with the reason therefor, unless the finding upon any one or more of the issues be sufficient for the decision of the suit.
5. Judgment shall be delivered in open Court, either at the close of the case or on some future day, of which due notice shall be given to the parties or their counsel.
6. When a case has been heard by a Bench of the Court, the written opinions of the Judges who heard the case, but who have ceased to be attached to the Court before delivery of judgment, shall, unless delivered by another Judge of the Bench which heard the case, be deemed to be minutes merely and not judgments.
7. When a party to the suit dies after the last hearing, but before delivery of judgment, the Court may order the judgment to bear the date of the last hearing.
8. A memorandum of appeal in a case in which judgment has been delivered orally, shall be received and filed without a copy of the judgment.
9. When an order is made in Court or in chambers, a note of its purport shall be made and signed by the Judge or Judges making the order; and if the order disposes of a petition, the reasons for making it shall be stated.
10. When a suit is allowed to be withdrawn with leave to bring a fresh suit, the order shall be drawn up so as to make the payment of the costs of the first suit a condition precedent to the plaintiff bringing a fresh suit, unless the Court or the Judge who gave permission shall otherwise direct.

PART H RULES OF PROCEDURE IN APPEALS.

(a) Judgments and Orders.

1. Judgments may be written by the Judge in Urdu or English or delivered orally, and in the latter case a note thereof in writing in Urdu, English, or shorthand, shall be taken by an officer of the Court in attendance for the purpose. The note so taken shall be written out or typed in full by the officer by whom it was taken, and shall be submitted by him to the Judge for correction. After being corrected by the Judge, where necessary, it shall be filed as the judgment of the Court.**
2. Judgment shall be delivered in open Court, either at the close of the case or on some future day, of which due notice shall be given to the parties or their counsel.
3. When an appeal has been heard by a Bench of the Court, the written opinions of the Judges who heard the appeal, but have ceased to be attached to the Court before delivery of judgment, shall unless delivered by another Judge of the Bench which heard the appeal, be deemed to be minutes merely and not judgments.
4. When a party to the appeal dies after the last hearing, but before delivery of judgment, the Court may order the judgment to bear the date of the last hearing.
5. When an appeal is heard by a Bench consisting of two Judges and the Judges composing the Bench being equally divided in opinion as to the decision on a point, state that point for reference to another Judge or Judges under clause 26 of the Letters Patent, the case shall be heard on that point by one or more Judges to be nominated by the Chief Justice. The Chief Justice may be such other Judge or one of such other Judges.

(b) Appellate Decrees.

6. The decree of the High Court shall be drawn up in Urdu or English, and shall bear the same date as the judgment.**
7. (i) The decree shall contain the number of the appeal, the names and description of the appellant and respondent, the names of the plaintiff and defendant in the suit, and the description of the court from

whose decree or order the appeal is preferred, with the date of such decree or order; and shall clearly state the relief granted or other determination of the appeal, in such manner as not to render reference to other documents necessary, except the decrees of the courts below, when those decrees are affirmed or varied, but not reversed.

Note: In all important cases the Deputy Registrar will, if this can be done without undue delay or inconvenience, obtain the signature of counsel to the draft decree.

- (ii) The decree shall also state the amount of costs incurred in the appeal, and by what parties and in what proportions the same, and the costs incurred in the courts below, shall be paid.
- (iii) In pauper appeals the provisions of Order XXXIII rule 10 of the Code of Civil Procedure shall be observed.

The heading of the decree should run--

“ Appeal in *forma pauperis* by ---.”

In the body should be inserted—

“ The following Court-fee costs are recoverable by Government as a first charge upon the subject-matter, under Order XXXIII rule 10 of the Code of Civil Procedure.”

- 8. (i) As soon as a decree has been drawn up, the Deputy Registrar shall cause a notice to be exhibited on the notice board, stating that the decree has been drawn up, and that any party to the decree or counsel of any party to the decree may, within 3 days, peruse the decree and sign it or file with the Deputy Registrar an objection to the decree on the ground that there is in the judgment a clerical error or omission or that the decree is not in accordance with the judgment upon which it is based. Such objection, if any, shall state clearly what is the clerical error or omission alleged or in what respect the decree is not in accordance with the judgment, and shall be signed and dated by the party or by the Advocate filing it.

- (ii) Should any such objection, as is mentioned in clause (i), be filed on or before the date specified in the notice, the Deputy Registrar shall, on notice to all the parties, put up the appeal or case together with the judgment therein, the draft decree and the objection, for orders before the Judge or Judges, or one of them, who delivered the judgment; or if such Judge or Judges has or have ceased to be Judge or Judges of the Court or be absent on leave or furlough, then before such Judge or Judges as the Chief Justice shall appoint for that purpose.
- (iii) Should no such objection, as is mentioned in clause (i), be filed on or before the date specified in the notice, the Deputy Registrar or such other officer as may be in charge of the judicial department for the time being having first dated the decree as of the day when the judgment upon which the decree is founded was delivered, shall sign the decree and seal it with the seal of the Court.
- (iv) The above procedure shall also be observed in respect of final orders in all miscellaneous, revision, or other cases.

Note: Under no circumstances shall any decree or order passed or made by a Judge or Judges be altered, varied or departed from in any particular in the office, except under an order, in writing, of the Judge or Judges who passed or made such decree or order or except under an order made on appeal from such decree or order or except under an order made in review.

- 9. No decree shall be drawn up in cases in which the decision of the lower court is confirmed under Order XLI rule 11 of the Code of Civil Procedure.
- 10. (i) When the draft of any decree or order has been ordered to be settled in the presence of the parties or when none of the Judges who concurred in the judgment continues attached to the Court and the Deputy Registrar thinks it necessary that it should be so settled, the Deputy Registrar shall, by notice in writing, which shall be accompanied by copies of the draft prepared for approval, appoint a time for settling the same, and the parties or their counsel must attend such appointment and produce before the Deputy Registrar such documents as may be necessary to enable him to settle the draft. The notice will be sent from the Deputy Registrar's office to counsel, if any, of the parties, with

a receipt book, in which shall be obtained the signature of the person with whom the notice is left.

- (ii) The notice shall be served on the parties who have appeared in person by the party who has the carriage of the decree or the order. When so served, the original notice, with a memorandum endorsed thereon of the service of a copy thereof, signed by the party by whom such service was made, must be delivered to the Deputy Registrar who may, if not satisfied that service has been duly made, require such service to be verified by affidavit.
- 11. If any party fails to attend the Deputy Registrar's appointment for settling the draft of a decree or order, or fails to produce any document called for by the Deputy Registrar, the Deputy Registrar may proceed to settle such draft in his absence, or without the production of the documents aforesaid, or may mention the matter to the Court.
- 12. The Deputy Registrar may adjourn any appointment for settling the draft of any decree or order to such time as he may think fit, and the parties who attend the appointment shall be bound to attend the adjourned appointment without further notice.
- 13. If any party is dissatisfied with any decree or order as settled by the Deputy Registrar, and intends to mention the matter to the Court, the Deputy Registrar, if informed of such intention, shall not proceed to complete the decree without allowing such party sufficient time to apply to the Court. The application must be made by motion, or notice to the parties who appeared at the hearing.
- 14. When a variation is made by the Court in a draft settled by the Deputy Registrar, such variation shall be embodied in the decree or order, and, except when the costs of the application are ordered to be paid, no fresh order need be drawn up.

**PART I RULES FRAMED BY THE HIGH COURT OF WEST PAKISTAN,
LAHORE, REGARDING THE GRANT OF CERTIFICATE UNDER
ARTICLE 159 (C) OF THE CONSTITUTION OF THE ISLAMIC
REPUBLIC OF PAKISTAN.**

*****[Omitted]**

**PART J RULES FOR THE ISSUE OF ORDERS/ DIRECTONS UNDER ARTICLES
199 AND 202 OF THE CONSTITUTION OF THE ISLAMIC REPUBLIC OF
PAKISTAN, 1973 AND CLAUSE 27 OF THE LETTERS PATENT.**

PART I - HABEAS CORPUS APPLICATION.

1. Application for the issue of orders under Article 199 (1) (a) (i) shall be governed by rules 1 to 18 of Chapter 4-F, High Court Rules & Orders, Volume-V.*

PART II - CONSTITUTIONAL REMEDIES.

2. (1) An application under the Constitution shall:
 - (a) set out concisely in numbered paragraphs the facts upon which the applicant relies;
 - (b) mention the grounds upon which the Court is asked to make an order;
 - (c) state exactly the nature of the relief sought;
 - (d) be accompanied by an affidavit or affidavits in proof of the facts and certified copies of all pleadings, documents, orders of the subordinate court or authority or tribunal including the evidence recorded, if any, and unless dispensed with by the Court;*
 - (e) state whether the applicant has moved the High Court previously for the same relief and if so, with what result.
- (2) The provisions of rule 1 of Chapter 1-A shall apply, *mutatis mutandis*, to applications seeking constitutional remedies.
3. Unless otherwise ordered by the Chief Justice the application shall be laid before a Single Bench which may summarily dismiss it or pass such order as it may deem necessary. During vacation the application may be disposed of by a Vacation Judge.**
4. Subject to the directions of the Court, notice of every application shall be served on all parties directly affected and for this purpose the applicant shall file within a week of the admitting order as many authenticated copies of the application and affidavits as there are parties to be served and the prescribed process fee: Provided that at the hearing of the application any person, who

desires to be heard in opposition to the application and appears to the Court to be a proper person to be heard, shall be heard, notwithstanding that he has not been served with a notice and subject to such conditions as to costs as the Court may deem fit to impose.

5. An application under these rules may be made by the petitioner in person or through a counsel.
6. Respondents in writ petitions should be required when notices are issued, to file written statements, counter-affidavits, if any, and other documents on which they rely at least two days before the hearing.
7. All questions arising for determination of such petitions shall be decided ordinarily upon affidavits but the Court may direct that such questions as it may consider necessary be decided on such other evidence and in such manner as it may deem fit and in that case it may follow such procedure and may pass such order as may appear to it to be just.
8. The writ under these rules shall be served personally, if possible, upon the parties to whom it has been directed or in such manner as the Court issuing the writ may direct.

PART III - MISCELLANEOUS.

9. Costs shall be in the discretion of the Court in each case.
- 10.(i) A court-fee of Rs. 500/- shall be payable on each petition but no court-fee shall be required in case a writ is required in respect of the detention of any person by or under orders of any public authority.*
- (ii) In every writ petition the petitioner shall deposit with the Treasurer of the High Court within seven days from the date of its admission a sum sufficient to cover typing and binding charges of paper books, failing which it will be liable to dismissal for non-prosecution.
- 10-A. A court-fee of Rs. 1000/- shall be payable on each appeal filed under the Law Reforms Ordinance, 1972, against an order passed in exercise of constitutional jurisdiction.*
11. The forms set out in the Appendix shall be used with suitable modifications wherever necessary.

APPENDIX.

(Referred to in rule 11 of Part-III. Chapter-J of the Rules framed
for the issue of Writs under Article 199 of
the Constitution of the Islamic Republic of Pakistan)

FORM NO.1.

FORM OF PETITION

IN THE LAHORE HIGH COURT, LAHORE

SPECIAL ORIGINAL JURISDICTION

Writ Petition No. _____ of 20.....

AB. Petitioner.

AND

CD. Respondent.

Petition under Article 199 of the Constitution of the Islamic
Republic of Pakistan.

The petitioner above named states as follows _____

1. The petitioner is (give description and address).
2. The address of the petitioner for service of all notices is.
3. The respondent is (give description and address).
4. Facts on which the applicant relies and the grounds on which the relief is sought
5. For the reasons set out above, the petitioner prays that (set out the reliefs sought).

(Signed)

Petitioner

(Signed)

Advocate for the petitioner.

FORM NO. 2.

Day, _____ the _____ day of _____ two thousand and
 Present Mr. Justice
 Writ Petition No. _____ of 20,.....
 In the matter of
 a detenu in the Central Jail at _____ Petitioner.

Petition under Article 199 of the Constitution of the Islamic Republic of Pakistan praying that in the circumstances _____ stated therein and in the affidavit filed therewith, the High Court will be pleased to issue a writ of Habeas Corpus for production before the Lahore High Court, _____ the person of detenu in the Central Jail at _____ to be dealt with according to law and direct that he be set at liberty.

ORDER

This petition coming on for hearing, upon perusing the petition and the affidavit filed in support thereof and other papers material to this petition and upon hearing the arguments of Mr. _____ Advocate for the petitioner and of Mr. _____ for the Public Prosecutor on behalf of the State, IT IS ORDERED THAT _____, now a detenu in the Central Jail at _____ under _____ (specify Act), be released forthwith from custody, unless he is liable to be detained in custody for some other cause.

Additional Registrar/ Deputy Registrar.

To

- (1) The Superintendent, Central Jail _____ (in duplicate)
 - (2) The Chief Secretary to the Government of the Punjab.
 - (3) The Sessions Judge, _____
- Dated: _____

FORM NO. 3.

Orders directing issue of a Writ of Habeas Corpus

IN THE LAHORE HIGH COURT, LAHORE.

Date _____ Writ Petition No. _____ of 20...

Present

Mr. Justice _____

(1) _____, Petitioner

(2) _____, Respondent.

Petition under Article 199 of the Constitution of the Islamic Republic of Pakistan praying that in the circumstances set out in the petition and affidavit filed therewith, the Court may be pleased to issue a Writ of Habeas Corpus, etc.

The petition coming on this day for orders, upon reading the petition etc., and upon hearing Mr. _____ for the petitioner and Mr. _____ for the respondent, it is ordered that the Superintendent, Central Jail, at _____ be required to produce the body of _____ confined in the said jail, immediately before this Court to be dealt with according to law.

Additional Registrar/ Deputy Registrar.

FORM NO.4.

IN THE LAHORE HIGH COURT, LAHORE

Writ Petition No. _____ of 20...
 Day, _____ Day of
 Two Thousand and _____
 Present

Mr. Justice _____

- (1) _____ Petitioner
 (2) _____ Respondent

PETITION praying that in the circumstances stated in the affidavit filed therewith, the High Court will be pleased to issue a Writ of Certiorari under Article 199(1) (a)(ii) of the Constitution of the Islamic Republic of Pakistan, 1973, calling for the records in _____ on the file of _____ and quash the order therein.**

This petition coming on for orders, upon perusing the petition and the affidavit filed in support thereof and upon hearing the arguments of Mr. _____ Advocate for petitioner, it is ordered as follows:-

- (1) that a writ of certiorari returnable _____ do issue to the _____ calling for the records in _____ on the file of _____.
- (2) that a notice do issue to the respondent herein directing him to appear before this Court in person or by Advocate on _____ at _____ a.m. and to show cause why the application should not be complied with.

Dated: 20....

Additional Registrar/ Deputy Registrar.

WRIT AND NOTICE

Writ Petition No. _____ of 20....

Return of the Writ of Certiorari (under Article 199(1)(a)(ii) of the Constitution of the Islamic Republic of Pakistan 1973) **

Notice

(To be endorsed on Writ of Produce).

The process of the Writ of Certiorari whereof mention is within made with all things touching the same in the _____ several papers hereto as within command.

The answer of the respondent herein.

Dated: the _____ day of _____ 20...

(Signed).

FORM NO.5.

Writ of Certiorari, Order Absolute
 (under Article 199(1) (a) (ii) of the Constitution of the Islamic Republic of Pakistan
 1973.)**

IN THE LAHORE HIGH COURT, LAHORE.

The Day of 20....

Writ Petition No. of 20....

Between

 Petitioner.

and

 Respondent.

This petition coming on this ____ day of ____ 20____
 on further consideration in the presence of ____ and ____ upon perusing
 the records in and comprised in the return ____ to the writ made by ____
 and upon hearing the arguments of ____ for petitioner and of ____ for
 respondent, it is ordered as follows:-

(1)

(2)

Additional Registrar/Deputy Registrar.

FORM NO. 6.

Writ of Prohibition
(under Article 199(1)(a)(i) of the Constitution
of the Islamic Republic of Pakistan, 1973)**

IN THE LAHORE HIGH COURT, LAHORE.

The Day of 20....

Writ Petition No. of 20....

Between

Petitioner,

and

Respondent.

Whereas by a petition filed in this Court by the aforesaid petitioner, it has been brought to the notice of this Court that you respondent, aforesaid, have taken on your file _____ (here describe the proceeding), and whereas this Court is of opinion that you, the respondent aforesaid, have no jurisdiction to hear and determine the said _____ by reason that (state facts showing want of jurisdiction).

You are hereby prohibited from further proceeding with the said _____.

Additional Registrar/ Deputy Registrar.

FORM NO.7.

Order on Petition for Quo Warranto
(under Article 199(1)(b)(ii) of the Constitution of the
Islamic Republic of Pakistan, 1973)**

IN THE LAHORE HIGH COURT, LAHORE.

The Day of 20...

Writ Petition No. of 20...

Between

_____ Petitioner.

and

_____ Respondent.

Petition praying that in the circumstances stated in the affidavit filed therewith the High Court will be pleased to issue a Writ of Quo Warranto direct to _____ the respondent, above named, requiring him to show cause by what authority he claims to have, use, enjoy and perform the rights, duties, privileges of the office of _____

The petition coming on for hearing this day, upon reading the petition, etc., hearing Mr. _____ for the petitioner and the said respondent appearing by Mr. _____ and entering a disclaimer to the Quo Warranto, this Court doth order and direct that the said _____ respondent herein do not intermeddle in any manner with the said office and this Court doth further order and declare that the said office of _____ is vacant.

Additional Registrar/ Deputy Registrar.

FORM NO.8
Writ of Mandamus
(under Article 199 (1) (a) (i) of
the Constitution of the Islamic Republic of Pakistan, 1973.)**

IN THE LAHORE HIGH COURT, LAHORE.

The Day of 20...

Writ Petition No. of 20...

Between

_____ Petitioner.

and

_____ Respondent.

To

Whereas by section _____ of Act _____ you are required to _____ (specify the act to be done) and whereas it has been represented to the Court that, contrary to the requirements of the Act, you failed, neglected or refused to _____ in spite of demands made in that behalf.

You are hereby directed to _____ on or before _____.

Additional Registrar/ Deputy Registrar.

PART K DESTITUTE LITIGANT FUND RULES, 1974.

Whereas the Provincial Government allocates funds to be given by the High Court to the deserving destitute litigants.

The Chief Justice and Judges have framed the following rules to ensure just and fair utilization of funds placed at the disposal of the High Court on such persons as really deserve this assistance.

1. (a) These rules may be called the “Destitute Litigant Fund Rules, 1974”.
- (b) They shall come into force at once.
2. In these rules, except as otherwise provided:
 - (a) “Authority” means the Chief Justice Lahore High Court or any other Judge or Officer of the Court specially empowered by him in this behalf.
 - (b) “Court” means the Lahore High Court.
 - (c) “Destitute” means a litigant who has no means to pay court fee or any other legal charges in connection with a writ petition to be filed in the Court.
 - (d) “Fund” means the Destitute Litigant Fund.
 - (e) “Inquiry Officer” means an officer appointed by the Authority to enquire into the financial position of the applicant.
3. (a) Every application seeking assistance out of the Fund shall be accompanied with a schedule of both moveable and immoveable property, if any, belonging to the applicant, with estimated value thereof and any other source of income along with a copy of the writ petition with enclosures intended to be filed in the Court.
- (b) It shall be signed and verified in the manner prescribed for signing and verification of pleadings.

4. Notwithstanding anything contained in these rules, the application shall be presented in person to the Deputy Registrar (Judicial) or any other Officer of the Court so appointed by the Authority to receive such applications.
5.
 - (a) Where the application is in proper form and duly presented, the Authority may, if it thinks fit, require the Inquiry Officer to examine the applicant in order to ascertain his financial position.
 - (b) The Inquiry Officer may fix a date and record such evidence as the applicant may adduce in proof of his being destitute.
 - (c) The Inquiry Officer may, if he is not satisfied with the evidence produced before him by the applicant, call for a report from the Collector concerned in regard to the statement of the applicant of being a destitute.
 - (d) The Inquiry Officer shall thereafter proceed to record his opinion and present the same to the Authority.
 - (e) Before a destitute litigant is provided funds to file a cause in this Court, an Officer of the High Court should certify that there is a *prima facie* case to be agitated before the Court.
6. On receipt of report from the Inquiry Officer the Authority may pass such order as it considers necessary for any financial assistance from the Fund or reject the application.
7. The decision of the Authority shall be final.

CHAPTER 5

Records --- their inspection, grant of copies and destruction

PART A THE INSPECTION OF RECORDS

1. The inspection of records of decided cases will be allowed only under the orders of the Deputy Registrar concerned.**
2. Records of pending cases will be open, as of right, for inspection of parties or their authorized agents or any Advocate of the Court, who is duly authorized to act in the case or junior counsel duly authorized by a certificate from such Advocate, on the application, that he has authorized his junior to inspect the record for him:
 Provided that an Advocate of the Court may inspect the record of any such case on giving an assurance that he is in communication with one of the parties with a view to being retained in it.
 Provided also that the inspection of a record will not be permitted on the date fixed for hearing without the special order of the Judge or one of the Judges before whom the case is pending.*
2. With the exception of the persons above-mentioned no one will be allowed access to the record of a pending case without the special order of a Judge.
4. Applications under rules 1 and 3 shall be made by petition duly stamped with a court-fee label of Rs.10/-. Other applications for inspection shall be in writing on a printed form to which must be affixed a court-fee label of the value prescribed below:-
 - (a) If ordinary inspection is desired, a court-fee label of Rs.5/-*.
 - (b) If urgent inspection on the date of hearing or on a day other than the date of hearing is desired, a court-fee label of Rs.10/-.*

Note: (1) No fees should be charged for the inspection of records in civil and criminal cases by the Advocate-General, Public Prosecutor or Advocate of the Custodian of Evacuee Property, as such, or by any counsel appearing for Government in civil and criminal cases or by counsel appearing for accused or appellant in cases where the latter is a pauper or is defended by counsel provided at Government expense.

Note:(2) No fee shall be charged for inspection by parties and counsel in criminal cases but fees will have to be paid in case of a-

- (a) second inspection of the same record, or
- (b) inspection on the day the application for inspection is made.

5. Applications must distinctly specify the record of which inspection is desired and shall be presented to the Inspection Clerk between 8.00 a.m. to 10.30 a.m.*
6. *** [Omitted].
7.
 - (i) No mark shall be made on any record or paper inspected, and no clerk shall be allowed to take notes except in the presence and under the supervision of the Advocate with whom he is attached. The copying of any document or portion of the record in pen and ink is strictly prohibited; but pencil copies of a document or portion of the record may be made. Any person infringing or attempting to infringe the rule shall be liable to be deprived of the right to inspect records for such period as the Administration Judge may think fit.*
 - (ii) Except in the case of connected records, inspection of which has been permitted for a single fee, access will be permitted to the record of one case only at a time.
8. The fee provided in rule 4 shall entitle the applicant to inspect the record on one day only. If inspection of the record is desired to be continued, a fresh application shall be required and a fresh fee paid for every succeeding day.*
9. Police papers received in the Court in connection with any pending criminal case and translation of such papers shall not be available for inspection, either by the convict or accused or by his agent or by any legal practitioner retained on his behalf.
10. All applications bearing a court-fee label of Rs.10/- shall be dealt with by the office at once. All ordinary applications shall be dealt with in the ordinary course of business.*
11. In the case of an application for ordinary inspection of pending record, the applicant shall give the Inspection Clerk 24 hours' notice, in writing in the application of the day and the time on which it is desired to inspect such record.

12. When any records are in the custody of the High Court either in connection with an appeal from a conviction or have been received in accordance with the procedure laid down in rule 6(b) of Chapter 25-E, High Court Rules and Orders, Volume III, the Deputy Registrar of the High Court, on being informed by the State that an appeal against acquittal is contemplated shall hand over the required records to the Advocate-General on demand during such period as they are not required for the purposes of the appeal.*
13. In order to trace particulars of a suit or document, counsel may, with the previous permission in writing of the Deputy Registrar concerned and in the presence of a court official, inspect civil and criminal registers of the Court on behalf of parties, free of charge.**

COPY BRANCH RULES

1. Petitions for supply of copies will be received by the Copy Clerk at the Counter.
2. The Copy Clerk shall be responsible for checking the correctness of the details of the petition and of the deposit. After checking and initialling the petition and entering it in his register (Appendix 'H'), he will obtain orders from the Supervisor, Copy Branch, whether or not copy should be supplied.
3. If the Supervisor, Copy Branch, orders supply of copy to the petitioner, the Copy Clerk will hand over the petition to the Miscellaneous Clerk for further necessary action.
4. For the aforementioned purposes, the Copy Clerk shall maintain a register showing the number of petition, date of receipt, case number, details of deposit, receipt, (the date of supply to the petitioner), etc., as shown in the register HC. J.D. 28.
5. The Miscellaneous Clerk will maintain the following registers showing all the movements of the petitions and will be responsible for securing the relevant case from the Branch concerned, expeditiously:-
 - (i) Main Register showing movement of petition till the case concerned is received by him, Appendix 'A'.
 - (ii) Branch-wise Register showing time and date of requisition from the Branches and their results, Appendix 'B'.

Decided Cases

6.
 - (a) In 'decided cases', the Miscellaneous Clerk will obtain spare copy(ies) from the Record Keeper Judicial.
 - (b) The Record Keeper Judicial shall supply the spare copy(ies) on requisition. If he cannot, he will give reasons therefor. If

there is no spare copy, a new copy shall be prepared and supplied.

- (c) Where the Branch concerned has reported that the file has not been received from the Court, the Supervisor of the Copying Branch shall, in the case of copies applied for Supreme Court use, ask the Reader of the Hon'ble Judge on the *proforma* (Appendix 'I') to intimate the approximate time when the case is likely to be sent to the Branch.

Pending Cases

7. In pending cases, the Miscellaneous Clerk will secure the relevant case from the Branch concerned.
8. After a spare copy/relevant case has been secured the Miscellaneous Clerk will, after making necessary entries in his register pass it on to the Examiner, Copy Supply Section.

Action in Copy Supply Section

9. The Examiner, Copy Supply Section, will maintain a register (see (Appendix 'C')) showing receipt of work, its allotment to the typists and dates of return of the case to the Miscellaneous Clerk.
10. (a) The Typists shall maintain a "Typists Register" which will consist of two parts:-

Case Diary

I Part-A showing receipt, total number of words and final return of petition with copies.
(Appendix 'D')

II Part-B daily standard, showing number of words and charged by the typist.
(Appendix 'E')
- es. (b) While returning these cases to the Examiner, the Typist shall obtain signature of the Copy Holder to the Examiner in Part-A of the Register.

11. If a spare copy is supplied by the Judgment Copy Section columns 5 and 6 of the Examiner's Register should bear the entry "Spare Copy received".

Delivery of Copies

12. After entering the copies in the cost register, and putting the prescribed seal along with the particulars given in Appendix 'J' thereon, the Examiner, Copy Supply Section, will deliver them to the Copy Clerk obtaining the latter's signature on the register. The Copy Clerk will, in turn, pass them on to the Supervisor, Copy Section after completing the accounts.
13. After making the necessary checks, the Supervisor Copy Section will have the copy delivered to the petitioner through the Copy Clerk.

Priority of Petitions

14. All petitions for copies on which urgent fee has been paid, will be stamped "URGENT" and will take priority over those that are not so stamped.

Priority as between Urgent Petitions

- 14-A. All urgent petitions for copies, for the purposes of bail applications, applications for stay of proceedings, or relating to matter in respect of which a direction has been given that copies be supplied immediately, shall be further stamped as "TOP PRIORITY", and shall take priority over those that are not so stamped.
15. (a) The petition for supply of copy bearing the stamp "URGENT", should be treated with "TOP PRIORITY" by the Branches concerned, i.e., Criminal, Civil and Miscellaneous and the Record Keeper Judicial, the record being made available on the very day the petition is received in the Branch concerned. Reasons should be given if the records are made available the next morning.
- (b) In the case of ordinary petitions, the case should be sent or petition returned with proper reports by the next day at the latest.

16. (a) Where a copy of judgment or decree or both are applied for on ordinary fee, and the case is either already with or on its way to the Judgment Copy Section that Section should give such cases as much priority as possible and will simultaneously turn out an additional copy (carbon/photo) if necessary.
- crees. (b) The Decree Writer will be informed by the Civil Branch of all the cases in which decrees have been applied for and he will accordingly prepare the decree on priority basis and pass on the case to the Judgment Copy Section.
17. When copies of judgment are applied for and the case is with the Decree Writer for the preparation of decree, if the decree cannot be prepared immediately, the Decree Writer will spare the case immediately for copying of judgments.
18. Where judgment and decree are applied for on urgent fee, the process outlined in rules 15 and 16 above will be executed on top priority basis.

Register to be maintained by Branches

19. (a) Every Branch will maintain a separate register (see Appendix 'F') showing receipt of petition and movement of the case concerned, particularly the notes of despatch to and return from the Copy Supply Section.
- (b) The Assistant Registrar of each Branch will invariably check this register daily before the close of the office, and send the following statement to the Supervisor, Copy Branch, the next morning:-
- (i) Number of applications received;
 - (ii) Number of applications returned with cases to Copy Supply Section;
 - (iii) Number of applications remaining without compliance; and
 - (iv) Reasons for non-compliance.

Daily Statements

20. (a) The Supervisor, Copy Section, will consolidate the above mentioned statements in the following form:-
- (i) Number of applications received with cases;
 - (ii) Dates on which copies are actually prepared, compared and supplied;
 - (iii) Number of applications awaited from different Branches;
 - (iv) Dates of applications remained without compliance.
- (b) The Supervisor, Copy Branch, shall submit this consolidated statement daily to the Assistant Registrar who will see whether the reasons advanced for applications remaining without compliance are genuine or otherwise, and will take necessary action to have them expedited.

General

21. The Supervisor, Copy Section, being in charge of work in the Copy Branch, shall exercise proper control to ensure that no undue delay is caused in the supply of copies, and he shall pursue the applications personally and keep the Assistant Registrars concerned informed about the delays or the non-return of applications with cases to the Copy Supply Section.
22. In case of urgent petitions, the actual time of receipt and disposal of the requisition will be given along with the dates, at every stage.
23. Where petitions are found to be either incompetent or defective, an "Objection Statement" concerning such petitions will be pasted on the Notice Board, showing details given in Appendix 'G'.
24. Applicants applying for copies shall be given a date in writing on which delivery of the copy is to be taken. If the copy is not then completed such date (s) shall be extended from time to time until the copy is ready for delivery. Intimation of the extended date or dates

will be given to the applicant in writing, when he calls to take delivery of the copy on or after the due date. The final date so intimated shall, for the purposes of calculation required by this rule, be deemed to be the day on which the copy is given.

25. If the copy applied for is for Supreme Court use and is not ready on the date given, the applicant may be given the date following or, for reasons given, any later date.

APPENDIX 'A'

REGISTERS TO BE MAINTAINED BY THE MISCELLANEOUS CLERK.

1. Main Register

Petition No.	Date of Receipt.	Movement of the Petition.
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APPENDIX 'B'

2. Branch-wise Register

Date & Time.	Petition Number.	Signature of the recipient.	Result.
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APPENDIX 'C'

REGISTERS TO BE MAINTAINED BY THE EXAMINER,
COPY SUPPLY SECTION

1	2	3	4	5	6	7
Date on which the petition is received.	Petition number & date.	Case No.	Estimated number of words/ pages.	Name of typist/ copyist with his initials.	Date of return to Examiner with initials of Copy holder & the typist.	Date of examination, return of case to the Misc. Clerk with his initials.

APPENDIX 'D'

TYPISTS' REGISTER

PART 'A'

Petition No. and date.	Date of		Total No. of words charged.	Pages on which charged.
	Receipt.	Return with Copy Holder's signature.		

APPENDIX 'E'

PART 'B'

Date.	Petition No. & Date/ Case No.	No. of words charged.
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APPENDIX 'F'

BRANCH REGISTER OF PETITIONS FOR COPIES

Petition particulars No.	Disposal.	Signature of the recipient.	Date of return of case.	Name of the person to whom returned.

APPENDIX 'G'
OBJECTION STATEMENT

Petition No.	Date.	Name of applicant.	Objection.
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APPENDIX 'H'
(HC. J.D. 28.)

COPY CLERKS' REGISTER.

1. Serial No.
2. Date of presentation of application for copy.
3. Date of deposit of advance.
4. Name of applicant and his full address.
5. No. of the case.
6. Appellant/Petitioner.
7. Respondent.
8. Amount deposited.
9. Amount of urgent fee.
10. Signature of the Supervisor.
11. Amount of court fee stamp (if any).
12. Name of Section where made.
13. Excess amount of copying fee recovered.
14. Excess amount of deposit refunded.
15. Attested English manuscript copies.
16. Attested vernacular manuscript copies.

17. Applications returned.

18. Copies struck off by Straker's process.

18-A. Date given to the applicant for receiving copy.

19. Date when copy was ready for delivery.

20. Date when copy was delivered.

APPENDIX 'I'

Petition No. _____ dated _____ 20____ has
been filed in the Copy Branch in Case No. _____ for supply of
certified copies for filing an appeal in Supreme Court. Branch concerned has
reported that the case in question is still in Court. Please intimate as to when this
case is likely to be sent to the Branch, so that an approximate date can be given to
the petitioner for supply of copies.

Reader to Mr. Justice _____

APPENDIX 'J'

COSTS REGISTER

1	2	3	4	5	6	7
No. & date of petition.	No. of words.	No. of Pages.	Costs.	Urgent fee.	Other fees.	Name of the typist/copyist.

PART B THE GRANT OF COPIES AND TRANSLATION OF RECORDS.**A. Persons entitled to copies.**

1. A copy or translation of a judicial record may be granted in the manner prescribed by these rules to any person who is legally entitled to receive it.

2. (i) A party to a suit or appeal is entitled, at any stage of the suit or appeal, to obtain on payment copies of the record of the suit or appeal, including exhibits which have been put in and finally accepted by the Court in evidence.

Note: A party who has been ordered to file a written statement is not entitled to inspect or take a copy of a written statement filed by another party, until he has first filed his own.

- (ii) A stranger to the suit or appeal may, after decree, obtain as of right on payment copies of the plaint, memorandum of appeal, written statements, affidavits and petitions filed in the suit or appeal; and may, for sufficient reason shown to the satisfaction of the Court, obtain copies of any such documents before decree.
- (iii) A stranger to the suit or appeal may also obtain as of right, on payment copies of judgments, decrees or orders, at any time after they have been passed or made.
- (iv) A stranger to the suit or appeal has no right to obtain copies of exhibits put in evidence, except with the consent of the person by whom they were produced.
- (v) Any person entitled to obtain a copy of a judicial record may apply for a translation thereof.

B. Application for copies and translation of records.

3. (i) Copies or translations of judicial records of the High Court will be supplied on application made to the Court.

Note: Every such application shall bear a Court-fee label of five rupees, - vide Schedule II, Article I (d) (iv), Court-Fee Act, 1870, as amended by Punjab Finance Act, 1973. (see Gazette of Punjab Extra-ordinary, 29th June, 1973).*

- (ii) Every such application may be either-
- (a) presented in the ordinary course ; or
 - (b) transmitted through the post, addressed to the Registrar or the Deputy Registrar.

4. Every application for a copy or translation shall contain the following particulars, namely,-

- (a) the name of the cause;
- (b) if the cause is pending, the date of institution thereof, and the date fixed for hearing, if any;
- (c) if the cause has been decided, the date of decision;
- (d) where the information referred to in clause (b) and (c) is not available to the applicant, such other information as may be sufficient to enable the cause to be identified and traced;
- (e) the nature of the document, a copy or translation of which is required;
- (f) in the case of a copy, whether for private or general use;
- (g) the name and full postal address of applicant.

5. (i) Upon the presentation or receipt by post of an application for copy or translation, the proper officer shall-

- (a) endorse or cause to be endorsed thereon the date of presentation;
- (b) initial the endorsement;
- (c) cause the application to be registered as hereinafter provided; and
- (d) cause the court-fee thereon to be cancelled according to law.

The application will then be examined and an order passed thereon as hereinafter prescribed.

Note: The Incharge, Judicial Copy Section, is authorized to deal with applications for copies and translations under these rules.

- (ii) If the application is in proper form and is one which may properly be granted under the rules and practice of the Court, an order will be recorded thereon directing the copy or translation required to be made and delivered.
- (iii) If the application is not in proper form or is one which may not properly be granted under the rules and practice of the Court, an order will be recorded thereon specifying the requirements to be complied with and directing its return to the applicant, or refusing the application and directing that it be filed, according to the circumstances of the case.
- (iv) Applications for copies which are made so late that the copies cannot be completed by the date on which they are required, will be returned to the applicant with an endorsement to that effect.

C. Description of copies.

6. Copies supplied are of three kinds, namely, -

- (i) Attested copies (supplied in either English or Vernacular), for private use, which do not require a court-fee stamp, but cannot be used officially until the prescribed court-fee has been affixed.
- (ii) Attested copies (supplied in either English or Vernacular), for general use, on which the court-fee prescribed by Articles 6, 7, 8 or 9 (as the case may be) of Schedule I of Act VII of 1870 must be affixed before delivery, namely:

On copies of decrees	Rs. 4.00
On copies of judgment	Rs. 8.00
Other copies -	
For every 360 words or fraction thereof.	Rs. 1.50*

- (iii) Unattested copies of complaints, exhibits and depositions prepared by court stenographers under the orders of the Presiding Judge when application is made before hand, are supplied to parties at the rate of Rs. 1.00 per page,
for the first four pages - Rs. 1.00 with an additional charge of Rs. 1.00 for each additional;
one-fourth of the fees so realized shall be paid to the court stenographer concerned.*
- (iv) Unattested copies of orders passed in a departmental case in the High Court required by a party to the case for the

purposes of appeal are supplied by Copying Agency at the rate of Rs. 4/- for every order.

- (v) Every application for attested copy will be entertained subject to deposit of cost in advance as may be fixed by the Chief Justice from time to time. The amount so deposited will be adjusted at the time of delivery of copy.

7. (i) Consolidated fees shall be charged for attested copies according to the following scales or as may be prescribed from time to time :-

- (a) English copy (attested)
For first 200 words or under --- Rs.1.50
Every additional 100 words or under --- Rs.1.00

- (b) Vernacular copy (attested)
First 200 words or under --- Rs. 1.50
Every additional 100 words or under --- Rs. 1.00

- (c) Copies of judgments supplied for purposes of reporting to the reporters of Private Law Journals, which undertake to publish only judgments approved for reporting such copies to be marked "For reporting only" per page --- Rs. 2.00

- (d) Copies of judgments supplied for purposes of reporting to authorized representatives of newspapers who give an undertaking that copies so supplied will be used only for reporting such copies to be marked "For reporting only" per copy --- Rs. 8.00

- (ii) For field maps, boundary maps, tabular work and similar work, a special fee which must always be a multiple of Rs.5/- shall be fixed by the Deputy Registrar. --- Rs.5.00

- (iii) The above fees shall include the cost of the paper which will be supplied by Government. --- Rs.5.00

- (iv) On application for urgent copies, i.e., copies to take precedence of other copying work, a uniform extra fee of two rupees shall be charged. --- Rs.2.00

Note: For the purpose of (iv) above, the extra fee to be charged shall be for each paper copied which can properly be regarded as a separate paper, e.g., every deposition of a witness or written statement of a party or order of the Court is a separate paper. In case of doubt as to whether a paper is separate or not, the Deputy Registrar shall decide.

(iv-a) The fees shall be charged for attested copies (English & Urdu) prepared on photocopier according to Rs. 2.00 per page.*

8. Copies of translations of records which have already been translated, or of records ordinarily translated free of charge, will be supplied under the rules applicable to ordinary copies.
Copies of translations of records which have not been translated already or of records not ordinarily translated free of charge, will be supplied under the rules applicable to translations.
9. Copies shall ordinarily be delivered to the applicant not later than three days from the date on which the fees required under these rules are deposited.
10. If the actual amount of the charge is to be made in respect of a copy or translation-
 - (i) exceeds the amount deposited, the balance will be recovered before the copy is delivered;
 - (ii) falls short of the amount deposited, the surplus will be returned to the person entitled to the copy at the time of delivering the copy to him.
11. Copies of record required for public purposes by public officers as defined in section 2(17) of the Code of Civil Procedure of the Federal or Provincial Governments in Pakistan shall be supplied free of charge provided the application for copy is endorsed by the Head of the Department concerned.*
12. A copy of the judgment of the High Court, in appeal or revision in every criminal case in which, as a result of the decision of the High Court, any convicted person is required to undergo imprisonment for a period of not less than two years shall be supplied free of cost to the Superintendent of the Jail concerned within one month from the date of judgment or order.
13. When a death sentence is passed or confirmed by the High Court and the condemned prisoner wishes to appeal to the Supreme Court, he should be given a copy of the judgment of the High Court free of cost.

PART C THE DESTRUCTION OF RECORDS.

Rules framed by the High Court under section 3 of the Destruction of the Records Act, 1917, with the previous approval of the Provincial Government.

PART I- GENERAL.

1. All judicial records, books and papers in respect of which the period, hereinafter prescribed, for their preservation has expired shall be destroyed in accordance with the directions contained in the rules next following:
Provided that the Deputy Registrar may order, for reasons to be specified, that any particular paper or the record of any particular case be preserved beyond such period.
2. The destruction of judicial records, books and papers shall be carried out from time to time as may be necessary; and, subject to the general superintendence of the Deputy Registrar, shall be supervised by such officer, hereinafter called the supervising officer, as may be appointed by the Chief Justice and the Judges for the purpose.
3. The destruction of judicial records, books and papers shall be effected by burning. All court-fee stamps affixed to documents which are to be destroyed shall first be removed therefrom and burnt by, or in the presence of, the supervising officer. *01

PART II – JUDICIAL RECORDS.

4. Every judicial record shall, for the purposes of these rules, consist of two parts, namely, (1) part A and (2) part B. Every document admitted to such records shall be marked with the letter A or the letter B according as it belongs to part A or part B and shall be placed with such file and shall without delay be entered in the general index prefixed to each such record.
5. Part A of a civil judicial record shall consist of the following documents, namely,-

(a) In original suits.

- (1) The *tablak* or envelope containing particulars of the case and a brief abstract of the orders in English.
- (2) The index of papers.
- (3) The order sheet.
- (4) The plaint, together with any schedule annexed thereto, and all documents, whether original or copies, filed with the plaint.

Note: In miscellaneous cases the petition or written application of the party setting the Court in motion will take the place of the plaint.

- (5) The written statements and pleadings of the parties.
- (6) Applications of parties who are strangers to the suit, with the Court's order thereon.
- (7) Orders of appointment, removal or discharge of a guardian or next friend.
- (8) The memorandum of issues, with amended or additional issues, if any.
- (9) All depositions of witnesses.
- (10) Order for fining a witness.
- (11) All documents or certified copies thereof received by the Court during the trial as evidence between the parties.
- (12) Order impounding a document.
- (13) Commissions, proceedings held thereunder and reports and examination of Commissioners.
- (14) Affidavits.
- (15) Reports furnished by the record department.
- (16) Applications to refer to arbitration, references to arbitration, the award or other final return of the arbitrators, with the proceedings, depositions and documents submitted therewith, and any application to set aside the award, with the Court's orders thereon.
- (17) Instruments of withdrawal, compromise or confession of judgment.
- (18) Orders of arrest or attachment before judgment with all documents relating thereto.
- (19) Interlocutory orders of the Court.
- (20) The judgment, translation thereof (if any), or other final order.
- (21) The decree and all documents relating to the preparation or amendment thereof.
- (22) All notes in the handwriting of the Judge.
- (23) Application for the re-admission of a suit dismissed for default or for the re-hearing of a suit decreed *ex-parte*.
- (24) Application for review of judgment with the Court's orders thereon.
- (25) All receipts and acknowledgments filed in execution proceedings.
- (26) Petitions for substitution, addition or striking out of names of parties or for substitution of the names of the heirs of a deceased plaintiff or defendant, if allowed.

(b) In Appeals and Miscellaneous cases (including Reference and Revision proceedings).

- (1) The *tablak* or cover containing particulars of the case and a brief abstract of orders in English.
- (2) The index.
- (3) The memorandum of appeal.
- (4) The notice, with report of service, in *ex-parte* cases.
- (5) Memorandum of objections under Order XLI rule 22 or 26 of the Civil Procedure Code.
- (6) The finding on issues referred to the lower court for trial under Order XLI rule 25 of the Civil Procedure Code.
- (7) Security bond for costs filed by the appellant.
- (8) Petitions for substitution, addition or striking out of names of parties or for substitution of the names of the heirs of a deceased appellant or respondent, if allowed.
- (9) Depositions of parties or witnesses taken in this Court or by the lower court on remand.
- (10) Order for fining a witness.
- (11) Commissions, proceedings held thereunder and reports and examination of Commissioners.
- (12) Order of appointment, removal or discharge of a guardian or next friend.
- (13) Documents filed by the parties.
- (14) Order impounding a document.
- (15) Affidavits, except those presented with applications which are rejected.
- (16) Applications to refer to arbitration, references to arbitration, the award or other final return of the arbitrators, with the proceedings, depositions and documents, submitted therewith, and any application to set aside the award with the Court's orders thereon.
- (17) Instruments of withdrawal, compromise or confession of judgment.
- (18) Interlocutory orders.
- (19) The Court's judgment, translation thereof (if any), or other final order.
- (20) The decree and all documents relating to the preparation or amendment thereof.
- (21) Application for the re-admission of an appeal, application or petition dismissed for default, or for the re-hearing of an appeal, application or petition decreed *ex-parte* with final order thereon.
- (22) Application for review of judgment with final order thereon.

- (23) Application for revision under section 115 of the Code of Civil Procedure, 1908.
 - (24) Judgment and final order on applications referred to in (21) to (23).
 - (25) Reference under Order XLVI rule 1 of the Civil Procedure Code or other law, with the final order.
 - (26) Three copies of the printed record of civil appeals heard by the High Court.
6. Subject to any direction by the Court to the contrary, part B of a civil judicial record shall consist of all documents in such records as are not indicated in the preceding rule as belonging to part A.
7. Part A of a criminal judicial record shall consist of the following documents, namely,-
- (a) In an original trial, of all papers.
 - (b) In an appeal, reference and revision, of -
 - (1) The *tablak* or envelope containing particulars of the case and a brief abstract of the orders in English.
 - (2) The index.
 - (3) The petition of appeal or revision or letter of reference.
 - (4) Any additional evidence taken under the orders of the High Court on remand.
 - (5) Translation of police reports.
 - (6) Interlocutory orders of the Court.
 - (7) Judgment and formal order of the Court, and translation of the same.
 - (8) All notes in the handwriting of a Judge.
 - (9) Copies of the judgments of the lower courts.
8. Subject to any direction by the Court to the contrary, part B of criminal judicial record shall consist of all documents in such records as are not indicated in the preceding rule as belonging to part A.
9. The following documents belonging to part A of a judicial record shall be preserved ***permanently***, namely, -

In Civil Cases

- (1) The index.
- (2) The judgment of the Court.
- (3) The decree of the Court.
- (4) Unreturned deeds.
- (5) One copy of the printed paper book in all cases in which a paper book is printed and in other cases copies of the judgments of the courts below and the memorandum of appeal presented in the High Court.

In Criminal Cases

- (1) The index.
- (2) The judgment of the Court.
- (3) Warrants of commitment or execution, when returned.
- (4) Unreturned deeds.
- (5) One copy of the printed paper book in all cases in which a paper book is printed and in other cases copies of the judgments of the courts below and the memorandum of appeal presented in the High Court.

10. Subject to the provisions of rule 9, the following records shall be preserved for **thirty** years, namely,-

- (1) Part A in all original civil cases.
- (2) Part A of all appeals involving title to immovable property as defined in section 3, clause 25 of Act X of 1897.
- (3) Part A of all appeals relating to the succession to an office or to establish or set aside an adoption or otherwise determine the status of an individual, and of all appeals relating to trusts or religious endowments.
- (4) Part A of proceedings under Guardians and Wards Act VIII of 1890 and Succession Act XXXIX of 1925 and all cases connected with the custody and disposal of intestate property.
- (5) Proceedings under the Divorce Act IV of 1869.*
- (6) Judgments of Supreme Court of Pakistan in appeals preferred from orders of the High Court.
- (7) Murder references.
- (8) Original criminal trials.
- (9) Part A of criminal appeal and reference cases relating to cases decided by the Courts of Session, or by Magistrates empowered under section 30, Criminal Procedure Code, and of all cases coming under Chapters XII and XVII, Pakistan Penal Code, to which section 75 of the Pakistan Penal Code is applicable:

Provided that in the cases referred to in (9), (10) and (11), if the sentence has not been fully executed, the record shall be preserved until the return of the warrant, and shall then be destroyed.

- (10) Part A of appeals or reference under Chapter XXXII, Criminal Procedure Code, in which the orders of the courts below have been interfered with.
- (11) Cases in which any public servant has been tried as such.
- (12) Records relating to the disposal of immovable property forfeited to Government under section 62, Pakistan Penal Code.
- (13) Part A of cases heard, in the exercise of insolvency jurisdiction other than that conferred by Act V of 1920.
- (14) Part A of criminal cases in which a lunatic is concerned unless the lunatic shall have been subsequently tried or have died.

- 11.** Subject to the provisions of rule 9, the following records shall be preserved for **twelve** years, namely,-

Part A of civil and criminal appeals and civil and criminal reference cases not mentioned in rule 10.

- 12.** Subject to the provisions of rule 9, the following records shall be preserved for **six** years, namely,-

Part A of the record in applications for the exercise by the Court of its revisional jurisdiction under the Civil Procedure Code or the Code of Criminal Procedure.

- 13.** Part B of a judicial record and applications of a miscellaneous character filed with such record shall be destroyed before such record is consigned to the record-room:

Provided that, where an appeal lies to the Supreme Court of Pakistan, part B of the record of such appeal shall be preserved until the period for the presentation of an appeal has expired, or where an appeal has been made, till the judgment of the Supreme Court of Pakistan, has been communicated to the High Court:

Provided also that when a case in this Court has been dismissed for default or heard *ex-parte*, part B of the record shall not be destroyed until the expiry of six months from the date of the decision:

Provided further that a power of attorney filed in a civil appeal in which Intra Court Appeal lies to the High Court shall be preserved until the period for the presentation of an Intra Court Appeal has

expired, or where an appeal has been made till the judgment therein has been pronounced. *01

- 14.** The period prescribed by rules 10, 11 and 12 of these rules for the preservation of a judicial record shall be reckoned from the date of the final order of the Court in the case.
- 15.** A note of every judicial record destroyed under the provisions of these rules shall be made, under the signature of the supervising officer, at the time of destruction in the register in which the case is entered, and also in the general index prefixed to such record.
- 16.**

 - (i) Documents belonging to private persons or to Government as a party to the proceedings or which have been impounded in the cases in which they were produced shall not be destroyed, but shall be dealt with in the manner provided by the clauses of this rule next following.
 - (ii) When the period prescribed by rules 10, 11 and 12 of these rules for the preservation of part A of a judicial record has expired, and before such part is destroyed all documents of the nature specified in clause (i) of this rule shall be removed therefrom and kept till application is made for their return.
 - (iii) A document shall not be returned within the period specified in Order XIII rule 9 of the Code of Civil Procedure, until a certified copy thereof has been delivered to be substituted for the original, nor shall a document be returned which has been ordered to be impounded or which has, by force of a decree or order of the Court, become void or useless, or which is required by law to be filed and preserved, e.g., a will under section 294 of the Succession Act XXXIX of 1925.

PART III - REGISTERS.

- Classification 17. The registers of the Court shall, for the purposes of these rules, be divided into three classes, namely,-
- A. Primary,
 - B. Subsidiary,
 - C. Statistical.

All the registers shall be maintained in English.

A. Primary.

- Primary registers, definition and period of preservation. 18. (i) The primary registers are those which have to do directly with cases filed in court, and which form an abstract of the progress and disposal of such cases.
- (ii) The following primary registers shall be maintained and shall be preserved for the period specified against each:-

No. of Register.	Name of register.	Branch.	Period for which to be kept.
1	Civil First Appeals (Regular and Executions).	Civil	For ever.
2	Civil Second Appeals (Regular and Executions).	Ditto	Ditto.
3	Civil First Appeals from Orders.	Miscellaneous	Ditto.
4	Civil Second Appeals from Orders.	Ditto	Ditto
5	Civil Revisions.	Ditto	Ditto.
6	Civil Miscellaneous.	Ditto	Ditto.
7	Ditto.	Civil	Ditto.
8	Civil Originals.	Miscellaneous	Ditto.
9	References under the Punjab Tenancy Act and Order XLVI, Civil Procedure Code.	Ditto	Twelve years.
10	Original Matrimonial cases.	Ditto	For ever.
11	Matrimonial References.	Ditto	Ditto.
11-A	Matrimonial Appeals	Ditto	Ditto.

12	Probate and Administration.	Miscellaneous.	For ever.
13	Letters Patent Appeals or Intra Court Appeals.**01	Ditto	Ditto.
14	Criminal Appeals.	Criminal	Ditto.
15	Criminal Revisions.	Ditto	Ditto.
16	Criminal Miscellaneous.	Ditto	Ditto.
17	Murder References.	Ditto	Ditto.
18	Criminal Originals.	Ditto	Ditto.
19	Trial of European British Subjects.	Ditto	Ditto.
20	Roznamcha.	Civil	Twelve years.
21	Ditto.	Miscellaneous	Ditto.
22	Ditto.	Criminal	Ditto.
23	Civil Regular and Execution First Appeals (by districts).	Civil	For ever.
24	Civil Regular and Execution Second Appeals (by districts).	Ditto	Ditto.
25	First Appeals from Orders (by districts).	Miscellaneous	Ditto.
26	Second Appeals from Orders (by districts).	Ditto	Ditto.
27	Civil Revisions (by districts).	Ditto	Ditto.
28	Criminal Appeals (by districts).	Criminal	Ditto.
29	Criminal Revisions (by districts).	Ditto	Ditto.
30	Supreme Court Civil Appeals.	Civil	Ditto.
31	Supreme Court Criminal Appeals.	Criminal	Ditto.

B. Subsidiary

Subsidiary registers, definition and period of preservation.

19. The subsidiary registers are for administrative purposes, and the following shall be maintained, and shall be preserved for the period specified against each:-

No. of register.	Name of register.	Branch.	Period for which to be kept.
1	Outstation Dak Book (files).	Despatch	One year.
2	Outstation Dak Book.	Ditto	Ditto.
3	Outstation suggestion letters and notice cards.	Ditto	Ditto.
4	Station Dak Book.	Ditto	Ditto.
5	Despatch Diary (Number Book).	Ditto	Five years.
6	Return of files in all cases (Record Registers).	Ditto	Three years.
7	Issue Diary (Divisional Registers).	Despatch	Five years.
8	Postal Receipts.	Despatch	One year.
9	Ledger of Stamp Account.	Ditto	Five years.
10	Certificate for refund of stamp duty (Appeals).	Civil	Twelve years.
11	Certificate for refund of stamp duty (Revisions).	Miscellaneous	Ditto.
12	Certificate for refund of fine.	Criminal	Ditto.
13	Receipt of Records.	Miscellaneous	Three years.
14	Process fees realized.	Civil	Twelve years.
15	Process fees realized.	Miscellaneous	Ditto.
16	Cause Book for Division Bench cases (Civil).	Cause Register Clerk	One year.
17	Cause Book for Single Bench	Cause Register	One year.

	cases (Civil).	Clerk	
18	Cause Book for Division Bench Criminal cases.	Ditto	Ditto.
19	Cause Book for Single Bench Criminal cases.	Ditto	Ditto.
20	Incomplete cases of expired dates.	Civil	Ditto.
21	Incomplete cases of expired dates.	Miscellaneous	Ditto.
22	Remand cases.	Civil	Ditto.
23	Remand cases.	Miscellaneous	Ditto.
24	Remand cases.	Criminal	Ditto.
25	Petition Cause Book.	Civil	Ditto.
26	Petition Cause Book.	Miscellaneous	Ditto.
27	Petition Cause Book.	Criminal	Ditto.
28	Deposit Order Book (Printing fee of First Appeals).	Civil	Five years.
29	Deposit Order Book (I and II Appeals both).	Ditto	Ditto.
30	Deposit Order Book.	Miscellaneous	Ditto.
31	Deposit Order Book.	Criminal	Ditto.
32	Payment Order Book (Refund of Process fees in First Appeals).	Civil	Ditto.
33	Payment Order Book. (I and II Appeals both).	Ditto	Ditto.
34	Payment Order Book.	Miscellaneous	Ditto.
35	Payment Order Book.	Criminal	Ditto.
36	Cases given on requisition.	Civil	Three years.
37	Cases given on requisition.	Miscellaneous	Ditto.
38	Cases given on requisition.	Criminal	Ditto.

39	Causes laid before the Registrar (Reported cases).	Criminal	One year.
40	Receipt Diary.	Miscellaneous	Twelve years.
41	Issue (Baramdagi) Book.	Judicial Record	Five years.
42	Cases in which memo of costs is prepared.	Civil	For ever.
43	Cases in which memo of costs is prepared.	Miscellaneous	Ditto.
43-A	Kaifiat Register.	Judicial Record	Twelve years.
44	Civil Index.	Ditto	For ever.
45	Criminal Index.	Ditto	Ditto.
46	Probate Index.	Ditto	Ditto.
47	Index of Matrimonial cases.	Ditto	Ditto.
48	Register of Division Bench and Full Bench cases.	Readers	One year.
49	Register of Single Bench cases.	Ditto	Ditto.
50	Inspection of records.	Inspection Clerk	Ditto.
51	Register for urgent petitions.	D.R.R.	Ditto.
52	Single Bench Cause Register for Civil Appeals.	Cause Register Clerk	Six years.
53	Single Bench Cause Register for Civil Revisions.	Ditto	Ditto.
54	Single Bench Cause Register for Criminal Appeals.	Ditto	Ditto.
55	Single Bench Cause Register for Criminal Revisions.	Ditto	Ditto.
56	Single Bench Cause Register for Civil References.	Ditto	Ditto.
57	Single Bench Cause Register for Civil Miscellaneous Applications.	Ditto	Ditto.
58	Division Bench Cause Register for Civil Appeals and Income-tax cases.	Ditto	Ditto.

59	Division Bench Cause Register for Letters Patent Appeals or Intra Court Appeals **01.	Cause Register Clerk	Six years.
60	Division Bench Cause Register for Criminal cases.	Ditto	Ditto.
61	Division Bench Cause Register for Life Imprisonment Appeals and Murder References.	Ditto	Ditto.
62	Register for Special and Full Bench cases.	Ditto	Ditto.
63	Register for Matrimonial and Supreme Court cases and cases under Legal Practitioners and Bar Councils Act, etc.	Ditto	Ditto.
64	Petition Register.	Ditto	Twelve years.
65	Actual date register.	Ditto	Six years.
66	Cause Lists (Weekly and Daily).	Ditto	One year.
67	Work performed by Copyists.	Judgment Copy Section	Five years.
68	Distribution of cases to Copyists.	Ditto	One year.
69	Cases sent to Civil Branch after completion.	Ditto	Ditto.
70	Cases sent to Miscellaneous Branch after completion.	Ditto	Ditto.
71	Cases sent to Criminal Branch after completion.	Ditto	Ditto.
72	Copies supplied to the Editors of Law Journals.	Ditto	Ditto.
73	Copies sent to Bar Association.	Ditto	Ditto.
74	Copies sent to R.K. Judicial.	Ditto	For ever.
75	Check Book showing the receipts of stationery and its consumption.	Ditto	One year.

76	Disposal of applications received locally.	Supply Section	Three years.
77	Disposal of applications received by post.	Ditto	Ditto.
78	Ledger Book.	Ditto	Five years.
79	Copying Agent's Cash Book.	Ditto	Ditto.
80	Account of copies sent per V.P.P.	Ditto	Ditto.
81	Money orders received from the applicants.	Ditto	Ditto.
82	Amounts refunded by Money Order to applicants.	Ditto	Ditto.
83	Applications given to the Tracers.	Ditto	Ditto.
84	Account of copies sent to Legal Remembrancer.	Ditto	Ditto.
85	Paper Books received for copy.	Assistant Examiner's Section	One year.
86	Letters Patent Appeals or Intra Court Appeals sent to the Reader to Deputy Registrar or Miscellaneous Branch**01.	Ditto	Ditto.
87	Cases sent to Despatcher for issuing letters, etc.	Ditto	Ditto.
88	Notice Cases sent to Despatcher for issuing notices with grounds of appeal or revision.	Ditto	Ditto.
89	First Appeal Register.	Translating Department	Ditto.
90	Daily Receipt Register (First Appeals and Petitions).	Ditto	Ditto.
91	Ledger of Translators.	Ditto	Ditto.
92	Deposit Receipt Books.	Ditto	Three years.

93	Deposit Account Books.	Translating Department	For ever.
94	Cash Book (Daily).	Ditto	One year.
95	Payment Order Book.	Ditto	For ever.
96	Press requisition forms book.	Criminal	One year.
97	Printed records.	Civil	Five years.
98	Supreme Court cases.	Civil	Ditto.
99	Daily out-turn of work done by Copyist.	Translating Department	One year.
100	Daily outturn of work done by Proof Examiner.	Civil and Criminal	Ditto.
101	Index Register of <i>has-tas</i> containing cases dealt with in the Judicial Destruction Branch.	Judicial Record	Six years.
102	Receipt Diary of letters.	General	For ever.
103	Casual leave for Provincial Civil Service.	JOB	Three years.
104	Index to Punjab Govt. Gazette, Part-I, relating to history of Judicial Officers and Magistrates, powers, posting, etc.	Ditto	For ever.
105	*** ₀₁ [Omitted]		
106	Charge reports of Judicial Branch. P.C.S.	JOB	Three years.
107	Consumption of service post cards.	All Branches	Five years.
108	Form Stock Book.	General	Ten years.
109	Stationery Stock Book.	Ditto	Ditto.
110	Typewriter Stock Book.	Ditto	For ever.
111	Advocates' Register.	Ditto	Ditto.
112	*** ₀₁ [Omitted].		
113	Vakils' Register.	General	For ever.
114	Mukhtars' Register.	Ditto	Ditto.
115	Petition-writers' Register.	Ditto	Ditto.

116	Despatch Register.	General	For ever.
117	Register of Legal Practitioners' Clerks.	Ditto	Ditto.
118	Issue Book Register of Record-Keeper.	Ditto	Ditto.
119	Register of allotment for Judicial buildings, lock-ups and mortuaries.	Building	Ditto.
120	Accession Book.	Library	Ditto.
121	Issue Register.	Ditto	Three years.
122	Journals Receipt Register.	Ditto	One year.
123	Correction Slips Number Book.	Ditto	Ten years.
124	Correction Slips Receipt Register.	Ditto	One year.
125	Distribution of books.	Ditto	Ditto.
126	Register of books in Courts and Chambers.	Readers	For ever.
127	Check Books.	All Branches	Two years.
128	Diary Receipt Registers.	Ditto	For ever.
129	Service Appeals Register.	Establishment	For ever.

Statistical registers, definition and period of preservation.

C. Statistical

20. The statistical registers are for purposes of preparing the monthly and annual returns of the Court, and the following shall be maintained and shall be preserved for the period specified against each:-

No. of register.	Name of register.	By whom kept.	Period for which to be kept.
1	Average duration of Civil Appeal.	Statistical Clerk	Twelve years.
2	Average duration of Criminal Appeals and Revisions.	Ditto	Ditto.
3	Average duration of Murder References.	Ditto	Ditto.
4	***01 [Omitted]		
5	Disposal by a Bench.	Statistical Clerk	Ditto.
6.	Register of pending Civil Appeals.	Ditto	Ditto.
7.	Work done by Judges sitting in Chambers.	Ditto	Ditto.
8.	Court-fees realized.	Institution Clerks	Ditto.

PART IV - OTHER PAPERS.

A. Periodical returns.

Periodical
returns.
period of
preservation.

21. (a) The following returns shall be preserved for *one* year and then destroyed:-

Monthly. Index of judicial correspondence.

Quarterly. [List of unanswered references.
[Coinage statements submitted by
[District Co-Ordination Officer.
[Probate statements submitted by
[District Judges.

- (b) The following returns shall be preserved for *two* years and then destroyed:-

Monthly. [Statement of Civil and Criminal work
[of District and Sessions Courts.
[District Civil and Criminal statements.

Annual. Probate statements submitted by District Judges.

- (c) The following returns shall be preserved for *three* years and then destroyed:-

Annual. [Budget estimates.
[District Civil and Criminal statements.
[Manuscript copies of all annual reports
[received from District Courts.

Note: (1) Correspondence connected with the above returns will be destroyed at the same time, except such as may be of importance, which will be preserved for another year.

(2) The general statements compiled in the High Court office for the preparation of the Civil and Criminal reports, as well as the general statement of Civil and Criminal work, will be preserved for ten years and then destroyed. The general monthly statements of the work of District Courts will be preserved for the same period.

B. Correspondence.

22. The following will be preserved for *one* year and then destroyed:-
- (i) Reminders.
 - (ii) Charge certificates.
 - (iii) Letters asking for circulars, almanacs, copies of rules, petitions for employment, private letters and petitions asking for information regarding rules or the practice of the Court and such like.
 - (iv) Arrear statements.
 - (v) Personal files of all officers and other staff of Government,-
 - (a) who die while in service, shall be preserved for three years after their death and then destroyed, provided there are no outstanding claims on the part of their heirs; and
 - (b) who have retired, shall be preserved until their death and then destroyed, provided that no file shall be destroyed before three years from date of retirement when death occurs within three years of retirement.

C. Accounts.

23. Bills and vouchers will be preserved for *three* years and then destroyed; in the case of sub-vouchers for Rs.25/- or under, which are not submitted to audit, this period will, however, be reduced to *one* year only. Care should be taken to ensure that no bill or voucher is destroyed, even after the expiry of the above periods, until all audit objections, if any, relating to it, have first been settled. Counterfoils and miscellaneous account papers will be preserved for *three* years and then destroyed. Cash books, journals and ledger accounts shall be preserved indefinitely in the absence of special orders to the contrary.

D. Press Declarations.

24. Press declarations made under sections 4, 5 and 8 and submitted for record in the High Court under section 6 of the Press and Registration of Books Act, XXV of 1867 shall be destroyed after a period of *one* year from the date on which the press or the periodical concerned ceased to exist.

E. General

25. When any paper is destroyed, the letter 'D' shall be entered in red ink against the entry in the register in which such paper is registered.
26. The period for which a paper is to be preserved shall be reckoned from the 1st of January following the date which it bears, e.g., papers of 1885, which under these rules have to be retained for one year, will become liable to destruction after the 31st December, 1886.

**PART D RULES REGARDING INSPECTION, SUPPLY OF COPIES,
PROTECTION AND PRIVILEGE OF DOCUMENTS RELATING TO
THE SPECIAL OFFICIAL RECEIVER IN THE PUNJAB PROVINCE.***

1. The records of the Special Official Receiver have been classified under the following four heads:-

- I. Insolvency Court Judicial Records.
- II. High Court Executive Records.
- III. Official Records of the Special Official Receiver.
- IV. Other papers not falling in any of the above categories.

The details of first three Heads are given in the Appendix to this Chapter.

2. The rules for inspection and copies given in Chapters 5-A and 5-B of this Volume shall apply to the records falling under Head- I.
3. No hard and fast rules have been framed for inspection and copies of records falling under Head- II. Each case shall be decided on its own merits under the order of the Judge for the time being in charge of liquidation work in the High Court and, in his absence, the Administration Judge.
4. Copies of final orders of the Special Official Receiver which form part of his official records, other than judicial records, falling under Head- III, may be granted by him:
Provided that no copies of documents shall be supplied to any person, not entitled to them by law, between whom and Government there is any likelihood of litigation, except with the previous sanction of the Judge in charge of liquidation work in the High Court and, in his absence, the Administration Judge.

Note: (i) Official letters are privileged documents to copies of which no person has any claim whatever. Should it be desirable to grant a copy of letter, or an extract of a letter, received by the Special Official Receiver from a superior officer, reference shall in every case be made to the superior officer for permission.

- (iii) The refusal of the Special Official Receiver to supply copies shall be subject to revision by the Judge in charge of liquidation work and, in his absence, the Administration Judge.

5. Inspection of official records of the Special Official Receiver falling under Head- III shall be allowed only under his orders. The order of

the Special Official Receiver refusing inspection shall be subject to revision by the Judge in charge of liquidation work and, in his absence, the Administration Judge.

6. The rules for inspection and supply of copies of the official records of the Special Official Receiver (rules 4 and 5 above) shall also apply to the inspection and supply of copies of papers falling under Head -IV.
7. In examining the question of claiming protection and privilege for documents relating to the office of Special Official Receiver, he shall be guided by the provisions of the Qanun-e-Shahadat, 1984. In case of any doubt, the Special Official Receiver shall take the orders of the Judge in charge of liquidation work and, in his absence, the Administration Judge.*

APPENDIX

CLASSIFICATION LIST OF RECORDS OF THE SPECIAL OFFICIAL RECEIVER.

I. Insolvency Court Judicial Records.

- (a)
 - 1. Order of transfer of insolvency proceedings to the High Court.
 - 2. Order of the Insolvency Judge with regard to a claim.
 - 3. Declaration of dividend with Schedule.
- (b)
 - 1. Monthly Schedule of expenditure as approved by the Judge.
 - 2. Audit objection upon which judicial decision has been given.
 - 3. Any objection as to expenses of counsel engaged by the Special Official Receiver when determined judicially.
- (c)
 - 1. Application of a creditor for notice to others.
 - 2. Application of adjournment.
 - 3. Directions obtained from the Judge.
 - 4. Orders regarding transfer of property including the recommendation made by the Special Official Receiver on which such orders are passed and the applications of private persons from which such orders arise.
 - 5. Orders of notice of creditors about dividend.
- (d)
 - 1. Claim petition by a creditor under section 80 of the Provincial Insolvency Act.
 - 2. Power of attorney in favour of counsel on behalf of the creditor.
 - 3. Letter from a petitioning creditor to the Official Receiver.
 - 4. Account and copies of documents in proof of claim.
 - 5. Written statement on behalf of an insolvent.
 - 6. Written statement on behalf of an objecting creditor.
 - 7. Affidavit in a claim petition.
 - 8. Documents showing security filed in connection with a claim.
 - 9. Original deed included in claim petition.
 - 10. Copy of judicial order filed by the claimant.
 - 11. Pronote filed by a creditor.
 - 12. Proceedings before the Special Official Receiver with respect to proof of claims.

II. High Court Executive Records.

1. Leave application.
2. Order regarding staff.
3. Applications from members of the staff.
4. Audit reports with comments of the Special Official Receiver, if any.

III. Official Records of the Special Receiver.

1. Noting by the office upon the audit reports.
2. Documents relating to expenses of counsel engaged by the Special Official Receiver to conduct cases.
3. Correspondence with purchasers.
4. Notice (other than a statutory notice issued to creditors) by the Special Official Receiver, including advertisements relating to transfer of property.
5. Inspection slip.
6. Letter to counsel regarding pending suits and reply.
7. Correspondence with the Assistant to Special Official Receiver regarding rent collection.
8. Certified copies of the judgments and decrees.
9. Notice received from Court.
10. Notice of demand of property tax.
11. Correspondence regarding repairs and estimates thereof.
12. Correspondence regarding House tax and Municipal tax.
13. Policies of fire insurance.

CHAPTER 6

Legal practitioners

PART A LEGAL PRACTITIONERS' MISCONDUCT.

In exercise of the power conferred by Article 202 of the Constitution of the Islamic Republic of Pakistan 1973, the High Court makes the following rules:-

1. Where, on the complaint of any person or otherwise, the Chief Justice or the Court is of the opinion that an Advocate has been guilty of misconduct or conduct unbecoming an Advocate, with regard to any matter concerning the Court, the Chief Justice or the Court may either after affording him an opportunity of oral hearing, take such disciplinary action, including suspension and removal from practice of the Court, against him as it may deem fit, or refer to the Punjab Bar Council for inquiry and action under the Legal Practitioners and Bar Councils Act, 1973

2. An Advocate shall not appear before a Judge with whom he has any tie or prospective tie of relationship except with the permission of the Chief Justice.*

PART B POWERS AND DUTIES OF ADVOCATES.

1. Subject to rules 2 to 6 below, any Advocate on the Rolls of the Court not under suspension, may plead or act in any suit, appeal or proceeding in which he is engaged.
2. No Advocate shall act for any person in any Court unless he has been appointed by an instrument in writing as required by Order III rule 4 of the Code of Civil Procedure, 1908, as amended by Act XXII of 1926.
3. No Advocate who has been engaged for the purpose of pleading only, shall plead on behalf of any person unless he has filed in Court a memorandum of appearance or unless he has been engaged by another Advocate duly appointed to act in Court on behalf of such person as required by Order III rule 4 sub-clause 5 of the Code of Civil Procedure, 1908, as amended by Act XXII of 1926.
4. Every appointment of an Advocate to act shall contain in full the name of the person or, where there are more than one, of every person who thereby appoints the Advocate to act on his behalf, and shall be executed by every such person.
5. When such appointment or power is not executed by the principal himself, but by some person claiming to appoint or give authority on his behalf, the Advocate will not be recognized by the Court without proof that such person was duly authorized by the principal to execute such appointment or power.
6. In cross-appeals, an Advocate who has already filed a power of attorney or memorandum of appearance for the appellant shall not be required to file another power of attorney or memorandum of appearance for his client as respondent in the cross-appeal.
7. Except with the special leave of the Court concerned, no Advocate shall in his own name, or in the name or names of any other person or persons, purchase any property or any share or interest in any property sold in execution of a decree or order in any suit, appeal or other proceeding in which he was, in any way, professionally engaged.

8. Where any Advocate receives any money from his client, he must furnish him with a statement of accounts, with receipts, where these can be obtained, for all sums of money above Rs.5/- disbursed on his behalf.

An Advocate shall be responsible for seeing that receipts are furnished to a client for all sums of money received by himself or by his clerk on his behalf. These should be signed by him and not merely by his clerk.

9. ***[Omitted].

10. When an Advocate accepts any appointment under Government, or in a limited liability, or other Company, or engages in any other employment not connected with his profession he shall forthwith give notice thereof to the High Court .

Explanation: Ministers of the Government, the Speaker and Deputy Speaker of Legislative Assembly, Parliamentary Secretaries and Parliamentary Private Secretaries are excluded from the operation of this rule.

11. ***[Omitted].

12. ***[Omitted].

FORM

Form of certificate of being borne on the Roll of Advocates/Vakils.

***[Omitted].

PART C THE SUSPENSION AND DISMISSAL OF ADVOCATES.

*****[Omitted].**

PART D THE ADMISSION OF PLEADERS.

*****[Omitted].**

PART E POWERS AND DUTIES OF PLEADERS AND MUKHTARS.

*****[Omitted].**

**PART F THE ENROLMENT AND TRAINING OF, AND RENEWAL OF
CERTIFICATES BY, PLEADERS AND MUKHTARS.**

*****[Omitted].**

PART G THE SUSPENSION AND DISMISSAL OF PLEADERS AND MUKHTARS.

*****[Omitted].**

PART H FILING OF POWERS-OF-ATTORNEY BY ADVOCATES.***(a) In Subordinate Courts ____**

- (i) For civil cases—see Chapter 16-A, High Court Rules and Orders, Volume I.
- (ii) For criminal cases—see Chapter 25-A, High Court Rules and Orders, Volume III.

(b) In the High Court ____

The rules are the same as given at (i) and (ii) of part (a) above except that no person can appear, plead or act on behalf of a suitor in the High Court unless his name is borne on the rolls of the High Court as an Advocate. A private Pleader under section 4(r)(2) of the Code of Criminal Procedure is also debarred from appearing in the High Court.

PART I FEES OF COUNSEL.

1. In suits for the recovery of specific property or a share of specific property, whether moveable or immovable, or for the breach of any contract or for damages-
 - (a) if the amount or value of the property, debt or damages decreed shall not exceed rupees five thousand according to the valuation for purposes of appeal to the Court, the fee shall be calculated at seven and a half percent on the amount or value decreed, but the Court may, in any case, otherwise order and fix such percentage as shall appear to the Court to be just and equitable;
 - (b) if the amount or value decreed shall exceed rupees five thousand, the fee payable shall be calculated at such a percentage as shall appear to the Court to be just and equitable

2. In suits for injuries to the person or character of the plaintiff, such as suits for assault or defamation or for injuries to property or to enforce rights where the pecuniary value of such injury or right cannot be exactly defined, _ as in suits for interference with a right to light or water, or to enforce a right of pre-emption, or suits for the partition of joint property, where partition is improperly resisted _, if the plaintiff succeeds, the Court may order the fee allowed to the plaintiff to be calculated with reference either to the amount decreed or according to the valuation of the suit or according to such sum not exceeding the valuation, as the Court shall think reasonable and shall fix with reference to the importance of the subject matter in dispute. In any such case, the amount of the fee shall be calculated according to rule1.

3. If the suit be dismissed for default or upon the merits, the fee allowed to the defendant shall be calculated according to rule 1 on the whole value of the suit.

4. If the suit shall be decreed for the plaintiff as to part only of the claim, and as to the remainder shall be dismissed, the fee allowed to each party should be fixed with reference to the value of that part of the claim in respect of which he shall succeed, and shall be calculated according to rule 1.

5. If in any suit for damages, the plaintiff succeeds as to the whole of his cause of action, but fails to recover the full amount of

damages claimed, the defendant shall not be entitled to any allowance for counsel in respect of the difference between the amount of damages claimed and the amount recovered, unless the Court shall be of opinion that the amount claimed for damages was unreasonable or excessive and shall, for that or any other cause, direct that a fee be allowed to the defendant.

If specially allowed, the amount of such fee shall be fixed with reference to the amount of damages disallowed to the plaintiff and shall be calculated according to rule 1.

6. If several defendants who have a joint or common interest succeed upon a joint defence, or upon separate defences substantially the same, not more than one fee shall be allowed, unless the Court shall otherwise order. If only one fee be allowed, the Court shall direct to which of the defendants it shall be paid or shall apportion it among the several defendants in such manner as the Court shall think fit.
7. If several defendants, who have separate interests, set up separate and distinct defences and succeed thereon, a fee for each of the defendants who shall appear by separate counsel may be allowed in respect of his separate interest. Such fee, if allowed, shall be calculated, with reference to the value of the separate interest of such defendants, according to rule 1.
8. In any miscellaneous proceeding or for any matter other than that of appearing, acting or pleading in a suit prior to decree, the fee shall be fixed by the Court with reference to the nature and importance of the proceeding or matter
9. If a suit in the High Court, as a Court of original jurisdiction, be undefended, the fee shall be calculated at one - half the sum fixed for a defended suit of the same nature and value.
10. If a review be rejected after summoning the opposite party or if, after the admission of a review, the former judgment be upheld, the fee, if allowed to the successful party in the review, shall be fixed by the Court at an amount which shall not in any case exceed one-half of the amount allowed by these rules in case of an original decree.

11. If, after the admission of a review, the former judgment be revised, the fee in respect of the review, if allowed to the party who succeeds in the review, shall not exceed one-half the amount allowed by these rules in case of an original decree. The fee allowed in respect of the review will be irrespective of any fee which may be included in any costs in respect of the original suit which may be adjudged to the successful party by the judgment in review, unless the Court shall otherwise order.
12. In appeals the fee shall be calculated on the same scale as in original suits, and the principles of the above rules as to original suits shall be applied as nearly as may be.
13. When the interest of several appellants is joint, no more than one fee shall be allowed, unless the Court shall otherwise order. If one fee only be allowed, the Court shall direct to which of the appellants it shall be paid or shall apportion it amongst the several appellants in such proportion as it shall think fit
14. If several respondents in one appeal appear by separate counsel, in determining whether separate fees shall be allowed, the Court shall be guided by the principles laid down in rules 6 and 7.
15. If, in any instance, the payment of fees according to the preceding rules shall not appear to the Court to be just and equitable, the Court may exercise its discretion in allowing such fee as may appear just and equitable:
 Provided that in the case of a party represented by any Advocate
 - (a) who is known or reputed to have any dealing, communication or correspondence, directly or indirectly, with a *dalai* or with any person who frequents any railway station, *sarai* or other place as a tout or
 - (b) who is known or reputed to employ in any capacity whatsoever any such person or any person who frequents any railway station, *sarai* or other place as a tout,
 the Court may order that no fee be allowed to such party for such Advocate or may, in its discretion, allow a fee for the same not exceeding the following sums, that is to say, _

- (i) In first appeals from original decrees and in suits before the Court in the exercise of its ordinary or extraordinary original jurisdiction,- Rs.75/-.
- (ii) In all other cases, the fee allowable under the above rules up to a maximum of Rs.15/-.

Provided also that, if an appeal be preferred against a decree passed on remand, the fee, if any, allowed by the Court to the party succeeding in that appeal, shall not, unless the Court shall otherwise order, be less than one-quarter, nor more than one-half of the amount which would be allowed under the rules upon an original hearing, if, by the decree remanding the case, the same party shall have been allowed fees in respect of the former appeal in the suit, either absolutely or conditionally upon his succeeding upon the remand:

Provided also that if an issue be framed and referred by the Court for trial by a lower court, the Court may, if it thinks proper, allow to the party who shall succeed in the appeal, such sum as the Court shall consider reasonable, not exceeding half the amount which would be allowed under these rules in an original case, for his fee in respect of the trial of the issue in the lower court, in addition to a fee in respect of the appeal.

- 16. Notwithstanding anything contained in the rules of the Court but subject to any order of a Judge or Judges in cases of hardship no fee for the appearance of any Advocate shall, except as in these rules hereinafter provided, be allowed on taxation between party and be allowed on taxation between party and party, or shall be included in any decree or order unless the Taxing Officer is satisfied that the fee was paid to the Advocate before the hearing and unless the party claiming to have such fee allowed shall, before the hearing, file in the office of the Taxing Officer, a certificate signed by the Advocate, as the case may be, certifying the amount of the fee or fees actually paid by or on behalf of his client to him or to any other Advocate in whose place he may have appeared.

16-A The Law Officers are excluded from the operation of rule 16. It is left to the discretion of the Court to fix a fee with reference to the salary of the Law Officer concerned and the time taken in the hearing.

- 17. Such certificate shall state,___

- (a) the case, matter or proceeding in respect of which such fee or fees was or were paid;
- (b) the date or dates when such fee or fees was or were actually paid to the Advocate engaged in the case, matter or proceeding either as the exclusive fee or fees of such Advocate or as the fee or fees of the Advocates associated and to be associated in the case, matter or proceeding in the High Court;
- (c) the precise amount or amounts which was or were so paid;
- (d) that no portion of such fee or fees has been returned, and that no agreement for return or remission of the same has been made, by the Advocate or by any one on his behalf; and
- (e) the name and address of the person who made such payment:

- Provided that when a higher fee than is allowed by the scale is allowed by special order of the Court, a certificate of the payment of the additional fee at any time may be accepted, if filed before taxation in lieu of the certificate required by these rules.

18. The certificate mentioned in rule 16 shall, so far as possible, be in the following form:-

IN THE LAHORE HIGH COURT, LAHORE.*

Between _____ and _____

For the purpose of presentation to the Taxing Officer and having my fee allowed on taxation as against the party or parties, who may be liable for costs under the judgment or order of Court, I, _____, in accordance with rule 17 of the rules regulating the fees of counsel in the Court, hereby certify that in the above _____

_____ the following fees were paid to me as my exclusive fee (or as my fee as well as that of _____ who was associated/were to be associated with me in the case) on the dates and by the person or persons specified below, and that no portion of such fees has been returned and that no agreement for such return or remission has been made by

me or by any one on my behalf or on behalf of _____ who was/were associated with me in the case:-

Matter.	Fee.	Date of payment.	By whom paid.	Address of person who actually made such payment.

Signature _____

Date of Signature _____

Address of Advocate _____

Filed on the _____ day of _____ by _____

Note: In the certificates of fees filed by the legal practitioners engaged by Government in cases in which the Federal or Provincial Government is a party, it is sufficient to certify that a fee has been fixed (not paid) by the Solicitor to Government, Punjab. The same procedure may, by a resolution of the Judges in meeting, be extended to counsel appearing on behalf of an Official Liquidator appointed by the High Court.

19. Counsel engaged in matrimonial causes in the High Court should, when filing a certificate required by rule 16, submit a detail of the work done or to be done by them for which they have charged their clients. Only those charges which are necessary to enable the parties to conduct the litigation will be allowed by the Taxing Officer who will bear in mind that the object in giving costs is to indemnify the successful party against the expenses to which he has been put by the unsuccessful party. The maximum fee in a defended matrimonial cause shall be Rs. 1,500/-; and half that amount in undefended causes, provided that the Judge, who tries the case, may allow the full fee in an undefended cause, should the nature of the work done by counsel warrant it.

Note: For rules regarding fees of counsel in subordinate courts, see Chapter 16-B, High Court Rules and Orders, Volume I.

PART J CLERKS OF LEGAL PRACTITIONERS.

1. No person shall be employed by a legal practitioner as his clerk unless such person has been a legal practitioner's clerk for three years, or is a qualified petition-writer, or has passed the Matriculation Examination of a recognized University or a Board:

Provided that no such person shall be employed as a clerk-

- (a) if he has been declared a tout; or
- (b) if he is an undischarged insolvent; or
- (c) if he has been convicted for an offence involving moral turpitude; or
- (d) if he has been dismissed from the service of Government, unless he can show that his dismissal was not due to conduct showing him unfit to be legal practitioner's clerk, viz., corruption or some other reason involving dishonesty; or
- (e) if he is an ex-petition-writer, whose license has been cancelled for corruption or for some other reason involving dishonesty; or
- (f) if he is unfit to be a legal practitioner's clerk for any other sufficient reason.

Dismissed Local Council employees shall be regarded as dismissed "Government servants" for the purposes of these rules.*

Notes: (i) The rule shall apply to all persons engaged after the 20th November, 1936, but not to a person who was a legal practitioner's clerk on or before the 20th November, 1936, and who may be engaged by a legal practitioner after the 20th November, 1936, provided_

- (a) that his service subsequent to that date is continuous; and
- (b) that his work is satisfactory as certified by his last employer.

(ii) The proviso shall apply to clerks already in the service of legal practitioners, who have been declared touts at any time, or who were convicted within five years before the 20th November, 1936, for an offence involving moral turpitude.

(iii) The proviso shall not apply to clerks already in the service of legal practitioners who have been dismissed from Government service.

(iv) The proviso shall not apply to clerks already in the service of legal practitioners who have been convicted, but whose conviction took place more than five years before the 20th November, 1936.

(v) The proviso that no person shall be employed as a clerk if he is an undischarged insolvent shall apply to clerks already in the service of legal practitioners.

2. No illiterate person shall be employed at all as a legal practitioner's clerk.
Note: A literate person for purposes of this rule will be one who has some knowledge of English or preferably Urdu as being the Court language in the Punjab.
3. Not more than two clerks shall be appointed or retained by any legal practitioner.
4. The names of such clerks shall be communicated by each legal practitioner, who is a member of a Bar Association, to the Secretary of that Association. A legal practitioner who is not a member of any Bar Association and cannot under the rules framed by the High Court be compelled to join the Bar Association, shall communicate the names of his clerks direct to the District Judge.
5. The Secretary shall prepare a list of the clerks employed by the legal practitioners and send it to--
 - (a) the District Judge, or
 - (b) the Presiding Officer of the Superior Civil Court sitting at the place where the Association is.
6. Such list shall be submitted in the first week of January each year, any changes during the course of the year being intimated separately.
7. No clerk shall be recognized by the courts unless his name is borne on this list.

8. Clerks mentioned in the list shall be entitled to act on behalf of their masters, but on their responsibility, in all transactions which have to be done before or with the ministerial staff of the Court.
9. A copy of the list when received and of the changes notified shall be supplied to all courts situated at the station for information.
10. The list shall be in the following form:-
 - (a) name and parentage of the clerk,
 - (b) name of the legal practitioner by whom engaged,
 - (c) qualifications, i.e., whether—
 - (i) Matriculate,
 - (ii) petition-writer,
 - (iii) has three years' service with a legal practitioner, with a certificate that the clerk has never been—
 - (a) dismissed from Government service,
 - (b) convicted of an offence involving moral turpitude,
 - (c) declared a tout,
 - (d) declared an insolvent, if so, whether discharged or undischarged.
11. A District Judge (and not a Bar Association) shall have power to declare a person to be unfit for employment as a legal practitioner's clerk and to remove his name from the list of approved clerks to legal practitioners.
12. A clerk whose name has been removed by a District Judge may appeal to the High Court, which may, if it thinks fit, alter or revise the orders passed by the District Judge.

CHAPTER 7

Rules under Special Acts

PART A (a) RULES TO REGULATE THE PROCEDURE IN THE CASE OF APPLICATIONS TO SET ASIDE ORDERS OF FORFEITURE PASSED BY THE PROVINCIAL GOVERNMENT UNDER SECTION 99-A OF THE CODE OF CRIMINAL PROCEDURE MADE BY HIGH COURT UNDER SECTION 99-F.

1. Every application to the High Court under section 99-B of the Code of Criminal Procedure, 1898, to set aside an order of forfeiture under section 99-A of the Code, shall be made by the presentation of a petition which shall be signed by the applicant and verified at the foot by the affidavit of the applicant.

2. The petition shall be written in the English language on foolscap paper and divided into paragraphs, numbered consecutively. Dates and sums occurring in the petition shall be expressed in figures.

3. The petition shall be headed:

 "In the Lahore High Court, Lahore, and shall be entitled
 "In the matter of the:-
 (name or description of book, document or newspaper as the case may be)

4. The petition shall state what the interest of the applicant is in the property in respect of which the order of forfeiture has been made and all documents or copies thereof in proof of such interest together with a copy of the notice of forfeiture under section 99-A of the Code of Criminal Procedure, 1898, shall be annexed as exhibits to the petition.

5. The petition shall state the ground or grounds on which it is sought to set aside the order of forfeiture.

6. The applicant shall, with his petition, attach a receipt for a deposit of Rs.100/- to cover the cost of printing the record.

7. All vernacular documents annexed as exhibits to the petition and all vernacular documents relied on by the applicant and intended to be in

evidence, shall be translated into English by an official translator or translators.

8. The petition with exhibits annexed thereto and their translations, if any, together with a copy of such petition and exhibits with translations shall be presented to the Deputy Registrar, who will lay the same before the Chief Justice. The Chief Justice will then constitute a Special Bench and appoint a day for the hearing and determination of the application.
9. The Deputy Registrar shall forthwith give notice of the filing of the application to the Advocate-General and shall request him to obtain from Government and to furnish to the Court, as soon as possible, a copy of the particular newspaper, book or other document containing the words, signs or visible representations on which the declaration of forfeiture was based.
10. Evidence in support of or against the petition shall be in the form of affidavits. The Advocate-General shall within fifteen days of the receipt of the notice mentioned in rule 9, file affidavits on behalf of the State and supply copies thereof to the other side. The applicant shall, within fifteen days of the receipt of copies of the affidavits, file his affidavits and likewise supply the Advocate-General with copies. *01
11. Notice in writing of the day appointed for the hearing and determination of the application shall be given by the Deputy Registrar to the Chief Secretary to the Government of the Punjab, and the copy of the petition and exhibits with translations, if any, mentioned in rule 8 shall accompany such notice. *01
12. A printed paper-book shall be prepared and completed under the orders of the Deputy Registrar at least one week before the day fixed for hearing and determination of the application.
13. There shall ordinarily be printed 30 copies of the paper-book, but the Deputy Registrar may, when necessary, direct a larger number to be printed.
14. In the absence of a special order, the printed paper-book shall ordinarily contain-
 - (1) the declaration of forfeiture in respect of which the application is made;
 - (2) the application and the affidavit of the applicant;
 - (3) the exhibits annexed to the application, or their translation;

- (4) the affidavits filed under rule 10 and a reprint of such portions of the prescribed publications (translated into English, if in vernacular, in accordance with rule 7) to be indicated by the parties within 15 days of the receipt of the notice which will be issued by the Deputy Registrar to the applicant, or his counsel, if any, and the Advocate-General.

Note: The cost of printing (1) , (2) and (3) will be met by the applicant out of the deposit made under rule 6 and the cost of (4) will be borne by the party concerned.

15. If the deposit required under rule 6 proves insufficient to cover the cost of the printed paper-book, the Deputy Registrar may, by a notice in writing, require that such further deposit, as seems to him necessary, shall be made within one week.
16. If such further deposit be not made within the time specified in the notice, the application shall be placed, without notice to the applicant, before a Special Bench composed of three Judges which will either dismiss the application or pass such other order as may be suitable.
17. The applicant and his counsel and the Advocate-General shall be entitled to receive copies of the printed record on application to the Deputy Registrar one week before the date fixed for hearing.
18. At the foot of every printed-book shall be noted the amount of the printing and incidental charges and the person from whom levied, and such amount shall be included in the costs of the proceedings unless the Court shall otherwise direct.
Should the amount so charged be less than the sum or sums deposited under rules 6 and 15, the Deputy Registrar shall refund the balance to the applicant.
19. The table of fees now in force in this Court shall be applicable to all applications under section 99-B of the Code of Criminal Procedure and proceedings thereon and costs payable in respect of such applications and proceedings shall be taxed, when so directed, by the Taxing Officer of this Court.
20. The provisions of the Code of Civil Procedure and the Rules and Orders relating to the execution of decrees shall be applicable to the execution of orders passed by the High Court on applications under section 99-B of the Code of Criminal Procedure.

PART A(b).

RULES TO REGULATE THE PROCEDURE IN THE CASE OF APPLICATIONS TO SET ASIDE ORDERS FOR THE DEPOSIT OF SECURITY UNDER SECTION 3(3) OR 7(3) OR OF FORFEITURE UNDER SECTION 4,6,8,10,12(2) OR 19 OF THE INDIAN PRESS (EMERGENCY POWERS) ACT, 1931.

*****01[Omitted]**

**PART B RULES REGARDING APPLICATION UNDER SECTION 136
OF THE INCOME TAX ORDINANCE, 1979.***

Rules made by the High Court under Article 202 of the Constitution of the Islamic Republic of Pakistan, 1973 and clause 27 of the Letters Patent to regulate proceedings of the applications, hearing and decisions under section 136 of the Income Tax Ordinance, 1979.

1. Every application under section 136(2) of the Income Tax Ordinance, 1979, hereinafter referred to as “the Ordinance” requiring the High Court to frame a question of law shall contain the following:-
 - (i) A brief statement of facts and point of law which in the estimate of the applicant the Income Tax Appellate Tribunal has erroneously refused to refer to the High Court.
 - (ii) An affidavit of the applicant in support of the facts stated in the above application.
 - (iii) Copy of the application made to the Income Tax Appellate Tribunal under section 136(1) and its order refusing to refer the question of law to the High Court.
 - (iv) Copy of the first/basic/assessment order.
 - (v) Copy of the order of the Commissioner or Income tax (Appeals)/Appellate Additional Commissioner and the grounds of appeal.
 - (vi) Copy of the appellate order of the Income Tax Appellate Tribunal along with grounds of appeal.
 - (vii) Copies of such other documents or statements as may be relevant and necessary for the understanding of the point of law on which the decision is desired by the applicant.

Note:- In this rule the word “copy” or “copies” means “certified copy”.*

2. Every application under section 136 (2-A) of the Ordinance made to the High Court shall be accompanied by a copy of the application made to the Tribunal together with a copy of the order of the Tribunal and such other document(s) as may show that the application made to the Tribunal was within time or should be treated as such.*
3. Every application under sub-sections (2) and (2-A) of section 136 of the Ordinance shall be in the form prescribed herein below:-

FORM

In the matter of Income Tax Ordinance, 1979.

P.T.R/T.R. No. _____ OF _____ 20.....

Name of the assesseees.

The Commissioner of Income Tax.

.....Applicant.

Versus.

The Commissioner of Income Tax.

Name of the assesseees.

.....Respondent.*

4. If the Court hearing the application does not reject it *in limine*, a notice shall be issued to the Assessee or the Income-tax Commissioner, as the case may be, to show cause against the application.
5. Counsel presenting an application under section 136(2) of the Income Tax Ordinance, 1979, shall be bound to accept service on behalf of his client of any notices issued by the High Court until the case has been finally disposed of or a change of counsel has been notified to the Court.*
6. ***[Omitted]
7. ***[Omitted].
8. The Court hearing applications under section 136(2) of the Income Tax Ordinance, 1979, or deciding cases stated and referred to under the Ordinance shall be a Bench of two Judges unless the Chief Justice orders that any application or reference shall be heard by a Bench of more than two Judges.
9. At the hearing of such applications and cases the Court and the parties shall be at liberty to refer to the whole of the contents of the documents annexed thereto.

PART C (a) RULES UNDER SECTION 1 (4), UNDER INDIAN AND COLONIAL DIVORCE JURISDICTION ACT, 1926--[MADE BY THE SECRETARY OF STATE IN COUNCIL FOR INDIA, WITH THE CONCURRENCE OF THE LORD CHANCELLOR, UNDER THE INDIAN AND COLONIAL DIVORCE JURISDICTION ACT, 1926 (16 AND 17 GEO. 5)]

(b) POWERS DELEGATED TO THE REGISTRAR UNDER THE INDIAN AND COLONIAL DIVORCE JURISDICTION ACT, 1926.

*****[Omitted].**

**PART D RULES MADE BY THE HIGH COURTS UNDER THE POWERS
CONFERRED BY SECTION 246 OF THE INDIAN COMPANIES ACT,
1913, CONCERNING THE MODE OF PROCEEDINGS TO BE HAD FOR
WINDING UP A COMPANY IN THE HIGH COURT.**

****[Omitted]**

PART E RULES MADE BY THE HIGH COURT UNDER SECTION 77 OF THE TRADE MARKS ACT, V OF 1940, (PUBLISHED IN PUNJAB GAZETTE, PART III, DATED THE 10TH AUGUST, 1945, AS CORRECTED BY CORRIGENDUM NO.210-R/XVI-A-96, DATED THE 12TH SEPTEMBER 1945, PUBLISHED IN PART III, DATED THE 14TH SEPTEMBER 1945, AND IN THE GAZETTE OF INDIA, PART II-A, DATED THE 1ST SEPTEMBER 1945, AS CORRECTED BY CORRIGENDUM NO.F.-4(8)/45-GENL., DATED THE 3RD OCTOBER 1945, PUBLISHED IN PART II-A, DATED THE 13TH OCTOBER 1945).

1. (a) In these Rules 'the Act' means the Trade Marks Act, 1940.
 (b) 'The Registrar' means the Registrar of Trade Marks and includes the Deputy Registrar of Trade Marks.
 (a) 'The Deputy Registrar (Judicial)' means the Deputy Registrar (Judicial) of the Lahore High Court, Lahore.
 (b) 'Judge' means the Judge nominated by the Chief Justice for the purpose.
2. Applications, affidavits and proceedings under the Act shall be instituted in the matter of the Trade Marks Act, V of 1940 and in the matter of the Trade Mark.
3. All applications and appeals under the Act shall be made by petition supported by affidavit and shall be presented to the Deputy Registrar (Judicial).
4. The Deputy Registrar (Judicial) shall lay the petition before the Judge who may either accept the petition and direct notice thereof to be given to the opposite party or may reject it summarily or may make such order as the circumstances of the case may require.
5. All applications to the Court whether by way of appeal or otherwise shall be served on the Registrar who shall have a right to appear and be heard and shall appear if so directed by the Court
6. If any application or appeal is made to the High Court under the Act and any suit or other proceeding concerning the Trade Mark in question is pending before the High Court or any District Court, the High Court may stay such suit or proceeding until the disposal of the said application or appeal.
7. Where the Registrar makes a reference to the High Court under section 72(b) of the Act, he shall give notice of that fact to the parties concerned. After the Registrar has filed the reference, the Deputy Registrar (Judicial) shall fix a date for the hearing of the same and

shall put it on the list of the Judge on such date for disposal. The Registrar shall give seven days' notice of the day so fixed to the parties concerned.

8. Where under section 76(2) of the Act, an applicant becomes entitled and intends to withdraw his application, he shall give notice of the intention in writing to the Registrar and to the other parties, if any, to the appeal within one month after the leave referred to in that section has been obtained. He shall also give notice to the Deputy Registrar (Judicial) who shall thereupon forthwith place the appeal on the list for disposal.
9. A defendant in a suit for infringement filed in the High Court may in regard to any registered trade mark in issue counterclaim for the rectification of the register and shall within the time limited for the delivery of the counter-claim serve the Registrar with the same, and the Registrar shall be entitled to take such part in the suit as he may think fit without delivering a defence or other pleading.
10. A certified copy of every order directing rectification of the register shall be sent by the Deputy Registrar (Judicial) to the Registrar who shall thereupon rectify the register accordingly. The cost of the certified copy shall be borne by the applicant or the appellant, as the case may be.
11. In cases not provided for in the foregoing rules, the provisions of the Code of Civil Procedure, 1908, and the Rules and Forms of the Lahore High Court, Lahore, shall apply, *mutatis mutandis*, to all proceedings under the Act.
12. Process fees shall be charged according to the Table of Fees for the High Court given in Chapter 5-B, High Court Rules and Orders, Volume IV.

**PART F RULES MADE BY THE HIGH COURT UNDER CLAUSE 27
OF THE LETTERS PATENT TO REGULATE PROCEEDINGS
OF APPLICATIONS AND REFERENCES UNDER SECTIONS
59-A AND 59-B OF THE ESTATE DUTY ACT. ACT X OF
1950. AS INSERTED BY ACT NO. XV OF 1953.**

*****[Omitted].**

CHAPTER 8
PRIVY COUNCIL CASES.

*****[Omitted]**

CHAPTER 9

FEDERAL COURT APPEALS.

*****[Omitted]**

CHAPTER 10

Miscellaneous

PART A RULES FOR THE DISPOSAL OF EXECUTIVE AND ADMINISTRATIVE BUSINESS.

1. The administrative and executive work of the High Court shall be controlled by a Committee of Judges to be known as the Administration Committee:
 Provided that those matters which are the exclusive concern of the Chief Justice, namely, the constitution of Benches and the appointment and control of the High Court Establishment shall be dealt with in accordance with such instructions as may from time to time be issued by the Chief Justice.*

2. The Administration Committee shall consist of seven Judges. The Chief Justice and the Senior Puisne Judge shall be *ex-officio* members and the Chief Justice shall annually nominate the other five members of the Committee.

3. At all meetings of the Administration Committee, three Judges shall form a quorum.

4. (a) Each member of the Administration Committee shall act as an Administration Judge and the powers and duties of each Administration Judge shall be defined by the Chief Justice from time to time.
 (b) The following matters shall invariably be referred by an Administration Judge to the Administration Committee:-
 - (i) All cases which are to go before a meeting of all the Judges.
 - (ii) All cases involving the amendment of the Rules and Orders of the Court other than purely routine amendments.
 - (iii) The issue of circular letters and instructions to the Subordinate Courts in other than purely routine matters.
 - (iv) All circulars issued by District and Sessions Judges for the guidance of Courts subordinate to them.

- (v) All proposals for the confirmation or promotion of District and Sessions Judges and Civil Judges.*
- (vi) The grant of move-over and selection grade to Judicial Officers.*
- (vii) All pension cases of District and Sessions Judges and Civil Judges.*
- (viii) All cases in which disciplinary action is to be taken against District and Sessions Judges and Civil Judges and all cases in which there is a question of the recovery from an officer of any loss suffered by Government.*
- (ix) The selection of officers for deputation, and magisterial, commercial or special training.
- (x) Recommendations for the direct appointment of Government servants as Extra Assistant Commissioners.
- (xi) The fitness of officers for appointment as District and Sessions Judges.
- (xii) The monthly returns of work done by District and Sessions Judges.
- (xiii) All cases in which lawyers seek relaxation of High Court Rules applicable to them other than those in which the Judges or the Administration Committee have laid down a policy to be followed.
- (xiv) All proposals for the execution of Civil Major Works in the Judicial Department.
- (xv) All cases in which the opinion of all the Judges is sought by Government.
- (xvi) All cases of conferment of civil and criminal powers on Civil Judges and Magistrates except:-
 - (a) powers under the Provincial Small Cause Courts Act,
 - (b) powers under the Guardians and Wards Act,
 - (c) permission to exercise powers under the Provincial Insolvency Act already conferred by Punjab Government notification No.780, dated the 15th July 1914.
 - (d) ***[Omitted]
- (xvii) All cases not specifically provided for which, in the opinion of the Administration Judge, involve questions of principle or policy.
 - (a) All administrative work for which there is no explicit provision in the Rules and Orders of the Court or in the rules made by the Administration Committee, shall be disposed of under the orders of the Administration

Judge who may refer to the Committee any matter on which he could pass orders.

- (b) The Administration Judge shall pass orders on the postings and transfers of Judicial Officers serving under the High Court, and after orders have issued they shall be circulated to all members of the Administration Committee.
 - (xviii) The suspension of Civil Judges-cum-Judicial Magistrates, Additional District and Sessions Judges and District and Sessions Judges.*
 - (xix) The promotion of Civil Judges-cum-Judicial Magistrates, Additional District and Sessions Judges and District and Sessions Judges.*
 - (xx) Recommendations for the grant of pension to Civil Judges-cum-Judicial Magistrates, Additional District and Sessions Judges and District and Sessions Judges, where it is proposed to recommend that the full pension earned be not allowed.*
 - (xxi) Representations against the adverse remarks made by the Civil Judges-cum-Judicial Magistrates, Additional District and Sessions Judges and District and Sessions Judges.*
5. Notwithstanding anything contained in the preceding rules the following matters shall invariably be referred to and disposed of at a meeting of all the Judges:-
- (i) All matters involving questions of principle and policy.
 - (ii) All cases relating to amendments to be made to existing laws or to the statutory rules of the Court.
 - (iii) All matters concerning the High Court as such or all the Judges.
 - (iv) All matters on which the opinion of all the Judges is invited by Government.
 - (v) ***[Omitted]
 - (vi) ***[Omitted]
 - (vii) ***[Omitted]
 - (viii) ***[Omitted]
 - (ix) ***[Omitted].

In addition, the Administration Committee may refer to a meeting of all the Judges any matter which, in its opinion, should be referred to such a meeting.

6. All cases to be considered at a meeting of all the Judges shall first be considered by the Administration Committee which may make such recommendation as it considers proper.
7. Meetings of all the Judges shall be called by the Chief Justice when there is business for such meetings.
8. The Administration Committee shall have power to decide what procedure it will adopt for the conduct of the business entrusted to it.
9. At all Judges' meetings, ten Judges shall form a quorum. The Judges present at a meeting, if ten or more, may dispose of all the business, for the disposal or consideration of which such meeting was called, and such disposal shall be deemed to be a disposal by the Court.*
10. In case of a difference of opinion at a meeting the decision shall be in accordance with the opinion of the majority of the Judges present, and in case the Judges present be equally divided the Chief Justice or in his absence the Senior Judge present, shall have a casting vote.
11. The Registrar or, in his absence, the Additional Registrar, shall attend all Judges' meetings, and shall record the proceedings at such meetings.*
12. As soon as conveniently may be, after the proceedings of a Judges' meeting have been recorded and signed by the Registrar or Additional Registrar, as the case may be, they shall be circulated to the Judges in order of juniority and signed by the Chief Justice.*
13. The original proceedings of the Judges' meetings shall be kept in the General Record Room in a separate file and shall not be removed from the Court building except by the Registrar with the sanction of the Chief Justice.
14. The Chief Justice may empower any person holding the post of Registrar or Additional Registrar of the High Court by name, to perform all or any of the duties of a Judge in charge of any branch of the executive and administration business of the Court.

15. During the vacation the administrative and executive work of the Court may be carried out by the Senior Vacation Judge present at the Court, who may in his discretion pass such orders as may be necessary without prior reference to all the Judges or the Administration Committee:

Provided that any matters decided by a Vacation Judge under this rule, which would otherwise fall for decision by all the Judges or by the Administration Committee shall be referred to all the Judges or to the Administration Committee, as the case may be, for confirmation after the vacation.

16. *****[Omitted].**

**PART B PROCEDURE FOR MAKING RULES UNDER PART X OF THE CODE
OF CIVIL PROCEDURE.**

1. As soon as the minutes of a meeting of a Rule Committee have been signed, the Registrar or Additional Registrar (who is also the Secretary of the Rules Committee), shall endorse upon them an order that a copy be placed before a meeting of the Judges on a specified date.*
2. In the event of the minutes of the Rule Committee reaching the office without such an endorsement, the attention of the Registrar shall be drawn to the omission forthwith.
3. If the Judges decide that the recommendations are to be accepted and a Rule made, the Registrar or Additional Registrar shall cause the Rule, in the form in which it has been framed by the Judges to be published for objection in the Punjab Gazette.*
4. On the termination of the period fixed for objection, the Registrar or Additional Registrar shall again lay the Rule, with objections, if any, before a meeting of the Judges. *
5. If the Judges decide to make the Rule, the Registrar or Additional Registrar will at once apply to the Government of the Punjab and Federal Government for the approval of the Rule in the form in which it has been framed.*
6. On the receipt of the approval of the Federal Government, the Registrar or Additional Registrar shall cause the Rule to be published in the Punjab Gazette.*
7. After publication in the gazette a correction slip,
 - (a) to the Rules and Orders of the High Court, and
 - (b) to the pamphlet entitled Rules made by the Lahore High Court, Lahore, under section 122 of the Code of Civil Procedure, shall be prepared and issued forthwith.

APPENDIX

LETTERS PATENT CONSTITUTING THE HIGH COURT OF JUDICATURE AT LAHORE, FOR THE PROVINCES OF THE PUNJAB AND DELHI, DATED THE 21ST MARCH, 1919.

GEORGE THE FIFTH, by the Grace of God, of the United Kingdom of Great Britain and Ireland, and of the British Dominions beyond the Seas, King, Defender of the Faith, Emperor of India, to all to whom these Presents shall come, greeting:

Whereas by an Act of Parliament passed in the Fifth and Sixth years of Our Reign and called the Government of India Act, 1915, it was amongst other things enacted that it should be lawful for Us by Letters Patent to establish a High Court of Judicature in any territory in British India whether or not included within the limits of the local jurisdiction of another High Court and to confer on any High Court so established any such jurisdiction, powers and authority as were vested in or might be conferred on any High Court existing at the commencement of that Act.

And whereas the Provinces of the Punjab and Delhi are now subject to the jurisdiction of the Chief Court of the Punjab which was established by an Act of the Governor-General of India in Council, being Act No.XXIII of 1865, and was continued by later enactments and no part of the said Provinces is included within the limits of the local jurisdiction of any High Court.

1. Now know ye that We, upon full consideration of the premises, and of our special grace, certain knowledge, and mere motion, have thought fit to erect and establish, and by these presents We do accordingly for Us, Our heirs and successors, erect and establish, for the Provinces of the Punjab and Delhi aforesaid, with effect from the date of the publication of these presents in the Gazette of India, a High Court of Judicature, which shall be called the High Court of Judicature at Lahore, and We do hereby constitute the said Court to be a Court of Record.
2. And We do hereby appoint and ordain that the High Court of Judicature at Lahore shall, until further or other provision be made by Us, or Our heirs and successors, in that behalf in accordance with section one hundred and one of the said recited Government of India Act, 1915, consist of a Chief Justice and six other Judges, the first Chief Justice being Sir Henry Adolphus Rattigan, Knight, and the six other Judges being William Chevis, Esquire, Henry Scot-Smith, Esquire, Shadi Lal, Esquire, Rai Bahadur, Walter Aubin leRossignol, Esquire, Leycester Hudson Leslie Jones, Esquire, and Alan Brice

Broadway, Esquire, being respectively qualified as in the said Act is declared.

3. And We do hereby ordain that the Chief Justice and every other Judge of the High Court of Judicature at Lahore, previously to entering upon the execution of the duties of his office, shall make and subscribe the following declaration before such authority or person as the Lieutenant-Governor of the Punjab may commission to receive it:-
 “I, A.B., appointed Chief Justice [or a Judge] of the High Court of Judicature at Lahore, do solemnly declare that I will faithfully perform the duties of my office to the best of my ability, knowledge and judgment.”
4. And We do hereby grant, ordain and appoint that the High Court of Judicature at Lahore shall have and use, as occasion may require, a seal bearing a device and impression of Our Royal arms, within an exergue or label surrounding the same, with this inscription, “The Seal of the High Court at Lahore”, and We do further grant, ordain and appoint that the said seal shall be delivered to and kept in the custody of the Chief Justice, and in case of vacancy of the office of Chief Justice, or during any absence of the Chief Justice, the same shall be delivered over and kept in the custody of the person appointed to act as Chief Justice under the provisions of section one hundred and five of the Government of India Act, 1915; and We do further grant, ordain and appoint that , whensoever the office of Chief Justice or of the Judge to whom the custody of the said seal be committed is vacant, the said High Court shall be, and is hereby, authorized and empowered to demand, seize and take the said seal from any person or persons whomsoever, by what ways and means soever the same may have come to his, her or their possession.
5. And We do hereby further grant, ordain and appoint that all writs, summonses, precepts, rules, orders and other mandatory process to be used, issued or awarded by the High Court of Judicature at Lahore shall run and be in the name and style of Us, or of Our heirs and successors, and shall be sealed with the seal of the said High Court.
6. And We do hereby authorize and empower the Chief Justice of the High Court of Judicature at Lahore from time to time, as occasion may require, and subject to any rules and restrictions which may be prescribed from time to time by the Lieutenant-Governor of the Punjab, to appoint so many and such clerks and other ministerial officers as may be found necessary for the administration of justice and the due execution of all the powers and authorities granted and committed to the said High Court by these Our Letters Patent. And it is

Our further will and pleasure, and We do hereby, for Us, Our heirs and successors, give, grant, direct and appoint, that all and every the officers and clerks to be appointed as aforesaid shall have and receive respectively such reasonable salaries as the Chief Justice may, from time to time, appoint for each office and place respectively, and as the Lieutenant-Governor of the Punjab, subject to the control of the Governor-General in Council, may approve of: Provided always, and it is Our will and pleasure, that all and every the officers and clerks to be appointed as aforesaid shall be resident within the limits of the jurisdiction of the said Court, so long as they hold their respective offices, but this proviso shall not interfere with or prejudice the right of any officer or clerk to avail himself of leave of absence under any rules prescribed from time to time by the Governor-General in Council, and to absent himself from the said limits during the term of such leave in accordance with the said rules.

Admission of Advocates, Vakils and Attorneys.

7. ***[Omitted].
8. ***[Omitted].

Civil Jurisdiction of the High Court.

9. And We do further ordain that the High Court of Judicature at Lahore shall have power to remove, and to try and determine, as a Court of extraordinary original jurisdiction, any suit being or falling within the jurisdiction of any Court subject to its superintendence, when the said High Court may think proper to do so, either on the agreement of the parties to that effect, or for purposes of justice, the reasons for so doing being recorded on the proceedings of the said High Court.
10. ***[Omitted].
11. And We do further ordain that the High Court of Judicature at Lahore shall be a Court of Appeal from the Civil Courts of the Provinces of the Punjab and Delhi and from all other Courts subject to its superintendence, and shall exercise appellate jurisdiction in such cases as were, immediately before the date of the publication of these presents, subject to appeal to the Chief Court of the Punjab by virtue of any law then in force, or as may after that date be declared subject to

appeal to the High Court of Judicature at Lahore by any law made by competent legislative authority for India.

12. And We do further ordain that the High Court of Judicature at Lahore shall have the like power and authority with respect to the persons and estates of infants, idiots and lunatics within the Provinces of the Punjab and Delhi as that which was vested in the Chief Court of the Punjab immediately before the publication of these presents.

Law to be administered by the High Court.

13. And We do further ordain that, with respect to the law or equity to be applied to each case coming before the High Court of Judicature at Lahore in the exercise of its extraordinary original civil jurisdiction, such law or equity shall, until otherwise provided, be the law or equity which would have been applied to such case by any local court having jurisdiction therein.
14. And We do further ordain that, with respect to the law or equity and rule of good conscience to be applied by the High Court of Judicature at Lahore to each case coming before it in the exercise of its appellate jurisdiction, such law or equity and rule of good conscience shall be the law or equity and rule of good conscience which the Court in which the proceedings in such case were originally instituted ought to have applied to such case.

Criminal Jurisdiction.

15. And We do further ordain that the High Court of Judicature at Lahore shall have ordinary original criminal jurisdiction in respect of all such persons within the Provinces of the Punjab and Delhi as the Chief Court of the Punjab had such criminal jurisdiction over immediately before the publication of these presents.
16. And We do further ordain that the High Court of Judicature at Lahore, in exercise of its ordinary original criminal jurisdiction, shall be empowered to try all persons brought before it in due course of law.
17. And We do further ordain that the High Court of Judicature at Lahore shall have extraordinary original criminal jurisdiction over all persons residing in places within the jurisdiction of any Court subject to its superintendence, and shall have authority to try at its discretion any such persons brought before it on charges preferred by any Magistrate or other officer specially empowered by the Government in that behalf.

18. And We do further ordain that there shall be no appeal to the High Court of Judicature at Lahore from any sentence or order passed or made by the Courts of original criminal jurisdiction which may be constituted by one or more Judges of the said High Court. But it shall be at the discretion of any such court to reserve any point or points of law for the opinion of the said High Court.
19. And We do further ordain that, on such point or points of law being so reserved as aforesaid, the High Court of Judicature at Lahore shall have full power and authority to review the case, or such part of it as may be necessary, and finally determine such point or points of law, and thereupon to alter the sentence passed by the Court of original jurisdiction and to pass such judgment and sentence as to the said High Court may seem right.
20. And We do further ordain that the High Court of Judicature at Lahore shall be a Court of Appeal from the Criminal Courts of the Provinces of the Punjab and Delhi and from all other Courts subject to its superintendence, and shall exercise appellate jurisdiction in such cases as were, immediately before the date of the publication of these presents, subject to appeal to the Chief Court of the Punjab by virtue of any law then in force, or as may after that date be declared subject to appeal to the High Court of Judicature at Lahore by any law made by competent legislative authority for India.
21. And We do further ordain that the High Court of Judicature at Lahore shall be a court of reference and revision from the Criminal Courts subject to its appellate jurisdiction, and shall have power to hear and determine all such cases referred to it by the Sessions Judges, or by any other officers in the Provinces of the Punjab and Delhi who were, immediately before the publication of these presents, authorized to refer cases to the Chief Court of the Punjab and to revise all such cases tried by any officer or court possessing criminal jurisdiction in the Provinces of the Punjab and Delhi, as were, immediately before the publication of these presents, subject to reference to or revision by the Chief Court of the Punjab.
22. And We do further ordain that the High Court of Judicature at Lahore shall have power to direct the transfer of any criminal case or appeal from any Court to any other Court of equal or superior jurisdiction, and also to direct the preliminary investigation or trial of any criminal case by any officer or Court otherwise competent to investigate or try it, though such case belongs in ordinary course to the jurisdiction of some other officer or Court.

Criminal Law.

23. And We do further ordain that all persons brought for trial before the High Court of Judicature at Lahore, either in the exercise of its original jurisdiction, or in the exercise of its jurisdiction as a court of appeal, reference or revision, charged with any offence for which provision is made by Act No. XLV of 1860, called the "Indian Penal Code," or by any Act amending or excluding the said Act which may have been passed prior to the publication of these presents, shall be liable to punishment under the said Act or Acts, and not otherwise.

Testamentary and Intestate Jurisdiction .

24. And We do further ordain that the High Court of Judicature at Lahore shall have the like power and authority as that which was immediately before the publication of these presents lawfully exercised within the Provinces of the Punjab and Delhi by the Chief Court of the Punjab, in relation to the granting of probates of last wills and testaments, and letters of administration of the goods, chattels, credits and all other effects whatsoever of persons dying intestate: Provided always that nothing in these Letters Patent contained shall interfere with the provisions of any law which has been made by competent legislative authority for India, by which power is given to any other Court to grant such probates and letters of administration.

Matrimonial Jurisdiction.

25. And We do further ordain that the High Court of Judicature at Lahore shall have jurisdiction, within the Provinces of the Punjab and Delhi, in matters matrimonial between Our subjects professing the Christian religion: Provided always that nothing herein contained shall be held to interfere with the exercise of any jurisdiction in matters matrimonial by any Court, not established by Letters Patent within the said Provinces which is lawfully possessed of that jurisdiction.

Powers of Single Judges and Division Courts.

26. And We do hereby declare that any function which is hereby directed to be performed by the High Court of Judicature at Lahore in the exercise of its original or appellate jurisdiction, may be performed by any Judge, or by any Division Court, thereof, appointed or constituted for such purpose in pursuance of section one hundred and eight of the Government of India Act, 1915; and if such Division Court is composed of two or more Judges and the Judges are divided in opinion as to the decision to be given on any points, such points shall be decided according to the opinion of the majority of the Judges, if there be a majority, but, if the Judges be equally divided, they shall state the point upon which they differ and the case shall then be heard upon that point by one or more of the other Judges and the point shall be decided according to the opinion of the majority of the Judges who have heard the case, including those who first heard it.

Civil Procedure.

27. And We do further ordain that it shall be lawful for the High Court of Judicature at Lahore from time to time to make rules and orders for regulating the practice of the Court and for the purpose of adapting as far as possible the provisions of the Code of Civil Procedure, being an Act, No. V of 1908, passed by the Governor-General in Council, and the provisions of any law which has been or may be made, amending or altering the same, by competent legislative authority for India, to all proceedings in its testamentary, intestate and matrimonial jurisdiction, respectively.

Criminal Procedure.

28. And We do further ordain that the proceedings in all criminal cases brought before the High Court of Judicature at Lahore shall be regulated by the Code of Criminal Procedure being an Act, No. V of 1898, passed by the Governor-General in Council or by such further or other laws in relation to criminal procedure as may have been or may be made by competent legislative authority for India.

Appeals to Privy Council.

29. And We do further ordain that any person or persons may appeal to Us, Our heirs and successors, in Our or their Privy Council in any matter not being of criminal jurisdiction from any final judgment, decree or order of the High Court of Judicature at Lahore made on appeal, and from any final judgment, decree or order made in the exercise of original jurisdiction by Judges of the said High Court, or of any Division Court, from which an appeal does not lie to the said High Court, under the provisions contained in the 10th clause of these presents: provided, in either case, that the sum or matter at issue is of the amount or value of not less than 10,000 rupees or that such judgment, decree or order involves, directly or indirectly, some claim, demand or question to or respecting property amounting to or of the value of not less than 10,000 rupees; or from any other final judgment, decree or order made either on appeal or otherwise as aforesaid, when the said High Court declares that the case is a fit one for appeal to Us, Our heirs or successors, in Our or their Privy Council; but subject always to such rules and orders as are now in force or may from time to time be made respecting appeals to Ourselves in Council from the Courts of the Provinces of the Punjab and Delhi, except so far as the said existing rules and orders respectively are hereby varied and subject also to such further rules and orders as We may, with the advice of Our Privy Council, hereafter make in that behalf.
30. And We do further ordain that it shall be lawful for the High Court of Judicature at Lahore at its discretion on the motion, or, if the said High Court be not sitting, then for any Judge of the said High Court, upon the petition, of any party who considers himself aggrieved by any preliminary or interlocutory judgment, decree or order of the said High Court, in any such proceeding as aforesaid, not being of criminal jurisdiction, to grant permission to such party to appeal against the same to Us, Our heirs and successors, in Our or their Privy Council, subject to the same rules, regulations and limitations as are herein expressed respecting appeals from final judgments, decrees and orders.
31. And We do further ordain that from any judgment, order or sentence of the High Court of Judicature at Lahore, made in the exercise of original criminal jurisdiction or in any criminal case where any point or points of law have been reserved for the opinion of the said High Court, in manner provided by the 18th clause of these presents by any Court which has exercised original jurisdiction, it shall be lawful for the person aggrieved by such judgment, order or sentence to appeal to

Us, Our heirs or successors, in Council, provided the said High Court declares that the case is a fit one for such appeal, and that the appeal be made under such conditions as the said High Court may establish or require, but subject always to such rules and orders as are now in force, or may from time to time be made, respecting appeals to Ourselves in Council from the Courts of the Provinces of the Punjab and Delhi.

32. And We do further ordain that, in all cases of appeal made from any judgment, decree, order or sentence of the High Court of Judicature at Lahore to Us, Our heirs or successors, in Our or their Privy Council, such High Court shall certify and transmit to Us, Our heirs and successors, in Our or their Privy Council, a true and correct copy of all evidence, proceedings, judgments, decrees and orders had or made, in such cases appealed, so far as the same have relation to the matters of appeal, such copies to be certified under the seal of the said High Court. And that the said High Court shall also certify and transmit to Us, Our heirs and successors in Our or their Privy Council, a copy of the reasons given by the Judges of such Court, or by any of such Judges, for or against the judgment or determination appealed against. And We do further ordain that the said High Court shall, in all cases of appeal to Us, Our heirs or successors, conform to and execute, or cause to be executed, such judgments and orders as We, Our heirs or successors, in Our or their Privy Council, may think fit to make in the premises, in such manner as any original judgment, decree or decretal orders or other order or rule of the said High Court, should or might have been executed.

Exercise of Jurisdiction elsewhere than at the usual place of sitting of the High Court.

33. And We do further ordain that whenever it appears to the Lieutenant-Governor of the Punjab, subject to the control of the Governor-General in Council, convenient that the jurisdiction and power by these Our Letters Patent, or by or under the Government of India Act, 1915, vested in the High Court of Judicature at Lahore should be exercised in any place within the jurisdiction of any Court subject to the superintendence of the said High Court, other than the usual place of sitting of the said High Court or at several such places by way of circuit, one or more Judges of the Court shall visit such place or places accordingly.

34. And We do further ordain that whenever any Judge or Judges of the High Court of Judicature at Lahore visit any place under the 33rd clause of these presents proceedings in cases before him or them at such place shall be regulated by any law relating thereto which has been or may be made by competent legislative authority for India.

Delegation of Duties to Officers.

35. The High Court of Judicature at Lahore may from time to time make rules for delegating to any Registrar, Prothonotary or Master or other official of the Court any judicial, quasi-judicial and non-judicial duties.

Calls for Records, etc., by the Government.

36. And it is Our further will and pleasure that the High Court of Judicature at Lahore shall comply with such requisitions as may be made by the Governor-General in Council or by the Lieutenant-Governor of the Punjab for records, returns and statements in such forms and manners as he may deem proper.

Powers of Indian Legislatures.

37. And We do further ordain and declare that all the provisions of these Our Letters Patent are subject to the legislative powers of the Governor-General in Legislative Council, and also of the Governor-General in Council under section seventy one of the Government India Act, 1915, and also of the Governor-General in cases of emergency under section seventy two of that Act, and may be in all respects amended and altered thereby.

IN WITNESS whereof We have caused these Our Letters to be made Patent.

WITNESS Ourselves at West Minister the 21st day of March in the year of Our Lord one thousand nine hundred and nineteen and in the Ninth Year of Our Reign.

By Warrant under the King's Sign Manual.

[Signed.]

SCHUSTER